

article 78(1) of the Statute entails that the Court has the same discretion for mistakes of law as it does for mistakes of fact (discussed above in mn 27). The rules should have made clear what criteria should be used for judging the avoidability of the mistake, or they must be decided with the help of the applicable law according to article 21.

4. Special regulation in article 33

- 41 Article 33(1) provides that persons committing crimes ‘pursuant to an order of a Government or of a superior ... shall not relieve ... of criminal responsibility’. However there is a defined exception. One of the three **cumulatively** demanded conditions under which an order may (exceptionally) have criminal relevance refers to an error of law in subparagraph (b): ‘The person did not know that the order was unlawful’. This regulation deviates from the general rule of article 32(2).

Such a person is mistaken about the lawfulness and therefore about a legal element. He or she evaluates the order wrongly with regard to its lawfulness, which normally under article 32(2) does not constitute ‘a ground for excluding criminal responsibility’. But in this exceptional case the Court has no discretion because the word ‘shall’ means that the consequence is obligatory⁵⁴.

Article 33 contains the only case in which a wrongful **legal** evaluation – by express terms in the Statute – ‘relieves ... of criminal responsibility’. This consequence of an error in law follows from the wording ‘shall not relieve ... unless ... [t]he person did not know that the order was unlawful’. This mistaken value judgement may be caused by a lack of knowledge about the facts constituting the unlawfulness or by evaluating these facts incorrectly.

But according to article 33(1)(c), this consequence only applies when ‘the order was not manifestly unlawful’. If it was ‘manifestly unlawful’ under the circumstances, the defence recognized by article 33 is not applicable and it cannot relieve the defendant from responsibility. In such cases the Court is left only with the discretion to mitigate punishment, as mentioned in mn 40 according to the general rule of article 78(1)⁵⁵.

Otherwise, if ‘the order was not manifestly unlawful’ and the mistaken evaluation not ‘automatically’ avoidable, a third condition has to be fulfilled in order to relieve the perpetrator from criminal responsibility: the subordinate must have been ‘under a legal obligation to obey orders’⁵⁶. This is a merely objective, material condition to exclude criminal responsibility; it, therefore, does not have to be comprehended by the *mens rea*, which means that a false perception in relation to the existence of this legal element is in principle irrelevant. But it may be considered as mitigation, because the psychological pressure on the perpetrator is equally strong regardless of whether he really is under the pressure of command under article 33 or he wrongfully assumes it, as referred to under mn 26. For further discussion on value judgements of the perpetrator (see below mn 43 *et seq.* in particular, 49 *et seq.* and 54).

C. Special remarks: Scope of practical importance

- 42 It has already been mentioned above that statutes for the International Military Tribunal at Nuremberg, the ICTY and the ICTR, do not contain regulations similar to article 32 of the Rome Statute. Furthermore, because of the default rules on mental elements contained in article 30, there is no practical need for article 32(1)⁵⁷.

⁵⁴ See also Triffterer and Bock, *article 33*, mn 11 and 14.

⁵⁵ *Id.*, mn 27. But see K. Ambos, *Treatise ICL I* (2013) 381, who argues that article 33 on superior orders does not apply if the defendant falsely believed that he was under a legal obligation to follow an order, in which case the defendant can then rely on the mistake of law defense under article 33. Under Ambos’ view, the legal obligation must *objectively* exist in order for article 33 to be triggered; the defendant’s mere subjective belief in the legal obligation is insufficient to trigger article 33.

⁵⁶ For details see Triffterer and Bock, *article 33*, mn 26.

⁵⁷ See above mn 4, 7 and 11.

1. ‘Core crimes’ and contempt of court

This tendency is confirmed by the jurisdiction of the *Ad hoc* Tribunals. Cases from the tribunals rarely deal in detail with these issues and, when they do, it is primarily regarding mistake of law in connection with Contempt of the Tribunal, and not in the context of core crimes. 43

The reason for the limited practical importance for core crimes is rather simple: Definitions of crimes under international law have been developed in accordance with appearances of behavior, which could be observed on the battlefield or, in the context of other atrocities, committed more or less openly. Deviance from generally acknowledged laws and customs of war, or broadly accepted conventional international humanitarian agreements, was generally apparent for all to see; Fletcher once referred to this as the ‘pattern of manifest criminality’ in the context of domestic criminal law.

These core crimes, such as the Grave Breaches of the Geneva Conventions, were defined by ‘visible’ conduct; there was, therefore, little chance for suspects to deny what was or could have been observed by many persons – including but certainly not limited to victims. When the prosecutor had to prove a mental element such as acting with ‘intent and knowledge’, the mental element could be easily inferred from the objective requirements that were ‘self-convincing’. For example, the required mental element is easily inferred when the defendant killed surrendered soldiers who were disarmed and taken into custody, killed POWs in concentration camps, killed wounded persons on the battlefield, or killed civilians who were not taking an active part in hostilities.

Disputes in court were mainly limited to cases where ‘unusual’ crimes were prosecuted and ‘defended’ with contradictory arguments like in the so called ‘*Ärzte-Urteil*’ at Nuremberg, discussed above in mn 4. The need to deal with false perceptions of the factual situation or of the ‘legal reality’ may occur not only when definitions of crimes contain elements shaped by a legal value judgement, like persecution under article 7(1)(h), or ‘in violation of the international law of armed conflict’ under article 8(2) (b)(XX), but also in cases of violations of an order of the Court or other modalities of Contempt of Court. 44

Contempt of Court is, however, not a crime within the jurisdiction of the Court. It is regulated by article 71 and rules 170 *et seq.* But the General Principles of Criminal Law defined and acknowledged in Part 3, articles 22 *et seq.*, which include article 32, are not limited to crimes within the jurisdiction of the Court. Such a limitation may exist only as far as expressly mentioned, like in articles 22 and 25(2). Otherwise, these principles apply generally, which means also to cases which fall within a ‘side competence’ of the Court, such as ‘Offences against the administration of the Court’ under article 70 and the sanctioning of ‘misconduct before the Court’ under article 71. 45

The so-called *Čelebići Case* dealt with considerations concerning mistake of law. The Appeals Chamber stated, with reference to the Trial Chamber’s findings and the Grave Breaches of the Geneva Conventions: 46

‘Mucic’s submission [which was “that in 1992 he could not have known that there was a possibility that the confinement of persons at Celebici could be construed as illegal under an interpretation of an admixture of the Geneva Conventions and article 2 lit. g of the Statute of the Tribunal”], has no merit because it is clear from the provisions ... from Geneva Convention IV that the detention of those persons was illegal at the very time of their detention’.⁵⁸

The Tribunal only required knowledge of the constituent facts and no value judgement in relation to this factual situation in cases where the illegality of the situation ‘is clear’ by these facts.

⁵⁸ *Prosecutor v. Mucić et al.*, IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, paras 373-75.

Similar wording can be found with regard to violations of orders of the Court. For instance, the Trial Chamber stated:

‘[i]f mistake of law were a valid defence in such case [Jović argued that the Blaškić Chamber’s orders did not bind him], orders would become suggestions and a Chamber’s authority to control its proceedings, from which the power to punish contempt in part derives, would be hobbled’.⁵⁹

The Appeals Chamber confirmed this decision, concluding that,

‘knowledge of the legality of the Trial Chamber’s order is not an element of the mens rea of contempt’.⁶⁰

- 47 The only ICC case to deal with mistake of law in the context of core crimes is *Lubanga*.⁶¹ The defendant argued that he was unaware that recruiting child soldiers triggered individual criminal responsibility, and even argued that he received insufficient notice that the Rome Statute was in effect during the time and location of the alleged crimes.⁶² The Pre-Trial Chamber first dispensed the legality concerns on factual grounds, noting that the Hema and Lendu communities of Ituri, and Lubanga specifically, were aware of the DRC’s ratification of the Rome Statute in 2002 and ‘the type of conduct which gives rise to criminal responsibility under the Statute’.⁶³ The Pre-Trial Chamber then discussed the scope of mistake of law under article 32(2), which it described as ‘relatively limited’.⁶⁴ In keeping with this statement, the Chamber rejected Lubanga’s mistake of law argument. In evaluating his claim, the judges apparently adopted the German ‘layman’s parallel evaluation test’ described above. Though the chamber did not refer to the test in those terms, it did conclude that the mistake of law defense is limited to those situations where the defendant is ‘unaware of a normative objective element of the crime as a result of not realising its social significance (its everyday meaning)’.⁶⁵ Applying this standard, Lubanga’s argument failed because there was insufficient evidence in the record that he labored under a relevant confusion. The argument might have succeeded if there had been evidence that he misunderstood the concept of ‘recruitment’ as including forcible conscription but excluding voluntarily enlistment of children, which would have constituted a normative mistake.⁶⁶ In such a case, the normative element could not be understood in purely layman’s terms. But no factual basis existed for reaching this conclusion about Lubanga’s state of mind.⁶⁷

- 48 However, the real significance of the discussion in *Lubanga* was the chamber’s cryptic adoption of the layman’s parallel evaluation test in its interpretation of article 32(2).⁶⁸ The use of a German framework to understand and qualify mistakes of law is in keeping with the use of German criminal law theory by the Pre-Trial Chamber, and the ICC more generally (for example with regard to co-perpetration). At least some commentators have complained that the layman’s parallel evaluation test is inconsistent with the common law framework for mistake of law, and also inconsistent with some civil law jurisdictions that regard mistake of

⁵⁹ *Prosecutor v. Jović*, IT-95-14 & IT-95-14/2-R77, Judgement, Trial Chamber, 30 August 2006, para 21.

⁶⁰ *Prosecutor v. Jović*, IT-95-14 & IT-95-14/2-R77, Judgement, Appeals Chamber, 15 March 2007, para 27.

⁶¹ *Prosecutor v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para 294. For a discussion, see Ambos, *Treatise on International Criminal Law* 371–372.

⁶² *Id.* At paras 294–296.

⁶³ *Id.* At para 312.

⁶⁴ *Id.* At para 305.

⁶⁵ *Id.* At para 316.

⁶⁶ See Weigend (2008) 6 JICJ [471], 476; Ambos, *Treatise on International Criminal Law* 372 (concluding that ‘the defence could have raised a somewhat more sophisticated line of argumentation. If Lubanga had, for example, argued that he was aware of the general prohibition of enlisting and conscripting children but was convinced that this provision was only applicable to the forcible recruitment (“conscripting”) of children, the Chamber would have been faced with the difficult question whether an erroneous evaluation of very specific normative elements of a crime... can be a ground for excluding criminal responsibility’).

⁶⁷ *Lubanga* (Decision on the confirmation of charges), note 59, para 308, 316.

⁶⁸ See also the discussion of the test with regard to core crimes in Eser, in: Cassese, Gaeta and Jones (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 889, 925.

law as an excuse negating culpability, which is far different from a negation of *mens rea*.⁶⁹ These considerations are not, by themselves, an absolute barrier to the ICC's interpretation of article 32(2). It is clear, however, that in *Lubanga* the ICC preferred a reading of the Rome Statute informed by German criminal law theory, and that the layman's parallel evaluation test will help structure future international decisions on mistake of law.

Common to both groups of decisions referred to above is the difference between awareness of facts that shape the definition and an evaluation of these facts by the defendant, which is not required to establish criminal responsibility. For all these aspects it is sufficient that the defendant knows the facts, *i. e.* is aware of them in the sense of article 30(3), and that he nevertheless believes that the situation and/or his behaviour was not unlawful. A legal evaluation of noticed facts is not required from the perpetrator, but is exclusively the task of those who apply the law and decide the fate of the defendant. A false value judgement by the perpetrator himself is not a relevant mistake of law, at least as long as the perpetrator correctly understands the underlying facts of the situation. Such situations and their consequences have been dealt with comprehensively above under mn 17 *et seq.* They may play a role, if at all, as mitigating circumstances according to rule 145(2)(a) of the RPE. The above under mn 41, which considered the special rule concerning article 33, only underlines this general regulation.

2. Errors and appeal

The considerations above, dealing with the difference between mistake of fact and mistake of law as well as value judgements may be helpful also when filing an Appeal to the Court or dealing with Appeal cases before it. Article 81 differentiates between errors (not mistakes) of facts and errors of law in paragraph 1(a) and (b). Such errors concern the factual situation at the Trial, in particular awareness of presented (or still-to-be presented) facts and evidence, as well as false conclusions in the sense of value judgements on which the sentence may have been founded. In these situations, the same assessment to facts and evaluations of law may be relevant for the defendant and the Prosecution. At the Appeals level, both may claim an error or even argue that the error caused an unfavourable decision from the judges.⁷⁰

3. Collateral damage as war crime?

These issues have even more practical importance for differentiating legitimate collateral damage from war crimes. Both are strongly related by empirical appearance, as well as by

⁶⁹ Heller (2008) 6 *JICJ* [419], 437. Heller concludes that the Rome Statute, when properly interpreted, is far too accommodating with regard to mistakes by defendants because he concludes that the layman's parallel evaluation test, and other doctrinal mechanisms to restrict the doctrine of mistake of law, are all inapplicable. Faced with no viable doctrine to limit mistake of law arguments, he urges a legislative amendment to correct the problem. In contrast, Ambos argues the opposite, *i. e.* that the Rome Statute's treatment of mistakes of law 'is unduly strict and may be inconsistent with the principle of culpability'. See Ambos, *Treatise on International Criminal Law* 375 (describing the 'presumption of knowledge of the law' as a 'fiction bordering on the absurd'). The presumption probably holds for obvious war crimes such as intentionally attacking civilians but Ambos is correct to note that some war crimes, eg the notion of 'other inhumane acts', are vague and more indeterminate. Similarly, Stuckenberg (2014) 12 *JICJ* 311, 322, finds it deplorable that 'the Rome Statute did make a step backwards when it broadly excluded' mistake of prohibition defenses, especially because a 'soldier may honestly err about the precise content of one of the numerous and sometimes very intricate and constantly evolving rules of the laws of war'. In addition to Stuckenberg, other scholars recognize at least the possibility of the defense in cases of unavoidable mistakes. See eg Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (Oxford University Press 2010) 505; E. van Sliedregt, *Individual Criminal Responsibility in International Law* (Oxford University Press 2012) 285. The warrant for this conclusion is that it would be a breach of the principle of culpability if the law required the defendant to act in such a way that was impossible for him (in the case of unavoidable mistakes). Under this view, culpability logistically presupposes that the defendant has some choice in the matter.

⁷⁰ For the common approach and the differences between errors of facts or law on the one hand, compared with mistakes of facts or law on the other hand, the considerations by Staker and Eckelmanns in this Commentary under article 81, mn 28 *et seq.* and 35 *et seq.*

similar concepts. But, as demonstrated by article 8(2) (b)(iv), they have to be strictly separated because of their different material and mental elements and their consequences. Both may equally violate protected targets, but, due to their different material and/or mental approaches when attacking these targets, they may lead to exoneration or to criminal liability and punishment⁷¹.

The difference between harm caused by war crimes and collateral damage can be understood by scrutinizing the required mental elements. For the latter, ‘collateral damage’ may be ‘calculated’ but need not be; and when it is, it may be comprehended by ‘intent and knowledge’ in the modality of *dolus eventualis* and therefore amount to a war crime. If not, collateral damage does not trigger criminal responsibility, as long as it comes as ‘side effects’ to lawful military actions on military targets and is not ‘clearly excessive’, which means disproportionate ‘in relation to the concrete and direct overall military advantage anticipated’. In other words, the anticipated collateral damage must be weighed against the value of the military aims to be achieved by the military activity, a definition based on article 52(2) Add. Prot. I. War crimes, on the other hand, may be solitary actions violating international law, in particular the laws and customs of war or other rules of humanitarian warfare.

- 52 As an example, consider the war crime defined in article 8(2)(b)(iv). According to this definition, ‘intentionally launching an attack’ is *per se* admissible. Such an attack, for which intent and knowledge is required under article 30, becomes a war crime not by the consequences caused as ‘incidental loss’. The triggering element is within the *mens rea*, namely ‘the knowledge that such an attack will cause incidental loss’ on civilian targets or the environment. Such loss consequently does not have to appear by being realized and, therefore, does not have to be proven by the Prosecution as caused by the perpetrator. The Elements of Crimes, therefore, refer to this war crime under No. 3 with the phrase ‘would cause’ as well as ‘would be ... clearly excessive’. It is sufficient that the perpetrator foresaw the facts leading to these conclusions and if the result occurred it would ‘be clearly excessive in relation to the concrete and direct overall military advantage anticipated’.

- 53 With regard to such hypothetical losses, this definition does not trigger attempt liability. Whereas the *mens rea* for attempt liability requires intent and knowledge in relation to all material elements constituting the crime, independent of whether they have been realized or not, the knowledge required for article 8(2)(b)(iv) is only awareness in the sense of article 30(3). Acting ‘in the knowledge’ is only the intellectual part of the ordinary *mens rea*, i. e. the mental side. At the same time it implies that the ‘intent to cause’, the volitional part, is missing.

In these cases, the required mental element is associated only with the intellectual approach of the relevant behaviour. Therefore, an error about what damage will occur on protected targets is relevant only if it concerns the factual basis for such a prognosis. And it implies also that the suspect has the ‘correct knowledge’ about these facts, but wrongfully evaluates them as not causing such losses or, if nevertheless they appear, that they would not be ‘clearly excessive’.

- 54 With regard to other war crimes, article 32 is, in principle, applicable in all its modalities. With regard to collateral damages as for all value judgements, there is a difference: A mistake of fact or law concerning the legality of the underlying military attack is treated as one of the usual mistakes, to which article 32 may be applied. Since the responsible person does not have to have any intent at all with regard to the so-called collateral damages, a false perception about their appearances is no defence. It may only shape the legality or illegality of the underlying military action and thus the criminal responsibility for this behaviour, the attack potentially or in reality causing such damages. Because excessive collateral damage not only makes the harm it causes illegal but also the attack itself illegal, it triggers liability for punishment.

⁷¹ See Triffterer, in: Moos, Jesioneck and Müller (eds.), *Festschrift für Roland Miklau zum 65. Geburtstag* (2006) 559, 559 *et. seq.* See also Dörmann and Arnold, *article 8*, mn 31–35 and 58–60. See also Reynolds (2005) 56 *AFLRev* [1], 64 *et. seq.*

It may be argued that article 8(2)(b)(iv) requires, by the phrase ‘in the knowledge that’, a 55 mental requirement additional to the ordinary *mens rea* with which the attack must be launched: awareness that the attack ‘will cause incidental loss’ of civilians or ‘damage to the natural environment’ and that such consequences, if they are realized, ‘would be clearly excessive in relation to the concrete and direct overall military advantage anticipated’. But perhaps this formulation describes only circumstances, characterizing the constituent elements of an attack falling within the scope and notion of this war crime. ‘Knowledge’ would then only emphasize what is already required for ordinary intent in the sense of article 30: awareness of a material circumstance of the attack.

In any event, the formulation ‘in the knowledge that’ refers to facts, which according to the knowledge of the perpetrator may lead to the conclusion that, due to the character of the attack, there is a risk that its targets are protected, which the perpetrator does not have to intend but only has to know. This means that the risk has to be covered by the intellectual, though not the volitional, part of the *mens rea*.

What consequences with regard to criminal responsibility and a mistake of fact or law derive from this proposition? In this case, the word ‘knowledge’ only repeats what is already required by article 30: the perpetrator has to know the facts which lead to the conclusion that ‘collateral damages’ will occur by launching the attack. An error, or the belief that the attack will not cause incidental loss or damage, is a false value judgement and therefore does not relieve the defendant from criminal responsibility. The same is true with regard to a false assessment concerning the requirement that the damage be ‘clearly excessive’⁷².

This result is satisfying and convincing: the attacker has to bear the risk of collateral damages when, for instance, he knows that there are more civilians than soldiers around the targeted building. Military actions are permitted only when the risk for ‘protected targets’ is excluded or, at least, minimized and, therefore, appears ‘negligible’, which even in the latter case is ‘bad enough’ for the victims. But a soldier who knows about the potential or actual ‘clearly excessive’ incidental damage to protected targets (by his awareness of facts which establish this relationship), should not be permitted to attack ‘military targets’. In particular, the experience of 21st century warfare suggests that, in general, the amount of civilian or protected targets destroyed in battle is very high and may not be justified when weighed against the anticipated value of the military objective.

Therefore, an excursus to a diverging opinion. Jefferson D. Reynolds has pointed out that 56 ‘many attacks are launched with the knowledge that they will result in some civilian casualties’⁷³. He further states in his analysis: ‘A defendant would not be criminally liable if an attack was executed under the personal belief that any collateral damage was not excessive compared to the military objective achieved’⁷⁴.

Reynolds backs this opinion by referring in his footnote 301 to the Elements of Crimes. There is as an overall principle for all crimes within the jurisdiction of the Court listed under No. 4 in the General Introduction:

‘With respect to mental elements associated with elements involving value judgement, such as those using the terms “inhuman” or “severe”, it is not necessary that the perpetrator personally completed a particular value judgement, unless otherwise indicated’⁷⁵.

In fact, Element No. 3 for article 8(2)(b) (iv) in its formulation:

‘The perpetrator knew that the attack would cause incidental death or injury to civilians or damage to civilian objects or widespread, long-term and severe damage to the natural environment and that such death, injury or damage would be of such an extent as to be

⁷² For a different opinion see Bothe, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 379 *et. seq.*, 400. See also Elements of Crime, Annex II in this Commentary, fn. 37.

⁷³ Reynolds (2005) 56 *AFLRev* [1], 70.

⁷⁴ *Id.* at 71.

⁷⁵ Elements, Annex II in this Commentary.

clearly excessive in relation to the concrete and direct overall military advantage anticipated⁷⁶ may be understood as such an exception. And, as to avoid any doubt and opposite interpretation of this Element, because its interpretation according to the scope and structure of crimes in relation to mistake of fact and law, the drafters added to this Element footnote 37 with a specific interpretation, which reads:

‘As opposed to the general rule set forth in paragraph 4 of the General Introduction this knowledge element requires that the perpetrator make the value judgement as described therein. An evaluation of that value judgment must be based on the requisite information available to the perpetrator at the time’⁷⁷.

This interpretation tries to narrow the definitions of all crimes within the jurisdiction of the Court, which use ‘mental elements associated with elements involving value judgement’. If the interpretation of Reynolds were accepted, it would not accord with the spirit of the Rome Statute preamble and its stated goal of preventing impunity, but would instead further impunity for those persons who launch attacks ‘in the knowledge that they will result in some civilian casualties’, as mentioned above.

This approach is dangerous because it frustrates the law’s goal of fostering compliance, as can be seen when Reynolds continues by citing Michael Bothe:

‘Under this interpretation a defendant’s culpability depends entirely and exclusively on that individual’s own value judgement⁷⁸. If the defendant believed the collateral damage was not excessive, then there could not be a finding of guilt⁷⁹. The court’s own evaluation of the defendant’s value judgement as to the excessive character of the damage is irrelevant⁸⁰. Defendants are able to make an independent value judgement that ultimately determines their own criminality and rewards wilful ignorance⁸¹. Commanders who teach their subordinates that they should only launch attacks when they have the personal belief that the collateral damage would not be excessive relative to the anticipated military advantage, run the risk that their subordinates will not be sufficiently careful in selecting military targets nor avoiding civilian damage.

The above-mentioned danger to the interests of justice is not diminished when Reynolds admits: ‘Although the ICC appears to adopt this approach in the ICC Elements of Crime, it is also free to disregard it’⁸².

It does not help to emphasize the independence of the Court in relation to the Elements, after they have been approved and acknowledged by the ASP without discussion. Reynolds himself mentions that the Elements are (merely!) guidelines that the Court may or may not apply.

In relation to the war crime defined in article 8(2)(b)(iv), the Court will hopefully not adopt what the ASP has recommended without open consideration and discussion in plenary.

- 57 If the Court would follow what is intended by article 9 to assist its interpretation and application of article 8(2)(b)(iv), the preventive function of International Criminal Law may even collapse. If military personnel can launch attacks in the belief that the expected damage to protected targets will not be ‘clearly excessive’ compared with the anticipated military advantage, they may be tempted to broaden the risk to such targets in almost unlimited ways because they do not risk criminal responsibility and punishment. The value of the military advantage will inevitably be decided first by the military with an optimistically high evaluation, which is difficult to control because of, among other things, the secrecy of military strategy. The higher the anticipated military advantage is calculated, the more loss

⁷⁶ *Ibid.*

⁷⁷ See Annex II in this Commentary.

⁷⁸ Reynolds (2005) 56 *AFLRev* [1], 71, with reference in fn. 301 to Bothe, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 379, 400.

⁷⁹ *Id.* with the same reference to Bothe.

⁸⁰ *Id.*

⁸¹ *Id.*

⁸² *Id.* at 72.

would be 'allowed' as so-called proportional 'collateral damage'⁸³. Such an approach should not prevail and not shape the intensity and character of attacks launched for whatever military reasons, if International Criminal Law is to provide (as it should) effective protection for the civilian population and the natural environment⁸⁴.

⁸³ See also Triffterer, in: Moos, Jesionek and Müller (eds.), *Festschrift für Roland Miklau zum 65. Geburtstag* (2006) 559.

⁸⁴ For these aspects in the context of the Kampala Review Conference, see also Triffterer, 'The Object of Review Mechanisms: Statutes' Provisions, Elements of Crimes and Rules of Procedure and Evidence' (Conference on International Criminal Justice, Turin 14–18 May 2007).

Article 33

Superior orders and prescription of law

1. The fact that a crime within the jurisdiction of the Court has been committed by a person pursuant to an order of a Government or of a superior, whether military or civilian, shall not relieve that person of criminal responsibility unless:

- (a) The person was under a legal obligation to obey orders of the Government or the superior in question;
- (b) The person did not know that the order was unlawful; and
- (c) The order was not manifestly unlawful.

2. For the purposes of this article, orders to commit genocide or crimes against humanity are manifestly unlawful.

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C., *Superior Orders in National and International Law* (Sijthoff 1976); *id.*, 'The Defence of Superior Orders in the Modern Law of Armed Conflicts', (1993) 31 *AlbertaLRev* 320; *id.*, 'Article 11: Order of a Government or Superior', in: M. C. Bassiouni (ed.), *Commentaries on the International Law Commission's 1991 Draft Code of Crimes Against Peace and Security of Mankind* (Erès 1993) 191; Heller, K. J., 'The Rome Statute of the International Criminal Court', in: K. J. Heller and M. D. Dubber (eds.), *The Handbook of Comparative Criminal Law* (Stanford Law Books 2011) 393; Heugas-Darraspen, E., 'Article 33. Ordre hiérarchique et ordre de la loi', in: F. Fernandez and X. Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article*, Vol. I (Pedone 2012) 945; Jescheck, H.-H., *Die Verantwortlichkeit der Staatsorgane nach Völkerstrafrecht* (Röhrscheid 1952); Knoops, G.-J. 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Excluding Criminal Responsibility – Part 1', (2001) 1 *ICLRev* 111; Schmoller, K., '§ 110. Eigenmächtige Heilbehandlung', in O. Triffterer, C. Rosbaud and H. Hinterhofer (eds.), *Salzburger Kommentar zum Strafgesetzbuch* (Lexis Nexis 5th supplement 1998); Triffterer, O., *Österreichisches Strafrecht Allgemeiner Teil* (Beck 2nd ed. 1994); *id.*, 'Bestandsaufnahme zum Völkerstrafrecht', in: G. Hankel and G. Stuby (eds.), *Strafgerichte gegen Menschheitsverbrechen: Zum Völkerstrafrecht 50 Jahre nach den Nürnberger Prozessen* (Hamburger Edition 1995) 169; UNWCC (ed.), *History of the United Nations War Crimes Commission and the Development of the Laws of War* (H. M. Stationery Office 1948); Vogler, T., 'The Defense of "Superior Order" in International Criminal Law', in: M. C. Bassiouni and V. P. Nanda (eds.), *A Treatise on International Criminal Law, Vol. I, Crimes and Punishment* (Thomas 1973) 619; Zimmermann, A., 'Superior Orders', in: A. Cassese, P. Gaeta and J. R.W.D. Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary, Vol. I* (OUP 2002) 957.

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A. General remarks

I. Historical development

Article VIII of the 1945 Nuremberg Charter was the first *international* document dealing expressly with the criminal responsibility of subordinates. It completely excluded superior orders as a valid defence by providing that acting 'pursuant to order of his Government or of a superior shall not free [...] from responsibility, but may be considered in mitigation of punishment, if the Tribunal determines that justice so requires'¹. The IMT approved the underlying principle of absolute liability of the subordinate and argued that it.

'is in conformity with the law of all nations. That a soldier was ordered to kill or torture in violation of the International Law of war has never been recognized as a defence to such acts of brutality, though, as the Charter here provides, the order may be urged in mitigation of punishment. The true test [...] is not the existence of the order, but whether moral choice was in fact possible'².

¹ See UNTS 288 (1951); also Eser, in: Schmoller (ed.), *Festschrift für Triffterer* (1998) 755, 759 and fn. 14. This rule was confirmed in article II para. 4 (b) of the Allied Control Council Law No. 10, Punishment of Persons Guilty of War Crimes, Crimes against Peace and against Humanity of 20 December 1945, which, however, did not include the words 'that justice so requires'. See also the overview on the historical development of the superior order defence by McCoubrey (2001) 50 *I&CompLQ* 386, 387–392.

² *The Trial of the Major War Criminals*, Proceedings of the International Military Tribunal sitting at Nuremberg, Germany (H. M. Attorney General by HMSO, London 1950), Part 22, 447; crit. as 'the total rejection

Given the 'shocking and extensive' crimes in question which 'have been committed consciously, ruthlessly and without military excuse or justification', however, the IMT deemed a mitigation of punishment to be inappropriate³. In some of the subsequent proceedings, judges have tried to find more flexible solutions giving due regard to the soldier's dilemma who is trapped between the duty to obey the orders of his or her superior and the imperative demands of (international) criminal law⁴. Nevertheless, the issue was highly disputed not only between the parties in these proceedings but also between the judges⁵.

It is surprising that the Genocide and the Geneva Conventions of 1949 did not take any specific position on the (possible) exonerating effects of superior orders. The Genocide Convention provides in article III merely for the punishability of conspiracy and incitement while the four Geneva Conventions of 1949 mention for instance in articles 49, 50, 129 and 146 the punishability of *orders to commit* war crimes. Since it is acknowledged that the prevention of such orders is the best measure to avoid such crimes and taking into consideration that the Geneva Conventions have not created new international humanitarian law but merely codified already existing laws and customs of war prohibiting certain behaviour⁶, the silence on this question of accountability is understandable.

- 2 In accordance with its mandate to elaborate a (rather complete) Draft Code of Offences against the Peace and Security of Mankind, the ILC included in its 1951 Draft an article on superior orders (article 4), adhering in principle to the Nuremberg precedent albeit with two modifications⁷: 'shall not free' was replaced by 'does not relieve' and the possibility of mitigating punishment was not expressly mentioned. The main change was that the irrelevance of an order was made dependent on that 'a moral choice was in fact possible'. In its report, the ILC referred expressly to '[p]rinciple IV of the Commission's formulation of the Nuremberg principles, on the basis of the interpretation given by the Nuremberg Tribunal to article 8 of its Charter'⁸. The proposed moral-choice criterion, which passed the Fifth Session of the General Assembly without any substantial modification, was meant to lay 'down the principle that the accused is responsible only if, in the circumstances, it was possible for him to act contrary to superior orders'⁹. Mitigation of punishment was not mentioned but also not excluded; rather it was regulated in the general rule of article 5 of the 1951 Draft Code.

In its revised 1954 Draft Code, the ILC emphasized that article 4 only excludes superior orders as a valid defence 'in international law'; in addition, the wording 'a moral choice was

of the superior order defence was a novelty and went beyond the existing international law', Ambos, *Treatise on ICL I* (2013) 378.

³ *The Trial of the Major War Criminals*, Proceedings of the International Military Tribunal sitting at Nuremberg, Germany (H. M. Attorney General by HMSO, London 1950), Part 22, 493.

⁴ The soldier's dilemma was summarized by the Israeli Supreme Court as follows: 'There is also the personal problem of the soldier himself when placed in the dilemma that, if he disobeys the order of his commanding officer, and it later turns out to have been lawful, he will be brought before a court-martial, whereas if he obeys it, and it later transpires that this was not the case, he will be liable to punishment under the general criminal law.', *A-G of Israel v. Eichmann*, Supreme Court Judgment, 29 May 1962, (1968) 36 *ILReporter* 277, 314 para. 15; see also Dinstein, 'Obedience to Superior Orders' (1965) 5–9; Grayson (1995) 64 *NordJIL* 243, 251; Bantekas, in: McGoldrick, Rowe and Donnelly (eds.), *Permanent ICC* (2004) 263, 269; Liang (2010) 2 *GoJIL* 872, 872–874; Ambos, *Treatise on ICL I* (2013) 376 with further references.

⁵ According to the judgement in the Hostage Case, for instance, a subordinate who is unaware of the unlawfulness of the order may claim a mistake of law, *US v. von Listz et al.* (Hostage Case), 19 February 1948, in: US General Printing Office, *Trial of War Criminals*, xi (1997) 1236–1237; thereto Jescheck, *Verantwortlichkeit der Staatsorgane* (1952) 388 *et seq.* In the High Command Case, the Tribunal indicated that in case the pressure exercised by the superior amounted to duress, the subordinate could be excused, *US v. von Leeb et al.* (High Command Case), 27 October 1948, in: US General Printing Office, *Trial of War Criminals*, xi (1997) 508–509; see also the case-law overview by Ambos (1998) *JR* 221, 223–224.

⁶ See Triffterer, *Dogmatische Untersuchungen* (1966) 190; *id.*, in: Hankel and Stuby (eds.), *Strafgerichte* (1995) 169, 177–178.

⁷ See also Green (1993) 31 *AlberiaLRev* 320, 331–333.

⁸ 1951 ILC Draft Code, 137.

⁹ 1951 ILC Draft Code, 137.

in fact possible to him' was replaced by 'in the circumstances at the time, it was possible for him not to comply with that order'. This alteration occurred because of views that 'moral choice' was a difficult concept to define and put too much emphasis on the *moral* and not on the *factual* or the *legal* situation in which the subordinate had committed the crime¹⁰.

The 1986 Draft Code contained a new article 8 on 'Exceptions to the principle of responsibility'. Its subpara. (c) provided that 'the order of a Government or of a superior does not relieve the perpetrator from criminal responsibility unless he acted under the threat of a grave, imminent and irremediable peril'. According to subparagraph (e), this and all other exceptions to criminal responsibility should be inapplicable if there was a 'breach of a peremptory rule of international law', the defence originated in a fault on the part of the perpetrator or 'the interest sacrificed is higher than the interest protected'¹¹. However, these limitations were not contained in the later version of this provision, then named article 9. The latter changed the concept of superior orders by mentioning that it should constitute an exception to criminal responsibility and returned to the 1951 Draft Code's formula of 'provided a moral choice was in fact not possible'¹². In its commentary, the ILC acknowledged that according to the Hostage and High Command Cases¹³ compliance to an order may already be 'justified by coercion and by an error as to the lawfulness of the order'. In the end, it nevertheless confirmed the need for a special regulation on superior orders¹⁴.

The 1991 ILC Draft Code returned to the 1954 Draft and substituted the 'moral choice' criterion with the possibility 'not to comply with that order' in article 11. In addition, it included in article 14 a regulation according to which 'the competent court shall determine the admissibility of defences under the general principles of law' and 'shall, where appropriate, take into account extenuating circumstances'.

Parallel to the endeavour of the ILC, alternative models were developed by the AIDP and the ILA. The 1980 AIDP Draft mentioned superior orders in the context of other defences in article IX section 5 expressing that '[a] person [...] is not relieved from responsibility by the sole fact that he was acting – pursuant to "superior orders", except where the provisions of article IX, Section 5 were applicable'. Article IX section 5 stated that 'a person acting in obedience to superior orders shall not be exonerated from responsibility – if he could have reasonably known that his conduct constituted a crime and he had a moral choice in refusing to obey the order'¹⁵.

The 61st Conference of the ILA adopted in 1984 a resolution which proposed in the annexed Protocol II, section III, Justifications, paragraph 5, a provision similar to the present article 33:

'Every one is justified when he, in engaging in the conduct charged to constitute an offence, does no more than execute an order of *his superior in the armed services* which he does not know to be unlawful or which is not for him obviously unlawful' (emphasis added).

Proposals to include beside armed services, for instance, the police and (other) security forces were rejected. In the Explanatory Report to Protocol II on Defences, Annex D under section Ad III paragraph (5), it was expressly mentioned, that

'[t]he minimum prerequisite for the justification of the execution of an order is for the subordinate person, that the order is not obviously unlawful. So neither the theory of the "bayonettes intelligentes" nor the one of the total exemption of the subordinate persons from criminal liability for actions on order are laid down here.'

¹⁰ See, e.g., Fuhrmann, *Der höhere Befehl* (1963) 110; Nill-Theobald, 'Defences' (1998) 77.

¹¹ See also in this commentary Triffterer and Ohlin, article 32 mn 5.

¹² See Report of the ILC on the Work of its Thirty-Ninth Session, 4 May–17 July 1987, (1987) 2 *YbILC*, Vol. II, Part 1, 7–9.

¹³ See note 5.

¹⁴ Report of the ILC on the Work of its Thirty-Ninth Session, 4 May–17 July 1987, (1987) 2 *YbILC*, Vol. II, Part 1, 9.

¹⁵ See Bassiouni, *ICL: Draft International Criminal Code* (1980) 141 *et seq.*, 152 and 163.

The underlying consideration was, that for various reasons '[t]he obviously possible knowledge of the unlawfulness by the subordinate person can only be assumed for very grave breaches of the law'¹⁶.

- 6 It was against this background that the ICTY Statute was drafted. Its regulation on superior orders, article 7 para. 4, is in its final version completely comparable with article VIII of the Nuremberg Charter, leaving unconsidered the drafts and the jurisprudence developed in the interim¹⁷. This appears to be understandable, since the aim was to formulate *generally* accepted international criminal law and the discussion about a more detailed formulation had at that time not led to a widely accepted result and could have led to an undesirable delay in establishing the ICTY.
- 7 With regard to the legal effects of superior orders, especially the ILA-Draft and the writing of scholars, members of the AIDP, refer to three major discernible opinions. The *traditional theory* called '*respondeat superior*' is based on the notion that, when acting on superior orders subordinates, especially privates in the army, could not decide, if the order was lawful or unlawful because they do not know the relevant circumstances. Besides, it would be at least from their subjective point of view impossible for them to refuse to obey, since they are only tools of those in power¹⁸. The *opposite opinion* favours an '*absolute liability*' of the subordinate arguing that only *lawful* orders can create an obligation to obey¹⁹. But as always in such rigid situations there is also a conciliatory branch of opinions. Some supporters of the '*respondeat superior*' approach argue that orders should not relieve the subordinate of responsibility if they are '*manifestly unlawful*'²⁰. The second theory also has its compromising branch, called the '*mens rea principle*', according to which the mental element may be lacking, if the subordinate mistakenly believes that the order was lawful²¹. The *third* opinion holds superior orders generally irrelevant with regard to the criminal responsibility but concedes that they may constitute *mitigating circumstances*²².

The 1994 ILC Draft Statute did not contain any regulation on superior orders and did not even mention this defence, because of its emphasis on enforcement and jurisdiction. Consequently, the 1995 *Ad Hoc* Committee did not consider this specific question in detail. However, the defence of superior orders was mentioned in the list of possible excuses leaving it to the Preparatory Committee to decide if at all and with what notion a regulation on this subject matter should be included in the Statute of the ICC²³.

- 8 Even though the Statutes of the ICTY and the ICTR with their identical provisions may – at first glance – raise the impression that the legal concept of superior orders was clarified, the situation was open when the Preparatory Committee started its work. Therefore, proposals published during the interim in the Updated Siracusa Draft and the 1996 ILC Draft Code were highly contentious²⁴. The discussion was structured according to the three

¹⁶ Kos-Rabcewicz-Zubkowski, in: ILA (ed.), *Report* (1986) 357, 374. For the different theories and scholarly views see Bassiouni, *Crimes Against Humanity* (2011) 590 *et seq.*; Eser, in: Schmoller (ed.), *Festschrift für Triffterer* (1998) 755, 760 *et seq.*; van Sliedregt, *Individual Criminal Responsibility* (2012) 287–291, 299–303.

¹⁷ On the adoption of the strict Nuremberg approach of absolute liability in the Statutes of various international and internationalized Tribunals Ambos, *Treatise on ICL I* (2013) 379.

¹⁸ For details see Bassiouni, *Crimes Against Humanity* (2011) 590 *et seq.*; Eser, in: Schmoller (ed.), *Festschrift für Triffterer* (1998) 755, 760, fn. 17 and 18; also Nill-Theobald, '*Defences*' (1998) 69 *et seq.*; Gaeta (1999) 10 *EJIL* 172, 174 *et seq.*; Scaliotti (2001) 1 *ICLRev* 111, 127–129.

¹⁹ See Eser, in: Schmoller (ed.), *Festschrift für Triffterer* (1998) 755, 762 with further references in fn. 28 and 29; also Nill-Theobald, '*Defences*' (1998) 71 *et seq.* (95).

²⁰ See, for example, Vogler, in: Bassiouni and Nanda (eds.), *Treatise on ICL* (1973) 619, 634.

²¹ Dinstein, '*Obedience to Superior Orders*' (1965) 76 *et seq.*, 87 *et seq.*; also Eser, in: Schmoller (ed.), *Festschrift für Triffterer* (1998) 755, 763 fn. 32.

²² See, for example, Jescheck, *Verantwortlichkeit der Staatsorgane* (1952) 268.

²³ See *Ad Hoc* Committee Report, Annex II (Guidelines), 58.

²⁴ See, for instance, Preparatory Committee Decisions 1997, article M with fn. 17: 'There were widespread doubts about the contents and the placement of this paragraph'; see also Gaeta (1999) 10 *EJIL* 172, 188–9; Saland, in: Lee (ed.), *ICC: Making of the Rome Statute* (1999) 189, 210–212; Zimmermann, in: Cassese, Gaeta and Jones (eds.), *Rome Statute of the ICC* (2002) 957, 966–967.

opinions summarized above (mn 7). In addition, it was considered whether subordinates receiving an order which was not manifestly but ‘just simply unlawful’, should not be relieved of criminal responsibility, ‘if it transpires that their commander was acting illegally in giving the order, and if they should have made further inquiries before obeying the order’. The question of which facts and rules should be decisive for a judgment on the lawful- or unlawfulness of an order was also debated²⁵. Right from the beginning there was a broad agreement that superior orders should not relieve from criminal responsibility in cases of genocide and crimes against humanity. But it was also considered that this defence should be applicable to only a few crimes outside these two groups²⁶.

The decisive break-through came in the *second session* with a proposal not accepting superior orders as a full defence but leaving it to the discretion of the Court to consider them as a mitigating circumstance if ‘justice so requires’. The *second proposal* was to exclude it (only) for genocide, crimes against humanity and aggression but nevertheless accept it as a mitigating circumstance. In cases of grave breaches of the Geneva Conventions and serious violations of the laws and customs of war the subordinate should be relieved of criminal responsibility unless the order was manifestly unlawful or in conflict with the rules of international law or international treaties. It was also suggested that ‘persons who have carried out acts ordered by the Security Council or who have acted on its behalf and in accordance with a mandate issued by it’ shall not be criminally responsible²⁷. This second proposal appeared for the first time under the new heading: ‘Prescription by law, and orders of the legitimate authority’. It was meant to clarify that carrying out ‘an act prescribed or authorized by legislation or regulations or an act ordered by the legitimate authority’ shall not exempt as such from criminal responsibility²⁸.

In the 5th session of the Preparatory Committee it was proposed that superior orders ‘shall 9 relieve the person of criminal responsibility, unless the order appeared to be manifestly unlawful’. It was considered that every order ‘in conflict with the rules of international law applicable in armed conflict’ amounted to an example of such illegality²⁹. In deference to this debate, article 32 of the Consolidated Draft has been phrased similarly but contains, even though in brackets, almost the final version of the Rome Statute: ‘shall not relieve the (that) person of criminal responsibility unless.’³⁰. This variety of opinions and proposals mirrors the whole scale of what has been discussed in and outside the UN since Nuremberg. It therefore is not surprising that the final version of article 33 is a compromise solution which tries to strike a balance between the different approaches³¹:

II. Conceptual framework and article 32

Regulations on responsibility of subordinates appeared necessary or at least advisable after 10 the Act of State doctrine had lost its validity and *individual* responsibility for crimes under international law became more and more accepted after the turn of the century and especially after the First World War. The aim of the drafting process was to clarify that subordinates could no longer hide behind the responsibility of their superiors or their States. To achieve the broadest possible *deterrent* effect, all three groups, State organs or officials, commanders and subordinates, should be equally responsible³². Accordingly, article 25 provides a com-

²⁵ 1996 Preparatory Committee II, article Q, Proposal 1, 102.

²⁶ *Ibid.*, article Q, Proposal 2, 102.

²⁷ *Ibid.*, article Q, Proposal 1 and 2, 102.

²⁸ *Ibid.*, article Q, Proposal 2, 102.

²⁹ See Preparatory Committee Decisions Dec. 1997, Annex II, article M with fn. 20.

³⁰ See Preparatory Committee (Consolidated) Draft.

³¹ See also Dufour (2000) 82 *IRevRC* 969, 986–987; Ambos, *Treatise on ICL I* (2013) 380.

³² 1991 ILC Draft Code, commentary on article 11, pp. 256 *et seq.* And 1996 ILC Draft Code, commentary on article 5.

prehensive list of principles relevant to ‘Individual criminal responsibility’³³. Since article 25 para. 3, listing different kinds of participation in the commission of a crime, does not expressly mention commission by a subordinate, even though this might fall under another subdivision as voluntary or involuntary participation, it appeared necessary to regulate such a situation separately, because there was agreement that being a subordinate should not *by itself* relieve him or her of criminal responsibility, but may, under certain conditions, absolve from or mitigate punishment.

- 11 This is the background in relation to which article 33 has to be seen and was included into the group of ‘defences’ mentioned in Part 3 on ‘General Principles of Criminal Law’. None of them is classified as justification or excuse. Rather they are described in a neutral language as ‘grounds for excluding criminal responsibility’ (article 31) or a fact which relieves a person of criminal responsibility (article 33). Article 32, which links the exonerating effect of mistakes of fact or law to the negation of the required mental element, is the exception³⁴.

The differentiation between justification and excuses may be of little practical relevance with regard to the responsibility of the direct perpetrator because both would result in an acquittal³⁵. It is nevertheless useful as it reflects the different moral rationales of grounds excluding criminal responsibility: A justification bars a person from criminal responsibility for an act which fulfils the elements of the offence definition but is regarded as lawful because the actor acted on the basis of a permissive norm which negates the effect of the *actus reus*. Excuses, to the contrary, do not render the act lawful. Rather, the individual wrongdoer is not blamed for having carried it out since he or she was unable to recognize the unlawfulness of his or her conduct or could not be expected to act lawfully.³⁶ The formulation ‘shall not relieve [...] of criminal responsibility’ in article 33 para. 1 is neutral and does not go in one or the other direction³⁷. But it is worthwhile drawing attention to article 2 para. 3 of the Torture Convention 1984, which provides that superior orders ‘may not be invoked as a justification for torture’³⁸.

- 12 In jurisprudence the opinion prevails that orders to commit any of the crimes punishable under international law are illegal (unlawful) and (therefore) *cannot justify* a corresponding behaviour by the subordinate. They may *excuse* him or her, where ‘a moral choice was not possible’ or where he or she was mistaken about the legality of the demanded behaviour³⁹. That these possibilities come close to the regulation in article 33 appears from its paragraph 1 and the conditions mentioned in subparagraphs (a)–(c). The reason behind this is that orders may cause a conflict of duties, on the one hand not to commit any crime and on the other to obey the order, given within the usual framework. This psychological pressure may be equally strong, whether the order is lawful or the person merely assumes that it is lawful⁴⁰. *In conclusion* it should be kept in mind that whatever conceptual framework is selected in the future, orders to commit a crime can never justify the crime committed in executing the order.⁴¹ However, the

³³ Heading of article 25; see for details in this commentary Ambos, article 25 mn 5 *et seq.*

³⁴ For more details see in this commentary Triffterer and Ohlin, article 32 mn 14 *et seq.*

³⁵ On the importance of this distinction for secondary participants and the right to self-defence, however, see Ambos, *Treatise on ICL I* (2013) 306.

³⁶ Ambos and Bock, in: Reed and Bohlander (eds.), *General Defences* (2014) 227; in more detail and with further references Ambos, *Treatise on ICL I* (2013) 304–307.

³⁷ See also in this commentary Eser, article 31 mn 17.

³⁸ See the commentary of the United Kingdom on the draft, reprinted by Green in: Bassiouni (ed.), *Commentaries on the ILC’s 1991 Draft Code* (1993) 191, 194.

³⁹ See, for instance, UNWCC (ed.), *History of the UNWCC* (1948) 274, especially on the jurisprudence in War Crimes Trials after the First and Second World War at 286 *et seq.*; see also Nill-Theobald, ‘Defences’ (1998) 80 *et seq.*

⁴⁰ See on the soldier’s dilemma already mn 1; see also in this commentary Triffterer and Ohlin, article 32 mn 14 *et seq.*; Triffterer, *Österreichisches Strafrecht* (1994) chapter 12 mn 165 *et seq.* On mistakes concerning the subordinates ‘legal duty to obey’ see mn 26.

⁴¹ See also van Sliedregt, *Individual Criminal Responsibility* (2012) 304; Ambos, in: Brown (ed.), *Handbook on ICL* (2011) 299, 323; *id.*, *Treatise on ICL I* (2013) 385. In France, however, obedience to superior orders is qualified as a justification, see Elliot, in: Heller and Dubber (eds.), *Handbook* (2011) 209, 227.

possibility remains of using this defence *not by itself*, but when the conditions come close to other defences like duress or coercion, as an *excuse* (also mn 14). In addition, even if the subordinate is not relieved of criminal responsibility, the fact that he or she committed a crime pursuant to an order may lead to a mitigation of punishment⁴². This possibility is not mentioned in article 33; but article 78 para. 1 obliges the Chambers to ‘take into account such factors as the gravity of the crime and the individual circumstances of the convicted person’. This general provision is specified further by rule 145 according to which circumstances falling short of constituting grounds for exclusion of criminal responsibility may constitute a mitigating circumstance (see also *infra* mn 24).

B. Analysis and interpretation of elements

I. The Heading: ‘Superior orders and prescription of law’

Headings of legal regulations are in many cases not the expression of a majority opinion of the legislator because they are not directly voted upon. Their wording, therefore, is often not a binding part of the respective articles. However, they may nonetheless have to be taken into consideration when interpreting elements of the respective articles⁴³. This is true with regard to article 33 as well.

When such a comprehensive heading was proposed in the Preparatory Committee, it was expressly stated that, besides orders, prescriptions and authorizations ‘by legislation and regulation’ shall not as such exempt from criminal responsibility⁴⁴. This underlines that regardless of the type of the order, the rank of the superior or the kind of prescription of law that lead to the commission of one of the most serious crimes of concern to the community of nations, they all ‘shall not relieve’ the subordinate ‘from criminal responsibility unless’ the conditions listed in para. 1 (a) to (c) are fulfilled. That reference to national prescriptions cannot relieve the subordinate follows also from article 21 on the applicable law, according to which ‘this Statute’ has priority, especially since *national* law can be applied only as far as it is ‘not inconsistent with this Statute’ (para. 1 [c]).⁴⁵

The heading further expresses that superior orders have to be seen in the light of ‘prescription of law’ and not independent from their lawfulness, thus referring to the fact, that illegal (unlawful) orders, as for instance an order to commit a crime, can generally have no legally binding effect. The *second* part of the heading is mirrored in paragraph 1 (a) by the words ‘under a *legal* obligation to obey orders’. This formula presupposes (only) a *general legal* obligation to obey orders given by the Government or the ‘superior in question’ according to the national law concerned or by a *de facto* commander under the laws and customs of war (in more detail mn 17, 19 and 26).

II. Paragraph 1

1. General rule: ‘shall not relieve’

The first half of paragraph 1 states very clearly, that – *in principle* – superior orders ‘shall not relieve [...] of criminal responsibility’. For psychological reasons and questions of proof this method of first establishing the principle of absolute liability of the subordinate and

⁴² Scaliotti (2001) 1 *ICLRev* 111, 141; Knoops, *Defenses* (2008), 130; Safferling *Internationales Strafrecht* (2011) § 5 mn 59; Ambos, *Treatise on ICL I* (2013) 385; Werle and Jeßberger, *Principles* (2014) mn 671.

⁴³ See, for instance, the headline of § 110 Austrian Penal Code concerning ‘Eigenmächtige Heilbehandlung’ and thereto Schmoller, in: Triffterer, Rosbaud and Hinterhofer (eds.), *Salzburger Kommentar* (1998) mn 22 *et seq.*

⁴⁴ 1996 Preparatory Committee II, article Q, Proposal 2, 102.

⁴⁵ Also Ambos, *Treatise on ICL I* (2013) 380.

then restricting it under exceptional circumstances was selected in preference to the possibility to recognize superior orders as a defence (in principle) and then nominating the exceptions, according to which this defence would *not* be applicable. Obedience to superior orders thus does not amount to a defence *per se* but is a factual element which may be taken into consideration in conjunction with other circumstances of the case.⁴⁶ In particular, the ‘soldier’s dilemma’ may constitute a mitigating circumstance (*supra* mn 11) and should be considered within the framework of the defences of duress and mistake⁴⁷.

Paragraph 1 as a whole does not express an opinion with regard to all conceivable orders in general. Rather, it narrows the scope of *relevant* orders by describing enumeratively the types of crimes they have to address and, in addition and alternatively, the institution or superior issuing the order thus limiting the applicability of article 33 in two respects. Its scope is even further restricted by paragraph 2 (see *infra* mn 30).

- 15 a) ‘crime within the jurisdiction of the Court’. First of all, the wording clarifies that article 33 is applicable only when a crime has been committed which falls ‘within the jurisdiction of the Court’, *i. e.*, genocide, crimes against humanity, war crimes and the crime of aggression (article 5). The Court’s jurisdiction over these crimes began with the entry into force of the Statute on the 1st July 2002 (article 126), but includes only those crimes committed thereafter. With regard to aggression, however, the ICC may exercise its jurisdiction at earliest after 1 January 2017 (article 15ter).

Thus, article 33 does not regulate the question of whether crimes under international law in general (which includes also less serious crimes than those mentioned in article 5) ought to be treated in the same way. It also expresses no opinion on how to deal with the question of superior orders in national law. But if States exercise their jurisdiction over crimes contained in article 5 they *genuinely* proceed only if they give respect to article 33⁴⁸. In other words, States that *in general* accept superior orders as a full defence without differentiation are unable genuinely to carry out the investigations or prosecutions in terms of article 17 para. 1 (a) or (b) and trigger the complementary jurisdiction of the Court. Therefore, even though the Statute cannot prescribe which laws national criminal jurisdictions have to apply with regard to those crimes mentioned in article 5 it nevertheless has an influence on the domestic level.

- 16 b) Committing ‘pursuant to an order’. The perpetrator must have committed the crime charged ‘pursuant to an order’ issued by a competent authority, *i. e.*, a Government or a superior, in a military or civilian context.
- 17 aa) Definition of order. Orders in the sense of article 33 are all oral or written or otherwise expressed demands, addressing a certain person or groups of persons individually or by describing their functions, for instance as local military commanders, to behave in a specific way, whether by acting or omitting⁴⁹. It is advisable to keep this definition broad in the sense that any sort of explicit or implied communication between a superior and a subordinated person whatsoever is sufficient.⁵⁰ This includes orders given by conclusive

⁴⁶ *Prosecutor v. Erdemović*, IT-96-22-A, Judgement, Joint Separate opinion of Judge McDonald and Judge Vohrah, Appeals Chamber, 7 October 1997, para. 34.

⁴⁷ Ambos, in: Brown (ed.), *Handbook on ICL* (2011) 299, 324; *id.*, *Treatise on ICL I* (2013) 386; also Kittichaisaree, *ICL* (2002) 268; Knoop, *Defenses* (2008) 130; Schabas, *ICC: Commentary* (2010) 511; Meyer (2012) 159 GA 557, 566; Cassese and Gaeta, *Cassese’s ICL* (2013) 237–240; Cryer, in: *id. et al.* (eds.), *Introduction* (2014) 398, 415. The close connection between superior orders and duress/mistake is also reflected in the Nuremberg jurisprudence, see fn. 5 and in the case law of the ICTY, *Prosecutor v. Erdemović*, IT-96-22-A, Judge McDonald and Judge Vohrah, 7 October 1997, para. 34; also *Prosecutor v. Česić*, IT-95-10/1-S, Sentencing Judgment, Trial Chamber, 11 March 2004, para. 97; *Prosecutor v. Mrđa*, IT-02-59-S, Sentencing Judgement, Trial Chamber, 31 March 2004, para. 65.

⁴⁸ See also in this commentary Triffterer and Burchard, *article 25* mn 5.

⁴⁹ Conc. Ambos, *Treatise on ICL I* (2013) 380; see also the similar definitions by Zimmermann, in: Cassese, Gaeta and Jones (eds.), *Rome Statute of the ICC* (2002) 957, 969; Korte, *Handeln auf Befehl* (2003) 126.

⁵⁰ Ambos, *Treatise on ICL I* (2013) 380, see also Korte, *Handeln auf Befehl* (2003) 126; van Sliedregt, *Individual Criminal Responsibility* (2012) 293.

behaviour, for which the objective expression ('objektiver Erklärungswert') in the given situation is decisive. An order presupposes further that the superior has – at least in principle – a right to demand obedience by the subordinate because their different positions are in one way or another linked. Such a broad starting point does not undermine the *ratio* of article 33, because paragraph 1 contains sufficient additional criteria for excluding, for instance, 'orders' from parents to their children.

Orders may address persons *generally*, for instance, by prohibiting or ordering a certain behaviour requiring everybody to fulfil certain criteria or by demanding or forbidding a *specific* behaviour in *individual* cases such as protecting or attacking a certain person or property.

bb) 'of a Government or of a superior'. Article 33 applies only to orders of a Government 18 or a superior.

Orders of a Government can be issued by all its branches or persons belonging to the Government and in charge of specific functions which permit them to act on behalf or in the name of a Government or one of its branches. Such Government orders can be given with regard to all persons under the power of the respective Government. It is generally accepted that orders of Governments may address all citizens of the respective State and even those of third States who live in a certain territory or are tied by another obligation to this Government. For instance, a legal order to appear and to give evidence before a court is an order of the judicial branch of the Government and not of a superior.

Orders of a Government do not have to address persons individually but may do so. An order of a Government to all civilian and military forces to cleanse a certain territory of a specific ethnical group is an order to every person belonging to one of the mentioned units and thus falls under the scope of article 33. On the other hand, orders may also be especially addressed to individual subordinates in the hierarchy of a Government or generally to all persons in charge of specific functions like commanders of certain military units who have to forward the order to their subordinates. Such a commander may either just pass an order to the next lower level, *i.e.*, to another commander subordinated to him, or address all his subordinates directly.

It appears convincing that orders of a Government must be at least issued by the 19 competent organ (person) and must be formally legitimate. If these (formal) requirements are not fulfilled, the order cannot create a legal obligation to obey. Nevertheless, the subordinate may not be capable of judging this question. Again, a broad interpretation of 'Government orders' does not jeopardize the international criminal justice system, because, in principle, they – like any other orders – do not relieve the subordinate of criminal responsibility.⁵¹ Government therefore means a legally established or *de facto* accepted Government of a State which has issued an order at least formally in accordance with its respective rules of action⁵².

The wording 'order of a Government or of a superior' is not an alternative in the sense 20 that either a Government or a superior from *outside* the Government must have given the order. Rather the term superior clarifies, that article 33 is applicable also if an order is not issued personally by the minister of defence, for example, but by a local military commander. Orders issued by individual persons and not signed in the name or on behalf of the Government may nonetheless be orders of a superior. In any case, superiority presupposes that the person concerned is subordinated to the commanders in such a way that he or she is duty bound to fulfil their instructions.

The differentiation between the two concepts, Government and (other) superiors, does not 21 seem to be of any practical importance as long as it is guaranteed that all relevant cases can

⁵¹ See also Ambos, *Treatise on ICL I* (2013) 381: '[T]he broader the term 'government' is interpreted, the wider the application of article 33's general rejection of the superior order defence becomes.'

⁵² Conc. Ambos, *Treatise on ICL I* (2013) 380; see also in this commentary Triffterer and Ohlin, article 32 mn 18; against the inclusion of *de facto* Governments, however, Liang (2010) 2 *GoJIL* 872, 890; also Zimmermann, in: Cassese, Gaeta and Jones (eds.), *Rome Statute of the ICC* (2002) 957, 968.

be subsumed under either of them. In order to give broad effect to article 33's general rejection of the superior order defence it seems advisable to include *in principle* all superior-subordinate relationships. In particular, article 33 is applicable to legal obligations arising out of a mandate of the Security Council or in the framework of the NATO and may even encompass subordinations within the hierarchy of civil enterprises which can establish a 'legal obligation to obey orders' by valid contracts (see, however, also mn 22). Superior-subordinate relationships within a criminal organisation acting outside the law, to the contrary, are not covered by article 33⁵³. Insofar already the heading 'superior orders and prescription of law' acts as a filter.

- 22 cc 'military or civilian'. Article 33 equally applies to military and civilian orders, which corresponds to the extension of the concept of command responsibility to civilian superiors⁵⁴. It does not matter, if the specification 'whether military or civilian' is connected to orders of a superior only or equally to orders of a Government. For the latter opinion it has to be mentioned that Governments are in practice divided into military and civilian administrations⁵⁵, as was, for example, the machinery of Nazi Germany in order to administer the large scale commission of crimes against humanity. In sum, the two adjectives 'military or civilian' refer to all branches of Governments and relevant fields in which superiors are acting.

The (possible) extension of article 33 to civilian orders and in particular to instructions of private enterprises given to their employees (see also mn 21), however, is not uncontested. The problem with this broad approach is that 'the superior order defence operates under the presumption of military conditions',⁵⁶ that is, a strict system of discipline demanding absolute obedience safeguarded by harsh (military or criminal) sanctions. In a civilian context, the subordinate acts under less pressing conditions.⁵⁷ However, one must take into account that the applicability of article 33 depends on the existence of an order of a superior in the sense dealt with above (mn 17). Therefore it is necessary that the superiors have effective control over the persons committing the crime. This condition is fulfilled only if civilian superiors exercise a degree of control over their subordinates which is similar to that of military commanders⁵⁸. In such cases, it should make no difference if one of the industrial organizations of the Second World War has given instructions for an inhuman or degrading treatment through its organs and thus to commit crimes against humanity within their hierarchy of subordination or if such orders were given within the different branches of the Government directly. As has been pointed out in the drafting history with reference to the approach of the IMT '[t]he true test [...] is not the existence of the order, but whether moral choice was in fact possible'⁵⁹. Translated into the language of article 33 this means that the true test for the liability of the subordinate is whether or not the exceptional conditions listed in paragraph 1 (a) – (c) are fulfilled.

This understanding of article 33 is confirmed by the fact that its scope has been changed during the drafting process. The Updated Siracusa Draft proposed to limit the provision to

⁵³ For the same result Ambos, *Treatise on ICL I* (2013) 381 according to whom, however, article 33 may be applied to hierarchical relationships within non-states actors in terms of article 1 para. 1 Add. Prot.; crit. Zimmermann, in: Cassese, Gaeta and Jones (eds.), *Rome Statute of the ICC* (2002) 957, 969; Cryer, in: *id. et al.* (eds.), *Introduction* (2014) 398, 413.

⁵⁴ Liang (2010) 2 *GoJIL* 872, 889; Ambos, *Treatise on ICL I* (2013) 381.

⁵⁵ van Sliedregt, *Individual Criminal Responsibility* (2012) 294.

⁵⁶ Liang (2010) 2 *GoJIL* 872, 891.

⁵⁷ Liang (2010) 2 *GoJIL* 872, 891; Ambos, *Treatise on ICL I* (2013) 382.

⁵⁸ In the same vein Liang (2010) 2 *GoJIL* 872, 889; Ambos, *Treatise on ICL I* (2013) 381; also Korte, *Handeln auf Befehl* (2003) 131; Heller, in: Heller and Dubber (eds.), *Handbook* (2011) 593, 614. This corresponds to the approach adopted by the ICTY with regard to the extension of the concept of superior responsibility to civilian commanders, see, e.g. *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para. 378.

⁵⁹ See Report of the ILC on the Work of its Thirty-Eighth Session, 5 May–11 July 1986, UN Doc. A/41/10 (1986), para. 165, p. 52.

orders of ‘military or political’ superiors, while the Preparatory Committee suggested referring in the heading to ‘orders of the *legitimate* authority’ (emphasis added)⁶⁰. Ever since the present wording ‘whether military or civilian’ was proposed and put into brackets in the fifth session of the Preparatory Committee, it has been continuously maintained in all following drafts without any explanation. From the whole context, however, it appears that these words serve the purpose of not limiting the applicability of paragraph 33 to *military* orders. Rather all possibilities to refer to a subordination in order to avoid criminal responsibility for an act ordered by a superior should be included⁶¹.

dd) Connection between order and conduct. The crime on which the Court shall exercise its jurisdiction has to be ‘committed [...] *pursuant to an order*’. This implies that the subordinate must have intended to act or omit to act out of concern to obey and hence to execute the order. If he or she commits the crime independently from the order, article 33 is not applicable.⁶² However, obedience to the order does not need to be the only motive of the subordinate. It is sufficient, if the crime was initiated or inspired by the order, even though the subordinate may have expected or even desired that the order provides him or her with a (better or additional) basis or perhaps even a justification (or an excuse) for what he or she was already motivated to do (anticipated obedience).

The causal connection between the order and the crime of the subordinate has to be evaluated on an *ex post* basis, because – according to the rules of natural sciences – there is no connection between a human behaviour and the ‘result’ it may cause *in the mind* of another person that makes such a result predictable in a generalized way aside from the specific situation⁶³.

c) Legal consequences. The Chapeau of paragraph 1 is not to be misunderstood. It prescribes that orders ‘shall not relieve that person of criminal responsibility’. Thus, the general rule is that obedience to superior orders is no defence and that the subordinate has to be punished for the (international) crimes he or she has committed in execution of an order (for exceptions see mn 25 *et seq.*)⁶⁴. As was already pointed out (see mn 12), the ‘soldier’s dilemma’, however, may be taken into account in sentencing. Its mitigating effect depends on the individual circumstances of the case. The *Bralo* Trial Chamber of the ICTY, for example, has emphasized that the accused ‘has taken full personal responsibility for those crimes and has acknowledged that he knew them to be wrong’. While ‘*Bralo* may have been pressured to participate in combat activities, he remained legally and morally obliged to conduct himself in accordance’ with the relevant norms of international humanitarian law. As the Chamber was convinced that *Bralo* ‘did indeed have a choice with regard to his continued participation in the combat activities’ it refused to accept compliance with superior orders as a mitigating factor.⁶⁵ This finding was upheld by the Appeals Chamber⁶⁶.

2. Exemption

There exists *only one* exemption from the liability principle. Its applicability depends on the satisfaction of the three cumulative conditions listed in para. 1 (a) – (c). The first one is phrased in a *positive* way; the second and the third ones in a *negative* way (‘did not know’; ‘not manifestly unlawful’). In the previous edition, it was argued that the wording of article 33

⁶⁰ 1996 Preparatory Committee II, 102.

⁶¹ Bassiouni, *ICL: Draft International Criminal Code* (1980) 152 *et seq.*

⁶² van Sliedregt, *Individual Criminal Responsibility* (2012) 294; Ambos, *Treatise on ICL I* (2013) 380.

⁶³ Triffterer, *Österreichisches Strafrecht* (1994) chapter 16 mn 70 *et seq.* with further references.

⁶⁴ Also Mezzetti, in: Lattanzi (ed.), *ICC: Comments on the Draft Statute* (1998) 147, 155; Dinstein, in: McDonald and Swaak-Goldman (eds.), *Substantive and Procedural Aspects of ICL* (2000) 369, 381; Werle and Jeßberger, *Principles* (2014) mn 669.

⁶⁵ *Prosecutor v. Bralo*, IT-95-17-S, Judgement, Trial Chamber, 7 December 2005, paras. 54–55; in a similar vein *Prosecutor v. Mrda*, IT-02-59-S, 31 March 2004, para. 67.

⁶⁶ *Prosecutor v. Bralo*, IT-95-17-A, Judgement, Appeals Chamber, 2. April 2007, paras. 23–25.

indicates that the defence has to prove the existence of the first requirement while the second and third are already fulfilled if it cannot be proven (according to the evidence available) that the subordinate knew that the order was unlawful, respectively that the order was manifestly unlawful. According to this reading, article 33 para. 1 (b) and (c) contain a reversal of the burden of proof in favour of the subordinated person⁶⁷. Article 67 para. 1 (i) of the Statute, however, prohibits any reversal of the burden of proof or onus of rebuttal to the detriment of the accused. If one applies this rule not only to the elements of the offence, but also to defences, the Prosecution is generally obliged to *disprove* the existence of a defence beyond reasonable doubts (article 66 para. 3). According to this approach, the accused carries (regardless of the wording of the defence) only an initial evidentiary burden with regard to the facts supporting the alleged defence.⁶⁸

- 26 a) **Conditions.** aa) ‘legal obligation to obey’. The ‘legal obligation to obey orders of the government or the superior in question’ must have existed at the time when the subordinated person decided to commit the crime. This formula refers to binding orders in general and not to the question of whether there was a legal obligation to obey the specific order to commit a crime. The reason for this interpretation is that only in longer lasting or permanent hierarchical relationships a sort of dependence or pressure may develop to make ‘blind obedience’ understandable and, perhaps, excusable. Moreover, orders to commit international crimes are always unlawful (mn 27) and subordinates are not legally obliged to obey them⁶⁹.

To establish this condition as an *objective* element to exclude criminal responsibility does no harm to the subordinated persons. If they wrongfully believe to be ‘under a legal obligation to obey orders’, which in fact they are not, they may claim a mistake in terms of 32⁷⁰. But since in principle, superior orders ‘shall not relieve [...] of criminal responsibility’, there is not much room for article 32. The main exception may be an assumed ‘legal obligation to obey’ by a false awareness of the factual situation⁷¹.

- 27 bb) ‘did not know that the order was unlawful’. Article 33 para. 1 (b) implies that orders to commit ‘a crime within the jurisdiction of the Court’ are always *unlawful*. To be relieved of criminal responsibility the subordinate person must ‘not know that the order was unlawful’. It is obvious, that the illegality must result from the content of the order, namely to commit ‘a crime within the jurisdiction of the Court’. All other reasons for an order to be unlawful are not decisive in this context.

This condition is fulfilled if it cannot be proven that the subordinate had positive knowledge of the unlawfulness of the order. In cases of doubt he or she has to be treated as if he or she was mistaken (see also mn 25). Article 33 para. 2 (b) thus contains an exception to the strict *ignorantia iuris* rule⁷². It accepts an error regardless of how it was caused and whether or not it was avoidable, *i. e.*, the superior order defence is available even in cases in which the subordinate has neglected important evidence from which he

⁶⁷ See the previous edition of this commentary, Triffterer, article 33 mn 25; also Dufour (2000) 82 *IREvRC* 969, 989.

⁶⁸ In more detail and with further references Ambos, *Treatise on ICL I* (2013) 312–313; see also Garraway (1999) 81 *IREvRC* 785, 791.

⁶⁹ Ambos, *Treatise on ICL I* (2013) 381; see also Meyer (2012) 159 *GA* 557, 569.

⁷⁰ See also Ambos, *Treatise on ICL I* (2013) 381 and in this commentary Triffterer and Burchard article 32 mn 41. More reluctant Cryer, in: *id. et al. (eds.), Introduction* (2014) 398, 413, who argues that a mistake about the ‘legal obligation to obey’ can never negate *mens rea* as required by article 33; see, however, on the analogous application of article 33 to (indirect) mistakes about the existence of the factual requirements of a defence Ambos, *Treatise on ICL I* (2013) 374–375 with further references.

⁷¹ In more detail in this commentary Triffterer and Ohlin article 32 mn 41.

⁷² In more detail on the relationship between article 33 and 32 see Liang (2010) 2 *GoJIL* 872, 882–883; Heugas-Darraspen, in: Fernandez and Pacreau, *Statut de Rome* (2012) 945, 951–952; Ambos, *Treatise on ICL I* (2013) 381; Cryer, in: *id. et al. (eds.), Introduction* (2014), 398, 415; see also Safferling *Internationales Strafrecht* (2011) § 5 mn 59; crit. Dinstein, in: McDonald and Swaak-Goldman (eds.), *Substantive and Procedural Aspects of ICL* (2000) 369, 379, who deems article 33 to be redundant. In more detail on the differences between Dinstein’s conception of the superior order defence and the approach of the Rome Statute Cryer (2011) 9 *JICJ* 959, 970–971.

could have concluded ‘that the order was unlawful’. The regulation is therefore very favourable to subordinated persons⁷³.

cc) ‘not manifestly unlawful’. A sort of compensation for the strict acceptance of (even avoidable) errors of the subordinates is contained in condition (c): even if condition (a) is fulfilled and the subordinate did not know that the order was unlawful according to (b), he or she is not relieved of criminal responsibility, if the order is *manifestly* unlawful. This again is an *objective* element. As already stated above (mn 25) it has to be proven positively that ‘the order was manifestly unlawful’. As long as there remains doubt about this question, the order was, in favour of the subordinate, not *manifestly* unlawful.

The manifestly unlawful criterion establishes a high threshold. In a famous dictum, the Israeli District Court held that ‘the distinguishing mark of a “manifestly unlawful order” should fly like a black flag above the order given, as a warning saying “Prohibited”’⁷⁴. In other words, the unlawfulness of the order must be ‘obvious, self-evident (even to a lay-person) and incontestable’⁷⁵. If the subordinate nevertheless erroneously assumes that the order was ‘not manifestly unlawful’, it has to be differentiated as follows: If he or she is not aware of the ‘real’ facts, underlying and shaping the order, he or she acts under an error of facts and article 32 para. 1 is applicable. If he or she, however, is aware of all facts and only makes a wrong legal assessment, he or she is under an error of law, which does not exclude his or her criminal responsibility⁷⁶.

b) **Legal consequences.** If the subordinate ‘was under a legal obligation to obey orders’ and ‘did not know that the order was unlawful’ and ‘the order was not manifestly unlawful’, he or she is relieved ‘of criminal responsibility’. To be more precise, the subordinate is excused (see mn 11) because he or she was in situation of pressure (para. 1 [a]) in which he or she did not realize that he or she was not legally obliged to obey (para. 1 [b] complemented by the objective manifest unlawful test of para. 1 [c]). Thus, if all exceptional conditions listed in article 33 para. 1 are fulfilled, the subordinate cannot be blamed for having carried out the unlawful orders of the superior.

III. Paragraph 2: ‘manifestly unlawful’

1. Presumptio iuris et de iure

Paragraph 2 limits the scope of the superior order defence by the presumption that the unlawfulness of the order in terms of para. 1 (c) is self-evident when crimes of genocide and crimes against humanity are committed in its pursuance. According to the drafters of the Rome Statute such an order would be so obviously ‘manifestly unlawful’ that this fact does not need any proof. The presumption of para. 2 is un rebuttable⁷⁷, which means that article 33 only applies to war crimes and the crime of aggression⁷⁸.

⁷³ See also in this commentary Triffterer and Burchard, article 32 mn 41.

⁷⁴ *A-G of Israel v. Eichmann*, District Court Judgement, 12 December 1961, 36 (1968) *ILR* 18, 256 para. 218.

⁷⁵ Ambos, *Treatise on ICL I* (2013) 384; also Korte, *Handeln auf Befehl* (2003) 135; Schabas, *ICC: Commentary* (2010) 511–512.

⁷⁶ See also Schabas (1998) 6 *EJCLCJ* 400, 427; *id.*, *Introduction to the ICC* (2011) 243; in more detail in this commentary Triffterer and Ohlin article 32 mn 41.

⁷⁷ For a different view see Bantekas, in: McGoldrick, Rowe and Donnelly (eds.), *Permanent ICC* (2004) 263, 273, who argues that the presumption of article 33 para. 2 must be rebuttable, because ‘the commission of genocide and crimes against humanity involve large scale action, often requiring minor operations in which the offender cannot always be expected to be aware of the eventual aim’; in the same vein Bantekas and Nash, *ICL* (2007) 61; against this view Ambos, *Treatise on ICL I* (2013) 384.

⁷⁸ Scaliotti (2001) 1 *ICLRev* 111, 140; Ambos, *Treatise on ICL I* (2013) 383; also Werle and Jeßberger, *Principles* (2014) mn 670.

2. Additional cases?

- 31 The wording of para. 2 is clear: Only genocide and crimes against humanity as defined in articles 6 and 7 fall under the *presumptio iuris et de iure*. Orders to commit war crimes and the crime of aggression, to the contrary, are not *per se* manifestly unlawful, but must be evaluated on a case-by-case basis; for all of them the exemption of paragraph 1 is applicable⁷⁹. This differentiation is surprising⁸⁰. Genocide and crimes against humanity on the one hand and war crimes and the crime of aggression on the other do not differ too much in respect of the gravity of the harm they cause. If, nevertheless, none of the most serious war crimes and crimes against peace are excluded from the applicability of article 33 para. 1, the reason appears to be obvious: genocide and crimes against humanity can be committed by everybody, while war crimes and crimes against peace are typically committed by military or paramilitary personnel in whatever armed conflicts they may be involved. To protect them seems to be the reason for paragraph 2's differentiated approach. However, one may argue that most of the war crimes listed in article 8 are so serious that the 'manifestly illegal' criterion of para. 1 (c) will in the majority of cases exclude the superior order defence.⁸¹

C. Special remarks: Superior orders and command responsibility, article 28

- 32 Superiors ordering the commission of 'a crime within the jurisdiction of the Court' are individually responsible pursuant to article 25 para. 3 (b). This provision is complemented by article 28 on command responsibility according to which the superior is liable for omission where he or she fails to take the necessary and reasonable measures to prevent criminal acts of his or her subordinates or to punish them.⁸² The foundation for this extension of responsibility is that the superior triggered criminal behaviour by not controlling properly those persons under his or her hierarchical power which includes the legal obligation to instruct them how to behave and to obey the relevant laws and customs of war. Articles 28 and 33 therefore represent two sides of the same coin,⁸³ even though they do not fit too well together: article 33 regulates the criminal responsibility of subordinates when committing crimes in pursuance of an order of their superiors or government; the responsibility of the person who had given the order is covered by article 25. Article 28 regulates the responsibility of superiors who did *not* order the commission of a crime and did not in any way participate in a specific criminal behaviour of their subordinates. They merely had 'effective command and control' over persons, but did *not* use this power and thereby did not only neglect but violated their duty to supervise their subordinates properly⁸⁴.

⁷⁹ For a different view see Gaeta (1999) 10 *EJIL* 172, 190–191 according to whom orders to commit war crimes are always manifestly illegal. This view, however, ignores the clear decision of the State parties against the absolute liability principle, Ambos, *Treatise on ICL I* (2013) 384.

⁸⁰ Very crit. Gaeta (1999) 10 *EJIL* 172, 190 who argues that article 33 para. 2 'departs from customary international law without any well-grounded motivation'; in the same vein Fournet, in: Darcy and Powderly (eds.), *Judicial Creativity* (2010) 229, 236–237; Cassese and Gaeta, *Cassese's ICL* (2013) 231; cri. also Cryer, in: *id. et al.* (eds.), *Introduction* (2014) 398, 415.

⁸¹ Garraway (1999) 81 *IRevRC* 785, 791; Ambos, in: Brown (ed.), *Handbook on ICL* (2011) 299, 323; *id.*, *Treatise on ICL I* (2013) 383; in a similar vein Grayson (1995) 64 *NordJIL* 243, 252; Gless, *Internationales Strafrecht* (2011) mn 726; Heugas-Darraspen, in: Fernandez and Pacreau (eds.), *Statut de Rome* (2012) 945, 953; Cassese and Gaeta, *Cassese's ICL* (2013) 231.

⁸² In more detail in this volume Ambos, article 25 mn 18.

⁸³ Crit. van Sliedregt, *Individual Criminal Responsibility* (2012) 294.

⁸⁴ See in the first edition of this commentary Fenrick, article 28 mn 7 and 18 *et seq.* See also for more details in this commentary, Triffterer and Arnold, article 28.

PART 4 COMPOSITION AND ADMINISTRATION OF THE COURT

Article 34 Organs of the Court

The Court shall be composed of the following organs:

- (a) The Presidency;
- (b) An Appeals Division, a Trial Division and a Pre-Trial Division;
- (c) The Office of the Prosecutor;
- (d) The Registry.

Literature: Blakesley, C.L., 'Comparing the Ad Hoc Tribunal for Crimes against Humanitarian Law in the Former Yugoslavia & the Project for an International Criminal Court prepared by the International Law Commission', (1996) 67 *RIDP* 139; Burns, P., 'An International Criminal Tribunal: The Difficult Union of Principle and Politics', (1994) 5 *CLF* 2-3; 1996 *YbICTY* (1997); de Zayas, A., 'The Kalshoven Commission', (1993) 6 *LeidenJIL* 131.

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A. Introduction/General remarks

In all the turmoil, debate and compromise that gave birth to the Rome Statute, the basic composition of the proposed court remained pretty constant. The International Law Commission's proposal of 1994 was altered but little¹. The two main discussions that arose in the drafting of this article were primarily matters of nomenclature². The components of

¹ See 1994 ILC Draft Statute, article 5.

² For example see: the US proposal that 'Presidency' be replaced by the term 'Administrative Council', 'President' with 'Chief Judge' and 'Vice President' with 'Deputy Chief Judge'; the UK's proposal that 'Procuracy' be replaced with 'Prosecutors Office' and that of France, (albeit of more substance) that the reference to 'other chambers' in the ILC's Draft be replaced with 'a Remand Chamber' in the 1996 Preparatory Committee II, 'Proposals to article 5', p. 7. The nature of these differences and their trivial nature mirrored those present in the drafting of article 11 in the Statute of the ICTY. That article is the equivalent to article 34 of the Rome Statute. During the drafting of article 11 of the ICTY Statute, the French proposed a 'commission' be established to investigate complaints, (see Letter from the Permanent Representative of France to the Secretary-General, 10 Feb. 1993, UN Doc. S/25266 (1993), transmitting a report on the establishment of an International Criminal Tribunal for the Former Yugoslavia), the Italians suggested a 'prosecutor's office' (see Letter from the Permanent Representative of Italy to the Secretary-General, 16 Feb. 1993, UN Doc. S/25300 (1993) transmitting a Draft Statute for an International Criminal Tribunal for the Former Yugoslavia). Previously Bassiouni had recommended a 'Procuracy' for a Permanent International Court (See *Draft Statute - International Tribunal* 3-32, AIDP, (2nd ed.1993) 10 *NEP* 35, 50-51). Commentating on these discussions, Burns (1994) 5 *CLF* 2-3, 357, wryly noted that, 'Nomenclature is of little significance where in each case the same broad functions are to be carried out'. The same comment is apt when considering the debates and drafting of article 34 leading up to the Rome Statute.

the Permanent Court were dictated by functional necessity³ and the basic requirements of justice. Any court system which seeks to investigate, prosecute, administer and determine the guilt or innocence of any person must be capable of giving effect to the basic minimum guarantees that are by now well established in international criminal law⁴. The pragmatics of such an undertaking require that there be an independent judiciary, an independent Prosecutor and a Registry to service both of them as well as to administer the court docket, deal with the press and any court appointed defence counsel.

- 2 The organizational structure of the Court was considerably advanced by the experience of the ICTY and ICTR which had worked under a similar organizational composition⁵. Staffing, as always, will remain an essential and important aspect for the proper functioning and success of the Court.

B. The Organs

1. The Presidency⁶

- 3 The function and role of the Presidency saw quite a change in the period between the ILC's Draft Statute⁷ and the Rome Statute itself. It was initially proposed that in addition to various administrative functions, important legal responsibilities be assigned to the Presidency including supervising and authorising investigations⁸, issuing arrest warrants⁹ and determining the question of pre-trial detention or release¹⁰. The view gained support, however, that this proposed role be modified. It was suggested that the duties of the President be limited to ceremonial and administrative functions and to supervising the Registry. This was thought more appropriate a task for the Presidency than their exercising pre-trial and other procedural functions. The latter functions were thought rather more appropriate for an

³ Presenting his Draft article 11 of what was to become article 11 of the Statute for the ICTY, the Secretary-General stated that:

'The organisation of the International Tribunal should reflect the functions to be performed by it. Since [it] is established for the prosecution of persons responsible for serious violations of international humanitarian law, this presupposes an international tribunal composed of a judicial organ, a prosecutorial organ and a secretariat. It would be the function of the prosecutorial organ to investigate cases, prepare indictments and prosecute persons responsible for committing the violations referred to above. The judicial organ would hear the cases presented to its Trial Chambers, and consider appeals from the Trial Chambers in its Appeals Chamber. A secretariat or Registry would be required to service both the prosecutorial and judicial organs'.

See the Report of the Secretary-General pursuant to Paragraph 2 of Security Council Res. 808 (1993), UN Doc. No. S/25704 and Add.1 (1993), para. 69.

⁴ For example see ICTY Statute article 21, ICTR Statute article 20, 1966 ICCPR article 14.

⁵ See article 11 of the ICTY Statute; article 10 of the ICTR Statute.

⁶ The functions of the Presidency are detailed in article 38 of the Rome Statute. The functions of the Presidency are also fleshed out in the Rules of Procedure and Evidence and the Regulations of the Court. For example, Rule 4 *bis* (2) stipulates that: 'As soon as possible following its establishment, the Presidency shall, after consultation with the judges, decide on the assignment of judges to divisions in accordance with article 39, paragraph 1.' Rule 14(1) stipulates that the Regulations of the Registry must be approved by the Presidency. Rules 21, 26 and 30 variously task the Presidency as the responsible body for determining an appeal of the Registrar's decision declining to appoint a particular counsel for a suspect or accused, receipt of complaints of misconduct against the Prosecutor, Deputy Prosecutor, the Registrar or the Deputy Registrar, and the determination of disciplinary measures for misconduct against a Judge, the Registrar or a Deputy Registrar. Rule 33 empowers the Presidency to determine a request by a Judge, the Prosecutor or a Deputy Prosecutor to excuse him or herself from acting in a particular matter. Regulation 11 of the Regulations of the Court calls for the three-member Presidency to act with unanimity when possible, and addresses circumstances as to when and how the Presidency may act when one or more of its members disqualify themselves with respect to a particular matter or are otherwise unavailable.

⁷ 1994 ILC Draft Statute, note 1, article 8.

⁸ *Ibid.*, article 27.

⁹ *Ibid.*, article 28.

¹⁰ *Ibid.*, article 29.

indictment or investigations chamber¹¹. The result of this is a mainly administratively focused Presidency¹² and an increased role for what became the Pre-Trial Chamber.

The creation of the Presidency, as a separate organ from the rest of chambers was also the result of a bid to reduce costs and to give organizational form to the Court. Though such a body was not included as a separate organ in the Statutes of the ICTY or ICTR, the judges of those Tribunals in effect created one by way of the 'Bureau' established under Rule 23 of their respective Rules of Procedure and Evidence. That body comprises the President, the Vice President and the Presiding judges¹³ of the Trial Chambers. The President is obliged to consult this body on all major questions relating to the functioning of the Tribunal, and to determine any questions regarding disqualification of judges and the like¹⁴. This inner sanctum encourages consensus where possible on matters relating to the administration of the Tribunal and guards against the arbitrary use of authority. The Presidency is the administrative and functional head of the Court, but the principle of *primus inter pares* amongst the judges was both very much in evidence and very much intended by the delegates to the Rome Conference.

The creation of the Presidency as a distinct organ had another intended purpose. It was not anticipated that the full complement of judges permitted under the Statute would be needed from the outset. In order to save costs, it was therefore decided that the judges comprising the Presidency would take up their offices as soon as elected¹⁵ and only call upon their fellow judges to commence their terms as and when needed¹⁶. In this way, the Presidency is to be the heart of the Permanent Court's Judiciary, ensuring that the oxygen of information and the benefits of accumulated experience continue to flow to that organ even when cases are in abeyance, preparation or investigation.

2. An Appeals Chamber, a Trial Division, a Pre-Trial Division¹⁷

The size of the Chambers is set at a minimum¹⁸ and can be increased with the agreement of the Assembly of States Parties upon the recommendation of the Presidency¹⁹. This clause may well be needed if cases on the Rwanda or Yugoslav scale are to be expeditiously disposed of in future, but has not yet been engaged by the Presidency. The experience of both the ICTY and ICTR have shown that flexibility and a willingness to increase the number of judges can frequently be needed²⁰ and a provision to this affect is to be applauded.

Article 5 (b) of the ILC's 1994 Draft Statute provoked some discussion. Whereas the ILC had included an Appeals Chamber and Trial Chambers, it kept the third part of this trinity rather vague by defining it simply as 'other Chambers'. Some delegates to the Preparatory Committee on the Establishment of an International Criminal Court stated that an indictment or an investigations chamber for pre-trial procedures, issuing warrants, indictments

¹¹ See 1996 Preparatory Committee I, pp. 12-13.

¹² See also article 38 and regulation 11, Annex III.

¹³ In the case of the ICTR 'the more senior Presiding judge of the Trial Chambers', rule 23, ICTR Rules of Procedure and Evidence.

¹⁴ See 1996 YbICTY, Chapter 2, p. 12 and also Rule 15 (b) ICTY Rules of Procedure and Evidence; Rule 15(b) ICTR Rules of Procedure and Evidence.

¹⁵ See article 35 para. 2.

¹⁶ See article 35 para. 3.

¹⁷ The composition of Chambers as a whole is dealt with in article 39.

¹⁸ See article 36 para. 1 below.

¹⁹ See article 36 para. 2 (a) and (b) below.

²⁰ See Security Council Res. 1165 of 30 Apr. 1998 adding a third Trial Chamber to the ICTR (amending articles 10, 11 and 12 of ICTR Statute); Letter of the Secretary-General to the United Nations to the Security Council, 5 May 1998, (S/1998/376) advising of the need of an additional Trial Chamber for the ICTY and the subsequent Security Council Res. 1166 of 13 May 1998 adding a further Trial Chamber and amending the corresponding articles of the ICTY Statute. The intention to vigorously pursue a 'completion' strategy with greater vigour also led to the election of *ad litem* judges to supplement the work of the permanent judges. See, for example, rules 13ter and 13quarter of ICTY Rules of Procedure and Evidence.

and the like was needed²¹ and should be a body composed of three judges with the necessary authority to monitor preliminary investigative matters. Others preferred the flexibility of the ILC's Draft²². In finally adopting a Pre-Trial Chamber the delegates appear to have recognised, as have the judges of the ICTY, the need to streamline the functioning of Chambers to ensure that they are able to manage and conduct cases as expeditiously as possible²³. In addition, the creation of the Pre-Trial Division was a function of the decision to require judicial oversight of investigations and the need to separate this from the main trial process²⁴.

3. The Office of the Prosecutor²⁵

- 8 The term 'Procuracy' initially preferred by the ILC was rejected in favour of 'Office of the Prosecutor' on the proposal of the United Kingdom²⁶. This, and the fact that this terminology had become familiar to delegates and gained general usage in the *ad hoc* Tribunals for the Former Yugoslavia and Rwanda ensured that it was adopted.

4. The Registry²⁷

- 9 The need, function and title of this organ remained unchanged and unchallenged. Its inclusion as one of the principal organs of the International Criminal Court mirrored the existence of Registries (or bodies performing the function of a Registry) in almost every State. Given some problems that initially beset the *ad hoc* Tribunal for Rwanda, the importance of an efficient and well-organised Registry to the successful functioning of any Permanent Court should not be underestimated. Failing this, much of the time, energy and attention of both Chambers and the Prosecutor will be wasted.

C. Special remarks

- 10 Article 34 also follows the example of the *ad hoc* Tribunals for the Former Yugoslavia and Rwanda in not catering for a standing office of Defence Counsel. Defence Counsel to the International Criminal Court must be (and seen to be) independent. Such independence is, of course, a pre-requisite to justice and to confidence in the International Criminal Court. It is not clear, however, why such a standing office should necessarily be incompatible with the concept of fully independent defence counsel. Independence of the Prosecutor and his or her staff is also essential, but apparently this was not called into question simply on account of

²¹ Some of the arguments reflected those previously made on the setting up of the ICTY. Various commentators had argued then for a separate Pre-Trial Chamber on the grounds of logistical necessity and administrative efficiency. See Blakesley (1996) 67 *RIDP* para. XIV (B), p. 191.

²² 1996 Preparatory Committee I, note 11, p. 11.

²³ A Pre-Trial Judge was created and functions assigned in rule 65ter of the ICTY's Rules of Procedure and Evidence adopted on 11 Feb. 1994, in the amendment made to them on 9 and 10 July 1998, IT/32/Rev.13. This Rule delegates to one judge (of the Trial Chamber) the responsibility of coordinating communications between the parties, setting dead-lines, and generally taking such measures as are necessary to prepare the case for a fair and expeditious trial. In a more concrete way, the Rome Statute in article 64 para. 4 allows such matters to be delegated from a Trial Chamber to the Pre-Trial Chamber.

²⁴ See article 39 para. 4 of the Rome Statute expanding upon the principle adumbrated in rule 15 (C) of the ICTY's Rules. The functions and responsibilities of the Pre-Trial Division itself are set out in articles 15, 18, 19, 34 para. 2, 54 para. 2, 57, 61, 64 and 72 of the Rome Statute.

²⁵ The authority, remit, and appointment of the Prosecutor is dealt with in article 42. The Rules of Procedure and Evidence further specify the manner in which the Office of the Prosecutor shall function. See, e.g., Rules 9 ('Operation of the Office of the Prosecutor'), 10 ('Retention of information and evidence') and 11 ('Delegation of the Prosecutor's functions').

²⁶ *Supra* note 2.

²⁷ The Registrar's functions and modalities of appointment are dealt with in article 43, and further addressed in the Rules of Procedure and Evidence (see, e.g., Rules 12 to 22) and the Regulations of the Court (see, e.g., Regulation 77 C 'Office of Public Counsel for the Defence').

their being directly employed by the Court. Many argued for a standing office of Defence Counsel at the time the ICTY was created and the case against this proposal remains by no means conclusive²⁸. Indeed, the trend has been in favour of an autonomous, if not separate, Office of the Defence. Regulation 77 of the Regulations of the Court requires that the Registrar 'shall establish and develop an Office of Public Counsel for the defence' (OPCD). The mandatory terms of this Regulation and the requirement to further 'develop' the Office is welcome and indeed essential to the fairness of trials before the ICC, the majority of which have been and will likely continue to be legally aided²⁹.

Pursuant to Regulation 77, the OPCD was inaugurated as a functioning office in 2006 and is presently composed of a Principal Counsel as well as four additional staff members (legal assistants, a case manager and support staff). Crucially, Regulation 77 also overcomes some of the difficulties that beset the Office of the Principal Defender (OPD) in the Special Court for Sierra Leone (in that the OPD was subordinate to the Registry and this resulted in several conflicts in responsibility). There were several reported instances where the OPD was directed by the Registry to either desist from making certain submissions, contrary to the Registrar's stated position, or 'encouraged' to modify submissions that were to be made³⁰. Regulation 77 para. 2 leaves no such room for uncertainty providing that '[t]he Office ... shall fall within the remit of the Registry, solely for administrative purposes, in accordance with article 43, paragraph 2, and it shall function in its substantive work as a wholly independent office'. Counsel and assistants within the office shall act independently'. In 2011, the judges of the Court amended Regulation 77 to expand and strengthen the mandate of the OPCD. Among other changes, the revised Regulation 77(3) requires that the Office include 'at least one counsel ... who fulfils the requirements for inclusion on the list of counsel'. Regulation 77(4) now sets out in six sub-paragraphs the duties of the office: (a) 'Representing and protecting the rights of the defence during the initial stages of the investigation ...'; (b) 'Providing general support and assistance to defence counsel and to the person entitled to legal assistance, including legal research and advice [...]'; (c) 'Appearing, on the instruction or with the leave of the Chamber, in respect of specific issues'; (d) 'Advancing submissions, on the instruction or with leave of the Chamber, on behalf of the person entitled to legal assistance when defence counsel has not been secured ...'; (e) 'Acting when appointed under regulation 73 [Duty Counsel] or regulation 76 [Appointment of defence counsel by a Chamber]'; and (f) 'Assisting or representing defence

²⁸ See Report on the International Tribunal to adjudicate War Crimes Committed in the Former Yugoslavia, submitted by a special task force of the American Bar Association Section of International Law and Practice (8 July 1993), p. 19 (cited in Morris and Scharf, *An Insider's Guide to the International Criminal Tribunal for the Former Yugoslavia* (1995) 138 fn. 393). Also see Blakesley (1996) 67 RIDP para. XIV, p. 190. The Practice of the *ad hoc* Tribunals shows that these Defence Counsel are instructed as independent members of the legal profession (either admitted to practice or law professors – rule 44 ICTY Rules of Procedure and Evidence; rule 44 ICTR Rules of Procedure and Evidence).

While recognizing the critical importance of independent defence counsel, the drafters of the Rome Statute were also alive to the dangers of inequality of arms between the OTP and the Defence on account of the latter not being an organ of the Court. This was sought to be ameliorated by article 57 para. 3 (b) of the Rome Statute. See Guariglia and Hochmayr, *article 57 para. 3 (b)*.

²⁹ However, notwithstanding rule 45 of the Special Court for Sierra Leone Rules of Procedure and Evidence (which also requires the Registrar to 'maintain and develop' such an office), institutional problems have remained affecting the Defence. See letter of the Principal Defender stating that the Registry had 'whittled away' various rights of the Defence, *Prosecutor v Taylor*, SCSL-03-01-T, Transcript, 4 June 2007, pp 3–5.

³⁰ The Appeals Chamber noted this difficulty in stating 'the staff of the Defence Office and its head the Principal Defender, are all "support staff", and have no independent authority to disobey or ignore a direction from the Registrar', see *Prosecutor v Brima et al.*, 'Separate and concurring opinion of Justice Robertson on the decision on Brima-Kamara Defence appeal motion against Trial Chamber II majority decision on extremely urgent confidential joint motion for the re-appointment of Kevin Metzger and Wilbert Harris as lead counsel for Alex Tamba Brima and Brima Bazzy Kamara', 14 Dec. 2005, para. 83, SCSL-040-16- AR73-16906. The learned judge went on to state '... in future courts the [Defence] office should be an independent "fourth pillar" alongside the judiciary, the Registrar and the Prosecutor' (para 88, Rules of Procedure and Evidence 16910).

counsel or defence witnesses who are subject to article 70 proceedings or when rule 74, sub-rule 1, applies, on the instruction of with the leave of the Chamber’.

- 12 In fulfilling its mandate, the OPCD has developed into an important institutional counterweight to the significant institutional resources of the Office of the Prosecutor (i.e. Legal Advisory Section, Appeals Section, Knowledge Base Unit, appointment of Special Advisers). In addition to providing discrete legal research assistance to defence teams upon request, the OPCD, *inter alia*, advises and informs defence teams on issues such as the application of the legal aid policy across different cases and proposals for amendments to Registry and Court policies that impact on the rights and functioning of the defence. The OPCD produces manuals and memos on confirmation and trial practice and specific legal issues. The OPCD also assists the defence on practical matters, such as use of the Court’s electronic evidence management system. Equally important, the OPCD acts as a crucial institutional voice for the defence on the committees and bodies of the Registry on which it has been invited to sit, and with respect to policy documents that have been circulated among the Organs of the Court or within the Registry, for comment.

However, and as noted above, the OPCD is not an organ of the Court, which was the preferred option detailed in the Report of the Secretary-General on the establishment of a Special Tribunal for Lebanon.³¹ The preference of the Secretary-General was accepted and found form in articles 7 and 13 of the STL Statute³². A Defence Office being administratively and functionally independent of the Registry, has much to commend it. The institutional difference (in terms of resources, having a ‘voice’ within the Court and more balanced media reporting) that being an ‘organ’ brings cannot be underestimated by any that are conversant with the history and dynamics of the various *ad hoc* and hybrid Tribunals. Given the organization of the Court, as determined by article 34, much will depend upon the Registrar’s willingness to ‘further develop’ the Defence Office and to create an atmosphere whereby its staff members feel able to operate independently in the interests of justice.

At the time of writing, it seems that change is afoot that may have significant consequences to the existence of the OPCD. The current Registrar of the Court (elected by the judges in 2013) has embarked on a ‘ReVision Project’ further to a general recommendation from the Committee on Budget and Finance that the Court ‘undertake a thorough review of its organizational structure, with a view to rationalizing reporting lines, identifying responsibilities that could be delegated and streamlining functions, processes and structures’.³³ The ‘on-going ReVision project involves a thorough review of both the structure and the operations of’ the Registry³⁴ for purposes of proposing changes to improve the overall functioning, efficiency (including costs) and effectiveness of the Registry. With respect to the Registry’s mandate and responsibility pursuant to the Statute, Rules, and Regulations of the Court to assist and facilitate the work of the defence, the Registrar has proposed, as part of the ReVision Project, abolishing the OPCD and consolidating some of its functions under a new Defence Office that would additionally be responsible for implementing and managing the legal aid policy and providing administrative support to the defence (tasks presently handled by the Registry’s Counsel Support Section ‘CSS’). The Registrar is currently of the view that such consolidation would allow for the more efficient provision of assistance and services to the defence. The Registrar considers that the OPCD is not well-placed to represent and advocate for the defence as it is not an executive body of the legal profession or subject to democratic oversight (a task, it is said, better suited to an outside association of counsel).

Should the judges accept the Registrar’s proposal and amend or excise Regulation 77, the significance for the defence would be twofold. First, and as highlighted above and at footnote

³¹ S/2006/893, 15 Nov. 2006, para 27.

³² Statute of the Special Tribunal for Lebanon, Annexed to Resolution 1757(2007), S/Res/1757 (2007), 30 May 2007.

³³ ICC-ASP/13/16, para. 1, citing to ICC-ASP/11/20, vol. II, part B.1, para. 29.

³⁴ ICC-ASP/13/16, para. 2.

30, the Defence Office would seemingly revert, more or less, to the structure of the prior defence offices of the ad hoc Tribunals. Second, the defence would, perhaps, lose the current institutional voice that OPCD provides in its attempt to pass on the views and concerns of the defence into the myriad of policy and administrative discussions, plans and decisions within the Court that impact on the rights and functioning of the defence. While an outside association of counsel may very well complement the advocacy work of the OPCD, it may not be able to wholly replace the institutional representation that OPCD provides, including at the earliest stages of policy-making or when the matters under discussion are confidential/non-public. Whatever the judges finally decide, it is important that regard be had to ensuring that the voice of the Defence is properly heard at various levels of the courts administration and operation.

Article 35

Service of judges*

1. All judges shall be elected as full-time members of the Court and shall be available to serve on that basis from the commencement of their terms of office.

2. The judges composing the Presidency shall serve on a full-time basis as soon as they are elected.

3. The Presidency may, on the basis of the workload of the Court and in consultation with its members, decide from time to time to what extent the remaining judges shall be required to serve on a full-time basis. Any such arrangement shall be without prejudice to the provisions of article 40.

4. The financial arrangements for judges not required to serve on a full-time basis shall be made in accordance with article 49.

Literature: Bellelli, R., 'The law of the Statute and its practice under review', in: R. Bellelli et al. (ed.), *International Criminal Justice, Law and Practice from the Rome Statute to its Review* (Ashgate 2010) 410–415; Jones, J. R. W. D., 'Composition of the Court', in: A. Cassese, P. Gaeta and J. R. W. D. Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary, I* (OUP 2002) 235–267; Rwelamira, M. R., 'Composition and Administration of the Court', in: R. S. Lee (ed.), *The International Criminal Court: The Making of the Rome Statute: Issues Negotiations, Results* (Kluwer Law International 1999) 153–167; Schabas, W., 'Article 35. Service of Judges', in: W. Schabas (ed.), *The International Criminal Court: A Commentary on the Rome Statute* (OUP 2010) 520–523; Liera, S. F., 'Single Judge, Replacements, and Alternate Judges', in: R. S. Lee (ed.) *The International Criminal Court, Elements of Crimes and Rules of Procedure and Evidence* (Transnational Publishers 2001) 310–314.

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I. Introduction

- 1 Article 35 of the Statute, governing the service of judges, is vital to ensuring the efficient functioning of the judiciary of the Court. This provision is the result of discussions which sought to reconcile two seemingly competing notions: that 'the court, as an institution, must be permanent, but it should not operate on a full-time basis.'¹ The article brings together the two camps in a model of the Court which sees the number of full-time judges increasing as necessary on the basis of workload. Moreover, in conjunction with the articles designed to insulate judges from outside or political influence (for instance, by precluding judicial interference and providing for the financial security of judges and single non-renewable judicial terms),² article 35 of the Statute, requiring, *inter alia*, the full-time service of judges, is an essential guarantee for the independence of judges. Indeed, at the Rome Conference, the provision was recognised by States as having a close connection with the independence of judges (governed by article 40 of the Statute) and the financial arrangements for salaries,

* The views expressed herein are those of the author alone and not of the International Criminal Court.

¹ Report of the International Law Commission on the work of its forty-fifth session, 3 May – 23 July 1993 (A/48/10), paragraph 45.

² See articles 40, 49 and 36(9)(a) of the Statute.

allowances and expenses of judges (governed by article 49 of the Statute and resolutions of the Assembly of States Parties ('ASP')).³

II. Drafting history

It was not always foreseen that judges would serve at the Court on a full-time basis. During the drafting of the Statute, the issue was subject to substantial discussion and there were differing views as to whether the judiciary should serve full-time or part-time. This was linked to the then undecided question of whether the Court, which was to be established as a permanent institution, would sit continuously or be convened only as and when required to consider a case submitted to it, particularly in its nascent stages.⁴

Those advocating a court in continuous session were of the view that a permanent criminal court required judges to carry out their functions full-time in order to guarantee their independence.⁵ It was considered that a court in permanent session with a full complement of judges would ensure the exclusive dedication of those judges to their judicial functions, which would in turn contribute to their impartiality and objectivity.⁶ In contrast, there was concern that the part-time service of judges might be incompatible with and indeed undermine the very permanence, stability and independence required of a true international criminal court.⁷ Proponents of a permanent judiciary also maintained that a body of judges sitting full-time would develop a collective understanding of the aims and working methods of the Court,⁸ and benefit the uniformity and further development of the law.⁹

Supporters of the service of judges on a part-time basis were of the view that since the Court was being established as the first permanent court of its kind, as opposed to a situation-based or *ad hoc* institution, its likely utilisation was unpredictable and there was uncertainty as to when it would be seised of its first case or indeed how heavy its future caseload would be; in that respect, a court in permanent session could not be justified, particularly in the first phase of its operation.¹⁰ The full-time vision of the judiciary also held

³ United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court, 15 June – 17 July 1998, Official Records, Volume III, A/CONF.183/13 (Vol. III), Part II, F, Documents of the Committee of the Whole, Part 4. Composition and administration of the Court, Coordinator's rolling text on cluster 1 of part 4 (articles 35(b), 36, 37 and 40), page 260, footnote 80 to article 36. See note 62, for the relevant resolutions of the ASP.

⁴ See Report of the International Law Commission on the work of its forty-fourth session, 4 May – 24 July 1992 (A/47/10), paragraphs 33–34, 103 and its Annex, Report of the Working Group on the question of an international criminal jurisdiction ('Annex'), paragraphs 4(e), 19, 42, 46–47 and 51; A/48/10, see note 1, paragraphs 30 and 45 and Annex, Draft Statute for an international criminal tribunal ('1993 Draft Statute'), commentary to article 4, paragraph 6; Report of the International Law Commission on the work of its forty-sixth session, 2 May – 22 July 1994 (A/49/10), paragraphs 32 and 49 and Draft Statute for an International Criminal Court ('1994 ILC Draft Statute'), commentary to articles 4 (paragraph 1) and 10. At the Rome Conference the following States expressed support for judges serving full-time from the outset: see note 3, Official Records, Volume II A/CONF.183/13 (Vol. II), Summary records of the meetings of the Committee of the Whole, A/CONF.183/C.1/SR.14 paragraphs 13 (United Kingdom), 56 (Venezuela), 58 (Niger), 59 (Slovakia), 62 (Tunisia), 70 (Qatar) 75 (Czech Republic), 79 (Yemen), 83 (Greece), 88 (Afghanistan), 90 (Senegal), 94 (Israel) 98 (United Arab Emirates). See *ibid*, A/CONF.183/C.1/SR.15 at paragraphs 5 (Togo), 6 (Chile), 8 (Oman), 13 (Kuwait), 16 (Morocco), 17 (Portugal), 18 (Thailand) 20 (Libya), 23 (Cameroon), 26 (Iraq), 28 (Mozambique), 31 (Algeria), 32 (Uruguay) and 34 (Ghana). Whilst the following States advocated a flexible approach or the part-time service of judges: *ibid*, A/CONF.183/C.1/SR.14, paragraphs 19 (Madagascar), 28 (Argentina), 44 (Syria), 49 (Japan), 71 (China), 73 (Colombia) and 85 (Pakistan). See also *ibid*, A/CONF.183/C.1/SR.15, paragraphs 4 (Republic of Korea) and 38 (Russia).

⁵ A/47/10, see note 4, paragraph 103; 1994 ILC Draft Statute, commentary to article 10, paragraph 3; see in particular the comments of the United Kingdom, Venezuela, Qatar, Yemen, Senegal, Togo, Oman, Morocco, Cameroon, Iraq and Algeria at the Rome Conference, see note 4.

⁶ A/47/10, see note 4, paragraph 34.

⁷ 1993 Draft Statute, commentary to article 4, paragraph 6; 1994 ILC Draft Statute, commentary to article 4, paragraph 1.

⁸ A/47/10, Annex, see note 4, paragraph 47.

⁹ 1994 ILC Draft Statute, paragraph 49.

¹⁰ A/47/10, paragraph 11 and Annex, paragraph 4(e).

clearly greater financial implications (with its impact on judicial remuneration and staffing) which were seen as contrary to the aims of cost reduction and flexibility.¹¹ The part-time service of judges at a permanent court was thus seen as a middle ground whereby the Court would have the advantage of existing as a legal entity but without the costly disadvantages of a full-time judiciary.¹²

- 5 This debate is apparent in the development of the Statute. The 1993 Draft Statute prepared by the Working Group of the International Law Commission ('ILC') provided that the Court was a permanent institution that would sit when required to consider a case submitted to it,¹³ and did not expressly foresee the service of full-time judges. Whereas arguments were put forward for the President of the Court to immediately serve on a full-time basis, it was thought that this might unnecessarily restrict the range of candidates for the post and the need for flexibility was stressed.¹⁴ However it was understood that nothing in the draft would prevent the President from becoming full-time if circumstances required it.¹⁵ The 1994 ILC Draft Statute similarly provided that, whilst the Court was a permanent institution, it would act only when required to consider a case submitted to it.¹⁶ That draft provided that judges would work at the Court on a part-time basis, at least at first, but foresaw the possibility of States Parties calling judges to full-time service on the basis of workload, upon the recommendation of the Presidency of the Court.¹⁷ It was the 1998 Draft Statute adopted by the Preparatory Committee,¹⁸ which expressly provided that the judges of the Presidency would serve on a full-time basis immediately from the commencement of their terms of office and, in square bracketed text, that depending on the workload of the Court, other judges may serve on a full-time or part-time basis as required. Paragraph 2 of article 35 of the Statute is identical to the first sentence of the corresponding provision in the 1998 Preparatory Committee Draft Statute, which in full provided:

'The judges composing the Presidency shall serve on a full-time basis as soon as they are elected. [The judges composing [the] [a] Pre-Trial Chamber shall serve on a full-time basis [once the Court is seized of a matter] [when required in the view of the President].] [On the recommendation of the Presidency, the States Parties] [The Presidency] may [by a two-thirds majority] decide that the workload of the Court requires that the judges [composing any of the other Chambers] should serve on a full-time [or part-time] basis.'¹⁹

It should be noted that in the footnotes to the provision, the view was expressed that reference in the first sentence should be made to the 'President' rather than the 'Presidency'. On the other hand, delegations agreed that the reference to 'the Court' meant the whole Court, as set out in article 35 of the Statute.

- 6 The present text of article 35 of the Statute, adopted at the Rome Conference, strikes a balance between the two approaches. It provides a flexible arrangement which sees only the three judges of the Presidency²⁰ serving at the Court, in the initial phase of its operation, on a

¹¹ A/47/10, Annex, see note 4, paragraph 47; 1993 Draft Statute, commentary to article 4, paragraph 6; 1994 ILC Draft Statute, commentary to article 4, paragraph 1.

¹² A/47/10, Annex, see note 4, paragraph 42.

¹³ 1993 Draft Statute, article 4(1), providing: 'The Tribunal is a permanent institution [...] It shall sit when required to consider a case submitted to it'.

¹⁴ 1993 Draft Statute, commentary to article 10.

¹⁵ 1993 Draft Statute, commentary to articles 10 and 17.

¹⁶ Article 4(1) of the 1994 ILC Draft Statute, provided: 'The Court is a permanent institution [...] It shall act when required to consider a case submitted to it'.

¹⁷ 1994 ILC Draft Statute, article 10(4). With particular respect to the President, it was agreed that the provision would not prevent the President from becoming full-time should circumstances so require, 1994 ILC Draft Statute, commentary to article 8, paragraph 2. See note 56.

¹⁸ In respect of the status of the Court, article 4(1) of the 1998 Preparatory Committee Draft Statute provided: 'The Court is a permanent institution open to States Parties in accordance with this Statute. It shall act when required to consider a case submitted to it' (see note 3, Official Records, Volume III, A/CONF.183/13(Vol. III), Part I, B, Report of the Preparatory Committee on the Establishment of an International Criminal Court, Draft Statute for the International Criminal Court ('1998 Preparatory Committee Draft Statute')).

¹⁹ 1998 Preparatory Committee Draft Statute, article 36.

²⁰ See *mn* 15.

full-time basis immediately upon their election, whilst envisaging the future possibility of the Court remaining permanently in session through judges being called to full-time service.²¹

III. Paragraph 1 – Full-time service of judges

Paragraph 1 of article 35 of the Statute provides that the judges of the Court are elected as full-time members of the Court. However, pursuant to paragraph 3 of article 35, discussed below from margin 17, the service of judges is staggered so that some judges are called to full-time service immediately whereas others are not. The implication of paragraph 1 is that once called to serve on a full-time basis, judges are not permitted to serve at the Court on a part-time basis during any part of their terms of office. Indeed, article 40(3) of the Statute provides that '[j]udges required to serve on a full-time basis at the seat of the Court shall not engage in any other occupation of a professional nature'.²² This paragraph applies to all judges of the Court, whether elected: within the regular election cycle as one of the eighteen judges of the Court in accordance with article 36 of the Statute;²³ to fill a judicial vacancy in accordance with article 37 of the Statute; or in accordance with article 36(2) of the Statute, to increase the number of judges.

The question has arisen as to whether judges whose terms have been extended for the purpose of completing any trial or appeal the hearing of which has already commenced, in accordance with article 36(10) of the Statute, fall within the ambit of articles 37(1) and 40(3) of the Statute, given that their original terms of office have expired; i.e. whether judges serving extended terms to complete a case are equally required to serve on a full-time basis at the Court and refrain from engaging in other occupations of a professional nature. The question has not been definitively settled.

IV. Paragraph 1 – Availability to serve full-time

Paragraph 1 of article 35 requires judges to be available to serve at the Court on a full-time basis from the commencement of their terms of office. This provision thus obliges judges to be on hand to take up their full-time duties at the Court as and when required within their terms of office. It seeks to ensure that the Presidency is not divested of judges with whom to compose Chambers to hear cases and that the Court is thereby in a position to administer justice without delay.

For judges elected on regular mandates, their terms of office commence on the eleventh of March following the date of their election.²⁴ For judges elected to fill judicial vacancies, their

²¹ See 1994 ILC Draft Statute, paragraph 49.

²² For those judges who have not yet been called to serve to on a full-time basis, article 40(2) of the Statute provides that judges shall not engage in any activity which is likely to interfere with their judicial functions or to affect confidence in their independence.

²³ Regular elections refer to the scheduled elections of the ASP to elect judges to the Court, which take place every three years in accordance with article 36(9) of the Statute.

²⁴ At the first judicial election at its first session in 2003, the ASP decided that the terms of office of judges of the Court shall begin to run from the 11 March following the date of the election, *Official Records, First session (first and second resumptions) 3–7 February and 21–23 April 2003* (ICC-ASP/1/3/Add.1), Part I, B, paragraph 31. This is enshrined in regulation 9(1) of the Regulations of the Court, which likewise provides that the terms of office of the judges commence on the eleventh of March following the date of their election. It is not stated when the terms of judges elected to increase numbers, in accordance with article 36(2) of the Statute, would commence. (For further pronouncements of the ASP on the commencement of the terms of office of judges elected within the regular election cycle see *Official Records, Fourth session (resumption) 26–27 January 2006* (ICC-ASP/4/37), Part I, B, paragraph 20; *Official Records, Seventh session (first and second resumptions) 19–23 January and 9–13 February 2009* (ICC-ASP/7/20/Add.1), Part I, B, paragraph 24; *Official Records, Tenth session, 12–21 December 2011* (ICC-ASP/10/20), Vol I, Part I, B, paragraph 44; *Official Records, Thirteenth session, 8–17 December 2014* (ICC-ASP/13/20), Vol I, Part I, B, paragraph 50).

terms of office commence on the date of their election.²⁵ The availability of judges to be called to serve on a full-time basis at the Court could, however, be delayed for reasons such as health/illness, continuing professional obligations or issues of residence/proximity to the Court.

- 11 On the subject of availability of judges and in the context of reporting on the two candidates nominated at the twelfth session of the ASP in November 2013 to fill, in accordance with article 37 of the Statute, the judicial vacancy resulting from the resignation of Judge Anthony Thomas Aquinas Carmona (Trinidad and Tobago),²⁶ the Advisory Committee on Nominations of Judges of the International Criminal Court (mandated to facilitate the appointment of the highest-qualified individuals as judges of the Court ('Advisory Committee')),²⁷ considered it 'important that judges elected to the Court be in good health and prepared to serve the whole term immediately, and that there be no extraneous duties that could delay their assumption of office'.²⁸ The Advisory Committee reiterated the importance of this in relation to the seventeen candidates nominated in the elections for six judicial seats at the thirteenth session of the ASP in December 2014²⁹ and also recalled this in relation to the two candidates nominated in the elections at the resumed thirteenth session of the ASP in June 2015³⁰ to fill the judicial vacancy resulting from the resignation of Judge-elect Senator Miriam Defensor-Santiago (The Philippines).³¹ Further,

²⁵ At the first judicial election at its first session in 2003, the ASP also decided that the term of office of a judge elected to replace a judge whose term of office has not expired shall run from the date of the election for the remainder of that term, *Official Records, First session (first and second resumptions) 2003* (ICC-ASP/1/3/Add.1), Part I, B, paragraph 31. This is equally enshrined in regulation 9(2) of the Regulations of the Court, which provides that the terms of office of judges elected to replace judges whose terms have not expired shall commence on the date of their election and shall continue for the remainder of the predecessors' terms. (For further pronouncements of the ASP on the commencements of the terms of office of judges elected to fill judicial vacancies see *Official Records, Sixth session, 30 November – 14 December 2007*, (ICC-ASP/6/20), Vol I, Part I, paragraph 32; *Official Records, Eighth session, 18–26 November 2009* (ICC-ASP/8/20), Vol I, Part I, paragraph 34; *Official Records, Twelfth session, 20–28 November 2013* (ICC-ASP/12/20), Vol I, Part I, paragraph 24).

²⁶ Effective as of 18 March 2013, following his election as President of Trinidad and Tobago. See ICC Press Release ICC-CPI-20130320-PR885, 20 March 2013.

²⁷ The Advisory Committee, a subsidiary body of the ASP in accordance with article 36(4)(c) of the Statute, was established by resolution of the ASP at its tenth session in December 2011 (*Official Records, Tenth session, 2011* (ICC-ASP/10/20), Vol I, Part III, ICC-ASP/10/Res.5, paragraph 19) with the mandate of facilitating the appointment of the highest-qualified individuals as judges of the Court (see paragraph 5 of the Terms of Reference of the Advisory Committee set out in Report of the Bureau on the establishment of an Advisory Committee on nominations of judges of the International Criminal Court, 30 November 2011, ICC-ASP/10/36 ('Advisory Committee Terms of Reference')). The Advisory Committee is mandated to prepare information and analysis, of a technical nature, on the suitability of the judicial candidates in order to inform the decision making of States Parties in the election process (see paragraphs 9, 11 and 12 of the Advisory Committee Terms of Reference, ICC-ASP/10/36). In examining the scope of its mandate, the Advisory Committee has stated that it is 'required to advise States on whether or not, in its opinion, the candidates meet the requirements of article 36 [of the Statute], taking into account the specific qualifications required under Lists A and B as provided in that article.' See Report of the Advisory Committee on Nominations of Judges on the work of its fourth meeting, 24 April 2015, ICC-ASP/13/46, paragraph 18. The Advisory Committee evaluates the candidates by conducting interviews with regard to their qualifications before preparing its report to the ASP. The President of the Bureau of the ASP has expressed the hope that States Parties would be guided by the conclusions of the reports of the Advisory Committee in casting their votes during judicial elections (Bureau of the ASP, Decisions, Ninth meeting, 30 September 2014, paragraph 3(a)).

²⁸ Report of the Advisory Committee on Nominations of Judges on the work of its second meeting, 29 October 2013, ICC-ASP/12/47, Annex I, paragraph 8.

²⁹ The Advisory Committee 'stressed the importance that judges elected to the Court be in good health and prepared to serve the whole term, and that there be no extraneous duties that could delay their assumption of office or interfere with their discharge of their duties of a judge as provided in article 40, paragraph 3, of the Rome Statute.' Report of the Advisory Committee on Nominations of Judges on the work of its third meeting, 29 September 2014, ICC-ASP/13/22, Annex I, paragraph 8.

³⁰ Report of the Advisory Committee on Nominations of Judges on the work of its fourth meeting, 24 April 2015, ICC-ASP/13/46, Annex, paragraph 8.

³¹ Judge-elect Senator Defensor-Santiago resigned on 3 June 2014 for medical reasons, see note 36. 'Judge-elect' refers to an incoming judge who has been elected to the Court by the ASP but who has not yet made his or her solemn undertaking in accordance with article 45 of the Statute.

the President of the Bureau³² has informed States Parties that in selecting candidates for judicial office it is 'important that the candidates be willing, able and fit to assume office when called to service by the Court'.³³ At its thirteenth session in December 2014, the ASP also 'stress[ed] the importance of elected judges who have made their solemn undertaking being available to take up their full-time service when the Court's workload so requires'.³⁴

These statements have been informed by practice, as the Court has seen judges who have resigned both during, and prior to, full-time service due to reasons of ill-health³⁵ or who have not been sworn in and called to serve on a full-time basis due to reasons of ill-health.³⁶ It is noted that unlike the staff of the Court, the appointment of judges is not subject to clearance from a medical professional following the results of a medical examination³⁷ and, again, unlike the staff of the Court, there is no upper age limit on the service of judges.³⁸ Nonetheless, whereas health is not a relevant criterion in the nomination and election of judges as stipulated in article 36 of the Statute, it has become an essential condition in considering the aptitude of judges for full-time service at the Court. In his address to the ASP at the opening of its twelfth session in November 2013, the President of the Court, in the context of discussing the forthcoming elections of six judges at the thirteenth session of the ASP, declared that '[a]s you know, the Court needs elected officials of the highest quality, with ample professional experience in relevant fields of law. Further, and equally important, they need to be in good and robust health!' The President reiterated this at the thirteenth session of the ASP in December 2014.³⁹ Moreover, the Advisory Committee reported to the ASP that: the two candidates nominated to fill the judicial vacancy at the twelfth session in November 2013 (resulting from the resignation of Judge Carmona);⁴⁰ the seventeen candidates for election at the thirteenth session in December 2014; and the two candidates nominated to fill the judicial vacancy at the resumed thirteenth session in June 2015 (resulting from the resignation of Judge-elect Senator Defensor-Santiago)⁴¹ had stated that they were in good health.⁴²

³² In accordance with article 112(3) of the Statute, the Bureau of the ASP has a representative character. It consists of a President, two Vice-Presidents and eighteen members elected by the ASP for three-year terms and meets at least once a year to assist the ASP in the discharge of its responsibilities.

³³ Letter from President of the ASP to States Parties concerning the work of the Advisory Committee on the Nominations of Judges and the nomination of candidates, ASP/2014/001, 18 February 2014.

³⁴ *Official Records, Thirteenth session, 2014* (ICC-ASP/13/20), Vol I, Part III, ICC/ASP/13/Res.5, paragraph 41.

³⁵ Judge Jorda (France), see ICC Press Release ICC-CPI-20070508-218, 8 May 2007 and Judge Kaul (Germany), see ICC Press Release ICC-CPI-20140630-PR1023, 30 June 2014.

³⁶ Judge-elect Senator Defensor-Santiago (The Philippines), see Bureau of the ASP, Decisions, Fourth meeting, 4 June 2014, paragraph 2. Concerning the resignation of Judge-elect Shahabuddeen (Guyana) (ICC Press Releases ICC-ASP-20090218-PR391, 18 February 2009 and Election of judges to fill two judicial vacancies of the International Criminal Court, 11 November 2009, ICC-ASP/8/21, paragraph 2), see Bellelli, in: Bellelli *et al.* (eds.), *International Criminal Justice* (2010) 413.

³⁷ Rule 104.13 of the Staff Rules of the International Criminal Court, ICC-ASP/4/3, 25 August 2005. For discussion on the issue of an age limit for elected officials see Bellelli, in: Bellelli *et al.* (eds.), *International Criminal Justice* (2010) 410–415.

³⁸ Regulation 9.5 of the Staff Regulations of the Court sets the age limit at 62 years providing: 'Staff members shall not be retained in active service beyond the age of sixty-two years. The Registrar or the Prosecutor, as appropriate, may, in the interest of the Court, extend that age limit in exceptional cases' (*Official Records, Second session, 8–12 September 2003* (ICC-ASP/2/10), Part IV, ICC-ASP/2/Res.2).

³⁹ Statement of Judge Sang-Hyun Song President of the International Criminal Court, at the opening of the 12th Session of the Assembly of States Parties to the Rome Statute of the International Criminal Court, 20 November 2014. Likewise at the thirteenth session of the ASP in December 2014, the President 'stress[ed] once again that the ICC needs judges of the highest quality, with ample professional experience and sound health. In addition, given the heavy casework which will face the Judiciary next year, it will be very important that the newly-elected judges are immediately available to take up full-time service'. Statement of Judge Sang-Hyun Song President of the International Criminal Court, at the opening of the 13th Session of the Assembly of States Parties of the International Criminal Court.

⁴⁰ *Supra* note 26.

⁴¹ *Supra* notes 31 and 36.

⁴² ICC-ASP/12/47, Annex I, see note 28, paragraph 8; ICC-ASP/13/22, Annex I, see note 29, paragraph 8; ICC-ASP/13/46, Annex, see note 30, paragraph 8.

- 13 Continuing professional obligations might also delay the availability of a judge to assume office; consequently the readiness of candidates to take up their positions at the Court has similarly become a relevant consideration. It is noted that judges elected to the Court have still been engaged in other professional duties at the time of election and thereafter which have prevented them from being called to the Court to serve full-time. For example, a judge elected at the tenth session of the ASP in December 2011 was not, until March 2015, called to serve the Court on a full-time basis as he was sitting in the trial of *The Prosecutor v. Radovan Karadžić* (IT-95-5/18-I) before the ICTY.⁴³ Thus, in relation to extraneous commitments, the Advisory Committee, after conducting interviews with the judicial candidates, reported to the ASP that both candidates nominated to fill the judicial vacancy at the twelfth session in November 2013, resulting from the resignation of Judge Carmona, had stated that they were available to serve the remainder of the term of office of the vacant seat immediately.⁴⁴ The Advisory Committee similarly reported that all seventeen judicial candidates for election at the thirteenth session in December 2014 had stated that they were prepared to serve for the full term of nine years and further that, with the exception of one candidate, all seventeen candidates had stated that they would be available from 11 March 2015.⁴⁵ In respect of the resumed thirteenth session in June 2015, the Advisory Committee also reported to the ASP that the two candidates to fill the judicial vacancy left by the resignation of Judge-elect Senator Defensor-Santiago had indicated that they would not be delayed in serving their terms.⁴⁶
- 14 The ability of judges to present themselves at the seat of the Court may also lead to delay. Whereas the place of residence of full-time judges is not expressly addressed in article 35 of the Statute or elsewhere in the Statute, there was discussion during the drafting of the Statute as to whether the President should be compelled to reside at the seat of the Court.⁴⁷ Moreover, previous drafts of the provision during the Rome Conference had implied that serving the Court full-time entailed presence at the seat of the Court in The Hague.⁴⁸ Although this inference was not retained in article 35 of the Statute, it remains in article 40 of the Statute, which refers to ‘Judges required to serve on a full-time basis at the seat of the Court’.

The ASP, noting that ultimately the issue of the residence of full-time judges was not explicitly addressed in the Statute adopted at Rome, considered that ‘the judges themselves will take a decision as to whether or not residence at the seat of the Court is required for full-time service, bearing in mind the permanent character of the Court’.⁴⁹ However, early on in

⁴³ Referring to Judge Howard Morrison (The United Kingdom).

⁴⁴ ICC-ASP/12/47, Annex I, see note 28, paragraph 8.

⁴⁵ ICC-ASP/13/22, Annex I, see note 29, paragraph 8. The Advisory Committee noted that one of the candidates might not be in a position to serve from 11 March 2015, in view of his engagement in continuing proceedings at the ICTY, referring to Judge Antoine Kesia-Mbe Mindua sitting in the trial of *The Prosecutor v. Goran Hadžić* (IT-04-75), *ibid* paragraphs 8 and page 11. It should be noted that the authorities of the Democratic Republic of the Congo subsequently reassured States Parties that Judge Mindua, their nominated candidate, would be available to take up his duties once elected (see Note Verbale of 12 November 2014, 132.44/A1/SJ/920/2014). Judge Mindua was thereafter successfully elected as a judge of the Court at the thirteenth session of the ASP. For the results of the elections see *Official Records, Thirteenth session, 2014* (ICC-ASP/13/20), Vol I, Part I, B, paragraph 44).

⁴⁶ ICC-ASP/13/46, Annex, see note 30, paragraph 8.

⁴⁷ 1993 Draft Statute, commentary to article 10; 1994 ILC Draft Statute, commentary to article 8, paragraph 2.

⁴⁸ A previous draft of the text had provided that: [...] ‘The Presidency may, in consultation with the members of the Court, decide from time to time, on the basis of the workload of the Court, to what extent the remaining judges shall be required to be available at the seat of the Court. Any such arrangement shall be without prejudice to the provisions of article 41. The financial arrangements for judges not required to be available full-time at the seat of the Court shall be made in accordance with article 50’; see note 4, *Official Records, Volume III, A/CONF.183/13* (Vol. III) Part II, F, Documents of the Committee of the Whole, Part 4, Composition and administration of the Court, (i) Working document, A/CONF.183/C.1/L31/REV and (ii) Recommendation/Report, A/CONF.183/C.1/L.45, article 36. See also A/CONF.183/13 (Vol. II), Summary records of the meetings of the Committee of the Whole, 39th meeting, paragraphs 30–31.

⁴⁹ *Official Records, Second session, 2003* (ICC-ASP/2/10), Part III, A, page 199, footnote 1. In full the footnote to the paragraph 7 on travel/relocation costs provides: ‘The Rome Statute does not specifically address the issue of the residence of judges. Article 35 of the Rome Statute provides that full-time judges of the Court ‘shall be available to serve on that basis from the commencement of their terms of office’. Moreover, article 40 provides

the life of the Court, the Presidency concluded that practicability required judges to reside in the vicinity of the Court during their terms of office and proposed an amendment to the Conditions of Service and Compensation of Judges of the ICC⁵⁰ to ensure that judges were able to serve the Court on a full-time basis effectively.⁵¹ That amendment was adopted by the ASP and the Conditions of Service and Compensation of Judges of the ICC now provide that ‘Judges shall take up residence in The Netherlands within sufficient proximity to the seat of the Court to be available to attend the Court at short notice in order to discharge their duties under the Rome Statute and the Rules of Procedure and Evidence’.⁵²

V. Paragraph 2: The Presidency

Notwithstanding paragraph 1, paragraph 2 of article 35 provides that the judges composing the Presidency shall serve on a full-time basis as soon as they are elected. The Presidency, an organ of the Court pursuant to article 34(a) of the Statute, is comprised of the President and the First and Second Vice-Presidents elected from amongst the judges for a renewable three-year mandate, in accordance with article 38(1) of the Statute. The Presidency is responsible for the proper administration of the Court, with the exception of the Office of the Prosecutor, and for other specific functions conferred upon it in accordance with the Statute.⁵³ It is the responsibilities of the Presidency that dictate the immediate full-time service of its members. 15

An important task of the Presidency in the judicial management of the Court, as set out in the Statute, is deciding when to call judges to serve the Court on a full-time basis, in accordance with article 35(3) of the Statute. Another is excusing a judge from the exercise of a function under the Statute or excusing the Prosecutor or Deputy Prosecutor from acting, in accordance with articles 41(1) and 42(6) of the Statute respectively. Other key functions of the judges of the Presidency warranting their immediate service, set out in the Rules of Procedure and Evidence (‘Rules’) and Regulations of the Court (‘Regulations’), are assigning judges to judicial divisions in accordance with rule 4*bis*(2) of the Rules, selecting candidates for the post of Registrar in accordance with rule 12(1) of the Rules, and constituting Pre-Trial and Trial Chambers in accordance with article 61(11) of the Statute, rule 130 of the Rules and regulation 46 of the Regulations, as well as assigning situations to those Chambers in accordance with regulation 46(2) of the Regulations. Key functions of the President in particular are representing the Court, supervising the functions of the Registrar, in accordance with article 43(2) of the Statute, and convening plenary sessions of judges, in accordance with rule 4(2) of the Rules. 16

VI. Paragraph 3 – Calling judges to serve on a full-time basis

Paragraph 3 provides that the Presidency may, on the basis of the workload of the Court and in consultation with its members, decide from time to time to what extent the remaining judges shall be required to serve on a full-time basis. This key provision affords the Court the capacity 17

that judges ‘required to serve on a full-time basis at the seat of the Court shall not engage in any other occupation of a professional nature’. The question of the residence of full-time judges and their availability to serve on that basis at the seat of the Court is a matter which the Rome Statute has entrusted to the judges. Article 52 sets out the manner in which the Regulations of the Court are to be elaborated and adopted. In considering the issue of the residence of full-time judges, the judges themselves will take a decision as to whether or not residence at the seat of the Court is required for full-time service, bearing in mind the permanent character of the Court.’

⁵⁰ *Infra* note 62.

⁵¹ Proposal regarding conditions of service and compensation of judges and elected officials, 10 August 2004, ICC-ASP/3/12, Annex I, Part II.

⁵² ICC-ASP/3/Res.3, Annex, Part II, paragraph 1, see note 62. Paragraph 2 of the same provides that ‘Residence status is defined as the establishment, through acquisition or long-term lease, of a permanent residence, coupled with the declaration by the judge concerned of resident status’.

⁵³ Article 38(3) of the Statute.

to adapt as required to its caseload and grants the Presidency the necessary flexibility to ensure the effective operation of the Court. As discussed above at margins 2 to 6, the staggered nature of the full-time service of judges was a way to ensure that the Court did not waste precious resources when faced with an unpredictable workload in its initial phase of operation. However, it will have continued relevance during any inactive periods in the life of the Court.

- 18 The Presidency may decide whether to call judges to serve on a full-time basis, in consultation with the members of the Court. In the French version of the Statute, those consultees are specified as being the judges of the Court.⁵⁴ In practice, those members, consulted as to the workload indicators of the Court from their various perspectives, are the judges, the Prosecutor and the Registrar.⁵⁵ Previous drafts of this provision had seen the ASP deciding whether judges should be required to serve on a full-time basis following a recommendation from the Presidency.⁵⁶ The provision adopted at the Rome Conference omits any role for the ASP and leaves the decision firmly in the hands of the Presidency, depending on the volume of work in the Court; thereby underlining the Presidency's autonomy vis-à-vis the ASP over the internal judicial functioning of the Court.
- 19 In its initial phase, due to the nature of the proceedings of the Court, the first judges that the Presidency called to serve on a full-time basis were the judges assigned to the Pre-Trial Division in order to constitute Pre-Trial Chambers, as well as the judges constituting the Appeals Chamber. This was due to the responsibilities of the Pre-Trial Chambers, which deal with the initial stages of judicial proceedings before the Court in terms of *inter alia*, authorising the commencement of *proprio motu* investigations by the Prosecutor pursuant to article 15 of the Statute, hearing challenges to the jurisdiction of the Court or the admissibility of a case in accordance with article 19 of the Statute, hearing applications for the issuance of a warrant of arrest or a summons to appear in accordance with article 58 of the Statute and deciding whether to confirm the charges against a person and commit him or her for trial in accordance with article 61 of the Statute.⁵⁷ Moreover, the judges of the Appeals Chamber need to be in place to hear any interlocutory appeals arising from challenges to decisions of the Pre-Trial Chambers in accordance with articles 82(1) and 82(2) of the Statute. The Trial Division, the pool of judges from which the Presidency composes Trial Chambers, were amongst the last to be called to the Court since the pre-trial stage of proceedings require completion, entailing the confirmation of charges and committal for trial, before the Presidency constitutes a Trial Chamber to hear a case, in accordance with article 61(11) of the Statute.
- 20 Of the judges elected to the Court at the first election in February 2003, whose terms of office began on 11 March 2004, the Presidency had by the end of 2004 called to full-time service the judges of the Pre-Trial Division, constituting the three Pre-Trial Chambers⁵⁸ and

⁵⁴ The French version of article 35(3) of the Statute provides: 'La Présidence peut, en fonction de la charge de travail de la Cour et en consultation avec les autres juges, décider périodiquement de la mesure dans laquelle ceux-ci sont tenus d'exercer leurs fonctions à plein temps.' The English text provides: 'The Presidency may, on the basis of the workload of the Court and in consultation with its members decide from time to time to what extent the remaining judges shall be required to serve on a full-time basis.' Given the definition of 'the Court' in article 1 of the Statute and the organisational structure of the Court set out in article 34 of the Statute, the English text of article 35(3) of the Statute is less precise in its terms than the French text.

⁵⁵ For example, see the Address by Judge Philippe Kirsch President of the ICC at the Third Session of the Assembly of States Parties to the Rome Statute of the International Criminal Court, 6 September 2004, page 2.

⁵⁶ The 1994 ILC Draft Statute provided, at article 10(4): 'On the recommendation of the Presidency, the States Parties may by a two-thirds majority decide that the workload of the Court requires that the judges should serve on a full-time basis'. Article 36 of the 1998 Preparatory Committee Draft Statute provided: '[On the recommendation of the Presidency, the States Parties] [The Presidency] may [by a two-thirds majority] decide that the workload of the Court requires that the judges [composing any of the other Chambers] should serve on a full-time [or part-time] basis'. See mn 5.

⁵⁷ The 1998 Preparatory Committee Draft Statute had equally foreseen at article 36, in square bracketed text, that '[The judges composing [the] [a] Pre-Trial Chamber shall serve on a full-time basis [once the Court is seized of a matter] [when required in the view of the President].]' See mn 5.

⁵⁸ Constituted on 23 June 2004, ICC Press Release ICC-CPI-20040625-60, 25 June 2004, Constitution of ICC Pre-Trial Chambers. Excluding the Vice-President who was in the Pre-Trial Division in accordance with article 39(1), six additional pre-trial judges were called to full-time service.

the judges of the Appeals Division who comprised the Appeals Chamber in accordance with article 29(2)(b)(i) of the Statute.⁵⁹ By March 2007, the Presidency had constituted the first Trial Chamber⁶⁰ and called to full-time service all of the judges of the Court elected at the first election, other than those who had resigned. Since then, the large majority of judges have been called to full-time service from the commencement of their terms of office. The Proposed Programme Budget of the Court for 2015 foresees that all seven incoming judges will be required full-time, stating that ‘the anticipated caseload in 2015 will necessitate the calling of all six regular judges to be elected at the thirteenth session of the ASP in December 2014, as well as one additional judge to be elected to replace the previous judge-elect, Senator Miriam Defensor-Santiago of the Philippines, following her resignation in June 2014. The new judges are expected to be called to service immediately upon commencement of their terms of office pursuant to article 35(1) of the Statute.’⁶¹

The Presidency has been relatively conservative in calling judges to full-time service where the body of judges is complemented by judges whose terms have been extended for the purpose of completing any trial or appeal the hearing of which has already commenced, in accordance with article 36(10) of the Statute. The Presidency has underlined its ‘efforts on the one hand to ensure the availability of a sufficient number of judges to meet the requirements of current casework, while on the other hand attempting to limit as far as possible any increase beyond the total of 18 judges normally provided for in the Statute ...thus limiting the impact that extensions [pursuant to article 36(10) of the Statute] have had on the budget.’⁶²

Paragraph 3 maintains that the decision of the Presidency to call judges to full-time service is without prejudice to the terms of article 40 of the Statute, which safeguards their independence. This is to ensure that the exigencies of judicial administration do not lead to an inadvertent flouting of the provisions seeking to maintain the independence of judges.

VII. Paragraph 4 – Financial arrangements for non-full-time judges

Paragraph 4 of article 35 of the Statute provides that the financial arrangements for judges who are not required to serve on a full-time basis should be made in accordance with article 49 of the Statute. That article in turn provides that judges shall receive such salaries, allowances and expenses as may be decided upon by the ASP. As such, the benefits and allowances of non-full time judges are governed by the Conditions of Service and Compensation of Judges of the ICC (‘Conditions of Service’) adopted by the ASP.⁶³

⁵⁹ Excluding the President, who was in the Appeals Division in accordance with article 39(1), the remaining four appeals judges were called to full-time service.

⁶⁰ Decision constituting Trial Chamber I and referring to it the case of *The Prosecutor v Thomas Lubanga Dyilo*, ICC-01/04-01/06-842, 6 March 2007.

⁶¹ Proposed Programme Budget for 2015 of the International Criminal Court, *Official Records, Thirteenth session, 2014* (ICC-ASP/13/20), Vol II, Part A, paragraph 70. The budget for 2015 therefore makes provision for the remuneration of 18 full-time judges, including all of the judges elected at the tenth session of the ASP in December 2011.

⁶² Report of the Bureau on Salary and all allowances for judges, whose terms have been extended in accordance with article 36, paragraph 10, 9 November 2013, ICC-ASP/12/56, paragraph 6. In the Proposed Programme Budget of the Court for 2013, the Presidency also noted that being ‘[m]indful of possible future changes in workload, the Judiciary will exercise its functions in a manner that makes the most efficient possible use of the resources allocated to it.’ *Official Records, Eleventh session, 14–22 November 2012* (ICC-ASP/11/20), Vol II, Part A, Proposed Programme Budget for 2013, paragraph 52.

⁶³ Adopted at the second session of the ASP in September 2003 (*Official Records, Second session, 2003* (ICC-ASP/2/10), Part III) and partly republished in amended form in the annex to resolution ICC-ASP/3/Res.3 adopted at the third session of the ASP in September 2004 (*Official Records, Third session, 6–10 September 2004* (ICC-ASP/3/25), Part III, Annex).

- 24 Pursuant to the Conditions of Service, judges of the Court who have not yet been called to serve on a full-time basis and who have made their solemn undertaking⁶⁴ receive an annual allowance of € 20,000, which is payable monthly.⁶⁵ In addition, a judge who declares to the President of the Court that his or her net income, including the € 20,000 annual allowance, is less than the equivalent of € 60,000 per annum will receive an allowance, again payable monthly, to supplement his or her declared net income up to € 60,000 per annum.⁶⁶ Furthermore, when engaged on the business of the Court, as certified by the Presidency, judges who have not yet been called to serve on a full-time basis are entitled to a special allowance of € 270 per day.⁶⁷ Moreover, non-full-time judges are entitled to a subsistence allowance, at the United Nations rate in Euros, applicable to judges of the International Court of Justice, for each day that they attend meetings of the Court.⁶⁸ As for benefits, a non-full-time judge is also entitled to the costs of travel to official meetings of the Court.⁶⁹ Finally, Judges who have not yet been called to serve on a full-time basis are not entitled to pension benefits until they are full-time and, as with judges serving on a full-time basis, they are not entitled to health insurance.⁷⁰
- 25 As discussed above at margins 7 to 9, judges are required to be available to serve on a full-time basis at the Court from the commencement of their terms of office in accordance with article 35(1) of the Statute. Furthermore, whilst judges who are not serving on a full-time basis at the Court are, unlike their full-time counterparts, entitled to engage in occupations of a professional nature, they shall not, pursuant to article 40(2) of the Statute, engage in any activity which is likely to interfere with their judicial functions or to affect confidence in their independence. In light of the foregoing, judges elected to the Court are, on the one hand, in effect obliged to be on standby to be called to serve the Court on a full-time basis, pursuant to article 35(1) of the Statute, and on the other hand, limited in the types of activities in which they might engage, pursuant to article 40(2) of the Statute. This situation might interfere with their professional activities and hence warrant additional remuneration in the interim period between the commencement of their judicial terms of office and full-time service at the Court. In recognition of this, non-full-time judges are thus compensated by the above allowances and expenses to ease any financial hardships that they might incur and to facilitate their attendance at the Court for official meetings, for example plenary sessions of judges of the Court held pursuant to rule 4 of the Rules (which all judges, whether called to full-time service or otherwise, may attend, except for those on extended mandates pursuant to article 36(10) of the Statute (see mn 27)).
- 26 The salaries, allowances and expenses of full-time judges are equally provided for in article 49 of the Statute and set out in the Conditions of Service. They will not be considered in any detail here save for noting the following by way of comparison. The remuneration of a judge working on a full-time basis at the Court is set at € 180,000 net per annum.⁷¹ The President receives a special allowance paid at the rate of ten per cent of the President's annual remuneration of € 180,000, amounting to € 18,000 net.⁷² When acting as President, the two

⁶⁴ Judges who have not made their solemn undertaking pursuant to article 45 of the Statute are not entitled to the allowances and expenses granted to non-full-time judges. See the Proposed Programme Budget of the Court for 2013 and 2014 which made no provision for the entitlements of the judge newly elected at the tenth session of the ASP in December 2011 who had yet to be sworn in (*Official Records, Eleventh session, 2012* (ICC-ASP/11/20), Vol II, Part A, Proposed Programme Budget for 2013, footnote 39 to paragraph 89 and Annex V(c); *Official Records, Twelfth session, 2013* (ICC-ASP/12/20), Vol II, Part A, Proposed Programme Budget for 2014, footnote 31 to paragraph 70 and Annex V(c)).

⁶⁵ *Official Records, Second session, 2003* (ICC-ASP/2/10), Part III, paragraph 9.

⁶⁶ *Ibid*, paragraph 10.

⁶⁷ *Ibid*, paragraph 11.

⁶⁸ *Ibid*, paragraph 12.

⁶⁹ *Ibid*, paragraph 15.

⁷⁰ *Ibid*, paragraphs 13 and 14.

⁷¹ *Official Records, Third session, 2004* (ICC-ASP/3/25), Part III, ICC-ASP/3/Res.3, Annex, Part III, paragraph 1.

⁷² *Ibid*, paragraph 2.

Vice-Presidents, or any other judge assigned to act as President, are entitled to a special allowance of € 100 net per day for each working day so acting, up to a maximum of € 10,000 per annum.⁷³ Full-time judges are also entitled to further allowances and benefits in accordance with the Conditions of Service.

The Conditions of Service make no distinction between judges on regular mandates and judges on extended mandates pursuant to article 36(10) of the Statute, in terms of remuneration and other benefits, with the exception of the accrual of pensions after nine years.⁷⁴ The remuneration of judges whose terms have been extended, pursuant to article 36(10) of the Statute, has been called into question by the ASP. In practice, and in comparison to other judges, a judge on an extended term is limited to sitting solely in the case for which he or she has been extended and does not take part in other judicial activities (such as attending the plenary sessions of judges of the Court, convened pursuant to rule 4 of the Rules). The issue has hence been broached by the ASP as to whether judges on extended mandates, in accordance with article 36(10) of the Statute, should still be entitled to the full salary earned by judges on regular mandates even if they have been extended for the purpose of sitting in one case alone.⁷⁵ However, the Court has reported that the caseloads of judges whose terms have been extended for the purpose of only one case were not significantly lower than those of judges in regular service who could be assigned to two or more cases, due to the fact that the work of judges on extended terms during the closing phase of a case was normally intense prior to the rendering of final decisions and judgements.⁷⁶ This is especially true for the presiding judge. The ASP has not taken any decision on the question and remains seised of the matter.

⁷³ *Ibid*, paragraph 3.

⁷⁴ *Official Records, Third session, 2004* (ICC-ASP/3/25), Part III, ICC-ASP/3/Res.3, Appendix 2, Pension scheme regulations for judges of the International Criminal Court, article 1(4), providing: 'No additional pension shall be paid if the judge has completed more than a full nine-year term.' Article 1(3) of the Amendments to the pension scheme regulations for judges of the International Criminal Court, set out in resolution ICC-ASP/6/Res.6, maintains this limitation.

⁷⁵ *Official Records, Tenth session, 2011* (ICC-ASP/10/20), Vol I, Part III, ICC-ASP/10/Res.5, paragraph 31; *Official Records, Eleventh session, 2012* (ICC-ASP/11/20), Vol I, Part III, ICC-ASP/11/Res.8, paragraph 34; *Official Records, Twelfth session, 2013*, (ICC-ASP/12/20), Vol II, Part B, Report of the Committee on Budget and Finance on the work of its twentieth session, April 2013, paragraphs 35 and 36; Report of the Bureau on Salary and all allowances for judges, whose terms have been extended in accordance with article 36, paragraph 10, 9 November 2013, ICC-ASP/12/56, paragraph 4.

⁷⁶ *Official Records, Twelfth session, 2013* (ICC-ASP/12/20), Vol II, Part B, paragraph 35.

Article 36

Qualifications, nomination and election of judges

1. Subject to the provisions of paragraph 2, there shall be 18 judges of the Court.
2. (a) The Presidency, acting on behalf of the Court, may propose an increase in the number of judges specified in paragraph 1, indicating the reasons why this is considered necessary and appropriate. The Registrar shall promptly circulate any such proposal to all States Parties.
 - (b) Any such proposal shall then be considered at a meeting of the Assembly of States Parties to be convened in accordance with article 112. The proposal shall be considered adopted if approved at the meeting by a vote of two thirds of the members of the Assembly of States Parties and shall enter into force at such time as decided by the Assembly of States Parties.
 - (c) (i) Once a proposal for an increase in the number of judges has been adopted under subparagraph (b), the election of the additional judges shall take place at the next session of the Assembly of States Parties in accordance with paragraphs 3 to 8, and article 37, paragraph 2;
 - (ii) Once a proposal for an increase in the number of judges has been adopted and brought into effect under subparagraphs (b) and (c) (i), it shall be open to the Presidency at any time thereafter, if the workload of the Court justifies it, to propose a reduction in the number of judges, provided that the number of judges shall not be reduced below that specified in paragraph 1. The proposal shall be dealt with in accordance with the procedure laid down in subparagraphs (a) and (b).

In the event that the proposal is adopted, the number of judges shall be progressively decreased as the terms of office of serving judges expire, until the necessary number has been reached.
3. (a) The judges shall be chosen from among persons of high moral character, impartiality and integrity who possess the qualifications required in their respective States for appointment to the highest judicial offices.
 - (b) Every candidate for election to the Court shall:
 - (i) Have established competence in criminal law and procedure, and the necessary relevant experience, whether as judge, prosecutor, advocate or in other similar capacity, in criminal proceedings; or
 - (ii) Have established competence in relevant areas of international law such as international humanitarian law and the law of human rights, and extensive experience in a professional legal capacity which is of relevance to the judicial work of the Court;
 - (c) Every candidate for election to the Court shall have an excellent knowledge of and be fluent in at least one of the working languages of the Court.
4. (a) Nominations of candidates for election to the Court may be made by any State Party to this Statute, and shall be made either:
 - (i) By the procedure for the nomination of candidates for appointment to the highest judicial offices in the State in question; or
 - (ii) By the procedure provided for the nomination of candidates for the International Court of Justice in the Statute of that Court.

Nominations shall be accompanied by a statement in the necessary detail specifying how the candidate fulfils the requirements of paragraph 3.
- (b) Each State Party may put forward one candidate for any given election who need not necessarily be a national of that State Party but shall in any case be a national of a State Party.

- (c) The Assembly of States Parties may decide to establish, if appropriate, an Advisory Committee on nominations. In that event, the Committee's composition and mandate shall be established by the Assembly of States Parties.
- 5. For the purposes of the election, there shall be two lists of candidates:
 - List A containing the names of candidates with the qualifications specified in paragraph 3 (b) (i); and
 - List B containing the names of candidates with the qualifications specified in paragraph 3 (b) (ii).

A candidate with sufficient qualifications for both lists may choose on which list to appear. At the first election to the Court, at least nine judges shall be elected from list A and at least five judges from list B. Subsequent elections shall be so organized as to maintain the equivalent proportion on the Court of judges qualified on the two lists.
- 6. (a) The judges shall be elected by secret ballot at a meeting of the Assembly of States Parties convened for that purpose under article 112. Subject to paragraph 7, the persons elected to the Court shall be the 18 candidates who obtain the highest number of votes and a two-thirds majority of the States Parties present and voting.
- (b) In the event that a sufficient number of judges is not elected on the first ballot, successive ballots shall be held in accordance with the procedures laid down in subparagraph (a) until the remaining places have been filled.
- 7. No two judges may be nationals of the same State. A person who, for the purposes of membership of the Court, could be regarded as a national of more than one State shall be deemed to be a national of the State in which that person ordinarily exercises civil and political rights.
- 8. (a) The States Parties shall, in the selection of judges, take into account the need, within the membership of the Court, for:
 - (i) The representation of the principal legal systems of the world;
 - (ii) Equitable geographical representation; and
 - (iii) A fair representation of female and male judges.
- (b) States Parties shall also take into account the need to include judges with legal expertise on specific issues, including, but not limited to, violence against women or children.
- 9. (a) Subject to subparagraph (b), judges shall hold office for a term of nine years and, subject to subparagraph (c) and to article 37, paragraph 2, shall not be eligible for re-election.
- (b) At the first election, one third of the judges elected shall be selected by lot to serve for a term of three years; one third of the judges elected shall be selected by lot to serve for a term of six years; and the remainder shall serve for a term of nine years.
- (c) A judge who is selected to serve for a term of three years under subparagraph (b) shall be eligible for re-election for a full term.
- 10. Notwithstanding paragraph 9, a judge assigned to a Trial or Appeals Chamber in accordance with article 39 shall continue in office to complete any trial or appeal the hearing of which has already commenced before that Chamber.

Literature: Ambos, K., 'Book Review: International Courts and Their Judges', (2012) 23 *CLF* 223; Bohlander, M., 'The International Criminal Judiciary – Problems of Judicial Selection, Independence and Ethics', in: *id.* (ed.), *International Criminal Justice – A Critical Analysis of Institutions and Procedures* (2007); *id.*, 'Pride and Prejudice or Sense and Sensibility? A pragmatic proposal for the recruitment of judges at the ICC and other international criminal courts', (2009) 12 *NCLRev* 529; *id.*, 'No Country for Old Men? – Age limits for judges at international criminal tribunals', (2010) 1 *IndianYbIL&Pol* 327; *id.*, 'Language, culture, legal traditions and international criminal justice', (2014) *JICJ* 491; *id.*, 'Criminalising LGBT persons under national criminal law and article 7(1)(h) and (3) of the ICC Statute', (2014) *Global Policy* 401; Bohlander, M. And Findlay, M., 'The use of domestic sources as a basis for international criminal law principles', (2002) 1 *The Global Community: Yearbook of International Law and Jurisprudence* 3

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I. Paragraphs 1 and 2: Composition of the Chambers*

- 1 The ICC's regular complement comprises 18 judges to serve in the Trial and Appeals Chambers. This number may be augmented if 'necessary and appropriate' circumstances, presumably mainly¹ the development of the Court's case load (*argumentum e contrario* from paragraph 2(c)(ii)), so require². The procedure for increasing the numbers on the bench is set out in paragraph 2, which is self-explanatory. At the time of writing, however, no such increase had ever been applied for by the Presidency, despite several requests by individual judges to be unassigned from sitting on certain cases because of personal docket overload³. The length of the proceedings before the Trial and Appeals Chambers and especially the time that the accused must spend in custody has reached the levels previously encountered at the ICTY and ICTR, a state of affairs which has persistently caused human rights concerns. There are thus already indications that the current staffing of the ICC bench may not be adequate. The experience from the ICTY and ICTR, firstly with the increase of the number of Trial Chambers and the augmentation of the joint Appeals Chamber and the attendant number of permanent judges, and secondly with the introduction of ad-litem judges in 2001 as part of their completion strategy, should be cause for concern and suggest a pro-active and robust approach to the problem of under-staffing, not least given the fact that even after the increases in judicial numbers just mentioned, both ad hoc tribunals continued to struggle with the case load and length of proceedings⁴.
- 2 Given that paragraph 2 also allows for decreasing the number of the supernumerary⁵ judges once the circumstances justifying a larger number have ceased to exist, the creation of a rapid response mechanism such as, for example, a reserve pool of qualified candidates⁶ who could be called upon at short notice, would seem advisable. There will be more suitable candidates in almost any election than vacant seats; hence the ASP might consider adding a procedure for the establishment of a reserve list to article 36 under the same criteria

* The views expressed in this book are solely those of the author and do not represent the views of the ECCC, the United Nations or the Government of the Kingdom of Cambodia.

¹ It is, however, imaginable that other reasons might be adduced, such as for example, a need for an injection of specific cultural and linguistic competences for a certain situation or case, similar to the expertise on issues such as violence against women and children in paragraph 8(b).

² The view expressed in the previous edition of this Commentary at marginal number 3 and fn. 12 that this equals a simplified procedure for amending the Statute is herewith abandoned, since the Statute itself already allows for the variation in the number of judges – paragraphs 1 and 2 do not stand in a hierarchical relationship to each other but must be read together: Paragraph 1 is not amended by increasing the number of judges under paragraph 2; if anything, the normative reach and content of paragraph 1 is generally qualified *ab initio* by paragraph 2. Similarly, Rwelamira, in: Lee (ed.), *The International Criminal Court – The making of the Rome Statute* (1999) 155.

³ See e.g. *The Prosecutor v Uhuru Muigai Kenyatta*, ICC-01/09-02/11, Decision replacing a judge in Trial Chamber V(b), 30 January 2014; *The Prosecutor v William Samoei Ruto and Joshua Arap Sang and The Prosecutor v Uhuru Muigai Kenyatta* ICC-01/09-01/11 & ICC-01/09-02/11, Decision replacing a judge in Trial Chamber V, 26 April 2013; *The Prosecutor v Jean-Pierre Bemba Gombo* ICC-01/05-01/08, Decision replacing judges in Trial Chamber III, 20 July 2010; *The Prosecutor v German Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07, Decision replacing a judge in Trial Chamber II, 30 September 2009 and ICC-01/05-9-Anx2, Decision on the request to be excused from the exercise of judicial functions in Pre-Trial Chamber III, 22 April 2008.

⁴ It is obvious that the main factors militating against such a pragmatic approach are budget considerations.

⁵ Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010) 531; Rwelamira, in Lee (ed.), *The International Criminal Court – The making of the Rome Statute* (1999) 155.

⁶ See in this context Bohlander (2009) 12 *NethCLRev* 529; *id.* (2010) 1 *IndianYbIL&Pol* 327.

(experience, geographical distribution and sex) that apply to the regular elections. One way of doing so could be to elect (at least) one qualified reserve judge for every permanent seat; this could also at the same time lead to a more efficient way of filling casual vacancies under article 37; unlike the practice at the ad hoc tribunals where the state of the judge whose departure etc. caused the vacancy was given the prerogative of unilaterally nominating the successor, article 37 provides for no such approach.

II. Paragraph 3: Qualifications of judicial candidates

The qualification of judicial nominees has been one of the most contentious aspects at each of the modern international criminal tribunals, starting with the ICTY and ICTR. While ‘moral character’ has so far not been a live issue, as far as can be seen, the criterion of being qualified for the highest judicial offices in the domestic environment has given rise to a number of challenges, albeit not at the ICC. As a preliminary (and admittedly somewhat academic⁷) matter, it bears reminding oneself that since a State Party can nominate a candidate of another State Party⁸ under paragraph 4(b) and (c), there is a possibility that State Party A nominates a candidate from State Party B who may qualify for the highest judicial offices under the latter’s domestic law, but not under the former’s. The meaning of the term ‘qualifications ... for appointment highest judicial office’ also varies rather widely⁹ as is best explained at the example of the first ICC judge from Japan¹⁰. The qualifications need to exist during the entire term of office and according to the case law of the *ad hoc* tribunals their loss will lead to the loss of the judicial seat itself¹¹. There is, however, some uncertainty over the question of whether an elected judge of the ICC who does not meet the criteria can or must be removed from office¹².

The development of the law on the issue of qualifications was highly controversial¹³. Article 6 of the ILC Draft stated that candidates should have ‘in addition: (a) criminal trial experience; (b) recognized competence in international law’, i.e. A cumulative requirement. The ad-hoc committee of the 1996 Preparatory Committee, under para. 20 of its report, stated that ‘concerning the appointment of the prosecutor, expertise in the investigation and prosecution of criminal cases was considered to be an important requirement’, but that insisting on criminal or international law experience with the judges was seen by some as ‘unduly restricting the sources of expertise on which the court should be able to rely’. The meaning of ‘sources of expertise’ may be illustrated by comments made by Algeria, Egypt,

⁷ But see *e.g.* on the circumstances of the judicial candidature in 2013 of the then Chef de Cabinet at the ICTY who had no prior judicial experience at all: www.diplomatmagazine.nl/2013/11/03/gabrielle-mcintyre-election/ and www.sense-agency.com/icty/togolese-judge-elected-to-tribunal%E2%80%99s-appeals-chamber.29.html?news_id=15507.

⁸ This possibility was already considered during the early drafting history of the provision. See Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010) 529.

⁹ Bohlander, in: *id.* (ed.), *International Criminal Justice – A Critical Analysis of Institutions and Procedures* (2007) 325.

¹⁰ See Bohlander (2009) 12 *NCLRev* 529.

¹¹ See on the related ICTY jurisprudence Bohlander (2010) 1 *Indian Yearbook of International Law and Policy* 327.

¹² Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010) 532 appears to take the view that an ‘independent removal procedure’ is not provided for in such a case, and also extends that to the language command issue – after all a serious matter in the daily court practice. This is *prima facie* supported by the absence of such an alternative in article 46(1); in any event the rare case of a candidate who intentionally lied about her qualifications may be found to constitute ‘serious misconduct’ under article 46(1)(a). The Statute does not seem to allow for a removal if the deception was, for example, committed by the nominating State authorities without the collusion of the candidate. It is nonetheless disconcerting to think that a judge who does demonstrably not meet the criteria should be allowed to remain in office. The Statute is in need of amendment in this regard.

¹³ See on the following and the relevant sources Bohlander (2009) 12 *NCLRev* 529 from which parts have been excerpted and modified.

Jordan, Kuwait, Libya and Qatar at the 1996 Prep Comm: 'Experience in criminal matters (judicial prosecutorial or defense advocacy) is, in part, necessary, but not to the exclusion of other expertise. The words of article 6 '...for appointment to the highest judicial offices...' are too limiting since most legal systems do not have judicial appointments by career judges. The present formulation means that only career judges are eligible, and therefore, this formulation should be changed'. The United Kingdom argued for the phrase 'criminal trial experience *and*, where possible, recognized competence in international law', a common-sense approach to the necessities of judging, whether in a domestic context or in the international arena. Many delegates of the 1998 Diplomatic Conference thought that trial experience should be required for the pre-trial and trial chamber judges. The insistence on previous practical experience together with or as an alternative to competence in international law can be found in the proposals of Switzerland, Portugal, Singapore, Trinidad and Tobago, the United States and France at the 1996 Prep Comm. Article 30[6] of the 1998 Zutphen Draft was an expression of the range of opinions which affected the negotiations; draft article 37 submitted to the Rome Conference by the 1998 Prep Comm in A/CONF.183/2/Add.1 read:

'3. The judges of the Court shall:

- (a) be persons of high moral character and impartiality [who possess all the qualifications required in their respective States for appointment to the highest judicial offices]; [and]
- (b) have:
 - (i) [at least ten years'] [extensive] criminal [law] [trial] experience [as a judge, prosecutor or defending counsel]; [or] [and, where possible]
 - (ii) recognized competence in international law [in particular international criminal law, international humanitarian law and human rights law] [; and (c) possess an excellent knowledge of and be fluent in at least one of the working languages referred to in article 51].'

The text of draft article 37 transmitted by the Drafting Committee to the Committee of the Whole contained a reference to competence in criminal law and procedure gained through judicial or prosecutorial as well as defence experience or a similar capacity, and to competence in international law with reference to extensive professional legal capacity of relevance to the judicial work of the court. Any doubt as to whether these were meant to be cumulative or alternative requirements were dispelled by the final version of article 36 of the Rome Statute, which inserted the word 'or' between them¹⁴.

- 5 It is unclear by what method or on what grounds 'established competence' is determined (see also marginal no. 10 below on the advisory committee), not least since paragraph 4(a) *in fine* requires States Parties to explain how nominees meet the respective criteria. Neither the Statute nor the Rules or Regulations provide any further explanations¹⁵. The distinction between criminal practice experience and competence in international law continues to be unhelpful in this context. Even after over 20 years of modern international criminal justice since the inception of the ICTY, a domestic criminal judge can learn most of what needs to be known about the development of international humanitarian/criminal law in an intensive short course and fill any remaining lacunae by reading the relevant materials in preparation of an individual case¹⁶. However, 20 years of criminal judicial and case management

¹⁴ It is, however, noticeable that in the recent practice of nominations to the international judiciary, emphasis is de facto increasingly placed on judicial experience as the main controlling aspect for selection, a development which is to be welcomed. See also for a critique Ambos, (2012) 23 *CLF* 223.

¹⁵ Other commentaries on the ICC Statute are silent on the matter: Jones, in: Cassese et al. (eds.), *The Rome Statute of the International Criminal Court – A Commentary*, Vol. I, (2002) 242. – Ingadottir, *The International Criminal Court: Recommendations on Policy and Practice* (2003) at 153–155 gives a slightly more detailed picture but nothing expounding on the substance of the qualifications. Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010) 530 *et seq.* does not expand on the matter, either, but states (at 530) that 'the concerns of most delegations were ensuring geographic representation and experience from the major legal systems rather than the professionalism of the individuals making up the Court'.

¹⁶ Similarly, Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010) 532 finds that the experience of international criminal tribunals has shown that international law questions were much less frequently relevant than the emphasis in the negotiation stages may have suggested.

experience can only be gained through undergoing 20 years of criminal judicial and case management experience. Countries with career judiciaries usually assign new judges to dockets where their lack of experience will do the least damage, or place them in collegiate panels where they can learn from more experienced colleagues. Countries without a career judiciary require a certain minimum professional experience in the law before they appoint to the bench, although the picture is more blurred there¹⁷. This sensible approach should not be abandoned merely because the post is outside the national judiciary; it is moreover doubtful whether any State Party would favour such an approach in its own national judiciary. It seems particularly questionable when candidates without *any* prior experience as a judge, prosecutor or defence counsel in national or international trials are immediately appointed to an influential Appeals Chamber seat, as happened with one particular example at the ICTY.¹⁸

In October 2011, the International Bar Association's Human Rights Institute passed a resolution on the Values Pertaining to Judicial Appointments to International Courts and Tribunals¹⁹ which under No. 3 stresses the cumulative criterion of professional experience²⁰.

The question of command of languages has been another issue at all tribunals and courts established after 1993. While all judges have a command of either English or French, one finds that English is by far the most common language spoken by judges. Recent research on all 35 ICC judges who took office since 2002 has shown that all 35 spoke English, yet a mere 22 spoke French. Overall, English made up for 37.6 % of all the languages represented among the judiciary and was at the same time the only language which achieved 100 % coverage across the entire judiciary. French accounted for 23.7 %, Spanish for 8.6 %, German for 7.5 %, Russian for 4.3 %, Italian for 3.2 %, Dutch, Japanese and Kiswahili for 2.2 % each and the remaining 14 native languages (1.1 % each) for 15.4 %. English was thus more than twice as frequent as the 14 languages represented only once each, it accounted for more than the sum of all other multiple languages except French. English and French together were roughly double the percentage of the other multiple languages and still about 15 % above the sum of all other languages²¹. A previous study of ICTY judges disclosed a difference in multiple language capacity between judges from common law backgrounds on the one hand and civil law backgrounds on the other, with the latter on average being the more polyglot of the two²².

While the requirement of speaking one of the working languages²³ is primarily meant simply to ensure ease of internal communication between the judges and their staff (as well

¹⁷ See Bohlander, in: *id.* (ed.), *International Criminal Justice – A Critical Analysis of Institutions and Procedures* (2007) at 357–362.

¹⁸ See ICTY press release of Friday, 23 November 2001 – CVO/P.I.S./639e. – Every appellate judge should have undergone sufficient trial experience, not least in order to avoid unrealistic expectations towards the trial judges on whose decisions the judge is to rule on appeal.

¹⁹ Online at www.ibanet.org/article/Detail.aspx?articleUid=CA79763C-39CC-4B54-8174-DD247A894150 which also contains a link to the background paper.

²⁰ In an email of 18 November 2009 to the author (on file), former UN Legal Counsel Hans Corell provided the following view on the selection criteria for trial and appellate judges in general: 'My own view on who should be elected judge of an international criminal court is very clearly expressed in the Proposal for an International War Crimes Tribunal for the Former Yugoslavia by the Rapporteurs (Corell-Türk-Thune) under the CSCE Moscow Human Dimension Mechanism to Bosnia-Herzegovina and Croatia of 9 February 1993. Needless to say, as former judge in my own country I feel very strongly about this. In our proposal we made a clear distinction between judges to be elected to serve on the Court of First Instance and the Court of Appeal.' – The relevant articles in that proposal are 7(3) and 18(3). The full text can be found at www.havc.se/res/SelectedMaterial/19930209csce_proposalwarcrimtribunal.pdf.

²¹ Bohlander (2014) *JICJ* 491.

²² Bohlander and Findlay (2002) 1 *The Global Community: Yearbook of International Law and Jurisprudence* 3.

²³ Interestingly, this is one of the areas where the Advisory Committee on nominations (ACN – see below at marginal no. 10) may have a salutary effect, especially when it comes to testing the breadth of a candidate's command of legal terminology. See e.g. the 2nd Report of the Advisory Committee on Nominations of Judges on the work of its second meeting of 29 October 2013 (ICC-ASP/12/47) (online at http://www.icc-cpi.int/iccdocs/asp_docs/ASP12/ICC-ASP-12-47-ENG.pdf) p. 6 para 18, where the ACN stated with regard to one of the

as to some extent with the parties' representatives), it is undeniable that factual language preponderance will also have an impact on source access and collation in the context of the comparative research that is still necessary even at the ICC. This aspect of the judges' language command (and that of their legal assistants) has so far been under-researched. Neither the Statute, nor the Rules or Regulations make provision for ensuring that a sufficiently broad reservoir of languages exists in the working and in particular the research environment of the Court.

- 8 The age of the nominees was a contentious issue²⁴ for international criminal tribunals from the beginning but was never held to be an essential criterion. The Appeal Judgment of 20 February 2001 in *Prosecutor v Delalić et al.* set out the reasoning for the ICTY:

'The intention of article 13 must [] be to ensure [] that the *essential* qualifications do not differ from judge to judge. Those *essential* qualifications are character (encompassing impartiality and integrity), *legal* qualifications (as required for appointment to the highest judicial office) and experience (in criminal law, international law, including international humanitarian law and human rights law). Article 13 was *not* intended to include every local qualification for the highest judicial office such as nationality by birth or religion, or disqualification for such high judicial office such as age. Nor was article 13 intended to include constitutional disqualifications peculiar to any particular country for reasons unrelated to those essential qualifications.'²⁵

In the challenge of Judge Baird's nomination by Radovan Karadzic, a three judge panel decided on 20 October 2009²⁶ that the motion based on the judge's age was unfounded:

'It is plain that the Statute does not limit the ability of Judges to serve at the Tribunal by virtue of age, nor does the Bench find any reason to read such a requirement into article 13. Indeed, a clear distinction must be drawn between the qualifications referred to in article 13 and technical requirements for judicial office. In particular, the qualities a person must possess to be trusted with the highest judicial offices in his or her country is a separate matter from the restrictions local legislation may impose with respect to the age until which a person may hold such office. Accordingly, the Bench finds the Motion to be without merit'²⁷.

For the ICC, the debate about the issue is evident from the history of article 36 ICCS, which was previously Draft article 37. Subsection 9 of the 1998 Preparatory Committee version reads:

'A judge may not be over the age of 65 at the time of election'²⁸.

Article 30(6) of the previous 1996 Zutphen Draft had read under 4.:

'A judge may not be over the age of [61] [66] [65] [?] at the time of nomination. Judges shall retire at the age of [70] [75]'²⁹.

Similar references to age limits (appointment or retirement) can be found in the 1996 statements of some delegations of the Preparatory Committee, namely Algeria, Denmark, Egypt, Finland, France, Jordan, Kuwait, Libya, Qatar and Singapore³⁰. The discussions at the

candidates: 'The Committee questioned whether the candidate's oral proficiency in English, one of the working languages of the Court, while sufficient for the purposes of the interview, met the high standard prescribed under article 36, paragraph 3(c), of the Rome Statute. The candidate told the Committee that his proficiency in French, the other working language of the Court, was limited.' The candidate concerned was withdrawn by the nominating State Party on 21 Nov. 2013: 'Election of a judge to fill a judicial vacancy of the International Criminal Court – Addendum – Withdrawal of candidature' (ICC-ASP/12/45/Add.1-Eng), available online at http://www.icc-cpi.int/iccdocs/asp_docs/ASP12/ICC-ASP-12-45-Add.1-ENG.pdf.

²⁴ See Bohlander (2010) 1 *IndianYbIL&Pol* 327.

²⁵ *Prosecutor v. Delalić et al.*, Judgement, Case No. IT-976-21-A, of 20 February 2001 at para. 659. – Emphasis in the original.

²⁶ *Prosecutor v Radovan Karadžić*, Decision on motion to recuse Judge Baird and report to Judge Güney, Case No. IT-95-0518-PT, 20 October 2009.

²⁷ *Ibid.*, at para 21.

²⁸ Bassiouni, *The Legislative History of the International Criminal Court*, Vol.2, (2005) 257.

²⁹ *Ibid.*, 259.

³⁰ *Ibid.*, 259–264.

1998 Diplomatic Conference about subsection 9 of then article 37 showed a mixed picture. The following table shows countries opting for an age limit and those against it.

Age limits at the 1998 Diplomatic Conference³¹,

For age limit:

Finland (214), Oman (218), Brunei Darussalam (220), Iraq (220), Mozambique³² (221), Algeria (221)

Against age limit:

Syria (209) Japan (210), Venezuela (210), Turkey (211), Qatar³³ (212), Senegal (213), Togo³⁴ (217), Chile (216), Kuwait (219)

Why the subsection was finally deleted in article 36 ICCS is unclear³⁵.

III. Paragraph 4: Nomination procedure; Advisory Committee (ACN)

The nomination procedure is set out³⁶ in paragraph 4 and largely self-explanatory. The reference in paragraph 4(a)(ii) to the procedure for nominating candidates to the ICJ is to article 4 of the ICJ Statute.

Paragraph 4(c) empowers the ASP to establish an Advisory Committee on nominations (ACN). This committee was created only during the 11th session of the ASP from 14–22 Nov. 2012, over ten years after the coming into force of the Rome Statute³⁷. The report of the working group on the ACN³⁸ is remarkable firstly insofar as it requested the Bureau and the President of the ASP to discourage States Parties from campaigning for candidates for the ACN³⁹, and secondly, in that it put the two principal terms of reference given to it by the ASP, geographical representation, principal legal systems and gender diversity on the one hand and ‘established competence and experience in criminal or international law’ on the other, in a clear selection hierarchy: Only candidates who fulfilled the second criterion could then be scrutinised under the first⁴⁰. The Working Group concluded that ‘it would be important to have a balance between experts in international criminal law and public international law; between persons with a civil law and a common law background; between persons with academic, judicial and diplomatic backgrounds; and, insofar as possible given

³¹ Numbers refer to pages in Bassiouni, *The Legislative History of the International Criminal Court*, Vol.3, (2005) – Table reproduced from Bohlander (2010) 1 *IndianYb/L&Pol* 333.

³² Mozambique supported ‘an age limit of 65 to encourage participation by younger people.’

³³ Qatar made the condition ‘provided a judge was in good health at the time’.

³⁴ Togo tied this to a term of office of five years, stating that ‘Age would then not be a problem.’

³⁵ In an email of 12 November 2009 to the author, M Cherif Bassiouni stated: ‘I do remember this discussion but in the end there was no strong opinion in favor of an age limitation.’ Similarly, Hans Corell wrote on 10 November 2009: ‘In the cases where I had some influence myself, that is to say when I interviewed candidates to discuss with the Secretary-General for special courts, read the Special Court for Sierra Leone, I could of course consider this issue. However, when judges are proposed by countries directly for a vote by an assembly of States it is more difficult’. – Both emails are on file with the author. Rwelamira, in: Lee (ed.), *The International Criminal Court – The making of the Rome Statute* (1999) 157 cites only the age of 65 and states that the idea was dropped because of lack of a coherent national or international practice.

³⁶ See also the supplementary resolutions by the Assembly of States Parties: Resolution ICC-ASP/1/Res.2, ‘Procedure for the nomination and election of judges, the Prosecutor and Deputy Prosecutors of the International Criminal Court’ and Resolution ICC-ASP/1/Res.3, ‘Procedure for the election of the judges for the International Criminal Court’, both of 9 Sep. 2002, ICC-ASP/3/Res.6 ‘Procedure for the nomination and election of judges of the International Criminal Court’, of 10 Sep 2004 and Resolution ICC-ASP/5/Res.5 ‘Procedure for the nomination and election of judges, the Prosecutor and Deputy Prosecutors of the International Criminal Court: amendment to operative paragraph 27 of resolution ICC-ASP/3/Res.6’, of 1 Feb. 2007 – all resolutions are available online at www.icc-cpi.int/en_menus/asp/resolutions/categoricallist/Pages/default.aspx under ‘Elections’.

³⁷ See http://www.icc-cpi.int/en_menus/asp/elections/advisorycommitteenominations/Pages/election%20acn-%202012.aspx.

³⁸ Report of the Bureau Working Group on the Advisory Committee on Nominations (ICC-ASP/11/47) Online at www.icc-cpi.int/iccdocs/asp_docs/ASP11/ICC-ASP-11-47-ENG.pdf.

³⁹ *Ibid.*, at para 10.

⁴⁰ *Ibid.*, at paras. 7–8.

the status of nominations, between both genders⁴¹. It also expressed its concern that it ‘was keenly conscious of the fact that some of the criteria contained in paragraph 2 of the terms of reference were difficult to assess and therefore subjective in nature. It was noted, for example, that it would be difficult to make a comparative assessment of candidates’ eminence, once a certain threshold was crossed, or to compare the eminence of individuals with different professional backgrounds’⁴². The ACN itself has in the meantime recommended ‘suggested guidelines for the presentation of candidates for election as judge of the International Criminal Court’⁴³; the ICC website now contains a model CV which nominating States Parties are encouraged to use⁴⁴.

IV. Paragraphs 5 to 8 – Election procedure; gender balance

- 11 The election procedure follows the intricate and technical regulations in paragraphs 5 to 8. They have in practice been supplemented by detailed instructions from the Bureau of the ASP on the actual voting process⁴⁵.
- 12 Since the Statute expressly uses the terms ‘male’ and ‘female’ in paragraph 8(3) without any reference to the phrase ‘within their context in society’ as in article 7(3), it would seem that the reference here is only to the biological sex and it may therefore be questionable under the current law to require employing a wider gender-related interpretation in this context. The related discussion about the meaning of the term ‘gender’ in the context of article 7(3) and the debate about sexual orientation would *prima facie* appear to be irrelevant with regard to judicial elections⁴⁶. The voting record of the ASP in this context is, however, so far not indicative of any discernible bias in any event: Judge Adrian Fulford from the UK, who has always been open about his homosexuality, was classified simply as ‘male’ and was elected for a term of nine years in the first election in Feb. 2003⁴⁷, in the 9th round with two votes more (59) than the two-third majority required (57 out of 85)⁴⁸. In the other rounds, other judges were elected with 56 to 65 votes, but mostly with fewer than 60⁴⁹; voting went into 33 rounds at the time, so he seems to have been either uncontroversial or it may have simply been the numerical relation between the majority who had no such concerns, and the critical minority.

⁴¹ *Ibid.*, at para 15.

⁴² *Ibid.*, at para 12.

⁴³ Report of the Advisory Committee on Nominations of Judges on the work of its second meeting, of 29 Oct. 2013 (ICC-ASP/12/47) (online at http://www.icc-cpi.int/iccdocs/asp_docs/ASP12/ICC-ASP-12-47-ENG.pdf) at p. 8.

⁴⁴ Online at www.icc-cpi.int/iccdocs/asp_docs/Elections/EJ2014/FORM-Judges-CV-ENG.doc.

⁴⁵ See the guidance for the 2014 elections at http://www.icc-cpi.int/iccdocs/asp_docs/ASP13/ICC-ASP-NV-13-SP-06-ENG.pdf, and Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010) 532.

⁴⁶ Yet, despite the fact that such a case may appear academic at the moment, even this restrictive interpretation of the Statute could on the face of it include judicial candidates who have undergone a sex change operation. That such cases and hence the potential for candidates are not unimaginable at the highest courts of a country is evidenced by the recent sex change of Jürgen Schmidt-Räntsch, now called Johanna Schmidt-Räntsch, a judge at the German Federal Court of Justice; see www.welt.de/politik/deutschland/article129468131/Bundesrichter-laesst-sich-zur-Frau-umwandeln.html and www.lto.de/recht/nachrichten/n/bgh-richter-schmidt-raentsch-geschlechtsumwandlung/ (links courtesy of Stephan Glantz). Obviously, nothing stops the ASP from taking sexual orientation as part of the commitment to gender diversity in general into account in elections. Given the reluctance of a large minority of states to countenance, leave alone respect, sexual orientation and LGBT rights in general with regard to article 7(3), it is unclear whether this would currently be acceptable to them in the nomination and election context. See for that debate Bohlander, M, *Criminalising LGBT persons under national criminal law and article 7(1)(h) and (3) of the ICC Statute* (2014) Global Policy 401.

⁴⁷ See <http://legal.un.org/icc/elections/judges/fulford/fulford.htm>.

⁴⁸ Official Records, Assembly of States Parties to the Rome Statute of the International Criminal Court, First session (first and second resumptions), New York, 3–7 Feb. And 21–23 Apr. 2003 (ICC-ASP/1/3/Add.1); available online at <http://daccess-dds-ny.un.org/doc/UNDOC/GEN/N03/341/37/PDF/N0334137.pdf>.

⁴⁹ *Ibid.*, at paras. 15–26. The 56-vote elections were due to two invalid votes in the respective round.

V. Paragraphs 9 and 10: Term of office; continuation in office

Paragraph 9(b) and (c) are now obsolete, as they refer to the first election; all judges 13 eligible at the time went into their second term, if they were re-elected⁵⁰. The 1994 ILC Draft Statute provided for a term of 12 years, which, however, met with opposition and was reduced to nine years, in line with the term of the judges of the International Court of Justice. Lots were drawn at the first election to determine who would receive a term of three or six years⁵¹.

ICC Reg. 9(1) states that '[t]he term of office of judges shall commence on the eleventh of March following the date of their election', which followed from the determination made by the ASP at the 6th meeting on 3 February 2003: '[T]he Assembly, on the recommendation of the Bureau, decided that the terms of office of judges ... elected by the Assembly shall begin to run as from the 11 March following the date of the election. The Assembly also decided that the term of office of a judge elected⁵² to replace a judge whose term of office has not expired shall run from the date of the election for the remainder of that term'⁵³. The latter was then enshrined in ICC Reg. 9(2).

Paragraph 10 allows judges who have part-heard a case to continue in office until the 14 termination of the proceedings in which they have been involved, a procedure that makes sense pragmatically and is actually required by the principle that only those judges may decide a case who have seen and heard all the evidence. This can lead to quite dramatic extensions, as, for example, in the case of Judge Blattman, who sat on the Trial Chamber in the *Lubanga* case. Judge Blattman had been elected in Feb. 2003 and his term of office, beginning on 11 Mar. 2003, had been decided by lot as running for six years; he was thus not eligible for re-election. This meant that he should have stepped down on 10 Mar. 2009. Judges Fulford and Odio-Benito had been elected for nine years and should have stepped down on 10 Mar. 2012. However, they were still sitting on 7 Aug. 2012 in the decision on reparation proceedings⁵⁴ when the Chamber decided that the present judges no longer needed to remain seized of overseeing the reparation proceedings managed by the Trust Fund for Victims, and that a differently constituted Chamber could perform that task⁵⁵.

⁵⁰ See for the election history until 2013 the overview at http://www.icc-cpi.int/iccdocs/asp_docs/Elections/ICC-Election-Judges-History-July-2013-ENG.pdf.

⁵¹ *Ibid.* (fn. 47) at paras. 27–30.

⁵² Pursuant to article 37.

⁵³ *Ibid.* (fn. 47), at para 31.

⁵⁴ *Prosecutor v Lubanga Dyilo*, Case No. ICC-01/04-01/06, Decision establishing the principles and procedures to be applied to reparations, of 7 August 2012, available online at www.icc-cpi.int/iccdocs/doc/doc1447971.pdf.

⁵⁵ *Ibid.* At paras. 260–261.

Article 37

Judicial vacancies*

1. In the event of a vacancy, an election shall be held in accordance with article 36 to fill the vacancy.

2. A judge elected to fill a vacancy shall serve for the remainder of the predecessor's term and, if that period is three years or less, shall be eligible for re-election for a full term under article 36.

Literature: Bellelli, R., 'The law of the Statute and its practice under review', in: R. Bellelli (ed.), *International Criminal Justice, Law and Practice from the Rome Statute to its Review* (Ashgate 2010) 410–415; Jones, J. R. W. D., 'Composition of the Court', in: A. Cassese, P. Gaeta and J. R. W. D. Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary, I* (OUP 2002) 235–267, Rwelamira, M. R., 'Composition and Administration of the Court', in: R. S. Lee (ed.), *The International Criminal Court: The Making of the Rome Statute: Issues Negotiations, Results* (Kluwer Law International 1999) 153–167; Schabas, W., 'Article 35. Service of Judges', in: W. Schabas (ed.), *The International Criminal Court: A Commentary on the Rome Statute* (OUP 2010) 520–523; Liera, S. F., 'Single Judge, Replacements, and Alternate Judges', in: R. S. Lee (ed.) *The International Criminal Court, Elements of Crimes and Rules of Procedure and Evidence* (Transnational Publishers 2001) 310–314.

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A. Introduction

- 1 Article 37 of the Rome Statute lays out the procedure to be followed where a seat in the judiciary of the Court is vacated by the death, resignation or removal from office of a judge or where a judge does not make his or her solemn undertaking within a given time-frame. This provision seeks to ensure that unfilled judicial vacancies do not put a strain on the capacity of the Court to administer justice in an expeditious manner and has been applied in several instances. In terms of its drafting history, article 37 of the Statute has largely remained the same since the first draft of the Statute prepared by the International Law Commission, and throughout the Preparatory Committee phase and the Diplomatic Conference in Rome.

B. Analysis and interpretation

I. Paragraph 1 – Elections to fill judicial vacancies

1. The advent of a vacancy
- 2 Paragraph 1 provides that in the event of a vacancy in the judiciary of the Court, an election shall be held in accordance with article 36 of the Statute. Article 36 in turn sets out the qualifications required of judges of the Court and the process for judicial nominations

* The views expressed herein are those of the author alone and not of the International Criminal Court.

and elections. Whereas the expiration of the term of office of a judge technically leads to a judicial vacancy, an election to replace a judge whose tenure has ended does not fall within the purview of article 37 of the Statute. Those elections are conducted within the regular cycle of judicial elections to the Court, which take place every three years in accordance with article 36(9) of the Statute. Instead, a judicial vacancy in accordance with article 37 arises where the mandate of a judge comes to an end prematurely, before the expiry of the judge's term of office. This may be triggered by the death of a judge as provided for in rule 36 of the Rules of Procedure and Evidence ('Rules'); the resignation of a judge from the Court (due to illness or other reasons) as provided for in rule 37 of the Rules; or the removal from office of a judge for serious misconduct, serious breach of duty¹ or the inability to exercise the functions required by the Statute, in accordance with article 46(1) of the Statute.²

Furthermore, by virtue of an amendment to the Procedure for the Nomination and Election of judges of the International Criminal Court ('Election Procedure'),³ adopted by resolution of the Assembly of States Parties ('ASP') at its twelfth session in November 2013, a judicial vacancy will be declared in accordance with article 37 of the Statute if an elected judge fails to assume his or her duties to the Court by making his or her solemn undertaking, in accordance with article 45 of the Statute,⁴ within six months of election, leading to new elections.⁵ The amendment was adopted to ensure the efficient functioning of the Court, given that elected judges who have not been sworn in pursuant to article 45 of the Statute are ineligible to take up their duties and be called by the Presidency of the Court⁶ to serve on a full-time basis in accordance with article 35(3) of the Statute. It seeks to ensure that the Court is not deprived of a judge for a potential period of nine years (the term of office of a judge in accordance with article 36(9)(a)) if a Judge-elect⁷ refuses to take the oath of office⁸ and was adopted in response to the concrete situation arising from the decision of a judge elected at the tenth session of the ASP in December 2011, whose term of office began on 10 March 2012, to defer making her

¹ Serious misconduct and serious breach of duty are defined in rule 24 of the Rules. For further provisions on removal from office and disciplinary measures, see generally articles 46 and 47 of the Statute, rules 23–32 of the Rules and regulations 119–125 of the Regulations of the Court.

² The procedure for filling judicial vacancies in the Court by way of an election by the ASP should not be confused with the procedure set out in rule 38 of the Rules and regulation 15 of the Regulations of the Court which deals with the replacement of judges within a Chamber by the Presidency, for example in cases of resignation, accepted excuse, disqualification, removal from office or death.

³ As set out in *Official Records of the Assembly of States Parties to the Rome Statute of the International Criminal Court, Third session, 6–10 September 2004* (ICC-ASP/3/25), Part III, ICC-ASP/3/Res.6. As amended by resolutions ICC-ASP/5/Res.5 (contained in *Official Records, Fifth session (resumption) 29 January – 1 February 2007* (ICC-ASP/5/35), Part II), ICC-ASP/12/Res.8, Annex II (contained in *Official Records, Twelfth session, 20–28 November 2013* (ICC-ASP/12/20), Vol I, Part III) and ICC-ASP/13/Res.5, Annex II (contained in *Official Records, Thirteenth session, 8–17 December 2014* (ICC-ASP/13/20), Vol I, Part III).

⁴ See rule 5 of the Rules, setting out the text of the solemn undertaking and the procedure to be followed in relation thereto.

⁵ *Official Records, Twelfth session, 2013* (ICC-ASP/12/20), Vol I, Part III, ICC-ASP/12/Res.8 (paragraph 29), Annex II. By virtue of Resolution ICC-ASP/12/Res.8, the Election Procedure now provides (at paragraph 27bis) that: 'A judicial vacancy will be declared in accordance with article 37 of the Rome Statute if an elected judge does not make his or her solemn undertaking in accordance with article 45 of the Rome Statute within six months of his or her election.'

⁶ Pursuant to article 34(a) of the Statute, the Presidency is an organ of the Court, which is composed of three judges elected from amongst their peers, in accordance with article 38 of the Statute, to serve as President, First-Vice President and Second Vice-President, for a renewable three-year term, and is responsible for the proper administration of the Court (with the exception of the Office of the Prosecutor) and other functions conferred upon it in accordance with the Statute.

⁷ 'Judge-elect' refers to an incoming judge who has been elected to the Court by the ASP but who has not yet made his or her solemn undertaking in accordance with article 45 of the Statute.

⁸ Report to the Bureau on the review of the procedure for the nomination and election of judges, 15 November 2013, ICC-ASP/12/57, Annex III (Proposals submitted by Belgium regarding the procedure for election of judges, paragraph 3).

solemn undertaking for over two years, until her resignation from the Court in June 2014, effectively preventing the Presidency from calling her to full-time service.⁹

- 4 Although the aforementioned amendment encourages judges to safeguard their elected positions and prevent them from lapsing by making their solemn undertaking within six months, it would not remedy a situation where a judge is sworn in within the given time-frame but still defers taking up his or her duties when called to serve on a full-time basis by the Presidency, and there is no obviously satisfactory answer as to what the Court could do to resolve this. In such cases, reference may be had to the approaches proposed by the Bureau of the ASP ('Bureau')¹⁰ in the situation of Judge-elect Senator Defensor-Santiago to whom the amendment did not apply in accordance with the principle of non-retroactivity (having been adopted subsequent to her election).¹¹ In those circumstances, the Bureau suggested that 'measures such as administrative or persuasion could be undertaken to resolve the matter'.¹² The Bureau did not explain itself further but, given its responsibility for the proper administration of the Court,¹³ it would be expected that such persuasion exercised upon a judge, in those circumstances either to relinquish office and thus create a judicial vacancy or to make his or her solemn undertaking and be called to serve the Court full-time, would fall to be undertaken by the Presidency. It is equally anticipated that similar persuasive measures could be employed by the Presidency to motivate a judge who has made his or her solemn undertaking but deferred full-time service, to either serve the Court full-time or relinquish office.
- 5 Moreover, it has been suggested that such a situation falls within the disciplinary realm,¹⁴ which would, evidently, depend on the legitimacy of the reasons given for such a deferral of full-time service, i.e. whether it is a case of unwillingness or inability for justifiable reasons. Turning to the potentially relevant disciplinary regime, without commenting on its applicability, the Statute and Rules provide for the disciplinary measures of a reprimand¹⁵ or pecuniary sanction¹⁶ to be imposed upon an elected official¹⁷ who is deemed to have committed misconduct of a less serious nature,¹⁸ such as repeatedly failing to comply with or ignoring requests made, *inter alia*, by the Presidency in the exercise of its lawful authority.¹⁹ Furthermore, for more drastic measures, there is provision in article 46(1)(a) of the Statute for an elected official of the Court to be removed from office for a serious breach of duty, which in accordance with rule 24(2) of the Rules, may occur in the case of gross negligence in the performance of duties or knowingly acting in contravention of those duties,

⁹ Referring to Judge-elect Senator Miriam Defensor-Santiago (The Philippines) (mn 11). The five other judges elected at the same session of the ASP in December 2011, made their solemn undertaking on 9 March 2012, ICC Press Release ICC-CPI-20120308-MA120, 8 March 2012.

¹⁰ In accordance with article 112(3) of the Statute, the Bureau of the ASP has a representative character. It consists of a President, two Vice-Presidents and eighteen members elected by the ASP for three-year terms and meets at least once a year to assist the ASP in the discharge of its responsibilities. In practice, the Bureau meets regularly throughout the year.

¹¹ See Note to Resolution ICC-ASP/12/Res.8 (cited at note 5).

¹² Bureau of the ASP, Decisions, Twentieth meeting, 28 November 2013, paragraph 3 b.

¹³ In accordance with article 38(3)(a) of the Statute, see note 6.

¹⁴ Report to the Bureau on the review of the procedure for the nomination and election of judges, 15 November 2013, ICC-ASP/12/57, paragraph 18. The 'administrative measures' proposed by the Bureau in relation to Judge-elect Senator Defensor-Santiago (see note 12) could also be taken to refer to disciplinary measures.

¹⁵ Rule 32(a) of the Rules.

¹⁶ Rule 32(b) of the Rules. In such a case, the pecuniary sanction could be levied against the allowance paid to a non-full time judge pursuant to articles 35(4) and 49 of the Statute. This allowance is only payable to judges who have made their solemn undertaking pursuant to article 45 of the Statute (see *Official Records, Eleventh session, 14–22 November 2012* (ICC-ASP/11/20), Vol II, Part A, Proposed Programme Budget for 2013, footnote 39 to paragraph 89 and Annex V(c); *Official Records, Twelfth session, 2013* (ICC-ASP/12/20), Vol II, Part A, Proposed Programme Budget for 2014, footnote 31 to paragraph 70 and Annex V(c)).

¹⁷ An 'elected official' refers to either a judge, the Prosecutor, Deputy Prosecutor, Registrar or Deputy Registrar of the Court.

¹⁸ Article 47 of the Statute and rule 25 of the Rules.

¹⁹ Rule 25(1)(a)(ii) of the Rules.

including repeatedly causing unwarranted delay in the initiation, prosecution or trial of cases, or in the exercise of judicial powers.²⁰ Moreover, there is provision in article 46(1)(b) of the Statute for an elected official to be removed from office where he or she '[i]s unable to exercise the functions required by th[e] Statute'. Whilst, the drafting history of the latter provision suggests that the aforementioned inability to exercise functions was, at least initially, contemplated as being attributable to long-term illness or disability,²¹ the provision was not subject to further elaboration in the Rules, and, as the text stands, a judge could be potentially liable to removal from office pursuant to article 46(1)(b) of the Statute for reasons additional to the aforementioned health reasons.

2. The procedure for filling a vacancy

Article 37 of the Statute does not elaborate upon the procedure for conducting elections to fill judicial vacancies, other than stipulating that such elections shall take place in accordance with article 36 of the Statute. Nor does it regulate the timing of such elections, contrary to the procedure in article 36(2)(c)(i) of the Statute for example, which provides that the election of additional judges to the Court shall take place at the next election of the ASP once a proposal for an increase in the number of judges has been adopted.

In practice, the Presidency initiates the process of filling a judicial vacancy by notifying the President of the Bureau of the ASP of the death or resignation of a judge, in accordance with rules 36 and 37 of the Rules.²² The Election Procedure adopted by the ASP further elucidates the process to be followed. It maintains that '[w]ithin one month of the occurrence of the judicial vacancy, the Bureau of the ASP shall fix the venue and date of the election, which should not be later than 20 weeks after the occurrence of the vacancy unless the Bureau decides otherwise after consulting the Court'.²³ As such, notwithstanding the terms of article 37(1) of the Statute, it is not mandatory to fill an open judicial vacancy, given that the Bureau may decide to defer filling the vacancy pursuant to the Election Procedure, in consultation with the Court.

Those consultations with the Court are conducted through the Presidency which, in accordance with article 38(3)(a) of the Statute, is responsible for its proper administration and, as such, has a good overview of, and is best placed to assess, the workload, needs and functionality of the judiciary. Significantly, the Election Procedure gives the Presidency the opportunity to shape the decisions of the Bureau and leaves the latter a wide discretion to decide: whether the vacancy shall be filled either during the remainder of the term of office of

²⁰ Rule 24(2)(b) of the Rules.

²¹ The 1994 Draft Statute for an International Criminal Court prepared by the International Law Commission ('1994 ILC Draft Statute'), provided, at article 15(1): 'A judge, the Prosecutor or other officer of the Court who is [...] unable to exercise the functions required by this Statute because of long-term illness or disability, shall cease to hold office' (Report of the International Law Commission on the work of its forty-sixth session, 2 May – 22 July 1994 (A/49/10)). Article 47 of the 1998 Preparatory Committee Statute for the International Criminal Court ('1998 Preparatory Committee Draft Statute'), on the other hand, referred only to the inability to exercise the functions of the Statute, omitting any reasons therefor. Furthermore, in footnote 135 to the draft provision, long-term illnesses or disability were referred to as examples of reasons for the inability to exercise functions (United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court, 15 June – 17 July 1998, Official Records, Volume III, A/CONF.183/13(Vol. III), Part I, B, Report of the Preparatory Committee on the Establishment of an International Criminal Court, Draft Statute for the International Criminal Court, article 47).

²² In accordance with rule 37(1), a judge notifies the Presidency in writing of his or her decision to resign. This has been the case in all resignations save for that of Judge-elect Shahabuddeen who wrote directly to ASP President (see note 30). Judges are encouraged to give at least six months' notice and make every effort to discharge their outstanding responsibilities before resigning, pursuant to rule 37(2) of the Rules. However, this is not mandatory and resignations may be given at short notice.

²³ Election Procedure, paragraph 27(a). The current provision is the result of an amendment which entitles the Bureau to disregard the rule that the venue and date of the election shall be fixed within one month of the occurrence of the judicial vacancy and shall not in any case take place later than 20 weeks after the occurrence of the vacancy. This amendment was effected by resolution of the ASP through the addition of the words 'unless the Bureau decides otherwise after consulting the Court' (*Official Records, Fifth session (resumption) 2007* (ICC-ASP/5/35), Part II, ICC-ASP/5/Res.5).

the judge concerned or after the expiry of that term of office, within the regular election cycle;²⁴ and, further, if it is to be filled during the remainder of the predecessor judge's term, by what means the vacancy shall be filled (i. e. during an election held at a scheduled session of the ASP or an election held at a resumed session of the ASP convened for that purpose in accordance with article 112(6) of the Statute).

- 9 The relevant considerations in deciding whether, and how, to hold such an election are: the duration of the remaining term of office of the predecessor judge; the urgency of filling the vacancy contingent on the needs of the Court; the financial implications of convening fresh elections, particularly if an election to fill a vacancy cannot be accommodated within the scheduled sessions of the ASP, thereby necessitating a resumed session; the need to allow States Parties sufficient time to identify and nominate qualified candidates;²⁵ the need to allow the Advisory Committee on Nominations of Judges of the International Criminal Court (mandated to facilitate the appointment of the highest-qualified individuals as judges of the Court, ('Advisory Committee')),²⁶ sufficient time to assess the judicial candidates prior to election;²⁷ and, the stipulation that the number of judges of the Court shall not be reduced below eighteen in accordance with articles 36(1) and 36(2)(c)(ii) of the Statute. However, the latter condition has not, in practice, been of relevance where a vacancy has been open for a relatively short period of time or where the requisite number of judges has been satisfied by the extension of the terms of judges for the purpose of completing any trial or appeal the hearing of which has already commenced, in accordance with article 36(10) of the Statute.²⁸

²⁴ Regular elections refer to the scheduled elections of the ASP to elect judges to the Court, which take place every three years in accordance with article 36(9) of the Statute.

²⁵ It is noteworthy that the period within which States Parties may nominate judicial candidates is considerably shorter for elections to fill judicial vacancies in comparison to the nomination period in regular elections due to the presumed urgency of filling the vacant judicial seat. Both nomination periods have been subject to extension by six weeks to allow the Advisory Committee sufficient time to review nominated candidates, taking into account the fact that the nomination periods may be extended several times before an election (see Bureau of the ASP, Decisions, Seventh meeting, 15 August 2014, paragraph 1(a) and *Official Records, Thirteenth session, 2014* (ICC-ASP/13/20), Vol I, Annex II Oral Report of the Bureau, paragraph 17). In the case of regular vacancies, the nomination period opens 32 weeks before the elections and lasts for 12 weeks, having been extended from 26 weeks by resolution of the ASP adopted at its twelfth session in 2013 (see note 3). On the other hand, in elections to fill judicial vacancies, the nomination period opens 18 weeks before the elections and lasts for 6 weeks, having been extended from 12 weeks by resolution of the ASP adopted at its thirteenth session in 2014 (see note 3).

²⁶ The Advisory Committee, a subsidiary body of the ASP in accordance with article 36(4)(c) of the Statute, was established by resolution of the ASP at its tenth session in December 2011 (*Official Records, Tenth session, 12–21 December 2011* (ICC-ASP/10/20), Vol I, Part III, ICC-ASP/10/Res.5, paragraph 19) with the mandate of facilitating the appointment of the highest-qualified individuals as judges of the Court (see paragraph 5 of the Terms of Reference of the Advisory Committee set out in Report of the Bureau on the establishment of an Advisory Committee on nominations of judges of the International Criminal Court, 30 November 2011, ICC-ASP/10/36 ('Advisory Committee Terms of Reference')). The Advisory Committee is mandated to prepare information and analysis, of a technical nature, on the suitability of the judicial candidates in order to inform the decision making of States Parties in the election process (see paragraphs 9, 11 and 12 of the Advisory Committee Terms of Reference, ICC-ASP/10/36). In examining the scope of its mandate, the Advisory Committee has stated that it is 'required to advise States on whether or not, in its opinion, the candidates meet the requirements of article 36 [of the Statute], taking into account the specific qualifications required under Lists A and B as provided in that article.' See Report of the Advisory Committee on Nominations of Judges on the work of its fourth meeting, 24 April 2015, ICC-ASP/13/46, paragraph 18. The Advisory Committee evaluates the candidates by conducting interviews with regard to their qualifications before preparing its report to the ASP. The President of the Bureau of the ASP has expressed the hope that States Parties would be guided by the conclusions of the reports of the Advisory Committee in casting their votes during judicial elections (Bureau of the ASP, Decisions, Ninth meeting, 30 September 2014, paragraph 3(a)).

²⁷ For example, following the resignation of Judge-elect Shahabuddeen (Guyana) in February 2009, the President of the Court informed the President of the ASP in March 2009 that the Court wished his seat to be filled as soon as possible. The Bureau decided not to convene a special session prior to the eighth session of the ASP scheduled for November 2009 in order to avoid the ensuing additional costs and to provide States Parties with sufficient time to identify and nominate highly qualified candidates. Bureau of the ASP, Decisions, Seventh Meeting, 7 April 2009, paragraph 1. ICC Press Release, ICC-ASP-20090218-PR391, 18 February 2009.

²⁸ See Report of the Bureau on Salary and all allowances for judges, whose terms have been extended in accordance with article 36, paragraph 10, 9 November 2013, ICC-ASP/12/56, noting at paragraph 6 that the

3. The practice of the Court

As at November 2015, there have been four elections held pursuant to article 37 of the Statute to fill seven judicial vacancies before the Court. The first was held at the sixth session of the ASP in November/December 2007 to fill three judicial vacancies.²⁹ The second was held at the eighth session of the ASP in November 2009 to fill two judicial vacancies³⁰ and the third election pursuant to article 37 of the Statute was held at the twelfth session of the ASP in November 2013 to fill one judicial vacancy.³¹

The fourth election pursuant to article 37 of the Statute proved more complicated. It was held at the resumed thirteenth session of the ASP in June 2015 to fill the judicial vacancy arising from the resignation of Judge-elect Senator Miriam Defensor-Santiago (The Philippines) for medical reasons in June 2014.³² The modalities for conducting an election to fill this vacancy at the time it arose in June 2014 were initially complicated by the scheduled regular election of six judges to the Court at the thirteenth session of the ASP in December 2014. The Bureau had concerns regarding the possible ramifications that filling the vacancy might have on the regular election, bearing in mind the legal framework for judicial elections established in the Rome Statute and in the Election Procedure of the ASP, notably the proscription in article 36(7) of the Statute that no two judges of the Court may be nationals of the same State, as well as the lack of clarity over the procedure for concurrent nominations to both regular and special elections at the same ASP session by the same State Party.³³ The Bureau furthermore sought to ensure that the Advisory Committee had sufficient time to evaluate all the candidates nominated to fill the judicial vacancy³⁴ and weighed the budgetary implications of convening a resumed session solely to conduct the article 37 election.³⁵

Presidency has underlined its 'efforts on the one hand to ensure the availability of a sufficient number of judges to meet the requirements of current casework, while on the other hand attempting to limit as far as possible any increase beyond the total of 18 judges normally provided for in the Statute...thus limiting the impact that extensions [pursuant to article 36(10) of the Statute] have had on the budget.'

²⁹ Resulting from the resignation of Judge Maureen Harding Clark (Ireland) to serve in the High Court of Ireland, effective as of 10 December 2006, the resignation of Judge Claude Jorda (France) for ill-health, effective as of 12 August 2007, and the resignation of Judge Karl T. Hudson-Phillips (Trinidad and Tobago) for personal reasons, effective as of 30 September 2007 (see ICC Press Releases ICC-CPI-20061211-192, 11 December 2006 [Judge Harding-Clark], ICC-CPI-20070508-218, 8 May 2007 [Judge Jorda] and ICC-CPI-20070319-211, 19 March 2003 [Judge Hudson-Phillips]). See also Election of judges to fill three judicial vacancies of the International Criminal Court, 2 October 2007, ICC-ASP/6/15. Those Judges were replaced by Judges Bruno Cotte (France), Daniel David Ntanda Nsereko (Uganda) and Fumiko Saiga (Japan), *Official Records, Sixth session, 30 November – 14 December 2007*, (ICC-ASP/6/20), Vol I, Part I, B, paragraph 29.

³⁰ Resulting from the 16 February 2009 resignation of Judge-elect Mohamed Shahabuddeen (Guyana) who was not in a position to assume his duties as a judge for personal reasons and the passing away of Judge Fumiko Saiga (Japan) on 24 April 2009 (see ICC Press Releases ICC-ASP-20090218-PR391, 18 February 2009 [Judge Shahabuddeen] and ICC-CPI-20090424-PR407, 24 April 2009 [Judge Saiga]). See also Election of judges to fill two judicial vacancies of the International Criminal Court, 11 November 2009, ICC-ASP/8/21, paragraph 2. Those Judges were replaced by Judges Silvia Fernández de Gurmendi (Argentina) and Kuniko Ozaki (Japan), *Official Records, Eighth session, 18–26 November 2009* (ICC-ASP/8/20), Vol I, Part I, B, paragraph 31.

³¹ Resulting from the resignation of Judge Anthony Thomas Aquinas Carmona (Trinidad and Tobago), effective as of 18 March 2013, following his election as President of Trinidad and Tobago. (See ICC Press Release ICC-CPI-20130320-PR885, 20 March 2013. See also Election of a judge to fill a judicial vacancy of the International Criminal Court, 21 October 2013, ICC-ASP/12/45). He was replaced by Judge Geoffrey Henderson (Trinidad and Tobago). *Official Records, Twelfth session, 2013* (ICC-ASP/12/20), Vol I, Part I, B, paragraph 22.

³² Bureau of the ASP, Decisions, Fourth meeting, 4 June 2014, paragraph 2. Judge-elect Defensor-Santiago was replaced by Judge Raul Cano Pangalangan (The Philippines), *Official Records, Thirteenth Session (resumption), 24–25 June 2015*, (ICC-ASP/13/20/Add. 1), Part I, B, paragraph 20.

³³ *Ibid* and Bureau of the ASP, Decisions, Sixth meeting, 18 July 2014, paragraph 1(b).

³⁴ Bureau of the ASP, Decisions, Fifth meeting, 30 June 2014, paragraph 1(a). The Bureau was concerned that the dates of the scheduled meetings of the Advisory Committee would not also allow it to consider nominations for the judicial vacancy, which would only be submitted after the meeting bearing in mind the nomination periods.

³⁵ Bureau of the ASP, Decisions, Sixth meeting, 18 July 2014, paragraph 1(b).

The Bureau considered three options for filling the vacancy: i) holding an election at the thirteenth session of the ASP, prior to the election of six judges already scheduled for the same session; ii) holding a joint election to fill seven seats altogether, whereby one seat would lead to a mere six-year term (approximately) and six seats would lead to nine-year terms;³⁶ or iii) deferring the election to early 2015, so that the results of the election of six judges at the thirteenth session of the ASP in December 2014 could be taken into account in the calculation of the requisite minimum voting requirements regarding the judicial vacancy.³⁷ Ultimately, the Bureau decided that it would not be possible to hold an election to fill the judicial vacancy at the thirteenth session in December 2014 within the existing legal framework and referred the matter to the ASP with the recommendation that the latter schedule it in 2015.³⁸ Thereafter, at the thirteenth session, during its final plenary meeting, the ASP mandated the Bureau to consider the practicalities of holding a resumed session to fill the remaining judicial vacancy and, if appropriate, convene such a session in the second quarter of 2015, in light of the needs of the Court to be served by a full complement of judges due to its workload.³⁹

- 12 As stated above, vacancies in the judiciary have not always led to special elections in accordance with article 37 of the Statute, particularly where the mandate of a resigning judge is soon to expire. The judicial vacancy resulting from the resignation of Judge Navanethem Pillay (South Africa),⁴⁰ did not lead to an election pursuant to article 37 to fill a judicial vacancy. Instead, a replacement for Judge Pillay, whose mandate was due to expire only seven months later, in March 2009, along with five other judges, was elected during the course of the regular elections which took place at the seventh resumed session of the ASP in January 2009. Similarly, the Bureau decided not to fill the vacancy resulting from the resignation of Judge Hans-Peter Kaul (Germany)⁴¹ with an election pursuant to article 37 of the Statute, as the Court was not seeking to replace the judge given that his term of office was due to conclude only eight months later in March 2015, alongside that of five other judges. An election to fill that judicial vacancy at the thirteenth session in December 2014 (deemed the earliest opportunity) would thus have only allowed a replacing judge to serve in office for just over two months, in accordance with article 37(2) of the Statute,⁴² given the regular elections scheduled at the same session.⁴³ As such, the vacancy resulting from the resignation of Judge Kaul was scheduled to be filled through the regular judicial elections already scheduled for the thirteenth session of the ASP in December 2014.⁴⁴

³⁶ Given that the term of office of Judge-elect Senator Miriam Defensor-Santiago expires on 10 March 2021, whereas the terms of office of the judges elected at the thirteenth session expire on 10 March 2024. See mn 16 regarding the duration of a replacing judge's term.

³⁷ Bureau of the ASP, Decisions, Sixth meeting, 18 July 2014, paragraph 1(b).

³⁸ Bureau of the ASP, Decisions, Seventh meeting, 15 August 2014, paragraph 1(a); *Official Records, Thirteenth session, 2014* (ICC-ASP/13/20), Vol I, Part I, B, paragraph 31 and Annex II Oral Report of the Bureau, paragraph 16.

³⁹ *Official Records, Thirteenth session, 2014* (ICC-ASP/13/20), Vol I, Part I, B, paragraph 69; and Part III, ICC/ASP/13/Res.5, Annex I, paragraph 16(c), which provides 'Concerned by the need for the Court to have a full bench of judges in 2015, as provided by the Rome Statute, further decides to mandate the Bureau to consider the practicalities of holding a resumed session to fill the remaining judicial vacancy, including the location, timing and financial implications, and if appropriate to proceed with the convening of such a resumed session in the second quarter of 2015'. The Bureau decided to schedule that resumed session of the ASP for the election to fill the judicial vacancy in late June 2015. Bureau of the ASP, Decisions, First meeting, 23 January 2015, paragraph 2.

⁴⁰ Effective 31 August 2008, in order to take up her appointment as the United Nations High Commissioner for Human Rights. See ICC Press Release ICC-CPI-20080730-PR344, 30 July 2008.

⁴¹ Effective 1 July 2014, due to health reasons. See ICC Press Release ICC-CPI-20140630-PR1023, 30 June 2014.

⁴² Two months calculated from December 2014, (the date of both the elections at the thirteenth session of the ASP and the commencement of the term of office of the replacing judge (see mn 16)) and 10 March 2015 (the expiration of the term of office of Judge Kaul).

⁴³ Bureau of the ASP, Decisions, Fifth meeting, 30 June 2014, paragraph 1(b).

⁴⁴ For the results of the elections see *Official Records, Thirteenth session, 2014* (ICC-ASP/13/20), Vol I, Part I, B, paragraph 44.

II. Paragraph 2 – Judges elected to fill vacancies

1. Judicial replacements

Article 37 of the Statute does not dictate the manner in which a judicial vacancy is to be filled, save for stating in paragraph 1 that such elections are to be held in accordance with article 36 of the Statute. In comparison, the 1994 ILC Draft Statute had explicitly provided that in filling judicial vacancies, judges ‘shall be replaced by persons nominated as having the same qualification’.⁴⁵ As such, a judge with established competence in criminal law and procedure, in accordance with article 36(3)(b)(i) of the Statute, would be replaced with the same in order to maintain the overall balance within the judiciary of the Court. Whereas the Statute does not maintain any such explicit condition in the election process to fill judicial vacancies, the makeup of the remaining body of judges is relevant to determining the way in which a judicial vacancy is to be filled.

Article 36 of the Statute sets out the key elements. According to articles 36(7) and 36(8)(a) of the Statute respectively, no two judges may be nationals of the same State, and the States Parties shall, in the selection of judges, take into account the need, within the membership of the Court, for the representation of the principle legal systems of the world; equitable geographical representation;⁴⁶ and a fair representation of female and male judges. They must also, pursuant to article 36(8)(b) of the Statute, take into account the need to include judges with legal expertise on specific issues, including, but not limited to, violence against women or children. Article 36(5) of the Statute further provides that of the eighteen judges of the Court at least nine shall have established competence in criminal law and procedure (List A),⁴⁷ at least five shall have established competence in international law (List B)⁴⁸ and that ‘[s]ubsequent elections shall be so organized as to maintain the equivalent proportion on the Court of judges qualified on the two lists’.

Moreover, the Election Procedure of the ASP further elaborates the way in which article 37(2) of the Statute is to be implemented. It seeks to maintain the balance in the expertise, geographical representation and gender representation amongst the judges, as stipulated in articles 36(5) and 36(8) of the Statute. In accordance with the Election Procedure: ‘[i]f the judicial vacancy reduces the number of judges from [L]ist A to below 9 or the number of judges from [L]ist B to below 5, only candidates from the underrepresented list can be nominated’ for election.⁴⁹ Further, ‘[i]f at the time of the election a regional or gender minimum voting requirement is not fulfilled, only candidates that can satisfy any of the underrepresented regional minimum voting requirements as well as the underrepresented gender minimum voting requirement can be nominated’ for election.⁵⁰ The latter provision was applied in the election to fill the vacancies left by the resignation of Judge-elect Shahabuddeen (Guyana) and the death of Judge Saiga (Japan), wherein only candidates from the Group of Latin American and Caribbean States and the Group of Asia-Pacific

⁴⁵ 1994 ILC Draft Statute, article 6(8) and commentary to article 7(2). From the placement of this provision, it would appear to have concerned all judicial elections, including those to fill judicial vacancies.

⁴⁶ Those five regional groupings are: African States, Asia-Pacific States, Eastern European States, Latin American and Caribbean States and Western European and Other States.

⁴⁷ Namely: judges with ‘established competence in criminal law and procedure, and the necessary relevant experience, whether as judge, prosecutor, advocate or in other similar capacity, in criminal proceedings’ in accordance with article 36(3)(b)(i) of the Statute.

⁴⁸ Namely: judges with ‘established competence in relevant areas of international law such as international humanitarian law and the law of human rights, and extensive experience in a professional legal capacity which is of relevance to the judicial work of the Court’ in accordance with article 36(3)(b)(ii) of the Statute.

⁴⁹ Election Procedure, paragraph 27(c).

⁵⁰ Election Procedure, paragraph 27(d). Minimum voting requirements are also applicable to regular elections. For example, at the elections to fill six seats at the thirteenth session of the ASP in December 2014, minimum voting requirements were applied in respect of expertise, geographical representation and gender representation (see Fifth election of judges of the International Criminal Court, 2 October 2014, ICC-ASP/13/3, paragraph 5).

States, respectively, could be nominated for election to the Court.⁵¹ In the election to fill the vacancy left by the resignation of Judge Carmona (Trinidad and Tobago), only candidates from the Group of Latin American and Caribbean States could be nominated for election to the Court.⁵² Similarly, in the election to fill the vacancy resulting from the resignation of Judge-elect Senator Defensor-Santiago, only candidates from the Group of Asia-Pacific States were eligible for nomination.⁵³

Thus, the abovementioned provisions of the Statute and the Election Procedure are similar in their combined effect to the 1994 ILC Draft Statute which sought to replace like with like in an effort to maintain a balance within the judiciary of the Court when filling judicial vacancies. Whilst a replacing judge might not strictly require the same qualifications as his or her predecessor (unless the minimum voting requirements of the ASP are not met), the overall balance within the judiciary of the Court has to be maintained in filling a judicial vacancy, taking into account the makeup of the judges still serving.

2. The terms of office of judges filling vacancies

- 16 In relation to the duration of the term of office of a judge elected to fill a vacancy, paragraph 2 of article 37 of the Statute provides that a replacement judge shall serve for the remainder of his or her predecessor's term, which is still running. Due to the presumed urgency of replacing a judge, that term of office commences immediately upon election. As such, prior to the first regular election in 2003,⁵⁴ and thereafter for each election, the ASP decided that the terms of office of the judges elected to fill judicial vacancies shall run from the date of their election for the remainder of their predecessors' terms.⁵⁵ This is enshrined in regulation 9(2) of the Regulations of the Court, which likewise provides that the term of office of a judge elected to replace a judge whose term of office has not expired shall commence on the date of his or her election and shall continue for the remainder of the term of his or her predecessor. This is in contrast to the term of office of a judge elected within a regular election cycle, which commences on the eleventh of March following the date of his or her election.⁵⁶
- 17 Moreover, whereas article 36(9)(a) of the Statute provides that judges elected in regular elections shall ordinarily serve for a nine-year term and shall not be eligible for re-election, article 37(2) of the Statute is an exception to this rule.⁵⁷ It provides that if the predecessor judge's term of office is three years or less, the replacing judge shall be eligible for re-election

⁵¹ Nomination and election of judges, Note Verbale of 13 May 2009, ICC-ASP/8/S/20, page 3. See note 46 for regional groupings.

⁵² ICC-ASP/12/45, paragraph 9 (cited at note 31).

⁵³ Election of a judge to fill a judicial vacancy of the International Criminal Court, 14 April 2015, ICC-ASP/13/44, paragraph 9.

⁵⁴ *Official Records, First session (first and second resumptions) 3–7 February and 21–23 April 2003* (ICC-ASP/1/3/Add.1), Part I, B, paragraph 31.

⁵⁵ *Official Records, Sixth session, 2007* (ICC-ASP/6/20), Vol I, Part I, paragraph 32; *Official Records, Eighth session, 2009* (ICC-ASP/8/20), Vol I, Part I, paragraph 34; *Official Records, Twelfth session, 2013* (ICC-ASP/12/20), Vol I, Part I, paragraph 24.

⁵⁶ *Official Records, First session (first and second resumptions), 2003* (ICC-ASP/1/3/Add.1), Part I, B, paragraph 31; *Official Records, Fourth session (resumption) 26–27 January 2006* (ICC-ASP/4/37), Part I, B, paragraph 20; *Official Records, Seventh session (first and second resumptions) 19–23 January and 9–13 February 2009* (ICC-ASP/7/20/Add.1), Part I, B, paragraph 24; *Official Records, Tenth session, 2011* (ICC-ASP/10/20), Vol I, Part I, B, paragraph 44; *Official Records, Thirteenth session, 2014* (ICC-ASP/13/20), Vol I, Part I, B, paragraph 50; and regulation 9(1) of the Regulations of the Court.

⁵⁷ It is unclear why, in article 36(2)(c)(i) of the Statute concerning an increase in the number of judges, reference is made to article 37(2) of the Statute concerning the term of a judge elected to fill a vacancy of a predecessor judge. If this is not to be interpreted as a defunct cross-reference, then in combination with the fact that elections to increase the number of judges shall take place in accordance with paragraphs 3 to 8 of article 36 of the Statute but not paragraph 9 of article 36 of the Statute (which sets a judge's term of office at nine years) it could imply that judges elected to increase numbers in the judiciary, may be elected for less than nine years and if that period is three years or less shall be eligible for re-election for a full term. However, this provision has not been tested.

for a full term. Providing the possibility of re-election for a judge whose term of office is relatively short is a manner of attracting candidates to fill judicial vacancies and ensuring that the Court is not left wanting.⁵⁸ This provision was applied in respect of the election to fill three judicial vacancies in November/December 2007 at the sixth session of the Assembly, whereafter lots were drawn by the President of the ASP in order to determine which of the three judges elected at that session would serve the remainder of the term of Judge Jorda (approximately one and a half years in duration and due to expire on 10 March 2009).⁵⁹ In contrast, the terms of office of the two other judges who were being replaced at that session were due to expire on 10 March 2012. Pursuant to a drawing of lots, Judge Saiga was selected to serve the remainder of the term of Judge Jorda,⁶⁰ and, as such, was eligible for re-election at the end of her mandate, in accordance with articles 36(9)(a) and 37(2) of the Statute, and was indeed re-elected for a full nine-year term.⁶¹

Article 37(2) of the Statute is principally the same as its forerunner in the 1994 ILC Draft Statute except for the fact that the draft proposed by the ILC anticipated that a judge might be eligible for re-election if his or her predecessor's term was less than five years as opposed to the current three years.⁶² The text was amended to three years following a proposal from France without any extensive discussion.⁶³ The relevant provision in the 1998 Preparatory Committee Draft Statute was sent to the Rome Conference with the question of the entitlement of a replacing judge to stand for re-election after completion of his or her predecessor's term in square brackets.⁶⁴ At the Rome Conference, the Coordinator estimated that '[t]here might be a need to consider...whether a judge elected to fill a judicial vacancy should be eligible for re-election after completing his or her predecessor's term, or whether that should be dependent on the period of the term remaining'.⁶⁵ In the event, there was little debate on the subject⁶⁶ and the current text was adopted. The three-year time-frame is aligned with article 36(9)(c) of the Statute which provides that judges who serve for a three-year term in accordance with article 36(9)(b) of the Statute are eligible for re-election for a full term.

⁵⁸ Jones, in: Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, Vol. I (2002) 254.

⁵⁹ The remainder of the predecessor's term is calculated from the date that the resignation becomes effective to the date that the term of office expires, which, in the case of Judge Jorda was 2 August 2007 (ICC Press Release ICC-CPI-20070508-218, 8 May 2007) and 10 March 2009, respectively.

⁶⁰ Consequently, whereas the term of Judge Saiga was to expire on 10 March 2009, the terms of office of Judges Cotte and Nsereko were to expire on 10 March 2012. *Official Records, Sixth session, 2007*, (ICC-ASP/6/20), Vol I, Part I, B, paragraph 32.

⁶¹ Judge Saiga was re-elected at the first resumption of the Seventh session of the ASP in January 2009 (*Official Records, Seventh session (first and second resumptions) 2009* (ICC-ASP/7/20/Add.1) Part I, B, paragraph 18) and passed away on 24 April 2009 resulting in another election to fill a judicial vacancy (see margin 10 and note 30).

⁶² 1994 ILC Draft Statute, article 7(2). In the Draft Statute prepared by the Working Group of the ILC in 1993, a replacing judge serving the remainder of their predecessor's term was eligible for re-election if that period was less than four years, Report of the International Law Commission on the work of its forty-fifth session, 3 May-23 July 1993 (A/48/10), article 8(2).

⁶³ Report of the Preparatory Committee on the Establishment of an International Criminal Court, A/51/22, 1996, Vol II, Compilation of Proposals, article 8.

⁶⁴ Article 38(2) of the 1998 Preparatory Committee Draft Statute provided: 'A judge elected to fill a vacancy shall serve for the remainder of the predecessor's term[, and [if that period is less than three years] is eligible for re-election for a further term]'.

⁶⁵ 1998 Preparatory Committee Draft Statute, paragraph 47.

⁶⁶ *Supra* note 21, *Official Records, Volume II, A/CONF.183/13* (Vol. II), Summary records of the meetings of the Committee of the Whole, paragraphs 63 (Belgium) 78 (Malawi), 83 (United Arab Emirates and Syria), 110 (Venezuela), 113 (Iran), 125 (Democratic Republic of Congo).

Article 38 The Presidency

1. The President and the First and Second Vice-Presidents shall be elected by an absolute majority of the judges. They shall each serve for a term of three years or until the end of their respective terms of office as judges, which ever expires earlier. They shall be eligible for re-election once.

2. The First Vice-President shall act in place of the President in the event that the President is unavailable or disqualified. The Second Vice-President shall act in place of the President in the event that both the President and the First Vice-President are unavailable or disqualified.

3. The President, together with the First and Second Vice-Presidents, shall constitute the Presidency, which shall be responsible for:

- (a) The proper administration of the Court, with the exception of the Office of the Prosecutor; and
- (b) The other functions conferred upon it in accordance with this Statute.

4. In discharging its responsibility under paragraph 3 (a), the Presidency shall coordinate with and seek the concurrence of the Prosecutor on all matters of mutual concern.

Literature: Abtahi, H., Article 38, in: J. Fernandez and X. Pacreau (eds), *Commentaire article par article du Statut de la Cour pénale internationale*, i (Pedone 2012) 983; *id.*, Ogwuma, O. And Young, R., ‘The Judicial Review Powers of the Presidency of the International Criminal Court: Safeguards for the Protection of Human Rights’, (2013) 12 *LAPE* 281; *id.*, ‘The Composition of Judicial Benches, Disqualification and Excusal of Judges at the International Criminal Court’, (2013) 11 *JICJ* 379; Abtahi, H., and Koh S.A., ‘The Emerging Enforcement Practice of the International Criminal Court’, (2012) 45 *CornellILJ* 1; Ambach, P. And Rackwitz, K.U., ‘A Model of International Judicial Administration? The Evolution of Managerial Practices at the International Criminal Court’, (2014) 76 *L&ContempProbs* 119.

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A. Analysis and interpretation of elements

I. Paragraph 1

The judges meeting in plenary elect by an absolute majority, in accordance with rule 4 1 paras. 1 and 4 of the Rules, each of the three members of the Presidency, from among their peers, for a three year mandate, with the possibility to be re-elected once¹.

The Rules do not set out in any more detail the procedure for the election, unlike, for 2 instance, the Rules of the International Court of Justice and the Rules of the ICTY and ICTR². However the judges of the Court have adopted internal election rules that they have applied in each election³.

It is not without interest to recall a proposal by the USA to the Preparatory Committee⁴, 3 suggesting adding the following to paragraph 1: ‘The Vice-Presidents and Alternates shall be chosen so as to represent both the Appellate and Trial Judges’. Eventually, this proposal was not retained in the Final Draft of the Statute given the fact that the mechanisms of assignment to divisions bears complexities that may not be reconciled with this draft, as will be seen in the commentary to article 39.

II. Paragraph 2

This text replaces the ILC’s Draft approved verbatim by the Preparatory Committee⁵. This 4 text is more direct and clearer than some earlier proposals, *e.g.*, Singapore⁶, Australia and Netherlands⁷. It is likely that the States Parties wanted to ensure the clarity of the technical operation of this particular feature of the Presidency. Subsequently, the concrete operation of this provision was set out in detail in the Regulations of the Court. Accordingly, the functions of one or more unavailable or disqualified member of the Presidency shall be carried out by another judge in accordance with the precedence of judges under regulation 10 of the Regulations of the Court⁸. Also, the remaining members of the Presidency may, in exceptional circumstances, take the action required⁹. Finally, the members of the Presidency shall attempt to achieve unanimity in their decisions, failing which their decisions shall be taken by majority¹⁰.

¹ The First two Presidents of the Court, Judges Philippe Kirsch and Sang-Hyun Song, served two consecutive mandates as President of the Court from 2003 to 2009 and from 2009 to 2015, respectively.

² Rule 18 *lit. C* ICTY provides in full: ‘The President shall be elected by a majority of the votes of the permanent Judges composing the Tribunal. If no Judge obtains such a majority, the second ballot shall be limited to the two Judges who obtained the greatest number of votes on the first ballot. In the case of equality of votes on the second ballot, the Judge who takes precedence in accordance with rule 17 shall be declared elected’. By virtue of rule 20 *lit. C* ICTY, the same procedure applies to the election of the Vice-President. See also rules 18 and 20 ICTR. In contrast, the Rules of the Special Court for Sierra Leone provide in rule 18 that the presiding judge of the Appeals Chamber shall be the President of the Special Court and that ‘The Presiding Judge of the Appeals Chamber shall be elected by a majority of the votes of the Judges appointed to the Appeals Chamber’; its rule 20 provides that ‘The Vice-Presidency shall rotate in order of precedence amongst the other members of the Appeals Chamber commencing on 7 March 2003’.

³ In the First Edition of this Commentary, which appeared before the first election of the members of the Presidency, Jules Deschênes, a former judge of the Appeals Chamber of the ICTY, expressed the view that: ‘In the writer’s opinion, nominations should be allowed, even sought. If there is only one – prior informal consultations may well show the obviousness of the situation – the election of that candidate will follow automatically. Should there be more than one, the majority on a secret ballot should determine the winner’.

⁴ 1996 Preparatory Committee II, p. 18.

⁵ *Ibid.* p. 17.

⁶ *Ibid.*, p. 18.

⁷ *Ibid.*, pp. 19–20.

⁸ Regulation 11 para. 2 and 4 of the Regulations of the Court.

⁹ Regulation 11 para. 3 of the Regulations of the Court.

¹⁰ Regulation 11 para. 1 of the Regulations of the Court.

III. Paragraph 3

- 5 This paragraph actually establishes the Presidency, which is composed of the President and the two Vice-Presidents. The original Draft of the ILC provided for two alternate Vice-Presidents. But several delegations saw no usefulness in those positions and the idea was finally dropped.

The Presidency has duties to fulfil, which the Statute has classified under two headings:

1. 'The proper administration of the Court, with the exception of the Office of the Prosecutor'

- 6 Given the specificity of the latter exception, the Presidency is granted a wide ambit of authority capable of including almost all activities pertaining to the daily functioning of the Court. Yet it was suggested at the Preparatory Committee that the paragraph should also spell out 'supervision and direction of the Registrar and the staff of the Registry, and security arrangements for the defendants, witnesses and the Court'¹¹. The first part of this suggestion was expressly supported by the USA¹². Ultimately, the Registrar, the 'principal administrative officer of the Court' who is 'responsible for the non-judicial aspects of the administration and servicing of the Court', was placed, pursuant to article 43 para. 2, under the authority of the President, rather than that of the Presidency.

2. 'Other functions conferred upon the Presidency by the Statute'

- 7 A host of such other functions may be found in the Statute and subsequent legal texts of the Court and shall be commented upon in the relevant chapters of this work. Due to their regular overlap with article 38 para. 3(a), their relationship shall be articulated under the special remarks heading.

IV. Paragraph 4

- 8 The original paragraph 4 proposed by the ILC foresaw the exercise by the Presidency of 'pre-trial and other procedural functions'¹³. At the Preparatory Committee, 'doubts were expressed as to the appropriateness of the Presidency exercising (such) functions', with Switzerland successfully moving that paragraph 4 be simply deleted¹⁴.
- 9 The current paragraph 4 rather deals with the relationship between the Presidency and the Prosecutor. By virtue of paragraph 3(a), the responsibility of the Presidency for the proper administration of the Court extends to all parts of the Court with the exception of the Office of the Prosecutor, who, pursuant to article 42 para. 2, has full authority over the management and administration of the Office of the Prosecutor. Article 38 paragraph 4 intends therefore to facilitate the smooth functioning of the Court as a whole by providing that the Presidency shall coordinate with and obtain the Prosecutor's concurrence 'on matters of mutual concern', that is on the proper administration of Court under paragraph 3(a)¹⁵.

¹¹ 1996 Preparatory Committee I, p. 12.

¹² 1996 Preparatory Committee II, p. 18.

¹³ 1994 ILC Draft Statute, article 8.

¹⁴ 1996 Preparatory Committee II, p. 19.

¹⁵ In the First Edition of this Commentary, Jules Deschênes, expressed the view that: 'It is indeed highly desirable, from the point of view of justice in general, that the Prosecutor and the judges hold views which are shared so that the Court may proceed efficiently and without acrimony. ...This does not mean that the Chambers should always uphold, when it comes to law, the views of the Prosecutor: far from it. The experience of the Tribunals for the former Yugoslavia and for Rwanda are living witnesses of the reality of the independence of the judicial organ of those International Tribunals from their common prosecutor....But we

B. Special remarks

The inclusion of the Presidency as one of the organs of the Court, in accordance with article 34, represents a departure from the precedents of the ad hoc and hybrid supranational criminal jurisdictions, the Statutes of which provide for three organs, namely the Chambers, the Prosecutor and the Registry¹⁶. While the Rules of those tribunals do contain a section entitled 'The Presidency'¹⁷, they do not establish a 'Presidency' as a body, but merely contain the provisions relating to the election and functions of the President and the Vice-President of those tribunals¹⁸, although they confer significant functions on the President, some of which resemble those of the Court's Presidency¹⁹.

The administrative scheme of the Court is governed by the Rome Statute system. The Registrar, who is the principal administrative officer of the Court, acts under the authority of the President who, in turn, is a member of the Presidency, the organ of the Court responsible for the proper administration of the Court, with the exception of the Office of the Prosecutor, with which the Presidency shall coordinate and seek the concurrence on matters of mutual concern. To this most challenging management model, one should add the ASP's management oversight over the Presidency, the Prosecutor and the Registrar in respect of the administration of the Court in accordance with article 112 para. 2(b). As far as the internal functioning of the Court is concerned however, the 'Report of the Court on measures to increase clarity on the responsibilities of the different organs' has identified the managerial challenges and devised a number of solutions²⁰. As far as the Presidency is concerned, its functions are scattered across the Statute, the Rules, the Regulations of the Court and the Regulations of the Registry. The core of the functions of the Presidency that are expressly referred to in the Statute is concentrated in Part IV on the composition and administration of the Court and Part X on the enforcement. A more limited number of the functions of the Presidency may be found in other parts of the Statute. However, because of the general nature of the Statute, the implied functions of the Presidency have subsequently been made express, essentially in the Rules, the Regulations of the Court, the Regulations of the Registry and also other documents. The decade long functioning of the Court has not only shed light on many of those functions but also, and most importantly, has blurred the dichotomy of the division in article 38 para. 3(a) and (b). In practice, the Presidency has performed three functions, often overlapping: external relations and cooperation; judicial; and administration²¹.

are dealing here with *administrative* matters: there is no reason in the world why judges and prosecutor, being after all persons of good faith who have willingly decided to devote their career to a joint purpose of public interest, should not be able to steer together the administration of the Court into a common satisfactory canal'.

¹⁶ Statute of the ICTY, article 11; Statute of the ICTR, article 10. See also Statute of the SCSL, article 11.

¹⁷ Rules of the ICTY, Part Three, Section 2; Rules of the ICTY, Part Three, Section 2. See also Rules of the SCSL, Part Three, Section 2.

¹⁸ Rules of the ICTY, rules 18–22; Rules of the ICTY, rules 18–22. See also Rules of the SCSL, rules 18–22.

¹⁹ In particular, rule 19 of the ICTY, ICTR and SCSL Rules provides that the President shall 'coordinate the work of the Chambers and supervise the activities of the Registry as well as exercise all the other functions conferred on the President by the Statute and the Rules'. Furthermore, rule 23 of the ICTY, ICTR and SCSL provide for a 'Bureau' or a 'Council of Judges', composed of the President and Vice-President, as well as the Presiding Judges of each of the Trial Chambers which, generally, require the President to consult the other members of those bodies on the functioning of the institutions. The Rules of these Tribunals also confer certain specific functions on the Bureau, such as the function of deciding upon certain applications for disqualification of judges; see rule 15 of the ICTY, ICTR and ASCL Rules. These rules also confer to the Bureau the function of making recommendations for the appointment of the Deputy Registrar or other Registry staff Rules of the ICTY, rule 31. See also, e.g., Rules of the ICTY, Rules 28 *lit. A*, 74 *bis*; Rules of the ICTR, rules 22 *lit. A*, 46 *lit. D* and 74 *bis*.

²⁰ Report of the Court on measures to increase clarity on the responsibilities of the different organs, ICC ASP/9/CBF.1/12, 18 March 2010.

²¹ For a comprehensive discussion, see Abtahi Hirad, Article 38, in: Julian Fernandez and Xavier Pacreau (eds), *Commentaire article par article du Statut de la Cour Pénale Internationale*, i (Pedone 2012) 983.

I. External relations and cooperation

- 12 The Court operates in the form of an intergovernmental organisation. As such, the proper accomplishment of the Court's judicial mandate depends on external relations, and cooperation with external entities, which – for the purposes of the present commentary – may be divided into general cooperation and enforcement cooperation. In addition to the Statute, documents such as the Rules and the Regulations of the Court have clarified those many instances where the President and/or the Presidency intervene.

1. General cooperation

- 13 The President and the Presidency play an active role in developing and maintaining cooperative relationships between the Court and various external entities. This makes the President the public face of the Court. Article 2 assigns an express role to the President for the conclusion of the relationship agreement with the United Nations. The President, personally or upon delegation, also concludes Court-wide agreements and arrangements with other external entities, such as States, intergovernmental organisations or other applicable entities – without prejudice to the power of the Prosecutor to conclude organ specific agreements²². It is also the President who, in case of a finding of non-cooperation by a State Party under article 87 para. 7, refers the matter to the ASP or UNSC, as applicable²³. On the other hand, it is the Presidency that, in consultation with the relevant Chamber, decides to change the place of the proceedings in a particular case and to sit in a State other than the host State²⁴.

2. Enforcement cooperation

- 14 Rule 199 of the Rules specifies that enforcement related functions are to be carried by the Presidency. This in practice encompasses the full cycle of enforcement of the sentences of imprisonment as well as many aspects of the enforcement of fines, forfeiture measures and reparation orders, as described in details under Part X of the Statute, Chapter 12 of the Rules and Chapter 7 of the Regulations of the Court.²⁵
- 15 To carry out the above functions, which espouse essentially features of public international law but also incorporate aspects of diplomatic communication and international relations, the President and the Presidency engage, in speeches, publications, meetings, on both bilateral and multilateral basis, at the seat of Court or anywhere else, with the ASP²⁶, States Parties and States not Parties, inter-governmental organisations; civil society, and academia. Far from being minimal, these activities, which are necessitated by the Court's need for cooperation, require significant attention.

II. Judicial

- 16 In performing its judicial functions, the Presidency acts to a very large extent as an administrative tribunal and, to a lesser extent, as a criminal court. Firmly grounded in administrative and human rights law, these functions address the protection of fundamental human rights as far as suspects, accused and detained witnesses are concerned, as well as the right to a fair trial with regard to the suspect and/or accused and victims' representation²⁷.

²² Regulation 107 of the Regulations of the Court and article 54 para. 3.

²³ Regulation 109 para. 4 of the Regulations of the Court. While this regulation does not touch upon a finding of non-cooperation by the State not Party, it will still be the President who will make the necessary referral.

²⁴ Rule 100 of the Rules.

²⁵ For a comprehensive discussion, see Abtahi, H., and Koh S.A., 'The Emerging Enforcement Practice of the International Criminal Court', (2012) 45 *CornellILJ*.

²⁶ Article 112 para. 5.

²⁷ For a comprehensive discussion, see Abtahi et al., (2013) 12 *LAPE* 281.

1. Administrative tribunal

In performing its functions as an administrative tribunal, the Presidency is the body responsible for the judicial review of certain decisions of the Registrar. The express foundation of this function lies in rule 21 para. 3 of the Rules, according to which the Presidency may review a decision of the Registrar to refuse a request for assignment of counsel. The Regulations of the Court and the Regulations of the Registry have expanded this function to a wide range of fields, such as the refusal to grant legal aid²⁸. More comprehensively, the Presidency reviews the decisions of the Registrar on the conditions of detention as detailed in regulation 106 of the Regulations of the Court and section 5 of Regulations of the Registry. These concern matters such as medical care²⁹; postal costs³⁰; telephone calls³¹; monitoring of telephone calls³²; telephone cost³³; visits³⁴; monitoring of visits³⁵; segregation³⁶; use of force³⁷; isolation³⁸; as well as disciplinary offence and disciplinary measures³⁹. The Presidency also reviews the decisions of the Registrar concerning the removal, suspension or refusal to include counsel on the list of counsel or to confirm the retention of counsel in the absence of legal aid⁴⁰. The Presidency further reviews the decisions of the Registrar refusing to include in or to remove from the list of professional investigators⁴¹; and the refusal to include applicants in the list of experts⁴². Furthermore, the Presidency may also review complaints by counsel on election procedures for representing counsel in the Advisory Committee on Legal Texts⁴³; and in the Disciplinary Board and Disciplinary Appeals Board, under the Code of Professional Conduct for Counsel⁴⁴.

2. Criminal court

As for its criminal jurisdiction function, the Presidency may extend the sentence of imprisonment of a convicted person who has continuously and wilfully refused to pay the fine imposed on him/her⁴⁵.

III. Administration

The third function of the Presidency mirrors to a large extent the title of Part IV of the Statute: composition and administration of the Court, which may be divided into the oversight of judicial proceeding and management, oversight and coordination.

1. Oversight of judicial proceedings

The oversight of judicial proceedings includes facilitating the organisation and work of Chambers, as well as addressing matters relating to ethics and professional conduct.

²⁸ Regulation 85 para. 2 and 3 of the Regulations of the Court.

²⁹ Regulation 157 para. 9, 11, 12 of the Regulations of the Registry.

³⁰ Regulation 172 of the Regulations of the Registry.

³¹ Regulation 173 of the Regulations of the Registry.

³² Regulations 174 and 175 of the Regulations of the Registry.

³³ Regulation 176 of the Regulations of the Registry.

³⁴ Regulation 180 of the Regulations of the Registry.

³⁵ Regulation 184 of the Regulations of the Registry.

³⁶ Regulations 201 para. 10 and 202 para. 5 of the Regulations of the Registry.

³⁷ Regulation 204 of the Regulations of the Registry.

³⁸ Regulations 212 para. 9 and 213 para. 2 of the Regulations of the Registry.

³⁹ Regulation 216 para. 1, 3 of the Regulations of the Registry.

⁴⁰ Regulation 72 of the Regulations of the Court.

⁴¹ Regulations 137 and 138 of the Regulations of the Registry.

⁴² Regulation 44 of the Regulations of the Court and regulation 56 of the Regulations of the Registry.

⁴³ Regulation 3 of the Regulations of the Registry.

⁴⁴ Regulations 147 and 148 of the Regulations of the Registry, respectively.

⁴⁵ Rule 146 para. 5 and 6 of the Rules and regulation 118 of the Regulations of the Court.

- 21 **a) Organisation and work of Chambers.** The Presidency performs a number of key functions designed to facilitate the organisation and work of Chambers. In accordance with article 35, while the members of the Presidency shall serve on a full-time basis as soon as they are elected, the Presidency itself is the sole body to decide when to call other judges to serve on a full-time basis. The Presidency may also propose an increase beyond and a reduction not below the eighteen judges, in accordance with article 36 para. 2(a) and 2(c)(ii).
- 22 Pursuant to rule 4bis of the Rules, the Presidency is responsible for the assignment of the judges to the Appeals, Trial and Pre-Trial Divisions under article 39 para. 1⁴⁶. In accordance with article 39 para. 4, the Presidency may temporarily attach the judges in between divisions.
- 23 The Presidency is responsible for constituting Pre-Trial Chambers and assigning the situations to them as soon as it has been informed by the Prosecutor⁴⁷. Upon confirmation of charges and transfer of the records of the case by the Pre-Trial Chamber to the Presidency, the latter assigns the case to a Trial Chamber in accordance with article 61 para. 11⁴⁸. In accordance with article 74 para. 1, the Presidency may also assign one or more alternate judges to the trial bench⁴⁹.
- 24 Under article 85, the Presidency is also responsible for composing a three judge bench to address requests for compensation in case of unlawful arrest or conviction made following miscarriage of justice⁵⁰.
- 25 Of direct impact on courtroom proceedings, it is noteworthy that the Presidency may authorise the use of an official language of the Court as a working language in the proceedings⁵¹. In terms of facilitating the work of the division, it should also be mentioned that the duty roster of judges and legal officers of the Chambers is established in consultation with the Presidency⁵². Finally, the Presidency approves all standard forms and templates for use before court proceedings⁵³.
- 26 **b) Ethics, professional conduct, privileges and immunities.** The elected officials of the Court, other court proceedings actors, as well as, more generally, the staff of the Court, are all subject to a variety of ethical and professional conduct, privileges and immunities. Appearing all in Part IV of the Statute, they have been expanded and/or elaborated upon in subsequent documents of the Court. These can be grouped into excusal and disqualification; misconduct and privileges and immunities.
- 27 **aa) Excusal and disqualification.** Pursuant to regulation 126 of the Regulations of the Court, the Code of Judicial Ethics of the judges was drawn up by the Presidency and adopted by the judges in plenary⁵⁴. The Statute, Rules and Regulations of the Court provide that questions of judicial ethics, such as judicial independence, impartiality, and integrity are addressed by the Presidency, as the final decision maker or as the organiser of the plenary of judges, depending on the circumstances. These can be broadly divided into two categories: excusal and disqualification as well as disciplinary functions.
- 28 As far as the former is concerned, pursuant to articles 41 para. 2 and 42 para. 6, the Presidency is the competent organ for reviewing the request of a judge or the Prosecutor or a Deputy Prosecutor to be excused from a case before the Court⁵⁵. Where, however, it is the

⁴⁶ Prior to State Parties' proposal and adoption of the amendment of rule 4 into rule 4bis, it was the plenary of the judges that assigned the judges to the Divisions.

⁴⁷ Regulations 45 and 46 of the Regulations of the Court.

⁴⁸ Rules 60, 129 and 130 of the Rules.

⁴⁹ Regulation 16 para. 1 of the Regulations of the Court.

⁵⁰ Rule 173 of the Rules.

⁵¹ Rule 41 para. 2 of the Rules.

⁵² Regulations 17 and 18 of the Regulations of the Court.

⁵³ Regulations 23 para. 2 of the Regulations of the Court and regulation 104 para. 2 of the Regulations of the Registry.

⁵⁴ Code of Judicial Ethics, ICC-BD/02-01-05, 9 March 2005.

⁵⁵ As complemented by rules 33 and 35 of the Rules of Procedure and Evidence.

Prosecutor or a person being investigated or prosecuted who are seeking the disqualification of a judge, the matter is to be decided by the plenary of the judge, which is then convened by the President who, beyond chairing the plenary, is also responsible, together with the Vice-Presidents, for drafting the decision of the plenary⁵⁶.

bb) Misconduct. With regard to disciplinary functions, all complaints against a judge, the Prosecutor, the Deputy-Prosecutor, the Registrar and the Deputy-Registrar for serious misconduct under article 46 para. 1 or misconduct of a less serious nature under article 47 shall, in accordance to rule 26 of the Rules, be transmitted to the Presidency, which may also initiate proceedings *proprio motu*. The Presidency is assisted by a panel of judges that it sets up in accordance with Chapter 8 of the Regulations of the Court. If the Presidency finds the complaint against the Prosecutor or Deputy-Prosecutor not anonymous nor manifestly unfounded, it transmits the matter to the Bureau of the ASP in the case of the Prosecutor and to the latter in case of a Deputy-Prosecutor⁵⁷. Where the Presidency decides that a complaint against a judge, the Registrar, or the Deputy-Registrar is not anonymous nor manifestly unfounded, the President convenes the plenary of the judges and⁵⁸, together with the Vice-Presidents, prepares the draft of the final decision. In the case of disciplinary measures against a judge, the Registrar, or the Deputy-Registrar, it is the Presidency that decides on the form of those measures, which may include a reprimand or pecuniary sanctions⁵⁹.

Where the need arises to replace a judge, it is the Presidency that, pursuant to the Rules and Regulations of the Court, is the competent body⁶⁰.

The Presidency shall appoint the Commissioner for investigating complaints of misconduct under the Code of Professional Conduct for Counsel⁶¹. The Presidency shall also sit on the Disciplinary Appeals Board⁶², unless it was under their mandate that the Commissioner was appointed or that they are dealing with the case from which the complaint has arisen⁶³. Finally, where sanctions for misconduct before the Court have been imposed under article 71, the Presiding judge may refer the question of the extension of the period of interdiction to the Presidency which may hold a hearing to order an extension of the interdiction or make it permanent⁶⁴.

cc) Privileges and immunities. Pursuant to article 48 para. 5(b), the Presidency is the competent body to waive the privileges and immunities of the Registrar. The APIC and Headquarters Agreement between the International Criminal Court and the Host State provide that, in addition, the Presidency may also waive the privileges and immunities of counsel and persons assisting defence counsel, witnesses and victims as well as other persons required to be present at the seat of the Court⁶⁵.

2. Management, oversight and coordination

Management, oversight and coordination applies to both the Registrar/Registry, by virtue of the relationship between articles 38 para. 3 and 43 para. 2, as well as to the Court as whole, essentially through the relationship between articles 38 para. 3 and 4, 40, 42, 43 and 112 para. 2(b).

⁵⁶ For a comprehensive discussion, see Abtahi et al. (2013) *JICJ* 379–398,11(2).

⁵⁷ Rule 26 of the Rules and regulations 121 para. 2 of the Regulations of the Court.

⁵⁸ Rule 26 of the Rules and regulation 121 para. 1 of the Regulations of the Court.

⁵⁹ Rules 30 and 32 of the Rules and regulation 122 of the Regulations of the Court.

⁶⁰ Rule 38 of the Rules and regulations 12 and 15 of the Regulations of the Court.

⁶¹ Article 33 of the Code of Professional Conduct for Counsel, ICC-ASP/4/Res.1, 2 December 2005 and regulation 149 of the Regulations of the Registry.

⁶² Article 44 para. 4(a) of the Code of Professional Conduct for Counsel, ICC-ASP/4/Res.1, 2 December 2005.

⁶³ Article 44 para. 4(a)(i) and (ii) of the Code of Professional Conduct for Counsel, ICC-ASP/4/Res.1, 2 December 2005.

⁶⁴ Rule 171 of the Rules.

⁶⁵ Article 26 para. 2 of APIC and article 30 para. 2(b) of the Headquarters Agreement between the International Criminal Court and the Host State, ICC-BD/04-01-08, 1 March 2008.

- 34 a) **Registry specific.** article 43 para. 4 mandates the judges to elect the Registrar and, where applicable, the Deputy-Registrar. Rule 12 para. 1 mandates the Presidency to establish a list of candidate who satisfy the conditions provided in article 43 para. 3 and to transmit that list to the ASP for any recommendations⁶⁶. Upon receipt of the recommendation, the President shall convene the plenary of the judge to proceed with the election⁶⁷. If the need for a Deputy-Registrar arises, the Registrar shall make a recommendation to the President who shall put the question to the plenary of the judges for decision⁶⁸, which, in the affirmative, would proceed with the election⁶⁹.
- 35 Furthermore, as the person principally responsible for the management of the Court's Detention Centre, the Registrar entertains a close reporting line with the President and Presidency on detention related matters. This includes informing the Presidency of any breach of the procedure for incoming and outgoing mail⁷⁰; active monitoring of telephone calls or of visits and any breach of the rules of safety and security by the detained person⁷¹; cell monitoring⁷²; any incident arising from the use of instruments of restraint⁷³; use of force⁷⁴; temporary segregation⁷⁵; and use of isolation cell⁷⁶. Furthermore, the Presidency may appoint a judge to inspect the Detention Centre and, on a regular basis, an independent inspecting authority for the Detention Centre shall report to the Presidency⁷⁷. In case of serious disturbance or other emergency at the Detention Centre, the Presidency may temporarily suspend the relevant parts of the Regulations of the Court or the Regulations of the Registry⁷⁸. Finally, the Presidency may order an inquiry in the event of death, serious illness or injury of a detained person⁷⁹.
- 36 There are many other areas of oversight of the President/Presidency over the Registrar/Registrar, but as they fall under the Court wide coordination cluster, they shall be covered therein.
- 37 b) **Court wide**⁸⁰. To discuss and coordinate the administrative activities of the organs of the Court in the relevant areas, the Coordination Council has been established, comprised of the President, on behalf of the Presidency, the Prosecutor and the Registrar⁸¹. In practice, the Coordination Council addresses Court-wide matters of strategic significance, ranging from the Strategic Plan of the Court through to human resources, budget and finance, as well as public information, outreach, documentation or any unforeseen new developments. To this end, and in the exercise of the President's and Prosecutor's 'respective oversight responsibilities and ensuring appropriate internal and external control', the Audit Committee has been established through a Presidential Directive⁸². Composed of the President, Prosecutor and Registrar, as well as four external members, the Audit Committee provides strategic advice, to the organs' heads, on organizational matters listed in the Presidential Directives, including 'the financial reporting process; the system of internal control; the risk manage-

⁶⁶ Rule 12 para. 1 of the Rules.

⁶⁷ Rule 12 para. 2 and 3 of the Rules.

⁶⁸ Rule 12 para. 4 of the Rules.

⁶⁹ Rule 12 para. 5 of the Rules.

⁷⁰ Regulation 169 para. 7 of the Regulations of the Registry.

⁷¹ Regulations 175 para. 2 and 9 and 184 para. 2 and 9 of the Regulations of the Registry.

⁷² Regulation 196 para. 1 of the Regulations of the Registry.

⁷³ Regulation 203 para. 3 of the Regulations of the Registry.

⁷⁴ Regulation 204 para. 5 of the Regulations of the Registry.

⁷⁵ Regulation 209 para. 3 of the Regulations of the Registry.

⁷⁶ Regulation 213 para. 1 of the Regulations of the Registry.

⁷⁷ Regulation 94 of the Regulations of the Court and Agreement between the International Criminal Court and the International Committee of the Red Cross on Visits to Persons deprived of Liberty Pursuant to the Jurisdiction of the International Criminal Court, ICC-PRES/02-01-06, 29 April 2006.

⁷⁸ Regulation 96 of the Regulations of the Court.

⁷⁹ Regulation 103 para. 7 of the Regulations of the Court.

⁸⁰ For a comprehensive discussion, see Ambach and Rackwitz (2014) 76 *L&ContempProbs* 119.

⁸¹ Regulation 3 of the Regulations of the Court.

⁸² ICC/PRES/D/G/2009/1, 11 August 2009.

ment system; the internal and external audit processes; and the Court's process for monitoring compliance with regulations and rules approved by the Assembly of States Parties⁸³. In order to facilitate its internal administration, the Court has thus drawn up, in addition to its staff rules⁸⁴, a vast body of administrative issuances, including presidential directives and administrative instructions. The former are designed to facilitate the implementation of the ASP's regulations, resolutions and decisions, such as the promulgation of guidelines for Financial Regulations and Rules; Staff Regulations and rules; regulations and rules governing programme planning, monitoring the implementation and methods of evaluation⁸⁵. Presidential directive are promulgated by the President on behalf of the Presidency, after having coordinated with and sought the concurrence of the Prosecutor⁸⁶. The administrative instructions prescribe procedures for the implementation of presidential directives and regulate the administration of practical and organizational matters of general concerns. They are promulgated by the Registrar following the consent of the President and the Prosecutor⁸⁷. The President shall be the final authority for the interpretation of administrative issuances⁸⁸.

One specific area requiring the Presidency's inter-organ involvement is public information. 38 The Presidency decides, in consultation with the Prosecutor and/or the Registrar, which documents in addition to those listed in the Regulations of the Court should be published in the Official Journal of the Court⁸⁹. The Presidency is also one of the three persons, alongside the Prosecutor and the Registrar, who may decide on the publication on the website of the Court, of material additional to those enumerated in the Regulations of the Court⁹⁰. Together with the Chamber, the Presidency is the body to be consulted by the Registrar for the establishment of the calendar of proceedings⁹¹. Finally, pursuant to article 50 para. 1, in addition to the judgments of the Court, the Presidency shall determine which decisions resolve fundamental issues and, as such, should be published in the official languages of the Court⁹².

Finally, the Presidency is the pivot of the Court's judicial-generated normative activities. 39 Pursuant to the Roadmap to Expedite the Criminal Process that was endorsed by the ASP in 2012, the Working Group on Lessons Learnt of the judges, as chaired by a member of the Presidency, identifies amendment clusters within the Rules which may enhance the efficiency of court proceedings⁹³. The Working Group on Lessons Learnt submits its amendment proposals to the Advisory Committee on Legal Texts, which is the sole Court-wide body with the mandate to consider and report on proposals for amendments to the Rules, Elements of Crimes and the Regulations of the Court. This process ensures that all stakeholders to the criminal proceedings, that is judges, the Prosecutor, defence, victims and the Registry have, under the oversight of the Presidency, the opportunity to consider with great care amendment proposals before they are submitted to the ASP, in accordance to article 51 para. 2⁹⁴, by the Presidency. Where emergency dictates the adoption of amendments to the Rules under article 51 para. 3, or to the Elements of Crimes or to the Regulations of the Court, the Presidency may *proprio motu* or at the request of a judge or the Prosecutor, submit proposals

⁸³ ICC/PRESG/G/2009/1, 11 August 2009.

⁸⁴ Article 44 para. 3.

⁸⁵ ICC/PRESG/G/2003/001, 9 December 2003.

⁸⁶ ICC/PRESG/G/2003/001, 9 December 2003.

⁸⁷ ICC/PRESG/G/2003/001, 9 December 2003.

⁸⁸ ICC/PRESG/G/2003/001, 9 December 2003.

⁸⁹ Regulation 7 para. 1(n) of the Regulations of the Court.

⁹⁰ Regulation 8 para. (d) of the Regulations of the Court.

⁹¹ Regulation 36 para. 1 of the Regulations of the Regulations of the Registry.

⁹² Rule 40 of the Rules.

⁹³ ICC-ASP/11/Res.8. The Roadmap was annexed to the Report of the Bureau on the Study Group on Governance, ICC/ASP/11/31. The 'Revised Roadmap' was endorsed by the ASP on 27 November 2013, ICC-ASP/12/Res.8.

⁹⁴ Regulation 4 of the Regulations of the Court.

directly to the plenary of the judges, thus bypassing the ACLT⁹⁵. Furthermore, it is the Presidency that approves the Regulations of the Registry and any amendment thereto, as prepared by the Registrar following his consultations with the Prosecutor on matters affecting the operations of her office⁹⁶. Finally, it should be recalled that on the basis of a proposal made by the Registrar following consultations with the Prosecutor and independent representative body of counsel and legal associations, the Presidency drew up a Code of Professional Conduct for Counsel⁹⁷, which was adopted by the ASP⁹⁸.

⁹⁵ Regulations 5 and 6 of the Regulations of the Court.

⁹⁶ Rule 14 of the Rules and regulation 4 of the Regulations of the Registry.

⁹⁷ Rules 8 and 20 para. 3 of the Rules.

⁹⁸ Code of Professional Conduct for Counsel, ICC-ASP/4/Res.1, 2 December 2005.

Article 39 Chambers*

1. As soon as possible after the election of the judges, the Court shall organize itself into the divisions specified in article 34, paragraph (b). The Appeals Division shall be composed of the President and four other judges, the Trial Division of not less than six judges and the Pre-Trial Division of not less than six judges. The assignment of judges to divisions shall be based on the nature of the functions to be performed by each division and the qualifications and experience of the judges elected to the Court, in such a way that each division shall contain an appropriate combination of expertise in criminal law and procedure and in international law. The Trial and Pre-Trial Divisions shall be composed predominantly of judges with criminal trial experience.
2. (a) The judicial functions of the Court shall be carried out in each division by Chambers;
 - (b) (i) The Appeals Chamber shall be composed of all the judges of the Appeals Division;
 - (ii) The functions of the Trial Chamber shall be carried out by three judges of the Trial Division;
 - (iii) The functions of the Pre-Trial Chamber shall be carried out either by three judges of the Pre-Trial Division or by a single judge of that division in accordance with this Statute and the Rules of Procedure and Evidence;
 - (c) Nothing in this paragraph shall preclude the simultaneous constitution of more than one Trial Chamber or Pre-Trial Chamber when the efficient management of the Court's workload so requires.
3. (a) Judges assigned to the Trial and Pre-Trial Divisions shall serve in those divisions for a period of three years, and thereafter until the completion of any case the hearing of which has already commenced in the division concerned;
 - (b) Judges assigned to the Appeals Division shall serve in that division for their entire term of office.
4. Judges assigned to the Appeals Division shall serve only in that division. Nothing in this article shall, however, preclude the temporary attachment of judges from the Trial Division to the Pre-Trial Division or vice versa, if the Presidency considers that the efficient management of the Court's workload so requires, provided that under no circumstances shall a judge who has participated in the pre-trial phase of a case be eligible to sit on the Trial Chamber hearing that case.

Literature: Abtahi, H., *Article 38*, in: J. Fernandez Et X. Pacreau (eds.) *Commentaire article par article du Statut de la Cour pénale internationale*, 983–998, Vol. I (2013); *id.*, Ogwuma, O. And Young, R., 'The Composition of Judicial Benches, Disqualification and Excusal of Judges at the International Criminal Court', (2013) 11 *JICJ* 379–398.

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* The authors are indebted to the work of Jules Deschênes and Christopher Staker in the first and second editions of this commentary.

I. Paragraph 1

- 1 Article 36 para. 1 provides that there shall be 18 judges. The judges of the Court are organized into three divisions, as foreseen by article 34 para. b:

- The Appeals Division, to be comprised of five judges including the President,
- the Trial Division, to be comprised of a minimum of six judges; and
- the Pre-Trial Division, to be comprised of a minimum of six judges.

Given that the Appeals Division must always consist of five judges, the 18th judge must be assigned to either the Trial or Pre-Trial Division.

One should remember that judges elected to the Court have established competence in either criminal law and procedure (List A) or international humanitarian law and human rights (List B); with, in both cases, experience in the practice of law.¹ The Presidency has confirmed that the language of this paragraph, echoing as it does that of article 36, indicates that it is the List A and List B competencies which are relevant for the purposes of the assignment of judges to divisions.² The assignment of judges to the various divisions must take into consideration the nature of the work of each division as well as the competence of each judge, in order to strike a proper balance between criminal law and procedure and international law.

- 2 Article 39 itself does not specifically state who is to conduct the assignment of judges to divisions. At various stages of the drafting process, a number of different opinions were expressed in that regard:
- assignment by the Presidency: ILC Draft of 1994³,
 - election by the Court: Preparatory Committee;⁴ and
 - choice by lot: France.⁵

This issue is resolved in the Rules of Procedure and Evidence. Rule 4*bis* provides that ‘... the Presidency shall, after consultation with the judges, decide on the assignment of judges to divisions in accordance with article 39, paragraph 1’. Introduced in December 2011 at the 10th session of the Assembly of States Parties, rule 4*bis* was a modification to the original rule 4, paragraph 1 of which had empowered the judges acting in plenary to assign judges to divisions.⁶ In introducing this amendment, the Assembly of States Parties had before it a report of the Study Group on Governance which considered this amendment to be ‘a possible way to strengthen the Presidency’s authority to oversee the administration of judges and minimize, to the extent possible, situations resulting in the extension of judicial mandates and/or the excusal of judges. ... the Study Group considered that the current mechanism to assign judges to divisions could potentially limit the proper administration of the Court, responsibility which [*sic*] lays in the Presidency’.⁷

II. Paragraph 2

- 3 Judicially the three divisions work through chambers.

The Appeals Chamber is composed of the five judges of the Appeals Division, including the President. The Appeals Chamber is the only chamber of the Court which has a fixed composition in the sense that all members of the Appeals Division are automatically

¹ See M. Bohlander, *Article 36* para. 3.

² Decision concerning the Request of Mr. Germain Katanga of 14 November 2008 for re-composition of the bench of Trial Chamber II, Presidency, 21 November 2008, ICC-01/04-01/07-757, p. 7.

³ 1994 ILC Draft Statute, p. 55.

⁴ 1996 Preparatory Committee I, p. 12.

⁵ *Ibid.*, p. 22.

⁶ Resolution ICC-ASP/10/Res.1, 20 December 2011.

⁷ ICC-ASP/10/33, para. 21.

members of the Appeals Chamber, which must always carry out its functions with all five members.⁸ Trial and Pre-Trial Chambers, on the other hand, are composed by the Presidency as the need arises.⁹ There is little guidance provided as to how the Presidency is to compose chambers. The Presidency thus has a broad discretion to determine how to best achieve the sound and efficient administration of the Court, with it likely being guided by 'factors such as the availability of judges, the prospective long-term needs of the Court in relation to the case or situation in question and relative judicial workload'.¹⁰

The language of sub-paragraph c provides for a flexible approach in which multiple chambers are constituted as the need arises. For example, as of the beginning of July 2014 there were six Trial Chambers (Trial Chambers I, II, III, IV, V(a) and V(b)) and two Pre-Trial Chambers. In the early practice of the Court, it was most often the case that each Trial Chamber was assigned one case, although with the increase of the caseload, it may be that a Trial Chamber has more than one case before it for a period of time.¹¹ It should be noted that there may be overlapping composition of the various Trial Chambers with one or more judges sitting in multiple chambers simultaneously. In relation to Pre-Trial Chambers, as of the beginning of July 2014, Pre-Trial Chamber I was assigned the situations in Libya, Côte d'Ivoire and the Registered Vessels, while Pre-Trial Chamber II was assigned the situations in Uganda, the Democratic Republic of the Congo, Darfur (Sudan), the Central African Republic (two situations), Mali and Kenya. The numerical disparity between the number of situations assigned to each Pre-Trial Chamber appears to strongly indicate that assignment of situations to Pre-Trial Chambers occurs on the basis of the assessment of actual and anticipated workload at the relevant time, rather than being solely based on alternating assignments.

A Trial Chamber is composed of three judges. The wording of paragraph 2(b)(ii) indicates that this will ordinarily be three judges of the Trial Division, however, this must be read in conjunction with paragraph 4 which allows also for the temporary attachment of a judge of the Pre-Trial Division to the Trial Division by the Presidency, thus allowing for the possibility that a judge of the Pre-Trial Division may also sit in a Trial Chamber (and vice versa). The emphasis on the envisaged structure of simultaneous chambers referred to in sub-paragraph c indicates that it is expected that a judge of the Trial Division may sit simultaneously in multiple differently composed Trial Chambers hearing different cases, where the efficient management of the Court's work so requires, with this having already occurred regularly at the Court, as well as at the *ad hoc* Tribunals.¹² An amendment to the Rules of Procedure and Evidence introduced by the ASP in November 2012 added rule 132bis which specified that certain functions in relation to the preparation of a case for trial could be performed by one or more members of a Trial Chamber as designated by that Chamber, rather than requiring the participation of all three judges.¹³

⁸ Although this does not prevent a member of the Appeals Chamber from being replaced if necessary, see Regulation 12.

⁹ Rule 130; Regulation 46 para. 1.

¹⁰ Abtahi et al. (2013) 11 *JICJ* 379, 384; See generally Report of the Bureau of the Study Group on Governance, ICC-ASP/10/30, 22 November 2011.

¹¹ For example, multiple cases were initially assigned to a single Trial Chamber, Trial Chamber V, before it was later split to form two separate Trial Chambers: V(a) and V(b): Decision referring the case of *The Prosecutor v. Francis Kirimi Muthaura and Uhuru Muigai Kenyatta* to Trial Chamber V, Presidency, 29 March 2012, ICC-01/09-02/11-414; Decision constituting Trial Chamber V and referring to it the case of *The Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, Presidency, 29 March 2012, ICC-01/09-01/11-406; Decision constituting Trial Chamber V(a) and Trial Chamber V(b) and referring to them the cases of *The Prosecutor v. William Samoei Ruto and Joshua Arap Sang* and *The Prosecutor v. Uhuru Muigai Kenyatta*, Presidency, 21 May 2013, ICC-01/09-01/11-745.

¹² See, e.g., *Prosecutor v. Kanyabashi*, Case No. ICTR-96-15-A, Decision on the Defence Motion for Interlocutory Appeal on the Jurisdiction of Trial Chamber I, Joint and Separate Opinion of Judge McDonald and Judge Vohrah, Appeals Chamber, 3 June 1999; *Prosecutor v. Nsengiyumva*, Case No. ICTR-96-12-A, Decision on Appeal Against Oral Decision of Trial Chamber II of 28 Sep. 1998, Joint and Separate Opinion of Judge McDonald and Judge Vorah, Appeals Chamber, 3 June 1999.

¹³ ASP Resolution ICC-ASP/11/Res.2, 21 November 2012.

- 6 A Pre-Trial Chamber is comprised of three judges, usually from the Pre-Trial Division, although there are certain functions of a Pre-Trial Chamber which can be performed by only one member of a Pre-Trial Chamber, acting as a single judge. The designation of a single judge is done by the Pre-Trial Chamber itself,¹⁴ based on criteria including seniority of age, criminal trial experience, the circumstances of proceedings before the chamber, as well as workload and proper case management.¹⁵ Rule 7 para. 2 specifies that a single judge may take decisions on questions where the Statute and Rules do not otherwise specify that the full chamber must decide.¹⁶ The Pre-Trial Chamber may at any time may decide that the functions of the single judge should be exercised by the full chamber (rule 7 para. 3), and may designate more than one single judge when the efficient management of the workload of the chamber so requires (regulation 47 para. 2), although it is normally expected that a single judge shall be designated for the duration of a case.
- 7 In practice, the composition of chambers follows a fixed procedure. Regulation 45 requires that the Prosecutor inform the Presidency in writing when a new situation is referred to the Court. In accordance with regulation 46 para. 2, the Presidency immediately assigns the situation to a Pre-Trial Chamber after having received the Prosecutor's notification.¹⁷ This could be either a pre-existing Pre-Trial Chamber or a newly composed one. Any cases which subsequently arise in this situation are thus considered by the Pre-Trial Chamber in question. In respect of the formation of Trial Chambers, it has been usual practice that, upon delivery of a decision confirming charges pursuant to article 61, the relevant Pre-Trial Chamber has remained seized of the case until the decision on the confirmation of charges becomes final. Once either a decision on leave to appeal has been denied or an actual appeal against the confirmation of charges decision has been rendered, the Pre-Trial Chamber then transmits the case file to the Presidency, in accordance with rule 129. Upon receipt of such notification, the Presidency then either constitutes a Trial Chamber and refers the case to it, transmitting the record of proceedings to such Chamber,¹⁸ or assigns the case to a pre-existing Trial Chamber.
- 8 The Court has had the opportunity to consider in detail the principles governing the constitution of chambers in response to a request before the Presidency for the reconstitution of Trial Chamber II.¹⁹ The applicant requested that the Presidency reconsider that Chamber's composition by replacing one Judge on the grounds, inter alia, that the Judge lacked qualifications and experience in the area of criminal practice and international criminal law and that the Chamber lacked a judge from the common law tradition.²⁰ The Presidency commenced with the observation that the Court's legal texts do not provide criteria for the constitution of chambers.²¹ According to article 36 para. 8, the Assembly of States Parties must consider the representation of the principal legal systems of the world when electing judges. However, although such factors might be part of the 'qualifications and experience' of the judges relevant to the assignment of judges to divisions in paragraph 1, paragraph 2 does not impose any further requirements regarding the composition of individual chambers. Thus, the common law system does not have to be represented in each chamber.²² The Presidency further specified that in the context of composing chambers it endeavours to

¹⁴ Rule 7 para. 1.

¹⁵ Regulation 47 para. 1.

¹⁶ See e.g. Article 57 para. 2 (a) of the Statute which sets out certain matters which must be dealt with by the full Pre-Trial Chamber.

¹⁷ See e.g. Decision Assigning the Situation in the Central African Republic to Pre-Trial Chamber III, Presidency, 19 January 2005, ICC-01/05-1.

¹⁸ See e.g. Decision constituting Trial Chamber III and referring to it the case of *The Prosecutor v. Jean-Pierre Bemba Gombo*, Presidency, 18 September 2009, ICC-01/05-01/08-534.

¹⁹ Decision concerning the Request of Mr. Germain Katanga of 14 November 2008 for re-composition of the bench of Trial Chamber II, Presidency, 21 November 2008, ICC-01/04-01/07-757.

²⁰ *Ibid.*, p. 3.

²¹ *Ibid.*, p. 4.

²² *Ibid.*, pp. 4–5.

apply the criteria for the election of judges set out in article 36 para. 8 to the extent possible, although it is not required to do so. Yet, in these circumstances, an insufficient availability of judges from the common law tradition made it impossible to have a judge from such background in every Trial Chamber.²³

In respect of the questioning of the Judge's qualifications and experience, the Presidency noted, once again, that the assessment thereof was a matter for the Assembly of States Parties, acting pursuant to article 36.²⁴ The Presidency further noted that the requirements in article 39 para. 1 concerning an appropriate combination of expertise related to the assignment of judges to divisions and not to the composition of individual chambers.²⁵ Nonetheless, despite the lack of any obligation to do so, the Presidency indicated that it sought 'to ensure, where possible, an appropriate combination of expertise in criminal law and procedure and in international law within Chambers'.²⁶ The Presidency noted that the Trial Chamber in question had more judges from list A (i.e. 'established competence in criminal law and procedure') than List B.²⁷ Accordingly, the request for the re-composition was dismissed. This decision demonstrates that although paragraph 2 does not establish criteria for the composition of chambers and the Presidency maintains discretion in this regard, it seeks, wherever possible, to consider the criteria for the assignment of judges to divisions set out in paragraph 1, as well as those governing the elections of judges in article 36.

Although not expressly stated, the power to compose chambers necessarily also entails a power to re-compose them as the need arises.²⁸ Regulation 15 specifies that when the Presidency is replacing a judge in a Trial or Pre-Trial Chamber it shall take into account 'to the extent possible, gender and equitable geographical representation'. The Presidency has also dissolved Pre-Trial Chambers as necessary to ensure the efficient management of the Court's workload.²⁹

Finally, Regulation 14 specifies that each division shall elect a President who shall oversee the administration of that division. Each President is elected for a period of one year. Further, regulation 13 para. 2 provides that each Trial and Pre-Trial Chamber elects a Presiding Judge who performs the tasks specified for such role pursuant to the Court's legal texts.³⁰ Pursuant to regulation 13 para. 1, the Appeals Chamber also elects a Presiding Judge for each appeal coming before it.

III. Paragraph 3

Judges are assigned to the Pre-Trial and Trial Divisions for a term of three years. This term may be extended, should the hearing of a case still be ongoing when the formal end of the term is reached. The reference to 'hearing' has been interpreted as referring to the actual presentation of evidence in session (rather than the preparation of a case). For example, on several occasions a Trial Chamber of a certain composition has commenced the preparation of a case for trial, with the composition then being changed prior to the commencement of the actual hearing of the case.³¹ In reality, the availability of the mechanism of temporary attachment in paragraph 4 makes it difficult to understand the necessity of sub-paragraph (a) because, for example, even if a judge initially assigned to the Trial Division were reassigned to

²³ *Ibid.*, p. 5.

²⁴ *Ibid.*, p. 6.

²⁵ *Ibid.*, p. 7.

²⁶ *Ibid.*

²⁷ *Ibid.*

²⁸ See e.g. Decision replacing judges in Trial Chamber III, Presidency, 20 July 2010, ICC-01/05-01/08-837.

²⁹ See e.g. Decision on the constitution of Pre-Trial Chambers and on the assignment of the Central African Republic situation, Presidency, 19 March 2009, ICC-01/04-560.

³⁰ Article 64 para. 8(b); Rules 122, 133, 141, 143, 170, 171.

³¹ Decision replacing a judge in Trial Chamber IV, Presidency 16 March 2012, ICC-02/05-03/09-308; Decision replacing judges in Trial Chamber III, Presidency, 20 July 2010, ICC-01/05-01/08-837.

the Pre-Trial Division after three years but still had an ongoing hearing in the Trial Division, there is no reason that the judge could not complete such hearing as a Pre-Trial Division judge temporarily attached to the Trial Division. Nonetheless, the reason for this specification is likely the need for absolute clarity in specifying that accused persons are entitled to have a case heard by the same chamber once it has reached the hearing stage, a point similarly emphasized by the provision for the extension of a judicial mandate in article 36 para. 10.

- 12 In the Appeals Division, judges ‘shall serve in that division for their entire term of office’. The judges of the Court have interpreted this to mean that once a judge is assigned to the Appeals Division, that judge is to remain in such division until the end of her or his mandate.³² Thus, a number of judges who have initially been assigned to the Pre-Trial or Trial Division have later been assigned to the Appeals Division to serve the remainder of their mandate.³³

IV. Paragraph 4

- 13 The first sentence of paragraph 4 indicates that a judge assigned to the Appeals Division shall serve only in that division. This stands in contrast to judges assigned to the Trial or Pre-Trial Division who may be temporarily attached to other divisions as the efficient management of the Court’s workload demands. In practice, such temporary attachments have been common place. For example, following the resignation of Judge Jorda, Judge Ušacka, a member of the Trial Division, was temporarily attached to the Pre-Trial Division in order to replace Judge Jorda in a Pre-Trial Chamber.³⁴ A number of judges assigned to the Pre-Trial Division have also sat in Trial Chambers,³⁵ clearly in response to the inability, in view of the Court’s growing caseload, of the maximum of seven judges assigned to the Trial Division to hear all active cases. This mechanism of temporary attachment makes it possible that a judge may simultaneously sit in both a Pre-Trial and Trial Chamber.³⁶

Although this paragraph prohibits absolutely any member of the Appeals Division from sitting in the Trial Division or Pre-Trial Division, it does not expressly prohibit judges of the Trial Division or Pre-Trial Division from sitting in the Appeals Division. Regulation 12 of the Regulations of the Court enables the Presidency to authorize the latter to occur where a member of the Appeals Division is prevented from sitting in a case for a substantial reason. This has been used regularly in order to replace judges who have been excused from particular appeals.

Finally, paragraph 4 makes clear that no judge who has participated in the pre-trial phase of the case may be a member of the Trial Chamber hearing the case, a scenario which would otherwise be possible due to both the practice of the temporary attachment of judges and the possibility of a judge moving between the Trial and Pre-Trial Divisions during their mandate.

³² For further discussion of this aspect see Schabas, ‘Article 39’, *The International Criminal Court: A Commentary on the Rome Statute* (OUP, 2010) 555–556.

³³ See e.g. ICC Press Release: ICC-CPI-20120315-PR778, 14 March 2012; ICC Press Release: ICC-CPI-20091911-PR399, 19 March 2009. This has implications in terms of the excusal of judges, see Abtahi and Young, *article 41*.

³⁴ See discussion in Abtahi, ‘Article 39’, in: Fernandez and Pacreau (eds), *Statut de Rome de la Cour Pénale Internationale Commentaire article Par article*, i (Pedone, 2012) 1001.

³⁵ For example, Judges Van den Wyngaert, Fernández de Gurmendi and Herrera Carbuca.

³⁶ See e.g. the example of Judge Hans-Peter Kaul: Decision replacing a judge in Trial Chamber II, Presidency, 29 April 2009, ICC-01/04-01/07-1086.

Article 40

Independence of the judges

1. The judges shall be independent in the performance of their functions.
2. Judges shall not engage in any activity which is likely to interfere with their judicial functions or to affect confidence in their independence.
3. Judges required to serve on a full-time basis at the seat of the Court shall not engage in any other occupation of a professional nature.
4. Any question regarding the application of paragraphs 2 and 3 shall be decided by an absolute majority of the judges. Where any such question concerns an individual judge, that judge shall not take part in the decision.

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I. Introduction/General remarks

This article enshrines the cardinal principle in the administration of justice: that judges must be independent. It ought to go without saying¹. Yet there have arisen so many examples where justice has been subverted to expediency and judges forced or tricked into serving political goals, that the principle bears reasserting.

It is not necessary to go back beyond modern-day international instruments. In 1945 the Statute of the *International Court of Justice*, which ‘forms an integral part of the [...] Charter’ of the United Nations² stated in its article 2:

‘the Court shall be composed of a body of independent judges ...’.

Then in 1948 the *Universal Declaration of Human Rights* proclaimed in its article 10:

‘Everyone is entitled in full equality to a fair and public hearing by an independent and impartial tribunal ...’.

In 1966 the *International Covenant on Civil and Political Rights*, which entered into force in 1976, provided in the relevant part of its article 14 para. 1:

‘... everyone shall be entitled to a fair and public hearing by a competent, independent and impartial tribunal established by law’.

Regional international instruments have taken a similar approach:

- the *African Charter on Human and Peoples’ Rights*, article 26:
- ‘States Parties to the present Charter shall have the duty to guarantee the independence of the Courts ...’.

¹ ‘The fundamental human right of an accused to be tried before an independent and impartial tribunal is generally recognised as being an integral component of the requirement that an accused should have a fair trial’: *Prosecutor v. Furundžija*, Case No. IT-95-17/1-A, Judgement, Appeals Chamber, 21 July 2000, para. 177 (see also the Declaration of Judge Shahabuddeen). See also, e.g., *Prosecutor v. Kanyabashi*, Case No. ICTR-96-15-A, Decision on the Defence Motion for Interlocutory Appeal on the Jurisdiction of Trial Chamber I, Joint and Separate Opinion of Judge McDonald and Judge Vohrah, Appeals Chamber, 3 June 1999, paras. 36–38.

² Article 92 of the Charter.

- The *American Convention on Human Rights*, article 8 para. 1:
 - 'Every person has the right to a hearing, with due guarantees and within a reasonable time, by a competent, independent and impartial tribunal, previously established by law ...'.
 - The *European Convention on Human Rights*, article 6 para. 1:
 - '... everyone is entitled to a fair and public hearing within a reasonable time by an independent and impartial tribunal established by law ...'.
- 2 On the basis of those unanimous statements of principle, the international community has adopted from time to time several *Declarations* which tend further to strengthen the principles. A few examples will suffice for our purposes.
- In 1985 the UN General Assembly endorsed³ and welcomed⁴ the *Basic Principles on the Independence on the Judiciary*⁵, which include the following principles:
1. 'The independence of the judiciary shall be guaranteed by the State and enshrined in the Constitution or the laws of the country. It is the duty of all governmental and other institutions to respect and observe the independence of the judiciary'.
 2. 'The judiciary shall decide matters before it impartially, on the basis of facts and in accordance with the law, without any restrictions, improper influences, inducements, pressures, threats or interferences, direct or indirect, from any quarter or for any reason'.
 3. 'There shall not be any inappropriate or unwarranted interference with the judicial process ...'.
 4. 'Everyone shall have the right to be tried by ordinary courts or tribunals using established legal procedures ...'.
 5. 'The principle of the independence of the judiciary entitles and requires the judiciary to ensure that judicial proceedings are conducted fairly and that the rights of the parties are respected'.
- 3 Then in 1989 the UN Commission on human rights approved⁶ the *Draft Universal Declaration on the Independence of Justice* which had been referred to it by the Sub-commission on the prevention of discrimination and protection of minorities⁷. This comprehensive text is too long (72 articles) to be quoted here in full; but a few excerpts should be apposite:
1. 'Judges individually shall be free ...'.
 2. 'In the decision-making process, judges shall be independent vis-à-vis their judicial colleagues and superiors ...'.
 3. 'The Judiciary shall be independent of the Executive and Legislature'.
 4. ...
 - (g) 'No power shall be so exercised as to interfere with the judicial process'.
- 4 There is no necessity or usefulness for further quotations. Let us only take note of various other international documents of a similar nature and intent: the Siracusa Principles on the Independence of the Judiciary (1981), the Noto Principles on the Independence of the Legal Profession (1982), the International Bar Association's minimum standards of Judicial Independence (New Delhi, 1982), the Montréal Universal Declaration on the Independence of Justice (1983).
- Side by side with those repeated statements, a considerable body of doctrine has grown over the last half-century⁸.
- 5 Paragraph 1 of this article therefore stands on an extraordinarily strong footing when it affirms the fundamental principle of the independence of the judges who compose the Court.

³ UN Doc. A/RES/40/32 (29 Nov. 1985).

⁴ UN Doc. A/RES/40/146 (13 Dec. 1985).

⁵ Adopted by the Seventh UN Congress on the Prevention of Crime and the Treatment of Offenders, Milan, 26 Aug./6 Sep. 1995.

⁶ RES. 1989/32.

⁷ RES. 1988/25.

⁸ The best overview was probably given in the 700-page work Shetreet and Deschênes (eds.), *Judicial Independence: The Contemporary Debate* (1985).

This fundamental principle also forms a cornerstone of the ICC's Code of Judicial Ethics. Regulation 126 provides that the Presidency prepare such Code, to be adopted by a majority of judges in plenary session. Such Code was adopted on 9 March 2005⁹. Article 3 thereof specifies, consistently with the above instruments, that:

- '1. Judges shall uphold the independence of their office and the authority of the Court and shall conduct themselves accordingly in carrying out their judicial functions.
2. Judges shall not engage in any activity which is likely to interfere with their judicial functions or to affect confidence in their independence.'

Article 10 of the Code of Judicial Ethics further specifies that:

- '1. Judges shall not engage in any extra-judicial activity that is incompatible with their judicial functions or the efficient and timely functioning of the Court, or that may affect or may reasonably appear to affect their independence or impartiality.
2. Judges shall not exercise any political function.'

The following paragraphs of article 40 deal with some aspects of this vexed question, though they do not, by far, exhaust the problem. However, as the case law of the *ad hoc* international criminal tribunals shows, the issue has been so deeply laboured in so many countries that the doctrine and applicable principles must be taken to be generally acknowledged at the national level and capable of a comfortable transfer to the international world.

II. Analysis and interpretation of elements

1. Paragraph 1

It has been pointed out that although many human rights instruments refer to an 'independent and impartial' tribunal, 'independence' and 'impartiality' are in fact two different concepts, although they remain closely inter-related¹⁰. The former is dealt with in this article. The latter forms the subject of article 41. As one judicial pronouncement has said:

"*Independence*" means putting judges in a position to act according to their conscience and the justice of the case, free from pressures from governments, funding bodies, armies, churches, newspapers or any other source of power and influence that may otherwise bear upon them. ... "*Impartiality*" on the other hand, is generally regarded as the judicial characteristic of disinterest towards parties and their causes'¹¹.

Judicial independence thus requires that judges be free to exercise their functions, free from external pressures from third parties, and third parties must be under an obligation to respect this independence. This obligation is incumbent particularly on States, whether their nationals be accused, victims, witnesses or judges¹².

⁹ Code of Judicial Ethics, ICC-BD/02-01-05.

¹⁰ Decision on the request of 16 September 2009 to be excused from sitting in the appeals against the decision of Trial Chamber I of 14 July 2009 in the case of *The Prosecutor v. Thomas Lubanga Dyilo*, pursuant to Art. 41(1) of the Statute and rule 33 of the Rules of Procedure and Evidence, Presidency, 13 November 2009, ICC-01/04-01/06-2138-AnxIII, pp. 6–7.

¹¹ *Prosecutor v. Norman*, Case No. SCSL-2004-14-AR72(E), Decision on Preliminary Motion Based on Lack of Jurisdiction (Judicial Independence), Appeals Chamber, 13 Mar. 2004 (the 'Sierra Leone Judicial Independence Appeal Decision'), Separate Opinion of Judge Robertson, para. 2. See also *Prosecutor v. Kanyabashi*, Case No. ICTR-96-15-A, Decision on the Defence Motion for Interlocutory Appeal on the Jurisdiction of Trial Chamber I, Joint and Separate Opinion of Judge McDonald and Judge Vohrah, Appeals Chamber, 3 June 1999, para. 35.

¹² Cf. *Prosecutor v. Barayagwiza*, Case No. ICTR-97-19-AR72, Decision on Prosecutor's Request for Review or Reconsideration, Appeals Chamber, 31 Mar. 2000, esp. para. 34 (and see *Declaration of Judge Vohrah*, para. 3; *Declaration of Judge Nieto-Navia*, paras. 1–18).

2. Paragraphs 2 and 3

- 7 It is impossible to discuss one of these paragraphs separately from the other. They are distinct, but only to the extent of the *nuance* which flows from the power of assignment given to the Presidency by article 35 para. 3 (c).

By virtue of the latter provision, some of the judges may be called to full-time service at the seat of the Court whilst the others remain available on call: hence the distinction between paragraphs 2 and 3 of article 40.

- 8 Paragraph 2 applies to all judges of the Court irrespective of whether they have yet to be called to serve at the seat of the Court. This paragraph embodies the basic principles governing their independence. It is in this paragraph that judicial independence, at the level of the International Criminal Court, is properly rooted. But the statement is made in a somewhat reverse way: what the judges should *not* do, of which activities they should *not* partake, so that their independence be held beyond doubt.

That is a matter which must be individually decided, when the occasion arises; and the circumstances may be infinite, as human affairs go. A classic example, however, oftentimes arises and each time leads to animated discussions; here is how it was settled in the Preparatory Committee¹³.

‘The view was expressed that judges should not engage in any activities that would prejudice their judicial functions. In this connection, activities such as part-time teaching and writing for publication were considered compatible with such functions’.

Unlike paragraph 3 of this article, paragraph 2 does not prohibit all occupations of a professional nature. This means that judges who have not yet been required to serve on a full-time basis at the seat of the Court remain free to continue to exercise other professional occupations, unless the occupation of itself would ‘interfere with their judicial functions’. As the period of time between the election of a judge and her or his being called to serve on a full-time basis at the seat of the Court may be extended, paragraph 2 takes an eminently practical approach to this reality. Thus, for instance, for a period following their elections to the Court, certain judges have continued to act as a judge of the ICTY and ICTR or perform political roles within national jurisdictions.

- 9 After having enshrined the principle for all judges in paragraph 2 of article 40, the Statute goes on to deal, in paragraph 3, with those judges – whose number is left to the discretion of the Presidency – who are called upon ‘to serve on a full-time basis at the seat of the Court’. Their obligation is put at a higher level than that of their colleagues who, though members of the same Court, are given some freedom in the use of their time away from the Court. Paragraph 3 of article 40 forbids judges required to serve on a full-time basis at the seat of the Court to ‘engage in any other occupation of a professional nature’.

3. Paragraph 4

- 10 Assuming circumstances which might raise doubt as to the independence of a given judge, who should decide the issue? Originally the ILC suggested that the decision lie with the Presidency¹⁴. However the Statute of the ICJ already provided, in its article 16 para. 2, that ‘any doubt on this point shall be settled by the decision of the Court’. This course of action was recommended by the Preparatory Committee¹⁵ supported by Singapore¹⁶ and finally incorporated into the Statute. The actual wording of paragraph 4 puts the decision in the hands of ‘an absolute majority of the judges’.

¹³ 1996 Preparatory Committee I, p. 13.

¹⁴ 1994 ILC Draft Statute, p. 56.

¹⁵ See note 14, p. 13.

¹⁶ 1996 Preparatory Committee II, p. 29.

Unlike article 41, dealing with the related concept of judicial impartiality, article 40 does not include a provision for a Party to make a request for the judges to act under this provision. It is likely, in practice, that as judges themselves have the most complete knowledge of their professional activities, it is the judges concerned themselves who will take the responsibility to approach their colleagues under paragraph 4 where they have any doubt as to the applicability of either paragraphs 2 or 3.

Article 41

Excusing and disqualification of judges*

1. The Presidency may, at the request of a judge, excuse that judge from the exercise of a function under this Statute, in accordance with the Rules of Procedure and Evidence.
2. (a) A judge shall not participate in any case in which his or her impartiality might reasonably be doubted on any ground. A judge shall be disqualified from a case in accordance with this paragraph if, *inter alia*, that judge has previously been involved in any capacity in that case before the Court or in a related criminal case at the national level involving the person being investigated or prosecuted. A judge shall also be disqualified on such other grounds as may be provided for in the Rules of Procedure and Evidence.
- (b) The Prosecutor or the person being investigated or prosecuted may request the disqualification of a judge under this paragraph.
- (c) Any question as to the disqualification of a judge shall be decided by an absolute majority of the judges. The challenged judge shall be entitled to present his or her comments on the matter, but shall not take part in the decision.

Literature: Abtahi, H., Ogwuma, O. And Young, R., 'The Composition of Judicial Benches, Disqualification and Excusal of Judges at the International Criminal Court', (2013) 11 *JICJ* 379.

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I. Paragraph 1

- 1 The language of this paragraph is broad, indicating that excusal is a mechanism potentially available in diverse situations. The Presidency has, for example, acting pursuant to this paragraph, granted requests for excusal on the basis of the workload of judges¹ and in order to address the pending expiration of a judicial mandate.² In considering requests for excusal on the basis of workload, the Presidency has taken into account a range of factors, including the current and anticipated workload of the requesting judge, the degree of overlap of hearings in which the judge is participating, the size and complexity of the cases in which the judge is participating and the availability of other judges.³ For example, the Presidency

* The authors are indebted to the work of Jules Deschênes and Christopher Staker in the first and second editions of this commentary.

¹ Decision on the Renewed Request for withdrawal from the case of *The Prosecutor v. Uhuru Muigai Kenyatta*, Presidency, 30 January 2014, ICC-01/09-02/11-890-AnxI; Decision on the request to be excused from the exercise of judicial functions in Trial Chamber V, pursuant to article 41 of the Rome Statute, Presidency, 26 April 2013, ICC-01/09-01/11-706-AnxII; Decision on the request to be excused from the exercise of judicial functions in Trial Chamber III, pursuant to article 41 of the Rome Statute, Presidency, 15 July 2010, ICC-01/05-01/08-837-Anx2; Decision on the request to be excused from the exercise of judicial functions in Trial Chamber II, pursuant to article 41 of the Rome Statute, Presidency, 30 September 2009, ICC-01/04-01/07-1503-Anx2; Decision on the request to be excused from the exercise of judicial functions in Pre-Trial Chamber III, Presidency, 22 April 2008, ICC-01/05-9-Anx2.

² Decision on the request to be excused from the exercise of judicial functions in Trial Chamber IV pursuant to article 41 of the Rome Statute, Presidency, 6 March 2012, ICC-02/05-03/09-308-Anx2.

³ Decision on the request to be excused from the exercise of judicial functions in the case of *The Prosecutor v. Wiliam Samoei Ruto and Joshua Arap Sang*, pursuant to article 41 of the Rome Statute, Presidency, 21 May 2013,

has granted a request from a Judge who would otherwise have been involved in three trials, the hearings of which would have overlapped considerably.⁴ In contrast, the Presidency initially denied, on two occasions, a request from a Judge who was also sitting in three cases because it was only the hearings of two of those three cases which would have overlapped, with the Presidency considering that such overlap could have been appropriately managed through the scheduling of hearings during alternating periods in the judicial calendar. Eventually, the Presidency reconsidered this request in light of a new development: the election of a judge to fill a judicial vacancy, with the availability of this new Judge enabling the Presidency to grant the request for excusal from one case.⁵

Yet, the most obvious potential use of this provision relates to judges seeking excusal on the basis that their impartiality might reasonably be doubted, thus closely connecting this paragraph to the next. A judge may know of a valid excuse for not sitting on a certain case. Rather than wait for this information to provoke a request for disqualification, the judge is required to approach the Presidency, with the view that he or she be excused from performing that particular function.⁶ Justice and public interest shall then be far better served than through an *éclat*.

Paragraph 1 does not expressly indicate the criteria which the Presidency is to apply when excusing judges. In practice, the Presidency has treated the grounds for the disqualification of judges set out in paragraph 2 as equally applicable to its assessment of requests for excusal, where such requests are based on concerns for the preservation of the appearance of judicial impartiality.⁷

The language of excusal ‘from the exercise of a function under this Statute’ indicates that this provision applies not only to the excusal of judges from cases as such, but could be broader. For example, it has been used to excuse members of the Presidency from participating in judicial review decisions.⁸

The language of ‘at the request of a judge’ indicates that judges must take the initiative in approaching the Presidency, consistently with their obligations under the Code of Judicial Ethics to act with impartiality and integrity.⁹ The Presidency has stated, in response to a request from a Judge for advice as to whether excusal was warranted, that it cannot provide prospective advice because paragraph 1 requires that the determination of the existence of a reasonable ground for excusal comes, in the first place, from the judge concerned.¹⁰

The Court’s subsidiary texts address a number of practical and procedural matters. Rule 33 specifies that a request for excusal must be presented in writing and include reasons, providing also for the confidentiality of such requests. The presumption of confidentiality in rule 33 necessitates that a judge must always give her or his consent prior to the publication of the

ICC-01/09-02/11-739-AnxII, p. 3; Decision on the Renewed Request for withdrawal from the case of *The Prosecutor v. Uhuru Muigai Kenyatta*, Presidency, 30 January 2014, ICC-01/09-02/11-890-AnxI.

⁴ Decision on the request to be excused from the exercise of judicial functions in the case of *The Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, pursuant to article 41 of the Rome Statute, Presidency, 21 May 2013, ICC-01/09-02/11-739-AnxII.

⁵ Decision on the Renewed Request for withdrawal from the case of *The Prosecutor v. Uhuru Muigai Kenyatta*, Presidency, 30 January 2014, ICC-01/09-02/11-890-AnxI.

⁶ See rule 35, Annex I.

⁷ See Abtahi, Ogwuma and Young (2013) 11 *JICJ* 379.

⁸ Where a request for excusal has been made by a Judge who was also a member of the Presidency, that Judge has also sought excusal from her or his functions as a Presidency member in determining the relevant application for excusal. See e.g. Decision on the request to be excused from the exercise of judicial functions in the Appeals Chamber pursuant to article 41 of the Rome Statute, 18 June 2013, ICC-01/11-01/11-361-Anx4, pp. 1–2; Decision on the request to be excused from the exercise of judicial functions in Trial Chamber II, pursuant to article 41 of the Rome Statute, Presidency, 30 September 2009, ICC-01/04-01/07-1503-Anx 2, p. 3.

⁹ Code of Judicial Ethics (ICC-BD/02-01-05), adopted by the judges of the Court on 9 March 2005 pursuant to regulation 126, Annex III.

¹⁰ Decision on the request of 16 September 2009 to be excused from sitting in the appeals against the decision of Trial Chamber I of 14 July 2009 in the case of *The Prosecutor v. Thomas Lubanga Dyilo*, pursuant to article 41(1) of the Statute and rule 33 of the Rules of Procedure and Evidence, Presidency, 13 November 2009, ICC-01/04-01/06-2138-AnxIII, p. 3.

Presidency's decision on a request for excusal under paragraph 1. Regulation 12 deals with temporary attachment of judges to the Appeals Chamber in the event that, *inter alia*, a member of the Appeals Chamber is rendered unavailable, including by reason of excusal.

II. Paragraph 2

1. Sub-paragraph (a)

- 5 This paragraph is closely linked with article 40,¹¹ as impartiality is closely linked with independence. Each case must be decided on its own merits. It should be noted that under this provision, a judge can only be disqualified from participating in a particular case or cases. A judge who is disqualified under this provision remains a judge of the Court. Removal of a judge from office is only possible under the procedure established by article 46.¹² Moreover, given that judges often serve in multiple cases simultaneously, a disqualified judge ordinarily continues to perform a range of other judicial functions in other cases.
- 6 Paragraph (a) sets out certain circumstances in which a judge will be disqualified from sitting in a case. The words 'inter alia' in paragraph (a) make clear that the listed grounds for disqualification are examples only. The paragraph goes on to state that further grounds for disqualification may be provided for in the Rules. Rule 34 provides that in addition to the grounds set out in article 41 para. 2, the grounds for disqualification of a judge, include, *inter alia*: (a) personal interest in the case, including a spousal, parental or other close family, personal or professional relationship, or a subordinate relationship, with any of the parties; (b) involvement, in his or her private capacity, in any legal proceedings initiated prior to his or her involvement in the case, or initiated by him or her subsequently, in which the person being investigated or prosecuted was or is an opposing party; (c) performance of functions, prior to taking office, during which he or she could be expected to have formed an opinion on the case in question, on the parties or on their legal representatives that, objectively, could adversely affect the required impartiality of the person concerned; (d) expression of opinions, through the communications media, in writing or in public actions, that, objectively, could adversely affect the required impartiality of the person concerned.
- 7 The Court has elucidated the meaning of this sub-paragraph in the context of determining requests for excusal under paragraph 1. The Presidency has observed that sub-paragraph (a) of paragraph 2 is ambiguous and has undertaken a detailed analysis of its elements in the following terms:

"The second sentence ... could be understood as a proscriptive example of the general principle espoused in the first sentence. Accordingly, an example of a situation in which the impartiality of a judge would be reasonably doubted is where that judge has previously been involved in any capacity whatsoever in the relevant case before the Court. Alternatively, the two sentences could be understood to interact in a more wholistic manner so that the second sentence is read in conjunction with the general principle of impartiality contained within the first. The capacities with which the second sentence is concerned are those by virtue of which the impartiality of the judge might reasonably be doubted. Thus, this part of article 41(2)(a) would be concerned with disqualification where a judge has previously been involved in any capacity which gives rise to a reasonable ground to doubt his or her impartiality.

Noting this ambiguity, the Presidency has considered the meaning to be given to the second sentence of this article in its context and in light of its object and purpose. The Presidency considers the overriding purpose of article 41 (2)(a) to be the safeguarding of the integrity of proceedings of the Court by ensuring that no judge participates in a case in which his or her impartiality might reasonably be doubted on any ground. Such purpose is manifest in the first sentence of article 41(2)(a) itself, but is also confirmed by the interrelationship between articles 40 and 41, with the broader objective of these provisions being the safeguarding of judicial functions and ensuring

¹¹ *Ibid.*, pp. 6–7.

¹² See, e.g., *Prosecutor v. Sesay*, Case No. SCSL-2004-15-AR15, Decision on the Defence Motion Seeking the Disqualification of Justice Robertson from the Appeals Chamber, Appeals Chamber, 13 March 2004.

confidence in the judiciary. Noting also the placement of article 41 in Part IV of the Statute dealing with the composition and administration of the Court, the Presidency considers that a further objective of article 41 is ensuring the overall efficiency of the conduct of proceedings before the Court. As such, the Presidency prefers the latter understanding expressed in the preceding paragraph; namely that the relevant part of article 41(2)(a) is concerned with disqualification where a judge has previously been involved in any capacity which gives rise to a reasonable ground to doubt his or her impartiality. The Presidency finds this interpretation most consistent with the objective of ensuring that the impartiality of judges cannot reasonably be reproached, at the same time as ensuring the efficient conduct of proceedings. The Presidency thus accepts the view of the applicant that article 41(2)(a) functions “to certify the integrity and impartiality of the judicial proceedings by ensuring that Judges who have previously participated in the case do not participate as Judges in the present proceedings, if their impartiality might reasonably be doubted”. The language of “previously involved in any capacity in that case before the Court” cannot be considered in isolation but must be understood as closely connected to the first sentence of article 41(2)(a).¹³

The Presidency has had a number of occasions to apply the criteria for disqualification 8 referred to in sub-paragraph (a) in the context of requests for excusal pursuant to the first paragraph of this article. Much of the Court’s practice interpreting this sub-paragraph relates to the movement of judges between divisions creating the possibility of a judge potentially addressing the same case at more than one stage of proceedings.¹⁴ The Presidency has indicated that judicial impartiality demands that a Judge of the Appeals Chamber who has previously issued both a warrant of arrest and a decision on the confirmation of charges in a case could not later sit in appeals in that case.¹⁵ In contrast, however, the Presidency has determined that when a Judge of the Appeals Chamber has previously participated in a case at the pre-trial stage solely through participation in a procedural motion, such limited participation does not constitute a ground on which impartiality in the appeal could be reasonably doubted.¹⁶ In a different decision, the Presidency has also determined that where a Judge of the Appeals Chamber has participated in a case at the pre-trial level, up to and including the issue of a warrant of arrest, excusal is not necessarily warranted.¹⁷ The Presidency noted that as the level of proof required at the arrest warrant stage is *prima facie* only, participation therein does not constitute a basis to doubt the Judge’s impartiality in the case more generally.¹⁸ Of course, when the subject matter of an appeal is directly related to

¹³ Decision on the request of 16 September 2009 to be excused from sitting in the appeals against the decision of Trial Chamber I of 14 July 2009 in the case of *The Prosecutor v. Thomas Lubanga Dyilo*, pursuant to article 41(1) of the Statute and rule 33 of the Rules of Procedure and Evidence, Presidency, 13 November 2009, ICC-01/04-01/06-2138-AnxIII, pp. 6–7.

¹⁴ Abtahi and Young, *article 39*.

¹⁵ Decision on the request of 15 July 2010 to be excused from sitting in the appeal of the Prosecutor against the decision of Trial Chamber I of 8 July 2010 and from sitting in all future appeals arising in the case of *The Prosecutor v. Thomas Lubanga Dyilo*, pursuant to article 41(1) of the Statute and rule 33 of the Rules of Procedure and Evidence, Presidency, 20 July 2010, ICC-01/04-01/06-2524-Anx2; Decision on the request of 16 February 2010 to be excused from sitting in the appeal of Mr Germain Katanga against the decision of Trial Chamber II of 20 November 2009 and from sitting in all future appeals arising in the case of *The Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, pursuant to article 41(1) of the Statute and rule 33 of the Rules of Procedure and Evidence, Presidency, 8 March 2010, ICC-01/04-01/07-1949-Anx2.

¹⁶ Decision on the request of 16 September 2009 to be excused from sitting in the appeals against the decision of Trial Chamber I of 14 July 2009 in the case of *The Prosecutor v. Thomas Lubanga Dyilo*, pursuant to article 41(1) of the Statute and rule 33 of the Rules of Procedure and Evidence, Presidency, 13 November 2009, ICC-01/04-01/06-2138-AnxIII, p. 8.

¹⁷ Decision on the request to be excused from the exercise of judicial functions in the Appeals Chamber pursuant to article 41 of the Rome Statute, Presidency, 18 June 2013, ICC-01/11-01/11-361-Anx4; Decision on the request of Judge Akua Kuenyehia of 18 February 2010 to be excused from participating in the exercise to reclassify documents in the appeals proceedings related to the case of *The Prosecutor v. Bosco Ntaganda* and in all appeals in the case, Presidency, 11 November 2010, ICC-01/04-584-Anx4, p. 5.

¹⁸ Decision on the request of Judge Akua Kuenyehia of 18 February 2010 to be excused from participating in the exercise to reclassify documents in the appeals proceedings related to the case of *The Prosecutor v. Bosco Ntaganda* and in all appeals in the case, Presidency, 11 November 2010, ICC-01/04-584-Anx4, p. 5; When a Judge has participated in a decision on the confirmation of charges, which applies a higher threshold of proof than is required for a warrant of arrest, that Judge has later been excused from functions in the Appeals Chamber when that decision on the confirmation of charges was subject to appeal: Decision on the request to be excused

issues that a judge has previously addressed in the warrant of arrest in same case, this congruity of issues already decided and those on appeal constitute a reason to grant a request for excusal so as to guarantee judicial impartiality.¹⁹

- 9 The Presidency has thus conducted an assessment of the extent of the congruence between issues that a judge has previously decided in a case and those that she or he is now being asked to decide, indicating that where the legal issues in the latter are distinct from those addressed in any previous decision, the standard of impartiality set out in sub-paragraph (a) is not offended.²⁰ On the congruence of issues, the Presidency has further indicated that sub-paragraph (a) is only concerned with situations where a judge has previously considered the same issue *in the same case*, having considered the same or similar legal issue in the context of a different case does not create any appearance of pre-judgment or bias as it is obvious to a reasonable observer that a judge may have to consider issues of fact and law on multiple occasions, with this not meaning that she or he will not do so with an impartial and unprejudiced mind on each subsequent occasion.²¹
- 10 Although most of the Court's assessment of this sub-paragraph to date has related to previous involvement in the case before the Court, the Presidency has also considered the effect of a judge's work prior to commencing her or his judicial mandate at the Court. One of the requirements for election as a judge of the Court, in the case of judges elected on List B, is that the judge has 'established competence in relevant areas of international law such as international humanitarian law and the law of human rights, and extensive experience in a professional legal capacity which is of relevance to the judicial work of the Court'. Given this requirement, many of the judges of the Court are likely, for instance, to have been members of human rights bodies, or have worked in the human rights field, or have been active in organizations calling for the development and enforcement of international criminal law. The Presidency has determined that the previous role of a Judge of the Court as a Commissioner to the African Commission on Human and Peoples' Rights in the preparation of a fact-finding report concerning Darfur did not prevent that Judge from considering the warrant of arrest in the case of *The Prosecutor v. Omar Hassan Ahmad Al Bashir*.²²

In this decision the Presidency considered that the reference to judicial impartiality in sub-paragraph 2(a) incorporated the notions of subjective and objective bias, noting that the requirement of judicial impartiality demands not only that judges be subjectively free from bias but that there is also no objective appearance of bias.²³ The Presidency provided the following elucidation of the concept of the objective appearance of appearance, by reference to diverse legal sources:

'The Presidency notes that following a survey of the jurisprudence of the European Court [of Human Rights], the United Kingdom, Australia, Canada, South Africa, the United States of America,

from the exercise of judicial functions in the Appeals Chamber pursuant to article 41 of the Rome Statute, Presidency, 15 March 2012, ICC-01/04-01/10-500-Anx2.

¹⁹ Decision on the request to be excused from the exercise of judicial functions in the case of *The Prosecutor v. Bosco Ntaganda*, pursuant to article 41 of the Rome Statute, Presidency, 4 December 2013, ICC-01/04-02/06-162-Anx2; Compare to the different situation without such congruence of issues in: Decision on the request to be excused from the exercise of judicial functions in the Appeals Chamber pursuant to article 41 of the Rome Statute, 18 June 2013, ICC-01/11-01/11-361-Anx4, p. 3.

²⁰ Decision on the request of Judge Monageng to be excused from the exercise of judicial functions in the Appeals Chamber pursuant to article 41 of the Rome Statute, Presidency, 19 April 2012, ICC-01/11-01/11-118-Anx2, pp. 5–6.

²¹ Decision on the request of Judge Ekaterina Trendafilova of 16 March 2012 to be excused from participating in the appeal 'OA4' in the case of *The Prosecutor v. Callixte Mbarushimana*, pursuant to article 41 of the Rome Statute and rules 33 and 35 of the Rules of Procedure and Evidence, Presidency, 21 March 2012, ICC-01/04-01/10-503-AnxII.

²² Decision on the request of Judge Sanji Mmasenono Monageng of 25 February 2010 to be excused from reconsidering whether a warrant of arrest for the crime of genocide should be issued in the case of *The Prosecutor v. Omar Hassan Ahmad Al Bashir*, pursuant to article 41(1) of the Statute and rules 33 and 35 of the Rules of Procedure and Evidence, Presidency, 19 March 2010, ICC-02/05-01/09-76-Anx2.

²³ *Ibid.*, pp. 5–6.

Germany, France, Italy, the Netherlands and Sweden, the Appeals Chamber of the ad hoc tribunals has concluded that the assessment of the appearance of bias requires consideration of whether the circumstances would lead a reasonable observer, properly informed, to reasonably apprehend bias. Examples of such circumstances are set out in rule 34(l)(c) and 34(1)(d) of the Rules which concern an objective appearance of impartiality due, inter alia, to extra-judicial activities and the Presidency has found that an objective appearance of impartiality may be denied when a judge previously made determinations of fact based upon consideration of the same issues and evidence, from which it would appear that he or she is not free to depart'.²⁴

In applying this to the situation at hand, the Presidency noted that the function of the Commissioner did not involve the assessment of the individual criminal responsibility of any individual, but rather aimed to gather information generally in order to divert a humanitarian crisis. In addition, the Report made no findings as to whether genocide had been committed in Darfur, a significant issue in relation to the warrant of arrest. The Presidency thus considered that the reasonable observer would understand the capacity of professional judges to decide a case in reliance solely on the evidence provided in a specific case and excluding any information available to them in any other capacity.²⁵ Thus, the Presidency considered that there was no reason to doubt the Judge's impartiality under sub-paragraph (a) in terms of an objective appearance of bias.

2. Sub-paragraph (b)

This sub-paragraph specifies that it is the Prosecutor or the person being investigated or prosecuted who may request the disqualification of a Judge. The Court has interpreted this sub-paragraph as exhaustively setting out the participants entitled to make such request. In response to a request for the disqualification of a Judge made by a legal representative of victims, the plenary of judges considered such request to be inadmissible because this sub-paragraph 'was plain and determinate as to who was entitled to bring an application for the disqualification of a judge. That right was limited to the Prosecutor and the person being investigated or prosecuted'.²⁶ In reaching this finding, the plenary of judges emphasized the exceptional nature of disqualification proceedings and also noted the function of the Prosecutor to act in the general interest of the international community.²⁷

The Presidency has also clarified that requests for disqualification must be made expressly. In one case, the Presidency received from a Party a request for the re-composition of the Trial Chamber, citing as one basis, the alleged 'appearance of bias' given a Judge's statements made in a previous capacity as the Ambassador of Japan to the United Nations. In response to this request, the Presidency asked the applicant whether this request should be treated as a request for disqualification in accordance with article 41, paragraph 2(b), to which the applicant responded negatively. The Presidency then indicated that in the absence of a request for disqualification under this sub-paragraph (or any request for excusal under paragraph 1), it could take no action, noting the absence of any provision allowing the Presidency to take pre-emptive action in respect of the impartiality of judges.²⁸

Rule 34 para. 2 ICC states that 'a request for disqualification shall be made in writing as soon as there is knowledge of the grounds on which it is based'. Ideally, this would occur before the proceedings before the relevant Chamber have commenced, so that it is still possible for a replacement judge to be assigned and to participate in the entire proceedings before the Chamber. However, it could occur that the party requesting disqualification only

²⁴ *Ibid.*, p. 6.

²⁵ *Ibid.*, p. 7.

²⁶ Decision of the Plenary of Judges on the Application of the Legal Representative for Victims for the disqualification of Judge Christine Van den Wyngaert from the case of *The Prosecutor v. Germain Katanga*, Plenary, 22 July 2014, ICC-01/04-01/07-3504-Anx, p. 10.

²⁷ *Ibid.*

²⁸ Decision concerning the Request of Mr. Germain Katanga of 14 November 2008 for re-composition of the bench of Trial Chamber II, Presidency, 21 November 2008, ICC-01/04-01/07-757, pp. 3, 8.

obtains knowledge of the grounds for disqualification after the proceedings before the relevant Chamber have commenced. In such cases, it may be possible for an alternate judge appointed pursuant to article 74 para. 1 and rule 39 to replace the disqualified judge. More broadly, disqualification of a judge constitutes an objective and justified reason justifying the replacement of that judge, in accordance with rule 38.

- 14 In some cases, a party may only acquire knowledge of grounds of disqualification after proceedings before the relevant Chamber have been completed. In such cases, it will be too late to invoke the procedure under this paragraph. However, other remedies may still be available. For instance, the grounds of disqualification might in an appropriate case form the basis of an appeal under article 81, or justify an application for revision under article 84.

3. Sub-paragraph (c)

- 15 Sub-paragraph (c) of this article follows generally the wording of paragraph 4 of article 40. The effect of the second sentence of this sub-paragraph, which states that ‘the challenged judge shall be entitled to present his or her comments on the matter, but shall not take part in the decision’, is that the challenged judge can present his or her views to his colleagues, but cannot otherwise participate in the decision-making process. The mechanism through which the judges take collective decisions such as the one described in this sub-paragraph is a plenary session.²⁹ In practice, upon receipt of a request for disqualification, the Presidency has asked the judge in question to present her or his views in the form of a written response. The plenary session of judges has then convened in the absence of the judge concerned.³⁰ The plenary session has also had before it observations on a request for disqualification made by the other Party or closely interested persons.³¹ The plenary of judges has denied a request by an applicant for leave to reply to the submissions of a challenging judge, indicating that although the possibility of such reply is not excluded, the particular request for leave was not made in a timely manner and was not necessary in the circumstances. The plenary of judges did also note that the principle of ‘equality of arms’, which it understood to ordinarily provide a right to reply, is not to be applied automatically between a party and a judge.³² As a further procedural matter, the Presidency considers itself to have lacked jurisdiction to consider a request to suspend a challenged judge from the case pending the outcome of the request for disqualification before the plenary.³³
- 16 The plenary has set out a number of key principles when considering the disqualification of a judge. The standard applied is whether the circumstances would cause a properly informed reasonable observer to apprehend bias, noting that a high threshold must be satisfied in order to disqualify a judge given the presumption of impartiality and the need to safeguard the interests of the sound administration of justice.³⁴ The plenary has further clarified that the fair-minded observer must be an objective one, not to be assimilated to the

²⁹ Rule 4.

³⁰ See e.g. Decision of the plenary of the judges on the ‘Defence Request for the Disqualification of a Judge’ of 2 April 2012, *Banda and Jerbo*, Plenary, 5 June 2012, ICC-02/05-03/09-344-Anx, pp. 2–3.

³¹ For example, in the event of a request for disqualification from defence counsel in the article 70 (contempt) proceedings related to the *Bemba* case, the plenary accepted observations on the disqualification request from both the Prosecutor and from the defence for Mr. Bemba Gombo: Decision of the Plenary of Judges on the Defense Applications for the Disqualification of Judge Cuno Tarfusser from the case of *The Prosecutor v. Jean-Pierre Bemba Gombo, Aimé Kilolo Musamba, Jean-Jacques Mangenda Kabongo, Fidèle Babala Wandu and Narcisse Arido*, Plenary, 20 June 2014, ICC-01/05-01/13-511-Anx.

³² *Ibid.*, p. 3.

³³ *Ibid.*, p. 2.

³⁴ *Ibid.*, p. 4; Decision of the plenary of judges on the Defence Application of 20 February 2013 for the disqualification of Judge Sang-Hyun Song from the case of *The Prosecutor v. Thomas Lubanga Dyilo*, Plenary, 11 June 2013, ICC-01/04-01/06-3040-Anx, pp. 3–4; Decision of the plenary of the judges on the ‘Defence Request for the Disqualification of a Judge’ of 2 April 2012, *Banda and Jerbo*, Plenary, 5 June 2012, ICC-02/05-03/09-344-Anx, p. 4; Decision of the Plenary of Judges on the Application of the Legal Representative for Victims for the disqualification of Judge Christine Van den Wyngaert from the case of *The Prosecutor v. Germain Katanga*, Plenary, 22 July 2014, ICC-01/04-01/07-3504-Anx, pp. 8–9.

applicant him or herself, and that such fair-minded and informed observer understands the nature of a judge's profession and takes account of the entire context of the case.³⁵

The Court has undertaken the procedure set out in sub-paragraph (c) on several occasions. 17 The first occasion occurred in relation to a defence request for the disqualification of a Judge on three grounds: (1) his nationality being shared with a number of the alleged victims in the case (Nigerian); (2) the endorsement of his candidacy for election as a judge by both Nigeria and the African Union, given that the case involved attacks on AU peacekeepers, including Nigerian nationals; and (3) comments written by him in a blog post prior to his election as a judge which were alleged to demonstrate and appearance of pre-judgment.³⁶ The plenary session of judges rejected the request for disqualification. They considered that whilst the nationality of a judge may potentially be relevant to disqualification under article 41 para. 2, the co-incidence of shared nationality with some alleged victims in the present case did not have such effect.³⁷ On the election procedures, the plenary session of judges considered that the exercise of the procedure for the nomination of judges was insufficient to provide a reasonable basis to doubt the Judge's impartiality, as was the customary regional procedure of the endorsement of a candidate by the African Union.³⁸ In respect of blog comments made by the Judge prior to his election, the plenary considered that there was no genuine link between the blog commentary and the case. In essence, 'formations or expressions of opinion tangentially connected to a case did not necessarily give rise to disqualification'³⁹

The next application of this sub-paragraph related to a request to disqualify a Judge from the 18 appeal in the case of *The Prosecutor v. Thomas Lubanga Dyilo* on the basis that: (1) that Judge had made comments in his capacity as the President of the Court which indicated prejudgment of Mr. Lubanga's culpability; and (2) the Judge's involvement as the President of a particular charitable organization (UNICEF/Korea) given that the United Nations' Children's Fund (UNICEF) had participated in the reparations proceedings in the case. The first of these was alleged to give rise to actual bias on the part of the Judge (or, at minimum, a reasonable appearance of bias), whereas the second was said to represent an impermissible conflict of interests.⁴⁰

The general comments made by the President in a number of speeches included referring to the trial judgment in the case as having established 'a crucial precedent in the fight against impunity', describing it as a 'landmark judgment' and referring to the involvement of victims and the operation of the ICC's reparation regime in the case.⁴¹ The plenary of judges found that there was no actual bias, nor the appearance of a reasonable apprehension thereof, when these comments were considered in their proper context, they were clearly not comments regarding the merits of the trial judgment nor related to any particular legal issues under appeal but simply comments related to the wider implications and precedential significance of the decisions.⁴²

In relation to the alleged conflict of interests derived from the Judge's involvement in the organization UNICEF/Korea, the plenary of judges considered that these circumstances were distinguishable from the well-known circumstances of the *Pinochet* case.⁴³ The plenary of judges indicated that the Judge had a less direct relationship with the organization in question than that in *Pinochet*, referring to the fact that the Judge's involvement in the organization was nominal and

³⁵ Decision of the plenary of judges on the Defence Application of 20 February 2013 for the disqualification of Judge Sang-Hyun Song from the case of *The Prosecutor v. Thomas Lubanga Dyilo*, Plenary, 11 June 2013, ICC-01/04-01/06-3040-Anx, pp. 11–12.

³⁶ Decision of the plenary of the judges on the 'Defence Request for the Disqualification of a Judge' of 2 April 2012, *Banda and Jerbo*, Plenary, 5 June 2012, ICC-02/05-03/09-344-Anx, pp. 1–2.

³⁷ *Ibid.*, p. 5.

³⁸ *Ibid.*, pp. 5–6.

³⁹ *Ibid.*, pp. 6–7.

⁴⁰ Decision of the plenary of judges on the Defence Application of 20 February 2013 for the disqualification of Judge Sang-Hyun Song from the case of *The Prosecutor v. Thomas Lubanga Dyilo*, Plenary, 11 June 2013, ICC-01/04-01/06-3040-Anx, p. 2.

⁴¹ *Ibid.*, pp. 5–6.

⁴² *Ibid.*, p. 12.

⁴³ *R v. Bow Street Metropolitan Stipendiary Magistrate Ex. P. Pinochet Ugarte (No. 2)* [2000] 1 A.C. 119.

that another individual functioned as its acting President. Further, UNICEF had not made any submissions before the Appeals Chamber, all of its participation in the case having been before the Trial Chamber. In addition, it was noted that, since the *Pinochet* decision, there has come to be accepted in a number of national jurisdictions a de minimis exception tolerating a personal interest so minimal as not to be capable of exerting influence.⁴⁴ Based on these factors, the plenary of judges considered that the threshold for disqualification had not been met.

- 19 In the case of *The Prosecutor v. Jean-Pierre Bemba Gombo, Aimé Kilolo Musamba, Jean-Jacques Mangenda Kabongo, Fidèle Babala Wandu and Narcisse Arido*, multiple defence teams filed requests⁴⁵ for the disqualification of the Single Judge in the case on the grounds: (1) that his interpretation of the law indicated a pre-disposition to deciding matters in favour of the Prosecutor⁴⁶ and (2) based on certain conduct of the Single Judge in the proceedings.⁴⁷ The plenary of judges dismissed the request for excusal. In respect of the first argument above, the plenary considered that the defence failed to demonstrate any pre-disposition of the Single Judge in favour of the Prosecution. The plenary also considered that the request for disqualification was an attempt to convert appellate issues into a request for disqualification, noting it to be entirely unacceptable that judges be subject to disqualification proceedings simply because they had made findings adverse to one party.⁴⁸ In respect of the second argument, the plenary found that none of the examples of conduct cited, assessed individually or as a pattern of conduct, demonstrated bias or the appearance thereof, noting that the defence took many comments by the Single Judge entirely out of context.⁴⁹
- 20 The theme of the extent to which actions undertaken in the fulfillment of judicial functions before the Court may form the basis for a request for disqualification has also been explored indirectly in another request for disqualification. A request was made by a legal representative of victims for the disqualification of a Judge on the grounds that her minority opinion in the Trial Chamber's article 74 decision on the guilt or innocence of the accused revealed a bias, undermining her impartiality to sit during the reparations stage of the proceedings.⁵⁰ This request was found to be inadmissible, however, the plenary of judges noted in passing that it would also have failed on its merits. The plenary of judges 'considered that the entitlement of a judge to express a different opinion from the majority, whether concurring or dissenting, is safeguarded by article 74 of the Statute and the expression of a minority opinion does not render a judge biased or partial in further proceedings'.⁵¹ The plenary of judges further noted the importance of minority opinions and stated it to be 'a paradox that a bastion of judicial independence was being used as a basis for the disqualification of the Judge'.⁵²

⁴⁴ Decision of the plenary of judges on the Defence Application of 20 February 2013 for the disqualification of Judge Sang-Hyun Song from the case of *The Prosecutor v. Thomas Lubanga Dyilo*, Plenary, 11 June 2013, ICC-01/04-01/06-3040-Anx, pp. 13–14.

⁴⁵ These requests were considered jointly: Decision of the Plenary of Judges on the Defense Applications for the Disqualification of Judge Cuno Tarfusser from the case of *The Prosecutor v. Jean-Pierre Bemba Gombo, Aimé Kilolo Musamba, Jean-Jacques Mangenda Kabongo, Fidèle Babala Wandu and Narcisse Arido*, Plenary, 20 June 2014, ICC-01/05-01/13-511-Anx, pp. 3–4.

⁴⁶ *Ibid.*, p. 11. The examples cited by the defence teams related to the Single Judge's appointment of an Independent Counsel, the Single Judge's filing of an application to waive the immunity of lead counsel and the case manager, his alleged violation of such immunities prior to the granting of such waiver, the dismissal of crucial defence applications and the dismissal of the majority of defence requests while granting the majority of Prosecution requests.

⁴⁷ *Ibid.*, p. 13; The examples cited by the defence teams included issuing the arrest warrants with undue speed, using language demonstrating a pre-conviction of guilt and publicly admonishing counsel.

⁴⁸ *Ibid.*, pp. 11–12.

⁴⁹ *Ibid.*, p. 13.

⁵⁰ Decision of the Plenary of Judges on the Application of the Legal Representative for Victims for the disqualification of Judge Christine Van den Wyngaert from the case of *The Prosecutor v. Germain Katanga*, Plenary, 22 July 2014, ICC-01/04-01/07-3504-Anx.

⁵¹ *Ibid.*, pp. 11–12.

⁵² *Ibid.*, p. 12.

Article 42

The Office of the Prosecutor

1. The Office of the Prosecutor shall act independently as a separate organ of the Court. It shall be responsible for receiving referrals and any substantiated information on crimes within the jurisdiction of the Court, for examining them and for conducting investigations and prosecutions before the Court. A member of the Office shall not seek or act on instructions from any external source.

2. The Office shall be headed by the Prosecutor. The Prosecutor shall have full authority over the management and administration of the Office, including the staff, facilities and other resources thereof. The Prosecutor shall be assisted by one or more Deputy Prosecutors, who shall be entitled to carry out any of the acts required of the Prosecutor under this Statute. The Prosecutor and the Deputy Prosecutors shall be of different nationalities. They shall serve on a full-time basis.

3. The Prosecutor and the Deputy Prosecutors shall be persons of high moral character, be highly competent in and have extensive practical experience in the prosecution or trial of criminal cases. They shall have an excellent knowledge of and be fluent in at least one of the working languages of the Court.

4. The Prosecutor shall be elected by secret ballot by an absolute majority of the members of the Assembly of States Parties. The Deputy Prosecutors shall be elected in the same way from a list of candidates provided by the Prosecutor. The Prosecutor shall nominate three candidates for each position of Deputy Prosecutor to be filled. Unless a shorter term is decided upon at the time of their election, the Prosecutor and the Deputy Prosecutors shall hold office for a term of nine years and shall not be eligible for re-election.

5. Neither the Prosecutor nor a Deputy Prosecutor shall engage in any activity which is likely to interfere with his or her prosecutorial functions or to affect confidence in his or her independence. They shall not engage in any other occupation of a professional nature.

6. The Presidency may excuse the Prosecutor or a Deputy Prosecutor, at his or her request, from acting in a particular case.

7. Neither the Prosecutor nor a Deputy Prosecutor shall participate in any matter in which their impartiality might reasonably be doubted on any ground. They shall be disqualified from a case in accordance with this paragraph if, *inter alia*, they have previously been involved in any capacity in that case before the Court or in a related criminal case at the national level involving the person being investigated or prosecuted.

8. Any question as to the disqualification of the Prosecutor or a Deputy Prosecutor shall be decided by the Appeals Chamber.

- (a) The person being investigated or prosecuted may at any time request the disqualification of the Prosecutor or a Deputy Prosecutor on the grounds set out in this article;
- (b) The Prosecutor or the Deputy Prosecutor, as appropriate, shall be entitled to present his or her comments on the matter.

9. The Prosecutor shall appoint advisers with legal expertise on specific issues, including, but not limited to, sexual and gender violence and violence against children.

Literature: Arbour, L., 'The Need for an Independent and Effective Prosecutor in the Permanent International Criminal Court', (1999) 17 *Windsor Yearbook of Access to Justice* 207; Arbour, L./Eser, A./Sanders, A./Ambos, K. (eds.), *The Prosecutor of a permanent ICC*, (Freiburg i. Br., ed. iuscrim, 2000); Jones, J. R. W. D., 'The Office of the Prosecutor', in: A. Cassese, P. Gaeta and J. R. W. D. Jones (eds.), *The Rome Statute Of The International Criminal Court: A Commentary*, I (2002) 269; Reydam, L./Wouters, J./Ryngaert, C. (eds.), *International Prosecutors* (Oxford, OUP 2012); Rwelamira, M., 'The Office of the Prosecutor', in: Lee, R.S., (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (Transnational Publishers 2001) 259; Wouters, J., Verhoeven, S. And Demeyere, B., 'The ICC's Office of the Prosecutor: Navigating between Independence and Accountability', (2008) 8 *ICLRev* 273.

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A. Introduction/General remarks

- 1 Article 34 states that the Office of the Prosecutor is one of the organs which the Court shall be composed of. Article 42, in turn, establishes the main responsibilities and functions of the Office, its independence and management, and provides the procedure for appointment and disqualification of the Prosecutor and the Deputy Prosecutors. Further provisions on the powers and duties of the Prosecutor in the investigation and prosecution processes are included in articles 53 and 54 under Part V of the Statute.
- 2 Article 42 of the Statute was originally drafted as article 12 in the 1994 ILC Draft Statute¹. It was subsequently redrafted by the Preparatory Committee as article 43 of the Draft Statute² which was submitted to the Diplomatic Conference in Rome. With the exception of the removal of a paragraph 10 of draft article 43, on a separate prosecutorial obligation to provide protective measures to witnesses, the Conference only made minor changes in this article before its adoption as article 42 of the Statute.
- 3 The functional *independence* of the Office of the Prosecutor is one essential interest protected by article 42. The article should be interpreted in the light of other statutory provisions which define the jurisdictional parameters of the Court or specify the functions of its Prosecutor³. The exercise of powers by the Court's organs naturally depends on whether the Court has jurisdiction. It was recognised from the outset of the Preparatory Committee's work that the Court would have to be based on a principle of complementarity if it is to enjoy universal support. The complementarity principle is expressed in the Preamble of the Statute⁴ and articles 1 and 17. It essentially entails that the permanent Court shall only have jurisdiction when the national criminal justice systems fail to genuinely investigate and prosecute serious violations of international humanitarian law, and then only if a territorial State or State of nationality has accepted the Court's jurisdiction.
- 4 Given the complementary nature of the Court's jurisdiction, the view emerged in many delegations to the Preparatory Committee and the Diplomatic Conference that the Court's efficacy would largely depend on the powers and independence of its Prosecutor. But considerable controversy surrounded the proposition that the Prosecutor should be empowered to start investigations *ex officio*, regardless of referral by a State Party or the Security Council. A compromise proposal advanced by Argentina and Germany received decisive support by delegations and article 15 now provides that the Prosecutor can independently *initiate* investigations, but he or she needs Pre-Trial Chamber authorisation to actually *start* the investigation. Article 42 would seem to cement the notion of functional prosecutorial independence by expressly prescribing independent action, independence from external instructions, management autonomy, restrictions in engagement of activities which could

¹ See 1994 ILC Draft Statute, II, B, I ('Draft statute for an international criminal court'), pp. 58–60.

² See Preparatory Committee (Consolidated) Draft.

³ See articles 12, 13, 15, 17, 18, 53, 54 and 57.

⁴ See preambular paragraph 10.

affect confidence in independence, and appointment through election by an absolute majority of the Assembly of States Parties.

The view was expressed during the proceedings of the Preparatory Committee in 1996 that it might be useful to look to the two *ad hoc* Tribunals for guidance and experience as regards the independence of the Prosecutor⁵. Article 42, indeed, draws both language and content from article 16 of the ICTY Statute and article 15 of the ICTR Statute. According to these articles, the joint Prosecutor of the Tribunals shall ‘act independently as a separate organ’ of the Tribunals.

The Tribunal Prosecutor ‘shall be of high moral character and possess the highest level of competence and experience in the conduct of investigations and prosecutions of criminal cases’, and he or she ‘shall not seek or receive instructions from any Government or from any other source’. These features are largely reproduced in article 42 of the ICC Statute.

Much as the principle of the Prosecutor’s functional independence stands affirmed in the ICC Statute, the Prosecutor’s powers, however, are still and necessarily judicially curbed and controlled. This is necessary for the Court to enjoy trust and legitimacy in the community of States. Whilst the Security Council itself removed the need for further authorisation for the Prosecutor of the two *ad hoc* Tribunals to start investigations, it is the Pre-Trial Chamber which must authorise that the ICC Prosecutor proceeds with full investigations⁶. This is an important constitutional check in the Statute without which key States would not have supported its adoption. The ICC Pre-Trial Chamber has also replaced the rotating trial Judge in the two *ad hoc* Tribunals for the required judicial confirmation of the indictment transmitted by the Prosecutor, and the *ex parte*, *in camera* consideration of the proposed indictment in the Tribunals have been replaced by hearings *inter partes* with presentation of evidence and a right of the suspect to challenge the evidence presented by the Prosecutor⁷. Some delegations expressed concern during the work of the Preparatory Committee and the Diplomatic Conference that the procedural and evidentiary regime of the permanent Court should be properly balanced between the different legal traditions of the world, and that it should incorporate more elements from national systems which are based on the inquisitorial tradition than the Rules of Procedure and Evidence of the two *ad hoc* Tribunals do. The early practice of the Court suggests that this tension between common and civil law approaches has influenced the working relationship between the Office of the Prosecutor and Pre-Trial Chambers.

While the Prosecutor’s independence is protected by established statutory safeguards in most international criminal jurisdictions⁸, the same cannot be said of the concept of impartiality, which is mostly articulated in relation to the judiciary rather than the Prosecution. The statutes of the *ad hoc* tribunals lack specific provisions imposing a clear obligation on prosecutors to perform their functions impartially. Article 42 of the ICC Statute, in contrast, explicitly prohibits the participation of the Prosecutor (and his Deputy) ‘in any matter in which their impartiality might reasonably be doubted on any ground’. It not only spells out the general obligation of the Prosecutor to act impartially, but also apprehends the lack of impartiality as a basis for disqualifying the Prosecutor.

In practice, prosecutorial impartiality has been legally challenged on a few occasions before the ICC. Certain out-of-court statements made by the first ICC Prosecutor Moreno Ocampo were first raised on the basis of partiality in the Lubanga case in 2011⁹. One year later, the OPCD filed a request to disqualify the former ICC Prosecutor from participating in the case against Saif Gaddafi for public statements the Prosecutor had made regarding the prosecution against Mr. Gaddafi and the Prosecutor’s alleged allegiance to the Libyan government¹⁰.

⁵ See 1996 Preparatory Committee I, para. 46.

⁶ See article 15 para. 3.

⁷ See article 61.

⁸ Côté, in: Reydamas et al. (eds.), *International Prosecutors* (2012) 319.

⁹ *Prosecutor v. Lubanga*, ‘Reacted Decision on the “Defence Application Seeking a Permanent Stay of the Proceedings”’, ICC-01/04-01/06-2690-Red2, 7 March 2011, p 45.

¹⁰ *Prosecutor v. Gaddafi and Al-Senussi*, ‘Request to Disqualify the Prosecutor from Participating in the Case against Mr. Saif Al Islam Gaddafi’, ICC-01/11-01/11-133, 3 May 2012.

On 28 May 2012, in the Kenya situation, Mr. Nyekorach-Matsanga requested to disqualify the former Prosecutor from investigating him for offences against the administration of justice under article 70 of the Statute¹¹. The request raised doubt about the Prosecutor's impartiality on the ground that the then Prosecutor Moreno Ocampo had a direct and personal interest in the outcome of the investigations¹². Such challenges – however harmful to the ICC in its early, formative period – confirm the importance of the principle of prosecutorial independence.¹³

B. Analysis and interpretation of elements

I. Paragraph 1: Independent and separate organ

- 8 This paragraph establishes two important elements: first, that the Prosecutor's Office is an independent and separate organ of the Court, and second, that it is the organ responsible for conducting investigations and prosecutions before the Court.

The Prosecutor's functional independence is essentially an expression of the principle that *impartial justice* requires a separation of the functions and work of the Court and the Prosecutor. Among the implications of functional prosecutorial independence are that the Office of the Prosecutor operates in its own right and cannot be instructed by any other organ of the Court or any external source, to select or prioritise specific cases, to proceed or not proceed with a full investigation or formal charges, or to conduct its investigations and prosecutions in any particular manner, subject only to the frames of action laid down by the Pre-Trial Chamber and the Trial Chambers or postponement through Security Council deferral under article 16. Without functional independence for the Prosecutor's Office, the notion of prosecutorial discretion would be substantially undermined.

- 9 Article 15 of the Statute illustrates the relationship between functional prosecutorial independence and judicial control. It provides that *preliminary* examination may be conducted by the Prosecutor *proprio motu* on the basis of any information received, even in the absence of referral by a State Party, but starting a *full* investigation beyond the initial measures of examination provided for in article 15 para. 2 requires formal authorisation by the Pre-Trial Chamber. The Pre-Trial Chamber may not impose conditions as to how, when or where the investigations are to be carried out, for which alleged offences and against whom. These decisions fall within the purview of the Prosecutor's prerogative. Likewise, article 61 para. 7 on confirmation of indictments grants that the Pre-Trial Chamber may either confirm or dismiss the charges contained in the indictment, or request the Prosecutor to consider providing further evidence or amending a charge, but the Prosecutor remains exclusively responsible for prosecuting the case and cannot be instructed on how to charge. During trial, similarly, the Trial Chamber may order disclosure or production of documents and other information according to article 64 of the Statute, but the Prosecutor is still responsible for prosecuting the case and has the power to do so in the manner he or she finds most conducive to achieving fair justice.

- 10 Furthermore, it may be argued that the notion that the Prosecutor's office is a separate organ of the Court implies a certain prosecutorial independence *vis-à-vis* the Registry and the Assembly of States Parties. Article 42 para. 2 does give the Prosecutor exclusive responsibility for the organization of the Office, including its administration¹⁴.

The independence of the Office of the Prosecutor is further enhanced by the fundamental addition in the last sentence of paragraph 1, which specifies that no member of the Office –

¹¹ Situation in Kenya, 'Decision on the Request for Disqualification of the Prosecutor in the Investigation against Mr. David Nyekorach-Matsanga', ICC-01/09-96-Red, 11 July 2012.

¹² *Ibid.*, p. 10.

¹³ Arbour (1999) 17 Windsor Yearbook of Access to Justice 207, 217.

¹⁴ See paragraph 2 below.

the Prosecutor included – is entitled to seek or act on instructions from any external source, *i.e.*, from any source outside the Prosecutor’s Office. This provision accommodates practical concerns, in particular when the Prosecutor decides to employ, in exceptional circumstances, ‘the expertise of gratis personnel offered by States Parties ... to assist with the work’, pursuant to article 44 para. 4. The fact that such experts will normally return to careers in the service of the sending governments may create the perception that those governments can exercise undue influence on the work of the Prosecutor.

The second element of article 42 para. 1 implies that information on alleged crimes within the jurisdiction of the Court is to be addressed to the Prosecutor and not to other organs of the Court. It is only the Prosecutor who has statutory competence to analyse the seriousness of the information received, and to seek additional information as a matter of preliminary examination. Attempts to circumvent the Prosecutor’s authority by seeking assistance from other institutions with regard to the examination of evidence or investigation of crimes could, thus, run contrary to the provisions of this paragraph. 11

II. Paragraph 2: Structure of the Office

Article 42 para. 2 designates the Prosecutor as the single head of the Office. The ICC Prosecutor holds the same position as the Prosecutor common to the two *ad hoc* Tribunals who is responsible for all investigations and prosecutions before the Tribunals, thus ensuring maximum efficiency and consistency. 12

Moreover, the Prosecutor shall have ‘full authority over the management and administration of the Office, including the staff, facilities and other resources thereof’. Concern was expressed by some delegations in the Preparatory Commission that the Prosecutor’s utilisation of personnel and other resources of his or her Office must not be restricted by the Registry in a way which interferes with investigations and prosecutions. Naturally, the Prosecutor’s exercise of authority over the management and administration must be in accordance with the Court’s financial regulations and rules as well as Staff Regulations, as adopted by the Assembly of States Parties. Questions concerning issues such as the organisation of the Office, use of staff members and gratis personnel, recruitment, authorisation of official travel, retention and security of information and physical evidence, and application of all equipment of the Office, would seem to fall under the authority of the Prosecutor¹⁵. Article 43 para. 1 states, accordingly, that the Registry is responsible for the *non-judicial* aspects of the administration and servicing of the Court, *without prejudice to the functions and powers of the Prosecutor* in accordance with article 42. The purpose of article 42 para. 2 is to ensure that the Prosecutor can control the use of the resources of the Office as required by its statutory activities; not that the Prosecutor shall exercise non-prosecutorial, administrative tasks for which the Registrar is responsible. Furthermore, while the Registry is placed under the authority of the President of the ICC when it comes to administrative issues, the Office of the Prosecutor is not subject to the same restriction¹⁶. 13

According to article 112, the Assembly of States Parties shall consider and decide the budget for the Court¹⁷, adopt financial rules and regulations for the Court on the basis of the proposal made by the Preparatory Commission¹⁸, and provide management oversight to the Prosecutor¹⁹.

The *ad hoc* Tribunals have shown that international investigation and prosecution of serious violations of humanitarian law are very resource demanding and sensitive to changes

¹⁵ Wouters et al. (2008) 8 *NCLRev* 273, 288.

¹⁶ Article 38 para. 3(a).

¹⁷ See article 112 para. 2 (d).

¹⁸ See article 112 para. 2 (a), and the Final Act, Annex I, F., (5) (e), p. 10.

¹⁹ See article 112 para. 2 (b).

in the level of resources available. If the Prosecutor is seized of more than one situation, it may be technically possible for the Assembly to indirectly influence, through the adoption of a budget, how resources will be allocated to the investigation of those situations. Likewise, extra- budgetary sources, such as trust funds, may play an important role for certain activities undertaken by the Court. Such sources could provide significant additional resources to the work of the Prosecutor, just as it is reasonable to expect that the referral of situations to the Court by the Security Council would lead to increased resources for the Court. States should exercise caution in light of article 42 para. 2 in the use of budgetary powers, control of extra- budgetary resources or oversight mechanisms. Article 112 para. 5 may have some practical importance in this regard, insofar as it provides that the Prosecutor or his or her representatives ‘may participate, as appropriate, in the meetings of the Assembly and of [its] Bureau’.

- 14 Article 42 para. 2 also provides that the Prosecutor shall be assisted by one or more Deputy Prosecutors, who shall be entitled to carry out any of the Prosecutor’s functions under the Statute. There has been separate Deputy Prosecutors for the two *ad hoc* Tribunals, and the first ICC Prosecutor moved to have two Deputy Prosecutors elected at the outset of the work of the Office.

The Prosecutor and the Deputy Prosecutors shall be of different nationalities, but not necessarily from different legal traditions²⁰. There is no statutory requirement that the Prosecutor and Deputy Prosecutors are citizens of States Parties or States that have accepted the jurisdiction of the Court pursuant to article 12 para. 3. Whilst no ICC Judges may be citizens of the same State pursuant to article 36 para. 7, there is no provision in the Statute that excludes appointment of a Prosecutor or Deputy Prosecutor from a State which already has one of its citizens serving as a Judge of the Court.

III. Paragraph 3: Qualifications

- 15 The personal qualifications of the Prosecutor and the Deputy Prosecutors must not allow doubts as to their professional competence, integrity and independence. The credibility of the very idea of an independent ICC Prosecutor depends on the personal qualifications and qualities of the Prosecutor. This entails an important responsibility for the States Parties that elect the Prosecutor. Extensive practical experience is required either in prosecution or trial of criminal cases, not necessarily in both. Thus, not only public prosecutors, but also experienced judges or defense counsels from national criminal justice systems may be appointed as Prosecutor or Deputy Prosecutor. The ILC Draft Statute only made reference to experience in prosecuting²¹, whilst the Preparatory Committee’s final Draft Statute only referred to trial experience in brackets, with a footnote indicating that ‘some delegations felt that prosecutorial experience should be of paramount importance’²². Prosecutorial experience may be decisive in the choice between two equally well-qualified candidates. Experience in prosecuting or otherwise working on cases in an international criminal jurisdiction would be particularly valuable. Some international prosecutor’s offices, notably that of the *ad hoc* Tribunals, have been so resourceful that they developed specialized services such as a Legal Advisory Section. There was fierce competition to work in some of these services, the staff of which worked on a broad range of cases and issues, so this experience may be particularly relevant. A requirement of a minimum of 10 years of professional experience was considered by the Preparatory Committee, but this proposal was deleted.

²⁰ See UN Doc. A/AC.249/1998/CRP.10 (1 Apr. 1998), p. 8.

²¹ 1994 ILC Draft Statute, note 1, p. 59.

²² Preparatory Committee (Consolidated) Draft, note 2, p. 80.

IV. Paragraph 4: Election

Appointment of the Prosecutor is a matter for the Assembly of States Parties. Article 42 para. 4 of the Statute provides that the election is to be secret and that an absolute majority of the members of the Assembly is required. Rule 86 of the Rules of Procedure of the Assembly of States Parties simply provide that the 'elections of the Prosecutor and the Deputy Prosecutors shall take place in accordance with article 42, paragraphs 2, 3 and 4'. The wording of paragraph 4 requires an absolute majority, meaning a majority of all members of the Assembly, not just of those voting. 16

The ICC Prosecutor and Judges are elected by the same body, namely the Assembly of States Parties. The Prosecutors of the two *ad hoc* Tribunals, in contrast, are nominated by the UN Secretary General and appointed by the Security Council, whilst the Tribunal Judges are elected by the UN General Assembly upon nomination by all UN Member States and final recommendation by the Security Council. It has been suggested that this difference in the Tribunal election process reflects the notion that Tribunal Judges are exercising international criminal jurisdiction on behalf of the entire international community, whilst the Prosecutor is entrusted with the task of investigating and prosecuting by the Security Council, which created both Tribunals²³. In comparison, the process leading to the adoption of the ICC Statute largely seems to have been based on the aspiration that the Court will gradually come to enjoy universal support, so that the Assembly of States Parties will not only represent a group of member States, but the international community as such. The matter naturally stands in a different light when the Security Council refers situations to the Court pursuant to Chapter VII of the Charter. 17

The Deputy Prosecutors are also to be secretly elected by a majority of member States of the Assembly. The Prosecutor shall nominate three candidates for each position to be filled. The view had been expressed during the work of the Preparatory Committee and the Rome Conference that the position as Deputy Prosecutor should not be time-limited, based on political appointment, but rather be a professional position in the international civil service. This could ensure the continuity which is of such importance in large-scale, complicated investigations against persons in senior leadership positions, as well as contribute to maintaining organisational stability. Leading delegates were, however, of the view that the Prosecutor must be able to have a strong influence on who his or her deputies are, and that the same maximum term of service of nine years should apply to both positions. In setting the maximum term as long as nine years, states gave decisive weight to the interest of continuity in the work of the Office of the Prosecutor. This reinforces the responsibility of States Parties to elect individuals who can best serve the interests of the Court. The Assembly decided to elect the first Deputy Prosecutor for a shorter period than nine years, presumably to contribute to continuity of work. The bar to re-election in paragraph 4 *i.f.* rests on a notion of prosecutorial independence, but it is questionable whether such a notion would have been undermined if the bar had not applied to the Deputy Prosecutors. 18

The Preparatory Committee first considered setting an age limit of 70 or 65 years for the Prosecutor or the Deputy Prosecutors, but this proposal fell in the end on the assumption that age is not in itself a true indication of the person's mental capacities²⁴. 19

²³ See Morris and Scharf, *An Insider's Guide to the International Criminal Tribunal for the Former Yugoslavia*, I (1995), 161.

²⁴ Preparatory Committee (Consolidated) Draft, note 2, p. 81.

V. Paragraph 5: Outside activities

- 20 The prohibition against the Prosecutor and the Deputy Prosecutors being engaged in any activity which is likely to interfere with their professional functions or to affect confidence in their independence is another manifestation of the principle of functional prosecutorial independence, founded in the fundamental interest of impartial justice. The provision not to be engaged in activity which could actually interfere with prosecutorial functions goes beyond the obligation of members of the Office of the Prosecutor not to seek or act on instructions from any external source, as expressed in article 42 para. 1 *i.f.* Such activity may be governmental or non- governmental, international or domestic. Even activity which is *likely to affect confidence* in the independence is prohibited. The perception of independence is recognised as being important. It is fair to suggest that external activities must be completely neutral to the functions of Prosecutor or Deputy Prosecutor. Giving speeches or presentations at public conferences or taking part in seminars, for instance, would normally not seem to be inconsistent with this provision.
- 21 The prohibition against the Prosecutor or Deputy Prosecutors undertaking any other occupation is limited to those of a professional nature. Other professional activities than being Prosecutor or Deputy Prosecutor would not necessarily amount to an ‘occupation’, and such activities are not by definition incompatible with the functional independence of the Prosecutor, which is the main interest protected by the provision. It would also be relevant whether such professional activities are time-consuming, involve the use of Court resources, or are substantially remunerated.
- 22 No specific sanction is established in this paragraph against the Prosecutor’s or the Deputy Prosecutors’ engagement in such misconduct. Article 46, however, provides for removal from office to be decided by secret ballot by an absolute majority of the members of the Assembly in cases of serious misconduct, breach of duties under the Statute, or inability to execute functions required by the Statute on the part of the Prosecutor. The requirements for removal are the same in instances of a Deputy Prosecutor’s misconduct or breach of duties, except that the Assembly must act upon the recommendation of the Prosecutor. Furthermore, article 47 provides for *disciplinary measures* for misconduct of a less serious nature. Rules 23 through 32 of the Rules of Procedure and Evidence deal with removal from office and disciplinary measures. *Disqualification* of the Prosecutor or a Deputy Prosecutor in a particular case is governed by article 42 para. 8, which is dealt with below.

VI. Paragraph 6: Excuse

- 23 This provision gives the Presidency of the Court a discretionary power to excuse the Prosecutor or a Deputy Prosecutor from acting in a particular case at his or her request. There may be a variety of personal or other reasons behind a request to be excused. The request must be ‘in writing to the Presidency, setting out the grounds upon which he or she should be excused’ according to rule 33 para. 1 of the Rules of Procedure and Evidence. Rule 33 para. 2 provides that the Presidency shall ‘treat the request as confidential and shall not make public the reasons for its decision without the consent of the person concerned’.

VII. Paragraph 7: Impartiality

- 24 Article 42 paras. 7 and 8 deal with the *disqualification* of the Prosecutor or a Deputy Prosecutor by the Appeals Chamber. The criterion for disqualification is spelled out in paragraph 7, with a further elaboration in Rule 34 of the Rules of Procedure and Evidence. If the impartiality of the Prosecutor or a Deputy Prosecutor might be reasonably doubted on any

ground, that shall lead to disqualification. The paragraph mentions two examples. First, the criterion applies to situations where the Prosecutor or a Deputy Prosecutor has previously been involved in any capacity in the case in question. This does not refer to any previous action which the Office of Prosecutor has taken pursuant to the Statute. It entails that the Prosecutor or Deputy Prosecutor shall be disqualified from taking part in a case before the Court if he or she has been involved in any capacity in proceedings against the suspected person in other jurisdictions in connection with the alleged offenses. Such involvement would include criminal cases against the same person at the national level prior to the Prosecutor's or Deputy Prosecutor's appointment with the ICC. Secondly, involvement in a related criminal case at the national level against the person being investigated or prosecuted would also lead to disqualification under article 42 para. 7. Rule 34 para. 1 elaborates the grounds for disqualification by providing a listing in four points of what falls within the standard.

The standard of impartiality was a contentious issue during the negotiations of both this paragraph and the corresponding Rule. The struggle existed between a general approach, which preferred to adopt a provision general enough to include a variety of potentially unforeseeable situations that would serve the grounds for disqualification, and an illustrative approach, which tried to preclude any ambiguity about the standard by way of an exhaustive list of grounds²⁵. Article 12 para. 6 of the ILC draft merely mentioned the disqualification of Prosecutor and Deputy Prosecutor without giving any details. During the 1996 Preparatory Committee discussions, a proposal from Australia and the Netherlands suggested that more guidance be given under the term 'conflict of interest'.²⁶ In the 1998 Zutphen Draft, article 36, para. 5 provided that '[t]hey [the Prosecutor and Deputy Prosecutors] shall not participate in any case in which they are or have previously been involved in any capacity or in which their impartiality might reasonably be doubted on any ground, including an actual, apparent or potential conflict of interest'.²⁷ The article then enumerated in an exhaustive manner a few cases in which the Prosecutor and Deputy Prosecutors should refrain from participating.²⁸ Although views were expressed that the reasons for doubts should be set out specifically²⁹, the reference to 'actual, apparent or potential conflict of interest' was nevertheless deleted from the subsequent Draft Statute of the Preparatory Committee³⁰. Through the use of 'inter alia', that draft paragraph included a non-exhaustive list with a limited number of examples of grounds for disqualification³¹. The Rome Conference ultimately did not further specify the standard for impartiality. The Preparatory Committee draft paragraph was adopted as article 42 para. 7 of the Rome Statute with a reduction in examples of grounds. Further discussions regarding the rules of disqualification took place in the meetings of the Preparatory Commission Working Group on Rules of Procedure and Evidence. A non-exhaustive list of grounds with four additional examples for the disqualification of the Prosecutor is now provided by Rule 34, para. 1, which also applies to the judges.

Among all the listed examples, of particular relevance to the ICC's recent practice is Rule 34, para. 1(d), which provides that the grounds for disqualification shall include: '[e]xpression of opinions, through the communications media, in writing or in public

²⁵ Rwelamira, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 259, 302.

²⁶ Working paper submitted by Australia and the Netherlands, UN Doc. A/AC.249/L.2, 26 July 1996 (<https://www.legal-tools.org/doc/2e1de0/>).

²⁷ Report of the Inter-Sessional Meeting from 19 to 30 January 1998 in Zutphen, UN Doc. A/AC.249/1998/L.13, 2 April 1998. The language of this paragraph resembles article 16 para. 7 of the French proposal submitted in 1996, see working paper submitted by France, UN Doc. A/AC.249/L.3, 6 August 1996 (<https://www.legal-tools.org/doc/4d28ee/>).

²⁸ *Ibid.*

²⁹ Bassiouni, *The Legislative History of the International Criminal Court*, (2005) 297.

³⁰ Draft Statute of the International Criminal Court, in Report of the Preparatory Committee on the Establishment of an International Criminal Court, UN Doc. A/CONF.183/2/Add.1, 14 April 1998, article 43, para. 7.

³¹ *Ibid.*

actions, that, objectively could adversely affect the required impartiality of the person concerned'. This subparagraph is based on one of the grounds in the Spain and Venezuela proposal, which had used the term 'image of impartiality'.³² The proponents of this proposal argued that it was not only the actual impartiality of the person that was required but also the 'image' of impartiality.³³ Due to its vagueness and subjectivity, the word 'image' did not find its way into the final rule, but this does not mean that the appearance of impartiality would not constitute a ground for disqualification. In the Gaddafi case, the ICC Appeals Chamber has in fact extended the Prosecutor's obligation of impartiality beyond actual bias. The Chamber noted that 'it is not necessary to establish an actual lack of impartiality on the part of the Prosecutor. Rather, the question before the Appeals Chamber is whether it reasonably appears that the Prosecutor lacks impartiality'.³⁴ The determination of whether there is such an appearance of partiality, in the view of the Chamber, 'should be based on the perspective of a reasonable observer, properly informed'.³⁵ The judges did not disqualify the then Prosecutor Moreno Ocampo, holding that '[a] reasonable observer [...] would have understood that the Prosecutor's statements were based on the evidence available to him and that the judges would ultimately take the relevant decisions on the evidence'.³⁶ The decision, however, represents an unequivocal concern of the judges of Court that the former Prosecutor's inappropriate public statements, while not necessarily providing a basis for his disqualification, undermine the 'integrity' of the Court in the eyes of 'observers'.

- 27 According to rule 34 para. 2 a request for disqualification shall normally be made in writing 'when there is knowledge of the grounds on which it is based'. The paragraph further provides that the request 'shall state the grounds and attach any relevant evidence, and shall be transmitted to the person concerned, who shall be entitled to present written submissions'.
- 28 In the Preparatory Committee, it was further suggested that the Prosecutor and the Deputy Prosecutors should not act in relation to complaints made by their State of nationality or involving a person of their own nationality³⁷, but this proposal was rescinded on the grounds that requests for disqualification, in such cases, could be filed and dealt with under the general provisions.

Neither the Statutes nor the Rules of Procedure and Evidence of the two *ad hoc* Tribunals contain any provision on the disqualification of the Tribunal Prosecutor or the Deputy Prosecutors.

VIII. Paragraph 8: Disqualification

- 29 This paragraph provides that questions concerning the disqualification of the Prosecutor or a Deputy Prosecutor shall be decided by the Appeals Chamber³⁸. Subparagraph (a) grants the person being investigated or prosecuted before the Court the power to request, at any time, the disqualification of the Prosecutor or a Deputy Prosecutor on the grounds set out in article 42. It is unclear from the text of this subparagraph whether the persons who have standing to request disqualification are limited to those being investigated or prosecuted for

³² Proposal by Spain and Venezuela concerning the Rules of Procedure and Evidence, UN Doc. PCNICC/1999/WGRPE/DP.11, 19 July 1999, Ground (11) in Part (C), which initially read '[h]aving expressed, through the communications media, in writing or in public actions, opinions that might tarnish the required image of impartiality in the case'.

³³ Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 305.

³⁴ Prosecutor v. Gaddafi and AL-Senussi, Decision on the Request for Disqualification of the Prosecutor, ICC-01/11-01/11-175, 12 June 2012, pp. 11–12.

³⁵ *Ibid.*

³⁶ *Ibid.*, p. 17.

³⁷ See proposal of Singapore, 1996 Preparatory Committee II, p. 37.

³⁸ The ILC draft initially envisaged that the determination of disqualification should be made by the Presidency. The Zutphen Report presented 'Administrative Council' as an alternative. The options of 'the Appeals Chamber' and 'the Judges of the court' first appeared in the 1998 Preparatory Committee Draft Statute.

the crimes listed under article 5 of the Statute. In the Matsanga case, the ICC Appeals Chamber interpreted that Subparagraph (a) may also be applied to persons being investigated or prosecuted for offences against the administration of justice pursuant to article 70 of the Statute.³⁹ This interpretation resonates to some extent with Rule 77, paragraph c(ii) of the ITCY and ICTR Rules of Procedure and Evidence, which acknowledges possible conflict of interest on the part of the Prosecutor to engage in investigating allegations of contempt of the Tribunal. According to the Rule, where such conflict arises, an *amicus curiae* should be appointed by the Registrar to investigate the matter instead of the Prosecutor. In practice, the *ad hoc* tribunals have on several occasions appointed *amicus curiae* pursuant to this Rule.⁴⁰

The grounds referred to by this paragraph would seem to correspond to the impartiality test set out in article 42 para. 7. The strict wording of subparagraph (a) does not exclude that a request for disqualification may be based on article 42 para. 5. However, that provision refers to external activities and professional occupation which are of a general nature and would often not affect the applicant. If there is a serious breach of the Prosecutor's or a Deputy Prosecutor's obligation to act independently or not to engage in activities which could affect confidence in his or her independence, there are grounds for the Assembly to remove the person from office pursuant to article 46. Disqualification, on the other hand, would normally apply to one particular case where there may be a prejudice, based on specific grounds, against the accused or the suspect. A suspect or an accused may, of course, challenge the Prosecutor's or a Deputy Prosecutor's overall functional independence, and such challenges would have to be referred to the Assembly in accordance with article 46 and the Rules.

Article 42 para. 8 (b) entitles the Prosecutor or the Deputy Prosecutor to present his or her comments on the matter before the Appeals Chamber decides to disqualify. It would not seem necessary to engage the Prosecutor or Deputy Prosecutor if the Chamber finds the disqualification request manifestly ill-founded. In both the Gaddafi and the Matsanga case, comments were submitted by the Prosecutor following the orders issued by the Appeals Chamber.⁴¹

Rule 34 para. 3 of the Rules of Procedure and Evidence provides that questions concerning the disqualification of the Prosecutor or a Deputy Prosecutor shall be decided by a majority of the judges of the Appeals Chamber.

IX. Paragraph 9: Advisers

This provision concerns the need to have expertise on specific issues such as sexual and gender violence and violence against children in the Office of the Prosecutor. The provision must be read in light of article 42 para. 2 which gives the Prosecutor authority over the management and administration of the Office of the Prosecutor. Provided that the required expertise is available among the experts appointed as members of the Prosecutor's Office, article 42 para. 9 would seem to be satisfied and the Prosecutor would have full authority over the utilisation of all available positions within his or her Office and gratis personnel, as required by the Statute. It may be useful if the relevant expertise includes experience in working with traumas and psychological or physical disorders in a judicial context.

³⁹ Situation in Kenya, Decision on the Request for Disqualification of the Prosecutor in the Investigation against Mr. David Nyekorach-Matsanga, ICC-01/09-96-Red, 11 July 2012, para. 17.

⁴⁰ ICTR, *Prosecutor v. Ntirabatware*, Trial Chamber, 'Decision on Prosecution Oral Motion for Rule 77 Investigation related to Witness ANAF', 30 October 2009, Case No. ICTR-99-54-T. See also ICTR, *Prosecutor v. Nzabonimana*, 'Decision on the Prosecution's Urgent Motion Alleging Contempt of the Tribunal', 15 December 2009, Case No. ICTR-98-44D-T.

⁴¹ *Prosecutor v. Gaddafi*, 'Prosecution's Comments to the Request to Disqualify the Prosecutor from Participating in the Case against Mr. Saif Al-Islam Gaddafi', ICC-01/11-01/11-139, 20 May 2012; *Prosecutor v. Matsanga*, 'Prosecution's Comments on the 'Confidential Application with Confidential Annexes of Dr. David Nyekorach-Matsanga for the Disqualification of the Prosecutor pursuant to article 42(8) of the Statute', ICC-01/09-90-Conf-Exp, 12 June 2012.

Article 43 The Registry

1. The Registry shall be responsible for the non-judicial aspects of the administration and servicing of the Court, without prejudice to the functions and powers of the Prosecutor in accordance with article 42.

2. The Registry shall be headed by the Registrar, who shall be the principal administrative officer of the Court. The Registrar shall exercise his or her functions under the authority of the President of the Court.

3. The Registrar and the Deputy Registrar shall be persons of high moral character, be highly competent and have an excellent knowledge of and be fluent in at least one of the working languages of the Court.

4. The judges shall elect the Registrar by an absolute majority by secret ballot, taking into account any recommendation by the Assembly of States Parties. If the need arises and upon the recommendation of the Registrar, the judges shall elect, in the same manner, a Deputy Registrar.

5. The Registrar shall hold office for a term of five years, shall be eligible for re-election once and shall serve on a full-time basis. The Deputy Registrar shall hold office for a term of five years or such shorter term as may be decided by an absolute majority of the judges, and may be elected on the basis that the Deputy Registrar shall be called upon to serve as required.

6. The Registrar shall set up a Victims and Witnesses Unit within the Registry. This Unit shall provide, in consultation with the Office of the Prosecutor, protective measures and security arrangements, counselling and other appropriate assistance for witnesses, victims who appear before the Court, and others who are at risk on account of testimony given by such witnesses. The Unit shall include staff with expertise in trauma, including trauma related to crimes of sexual violence.

Literature: Clark, R.S., and Tolbert, D., 'Toward a Permanent International Criminal Court', in: Y. Danieli, E. Stamatopoulou and C.J. Dias (eds.), *The Universal Declaration of Human Rights: Fifty Years and Beyond* (Baywood Publishing Company 1998) 99; Ingadottir, T., Ngendahayo, F., and Viseur Sellers., P, *The Victims and Witnesses Unit (article 43.6 of the Rome Statute), A Discussion Paper*, The Project on International Courts and Tribunals (PICT 2002).

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A. Introduction/General remarks

The Registry, the Court's primary administrative arm, is established by article 43. In this respect, the Rome Statute follows the basic organizational structure provided for in the Statutes of the *ad hoc* Tribunals¹. However, article 43 is much more detailed than the related provisions of the Statutes of the *ad hoc* Tribunals, with provisions that spell out the role of the Registrar and his or her relationship with the other organs of the Court. Moreover, the relative position of the Registrar *vis-à-vis* the judicial organs and particularly the Prosecutor is different than in the *ad hoc* Tribunals.

The differences between the position of the Registry in the Court and the *ad hoc* Tribunals stem, in part, from the juridical basis of the institutions. As organs of the Security Council, the *ad hoc* Tribunals are a part of the United Nations' system and are subject to the rules and regulations applicable in that system, as well as oversight and funding by the Security Council and General Assembly respectively. Thus, Registrars of the *ad hoc* Tribunals are appointed by the Secretary-General and provide administrative services to the judicial organs, as well as to the Prosecutor. Under the Rome Statute, the Registrar is elected by an absolute majority of the judges and is thus in the more classical position of being the servant of the judges². Moreover, the Registrar's relationship with the Prosecutor is limited in scope, and the Prosecutor has full authority over the administration of his or her own staff and resources³, unlike the arrangements in the *ad hoc* Tribunals.

The ILC Draft Statute contained a provision regarding the Registry that outlined the method of election of the Registrar and Deputy Registrar and their respective terms; it also made reference to the staffing of the Registry and to staff regulations⁴. However, it did not describe the responsibilities of the Registry or the duties of the Registrar. The Preparatory Committee's Working Group on the Composition and Administration of the Court proposed bracketed language which defined the responsibilities of the Registry and alternative means of electing the Registrar and Deputy Registrar⁵. This approach was followed in the Zutphen and Final Drafts. The adoption of the Rules of the ICC have established a number of the Registrar's responsibilities in more detail, *i. e.*, in rule 13 (Functions of the Registrar), rule 14 (Operations of the Registrar), rule 15 (Records), rule 16 (responsibilities of the Registrar relating to victims and witnesses), rule 20 (responsibilities of the Registrar relating to the rights of the defence) and rule 21 (responsibility of the Registrar to propose criteria and procedures for the assignment of counsel and the establishment and maintenance of a list of counsel). The Regulations of the Court elaborate further on some of the Registrar's responsibilities, *e. g.*, regulation 24*bis* (submissions by the Registrar), 40 (language services of the Registry), regulations 69 to 73, 75 to 77, 79, 81, 83 to 85 (responsibilities of the Registrar relating to counsel issues and legal assistance), and regulation 90 (management of the detention centre).

In addition, in the Final Draft Statute, paragraph 6 of article 43 was added to provide that a Victims and Witnesses Unit would be in the Registry; this provision had previously been in another part of the Statute and was moved when it was decided that the Victims and Witnesses Unit should be under the authority of the Registrar. Rule 16 elaborates on the responsibilities of the Registrar relating to the Victims and Witnesses Unit. Moreover, rules 17, 18 and 19 establish the functions, responsibilities and required expertise of the Victims and Witnesses

¹ Statute of the International Criminal Tribunal for the Former Yugoslavia, an Annex to the Report of the Secretary-General Pursuant to paragraph 2 of Security Council Res. 808, ORSC, 48th Sess., UN Doc. S/12504 Ann. (1993), article 17 [hereinafter: ICTY Statute]. For purposes of this discussion, the Statute of the ICTR is similar to that of the ICTY Statute; therefore, references to the ICTY Statute cover both Tribunals' Statutes.

² Article 43 para. 4.

³ Article 42 para. 2.

⁴ 1994 ILC Draft Statute, article 13.

⁵ UN Doc. A/AC.249/1998/WG.7/CRP.1, article 17.

Unit. Moreover, regulation 41 provides the Victims and Witnesses Unit with the possibility to draw ‘any matter to the attention of a Chamber where protective measures under rule 87 or special measures under rule 88 require its consideration’.

- 5 Although articles 42 and 43 appear to imply a complete separation of services between those that are provided to the Prosecutor, of which the Prosecutor is responsible, and those services provided to the rest of the Court by the Registrar, the Court has developed a practice by which the Registrar provides services and facilities common to the judicial branch and the Office of the Prosecutor⁶. These include, *e.g.*, building management, finance, security, procurement, human resources, information technology, translation and communication matters. The step of creating certain common services makes sense from an operational point of view, as there are some services which can be provided more efficiently and with less duplication by one source rather than two. The Committee of Budget and Finance of the Court, as well as the Assembly of States Parties shared this view⁷. Thus, it is economically prudent to pass certain purely administrative services to the Registrar even though they are provided, in part, to the Prosecutor. This arrangement appears to run contrary to the spirit of the Rome Statute, which clearly states in article 42 para. 2 that the Prosecutor ‘shall have full authority over the management and administration of the Office [of the Prosecutor], including the staff, facilities and other sources thereof’. A 2010 report submitted to the Assembly of States Parties addressed these concerns. The report affirmed the independence of the Prosecutor and stressed that ‘neither the Presidency nor the Registry has any authority over the management or administration of the OTP or vice versa’⁸. In addition, the annexed Corporate Governance Statement of the International Criminal Court establishes a system of coordination for the delivery of services by the Registry to the OTP. In the event that a conflict cannot be resolved by agreement, as a last resort the Prosecutor may discuss the matter with the President, or the matter may be brought before Chambers⁹.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Responsibilities of the Registry

- 6 a) ‘administration and servicing of the Court’. Paragraph 1 of article 43 sets forth the principal responsibility of the Registry as administration of the Court¹⁰. As noted above, some of these responsibilities are now set forth in more detail in the Rules. For example, the Rules explicitly state that the Registrar is responsible for the establishment and the operation of a Victims and Witnesses Unit. In addition, the responsibilities of the Registrar relating to the rights of the defence are set forth in rule 20. It should be noted that article 43 uses the same language, *mutatis mutandis*, to describe the Registry’s principal responsibilities as the Statutes of the *ad hoc* Tribunals: ‘The Registry shall be responsible for the administration and servicing of the International Tribunal’¹¹. In the *ad hoc* Tribunals, administration and

⁶ Report of the Court on measures to increase clarity on the responsibilities of the different organs, 18 March 2010, ICC-ASP/9/CBF.1/12, p. 3.

⁷ Official Records of the Third Session of the Assembly of States Parties to the Rome Statute of the International Criminal Court, 6–10 Sep. 2004, ICC-ASP/3/25: Report of the Committee on Budget and Finance, paragraph 25, p. 176. In this report the Committee ‘expressed concern over the fragmentation between the organs and the lack of unanimity on a strategy to centralize administrative duties in the Registry, which may result in the possible duplication of activities. [...]’

⁸ *Supra* note 10, p. 2.

⁹ *Supra* note 10, p. 10.

¹⁰ *Supra* note 4, Paragraph 1 was not included in the ILC Draft Statute; Japan, France and Australia during the 1996 Preparatory Committee proposed similar language. 1996 Preparatory Committee I, pp. 39, 41. The relevant language appears in brackets in the Zutphen Draft, p. 79.

¹¹ ICTY Statute, note 1, article 17.

services has meant the traditional services provided by administrations in international organizations, such as building management, finance, security, procurement, human resources, information technology, translation and communication matters, as well as services which are unique to an international court¹². The latter include administration of a detention unit, defence counsel/legal aid matters (particularly as the Court will appoint counsel for indigent defendants¹³) and court management, *e.g.* scheduling, court clerks, transcript review, plenary sessions¹⁴. Thus, the general areas of responsibility of the Registry under the Rome Statute appear to be roughly the same as that of the Tribunals, subject to limitations noted in the discussion below. In addition to administration and servicing, Australia proposed, during the 1996 session of the Preparatory Committee, that the Registrar serve as the Court's 'channel of communications', which is provided for in the *ad hoc* Tribunals' Rules¹⁵. This proposition did not find its way into the Rome Statute, but it has been included in rule 13, para. 1, which explicitly states that 'the Registrar shall serve as the channel of communication of the Court'.

b) 'non-judicial aspects'. The first limitation placed on the Registry is that its responsibility is only for 'non-judicial' aspects of the Court's administration. This provision was not in the Zutphen Draft or previous reports and first appears in the Final Draft of the Preparatory Committee. It is apparently intended to ensure that the Registry does not interfere with judicial prerogatives. However, it is suggested that this limitation should be read narrowly only to cover any administrative aspects of the Court's judicial decision-making process, such as the judges' deliberations or consultations amongst the judges themselves. It is not intended to affect the Registry's duties to provide for the management of the Court's judicial activities, including scheduling and support services. Matters such as setting up protective measures and security arrangements for victims and witnesses and providing for internal security of the Court will, in accordance with article 43 para. 6 and rule 13 para. 2, remain the responsibility of the Registrar. Moreover, as provided by article 44, it will be the responsibility of the Registrar to recruit personnel to serve the Court, without prejudice to the authority of the Office of the Prosecutor in this regard. These types of support cannot be provided by the judges themselves and thus must be provided by the Registry.

2. Relationship with the Prosecutor

The provision that the Registrar's powers are limited by those given to the Prosecutor under article 42 first appears in the Rome Statute itself and was not contained in any of the work of the Preparatory Committee. Although the Statutes of the *ad hoc* Tribunals provide that the Office of the Prosecutor is a separate and independent organ of the respective Tribunals, the Tribunals' Registries are charged with providing administration and servicing to both the Chambers and the Office of the Prosecutor¹⁶. Thus, for example, the *ad hoc* Tribunals' Statutes provide that Prosecutor's staff is 'to be appointed by the Secretary-General on the recommendation of the Prosecutor', which means that the Registrar, who has the Secretary-General's delegation of authority over the appointment of staff, has the ultimate power of appointment. The Rome Statute takes a different approach to the division of administrative responsibilities. Article 42 provides that the Prosecutor will have 'full authority over the Office [of the Prosecutor], including the staff, facilities and other resources'. These are sweeping administrative powers which would appear to have provided the Prosecutor with his or her own administration and administrative staff. However, as

¹² See, *e.g.*, YbICTY 66–72 (1996).

¹³ See article 67 (d).

¹⁴ YbICTY, note 16.

¹⁵ Rules of Procedure and Evidence of the International Criminal Tribunal for the former Yugoslavia, UN Doc. IT/32, Rev. 48 (November 2012), rule 33.

¹⁶ ICTY Statute, note 1, articles 16 and 17.

mentioned earlier, the Assembly of States Parties expressed concerns that this approach could lead to unnecessary duplication of activities¹⁷. The Prosecutor's authority over the management and administration of the Office of the Prosecutor is emphasized by the caveat in article 43 on the administrative responsibilities of the Registry, that the Registry's responsibilities are 'without prejudice to the functions and powers of the Prosecutor' under article 42. This limitation is reinforced in rule 13 para. 1, which states that 'without prejudice to the authority of the Office of the Prosecutor under the Statute [...], the Registrar shall serve as the channel of communication'.

- 9 The reasons for the separate administrative arrangements under the Rome Statute stem, at least in part, from the different relationship that the Registry has with the judicial organs. The Registrar and Deputy Registrar are both elected by the judges; thus, it seems to be inappropriate for the Registrar, who is elected by the judges, to provide administrative services to the Office of the Prosecutor, which is after all a separate organ of the Court. By deciding that the Registrar is to be elected by the judges, it would appear axiomatic that the Registry primarily serves the judicial organs and that the Prosecutor will need his or her own administration. This arrangement also reflects concerns expressed by commentators that a shared Registry could 'interfere to a degree with the impartiality and legitimacy of 'the Court'¹⁸. On the other hand, the arguments that a shared Registry would increase efficiency and cooperation, which were the basis of the shared administration of the *ad hoc* Tribunals¹⁹, were at least implicitly rejected. Nonetheless, as noted above, in view of the Assembly of States Parties' concerns regarding the duplication of administrative activities, and the Court's developed practice to entrust the Registry with the provision of administrative services to the OTP, the current arrangement appears likely to be maintained for the sake of efficiency and to avoid duplication.

II. Paragraph 2

1. The Registrar: 'the principal administrative officer of the Court'

- 10 Paragraph 2 of article 43 establishes the Registrar as head of the Registry and states that he or she is 'the principal administrative officer of the Court'. This provision was contained in the ILC Draft Statute and was retained and included in the Rome Statute. Although the Statutes of the *ad hoc* Tribunals do not have the same precise wording, the respective Registrars are the chief administrative officers of both of these institutions. However, it must be noted that the Registrar's position under the Rome Statute has been altered substantially by the administrative powers given to the Prosecutor over his or her office by article 42 and expressly reserved in paragraph 1 of article 43. Certainly in view of this arrangement, the Registrar's role is actually limited to being the chief administrative officer for the judicial organs, as well as head of the Registry. However, it appears that there are certain general administrative duties that the Registrar retains, provided these do not interfere with the Prosecutor's powers. As noted above, the Registrar provides certain common services to the Court as a whole, including the Prosecutor. Moreover, under article 44 the Registrar shall propose staff regulations in the first instance, although only with the agreement of the Prosecutor and the President and subject to approval by the Assembly of States Parties²⁰. Such Staff Regulations were adopted by the Assembly of States Parties in 2003 and may be 'supplemented or amended by the Assembly of States Parties, on the proposal of the Registrar, with the agreement of the Presidency and the Prosecutor'.²¹ In 2005 the Assembly

¹⁷ See note 11.

¹⁸ See Morris and Scharf, *An Insider's Guide to the International Criminal Tribunal for the Former Yugoslavia*, Vol. I (1995) n.466.

¹⁹ *Id.*

²⁰ See article 44 para. 3.

²¹ Staff regulations for the International Criminal Court, adopted at the 5th plenary meeting on 12 September 2003, ICC-ASP/2/Res.2, Reg 12.1.

of States Parties also adopted the Staff Rules of the International Criminal Court, pursuant to a proposal from the Registry.²²

2. Exercise of functions under the authority of the President

Under the Rome Statute, the Presidency is responsible for the ‘proper administration of the Court, with the exception of the Office of the Prosecutor’²³. In view of this organizational structure, it is appropriate that the Registrar, as the judicial organs’ principal administrative officer, should be under the President’s authority. This approach was suggested by France in the 1996 Preparatory Committee²⁴ and follows rule 33 ICTY. In the *ad hoc* Tribunals, the Registrar is appointed by the Secretary-General and is responsible for implementing various UN rules and regulations, *e.g.* the Registrar makes appointments of staff on behalf of the Secretary-General. In this sense, the Registrar of the *ad hoc* Tribunals, while being under the general authority of the Tribunal’s President, also has responsibilities which run directly to the Secretary-General. Thus, the lines of authority in the Court will differ from that of the *ad hoc* Tribunals, and the Registrar, who is elected by the judges and under authority of the President is, in essence, more clearly the servant of the judicial organs than the Tribunals’ Registrars.

III. Paragraph 3: Qualifications

Article 43 para. 3 sets forth the general qualifications of the Registrar and Deputy Registrar, that they be of ‘high moral character’, ‘highly competent’ and ‘fluent in at least one of the working languages of the Court’. Although there had been some suggestions by delegations in the Preparatory Committee for such qualifications²⁵, no provision was made in this regard in the earlier Drafts until the Rome Conference. The requirements of high moral character and knowledge of a working language are also made with respect to the judges²⁶. High moral character is a general requirement in many jurisdictions for similar positions. Moreover, competence and knowledge of a working language are qualifications essential to the efficient operations of the Registry and the Court.

IV. Paragraph 4: Election

One of the key issues regarding the office of the Registrar is how the incumbent is appointed. It is critical because the method of selection establishes the nature of the relationship of the Registrar with the other organs of the Court and with the Assembly of States Parties. The ILC Draft Statute proposed that the judges elect the Registrar by majority vote using a secret ballot, and this formulation has been maintained in the Rome Statute and applied²⁷ despite some proposals that the position be elected by the States Parties²⁸. There are certainly some arguments in favour of the appointment of the Registrar directly by the States Parties. For example, the Registrar has primary responsibility for administering the funds provided to the Court (except for the Office of the Prosecutor). Thus, it is a bit odd that he or she reports on financial matters to the President, who is a judicial appointee and who will probably have limited administrative and financial experience. On the other hand, under the

²² Staff rules of the International Criminal Court, adopted at the fourth session of the Assembly of States Parties, 28 Nov. – 3 Dec. 2005, ICC-ASP/4/3.

²³ See article 38 para. 3 (a).

²⁴ 1996 Preparatory Committee I, p. 39.

²⁵ *Ibid.*

²⁶ See article 36 para. 3 (a) and (c).

²⁷ On 8 March 2013 the judges of the Court, sitting in a plenary session, elected Herman von Hebel as the Court’s Registrar by an absolute majority, in secret ballot.

²⁸ Preparatory Committee (Consolidated) Draft, p. 82.

Rome Statute the Registrar's principal role is to provide administrative services to the judicial organs, and the judges are perhaps in the best position to determine who can best provide the services they require. Moreover, paragraph 4 of article 43 and rule 12 paras. 1, 2 and 3 do provide for the possibility that the Assembly of States Parties may make recommendations for the position of Registrar, and the judges are to take those views into account. Past elections indicate that the Assembly of States Parties is reluctant to recommend particular candidates. Instead, it has approved the Presidency's shortlist and recommended that it take into account a list of elements, which include the criteria for the election of judges in article 36²⁹. With respect to the Deputy Registrar, this office is only filled if required and thus remained unoccupied until 2008.³⁰ It may in the future also be vacated when the Court's docket is light. The Deputy Registrar is elected in the same manner as the Registrar.

V. Paragraph 5: Term of office

- 14 The Registrar serves a term of five (5) years and may be re-elected once for an additional five (5) years, for a total of ten (10) years, and will serve on a full-time basis. As the President serves a three (3) year term and may also only be re-elected once, it is likely that the Registrar will serve under more than one President. This potentially means that the Registrar will be in a position of having a much greater knowledge of the administration of the Court than the President. The Deputy Registrar, if and when he or she is elected, will serve for five (5) years or shorter, as determined by the judges, and may serve on an as needed basis. This provision is, however, silent on the re-election of the Deputy Registrar. This creates the potentially anomalous situation that the Registrar may have to replace a Deputy Registrar, who is functioning well, during the course of the Registrar's potential ten (10) year tenure, as the Deputy Registrar is limited to five (5) years of service or less. A broader interpretation would be that there is no prohibition of re-election, such as there is for the Prosecutor and Deputy Prosecutor in article 42, and thus re-election would be possible. Paragraph 5 is essentially the same language as was proposed by the ILC Draft Statute, despite various proposals to modify the length of the terms and other technical aspects of the provision³¹.

In case of death of the Registrar or a Deputy Registrar, the Presidency must inform the President of the Bureau of the Assembly of States Parties in writing, in accordance with rule 36. Moreover, rule 37 states that if the Registrar or the Deputy Registrar decide to resign, he or she is to communicate such decision in writing to the Presidency who will convey this information to the Bureau of the Assembly of States Parties.

VI. Paragraph 6

1. Victims and Witnesses Unit

- 15 a) 'within the Registry'. One of the principal issues that the Court faces is how it will deal with victims and witnesses. There are a number of provisions relating to victims and witnesses, including article 68, which addresses protection measures for witnesses, as well as the provisions for reparations under article 75. In the *ad hoc* Tribunals, victims and witnesses matters have principally been dealt with by a Victims and Witnesses Unit in the Registry³². The proposal for a Victims and Witnesses Unit for the Court emerged during the Preparatory

²⁹ Recommendation concerning the election of the Registrar of the International Criminal Court, adopted at the 12th plenary meeting on 23 April 2003, ICC-ASP/1/Recommendation 1; Recommendation concerning the election of the Registrar of the International Criminal Court, adopted at the 7th plenary meeting on 14 December 2007, ICC-ASP/6/Recommendation 1; Recommendation concerning the election of the Registrar of the International Criminal Court, adopted at the 8th plenary meeting on 21 November 2012, ICC-ASP/11/Rec.1.

³⁰ Report of the International Criminal Court, UN Doc. A/64/356 (2009), p. 17.

³¹ Preparatory Committee (Consolidated) Draft, p. 82.

³² See, generally, Clark and Tolbert, in: Danieli *et al.* (eds.), *The Universal Declaration of Human Rights: Fifty Years and Beyond* (1998) 99.

Committee. It was noted that there was support, based on 'the precedent of the Yugoslavia Tribunal, for a witness and victim unit to be established to provide services and support to victims and witnesses, under the supervision of the office of either the Registrar or the Prosecutor'³³. The Zutphen Draft noted the 'question of the Victim and Witnesses Unit should be addressed' in the article on the Registry³⁴. However, in the Preparatory Committee's Final Draft, it was noted that some delegations were of the view that the Victims and Witnesses Unit should be in the Office of the Prosecutor³⁵. This view did not prevail because it was widely felt that the main purpose of the Victims and Witnesses Unit would be to assist and protect victims and witnesses in their own interest rather than merely facilitate investigations³⁶. It was therefore decided to locate the Victims and Witnesses Unit in the Registry under the Registrar's supervision³⁷, which is elaborated on in rules 16 through 19 ICC.

b) 'in consultation with the Office of the Prosecutor'. As a compromise to the propo- 16
nents of placing the Victims and Witnesses Unit in the Office of the Prosecutor, language was added to this paragraph to provide that the Victims and Witnesses Unit would carry out its duties 'in consultation with the Office of the Prosecutor'. While other parts of the Rome Statute make it clear that the Office of the Prosecutor will have primary responsibility for the safety and security of witnesses during the investigation phase³⁸, the apparent requirement that the Victims and Witnesses Unit carry out its duties relating to the protection of, and assistance to, witnesses in a cooperative or consultative relationship raises several issues. First, it must be pointed out that at least some of the witnesses and victims who need assistance and/or protection will be defence witnesses. It would be entirely inappropriate for the Victims and Witnesses Unit, which must be rigorously independent to maintain its credibility with those very victims and witnesses, to consult with the Office of the Prosecutor regarding defence witnesses.³⁹ Moreover, there may be instances in which the Office of the Prosecutor will take actions that are more in the interests of prosecution strategy rather the interests of the victim/witness, and surely the Victims and Witnesses Unit must be able to act independently in such situations. In view of these considerations, it is submitted that the Victims and Witnesses Unit's obligation to consult with the Office of the Prosecutor should not be interpreted strictly and that this provision does not proscribe similar consultations by the Victims and Witnesses Unit with the defence.⁴⁰ The Registrar's responsibilities in this regard, which are principally of an advisory nature, are set out in more detail in rule 16 ICC.

The Appeals Chamber, in considering the witness protection system in relation to 17
'preventative relocation' by the Prosecution, has determined that responsibility for, and authority over, witness protection ultimately rests with the Victims and Witnesses Unit⁴¹.

³³ 1996 Preparatory Committee I, p. 59, para. 281.

³⁴ Zutphen Draft, p. 79.

³⁵ Preparatory Committee (Consolidated) Draft, p. 83, n. 64.

³⁶ Ingadottir, Ngendahayo and Viseur Sellers., *The Victims and Witnesses Unit (article 43.6 of the Rome Statute)*, A Discussion Paper, The Project on International Courts and Tribunals (2002). The rationale of the ICTY for establishing the Victims and Witnesses Unit under the Registry rather than the Office of the Prosecutor 'shifted the emphasis of its work from ensuring effective investigation and prosecution to sensitive cases to the more human concern of providing counseling, psychological help and support services to victims and witnesses'; see Statement by the President of the Tribunal, A. Cassese, UN Doc. IT/29 (1994).

³⁷ For arguments supporting this position, see Clark and Tolbert, note 35, 99, 109.

³⁸ See article 68 para. 1.

³⁹ *Prosecutor v. Katanga and Chui*, No. ICC-01/04-01/07, (Registrar's Submissions) Victims and Witnesses Unit's considerations on the system of witness protection and the practice of 'preventive relocation', 12 June 2008, para. 48. See also *Prosecutor v. Lubanga Dyilo*, No. ICC-01/04-01/06, Decision on a General Framework concerning Protective Measures for Prosecution and Defence Witnesses, Pre-Trial Chamber I, 19 September 2006.

⁴⁰ This approach appears to be favoured by the Appeals Chamber. *Prosecutor v. Katanga and Chui*, No. ICC-01/04-01/07 OA 7, Judgment on the appeal of the Prosecutor against the 'Decision on Evidentiary Scope of the Confirmation Hearing, Preventive Relocation and Disclosure under article 67(2) of the Statute and Rule 77 of the Rules' of Pre-Trial Chamber I, Appeals Chamber, 26 November 2008, para. 92. See also rule 18(b).

⁴¹ *Id.*

The Prosecutor's 'general mandate in relation to protection matters' accordingly appears limited to 'general measures that ordinarily might be expected to arise on a day-to-day basis during the course of an investigation or prosecution with the aim of preventing harm from occurring to victims and witnesses'⁴².

- 18 c) 'protection measures and security arrangements, counselling and other appropriate assistance'. The responsibilities of the Victims and Witnesses Unit were addressed extensively in the Preparatory Committee and were generally focused on providing assistance and protection to witnesses, their family members and others at risk⁴³. The provision in the Preparatory Committee's Final Draft differs in significant respects from the text adopted in the Rome Statute on both the measures available to the Victims and Witnesses Unit and to those to whom the services can be delivered, which issue is addressed in the next sub-section. The areas of responsibility of the Victims and Witnesses Unit, like those established in the *ad hoc* Tribunals, fall into two principal categories: protection measures and assistance services. With respect to protection measures – those measures or steps which are taken to protect the witnesses, such as witness anonymity⁴⁴ – the Preparatory Committee's Final Draft provided that the Victims and Witnesses Unit is to provide advice to the 'organs of the Court on appropriate measures'. This seems the correct approach, as the power to provide protection measure rests with the Court to determine the appropriate measure(s). Generally speaking, a unit or organ outside the Court might have standing to raise such issues to the Court, but it would not have the power to grant such protection measures on its own accord. However, the text of article 43, which states that the 'Unit shall provide ... protection measures and security arrangements ... for witnesses', could be read to imply that the Victims and Witnesses Unit has the power itself to order protection measures. It is arguably not within the power of the Victims and Witnesses Unit to order protection measures for witnesses, as it does not have the means to issue such orders or to enforce them. However, the Court's early jurisprudence appears to give the Unit a greater role than this. In a submission to the Trial Chamber, the Registrar adopted the view that the Victims and Witnesses Unit's role is primarily an advisory one. The Trial Chamber appeared to reject this, stating that it is the responsibility of the Unit to provide protective measures to victims once they have lodged an application with the court⁴⁵. Further, as mentioned above, the Appeals Chamber has given the Unit primary responsibility over the system of protective measures, including relocation of witnesses⁴⁶.

It should be noted that the Rome Statute gives the Victims and Witnesses Unit a much stronger mandate regarding the provision of assistance than that established by the Statutes of the *ad hoc* Tribunals, which provide for the protection of witnesses but are silent with regard to support services⁴⁷.

- 19 A wide variety of assistance and support is required by victims, who are far from home testifying about horrendous crimes and subject to often unfamiliar court proceedings featuring cross-examination⁴⁸; this assistance includes logistical support and counselling. These types of assistance do not require any special intervention by the Court, and the text of article 43 para. 6 is clear, unlike the terms used to describe protection matters. Unfortunately, the text of article 68 para. 4 provides that the Victims and Witnesses Unit 'may advise the

⁴² *Id.*, para. 98.

⁴³ Preparatory Committee (Consolidated) Draft, p. 82.

⁴⁴ For discussion of various protection measures, see Clark and Tolbert, note 35, 99, 21.

⁴⁵ *Prosecutor v. Lubanga Dyilo*, Case No. ICC-01/04-01/06, (Registrar) Protection of Victims and Mandate of the Victims and Witnesses Unit, 12 December 2007; *Prosecutor v. Lubanga Dyilo*, Case No. ICC-01/04-01/06, (Trial Chamber) Decision on victims' participation, 18 January 2008, para. 137.

⁴⁶ *Prosecutor v. Katanga and Chui*, note 43.

⁴⁷ Ingadottir *et al.*, note 39, 21. See also article 21 ICTR Statute and article 22 ICTY Statute. In rule 34 of both *ad hoc* Tribunals' Rules, which refers to article 21 and article 22 respectively, support services are viewed as a form of complementary measures to a substantive program of witness protection.

⁴⁸ For a full description of forms of assistance, see Clark and Tolbert, note 35, 99, 21.

Prosecutor and the Court ... on appropriate counselling and assistance as referred to in article 43, paragraph 6'. This is the converse of the drafting difficulty discussed above. It is submitted that unlike protection measures, the Victims and Witnesses Unit does not need court authorization to counsel or provide logistical support to victims/witnesses and that the Victims and Witnesses Unit need not obtain any authorization before rendering such assistance. These provisions should be interpreted broadly, in accordance with the spirit of the Rome Statute, so as to enable the Victims and Witnesses Unit to be a principal actor in the process⁴⁹. In addition to acting as advisor to the Prosecutor and the judicial organs, the Unit should have the power to provide protective measures *proprio motu*, security arrangements and other assistance for victims and witnesses⁵⁰.

d) **Persons at risk on account of their testimony.** The next issue is to whom are these services available. These include witnesses and victims⁵¹ who appear before the Court and others put at risk by the testimony of witnesses. The scope of this subparagraph was narrowed at Rome. The Preparatory Committee's Final Draft provided for assistance and counselling to family members of witnesses, but 'family members' have been left out of the Rome Statute. This deletion would appear to eliminate such services for a victim's family members unless they are put at risk by their family member's testimony. However, the Trial Chamber has held that 'the immediate family or dependents of [the] victim' may be entitled to relevant services.⁵² The question remains whether 'at risk' means at physical risk or whether other risks such as psychological injury could be considered as 'at risk' under this sub-section. Given the purposes of the Victims and Witnesses Unit, *i. e.* to protect and assist victims and witnesses, and the fact that family members in some cases will be accompanying these victims and witnesses to the Court's proceeding, there is at least some room for argument that family members should still be afforded counselling and other forms of assistance. A second interpretive question arises as to whether the Victims and Witnesses Unit is responsible for providing assistance and protection services to victims during the investigative stage, as the text limits the category of victims who may receive the benefits of such services to those 'who appear before the Court'. It is submitted that this provision should be construed broadly, so that it does not exclude assistance by the Victims and Witnesses Unit during the investigation stage as the need for protection and security measures might start as early as the initiation by the Prosecutor of an investigation. In this connection it is noteworthy that article 68 para. 1 specifically calls on the Prosecutor to take measures to protect victims and witnesses during the investigation stage of the proceedings. In view of the consultation that the Victims and Witnesses Unit is required to have with the Office of the Prosecutor, it is also appropriate for the Victims and Witnesses Unit to provide assistance to victims and witnesses in the investigation stage of the proceedings as well. This view is shared by the Trial Chamber, which has interpreted this provision broadly.⁵³ These considerations apply equally to the Victims and Witnesses Unit's work with defence witnesses.

2. Staff

It was recognized at the Preparatory Committee that, in view of the types of crimes over which the Court has jurisdiction, the staff of the Victims and Witnesses Unit would need expertise in areas such as trauma and sexual violence. This has also been recognized by rules

⁴⁹ See *Prosecutor v. Lubanga Dyilo*, Case No. ICC-01/04-01/06, (Pre-Trial Chamber) Decision on the Practices of Witness Familiarisation and Witness Proofing, 8 November 2006.

⁵⁰ Ingadottir *et al.*, note 39, 21; *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, (Trial Chamber) Decision on victims' participation, 18 January 2008.

⁵¹ Victim is defined in rule 85. See also *Prosecutor v. Lubanga Dyilo*, Case No. ICC-01/04-01/06, Decision on victims' participation, Trial Chamber I, 18 January 2008, paras. 87–94; *Situation in the Democratic Republic of Congo*, ICC-01/04, Decision on the Applications for Participation in the Proceedings of VPRS 1, VPRS 2, VPRS 3, VPRS 4, VPRS 5 and VPRS 6, Pre-Trial Chamber I, 17 January 2006.

⁵² *Prosecutor v. Lubanga Dyilo*, Case No. ICC-01/04-01/06, Decision on victims' participation, Trial Chamber I, 18 January 2008.

⁵³ *Prosecutor v. Lubanga Dyilo*, note 48, paras. 136–137.

of the *ad hoc* Tribunals, which provide that ‘due consideration be given to the employment of women’ and note the areas of expertise in which counselling will need to be provided⁵⁴.

The Victims and Witnesses Unit staff will deal with witnesses and victims belonging to various and often unfamiliar societies and cultures on a daily basis. In addition to these humanitarian functions, it will handle highly confidential information on behalf of all parties and collaborate with States that may have a particular interest in the outcome of trial⁵⁵. Moreover, it is difficult to foresee the number of staff required working in the Victims and Witnesses Unit. The *ad hoc* Tribunals relied heavily on *gratis* personnel in their early years, a number of whom worked with the victims and witnesses units⁵⁶. According to article 44 para. 4 Rome Statute, *gratis* personnel offered by States Parties, intergovernmental or non-governmental organizations, may only be employed in exceptional circumstances. Although it is not advisable for the Victims and Witnesses Unit to overly rely on *gratis* personnel, who are after all probably seconded by only a handful of States, in the case of staff performing humanitarian support functions, this restriction should be interpreted liberally so as to allow victims and witnesses the psychological and humanitarian support that they will need. Of course, the use of *gratis* staff will require compliance with to the Rome Statute’s requirements for equal geographical, gender and legal systems representation among the Court’s staff⁵⁷.

⁵⁴ ICTY, note 19, rule 34.

⁵⁵ Ingadottir *et al.*, note 39, 10.

⁵⁶ *Id.*, it should be noted that the United Nations General Assembly, in its Resolution 51/243 of 15 Sep. 1997, requested that the Secretary-General phase out *gratis* personnel.

⁵⁷ *Id.*

Article 44 Staff

1. The Prosecutor and the Registrar shall appoint such qualified staff as may be required to their respective offices. In the case of the Prosecutor, this shall include the appointment of investigators.

2. In the employment of staff, the Prosecutor and the Registrar shall ensure the highest standards of efficiency, competency and integrity, and shall have regard, *mutatis mutandis*, to the criteria set forth in article 36, paragraph 8.

3. The Registrar, with the agreement of the Presidency and the Prosecutor, shall propose Staff Regulations which include the terms and conditions upon which the staff of the Court shall be appointed, remunerated and dismissed. The Staff Regulations shall be approved by the Assembly of States Parties.

4. The Court may, in exceptional circumstances, employ the expertise of gratis personnel offered by States Parties, intergovernmental organizations or non-governmental organizations to assist with the work of any of the organs of the Court. The Prosecutor may accept any such offer on behalf of the Office of the Prosecutor. Such gratis personnel shall be employed in accordance with guidelines to be established by the Assembly of States Parties.

Literature: Amerasinghe, C. F., *The Law of the International Civil Service* (OUP 2nd edition 1994).

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A. Introduction/General remarks

The authority to appoint staff as well as the criteria guiding the selection of staff is established in article 44; moreover, this article also addresses the manner in which Staff Regulations are to be promulgated and the issue of gratis personnel. The standards established in this article are generally in line with the recruitment criteria in the United Nations common system and will be subject to the general oversight of the Assembly of States Parties, which will play a role akin to the General Assembly's regarding personnel policies. One of the most controversial aspects of the *ad hoc* Tribunals' relationship with the General Assembly has related to the employment of gratis personnel; this issue is the subject of paragraph 4 of article 44.

Staffing matters were not addressed in the ILC Draft Statute, but were discussed in the Preparatory Committee, particularly the issue of gratis personnel. The Zutphen Draft provided that the Prosecutor and Registrar would appoint staff separately, with separate staff regulations being drawn by each office¹. Provision was also made for gratis personnel who

¹ Zutphen Draft, p. 79.

were requested by the Prosecutor's office, but there was no provision for gratis personnel for any other organ of the Court. The source of gratis personnel was limited to States Parties, and the services of such personnel was limited only to the specific case for which those services were requested 'for the duration of' that case². The Preparatory Committee's Final Draft substantially revised this framework and provided for a single set of staff regulations 'for all the organs of the Court', which was to be proposed by the Registrar with the agreement of the Presidency and the Prosecutor and subject to comment by the Assembly of States Parties³. A bracketed provision relating to gratis personnel would have allowed for gratis personnel from any States Party or international governmental organization to work for any organ of the Court. The Rome Statute adopted this latter draft provision, making several other modifications, which are discussed below.

As it was anticipated that establishing and promulgating the Court's staff regulations would take some time, the Assembly of States Parties, during its first session in September 2002⁴, adopted a resolution⁵ setting forth certain guidelines to be applied in the selection and appointment of staff of the Court until staff regulations were adopted in accordance with the Rome Statute. Moreover, pending the adoption of such staff regulations, the Director of Common Services had, under the authority vested in him by a decision of the Assembly of States Parties⁶, promulgated and implemented provisional staff regulations which entered into force on 1 November 2002 and which had enabled the Court to recruit qualified and competent staff to establish the Court. These provisional staff regulations were based on the United Nations Staff Regulations and were quite similar to staff regulations of other international organizations⁷. The Registrar, with the agreement of the Presidency and the Prosecutor, submitted draft staff regulations⁸ to the Assembly of States Parties for approval during its second session in September 2003⁹. The ASP approved these draft staff regulations¹⁰ proposed by the Registrar, annexed ASP Resolution 10¹¹ to these regulations and decided that this resolution shall continue to apply as an integral part of the Staff Regulations.

² *Ibid.*

³ Preparatory Committee (Consolidated) Draft, p. 83.

⁴ The first session of the Assembly of States Parties was held in New York from 3–10 Sep. 2002. See Report of the Assembly of States Parties, Official Records of the First Session of the Assembly of States Parties to the Rome Statute of the International Criminal Court, 3–10 Sep. 2002, ICC-ASP/1/3 (2002) as well as in the Report of the Working Group of the Whole, Annex 1.

⁵ Resolution ICC-ASP/1/Res.10: Selection of the staff of the International Criminal Court.

⁶ ICC-ASP/1/Decision 2 dated 3 Sep. 2002: Interim arrangement for the exercise of authority pending the assumption of office by the Registrar.

⁷ Report of the Inter-Sessional Meeting of experts from 11 to 15 Mar. 2002 in The Hague, The Netherlands, PCNICC/2002/INF/2, p. 6. The possibility that the Court would follow the United Nations common system was discussed during the Inter-Sessional Meeting in The Hague in March 2002. There was support for the position that the United Nations Staff Regulations could serve as a useful model for the Court to promulgate its own regulations. It was further noted that if the Court would follow the United Nations common system, consistency on matters such as qualifications of posts, the level of remunerations and social security benefits would need to be ensured. The ASP, by taking the decision to join the United Nations Joint Staff Pension Fund (ICC-ASP/1/Decision 3 dated 9 Sep. 2002: Participation of the International Criminal Court in the United Nations Joint Staff Pension Fund) appeared to have accepted the view that it would be more beneficial for the Court to become part of the United Nations common system rather than establishing a *sui generis* system.

⁸ ICC-ASP/2/6 dated 7 Aug. 2003: Draft staff regulations of the International Criminal Court.

⁹ The second session of the Assembly of States Parties was held in New York from 8–12 Sep. 2003. See Report of the Assembly of States Parties, Official Records of the Second Session of the Assembly of States Parties to the Rome Statute of the International Criminal Court, 8–12 Sep. 2003, ICC-ASP/2/10 (2003).

¹⁰ ICC-ASP/2/Res.2 dated 12 Sep. 2003: Staff regulations of the International Criminal Court.

¹¹ Resolution ICC-ASP/1/Res.10: Selection of the staff of the International Criminal Court.

B. Analysis and interpretation of elements

I. Paragraph 1: Appointment of staff

The authority for recruitment and appointment of staff for the Registry and the Office of the Prosecutor is placed in the hands of the Registrar and the Prosecutor respectively under article 44 para 1. They are required to appoint ‘qualified’ staff, a provision similar to the United Nations Staff Regulations, which require that vacancies should be filled based on qualifications and experience. In addition, resolution 10 of the Assembly of States Parties¹² annexed to the Staff Regulations provides that the requirements of article 36 para. 8, article 44 para. 2 and article 50 of the Rome Statute shall apply to the recruitment of the entire staff of the Court, without any distinction as to category. Upon commencing employment with the Court, every staff member of the Office of the Prosecutor and the Registry is required to make a solemn undertaking, in accordance with rule 6.

The division of appointment power between the Registrar and the Prosecutor reinforces the separate administration of the Office of the Prosecutor, as provided for in articles 42 and 43. In this regard, it should be noted that the Prosecutor is specifically empowered to appoint investigators. The structure of the Office of the Prosecutor is such that, unlike most national systems but similar to the *ad hoc* Tribunals, the investigators as well as the Prosecutors are under the authority of the prosecuting authority. Thus, there is no division between the police power and the Office of the Prosecutor. While this is justified for practical reasons and operational efficiency, it perhaps makes it more difficult for the Prosecutor to exercise his or her prosecutorial discretion not to pursue a case that will have been prepared by the very investigators the Prosecutor has hired and ultimately supervises.

II. Paragraph 2: Qualifications of staff

The Registrar and Prosecutor are directed to select staff which meet the ‘highest standards of efficiency, competency and integrity’ by article 44 para. 2. This is precisely the same standard as is set forth in article 101 of the United Nations Charter. Moreover, in hiring staff they are also to show due regard for representation of the principal legal systems of the world, equitable geographical representation and gender balance. The latter two factors are consistent with the principles of staff recruitment in the United Nations system and should be taken into account in any public international institution. The concern for representation of the world’s principal legal systems derives from the principle of equitable geographical distribution and is essential for any judicial institution that intends to deliver justice in an international context.

III. Paragraph 3: Staff Regulations

1. ‘agreement of the Presidency and the Prosecutor’

In the United Nations common system, the legal basis for the regulation of staff generally derives from the legislative body, through a system of staff regulations which also provide for the adoption of rules and other administrative guidelines by the organization’s chief administrative officer¹³. Under article 44 para. 3, the task of drafting the Staff Regulations is with the Registrar; however, before the proposed regulations are submitted to the Assembly

¹² Resolution ICC-ASP/1/Res.10: Selection of the staff of the International Criminal Court.

¹³ UN Charter, article 101.

of States Parties for approval, the Presidency and the Prosecutor must agree to the proposal. This procedure is illustrative of the Registrar's role as the Court's principal administrative officer, who is subject to the authority of the President and administratively separate from the Prosecutor. However, it is a much more rational method of drafting staff regulations than proposed in the Zutphen Draft, which provided for staff regulations to be adopted separately for the Registry and the Office of the Prosecutor. The Staff Regulations approved by the Assembly of States Parties cover matters similar to those covered in the United Nations Staff Regulations, including staff entitlements, disciplinary procedures and the contractual rights of staff members¹⁴. The Staff Regulations provide the fundamental conditions of service and the basic rights, duties and obligations of the staff as well as broad principles of personnel policy for the staffing and administration of an organization. The Rome Statute does not directly address the development of staff rules, which were adopted in 2005 and address the conditions of service in greater detail.¹⁵

2. 'approved by the Assembly of States Parties'

- 6 The Preparatory Committee's Final Draft had provided for the Assembly of States Parties to simply comment upon the staff regulations drafted by the Registrar and agreed to by the Presidency and the Prosecutor. This was modified to require that the Assembly of States Parties approve the staff regulations. This approach is more consistent with the proper legal basis for staff regulations as well as with principles of accountability, as the Assembly of States Parties will be providing the funds and the Court officials will ultimately be responsible to the Assembly for matters of administration and finance. However, the rules and administrative guidelines that govern the day-to-day aspects of relations with staff and their entitlements should be left to the Registrar and Prosecutor as is, *mutatis mutandis*, the case in the United Nations common system. While it is appropriate for the Assembly of States Parties to establish the legal framework which applies to staff matters, through the adoption of staff regulations, it would be inefficient and confusing for it to micromanage the day to day operations of staff and administration. There is one legal issue that warrants mention in regard to the adoption of the staff regulations: the Assembly of States Parties shall 'approve' the proposed Staff Regulations, but it is not clear whether they can amend the proposal and then approve it. Given that the proposed staff regulations will have been agreed to by the principal officers of the Court, the better view is that the States Parties must approve the staff regulations as a whole. While the States Parties are free to make comments and suggestions, they should not be able to amend the Staff Regulations and then approve them without the agreement of the Presidency, the Prosecutor and the Registrar; otherwise, the emphasis placed in article 44 para. 3 on the agreement of these officials would be weakened and the purposes for the consultative process undermined. This view has been confirmed in regulation 12 para. 1 of the Staff Regulations¹⁶. In addition, regulation 12 para. 2 of the Staff Regulations sets forth that 'the full text of provisional staff rules and amendments [to the Staff Regulations] shall be reported annually to the Assembly'. Should the Assembly of States Parties find that the provisional staff rules or amendments to the Staff Regulations are inconsistent with the intent and purpose of the Staff Regulations, 'it may direct that the rule/ or amendment be withdrawn or modified'¹⁷.

¹⁴ See, generally, Amerasinghe, *The Law of the International Civil Service* (1994).

¹⁵ ICC-ASP/4/3 dated 25 Aug. 2005: Staff rules of the International Criminal Court.

¹⁶ ICC-ASP/2/Res.2 dated 12 Sep. 2003: Staff regulations of the International Criminal Court.

¹⁷ *Ibid.*, regulation 12 para. 2 of the Staff Regulations.

IV. Paragraph 4: Gratis personnel

1. 'exceptional circumstances'

The issue of gratis personnel – personnel donated and paid by outside governments or organizations to serve as personnel for the Court – has a long and controversial history. While the United Nations has long used personnel donated to it by governments, particularly in the context of peacekeeping, in the start up phase of the *ad hoc* Tribunals a great deal of reliance was placed on such gratis personnel. The *ad hoc* Tribunals, particularly its Prosecutor, had difficulty recruiting the types of investigators and lawyers needed for its work, as the expertise in such matters as forensics and investigation were not readily available in the United Nations system generally, and those individuals with the requisite expertise are generally in the employ of governments. Thus, the *ad hoc* Tribunals encouraged the donation of such gratis personnel, who primarily came from western governments, and eventually had a substantial number of such personnel in important positions. The General Assembly eventually expressed concern about the use of such gratis personnel, citing issues relating to the independence of gratis personnel and the effects on geographical balance, and the use of gratis personnel by the *ad hoc* Tribunals was eventually phased out¹⁸.

As a result of this background, there were concerns on both sides of the gratis personnel debate at the Rome Conference. Some delegations were of the view that gratis personnel is essential to the Court, which will need to respond and investigate quickly in some cases, perhaps after a period of relative inactivity. On the other side, the concerns noted above predominated. The compromise that emerges in the Rome Statute is that gratis personnel can be used 'in exceptional circumstances'. This qualification emphasizes that gratis personnel are not to simply do the jobs for which regular staff can be recruited and that there must be some real exigency that requires such services. On the other hand, the limitations noted in the Zutphen Draft and to a lesser extent in the Preparatory Committee's Final Draft have been removed. Therefore, gratis personnel can assist in the work of any of the organs of the Court, not only the Office of the Prosecutor. Moreover, gratis personnel may be accepted from non-governmental organizations as well as intergovernmental organizations and States Parties. While broader than earlier proposals at the Preparatory Committee¹⁹, this provision continues to exclude gratis personnel from governments that are non-States Parties. It is slightly odd that gratis personnel can be accepted from a non-governmental organization but not from a Member State of the United Nations which has not ratified the Rome Statute, although non-States Parties can make monetary voluntary contributions to the Court²⁰.

Gratis personnel are not staff members of the Court and are not governed by the Court's Staff Regulations. As the Court is a permanent institution and the Rome Statute restricts the use of gratis personnel, it appears unlikely that the Court would use gratis personnel each time it is facing a new situation, as it will have to justify each use under the restrictive provisions of article 44 para. 4. Thus, the Guidelines for the selection and engagement of gratis personnel at the International Criminal Court ('Guidelines'), adopted in 2005, clarify that '[g]ratis personnel may not be sought or accepted as a substitute for staff to be recruited against posts authorized for the Court's regular and normal functions'²¹. This appears to preclude the use of gratis personnel for such reasons as poor planning, as a substitute for authorized positions for the implementation of mandated programs and activities or for

¹⁸ GA Res. 243, 51st Sess., UN Doc. A/RES/51/243 (10 Oct. 1997).

¹⁹ Zutphen Draft, p. 79.

²⁰ Article 116.

²¹ Official Records of the Assembly of States Parties to the Rome Statute of the International Criminal Court, Fourth session, The Hague, 28 November to 3 December 2005 (International Criminal Court publication, ICC-ASP/4/32), part III, resolution ICC-ASP/4/Res.4, annex II: Guidelines for the selection and engagement of gratis personnel at the International Criminal Court.

positions kept vacant solely for financial reasons. Moreover, budget difficulties by themselves or related reasons would not appear to constitute sufficient grounds for reliance on gratis personnel.

Acceptance of gratis personnel will have certain financial implications for the Court, as the Court will have to provide support to gratis personnel such as office space and equipment. To this end, the Guidelines provide that the ‘donor shall be liable to reimburse the Court for programme support costs related to gratis personnel’²². These costs are calculated at thirteen percent (13 %) of the average cost of a P-3/P-4 staff member²³.

The requirement that gratis personnel be hired only under exceptional circumstances is also indicative of a desire to limit the categories of personnel which the Court can employ on a gratis basis. The Guidelines only apply to gratis personnel whose services are provided outside any other established regime such as interns, or visiting professionals²⁴.

2. ‘[t]he Prosecutor may accept’

- 10 In again emphasizing that the Prosecutor is an independent organ of the Court, with his or her own administration, this provision states that the Prosecutor can accept any offer of gratis personnel. Although the term ‘in exceptional circumstances’ is used in reference to the Court, it is clear when the provision is read as a whole that this requirement applies also to the gratis personnel the Prosecutor may want to accept. In view of the Prosecutor’s greater need for the expertise that gratis personnel can provide and his or her powers over staff in the Office of the Prosecutor, it is appropriate for the Prosecutor to make decisions, in accordance with the criteria and limitations noted above, relating to gratis personnel. Rule 11 also provides that gratis personnel may not represent the Prosecutor or Deputy Prosecutor in the discharge of their official duties.

3. ‘guidelines established by the Assembly of States Parties’

- 11 As noted, in addition to the other limitations the use of gratis personnel is subject to Guidelines promulgated by the Assembly of States Parties. These Guidelines were drafted by an Inter-Organ Working Group and were endorsed by all the Court’s organs²⁵. The Working Group was guided by *inter alia*, the ‘principles set forth in the Statute, such as ensuring the highest standards of efficiency, competency and integrity’²⁶. The Assembly of States Parties adopted the Guidelines at its 4th session on 3 December 2005.

Under section 3.1 of the Guidelines, each organ of the court requests gratis personnel independently, albeit through the Registrar. This mechanism safeguards the independence of the different organs, which is particularly relevant in regard to the Office of the Prosecutor, whose fundamentally independent nature must not be unduly interfered with.

- 12 Nominees are selected by the requesting organ in accordance with recruitment standards established by the Court as well as the criteria set forth in article 36, paragraph 8, of the Statute. There is, of course, tension between gratis personnel’s loyalty to their respective governments, which after all is paying their salary and benefits, and to their function as a *de facto* staff members of the Court. In order to prevent confusion about duties and responsibilities of gratis personnel, the Guidelines preclude gratis personnel from seeking or accepting instructions from any government or any external authority²⁷. Additionally, the Guide-

²² *Ibid.*, section 8.3.

²³ *Ibid.*

²⁴ *Ibid.*, section 1.

²⁵ ICC-ASP/4/15 dated 2 Sep. 2005: Report on draft guidelines for the selection and engagement of gratis personnel at the International Criminal Court, para. 2.

²⁶ *Ibid.*, para. 4.

²⁷ Official Records of the Assembly of States Parties to the Rome Statute of the International Criminal Court, Fourth session, The Hague, 28 November to 3 December 2005 (International Criminal Court publication, ICC-ASP/4/32), part III, resolution ICC-ASP/4/Res.4, annex II: Guidelines for the selection and engagement of gratis personnel at the International Criminal Court, section 11.2.

lines require a formal agreement between the Court and the donor, which conforms with the guidelines²⁸. Section 6 creates a time limit of one year for the use of gratis personnel, after which the need for such personnel shall be reviewed closely to determine whether it is appropriate for the Court to build up the necessary expertise and recruit staff members to perform the specialized functions. Either party may terminate the services rendered at one month's written notice²⁹. The guidelines also establish that gratis personnel can only perform functions which are strictly in accordance with the conditions of their engagement³⁰ and that they must generally not perform supervisory functions.³¹

If the experience of the *ad hoc* Tribunals in this regard is indicative, the guidelines are likely to be applied in a restrictive manner, particularly if gratis personnel primarily originate from western governments and organizations. The Human Resources Section has overall oversight over the implementation of the Guidelines and must submit an annual report to the Assembly of States Parties³². This allows the Assembly of States Parties to closely monitor compliance with the guidelines and prevent possible abuses.

²⁸ *Ibid*, section 14.

²⁹ *Ibid*, section 6.3.

³⁰ *Ibid*, section 10.

³¹ *Ibid*, section 5.2.

³² *Ibid*, section 15.2.

Article 45

Solemn undertaking

Before taking up their respective duties under this Statute, the judges, the Prosecutor, the Deputy Prosecutors, the Registrar and the Deputy Registrar shall each make a solemn undertaking in open court to exercise his or her respective functions impartially and conscientiously.

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A. Introduction/General remarks

- 1 Article 45 provides that before first exercising their functions under the Statute, the principal officials of the Court shall make a public and solemn undertaking to perform their functions impartially and conscientiously. Rule 5 ICC elaborates on article 45 and sets forth the solemn undertaking to be made by the judges, the Prosecutor, the Deputy Prosecutor, the Registrar and the Deputy Registrar. Article 45 was adopted at the Rome Conference on the basis of article 46 of the Preparatory Committee's Final Draft¹, without changes. Article 45 is very similar in substance to the original draft article proposed by the ILC, with the exception that the ILC Draft² only specifically referred to the judges, the other officials of the Court being covered by a general reference to 'other officers of the Court'. Under article 45 all the principal officers of the Court are required to make a solemn undertaking, whereas the Statutes of the *ad hoc* Tribunals do not address 'solemn undertaking', which is covered in the Tribunals' respective Rules, but only apply to the judges and to the Registrar³.

B. Analysis and interpretation of elements

- 2 The solemn undertaking envisaged in article 45 includes references to the duty of impartiality and of conscientiousness. Its purpose is to emphasize the importance of the responsibilities, duties and powers entrusted in the mentioned officials. These officials are required to undertake publicly to perform their duties in an appropriate manner, thereby signifying that they are conscience bound to do so faithfully and truthfully. The declaration made by the judges of the ICL is also done in public, and more specifically 'at the first public sitting at which the Member of the Court is present'⁴. The Rules of the *ad hoc* Tribunals are more detailed as regards the procedure. Rule 14(B) ICTY RPE, in addition to the oral solemn declaration, requires that the judges sign a written declaration, which is kept in the records of the Tribunal⁵. Rule 32 ICTY RPE provides a specific procedure for the Registrar and the Deputy Registrar, requiring them to undertake to perform their duties 'in all loyalty, discretion and good conscience' and to 'faithfully observe all the provisions of the Statute and the Rules of Procedure and Evidence of the Tribunal'⁶. The Rules of the European Court

¹ Preparatory Committee (Consolidated) Draft, article 46, p. 84.

² 1994 ILC Draft Statute, article 14, p. 61.

³ Rule 14 ICTY RPE.

⁴ Rules of the International Court of Justice adopted 14 Apr. 1978, article 4, contained in: ICJ, Acts and Documents Concerning the Organisation of the Court, No. 5 (1989), UN Sales No. 575.

⁵ Rules 14 B ICTY RPE.

⁶ *Ibid.*, rule 32.

of Human Rights⁷ and the Statute of the Inter-American Court of Human Rights also require the judges to ‘keep secret all deliberations’⁸.

It should be noted that the Rules of the ICJ, as well as the Rules of the *ad hoc* Tribunals, 3 provide that the official concerned must also state that he/she will perform his/her functions ‘honourably’ and ‘faithfully’. These two expressions were also included in a proposal of Australia and the Netherlands at an early stage of the Preparatory Committee’s drafting process⁹. Australia and the Netherlands had also proposed to include a reference to ‘respect’ the provisions of the Statute and Rules of the Court in the undertaking¹⁰. The Zutphen Draft¹¹ contained a more detailed provision, essentially based on a French proposal¹². Paragraph 2 read: ‘In performing their duties, the officers of the Court and the staff of the Court shall not seek or accept instructions from any Government or any authority outside the Court. They shall refrain from any act incompatible with their status and shall be accountable only to the Court’. Paragraph 3 stated that the States Parties ‘undertake to respect the exclusive international character of the duties of the officers [...] and of the staff of the Court, and not to seek to influence them in the performance of their duties’. These additional provisions, which were in brackets, were deleted during the last session of the Preparatory Committee in April 1998, on the ground that the provision was straightforward and that details could be elaborated in the Rules.

The proposal of the Zutphen Draft has not found its way into the Rules of the Court. Instead, an approach similar to the Rules of the ICJ and the Rules of the *ad hoc* Tribunals has been taken. The Rules of the Court go a step further by requiring the principal officers not only to solemnly declare that he/she will perform his/her functions ‘honourably’ and ‘faithfully’ but also ‘impartially’ and ‘conscientiously’.

The duties owed by judges pursuant to the solemn undertaking are further expounded by the Court’s Code of Judicial Ethics¹³. This code explicitly refers to the solemn undertaking at the beginning of its preamble and provides the guidelines on the essential ethical standards required of judges¹⁴ according to the principles of independence, impartiality, integrity, confidentiality and diligence.

The exact formulation of the undertaking required by article 45 is set forth in rule 5. 4 According to this rule, the undertaking to be made by the Prosecutor, the Deputy Prosecutor, the Registrar and the Deputy Registrar differs slightly from the one to be made by the judges. Similar to the Rules of the European Court of Human Rights and the Statute of the Inter-American Court of Human Rights rule 5 para. 1 (a) ICC provides that the judges must solemnly declare that they will respect ‘the confidentiality of investigations and prosecutions and the *secrecy of deliberations*’. The solemn declaration of the other principal officers is, for obvious reasons, limited to the requirement to respect ‘the confidentiality of investigations and prosecutions’¹⁵. The undertaking of all principal officers of the Court is signed by the person making it, witnessed by the President or a Vice-President of the Bureau of the Assembly of States Parties, and then filed with the Registry and kept in the records of the Court¹⁶.

Moreover, it should be noted that, while article 45 and rule 5 address the solemn undertaking to be made by principal officers, rule 6 provides for solemn undertakings to be taken by staff of the Office of the Prosecutor and the Registry upon commencing employ-

⁷ Rules of the European Court of Human Rights (Oct. 2002), rule 3.

⁸ Statute of the Inter-American Court of Human Rights, article 11, contained in: *IHRmTsL&Prac* 487 (1997).

⁹ 1996 Preparatory Committee II, p. 43.

¹⁰ *Ibid.*

¹¹ Zutphen Draft, article 38, p. 18.

¹² 1996 Preparatory Committee II, p. 43.

¹³ ICC-BD/02-01-05.

¹⁴ *Ibid.*, article 11.

¹⁵ Rule 5 para. 1 (b).

¹⁶ Rule 5 para. 2.

ment with the Court as well as by translators and interpreters before performing their duties. Upon signature of this undertaking by the person making it and witnessed by the appropriate principal officer, the undertaking is filed with the Registry and kept in the Court's records.

Article 46

Removal from office

1. A judge, the Prosecutor, a Deputy Prosecutor, the Registrar or the Deputy Registrar shall be removed from office if a decision to this effect is made in accordance with paragraph 2, in cases where that person:

- (a) Is found to have committed serious misconduct or a serious breach of his or her duties under this Statute, as provided for in the Rules of Procedure and Evidence; or
- (b) Is unable to exercise the functions required by this Statute.

2. A decision as to the removal from office of a judge, the Prosecutor or a Deputy Prosecutor under paragraph 1 shall be made by the Assembly of States Parties, by secret ballot:

- (a) In the case of a judge, by a two-thirds majority of the States Parties upon a recommendation adopted by a two-thirds majority of the other judges;
- (b) In the case of the Prosecutor, by an absolute majority of the States Parties;
- (c) In the case of a Deputy Prosecutor, by an absolute majority of the States Parties upon the recommendation of the Prosecutor.

3. A decision as to the removal from office of the Registrar or Deputy Registrar shall be made by an absolute majority of the judges.

4. A judge, Prosecutor, Deputy Prosecutor, Registrar or Deputy Registrar whose conduct or ability to exercise the functions of the office as required by this Statute is challenged under this article shall have full opportunity to present and receive evidence and to make submissions in accordance with the Rules of Procedure and Evidence. The person in question shall not otherwise participate in the consideration of the matter.

Literature: Amerasinghe, C. F., *The Law of the International Civil Service* (OUP 2nd edition 1994); Rosenne, R., *The Law and Practice of the International Court of Justice* (Martinus Nijhoff 2nd edition 1995).

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A. Introduction/General remarks

Article 46 sets forth the fundamental elements regulating the removal procedure of judges, the Prosecutor, Deputy Prosecutors, the Registrar, and the Deputy Registrar. The procedure established in article 46 and elaborated on in rules 23 to 29 and rule 31, as well as in Court regulations 119 to 125, seeks to provide for the removal of the most senior officials of the Court in appropriate cases but without threatening their independence. It is indeed crucial to ensure that these officials will not be removed for frivolous reasons or on political grounds,

and that the procedure respects the principle of due process. The aforementioned provisions reflect the general institutional principle that appointment by a particular body necessarily results in accountability to that appointing body.

- 2 Although in the ILC Draft Statute¹ and the Preparatory Committee's Final Draft² article 46 was structured somewhat differently, the possible grounds for removal have not changed in substance. During the course of the Preparatory Committee, the following issues were debated: What are the circumstances which should trigger a removal procedure? Where should the authority to remove be vested and how should that authority be exercised? What should be the extent of the guarantees afforded to the official concerned by a removal procedure?
- 3 Prior to the Zutphen Draft, a single provision entitled 'Loss of office' addressed both removal from office and disciplinary measures. The view that there should be a distinction between conduct or situations leading to the removal from office and other conduct or situations requiring less serious measures eventually prevailed, and a separate provision addresses the issue of disciplinary measures (article 47). In the drafts before the Zutphen Draft, only the judges and the Prosecutor were specifically mentioned in the removal provision, the Deputy Prosecutor, the Registrar and the Deputy Registrar presumably being covered by a general reference to 'other officers of the Court'.
- 4 The Statutes of the *ad hoc* Tribunals³ do not address the issue of removal from office. The Tribunals' respective Rules only address the issue of disqualification of a judge in a particular case. It should, however, be noted that the Registrar is appointed by the UN Secretary-General in the *ad hoc* Tribunals, and that the Registrar thus comes under the Secretary-General's authority.
- 5 Article 46 largely reflects relevant international standards concerned with the independence of judges. These standards have subsequently been entrenched in the Court's Code of Judicial Ethics ('Code of Ethics')⁴. This code was adopted in response to the need for general guidelines to contribute to judicial independence and impartiality and with the aim of ensuring the legitimacy and effectiveness of the international judicial process. It was drafted having regard to the United Nations Basic Principles on the Independence on the Judiciary⁵ and other international and national rules and standards relating to judicial conduct⁶. The code provides the guidelines on the essential ethical standards required of judges⁷ according to the principles of independence, impartiality, integrity, confidentiality and diligence. As such it will assist in assessing any complaint of misconduct alleged against a judge of the Court.

During the drafting and negotiation process account was taken of international standards of independence and article 46 provides a strong guarantee against removal from office based on frivolous or personal grounds.

¹ 1994 ILC Draft Statute, article 15.

² Preparatory Committee (Consolidated) Draft, p. 84.

³ Statute of the International Criminal Tribunal for the former Yugoslavia, an Annex to the Report of the Secretary General Pursuant to Paragraph 2 of Security Council Resolution 808, UNSCOR, 48th Sess., UN Doc. S/25704 (1993). For purposes of this discussion, the Statute of the Rwanda Tribunal is similar to that of the ICTY Statute; therefore, references to the ICTY Statute cover both Tribunals' Statutes.

⁴ ICC-BD/02-01-05.

⁵ United Nations Basic Principles on the Independence of the Judiciary as endorsed by the UN General Assembly in Resolution 40/32 of 29 Nov. 1985.

⁶ Code of Ethics, note 4, preamble.

⁷ Code of Ethics, note 4, article 11.

B. Analysis and interpretation of elements

I. Paragraph 1

1. ‘A judge, the Prosecutor, a Deputy Prosecutor, the Registrar or the Deputy Registrar shall be removed from office’

Under article 46, the judges, the Prosecutor, the Deputy Prosecutors, the Registrar and the Deputy Registrar, namely the members of the Court and its principal officers, can be removed from office. Rule 23 specifies that these officials can be removed ‘in such cases and with such guarantees as are established in the Statute and the Rules’. They can thus only be removed, if a decision is made pursuant to the procedure set out in paragraph 2 of article 46, on the grounds identified in paragraph 1, and in accordance with rule 29, which establishes the procedural framework for removal from office. The same grounds apply equally to all these officials of the Court. The removal procedure is envisaged only in exceptional circumstances and pursuant to strict conditions. The provision contemplates two very different types of situations: the first type (‘misconduct’) is a less precise standard, frequently associated with a variety of conduct related to, *e.g.*, abuse of office or impropriety, whereas the second standard (‘inability’) appears to address more objective situations. This approach is consistent with relevant international standards, including, *inter alia*, the United Nations Basic Principles on the Independence on the Judiciary⁸, which states that judges ‘shall be subject to suspension or removal only for reasons of incapacity or behaviour that renders them unfit to discharge their duties’. This contrasts with the less specific standard set forth in article 18 para. 1 of the Statute of the ICJ, which provides: ‘No member of the Court can be dismissed unless [...] he has ceased to fulfil the required conditions’. At least one commentator is of the view that ‘article 18 is flexible in the sense that it does not attempt to spell out what are the required conditions [for removal] ... This is counterbalanced by the requirement of unanimity [amongst the judges in support of a decision to remove] ...’⁹.

2. Grounds for removal from office

a) **Serious misconduct or breach of duties under the Statute.** Earlier Preparatory Committee drafts of this article were more detailed as to the grounds for removal. For example, France originally proposed that ‘misconduct’ be limited to behaviour ‘such as to jeopardise his [the judge’s] independence or impartiality’¹⁰. Concerning the removal of a judge, Japan proposed to include ‘engaged in delinquency, whether officially or privately, which raises serious doubts in public confidence in his capacity as a judge’¹¹.

The formulation eventually adopted gives a certain amount of flexibility for interpretation. Thus, the elements necessary to show ‘serious misconduct’ or ‘breach of duty’ were left to be defined in the Rules.

Not all misconduct or breach of duty warrants a removal from office: the Statute requires that the breach of duty or the misconduct be ‘serious’. Rule 24 para. 1 (a) defines ‘serious misconduct’ as an act or omission which occurs ‘in the course of official duties, is incompatible with official functions, and causes or is likely to cause serious harm to the proper administration of justice before the Court or the proper internal functioning of the Court’. Rule 24 para. 1 (a) also provides three specific examples of ‘serious misconduct’: 1) the disclosure of facts or information acquired in the course of the principal officer’s duties

⁸ *Supra* note 5.

⁹ Rosenne, *The Law and Practice of the International Court of Justice* (1985) 195.

¹⁰ 1996 Preparatory Committee II, p. 44.

¹¹ *Ibid.*

or on a matter which is *sub judice* and such disclosure is seriously prejudicial to the judicial proceeding or to any person; 2) the concealment of information or circumstances of any nature sufficiently serious to have precluded the principal officer from holding office; and 3) the abuse of judicial office in order to obtain unwarranted favourable treatment from any authorities, officials or professionals. These examples give substance to the rather vague concept of the ‘serious misconduct’ terminology used by the Statute.

Under rule 24 para. 1 (b), ‘serious misconduct’ can also occur ‘outside the course of official duties [if it] is of [a] grave nature that causes or is likely to cause serious harm to the standing of the Court’. Thus, ‘serious misconduct’ covers not only professional conduct in relation to the duties of the office but also personal behaviour in general and is therefore broader than ‘breach of duty’ which relates only to the duties of the office¹². In this sense, a breach of duty is a more limited ground for removal that will specifically be assessed in relation to, *inter alia*, the duties of independence, impartiality and conscientiousness, as referred to in articles 40 and 45. This interpretation is supported by rule 24 para. 2, which defines ‘serious breach of duty’ as conduct ‘where a person has been grossly negligent in the performance of his or her duties or has knowingly acted in contravention of those duties’. In this regard, it appears that a positive act (violation) as well as an omission (failure to act) could fall within the purview of a ‘breach of duty’.

- 9 In the case of removal for breach of duty, article 46 para. 1 (a) only envisages removal for a breach of duty ‘under this Statute’. References to removal for breaches of the rules and regulations of the Court¹³, mentioned in earlier drafts, were not retained. However, it is submitted that this provision should be read to cover all duties and responsibilities of the official concerned which flow from the Statute and not only such duties which are explicitly specified in the Statute. This interpretation has allowed for the Rules to articulate more specific standards as discussed above.

Such an interpretation would also allow for the Code of Ethics to be taken into account when considering whether a judge has acted in contravention of articles 46 or 47 of the Statute. Provisions that may be relevant from the code include those which: prohibit activity which interferes with judicial functions or independence¹⁴; require the avoidance of conflicts of interest¹⁵; prohibit the acceptance of any gift advantage, privilege or reward that could be perceived as intended to influence of the judicial function¹⁶; require respecting confidentiality of consultations and secrecy of deliberations¹⁷; require diligence and in particular, the delivery of decisions and rulings without undue delay¹⁸; prohibit racist, sexist or otherwise degrading conduct or comments in the proceedings¹⁹; prohibit public comment on pending cases²⁰; and prohibit the contemporaneous exercise of political function²¹.

- 10 There is a paucity of publically available material on misconduct complaints against judges, prosecutors or registrars. If these complaints are made, they are confidential pursuant to Rule 26(1). However there has been at least one complaint and request for removal of a former Prosecutor of the Court based on allegations of sexual misconduct. The Presidency, acting on the unanimous recommendation from a panel of three judges who had interviewed the alleged victim and the Prosecutor, set aside the complaint as ‘manifestly unfounded’²².

¹² See, generally, Amerasinghe, *The Law of the International Civil Service* (1994).

¹³ Zutphen Draft, pp. 80–81.

¹⁴ Code of Ethics, note 4, article 3(2).

¹⁵ *Ibid*, article 4(2).

¹⁶ *Ibid*, article 5(2).

¹⁷ *Ibid*, article 6.

¹⁸ *Ibid*, article 7.

¹⁹ *Ibid*, article 8(3).

²⁰ *Ibid*, article 9(2).

²¹ *Ibid*, article 10(2).

²² This was revealed in an employee’s proceedings against the ICC before the Administrative Tribunal of the International Labour Organization in *Palme v. ICC*, Judgement No. 2757, 9 July 2008 paras.A, 1–4.

A relevant example of removal arose at the SCSL when an alternate judge made a statement, after the delivery of the official trial judgement, expressing his disagreement with the findings of the other judges. A plenary meeting of SCSL judges resolved that his actions amounted to misconduct rendering him unfit to be an alternate judge and directed him to refrain from further sitting in the proceedings pending a decision from the appointing authority on his status²³.

b) Inability to exercise the functions. The text of article 46 does not define what constitutes inability to perform the function of office. Moreover, it should be noted that rather oddly article 46 para. 1 (b) does not refer to the Rules for more details. This omission appears to be the reason that the Rules do not provide for any clarification in this regard. Earlier drafts of the Rome Statute mentioned inability to exercise the functions ‘because of long-term illness or disability’²⁴, with the additional requirement, in the Zutphen Draft, that it should be ‘duly established by at least two experts’. It is thus understood that paragraph 1 (b) refers to health situations, and removal for inability ‘to exercise the functions required by the Statute’ should occur only in the event of mental or physical incapacity. In the Preparatory Committee Final Draft²⁵, it was suggested that a separate procedure be established in case of inability to perform, however, this proposal was not adopted.

II. Paragraph 2: The removal procedures for judges, the Prosecutor and Deputy Prosecutors

First is it important to note that there is an initial threshold beyond which anonymous or unfounded complaints against a judge, the Prosecutor, a Deputy Prosecutor, the Registrar or a Deputy Registration, will not proceed. Rule 26(2) provides that all complaints under articles 46 and 47 must be transmitted initially to the Presidency which will, in accordance with the procedures set out in the Regulations of the Court²⁶, ‘set aside anonymous or manifestly unfounded complaints and transmit the other complaints to the competent organ’.

Article 46, paragraph 2, sets out the procedure to be used to remove a judge, the Prosecutor or a Deputy Prosecutor. Different majorities of the Assembly of States Parties, which is the authority vested with the power to remove, are required, depending on the office concerned. In the ILC Draft Statute, only the Assembly of States Parties could remove the Prosecutor, with the judges deciding in all other cases²⁷. Paragraph 2 refers to paragraph 1, meaning that a removal is only possible on the grounds established in paragraph 2.

During the course of the Rome Conference, the United Arab Emirates proposed to replace the entire paragraph 2 by the following text: ‘A decision as to the loss of office under paragraph 1 shall be made by the same authority and in the same manner as was employed to fill the office’²⁸. This formulation was not accepted, as the delegations present at the Rome Conference chose to set out a more detailed and specific procedure for each of the different senior officials of the Court. This procedure has now been set forth in more detail in rule 29.

Judges can be removed following a two-stage procedure. First, the judges themselves must recommend by a two-third majority that a judge should be removed. A decision to remove is then made by the Assembly of States Parties, also subject to a two-thirds majority. Whether a judge should be removed by a two-thirds majority or simply by an absolute majority was debated at the Rome Conference²⁹. In the Zutphen Draft, a proposal for removal of a judge would originate from the Assembly of States Parties, upon a request by either the judges, the

²³ *Prosecutor v. Taylor*, SCSL-03-01, Trial Transcript 16 May 2012, T. 49682– T. 49683.

²⁴ 1994 ILC Draft Statute.

²⁵ Preparatory Committee (Consolidated) Draft.

²⁶ Regulations 119–125.

²⁷ 1994 ILC Draft Statute.

²⁸ UN Doc. A/CONF.183/C.1/L.21 (25 June 1998).

²⁹ article 18 of the ICJ Statute requires unanimity of the judges.

Presidency or States Parties. The two-stage procedure finally adopted and the requirement of a two-thirds majority by both the judges and the Assembly will make it difficult to remove a judge from office. This is a double safeguard which protects a judge from being subject to potential removal for political reasons by States Parties. At the same time, it also protects a judge from being removed by other judges just because he or she is ‘disliked’ by his/her colleagues. This is a positive development which protects the independence of judges. This two-stage procedure is further developed in rule 29 paras. 1 and 2.

- 15 A decision as to the removal of the *Prosecutor* or *Deputy Prosecutors* is also taken by the Assembly of States Parties, but a super majority is not required. Article 46 para. 2 (b) requires an absolute majority, *i. e.*, a majority of all the States Parties, not just the ones voting. The ILC Draft Statute required a two-thirds majority to remove the Prosecutor from office³⁰. No mention is made of which official or body is to propose the Prosecutor’s removal from office, which is a lacuna in the procedure. Thus, the security of office of the Prosecutor, who will hold a key position in the Court, is not as well protected as that of the judges. A weaker requirement as to the majority to remove the Prosecutor can be explained by the fact that the Prosecutor was given broad powers in the Statute, in particular his/her *proprio motu* powers in article 15. In addition, in most countries, the position of prosecutor is more political than the position of judge, and the Prosecutor’s independence is subject to more political control. There is always a delicate balance to be achieved between the independence a Prosecutor must have to perform his/her tasks and appropriate political accountability for carrying out these tasks.
- 16 A Deputy Prosecutor may also be removed by an absolute majority of the Assembly of States Parties. The power to recommend his removal to the Assembly is logically vested with the Prosecutor, which helps ensure that a Deputy Prosecutor is not removed on political grounds. This removal procedure is supplemented by rule 29 para. 3, which states that the Prosecutor must advise the President of the Bureau of the Assembly of States Parties in writing of any recommendation taken in the case of the Deputy Prosecutor.
- 17 The procedural requirements contained in paragraph 2 of article 46 make it very difficult to remove a judge, but less difficult to remove the Prosecutor or a Deputy Prosecutor. There is no provision, however, in the Rome Statute or the Rules regarding, *inter alia*, the quorum required in the Assembly of States Parties for the vote, or establishing an authority that would recommend removal of the Prosecutor. This latter omission results in the lack of a mechanism ensuring that the Prosecutor is not removed solely for political reasons.

In relation to the removal of office, consideration should also be given to the situation where a judge is removed during an ongoing trial. In principle, after a trial has started, due process requires that if one of the judges is not able, for any reason, to continue sitting, a new bench is composed, and the trial starts *de novo*, unless the accused agrees that the judge unable to perform his/her duties should be replaced and that the trial may continue. In this regard, a balance should be found between the rights of the accused, and more generally the right of both parties to a fair trial, the need for expedited proceedings and the interests of justice, taking into account the expected complexity of cases that will be brought under the Court’s jurisdiction. This situation is envisaged in the Rules of the *ad hoc* Tribunals. Rule 15bis C of the ICTY RPE provides that if a judge is, ‘for any reason, unable to continue sitting in a part-heard case for a period which is likely to be longer than of a short duration, the remaining Judges of the Chamber shall report to the President who may assign another Judge to the case and order either a rehearing or continuation of the proceeding from that point’. However, pursuant to rules 15bis C and 15bis D of the ICTY RPE, if the opening statement has already been made already or the presentation of the evidence has begun, the continuation of the proceedings can only be ordered with the consent of the accused, unless the remaining judges, taking all circumstances into account, determine unanimously that

³⁰ 1994 ILC Draft Statute.

continuing the proceedings before a Trial Chamber with a substitute judge would serve the interests of justice³¹.

It is obvious that the situation of a judge who is not re-elected or who has resigned is somewhat different from that of a judge who is removed from office, especially when he/she is removed pursuant to article 46 para. 1 (a) – serious misconduct or breach of duty. Rule 31 addresses that issue by providing that ‘once removal from office has been pronounced, it shall take effect immediately’ and that ‘the person concerned shall cease to form part of the Court, including for unfinished cases in which he or she was taking part’. In addition, pursuant to rule 38, a ‘judge may be replaced for objective and justified reasons’, such as removal from office but also resignation, accepted excuse, disqualification, or death. As regards the procedure of such a replacement, rule 38 para. 2 simply refers ‘to pre-established procedure in the Statute, the Rules and Regulations’. Neither the Statute nor the Rules of the Court set forth such a procedure. Regulation 15, however, states that ‘the Presidency shall be responsible for the replacement of a judge pursuant to rule 38 and in accordance with article 39 and shall also take into account, to the extent possible, gender and equitable geographical representation’. The replacement of a judge of the Appeals Chamber has to take place in accordance with regulation 12.

In this connection, it is also worth noting that article 74 para. 1 of the Statute, by giving the Presidency the option to designate, on a case-by-case basis, an alternate judge to a Trial Chamber, provides the possibility of pre-empting a situation whereby a trial would have to be reheard in the event one of the trial judges becomes unable to perform his/her duties. Moreover, rule 39 states that alternate judges shall sit through all proceedings and deliberations of the case but shall not actively take part therein, ‘unless and until he or she is required to replace a member of the Trial Chamber if that member is unable to continue attending’. Court regulation 16 elaborates on the procedure of designating an alternate judge pursuant to article 74 para. 1 of the Statute and rule 39. Thus, the right to a fair trial would be protected even when the Trial Chamber continued hearing the case, if an alternate judge had been designated as of the beginning of the trial.

III. Paragraph 3: Removal procedure for the Registrar and the Deputy Registrar

Article 46 para. 3 sets out the procedure applicable to remove the Registrar or Deputy Registrar from office. The same procedure is applicable to both offices. Along the lines of article 46 para. 2, a decision as to the removal of the Registrar or the Deputy Registrar is made by the body that appointed them, namely the judges. The ‘absolute majority’ requirement was added during the Rome Conference. They can thus only be removed if a majority of all the judges are of that view. The provision does not specify which authority is to make a recommendation as to their removal from office. Although article 46 para. 3 does not make reference to the Rules, rule 29 para. 1 provides that removal from office of the Registrar or the Deputy Registrar should be voted upon in a plenary session. In addition, rule 29 para. 2 requires that the Presidency should advise the President of the Bureau of the Assembly of States Parties in writing of any decision adopted in the case of the Registrar or the Deputy Registrar.

³¹ When the Presiding Judge of the Trial Chamber hearing the case of *Prosecutor v. Milošević*, IT-02-54-T, [hereinafter: *Milošević* case] at the ICTY had to resign for reasons of ill-health before the end of the trial proceedings, the remaining Judges of the Trial Chamber noted that in accordance with ICTY Rule 15bis lit. C the continuation of the proceedings with a substitute judge requires the consent of the accused. They also noted that the accused did not consent. They argued, however, that, taking all circumstances into account, it was in the interest of justice to continue the proceedings before the same Trial Chamber with a substitute judge and they unanimously decided to do so pursuant to ICTY Rule 15bis D (*Prosecutor v. Milošević*, IT-02-54-T, Order Pursuant to Rule 15bis lit. D, 29 Mar. 2004). The President of the ICTY subsequently assigned a new judge to the Trial Chamber in the *Milošević* case replacing the Judge who resigned (*Prosecutor v. Milošević*, IT-02-54-T, Order Replacing a Judge in a Case before a Trial Chamber, 10 June 2004).

Rule 28 provides for the possibility of suspending an official from duty pending the outcome of the removal procedure if a complaint is of a ‘sufficiently serious nature’, a term which remains undefined. The Rules thus do not set forth clear conditions in which such a suspension could occur, and they fail to provide that such suspension should not affect the presumption of innocence.

IV. Paragraph 4: Guarantees of due process applicable

- 19 Paragraph 4 essentially establishes guarantees of due process for the person concerned during a removal procedure. These guarantees are applicable to all removal procedures brought under paragraph 1 of article 46. The ILC Draft Statute provided for more restricted guarantees, only mentioning the right to present evidence and to make submissions³². The text adopted establishes the right of an accused in any proceeding to be able to review the evidence used against him/her in order to be able to prepare his/her defence. A person subject to a removal procedure is also entitled to present evidence and to make submissions. The last sentence of the paragraph, *i.e.*, ‘the person in question shall not otherwise participate’ in the matter, is consistent with the general principle that one cannot be a ‘judge’ and a party in the same procedure.
- 20 This paragraph is generally consistent with relevant international standards, such as the United Nations Basic Principles on the Independence on the Judiciary, which state that a complaint for removal from office ‘shall be processed expeditiously and fairly’ and that ‘[t]he judge shall have the right to a fair hearing’³³. Principle 19 provides that ‘[a]ll [...] removal proceedings shall be determined in accordance with established standards of judicial conduct’. However, paragraph 4 does not provide for confidentiality of the matter at least at the initial stage of the procedure (unless otherwise requested by the person concerned) as recommended by the Basic Principles.
- 21 Due process rights are further defined in rule 26 which provides that ‘for the purpose of article 46, paragraph 1, [...] any complaint concerning any conduct defined under rules 24 and 25 shall include the grounds on which it is based, the identity of the complainant and, [...] any relevant evidence’, that such complaints should remain confidential and that all complaints must be transmitted to the Presidency. In addition, rule 27 strengthens due process rights by setting forth that in case of removal from office under article 46 or disciplinary measures under article 47, the person concerned shall be notified in writing, and he/she also has the right to present and receive evidence, to make written submissions and to be represented by counsel during this process.

³² 1994 ILC Draft Statute.

³³ Principle 17, note 5.

Article 47

Disciplinary measures

A judge, Prosecutor, Deputy Prosecutor, Registrar or Deputy Registrar who has committed misconduct of a less serious nature than that set out in article 46, paragraph 1, shall be subject to disciplinary measures, in accordance with the Rules of Procedure and Evidence.

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A. Introduction/General remarks

Article 47 of the Rome Statute provides that misconduct of a less serious nature than that envisaged in article 46 warrants disciplinary measures, *i.e.* A lesser measure than removal from office, and that those measures will be addressed in the Rules of the Court. No mention was made in the ILC Draft Statute¹ of such disciplinary measures. Disciplinary measures were briefly addressed afterwards by the Preparatory Committee in the provision concerned with loss of office. It was however noted during the Preparatory Committee that ‘a distinction should be made between conduct triggering loss of office and other kinds of conduct deserving less serious disciplinary measures’². These lesser measures appeared as a separate provision in the Final Draft produced by the Preparatory Committee in April 1998³. The text adopted in Rome is essentially unchanged. Several delegations expressed the view that disciplinary measures should be addressed in the Rules only, and that there was no need for such a provision in the Statute itself⁴. Rules 30 and 32, set forth the procedure in the event of a request for disciplinary measures and establish the type of disciplinary measures that may be imposed. Regulations 119 to 125 elaborate further on the procedural aspects.

It is worth noting that there is no similar provision in the Statute or Rules of the *ad hoc* Tribunals. The Statute and Rules of the ICJ do not address disciplinary measures either.

B. Analysis and interpretation of elements

As in articles 45 and 46, article 47 is concerned with the principal officials of the Court, namely, the judges, the Prosecutor and Deputy Prosecutors, the Registrar and the Deputy Registrar. The Zutphen Draft also contained a bracketed provision concerning loss of office, which mentioned disciplinary measures for the other staff of the Court⁵. Disciplinary measures are to be applied in cases of ‘misconduct of a less serious nature than that set out in article 46’.

Rule 25 para. 1 (a) defines ‘misconduct of a less serious nature’ as conduct that ‘occurs in the course of official duties, [and] causes or is likely to cause harm to the proper administration of justice before the Court or the proper internal functioning of the Court’. Such conduct includes: 1) interference in the exercise of the functions of a judge, Prosecutor, Deputy Prosecutor, Registrar or Deputy Registrar; 2) repeated failure to comply with or

¹ 1994 ILC Draft Statute.

² 1996 Preparatory Committee I, p. 15, para. 48.

³ Preparatory Committee (Consolidated) Draft, article 48, p. 85.

⁴ See, *e.g.*, *ibid.*, p. 56, n. 70.

⁵ Zutphen Draft, p. 19; Preparatory Committee (Consolidated) Draft, p. 80.

ignoring requests made by the presiding judge or by the Presidency in the exercise of their lawful authority; or, 3) failure to enforce the disciplinary measures to which the Registrar or Deputy Registrar or other officers of the Court are subject when a judge knows or should know of a serious breach of duty on their part. Rule 25 para. 1 (b) adds another example: conduct that ‘occurs outside the course of official duties, [that] causes or is likely to cause harm to the standing of the Court’.

The misconduct of article 47, thus qualified by a lesser threshold, should be interpreted as covering all misconduct not envisaged by article 46. In this regard, it should be noted that rule 25 para. 2 does provide that ‘nothing in [rule 25] precludes the possibility of the conduct set out in sub-rule 1 (a) constituting “serious misconduct” or “serious breach of duty” for the purposes of article 46, paragraph 1 (a)’.

Article 47 may thus be understood as a residual provision to article 46. As with article 46, it is submitted that this provision should be read to cover all duties and responsibilities of the official concerned which flow from the Statute, Rules and Regulations of the Court. Such an interpretation would allow for the Code of Judicial Ethics⁶ to be taken into account when considering whether a judge has acted in contravention of articles 46 or 47 of the Statute, depending on the seriousness of the misconduct. Provisions that may be relevant from the code include those which: prohibit activity which interferes with judicial functions or independence⁷; require the avoidance of conflicts of interest⁸; prohibit the acceptance of any gift advantage, privilege or reward that could be perceived as intended to influence of the judicial function⁹; require respecting confidentiality of consultations and secrecy of deliberations¹⁰; require diligence and in particular, the delivery of decisions and rulings without undue delay¹¹; prohibit racist, sexist or otherwise degrading conduct or comments in the proceedings¹²; prohibit public comment on pending cases¹³; and prohibit the contemporaneous exercise of political function¹⁴.

- 4 Article 47 does not define what type of disciplinary measures will be applicable or which authority will make a decision as to them, referring broadly to the Rules for further elaboration in this regard. Article 48 of the Preparatory Committee’s Final Draft contained in brackets references to both the Rules and the ‘Regulations of the Court’¹⁵. It was eventually decided that it was sufficient to only refer to the Rules. As to the procedure, Japan had proposed at the early stage of the drafting process that disciplinary measures be decided by a two-thirds majority of the other judges excluding him- or herself¹⁶. It is understood that as disciplinary measures originally fell under the scope of the provision dealing with loss of office which established such guarantees, similar established standards of due process should be applicable to a procedure leading to disciplinary measures. Rule 32 establishes two types of disciplinary measures that may be imposed, *i. e.*, reprimand and pecuniary sanction that may not exceed six months of the salary paid by the Court to the person concerned.
- 5 The question remains as to which body or bodies will have the authority to impose such lesser disciplinary measures. Rule 26(2) provides that all complaints under articles 46 and 47 must be transmitted initially to the Presidency which will, in accordance with the procedures set out in the Regulations of the Court¹⁷, ‘set aside anonymous or manifestly unfounded complaints and transmit the other complaints to the competent organ’.

⁶ ICC-BD/02-01-05.

⁷ *Ibid.*, article 3(2).

⁸ *Ibid.*, article 4(2).

⁹ *Ibid.*, article 5(2).

¹⁰ *Ibid.*, article 6.

¹¹ *Ibid.*, article 7.

¹² *Ibid.*, article 8(3).

¹³ *Ibid.*, article 9(2).

¹⁴ *Ibid.*, article 10(2).

¹⁵ Preparatory Committee (Consolidated) Draft, p. 85.

¹⁶ 1996 Preparatory Committee II, p. 44.

¹⁷ Regulations 119–125.

Rule 30 provides for a procedure in the event of a request for disciplinary measures. Under this rule, the Presidency is responsible for disciplinary measures imposed on a judge, the Registrar or Deputy Registrar. In case of the Prosecutor, rule 30 states that ‘any decision to impose a disciplinary measure shall be taken by an absolute majority of the Bureau of the Assembly of States Parties’. The Prosecutor him- or herself has the authority to reprimand a Deputy Prosecutor, but the imposition of a pecuniary sanction requires an absolute majority of the Bureau of the Assembly of States Parties upon the recommendation of the Prosecutor¹⁸. Moreover, ‘reprimands shall be recorded in writing and shall be transmitted to the President of the Bureau of the Assembly of States Parties’.

The official against whom a complaint has been made is accorded due process rights. Rule 26 provides that ‘for the purpose of article 47 [...] any complaint concerning any conduct defined under rules 24 and 25 shall include the grounds on which it is based, the identity of the complainant and, [...] any relevant evidence’ and that such complaints should remain confidential and that all complaints must be transmitted to the Presidency. In addition, rule 27 strengthens due process rights by setting forth that in case of removal from office under article 46 or disciplinary measures under article 47, the person concerned shall be notified in writing, and he/she also has the right to present and receive evidence, to make written submissions and to be represented by counsel during this process. It should be noted that the Rules do not address the imposition of disciplinary measures on staff members other than the officials mentioned above. These matters, however, are dealt with elsewhere, *i. e.*, in article X of the ICC’s Staff Regulations and chapter X of the Staff Rules¹⁹.

¹⁸ Rule 30 para. 3 (b).

¹⁹ See also rule 109.2(k) and rule 109.4.

Article 48

Privileges and immunities

1. The Court shall enjoy in the territory of each State Party such privileges and immunities as are necessary for the fulfilment of its purposes.

2. The judges, the Prosecutor, the Deputy Prosecutors and the Registrar shall, when engaged on or with respect to the business of the Court, enjoy the same privileges and immunities as are accorded to heads of diplomatic missions and shall, after the expiry of their terms of office, continue to be accorded immunity from legal process of every kind in respect of words spoken or written and acts performed by them in their official capacity.

3. The Deputy Registrar, the staff of the Office of the Prosecutor and the staff of the Registry shall enjoy the privileges and immunities and facilities necessary for the performance of their functions, in accordance with the agreement on the privileges and immunities of the Court.

4. Counsel, experts, witnesses or any other person required to be present at the seat of the Court shall be accorded such treatment as is necessary for the proper functioning of the Court, in accordance with the agreement on the privileges and immunities of the Court.

5. The privileges and immunities of:

- (a) A judge or the Prosecutor may be waived by an absolute majority of the judges;
- (b) The Registrar may be waived by the Presidency;
- (c) The Deputy Prosecutors and staff of the Office of the Prosecutor may be waived by the Prosecutor;
- (d) The Deputy Registrar and staff of the Registry may be waived by the Registrar.

Literature: Denza, E., *Diplomatic Law* (OUP 3rd edition. 2008); Möldner, M., 'International Organizations, Privileges and Immunities', in: R. Wolfrum (ed.), *Max Plank Encyclopaedia of International Law* (OUP) <<http://opil.ouplaw.com/home/EPIL>> accessed 1 October 2014; Mochochoko, P., 'The Agreement on Privileges and Immunities of the International Criminal Court', (2002) 25 *FordhamILJ* 638; Nilsson, C., 'Contextualizing the Agreement on the Privileges and Immunities of the International Criminal Court', (2004) 3 *LeidenJIL* 559; Schermers, H. G. And Blokker, N.M., *International Institutional Law* (Martinus Nijhoff Publishers 5th edition 2011); Turner, A., 'Tribunal ambivalence and Rwanda's Rejection of Functional Immunity for the ICTR Defence', (2010) *Revue Québécoise de Droit International* (Hors-série) 109.

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A. Introduction/General remarks

- 1 As a treaty-based international organization, the Court and its officials will need to have sufficient diplomatic status to carry out their responsibilities. However, unlike the *ad hoc* Tribunals, the Court is not an organ of the United Nations, and it and its officials do not fall under the 1946 Convention on the Privileges and Immunities of the United Nations

(‘General Convention’)¹. Article 48 attempts to address this situation, in part, by providing the privileges and immunities to the Court and its officials that are ‘necessary for the fulfilment of [the Court’s] purposes’. Generally speaking, international organizations’ privileges and immunities are determined by the constituent instrument of the organization and are supplemented by a multilateral agreement of the Member States and a headquarters agreement with the host State². In the case of the Court, its Statute provides, in addition to the provisions of article 48, for a headquarters agreement with the host State³, as well as for general international legal personality under article 4. The latter provision essentially adopts the description of international personality set forth by the ICJ in the *Reparation*⁴ case.

The legal status and the juridical personality of the Court are further delineated in article 2 of the Agreement of Privileges and Immunities of the Court (‘APIC’), adopted by the Assembly of States Parties during its first session⁵ and in article 2 of the Negotiated Relationship Agreement between the United Nations and the Court which came into force on 4 October 2004⁶. Both provisions state that the Court, has ‘international legal personality’ and ‘such legal capacity as may be necessary for the exercises of its functions’. In addition, the Headquarters Agreement between the ICC and the Host state (‘Headquarters Agreement’)⁷, which entered into force on 1 March 2008, notes this in its preamble. This international personality in turn provides the basis for establishing, through appropriate agreements, the requisite privileges and immunities for the Court to function⁸.

The ILC Draft Statute took a somewhat unusual approach to the question of privileges and 2 immunities. It provided for the privileges and immunities of a diplomatic agent to apply to the judges, the Prosecutor and his staff and the Registrar and Deputy Registrar, but only functional immunity for the Registry staff and for ‘counsel, experts and witnesses’⁹. This formula would have resulted in the judges having the same diplomatic status as junior staff in the Prosecutor’s office, while senior staff in the Registry would have had only functional immunity. More importantly, this provision did not provide for any privileges and immunities for the Court itself. During the course of the Preparatory Committee, ‘[t]he view was expressed that the privileges and immunities as expressed in the article were too broad and should be limited to official functions’¹⁰. Moreover, the question of which authority should waive the privileges or immunities of each category of officials and staff was also the subject of discussion and of several proposals, and a separate paragraph emerged, with several bracketed provisions, in the Preparatory Committee’s Final Draft¹¹. In the Rome Conference, the provision regarding waiver of privileges or immunities was finalized and paragraph 1 was added, to provide that the Court itself would, on the territory of each State Party, enjoy ‘such privileges and immunities as are necessary for the fulfilment of its purposes’.

In addition to the Court itself, the officials and staff of the Court need the protection of 3 privileges and immunities to perform their work independently. In the case of the United Nations, paragraph 2 of article 105 of the Charter states that UN officials will ‘enjoy such privileges and immunities as are necessary for the independent exercise of their functions ...’.

¹ 1 UNTS 15 (1946).

² Möldner, in: Wolfrum (ed.) *MPEPIL*, paras. 3–9.

³ article 3 para. 2 of the Court’s Statute sets forth that ‘[t]he Court shall enter into a headquarters agreement with the host State, to be approved by the Assembly of States Parties and thereafter concluded by the President of the Court on its behalf’.

⁴ *Reparation for Injuries Suffered in the Service of the United Nations*, Advisory Opinion (1949) ICJ Rep. 174.

⁵ ICC-ASP/1/3 (Part. II-E) bis.

⁶ ICC-ASP/3/Res.1.

⁷ ICC-BD/04-01-08.

⁸ See *Reparation* case, note 4, where the ICJ stated: ‘The ‘Convention on the Privileges and Immunities of the United Nations’ of 1946 creates rights and duties between each of the signatories and the Organization (see in particular, Section 35). It is difficult to see how such a convention could operate except upon the international plane and as between parties possessing international personality.’

⁹ 1994 ILC Draft Statute, article 16.

¹⁰ 1996 Preparatory Committee I, p. 15, para. 49.

¹¹ Preparatory Committee Draft, pp. 85–86.

This provision is then further developed in the General Convention, which provides for certain specific privileges and immunities. These include, *inter alia*, immunity from legal process in 'respect of words spoken or written and all acts performed by them in their official capacity'; exemption from income tax; immunity from national service and immigration restrictions; and other financial privileges¹². Article 48 addresses the privileges and immunities of staff in paragraphs 2–4.

Since the General Convention is not applicable to the Court, the privileges and immunities of the Court as well as its representatives had to be addressed. Resolution F of the Final Act¹³ of the Rome Conference gave the Preparatory Commission of the Court the responsibility of preparing, *inter alia*, a draft text of the agreement on privileges and immunities¹⁴. Following considerable discussions focusing on the distribution of privileges and immunities between the respecting agreements, the APIC was adopted by the Assembly of States Parties during its first session¹⁵. APIC entered into force on 22 July 2004¹⁶, thirty days after the date of deposit with the United Nations Secretary-General of the tenth instrument of ratification, acceptance, approval or accession, in accordance with article 35 para. 1 of the Rome Statute¹⁷.

B. Analysis and interpretation of elements

I. Paragraph 1: The privileges and immunities of the Court

- 4 As noted above, the Court is a treaty-based organization and does not come under the umbrella of the General Convention. Therefore, it is necessary to provide for privileges and immunities of the Court and its representatives. The Rome Statute has tied these privileges and immunities to the functions of the Court and is identical, *mutatis mutandis*, to article 105 para. 1 of the UN Charter. However, this is simply a general statement of the Court's privileges and immunities, and the details of these privileges and immunities are not spelled out in the Statute. In the case of the United Nations, these details have been provided for in the General Convention and in various headquarters and other agreements. The General Convention sets forth a number of provisions governing important aspects of the U.N.'s operations to which these privileges and immunities apply. These include matters such as the organization's property and assets¹⁸, its communications¹⁹ and various tax exemptions²⁰.

Although many of the above matters are covered vis-à-vis the host State in the Headquarters Agreement²¹ provided for under article 3, the headquarters agreement is a bi-lateral agreement that does not apply to other States Parties. In view of the many States in which the Court, particularly the Prosecutor, shall potentially operate, and the necessity for the Prosecutor to work in complete confidence and secrecy in his investigations, it was critical that a general agreement on privileges and immunities be negotiated and adopted.

¹² General Convention, note 1, article V.

¹³ Final Act, Resolution F.

¹⁴ The first session of the Assembly of States Parties was held in New York from 3–10 Sep. 2002. The outcome of this session, *inter alia*, the Agreement on Privileges and Immunities of the International Criminal Court, is set forth in the Official Records of the First Session of the Assembly of States Parties to the Rome Statute of the International Criminal Court, September 3–10, 2002, ICC-ASP/1/3 (2002), p. 215.

¹⁵ APIC was opened for signature to all states from 10 Sep. 2002 until 30 June 2004 at the United Nations Headquarters in New York, in accordance with its article 34 para. 1.

¹⁶ ICC-ASP/3/25 Res.3 para. 6.

¹⁷ As of 22 April 2013, 72 states had become party to the APIC (including the Ukraine which was not a party to the Rome Statute) and 51 States Parties were yet to become parties. Report of the Court on Co-operation, 9 October 2013, ICC-ASP/12/35.

¹⁸ General Convention, note 1, article II.

¹⁹ *Ibid.*, article III.

²⁰ *Ibid.*, article II.

²¹ Headquarters Agreement, note 7, articles 5–16.

While there is no express provision in the Statute requiring the APIC, the matter is implicitly raised in paragraphs 3 and 4 of article 48, which each refer to 'the agreement on the privileges and immunities of the Court'. Given the context of these provisions, they could have been read as a reference to the headquarters agreement, particularly in the case of paragraph 4, which refers to counsel, experts and witnesses 'required to be present at the seat of the Court'. However, it must be first noted that the Rome Statute makes a specific reference in article 3 to 'a headquarters agreement', which is a term of art, while the references in article 48 are to a specific agreement on 'the privileges and immunities of the Court'. Thus, the drafters of the Statute must have envisaged a separate general agreement on privileges and immunities. Second, with respect to paragraph 4, the reference is to travel arrangements for, *inter alia*, witnesses, who will require the cooperation of States other than the host country to travel, implying that a general agreement, not simply a headquarters agreement, would be necessary. The adoption of the APIC confirms this interpretation.

The APIC sets forth the privileges and immunities of the Court as an independent entity as well as the privileges and immunities of staff, counsel and persons assisting defence counsel²², witnesses²³ and experts²⁴. The fact that APIC explicitly mentions the privileges and immunities of representatives of States participating in the Assembly of States Parties and its subsidiary organs and representatives of intergovernmental organizations²⁵ as well as representatives of States participating in the proceedings of the Court²⁶, other individuals participating in the Court's proceedings, and particularly victims²⁷ is groundbreaking²⁸.

II. Paragraph 2

1. 'when engaged on ... the business of the Court'

Paragraph 2 of article 48 provides the judges, the Prosecutor and Deputy Prosecutor and the Registrar with privileges and immunities with respect to 'the business of the Court'. This formulation differs in significant respects from the provision in the ILC Draft Statute, which stated that these officials would have the 'privileges, immunities and facilities of a diplomatic agent' as that term is defined in the Vienna Convention on Diplomatic Relations²⁹. The ILC's approach would have ensured that these officials would have immunity from jurisdiction, personal inviolability and inviolability of their residence and property. A similar approach has been taken in the Statutes of the *ad hoc* Tribunals, which provided that the judges, Prosecutor and Registrar would have the status of diplomatic envoys, the same status as United Nations Assistant Secretary-Generals and above enjoy under the General Convention³⁰. Under international law, '[d]iplomatic envoys and their families are accorded absolute immunity from arrest or criminal prosecution, their private residences are completely inviolable, their personal baggage is generally exempt from inspection, and they are exempt from all forms of taxation. These immunities apply to the International Tribunals' senior officials whether they are acting within their official duties or in a purely private capacity³¹. Head of mission status is essentially equivalent to that of a diplomatic envoy, with similar privileges and immunities³². These immunities attach to the person of the diplomat and are

²² APIC, note 5, article 18.

²³ *Ibid.*, article 19.

²⁴ *Ibid.*, article 21.

²⁵ *Ibid.*, article 13.

²⁶ *Ibid.*, article 14.

²⁷ *Ibid.*, article 20.

²⁸ Similar provisions are contained in the Headquarters Agreement, note 7, in articles 21-29.

²⁹ 1994 ILC Draft Statute, article 16.

³⁰ General Convention, article V, note 1, section 19.

³¹ Morris and Scharf, *An Insider's Guide to the International Criminal Tribunal for the Former Yugoslavia*, Vol. I (1995) 317.

³² Denza, *Diplomatic Law* (2008) 256 *et seq.*

not simply functional, *i.e.*, they do not apply only when he or she is acting in his or her professional capacity but protect the diplomat at all times.

- 7 The approach taken in paragraph 2, however, is based on a similar provision in the Statute of the ICJ, which provides, '[t]he members of the Court, when engaged on the business of the Court, shall enjoy diplomatic privileges and immunities'³³. The language of paragraph 2 of article 48, originally proposed by Israel in the 1996 Preparatory Committee³⁴, is ambiguous. It appears to merge the diplomatic immunity of a head of mission or diplomatic agent with the concept of functional immunity by linking the privileges and immunities of the most senior officials of the Court to the 'business of the Court'. It is unclear whether this formulation would strip away some significant immunities of a head of mission, whose immunities do not depend on acting on official business. Indeed, it is difficult to reconcile the grant of head of mission status, which implies a personal immunity in areas such as civil and criminal jurisdiction, with the language linking that status with the 'business of the Court'. These provisions, if not mutually exclusive, rest very uneasily together. Functional immunity is a distinctly different concept from full diplomatic immunity, and paragraph 2 appears to confuse the two concepts. While these provisions create certain confusion and, at least facially, appear to erode the traditional diplomatic privileges and immunities of heads of diplomatic missions, it is clear these officials are granted the functional privileges and immunities necessary to independently discharge their professional obligations³⁵.

Although article 48 para. 2 is similar to the privileges and immunities provision of the ICJ Statute, it is important to note that the ICJ is not a criminal court and operates almost exclusively in its host State. Thus, it is not generally required to operate outside the host country, and in any event the members of the Court have essentially been granted head of mission status in the Netherlands³⁶. On the other hand, the Court is a criminal court with a Prosecutor who must operate not only in The Hague but also in many other jurisdictions.

2. 'accorded to heads of diplomatic missions'

- 8 Although it does appear to have been the intent of the drafters of the Rome Statute, it remains questionable whether judges, the Prosecutor and the Registrar enjoy the status traditionally accorded to head of missions in the Vienna Convention. Article 48 para. 2 of the Rome Statute, the APIC lacks clarity on this point³⁷. However, the text of paragraph 2 provides for a continuing limited immunity for these senior officials even after their departure from the Court for their words spoken, and acts taken, in their official capacity. Certainly the drafters would not have provided for this post-service immunity unless they intended for it to be narrower than the immunities given to these officials during the course of their actual service, *i.e.*, full head of mission status. In contrast, the Headquarters Agreement clearly provides that Judges, the Prosecutor (and Deputy Prosecutors) and the Registrar enjoy the same privileges, immunities and facilities as are accorded by the host State to heads of diplomatic missions in conformity with the Vienna Convention.³⁸

³³ ICJ Statute, article 19.

³⁴ 1994 ILC Draft Statute, p. 48.

³⁵ See Mochochoko, (2002) 25 *FordhamILJ* 652.

³⁶ Exchange of Letters between the President of the ICJ and the Minister for Foreign Affairs of The Netherlands of 26 June 1946 International Court of Justice: Acts and Documents Concerning the Organization of the Court, No. 5, 201–207, UN Sales No. 575 (1989).

³⁷ It is important to note that the head of mission status/diplomatic immunity status would be limited to the judges, Prosecutor/Deputy Prosecutor and Registrar. See Schermers and Blokker, *International Institutional Law* (2011) 386: 'Immunity for non-official acts is generally open to objection and contrary to the functionality principle, which underlies all international immunities'.

³⁸ Headquarters Agreement, note 7, article 17.2.

3. ‘continue to be accorded immunity’

In addition to the immunities enjoyed by the most senior officials of the Court during the course of their appointments to the Court, they will also need continued protection for their acts taken while in office. They will not need full immunity, as they will no longer be officials of the Court, so it is reasonable that they are not provided with full immunity. However, judges, the Prosecutor and the Registrar must be protected from legal proceedings regarding the decisions they took while they were in office or information that they obtained in office. Thus article 48 para. 2 of the Rome Statute and article 15 para. 1 of APIC as well as article 17.5 of the Headquarters Agreement establish a continuing limited immunity for these officials from legal process ‘in respect of words spoken or written and acts performed by them in their official capacity’.

III. Paragraph 3: Privileges and immunities of staff

Paragraph 3 establishes the privileges, immunities and facilities for the staff of the Court. These are functional immunities and shall be set forth ‘in accordance with the agreement on the privileges and immunities of the Court’. These functional immunities should be similar to those provided in the General Convention. These include immunity from legal process for acts performed in their official capacity; exemption from taxation; immunity from immigration restrictions; repatriation facilities; and importation of personal effects free of duty³⁹. Many of these matters will arise principally in respect of the host country and are consequently addressed in the headquarters agreement⁴⁰. However, in view of the fact that the Prosecutor will have investigators and other staff in various States performing investigations and missions, these matters are also addressed in article 16 of APIC. This article elaborates on the functional immunities and the privileges of the Deputy Registrar, the staff of the Office of the Prosecutor and the staff of the Registry provided for in article 48 para. 3 of the Rome Statute.

IV. Paragraph 4: Counsel, experts, witnesses and other persons

In addition to the senior officials of the Court and its staff, various other persons will have business with, or appear before, the Court, either as counsel, experts, witnesses or in some other capacity, and each of these categories of persons will require special arrangements. This is particularly true in the host country, and the Headquarters Agreement addresses these matters in detail. Articles 25 to 29 of the Headquarters Agreement grant privileges and immunities to these categories specifically, to the extent necessary for the independent performance of their functions or for their presence before the Court.⁴¹

In the case of counsel and persons assisting them, article 25 also provides for inviolability of papers and documents. Witnesses, experts and other persons appearing before the court are guaranteed free movement and limited immunity.

As the Headquarters Agreement, cannot address these issues for other States, the APIC covers the privileges and immunities of the aforementioned categories as well as the privileges and immunities of representatives of States participating in the Assembly of States Parties, its subsidiary organs, representatives of intergovernmental organizations, representatives of States participating in the proceedings of the Court as well as victims and other persons required to be present at the seat of the Court. The explicit coverage of all these

³⁹ General Convention, note 1.

⁴⁰ Headquarters Agreement, note 7, article 18.

⁴¹ Headquarters Agreement, note 7, article 25 (counsel), article 28 (experts), article 26 (witnesses), article 27 (victims), article 29 (other persons required to be present at the seat of the court).

categories substantially facilitates their participation in the proceedings of the Court, particularly for witnesses and victims who might be required to travel to and from, and in some cases through, other States. Not only is the cooperation of officials in those States needed but safe conduct and, in principle, immunity from legal process during the course of their testimony before the Court is essential.

- 12 In relation to the privileges and immunities accorded to defence counsel and persons assisting them⁴² and in view of the right of the accused to a fair trial, the question arises as to the equality of arms between the defence team and the prosecution. While the Rome Statute provides the Prosecutor and the Deputy Prosecutor with diplomatic immunity and the staff of the Office of the Prosecutor with functional immunity, the protection for counsel to carry out their functions was left to be defined by the APIC⁴³ and the Headquarters Agreement⁴⁴. The APIC and the Headquarters Agreement provide defence counsel and the persons assisting them with ‘(...) privileges, immunities and facilities to the extent necessary for the independent performance of his or her functions (...)’, which appears to be sufficient to assure the proper administration of justice and to allow counsel to conduct investigations in other States, including interviewing of witnesses and collecting documents.
- 13 The ICTR has confirmed the functional immunity of defence counsel before international Tribunals. The ICTR, to which the General Convention applied, held that defence counsel are to be considered experts on mission for the United Nations and given privileges and immunities accordingly⁴⁵. As such, defence counsel ‘benefit from immunity from personal arrest or detention while performing their duties assigned by the Tribunal and also with respect to words spoken or written and acts done by them in the course of them in the performance of their duties...before the Tribunal, order to allow for the proper functioning of the Tribunal’⁴⁶. Therefore counsel could not be prosecuted for writing an article recounting closing arguments for his client before the ICTR. His functional immunity did not however extend to articles written in a private or academic capacity, even though they were related to the relevant case before the Tribunal⁴⁷.

Similarly, the ICTY has confirmed that defence investigators enjoy functional immunity for acts done in fulfilment of their official functions if they are necessary for the proper functioning of the tribunal⁴⁸. Accordingly, a defence investigator who was given documents by a witness during an interview, should not have been investigated, prosecuted or subjected to the seizure of defence materials by national authorities for the alleged concealment of archived material⁴⁹.

The Presidency of the Court has found that counsel and persons assisting them in accordance with rule 22 of the Rules of Procedure and Evidence are granted immunity to the extent necessary for the performance of their legitimate functions. This immunity applies on the territory of the Host state pursuant to article 25 of the Headquarters Agreement and on the territory of signatory states other than the Host state pursuant to article 18 of APIC. The immunity does not extend to conduct which is allegedly in breach of offences related to

⁴² APIC, note 5, article 18.

⁴³ Mochochoko (2002) 25 *FordhamILJ* 654.

⁴⁴ Headquarters Agreement, note 7, article 25.

⁴⁵ *Theoneste Bagosora et al. v. The Prosecutor*, ICTR-98-41-A, Decision on Aloys Ntabakuze’s Motion for Injunctions Against the Government of Rwanda Regarding the Arrest and Investigation of Lead Counsel Peter Erlinder, 6 October 2010, paras.22–23.

⁴⁶ *Ibid*, para 26.

⁴⁷ *Ibid*, paras. 27–29. For the ICTR’s approach to the immunity of defence counsel and investigators up until this decision see Turner, A., ‘Tribunal ambivalence and Rwanda’s Rejection of Functional Immunity for the ICTR Defence’ (2010) *Revue Québécoise de Droit International (Hors-série)* 109.

⁴⁸ *Prosecutor v. Gotovina et al.*, IT-06-90-AR73.5, Decision on Gotovina Defence Appeal Against 12 March 2010 Decision on Request for Permanent Restraining Orders Directed to the Republic of Croatia, 14 February 2011, paras. 26–36.

⁴⁹ *Ibid*, paras. 5 and 71.

the administration of justice under article 70 of the Statute⁵⁰. Accordingly where there are reasonable grounds to believe that defence counsel and a case manager have intentionally presented evidence that they know is false or forged pursuant to article 70(1)(b) of the Statute and intentionally corruptly influenced a witness or obstructed or interfered with their attendance or testimony pursuant to article 70(1)(c), they do not enjoy immunity from arrest and detention pursuant to a warrant issued by the Court⁵¹.

V. Paragraph 5: Waiver of privileges and immunities

A fundamental precept of the privileges and immunities of international organizations is 14 that they are 'not for the personal benefit of the individuals themselves' and that the immunity of any official should be waived when it 'would impede the course of justice'⁵². Under the General Convention the power to waive is vested in the Secretary-General, who is under a duty to waive immunity if the above criterion is met and there is no prejudice to the United Nations. In the case of the Secretary-General, the power to waive is vested in the Security Council.

Article 48 para. 5 does not establish the criteria to be applied in exercising the power of waiver. Neither does it contain a detailed provision as to which authority should exercise the waiver power. These criteria are set forth in article 26 of APIC and article 30 of the Headquarters Agreement. A systematic approach has been taken whereby the judges, by an absolute majority, may waive the privileges and immunities of another judge; and the Presidency those of the Registrar; the Prosecutor those of the Deputy Prosecutor and the staff of the Prosecutor; and the Registrar those of the Deputy Registrar and the staff of the Registry. Moreover, the privileges and immunities of counsel and persons assisting defence counsel, witnesses and victims may be waived by the Presidency. Those accorded to experts may be waived by the head of the organ of the Court appointing the expert and, in the case of other persons required to be present at the seat of the Court, the Presidency may issue such a waiver. In essence, these arrangements grant supervisory powers the ability to waive the immunities of their subordinates, except in the case of a judge, who quite reasonably will be subject to the decision of his or her fellow judges. However, in the case of the Prosecutor, the power to waive is placed with the judges as well. This may be criticized as it could be seen as an encroachment upon the independence of the Prosecutor. It could thus be argued that the Assembly of States Parties would be the more appropriate authority to waive the Prosecutor's immunity. This would also be roughly analogous to the approach taken vis-à-vis the Secretary-General under the General Convention.

The Presidency has waived privileges and immunities for defence counsel and a case manager to the extent necessary for their arrest and detention in relation to administration of justice offences under article 70 of the Statute. It has found that it has a duty to waive pursuant to article 30 of the Headquarters Agreement and article 26 of APIC if the grant of privileges and immunities would first, impede the course of justice and second, they can be waived without prejudice to the purposes for which they are accorded⁵³. The first condition was satisfied on the grounds that the grant of immunity would impede justice by permitting persons who presented a serious flight risk to flee and evade investigation or prosecution. The second condition was satisfied because the purposes of immunity are the good administration of justice, the proper functioning of the Court and the independent performance

⁵⁰ *Situation in the Central African Republic*, No. ICC-01/05, Decision on the urgent application of the Single Judge of Pre-Trial Chamber II of 19 November 2013 for the waiver of immunity of lead defence counsel and the case manager for the defence in the case of *The Prosecutor v Jean-Pierre Bemba Gombo*, Presidency, 20 November 2013 ('Bemba Decision'), paras. 8–10.

⁵¹ *Ibid.*, paras 4,5,10.

⁵² General Convention, note 1, article V, section 20.

⁵³ Bemba Decision, note 50, para. 11.

counsel's functions. These purposes do not include the commission of offences against the administration of justice. As such, waiver does not prejudice the purposes for which immunities are granted⁵⁴.

⁵⁴ *Ibid.*, paras. 12–13.

Article 49

Salaries, allowances and expenses

The judges, the Prosecutor, the Deputy Prosecutors, the Registrar and the Deputy Registrar shall receive such salaries, allowances and expenses as may be decided upon by the Assembly of States Parties. These salaries and allowances shall not be reduced during their terms of office.

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A. Introduction/General remarks

Article 49 addresses the salaries, allowances and expenses of the most senior officials of the Court, including the judges, the Prosecutor and Deputy Prosecutors and the Registrar and Deputy Registrar. The ILC Draft Statute provided for the possibility of judges serving on a part-time basis¹ and, in line with this approach, stipulated that judges would receive an allowance if they served on a part-time basis or a salary if they became full-time. During the course of the Preparatory Committee, several delegations took the position that judges should be paid salaries and that proposals simply to pay them a per diem rate or an allowance were ‘offensive to judicial dignity and judicial independence’². The Preparatory Committee subsequently took the position that the judges should serve on a full-time basis and be paid regular salaries and allowances³. The Rome Statute provides for the election of full-time judges, with the proviso in article 35 that the Presidency will decide which judges will actually serve on a full-time basis; thus, provision has been made for the payment of salaries, allowances and expenses as established by the Assembly of State Parties. Moreover, the other senior officials who are elected by the Assembly of States Parties are paid salaries, allowances and expenses as determined by that body.

B. Analysis and interpretation of elements

Article 49 is clear and straightforward. The Assembly of States Parties is given the responsibility of setting the salaries, allowances and expense accounts for the officials it directly elects, *i. e.* the judges, Prosecutor and Registrar and their deputies. Unlike the *ad hoc* Tribunals, which are organs of the Security Council and funded by the United Nations, there is no pre-existing salary structure that corresponds to the levels of responsibility of the various offices. However, the Assembly of States Parties should take into account the levels that have been used for the corresponding judges and officers in the *ad hoc* Tribunals⁴. Since the Court is a permanent institution with the gravest of responsibilities, the salaries of the

¹ Article 10 para. 4, 1994 ILC Draft Statute, p. 63.

² 1996 Preparatory Committee II, p. 49.

³ Preparatory Committee (Consolidated) Draft, p. 86.

⁴ In the *ad hoc* Tribunals, the judges have served at the equivalent of the Under-Secretary-General level, on the same terms and conditions as the judges of the International Court of Justice. The Prosecutor is appointed at the Under-Secretary-General level while the Registrar is at the Assistant Secretary-General level; the Deputy Prosecutor and the Deputy Registrar are on high levels of the international civil service. Statute of the International Criminal Tribunal for the former Yugoslavia, an Annex to the Report of the Secretary-General Pursuant to Paragraph 2 of Security Council Resolution 808, ORSC, 48th Sess., UN Doc. S/25704 Ann. (1993), articles 13, 16 and 17.

judges, Prosecutor and Registrar and their deputies should be in line with the judges and officials of similar institutions, such as the International Court of Justice and other international and regional judicial bodies.

- 3 The Preparatory Committee's Final Draft contained the additional requirement that the salaries and allowances covered under article 49 'shall not be reduced during their term of office'⁵, which is retained in the Rome Statute. This is a feature of a number of domestic systems and is based on the argument that judicial officials should not be subject to having their salaries reduced due to unpopular decisions⁶; it is essentially a provision to ensure judicial independence⁷. It should be noted that this limitation on the powers of the Assembly of States Parties does not extend to expenses, which by their nature fluctuate and are not actually remuneration.

The seminal document which sets out the conditions and compensation of full time judges at the ICC is Part 4 of the Resolution Strengthening the International Court and Assembly of States Parties ('Resolution')⁸. In that resolution the Assembly of States Parties adopted the conditions of service and compensation of judges annexed to the Resolution ('Annex')⁹.

For the purposes of the Annex, a 'judge' is defined as a judge of the ICC, as specified in article 35 of the Statute, who serves on a full time basis¹⁰. Pursuant to the Annex, judges are required to take up residence in the Netherlands within sufficient proximity to the seat of the Court to be available to attend the Court at short notice in order to discharge their duties¹¹.

- 4 The annual salary of a judge shall be 180,000 Euros. The President receives a special annual allowance of 10 % of her annual remuneration, that is, 18,000 Euros. This brings the President's annual salary to 198,000 Euros. The First or Second Vice-President, or in exceptional circumstances, any other judges assigned to act as President, shall be entitled to a special allowance of 100 Euros net per day for each working day they act as President, up to a maximum of 10,000 Euros per year¹².
- 5 The Code of Judicial Ethics¹³ permits judges to engage in extra-judicial activities that are not incompatible with their functions¹⁴ and also contemplates the participation of judges in public debate pertaining to legal subjects, the judiciary or the administration of justice without commenting on pending cases¹⁵. Furthermore, judges may accept gifts, advantages, privilege or rewards unless they can be reasonably perceived as being intended to influence the performance of their judicial function¹⁶. These ethical guidelines appear to allow judges to accept reimbursement for expenses and honorariums in relation to extra-judicial activities such as public speaking in academic or civil society forums.
- 6 Part IV of the Annex and Appendix 1 of the Resolution set out the entitlements of judges with respect to travel costs and subsistence benefits. The Court is obliged to pay travel expenses of judges necessarily incurred on duly authorized journeys. These include: a trip from the judge's home upon her appointment; a round trip every second calendar year to her home; a trip home upon termination of her appointment; and other journeys on official business undertaken under the authority of the President of the Court¹⁷. Travel expenses shall include the cost of business class travel using the most cost-effective and time-efficient means¹⁸. When

⁵ Preparatory Committee (Consolidated) Draft, p. 86.

⁶ US Constitution, article III, § 1.

⁷ See, e.g., *The Federalist* No. 79 (Alexander Hamilton).

⁸ ICC-ASP/3/25 Res.3 Adopted at the 6th Plenary Meeting, on 10 Sep. 2004, by consensus.

⁹ ICC-ASP/3/25 Res.3 para. 22.

¹⁰ ICC-ASP/3/25 Res.3 Annex Pt. I para 1.

¹¹ ICC-ASP/3/25 Res.3 Annex Pt. II para 1.

¹² ICC-ASP/3/25 Res.3 Annex Pt. III.

¹³ ICC-BD/02-01-05.

¹⁴ *Ibid*, article 10.

¹⁵ *Ibid*, article 9.

¹⁶ *Ibid*, article 5.

¹⁷ ICC-ASP/3/25 Res.3 Annex, Appendix 1, article I.1.

¹⁸ ICC-ASP/3/25 Res.3 Annex, Appendix 1, article I.2.

judges are on official travel they shall be entitled to a daily subsistence allowance which is the equivalent of 140 % of the rates applicable to United Nations officials¹⁹.

Judges are entitled to 8 weeks leave per year and can accumulate leave provided that no more than 18 weeks are carried forward to the following year²⁰. They are also entitled to an education grant for their children which is the equivalent to that applicable to United Nations officials²¹. However, they must arrange for their own health insurance²².

Judge's pensions are regulated by Part V of the Annex and Appendix 2 to the Resolution subject to amendments to the pension scheme made by the Assembly of States Parties by resolution in 2007²³. These amendments represent a significant cost saving measure for the Court. A judge who has ceased to hold office and who has reached the age of 62 is entitled to a retirement pension. It is payable monthly, for the rest of her life, provided she did not have to relinquish her appointment for reasons other than the state of her health. A judge is entitled to a retirement pension of 1/72 of the annual salary for each year of service. No additional pension is payable if the judge has served more than a full nine year term²⁴. This is a significant reduction from the previous scheme which provided for a retirement pension equal to half of the annual salary if the judge had served a full nine year term.

Judges are precluded from receiving pensions from the Court while serving as a judge at another international court²⁵. Similarly, former judges of the ICJ, ICTY and ICTR are precluded from receiving pensions from the United Nations pension scheme while sitting on the Court²⁶.

According to article II of Appendix 2, a judge found by the Court to be unable to perform her duties because of permanent ill health or disability, will be entitled to a disability pension payable monthly. The amount of the pension shall be equal to the amount of the retirement pension that would have been payable to the judge had she completed the term for which she had been elected. The amendments to the pension scheme set out the entitlements of a judge's spouse and her children in the event of her death²⁷.

The Assembly of States Parties has also considered and decided upon the conditions of service and compensation of non-full-time judges. Non-full-time judges are entitled to an annual allowance of 20,000 euros paid monthly. In addition to this payment, a judge who declares on an annual basis that her net income including this annual allowance, is less than the equivalent of 60,000 euros per annum will receive an allowance, paid monthly, to bring her income to that level. Non-full-time judges are entitled to a full-time allowance of 270 euros a day when they are engaged in the business of the court and a separate subsistence allowance at the United Nations rate for judges of the ICJ, for each day that the judge attends meetings of the Court. Non-full-time judges are entitled to business class travel costs for attending official meetings of the Court. All judges are responsible for their own health insurance²⁸.

In addition to these benefits, paragraph 23 of the Resolution provides that the first judges of the Court elected for three or six year term shall be entitled to the same disability pension as the judges elected for a full nine year term. Further, paragraph 24 of the Resolution states that the first judges of the Court elected for a three year term, who have not served on a full-time basis during their entire term and who are not re-elected, shall be entitled to receive a retirement pension at the end of their service, which is prorated to the length of time that they served on a full time basis.

¹⁹ ICC-ASP/3/25 Res.3 Annex, Appendix 1, article II.1 and 2.

²⁰ ICC-ASP/3/25 Res.3 Annex Pt. XI.

²¹ ICC-ASP/3/25 Res.3 Annex Pt. IX.

²² ICC-ASP/3/25 Res.3 Annex Pt. X.

²³ ICC-ASP/6/Res.6.

²⁴ ICC-ASP/6/Res.6, article I.

²⁵ Resolution ICC-ASP/5/Res.3, para. 27.

²⁶ UN Doc. A/Res/63/259, ICC-ASP/8/Res.3, para. 40 and ICC-ASP/7/Res.3, para. 28.

²⁷ ICC-ASP/6/Res.6, articles III and IV.

²⁸ ICC-ASP/2/10 Part III. A. II.

- 12 In relation to the conditions of service and compensation of the Registrar, the Resolution provides that they will be the same as those of an Assistant Secretary-General in the United Nations common system²⁹.
The conditions of service and compensation of the Prosecutor and Deputy Prosecutors are the same as those of Under-Secretary-General and Assistant Secretary-General in the United Nations common system³⁰.
- 13 Finally, if a judge, the Prosecutor, a Deputy Prosecutor, the Registrar or the Deputy Registrar is suspended from duty because of a complaint of misconduct or breach of duty³¹, their suspension shall not affect their salary and allowances³².

²⁹ ICC-ASP/3/Res.3 para. 27.

³⁰ ICC-ASP/5/Res.3 para. 29.

³¹ Pursuant to article 46 of the Statute and rules 24–26 of the Rules of Procedure and Evidence of the Court.

³² Regulation 124 sub-regulation 2, Regulations of the Court.

Article 50

Official and working languages

1. The official languages of the Court shall be Arabic, Chinese, English, French, Russian and Spanish. The judgments of the Court, as well as other decisions resolving fundamental issues before the Court, shall be published in the official languages. The Presidency shall, in accordance with the criteria established by the Rules of Procedure and Evidence, determine which decisions may be considered as resolving fundamental issues for the purposes of this paragraph.

2. The working languages of the Court shall be English and French. The Rules of Procedure and Evidence shall determine the cases in which other official languages may be used as working languages.

3. At the request of any party to a proceeding or a State allowed to intervene in a proceeding, the Court shall authorize a language other than English or French to be used by such a party or State, provided that the Court considers such authorization to be adequately justified.

Literature: Bohlander, M., 'Language, culture, legal traditions and international criminal justice', (2014) 12 *JICJ* 491; Jones, J.R.W.D. And Zgonec-Rozej, M., 'Rights of Suspects and Accused', in: A. Alamuddin, *et al.*, *The Special Tribunal for Lebanon Law and Practice* (OUP 2014) 177; Karton, J, 'Lost in Translation: International Criminal Tribunals and the Legal Implications of Interpreted Testimony', (2008) 41 *VanderbiltJTransnatL* 1; Shahabuddeen, M., *International Criminal Justice at the Yugoslav Tribunal A Judge's Recollection* (OUP 2012).

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A. Introduction/General remarks

Article 50 establishes the languages of the Court, both official and working, and sets out the circumstances in which other languages may be used. There are several competing principles that rules regarding the use of languages must address, particularly in the context of an international judicial institution with criminal jurisdiction. First and foremost, the right of the accused to understand the charges against him or her and to defend himself or herself against those charges is a fundamental human rights norm that must be respected¹. In addition, the United Nations has six (6) official languages, and it is important that these languages be used and respected as much as possible. However, in the actual work of the Court, like other international organizations and institutions, account must be taken of the practical and cost implications of attempting to work in multiple languages. Thus, all international organizations have adopted a working language or working languages, in which the day-to-day work of the institution is carried out. Consideration also must be given to the costs of interpretation and translation, particularly since these costs increase with the number

¹ Article 14 ICCPR.

of languages used in the work of the Court and budgets of international organizations in general and the Court specifically, have been severely tightened in recent years.

- 2 The ILC Draft Statute simply provided that the ‘working languages of the Court shall be English and French’². This formula was maintained until the Preparatory Committee’s Final Draft, which added a provision that the Court ‘shall, at the request of any Party, authorize a language other than English or French to be used by that Party’³. Similarly the ICJ Statute designates English and French as official languages but authorizes other languages to be used at the request of parties⁴. During the course of the Rome Conference, a number of delegations, particularly from the Spanish-speaking world, pushed for the use of the official languages of the United Nations in certain aspects of the work of the Court. They argued that the Court should follow the same approach as the United Nations in this regard. The result was that article 50 now provides for the mandatory use of official languages, *i.e.* Arabic, Chinese, English, French, Russian and Spanish, in certain cases, while maintaining English and French as the working languages⁵. Moreover, provision has been made for the use of other languages when the Court finds that the use of another language is adequately justified.

This system of official and working languages in international criminal courts may be traced back to the Nuremberg proceedings. The official documents of the proceedings, including the indictment, rules, written motions, written orders, findings and judgments of the Tribunal were required to be in the English, French, Russian and German languages⁶. This recognized the importance of establishing for history an authentic text of the Trial of major war criminals⁷. In contrast, documentary evidence of exhibits could be received in the language of the document, but a translation in German had to be provided to the defendants⁸. Further each defendant was entitled to receive the Indictment, Charter, any documents lodged with the indictment and a statement regarding the right to the assistance of counsel and a list of counsel, in a language which the defendant understood⁹.

- 3 Rules 40–43 set out the criteria for the use of official languages and the circumstances under which they may be used as working languages. These rules reflect an attempt to strike a balance between potentially competing interests. On one view the official languages should be used as extensively as possible in order to enhance public awareness of ICC practice and jurisprudence through wide dissemination. The other view is that the use of official languages should be limited in order to reduce costs and the potential delays involved in obtaining written translations.

The Rules also entrench the Presidency’s mandatory and discretionary powers in relation to language issues. The discretionary element of the Presidency’s role is a positive step; it provides an important and necessary level of flexibility that will allow the Court to react to changing circumstances.

The Regulations of the Court provide further specificity to these provisions. Regulation 39 contains provisions regarding language requirements and regulations 40 sets out the provisions regarding the language services of the Registry.

The Regulations of the Registry set out the manner in which the language services of the registry provide translation and interpretation services¹⁰. Regulations 57–60 provide the general provisions regarding the provision of interpretation, translation, editing and revision

² Article 18, 1994 ILC Draft Statute.

³ Preparatory Committee (Consolidated) Draft, p. 87.

⁴ Article 39, Statute of the ICJ.

⁵ See the Rules of Procedure and Evidence, adopted rule 51, UN Doc. A/520/Rev.15 (1985) and UN Doc. ST/SGB/212 (1985).

⁶ See rule 9(b) of Rules of Procedure (Adopted 29 Oct. 1945), Trial of the Major War Criminals Before the International Military Tribunal, Vol. I, Nuremberg 14 Nov. 1945–1 Oct. 1946, (1995) 22.

⁷ Trial of the Major War Criminals (1995), note 6, p. vii.

⁸ *Supra* note 6.

⁹ See rules 2(a) and 3 of Rules of Procedure (adopted 29 Oct. 1945), Trial of the Major War Criminals (1995), note 6, pp. 19 and 30.

¹⁰ Chapter 2 section 2, Regulations of the Registry.

services. Court, conference and field interpretation are dealt with in regulations 61- 69 and translations are addressed in regulations 70-75. A number of these language regulations were amended in 2013 to address issues in need of reform that had been identified through their practical application in the preceding years¹¹.

B. Analysis and interpretation of elements

I. Paragraph 1

1. 'official languages'

Under article 50, the judgments of the Court must be published in all six (6) official languages; moreover, 'other decisions resolving fundamental issues before the Court' must also be published in all official languages. The decision as to 'which decisions may be considered as resolving fundamental issues' is left to the Presidency, which is to be guided by criteria established in the Rules of Procedure and Evidence.

This situation contrasts with that of the *ad hoc* Tribunals' Statutes which, following the precedent of the ICJ¹², employed English and French as working languages¹³ but did not designate official languages. Similarly, neither the Special Court for Sierra Leone, nor the Extraordinary Chambers in the Courts of Cambodia have designated official languages. However they provide for working languages being English for the SCSL¹⁴ and Khmer, English and French for the ECCC.¹⁵ The working languages are effectively the official languages of these judicial bodies with judgments and other decisions being published in them.

In addition to its two working languages, the ICTY has interpreted proceedings and translated a number of its decisions and in particular its judgments, into the languages of the former Yugoslavia, including Bosnian/Croatian/Serbian ('BCS')¹⁶. This practice is consistent with rule 144 sub-rule 2 of the Rules of Procedure and Evidence of the Court, which provides that certain fundamental decisions, including those regarding the criminal responsibility of the accused, be provided to the accused in a working language of the court and in a language the accused fully understands, if this is necessary to meet the requirements of fairness under article 67, paragraph 1(f). At the ICTY, this practice also facilitated outreach through the dissemination of information regarding the work of the tribunal in the areas in which crimes occurred. Similarly, in addition to working in French and English, the ICTR also interpreted proceedings and published some of its judgments into Kinyarwanda¹⁷.

In contrast to these tribunals and courts, and consistent with the ICC approach, article 14 of the statute of the Special Tribunal for Lebanon expressly differentiates between the official languages of Arabic, French and English and its working languages. However the working languages are not expressly enumerated. At the STL the pre-trial judge or chamber has the discretion to decide that one or two of the official languages may be used as working languages as appropriate on a case by case basis.¹⁸ All STL decisions must be rendered in

¹¹ ICC Press Release, The ICC Presidency approves amendments to the Regulations of the Registry, ICC-CPI-20131205-PR970.

¹² Article 39, Statute of the ICJ.

¹³ Article 33, ICTYS and article 31, ICTRS.

¹⁴ Article 24, Statute of the SCSL.

¹⁵ Article 45 new, Law on the Establishment of the Extraordinary Chambers, with inclusion of the amendments as promulgated on 27 October 2004 (NS/RKM/1004/006).

¹⁶ The ICTY has an obligation to provide accused persons with a copy of the judgment in a language they understand pursuant to rule 98 *ter* (D) ICTY RPE.

¹⁷ Kinyarwanda at the ICTR and BCS at the ICTY were so commonly used in translation and interpretation that have been characterized as *de facto* working languages, see Shahabuddeen, *International Criminal Justice at the Yugoslav Tribunal A Judge's Recollection* (OUP 2012) 20.

¹⁸ Also see rule 10(B), STL RPE.

English or French and fundamental decisions including judgments must be translated into Arabic, and a language that the accused understands if he is in custody¹⁹.

- 6 In practice, the judges of international courts and tribunals usually draft joint decisions and judgments in one of the working languages of the court. The original version is then translated into other working and/or official languages. In some cases there have been substantial delays in issuing translations which have been caused or compounded by a lack of resources and qualified translators.

2. ‘other decisions resolving fundamental issues before the Court’

- 7 Paragraph 1 of article 50 provides that the Presidency shall determine which other decisions of the Court resolve fundamental issues and these decisions shall also be published in the Court’s official languages. The use of the term ‘resolving’, in relation to the ‘fundamental issues’ in question is somewhat curious as this provision could be interpreted to apply only in decisions that not only address a ‘fundamental issue’ but also actually ‘resolve’ it. Thus, it could be argued that decisions that discuss important issues but which do not resolve those issues do not fall within the ambit of this provision. More significantly, the decision must resolve a ‘fundamental issue before the Court’. It is submitted that ‘fundamental issue’ in this context does not refer necessarily to an important issue in that particular case but is intended to apply to decisions that have a wider impact. For example, those decisions that touch upon the Court’s jurisdiction, involve an interpretation of an element of the Statute or establish an important principle. Given that the Court may have many decisions that will involve such routine matters as scheduling, and in view of the costs involved in making such translations, the criteria established in the Rules should be strict, providing for publication only in the instances noted above.
- 8 Apart from judgments, no other specific categories of decisions were designated for publication into the official languages by article 50. Rule 40 amplifies article 50 para. 1 by providing greater specificity in this regard. This rule creates three categories of decisions. Rule 40 sub-rule 1 sets out the first category of decisions that *shall* be considered as resolving fundamental issues and therefore will always be published in the official languages. The list is broad and contains the most important types of decisions from jurisdiction and admissibility to judgments, sentences and appeals. It is noteworthy that the practice of the ICTY has been to publish judgments, sentences and appellate judgments in the BCS language, reflecting the importance of their dissemination in the region to which they relate.

The second category in rule 40 sub-rule 2 relates to two important types of decisions which *may* be considered as resolving fundamental issues: decisions on confirmation of charges and decisions on offences against the administration of justice. In this case the Presidency is granted the discretion to decide on a case by case basis whether they should be published in the official languages. The reason underlying this approach is clear. Decisions on confirmation set out the first public assessment of the Court as to the charges that the accused will face at the trial. Moreover, decisions regarding offences against the administration of justice may also be of fundamental importance (particularly to counsel) because they clarify the types of behavior that can attract sanctions including imprisonment. The deterrence value of such decisions would arguably be enhanced by the widest possible dissemination.

Rule 40 sub-rule 3 is a catch all provision governing other types of decisions not specified elsewhere. It provides the Presidency with the broad discretion to publish other decisions if they concern major issues relating to the interpretation or implementation of the Statute or concerning a major issue of general interest.

Sub-rules 2 and 3 of rule 40 provide for the exercise of discretion by the Presidency. The structure of the rule arguably creates a priority of consideration. Thus the rule may be interpreted as requiring the Presidency to consider confirmation and administration of

¹⁹ Rules 10(E) and 168(C), STL RPE.

justice decisions as a matter of priority and then to consider other decisions not falling into those categories, for publication in the official languages.

Court regulation 40 sub-regulation 1 states that the Registrar shall ensure that the decisions and texts envisaged in article 50 para. 1 and in rule 40, are translated into all the official languages of the Court.

II Paragraph 2: Working languages

Article 50 para. 2 is straightforward. As is the case in the United Nations Secretariat, the Court's working languages are English and French²⁰. This basic provision is reflected in the Court's Regulations. Regulation 39 sub-regulation 1 states that all documents filed with the Registry shall be in English or French, unless otherwise provided in the Statute, Rules or Regulations or authorized by the Chamber or Presidency. If the original document or material is not in one of these languages, a participant shall attach a translation. Sub-regulation 2 states that this provision will not apply to victims who are not represented and do not have a sufficient knowledge of the working language of the Court or an authorized language. In this case the Registrar will be responsible for both interpretation and translation of all documents and materials filed with the Registry pursuant to Court regulation 40 sub-regulation 4. These regulations have the effect of mandating that all Court filings must be in one of the working languages of the Court. If participants in the proceedings cannot file in one of the working languages then they are responsible for obtaining and filing a translation of the filing into one of the working languages.

The fact that Court decisions and judgments are done in English and in French does not signify that both versions will be provided at the time of filing but rather, that there will be a filing in one working language and a translation into the other working language. Extensions of time limits will generally not be granted where a party has timely access to a filing in one working language which is not its language of choice, pending that filing's translation into the other working language, which the party (better) understands. However such extensions may be granted on a case by case basis if good cause is established, particularly if the cause relates to the fairness of proceedings²¹.

Article 50 para. 2 of the Statute allows for the Rules to 'determine' that other official languages be used as working languages. Thus, for example, the Rules could have provided that if the Court's docket included a substantial number of cases from a particular region of the world where one of the official languages is widely spoken, an official language would become a working language. Moreover, if the United Nations were to ever decide to change its working languages by adding an additional working language(s), the Court would likely follow suit.

Paragraph 2 of article 50 can be contrasted with paragraph 3 of the same article. Paragraph 2 is broader in the sense that it applies to the use of an official language as a working language by the Court, its personnel and all the parties to a proceeding. On the other hand paragraph 3 allows a party to use *any* language apart from the working languages of the Court, notwithstanding the designated working language of the Court.

The circumstances under which an official language can be authorized as a working language of the Court under article 50 para. 2 is specified under rule 41. This rule contains

²⁰ *Supra* note 5.

²¹ *Prosecutor v. Lubanga Dyilo*, No. ICC-01/04-01/06, Decision on defence request for extension of time, Trial Chamber I, 22 January 2008, paras.12–16; *Prosecutor v. Jean-Pierre Bemba Gombo*, No. ICC-01/05-01/08 OA 7, Judgment on the appeal of Mr Jean-Pierre Bemba Gombo against the decision of Trial Chamber HI of 27 June 2011 entitled Decision on Applications for Provisional Release, Appeals Chamber, 19 August 2011, paras. 22–24; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08 OA 3, Decision on the Central African Republic's request for an extension of the time limit, Appeals Chamber, 8 September 2010; *Prosecutor v. Katanga*, No. ICC-01/04-01/07 A, Decision on the requests of Mr. Germain Katanga and the Prosecution relating to the time limits for their filing on appeal, Appeals Chamber, 4 April 2014. Also see Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (OUP 2010) 638–640.

both mandatory and discretionary components. The ultimate aim of each of these provisions appears to be the promotion of judicial efficiency and economy.

Under sub-rule 1(a) the Presidency is obliged to authorize the use of an official language as a working language when the language is understood and spoken by a majority of the participants in a proceeding and any of those participants requests its use. Thus, this provision would be applicable where the majority of witnesses and the accused speak and understand an official language. In these circumstances the use of the official language as a working language would promote the conduct of a more efficient proceeding, which could be conducted more economically and expeditiously than a proceeding requiring constant translation into the working languages of French and English.

Sub-rule 1(b) also imposes a mandatory obligation upon the Presidency to authorize the use of an official language as a working language if both the Defence and the Prosecution so request. This provision requires agreement between counsel as to the use of language for some reason other than it is the common language of the majority of the parties. For example this provision could be applied in a case which is based on a large volume of documentary evidence in an official language other than one of the working languages. In these circumstances, using an official language as a working language would save substantial resources and time. This has been an issue in some ICTY leadership prosecutions that have involved thousands of BCS documentary exhibits. The translation of those documents into both working languages of the ICTY has required the dedication of substantial resources and time.

Finally, rule 41 sub-rule 2 contains a residual discretionary provision, granting the Presidency the broad power to authorize the use of an official language as a working language if it considers that it would facilitate the efficiency of proceedings. This provision can be triggered upon the request of the Presidency, parties or counsel and can be distinguished from the preceding provisions which can only be triggered by parties and counsel respectively.

- 14 In practice, the potential efficiency gains that could be derived from the designation of an official language as a working language are heavily dependent on parties, counsel and judges having a working knowledge of that language, and thus reducing the practical necessity for translation into the permanent working languages of French or English. Court regulation 40 sub-regulation 2(a) states that the Registrar shall ensure that interpretation services are provided in all proceedings for English and French and any other official language used as a working language in accordance with rule 41. The Registrar shall also ensure the translation into the other working languages of all decisions or orders taken by the Chambers during proceedings pursuant to regulation 40 sub-regulation 3. A noticeable aspect of these provisions is that they are silent as to who is responsible for the translation of documents or materials which are used as exhibits in the proceedings. This may be indicative of a practice whereby the parties initially translate their exhibits subject to revision by Registry translators. In the case of the OTP, its languages services unit translates documents which are potentially relevant to situations and cases²². If those documents are submitted as exhibits, the Registry's translation section can then revise those translations, as they constitute official court documents²³. The translation of exhibits is a critical issue. High level cases commonly involve hundreds and even thousands of documentary exhibits. Often such evidence will be central to the determination of guilt or innocence. The translations of such documents must be prepared on a confidential basis and they must be ready in a timely fashion. Most importantly they must be accurate. Failure to provide accurate and timely translation of exhibits in a high-level document-based litigation may jeopardize the right of the accused to a fair and expeditious trial and therefore threaten the viability of proceedings themselves.

²² Regulation 10(c) of the Regulations of the OTP. Most of the translation work done for an international prosecution is not introduced as exhibits but is used as working documents during the investigation or as disclosure material, Official Records of the Assembly of States Parties to the Rome Statute of the International Criminal Court, Second session, New York, 8–12 September 2003 (ICC-ASP/2/10), part II, para. 64.

²³ Section 2, Regulations of Registry.

III. Paragraph 3

1. Authorization of a language other than English or French

As noted in the previous discussion, regardless of the designation of official and working languages, an accused has a right to understand the charges against him/her and to respond to those charges. In order to do so, it is generally necessary for the accused to use his/her own language in the course of the proceeding, *e.g.* to testify. Thus, the *ad hoc* Tribunals have adopted rules that provide that the accused has ‘the right to use his own language’²⁴ and that others appearing before the Tribunal may also use their own languages if they do not have a sufficient knowledge of one of the working languages²⁵.

It is notable that SCSL, ECCC and the STL have included official or working languages that are commonly used in a single geographical region where crimes were committed. This means that many accused and a significant proportion of victims, witnesses and affected communities should be able to understand court documents and proceedings without the need for translation and interpretation beyond those official or working languages. In contrast, the situations with which the Court deals concern many different geographic regions in which various languages are used. These can increase with the opening of new investigations. This is illustrated in estimates for 2015 which indicated that, in addition to the official and the working languages of French and English, an additional 11 languages would be used in the court room²⁶.

2. Authorization adequately justified

As discussed above, the Court will have to ensure the protection of the rights of the accused and the fairness of the proceedings generally. In this regard, the approach adopted by the *ad hoc* Tribunals, *i.e.* allowing for the accused and other witnesses to use their own languages, ensures that human rights guarantees are protected. In addition, the Court must provide for interpretation to the accused. This step, which has also been followed in the *ad hoc* Tribunals, is required by the ICCPR: ‘[Everyone charged with a criminal offence shall have the right] ... [t]o have the free assistance of an interpreter if he cannot understand or speak the language used in court ...’²⁷.

This right has been enshrined in article 67, paragraph 1(f) of the Statute which provides that an accused must have the assistance of an interpreter and such translations that are necessary to meet the requirements of fairness if the proceedings or documents presented are not in a language they fully understand and speak. Similarly, pursuant to article 67, paragraph 1(a) a suspect has a right to be informed about the charges in a language they fully understand and speak. This right has been incorporated into the Court’s Regulations. Regulation 40 sub-regulation 2(b) states that the Registrar shall ensure that interpretation services are provided in all proceedings for the language of the person to whom article 58 applies (a person who is subject to a warrant of arrest of a summons to appear), the accused, convicted or acquitted person if he or she does not fully understand or speak any of the working languages.

A request for translation into a language the accused fully understands will be granted unless it is absolutely clear on the record that the person fully understands and speaks one of the working languages of the Court and is abusing their right under article 67 of the Statute. An accused is considered to fully understand and speak a language when they are completely fluent in the language in ordinary, nontechnical conversation. It is not required that they

²⁴ Rule 3(B), ICTY RPE.

²⁵ Rule 3(C), ICTY RPE.

²⁶ Proposed Program Budget for 2015 of the International Criminal Court (ICC-ASP/13/), Annex III.

²⁷ Article 14 ICCPR.

have an understanding as if they were trained as a lawyer or judicial officer. If there is any doubt as to whether a person fully understands and speaks the language of the Court, their request for another language should be accommodated²⁸.

Pursuant to regulation 40 sub-regulation 6 the Registrar shall also ensure translations of all decisions or orders in his or her case however it will be the Defence Counsel's responsibility to inform that person of the other documents in his or her case.

- 18 The import of these provisions taken as a whole is that the Registry will provide interpretation of proceedings and translations of Court decisions for accused persons who do not speak or understand the working languages fully. The Defence will be responsible for providing for interpretation and translations outside these parameters including the translation of exhibits.

Pursuant to Court regulation 40 sub-regulation 6 the Registrar shall also ensure translations of all decisions or orders in the case of suspect questioning pursuant to article 55 para. 2 however it will be Defence Counsel's responsibility to inform that person of the other documents in his or her case. The Prosecution is required to provide interpretation into a language that the person being questioned understands during the questioning²⁹. Presumably the same requirement would apply to a State authority which was conducting such questioning.

- 19 According to Court regulation 39 sub-regulation 3 when a Chamber authorizes the use of a language other than English or French by a participant, and following consultation with the Registrar, the expenses for interpretation and translation shall be borne by the Court. If such an authorization is made, the Registrar is obliged to ensure that interpretation services are provided pursuant to Court regulation 40 sub-regulation 2(c), however there is no such stated obligation in respect of translation.

Regulation 39 sub-regulation 3 requires the Chamber to consult with the Registrar before making such an authorization. This is a sound practical requirement. The Registrar is responsible for the interpretation of the proposed authorized language. Therefore he is in a position to know the practical and resource implications of authorizing a non-working language and can advise the Chamber accordingly. In addition, this regulation provides that should such an authorization be made the costs for both translation and interpretation will be borne by the Court. The budgetary costs of providing translation and interpretation services for pre-trial, trial and appellate proceedings in the ICTY and ICTR have proven to be substantial. In this regard, the ICC's Committee on Budget and Finance has expressed concern at the increasing burden of translation costs on the budget of the Court³⁰. Requiring that these substantial costs be borne by the Court, in contrast to English or French for which staff and resources already exist, will act as a practical barrier to such authorizations. In principle, when making such a decision the Court must weigh the rights of the accused to a fair trial and the interests of justice. In practice this provision could result in such authorizations being made in circumstances where the failure to do so would most probably lead to an unfair trial.

IV. Rules and regulations of general application to article 50

- 20 The abovementioned provisions must be read in light of the general provision in rule 42 which obliges the Court to arrange for translation and interpretation services necessary to ensure the implementation of its obligations under the Statute and Rules. This provision

²⁸ *Prosecutor v. Katanga*, No. ICC-01/04-01/07 (OA 3), Judgment on the appeal of Mr. Germain Katanga against the decision of Pre-Trial Chamber I entitled Decision on the Defence Request Concerning Languages, Appeals Chamber, 27 May 2008, para. 61. For an example of a refusal to interpret and translate into another language, see *Prosecutor v. Ruto et. Al.*, No. ICC-01/09-01/11, Decision on Joshua Arap Sang's Request for Translation and Interpretation into Kalenjin, Pre-Trial Chamber II, 6 April 2011.

²⁹ Regulation 42, Regulations of the OTP.

³⁰ Official Records of the Assembly of States Parties to the Rome Statute of the International Criminal Court, Sixth session, New York, 30 November – 14 December 2007 (ICC-ASP/6/20), vol. II, part B.2, para. 70.

places a substantial financial burden upon the Court while at the same time granting it the discretion to exercise its power in accordance with its primary obligation to ensure fair and expeditious proceedings. In the ICTY the requirements stemming from the translation of huge volumes of documentary material had, at times, practically overwhelmed the Tribunal's translation services and meant that much of the substantial burden of translation fell upon the parties, particularly the prosecution.

The issue of funding is fundamental in this context. The Court must be provided with and then allocate adequate resources to fulfill its obligations under rule 42. If these resources are not forthcoming and this results in large translation backlogs then proceedings may be delayed. This could potentially undermine the Court's obligation to ensure fair and expeditious proceedings.

Finally rule 43 obliges the Court to ensure that all published documents respect the confidentiality of proceedings and the security of victims and witnesses. The reasons for this rule are apparent. This provision has resource implications. It will in practice require the redaction of documents, transcripts and other official publications. Rule 43 could be interpreted as requiring the Court to order the parties to make appropriate redactions before publication. It could also be interpreted as permitting the Court staff to make those redactions in consultation with the parties. This is consistent with Registry regulation 73 which provides that should a Chamber, party or participant wish to redact a translation of their own filing, it is their responsibility to do so upon the official translation. 21

Article 51

Rules of Procedure and Evidence

1. The Rules of Procedure and Evidence shall enter into force upon adoption by a two-thirds majority of the members of the Assembly of States Parties.

2. Amendments to the Rules of Procedure and Evidence may be proposed by:

- (a) Any State Party;
- (b) The judges acting by an absolute majority; or
- (c) The Prosecutor.

Such amendments shall enter into force upon adoption by a two-thirds majority of the members of the Assembly of States Parties.

3. After the adoption of the Rules of Procedure and Evidence, in urgent cases where the Rules do not provide for a specific situation before the Court, the judges may, by a two-thirds majority, draw up provisional Rules to be applied until adopted, amended or rejected at the next ordinary or special session of the Assembly of States Parties.

4. The Rules of Procedure and Evidence, amendments thereto and any provisional Rule shall be consistent with this Statute. Amendments to the Rules of Procedure and Evidence as well as provisional Rules shall not be applied retroactively to the detriment of the person who is being investigated or prosecuted or who has been convicted.

5. In the event of conflict between the Statute and the Rules of Procedure and Evidence, the Statute shall prevail.

Literature: Affolder, N.A., 'Tadić, the Anonymous Witness and the Sources of International Procedural Law', (1998) 19 *MichJIL* 445; Ambos, K., 'International Criminal Procedure: "Adversarial", "Inquisitorial", or Mixed?', (2003) 3 1; Broomhall, B., *International Justice and the International Criminal Court: Between Sovereignty and the Rule of Law* (Oxford University Press 2003); Fernández de Gurmendi, S. And Friman, H., 'The Rules of Procedure and Evidence of the International Criminal Court', (2000) 3 *YbIHuML* 289; Friman, H., 'Procedural Law of the International Criminal Court: an Introduction', in: F. Lattanzi and W.A. Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court*, ii (iSirente 2004) 201; Kreß, C., 'The Procedural Law of the International Criminal Court', in: Outline: Anatomy of a Unique Compromise, (2003) 1 *JICJ* 603; *id.*, 'The Procedural Texts of the International Criminal Court', (2007) 5 *JICJ* 537; Nsereko, D.D.N., 'Rules of Procedure and Evidence of the International Tribunal for the Former Yugoslavia', in: Clark, R.S. And Sann, M. (eds.), *The Prosecution of International Crimes: A Critical Study of the International Tribunal for the Former Yugoslavia* (Trannational Publishers 1996) 213; Triffterer, O., 'Der Ständige Internationale Strafgerichtshof – Anspruch und Wirklichkeit, Anmerkungen zum 'Rome Statute for the International Criminal Court' vom 17. Juli 1998', in: K.H. Gössel and O. Triffterer (eds.), *Gedächtnisschrift für Heinz Zipf* (Müller 1999) 495.

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A. Introduction/General remarks

I. Historical development to the end of the Rome Diplomatic Conference¹

The precursor to article 51 first appeared in the Draft Statute prepared by the International Law Commission in 1994.² article 19 (‘Rules of Court’) of the ILC Draft was designed in the belief that it would be cumbersome and inflexible to include all rules of procedure and evidence in the Statute itself, and that the Rules should be drafted by the judges of the Court, subject to the approval of States Parties.³ They would regulate investigations, procedure, evidence and ‘any other matter which is necessary for the implementation of this Statute’. The ILC Draft contemplated that even the initial Rules would be drafted by the judges and submitted to a conference of States Parties (article 19 para. 2). While these initial Rules would be subject to positive State approval, Rules subsequently adopted by an absolute majority of judges would be subject only to a passive approval method whereby they would be transmitted to States Parties and could be confirmed by the Presidency six months thereafter unless a majority of States Parties objected (article 19 para. 3). Such subsequent Rules could be submitted to a conference of States Parties at the judges’ discretion (article 19 para. 2). A rule could provide for its provisional application pending approval or confirmation (article 19 para. 4).

The discussions in the 1995 Ad Hoc Committee acknowledged the substantive importance of the Rules, and delegates questioned whether they should not be elaborated by States at the same time as – and even included wholly or partially within – the Statute itself.⁴ Similar concerns were reflected in the 1996 Preparatory Committee Report.⁵ When the Preparatory Committee agreed that the principle of legality required that fundamental principles of criminal law be included either in the Statute or in an annex of equal legal value, some delegates argued that the judges, subject to approval by States Parties, could still include within the Rules detailed or technical specifications that supplemented or elaborated their provisions. This indicated an awareness of the seamless gradient extending between the ‘fundamental’ or ‘substantial’, to be contained in the Statute, and the ‘technical’ or ‘procedural’, suitable for the Rules.⁶ Opinion was, in essence, divided between those attributing greater weight to the principle of legality and seeking to have all provisions of any weight

¹ See generally Chapter 8, ‘International Criminal Law Procedures’, and in particular Fernández, in: Lee (ed.), *Making* (1999) 217, 217–293 and 217 respectively.

² ILC Draft Statute for an International Criminal Court, in *Report of the International Law Commission on the Work of its Forty-Sixth Session*, UN GAOR, 49th Sess., Supp. No. 10, UN Doc. A/49/10 (1994) 43, p. 64; reprinted in: Bassiouni, *Compilation* (1998) 721, 727.

³ 1994 ILC Report, *ibid.*, commentary para. 2, p. 65.

⁴ Report of the Ad Hoc Committee on the Establishment of an International Criminal Court, UN GAOR, 50th Sess., Supp. No. 22, UN Doc. A/50/22 (1995), para. 26, p. 5 and para. 131, p. 30; reprinted in: Bassiouni, *Compilation* (1998) 667, 672 and 696.

⁵ Report of the Preparatory Committee on the Establishment of an International Criminal Court, UN GAOR, 51st Sess., Supp. No. 22, UN Doc. A/51/22 (1996), 2 Vols., para. 50, p. 15 (Vol. I), reprinted in: Bassiouni, *Compilation* (1998) 363, 383. The proposals put forward by France, Finland, and Australia and the Netherlands are found in *ibid.*, Vol. II, pp. 51–53; Bassiouni, *Compilation* (1998) 482–483.

⁶ For the lack of consensus in both national and international law as to the contours of ‘procedure’ and ‘substance’, see Affolder (1998) 19 *MichJIL*. 445, 471–474.

included within the Statute, and those seeking instead to avoid turning the Statute into an exhaustive criminal code with the long delays this would entail. For the former, giving ‘legislative power’ to judges was abhorrent to the rule of law; for the latter, it was a welcome sign of institutional adaptability.⁷ The ‘grey zone’ between Statute and Rules, between the ‘basic’ and the ‘subsidiary’, was given ongoing attention as delegates negotiated the attribution of subjects to each category. At stake were the length and complexity of negotiations, the efficiency of the Court, the rights of suspects and the accused (through an exacting interpretation of the principle of legality) and, ultimately, the extent to which States Parties (rather than the judiciary) would determine the procedures and standards by which their agents or those within their jurisdiction would be affected.

- 3 Article 43 of the Zutphen Draft⁸ reflected the differences raised at the Preparatory Committee, retaining the basic structure of the ILC formulation but adding bracketed language conferring on States the right to make or amend Rules after the initial Rules were adopted. This addressed a shortcoming of the ILC Draft whereby *only* judges would be able to make such subsequent Rules. In addition to the ‘passive approval’ method carried over from the ILC Draft, a new paragraph (article 43 para. 5) would have allowed the judges themselves to adopt ‘supplementary rules’ by absolute majority. This reflected the same belief raised during discussions, that the judges should have an independent rule-making power in subsidiary matters, although the word ‘supplementary’ contained the clear potential to create confusion. The Zutphen Draft also included a new bracketed paragraph in article 43 providing simply that the rules of organization, functioning and procedure of the Court not set out in the Statute would appear in the Regulations and the Rules of Procedure. Apart from declaring the existence of the Rules, this emphasized their open-ended character.⁹
- 4 When the Diplomatic Conference convened in Rome on 15 June, it had before it the Draft Statute prepared by the Preparatory Committee at its session of 16 March to 3 April 1998. This contained a substantially rewritten article 52¹⁰ containing elements that were ultimately carried over into the final text. The first paragraph listed two options, one stating that the Rules (and the Elements of Crimes that they, under this formulation, would contain) were an integral part of the Statute, and the other stating simply that they were to enter into force upon adoption by the Assembly of States Parties. A requirement for the consistency with the Statute of both the Rules and any subsequent amendment to them was introduced.¹¹ The power of the Prosecutor, in addition to that of the judges and of States Parties, to propose amendments was added in square brackets.
- 5 Much of article 51 of the Preparatory Committee Draft Statute was reflected in the recommendations put forward to the Committee of the Whole by the Co-ordinator, Professor Medard Rwelamira of South Africa, on 4 July 1998.¹² This formulation was reproduced, with textual changes introduced by the Drafting Committee, in the text proposed by the Bureau on 16 July,¹³ and was adopted without change as article 51 of the final Statute. Article 51 para. 1 retained Option 2 of the Preparatory Committee Draft (‘enter into force’), while Option 1 (‘integral part’) was deleted. In addition to some restructuring and refinement of language, the final text goes beyond the Preparatory Committee Draft in

⁷ 1996 Preparatory Committee Report, paras. 180–185 and para. 214, pp. 41–42 and 47; Bassiouni, *Compilation* (1998) 408–409 and 414.

⁸ Report of the Inter-Sessional Meeting from 19 to 30 January 1998 in Zutphen, The Netherlands, UN Doc. A/AC.249/1998/L.13 (1998), 83; reprinted in: Bassiouni, *Compilation* (1998) 143, 197.

⁹ See also note 44 and accompanying text.

¹⁰ Draft Statute for the International Criminal Court, Part 1 of the Addendum to the Report of the Preparatory Committee on the Establishment of an International Criminal Court, UN Doc. A/CONF.183/2/Add.1 (1998), p. 87; reprinted in: Bassiouni, *Compilation* (1998) 7, 57.

¹¹ The Nuremberg Charter contained such an express requirement in its article 13, but its inclusion was thought unnecessary by the drafters of the Statutes of the Yugoslav and Rwanda tribunals: Morris and Scharf, *Insider's Guide* (1995) 409 and fn. 1446, p. 419.

¹² UN Doc. A/CONF.183/C.1/L.45 (4 July 1998), at p. 11 and Add.1 (7 July 1998), p. 2.

¹³ UN Doc. A/CONF.183/C.1/L.76/Add.4 (16 July 1998), pp. 13–14.

prohibiting retroactive application of amendments or provisional Rules to a person's detriment (article 51 para. 4) and in providing that the Statute prevails over the Rules in case of conflict between them (article 51 para. 5).

The ILC Draft (article 19 para. 2) and the Zutphen Draft (article 43 para. 2) anticipated 6 that the judges would draft the initial Rules, subject to adoption (presumably after review and possible amendment) by the Assembly of States Parties. The Preparatory Committee Draft – completed just over two months after the Zutphen meeting – deletes mention of initial drafting by the judges, retaining only reference to adoption by the Assembly. This is due to the appearance of the Draft Final Act,¹⁴ which included a draft resolution (for approval by the Diplomatic Conference) proposing formally what had frequently been suggested – that the initial Rules be drafted by States rather than the judges. The Draft Final Act called for the establishment of a Preparatory Commission consisting of all States which signed the Final Act and all States invited to participate in the Conference. The Commission would, *inter alia*, prepare the draft text of the Rules 'on a priority basis' for submission to the Assembly of States Parties at its first meeting.¹⁵ The Assembly would then adopt these Rules in accordance with the terms of the final Statute.

At the Diplomatic Conference, the Committee of the Whole appointed Mr S. Rama Rao of 7 India as Co-ordinator of the informal consultations on the Draft Final Act. Mr. Rao's recommended draft resolution was unchanged in relevant respects from that of the Preparatory Committee.¹⁶ In the Bureau proposal of 16 July 1998, the words 'on a priority basis' are replaced by a new paragraph stating that '[t]he draft texts of the Rules of Procedure and Evidence and of the Elements of Crimes shall be finalized before 30 June 2000'¹⁷ – a clarification that aims to ensure that no late adoption of these instruments would endanger the prompt establishment of the Court.¹⁸ Resolution F was adopted without material change at the close of the Conference.¹⁹

II. Purpose

The Rules provide a source of norms aimed at ensuring the effective operation of the 8 Court; they are 'designed to underpin the statutory provisions, harmonize inconsistencies, and fill procedural gaps in the Statute, and to clarify the inter-relationships of all the parties involved in the proceedings before the Court'.²⁰ Together with other subsidiary documents,²¹ the Rules supply the detail which the Statute cannot realistically incorporate and will become a repository for those standards and working methods which only experience will clarify. Clearly, the mere efficiency of the Court cannot be the only consideration for an institution aiming to supply just outcomes while being seen to uphold the highest international standards of fairness. The Rules need to counter-balance their own potential for flexibility with considerations of fairness to suspects and the accused (and of respect for victims and witnesses). While taking into account their practical and subsidiary character, the Rules

¹⁴ Draft Final Act of the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court, Part 2 of the Addendum to the Report of the Preparatory Committee, note 10, p. 199; reprinted in: Bassiouni, *Compilation* (1998) 124.

¹⁵ Annex to Draft Final Act, *ibid.*, 204, paras. 2, 4 and 6, pp. 204–205; Bassiouni, *Compilation* (1998) 127–128.

¹⁶ UN Doc. A/CONF.183/C.1/L.49/Rev.1 (6 July 1998), pp. 9–10.

¹⁷ UN Doc. A/CONF.183/C.1/L.76/Add.14 (16 July 1998), para. 6, p. 10.

¹⁸ Kirsch, in: Lee (ed.), *Elements* (2001) xlv, xlv.

¹⁹ 'Resolution F', Annex I to the Final Act of the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court, UN Doc. A/CONF.183/10 (17 July 1998).

²⁰ Lee, in: Lee (ed.), *Elements* (2001) lv, lv-lvi.

²¹ This considerable corpus of instruments includes the Regulations of the Court; the Regulations of the Registry; the Agreement on Privileges and Immunities of the Court; the Relationship Agreement between the Court and the United Nations; the ICC-Netherlands Headquarters Agreement; the Code of Conduct for Counsel; and the Regulations of the Trust Fund for Victims. For the interrelationships between these various interlocking instruments, see Kreß (2007) 5 *JICJ* 537.

must therefore aspire to the stability and clarity required by the rule of law. The relative ease with which they can be adopted (see mn 23) will allow the Rules to safeguard the relevance and adaptability of the ICC in changing circumstances. Although the ICC Rules are first and foremost a reflection of the will of the Assembly of States Parties, it can be assumed that they will evolve organically over time to meet the needs of the Court, of the participants involved in its processes, and of States Parties, just as the (judge-driven) Rules for the ICTY and ICTR have done for their respective institutions (see mn 42 *et seq.*).

III. Historical development post-Rome

1. Major steps in the development of the Rules²²

- 9 Once the final text of Resolution F was adopted at the end of the Rome Diplomatic Conference (see mn 6–7), the General Assembly duly requested the Secretary-General to convene a Preparatory Commission to hold three sessions in 1999 in order to fulfil the purposes outlined in that resolution.²³ Further sessions followed through 30 June 2000, when the final draft text of the Rules of Procedure and Evidence was adopted by the Commission.²⁴ Meetings then continued work on the remaining items through 12 July 2002, when the Commission concluded its work, just as the Rome Statute entered into force.²⁵
- 10 In negotiating the Rules, States – beyond their bare objective of adopting a text before the deadline – were mindful of the need to respect the Statute, its integrity, and the many delicate compromises that had been adopted in the process leading to its adoption.²⁶ The importance attributed by States to the work of the PrepCom is evidenced by the fact that *all* States, and not only States Parties or States signatories, were invited to participate in the process.²⁷ The negotiation of the Rules, in particular, was always understood to form a key part of the PrepCom’s work, the significance of which had already been recognized by the fact that it would be States, rather than judges, that were to draft this document (mn 2–7). Thus, even States having no intention of becoming Parties to the Statute, but wishing to safeguard their position as non-parties, were given an opportunity to seek to prevent what they might regard as overreaching Court procedures, while undecided States would be able to inform their decisions on whether to sign or ratify the Statute, and how to implement it, in light of the outcome of discussions on the Rules.
- 11 In order for the Preparatory Commission to successfully complete negotiation of the Rules (along with the Elements of Crimes) by 30 June 2000, as mandated by Resolution F of the Diplomatic Conference’s Final Act (mn 7), the 5 sessions available to it had to be used with maximum efficiency. As a consequence, negotiations were intense and highly-structured. Under the overall leadership of the Preparatory Commission’s Bureau,²⁸ the overall work on the Rules was conferred upon a Working Group under the coordination of Sylvia Fernández

²² See generally, Kirsch, in: Lee (ed.), *Elements* (2001) xlix–li; Fernández, in: Lee (ed.), *Elements* (2001) 235; see also Kirsch and Oosterveld, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 93.

²³ GA Res. 53/105, UN Doc. A/RES/53/105 (8 Dec. 1998), para. 4. The dates fixed were 16 to 26 Feb., 26 July to 13 Aug. And 29 Nov. to 17 Dec. 1999.

²⁴ Finalized draft text of the Rules of Procedure and Evidence, Addendum I to the Report of the Preparatory Commission for the International Criminal Court, UN Doc. PCNICC/2000/1/Add.1 (2 November 2000).

²⁵ GA Res. 54/105, UN Doc. A/RES/54/105 (9 Dec. 1999), para. 3, fixed a further 3 sessions for 2000 (13 to 31 March, 12 to 30 June and 27 Nov. to 8 Dec.); GA Res. 55/155, UN Doc. A/RES/55/155 (12 Dec. 2000), para. 4, established 26 Feb. to 9 March and 24 Sept. to 5 Oct. As the dates for 2001; and GA Res. 56/85, UN Doc. A/RES/56/85 (12 Dec. 2001), para. 4, identified 8 to 19 April and 1 to 12 July for the final sessions of the PrepCom in 2002.

²⁶ Lee, in: Lee (ed.), *Elements* (2001), lviii; Fernández, in: Lee (ed.), *Elements* (2001) 235.

²⁷ ‘Resolution F’, note 19, para. 2.

²⁸ Apart from the chairs and coordinators of the Working Groups, as well as various contact points for specific issues, the Bureau of the Preparatory Commission consisted of a Chair (Philippe Kirsch, Canada), three Vice-Chairs (George Winston McKenzie, Trinidad and Tobago; Medard Rwelamira, South Africa; and Muhamed Sacirbey, Bosnia and Herzegovina), and a Rapporteur (Salah Suheimat, Jordan).

de Gurmendi of Argentina, who had been responsible for chairing negotiations on procedural issues at Rome. The management of the process was further 'decentralized' with the establishment of Working Groups on Jurisdiction and Admissibility (Part 2 of the Statute), on the Composition and Administration of the Court (Part 4), on Penalties (Part 7), and on International Cooperation and Judicial Assistance, and Enforcement (Parts 9 and 10).²⁹ These sub-working groups frequently established further sub-units that met in informal consultations, where the bulk of the work was accomplished.³⁰ Much of the expertise that had been developed by delegations up to and through the Rome Diplomatic Conference was carried over into the discussions on the Rules (notably at the Coordinator and Bureau levels), ensuring a high level of continuity and procedural memory among participants. In addition, the Coalition of non-governmental organizations for the ICC played a key role in developing proposals and analysis that filtered through to governmental delegations and thus into proposals and texts.³¹

The beginning of the process was marked by the introduction of a broad template proposal by Australia in early 1999.³² This was followed by a detailed General Outline proposed by a leading Romano-Germanic (civil law) jurisdiction, i.e. France.³³ These two proposals served as a basis for the subsequent discussions, which broke up along a series of discrete sub-themes in which a great many more defined proposals were put forward, with progress being reflected in periodic discussion papers issued by the coordinators and sub-coordinators for the various issues. The five formal New York sessions were supplemented by an informal intersessional meeting held at Siracusa, Italy (in June 1999, and particularly significant with respect to evidentiary rules, conduct of trial and offences against the integrity of the Court), an 'international seminar' in Paris (in April 1999, and relating to victims' participation and reparation) and another, smaller meeting in Siracusa (in February 2000, on victims such as children and disabled persons).³⁴ In addition, towards the end of the process, coordinators and sub-coordinators met in Mont Tremblant, Québec, Canada, to review the existing texts of the draft Rules as a whole with a view to identifying gaps and overlaps and making recommendations for delegations on the structure of the Rules.³⁵

It was relatively easy to achieve agreement among delegates on certain formal issues, such as that the primacy of the Statute would be respected by avoiding repetition of its provisions in the Rules and, where this was not possible, by avoiding potentially confusing paraphrase.³⁶ But many contentious issues arose in the negotiation of Rules that either reinforced or supplemented the provisions of the Statute, some of which were already familiar from Rome and pre-Rome discussions. Some differences owed their difficulty to the (apparently) incompatible approaches of national legal systems (see mn 46-47): this was the case notably with disclosure and with the participation of victims and their legal representatives. Others were the result of broader value-based conflicts, such as those of privileges (for journalists, religious personnel, the International Committee of the Red Cross, and others), of the incrimination of family members (including the underlying, culturally-specific question of

²⁹ Coordinated by John Holmes of Canada, Medard Rwelamira of South Africa, Rolf Fife of Norway, and Phakiso Mochochoko of Lesotho respectively: Fernández, in: Lee (ed.), *Elements* (2001) 240-241; Kirsch, in: Lee (ed.), *Elements* (2001) II.

³⁰ Fernández, in: Lee (ed.), *Elements* (2001) 241; Lee, in: Lee (ed.), *Elements* (2001) lvii.

³¹ For a detailed discussion of civil society's role, see Pace and Schense, in: Lee (ed.), *Elements* (2001) 705.

³² Fernández, in: Lee (ed.), *Elements* (2001) 241. The Australian draft was a version of a comprehensive set of Rules proposed prior to the Rome Statute, and updated in light of the latter: Proposal submitted by Australia: Draft Rules of Procedure and Evidence of the International Criminal Court, UN Doc. No. PCNICC/1999/DP.1 (26 January 1999).

³³ Proposal by France: General outline of the Rules of Procedure and Evidence, UN Doc. No. PCNICC/1999/DP.2 (1 February 1999).

³⁴ Fernández, in: Lee (ed.), *Elements* (2001) 242.

³⁵ Fernández, *ibid.*, 242. Outcome of the Intersessional Meeting held at Mont Tremblant, Canada, from 30 April to 5 May 2000, circulated at the request of Canada, UN Doc. No. PCNICC/2000/WGRPE/INF/1 (24 May 2000).

³⁶ Fernández, *ibid.*, 236.

the definition of ‘family’), or of the procedures and principles applicable with respect to allegations of sexual violence.³⁷

- 14 When the General Assembly, in its resolution requesting the Secretary-General to convene the Preparatory Commission, opened the way for the Commission was ‘to discuss ways to enhance the effectiveness and acceptance of the Court’, it formalized what was already the great likelihood that States would attempt to build into the Rules mechanisms addressing the concerns of those dissatisfied in one way or another with the Statute.³⁸ At the same time, the successful work of the Commission depended on taking care neither to increase nor to alter the obligations that had been agreed upon at Rome.³⁹ At the same time, the focus of Like-Minded States was inevitably on how to maximize the effectiveness of the Court while at the same time making concessions or crafting compromises that reduce friction and lead to greater support for the Court. Such an approach was made all the more essential by the fact that, although the Assembly would in principle be able to change whatever draft texts came before it, it was always recognized that in practice it would go to great lengths not to do so. Consensus around the adoption of the Rules (and other instruments prepared by the PrepCom) was viewed as an invaluable means to maximize the perceived legitimacy of the Court. Such contextual factors exerted an important, if essentially conservative, influence on the Bureau, on lead negotiators, and on delegates as a whole.
- 15 Although it came as no surprise to many, it was nonetheless to the credit of the Bureau and of leading delegations that the final draft text of the Rules was adopted by consensus (along with the final draft Elements of Crimes) at the 30 June 2000 meeting of the Preparatory Commission. Likewise, the Assembly of States Parties adopted the Commission’s final text by consensus and without change on 9 September 2002.⁴⁰ The final content and organization of the Rules of Procedure and Evidence is presented in broad outline below (margin Nos. 16 *et seq.*). Noteworthy as reflecting both improvements to the Statute and *rapprochement* between delegations is the integration of article 15 (which was agreed upon late in the Rome process) more clearly into the general pre-trial procedure reflected *inter alia* in article 53 (e.g. Rule 48); and Chapter 4 of the Rules (Provisions relating to Various Stages of the Proceedings), which clarifies that numerous provisions of Part 6 of the Statute (Trial) relating to evidence, disclosure, victims, etc., apply also at the Pre-Trial stage – an affirmation that could only be arrived at following extensive dialogue among delegates from different legal traditions.⁴¹ The successful work of the Preparatory Commission on its priority items on its agenda has been cited as process that deepened State understanding of and sympathy for the Court, and as a contributing factor to increased State support for this (then) emerging institution.⁴²

Since their adoption, the Rules have been subject to modification on only three occasions, at the tenth (2011), eleventh (2012) and twelfth (2013) sessions of the Assembly of States Parties.⁴³

2. The Scope and final structure of the Rules

- 16 Article 51 neither specifically outlines the subjects proper to the Rules, nor limits them to those matters expressly referred to in the Statute, nor states outright that they may include

³⁷ Fernández, *ibid.*, 253–255; Kirsch, in: Lee (ed.), *Elements* (2001) I.

³⁸ ‘Resolution 53/105’, note 23, para. 4. It is under this heading that one might refer to the way in which proposals or concerns of the United States were variously incorporated, referred to other working groups, broken apart, resisted, or rendered anodyne: Fernández, in: Lee (ed.), *Elements* (2001) 246 (properly citing Rule 44 para. 2 on the effects of an article 12 para 3 declaration as an example of constructive U.S. engagement in the process). For a detailed discussion, see ‘Cornerstone or Stumbling Block? The United States and the ICC’, in: Broomhall, *International Justice and the International Criminal Court: Between Sovereignty and the Rule of Law* (2003) 163.

³⁹ Fernández, in: Lee (ed.), *Elements* (2001) 240.

⁴⁰ Report of the Assembly of States Parties to the Rome Statute of the International Criminal Court, First Session, New York, 3–10 September 2002, ICC Doc. ICC-ASP/1/3 (2002), para. 22.

⁴¹ Fernández, in: Lee (ed.), *Elements* (2001) 248–249.

⁴² Kirsch, in: Lee (ed.), *Elements* (2001) III–III.

⁴³ A summary of these amendments is presented under ‘Special Remarks’, at mn 41 below.

any subject relevant to the functioning of the Court.⁴⁴ The only plausible conclusion is that the Rules are free to encompass whatever the required majority of the Assembly of States Parties may feel would benefit from inclusion therein, constrained only by the requirement of compatibility with the Statute (mn 31–32). States opposed to adoption of a given Rule could of course seek to block the formation of a sufficient majority of the Assembly by arguing that a given norm is ‘substantive’ rather than ‘procedural’ and therefore inappropriate for the essentially subsidiary Rules, with their less stringent adoption and amendment procedures (i. e. As compared with those of the Statute, mn 36). Likewise, it is possible although unlikely that a given matter might ‘migrate’ from the Rules to the Statute on the same grounds, after initial inclusion in the former. In general, however, the content of the Rules is driven as much by the lack of time available at the Rome Diplomatic Conference as to a rigid application of any criterion of ‘significance’.⁴⁵

The Rules inevitably include a wide range of essential mechanisms, standards and guarantees. Express statutory references alone dictated that they would treat such vital subjects as, *inter alia*, procedures for removal from office of Court officers for serious misconduct, the participation of victims in the proceedings, and the factors to be considered in sentencing (mn 40). Other topics for discussion were added by footnotes included in various Working Group reports during the Rome Diplomatic Conference,⁴⁶ while many others were simply added by agreement among the delegates. The length at which the Rules treats its subjects varies considerably, sometimes in inverse proportion to the degree of detail found in the Statute.⁴⁷

As finally adopted after discussion of the Mont Tremblant outcome document towards the end of the June 2000 negotiations,⁴⁸ the Rules are divided into the following 12 chapters, broadly tracking the structure of the Rome Statute itself:

- Chapter 1: General provisions;
- Chapter 2: Composition and administration of the Court;
- Chapter 3: Jurisdiction and admissibility;
- Chapter 4: Provisions relating to various stages of the proceedings;
- Chapter 5: Investigation and prosecution;
- Chapter 6: Trial procedure;
- Chapter 7: Penalties;
- Chapter 8: Appeal and revision;
- Chapter 9: Offences and misconduct against the Court;
- Chapter 10: Compensation to an arrested or convicted person;
- Chapter 11: International cooperation and judicial assistance;
- Chapter 12: Enforcement.

⁴⁴ The ILC Draft did so by giving judges the power to ‘make ... rules ... including rules regulating: (a) the conduct of investigations; (b) the procedure to be followed and the rules of evidence to be applied; (c) any other matter which is necessary for the implementation of this Statute’. 1994 ILC Draft, note 2, article 19 para. 1, p. 64; Bassiouni, *Compilation* (1998), 727–728. The Zutphen Draft carried this provision forward and emphasized the potential breadth of the Rules by preceding it with a bracketed article 43 para. 0: ‘The rules of organization, functioning and procedure of the Court not set out in this Statute shall appear in the Regulations and the Rules of Procedure of the Court’. Zutphen Draft, note 8, 83; Bassiouni, *Compilation* (1998), 197.

⁴⁵ Kreß (2007) 5 *JICJ* 537, 539–540.

⁴⁶ Fernández, in: Lee (ed.), *Elements* (2001) 245; these footnotes were gathered together in one document by the UN Secretariat: References to the Rules of Procedure and Evidence found in the Rome Statute of the International Criminal Court and in the relevant documents of the United Nations Diplomatic Conference of Plenipotentiaries for the Establishment of an International Criminal Court: Note by the Secretariat, UN Doc. PCNICC/1999/L.2 (26 January 1999).

⁴⁷ Kirsch, in: Lee (ed.), *Elements* (2001) li; Kirsch and Oosterveld, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 93, 100 (citing the very simple Rules relating to the elaborate provisions of Part 9 on cooperation, and the very elaborate Rules relating to the rather sparse Part 10 on enforcement); Fernández, in: Lee (ed.), *Elements* (2001) 246, in the same sense (citing also the example of offences against the integrity of the Court, to which very little time was devoted at Rome, but detailed provisions adopted in the Rules, p. 250).

⁴⁸ Fernández, *ibid.*, 243.

- 19 Part 4, inspired by the insight of France as contained in its General Outline proposal, suspends the general structural tendency of following the Statute in order to bring together elements that apply across all or at least a broad range of ICC procedure (evidence, disclosure, victims, and other).⁴⁹

B. Analysis and interpretation of elements

I. Paragraph 1

1. ‘enter into force’

- 20 Entry into force renders the provisions of the Rules of Procedure and Evidence binding on all those actors that find themselves under a duty to the Court (including the Prosecutor, defence counsel, the judges of the Court, witnesses, and relevant personnel of States Parties) to the extent that their actions are addressed by them (and of course, to the extent that the Rules are not found to be inconsistent with the underlying provisions of the Statute, mn 31–32). The reasoning behind this conclusion is set out in mn 35 *et seq.*

2. ‘upon adoption’

- 21 Article 51 para. 1 foresees the adoption of the initial Rules by the ASP (rather than by judges, as in the ICTY and ICTR).⁵⁰ Such adoption took place at the first session of the ASP in September 2002 upon receipt of the final Draft Rules from the Preparatory Commission (mn 15), although had the Commission failed to finalize its draft prior to the Statute’s entry into force, adoption could have taken place at one of the special or subsequent regular sessions of the Assembly provided for in article 112 para. 6. As with the adoption procedures in article 51 paras. 2 and 3 (mn 23–30), there is no ratification requirement for Rules (as there is for adoption of statutory amendments under article 121) and in the event of a vote even those States Parties dissenting will be bound by the Rules adopted (mn 35 *et seq.*).
- 22 While the initial rules were adopted by consensus (mn 15), review and amendment of the Preparatory Commission Draft Rules was undoubtedly within the powers of the ASP, which has exclusive authority under the Statute to decide on the Rules.⁵¹ This role and responsibility of the Assembly opened up the possibility that the ASP, consisting of States that had taken the concrete step of ratifying the Rome Statute – and indeed, consisting largely of former members of the ‘Like-Minded’ group of States – might have amended provisions formulated by the Commission, which consisted of a broader group of States including those that were neutral or hostile towards the Court. While this difference in composition between the Commission and the Assembly undoubtedly resulted in substantially different dynamics between the two bodies, the ASP is likely in future, as it was when it adopted the initial Rules (mn 15), to remain mindful of the sentiments of non-States Parties in order to attract both new ratifications and their increased cooperation (whether directly, or through regional organizations and the UN Security Council). In all subsequent modifications of the Rules the Assembly will, therefore, have a demanding balancing act to perform.

⁴⁹ Fernández, *ibid.*, 243; note 33 and mn 15.

⁵⁰ The rejection by the Rome Statute drafters of the ICTY/ICTR model of the ‘judge-legislator’ is thoughtfully discussed in Guariglia, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 1111, 1115–1123.

⁵¹ See article 112 para 2 alinea a, imposing a duty on the Assembly of States Powers to ‘consider and adopt, as appropriate, recommendations of the Preparatory Commission’, i.e. including its draft Rules of Procedure and Evidence [italics added]. The italicized words appear to imply the Assembly’s power to make amendments.

II. Paragraph 2

1. ‘Amendments ... may be proposed’

Following their initial adoption, the Rules will from time to time require change in order to adapt procedures to unforeseen circumstances or to streamline the practice of the Court in light of its evolving experience. Rather than limiting the right to propose amendments to States (or to judges, as in the *ad hoc* tribunals), article 51 para. 2 allows proposed amendments to arise from three sources. Article 51 para. 2(a) permits a State Party wishing to propose an amendment to do so on its own. Unlike in the case of amendments to the Statute under article 121 para. 2, the proposing State need not win over a majority of the Assembly present and voting in order to have its proposal taken up. Nonetheless, it will have to garner the final two-thirds majority needed for formal adoption of the new rule or rules. Under article 51 para. 2(b), a judge’s proposal to amend the Rules will only come before the Assembly if it garners support from an absolute majority of the judges.⁵² Article 51 para. 2(c) allows the Prosecutor to act alone. In any of these cases, it is entirely possible that proposals would arise indirectly from non-governmental organizations, victims groups, defence counsel or others, who themselves would suggest the proposals to those formally empowered to advance them.

2. ‘shall enter into force’

With regard to the position of States dissenting from the adoption of a given rule or amendment, see mn 20 as well as 35 *et seq.*

3. ‘adoption by a two-thirds majority’

Unlike the ILC and Zutphen texts,⁵³ the final Statute requires positive approval by the Assembly of States Parties for any amendments to the Rules. Acquiescence or ‘passive approval’ is not enough.

The requirement of adoption of the Rules by a two-thirds majority of the *members* of the Assembly indicates an intention that this majority consist of two-thirds of *all* the States that are parties at the time of adoption, as opposed merely to those present and voting.⁵⁴ In any event, article 112 para. 7 requires the Assembly to make every effort to reach a decision by consensus before resorting to a vote. Practice to date reflects this (mn 41 below), and votes are likely to be infrequent.

⁵² This would be 10 of the 18 judges which the Court would have initially (article 36 para. 1). Regulation 5 para. 1 of the Regulations of the Court requires judges to submit any proposal for amendment of the Rules to the Advisory Committee on Legal Texts established under Regulation 4(1). The ACLT is comprised of a judge from each of the Court’s three divisions as well as a representative from each of the Office of the Prosecutor, the Registry and the list of counsel. This procedure has been followed on at least one occasion: see Report of the Study Group on Governance, note 59, p. 4 para. 2. Regulation 5 para. 1 also *allows* the Prosecutor to submit his or her proposal to the ACLT, although she or he retains the option of making this proposal directly to the Assembly of States Parties.

⁵³ See ‘Historical development’, mn 1–3 and notes 2 and 8.

⁵⁴ The reference to a two-thirds majority of members in article 51 para. 1 is an example of the kind of derogation anticipated by para. 7 of article 112 (Assembly of States Parties) which, while providing for approval of matters of substance by a two-thirds majority of States *present and voting*, limits this with the words ‘except as otherwise provided in the Statute’. Article 112 does not use the word ‘members’; however, all States Parties having the right to participate in the Assembly and to vote (see article 112 paras. 1 and 7), ‘members’ must by implication refer to all and only States Parties.

III. Paragraph 3

1. ‘After the adoption’

- 27 This wording forestalled any possible judicial formulation and application of a corpus of Rules before the entry into force of the initial Rules.

2. ‘provisional Rules’

- 28 In a system like that of the ICC, provisional Rules are – at least in principle – a necessity. Although the final text of article 51 reflects in many ways the concern of States to give the Assembly of States Parties the ultimate authority with respect to rule-making for the Court, the relative infrequency of Assembly meetings⁵⁵ and the inevitably cumbersome nature of that process made it appear wise to establish the sort of bridge that ‘provisional Rules’ might provide. Without such Rules, damage to the fairness and efficiency of Court process – and to the appearance thereof – appears possible. The alternative, of leaving it to the jurisprudence to develop the rules, sat uneasily both with the relatively rigid conception of the principle of legality favoured during ICC-related negotiations and the desire of the drafters of the Statute to leave final approval of the Rules to States Parties.⁵⁶
- 29 The ability of judges to apply Rules provisionally is circumscribed in four ways by the express terms of article 51 para. 3. First, the need for a new rule will have to be ‘urgent’, and it will be for the judges and the Presidency to determine whether this requirement has been met.⁵⁷ Typically there will have to be some form of prejudice (through loss of evidence, delay, detriment to fairness, etc.) to the proceedings or to those involved in them. Secondly, the Rules will have to be silent with respect to the specific situation before the Court.⁵⁸ Thirdly, two-thirds of all the judges, and not just those of the Chamber in question, will have to agree to the provisional application. Finally, the Assembly of State Parties will have to adopt, amend or reject the rule(s) at its next ordinary or special session. As discussed in mn 21–22, adoption – whether in amended form or not – must be by two-thirds of the total number of States Parties, not just two-thirds of those present and voting. Rejection might be either by default (through inability to reach either consensus or the majority required to carry a vote) or by positive decision of the Assembly. Article 51 does not specify what judges are to do in case of rejection by the Assembly of a rule provisionally adopted; presumably, they would be

⁵⁵ Article 112 para. 6 stipulates that the Assembly will meet once a year and hold special sessions at the request either of the Bureau or of one-third of the States Parties.

⁵⁶ The Nuremberg Tribunal formulated its procedural norms largely through judicial practice: see note 73. That Rules even for urgent, unforeseen cases are subject to the approval of the Assembly of States Parties should also prevent the criticism levied by some against the ICTY’s decision regarding anonymous witnesses in *Tadić (Prosecutor v. Duško Tadić, IT-94-1, Decision on the Prosecutor’s motion requesting protective measures for victims and witnesses, Trial Chamber, 10 August 1995* <<http://www.icty.org/x/cases/tadic/tdec/en/100895pm.htm>> accessed 7 September 2014), namely, that the Trial Chamber’s ruling exceeded its competence and should have been left to the judges as a whole in their capacity as the authoritative rule-makers of the tribunal: see Affolder (1998) 19 *MichJIL* 445, 467–468.

⁵⁷ The judges, because it is they who ultimately accept or reject a proposed provisional Rule; the Presidency, because Regulation 5 para. 2 of the Regulations of the Court provides that ‘In urgent cases, where the Rules do not provide for a specific situation before the Court, the Presidency, on its own motion or at the request of a judge or the Prosecutor, may submit proposals for provisional rules under article 51, paragraph 3, directly to the judges for their consideration in a plenary session’. This procedure bypasses the usual procedure of submitted proposed amendments to the ACLT: see note 52. Its use of the word ‘may’ also implies a residual discretion on the part of the Presidency as to whether or not to submit a proposed provisional Rule to a plenary session of the judges.

⁵⁸ It would seem sensible that, notwithstanding its wording, judges should be able to apply the procedure set out in article 51, paragraph 3 even where the Rules *do* ‘provide for a specific situation before the Court’, i.e. where the application of an existing Rule to a particular situation would otherwise lead to an absurd or unworkable result: Schabas, *The International Criminal Court* (2010) 647.

free to formulate another provisional rule that aims to address the problem identified while taking into account the factors that led to the Assembly's rejection of the previous version.

No provisional rule has yet been adopted by the judges.⁵⁹ It may be that, rather than adopt provisional rules, judges will prefer to turn to the other sources of applicable law in article 21 to deal with gaps in the Rules of Procedure and Evidence.⁶⁰

IV. Paragraph 4

1. 'consistent with this Statute'

In addition to assuring that the intentions of the contracting parties are respected, the requirement that the Rules, any amendments to them and any provisional Rules be consistent with the Statute ensures the primacy of the Statute over the Rules. The key to this effect lies in the fact that the Statute is more difficult to amend. While amendments to both the Rules (under article 51) and the Statute (under articles 121 and 122) require the affirmative vote of a two-thirds majority of the Assembly, amendments to the Statute (at least with respect to article 121, which will be of the greater interest) do not come into effect until instruments of ratification are deposited by seven-eighths of them.⁶¹ No such requirement applies with respect to the Rules (see *mn 35 et seq.*). In part supporting a certain conception of the principle of legality by preserving for inclusion in the difficult-to-amend Statute the basic principles and fundamental standards that govern the Court's work, the consistency requirement also (and possibly primarily) serves to reassure potentially dissenting States that provisions to which they are likely to have agreed (in the Statute) will predominate over ones with which they may disagree (in the Rules, if they were ever to find themselves within a dissenting minority). As the Assembly will doubtless go to considerable lengths to adopt Rules by consensus (*mn 22*), this 'safeguard' will probably prove to be rather immaterial in practice. Article 51 para. 4 will have the effect that, when Rules are proposed, the proposing party will doubtless be expected to satisfy the Assembly as to consistency with the Statute before the new Rules are adopted.

It will be the judges of the Court who will ultimately decide whether the requirement of consistency between the Rules and the Statute has been respected by the Assembly of States Parties. This separation between legislator and adjudicator represents an advance on the model of the *ad hoc* tribunals, and a better guarantee for meeting the objective of ensuring

⁵⁹ In July 2011, the Advisory Committee on Legal Texts received from two judges 'an urgent proposal for the adoption of a provisional rule': Report of the Study Group on Governance on Rule 132*bis* of the Rules of Procedure and Evidence, Doc. No. ICC-ASP/11/41 (1 November 2012), p. 4 para. 2. It is unclear why a proposal for a provisional rule would pass through the ACLT, rather than proceed directly to the judges' plenary through the Presidency: see notes 52 and 57. It may be that the Presidency viewed the proposal more as an amendment rather than as a matter for urgent provisional treatment. In any event, following study and consultation, the ACLT referred this to a plenary session of the judges in February 2012. Rather than lead to adoption of a provisional rule, the proposal was then referred to the Assembly of States Parties and became new Rule 132*bis* in November 2012: see note 43, as well as the 'Report of the Study Group on Governance', pp. 4–5.

⁶⁰ This is the view of Schabas, who gives the example of the Pre-Trial Chamber's decision to apply Rule 119 by analogy in the *Abu Garda* proceedings: *The International Criminal Court* (2010) 647. Similarly, in Mathieu Ngudjolo's appeal from the Pre-Trial Chamber's decision to join his trial to that of Germain Katanga, the defence argued that the decision violated article 51 para. 3 as well as the principle of legality generally, by applying by analogy article 64 para. 5 and Rule 136 (both of which deal with proceedings before the Trial Chamber) to the preliminary phase. The Appeals Chamber rejected this characterization of the Pre-Trial Chamber's decision, and confirmed the same: *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07 OA 6, Judgment on the Appeal against the Decision on Joinder Rendered on 10 March 2008, Appeals Chamber, 9 June 2008.

⁶¹ Article 121 para. 4. While such an amendment applies even to States Parties which have not accepted it, such States are given the option of immediate withdrawal from the Statute by article 121 para. 6. Article 121 para. 5 provides an exception to the scheme of article 121 para. 4, in that amendments to the crimes within the jurisdiction of the Court or to their definitions will only apply to such States as deposit an instrument of ratification with respect to them.

consistency.⁶² Normal rules of treaty interpretation will lead the Court to seek readings of the Rules which are consistent with the Statute.⁶³ Just as States are presumed to intend agreements consistent with their other obligations at international law, so must the States Parties be assumed to intend that the Rules they adopt be consistent with the Statute.⁶⁴ In the absence of plausible consistent readings, inconsistency will be found, but the party alleging the inconsistency will bear the burden of persuading the Court.

2. ‘not be applied retroactively’

- 33 The prohibition on retroactive application of an amended or provisional rule to the detriment of a person who is being investigated or prosecuted or who has been convicted is a straightforward application to the Rules of the general principle of criminal law (both national and international) which is embodied elsewhere in the Statute. See comments to article 22 para. 1, *Nullum crimen sine lege*, article 23, *Nulla poena sine lege*, and in particular article 24 para. 2, Non-retroactivity *ratione personae*. By prohibiting *detrimental* retroactivity, article 51 para. 4 implies that *neutral* or *beneficial* retroactivity will sometimes be permissible.⁶⁵ This is not surprising, given that the rule against non-retroactivity is more applicable to matters of substance than to those of procedure. Whether neutral or beneficial amendments or provisional Rules are applied retroactively will depend on their intent or on the requirements of fairness as understood by the Court. One may assume that where the Court perceives a potential benefit to the person concerned, it might apply a variant of article 24 para. 2 such that in the event of a change in the Rules applicable to a case prior to final judgment, the Rule more favourable to the person being investigated, prosecuted or convicted would be applied.⁶⁶ It would be for the person hoping to benefit to bring this to the Court’s attention.

V. Paragraph 5: ‘conflict between the Statute and the Rules’

- 34 That the Statute prevails over the Rules in the event of conflict between them is a natural outcome of article 51 para. 4. To that extent, article 51 para. 5 sets out the consequences flowing from a failure to provide the consistency called for by article 51 para. 4. The party seeking to prevent the application of a given rule on the grounds of conflict would bear the burden of persuasion (mn 31). The use of the word ‘conflict’ rather than ‘inconsistency’ is curious, but it would seem that nothing can flow from it. The scope of the term ‘inconsistency’ might seem broader than that of ‘conflict’, but the subordinate character of the Rules does not allow one to deduce from this that inconsistencies not amounting to conflicts would not be overridden by the Statute. The only conclusion is that all inconsistencies, once ineluctably established (margin No. 32), are conflicts within the meaning of article 51 para. 5 and result in the Rules giving way to the Statute.

⁶² Guariglia, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 1111, 1122–1123.

⁶³ The requirement of consistency between rules and statute is general in international law, whether it is expressed in the statute, the rules, the jurisprudence, or all three: Affolder (1998) 19 *MichJIL* 445, 466; see also note 11.

⁶⁴ ‘... a text emanating from a Government must, in principle, be interpreted as producing and as intended to produce effects in accordance with existing law and not in violation of it’. Jennings and Watts (eds.), *Oppenheim’s International Law* (1996) 1275, quoting the International Court of Justice, *Rights of Passage (Preliminary Objections)* (1957) ICJ Rep. 142.

⁶⁵ ICTY Rule 6 (D), note 74, provides that an amendment on entering into force shall not operate to prejudice the rights of the accused in any pending case.

⁶⁶ Of course, if article 24 para. 2 is read by the Court as including the Rules within the word ‘law’, then article 24 para. 2 will apply directly to have this effect. Article 24 para. 2 provides: ‘In the event of a change in the law applicable to a given case prior to a final judgement, the law more favourable to the person being investigated, prosecuted or convicted shall apply’. As the ‘law applicable’ can only mean the ‘applicable law’, the Rules should be included within the term. Article 21 (Applicable law) reads in part: ‘(1) The Court shall apply: (a) In the first place, this Statute ... and its Rules of Procedure and Evidence ...’

C. Special remarks

I. Binding nature of the Rules

Once adopted in accordance with article 51, the Rules are binding upon all States Parties 35 and are not subject to any derogation, exception or reservation. Thus, even States Parties which vote against the adoption of a particular rule will be bound by the Statute (and in particular by Part 9, articles 86, 87 and 93) to comply with any Court request or action taken in pursuit of it.⁶⁷

This result is supported by a reading of article 51 in the context of the Statute as a whole. 36 Reference to entry into force upon approval by a two-thirds majority in article 51 paras. 1–3 is unlike the reference to the adoption of statutory amendments in articles 121 and 122. The latter also stipulate a two-thirds majority requirement, but qualify this by indicating three increasingly stringent means of entry into force. First, amendments under article 122 para. 2 enter into force ‘for all States Parties’ on the basis of Assembly approval alone. Secondly, amendments under article 121 para. 4 enter into force ‘for all States Parties’ after the deposit of instruments of ratification from seven-eighths of them. Finally, amendments under article 121 para. 5 enter into force only ‘for those States Parties which have accepted the amendment’ by deposit of an instrument of ratification. These qualifications are an acknowledgement of the desire of States Parties to make it difficult to bind them in ‘essential’ matters. Article 51’s lack of such qualifications supports the inference that the entry into force of these ‘secondary’ or ‘supplemental’ Rules would not similarly be limited.

Furthermore, article 21 para. 1 requires the Court to apply the Statute, the Elements of 37 Crimes and the Rules of Procedure and Evidence as part of its applicable law. There is nothing in either article 21 or article 51 to imply that this is subject to any derogation, exception, special consent or reservation on the part of any party.⁶⁸ Neither is there anything in article 51 to weaken the character of the Rules’ applicability, as there is in article 9 with respect to the Elements of Crimes which are there expressly intended to ‘assist’ the Court in the interpretation and application of articles 6, 7 and 8. [emphasis added]’ Thus when provisions of the Statute state, as they frequently do, that a given action will be taken ‘in accordance with the Rules of Procedure and Evidence’ (*inter alia* articles 15 para. 3, 39, 41, 68 para. 3, 93 para. 8), they do not and could not sensibly provide for exceptions.⁶⁹ Some of these provisions touch directly upon the duties of States Parties (*e.g.* article 57 para. 3 (e)).

Finally, the non-derogability of the Rules is supported by their intended subordinate 38 nature (mn 2), as attested to by their simpler amendment procedures (mn 21 and 23) and by the requirement of compatibility with the Statute (mn 31–32 and 34). The serious consequences of allowing differential application of the Rules to different Parties, both logistically and in terms of the impartiality of application required by the rule of law, adds strength to the argument.

In summary, the intended nature of the Rules, the wording in the Statute as to their use by 39 the Court, and the consequences for the effectiveness of the ICC if they were not subject to uniform application, all imply that they, any amendments to them and any provisional Rules

⁶⁷ The question of the binding nature of the Rules would be raised before the Court by a party seeking to limit the scope of a State’s obligation to cooperate, relying in part on the failure of the proposal to include in article 51 reference to the Rules as an ‘integral part’ of the Statute: see ‘Historical development’, mn 4 and 5.

⁶⁸ The Rules being a subordinate form of norm, they are not subject to the law of treaties in the same way that the Statute is. Just as they admit of no reservation, so do they require no ratification on the part of States Parties. This further distinguishes article 51 from article 121. See Hafner, *article 120*.

⁶⁹ This is not to say the Rules rigidly exclude all exceptions any more than the Statute does (see *e.g.* Article 93 paras. 3 and 5, providing modalities of cooperation that take into account the particularities of the State in question). It is merely that legitimate exceptions will be expressly indicated, not dictated by individual States Parties.

are to be binding upon the Court, upon all of its agents, upon all parties before it, and upon the relevant personnel of States Parties (including States Parties that opposed their adoption) as of their entry into force, and are not subject to any exception or reservation. If a State Party has been unable to achieve its goals at the drafting stage, and if the Rule in question is not inconsistent with the Statute, the only remedy open to the State feeling strongly enough about the matter will be to withdraw from the Statute in accordance with the terms of article 127. In this respect, the obligation to comply with the Rules is precisely the same as that to comply with an amendment to a provision of an exclusively institutional nature (article 122), or to comply with an amendment to any remaining provision of the Statute outside articles 5–8 once a year has passed after its entry into force (article 121 para. 6), in that withdrawal is the only option available to dissenting States in both situations. If a consensus existed that a given Rule was too ‘essential’ for this state of affairs to be desirable, it would be open to States Parties to move it into the Statute itself through the amendment procedure of article 121, in which case the added requirement of ratification by seven-eighths of States Parties would apply. Such situations are likely to be of the utmost rarity.

II. Statutory references to the Rules

40 Outside of article 51 itself, the Statute contains 45 express references to the Rules of Procedure and Evidence. These are summarized as follows, with an indication of the Rule of Rules adopted with specific reference to each, where possible:

- article 15 para. 3, Victims may make representations to the Pre-Trial Chamber in accordance with the Rules upon the Prosecutor’s request for an authorization of an investigation: see Rule 50;
- article 21 para. 1 (a), Court shall apply the Statute, the Elements of Crimes and the Rules ‘[i]n the first place’ as part of its applicable law;
- article 31 para. 3, Rules shall contain procedures relating to a ground for excluding criminal responsibility other than those referred to in article 31 para. 1: see Rule 80;
- article 39 para. 2 (b) (iii), Rules to contain provisions relating to whether one or three judges carry out functions of Pre-Trial Chamber: see Rule 7;
- article 41 para. 1 and para. 2 (a), Rules to contain procedures by which the Presidency is to excuse a judge from exercising a function under the Statute, as well as to provide grounds for disqualification: see Rules 33 and 34;
- article 46 para. 1 (a) and para. 4, Rules to provide grounds of serious misconduct and serious breach of duty justifying removal from office, and to provide procedures by which challenged person may present and receive evidence and make submissions: see Rules 23–24 and 26–32;
- article 47, Rules to provide disciplinary measures for misconduct not justifying removal from office: see Rules 23 and 25–32;
- article 50 para. 1 and para. 2, Rules to set out when decisions other than judgements are to be published in the official languages, and when official languages other than English and French may be used as working languages: see Rules 40 and 41;
- article 52 para. 1, Regulations of the Court to be adopted in accordance with Statute and Rules: see Rule 4;
- article 57 para. 2 (b) and para. 3 (e), Rules may require decision by three judges of Pre-Trial Chamber: see Rules 108, 110 and 114; Pre-Trial Chamber may seek cooperation in execution of arrest warrant or summons in accordance with the Statute and the Rules: see Rule 99;
- article 64 para. 1, Trial Chamber to exercise its functions and powers in accordance with the Statute and the Rules see generally Chapter 6 (Trial Procedure), Rules 131–144;
- article 68 para. 3, Court to permit views and concerns of victims to be presented in accordance with the Rules: see Rules 89–93;

- article 69 paras. 1, 2, 4 and 5, Rules to set out undertaking as to truthfulness to be given by witness: see Rule 66; to provide for giving of evidence other than in person, or by technological or written means: see Rules 67 and 68; to set out procedures for determining relevance and admissibility: see Rule 64; and to set out privileges on confidentiality: see Rule 73;
- article 70 paras. 2 and 3, Rules to provide principles and procedures relating to offences against the administration of justice, and to set out fines which may be imposed upon conviction for such an offence: see Rules 162–169;
- article 71 paras. 1 and 2, Rules to set out measures to be imposed as sanction for misconduct before the Court; and procedures governing their imposition: see Rules 170–172;
- article 72 para. 5 (d), Cooperation related to national security interests may include protective measures permissible under the Statute and the Rules;
- article 76 para. 2, Sentencing hearing to be held in accordance with the Rules: see Rule 143;
- article 77 para. 2 (a), Rules to supply criteria for imposition of fine: see Rule 146;
- article 78 para. 1, Rules to set out procedure on the taking into account of factors at sentencing: see Rule 145;
- article 81 paras. 1, 2 (a) and 3 (c) (ii), Rules to provide procedures for appeal of decision of Trial Chamber, of sentence, and of any decision to maintain detention of acquitted person pending appeal: see Rules 150–152, 154, 156–158;
- article 82 paras. 1, 3 and 4, Rules to set out procedures relating to appeal of other decisions, to requests to suspend procedures pending the outcome of these appeals, and to appeal of reparation orders: see Rules 150–158;
- article 84 para. 2, Rules to provide procedures for hearings seeking revision of conviction or sentence: see Rules 159–161;
- article 85 para. 3, Rules to supply criteria for discretionary award of compensation to subject of miscarriage of justice who has been released from detention: see Rules 173–175;
- article 87 paras. 1 (a) and 2, Rules will provide for change in designation both of authority to receive requests for cooperation and of language in which request to be made: see Rule 176;
- article 92, para. 3, Rules to specify time limits for the delivery of a request for surrender and supporting documents relating to a person provisionally arrested: see Rule 188;
- article 93 para. 8 (c), Formerly confidential documents of which a State consents to disclosure may be used as evidence in accordance with the Statute and the Rules;
- article 103 para. 3 (a), Principles of equitable distribution in enforcement of sentences to be set out in the Rules: see Rule 201;
- article 110 paras. 4 (c) and 5, Rules to set out factors justifying reduction of sentence, and criteria for subsequent review where reduction is denied: see Rules 223 and 224; and
- article 112 para. 2 (g), Assembly of States Parties may perform any function consistent with the Statute and the Rules.

III. Summary of amendments made to the rules since their initial adoption

At its Tenth Session, the Assembly of States Parties amended Rule 4 (concerning the plenary sessions of the judges) by consensus.⁷⁰ This amendment replaced the previous Rule 4, para. 1 and added Rule 4*bis*, with the effect of bestowing on the Presidency (and not, as previously, the judges sitting in plenary session) the power to assign judges to divisions in accordance with article 39 para. 1 of the Statute.

⁷⁰ Resolution ICC-ASP/10/Res.1 (20 December 2011), in Assembly of States Parties to the Rome Statute of the International Criminal Court, *Official Records* (tenth session, 12–21 November 2011), ICC Doc. No. ICC-ASP/10/20, vol. I, p. 20.

At its following, Eleventh Session the Assembly adopted by consensus a resolution that added the new Rule 132*bis* (Designation of a judge for the preparation of the trial).⁷¹ To quote the resolution's third preambular paragraph, this Rule allows 'that the functions of the Trial Chamber, in respect of trial preparation, may be exercised by a single judge or single judges in order to expedite proceedings and to ensure cost efficiency'.

Subsequently, at its Twelfth Session, the Assembly of States Parties adopted by consensus a resolution which modified Rule 100 (Place of the proceedings) in order to clarify the conditions under which the Court could sit 'in a State other than the host State', while Rules 134*bis*, *ter* and *quater* were added in order to allow either for the appearance of an accused via video link (*bis*) or for his/her being excused from being present at par or all of his/her trial and for being represented by counsel only on account of 'exceptional circumstances' (*ter*) or of a mandate 'to fulfil extraordinary public duties at the highest national level' (*quater*).⁷² Finally, at the same session, Rule 68 was substantially modified in order to impose a more stringent framework for the use of prior recorded testimony – a framework closely resembling Rules 92 *bis*, *quater* and *quinquies* of the ICTY Rules of Procedure and Evidence.

IV. 'A Unique compromise': National legal traditions and international norms

- 42 While substantially new in many respects, the ICC's Rules of Procedure and Evidence drew their inspiration from a number of sources. In identifying the influences that informed the negotiation of the Rules, it is worth noting in particular (1) the Rules of Procedure and Evidence of the ICTY and ICTR; (2) the criminal procedural law of the major legal systems of the world (and especially of the common law and Romano-Germanic or civil law systems); and (3) the constraints imposed by the Statute itself and by the anticipated practical needs of the (then future) ICC. While the first two leave their traces throughout the final Rules, it is the latter which defines the Rules as a unique – and uniquely significant – instrument in its own right.

With little to emulate in the rudimentary system that characterized Nuremberg – in which the barest of written rules were supplemented largely by *ad hoc* judicial decision-making⁷³ – delegations negotiating the ICC Rules found a major source of ideas and guidance for their structure and normative content in the Rules of Procedure and Evidence of the ICTY and ICTR.⁷⁴ The *ad hoc* tribunals' Statutes, which contained only the most basic procedural

⁷¹ Resolution ICC-ASP/11/Res.2 (21 November 2012), in Assembly of States Parties to the Rome Statute of the International Criminal Court, *Official Records* (eleventh session, 14–22 November 2012), ICC Doc. No. ICC-ASP/11/20, vol. I, p. 25.

⁷² Resolution ICC-ASP/12/Res.7 (27 November 2013), in Assembly of States Parties to the Rome Statute of the International Criminal Court, *Official Records* (twelfth session, 20–28 November 2013), ICC Doc. No. ICC-ASP/12/20, vol. I, p. 51. This action on the part of the Assembly was of course prompted by the case of Uhuru Muigai Kenyatta, who became President of Kenya on 9 April 2013, but against whom charges of crimes against humanity had been confirmed by Pre-Trial Chamber II on 23 January 2012: see generally http://www.icc-cpi.int/en_menus/icc/situations%20and%20cases/situations/situation%20icc%200109/related%20cases/icc01090211/Pages/icc01090111.aspx.

⁷³ Guariglia, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 1111, 1112. '[The Nuremberg and Tokyo Tribunals] both had very rudimentary rules of procedure: the rules of procedure of the Nürnberg Tribunal scarcely covered three and a half pages, with a total of 11 rules, and all procedural problems were resolved by individual decisions of the Tribunal; at Tokyo, there were only nine rules of procedure, which formed part of the statute of the Tribunal. Again, all matters were left to the case-by-case ruling of the tribunal': Bassiouni and Manikas, *Law* (1996) 819–820, quoting the First Annual Report of the ICTY (without page numbers). The precedential value of these Rules was negligible.

⁷⁴ ICTY, Rules of Procedure and Evidence, UN Doc. IT/32/Rev.48 (amended to 19 Nov. 2012); ICTR, Rules of Procedure and Evidence (amended to 1 Oct. 2009). The ICTY Rules were the 'first ever international criminal procedural and evidentiary code': Judge A. Cassese, then President of the ICTY, addressing the General Assembly with regard to the Rules, 13 Bulletin of the International Criminal Tribunal for the Former Yugoslavia 2 (1996), quoted in Morris and Scharf, *Insider's Guide* (1995) 423. The first code perhaps, but not the first international criminal procedural rules: see the preceding note for the example of Nuremberg. After formulation of the initial ICTY Rules, President Cassese stated '... we have made a conscious effort to make good the flaws of Nuremberg

provisions, were supplemented by detailed Rules drafted by expert judges. The judges' initial product bore the strong imprimatur of a common law accusatorial approach, while numerous subsequent amendments – adopted in light of the tribunals' evolving experience⁷⁵ – did something to introduce a civil law corrective to this.⁷⁶ The tribunals' Rules made a major contribution to the development of a thorough and rigorous international criminal procedural law in the 1990 s.

These tribunals were, however, established by 'executive' action of the United Nations Security Council, applying the powers conferred upon it for purposes of maintaining or restoring international peace and security under Chapter VII of the UN Charter. While the *ad hoc* tribunals took into account international standards and the views of governments and NGOs in formulating their Rules, the judges with responsibility for such formulation had no *duty* to consult, much less seek approval, whether from the Security Council, from the States most likely to be affected, or from others.⁷⁷ The categorical obligation of States to comply with Chapter VII-related measures of the Security Council (including orders and decisions of the tribunals)⁷⁸ make this judicial rule-making power all the more imposing.

The ICC, for its part, rests primarily upon the agreement and the concerted action of its States Parties. Moreover, the *ad hoc* tribunal experience and the consensual nature of the ICC Statute led the drafters of the latter to be relatively fastidious in keeping matters of substance within the Statute,⁷⁹ owing to the view, widely expressed at the Preparatory Committee, that entrusting to the ICC judges the formulation of its Rules would be inappropriate in a treaty regime based on the consent of States Parties.⁸⁰ Thus emerged the provisions giving States Parties the power to elaborate, adopt and amend the Rules (mn 2–7). The Rome Statute's emphasis on cooperation and State consent was further reflected in the emergence of the initial ICC Rules from the Preparatory Commission process (mn 9–15).

This being said, the ICC Statute and Rules benefited enormously from the experience of the *ad hoc* tribunals as contained both in their Rules and in their jurisprudence. While the fuller diplomatic process behind the ICC Rules' initial adoption has lent them an unparalleled degree of sophistication, they nonetheless bear the trace of the *ad hoc* tribunal Rules throughout. Both in negative and in positive terms (whereby the tribunals provided both 'lessons learned' that the ICC drafters deliberately avoided repeating – as for example with

and Tokyo', Statement by the President of the International Tribunal, UN Doc. IT/29 (1994), quoted in Morris and Scharf, *Insider's Guide* (1995) 417. For a history of the drafting of the Rules of both the ICTY and ICTR, see *ibid.*, 413–418.

⁷⁵ ICTY Tribunal President Cassese justified the tribunal Rules' frequent changes in addressing the General Assembly 19 Nov. 1996: 'It would have been impossible for the first truly international criminal tribunal to have adopted the first ever international criminal procedural and evidentiary code from a first draft dealing perfectly with all the diverse issues with which the Tribunal has to cope ... It would equally have been impossible for the issues ... to have been perfectly anticipated and solved at the beginning of 1994 [before the commencement of the first proceedings] ...' 13 Bulletin of the International Criminal Tribunal for the Former Yugoslavia 2 (1996), quoted in Morris and Scharf, *Insider's Guide* (1995) 423.

⁷⁶ Orie, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 1439, 1464; and in general the author's analysis of the traces left by the civil and common law systems in the Rules of the two *ad hoc* tribunals: *ibid.*, 1463–1474.

⁷⁷ See the discussion in Bassiouni and Manikas, *Law* (1996) 822–828. A United States proposal would have required the judges to submit draft Rules to the Security Council, but the Statute of neither tribunal requires this: Morris and Scharf, *Insider's Guide* (1995) 413.

⁷⁸ Article 29 ICTY Statute (and Rules 7bis, 8, 11, 13, 39, 40, 59 and 60); article 28 ICTR Statute. See also Bassiouni and Manikas, *Law* (1996) 775–793, arguing that, contrary to the view of the Secretary-General and that embodied in the Rules, a proper understanding of the powers of the Security Council under the UN Charter cannot lead to the view that orders of the ICTY are obligatory enforcement measures under Chapter VII. See also Morris and Scharf, *Insider's Guide* (1995) 420.

⁷⁹ For substantive matters in the ICTY Rules, see Bassiouni and Manikas, *Law* (1996) 824 and 827.

⁸⁰ 1996 Preparatory Committee Report, note 5, Vol. I, para. 186, p. 42; Bassiouni, *Compilation* (1998) 409. See also article 15 ICTY Statute, Annex to Security Council Res. 827 (25 May 1993), UN Doc. S/RES/827 (1993), and article 14 ICTR Statute, Annex to Security Council Res. 955 (8 Nov. 1994), UN Doc. S/RES/955 (1994).

anonymous witnesses⁸¹ – and models to follow, as with the privilege accorded to the ICRC),⁸² the ICC Rules can be seen in large measure as having built upon and refined the international normative innovation that was commenced at the ICTY and ICTR.

- 46 Turning now to the influence of different legal traditions on the Rules, it should first of all be noted that, while lip-service is often paid to the need to develop norms inspired by the ‘major legal systems of the world’, in fact it is the perceived opposition between common law and Romano-Germanic or civil law systems that defines the frame of reference for virtually all discussion of this question in international criminal procedure.⁸³ Typically, the two traditions are distinguished by their supposedly predominant philosophy with regards to truth-seeking and, in particular, the judge’s role therein.⁸⁴ The common law tradition is characterized as adversarial, in which two parties (prosecution and defence) enjoying a formal equality of arms oppose one another by adducing evidence and argument before a judge who for the most part restricts his role to that of determining the admissibility of the proof presented by the parties (and of finally evaluating that proof, where there is no jury present). For its part, the Romano-Germanic tradition is said to favour an ‘inquisitorial’ approach in which the judge plays a much more active role as truth-finder, being primarily responsible for calling and questioning witnesses, thus shaping the case very actively; the parties (including the victim as *partie civile*) play an essentially supplementary role to that of the judge. Such characterizations of the two systems are subject to numerous nuances and exceptions.⁸⁵
- 47 Many of the major conflicts or inconsistencies between legal traditions had already been aired and compromises forged during the pre-Rome and Rome negotiations. Nonetheless, where the Statute was silent or ambiguous, tensions were able to re-emerge.⁸⁶ In the negotiation of the ICC Rules of Procedure and Evidence, the contrasts between the approaches of the two systems were particularly apparent with respect to investigation and prosecution, pre-trial procedures, disclosure, and fair trial issues.⁸⁷ As a general matter – and in order to minimize the number of issues and to encourage a focus on substance rather than on form – negotiators sought to replace terminology strongly associated with one or the other system (e.g. ‘cross-examination’, ‘investigating magistrate’, etc.) with neutral, ICC-specific formulations.⁸⁸
- 48 Compared to the Rules of Procedure and Evidence of the *ad hoc* tribunals – which had at least initially a predominant common law influence⁸⁹ – the ICC system (Statute and Rules) is widely acknowledged to be far more balanced as between the two systems.⁹⁰ For example,

⁸¹ See article 65 para. 5 and Rule 81 para. 4 regarding possible non-disclosure of a witness’ identity ‘prior to the commencement of the trial’. The assertion that witness anonymity is not permitted at trial is not free of all controversy, however: see the discussions in Guariglia, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 1111, 1125; Brady, in: Lee (ed.), *Elements* (2001) 434, 450–453. The ICC Rules provisions on disclosure have also been held up as an improvement over the corresponding scheme of the ICTY: Guariglia, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 1111, 1126–1127.

⁸² Rule 73 para. 4: the jurisprudence of the ICTY had a direct impact on the negotiation of the Rules in this regard: see Guariglia, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 1111, 1129–1130, and Piragoff, in: Lee (ed.), *Elements* (2001) 349, 365–369.

⁸³ Orie, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 1439, is an example, discussing only the common law and civil law models.

⁸⁴ See generally Orie, *ibid.*

⁸⁵ See generally the discussions in Orie, *ibid.*, and in Ambos (2003) 3 *ICLRev* 1. The latter, at 2–5, cogently criticizes the inadequacy of the frequently-used ‘accusatorial’/‘inquisitorial’ terminology.

⁸⁶ Fernández, in: Lee (ed.), *Elements* (2001) 251.

⁸⁷ Fernández, *ibid.*, 251–253; Kirsch, in: Lee (ed.), *Elements* (2001) li; Kirsch and Oosterveld, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 93, 100.

⁸⁸ Kreß (2007) 5 *JICJ* 537, 605; Ambos (2003) 3 *ICLRev* 1, 20.

⁸⁹ Ambos, *ibid.*, 5–6 *et seq.*; Guariglia, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 1111, 1112, mentioning predominant influence of U.S. draft rules at the time of drafting; Orie, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 1439, 1463–1475. The same could be said of the procedures applies before the Nuremberg and Tokyo Tribunals: Orie, *ibid.*, 1456–1463.

⁹⁰ Ambos (2003) 3 *ICLRev* 1, 6–7, attributes the balance in the Statute in good part to vigorous, early French intervention in the negotiations.

while the ICC enjoys an independent Prosecutor and a trial driven by the submissions of the parties (with the elaborate procedures for disclosure that such a system requires),⁹¹ significant judicial intervention – greater than that which characterizes the *ad hoc* tribunals – is foreseen both at pre-trial and trial stages.⁹² The role of the victim, as well, is an advance on the tribunals and is particularly reflective of a civil law-inspired influence on the negotiations, although the ICC regime of victim participation and reparation is decidedly unique.⁹³ The unprecedented length and intensity of ICC negotiations has given the Rome Statute and its Rules incomparably greater procedural detail than that possessed by either its ICTY or ICTR counterparts.⁹⁴

No discussion of sources should divert attention from the fact that much of what the Rules contain is entirely new, the product of the diplomatic imagination seeking to find the most fair, effective, and efficient solutions to the anticipated procedural needs of the ICC. Experience has shown that neither following a given national system, nor adopting a mere amalgam of national practices, can give an international tribunal the tools it needs to perform its functions.⁹⁵ At the end of the day, the procedures of the ICC had to be tailored to the needs of the Court and the framework of the Statute. The result – already in the Statute and Rules, to be progressively rendered concrete by practice – is a ‘unique compromise’ that borrows inspiration from the major legal traditions without following them subserviently.⁹⁶ Great imagination and adaptability will be required of the jurists who apply the system in practice. In light of ‘the inevitable gaps, the open solutions and constructive ambiguity in some of the Rules’, the precise balance between the systems that have influenced the ICC model and the exact adaptation of its written procedure to concrete cases remain to be determined to a large extent by the judges.⁹⁷

⁹¹ Orie, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 1439, 1482–1485; Ambos (2003) 3 *ICLRev* 1, 13–16. As Fernández points out, in: Lee (ed.), *Elements* (2001) 243 and 251–252, when France argued for extensive disclosure prior to the confirmation of charges (a proposal that would create the kind of *dossier* or case-file familiar to civil law practitioners), the scope and purpose of the pre-trial procedure became a point of contention between proponents civil law and common law approaches: see also French General Outline, note 33.

⁹² See Orie, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 1439, 1475–1478, also at 1485–1489; Ambos (2003) 3 *ICLRev* 1, 10–34; Kreß (2003) 1 *JICJ* 603, 607–608 (that the handling of ‘unique investigative opportunities’ foreseen by article 56 and of the *proprio motu* powers by the Prosecutor under article 15 are good examples of this judicial-prosecutorial interaction); and Fernández, in: Lee (ed.), *Elements* (2001) 251 (that the very existence of the Pre-Trial Chamber is ‘a major institutional innovation’ and a victory for inter-systemic *rapprochement*).

⁹³ Orie, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 1439, 1477–1478; Fernández, in: Lee (ed.), *Elements* (2001) 255–257; see the detailed discussion of Bitti and Friman, in: Lee (ed.), *Elements* (2001) 456.

⁹⁴ This is notable particularly – but not exclusively – in Parts 5 (Investigation and prosecution), 6 (Trial) and 8 (Appeal and Review) of the Statute: see Guariglia, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 1111, 1113–1114.

⁹⁵ Guariglia, *ibid.*, 1112.

⁹⁶ See generally the assessment in Kreß (2003) 1 *JICJ* 603. One can only agree with the latter’s assessment (p. 605) that ‘...neither common law nor civil law can be seen as the main reference point for establishing the law governing the procedure before the ICC. Moreover ... there actually is no other major point of reference outside the law of the ICC. ... Taken as a whole, the procedural law of the ICC is, thus, not only new but also *truly unique*’ [italics in the original]. See also Ambos (2003) 3 *ICLRev* 1, 34–35 (‘At the level of international criminal procedure, the traditional common-civil law divide has been overcome. Although most rules can be traced back to a common or civil law origin, they are rendered *sui generis* and unique in their application before the International Criminal Tribunals. Thus, it is not important whether a rule is either adversarial or “inquisitorial”, but whether it assists “the Tribunals in accomplishing their tasks” and whether it complies with fundamental fair trial standards [citation of the original omitted]’).

⁹⁷ Fernández, in: Lee (ed.), *Elements* (2001) 240 and 252; Kreß (2003) 1 *JICJ* 603, 605–606, and *passim* (emphasizing the ‘constructive ambiguity’ that is manifest throughout the Statute and Rules); Orie, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 1439, 1477, 1484, 1493; and Ambos (2003) 3 *ICLRev* 1, 32.

Article 52 Regulations of the Court

1. The judges shall, in accordance with this Statute and the Rules of Procedure and Evidence, adopt, by an absolute majority, the Regulations of the Court necessary for its routine functioning.

2. The Prosecutor and the Registrar shall be consulted in the elaboration of the Regulations and any amendments thereto.

3. The Regulations and any amendments thereto shall take effect upon adoption unless otherwise decided by the judges. Immediately upon adoption, they shall be circulated to States Parties for comments. If within six months there are no objections from a majority of States Parties, they shall remain in force.

Literature: Jacobs, D., 'A Shifting Scale of Power: Who is in Charge of the Charges at the International Criminal Court?', in: W. Schabas *et al.* (eds.), *Ashgate Research Companion to International Criminal Law: Critical Perspectives* (Ashgate 2013) 205; *id.*, 'International Criminal Law', in: J. Kammerhofer and J. d'Aspremont (eds.), *International Legal Positivism in a Post-Modern World* (CUP 2014) 451; Roux F., 'La Défense mise à la porte de la Cour pénale internationale?' (2014) *La Gazette du Palais* 262, 9; Skilbeck, R., 'Building the Fourth Pillar: Defence Rights at the Special Court for Sierra Leone', (2004) 1 *EssexHumRtsRev* 66; Stahn, C., 'Modification of the Legal Characterization of Facts in the ICC System: A Portrayal of Regulation 55' (2005) 16 *CLF* 1.

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A. Introduction/General remarks

I. The Regulations in context

- 1 While the Statute itself is the main instrument regulating the functioning of the Court, the Statute envisages that a range of other legislative instruments will be adopted to regulate the Court's activities in greater detail. As far as the judicial activities of the Court are concerned, the main subsidiary set of rules is the Rules of Procedure and Evidence, adopted by the ASP pursuant to article 51. Other regulatory instruments provided for in the Statute are the Regulations adopted by the judges pursuant to article 52, the Staff Regulations adopted pursuant to article 44, the Financial Regulations and Rules adopted pursuant to article 113, as well as the Elements of Crimes (article 9). Some of these regulatory instruments in turn provide for the adoption of further instruments. For instance, the Rules provide for the

making of regulations by the Prosecutor to govern the operation of the Office of the Prosecutor (rule 9), for the making of regulations by the Registrar to govern the operation of the Registry (rule 14), and for the adoption of a Code of professional conduct for counsel (rule 8). The Regulations further provide for the adoption by the Presidency of a Code of Judicial Ethics (regulation 126). The operation of the Court will thus ultimately be governed by a body of various interrelated legislative instruments. In this respect, the Court is no different from the *ad hoc* Tribunals¹.

Within this system of regulation, there may thus be a hierarchy of rules. In the event of an inconsistency between the Rules and the Statute, the Statute would prevail². A provision of, say, the Prosecutor's regulations, which are made under rule 9, would be required to be consistent with both the Rules and the Statute.

Regulations under article 52 are adopted by the judges of the Court, in contrast to the Rules, which are adopted by the Assembly of States Parties. The position of the Regulations in the hierarchy of legislative instruments is dealt with in article 52 para. 1, which indicates that they must be consistent with both the Statute and the Rules³.

However, the hierarchy is not comprehensively spelled out in relation to all of these instruments. In the event of an inconsistency between the Regulations adopted under article 52 and, say, the regulations made by the Registrar under rule 14, presumably the former would prevail, although this is nowhere expressly stated.

The Statutes of the *ad hoc* International Criminal Tribunals include a provision for the adoption of Rules of Procedure and Evidence, but do not expressly provide for a separate body of Regulations in the way that article 52 does. In this respect, at least, the provision in the Rome Statute for both Rules of Procedure and Evidence and Regulations is a novelty. However, as indicated above, the *ad hoc* international criminal tribunals have adopted a variety of subsidiary regulatory instruments in addition to the Rules⁴. The ICJ has also done something similar. The Statute of the ICJ empowers that Court to 'frame rules for carrying out its functions'⁵. Pursuant to that power, the ICJ has adopted its Rules of Court, which in turn provide for certain subsidiary instruments. Article 28 para. 3 of the ICJ Rules provides that '[i]nstructions for the Registry shall be drawn up by the Registrar and approved by the Court'⁶. Additionally, article 19 of the ICJ Rules provides that '[t]he internal judicial practice of the Court shall, subject to the provisions of the Statute and these Rules, be governed by any resolutions on the subject adopted by the Court'. Pursuant to this provision, the ICJ has adopted a 'Resolution Concerning the Internal Judicial Practice of the Court'⁷. Furthermore, in October 2001 the ICJ adopted certain 'practice directions' for use by the States appearing before it, even though no provision is made for such practice directions in either its Statute or its Rules of Court. These practice directions were said to be 'the result of the Court's ongoing

¹ For instance, in the case of the ICTY, in addition to that Tribunal's Statute, the legislative instruments include (1) the Rules of Procedure and Evidence (made by the Plenary session of the Judges pursuant to article 15 of the Tribunal's Statute), (2) Practice Directions issued by the President pursuant to rule 19 *lit.* B ICTY, (3) Regulations framed by the Prosecutor pursuant to rule 37 *lit.* A ICTY, (4) Rules of Detention (adopted by the Plenary pursuant to rule 24 para. v ICTY), (5) regulations relating to conditions of detention, issued by the Registrar, or the Registrar and the Commanding Officer of the Detention Unit, pursuant to the Rules of Detention (including the Regulations for the Establishment of a Complaints Procedure for Detainees, the Regulations for the Establishment of a Disciplinary Procedure for Detainees, the Regulations to Govern the Supervision of Visits to and Communications with Detainees and the House Rules for Detainees), (6) the Directive on Assignment of Defence Counsel ('set out by the Registrar and approved by the permanent Judges' pursuant to rule 45 *lit.* A ICTY, and (7) the Code of Professional Conduct for Defence Counsel (which the Registrar is required to 'publish', under the supervision of the President, pursuant to rule 46 *lit.* C ICTY).

² See article 51 para. 5.

³ See further mn 10-11 below.

⁴ See note 1 above and accompanying text.

⁵ Article 30 ICJ Statute.

⁶ Article 28 para. 4 of the Rules of Court of the ICJ further provides for the adoption of Staff Regulations and Staff Rules for the staff of the ICJ.

⁷ 5 July 1968, revised 12 Apr. 1976.

review of its working methods – a step justified by the congested state of its List and the budgetary constraints it continues to face⁸. As in the case of the ICC, the most important rules are contained in the Rules of Court of the ICJ, with the other instruments remaining subsidiary thereto and dealing in more detail with routine matters.

- 4 The Regulations pursuant to article 52 were first adopted by the judges at their fifth plenary session on 26 May 2004⁹. They were amended twice in 2007 and once in 2012.

II. The history of this article

- 5 Up to the last session of the Preparatory Committee in March/April 1998, the draft texts named only ‘Rules of the Court’¹⁰ as another body of law to be developed in connection with the Statute. However, article 43 of the Draft Statute submitted to the Preparatory Committee in February 1998 (Zutphen Draft) already mentioned ‘the Regulations and the Rules of the Court’ and thus implied the possibility of having two distinct sets of rules¹¹. The Working Group on the Composition and Administration of the Court, following a proposal by the United States¹², agreed to have separate articles on the Rules of Procedure and Evidence and on what was initially called ‘Rules of Practice’¹³.

The reasoning behind this separation was that the mere internal functioning and organization of the Court should be governed by rules developed by those most closely connected with these processes, *i. e.* the judges. The Rules governing the procedure and evidence before the Court, however, should be agreed upon by the States Parties. In order to make the ‘Rules of practice’ more readily distinguishable from the Rules of Procedure and Evidence, the Working Group decided to call them ‘Regulations’ rather than ‘Rules’¹⁴.

- 6 The text contained in the Draft Statute for the ICC¹⁵ did not differ greatly from the final outcome. The major options were the possibility of requiring a two-thirds majority of the judges for the adoption of the Regulations and a slightly different provision for circulating the Regulations to the States Parties before they could take effect. These are dealt with under B.

B. Analysis and interpretation of elements

I. Paragraph 1

1. ‘in accordance with this Statute and the Rules of Procedure and Evidence’

- 7 This formula indicates the obvious hierarchy between the different sets of rules: The Rules have to conform to the Statute; the Regulations of the Court have to conform both to the Statute and to the Rules. The delegations saw no need to repeat the rule expressed in article 51 para. 5 with regard to the Regulations¹⁶. Whereas the Rules are developed by the States Parties and a conflict between them and the Statute therefore is at least in theory something to be considered in the Statute itself, the status of the Regulations is clearly less than that of the Statute and the Rules. In the event of conflict, the Statute or the Rules will always prevail over the Regulations. The lower normative value of the Regulations is confirmed by article 21

⁸ ICJ, press release 2001/32, 31 Oct. 2001.

⁹ Doc. ICC/BD-01-01-04. The text of the Regulations is reproduced in Annex III to this Commentary.

¹⁰ See 1996 Preparatory Committee II, p. 51.

¹¹ Zutphen Draft, article 43 [19] para. 0.

¹² UN Doc. A/AC.249/1998/DP.1, p. 4.

¹³ See Report of the Working Group on Composition and Administration of the Court, UN Doc. A/AC.249/1998/L.14 and UN Doc. A/AC.249/1998/CRP.2/Add.5 and Add.5/Corr.1.

¹⁴ UN Doc. A/AC.249/1998/CRP.10, p. 14.

¹⁵ Preparatory Committee (Consolidated) Draft, article 53.

¹⁶ Such a rule was, however, contained in *ibid.*, article 53.

of the Statute relating to the applicable law. Indeed, while it stipulates that the Court shall apply ‘in the first place’ the Statute, Elements of Crimes and the Rules of Procedure and Evidence (article 21(1)(a)), there is no mention of the Regulations of the Court.

If a Regulation were to be challenged by a party to the proceedings, the ultimate decision on the conformity of the Regulations lies with the judges themselves. This leaves them a wide margin of discretion in interpreting any contested rule in light of their own interpretation of the Statute, making it unlikely that judges will strike down one of their regulation. This can be illustrated by the discussions that surrounded the use of Regulation 55, which allows a Trial Chamber, when delivering its judgment, to ‘change the legal characterisation of facts to accord under article 6, 7 or 8, or to accord with the form of participation of the accused under articles 25 and 28, without exceeding the facts and circumstances described in the charges and any amendments to the charges’ (Regulation 55(1)). In the *Lubanga* case, the defendant challenged this Regulation on the ground that the Statute granted the power to make amendments to the charges to the Prosecutor in application of article 61(9), and that therefore the Regulation, which gave such a possibility to the judges, was contrary to the Statute.¹⁷ However, the Appeals Chamber rejected this argumentation. It claimed that article 61(9) related to the powers of the Prosecutor and was silent on the powers of the Chambers and therefore that ‘the terms of the provision do not exclude the possibility that a Trial Chamber modifies the legal characterisation of the facts on its own motion once the trial has commenced’¹⁸. In addition to that, the Appeals Chamber defended the Regulation on account of the fact that, in light with the general aim of the Statute to ‘put an end to impunity’, it was necessary to fill the ‘accountability gap’ that would be opened if a defendant’s acquittal were ‘merely the result of legal qualifications confirmed in the pre-trial phase that turn out to be incorrect’¹⁹.

This reasoning, while finding some support among some commentators, can be challenged on a number of levels. First of all, in relation to the interpretation of article 61(9) one can wonder why the fact that the Statute expressly ascribes the power to amend the charges to the Prosecutor should not logically be interpreted as automatically excluding such a power for other organs of the Court. If the drafters had wanted to grant such discretion to the judges they would have done so. If one follows the Appeals Chamber reasoning, the Regulations of the Court could expand the competence of any organ of the court to cover any function, even if such a function has initially been ascribed to a particular organ by the Statutes or the Rules of Procedure and Evidence, which would not be a satisfactory situation. Second of all, in relation to the ‘accountability gap’ issue, and beyond the general risk of abuse of teleological interpretations of the Statute²⁰, one wonders if it is the judge’s function to fill supposed impunity gaps that would have been left open by the drafters of the Statute. By doing so, judges are arguably acting *ultra vires* and taking on a legislative role that goes beyond their mandate²¹.

2. ‘by an absolute majority’

An absolute majority in this context means the majority of the total number of judges holding office. At the outset, the majority should therefore be 10 (the total number of judges

¹⁷ *Prosecutor v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06-2112-tENG, Defence Appeal against the Decision of 14 July 2009 entitled Decision giving notice to the parties and participants that the legal characterisation of the facts may be subject to change in accordance with Regulation 55(2) of the Regulations of the Court, Defence, 10 September 2009.

¹⁸ *Prosecutor v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06-2205, Judgment on the appeals of Mr Lubanga Dyilo and the Prosecutor against the Decision of Trial Chamber I of 14 July 2009 entitled ‘Decision giving notice to the parties and participants that the legal characterisation of the facts may be subject to change in accordance with Regulation 55(2) of the Regulations of the Court’, 8 December 2009, para. 77 <<http://www.legal-tools.org/doc/40d015/>>.

¹⁹ *Ibid.*, para. 77.

²⁰ Jacobs, in: Kammerhofer and d’Aspremont (eds.), *International Legal Positivism in a Post-Modern World* (2014) 451, 466–470.

²¹ For an in-depth discussion of Regulation 55, see Jacobs, in: Schabas *et al.* (eds.), *Ashgate Research Companion to International Criminal Law: Critical Perspectives*, (2013) 205.

being 18, according to article 36 para. 1). If a vacancy occurs, the number required for an absolute majority will be less until the vacancy is filled according to article 37. This was not an issue at the time that the Regulations were first adopted, but could become relevant in connection with any future amendments to the Regulations.

- 10 The text contained in the Draft Statute for the International Criminal Court²² included an option which would have required a two-thirds-majority of the judges. This was discarded very early on in the discussions. It was thought that such a requirement was unnecessary and only likely to cause delay.

3. 'necessary for its routine functioning'

- 11 The Rules specify a number of matters that are to be provided for in the Regulations²³. Apart from these specific matters, the Regulations are restricted to regulating the 'routine functioning' of the Court. The States participating in the Rome Conference were unwilling to leave the drawing up of more substantial Rules of Procedure and Evidence to the judges, even though there were precedents for this²⁴. An alternative formulation that was initially favoured by some delegations was 'rules for the day-to-day business of the Court'. This is, however, not any clearer than 'routine functioning'. The United States suggested that the Regulations should contain 'rules governing practice before the Court, administrative matters and internal operating procedures'²⁵.
- 12 In the event that provisions of the Regulations purported to regulate matters going beyond the 'routine functioning' of the Court, they would be *ultra vires*. However, the expression 'routine functioning' is not defined in the Statute, which leaves some flexibility in that respect for the judges. It may be noted in this connection that while rule 19 *lit. B* ICTY provides that practice directions made by the President of that Tribunal may only address 'detailed aspects of the conduct of proceedings before the Tribunal', such practice directions have in fact dealt with some relatively substantial issues²⁶.
- 13 The 'routine functioning' of the Court can be said to have two aspects. The first aspect concerns the judicial activity of the Court, and matters of practice and procedure. Many provisions of the Regulations deal with the minutiae of practice and procedure, establishing for instance the time limits, page limits and mandatory contents of different types of documents filed in proceedings before the Court. The other aspect concerns the internal organisation and administration of the Court as an institution. In relation to the latter aspect, the Regulations establish various bodies, structures and procedures that determine the way that the Court functions as an institution in practice, and the way in which its various organs interact. (See further Part C. below.)
- 14 The difficulty of defining the outer limits of the 'routine functioning' of the Court can once again be illustrated in relation to Regulation 55. As noted previously, this Regulation was challenged in relation to its alleged incompatibility with the Statute. In addition to that, the defence also challenged the Regulation because it was claimed to exceed the 'routine functioning' of the Court. The Appeals Chamber was not convinced by this argumentation. While not defining the concept of 'routine functioning' in any detail, it found, based on academic opinion, notably this publication, that it was a 'broad concept' that could cover

²² *Ibid.*

²³ *E.g.*, rule 21 para. 1 (providing that the criteria and procedures for assignment of legal assistance shall be established in the Regulations).

²⁴ See note 1 and mn 3.

²⁵ UN Doc. A/AC.249/1998/DP.1, p. 4.

²⁶ See, *e.g.*, the Practice Direction on the Procedure for Amending Regulations Issued by the Registrar (IT/173), 12 July 2000; Practice Direction on the Procedure for the Determination of Applications for Pardon, Commutation of Sentence and Early Release of Persons Convicted by the International Tribunal (IT/146), 7 Apr. 1999; Practice Direction on the Procedure for the International Tribunal's Designation of the State in which a Convicted Person is to Serve his/her Sentence of Imprisonment, 9 July 1998.

both practice and procedure²⁷. It also relied on the current content of the Regulations to note that Regulation 55 was not at odds with other regulation which might concern the rights of the defence or impact the trial²⁸. In addition to that, the Appeals Chamber considered that, because of disagreement in Rome on whether or not to include an equivalent provision in the Rome Statute, 'the matter was left for determination by the judges of the Court'. Finally, the judges noted the fact that no State Party had raised any objection to the Regulation that might cast on its legality²⁹.

Once again, the reasoning of the Appeals Chamber is not entirely convincing. First of all, it would have been welcome for the judges to take the opportunity to actually define the 'routine functioning' of the Court. Second, the content of other Regulations is hardly decisive in validating the legality of Regulation 55. It might very well be that these other Regulations are equally problematic in relation to article 52. Third, the idea that a disagreement in Rome means that the judges get to decide is somewhat problematic. There was a lot of disagreement in Rome, from the definition of crimes to modes of liability and procedure. This cannot be an adequate basis for judges to consider that they get to do what they want without an explicit provision to that effect in the Rome Statute. The only thing that is clear is that the rule contained in Regulation 55 was not included in the Statute, so the presumption should be that the judges do not have a power to read it in at their discretion. Finally, the fact that States have not objected to the Regulations is not a decisive factor in determining their conformity with the Statute or the Rules of Procedure of evidence, which should be determined solely by reference to the content of these documents exclusively.

In sum, the approach of the Appeals Chamber in relation to Regulation 55 shows that judges have adopted an expansive interpretation of their discretion in deciding the content of the Regulations of the Court. One can however wonder whether the drafters' decision to draft a far more detailed statute than in previous international tribunals as well as the decision to remove from the judge's purview the drafting of the Rules of Procedure and Evidence should not have led the judges to adopt a more cautious approach. Some judicial restraint would lead to the exclusion from the Regulations issues that are explicitly dealt with in the Statute of the Rules of Procedure, or relate to the heart of the judicial proceedings (such as the question of the amendment of the charges). 15

II. Paragraph 2

1. 'shall be consulted in the elaboration'

There is an obligation to consult, but not to obtain the approval of the Prosecutor and the Registrar. Responsibility for the Regulations lies with the judges; however, as a matter of practice and common sense the Prosecutor and the Registrar, as the heads of their respective offices, must have an opportunity to make their views known and to contribute to the process. It was suggested during the discussions to include the need for a formal approval by the Prosecutor and the Registrar, but the Working Group decided that this might lead to unnecessary delay. With a view to having the Court in working order as quickly as possible and recognizing that this kind of regulation will in all probability have to be adapted to the necessities of working together with all the organs of the Court, consultation seemed to be all that was needed. 16

²⁷ *Prosecutor v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06-2205, Judgment on the appeals of Mr Lubanga Dyilo and the Prosecutor against the Decision of Trial Chamber I of 14 July 2009 entitled 'Decision giving notice to the parties and participants that the legal characterisation of the facts may be subject to change in accordance with Regulation 55(2) of the Regulations of the Court', 8 December 2009, para. 69 <<http://www.legal-tools.org/doc/40d015/>>.

²⁸ *Ibid*, para. 69.

²⁹ *Ibid*, para. 71.

2. ‘any amendments thereto’

- 17 There is no explicit rule in the Statute about the adoption of amendments to the Regulations of the Court. From the context, however, it is clear that paragraph 1 applies not only to the adoption of the first Regulations of the Court but also to any amendments. In other words, the judges are free to amend the Regulations of the Court by an absolute majority³⁰; paragraph 2 makes it clear that the Prosecutor and the Registrar are to be consulted in the same way as for the first version.

The manner in which the consultations are to take place is set out in the Regulations themselves. Regulation 6 provides that proposals for amendments to the Regulations are to be presented in writing to the Advisory Committee on Legal Texts. It does not, however, state who is entitled to submit such proposals. Presumably any judge is entitled to do so, but it is less clear whether the Prosecutor and the Registrar are also given the right to present such proposals directly. The Advisory Committee on Legal Texts is established by regulation 4, and consists of three judges (one from each Division), a representative of the Prosecutor, a representative of the Registrar, and a representative of counsel included in the list of counsel. This Advisory Committee is thus the forum in which the Prosecutor and Registrar are consulted. Although the Statute does not require it, the structure of the Advisory Committee on Legal Texts means that Defence counsel are also consulted on proposed amendments to the Regulations. By virtue of regulation 4 para. 3, other interested groups of persons may also be consulted, and the advice of experts may be obtained. Pursuant to regulation 6 para. 4, the Advisory Committee then forwards a written report with its recommendations to a plenary session of the judges.

Regulation 6 para. 2 provides that in urgent cases, the Presidency may submit proposals for amendments to the Regulations directly to a plenary session. While this provision enables the Advisory Committee on Legal Texts to be bypassed in exceptional cases, the obligation under article 52 para. 2 to consult both the Prosecutor and the Registrar will always exist. The Regulations do not specify the procedure for such consultations in cases where regulation 6 para. 2 applies.

III. Paragraph 3

1. ‘any amendments thereto’

- 18 The wording corresponds with the formula in paragraph 2; and the comments at margin No. 14 are equally applicable.

2. ‘shall take effect’

- 19 The Regulations should enter into force as soon as possible. As the States Parties may object to them, the words ‘enter into force’ were avoided here and replaced by ‘take effect’. Strictly speaking, they enter into force only when the six month time limit for objections by States expires. In practical terms, there is no difference.
- 20 Regulation 6 para. 3 adds that amendments to the Regulations shall not be applied retroactively to the detriment of the person to whom article 55 para. 2 or article 58 applies, the accused, or a convicted or acquitted person. The question of when an amendment to the Regulations can be said to be to the ‘detriment’ of such persons will need to be answered in future case law of the Court. The Rules of the ICTY and ICTR contain a similar provision to the effect that any amendments to the Rules of those Tribunals ‘shall not operate to prejudice the rights of the accused or of a convicted or acquitted person in any pending case’³¹. The

³⁰ See mn 8.

³¹ Rule 6 *lit.* D ICTY; see also rule 6 *lit.* C ICTR. No such provision is contained in rule 6 of the Rules of the Special Court for Sierra Leone.

case law of those Tribunals has indicated that an amendment to the Rules does not ‘prejudice’ the rights of an accused, for instance, if it merely codifies an existing practice or precedent³².

3. ‘within six months’

The six month time limit will start to run when the Regulations are circulated to the States Parties. It is preferable for the effective functioning of the Court to have a single date for the expiry of the time limit than to have different dates depending on when the Regulations were received by each individual State. The time should still be sufficient for all States Parties to decide about any objections. Any objections must be received by the Court within the six month time limit; the date of reception being the point in time when the objection is formally made known to the other States Parties and the Court³³. It was discussed whether a certain form for the objections should be required, but it was thought unnecessary to go to such detail. Communications of this kind will always be in writing. Objections should be addressed to the President of the Court as the judges are responsible for the Regulations.

4. ‘no objections from a majority of States Parties’

This so called ‘emergency brake’ enables the States Parties to object to any Regulation which in the view of the majority of States Parties is inappropriate without taking the initiative and the responsibility for the content of the Regulations away from the judges.

From the wording of the text, there is some ambiguity on whether objections must be made to the Regulations as a whole, or may be made in relation to single provisions of the Regulations. However, the fact that the system also applies to amendments gives an indication that States Parties may object to a single provision in the Regulations. If the necessary majority of States Parties objects to a given provision, that provision will cease to be effective.

This ‘emergency brake’ provision will apply even if the objections of States Parties are based on different reasons. It is enough that a majority of States Parties does not wish a certain provision to be part of the Regulations.

The text contained in the Draft Statute submitted to the Diplomatic Conference included a similar option in paragraph 2. Under that option, the judges were to take any comments made by States Parties into account. During the debates, delegations felt that while such a provision seemed to oblige the judges to give some weight to statements made by States Parties, in fact it did not add anything to the ‘emergency brake mechanism’. Any comments made by States Parties would of necessity become a part of the judges’ deliberations. It was therefore held that the possibility to object to the Regulations was enough.

The Statute does not give the States Parties the right to propose new or different regulations. If a State Party objects to a provision, it may, however, propose an alternative formulation. It is then for the judges to decide whether they want to take up that proposal in an amendment.

C. Content of the Regulations

The text of the Regulations, as first adopted by the judges at their fifth plenary session on 26 May 2004, and subsequently amended in 2007 and 2012, is set out in Annex III to this Commentary.

³² *Prosecutor v. Kunarac et al.*, No. IT-96-23, IT-96-23/1-A, Judgement, Appeals Chamber, 12 June 2002, para. 334. Compare *Prosecutor v. Tadić*, No. IT-94-1-A, Judgement, Appeals Chamber, 15 July 1999, para. 28; *Prosecutor v. Blaskić*, No. IT-95-14-AR108bis, Decision on Prosecution Motion to Set Aside the Decision of the Appeals Chamber of 29 July 1997, Appeals Chamber, 12 Aug. 1997, paras. 12 and 13.

³³ This follows the rules regarding ratification and reservations, see Jennings and Watts (eds.), *Oppenheim’s International Law* (1992) § 609.

- 28 **Chapter 1 of the Regulations ('General Provisions')** contains a number of Regulations of general importance. This Chapter establishes two additional bodies with responsibilities for the functioning of the Court. Regulation 3 creates a 'Coordination Council' comprised of the President on behalf of the Presidency, the Prosecutor and the Registrar³⁴. The role of the Coordination Council is 'to discuss and coordinate on, where necessary, the administrative activities of the organs of the Court'. This body has no basis in the Statute or the Rules, and it is not given any express power to take binding decisions. However, it ensures that there will be discussions on a formal and regular basis between the various organs of the Court, to avoid unnecessary conflict or duplication in the carrying out of their separate administrative activities. Regulation 4 establishes an Advisory Committee on Legal Texts³⁵, composed of three judges (one from each Division), a representative from the Office of the Prosecutor, a representative from the Registry; and a representative of counsel included in the list of counsel. This body has the function of considering and reporting on proposals for amendments to the Rules, Elements and the Regulations. It is noteworthy that the Advisory Committee on Legal Texts is given these functions in relation to three specific legal texts only (the Rules, Elements and the Regulations), and is not given any functions (at least, not expressly) in relation to the adoption or amendment of the various other legal texts adopted under the Statute or Rules³⁶, such as the Code of Professional Conduct for Counsel adopted under rule 8 para. 1³⁷, the Regulations governing the operation of the Office of the Prosecutor adopted under rule 9³⁸, or the Regulations governing the operation of the Registry adopted under rule 14³⁹. The procedures to be followed for amendments to the Elements and the Regulations is spelled out in more detail in regulations 5 and 6. Regulation 7 provides that there shall be an Official Journal of the Court in which the Court's various legal texts are to be published, as well as amendments thereto. Regulation 8 provides that there shall be an official internet site of the Court.
- 29 **Chapter 2 of the Regulations ('Composition and Administration of the Court')** contains provisions (regulations 9–19) dealing with such matters as the terms of office and precedence of judges, the service of judges within the Presidency and the Appeals Chamber, the appointment of a Presiding Judge for each appeal and for each Pre-Trial Chamber and Trial Chamber, for the election of a President of each Division, for replacement and alternate judges, for duty judges, and for duty legal officers of the Chambers and duty officers of the Registry. These provisions complement in particular Chapter 2 (rules 4–43) of the Rules dealing with the composition and administration of the Court.
- 30 **Chapter 3 of the Regulations ('Proceedings before the Court')** contains detailed regulations (regulations 20–66) with respect to the mechanics of legal practice before the Court. The matters covered in this Chapter include publicity of hearings before the court, the format, content and distribution of documents filed before the Court, the page limits and time limits for such documents, the ordering of protective measures for victims, and aspects of the procedure at the pre-trial, trial, appeal and revision stages.

³⁴ See Staker, *Article 38*, mn 8–9.

³⁵ See also mn 14 above.

³⁶ See also mn 1 above.

³⁷ Rule 8 para. 1 provides that '[t]he Presidency, on the basis of a proposal made by the Registrar, shall draw up a draft Code of Professional Conduct for counsel, after having consulted the Prosecutor'. Rule 20 para. 3 adds that '[f]or purposes such as ... the development of a Code of Professional Conduct in accordance with rule 8, the Registrar shall consult, as appropriate, with any independent representative body of counsel or legal associations, including any such body the establishment of which may be facilitated by the Assembly of States Parties'.

³⁸ Rule 9 provides that '[i]n discharging his or her responsibility for the management and administration of the Office of the Prosecutor, the Prosecutor shall put in place regulations to govern the operation of the Office. In preparing or amending these regulations, the Prosecutor shall consult with the Registrar on any matters that may affect the operation of the Registry'.

³⁹ Rule 14 para. 1 provides that '[i]n discharging his or her responsibility for the organization and management of the Registry, the Registrar shall put in place regulations to govern the operation of the Registry. In preparing or amending these regulations, the Registrar shall consult with the Prosecutor on any matters which may affect the operation of the Office of the Prosecutor. The regulations shall be approved by the Presidency'.

Chapter 4 of the Regulations ('Counsel issues and legal assistance') contains provisions (regulations 67–85) dealing with defence counsel, legal representatives of victims, and the scope of legal assistance provided by the Court to the defence and to victims. These regulations supplement the provisions contained in article 67 para. 1 (d) and rules 20–22 and 90–91.

One noteworthy feature of this Chapter is regulation 77, which provides for the establishment of an Office of Public Counsel for the Defence ('OPCD'). The role of this Office is to represent and protect the rights of the defence during the initial stages of the investigation, and to provide support and assistance to defence counsel and persons entitled to legal assistance, including by the provision of legal research and advice and appearing before a Chamber in respect of specific issues. In other words, this Office is permanently available to ensure that the rights of the accused are respected before defence counsel have been appointed, and to provide assistance and support to defence counsel in general after they have been appointed⁴⁰.

The OPCD is in fact one of two separate authorities that have primary responsibility for defence matters, both located within the Registry, in the Division of Victims and Counsel⁴¹. The other of these authorities, the Defence Support Section ('DSS'), is to be responsible, under the supervision of the Registrar, for implementation of the ICC's legal aid system and for handling requests for the appointment of defence counsel⁴². Unlike the DSS, which operates under the supervision of the Registrar, the OPCD falls within the remit of the Registry solely for administrative purposes and otherwise functions as a wholly independent office⁴³. It should be noted that in the context of the broad reform of the Registry, there are likely to be changes to this institutional set up. Options considered include the fusion of the OPCD and DSS sections as well as the creation of an international bar where the defense section would be removed from the scope of Registry activities⁴⁴.

No office having functions equivalent to those of the OPCD exists in the ICTY or ICTR. At the ICTY for instance, the Office of Legal Aid and Detention Matters (OLAD) exercises functions similar to those of the ICC's DSS, but not generally those of the ICC's OPCD⁴⁵. However, some precedent for this type of office is found in the Special Court for Sierra Leone. Rule 45 of the Rules of the Special Court for Sierra Leone provides for the establishment by the Registrar of a Defence Office, headed by a Principal Defender. This Defence Office, in addition to exercising functions akin to those of the ICC's DSS, also exercises certain functions of the kind exercised by the OPCD at the ICC⁴⁶.

⁴⁰ Regulation 77 paras. 4 and 5. See also paras. 456–473 of the ICC's Proposed Programme Budget for 2006 (ICC-ASP/4/32) <http://www.icc-cpi.int/library/asp/Part_II_-_Proposed_Programme_Budget_for_2006.pdf> (the 'ICC 2006 Proposed Budget'), which was adopted by the Assembly of States Parties (Assembly of States Parties, Fourth session, 28 Nov. to 3 Dec. 2005, Official Records (ICC-ASP/4/32), paras. 24–26). It appears that the ICC previously considered, but rejected, the possibility of establishing a public defender system, under which defence counsel would be salaried employees of the Court: see Report to the Assembly of States Parties on options for ensuring adequate defence counsel for accused persons (ICC-ASP/3/16), 17 Aug. 2004, <http://www.icc-cpi.int/library/asp/ICC-ASP-3-16_-_defence_counsel_English.pdf>, at paras. 4, 7–12.

⁴¹ See note 32, the organigram on p. 123 of the ICC 2006 Proposed Budget.

⁴² See note 32, the description in the ICC 2006 Proposed Budget, paras. 420–434.

⁴³ Regulation 77 para. 2. Presumably it was decided that there should be a separation of functions between the DSS and the OPCD on the basis that the administration of the legal aid scheme requires the application and enforcement of administrative rules and should therefore be subject to the supervision of the Registrar, while the function of providing professional legal services to defence counsel or to individual accused should be exercised independently of the Registrar.

⁴⁴ F. Roux, 'La Défense mise à la porte de la Cour pénale internationale?' (2014) *La Gazette du Palais* 262, 9.

⁴⁵ See 12th Annual Report of the ICTY (2005), <<http://www.un.org/icty/rappannu-e/2005/index.htm>>, at paras.

⁴⁶ See the Rules of Procedure and Evidence of the Special Court for Sierra Leone, rule 45; and also the Special Court's Directive on the Assignment of Counsel; and its Code of Professional Conduct for Counsel with the Right of Audience before the Special Court for Sierra Leone (available at www.sc-sl.org). For judicial consideration of the role of the Defence Office at the Special Court for Sierra Leone, see *Prosecutor v. Brima et al.*, No. SCSL-2004-16-AR73, Decision on Brima-Kamara Defence Appeal Motion Against Trial Chamber II Majority Decision on Extremely Urgent Confidential Joint Motion for the Reappointment of Kevin Metzger and Wilbert

Regulation 81 provides for the establishment within the Registry of an Office of Public Counsel for Victims. This Office provides victims with certain services similar to those provided to defence counsel by the Office of Public Counsel for the Defence, namely to provide support and assistance to the legal representatives of victims and to victims, including through the provision of legal research and advice and appearing before a Chamber in respect of specific issues. This office is an entirely novel innovation in international criminal law, and has no precedent in any of the *ad hoc* courts or tribunals. It remains to be seen what role this office will play in the work of the Court in practice, but it is an innovation of significance.

- 33 Chapter 5 of the Regulations ('Victims participation and reparations') contains three regulations (regulations 86–88). The first two of these regulations deal with the procedures for the participation of victims in proceedings before the Court. The primary provision of the Statute dealing with participation of victims in proceedings is article 68 para. 3. Certain other provisions of the Statute also allow victims to make representations to the Court at certain stages of the proceedings (see article 15 para. 3, and article 19 para. 3). The provisions of the Rules dealing with this subject matter are rules 89–93. The third regulation in this Chapter deals with the procedure in cases of requests for reparations by victims, pursuant to article 75⁴⁷ and rules 94–99.
- 34 Chapter 6 of the Regulations ('Detention matters') contains provisions (regulations 89–106) dealing with 'the detention of persons detained by the Court'. The expression 'persons detained by the Court' would appear to exclude matters concerning persons who are serving sentences of imprisonment imposed by the Court after their transfer to the State of enforcement. The situation of persons serving sentences in a State of enforcement is governed instead by the provisions on enforcement in Part 10 of the Statute, Chapter 12 of the Rules, and Section 2 of Chapter 7 of the Regulations. Furthermore, the expression 'persons detained by the Court' would appear to exclude matters concerning persons who have been detained by the national authorities of a State pursuant to article 59 of the Statute, but who have not yet been transferred to the Court pursuant to article 59 para. 7. If this is so, it remains to be seen whether there are other means by which a person detained by a State pursuant to a request by the Court can challenge the legality of that detention in proceedings before the Court⁴⁸.
- 35 Unlike certain other Chapters of the Regulations, the provisions of Chapter 6 do not merely contain details to supplement provisions of the Statute and Rules. This is because the subject matter of Chapter 6 is not in fact dealt with in the Statute or Rules. Neither the Statute nor the Rules states expressly even that the Court shall have its own detention centre⁴⁹. Rather, the Statute merely implies that the Court must have a detention centre. Article 59 para. 1 states that '[a] State Party which has received a request for provisional arrest or for arrest and surrender shall immediately take steps to arrest the person in question in accordance with its laws and the provisions of Part 9', and article 59 para. 7 states that '[o]nce ordered to be surrendered by the custodial State, the person shall be delivered to the

Harris as Lead Counsel for Alex Tamba Brima and Brima Bazzy Kamara, Appeals Chamber, 8 Dec. 2005, paras. 79 *et seq.*; *Prosecutor v. Fofana et al.*, No. SCSL-2004-14-T, Decision on the Principal Defender's Motion for a Review of the Registrar's Decision to Install Surveillance Cameras in the Detention Facility, Trial Chamber, 6 Apr. 2006 (finding that the Principal Defender did not have *locus standi* to file a motion on behalf of accused who were represented by counsel). For more details on the legal aid models adopted by different international criminal courts, see Skilbeck (2004) 1 *EssexHumRtsRev* 66.

⁴⁷ See also Statute, Staker, *Article 82 para. 4*, and Strijards, *Article 110 para. 4 (b)*.

⁴⁸ See, for instance, *Prosecutor v. Nikolić*, No. IT-94-2-AR72, Decision on Notice of Appeal, Dissenting Opinion of Judge Shahabuddeen, Appeals Chamber, 9 Jan. 2003, para. 11.

⁴⁹ The situation is the same in the case of, for instance, the ICTY. The Statute of the ICTY contains no express provision that the ICTY is to have its own detention unit. The Rules of the ICTY contain a number of passing references to the detention unit of that Tribunal (rules 40*bis lit. A* and 90*bis lit. A* ICTY). However, these provisions merely assume the existence of the Tribunal's detention unit. They do not provide for its creation, or deal with its operation.

Court as soon as possible'. Article 60 para. 2 of the Statute adds that '[a] person subject to a warrant of arrest may apply for interim release pending trial. If the Pre-Trial Chamber is satisfied that the conditions set forth in article 58 para. 1 are met, the person shall continue to be detained. If it is not so satisfied, the Pre-Trial Chamber shall release the person, with or without conditions'. It is clear from these provisions that the Court must have some facility for detaining persons who are delivered to the Court and who do not satisfy the criteria for interim release.

Chapter 6 of the Regulations is thus the primary legal text governing the operation of the Court's detention centre. The Regulations envisage⁵⁰ that additional provision will be made in the Regulations for the Registry made pursuant to rule 14 para. 1⁵¹. Regulation 90 entrusts the Registrar with overall responsibility for all aspects of management of the detention centre, including security and order, and provides that the Registrar shall make all decisions relating thereto. However, it adds that the day-to-day fulfilment of the functions described in sub-regulation 1 shall be delegated to the Chief Custody Officer, who may delegate specific functions to other persons. Regulation 91 establishes the basic principle that '[a]ll detained persons shall be treated with humanity and with respect for the inherent dignity of the human person', and that there shall be no discrimination of detained persons on grounds of gender, age, race, colour, language, religion or belief, political or other opinion, national, ethnic or social origin, wealth, birth or other status. The subsequent regulations in this Chapter deal with matters such as the confidentiality of the detention record, the information that a person is to be provided on arrival at the detention centre, inspections of the detention centre, discipline at the detention centre, and the rights of detained persons and the conditions of detention.

Chapter 7 of the Regulations ('Cooperation and enforcement') consists of two sections. Section 1 ('Cooperation') consists of a number of regulations (regulations 107–112) dealing with cooperation with the Court by States and international organisations. This is the subject matter of Part 9 (articles 86–102) of the Statute and Chapter 11 (rules 176–197) of the Rules. In relation to these provisions, reference should be made to the commentary above to articles 86–102 of the Statute. Section 2 ('Enforcement') contains regulations (regulations 103–118) setting out in greater detail the procedures for ensuring the enforcement of sentences of imprisonment, and of fines, forfeiture orders and reparation orders, imposed by the Court. These regulations supplement Part 10 (articles 103–111) of the Statute and Chapter 12 (rules 198–225) of the Rules. In relation to these provisions, reference should be made to the commentary above to articles 103–111 of the Statute.

Chapter 8 of the Regulations ('Removal from office and disciplinary measures') consists of seven regulations (regulations 119–125) establishing details of the procedures to be followed in proceedings for removal from office or for the taking of disciplinary measures against a judge, the Prosecutor, a Deputy Prosecutor, the Registrar or a Deputy Registrar. Such proceedings are provided for in articles 46 and 47 and rules 23–32. In relation to such proceedings, reference should be made to the commentary above to articles 46 and 47 of the Statute.

Chapter 9 of the Regulations ('Adoption of the Code of Judicial Ethics') consists of a single regulation (regulation 126), which provides that the Presidency shall draw up a Code of Judicial Ethics⁵². This is an interesting provision, in that no mention is made of a Code of Judicial Ethics in the Statute or Rules, or in any other part of the Regulations, except for regulation 7 para. 1 (h), which states merely that the Code of Judicial Ethics is to be

⁵⁰ See Regulations 91 para. 2, 93 para. 1, 95 para. 2, 96 para. 2, 99 para. 2, 100 para. 3, 102 para. 2, 103 para. 4 and 106 para. 2.

⁵¹ A Report from the Court to the Assembly of States Parties in July 2004 stated that discussions with the host State concerning the availability of detention facilities were ongoing, and that relevant policies relating to the operation of a detention centre have been prepared: Report on the activities of the Court, Document ICC/ASP/3/10, 22 July 2004, para. 80.

⁵² The Code of Judicial Ethics (ICC-BD/02-01-05) was adopted by the Judges of the Court on 9 Mar. 2005.

published in the Official Journal of the Court. The legal basis for the Code of Judicial Ethics therefore appears to be the general power conferred by regulation 52 para. 1, read in conjunction with article 38 para. 3 of the Statute. Because there is no other mention of the Code of Judicial Ethics in the basic legal instruments of the Court, it is unclear what the precise effect of this Code is, or what are the consequences of a breach of the Code. Presumably, a breach of the Code of Judicial Ethics could be 'serious misconduct or a serious breach of his or her duties' within the meaning of article 46 para. 1 (a) and rule 24, or 'misconduct of a less serious nature' within the meaning of article 47 and rule 25⁵³.

⁵³ However, article 11 of the Code of Judicial Ethics provides that its principles are 'advisory in nature and have the object of assisting judges with respect to ethical and professional issues with which they are confronted' and that 'nothing in this Code is intended in any way to limit or restrict the judicial independence of the judges'. *Karadžić*.

PART 5 INVESTIGATION AND PROSECUTION

Article 53 Initiation of an investigation

1. The Prosecutor shall, having evaluated the information made available to him or her, initiate an investigation unless he or she determines that there is no reasonable basis to proceed under this Statute. In deciding whether to initiate an investigation, the Prosecutor shall consider whether:

- (a) The information available to the Prosecutor provides a reasonable basis to believe that a crime within the jurisdiction of the Court has been or is being committed;
- (b) The case is or would be admissible under article 17; and
- (c) Taking into account the gravity of the crime and the interests of victims, there are nonetheless substantial reasons to believe that an investigation would not serve the interests of justice.

If the Prosecutor determines that there is no reasonable basis to proceed and his or her determination is based solely on subparagraph (c) above, he or she shall inform the Pre-Trial Chamber.

2. If, upon investigation, the Prosecutor concludes that there is not a sufficient basis for a prosecution because:

- (a) There is not a sufficient legal or factual basis to seek a warrant or summons under article 58;
- (b) The case is inadmissible under article 17; or
- (c) A prosecution is not in the interests of justice, taking into account all the circumstances, including the gravity of the crime, the interests of victims and the age or infirmity of the alleged perpetrator, and his or her role in the alleged crime; the Prosecutor shall inform the Pre-Trial Chamber and the State making a referral under article 14 or the Security Council in a case under article 13, paragraph (b), of his or her conclusion and the reasons for the conclusion.

3. (a) At the request of the State making a referral under article 14 or the Security Council under article 13, paragraph (b), the Pre-Trial Chamber may review a decision of the Prosecutor under paragraph 1 or 2 not to proceed and may request the Prosecutor to reconsider that decision.

(b) In addition, the Pre-Trial Chamber may, on its own initiative, review a decision of the Prosecutor not to proceed if it is based solely on paragraph 1 (c) or 2 (c). In such a case, the decision of the Prosecutor shall be effective only if confirmed by the Pre-Trial Chamber.

4. The Prosecutor may, at any time, reconsider a decision whether to initiate an investigation or prosecution based on new facts or information.

Literature: Bitti, G., 'article 53 – Ouverture d'une enquête' in: J. Fernandez and X. Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale Commentaire article par article*, Vol. II (2012) 1173; Buchanan, R., 'The Mavi Marmara Incident and the International Criminal Court', (2014) 25 *CLF* 465; Danner, A.M., 'Enhancing the Legitimacy and Accountability of Prosecutorial Discretion at the International Criminal Court' (2003) 97 *AJIL* 510; deGuzman, M., 'Gravity and the Legitimacy of the International Criminal Court', (2009) 32 *FordhamILJ* 1402, 1432; Goldston, J.A., 'More Candour about Criteria: The Exercise of Discretion by the Prosecutor of the International Criminal Court', (2010) 8 *JICJ* 383; Goldstone, R.J. And Fritz, N., "In the Interests of Justice" and Independent Referral: The ICC Prosecutor's Unprecedented Powers', (2000) 13 *LeidenJIL* 655; Jacobs, D., 'A Samson at the International Criminal Court: The Powers of the Prosecutor at the Pre-Trial Phase', (2007) 6

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A. Introduction/General remarks

- Article 53 of the Statute, despite its misleading title, does not only govern the processes by which the Office of the Prosecutor decides to start an investigation or prosecution. It also regulates the review by the Pre-Trial Chamber of the decision not to proceed, as well as the power of the Prosecutor to reconsider decisions whether to start an investigation or prosecution based on new facts or information. Article 53 paras. 1 and 2 provide substantive criteria for the consideration of whether to start an investigation or a prosecution, respec-

tively. Paragraph 3 regulates the scope of, and procedural requirements for, the Prosecutor's discretionary power not to proceed with investigation or prosecution and the role of the Pre-Trial Chamber. At the core of the general notion of prosecutorial discretion lies the power to decide whether or not to investigate and prosecute a case. This notion is an important manifestation of the statutory principle of functional prosecutorial independence found in article 42 and is ultimately based on the interest of impartial justice on which the credibility and legitimacy of the criminal justice process depends.

Article 13 of the Statute regulates the exercise of the Court's jurisdiction by the organs of the Court, including the Office of the Prosecutor. It provides that the Prosecutor's power to investigate can be triggered in three different ways. *First*, by a referral of a situation to the Prosecutor by a State Party in accordance with articles 13 (a) and 14; *second*, by a referral of a situation by the Security Council acting under Chapter VII of the United Nations Charter, in accordance with article 13 (b); and, *third*, by an independent initiation of an investigation by the Prosecutor which has then been expressly authorised to proceed by the Pre-Trial Chamber pursuant to articles 13 (c) and 15. For article 53 to come into play, the situation must have been triggered by one of the three trigger mechanisms. If the Prosecutor has initiated a preliminary examination pursuant to articles 13 (c) and 15 paras. 1 and 2, he or she 'shall consider the factors set out in article 53 Para. 1 (a) to (c)' according to Rule 48 in the Rules of Procedure and Evidence. Additionally, if the Prosecutor is seized of a situation through article 13 (a) or (c), in accordance with article 12, the territorial State or one State of nationality must either be Party to the Statute or have accepted the exercise of jurisdiction by the Court with respect to the crime in question. It should be noted that article 53 will eventually also apply to the crime of aggression, whose definition, albeit agreed upon at the first Review Conference in Kampala, Uganda, is not yet in force at the time of completion of this third edition.¹

The drafting history of article 53 of the Statute should be viewed alongside that of the controversial articles 12 and 13, which set the jurisdictional parameters of the Court and its Prosecutor. Drafts from both the Preparatory Committee and the ILC contained references to provisions on the triggering of the jurisdiction of the Court in the article corresponding to final article 53. Article 54 of the Draft Statute proposed by the Preparatory Committee was very lengthy and contained provisions which can now be found in articles 53, 54, 55 and 57 of the Statute.² The provisions relevant to what is now article 53 appeared in draft article 54 paras. 1–3 with multiple brackets and tentative language on several of the issues involved. Article 54 paras. 1–3 reflected draft article 47 paras. 1, *1bis* and *1ter* of the Zutphen Draft Statute.³ Both of these drafts encapsulated the inconclusive and preliminary deliberations at the Preparatory Committee regarding the content article 53. Article 26 paras. 1, 4 and 5 of the ILC Draft Statute had formed the basis of the work of the Committee.⁴ However, the Diplomatic Conference substantially contributed to what was finally adopted in article 53.⁵

The close connection between article 53 and the mechanisms triggering the Court's jurisdiction renders a comparison with the corresponding ICTY Statute provision (article 18) of limited relevance to the interpretation and analysis of article 53. Article 18 para. 1 of the ICTY Statute states that the Prosecutor 'shall initiate investigations *ex-officio* or on the basis of information obtained from any source'. This is a reflection of the Security Council's determination, when it established the Tribunal pursuant to Chapter VII of the United Nations Charter, that the Prosecutor needs no judicial or other authorisation in order to start an investigation. Through the creation of the Tribunal by virtue of a binding Chapter VII Resolution,⁶ the Security Council

¹ See Resolution RC/Res.6 The crime of aggression (<http://www.legal-tools.org/doc/0d027b/>).

² See Preparatory Committee (Consolidated) Draft, pp. 89–95 (<http://www.legal-tools.org/doc/816405/>).

³ See Zutphen Draft, pp. 86–87 (<http://www.legal-tools.org/doc/7ba9a4/>).

⁴ See 1994 ILC Draft Statute, II, B, I, p. 90 (<http://www.legal-tools.org/doc/f73459/>).

⁵ See Bitti, in: Fernandez and Pacreau (eds), *Statut de Rome de la Cour Pénale Internationale Commentaire article par article* (2012) 1174–1178.

⁶ Res. 827 (1993), 25 May 1993 (<http://www.legal-tools.org/doc/dc079b/>).

mandated the Prosecutor to investigate and prosecute. As such, it differs from the ICC regime, which is premised on State acceptance of the Court's jurisdiction, trigger mechanisms and deference on national criminal justice systems in light of complementarity.

Article 18 para. 1 of the ICTY Statute provides that the Prosecutor has prosecutorial discretion to 'decide whether there is sufficient basis to proceed' with an investigation based on his or her assessment of 'the information received or obtained'. This is, however, an *evidentiary* test and not one of *appropriateness*. The latter consideration, which some would be inclined to describe as more political, was exercised by the Security Council when it found that there was a situation involving serious violations of international humanitarian law in the former Yugoslavia justifying international judicial intervention.

- 5 Article 18 para. 4 of the ICTY Statute resembles article 53 para. 2 of the ICC Statute only insofar as it provides that the Prosecutor, 'upon a determination that a *prima facie* case exists, ... shall prepare an indictment'. It follows from the above discussion that the formulation 'initiate an investigation' in article 53 of the ICC Statute must be distinguished from 'initiate investigations' in article 15. The latter, in article 15 para. 6, refers to preliminary examinations, *i.e.*, the preliminary gathering of information in order to determine *whether* to proceed to request the Pre-Trial Chamber to authorise a full investigation. Article 53, on the other hand, refers to the *commencement* of a full investigation with a view to determining whether to prepare an indictment and prosecute.⁷ Article 42 para. 1 makes a distinction between 'examining' (referrals and substantiated information) and 'conducting investigations and prosecutions', which may be a useful indication of the progressive phases of the exercise of the Prosecutor's duties. As regards the fact-finding activities of the Office of the Prosecutor, the Prosecutor must assess the preliminary information provided in order to determine whether or not to embark on a full investigation. This preliminary assessment is a precautionary measure intended to protect the Prosecutor from the obligation of expending resources and time on an investigation which clearly has no chance of leading to a compelling indictment or prosecution. This provision contains one of several safeguards against the abuse of the investigative capacity of the Court by the Prosecutor. Article 53 provides the criteria for the preliminary examination.⁸ The second fact-finding activity, which depends on the outcome of the assessment of the preliminary information to commence, is the launching of an in-depth investigation of the incident or situation to which the preliminary information pertains. This in-depth investigation will determine whether a prosecution should be instituted or not.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Chapeau

- 6 a) 'shall'. The use of the imperative verb 'shall' emphasises that the sole discretion in the chapeau is whether there is a reasonable basis to proceed with a full investigation. If such a reasonable basis is found to exist, the Prosecutor is obliged to proceed with an investigation with a view to formulating an indictment – if the investigation so warrants. The provision does not give the Prosecutor room for arbitrary decision-making if he or she deems that the preliminary information provides a reasonable basis on which to proceed under the Statute. Despite the use of the mandatory 'shall', which indicates that the principle of legality is applicable, there is a lot of debate as to whether the discretion found in the factors to be

⁷ See ICC, Office of the Prosecutor, 'Policy Paper on Preliminary Examinations', November 2013 (<http://www.legal-tools.org/doc/acb906/>), paras 35, 73.

⁸ *Ibid.*

considered by the Prosecutor regarding whether or not to initiate an investigation or prosecution of a case, in fact indicates that the Prosecutor's operation is conducted under the principle of opportunity.⁹

b) 'information'. The 'information' referred to in this provision primarily concerns that which accompanies the referral of a situation to the Prosecutor by a State Party or by the Security Council pursuant to article 13 (a) and (b), or which the Prosecutor has received under article 15 paras. 1 and 2.

The Prosecutor is not restricted only to the information which accompanies the submission when making his or her analysis; the provision does not impose such a limitation on the Prosecutor's discretion. On the contrary, the wording of the provision simply refers to 'information made available to him', without specifying from whom and when. Under article 15 para. 2¹⁰ the Prosecutor is explicitly authorised by the Statute to seek additional information from a wide variety of sources to supplement the information received so as to enable him or her to undertake a suitable analysis thereof. Rule 104 para. 2 affords the same power to the Prosecutor under article 53 paras. 1 and 2. This is only reasonable insofar as one main interest underlying article 15 para. 2 is to ensure that the Prosecutor has a sufficient basis to consider the seriousness of the information received before taking steps to launch a full investigation. It would, in any event, fall within his or her prosecutorial discretion to seek such additional information in order to come to a fair conclusion on whether there is a reasonable basis to proceed.

In evaluating the information, the Prosecutor shall – in accordance with Rule 104 para. 1 of the Rules of Procedure and Evidence – 'analyse the seriousness of the information received'. This obligation is identical to that spelled out in article 15 para. 2 for the *proprio motu* initiation of investigations. The paragraph illustrates that the relationship between articles 15 and 53 had not been fully thought through at the time of adoption of the Statute.¹¹ The discrepancy between the two provisions has led some to question the applicability of article 53 para. 1 to *proprio motu* investigations.¹² However, given that article 53 para. 1 does not distinguish between the different trigger mechanisms, such an interpretation cannot be warranted.¹³

c) 'initiate an investigation'. As seen in section a) above, the phrase 'initiate an investigation' has different meanings in article 53 para. 1 and in article 15. In the former it means the launching of activities by the Prosecutor to collect evidence with a view to a possible indictment and prosecution of perpetrators of crimes under the Court's jurisdiction. In article 15 para. 1 it refers to 'preliminary examinations'¹⁴ for the purpose of determining *whether* to take steps to proceed to a full investigation. Article 15 deals with the *initiation* of investigations, while article 53 concerns the decision-making to *start* investigations and prosecutions.

d) 'reasonable basis to proceed under this Statute'. In the original 1994 ILC Draft Statute the criterion employed was that of 'no possible basis'. The current criterion entered the deliberations during the work of the Preparatory Committee in 1996.¹⁵ The reasonability test

⁹ See De Meester, in: Klamberg (ed.), *The Commentary on the Law of the International Criminal Court* <<http://www.casematrixnetwork.org/cmn-knowledge-hub/icc-commentary-clicc>> accessed 11 November 2014; Olásolo (2003) 3 *ICLRev* 87, 131–132; Webb (2005) 50 *CrimLQ* 305, 307–312.

¹⁰ Article 15 para. 2 pertains to *proprio motu* initiation of investigations by the Prosecutor (<http://www.legal-tools.org/doc/7b9af9/>).

¹¹ See, generally, Stegmiller, *Pre-Investigation* (2011).

¹² See Olásolo, *The Triggering Procedure of the International Criminal Court* (2005) 70–72; Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010) 659.

¹³ See Bitti, note 5, 1180, who also helpfully explains the issue by reference to the different trigger mechanisms with regard to the crime of aggression.

¹⁴ See article 15 para. 6.

¹⁵ See the options for an article 26 para. 1 (b) (i), 1996 Preparatory Committee II, p. 112 (<http://www.legal-tools.org/doc/03b284/>).

appears in several places in the Statute in the context of assessment of information and evidence. It appears three times in article 15,¹⁶ several times in article 53¹⁷ and again in article 58 para. 1 (a).¹⁸ The question therefore arises as to whether the reasonability tests are essentially the same in all three provisions. Pre-Trial Chamber II in its Decision in the situation in Kenya advocated that the standard in articles 15(3), 53(1) and 15(4) be the same.¹⁹ As these standards are used in the same or related articles, they share the same purpose: the opening of an investigation.

- 11 With the exception of the use in article 58 para. 1 (a), the provisions refer to different aspects of the preliminary evaluation of information, which is meant to enable the Prosecutor to determine whether to proceed to a full investigation. The test provided for in article 58 para. 1 (a) is only activated after an investigation has gathered sufficient evidence to determine whether to proceed with an indictment and prosecution.²⁰ The meaning of ‘reasonable grounds’ within the context of article 58 para. 1 (a) will not be dealt with here, apart from mentioning that the test amounts to an assessment of whether the evidence shows the existence of a *prima facie* case against one or more perpetrators. But ‘reasonable grounds’ is a lower threshold than that of the ‘beyond reasonable doubt’ criterion which applies to the weighing of evidence at trial, as only evidence untested in the specific case under preparation is available prior to the confirmation hearing and the trial. Indeed, a contextual interpretation may be the answer to this conundrum. Article 53(1) requires less certainty than article 53(2).²¹ Similarly, this threshold is lower than that required for an arrest warrant or the ‘substantial grounds to believe’ standard required for the confirmation of charges.²² It is therefore true that the standard becomes stricter in each step of the process.²³
- 12 The information available at the time of the Prosecutor’s preliminary examination is expected to be less comprehensive and conclusive than the evidence gathered by the completion of the investigation. It would therefore seem that the test of ‘reasonable basis’ for preliminary information may constitute a lower threshold than the ‘reasonable grounds’ test to be applied under article 58 para. 1 (a). This is derived from the three factors in subparagraphs (a), (b) and (c) of article 53 para. 1 which the Prosecutor is directed to consider when assessing the information. The ‘reasonable basis’ element of the test requires that the Prosecutor, following due consideration, be satisfied with regard to these three factors. In the *first* place, he or she must be satisfied that a reasonable basis exists to believe

¹⁶ Article 15 para. 3 requires that the Prosecutor has a ‘reasonable basis to proceed with an investigation’. For the Pre-Trial Chamber to authorise the Prosecutor to continue, article 15 para. 4 requires that it considers there to be ‘a reasonable basis to proceed with an investigation’. See article 15 para. 6 as well.

¹⁷ Apart from appearing in the chapeau, article 53 para. 1 (a) requires that the information available to the Prosecutor ‘provides a reasonable basis to believe that a crime within the jurisdiction of the Court has been or is being committed’. The final subparagraph of article 53 para. 1 concerns what happens if the Prosecutor determines that there is ‘no reasonable basis to proceed’ pursuant to subparagraph (c).

¹⁸ Article 58 para. 1 (a) provides for the Pre-Trial Chamber to have ‘reasonable grounds to believe that the person has committed a crime within the jurisdiction of the court’.

¹⁹ ICC, Pre-Trial Chamber II, Situation in the Republic of Kenya ‘Decision Pursuant to article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Kenya’, 31 March 2010, ICC-01/09-19 (<http://www.legal-tools.org/doc/338a6f/>) (Kenya Decision) para 21. See also Pre-Trial Chamber III, Situation in the Republic of Côte d’Ivoire, ‘Corrigendum to “Decision Pursuant to article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Côte d’Ivoire”’, 15 November 2011, ICC-02/11-14-Corr (<http://www.legal-tools.org/doc/e0c0eb/>) (Côte d’Ivoire, 15 November 2011 Decision) para 21 (‘the underlying purpose of the procedure in article 15(4) of the Statute is to prevent unwarranted, frivolous or politically motivated investigations’).

²⁰ In this regard it should be noted that the criterion used in article 53 para. 2 is that of ‘sufficient basis for a prosecution’. As this refers to an assessment of the result of the investigation, the question may be asked whether it would have been better, in the interests of clarity and consistency, to use the same terminology in articles 53 para. 2 and 58 para. 1, using ‘sufficient basis’ in article 58 para. 1 (a) as well.

²¹ See De Meester, note 9.

²² See Ventura (2013) 12 *LAPE* 49, 67.

²³ See Stegmiller, in: Kreussmann (ed.), *ICTY: Towards a Fair Trial?*, (2008) 322; see also Stegmiller, *Pre-Investigation* (2011) 353.

that a crime within the jurisdiction of the Court has been committed. *Secondly*, the Prosecutor must be satisfied that the case is or would be admissible in terms of the criteria laid down in article 17. Finally, having considered the gravity of the crime and the interests of the victims, he or she must be satisfied that there are no substantial reasons to believe that an investigation would not serve the interests of justice.

e) ‘**shall consider**’. In determining whether to proceed with an investigation, the Prosecutor is required to take certain factors into account. The list of factors is cumulative, so the Prosecutor is obliged to consider all three. The third factor, through the use of the term ‘substantial reasons’, enables the Prosecutor to take additional aspects into consideration. However, as explained above, the test at this stage is not a stringent one. It is not necessary for the Prosecutor to go beyond the listed factors to meet the test of ‘reasonable basis to proceed under this Statute’. It is, however, imperative that each of these factors be satisfied. If one is lacking, no reasonable basis to proceed can be found to exist.

2. The different subparagraphs

a) ‘**reasonable basis to believe**’. The ‘reasonable basis to believe that a crime within the jurisdiction of the Court has been or is being committed’ is one of three factors to be considered in determining whether a ‘reasonable basis to proceed under this Statute’ exists. The use of the expression ‘reasonable basis’ twice within a single provision had been flagged at the Inter-Sessional Meeting held in Zutphen in January 1998.²⁴ However, the use of the ‘reasonable basis’ test in the context of subparagraph 1 (a) does not conflict with the test in the chapeau. The former test refers only to one component of the latter test.²⁵

The ‘reasonable basis’ test in subparagraph 1 (a) entails that the Prosecutor assess the information placed before him or her. If it leads to the reasonable belief that a crime within the jurisdiction of the Court has been committed, a reasonable basis for such a belief naturally exists. It is not required that the information conclusively prove all the elements of the crime at this stage. The Court has interpreted ‘reasonable basis’ as requiring ‘a sensible or reasonable justification for a belief that a crime falling within the jurisdiction of the Court “has been or is being committed”’.²⁶

The necessity for the ‘reasonable basis’ test in article 53 para. 1 (a) is questionable. The Zutphen Report opined that it ought not to be retained.²⁷ Whilst draft article 47 para. 1 of the Zutphen text referred to ‘reasonable basis for a prosecution’ (emphasis added), language kept in article 54 para. 1 of the Draft Statute of the Preparatory Committee, final article 53 para. 1 was, on the other hand, appropriately amended to refer to ‘reasonable basis to proceed under this Statute’ (emphasis added). Likewise, Zutphen Draft article 47 para. 1bis (b) (i) and Draft article 54 para. 2 (b) (i) of the Preparatory Committee’s proposed Statute both used the language ‘reasonable basis ... for proceeding with a prosecution’, whereas final article 53 para. 1 (a) is more specific in that it refers to ‘reasonable basis to believe that a crime ... has been ... committed’. The Rome Statute has, in other words, reduced the scope of the convergence between what is now articles 53 para. 1 and 53 para. 1 (a) *vis-à-vis* earlier drafts.

Article 53 para. 1 (a) also makes reference to ‘a crime within the jurisdiction of the Court’. This has been interpreted by the Court to not only require consideration of article 5 para. 1 of the Statute, but also satisfaction of the following conditions: jurisdiction *ratione materiae*;

²⁴ A note was inserted after article 47 para. 1 in the Zutphen Draft, providing that ‘[t]he term “reasonable basis” in the opening clause is also used in the criteria listed in 1bis (i). If the latter is retained, a broader term in the opening clause might be necessary in order to cover all the criteria listed under paragraph 1bis’. See Zutphen Draft, note 3, 86–87.

²⁵ Kenya Decision, see note 19, para 26.

²⁶ *Ibid.*, para 35. See also ICC, Pre-Trial Chamber III, Situation in the Republic of Côte d’Ivoire, ‘Decision Pursuant to article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d’Ivoire’, 3 October 2011, ICC-02/11-14 (Côte d’Ivoire, 3 October 2011 Decision) (<http://www.legal-tools.org/doc/7a6c19/>) para 23.

²⁷ See Zutphen Draft, note 3 (‘If the latter is retained ...’).

jurisdiction *ratione temporis*; jurisdiction *ratione loci* or *ratione personae*.²⁸ It should be noted, however, that individual criminal responsibility has not yet been established at this stage. Based on article 53(1)(a), the ICC decided not to investigate the situations in Venezuela²⁹ and Palestine.³⁰

- 18 b) ‘... is or would be admissible under article 17’. This criterion requires that the Prosecutor consider whether any of the grounds for inadmissibility of the case bar, or would bar, the Court from exercising jurisdiction. If one or more national criminal justice systems are genuinely investigating or prosecuting the crimes in question, the Prosecutor must conclude that there is no reasonable basis to proceed with an investigation. This is the effect of the primacy afforded to national jurisdictions by virtue of the principle of complementarity. Article 18 of the Statute, on preliminary rulings regarding admissibility, places an obligation on the Prosecutor to notify State Parties and other States ‘which, taking into account the information available, would normally exercise jurisdiction over the crimes concerned’. If a State informs the Prosecutor within one month of receipt of the notice that it is investigating the crimes in question and requests the Prosecutor to defer, he or she must do so, unless the Pre-Trial Chamber, on the application of the Prosecutor, decides to authorize the investigation.
- 19 Article 18 para. 1 explicitly provides that the Prosecutor’s notification obligation is only activated *when* the Prosecutor ‘has determined that there would be a reasonable basis to commence an investigation’, in cases where the situation has been referred to the Court by a State Party pursuant to article 13 (a). This means that the Prosecutor is only obliged to notify States as required by article 18 *after* he or she has made a determination that there is a ‘reasonable basis to proceed’ pursuant to article 53 para. 1. It would seem that this is also the rule when the Prosecutor is acting *proprio motu* on the basis of article 13 (c), albeit article 18 para. 1 is ambiguous in that it says that the same applies when ‘the Prosecutor initiates an investigation pursuant to articles 13 (c) and 15’.
- 20 It has been pointed out that the term ‘case’³¹ in this sub-paragraph is contextually incorrect, given that the Prosecutor at the investigation state is examining the ‘situation’.³² Pre-Trial Chamber II found that article 53 para. 1 (b) ‘must be construed in its context and accordingly, an assessment of admissibility during the article 53(1) stage should in principle be related to a “situation”’,³³ but did not consider the text mistaken. Rather, it was thought that the Chamber is ‘called upon to construe the term ‘case’ in the context in which it is applied’, i.e. one or more potential cases in the context of a situation.³⁴ In addition, it rightly found that the admissibility assessment cannot occur in the abstract. The need to consider the scope and criteria of a ‘potential case’³⁵ (and gravity thereof) therefore arises.

²⁸ Kenya Decision, see note 19, para 39. See also ICC, Appeals Chamber, *Prosecutor v. Thomas Lubanga Dyilo*, ‘Judgment on the Appeal of Mr. Thomas Lubanga Dyilo against the Decision on the Defence Challenge to the Jurisdiction of the Court pursuant to article 19 (2) (a) of the Statute of 3 October 2006’, 14 December 2006, ICC-01/04-01/06-772 (OA 4) (<http://www.legal-tools.org/doc/1505f7/>) paras 21–22.

²⁹ See ICC, Office of the Prosecutor, ‘OTP Response to Communications Received Concerning Iraq’, 9 February 2006, <http://www.icc-cpi.int/NR/rdonlyres/04D143C8-19FB-466C-AB77-4CDB2FDEBEF7/143682/OTP_letter_to_senders_re_Iraq_9_February_2006.pdf> accessed 11 November 2014.

³⁰ See ICC, Office of the Prosecutor, ‘Situation in Palestine’, 3 April 2012 (<http://www.legal-tools.org/doc/f5d6d7/>).

³¹ That which constitutes a ‘case’ has been defined in the Situation in the Democratic Republic of the Congo as including ‘specific incidents during which one or more crimes within the jurisdiction of the Court seem to have been committed by one or more identified suspects’. See ICC, Pre-Trial Chamber I, Situation in the Democratic Republic of the Congo, Annex 2 to ‘Decision on the Prosecutor’s Application for Warrants of Arrest, article 58’, 10 February 2006, ICC-01/04-01/06-20-Anx2 (*Lubanga*, 10 February 2006 Decision) (<http://www.legal-tools.org/doc/d68b07/>) paras 21, 23, 38.

³² See Schabas, note 12, 660.

³³ Kenya Decision, see note 19, para 45.

³⁴ *Ibid*, para 48. See also paras 50, 182, 188; Côte d’Ivoire, 3 October 2011 Decision, note 26, paras 190–191, 202–204.

³⁵ *Ibid*, paras 50–62 – para 58 in particular. See also Côte d’Ivoire, 15 November 2011 Decision, note 19, 202.

Besides complementarity, gravity constitutes the second ground of inadmissibility under article 17 para. 1, the third being *ne bis in idem*.³⁶ The Prosecutor decided not to seek authorisation to initiate an investigation in Iraq.³⁷ In the Situation on Registered Vessels of Comoros, Greece and Cambodia the Prosecutor originally decided not to initiate an investigation, also on the basis of gravity.³⁸ On 16 July 2015, Pre-Trial Chamber I granted an application for review of this decision filed by the Government of the Union of the Comoros, requesting the Prosecutor to reconsider the decision not to initiate an investigation into the situation.³⁹ Pre-Trial Chambers II and III have held that gravity should be assessed on the basis of whether the individuals or groups of persons that are likely to be the object of an investigation capture those who may bear the greatest responsibility for the alleged crimes.⁴⁰ In addition, the context of the alleged incidents is important for an assessment of gravity.⁴¹ Such an assessment entails both quantitative and qualitative criteria, which Pre-Trial Chamber II outlined in the Kenya Decision as follows: '(i) the scale of the alleged crimes (including assessment of geographical and temporal intensity); (ii) the nature of the unlawful behaviour or of the crimes allegedly committed; (iii) the employed means for the execution of the crimes (i. e., the manner of their commission); and (iv) the impact of the crimes and the harm caused to victims and their families'.⁴² Gravity therefore constitutes a threshold necessary so that the determination that article 53 para. 1 (b) might be met. The question therefore arises as to whether the Prosecutor is able to compare situations in making such a determination. It has been suggested that he or she cannot.⁴³ However, in practice, article 53 para. 1 (b) has been interpreted by the Prosecutor as enabling him or her to compare situations⁴⁴ and crimes.⁴⁵

c) Elements to be considered under subparagraph 1 (c). aa) 'gravity of the crime'. 22
Consideration of the 'gravity' of the case is one of the criteria to be assessed in determining the admissibility of a case before the Court in terms of article 17.⁴⁶ As admissibility pursuant to article 17 has been included in article 53 para. 1 (b) as one of the considerations to be taken into account in ascertaining the existence of a reasonable basis to proceed, the need for repetition may be questioned. Its inclusion may be seen as a reflection of the concern by many of the delegations at the Preparatory Committee and the Rome Conference that the interests underlying the complementarity principle sufficiently permeate the Statute. Pre-ambular paragraph nine refers to 'the most serious crimes of concern to the international community as a whole', whilst article 1 confirms that the Court's jurisdiction covers 'the most serious crimes of international concern'.⁴⁷ Crimes that are not of sufficient gravity for the ICC will be left to possible domestic investigation and prosecution. Regulation 29, para. 2

³⁶ Kenya Decision, see note 19, para 52. See also Côte d'Ivoire, 15 November 2011 Decision, note 19, 192–206.

³⁷ See OTP Response to Communications Received Concerning Iraq, note 29, p. 9.

³⁸ ICC, Office of the Prosecutor, 'Situation on Registered Vessels of Comoros, Greece and Cambodia – article 53(1) Report', 6 November 2014, 142 <http://www.icc-cpi.int/iccdocs/otp/OTP-COM-article_53%281%29-Report-06Nov2014Eng.pdf> accessed 13 November 2014 (*Mavi Marmara* Report). Cf. Buchan (2014) 25 CLF 465.

³⁹ See ICC, Pre-Trial Chamber I, Situation on Registered Vessels of the Union of the Comoros, the Hellenic Republic of Greece and the Kingdom of Cambodia, 'Application for Review pursuant to Article 53(3)(a) of the Prosecutor's Decision of 6 November 2014 not to initiate an investigation in the Situation', 29 January 2015, ICC-01/13-3-Red; ICC, Pre-Trial Chamber I, Situation on Registered Vessels of the Union of the Comoros, the Hellenic Republic of Greece and the Kingdom of Cambodia, 'Decision on the request of the Union of the Comoros to review the Prosecutor's decision not to initiate an investigation', 16 July 2015, ICC-01/13-34.

⁴⁰ Kenya Decision, see note 19, para 60. See also Côte d'Ivoire, 15 November 2011 Decision, note 19, 204.

⁴¹ Kenya Decision, see note 19, para 61.

⁴² *Ibid.*, para. 62.

⁴³ See deGuzman (2009) 32 *FordhamILJ* 1402, 1432.

⁴⁴ See OTP Response to Communications Received Concerning Iraq, note 29, pp. 8–9.

⁴⁵ See ICC, Statement by Chief Prosecutor Luis Moreno-Ocampo, 14 October 2005 (<https://www.legal-tools.org/doc/d9b3cb/>) p. 3. See also, for example, *Mavi Marmara* Report, note 38, 145–146.

⁴⁶ See article 17 para. 1 (d).

⁴⁷ The reference to the commission 'as part of a plan or policy or as part of a large-scale commission of such crimes' in article 8 para. 1 can also be read in this light.

of the Regulations of the Office of the Prosecutor stipulates that the factors to be taken into consideration include the scale, nature and manner of the commission of the crimes and their impact.⁴⁸

- 23 **bb) ‘interests of victims’.** Although the victims of the crimes falling within the jurisdiction of the Court, and members of their families, may have a paramount interest in the investigation and prosecution of the perpetrators of the crimes, this provision recognizes that there are factors which may outweigh this interest. The presence of such factors would exclude a finding that there is a reasonable basis to proceed.⁴⁹
- 24 **cc) ‘substantial reasons to believe’.** It would seem that this phrase opens the possibility for using any available ground as a basis for the argument that further investigation would not serve the interests of justice. Although the exact content of the phrase ‘substantial reasons’ is indeterminate, the Prosecutor may not arbitrarily determine the existence of such a reason in order to avoid an investigation by invoking this provision. He or she has to be able to advance convincing arguments to show the existence of such a reason. The discretionary power which this provision grants the Prosecutor is judicially supervised by article 53 para. 1, which requires the Prosecutor to notify the Pre-Trial Chamber of such a determination. In such an event, the Pre-Trial Chamber is empowered to review the determination *ex officio*.⁵⁰ If it decides to do so, the Prosecutor’s decision requires confirmation by the Pre-Trial Chamber.
- 25 **dd) ‘interests of justice’.** Similar to the discussion on ‘substantial reasons’, the exact content of ‘interests of justice’ is not defined in the Statute.⁵¹ This does not, however, open the door for the Prosecutor to avoid investigation by invoking arbitrary grounds under this provision.⁵² In view of the authority of the Pre-Trial Chamber to review such a decision on its own initiative, or at the request of the Security Council or referring State(s) Party, the Prosecutor must exercise the discretion in a reasonable manner and be able to substantiate a decision not to proceed.⁵³ The concept of the ‘interests of justice’ has been controversial.⁵⁴ A Policy Paper outlining the Prosecutor’s understanding of the concept was issued by the Office of the Prosecutor in 2007.⁵⁵ This document emphasises, *inter alia*, the exceptional nature of the Prosecutor’s discretion under this provision, the presumption in favour of investigation or prosecution (provided that the established criteria have been met) and, perhaps most controversially, the difference between the interests of justice and the interests of peace, the latter of which – according to the Policy Paper – fall outside the Prosecutor’s mandate.⁵⁶ Article 53 para. 2 (c) refers to the age and infirmity of the alleged perpetrator as relevant factors in the determination of whether a prosecution is in the interests of justice. The non-inclusion of the

⁴⁸ ICC, Regulations of the Office of the Prosecutor, 23 April 2009, ICC-BD/05-01-09. See also ICC, Pre-Trial Chamber I, *Prosecutor v. Bahar Idriss Abu Garda*, ‘Decision on the Confirmation of Charges’, 8 February 2010, ICC-02/05-02/09-243-Red (<http://www.legal-tools.org/doc/cb3614/>), paras 31, 188, 203–204.

⁴⁹ ICC, Office of the Prosecutor, ‘Policy Paper on the Interests of Justice’, September 2007 (<http://www.legal-tools.org/doc/bb02e5/>), p. 5.

⁵⁰ See article 53 para. 3 (b).

⁵¹ See Goldston (2010) 8 *JICJ* 383, 392; Danner (2003) 97 *AJIL* 510, 542, both of whom describe the concept of the interests of justice as ‘elastic’.

⁵² See, generally, Turone, in: Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1137, 1159–1162.

⁵³ *Id.* See also Ntanda Nsereko (2005) 3 *JICJ* 124, 140 (‘While the Prosecutor appears to have a good measure of discretion in this respect, he [or she] exercises it with the Pre-Trial Chamber “looking over his [or her] shoulder”’).

⁵⁴ See Danner, note 50, 542; Goldstone and Fritz (2000) 13 *LeidenJIL* 655, 662–663; Jacobs (2007) 6 *LAPE* 317, 327–330.

⁵⁵ See Policy Paper on the Interests of Justice, note 48. For a critique, see Schabas, note 12, 660–666. See also Schabas (2008) 6 *JICJ* 731, 749.

⁵⁶ See also Policy Paper on Preliminary Examinations, note 8, para 69, where it is clearly stated that ‘the interests of justice provision should not be considered a conflict management tool requiring the Prosecutor to assume the role of a mediator in negotiations’.

two factors in article 53 para. 1 (c) has no significance beyond the fact that it will often not be known at the article 53 para. 1 stage of the process who the suspected perpetrator is.

3. Final subparagraph

As indicated above, a decision by the Prosecutor not to proceed with an investigation based solely on article 53 para. 1 (c) cannot be made on arbitrary grounds. That could amount to abuse of prosecutorial discretion. The Prosecutor is obliged to notify the Pre-Trial Chamber of such a decision promptly in writing and with reasons for the conclusion.⁵⁷ The Pre-Trial Chamber, which has certain powers to function as a safeguard for the responsible exercise by the Prosecutor of his or her powers, is then empowered to review the Prosecutor's decision.⁵⁸ This is an important constitutional check deliberately built into the Statute. If the Prosecutor's finding of no reasonable basis to proceed is based on any of the other two criteria provided for in this provision, it is not required that the Prosecutor inform the Pre-Trial Chamber.

Although the Prosecutor is obliged to inform not only the Pre-Trial Chamber but either the Security Council or the referring State(s) Party pursuant to article 53 para. 2 about his conclusion not to prosecute, a similar extension of the Prosecutor's notification duty is not found in article 53 para. 1 itself, but in rule 105 of the Rules of Procedure and Evidence. This rule obliges the Prosecutor to 'promptly inform in writing the State or States that referred a situation under article 14, or the Security Council in respect of a situation covered by article 13, paragraph (b)'. The notification shall contain the Prosecutor's conclusion and reasons.⁵⁹

II. Paragraph 2

1. Chapeau

Article 53 para. 2 comes into play after the completion of the formal investigation by the Prosecutor, who must consider the evidence gathered, weigh it and determine whether it provides 'a sufficient basis for a prosecution'. In practice, however, there may be no formal conclusion of the investigation, until after the confirmation of charges hearing.⁶⁰ In para. 2, the Statute moves away from the situation and focuses on a case. The 'sufficient basis' test essentially entails considering whether the evidence collected would provide a basis on which a court can convict the suspect. In certain jurisdictions this is referred to as the *prima facie* test. Guidance for the determination of sufficiency is provided for in three criteria listed as subparagraphs (a) to (c) in the provision.⁶¹ The Prosecutor may use any of these three separately or in combination to justify a decision not to proceed with a prosecution.

2. The different subparagraphs

a) 'not a sufficient legal or factual basis to seek a warrant or summons under article 58'. Subparagraph (a) is not a mere repetition of the sufficient basis test in the chapeau, insofar as it introduces the 'reasonable grounds' standard in article 58 para. 1 (a). The latter provides that the Pre-Trial Chamber can only issue an arrest warrant if it is satisfied that there are 'reasonable grounds to believe that the person has committed a crime within the jurisdiction of the Court'.⁶² In other words, unless the Prosecutor concludes that there are reasonable

⁵⁷ Rule 105 paras. 4 and 5, Annex I (<http://www.legal-tools.org/doc/8bc6f/>).

⁵⁸ See article 53 para. 3 (b).

⁵⁹ Rule 105 para. 3, Annex I.

⁶⁰ ICC, Appeals Chamber, *Prosecutor v. Thomas Lubanga Dyilo*, 'Judgment on the Prosecutor's appeal against the decision of Pre-Trial Chamber I entitled "Decision Establishing General Principles Governing Applications to Restrict Disclosure pursuant to Rule 81 (2) and (4) of the Rules of Procedure and Evidence"', 13 October 2006, ICC-01/04-01/06-568 (OA 3) (<http://www.legal-tools.org/doc/7813d4/>) para 51.

⁶¹ See also regulation 29, para. 5 of the Regulations of the Office of the Prosecutor, note 47.

⁶² Pre-Trial Chamber I has found that this standard reflects article 5 para. 1 (c) of the European Convention on Human Rights. See *Lubanga*, 10 February 2006 Decision, see note 31, paras 11–12.

grounds to believe that the suspect has committed or participated in the commission of a crime within the Court's jurisdiction under articles 25 and 28 of the Statute, there is no sufficient basis for prosecution. This provision entails that the Prosecutor assess the result of the investigation in detail. It must be ascertained whether the evidence collected satisfies the elements of a crime falling within the jurisdiction of the Court and links one or more perpetrators to the crime. If this is the case, a sufficient legal and factual basis exists. The Prosecutor may then, as a first step in the initiation of the actual prosecution, seek the issuance of a warrant of arrest with a view to obtaining the presence of the suspect for prosecution before the Court.

- 30 b) 'inadmissible under article 17'. If any of the inadmissibility grounds listed in article 17 para. 1 are engaged, the Prosecutor must conclude that there is not a sufficient basis for prosecution. Typically, this will be the situation where the same case is being investigated or prosecuted genuinely by a State which has jurisdiction. Note that the language of this subparagraph covers actual (i.e. not potential) inadmissibility, which can be explained by the stage of the proceedings,⁶³ and as such, is more specific than the standard found in 53(2)(b).⁶⁴
- 31 c) Elements to be considered under subparagraph 2 (c). aa) 'age or infirmity of the alleged perpetrator'. The terms 'interests of justice', 'the gravity of the crime' and 'the interests of victims' referred to in article 53 para. 2 (c) have been considered above in mn 22 *et seq.* As their content in the context of this provision is essentially the same, they will not be dealt with again. Subparagraph 2 (c) does, however, contain an open-ended reference to all circumstances and this differs from article 53 para. 1 which contains an exhaustive list and is therefore broader. In addition, it mentions two criteria that do not appear in the wording of article 53 para. 1 (c). The first is the age or infirmity of the alleged perpetrator. An alleged perpetrator may be so old or ill that it may not serve the interests of justice to proceed to a prosecution.⁶⁵ Each case will have to be determined on its own merits.
- 32 bb) 'his or her role in the alleged crime'. This is the second criterion that is not included in article 53 para. 1 (c). As is the case with all the other criteria, this is equally not determinant. It is possible that the role of a suspect, while satisfying all the elements of the crime, was so insignificant as to make it contrary to the interests of justice to proceed with a prosecution. This could be the case where, for instance, it would be possible to institute a prosecution against an abettor of the alleged crime whilst the true perpetrator remained beyond the reach of justice. To proceed with the prosecution of the abettor could lead to the exposure, including exposure to personal danger, of witnesses who are important to the case against the main perpetrator. The Policy Paper on the Interests of Justice also confirms that 'the alleged status or hierarchical level of the accused' or alleged 'implication in particularly serious or notorious crimes' or 'the significance of the role of the accused' in the overall commission of the accused's involvement constitute factors to identify those who bear the greatest responsibility.⁶⁶

3. Final subparagraph

- 33 Under the final part of article 53 para. 2 (c), the Prosecutor is obliged to notify the Pre-Trial Chamber as well as the Security Council or the referring State(s) Party, depending on

⁶³ See De Meester, note 9.

⁶⁴ See ICC, Pre-Trial Chamber II, Situation in the Republic of Kenya, *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arup Sang*, 'Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to article 19(2)(b) of the Statute', 30 May 2011, ICC-01/09-01/11-101 (<https://www.legal-tools.org/doc/dbb0ed/>), para 50; Safferling, *International Criminal Procedure* (2012) 94; Stegmiller, *Pre-Investigation* (2011), 119–120.

⁶⁵ See Policy Paper on the Interests of Justice, note 48, p. 9.

⁶⁶ *Ibid.*, p. 7.

who referred the situation to the Prosecutor, of his or her determination that there is no sufficient basis for prosecution owing to ‘interests of justice’. By contrast, no such notification obligation exists if the decision not to prosecute is based on any other grounds in article 53(2). Rule 105 para. 1 of the Rules of Procedure and Evidence aims to rectify this.

When notifying the referring body, the Prosecutor must provide reasons for the conclusion, which indicates that the decision must not be arbitrary. The notification must be prompt and in writing.⁶⁷ It should be stressed, however, that no specific time-frame for the notification is envisaged. The notification obligation can in practice be obviated, if the Prosecutor does not render decisions not to investigate or prosecute.⁶⁸

III. Paragraph 3

1. Subparagraph (a)

Subparagraph 3 (a) grants the Pre-Trial Chamber a conditional discretion to review decisions by the Prosecutor not to proceed with investigation or prosecution pursuant to article 53 paras. 1 and 2. Following the review, the Pre-Trial Chamber may request the Prosecutor to reconsider his or her decision. This is a rather controversial provision because it submits prosecutorial discretion to judicial review, while – at the same time – enhancing the transparency of the process.

a) ‘at the request’. The power of the Pre-Trial Chamber to review a decision not to investigate or prosecute must be triggered by a request from the entity which originally referred the situation to the Prosecutor, *i. e.*, either the Security Council or a State Party. The request must be in writing and be supported by reasons, and it must be filed within 90 days following the notification given under rule 105 or 106.⁶⁹ However, delays in the start of or during the investigation, or the absence of notification with regard to the preceding paragraphs of this article, may also irreparably affect the application of this provision.

b) ‘may review’. Once a request to review a decision by the Prosecutor has been lodged by the referring party, the Pre-Trial Chamber has discretion whether to proceed to a review or not. No guidance is given on which considerations the Chamber must base its decision to accede to the review request or not.

In reviewing the Prosecutor’s decision, the Chamber ‘may request the Prosecutor to transmit the information or documents in his or her possession, or summaries thereof, that the Chamber considers necessary for the conduct of the review’.⁷⁰ The Chamber is thus not restricted to the written record of the investigation and the reasons advanced for the Prosecutor’s decision. The Chamber is obliged to take the necessary measures under articles 54, 72 and 93 to protect the information and documents and the safety of witnesses and victims.⁷¹ The Chamber may also seek further observations from a State or the Security Council if they have requested the review of the decision.⁷²

The provision gives no direct guidance as to what the Pre-Trial Chamber should take into consideration when conducting its review. However, Pre-Trial Chamber I has held that it “is

⁶⁷ Rule 106, Annex I.

⁶⁸ Bitti, see note 5, 1208. See also ICC, Pre-Trial Chamber III, Situation in the Central African Republic, ‘Decision Requesting Information on the Status of the Preliminary Examination of the Situation in the Central African Republic’, 30 November 2006, ICC-01/05-6 (<http://www.legal-tools.org/doc/76e607/>) p 4; ICC, Office of the Prosecutor, Situation in the Central African Republic, ‘Prosecution’s Report Pursuant to Pre-Trial Chamber III’s 30 November 2006 Decision Requesting Information on the Status of the Preliminary Examination of the Situation in the Central African Republic’, 15 December 2006, ICC-01/05-7 (<http://www.legal-tools.org/doc/1dd66a/>) para 10.

⁶⁹ Rule 107 para. 1.

⁷⁰ Rule 107 para. 2.

⁷¹ Rule 107 para. 3.

⁷² Rule 107 para. 4.

not tasked with undertaking *ex novo* the entirety of the Prosecutor's assessment under article 53(1)(a) of the Statute. Rather, the scope of review is limited to the issues that are raised in the request for review and have a bearing on the Prosecutor's conclusion not to investigate".⁷³ It could be expected that the Chamber would consider the same criteria provided for the Prosecutor in article 53 para. 1 when reviewing a decision not to start an investigation. Indeed, in requesting the Prosecutor to reconsider the decision not to initiate an investigation into the situation referred to her by the Union of Comoros, Pre-Trial Chamber I made notable reference to "discrepancy" between the conclusion reached by the Prosecutor regarding the gravity of the alleged crimes and the international attention received by this incident.⁷⁴ Likewise, when reviewing a decision not to proceed with a prosecution, the Chamber can be expected to base its review on the same criteria that are set for the Prosecutor in article 53 para. 2. However, this may prove difficult in practice, given that the Pre-Trial Chamber would not have access to the documents on which the Prosecutor's decision is based. A request by the Pre-Trial Chamber for information to be provided under rule 107 of the Rules of Procedure and Evidence can assist in this regard.

- 38 c) '**request the prosecutor**'. The only action that the Pre-Trial Chamber may take, 'if it concludes that the validity of the decision is materially affected by an error, whether it is an error of procedure, an error of law, or an error of fact'⁷⁵, is to request the Prosecutor to reconsider the decision not to prosecute. It cannot replace the Prosecutor's decision, as the very principle of prosecutorial independence enshrined in the Statute would be at stake.
- 39 d) '**reconsider that decision**'. The provision is silent on whether the Prosecutor is bound by a request of the Pre-Trial Chamber. The intention of the provision, however, is not to infringe on the independence of the Prosecutor. Whilst the Prosecutor will indeed be bound to reconsider his or her decision not to investigate or prosecute, he or she would not, strictly speaking, be obliged to come to a different conclusion. If the reconsideration would lead to the same conclusion as before, this would be a permissible exercise of prosecutorial independence, provided that the Prosecutor had properly applied his or her mind in coming to the conclusion.
- 40 In reconsidering the decision, the Prosecutor would be guided by the same considerations contained in paragraphs 1 or 2 of article 53. The decision arrived at would then be delivered pursuant to a paragraph 3 review. This would mean that it could not be said that the decision upon reconsideration was a decision under paragraphs 1 or 2. As such, neither the Security Council nor the referring State(s) Party would be entitled to request a further review.

Once the Prosecutor has taken a final decision, the Pre-Trial Chamber shall be notified in writing of the conclusion of the Prosecutor with reasons. This shall be communicated to all participants in the review.⁷⁶ The Prosecutor is obliged to reconsider the decision as soon as possible when the Pre-Trial Chamber requests its review.⁷⁷

2. Subparagraph (b)

- 41 This paragraph provides an automatic right for the Pre-Trial Chamber to review a decision of the Prosecutor not to investigate or prosecute, if the decision is based solely on considera-

⁷³ ICC, Pre-Trial Chamber I, Situation on Registered Vessels of the Union of the Comoros, the Hellenic Republic of Greece and the Kingdom of Cambodia, 'Decision on the request of the Union of the Comoros to review the Prosecutor's decision not to initiate an investigation', 16 July 2015, ICC-01/13-34, para 10.

⁷⁴ ICC, Pre-Trial Chamber I, Situation on Registered Vessels of the Union of the Comoros, the Hellenic Republic of Greece and the Kingdom of Cambodia, 'Decision on the request of the Union of the Comoros to review the Prosecutor's decision not to initiate an investigation', 16 July 2015, ICC-01/13-34, para 51.

⁷⁵ ICC, Pre-Trial Chamber I, Situation on Registered Vessels of the Union of the Comoros, the Hellenic Republic of Greece and the Kingdom of Cambodia, 'Decision on the request of the Union of the Comoros to review the Prosecutor's decision not to initiate an investigation', 16 July 2015, ICC-01/13-34, para 12.

⁷⁶ Rule 108 para. 3, *ibid*.

⁷⁷ Rule 108 para. 2, *ibid*.

tions of interests of justice.⁷⁸ This is an essential check and balance in the ICC structure without which many States would not have become Parties to the Statute.

The use of the phrase ‘own initiative’ denotes an automatic right of review for the Pre-Trial Chamber. Although the Provision is couched in discretionary terms, it is questionable whether the Chamber does indeed have real discretion. A decision by the Prosecutor not to start an investigation or prosecution solely based on paragraphs 1 (c) or 2 (c) of article 53 respectively, is not effective *per se*.

In order to be valid, such decisions must be confirmed by the Pre-Trial Chamber.⁷⁹ If the Prosecutor’s decision has no validity unless confirmed by the Pre-Trial Chamber, the Chamber is necessarily bound to review all such decisions of the Prosecutor. A different interpretation would result in the potential paralysis of the Court, were the Pre-Trial Chamber to refrain from reviewing such a decision. Rules 109 and 110 of the Rules of Procedure and Evidence provide further guidance on the Pre-Trial Chamber review and decision. In accordance with regulation 48 of the Regulations of the Court, the Pre-Trial Chamber may request the Prosecutor to provide specific or additional information or documents in his or her possession, or summaries thereof, that the Pre-Trial Chamber considers necessary in order to exercise the functions and responsibilities set forth in article 53 para. 3 (b).⁸⁰ The Chamber is under an obligation to take the necessary measures under articles 54, 72 and 93 to protect the information and documents submitted by the Prosecutor and also to protect the safety of witnesses and victims and members of their families. Victims shall be notified by the Court, in accordance with Rule 92 of the Rules of Procedure and Evidence, of any decision made by the Prosecutor not to initiate an investigation or not to prosecute, in order to present their views and concerns.

IV. Paragraph 4

This provision grants the Prosecutor a discretionary power to resurrect an investigation or prosecution that he or she had previously decided had no reasonable basis or sufficient basis on which to proceed. A prior decision not to proceed does not therefore have the effect of making the Prosecutor *functus officio*. 42

There is no explicit power in article 53 pursuant to which the Prosecutor can decide to indeed prosecute and proceed with the initiation thereof. This power is also not explicitly provided elsewhere in the Statute. The manner in which subparagraph 4 is worded, however, confirms that article 53 is based on the obvious presumption that the outcome of the investigation may be a decision by the Prosecutor to initiate a prosecution.⁸¹

The only requirement for the Prosecutor to be able to reconsider a prior decision is that 43 new facts or information become available. If this is the case, they have to be of such a nature as to eliminate the former shortfall in the information which led to the earlier decision not to proceed.

⁷⁸ See article 53 paras. 1 (c) and 2 (c), respectively.

⁷⁹ Cf. Razesberger, *The International Criminal Court: The Principle of Complementarity* (2006) 108 and Wouters, Verhoeven and Demeyere (2008) 8 *ICLRev* 273, at 297, 302, who maintain that the decision not to proceed with an investigation or prosecution gains effect only if the Pre-Trial Chamber reviews the decision of the Prosecutor.

⁸⁰ For examples of the application of this regulation see ICC, Pre-Trial Chamber II, Situation in Uganda, ‘Decision to Convene a Status Conference on the Investigation in the Situation in Uganda in Relation to the Application of article 53’, 2 December 2005, ICC-02/04-01/05-68 (<http://www.legal-tools.org/doc/1adafl/>); Office of the Prosecutor, Situation in Uganda, ‘OTP Submission Providing Information On Status of the Investigation In Anticipation of the Status Conference to be held on 13 January 2006’, 11 January 2006, ICC-02/04-01/05-76 (<http://www.legal-tools.org/doc/5d9c37/>); Pre-Trial Chamber II, Situation in Uganda, ‘Decision on the Prosecutor’s Application that the Pre-Trial Chamber Disregard as Irrelevant the Submission Filed by the Registry on 5 December 2005’, 9 March 2006, ICC-02/04-01/05-147 (<http://www.legal-tools.org/doc/0568f7/>) paras 22, 25.

⁸¹ See the formulation ‘... A decision whether to initiate [a] ... prosecution’.

The provision refers to ‘a decision *whether* to initiate’ (emphasis added), which includes reconsideration by the Prosecutor of positive decisions to investigate and prosecute, not only determinations that there is no reasonable or sufficient basis. In May 2014, for instance, the Prosecutor decided to re-open the preliminary examination of the situation in Iraq.⁸²

⁸² ICC, Office of the Prosecutor, Press Release, ‘Prosecutor of the International Criminal Court, Fatou Bensouda, re-opens the preliminary examination of the situation in Iraq’, 13 May 2014 (<https://www.legal-tools.org/doc/d9d9c5/>).

Article 54

Duties and powers of the Prosecutor with respect to investigations

1. The Prosecutor shall:
 - (a) In order to establish the truth, extend the investigation to cover all facts and evidence relevant to an assessment of whether there is criminal responsibility under this Statute, and, in doing so, investigate incriminating and exonerating circumstances equally;
 - (b) Take appropriate measures to ensure the effective investigation and prosecution of crimes within the jurisdiction of the Court, and in doing so, respect the interests and personal circumstances of victims and witnesses, including age, gender as defined in article 7, paragraph 3, and health, and take into account the nature of the crime, in particular where it involves sexual violence, gender violence or violence against children; and
 - (c) Fully respect the rights of persons arising under this Statute.
2. The Prosecutor may conduct investigations on the territory of a State:
 - (a) In accordance with the provisions of Part 9; or
 - (b) As authorized by the Pre-Trial Chamber under article 57, paragraph 3 (d).
3. The Prosecutor may:
 - (a) Collect and examine evidence;
 - (b) Request the presence of and question persons being investigated, victims and witnesses;
 - (c) Seek the cooperation of any State or intergovernmental organization or arrangement in accordance with its respective competence and/or mandate;
 - (d) Enter into such arrangements or agreements, not inconsistent with this Statute, as may be necessary to facilitate the cooperation of a State, intergovernmental organization or person;
 - (e) Agree not to disclose, at any stage of the proceedings, documents or information that the Prosecutor obtains on the condition of confidentiality and solely for the purpose of generating new evidence, unless the provider of the information consents; and
 - (f) Take necessary measures, or request that necessary measures be taken, to ensure the confidentiality of information, the protection of any person or the preservation of evidence.

Literature: Ambos, K., 'Confidential Investigations (article 54(3)(E) ICC Statute) vs. Disclosure Obligations: The Lubanga Case and National Law', (2009) 12 *NCLRev* 543; Buisman, C., 'The Prosecutor's Obligation to Investigate Incriminating and Exonerating Circumstances Equally: Illusion or Reality?', (2014) 27 *LeidenJIL* 205; Cryer, C., 'Sudan, Resolution 1593, and International Criminal Justice' (2006) 19 *LeidenJIL* 195; Darques-Lane, F., Madec, C. And Godart, S., 'article 54 - Devoirs et pouvoirs du Procureur en matière d'enquêtes' in: J. Fernandez and X. Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale Commentaire article par article*, vol. 2 (2012) 1173; Heinze, A., *International Criminal Procedure and Disclosure* (Duncker and Humblot 2014); Whiting, A., 'Lead Evidence and Discovery before the International Criminal Court: the Lubanga Case', (2009) 14 *UCLAJIL&ForeignAff* 207.

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A. Introduction/General remarks

- Article 54 imposes certain duties on, and affords certain powers to, the ICC Prosecutor with regard to investigations, after he or she has evaluated the information made available and has initiated an investigation in accordance with the provisions of article 53 para. 1. The duties relate to the general approach the Prosecutor must take as regards his or her investigations, while the powers equip the Prosecutor with such tools as he or she may require in order to fulfil the mandate of investigation and prosecution. The powers afforded to the Prosecutor, such as enlisting the assistance of States and entering into agreements with them, are a reflection of the principle of prosecutorial independence, an essential component of any impartial criminal justice system.
- Article 54 attempts to build a bridge between the adversarial common law approach to the role of the Prosecutor and the role of the investigating judge in certain civil law systems. This approach makes good sense in light of the complexity of the cases that the Court adjudicates. Dealing with the most serious crimes of concern to the international community as a whole, the main focus of the Court is to bring to justice those perpetrators at the highest levels of responsibility. To achieve this goal requires considerable investigative effort, involving activities as wide-ranging as exhumation of mass graves and the conduct of forensic work at such sites, locating and interviewing witnesses throughout the world, and accessing and sifting large volumes of governmental records. The Prosecutor is unable to perform these functions successfully without enlisting the assistance of States. Similarly, if suspects or accused had to prepare their own defence, they would in all likelihood also require the assistance of States to gain access to witnesses or evidentiary material. Suspects and accused before international tribunals and courts, however, generally lack the authority and standing to solicit the assistance of States.¹ In this case, the civil law approach of an investigative judge provides a workable solution to the problem of potential inequality between the resources of the Prosecutor and those of the suspect or accused.² The result is a clear and binding mandate for the Prosecutor to investigate both sides of the case equally.
- The influence of the civil law tradition³ is also reflected in the objective that is set for the Prosecutor with regard to his or her investigative activities. Article 54 sets the goal as an

¹ To take a fictitious example, in the prosecution of Slobodan Milošević, the Prosecutor of the ICTY would have had standing to approach the United States’ Department of Defence to request access to classified images taken by defence satellites (for example to locate mass graves), and the request would have stood a good chance of being granted. By contrast, it seems unlikely that a similar request by Milošević for classified material that could assist in his defence would have had any prospect of success.

² See generally, Heinze, *International Criminal Procedure and Disclosure* (2014), 311–322.

³ In the formation of international criminal law it is not overly helpful to label principles as common law or civil law. While it is true that a number of principles do have their origins in these systems, the drafters of the Statute became increasingly aware as the negotiation process proceeded over a period of four years that the evolution of this new discipline of international law requires a pragmatic approach. This means taking the best and most appropriate principles from both legal systems, adapting them where required and creating provisions that are workable and ensure fairness. This same trend can be seen in the International Criminal Tribunal for the former Yugoslavia where the Rules of Procedure and Evidence (<http://www.legal-tools.org/doc/02712f/>) have

effort to establish the truth.⁴ This reflects language used by civil law lawyers with regard to the investigative nature of the criminal law process and the role of the judge. In the common law system, the role of the Prosecutor is not to find the truth – nor, for that matter, is it the ultimate purpose of the criminal law to establish the truth. Rather, in common law jurisdictions, the Prosecutor's function is more often seen as related to aiding the court in its search for justice.

The duties and powers of the Prosecutor received limited attention in the 1994 ILC Draft Statute. Article 26, titled 'investigation of alleged crimes', touched only briefly upon the powers that the Prosecutor would require to perform investigative activities.⁵ The Prosecutor's duties and powers to investigate were equally afforded little attention during the sessions of the Ad Hoc Committee on the Establishment of an International Criminal Court in 1995.

The first major discussions and developments to this end occurred in 1996 during the first year of the Preparatory Committee on the Establishment of an International Criminal Court. It was here that the view was first expressed that the Prosecutor should collect incriminating and exonerating information to establish the truth of the charges and to protect the interests of justice.⁶ Some of the wording that was to later form the basis for provisions contained in article 54 are seen in proposals contained in Volume II (Compilation of Proposals) of the Report.⁷ These developments are reflected in the Zutphen text,⁸ but are scattered amongst other provisions that were later separated into separate articles. The same occurred with the draft that emerged from the final session of the Preparatory Committee and was sent to the Diplomatic Conference in Rome.⁹

Since the establishment of the ICC, considerable attention has been given to developing the duties and powers of the Prosecutor. Instruments have been created, which elaborate upon these elements, including the Rules of Procedure and Evidence,¹⁰ the Regulations of the Court,¹¹ the Regulations of the Office of the Prosecutor¹² and the Code of Conduct of the Office of the Prosecutor.¹³

undergone 39 revisions so far, importing many civil law aspects into a system that was originally almost exclusively common law.

⁴ See article 54 para. 1 (a).

⁵ See paragraph 2 (<http://www.legal-tools.org/doc/f73459/>), conferring a discretionary power on the Prosecutor to request the presence of suspects, victims and witnesses and question them, collect documentary and other evidence, conduct on-site investigations, taking certain measures to protect confidentiality of information and protect persons, and to seek cooperation from States or the UN.

⁶ See paragraph 226 of Vol. I of the Report of the Preparatory Committee on the Establishment of an International Criminal Court, UN Doc. A/51/22 (<http://www.legal-tools.org/doc/e75432/>).

⁷ See Proposal II.B.5 in regard to article 26 (<http://www.legal-tools.org/doc/03b284/>), note 5, p. 113. See also Proposal II.B.6, p. 114.

⁸ See articles 47 para. 2 (d) and (d)*bis*, (e), (g), and 47 para. 6*bis*, and 47 para. 7, Report of the Inter-Sessional Meeting from 19 to 30 January 1998 in Zutphen, The Netherlands, UN Doc. A/AC.249/1998/L.13 (1998), pp. 88–91 (<http://www.legal-tools.org/doc/7ba9a4/>).

⁹ See articles 54 para. 4 (d), (e) and (h), and 54 para. 12, Report of the Preparatory Committee on the Establishment of an International Criminal Court, Draft Statute and Final Act, UN Doc. A/CONF.183/2/Add.1 (1998), pp. 91–92 and 94 (<http://www.legal-tools.org/doc/816405/>).

¹⁰ ICC-ASP/1/3 (<http://www.legal-tools.org/doc/b427fd/>).

¹¹ Regulations of the Court, ICC-BD/01-02-07, 25 May 2004 (<http://www.legal-tools.org/doc/2988d1/>).

¹² Regulations of the Office of the Prosecutor, ICC-BD/05-01-09, 23 April 2009 (<http://www.legal-tools.org/doc/a97226/>).

¹³ Code of Conduct for the Office of the Prosecutor, 5 September 2013 (<http://icc-cpi.int/iccdocs/oj/otp-COC-Eng.PDF>). See generally, Heinze, *International Criminal Procedure and Disclosure* (2014), 471–476.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Chapeau

- 7 The use of the imperative ‘shall’ indicates that no discretion exists for the Prosecutor with regard to what follows in subparagraphs (a), (b) and (c) of paragraph (1).

2. The different subparagraphs

- 8 a) ‘to establish the truth’. Article 54 para. 1 (a) relates to the investigation of the Prosecutor subsequent to the initial evaluation of information and a finding that a reasonable basis does exist on which to proceed under the Statute. The provision obligates the Prosecutor to be as comprehensive as necessary in his or her investigation to establish whether criminal responsibility exists.
- 9 The aim ‘to establish the truth’ provides the framework within which the Prosecutor should mobilise his or her investigative resources. The establishment of truth has been stated as one of the general standards of the Office of the Prosecutor in article 49 of the Code of Conduct for the Office of the Prosecutor.¹⁴ Needless to say, this does not alter the fact that, once the investigation is concluded, the Prosecutor will weigh the result of the investigation in accordance with the ‘sufficient basis’ standard laid down in article 53 para. 2. At that stage, the sufficiency of the basis, and not whether the Prosecutor has determined the truth in the course of the investigation, will be the determining factor as to whether the Prosecutor will let the case progress to the stage of prosecution. The use of this terminology is an indication that, despite the significant presence of elements from the adversarial system in the Statute, the proceedings should not descend to the level of a competition where winning the case is the only goal. The Prosecutor is obliged to serve the interests of justice impartially. This is further reflected in the later provisions contained in subparagraph (a).
- 10 The obligation to extend the investigation ‘to cover all facts and evidence’ is tempered by the requirement that this information be ‘relevant to an assessment of whether there is criminal responsibility’ under the Statute. Any fact or evidence that would contribute to the ultimate determination of whether or not an individual is criminally responsible for the commission of one or more crimes within the jurisdiction of the Court is relevant, and may not be excluded from the ambit of the Prosecutor’s investigation. A question that may arise in this regard is what the consequences should be if further exculpatory evidence comes to light later in the course of a trial. Each case has to be judged solely on its merits. Decisive weight must be given to whether the Prosecutor has fulfilled his or her investigative obligations in good faith. Due regard must also be given to the broad scope of investigations before international criminal tribunals, where significant amounts of evidence are collected, all of which needs to be organised and evaluated. In this process, it is possible to make errors in determining what is relevant and what is not. Something that may not appear remotely relevant at the commencement of a case might, later in the proceedings, indeed turn out to be highly relevant.
- 11 The requirement to ‘investigate incriminating and exonerating circumstances equally’ has been touched upon in the introduction to the discussion of this article.¹⁵ This provision

¹⁴ *Ibid*, article 49.

¹⁵ It is interesting that this requirement does not appear explicitly in the ICTY Statute. The only requirement in this regard appears in Rule 68, which requires the Prosecutor to disclose to the Defence, as soon as practicable, the existence of evidence which in any way tends to suggest the innocence, or mitigate the guilt of the accused, or may affect the credibility of prosecution evidence; see Annex I (<http://www.legal-tools.org/doc/02712f/>). See also ICC, Pre-Trial Chamber I, *Prosecutor v. Callixte Mbarushimana*, ‘Decision on the confirmation of charges’,

places a high responsibility on the Prosecutor. He or she must investigate all aspects of the case.¹⁶ This suggests that, once the Prosecutor determines to proceed to a prosecution, this will be a clear indication that the case has substance. This ought to shield the Court from hearing frivolous cases, or cases that have no chance of a successful conclusion at trial.

b) **‘appropriate measures’**. As regards taking ‘appropriate measures to ensure the effective investigation’, it falls squarely within the Prosecutor’s discretion to determine which measures are appropriate. Appropriateness will differ from case to case. In general it can be said that any measure that is geared to ‘establish the truth’ will be appropriate. Similarly, it is for the Prosecutor to determine what measures are effective. Article 54 paras. 2 and 3 provide for measures that the Prosecutor may employ in his or her investigative activities. It is up to the Prosecutor to decide which measures in the circumstances best advance the goals of the investigation.

Although the title of article 54 states that it deals with investigation, it is clear that its provisions are also relevant to the prosecution stage (‘and prosecution’). Material collected during the investigative phase should be collected with a view to their ultimate utilisation in Court proceedings during the prosecution of the case. If this were not the case, it is conceivable that the Prosecutor could conduct an investigation in full accord with paragraph 1, but be prevented from utilising the material in Court. All investigations must therefore be conducted with the potential prosecution of the case clearly in the mind of the Prosecutor.

The latter part of subparagraph (b) deals with practical matters that the Prosecutor should take into account in his or her efforts to conduct appropriate and effective investigation and prosecution. These matters do not necessarily concern the investigative work directly and can relate to matters ancillary to the actual investigation. The provision stresses that the work of the Prosecutor does not take place in a vacuum, but has a backdrop of crimes on a vast scale that may have resulted in severe trauma for individual witnesses and victims. While the Prosecutor should aim at bringing the perpetrators of crimes to justice, this must be done in a manner that is sufficiently sensitive to the needs of witnesses and victims. The investigation and prosecution of crimes is not a mere intellectual exercise, but should be conducted in such a manner as to not add to the trauma suffered by victims.¹⁷ This is why the provision requires the Prosecutor to show ‘respect’ for the matters mentioned.

c) **‘Fully respect the rights of persons’**. This provision requires that the Prosecutor be cautious in his or her investigations in order not to violate in any manner the rights of any person that are guaranteed by the Statute. The persons referred to include victims, witnesses, suspects and accused.¹⁸ This has also been stated as one of the values and principles of the Office of the Prosecutor in the Code of Conduct for the Office of the Prosecutor.¹⁹

II. Paragraph 2

1. Chapeau

Article 54 para. 2 concerns the Prosecutor’s power to conduct investigations on the territory of States, a function of critical importance to his or her ability to prepare cases and

16 December 2011, ICC-01/04-01/10-465-Red (<http://www.legal-tools.org/doc/63028f/>) para 51, which confirms that the objective of article 54(1)(a) of the Statute is to establish the truth by ‘investigating incriminating and exonerating circumstances equally’; Heinze, *International Criminal Procedure and Disclosure* (2014), 257–258.

¹⁶ It has been argued, alternatively, that defence teams are better placed than the Prosecutor to investigate exonerating circumstances. See Buisman (2014) 27 *LeidenJIL* 205, 223–225.

¹⁷ See Regulation 36(3) of the Regulations of the Office of the Prosecutor, note 11.

¹⁸ See ICC, Pre-Trial Chamber I, *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ‘Decision on article 54(3)(e) Documents Identified as Potentially Exculpatory or Otherwise Material to the Defence’s Preparation for the Confirmation Hearing’, 20 June 2008, ICC-01/04-01/07-621 (<http://www.legal-tools.org/doc/0d8508/>).

¹⁹ See Code of Conduct for the Office of the Prosecutor, note 12, Chapter 4, Section 3. See also Regulations 16, 35(3), 36(2), 36(3), and 59(2) of the Regulations of the Office of the Prosecutor, note 11.

conduct prosecutions. Documentary and other physical evidence relevant to crimes within the Court's jurisdiction will be located on the territory of States, particularly in territorial States, where mass graves, former detention facilities and relevant archives may be found. Potential witnesses, whether displaced or not, reside on the territory of States and will generally not be willing to come to the seat of the Court to give a statement to the representatives of the Prosecutor.

Furthermore, the logistical and cost aspects thereof generally make it more practical for the Prosecutor's representatives to travel to the witness for investigative purposes, rather than to bring the witness to the seat of the Court during the investigation. The Office of the Prosecutor has therefore concluded a number of judicial cooperation agreements with States in order to be able to carry out such activities on their territory.²⁰

- 17 Despite the clear value of having Prosecutor-led investigations on State territory, article 54 para. 2 provide that the Prosecutor may only conduct such investigative steps when they are in accordance with Part 9 on State cooperation or article 57 para. 3 (d) of the Statute. As the discussion below and the commentaries to articles 57 and 99 show, the Prosecutor's power to conduct and control investigations on the territory of States is severely curtailed with regard to both articles 57 and 99. Article 99 para. 1 provides the main rule on the execution of requests for assistance from the Court, including investigative steps on the territory of States. It provides that the execution must be 'in accordance with the relevant procedure under the law of the requested State and, unless prohibited by such law, in the manner specified in the request'. States Parties are obliged under article 88 to ensure that there are procedures *available* under their national law for all of the forms of cooperation which are specified in Part 9 of the Statute, but it is up to States to determine the *nature* of the procedures under national law, as long as all relevant forms of requests are provided for. Although States Parties are under a general obligation under article 86 to fully cooperate with the Prosecutor in his or her investigations, and under article 93 para. 1 to comply with requests to also assist in relation to investigative steps, the requested State may determine through its legal procedures whether representatives of the Prosecutor may be present at, and assist with, the execution of the investigative steps on its territory.
- 18 The use of the word 'may' in the chapeau simply confirms the discretionary power of the Prosecutor to determine how to conduct his or her investigation after it has commenced. 'State' does not necessarily mean State Parties only. Non-State Parties may accept the exercise of jurisdiction by the Court by lodging a declaration with the Registrar pursuant to article 12 para. 3 of the Statute.²¹ Such States are thereby obliged to 'cooperate with the Court without any delay or exception in accordance with Part 9' of the Statute. Insofar as Part 9 is equally binding on States Parties and non-State Parties, there are no compelling reasons why the Pre-Trial Chamber cannot apply article 57 para. 3 (d) to non-State Parties.²²

2. The different subparagraphs

- 19 a) **In accordance with Part 9.** If the Pre-Trial Chamber has not authorised the Prosecutor to take investigative steps within the territory of a State pursuant to article 57 para. 3 (d), his or her power to investigate on the territory of the State depends on the provisions of Part 9 of

²⁰ See, e.g., ICC, Office of the Prosecutor, *Prosecutor v. Jean-Pierre Bemba Gombo*, 'Annex A: Prosecution's Filing of the Judicial Cooperation Agreement with the Government of the Central African Republic into the Record of the Case', 26 March 2010, ICC-01/05-01/08-738-AnxA (<http://www.legal-tools.org/doc/e1207f/>).

²¹ See, for example, the declaration made in 2003 by Côte d'Ivoire: ICC, *Prosecutor v. Laurent Gbagbo*, 'Annexe 16: Déclaration de reconnaissance de la compétence de la CPI datée du 18 avril 2003', ICC-02/11-01/11-129-Anx16 (<http://www.legal-tools.org/doc/101315/>). It is noted that Côte d'Ivoire ratified the Rome Statute on 15 February 2013, thereby becoming a State Party. Article 12 para. 3 declarations have also been made by Ukraine and the Palestinian National Authority. The Office of the Prosecutor found on 3 April 2012 that preconditions for the exercise of jurisdiction had not, however, been met with regard to the latter declaration (see ICC, Office of the Prosecutor, 'Situation in Palestine', 3 April 2012 (<http://www.legal-tools.org/doc/f5d6d7/>)).

²² See article 57 para. 3 (a).

the Statute. As described in the preceding section, article 99 para. 1, on the execution of requests for assistance, provides that the requested State may determine the extent to which the Prosecutor can be present at and assist in the execution of investigative steps on its territory according to the respective procedures under its national law. It was clear during the work of the Preparatory Committee and the Diplomatic Conference that many States prefer to conduct investigative steps on their territory themselves, through their own authorities in accordance with article 93 para. 1.²³ This either serves to keep the ICC Prosecutor entirely out of the investigative process or to reduce the role of his or her representatives to that of mere observers. Article 99 para. 1 ought to apply also to States on whose territory the alleged crimes have been committed, even if there has been no change in regime since the crimes occurred. Needless to say, this has the potential to lead to significant problems for the Prosecution's efforts to investigate in such cases.

Article 99 para. 4 provides a limited exception to the main rule in article 99 para. 1, for investigative steps that can be executed without any compulsive measures. In certain circumstances the Prosecutor may conduct such non-compulsive investigative steps directly on the territory of a State 'where it is necessary for the successful execution of a request' and when it will be '[w]ithout prejudice to other articles' in Part 9. If the requested State is a territorial State, and there has been a determination of admissibility pursuant to article 18 or 19, article 99 para. 4 (a) merely requires that 'all possible consultations with the requested State Party' take place before the Prosecutor may directly execute the requested investigative steps. When the requested State is not a territorial State, article 99 para. 4 (b) provides that the ICC Prosecutor may execute the investigative steps 'following consultations with the requested State Party and subject to any reasonable conditions or concerns raised by that State Party'. If a non-territorial State identifies specific problems with the practical execution of the investigative steps requested, it "shall, without delay, consult with the Court to resolve the matter".²⁴

Article 99 para. 4 does not contain an exhaustive list of investigative steps which can be executed without any compulsory measures, but the chapeau mentions three specific examples of such measures in a non-exhaustive manner:²⁵ first, interviewing a person on a voluntary basis; second, taking evidence from a person on a voluntary basis; and, third, examining, without modifying, a public site or other public place. The voluntary interviewing and taking of evidence include "doing so without the presence of the authorities of the requested State Party if it is essential for the request to be executed". Witness testimony has proven to be a very important source of evidence in cases before the *ad hoc* Tribunals, and almost all statements from potential witnesses are taken in the country where they reside, whether a territorial State or not. Voluntary interviewing is therefore an investigative step with great practical importance.

While physical evidence is often voluntarily provided by persons interviewed by representatives of the Prosecutor (such as video footage, photographs and documents), a larger portion of documentary evidence is generally obtained by prosecutors acting directly through search and seizure operations conducted on the territory of territorial States.

Finally, it is not clear exactly what is meant in article 99 para. 4 by 'examination without modification of a public site or other public place'. It is for the Court to determine how rigidly 'modification' is to be interpreted. It will be very difficult to consider, for example, chemical searches for blood traces in former detention facilities as 'modification'.

b) Authorization by the Pre-Trial Chamber. In the event a State does not comply with the Prosecutor's request for assistance with investigative steps on its territory pursuant to Part 9, the Pre-Trial Chamber may authorise the Prosecutor, pursuant to article 57 para. 3 (d), to take such steps directly – that is to say without the cooperation of that State. This said, such

²³ See subparagraphs (b), (c), (g) and (h).

²⁴ Article 99 para. 4 (b).

²⁵ See the term 'including'.

authorisation may be granted only if the Pre-Trial Chamber has, having regard to the views of the State if possible, determined in that case that ‘the State is clearly unable to execute a request for cooperation due to the unavailability of any authority or any component of its judicial system competent to execute the request for cooperation under Part 9’.

- 25 This second option for investigation by the ICC Prosecutor on State territory is based on the clear *inability* of the State’s judicial system to comply with the Prosecutor’s request. It does not refer to mere *unwillingness* to comply with a request if the judicial system is otherwise able to execute it. There was not sufficient support during the Diplomatic Conference for the view that this provision should cover both situations of inability and unwillingness. Moreover, as situations of unwillingness are much more likely to occur in practice than those of clear inability, it was suggested during the Diplomatic Conference that at least clear unwillingness by *territorial* States should be covered by the provision. It was argued that it was unrealistic to expect that the permanent Court would not encounter consistently unwilling States with no change in government since the alleged crimes occurred, in the same manner as the *ad hoc* Tribunal for the former Yugoslavia has. Delegations did not seem to give sufficient weight to the obstacle that such reluctant governments may constitute to the Court’s case preparation.
- 26 What has been developed in the discussion of article 54 para. 2 above applies when the Court’s jurisdiction has been triggered through a State referral pursuant to article 13 (a) or a *proprio motu* initiation of an investigation by the Prosecutor pursuant to article 13 (c). Security Council referrals of situations to the Court pursuant to article 13 (b) are grounded in Chapter VII. In the two Security Council referrals to the Court to date – the situation in Darfur, Sudan²⁶ and the situation in Libya²⁷ – despite the express wording in the respective Security Council resolutions mandating assistance from situation States and urging non-States Parties to the Statute to cooperate with the Court, securing cooperation has been problematic in practice.²⁸ Indeed, the Pre-Trial Chamber has issued a series of decisions reminding States Parties of their obligation to arrest and surrender the accused under Part IX of the Rome Statute and inviting non-States Parties to cooperate pursuant to Security Council Resolutions 1593²⁹ and 1970.³⁰

²⁶ Operative paragraph 2 of Security Council Resolution 1593 (2005) (<http://www.legal-tools.org/doc/4b208f/>), in which the Council, acting under Chapter VII of the Charter, referred the situation in Darfur to the ICC, provides, in relevant part, as follows: ‘The Security Council [...] 2. [d]ecides that the Government of Sudan and all other parties to the conflict in Darfur, shall cooperate fully with and provide any necessary assistance to the Court and the Prosecutor pursuant to this resolution and, while recognizing that States not party to the Rome Statute have no obligation under the Statute, urges all States and concerned regional and other international organizations to cooperate fully’.

²⁷ Operative paragraph 5 of Security Council Resolution 1970 (2011) (<http://www.legal-tools.org/doc/00a45e/>), in which the Council referred the situation in Libya to the ICC, adopts similar wording to Resolution 1593, *i. e.* ‘The Security Council [...] 5. [d]ecides that the Libyan authorities shall cooperate fully with and provide any necessary assistance to the Court and the Prosecutor pursuant to this resolution and, while recognizing that States not party to the Rome Statute have no obligation under the Statute, urges all States and concerned regional and other international organizations to cooperate fully with the Court and the Prosecutor’.

²⁸ Cryer has questioned whether the Council or States acting individually are able to provide the necessary measures to ensure such cooperation. See Robert Cryer (2006) 19 *LeidenJIL* 195, 221–222.

²⁹ For recent findings by Pre-Trial Chamber II to this end, see Office of the Prosecutor, ‘Nineteenth Report of the Prosecutor of the International Criminal Court to the UN Security Council Pursuant to UNSCR 1593’, paras 21–26, available at <http://www.icc-cpi.int/iccdocs/otp/otp-19th.UNSC-Dafur-06-14-Eng.pdf>, accessed 31 October 2014.

³⁰ For a list of decisions urging compliance with Resolution 1970, see ICC, Pre-Trial Chamber I, *Prosecutor v. Saif-Al Islam Gaddafi and Abdullah al-Senussi*, ‘Decision on matters related to Libya’s duties to cooperate with the Court’, 11 July 2014, ICC-01/11-01/11-563, para 2, footnote 6, available at <http://www.icc-cpi.int/iccdocs/doc/doc1801733.pdf>, accessed 31 October 2014.

III. Paragraph 3

1. Chapeau

Article 54 para. 3 contains a mixed list of investigative steps which the Prosecutor is empowered to take and other prosecutorial action which may assist the case preparation process. The word ‘may’ in the chapeau should be interpreted as ‘shall have the power to’, a term which is also used in article 18 para. 2 of the ICTY Statute. Despite similarities in the basic formulation of the Prosecutor’s investigative powers in the ICC and ICTY Statutes, the systems of execution of investigative steps differ fundamentally in the two jurisdictions, as shown in section II above. Whilst the ICTY Prosecutor may conduct all investigative steps grounded in the ICTY Statute directly on the territory of States, the ICC Prosecutor can only, as a general rule, participate in the execution of requests for investigative steps to the extent permitted by the procedures which the requested State has adopted under its national law. The prosecutorial powers expressed in article 54 para. 3 (a) and (b) must therefore be interpreted in light of the realities of Part 9 and article 57 para. 3 (d) of the ICC Statute.

2. The different subparagraphs

a) ‘Collect and examine evidence’. Subparagraph (a) simply confirms the obvious powers to ‘[c]ollect and examine evidence’, the Prosecutor’s actual ability to *collect* evidence being narrowly defined by the Statute’s cooperation regime, as discussed above. The Prosecutor may participate directly in the evidence collection process on the territory of States only if the requirements of either article 99 paras. 1 and 4 or article 57 para. 3 (d) are satisfied. The modalities of the collection of evidence, including, for example, the format of recording evidence, are governed by Section III of the ICC’s Rules of Procedure and Evidence.

b) ‘Request the presence of and question persons’. Subparagraph (b) empowers the Prosecutor to ‘[r]equest the presence of and question persons being investigated, victims and witnesses’. In comparison, article 18 para. 2 of the ICTY Statute grants the Prosecutor the power ‘to question suspects, victims and witnesses’. Voluntary interviewing is considered an investigative step ‘which can be executed without any compulsory measures’ pursuant to article 99 para. 4 of the ICC Statute. This explains the limitation in the reference to ‘[r]equest the presence of’ in subparagraph (b), a restriction which would seem to also apply when the Prosecutor wants to receive oral testimony at the seat of the Court (emphasis added).³¹

c) and d) ‘Seek the cooperation’ and enter ‘arrangements or agreements’. Subparagraph (c) provides that the Prosecutor may ‘[s]eek the cooperation of any State or intergovernmental organization or arrangement in accordance with its respective competence and/or mandate’. The need for such cooperation is self-evident and the ability of the Prosecutor to seek it clearly within his or her inherent power.³²

Ancillary to this is subparagraph (d), which authorises the Prosecutor to ‘[e]nter into such arrangements or agreements, not inconsistent with this Statute, as may be necessary to facilitate the cooperation of a State, intergovernmental agency or person’.

The scope of this provision has been defined to an extent by regulation 107 of the Regulations of the Court.³³ While the Prosecutor clearly possesses the authority to negotiate a cooperation agreement with a State not party to the Statute, or with an intergovernmental agency, this authority is limited only to cooperation agreements or arrangements regarding

³¹ See also article 15 para. 2.

³² Cf. Safferling, *International Criminal Procedure* (2012), 267.

³³ 26 May 2004, as amended on 14 June 2007, 14 November 2007, and 2 November 2011, Official Documents of the International Criminal Court, ICC-BD/01-03-11.

subject matter falling exclusively within the competency of the Prosecutor. Where the subject matter of the agreement goes beyond this, and extends to cooperation matters falling also within the competence of other organs of the Court, sub-regulation 107(1) clearly provides that only the President may conclude such agreements.³⁴

- 33 According to sub-regulation 107(2), it appears that the Prosecutor needs to inform the President of any cooperation agreement or arrangement that he or she intends to negotiate with a State or intergovernmental agency, except where it would be 'inappropriate for reasons of confidentiality'.
- 34 Within the Office of the Prosecutor, the responsibility for establishing a network of international cooperation, complete with cooperation agreements and arrangements pursuant to article 54 para. 3(d), has been assigned to a Jurisdiction, Complementarity and Cooperation Division.³⁵ This was deemed necessary as a result of the ICC's lack of a direct enforcement arm that would require cooperation from States and organisations.³⁶
- 35 e) 'Agree not to disclose'. Subparagraph (e) concerns the Prosecutor's right to non-disclosure of 'documents or information that the Prosecutor obtains on the condition of confidentiality and solely for the purpose of generating new evidence,³⁷ unless the provider of the information consents' to disclosure. Such information may emanate from individuals, governments or organisations. In the case of governments, material is often protected on the basis of national security interests.
- 36 In the *Lubanga* case, the first case before the ICC, the Prosecutor sought to limit disclosure of evidence collected in the course of the DRC investigation on the basis of evidence obtained from international and non-international organisations with the promise of confidentiality.³⁸ After postponing the beginning of the scheduled trial, the Trial Chamber decided to stay the proceedings in light of the Prosecutor's failure to disclose exculpatory evidence on the basis of fair trial.³⁹ This was later confirmed by the Appeals Chamber.⁴⁰ However, the trial was ultimately allowed to proceed, after the United Nations and the other information providers

³⁴ 'All agreements or arrangements with a State not a party to the Statute, or any intergovernmental organization, setting out a general framework for cooperation, on matters within the competency of more than one organ of the Court shall be negotiated under the authority of the President ...' (emphasis added).

³⁵ These cooperation arrangements include both formal agreements (see, e.g., the judicial cooperation agreement between the Office of the Prosecutor and the Central African Republic, note 19) and informal agreements (e.g. ICC, *Prosecutor v. Thomas Lubanga Dyilo*, 'Annex 2: Memorandum of Understanding Between the United Nations and the International Criminal Court Concerning Cooperation between the United Nations Organization Mission In the Democratic Republic of the Congo (MONUC) and the International Criminal Court' (<http://www.legal-tools.org/doc/e1d7f7/>)). Operative paragraph 1 of Security Council Resolution 1925 (2010) (<http://www.legal-tools.org/doc/7bdcdd/>), 'in view of the new phase [...] reached' in the country, renamed MONUC as the United Nations Organization Stabilization Mission in the Democratic Republic of the Congo (MONUSCO).

³⁶ See the Annex to 'Paper on some policy issues before the Office of the Prosecutor' September 2003 (<http://www.legal-tools.org/doc/f53870/>).

³⁷ ICC, Trial Chamber I, *Prosecutor v. Thomas Lubanga Dyilo*, 'Decision on the consequences of non-disclosure of exculpatory materials covered by article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008', 13 June 2008, ICC-01/04-01/06-1401 (<http://www.legal-tools.org/doc/e6a054/>) (*Lubanga*, 13 June 2008 Decision), paras 71–73. See also ICC, Pre-Trial Chamber I, *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, 'Decision Requesting Observations concerning article 54 (3)(e) Documents Identified as Potentially Exculpatory or Otherwise Material for the Defence's Preparation for the Confirmation Hearing', 2 June 2008, ICC-01/04-01/07-543 (<http://www.legal-tools.org/doc/1922a9/>) (*Katanga*, 2 June 2008 Decision), paras 9–12 and ICC, Appeals Chamber, *Prosecutor v. Thomas Lubanga Dyilo*, 'Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I entitled 'Decision on the consequences of non-disclosure of exculpatory materials covered by article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008', 21 October 2008, ICC-01/04-01/06-1486 (<http://www.legal-tools.org/doc/485c2d/>) (*Lubanga*, Appeal Judgment), para 55.

³⁸ See, generally, Ambos (2009) 12 *NethCLRev* 543, 543–556; Heinze, *International Criminal Procedure and Disclosure* (2014), 454–458; Whiting (2009) 14 *JILFAff* 207.

³⁹ See *Lubanga*, 13 June 2008 Decision, note 36, paras 93–95.

⁴⁰ See *Lubanga*, Appeal Judgment, note 36.

consented to the disclosure of the confidential evidence provided.⁴¹ The case highlighted the potential conflict that may exist between article 53(3)(e) and article 67(2) of the Statute. The Chamber rejected the Prosecutor's argument that article 67(2) does not apply to evidence obtained on the basis of confidentiality and held that, if used appropriately, the tension between the two provisions would be 'negligible'.⁴² Furthermore, the Appeals Chamber, in setting out the procedure to be followed, found that if confidentiality had been promised, a Chamber could not order disclosure, but the issue would be litigated *ex parte* in the presence of the Prosecutor alone. However, in case the information provider does not provide consent to disclose material to the defence, then 'the Chamber, while prohibited from ordering the disclosure of the material to the defence, will have to determine whether and, if so, which counter-balancing measures can be taken to ensure that the rights of the accused are protected and that the trial is fair, in spite of the non-disclosure of the information'.⁴³

Subparagraph (e) recognises a qualified prosecutorial right to non-disclosure, which is binding on the Court as well as the Assembly of States Parties in its adoption or amendment of Rules of Procedure and Evidence.⁴⁴

The binding nature of confidentiality of such material on the Court is recognised in the ICC Rules of Procedure and Evidence. In rules 48, 81 and 107, the Court is placed under an obligation to take steps to protect the confidentiality of article 54 material.

Rule 82 of the ICC Rules of Procedure and Evidence has further elaborated this issue.⁴⁵ The Prosecutor may not subsequently introduce such material into evidence without first obtaining approval from the provider.⁴⁶ If such material is introduced, the Court may not require the production of additional material from the provider, nor may it require the provider to testify about the material.⁴⁷ If the Prosecutor introduces such material through a witness, the Court cannot compel the witness to answer questions regarding the material if the witness declines to answer on grounds of confidentiality of the material.⁴⁸ Except for the limitations imposed by sub-rules 2 and 3, the accused's right to challenge such material if it is introduced by the Prosecutor remains unaffected.⁴⁹

Rule 83, sub-rule 5 provides that the defence may apply to the Chamber that defence material which it intends to introduce into evidence, and which has been provided to the defence under the same conditions as those set forth in article 54 para. 3 (e), shall *mutatis mutandis* be subject to sub-rules 1, 2 and 3 of Rule 82.

f) 'to ensure the confidentiality'. The last subparagraph of article 54 authorises the Prosecutor to take or request that necessary measures be taken 'to ensure the confidentiality of information, the protection of any person or the preservation of evidence'.⁵⁰ Absent subparagraph (f), all three powers listed must have been considered inherent insofar as they are essential to the functioning of an independent Office of the Prosecutor. Without ensuring the confidentiality of information, confidence in the integrity of the Prosecutor's work would quickly be undermined and the ability of the Prosecutor to prepare and prosecute cases would grind to an early halt. The provision is, of course, subject to disclosure orders by the Court pursuant to the Statute and Rules of Procedure and Evidence.

⁴¹ See ICC, Trial Chamber I, *Prosecutor v. Thomas Lubanga Dyilo*, 'Reasons for Oral Decision lifting the stay of proceedings', 23 January 2009, ICC-01/04-01/06-1644 (<http://www.legal-tools.org/doc/94e831/>).

⁴² See *Lubanga*, 13 June 2008 Decision, note 36, para 76.

⁴³ See *Lubanga*, Appeal Judgment, note 36, para. 48. See also ICC, Trial Chamber IV, *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus*, 'Decision on article 54(3)(3) documents', 23 November 2011, ICC-02/05-03/09-259 (<http://www.legal-tools.org/doc/a65c7a/>) paras 15–16.

⁴⁴ See ICTY Rule 70.

⁴⁵ See *Katanga*, 2 June 2008 Decision, note 36, para 20.

⁴⁶ Sub-rule 1.

⁴⁷ Sub-rule 2.

⁴⁸ Sub-rule 3.

⁴⁹ Sub-rule 4.

⁵⁰ See generally Darques-Lane, Madec, Godart, in: Fernandez and Pacreau (eds), *Statut de Rome de la Cour Pénale Internationale Commentaire article par article* (2012).

- 42 The importance of respecting the conditions of confidentiality imposed by a provider of evidence or material has been recognised in the Rules of Procedure and Evidence. Rule 48, sub-rule 2 imposes an obligation on the Pre-Trial Chamber to take measures necessary to protect article 54 material. Sub-rule 3 confirms the primacy of the confidentiality of such material.
- 43 In rule 81, dealing with disclosure, sub-rule 3 specifically provides that material protected under article 54 shall not be disclosed, except as provided in rule 54. Sub-rule 4 provides that the Court must take steps of its own motion, or at the request of the Prosecutor, to protect article 54 material.
- 44 Similarly, in rule 107, dealing with a review of the Prosecutor's decision not to institute a prosecution, sub-rule 3 imposes an obligation on the Court to protect article 54 material.
- 45 As regards the next power listed in subparagraph (f), 'the protection of any person',⁵¹ article 68 of the Statute deals with the protection of victims and witnesses. Article 68 para. 1 provides that the *Court* 'shall take appropriate measures to protect the safety, physical and psychological well-being, dignity and privacy of victims and witnesses'. It continues: 'The *Prosecutor* shall take such measures particularly during the investigation and prosecution of such crimes. These measures shall not be prejudicial to or inconsistent with the rights of the accused and a fair and impartial trial' (emphasis added). Article 68 para. 4 states that the Victims and Witnesses Unit of the Registry 'may advise the Prosecutor and the Court on appropriate protective measures [and] security arrangements ... As referred to in article 43, paragraph 6', which in turn provides that the Unit 'shall provide, in consultation with the Office of the Prosecutor, protective measures and security arrangements, counselling and other appropriate assistance for witnesses, victims who appear before the Court and others who are at risk on account of testimony given by such witnesses'. The Prosecutor's *obligation* to take protective measures rests on article 68 para. 1, while his or her discretionary *power* to take such measures is expressed in article 54 para. 3 (f). The Prosecutor is accordingly granted a witness protection authority alongside that of the Court and Victims and Witnesses Unit.
- 46 Subparagraph (f) finally provides that the Prosecutor may take necessary measures to ensure 'the preservation of evidence'. Rule 10 of the Rules of Procedure and Evidence further confirms this provision.⁵² This is a particularly useful provision, supplementing articles 18 para. 6, 19 para. 8 (a) and 56 in a significant manner. Article 18 para. 6 concerns the need to preserve evidence when the Prosecutor has had to defer an investigation pursuant to article 18 on preliminary rulings regarding admissibility, or pending such a preliminary ruling by the Pre-Trial Chamber. Article 19 para. 8 (a) concerns the need to preserve evidence pending a ruling by the Court on jurisdiction or admissibility pursuant to articles 17 and 19. Article 56 deals with the situation where an investigation presents 'a unique opportunity to take testimony or a statement from a witness or to examine, collect or test evidence, which may not be available subsequently for the purposes of a trial' or where investigative measures are required to preserve evidence that would be essential for the defence at trial. Apart from article 56 para. 3 (a), which allows the Pre-Trial Chamber to take steps to preserve evidence *ex officio*, articles 18 para. 6 and 19 para. 8 (a) require that the Prosecutor seek authority from the Pre-Trial Chamber before *he or she* takes the measures, whilst article 56 para. 1

⁵¹ See ICC, Pre-Trial Chamber I, *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, 'Decision on the Set of Procedural Rights Attached to Procedural Status of Victim at the Pre-Trial Stage of the Case' 13 May 2008, ICC-01/04-01/07-474 (<http://www.legal-tools.org/doc/285b52/>) para 44. See also ICC, Appeals Chamber, *Prosecutor v. Germain Katanga*, 'Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I entitled 'First Decision on the Prosecution Request for Authorisation to Redact Witness Statements' – Dissenting Opinion of Judge Georgios M. Pikis', 13 May 2008, ICC-01/04-01/07-475 (<http://www.legal-tools.org/doc/a76f99/>), para 11; *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, 'Judgment on the appeal of Mr. Germain Katanga against the decision of Pre-Trial Chamber I entitled 'Decision on the Defence Request Concerning Languages'', 27 May 2008, ICC-01/04-01/07-522 (<http://www.legal-tools.org/doc/62dbba/>).

⁵² 'The Prosecutor shall be responsible for the retention, storage and security of information and physical evidence obtained in the course of the investigations by his or her Office.' ICC-ASP/1/3.

requires that the Prosecutor has requested measures from the Pre-Trial Chamber before the *Chamber* may take them. Article 54 para. 3 (f), on the other hand, is not restricted to any particular phase of the case preparation or prosecution and does not expressly require that the Prosecutor seek authority from the Pre-Trial Chamber or the Court. Moreover, it is the Prosecutor, not the Court, that is authorised to take the necessary steps to preserve evidence. Read in the light of articles 18 para. 6, 19 para. 8 and 56, as well as the interests of justice and trial efficiency and integrity underlying the provisions, article 54 para. 3 (f) should be interpreted to include evidence preservation measures both for the purpose of best utilising a unique opportunity to obtain important evidence and of countering a significant risk that such evidence may not be subsequently available. One example of evidence preservation under this subparagraph would be the situation where the Security Council requests the Court to defer its investigation and prosecution of a situation pursuant to article 16 of the Statute after the Prosecutor has started the preliminary examination or investigation. The Prosecutor would normally turn to the Pre-Trial Chamber before taking measures pursuant to subparagraph (f).

Article 55

Rights of persons during an investigation

1. In respect of an investigation under this Statute, a person:
 - (a) Shall not be compelled to incriminate himself or herself or to confess guilt;
 - (b) Shall not be subjected to any form of coercion, duress or threat, to torture or to any other form of cruel, inhuman or degrading treatment or punishment;
 - (c) Shall, if questioned in a language other than a language the person fully understands and speaks, have, free of any cost, the assistance of a competent interpreter and such translations as are necessary to meet the requirements of fairness; and
 - (d) Shall not be subjected to arbitrary arrest or detention, and shall not be deprived of his or her liberty except on such grounds and in accordance with such procedures as are established in this Statute.
2. Where there are grounds to believe that a person has committed a crime within the jurisdiction of the Court and that person is about to be questioned either by the Prosecutor, or by national authorities pursuant to a request made under Part 9, that person shall also have the following rights of which he or she shall be informed prior to being questioned:
 - (a) To be informed, prior to being questioned, that there are grounds to believe that he or she has committed a crime within the jurisdiction of the Court;
 - (b) To remain silent, without such silence being a consideration in the determination of guilt or innocence;
 - (c) To have legal assistance of the person's choosing, or, if the person does not have legal assistance, to have legal assistance assigned to him or her, in any case where the interests of justice so require, and without payment by the person in any such case if the person does not have sufficient means to pay for it; and
 - (d) To be questioned in the presence of counsel unless the person has voluntarily waived his or her right to counsel.

Directly relevant Rules of Procedure and Evidence: Rules 111, 112 and 113

Literature: The rights of suspects under international law: Amnesty International, *Fair Trials Manual* (Dec. 1998, AI Index: POL 30/02/98); Ayat, M., 'Le silence prend la parole: la percée du droit de se taire en droit international pénal', (2001) *Revue de Droit International et de Droit Comparé* 237; Delmas-Marty, M., *Procès pénal et droits de l'homme* (1992); Harris, D., 'The Right to a Fair Trial in Criminal Proceedings as a Human Right', (1967) 16 *ICLQ* 352; La Rosa, A.-M., *Juridictions pénal internationales* (2003); Noor Muhammad, J.N.A., 'The Due Process Rights of Persons Accused of Crime', in: L. Henkin (ed.), *The International Bill of Human Rights: The Covenant on Civil and Political Rights* (1981) 153; Nowak, M., *UN Covenant on Civil and Political Rights: CCPR Commentary* (1993) 153 et seq., 233 et seq.; Van Dijk, P., *The Right of the Accused to a Fair Trial under International Law* (1983); Rodley, N.S., *The Treatment of Prisoners under International Law* (2nd ed. 1999); UN Centre for Human Rights, Crime Prevention and Criminal Justice Branch, *Human Rights and Pre-Trial Detention* (1994, UN Sales No.E.94.XIV.6); Wladimiroff, M., 'Rights of Suspects and Accused', in: G. McDonald and O. Swaak-Goldman (eds.), *Substantive and Procedural Aspects of International Criminal Law* (1993) 419; The rights of suspects under the European Convention on Human Rights: O'Boyle, M. et al, *The Law of the European Convention on Human Rights* (2nd ed. 2005); Murdoch, J.L., *article 5 of the European Convention on Human Rights: The Protection of Liberty and Security of Person* (1994); The rights of suspects in comparative law: Andrews, J.A., *Human Rights in Criminal Procedure: A Comparative Study* (1982); Bassiouni, M.C., 'Human Rights in the Context of International Criminal Justice: Identifying International Procedural Protections in National Constitutions', (1993) 3 *DukeILJ* 240; Cassese, A. And Delmas-Marty, M. (eds.), *Juridictions nationales et crimes internationaux* (2002); Delmas-Marty, M. (ed.), *Procédures pénales d'Europe* (1995) [Revised English edition: Delmas-Marty, M. And Spencer, J.R. (eds.), *European Criminal Procedures* (2002)]; Livingstone, S. *Towards a Procedural Regime for the International Criminal Court* (2002); Van Den Wyngaert, C. (ed.), *Criminal Procedure Systems in the European Community* (1993); The rights of suspects under the Nuremberg and Tokyo Charters and Allied courts and military commissions: Ferencz, B., 'Nuremberg Trial Procedure and the Rights of the Accused', (1948) 39 *JCL&Criminology* 144; Minear, R., *Victor's Justice: The Tokyo War Crimes Trial* (1971); Morris, V. And Scharf, M.P., *The International Criminal Tribunal for Rwanda* (1998); Ann Tusa, Ann

and Tusa, J., *The Nuremberg Trial* (1995); Wallach, E., 'The Procedural and Evidentiary Rules of the Post-World War II War Crimes Trials: Did They Provide an Outline for International Legal Procedure?', (1999) 37 *ColJTransnatL* 864; The rights of suspects under the Yugoslavia and Rwanda Statutes: Beresford, S., 'The International Criminal Tribunal for the Former Yugoslavia and the Right to Legal Assistance', (1998) 2 *IJHumRts* 49; Cassese, A., 'Opinion: The International Tribunal for the Former Yugoslavia and Human Rights', (1997) 9 *EurHumRtsLRev* 329; Mandiaye Niang, M., 'The Right to Counsel before the International Criminal Tribunal for Rwanda', (2002) 13 *CLF* 323; Morris, V. And Scharf, M.P., *An Insider's Guide to the International Criminal Tribunal for the Former Yugoslavia: A Documentary History and Analysis* (1995) 197 *et seq.*; *id.*, 1 *The International Criminal Tribunal for Rwanda* (1998) 471 *et seq.*; La Rosa, A.-M., 'Réflexions sur l'apport du Tribunal pénal international pour l'ex-Yugoslavie au droit à un process équitable', (1997) 101 *Revue General de Droit Internationale Public* 960; Wladimiroff, M., 'The Assignment of Counsel before the International Criminal Tribunal for Rwanda', (1999) 12 *LeidenJIL* 957. The rights of suspects under the Rome Statute and the statutes of other international criminal courts: Fernández de Gurmendi, S.A. And Friman, H., 'The Rules of Procedure and Evidence of the International Criminal Court', (2000) 3 *YbILHumL* 289; Friman, H., 'Investigation and Prosecution', in: R. S. Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 493, 504 *et seq.*, 512 *et seq.*; Gallant, K., 'Individual Rights in a New International Organization: The Internatioinal Criminal Court', in: M. C. Bassiouni, *International Criminal Law* (2nd ed. 1999) 693; La Rosa, A.-M., *Juridictions pénales internationales – la procédure et la preuve* (2003); Lawyers Committee for Human Rights, *Pre- Trial Rights in Rules of Procedure and Evidence* (1999); Zappalà, S., 'The Rights of Persons during an Investigation', in: A. Cassese et al., *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1181.

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A. Introduction/General remarks

Little or no attention was given to the rights of suspects or other persons during criminal investigations in any of the proposals for permanent international criminal courts until the establishment of the International Criminal Tribunals for the former Yugoslavia and Rwanda. They also received similarly short shrift in the proceedings before the International Military Tribunal at Nuremberg, the International Military Tribunal for the Far East or Allied Courts and military commissions in the aftermath of the Second World War¹. However, as the International Law Commission recognized in its commentary on article 26 of the ILC Draft Statute, the forerunner of article 55, '[t]he rights of the accused ... would have little meaning in the absence of respect for the rights of the suspect during the investigation, for example, the right not to be compelled to confess to a crime'². Thus, article 55 incorporates developments concerning international courts and codifies recent interpretation by treaty monitoring bodies and long- standing scholarly assessments that many of the rights recognized in these instru-

¹ For the history and the texts of many of the proposals for an international criminal court, see Hall (1998) *IRRC*, No. 322, 57; Memorandum by the Secretary-General, Historical Survey of the Question of International Criminal Jurisdiction (Historical Survey), UN Doc.A/CN.4/7/Rev.1 (1949). See also Bassiouni (1997) 10 *HarvHumRtsJ* 11.

² See 1994 ILC Draft Statute, commentary to article 26, p. 93.

ments as applying to the accused also apply to suspects (for the definition of this term, which is not used in the Rome Statute, see mn 10)³. Article 55, a mini-human rights convention for the period before trial, breaks new ground by stating that some of these rights also apply to other persons involved in the investigation, such as victims and witnesses⁴. It should be noted that this provision, while important, was not the first to enshrine such protection. Indeed, the regulations which set up the Special Crimes Panels in Timor Leste contained extensive protection for suspects. In many respects, this Regulation went beyond article 55, although many of its provisions are limited in application to suspects from the moment of arrest and accused⁵. Moreover, the Statute of the Special Tribunal for Lebanon has a similar provision which mirrors the content of article 55⁶. Presumably, the Prosecutor should wish, in theory, to act consistently with these broader international standards and the Court could recommend amendment of the Rules of Procedure and Evidence to incorporate such guarantees, to the extent that they provide greater protection than other international standards. However, as will be seen below (mn. 4), in practice, the scope of article 55 has been interpreted rather narrowly by the Chambers.

- 2 In addition to article 55, certain other provisions in the Rome Statute protect the rights of persons during investigations, directly or indirectly, including, in particular, article 54 para. 1 (c) requiring the Prosecutor '[f]ully [to] respect the rights of persons arising under this Statute'; article 56, defining the role of the Pre-Trial Chamber in relation to a unique investigative opportunity; article 57 para. 3 (b), seeking cooperation to assist in the preparation of a defence; article 59 para. 2 (c) ensuring that a person's rights have been respected by national authorities; article 60 para. 1, requiring the Pre-Trial Chamber to determine upon surrender of a person to the Court that he or she was informed of his or her rights; article 66, guaranteeing the presumption of innocence; article 68, protecting victims and witnesses and permitting their participation in the proceedings; and article 69 para. 7, excluding evidence obtained in violation of the Rome Statute or internationally recognized human rights. However, there are a number of important rights which suspects have under international law which are not expressly recognized in article 55 or in other parts of the Rome Statute (see mn 16).
- 3 The provisions of article 55, since they will be directly applicable to States Parties conducting questioning of suspects and other persons during investigations, will inevitably have an impact on national law and practices in other cases involving crimes of lesser magnitude. Indeed, the impact of article 55 on State law and practice may well prove to be one of the more significant aspects of the Rome Statute. All States Parties will need to ensure that the rights of persons questioned by their authorities at the request of the Prosecutor are assured. States have begun to include such provisions in national implementing legislation or draft implementing legislation⁷. However, so far, only a few States have done so. Indeed, the hopes expressed in the First Edition of this Commentary (under Margin No. 3) concerning the implementation of the Rome Statute have been disappointed as much of that draft and enacted legislation is flawed⁸.

³ The right to a fair trial on a criminal charge (*accusation*) 'does not arise only upon the formal lodging of a charge but rather on the date on which State activities substantially affect the situation of the person charged'. Nowak, *U.N. Covenant on Civil and Political Rights: CCPR Commentary* (1993) 245. See also Noor Muhammad, in: Henkin (ed.), *The International Bill of Rights* (1981) 145-146.

⁴ One commentator has stated that article 55 is 'the most advanced text on the protection of pre-trial rights of persons during international criminal investigations'. Zappalà, in: Cassese et al. (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1183.

⁵ Section 6.2 and 6.3 of UNTAET Reg. 2000/25, 14 Sep. 2001, recognizes an extensive number of rights of suspects from the moment of arrest and some '[a]t every stage of the proceedings', which, presumably, applies to suspects not under arrest who are being questioned, although in some respects other international standards provide suspects with greater protection.

⁶ Article 15, Statute of the Special Tribunal for Lebanon.

⁷ The text of draft and enacted legislation implementing the Rome Statute, together with commentaries on that legislation, can be found at: <<http://www.amnesty.org/icc>>.

⁸ For a recent critique of implementing legislation and draft implementing legislation, see Amnesty International, *International Criminal Court: The failure of states to enact effective implementing legislation* (1 Sep. 2004, AI Index: IOR 40/019/2004).

B. Analysis and interpretation of elements

I. Paragraph 1: Rights of all persons during investigation

The chapeau of paragraph 1 states expressly that it applies '[i]n respect of an investigation' 4 There is no indication in the Statute as to what an 'investigation' may mean in this context. Two possibilities arise. First of all, it could mean an 'investigation', as resulting from a formal decision taken by the Prosecutor under article 53(1). The problem with this approach is that it would create a unjustified distinction between cases arising from referrals from either a State or the Security Council or cases resulting from the opening of a *proprio motu* investigation by the Prosecutor. Indeed, in the former cases there is no formal public decision to open an investigation, whereas in the latter case it is required that a Pre-Trial Chamber authorize the opening of an investigation (Art. 15(4) Statute), thus providing a precise date to trigger the protection of article 55. In those circumstances, it would make sense for the Court to adopt a broad interpretation of what an investigation is in the context of article 55 and to hold that the fundamental rights recognized in article 55 para. 1 apply at other stages of proceedings and even before an investigation is opened, including during a preliminary examination. Given the nature of the fundamental prohibitions and guarantees in paragraph 1, it would be inconceivable if the Court were to say that they were not applicable to investigators conducting preliminary examinations with a view to determining whether to open an investigation. It would also be logical that the Court hold that paragraph 1 applies to investigative steps being taken pursuant to articles 18 para. 7 and 19 para. 8, as well as similar inquiries after the close of the investigation before, during and after trial, including inquiries related to revision of judgment or sentence.

Although the chapeau of paragraph 1, unlike paragraph 2, does not expressly mention that these rights must be respected by the Prosecutor, State authorities and state agents or staff of intergovernmental organizations in peace-keeping missions, it would make sense that all of them must respect these rights during the investigation since in most situations they will be involved in conducting investigations with a view to possible trial before the Court (see articles 53, 54, 86–99). This conclusion is reinforced by rule 111 para. 2, which states that '[w]hen the Prosecutor or national authorities question a person, due regard shall be given to article 55', without restricting the scope of this obligation to paragraph 2 of that article⁹. However, the little case law that there has been so far does not seem to indicate such a broad protection. Indeed, in the *Gbagbo* case, despite some evidence that Ivorian authorities and the OTP were in constant contact regarding the suspected person, Laurent Gbagbo, who was clearly being held in custody for the purposes of being transferred to the ICC, and who was obviously under investigation by the Office of the Prosecutor, the Pre-Trial Chamber found that article 55(1) did not apply because the alleged violations of his rights 'were not perpetrated by the Prosecutor or by the Ivorian authorities on behalf of the Prosecutor or any organ of the Court'¹⁰. Indeed, because Gbagbo was formally charged with economic crimes which were technically unrelated to ICC proceedings, it did not, according to the Pre Trial Chamber trigger the protection of article 55¹¹. This is obviously a far too restrictive test in terms of human rights protection, especially when there are allegations of arbitrary arrest

⁹ In contrast, the second sentence of rule 111 para. 2 expressly addresses only the requirement to record that a person has been informed of his or her rights under paragraph 2 of article 55. However, Rule 112 para. 4 encourages the Prosecutor to record questioning of persons other than suspects.

¹⁰ *Prosecutor v. Laurent Gbagbo*, No. ICC-02/11-01/11-212, Decision on the 'Corrigendum of the challenge to the jurisdiction of the International Criminal Court on the basis of articles 12(3), 19(2), 21(3), 55 and 59 of the Rome Statute filed by the Defence for President Gbagbo (ICC-02/11-01/11-129)', Pre-Trial Chamber I, 15 August 2012, para. 97.

¹¹ *Ibid.*, para. 97.

and detention or torture. Indeed, it is less than likely that the Prosecutor will directly order a person to be tortured. More likely, the person will be subjected to mistreatment by national authorities without any formal link with the Prosecutor being established. In light of this, it would be more in conformity with the spirit of broad protection enshrined in article 55 for the Court to consider that once a person is under investigation, they fall under the protection of the ICC and that the Prosecutor has a duty to ensure that the rights of that person, especially if they are being detained, are respected by the local authorities¹².

Finally, it should be noted that the chapeau does not expressly provide, in contrast to the chapeau of paragraph 2, that the person concerned must be informed of these rights, although article 26 para. 6 (b) and (c) of the ILC Draft Statute required that suspects be informed of the rights not to incriminate oneself or confess guilt and to interpretations and translations. However, since it is not possible to exercise one's rights effectively if one is unaware of them, it would be logical for the Court to conclude that persons involved in the investigation must be informed of all the rights recognized in paragraph 1, as well as any other relevant rights.

1. 'not to incriminate himself or herself or to confess guilt'

- 5 Article 55 para. 1 (a) is based on the right recognized in article 14 para. 3 (g) of the ICCPR of everyone charged with a criminal offence to enjoy 'in full equality' the right '[n]ot to be compelled to testify against himself or to confess guilt'¹³. This provision in the Rome Statute is an extension of the right to all persons, including witnesses and suspects, not just persons charged with a crime. In article 26 para. 6 (b) of the ILC Draft Statute, this right had been limited to suspects. However, like the similar guarantees in article 21 para. 4 (g) of the ICTY Statute, article 20 para. 4 (g) of the ICTR Statute, Section 6.3(h) of UNTAET Reg. 2000/25, and article 67 para. 1 (g) of the Rome Statute, this provision omits the important requirement that the right be enjoyed 'in full equality'¹⁴.

2. 'not be subjected to any form of coercion ...'

- 6 The scope of the first part of article 55 para. 1 (b), prohibiting coercion, duress and threats, which would address other matters than compulsion to incriminate oneself or to confess guilt covered in article 55 para. 1 (a), is not entirely clear, but it would address the types of human rights violations that have been committed in recent years by members of national law enforcement agencies and intelligence services when questioning persons suspected of 'terrorist' acts. It was not included in article 26 para. 6 of the ILC Draft Statute. However, this right is recognized by Section 6.3 (i) of UNTAET Reg. 2000/25, 14 Sep. 2000¹⁵. Presumably paragraph 1 (b) would not preclude the Court from ordering a witness pursuant to article 64 para. 6 (b) to appear before the Court from testifying and testify or to produce documents and other evidence¹⁶. One impulse behind including the prohibition of coercion,

¹² This would additionally be more respectful of the actual text of article 55(1) which provides for protection of rights without requiring that the violation must be ordered in any way by the Prosecutor or another organ of the Court.

¹³ Article 8 para. 2 (g) of the American Convention on Human Rights provides that every person charged with a criminal offence is entitled 'in full equality ... not to be compelled to be a witness against himself or to plead guilty'.

¹⁴ Rules of Procedure and Evidence of the Special Court for Sierra Leone (Sierra Leone Rules) fail to include any guarantee concerning compelled testimony or confessions by suspects, but article 17 para. 3 (g) of the Statute of the Special Court for Sierra Leone states that the accused is entitled 'in full equality' to the guarantee '[n]ot to be compelled to testify against himself or herself or to confess guilt'.

¹⁵ UNTAET Reg. 2001/25, Section 6.3, 14 Sep. 2001 provides that '[a]t every stage of the proceedings, the suspect and the accused shall be informed by the public prosecutor that he or she has the following rights: ... (i) the right to be free from any form of coercion, duress or threat, torture, or any other form of cruel, inhuman or degrading treatment or punishment'.

¹⁶ The obligation of States to assist the Court in the implementation of such orders is supplemented by the independent obligations in article 93 para. 1 (b) (to assist in the taking and production of evidence), (c) (to assist in the questioning of persons being investigated or prosecuted) and (e) (to facilitate the voluntary appearance of

duress and threats appears to have been to exclude plea bargaining as it is practiced in the United States, but that concern has been addressed in article 65. It has been argued that the protection in article 55 para. 1 (b) 'is very broad and covers every form of compulsion, certainly beyond the prohibition of torture or other similar forms of physical or moral violence (which are specifically forbidden by article 55 para. 1 (b))', and 'the scope of this rule is broad enough to include use of *agents provocateurs*, or other sorts of tricks by investigators indirectly to obtain information against the person with his or her assistance'¹⁷.

Although it is possible that an employee of the Court might mistreat a person during an investigation, whether detained or not, the primary aim of the second part of article 55 para. 1 (b) prohibiting torture or any other form of cruel, inhuman or degrading treatment or punishment appears to be to protect persons during an investigation from State authorities assisting an investigation by the Prosecutor¹⁸.

3. 'assistance of a competent interpreter and such translations as are necessary'

Article 55 para. 1 (c) is a significant improvement over article 26 para. 6 (c) of the ILC Draft Statute, which in turn is based upon article 18 para. 3 of the ICTY Statute and rule 42 *lit. A* (ii) of the ICTY Rules. It provides that any person involved in the investigation, such as a victim or a witness, not just a suspect, '[s]hall, if questioned in a language other than the language the person fully understands and speaks, have, free of any cost, the assistance of a competent interpreter and such translations as are necessary to meet the requirements of fairness'¹⁹. Similar provisions apply to other stages of the proceedings²⁰. Rule 42 (Translation and interpretation services) requires the Court to 'arrange for the translation and interpretation of its obligations under the Statute and Rules', but there are no other rules directly relevant to this statutory provision.

Article 55 para. 1 (c) affords significantly more protection than article 26 para. 6 (c) of the ILC Draft Statute, which limited the right to suspects, did not require that the language be one other than the one the person *fully* understands and speaks, and limited the requirement of translation of documents to those on which the suspect was to be questioned. It also is an improvement over article 18 para. 3 of the ICTY Statute and rule 42 *lit. A* (ii) of the ICTY Rules²¹, as well as over the equivalent guarantees in article 14 para. 3 (f) of the ICCPR, article

persons as witnesses or experts before the Court). These obligations are subject to the exceptional rule in article 93 para. 7 governing the specific case of temporary transfer of persons in custody to the Court, an anomalous provision based on mutual legal assistance practice between states, where the State has a particular interest in ensuring the return of such persons.

¹⁷ Zappalà, *Human Rights in International Criminal Proceedings* (2003) 55.

¹⁸ In the light of the widespread practice of torture and ill-treatment of pre-trial detainees by national authorities in many countries, Amnesty International and other non-governmental organizations argued that this provision should be included. See, for example, Amnesty International, *International Criminal Court: Making the Right Choices – Part II: Organizing the Court and Guaranteeing a Fair Trial* (July 1997, AI Index: IOR 40/11/97), at Part IV.B.2.k.

¹⁹ Official languages of the Court are Arabic, Chinese, English, French, Russian and Spanish, but the working languages of the Court are English and French, article 50 Rome Statute. Pursuant to article 50 para. 2, rule 41 (Working languages of the Court) provides that the Presidency may authorize the use of an official language of the Court as working language in three situations: when it is 'understood and spoken by the majority of those involved in a case before the Court and any of the participants in the proceedings so requests', when the Prosecutor or defence request its use and when 'it would facilitate the efficiency of the proceedings'.

²⁰ *E.g.*, article 67 para. 1 (f) guarantees to an accused: 'To have, free of any cost, the assistance of a competent interpreter and such translations as are necessary to meet the requirements of fairness, if any of the proceedings or of documents presented to the Court are not in a language which the accused fully understands and speaks'. Rule 114 para. 2 provides that copies of decisions of the Trial Chamber shall be provided as soon as possible to the accused 'in a language he or she fully understands or speaks, if necessary to meet the requirements of fairness under article 67 para. 1 (f)'.

²¹ Article 18 para. 3 of the ICTY Statute provides that a suspect who is questioned has the right 'to necessary translation into and from a language he speaks and understands'. Rule 42 *lit. A* (ii) ICTY supplements this guarantee by providing that a suspect to be questioned by the Prosecutor has 'the right to have the free assistance of an interpreter if he cannot understand or speak the language to be used for questioning'.

17 para. 3 of the ICTR Statute and rule 42 *lit.* A (ii) of the ICTR Rules²², rule 42 of the Sierra Leone Rules²³, section 6.3 (c) of UNTAET Reg. 2000/25²⁴ and article 24 of the Cambodia Extraordinary Chambers Law²⁵ for persons accused of a crime in that it requires interpretation where the person does not *fully* understand the language used for questioning, includes a fairness test to determine which documents should be translated and requires *competent* interpretation. Presumably, the *translations* of documents on which the person is to be questioned, as well as the *interpretation*, must be competent as well. The First Edition of this Commentary (under mn 7) suggested that this point could be clarified in the Rules of Procedure and Evidence, but the Rules and the Regulations have both left the matter unresolved. Like the provisions on translation and interpretation of other international and internationalized criminal courts, article 55 para. 1 (c) does not require translation or interpretation into a person's native language if the person fully understands the language being used²⁶.

4. 'not be subjected to arbitrary arrest or detention'

- 8 There was no equivalent provision to article 55 para. 1 (d) in article 26 para. 6 of the ILC Draft Statute. The first part of article 55 para. 1 (d), prohibiting arbitrary arrest or detention, is based on the right recognized in article 9 of the Universal Declaration of Human Rights of everyone not to 'be subjected to arbitrary arrest, detention or exile' and in article 9 para. 1 of the ICCPR of everyone not to 'be subjected to arbitrary arrest or detention', which the Human Rights Committee recognizes as a peremptory norm²⁷. Therefore, the terms 'arrest' and 'detention' should be given the broader meaning that they receive under article 9 para. 1, as interpreted by the Human Rights Committee and the UN Working Group on Arbitrary Detention, rather than in the relatively narrower definitions section of the UN Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment²⁸. The prohibition of arbitrary detention in the first part of paragraph 1 (d), which

²² Article 17 para. 3 ICTR Statute is identical to article 18 para. 3 of the ICTY Statute and Rule 42 *lit.* A (ii) ICTR is identical to the corresponding ICTY rule.

²³ Rule 42 *lit.* A (ii) of the Sierra Leone Rules provides that '[a] suspect who is to be questioned by the Prosecutor shall have the following rights, of which he shall be informed by the Prosecutor prior to questioning, in a language he speaks and understands ... (ii) The right to have the free assistance of an interpreter if he cannot understand or speak the language to be used for questioning'.

²⁴ Section 6.3 (c) of UNTAET Reg. 2000/25 requires the Prosecutor at every stage of the proceedings to inform the suspect his or her right 'to have the free assistance of an interpreter if he or she cannot understand or speak one of the official languages of the Court'.

²⁵ Article 24 of the Law on the Establishment of Extraordinary Chambers in the Courts of Cambodia for the Prosecution of Crimes Committed during the Period of Democratic Kampuchea (2001 Cambodia Extraordinary Chambers Law), Reach Kram No. NS/RKM/0801/12, 10 Aug. 2001 (available at: <http://www.yale.edu/cgp/KR-Law-trans.06.09.2001.html>), as amended by Reach Kram No. NS/RKM/1004/006, 27 Oct. 2004, published 4 Nov. 2004 (unofficial translation by the Council of Jurists and the Secretariat of the Task Force, revised 5 Oct. 2004, available at: <http://www.cambodia.gov.kh/krt/english/law>) (2004 Extraordinary Chambers Law Amendments). As amended, article 24 provides that '[d]uring the investigation, Suspects shall be unconditionally entitled to ... the right to interpretation, as necessary, into and from a language they speak and understand'. An identical guarantee was included in article 24 of the 2001 Cambodia Extraordinary Chambers Law.

²⁶ See, for example, *Prosecutor v. Delalić*, IT-96-21, Decision on Defence application for forwarding documents in the language of the accused, Trial Chamber, 25 Sep. 1996; *Prosecutor v. Djukić*, IT-96-20-PT, Decision on the Language of Translation, Trial Chamber, 2 June 1996.

²⁷ Human Rights Committee, General Comment No. 24, para. 8, UN Doc. E/1995/49 (1995). The right not to be subjected to arbitrary arrest and detention is also recognized in various formulations in article 5 of the European Convention for the Protection of Human Rights and Fundamental Freedoms, article XXV of the American Declaration of Human Rights, article 7 para. 3 of the American Convention on Human Rights and article 6 of the African Charter on Human and Peoples' Rights. For an early study of the scope of the right to be free from arbitrary detention, see Study of the right of everyone to be free from arbitrary arrest, detention and exile, UN Doc. E/CN.4/826/Rev.1 (1964). See also Niemi-Kiesilainen, article 9, in: Alfredsson and Eide (eds.), *The Universal Declaration of Human Rights: A Common Standard of Achievement* (1999) 209.

²⁸ For the view of the leading commentator on the scope of article 9 para. 1 of the ICCPR, see Nowak, *Covenant* 158–182. The scope of deprivations of liberty covered by the Body of Principles still is fairly broad.

applies both to the office of the Prosecutor and to national authorities, is a major advance over the ICTY and ICTR Statutes and Rules, which omit this fundamental guarantee.²⁹

The second part of article 55 para. 1 (d), prohibiting the deprivation of liberty ‘except on such grounds and in accordance with such procedures as are established in this Statute’, is based on the right also recognized in article 9 para. 1 of the ICCPR of everyone not to ‘be deprived of his liberty except on such grounds and in accordance with such procedures as are established by law’ and echoes the due process provisions in the fifth and fourteenth amendments to the United States Constitution and in article 39 of the *Magna Carta*. The concept of deprivation of liberty is broader than arrest or detention and could include provisional release of a suspect under restrictions to a particular location or restrictions on the freedom of a witness compelled to attend a hearing pursuant to article 64 para. 6 (b) of the Rome Statute. The prohibition in the second part of paragraph 1 (d) is independent of the prohibition in the first part of arbitrary arrest and detention; an arrest or detention made on grounds and in accordance with procedures established by the Statute could still be arbitrary in certain circumstances. This provision should be read together with article 85 para. 1, which states that ‘[a]nyone who has been the victim of unlawful arrest or detention shall have an enforceable right to compensation’.

II. Paragraph 2: Rights of suspects being questioned

As stated above, it is not possible to exercise one’s rights effectively if one is unaware of them. Therefore, the requirement in the chapeau of paragraph 2 that the person concerned must be informed of these rights is an important safeguard, which has not been expressly included in the chapeau of paragraph 1. Article 26 para. 6 (i) and (ii) of the ILC Draft Statute required that suspects, before they were questioned, be informed that they were considered suspects and that they had the right to silence. Although paragraph 2 expressly identifies only the Prosecutor, which would necessarily include staff of the Office of the Prosecutor, and national authorities and agents, presumably, it would also apply to other persons, such as staff of the UN or other intergovernmental organizations, including staff serving in peace-keeping operations. A particularly important aspect of paragraph 2 is that the rights apply regardless whether the person is deprived of liberty or not. The drafters of the Rome Statute decided not to use the term ‘suspect’, in part because some states thought that it would lead to premature prejudice against the person targeted by an investigation. However, in line with others who have sought to avoid the resulting awkwardness, this Commentary uses the term ‘suspect’ to describe a person with regard to whom ‘there are grounds to believe that [he or she] has committed a crime within the jurisdiction of the Court’ and with respect to whom the Pre-Trial Chamber has not confirmed charges pursuant to article 61 para. 7, at which point a suspect becomes an ‘accused’ (see this Commentary on article 58 at mn 3)³⁰. Paragraph 2 applies ‘when the person is about to be questioned either by the Prosecutor, or by national authorities pursuant to a request made under Part 9’. The similarly worded rules of the ICTY and ICTR Rules upon which paragraph 2 is based have been criticized as too restrictive on the ground that some of the rights in that paragraph, ‘such as the right to legal assistance may be needed independently of any questioning’³¹. However, there are many

²⁹ The absence of this prohibition has led to inconclusive and unsatisfactory jurisprudence concerning challenges to the lawfulness of arrests by UN peace-keeping forces in the former Yugoslavia in the *Dokmanović, Todorović, Nikolić and Krajisnik* cases (see Lamb, in: May *et al.* (eds.), *Essays on ICTY Procedure and Evidence in Honour of Gabrielle Kirk McDonald* (2001) 27, and to the lawfulness of prolonged pre-trial detention by national authorities pursuant to ICTR arrest warrants (see decisions cited in note 44 below).

³⁰ One commentator, while sympathizing with the decision not to use this term, ‘which avoids premature criminalization and prevents a number of problems about the determination of the moment when a person becomes a suspect’, predicted that the term will be used in practice and suggested that the decision not to use the term ‘may have created even more uncertainty’. Zappalà, *Human Rights*, see note 14, 49 note 61.

³¹ Zappalà, *Human Rights*, see note 14, 49, 50 and 52 (suggesting the need for representation by a lawyer during the taking of blood samples and other evidence from a suspect outside the context of questioning).

situations in which the Prosecutor would be likely to conclude that questioning prior to arrest of a person he or she had identified as a suspect would be futile or where the value of any such questioning would be outweighed by the need to obtain an arrest warrant secretly at the close of an investigation in order to avoid the danger of flight. The determination that a person is a suspect is based on an objective test, '[w]here there are grounds to believe, subject to judicial review'³². Independently of article 55 para. 2, the rights of persons who subsequently become suspects are protected by article 56 para. 2 (c), which authorizes the Pre-Trial Chamber to appoint a counsel 'to attend and represent the interests of the defence' when the Prosecutor, or the Pre-Trial Chamber acting on its own initiative, takes measures during a unique investigative opportunity.

1. 'grounds to believe that he or she has committed a crime'

- 11 There is no exact counterpart in international human rights instruments or in the instruments of other international criminal courts or internationalized courts to the right recognized in article 55 para. 2 (a) '[t]o be informed, prior to being questioned, that there are grounds to believe that he or she has committed a crime within the jurisdiction of the Court'. Article 26 para. 6 (a) of the ILC Draft Statute required that the person be informed that he or she was a suspect. The right recognized in article 55 para. 2 (a) should be considered as linked to the rights to retain counsel and to remain silent, by informing the suspect that he or she should consider the need for legal advice before continuing to respond to questions in the course of an investigation, as well as of the seriousness of the situation. The effective implementation of this right by staff of the Office of the Prosecutor can pose a number of challenges. Indeed, they have extensive discussions with senior government officials in the course of preliminary examinations concerning possible referrals, declarations pursuant to article 12 para. 3 recognizing the Court's jurisdiction and activities on the territory of the State, as well as on a range of legal and practical matters once an investigation has begun. How would these interactions with state officials be affected should evidence emerge of their possible involvement in the commission of crimes? Since the chapeau uses the term 'grounds to believe', rather than 'reasonable grounds to believe', a relatively low threshold would trigger this obligation, such as press reports suggesting the official's responsibility for crimes. Although it will be awkward to do so, presumably staff of the Office of the Prosecutor advise such government officials of their rights under article 55 before each discussion. Paragraph 2 (a) uses the term 'crime', but ordinary principles of justice would suggest that the rights identified in article 55 should apply to offences against the administration of justice, which under article 70 para. 3 could carry sentences of up to five years' imprisonment, plus a fine, possibly cumulatively imposed, as well.

2. 'remain silent, without such silence being a consideration'

- 12 The right to silence is a component of the presumption of innocence (guaranteed in article and of the right not to be compelled to testify against oneself or to confess guilt (guaranteed in article 55 para. 1 (a) and, with respect to accused persons, by article 67 para. 1 (g)). The ICTY and ICTR Rules the Sierra Leone Rules and UNTAET Reg. 2000/25 require the Prosecutor to inform suspects of their right to silence before questioning. Rule 42 *lit.* A (iii) ICTY provides that a suspect who is to be questioned by the Prosecutor has 'the right to remain silent, and to be cautioned that any statement that he makes shall be recorded and may be used in evidence'³³. Article 55 para. 2 (b) of the Rome Statute provides that a person

³² However, one observer has criticized the similarly worded provisions in ICTY Rule 42 *lit.* A and ICTR Rule 42 *lit.* A, as giving the Prosecutor excessive discretion in determining when a person becomes a suspect, risking possible abuse. Zappalà, *Human Rights*, see note 14, 51. He notes concerns that the ICTY conducted extensive questioning of persons detained as witnesses, one of whom was later charged. *Ibid.*, 52–53.

³³ Rule 42 *lit.* A (iii) ICTR is identical. Rule 42 *lit.* A (ii) of the Sierra Leone Rules is similar: 'A suspect who is to be questioned by the Prosecutor shall have the following rights, of which he shall be informed by the

suspected of a crime within the jurisdiction of the Court shall be informed before being questioned either by the Prosecutor or by national authorities pursuant to a request to do so under Part 9 of the right '[t]o remain silent, without such silence being a consideration in the determination of guilt or innocence'. This provision, which is unchanged from article 26 para. 6 (a) (i) of the ILC Draft Statute, affords greater protection of the right to silence than the ICTY and ICTR Rules by expressly stating that exercise of that right may not be a consideration in determining guilt or innocence, but it does not expressly require the warning that any statement may be used in evidence required by the ICTY and ICTR Rules and UNTAET Reg. 2000/25. The First Edition of this Commentary (under mn 12) suggested that this omission would be remedied in the Rules of Procedure and Evidence, but it has not been addressed either by the Rules or by the Regulations of the Court³⁴. However, the Rules provide an elaborate scheme in rules 74 and 75 designed to regulate the right of a witness, which would include an accused who decided to testify, not to incriminate oneself or to incriminate certain family members. This scheme sets out the framework permitting the Court to require a witness to testify, subject to guarantees of confidentiality and immunity from prosecution by the Court, in proceedings before the Court and, therefore, it does not restrict the scope of the guarantee in article 55 para. 2 (b).

3. 'to have legal assistance of the person's choosing, or ... to have legal assistance assigned'

As recognized in the ICTY and ICTR Rules, the Sierra Leone Rules and UNTAET Reg. 2000/25, if the right of a suspect to counsel is to be meaningful, the suspect, whether detained or at liberty, must be able to consult a lawyer when subjected to questioning. Article 18 para. 3 of the ICTY Statute provides that '[i]f questioned, the suspect shall be entitled to be assisted by counsel of his own choice ...'³⁵. The first part of article 55 para. 2 (c) of the Rome Statute, which is similar to the first part of article 26 para. 6 (a) (ii) of the ILC Draft Statute, reflects this principle by providing that the suspect has the right to be informed of the right '[t]o have legal assistance of the person's choosing'. This provision is generally consistent with the right recognized in article 14 para. 3 (d) of the ICCPR of every person charged with a criminal offence 'to defend himself ... through legal assistance of his own choosing', but expressly extends this right to suspects³⁶. The right to counsel of one's own choice under the

Prosecutor prior to questioning, in a language he speaks and understands: ... (iii) The right to remain silent, and to be cautioned that any statement he makes shall be recorded and may be used in evidence'. Section 6.2 of UNTAET Reg. 2000/25 requires that a suspect shall be informed upon arrest that he or she has 'the right to remain silent and not to admit guilt, and that silence will not be interpreted as an admission', and Section 6.3 (h) provides that suspects shall be informed by the Prosecutor at every stage of the proceedings that, if he or she chooses not to speak in the proceeding, such silence will not be held against him or her in the determination of innocence or guilt'.

³⁴ For further analysis of the scope of the right to silence under international law, see Amnesty International's reports, *United Kingdom: Submission to the Royal Commission on Criminal Justice* (1 Nov. 1991, AI Index: EUR 45/17/91); *United Kingdom: Fair trial concerns in Northern Ireland – The right to silence* (1 Feb. 1993, AI Index: EUR 45/01/93); *United Kingdom: The right to silence – Update* (1 Nov. 1993, AI Index: EUR 45/15/93). The right to silence is recognized in the ECHR, adopted in 1950, although this regional treaty has been interpreted more restrictively than contemporary international standards, such as the ICTY and ICTR Rules and the practice of the Yugoslavia and Rwanda Tribunals. See *Saunders v. United Kingdom*, 23 E.H.R.R. 313, 17 Dec. 1996; *Murray v. United Kingdom*, 22 E.H.R.R. 29, 8 Feb. 1996 (finding that the drawing of adverse inferences from the exercise of the right to silence by a court in Northern Ireland did not, on the specific facts of the case, violate the European Convention on Human Rights). However, the Human Rights Committee, the body of experts which monitors implementation of the ICCPR, has 'noted with concern that the provisions of the Criminal Justice and Public Order Act of 1994, which extended the legislation originally applicable in Northern Ireland, whereby adverse inferences may be drawn from the silence of persons accused of crimes, violates various provisions in article 14 of the Covenant'. Comments of the Human Rights Committee: *United Kingdom of Great Britain and Northern Ireland*, 27 July 1995, UN Doc. CCPR/C/79/Add.55, para. 17.

³⁵ Article 17 para. 3 ICTR Statute has an identical guarantee.

³⁶ Article 6 para. 3 (a) of the ECHR provides that '[e]veryone charged with a criminal offence has the following minimum rights: ... (c) to defend himself ... through legal assistance of his own choosing'; article 8 para. 2

Rome Statute also applies whether the suspect is detained or at liberty, which is a significant advance over international instruments which recognize that detainees have this right, but are silent concerning suspects who have not been detained³⁷.

- 14 Suspects have the right to counsel when the interests of justice so require. The second part of article 55 para. 2 (c) of the Rome Statute, which is based on article 26 para. 6 (a) (ii) of the ILC Draft Statute, provides that every suspect has the right to be informed of the right, 'if the person does not have legal assistance assigned to him or her, in any case where the interests of justice so require, and without payment by the person in any such case if the person does not have sufficient means to pay for it'. This provision of the Rome Statute is similar to the guarantee recognized in article 14 para. 3 (d) of the ICCPR of persons charged with a criminal offence 'to be informed, if he does not have legal assistance, of this right; and to have legal assistance assigned to him, in any case where the interests of justice so require, and without payment by him in any such case if he does not have sufficient means to pay for it'³⁸. Likewise, the ICTY and ICTR Statutes and Rules, the Sierra Leone Rules, UNTAET Reg. 2000/25 and the Cambodia Extraordinary Chambers Law all recognize that suspects, whether detained or at liberty, who are unable to pay for counsel, have the right to have assigned legal assistance. Article 18 para. 3 of the ICTY Statute provides that '[i]f questioned, the suspect shall be entitled to be assisted by counsel of his own choice, including the right to have legal assistance assigned to him without payment by him in any such case if he does not have sufficient means to pay for it ...'³⁹.

The decision to include the right to assigned counsel in any case 'where the interests of justice so require' in the Rome Statute, which was omitted from the ILC Draft Statute, even if the suspect could afford counsel, was made because the delegates wished to be sure that persons suspected of the worst possible crimes, who would in many cases be unpopular clients, would be able to obtain counsel⁴⁰. Therefore, this provision should be seen as

of the American Convention on Human Rights provides that, during the proceedings, every persons charged with a criminal offence 'is entitled, with full equality, to the following minimum guarantees: ... (c) the right of the accused to ... be assisted by legal counsel of his own choosing'. These rights are now considered to apply to persons who have been detained, even if they have not yet been formally charged.

³⁷ UN Basic Principles on the Role of Lawyers, Principles 5 to 8; UN Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment, Principle 18.

³⁸ Article 6 para. 3 (c) of the ECHR provides that everyone charged with a criminal offence has the following minimum rights: '... (c) ... if he has not sufficient means to pay for legal assistance, to be given it free when the interests of justice so require'; article 8 para. 2 (d) of the American Convention on Human Rights is more limited in scope and provides that, during the proceedings, every persons charged with a criminal offence 'is entitled, with full equality, to the following minimum guarantees: ... (d) the inalienable right to be assisted by counsel provided by the State, paid or not as the domestic law provides, if the accused does not defend himself personally or engage his own counsel within the time period established by law'. These rights are now considered to apply to persons who have been detained, even if they have not yet been formally charged.

³⁹ Article 17 para. 3 ICTR Statute is identical. Rule 42 *lit. A* of the Sierra Leone Rules provides: 'A suspect who is to be questioned by the Prosecutor shall have the following rights, of which he shall be informed by the Prosecutor prior to questioning, in a language he speaks and understands: (i) The right to legal assistance of his own choosing, including the right to have legal assistance provided by the Defence Office where the interests of justice so require and where the suspect does not have sufficient means to pay for it'. Section 6.2 of UNTAET Reg. 2000/25 provides that a suspect shall be informed upon arrest of his or her rights (c) 'to contact a legal representative and communicate with him or her confidentially' and to have a legal representative appointed 'if the suspect is unable to pay for a lawyer'. Section 6.3 (a) of UNTAET Reg. 2000/25 requires the Prosecutor to inform a suspect at each stage of the proceedings that he or she has 'the right to be assisted by and to communicate freely and without supervision with a legal representative of his or her own choosing and to have such legal representation provided to him or her without cost where the suspect does not have sufficient means to pay for it'. Article 24 of the Cambodia Extraordinary Chambers Law Amendments provides that '[d]uring the investigation, Suspects shall be unconditionally entitled to assistance of counsel of their own choosing, and to have legal assistance assigned to them free of charge if they cannot afford it ...'. The amended version of article 24 is an improvement over the 2001 Law, which did not entitle suspects to the assistance of counsel of their own choosing. None of these provisions guarantee suspects to assigned counsel of their own choice. The scope of this right was recently addressed in *Prosecutor v. Milošević*, IT-02-54-AR, Decision on the Interlocutory Appeal of the Trial Chamber's Decision on the Assignment of Defence Counsel, Appeals Chamber, 1 Nov. 2004.

⁴⁰ Amnesty International, *Making the Right Choices – Part II*, and Part IV.B.1.d., see note 15; Harris (1967) 16 ICLQ 352, 365.

designed to enhance protection of the suspect, not, as some have suggested, a restriction on the right to assigned counsel⁴¹. Indeed, it will *always* be in the interest of justice for a suspect to be represented by counsel, particularly given the serious nature of the crimes and the sometimes difficult and complex questions of international law that will be before the Court, unless a person is able and willing to represent himself or herself⁴². This point is important to bear in mind because, in view of the prohibitive cost to all but the wealthiest suspects and the absence of public defender offices, the majority of suspects and accused in international criminal courts have been and are likely to continue to be represented by assigned counsel. Article 55 para. 2 (c) does not expressly provide that suspects have the right to choose their own assigned counsel or to refuse the assignment of particular counsel in whom they have no confidence. The First Edition of this Commentary (under mn 14) suggested that it was likely that the Rules of Procedure and Evidence or other rules would, as the ICTY has done in practice with accused persons and suspects, and the German Federal Constitutional Court has guaranteed in a subsequent decision, give suspects a great degree of choice in assigned counsel⁴³. The Rules have done so. Rules 20 to 22 spell out the responsibilities of the Registrar with regard to defence counsel. Rule 21 para. 2 states that a person 'shall freely choose his or her counsel from [the list of counsel established by the Registrar] or other counsel who meets the required criteria and is willing to be included in the list'. Regulation 75 implements this provision⁴⁴. Rule 21 para. 2 and Regulation 75 are a major advance over all previous international instruments guaranteeing the right to assignment of counsel, as well as the jurisprudence of the ICTR, which has imposed unfortunate restrictions on the initial choice of counsel in addition to addressing the potential for abuse by accused persons in seeking a change of assigned counsel for frivolous reasons⁴⁵.

⁴¹ See, for example, Zappalà, *Human Rights*, note 14, 60 (describing, without further explanation, this requirement as a limitation).

⁴² Regulation 76 para. 1, which provides for the appointment of counsel by a Chamber following consultation with the Registrar, 'in the interests of justice' does not provide any further definition of this term.

⁴³ ICTY Rules 45 and 46 do not guarantee the right of suspects or accused to choice of assigned counsel, but in practice, a considerable degree of choice has been permitted. *Prosecutor v. Delalić*, IT-96-21, Decision on Request by Accused Mucić for Assignment of New Counsel, Trial Chamber, 24 June 2005, para. 2 (noting that 'the practice of the Registry of the International Tribunal has been to permit the accused to select any available counsel from this list [of the Registry] and to add counsel to the list if selected by an accused, provided that such counsel meets the necessary criteria. The Trial Chamber supports this practice, within practical limits'). The ICTY Registry has rejected a recommendation by an expert group to establish a nationality criteria for assignment of counsel, declaring that it 'would be inappropriate ... to establish a national priority list in this context'. Comprehensive Report on the Results of the Implementation of the Recommendations of the Expert Group, UN Doc. A/56/853, 4 Mar. 2002, para. 120. The German Federal Constitutional Court declared in a case involving assignment of co-counsel, based on the German Basic Law and article 6 para. 3 (c) of the ECHR, that 'the desires of the accused must routinely take precedence before any other factors when a court has to decide on counsel to be assigned, unless those other factors are of a serious nature and weigh heavily against that assignment' (paraphrased in Bohlander, in: Boas and Schabas (eds.), *International Criminal Law: Development in the Case Law of the ICTY* (2003) 35, 51, note 40).

⁴⁴ Regulation 75 (Choice of defence counsel) provides:

1. If the person entitled to legal assistance chooses a counsel included in the list of counsel, the Registrar shall contact that counsel. If the counsel is willing and ready to represent the person, the Registrar shall facilitate the issuance of a power of attorney for this counsel by the person.
If the person entitled to legal assistance chooses a counsel not on the list of counsel who is willing and ready to represent him or her and to be included in the list, the Registrar shall decide on the eligibility of that counsel in accordance with regulation 70 and, upon inclusion in the list, shall facilitate the issuance of a power of attorney. Until the filing of a power of attorney, the person entitled to legal assistance may be represented by duty counsel in accordance with regulation 73.'

⁴⁵ ICTR Rules 45 and 46 are similar to the rules of the ICTY, but the ICTR Appeals Chamber and Trial Chamber have consistently upheld the unfair restrictions by the Registry of the initial choice of accused persons to assigned counsel even when qualified counsel was able and willing to represent the accused. The Trial Chamber explained that the Registry could treat as reasonable and valid grounds 'the resources of the Tribunal, competence and recognised experience of counsel, geographical distribution, a balance of the principal legal systems of the world, irrespective of the age, gender, race or nationality of the candidates'. *Prosecutor v. Nyiramasuhuko*, ICTR-97-21-T, Decision on a Preliminary Motion by the Defence for the Assignment of a Co-Counsel to Pauline Nyiramasuhuko, 13 Mar. 1998, para. 17. See also *Prosecutor v. Ntakirutimana*, Decision on

Article 55 para. 2 (c) also does not expressly state that assigned counsel must be competent, but it is increasingly accepted that this is an inherent requirement of the right to assigned counsel. The Rules and Regulations provide a number of safeguards designed to ensure that assigned counsel are competent. Rule 21 para. 1 provides that the Regulations shall establish criteria and procedures for the assignment of counsel, subject to article 55 para. 2 (c) and article 67 para. 1 (d), based on a proposal by the Registrar and following consultations with any independent representative body of counsel or legal association. Regulations 67 through 70 implement this provision by spelling out the criteria to be met by counsel and assistants to counsel, proof and control of these criteria and how lawyers are to be included in the list of counsel⁴⁶. Further safeguards concerning competency are provided in Regulation permitting the Registrar to remove a counsel from the list when the

the Motions of the Accused for Replacement of Assigned Counsel, ICTR-96-10-T & ICTR-96-17-T, Trial Chamber, 11 June 1997, p. 6 (unreported decision cited in note 41, M. Bohlander, *The Defence* 51). What this rule meant in practice was that a temporary moratorium was imposed on the choice by accused of Canadian counsel, which was condemned by the International Criminal Defence Attorneys Association (ICDAA) on 30 Aug. 1998. After the *Nyiramasuhuko* decision, the ICTR Appeals Chamber took a much more restrictive approach than the ICTY Trial Chamber in the *Delalić* case, reaffirming its conclusion in the *Kambanda* case that 'the right to choose counsel applies only to those accused who can financially bear the costs of counsel'. *Prosecutor v. Akayesu*, ICTR-96-4-A, Judgment, Appeals Chamber, 1 June 2001, paras. 60–62 and 64. This practice of assignment of counsel by the ICTR and ICTR jurisprudence have been criticized as denying suspects and accused freedom to choose their counsel. Amnesty International, *The International Criminal Tribunal for Rwanda: Trials and Tribulations* (Apr. 1998, AI Index: IOR 40/03/98). One commentator has declared:

'While it is true that resources, experience, competence and irrelevance of race may be reasonable factors to be taken into account, this is in my view clearly not the case as far as the geographical distribution and the balance of the principal legal systems of the world are concerned. Those criteria stem from the recruitment provisions of the United Nations for its own staff, something which defence counsel clearly are not. They are meant as safeguards against institutional nepotism based on national preferences or ignorance and disdain of other legal systems, and in the latter case have a further basis in article 38 of the Statute of the International Court of Justice, which speaks about the sources of international law. An accused could not care less where counsel comes from, as long as that counsel is able to mount an efficient and effective defence'.

Bohlander, *The Defence*, see note 41, 51 (from which this account of ICTY and ICTR practice and jurisprudence is largely drawn). further basis in article 38 of the Statute of the International Court of Justice, which speaks about the sources of international law. An accused could not care less where counsel comes from, as long as that counsel is able to mount an efficient and effective defence'.

Bohlander, *The Defence*, see note 41, 51 (from which this account of ICTY and ICTR practice and jurisprudence is largely drawn).

⁴⁶ Regulation 67 (Criteria to be met by counsel) provides:

1. The necessary relevant experience for counsel as described in rule 22 shall be at least ten years.
2. Counsel should not have been convicted of a serious criminal or disciplinary offence considered to be incompatible with the nature of the office of counsel before the Court.

Regulation 68 (Assistants to counsel) provides:

Persons assisting counsel as described in rule 22, sub-rule 1, may include persons who can assist counsel in the presentation of the case before a Chamber. The criteria to be met by these persons shall be determined in the Regulations of the Registry.

Regulation 69 (Proof and control of criteria to be met by counsel) provides:

1. A person seeking to be included in the list of counsel shall complete the forms provided by the Registrar for this purpose.
2. A person referred to in sub-regulation 1 shall also provide:
 - (a) A detailed curriculum vitae;
 - (b) A certificate issued by each Bar association the person is registered with, and/or each relevant controlling administrative authority confirming his or her qualifications, the right to practise and the existence, if any, of disciplinary sanctions or ongoing disciplinary proceedings; and
 - (c) A certificate issued by the relevant authority of each State of which the person is a national or where the person is domiciled stating the existence, if any, of criminal convictions.
3. A person referred to in sub-regulation 1 or counsel already included in the list of counsel shall immediately inform the Registrar of any changes to the information he or she has provided that are more than *de minimis*, including the initiation of any criminal or disciplinary proceedings against the person.
4. The Registrar may at any stage take steps to verify the information provided by any person referred to in sub-regulation 1 and by counsel already included in the list of counsel.

Regulation 70 (Inclusion in the list of counsel) provides:

1. On receipt of an application by a person seeking to be included in the list of counsel, the Registrar shall establish whether the person has provided the information required under regulation 69. Thereafter, the

person no longer meets the criteria, has been permanently banned from practicing before the Court as a result of disciplinary proceedings or for refusing to obey an oral or written direction of the Court or has been found guilty of an offence against the administration of justice⁴⁷. Regulation 72 provides that the Presidency can review this decision⁴⁸. These Regulations have been further implemented by Regulations of the Registry⁴⁹. Determination of when it is in the interest of justice to appoint assigned counsel is made by the Chamber concerned⁵⁰.

4. 'to be questioned in the presence of counsel'

In a significant advance in the protection of suspects over previous international instruments, the ICTY and ICTR Rules the Sierra Leone Rules and UNTAET Reg. 2000/25 all prohibit questioning of a suspect in the absence of counsel unless the suspect has voluntarily waived that right⁵¹. Article 55 para. 2 (d) of the Rome Statute includes the same prohibition as in these rules, although it does not contain the express prohibition in these rules on

Registrar shall acknowledge receipt of the application and, where relevant, direct the person to submit additional information.

2. The decision as to whether a person shall be included in the list of counsel shall be notified to that person. If the application is refused, the Registrar shall provide reasons and information on how to apply for review of that decision in accordance with regulation 72.

⁴⁷ Regulation 71 (Removal and suspension from the list of counsel) provides:

1. The Registrar shall remove a counsel from the list of counsel where he or she:
 - (a) No longer meets the criteria required for inclusion in the list of counsel;
 - (b) Has been permanently banned from practising before the Court as a result of disciplinary proceedings held in accordance with the Code of Professional Conduct for counsel;
 - (c) Has been found guilty of an offence against the administration of justice as described in article 70, paragraph 1; or
 - (d) Has been permanently interdicted from exercising his or her functions before the Court in accordance with rule 171, sub-rule 3.
2. The Registrar shall suspend a counsel from the list of counsel where he or she has been:
 - (a) Temporarily suspended in a disciplinary proceeding according to the Code of Professional Conduct for counsel; or
 - (b) Temporarily interdicted from exercising his or her functions before the Court for a period exceeding 30 days in accordance with rule 171, sub-rule 3.

The Registrar shall notify the relevant counsel of his or her decision under sub-regulations 1 or 2. The Registrar shall provide reasons and information on how to apply for review of that decision in accordance with regulation 72.

⁴⁸ Regulation 72 (Review of decisions of the Registrar) provides:

1. Application may be made to the Presidency for review of:
 - (a) A decision under regulation 70, sub-regulation 2, refusing to include a person in the list of counsel
 - (b) A decision under regulation 71, sub-regulation 1, removing counsel from the list of counsel; or
 - (c) A decision under regulation 71, sub-regulation 2, suspending counsel from the list of counsel.
2. Applications as described in sub-regulation 1 shall be set out in accordance with regulation 23 and be filed within 15 days of notification of the relevant decision of the Registrar.
3. The Registrar may file a response within 15 days of notification of the application as referred to in sub-regulations 1 and 2.
4. The Presidency may ask the Registrar to provide any additional information necessary to decide on the application. The decision of the Presidency shall be final.

⁴⁹ Regulations of the Registry were published for comments by 10 June 2005 (available at: <http://icc-cpi.int>). The Regulations were adopted and entered into force on 6 Mar. 2006. See Chapter 4 relating to 'Counsel Issues and Legal Assistance'.

⁵⁰ Regulation 76 para. 1 provides: 'A Chamber, following consultation with the Registrar, may appoint counsel in the circumstances specified in the Statute and the Rules or where the interests of justice so require'.

⁵¹ Rule 42 *lit. B* ICTY states:

'Questioning of a suspect shall not proceed without the presence of counsel unless the suspect has voluntarily waived his right to counsel. In case of waiver, if the suspect subsequently expresses a desire to have counsel, questioning shall thereupon cease, and shall only resume when the suspect has obtained or has been assigned counsel'.

Rule 42 *lit. B* ICTR is identical. Rule 42 *lit. B* of the Sierra Leone Rules provides:

'Questioning of a suspect shall not proceed without the presence of counsel unless the suspect has voluntarily waived his right to counsel. In case of waiver, if the suspect subsequently expresses a desire to have counsel,

continuing questioning of a suspect who, after a previous waiver, subsequently expresses the desire for counsel. Although this would seem to be implicit in the original guarantee, the First Edition of this Commentary (under mn 14) suggested that an express provision to this effect in the Rules of Procedure and Evidence would clarify this point. No such provision has been included in the Rules or in the Regulations of the Court.

In addition to the prohibition of questioning of suspects in the absence of counsel, the ICTY and ICTR Rules and the Sierra Leone Rules provide detailed requirements to make audio or video recordings of the questioning and to transcribe them 'as soon as practicable after the conclusion of questioning' and to provide the transcript and the tape to the suspect⁵². These recording requirements are a useful safeguard for ensuring the integrity of the questioning and, as predicted in the First Edition of this Commentary (under mn 15), were included in the Rules of Procedure and Evidence. Rule 111 (Record of questioning in general), based largely upon a French proposal that was modeled on Rule 43 of the ICTY Rules, requires in paragraph 1 that '[a] record shall be made of formal statements made by any person who is questioned in connection with an investigation' and that it be signed by the questioner, the person questioned and, if present, counsel, the Prosecutor and judge⁵³. The record must note the date, time, place and presence of all persons during questioning. Paragraph 2 of the rule requires that '[w]hen the Prosecutor or national authorities question a person, due regard shall be given to article 55' and that the record should indicate when the person was informed of his rights under this article.

Rule 112 (Recording of questioning in particular cases), based on Australian and French proposals, together with an amendment proposed by Italy requiring the recording of a waiver of the right to a recording, provides a detailed guide to the conduct of questioning of suspects pursuant to article 55 para. 2 and includes a number of safeguards to protect the integrity of the transcript and audio or video recordings. These safeguards include requirements that the person to be questioned be informed in a language he or she fully understands and speaks that the questioning is to be audio- or video-recorded, that he or she may object after consulting in private with counsel before making the objection; that in the event of a refusal to be recorded, the procedure in Rule 111 is to apply and the waiver itself is to be recorded; interruptions are to be recorded; an opportunity must be given to persons questioned to make clarifications or additions; a transcript must be made promptly and supplied with a copy of the audio- or video- recording; and the original tape is to be sealed in the presence of the person questioned and his or her counsel. The Prosecutor is to make 'every reasonable effort to record the questioning in accordance with sub-rule 1', but when circumstances prevent recording, the reasons must be recorded and rule 111 followed and whenever no audio- or video recording is made, the person questioned is to be given a copy of his or her statement⁵⁴.

In addition, rule 113 (Collection of information regarding the state of health of the person concerned), based largely on Australian and French proposals, contains further safeguards for suspects questioned pursuant to article 55 para. 2⁵⁵. Paragraph 1 provides that the Pre-

questioning shall thereupon cease, and shall only resume when the suspect has obtained or has been assigned counsel'.

Section 6.2 (f) of UNTAET Reg. 2000/25 states that a suspect must be informed upon arrest of his or her 'right to be questioned in the presence of a legal representative, unless the right is waived'.

⁵² Rule 43 ICTY; rule 43 ICTR; Sierra Leone Rules rule 43, as amended 1 Aug. 2003.

⁵³ A more restrictive Australian proposal, which would have limited the scope of this rule to questioning of suspects by the Prosecutor, was merged with a broader French proposal. For the history of the drafting of rules 111 and 112, see Friman, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 493, 512–515.

⁵⁴ The Prosecutor may follow the procedure in rule 112 when other persons are being questioned, particularly when these procedures could reduce the traumatization of a victim of sexual or gender violence, a child or person with disabilities and the Pre-Trial Chamber may follow this procedure when pursuing a unique investigative opportunity pursuant to article 56 para. 2.

⁵⁵ For the drafting history and rationale for this rule, see Friman, *Investigation*, note 49, 504–506.

Trial Chamber on his or her initiative or upon the request of the Prosecutor, the person questioned or his or her counsel may order that the suspect be given a medical, psychological or psychiatric investigation. In making this determination, the Pre-Trial Chamber must 'consider the nature and purpose of the examination', which will vary depending on the circumstances and the status of the person (for example, suspect, victim of crime of sexual violence, child, person apparently suffering from a mental illness or defect, hostile witness, etc.) and 'whether the person consents to the examination' (leaving open the possibility that in certain circumstances the person could be compelled to submit to an examination). Paragraph 2 requires that the Pre-Trial Chamber 'appoint one or more experts from the list of experts approved by the Registrar', giving it some choice independent of the Registrar, or, based on an Italian proposal, 'an expert approved by the Pre-Trial Chamber at the request of a party'.

C. Special remarks

There are a number of important rights which suspects or detainees who have not been 16
accused of a crime – such as a witness transferred from a State to the custody of the Court – have under international law which are not expressly included in article 55 or some other provision of the Rome Statute. The expressly recognized rights of suspects under the Rome Statute do not include all the rights of suspects in detention recognized in international instruments such as the ICCPR, the UN Standard Minimum Rules for the Treatment of Prisoners, the UN Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment and the Rules of Detention of the two International Criminal Tribunals. The First Edition of this Commentary recommended (under mn 16) that these guarantees be included in the Court's rules of procedure and evidence and its rules of detention for persons detained before trial under order of the Court (Sections 6.2 and 6.3 of UNTAET Reg. 2000/25 provide useful models for such an exercise, although protection should not be limited to suspects deprived of liberty.) For example, the right to have adequate time and facilities for a defence, guaranteed under article 67 of the Rome Statute to an accused is an important aspect of the right to counsel, and should apply to counsel representing a suspect, since effective representation of suspects may require time to provide advice and access to certain documents or other evidence, both to prepare for questioning and in anticipation of possible charges, although this right may not be as extensive as the right of an accused. Perhaps the most important right which has not been expressly recognized in the Rome Statute is the right guaranteed in article 9 para. 4 of the ICCPR and in Section 47 of UNTAET Reg. 2000/25 to have the Court review the lawfulness of detention and, if that detention is unlawful, to be released. Although, based on the case law of the ad hoc tribunals, it might be argued that the Court has the inherent power to provide this remedy, the failure to include it expressly in the Rome Statute is certainly to be regretted⁵⁶.

The failure to include certain rights expressly in article 55, other provisions of the Rome 17
Statute and the Rules of Procedure and Evidence is could be remedied by article 21 para. 1 (b), requiring the Court to apply as a secondary source of law, 'where appropriate, applicable treaties and the principles and rules of international law, including the established principles

⁵⁶ See, for example, *Prosecutor v. Barayagwiza*, ICTR-97-19-AR72, Decision, Appeals Chamber, 2 Nov. 1999, para. 88 (right to habeas corpus recognized even though not mentioned in ICTR Statute or Rules of Procedure and Evidence), *ibid.*, Decision (Prosecutor's Request for Review or Reconsideration), Appeals Chamber, 31 Mar. 2000; *Prosecutor v. Brđjanin*, IT-99-36PT, Decision on Petition for a Writ of Habeas Corpus on Behalf of Radoslav Brđjanin, Trial Chamber, 8 Dec. 1999, paras. 3–7 (relief analogous to habeas corpus can be granted even if not mentioned in Statute or Rules); *Prosecutor v. Semanza*, ICTR-97-20-A, Decision, Appeals Chamber, 31 May 2000 (ordering relief based on application for a writ of habeas corpus); *Prosecutor v. Simić*, IT-95-9-PT, Trial Chamber, 18 Oct. 2000 (Separate opinion, Robinson, J.) (discussing scope ICTY's powers during review of challenge to the legality of accused's arrest, a challenge based upon customary international law in the absence of a statutory provision). See also Ch. JSafferling, *Towards an International Criminal Procedure* (2001) 75.

of the international law of armed conflict' and article 21 para. 1 (c), requiring the Court to apply as tertiary source of law, 'general principles of law derived by the Court from national laws of legal systems of the world including, as appropriate, the national laws of States that would normally exercise jurisdiction over the crime, provided that those principles are not inconsistent with this Statute and with international law and internationally recognized norms and standards'. It should however be noted that these rules are secondary sources which can only be invoked when the Statute or the Rules of Procedure and Evidence do not provide a clear answer to a legal question. They cannot be used to fill perceived gaps in the primary legal documents, when the absence of a provision is a clear choice on the part of the drafters⁵⁷. Furthermore, the application and interpretation of law, including the Rome Statute and the Rules of Procedure and Evidence, pursuant to article 21 'must be consistent with internationally recognized human rights, and be without any adverse distinction founded on grounds such as gender as defined in article 7, paragraph 3, age, race, colour, language, religion or belief, political or other opinion, national, ethnic or social origin, wealth, birth or other status'. Again, this is merely a rule of interpretation, and cannot, in principle be used to read into the Statute a substantive right that is not in it.

- 18 Despite the flaws noted above in the scope of protection provided by article 55 and the Rules of Procedure and Evidence, article 55 has the potential to serve as a bulwark of the right to fair trial and against ill-treatment. However, for it to serve this function effectively, not only will it have to be implemented in good faith by the Office of the Prosecutor and by national authorities, but the Chambers will have to make clear that failure to respect the obligations of article 55 strictly will lead to the exclusion of evidence pursuant to article 69 para. 7 as evidence obtained by means of a violation of the Statute and the admission of which 'would be antithetical to and would seriously damage the integrity of the proceedings'.
- 19 Taking things further, the remedy for gross violations of article 55 could very well be a permanent suspension of the proceedings under an abuse of process-type motion. Such a possibility, while not explicitly contained in the Statute, was recognized by the Court's appeal Chamber in the *Lubanga* case⁵⁸ and explicitly entertained as a possibility in relation to article 55 violations in the *Gbagbo* case⁵⁹. However, as noted above (mn. 4), the narrow interpretation adopted by the Chambers on the what triggers the protection of article 55 makes it unlikely that a stay of proceedings would be ordered except in the most egregious cases of violations of the rights of the person under investigation.

⁵⁷ On this, see Situation in the Democratic Republic of Congo, ICC-01/04-168, Judgment on the Prosecutor's Application for Extraordinary Review of Pre-Trial Chamber I's 31 March 2006 Decision Denying Leave to Appeal, Appeals Chamber, 13 July 2006.

⁵⁸ 'Where fair trial becomes impossible because of breaches of the fundamental rights of the suspect or the accused by his/her accusers, it would be a contradiction in terms to put the person on trial. Justice could not be done. A fair trial is the only means to do justice. If no fair trial can be held, the object of the judicial process is frustrated and the process must be stopped.' (*Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-772, Judgment on the Appeal of Mr. Thomas Lubanga Dyilo against the Decision on the Defence Challenge to the Jurisdiction of the Court pursuant to article 19 (2) (a) of the Statute of 3 October 2006, Appeals Chamber, 14 December 2006, para. 37).

⁵⁹ *Prosecutor v. Laurent Gbagbo*, No. ICC-02/11-01/11-212, Decision on the 'Corrigendum of the challenge to the jurisdiction of the International Criminal Court on the basis of articles 12(3), 19(2), 21(3), 55 and 59 of the Rome Statute filed by the Defence for President Gbagbo (ICC-02/11-01/11-129)', Pre-Trial Chamber I, 15 August 2012.

Article 56

Role of the Pre-Trial Chamber in relation to a unique investigative opportunity

1. (a) Where the Prosecutor considers an investigation to present a unique opportunity to take testimony or a statement from a witness or to examine, collect or test evidence, which may not be available subsequently for the purposes of a trial, the Prosecutor shall so inform the Pre-Trial Chamber.
- (b) In that case, the Pre-Trial Chamber may, upon request of the Prosecutor, take such measures as may be necessary to ensure the efficiency and integrity of the proceedings and, in particular, to protect the rights of the defence.
- (c) Unless the Pre-Trial Chamber orders otherwise, the Prosecutor shall provide the relevant information to the person who has been arrested or appeared in response to a summons in connection with the investigation referred to in subparagraph (a), in order that he or she may be heard on the matter.
2. The measures referred to in paragraph 1 (b) may include:
 - (a) Making recommendations or orders regarding procedures to be followed;
 - (b) Directing that a record be made of the proceedings;
 - (c) Appointing an expert to assist;
 - (d) Authorizing counsel for a person who has been arrested, or appeared before the Court in response to a summons, to participate, or where there has not yet been such an arrest or appearance or counsel has not been designated, appointing another counsel to attend and represent the interests of the defence;
 - (e) Naming one of its members or, if necessary, another available judge of the Pre-Trial or Trial Division to observe and make recommendations or orders regarding the collection and preservation of evidence and the questioning of persons;
 - (f) Taking such other action as may be necessary to collect or preserve evidence.
3. (a) Where the Prosecutor has not sought measures pursuant to this article but the Pre-Trial Chamber considers that such measures are required to preserve evidence that it deems would be essential for the defence at trial, it shall consult with the Prosecutor as to whether there is good reason for the Prosecutor's failure to request the measures. If upon consultation, the Pre-Trial Chamber concludes that the Prosecutor's failure to request such measures is unjustified, the Pre-Trial Chamber may take such measures on its own initiative.
- (b) A decision of the Pre-Trial Chamber to act on its own initiative under this paragraph may be appealed by the Prosecutor. The appeal shall be heard on an expedited basis.
4. The admissibility of evidence preserved or collected for trial pursuant to this article, or the record thereof, shall be governed at trial by article 69, and given such weight as determined by the Trial Chamber.

Literature: Fourmy, O., 'Powers of the Pre-Trial Chambers', in: A. Cassese (ed.), *The Rome Statute of the International Criminal Court* (OUP 2002) 1207; Friman, H., 'The Rules of Procedure and Evidence in the Investigative Stage', in: H. Fischer, C. Kreß and S.R. Lüder (eds.), *International and National Prosecution of Crimes Under International Law* (Arno Spitz 2001) 191; *id.*, 'Investigation and Prosecution', in: R.S. Lee *et al.* (eds.), *The International Criminal Court, Elements of Crimes and Rules of Procedure and Evidence* (Transnational Publishers 2001) 493; Guariglia, F., 'Investigation and Prosecution', in: R.S. Lee (ed.), *The International Criminal Court. The Making of the Rome Statute* (Kluwer Law International 1999) 227; Kreß, C., 'The Procedural Law of the International Criminal Court in Outline: Anatomy of a Unique Compromise', (2003) *JICJ* 603; De Smet, S., 'A structural analysis of the role of the Pre-Trial Chamber in the fact-finding process of the ICC', in: C. Stahn and G. Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (2009) 405.

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A. Introduction

- 1 In the ILC Draft Statute, the investigation of crimes within the jurisdiction of the Court was entirely under the control of the Prosecutor; judicial intervention at the investigative stage was limited to the issuance of warrants and orders, or examination of the indictment filed by the Prosecutor.¹ The Draft did not include any provision directed at assisting an accused person to collect evidence or intervene in investigative acts performed by the Prosecutor. The fact that a suspect or an accused was left on his or her own in relation to the investigative measures required for the preparation of his or her defence, following the ‘adversarial’ tradition, was criticised in the Ad Hoc Committee: ‘Some concern was voiced ... that the Statute drew extensively on the common-law system, even though the civil-law system might afford greater protection to the suspect or the accused at the early stage of investigation or prosecution’.² The reaction to this view can be read on the very same page: ‘Some delegations observed, however, that undue judicial control over the investigation would interfere with the separation of the judicial and prosecutorial functions’.
- 2 The concern that without some form of judicial intervention at the investigation stage, an accused would be incapable of effectively collecting evidence and preparing his or her defence led to the presentation of the first proposals to involve a judicial organ of the Court in an investigation, which were submitted during the August 1996 Preparatory Committee Session. Their aim was to ensure that there was at least partial ‘equality of arms’ between an accused or a suspect and the Prosecutor at the stage of investigation and prosecution. Thus, the prejudice to the accused resulting from the particular nature of the ICC proceedings – conducted away from the country of the defendants and away from where the evidence and witnesses were readily available³ – would be minimized. The initial proposals empowered a judicial organ of the ICC to intervene in the process of gathering evidence in different ways: one proposal granted any person suspected of committing crimes within the jurisdiction of the Court to obtain an order from a Pre-Trial Chamber, addressed to the Prosecutor, instructing him or her to ‘accomplish certain acts, seeking, where necessary, cooperation from any State party’;⁴ other proposals established a duty on the Prosecutor to notify to the

¹ International Law Commission ‘Report of the International Law Commission on the Work of its 46th Session, Draft Statute for an International Criminal Court’ (2 May – 22 July 1994) UNGA 49th Session Supp No 10 UN Doc A/49/10 arts 26 para 4, 27 para 2 and 28.

² UN GA ‘Report of the Ad Hoc Committee on the Establishment of an International Criminal Court’ (1995) 50th Session UN Doc Supp No 22 (A/50/22) 50.

³ Statement contained in the 1995 Ad Hoc Committee Report (n 2) 29.

⁴ UN GA ‘Report of the Preparatory Committee on the Establishment of an International Criminal Court’ (1996) 51st Session UN Doc Supp No 22 (A/51/22) vol II 115: rights of suspect to gather evidence. This approach had also been suggested by the Siracusa Draft, proposed article 26 para 6 (e): ‘A person suspected of a crime under this Statute shall: ... [have the right] (e) to obtain an order from the Court for measures to ensure “equality of arms”’; its commentary notes that ‘The right to request application of the Prosecutor’s powers is an important feature of the “equality of arms” during pre-trial proceedings. Without this facility, it may be impossible to obtain information that is relevant to the defence, notably documents’. A similar conclusion drove the drafters of the Statute to include subparagraph (b) of article 57 para 3. See Guariglia and Hochmayr below article 57 mn 17.

Presidency his or her intention to perform special investigative acts which, because of their nature, could not be subsequently reproduced at trial⁵ and to ask for a judge to be appointed in order to carry out or supervise the act⁶ in question. Both proposals raised concerns among those delegations who feared that excessive judicial interference at the stage of investigation and prosecution would undermine the independence of the Prosecutor.

Despite divergent views at the outset of negotiation, by the August 1997 Preparatory Committee Session delegations were willing to explore different alternatives regarding judicial intervention and supervision during an investigation. A number of delegations engaged in the re-drafting of the existing proposals; the result of this exercise was a new draft provision, then referred to as article 26*ter*, which, as it can be read in the footnote attached thereto, established that ‘in exceptional circumstances in which a unique opportunity appears to exist for the taking or collection of evidence, the Pre-Trial Chamber may be involved in order to assure a fair trial/protect the rights of the defence’.⁷ However, the proposal contained different bracketed options, reflecting ‘differing views as to the balance to be struck between the need to ensure the Prosecutor’s independence and the desirability of conferring a limited role on the Pre-Trial Chamber’.⁸ That draft provision constitutes the core of what, after subsequent re-draftings in Rome,⁹ became current article 56 of the Statute.

The explicit goal of article 56 is ‘to ensure the efficiency and integrity of the proceedings and, in particular, to protect the rights of the defence’.¹⁰ Although paragraph 4 leaves the final determination of admissibility of evidence to the Trial Chamber, the principal purpose of article 56 is to ensure that the evidence obtained during the investigation will be admissible at trial.¹¹

B. Analysis and interpretation of elements

I. Paragraph 1

1. Duty to inform the Pre-Trial Chamber

This subparagraph sets forth the boundaries of the Pre-Trial Chamber’s role during the investigative stage, limiting its role to where acts of investigation that the Prosecutor intends to perform present a ‘unique investigative opportunity’ related to evidence that may not be subsequently available for the purposes of a trial. The concept reflects the civil law category of ‘*definitive and unrepeatable acts*’ or the so-called ‘*anticipated taking of evidence*’,¹² but also the common law tradition of ensuring cross-examination in the case of a witness that will not be available at trial (*depositions*). The rationale underlying the provision is that, in the case of the taking of evidence that, because of its nature, cannot be fully reproduced at trial (eg a mass-grave exhumation), but rather a record of the way in which it was obtained will be

⁵ Such as an inspection, a scientific test or the taking of testimony of a witness that would not subsequently be available for trial.

⁶ *Ibid.*, 216.

⁷ ‘Decisions Taken by the Preparatory Committee at its Session Held from 4 to 15 August 1997’ (1997) UN Doc A/AC.249/1997/L.8/Rev.1 p 20 fn 18.

⁸ *Ibid.*

⁹ See UN Doc A/CONF.183/C.1/WPGM/L.38, A/CONF.183/C.1/WGPM/L.38/Rev.1 and A/CONF.183/C.1/WGPM/L.38/Rev.1/Corr1.

¹⁰ See para 1 (b).

¹¹ Cf. Kreß (2003) *JICJ* 607: ‘article 56(1)(a) ... offers a tool to take and to test evidence early in the process and to ‘transport’ the result to the trial stage’. See further Schabas, *ICC Commentary* (2010) 692: ‘Although in principle, evidence must be presented at trial, article 56 provides an exceptional mechanism by which it may be collected under judicial oversight and then made available at trial’. De Smet, in: Stahn and Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (2009) 405, 426.

¹² See Maier, *Derecho Procesal Penal* (1996) vol I 589.

relied upon,¹³ there is a need to take extraordinary measures to preserve that evidence and give due weight to the rights of the parties to contest it. The adoption of these measures should not be in the sole hands of the Prosecutor, even despite the clear mandate to investigate incriminating and exonerating circumstances equally (article 54 para 1 (a)), but rather be decided by a neutral organ of the Court, meaning by this an organ with no commitment to the task of investigating and prosecuting crimes within the jurisdiction of the Court. Accordingly, subparagraph (a) establishes a *duty* of the Prosecutor to inform the Pre-Trial Chamber of his or her intention to carry out an act that may fall under the category envisaged in article 56, with a view to a decision as to the adequate protective measures set forth in paragraph 2. An unjustified breach of this duty can lead to the inadmissibility of the evidence at trial. However, article 69 vests the Trial Chamber with the authority to decide in favour of the admissibility of the evidence, on the basis of its consideration of the specific circumstances of the case (eg a case of extreme urgency relieving the Prosecutor from his or her obligation to notify the Pre-Trial Chamber).¹⁴

- 6 Article 56 defines a unique investigative opportunity as ‘a unique opportunity to take ... evidence, which may not be available subsequently for the purposes of a trial’.¹⁵ Such a unique opportunity may arise from the factual impossibility to present the evidence at trial, eg, the Prosecutor’s only temporary access to items,¹⁶ the transitory nature of the evidence (as traces of DNA) or a witness being mortally ill.¹⁷ In the Preparatory Commission in charge of drafting the Rules of Procedure and Evidence a discussion took place as to whether article 56 was applicable to the testimony of vulnerable victims, a question that was ultimately left undetermined.¹⁸ The Court could eventually resort to this option by combining this provision with article 68 para 1,¹⁹ if it concludes that there is an excessive risk of traumatising a child or a victim of sexual or gender violence, capable of leading to the effective unavailability of the testimony at trial.²⁰

In relation to testimony that becomes subsequently unavailable at trial, it is important to note that a recent amendment to rule 68 of the RPE has expanded the permissible uses of prior recorded testimony at trial. The former text of rule 68 only allowed the use of prior recorded testimony at trial if both parties had had the opportunity to examine the witness during the recording or if the witness, present before the Trial Chamber, did not object to the presentation of the prior recorded testimony and made him- or herself available for

¹³ See Preparatory Committee document UN Doc A/AC.249/L.6 n to rule 89bis.

¹⁴ See commentary to art 57 in Bassiouni (ed.), ‘Model Draft Statute for the International Criminal Court based on the Preparatory Committee’s text to the Diplomatic Conference’ (1998) 13*ter* NEP 89.

¹⁵ As Kreß (2003) *JICJ* 607 *et seq.* has pointed out, a wide or a narrow interpretation of this term ‘will have considerable repercussions for the overall architecture of the proceedings. The broader the interpretation of article 56, the less strong is the Prosecutor’s position in dominating the investigation stage, and the more closely the Pre-Trial Chamber will resemble the French *juge d’instruction*. In addition, a broad interpretation of article 56 may diminish the role of the trial as the climax of the proceedings’.

¹⁶ Cf. *Situation in the Democratic Republic of Congo*, No. ICC-01/04-93, Decision following the Consultation held on 11 October 2005 and the Prosecution’s Submission on Jurisdiction and Admissibility filed on 31 October 2005, Pre-Trial Chamber I (9 November 2005).

¹⁷ Fourmy, in: Cassese (ed.), *The Rome Statute of the International Criminal Court* (2002) 1218; Schabas, *An Introduction to the International Criminal Court* (2007) 254.

¹⁸ See Friman, in: Fischer *et al.* (eds.), *International and National Prosecution of Crimes under International Law* (2001) 196.

¹⁹ Pursuant to this provision, the Court and the Prosecutor have to take appropriate measures for the well-being of victims and witnesses, in particular in case of sexual or gender violence or violence against children.

²⁰ For a detailed discussion of this question see Kreß, in: Fischer *et al.* (eds.), *International and National Prosecution of Crimes Under International Law* (2001) 309, 362 *et seq.*, who proposes r 68 sub-r 1 (a) as an alternative legal basis to spare vulnerable witnesses from a repetition of testimony. De Smet, in: Stahn and Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (2009), 427 *et seq.*, considers that art 56 covers situations where ‘evidence may no longer be available in optimal form [...]’. The role of the Pre-Trial Chamber would then be not only to ensure that evidence is preserved but also that it is captured when the quality is still good’. This broad interpretation focuses on the requirement that the evidence ‘may not be available subsequently for the purposes of a trial’ and seems to neglect that intervention by the Pre-Trial Chamber is strictly confined to a ‘unique investigative opportunity’.

examination at trial. This applied '[w]hen the Pre-Trial Chamber had not taken measures under article 56'.²¹ The provision now allows for admission of prior recorded testimony in the absence of the witness, even if both parties could not examine the witness previously, in a number of cases, including situations of death of the witness and/or of witness interference,²² subject to a number of strict criteria for admissibility, including a requirement that the Chamber weigh whether the evidence goes to proof of acts and conduct of the accused. Thus, the Prosecutor has at his or her disposal now two mechanisms to deal with unavailable witnesses: a *prospective* one, namely article 56 para 1 (a), where the Prosecutor can determine ex ante that the witness may not be available for trial, and which is only subject to the general admissibility criteria set forth in article 69,²³ and a *retrospective* one, governing situations where the witness has become unavailable at trial and no measures under article 56 have been taken, this one subject to additional requirements for admissibility.

2. Decision on measures upon request of the Prosecutor

The measures that may be taken under paragraph 2 need to be requested, in principle, by the Prosecutor, if he or she considers that they are required for the purposes of ensuring the efficiency and integrity of the proceedings and the protection of the rights of the defence. This means that, whereas the Prosecutor has an obligation to notify the Pre-Trial Chamber of the performance of unique acts of investigation under subparagraph (a), he or she has the *authority* to seek these measures, and therefore retains sufficient discretion not to do so. However, where the Pre-Trial Chamber disagrees with the Prosecutor's decision not to request any of these measures, the Pre-Trial Chamber is given authority to take them on its own initiative pursuant to paragraph 3 (a). In addition, measures under article 56 para 2 can also be triggered by request of a person who has been arrested or has appeared pursuant to a summons under article 58, by virtue of the power contained in article 57 para 3 (b). Finally, it must be noted that it is for the Chamber to determine which measures are appropriate for the purposes of paragraph 1 (b). However, before its decision, the Pre-Trial Chamber is obliged to consult the Prosecutor, who may advise the Chamber that intended measures could jeopardize the proper conduct of the investigation (rule 114). In principle, the Prosecutor must also inform the person arrested or who appeared in response to a summons (subparagraph (c)). If so, the person and his or her counsel have a right to participate in the consultations (rule 114 sub-rule 1). If there has not yet been an arrest or appearance or if the Chamber has authorized the Prosecutor to abstain from informing the defence (subparagraph (c)), the Chamber may hold an ex parte consultation with the Prosecutor on the measures to be taken and the modalities of their implementation.²⁴

It must be stressed that article 56 should not be read as creating a *juge d' instruction* in the traditional sense of the term, ie, an investigative judge.²⁵ The role of the Pre-Trial Chamber under this provision is not to make decisions on, for example, which investigative acts ought to be carried out pursuant to the need for an adequate and efficient investigation, which is a matter that falls within the exclusive remit of the Prosecutor. Rather, its role is to ensure that specific investigative acts that he or she has decided to undertake are carried out in a way that guarantees the efficiency and integrity of the proceedings and protects the rights of the defence.²⁶ Furthermore, the article establishes that, as a principle, the intervention of the Pre-

²¹ Rule 68 RPE, chapeau.

²² Witness interference has allegedly happened a number of times in cases before the Court. See, for instance, *Situation in the Central African Republic*, ICC-01/05-01/13, Decision pursuant to Article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, 11 November 2014.

²³ See art 56 (4).

²⁴ See, e.g., *Situation in the Democratic Republic of Congo*, ICC-01/04-19, Decision to Hold Consultation under Rule 114, Pre-Trial Chamber I (21 April 2005).

²⁵ That is how Blakesley considers the role of the PTC under art 56; see Sadat Wexler (special edn), 'Observations on the consolidated ICC text before the final session of the Preparatory Committee' (1998) 13*bis* NEP 77.

²⁶ For some similar examples in comparative law, see Italian Code of Criminal Procedure, articles 392 *et seq.*, Model Code of Criminal Procedure for Latin America, article 258.

Trial Chamber must be triggered by the Prosecutor (subparagraph (a)), another substantial difference with the *juge d' instruction*, who usually enjoys full investigative powers.²⁷

- 9 Since investigations rely heavily on the cooperation regime under Part 9, the measures taken by the Pre-Trial Chamber may collide with aspects of national law of the requested State. Pursuant to article 99 para 1, the requested State must nonetheless execute the request for assistance, unless prohibited by its national law, 'in the manner specified in the request, including following any procedure outlined therein or permitting persons specified in the request to be present at and assist in the execution process'. Article 88 ensures that States Parties have procedures available for all the forms of cooperation under Part 9.²⁸

3. Duty to inform the 'suspect'

- 10 Subparagraph (c) establishes the duty of the Prosecutor to provide relevant information regarding the investigative acts to the person arrested or who appeared before the Court in response to a summons. This is a natural consequence of the essential objective of article 56, which is the due protection of the rights of the defence; perhaps the most important measure that can be taken under paragraph 2 vis-à-vis the rights of the defence is the authorization of counsel to participate.²⁹ Moreover, only on the basis of a timely notification to the defence can a person that has been arrested or has appeared before the Court exercise his or her right to make a request under article 57 para 3 (b) to obtain measures enumerated in article 56 from the Pre-Trial Chamber. Accordingly, even if the language in this subparagraph allows the Pre-Trial Chamber to authorize the Prosecutor not to notify the defence, this should only take place in extremely exceptional circumstances and should be balanced by other measures that might equally protect the rights of the defence. The unjustified failure to notify the defence under this subparagraph – including the situation of an erroneous or excessive authorization by the Pre-Trial Chamber – should further lead to inadmissibility of the evidence obtained. Regrettably, the Rules of Procedure and Evidence fail to clarify these issues.

II. Paragraph 2: Exemplary list of measures

- 11 Paragraph 2 contains a non-exhaustive list of possible measures to be taken by the Pre-Trial Chamber in the event of a unique investigative opportunity. As reflected in the bracketed options contained in previous drafts,³⁰ some delegations were reluctant to give the Pre-Trial Chamber, or a judge appointed by it, the power to make 'orders' regarding the procedures to be followed, the collection and preservation of evidence and the questioning of persons. However, later in the negotiation process it was recognized that the Chamber might be faced with situations in which the power to make orders would, indeed, be required, such as the undue refusal of the Prosecutor to make available a certain witness to the defence, or to allow the defence into the site being examined; hence, granting a certain amount of discretion and authority to the Chamber seemed to be necessary.

²⁷ An *ex officio* intervention under para 3 is only possible in the exceptional situation of an 'unjustified' failure of the Prosecutor to request measures provided for in article 56, and is subject to appeal by the Prosecutor. On the scope of the investigative powers of a *juge d' instruction* in some national jurisdictions, see Delmas-Marty (ed.), *Procedures Penales d'Europe* (1995) 437.

²⁸ For a general authorization of audio- or video-recording or the presence of persons at the request of the Court see eg Austrian 'Bundesgesetz über die Zusammenarbeit mit dem Internationalen Strafgerichtshof', § 14 BGBl I 2002/135.

²⁹ Para 2 (d). It has even been stated that the 'only way really to ensure fairness of such a process ... is to have defence counsel oversee the process to protect suspects or potential suspects'; Blakesley, see Sadat Wexler (special edn), 'Observations on the consolidated ICC text before the final session of the Preparatory Committee' (1998) 13*bis* NEP 77. Notification to the defence is also a necessary requirement for a valid taking of evidence in the legal systems, see Italian Code of Criminal Procedure, arts 392 *et seq.*, Model Code of Criminal Procedure for Latin America, article 258.

³⁰ 'Decisions Taken by the Preparatory Committee at its Session Held from 4 to 15 August 1997' (1997) UN Doc A/AC.249/1997/L.8/Rev.1 p 20 fn 18.

The measures included vary in nature and in substance. The Pre-Trial Chamber needs to satisfy itself that the measure to be adopted is the most appropriate to accomplish the goal pursued by paragraph 1 (b) of this provision. This would rule out, for instance, directing that a record be made of the proceedings as an appropriate measure in the case of a unique opportunity to take testimony of a witness: such a measure would not be adequate to cure the harm that could be caused to the rights of confrontation of the defence at trial. At the same time, the Pre-Trial Chamber should interpret the measures set forth in this paragraph in a way that best favours the efficiency and integrity of the proceedings and the rights of the defence. For instance, the Pre-Trial Chamber could authorize under subparagraph (c) that an expert proposed by the defence be also appointed to assist, unless there are compelling reasons not to do so. It must be emphasized that this paragraph does not include a *numerus clausus* of available measures, as demonstrated by its preliminary wording³¹ and its open-ended clause, which empowers the Pre-Trial Chamber to create new measures or expand the existing ones 'as may be necessary to collect or preserve evidence' (subparagraph (f)).³² Rule 114 sub-rule 1 adds unspecified measures to ensure the free communication between the 'suspect' and his or her counsel under article 67 para 1 (b) to the exemplary list in paragraph 2.³³

With regard to paragraph 2 (b), rule 112 sub-rule 5 specifies that the Pre-Trial Chamber may order that the questioning of any person shall be audio- or video-recorded according to the procedure under rule 112.

As noted above, the measure mentioned in subparagraph (d) is probably the most important that can be taken in order to fulfil the objectives of article 56: to authorize counsel to participate, and, following similar provisions in national systems,³⁴ to appoint counsel *ex officio* where there has not been yet an arrest or appearance, for example, because it is still unclear who might be implicated in the crime, or where counsel has not been designated yet by a person who has been arrested or has appeared before the Court.³⁵ Moreover, in the situation of a witness that will not subsequently be available for the purposes of trial, allowing defence counsel to participate and cross-examine the witness is the only remedy that adequately compensates the diminution to the accused's rights of confrontation at trial.

Subparagraph (e) grants the Chamber the power to appoint a judge to assist, to observe and make recommendations or orders regarding the collection or preservation of evidence. The exercise of this power will be essential in the case of depositions, where the appointed judge should act as presiding officer and assure that the act is properly carried out, and that both parties can adequately exercise their rights to cross-examination.³⁶

Finally, the 'catch-all' clause in subparagraph (f) authorizes the Chamber to order 'such other action as may be necessary to collect or preserve evidence'. The formulation '*such* other action' would appear to indicate that these measures must be similar to the measures listed in subparagraph (a) – (e). Therefore, subparagraph (f) would not empower the Pre-Trial Chamber to go beyond the scope of the authority provided by the other sub-provisions of article 56 and, for instance, collect or preserve evidence itself. Rather, the Chamber's authority appears to be limited to the regulation of the procedures for the collection or preservation of evidence.

³¹ 'The measures ... may include' (emphasis added).

³² Fourmy, in: Cassese (ed.), *The Rome Statute of the International Criminal Court* (2002) 1219, assumes that the measures listed 'indicate that the PTC should envisage its role in this respect rather broadly'.

³³ Cf. Friman, in: Fischer et al. (eds.), *International and National Prosecution of Crimes Under International Law* (2001) 18; *id.*, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 493, 507.

³⁴ See Code of Criminal Procedure of Costa Rica, art 294.

³⁵ Pursuant to reg 77 of the Regulations, the Registrar shall establish an Office of Public Counsel for the defence. Its tasks include 'representing and protecting the rights of the defence during the initial stages of the investigation, in particular for the application of article 56, paragraph 2 (d)'.

³⁶ See ICTY Rules of Procedure and Evidence Rule 71 (C).

- 17 Pre-Trial Chamber I's decision in the situation of the Democratic Republic of Congo may serve as an example for the type of applicable measures under article 56. The Chamber authorized the performance of forensic examinations and decided upon the following measures:³⁷ the appointment of an ad hoc counsel to represent the general interests of the defence for the purpose of the forensic examination – a measure according to paragraph 2 (d); an independent laboratory should perform the forensic examinations and it should respond in writing to any additional questions and observations by the Prosecutor or the ad hoc counsel for the defence – measures necessary for the integrity and efficiency of the proceedings and for the protection of the rights of the defence; the laboratory should produce a comprehensive record of its forensic examinations and a report on the conclusions of the examinations – a measure according to paragraph 2 (b); the laboratory should retain in its possession items subject to forensic examination for a certain period³⁸ – a measure necessary to preserve evidence according to paragraph 2 (f). Later on, Pre-Trial Chamber I gave both parties the opportunity to make final observations on the additional report of the laboratory.³⁹

III. Paragraph 3: Decision on measures proprio motu

- 18 This paragraph was drafted anew at the Rome Conference.⁴⁰ It empowers the Pre-Trial Chamber to take any of the measures set forth in paragraph 2 on its own motion or at the request of the defence⁴¹ in the case of failure of the Prosecutor to make a request pursuant to paragraph 1 (b), upon consultation with the Prosecutor. The applicable standard for this determination by the Chamber is more restrictive than the one set forth in paragraph 1: the Pre-Trial Chamber has to satisfy itself that measures under paragraph 2 are required 'to preserve evidence that it deems would be essential for the defence at trial'; moreover, the Chamber needs also to determine that the Prosecutor's failure is unjustified.
- 19 Paragraph 3 does not explicitly regulate whether the Pre-Trial Chamber's intervention needs to be triggered by prior information under paragraph 1 (a) or whether the Pre-Trial Chamber is allowed to take measures proprio motu even if it was not informed of a unique investigative opportunity by the Prosecutor. The literal and systematic interpretation alludes that paragraph 3 is only applicable in case of prior information by the Prosecutor: Paragraph 1 distinguishes clearly between the information of a unique investigative opportunity (subparagraph (a)) and the seeking of measures according to subparagraph (b). The linguistic differentiation leads to the conclusion that paragraph 3 refers to a situation where the Prosecutor has informed the Chamber of a unique investigative opportunity, but has failed to make a request under paragraph 1 (b). This interpretation is supported by the fact that paragraph 1 (a) leaves it to the Prosecutor's discretion to consider whether an investigation presents a unique investigative opportunity. A contrary interpretation would bestow on the Pre-Trial Chamber a more active role than intended in the Rome Conference. Thus, it is for the Prosecutor to decide whether an investigation presents a unique investigative opportunity and for the Pre-Trial Chamber to decide whether measures under paragraph 2 are necessary. If the Prosecutor fails to consider an investigation as a unique investigative opportunity, he

³⁷ *Situation in the Democratic Republic of Congo*, ICC-01/04-21, Decision on the Prosecutor's Request for Measures under article 56, Pre-Trial Chamber I (26 April 2005).

³⁸ Namely until a copy of any additional report produced had been provided to the Registrar.

³⁹ *Situation in the Democratic Republic of the Congo*, ICC-01/04-112, Decision Establishing a Deadline for Final Submissions on the NFI's Additional Report, Pre-Trial Chamber I (8 February 2006).

⁴⁰ See UN Doc A/CONF183/C1/WGPM/L38/Rev1/Corr1.

⁴¹ See art 57 para 3 (b). Victims are not entitled to request measures pursuant to article 56; *Situation in Uganda*, ICC-02/04-112, Decision on the Prosecution's Application for Leave to Appeal the Decision on Victims' Application for Participation a/0010/06, a/0064/06 to a/0070/06, a/0081/06 to a/0104/06 and a/0111/06 to a/0127/06, Pre-Trial Chamber II, paras 31 *et seq.* (19 December 2007) stating that victims have no right to trigger proceedings pursuant to articles 56 and 57. They may only present their views and concerns under evidence gathering procedures according to article 56. See further Schabas, *ICC Commentary* (2010) 693.

or she risks the loss of the evidence, since the Trial Chamber may determine the evidence as inadmissible.⁴² In so far as exonerating evidence is concerned, the Trial Chamber has the authority to take any failure by the Prosecutor to timely trigger article 56 procedures into consideration in its overall assessment of the evidence before it and the fairness of the proceedings.

In an obiter dictum Pre-Trial Chamber II stated that, pursuant to article 56 para 3 (a) and article 57 para 3 (c), ‘the Chamber may even preserve evidence in favour of the defence’.⁴³ As far as article 56 is concerned, this view is controversial⁴⁴. Article 56 para 3 (a) solely deals with *measures* to preserve evidence.⁴⁵ Under this provision, the Chamber may impose conditions on the modalities of taking evidence, even if the Prosecutor has not requested such measures. But this provision does not appear, on its face, to empower the Chamber to take evidence itself.⁴⁶

Rule 114 sub-rule 2 stipulates that a decision under paragraph 3 (a) is to be taken by the full Chamber.

Regulation 48 para 1 of the Regulations vests the Pre-Trial Chamber with added authority to request information from the Prosecutor. When interpreting this much debated provision, it must be kept in mind that the Regulations may only incorporate provisions which are necessary for the routine functioning of the Court.⁴⁷ By no means can the Regulations modify the divisions of functions between Prosecution and Pre-Trial Chambers, as envisaged in the Statute and the Rules. Thus, the Regulations must be interpreted in conformity with the Statute and the Rules. Additional authority granted to Chambers of the Court by virtue of the Regulations should be interpreted in a restrictive manner, and always with the objective of fostering the Court’s routine functioning. This guideline makes clear that under regulation 48 the Chamber may only request additional information, if the consultation with the Prosecutor leaves serious doubts as to whether there was ‘good reason for the Prosecutor’s failure to request the measures’. In this case, the Chamber ‘may request the Prosecutor to provide specific or additional information or documents in his or her possession, or summaries thereof’.⁴⁸

The Rules of Procedure and Evidence do not explicitly provide for consultations with the defence before a decision by the Pre-Trial Chamber on its own motion. However, since measures according to paragraph 3 aim at the preservation of evidence essential for the defence, it seems advisable to hold consultations not only with the Prosecution, but also with the defence, where appropriate, provided that there is a person arrested or who appeared in response of a summons.

Subparagraph (b) was included to address the concerns of some delegations that feared that an unjustified or excessive intrusion of the Pre-Trial Chamber could jeopardize the

⁴² It must be noted that the Pre-Trial Chamber may, at the request of the defence, request a State Party to preserve the evidence. Alternatively, the Pre-Trial Chamber may provide for the preservation of evidence according to art 57 para 3 (c). For details see Guariglia and Hochmayr below art 57 mn 19 and 29.

⁴³ *Situation of Uganda*, No. ICC-02/04-01/05-90-US-Exp, Decision on Prosecutor’s Applications for Leave to Appeal dated the 15th Day of March 2006 and to Suspend or Stay Consideration of Leave to Appeal Dated the 11th Day of May 2006, 10 July 2006, Pre-Trial Chamber II, para 35 (10 July 2006).

⁴⁴ For a discussion, whether article 57 para 3 (c) grants such a power to the Chamber, see Guariglia and Hochmayr below art 57 mn 29.

⁴⁵ See the wording of para 3 (a): ‘measures pursuant to this article’; ‘such measures’.

⁴⁶ Concurring van Heek, *Die Weiterentwicklung des formellen Völkerstrafrechts* (2006) 210. For a different view, see Krefß (2003) *JICJ* 607, stating that art 56 ‘entrusts the Pre-Trial Chamber with a subsidiary proprio motu role as an investigative body’.

⁴⁷ Article 52 para 1.

⁴⁸ In the situation in the Democratic Republic of Congo, the Prosecutor expressed his opinion that ‘the consultation process enshrined in article 56 (3) and Rule 114 (2), ... necessarily require the provision of details pertaining to the measures being considered’; *Situation in the Democratic Republic of Congo*, No. ICC-01/04-12-Anx, Prosecutor’s Position on Pre-Trial Chamber I’s 17 February 2005 Decision to Convene a Status Conference, para 22 (8 March 2005). This seems self-evident, since, in the first place, the Chamber has to work towards the Prosecution seeking the measures.

investigation of crimes within the jurisdiction of the Court. In order to avoid undue delay in the proceedings, it was decided that an appeal brought by the Prosecutor against the Chamber's Decision should be heard on an expedited basis.⁴⁹

IV. Paragraph 4: Admissibility of evidence

- 25 In an important decision, delegations decided not to specify the relative weight to be attached to evidence taken under article 56, but rather to leave the determination of its probative value, as well as its admissibility, to the Trial Chamber under the principles established in article 69. This is consistent with the rationale underpinning article 56, which is to ensure efficiency, integrity and fairness in the collection of specific evidence, but not to create 'sacred' evidence that may not be subsequently challenged or tested at trial, as used to happen in many civil law systems with the evidence collected by the *juge d'* instruction⁵⁰. Accordingly, the Trial Chamber is free to rule on the admissibility and relevance of evidence obtained pursuant to article 56, subject to the criteria set forth in article 69 para 4 and in the Rules of Procedure and Evidence, and even to decide its exclusion in the scenario envisaged by article 69 para 7.

⁴⁹ Under article 56, the defence does not have a right to appeal the decision by the PTC to act on its own initiative. According to article 82 para 1 (c) either party may appeal a decision of the PTC to act on its own initiative under art 56 para 3. Schabas, *ICC Commentary* (2012) 694, suggests to dissolve the discrepancy in favour of the defence.

⁵⁰ See Maier, *Derecho Procesal Penal* (1996) vol I 355.

Article 57

Functions and powers of the Pre-Trial Chamber

1. Unless otherwise provided in this Statute, the Pre-Trial Chamber shall exercise its functions in accordance with the provisions of this article.
2. (a) Orders or rulings of the Pre-Trial Chamber issued under articles 15, 18, 19, 54, paragraph 2, 61, paragraph 7, and 72 must be concurred in by a majority of its judges.
(b) In all other cases, a single judge of the Pre-Trial Chamber may exercise the functions provided for in this Statute, unless otherwise provided for in the Rules of Procedure and Evidence or by a majority of the Pre-Trial Chamber.
3. In addition to its other functions under this Statute, the Pre-Trial Chamber may:
 - (a) At the request of the Prosecutor, issue such orders and warrants as may be required for the purposes of an investigation;
 - (b) Upon the request of a person who has been arrested or has appeared pursuant to a summons under article 58, issue such orders, including measures such as those described in article 56, or seek such cooperation pursuant to Part 9 as may be necessary to assist the person in the preparation of his or her defence;
 - (c) Where necessary, provide for the protection and privacy of victims and witnesses, the preservation of evidence, the protection of persons who have been arrested or appeared in response to a summons, and the protection of national security information;
 - (d) Authorize the Prosecutor to take specific investigative steps within the territory of a State Party without having secured the cooperation of that State under Part 9 if, whenever possible having regard to the views of the State concerned, the Pre-Trial Chamber has determined in that case that the State is clearly unable to execute a request for cooperation due to the unavailability of any authority or any component of its judicial system competent to execute the request for cooperation under Part 9.
 - (e) Where a warrant of arrest or a summons has been issued under article 58, and having due regard to the strength of the evidence and the rights of the parties concerned, as provided for in this Statute and the Rules of Procedure and Evidence, seek the cooperation of States pursuant to article 93, paragraph 1 (k), to take protective measures for the purpose of forfeiture, in particular for the ultimate benefit of victims.

Literature: Ambos, K., 'The Legal Basis of the International Criminal Court', in: L. Arbour *et al.* (eds.), *The Prosecutor of a Permanent International Criminal Court* (Max-Planck-Institut 2000) 3; Delmas-Marty, M., 'The ICC and the Interaction of International and National Legal Systems', in: A. Cassese (ed.), *The Rome Statute of the International Criminal Court* (OUP 2002) 1915; Fourmy, O., 'Powers of the Pre-Trial Chambers', in: A. Cassese (ed.), *The Rome Statute of the International Criminal Court* (OUP 2002) 1207; Friman, H., 'The Rules of Procedure and Evidence in the Investigative Stage', in: H. Fischer *et al.* (eds.), *International and National Prosecution of Crimes Under International Law* (Arno Spitz 2001) 191; Guariglia, F., 'Investigation and Prosecution', in: R.S. Lee (ed.), *The International Criminal Court. The Making of the Rome Statute* (Kluwer Law International 1999) 227; van Heeck, S., *Die Weiterentwicklung des formellen Völkerstrafrechts* (Duncker & Humblot 2006); de Hemptinne, J. and Rindi, F., 'ICC Pre-Trial Chamber Allows Victims to Participate in the Investigation Phase of Proceedings', (2006) 4 *JICJ* 342; Jorda, C. and Saracco, M., 'The raisons d'être of the Pre-Trial Chamber of the International Criminal Court', in: E. Decaux *et al.* (eds.), *From Human Rights to International Criminal Law. Studies in Honour of an African Jurist, the Late Judge Laity Kama* (Martinus Nijhoff Publishers 2007) 419; Krefß, C., 'The Procedural Law of the International Criminal Court in Outline: Anatomy of a Unique Compromise', (2003) 1 *JICJ* 603; Marchesiello, M., 'Proceedings before the Pre-Trial Chambers', in: A. Cassese (ed.), *The Rome Statute of the International Criminal Court* (OUP 2002) 1231; Miraglia, M., 'The First Decision of the ICC Pre-Trial Chamber', (2006) 4 *JICJ* 188; Politi, M. and Gioia, F., 'The Criminal Procedure before the International Criminal Court: Main Features', (2006) 1 *LAPE* 103; Rackwitz, K., 'Vom Vertrag zur Realität: Der Aufbau des Internationalen Strafgerichtshofs in Den Haag', in: G. Theissen and M. Nagler (eds.), *Der Internationale Strafgerichtshof. Tagungsdokumentation* (Deutsches Institut für Menschenrechte 2004) 18; Scheffer, D., 'A review of the experiences of the Pre-Trial and Appeals Chambers of the International Criminal

Court regarding the disclosure of evidence' in: C. Stahn and G. Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (Brill 2009) 585; De Smet, S., 'A structural analysis of the role of the Pre-Trial Chamber in the fact-finding process of the ICC', in: C. Stahn and G. Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (Brill 2009) 405; Stahn, C., Olásolo, H. and Gibson, K., 'Participation of Victims in Pre-Trial Proceedings of the ICC', (2006) 4 *IJCJ* 219; Turone, G., 'Powers and Duties of the Prosecutor', in: A. Cassese (ed.), *The Rome Statute of the International Criminal Court* (OUP 2002) 1137; Wladimiroff, W., 'The Prosecutor v. Dusko Tadić', (1998) 13 *AmUILRev* 1447.

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A. Introduction

- 1 The Draft Statute prepared by the ILC in 1994 did not envision a Pre-Trial Chamber.¹ Rather, it generally designated the Presidency to carry out most pre-trial functions, with some, such as rulings on admissibility, carried out by a Trial Chamber.² During 1996 and 1997, however, sentiment grew in favour of the establishment of a Pre-Trial Chamber to carry out those judicial functions provided for under the Statute that are exercised prior to the commencement of trial. Thus, by the time of the preparation of the Zutphen text in January 1998, most references to the Presidency as a body to regulate pre-trial matters had been replaced by references to the Pre-Trial Chamber.³
- 2 However, with the Rome Conference rapidly approaching, there had been no formal discussion regarding organizational issues central to the smooth functioning of the Pre-Trial Chamber. For example, there was as yet no regulation of the circumstances in which the Pre-Trial Chamber would be required to act collegially, as opposed to when its functions could be carried out by a single judge. In the Spring of 1998, at the final Preparatory Committee prior to Rome, informal consultations were commenced on the regulation of these issues. Debate continued upon commencement of the Rome Conference, ultimately leading to the final formulation of article 57.⁴
- 3 It has been pointed out that the establishment of the Pre-Trial Chamber was an 'important building block in the bridging of different legal traditions'.⁵ Together with the Pre-Trial

¹ International Law Commission, 'Report of the International Law Commission on the Work of its Forty-Sixth Session, Draft Statute for an International Criminal Court' (2 May–22 July 1994) UN Doc A/49/10 arts 26–36 pp 13–18.

² *Ibid.*

³ 'Report of the Inter-Sessional Meeting from 19 to 30 January 1998 in Zutphen, The Netherlands' (4 February 1998) UN Doc A/AC.249/1998/L.13 articles 12, 47–54 pp 86–105.

⁴ See 'Report of the Working Group on Procedural Matters' UN Doc A/CONF.183/C.1/WG PM/L.2/Add.4 and A/CONF.183/C.1/WGPM/L.2/Add.6. The following UN documents issued in the Working Group on Procedural Matters at the Rome Conference are also useful in tracing the development of this article: A/CONF.183/C.1/WGPM/L.38; A/CONF.183/C.1/WGPM/L.38/Rev.1; A/CONF.183/C.1/WGPM/L.38/Rev.1/Corr.2; A/CONF.183/C.1/WGPM/L.64.

⁵ Friman, in: Fischer *et al.* (eds.), *International and National Prosecution of Crimes Under International Law* (2001) 191, 192.

Chamber a certain degree of judicial control was introduced at the investigation stage. In this sense, the establishment of a Pre-Trial Chamber stems from the Civil Law tradition, where prosecutorial and investigative activities frequently undergo judicial scrutiny. Nevertheless, it must be emphasized that the Pre-Trial Chamber is not an investigative chamber.⁶ In contrast to the 'juge d'instruction' of civil law systems, the Pre-Trial Chamber has no investigative powers of its own nor is it responsible for directing or supervising the investigations of the Prosecutor.⁷ Rather, the Statute establishes a hybrid system of the proceedings which lacks precedents at the international level. Perhaps due to its novelty, certain difficulties have arisen in the determination of the sphere of competence of the Pre-Trial Chamber *vis-à-vis* that of the Prosecutor. The notion that the Pre-Trial Chamber is not an 'investigative Chamber' is one that by now appears to have been firmly established in the ICC's case-law.⁸

The Statute assigns to the Pre-Trial Chamber a set of rather clear defined powers:

- authorization of a *proprio motu* investigation by the Prosecutor, article 15 para 3
- authorization of an investigation by the Prosecutor despite the request of a State for deferral, article 18 para 2
- authorization of preservation of evidence after the Prosecutor's deferral to a State's investigation or pending a ruling by the Pre-Trial Chamber, article 18 para 6
- decision on challenges to jurisdiction or on admissibility prior to the confirmation of the charges, article 19 para 6
- review of a decision by the Prosecutor not to initiate or continue an investigation or prosecution, article 53 para 3
- involvement in a unique investigative opportunity, article 56
- issuance of orders or warrants requested by the Prosecutor for the purpose of investigation, article 57 para 3 (a)
- issuance of orders or requests for State cooperation on behalf of the defence, article 57 para 3 (b)
- authorization of the Prosecutor to on-site-investigations without the consent of the State concerned, article 57 para 3 (d)
- ordering of protective measures for the purpose of forfeiture, article 57 para 3 (e)
- issuance of warrants for arrest or summons to appear, article 58
- recommendations as to interim release pending surrender to the Court, article 59
- monitoring of custody and issuance of orders for interim release after surrender, article 60
- informing the person about his or her rights, article 60
- appointing counsel, articles 61 para 2, 67 para 1
- confirmation of the charges before trial, article 61

⁶ See, eg, Cassese, *International Criminal Law* (2008) 373; Delmas-Marty, in: Cassese (ed.), *The Rome Statute of the International Criminal Court* (2002) 1915, 1926; Miraglia (2006) 4 JICJ 188, 190. A. Cassese *ibid* observes that 'the Pre-Trial Chamber plays a major role in scrutinizing and monitoring the action of the Prosecutor, in particular for the purpose of safeguarding both respect for the rights of the suspect or accused and correct conduct of business by the Prosecutor. In many respects this Chamber plays the role that, in some civil law systems which largely borrow from the common law tradition, is entrusted to a judge, who however is not the 'investigating judge' of civil law systems. This is a judge deprived of the power to conduct investigations and to order, among other things, the detention of suspects. He only acts as a judicial guarantee of full respect for law by the prosecuting authorities and for the issuing of any order requested by those authorities, which may entail curtailment of the rights of the suspect or other persons'.

⁷ *Prosecutor v. William Samoei Ruto et al*, ICC-01/09-01/11-01, Decision on the Prosecutor's Application for Summons to Appear for William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang, Pre-Trial Chamber II, 8 March 2011, para 16 <<http://www.legal-tools.org/doc/6c9fb0/>>.

⁸ See, inter alia, *Prosecutor v. William Samoei Ruto et al*, ICC-01/09-01/11-01, Decision on the Prosecutor's Application for Summons to Appear for William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang, Pre-Trial Chamber II, 8 March 2011, para 16 <<http://www.legal-tools.org/doc/6c9fb0/>>; see also the dissent by Judge Fernández in the 3 June 2013 Decision Adjourning the Hearing on the Confirmation of Charges pursuant to article 61 (7) (c) (i) of the Rome Statute, *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-432-Anx-Corr, 6 June 2013, para 51 <<http://www.legal-tools.org/doc/9a3b94/>>: '[t]he Pre-Trial Chamber is not an investigative chamber and does not have the mandate to direct investigations of the Prosecutor'.

- resolving issues referred to it by the Trial Chamber, article 64 para 4
- participation in the protection of national security information under article 72.

In addition to these powers, article 57 para 3 (c) holds the Pre-Trial Chamber responsible, ‘where necessary’, to provide for the protection of victims, witnesses, persons arrested or who appeared in response to a summons, national security information and for the preservation of evidence. The scope of this general clause has led to differences between Pre-Trial Chambers and the Prosecutor at the initial stages of the Court’s existence about the function and role of the Pre-Trial Chamber during an investigation. At the heart of that tension lies the question of whether paragraph 3 (c) is a sub-provision broadening the scope of Pre-Trial Chambers’ supervisory authority, or simply an internal cross-reference to other provisions in the Statute, such as articles 56 or 72.⁹

B. Analysis and interpretation of elements

I. Paragraph 1: Exercise of functions

- 5 The text of paragraph 1 originates from document A/CONF.183/C.1/WGPM/L.8, the first proposal to concentrate most of the Pre-Trial Chamber’s functions in a single provision. It aims to avoid any inconsistency within the Statute by clearly establishing that in case another article contains a conflicting provision governing pre-trial procedure, that provision shall prevail. At the conclusion of the Conference, the Statute contained no provisions conflicting with article 57.¹⁰ However, future amendments of the Statute could introduce new provisions or amend the existing ones, and provide that certain functions of the Pre-Trial Chamber should be otherwise performed, in which case the proviso would avoid any collision between those new rules and article 57.

II. Paragraph 2: Decision of powers

- 6 By the commencement of the Rome Conference, the Pre-Trial Chamber was anticipated to consist of either one or three judges,¹¹ which would carry out numerous judicial functions. A number of functions to be exercised by the Chamber were of considerable significance¹² and were felt more suitable for consideration by three judges, others (such as notifying a person of his or her rights or appointing counsel) were routine and capable of consideration by a

⁹ For an illustration of this discussion see, *inter alia*, *Situation in the Democratic Republic of Congo*, No. ICC-01/04-9, Decision to Convene a Status Conference, Pre-Trial Chamber I, 17 February 2005 <<http://www.legal-tools.org/doc/236413/>>; *Situation in Uganda*, ICC-02/04-01/05-147, Decision on the Prosecutor’s Application that the Pre-Trial Chamber Disregard as Irrelevant the Submission Filed by the Registry on 5 December 2005, Pre-Trial Chamber II, 9 March 2006 <<http://www.legal-tools.org/doc/0568f7/>>. See also *Situation in the Democratic Republic of Congo*, ICC-01/04-103, Prosecution’s Application for Leave to Appeal Pre-Trial Chamber I’s Decision on the Applications for Participation in the Proceedings of VPRS 1, VPRS 2, VPRS 3, VPRS 4, VPRS 5 and VPRS 6, Pre-Trial Chamber I, 23 January 2006, in particular para 27 <<http://www.legal-tools.org/doc/4063c7/>>; *Situation in Uganda*, ICC-02/04-85, Prosecution’s Reply under Rule 89 (1) to the Applications for Participation of Applicants a/0010/06 et al, 28 February 2007, fn 53 <<http://www.legal-tools.org/doc/11f805/>>.

¹⁰ Related provisions in the Statute referring to composition and other functions of the Pre-Trial Chamber are articles 39 para 2 (b) (iii), 61 para 11 and 64 para 4. The first provision establishes that functions of the Pre-Trial Chamber shall be carried out either by three judges of the Pre-Trial Division or by a single judge of that division, in accordance with the Statute and the Rules of Procedure and Evidence, and is obviously qualified by the standard adopted in article 57 para 2. Art 61 para 11 provides that once the charges have been confirmed by the Pre-Trial Chamber, its functions are taken over by the Trial Chamber. Finally, art 64 authorizes the Trial Chamber to refer preliminary issues to the Pre-Trial Chamber or, if necessary, to another available judge of the Pre-Trial Division.

¹¹ See ‘Report of the Preparatory Committee on the Establishment of an International Criminal Court, Draft Statute and Draft Final Act’ (14 April 1998) UN Doc A/CONF.183/2/Add.1 art 40 para 6 p 66.

¹² See discussion on subpara (a) below mn 7.

single judge, while yet other functions could be either routine or significant depending on the complexity or importance of the case. Given the small size of the Pre-Trial Chamber, it was also necessary to ensure the flexibility to permit a single judge to carry out a sufficient number of functions so that the decision making process would be expeditious. Accordingly, in paragraph 2, the Conference agreed on a bifurcated standard for the carrying out of functions of the Chamber.

1. Orders and rulings by a majority

Subparagraph (a) imposes an absolute requirement that certain functions be exercised by 7 the Chamber only where at least two of its three judges concur. These functions, which were viewed by the Conference as the most significant matters within the Pre-Trial Chamber's competence,¹³ are: approval of the commencement of a proprio motu investigation by the Prosecutor under article 15; ruling on admissibility or jurisdiction under articles 18 and 19; authorization of investigative activity by a Prosecutor on the territory of a State under article 54 para 2 (b); confirmation of charges under article 61 para 7; and the taking of action with respect to the assertion by a State under article 72 that the use of certain evidence by the Court would harm its national security.

2. Exercise by a single judge

In addition to the functions regulated under subparagraph (a), the Pre-Trial Chamber 8 exercises numerous other functions under the Statute.¹⁴ In order to provide the Chamber with greater flexibility and efficiency, subparagraph (b) envisions that the Chamber may consign a single judge to exercise these functions 'unless otherwise provided for in the Rules of Procedure and Evidence or by a majority of the Pre-Trial Chamber'. The Rules of Procedure and Evidence reserve the following functions to the full Chamber: the review of a decision of the Prosecutor not to proceed with an investigation under article 53 (rule 108 sub-rule 1, rule 110 sub-rule 1) and the decision of the Pre-Trial Chamber to take measures on its own initiative in respect of a unique investigative opportunity under article 56 para 3 (rule 114 sub-rule 2). Additionally, even if the Pre-Trial Chamber has appointed a single judge, the Chamber retains discretion to reserve complex or significant matters for consideration by a full bench. According to rule 7 sub-rule 3, the Pre-Trial Chamber may do so 'on its own motion or, if appropriate, at the request of a party'. In the situation of Uganda, Pre-Trial Chamber II decided proprio motu that the functions of the single judge be exercised by the full Pre-Trial Chamber with respect to all aspects of the Prosecutor's application to issue a warrant of arrest.¹⁵ The rule, however, does not vest 'either party with an unqualified right to obtain that the Chamber acts in its full composition upon request'; rather, a party seeking to have the functions of the Single Judge exercised by the full Chamber will have to show that its request is 'appropriate' and justifies such action.¹⁶

The Pre-Trial Chamber may regulate the amount of functions transferred to a single 9 judge.¹⁷ Further, pursuant to regulation 47 para 2 of the Regulations, the Pre-Trial Chamber 'may designate more than one single judge when the efficient management of the workload of the Chamber so requires'. In exercising this option, Pre-Trial Chamber II installed two

¹³ As Ambos has pointed out, these decisions concern 'formal jurisdiction or politically sensitive decisions'; in: Arbour *et al.* (eds.), *The Prosecutor of a Permanent International Criminal Court* (2000) 3, 24 fn 44.

¹⁴ See above mn 4.

¹⁵ *Situation in Uganda*, ICC-02/04-6-US-Exp, Decision on the Exercise of Functions by the Full Chamber in Relation to an Application by the Prosecutor under article 58, Pre-Trial Chamber II, 18 May 2005 <<http://www.legal-tools.org/doc/5950a5/>>.

¹⁶ *Prosecutor v. Bemba, Kilolo et al.*, ICC-01/05-01/13-434, Decision on the 'Defence request for the Exercise of Judicial Functions by the Full Pre-Trial Chamber' Submitted by the Defence for Aimé Kilolo Musamba on 7 May 2014, Pre-Trial Chamber II, 28 May 2014, para 6 <<http://www.legal-tools.org/doc/963ae0/>>.

¹⁷ Implicit in r 7 (3), which grants the Chamber the greater power to resume the functions of the Single Judge.

single judges in the case *Kony and others*: one responsible for issues relating to the unsealing of documents and one responsible for all issues arising in connection with victims' applications for participation.¹⁸

- 10 Regulation 47 para 2 stipulates that, as far as possible, the single judge shall act for the duration of a case. This provision, however, does not prevent time limits for the intervention of a single judge,¹⁹ or the temporarily substitution or the replacement of the single judge²⁰ on the basis of reasons such as the complexity of the case, the interest of expeditious proceedings or an excessive workload. The relevant criteria for the appointment of a single judge are contained in rule 7 sub-rule 1 and in regulation 47 para 1 of the Regulations.

III. Paragraph 3: Additional functions

- 11 In paragraph 3, a number of functions of the Chamber are treated that previously had been either placed elsewhere in the Statute,²¹ or had not been treated in earlier versions of the Statute.

1. Orders and warrants for investigations

- 12 Rather than taking the approach of rule 54 of the ICTY Rules of Procedure and Evidence,²² which bestows general powers upon a judge or Trial Chamber of the Tribunal, the ICC Statute has adopted a more nuanced approach, varying types of orders that may be issued according to the purpose for which they are intended. Article 57 para 3 (a) allows the Pre-Trial Chamber to issue such orders and warrants as may be required for the purposes of an investigation at the request of the Prosecutor.
- 13 At the outset, it should be noted that the term 'subpoena' – contained in earlier proposals²³ – has not been included in the final version of article 57. The practical consequences of this decision will depend on the precise meaning of that term. To the extent that a subpoena is understood to be a command from a judicial authority to appear as a witness, or produce evidence like books, documents or other things, under certain conditions established by that authority, then there was probably no need to use the common law term 'subpoena' in the text of the Statute, as this concept is already covered by the use of the term 'order'.²⁴ However, if the term is construed in the manner the ICTY Appeals Chamber has interpreted it, to mean 'binding orders addressed ... *under threat of penalty*, to individuals acting in their private

¹⁸ *Prosecutor v. Kony et al*, ICC-02/04-01/05-87, Decision appointing a single judge for unsealing of documents, Pre-Trial Chamber II, 30 May 2006 <<http://www.legal-tools.org/doc/870255/>>; *Situation in Uganda*, ICC-02/04-01/05-130, Decision designating a Single Judge on Victims' Issues, Pre-Trial Chamber II, 22 November 2006 <<http://www.legal-tools.org/doc/1a93cb/>>.

¹⁹ For many decisions of this kind, see only *Situation in the Democratic Republic of Congo*, ICC-01/04-123-tEN, Decision designating a Single Judge, Pre-Trial Chamber I, 14 March 2006 <<http://www.legal-tools.org/doc/8dd5d9/>>.

²⁰ See *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-321, Decision on the Temporary Substitution of the Single Judge, Pre-Trial Chamber I, 11 August 2006 <<http://www.legal-tools.org/doc/c0908b/>> and *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-520, Decision on the Replacement of the Single Judge, Pre-Trial Chamber I, 5 October 2006 <<http://www.legal-tools.org/doc/5e6eef/>>.

²¹ This restructuring was part of the process by which the articles treating commencement of the investigation through confirmation of the charges were redrafted to provide greater clarity and simplicity. See 'Working Paper on article 54' UN Doc A/CONF.183/C.1/WGPM/L.1.

²² ICTY r 54 reads: 'At the request of either party or proprio motu, a Judge or a Trial Chamber may issue such orders, summonses, subpoenas, warrants and transfer orders as may be necessary for the purposes of an investigation or for the preparation or conduct of the trial'.

²³ See Report of the Preparatory Committee, note 11, art 54 para 5 p 92.

²⁴ For the definition of this term see note 32. This interpretation would match the definition of subpoena as set forth in *Prosecutor v. Tihomir Blaskić*, Decision on the objection of the Republic of Croatia to the Issuance of a subpoena duces tecum, ICTY Trial Chamber, 18 July 1997, para 64: 'the issuance of a subpoena duces tecum to a State for the production of government documents is nothing more than an order compelling the production of those documents'. This proposed definition was, however, later rejected by the Appeals Chamber of the ICTY.

capacity',²⁵ then omission of the term appears to have had the effect of limiting the powers of the Court. The Appeals Chamber concluded, under its Statute, that the Tribunal does not have the power to issue subpoenas (meant as binding orders under threat of penalty) either to States²⁶ or to State officials,²⁷ but is empowered to subpoena individuals acting in their private capacity.²⁸ In contrast, under the ICC Statute an order addressed to a person, instructing him or her to appear before the Court as a witness would necessarily be conducted through the Part 9 procedure, and in accordance with its rules and principles. Under article 93, there is no absolute requirement to produce witnesses or items before the Court. While States Parties are obligated to comply with requests of the Court to provide assistance in relation to investigations or prosecutions, including, *inter alia*, the taking of testimony under oath and production of evidence, article 93 para 1 (b), they must only facilitate the *voluntary appearance* of persons and witnesses before the Court, paragraph 1 (e),²⁹ or temporarily transfer a person in custody where the person 'freely gives his or her *informed consent* to the transfer', article 93 para 7 (a) (i).³⁰ Moreover, if the Court attempts to compel from a person or a State production of evidence which relates to the State's national security, the State may object, article 93 para 4; article 72 paras 1, 2. Thus, the ICC Statute does not appear to vest the Court with the power to coercively compel individuals to assist in an investigation or a prosecution;³¹ this is consistent with the intention of the drafters to use the obligations of States Parties under Part 9, rather than the direct exercise of compulsory measures on individuals, as the mean to ensure an adequate investigation and prosecution of the crimes within the jurisdiction of the Court.

Whereas an order is defined as 'a written direction or command delivered by a court or judge', the definition for a warrant is: 'a writ directing or authorizing someone to do an act, esp. one directing a law enforcer to make an arrest, a search or a seizure'.³² Thus, a warrant is a specific type of order that authorizes the executing organ to direct enforcement. The most important type of warrant is the arrest warrant, specifically regulated in article 58. Pursuant to rule 113, an order of the Pre-Trial Chamber is also required for a medical, psychological or psychiatric examination of the 'suspect'.³³ Apart from these examples, there is no provision specifying which investigative measures require an order or a warrant. Thus, the issue is left to the discretion of the Court, and to the specific requirements that States Parties may have for the purposes of executing requests for cooperation.

The orders and warrants may refer to, *inter alia*, the questioning of persons being investigated, the production and service of documents and records, the examination of sites or places, the preservation of evidence and the execution of searches and seizures.³⁴ As already noted, the Rules have not limited the kinds of orders or warrants that may be issued by the Pre-Trial Chamber.³⁵ In general, orders and warrants issued under this article are transmitted

²⁵ *Prosecutor v. Tihomir Blaskić*, Judgement on the request of the Republic of Croatia for review of the decision of Trial Chamber II of 18 July 1997, ICTY Appeals Chamber, 29 October 1997, para 21 *in fine*. Emphasis added.

²⁶ *Ibid.* para 25.

²⁷ *Ibid.* para 38.

²⁸ *Ibid.* paras 46–48. On the concept of 'individuals acting on their private capacity' see paras 49–51.

²⁹ Emphasis added.

³⁰ Emphasis added.

³¹ Moreover, the natural remedy at the ICC level for non-compliance with a subpoena would be the use of the powers of contempt of the Court. However, non-compliance with an order of the Court is not an offence foreseen in the Statute (see the *numerus clausus* of offences against the administration of justice set forth in art 70).

³² Garner (ed.), *Black's Law Dictionary* (2009) 1206, 1722.

³³ Before issuing such an order, the Chamber 'shall consider the nature and purpose of the examination and whether the person consents to the examination'. For details, see Friman, in: Fischer *et al.* (eds.), *International and National Prosecution of Crimes under International Law* (2001) 191, 198 *et seq.* In the opinion of Schabas, *ICC Commentary* (2010) 701, 'this authority seems excessive, given that the suspect is not yet charged with a crime'. But for a similar authority in comparative law see Austrian Code of Criminal Procedure § 123 in conjunction with § 48 (1) Z. 1; German Code of Criminal Procedure §§ 81 *et seq.*

³⁴ The rules governing the issuance of a warrant of arrest or a summons to appear are specifically spelled out in art 58.

³⁵ It must be noted that not only art 57 para 3 (a) speaks about 'orders and warrants' generally, but also that art 93 para 1 concludes with an open-ended clause: '(l) Any other type of assistance which is not prohibited by

to States via a request for assistance under Part 9; States Parties are generally obliged by article 93 to comply with them (subject to certain limitations of national law under article 93 para 1 and para 1 subpara (l), and to national security concerns under article 93 para 4). When subparagraph (d) applies, no request for assistance need be made; rather, the warrants and orders issued by the Pre-Trial Chamber may be directly executed by the Prosecutor in the territory of a State Party.³⁶

- 16 Finally, the orders and warrants required by the Prosecutor must be necessary for the purposes of an investigation. Therefore, the Pre-Trial Chamber would be free to reject a request for the résumé of an order or warrant³⁷ on regards that the Prosecutor is embarking in a mere ‘fishing expedition’.

2. Assistance for arrested persons

- 17 This provision establishes the power of the Pre-Trial Chamber to assist the person arrested or who appeared pursuant to a summons in the preparation of his or her defence, thereby giving effect to a right of the accused under article 67 para 1 (b).³⁸ Conversely, it grants the defence a procedural right to obtain such assistance from the Pre-Trial Chamber.³⁹ As the negotiation process advanced, it became clear to delegations that the defence would require assistance for the preparation of his or her case: the defence, not being an organ of the ICC, could often face a disadvantage when attempting to collect evidence.⁴⁰ Not only would the defence have to surmount many practical obstacles, such as distance, costs, or outright refusal of national authorities to allow the defence counsel into their territory; requests for assistance directed at States coming from the defence might also be disregarded by the national authority in charge of its execution or they might be executed less diligently than a request coming from an organ of the Court.⁴¹
- 18 Thus, subparagraph (b) attempts to balance the situations of the accused person and the Prosecutor at the pre-trial stage, by providing – even if incompletely – some degree of ‘equality of arms’ during this procedural phase, rather than obliging the defence to rely solely on his or her right of cross-examination at trial. The defence is entitled to seek orders (not warrants), including an order to involve the Pre-Trial Chamber and the defence in specific acts of investigation under article 56 (unique investigative opportunities).⁴²
- 19 Apart from orders pertaining to unique investigative opportunities, it remains unclear which types of orders the Chamber may issue. H. Friman considers that the Pre-Trial Chamber may even order investigative measures in favour of the defence, if the Prosecutor does not comply with the defence’s request for such measures.⁴³ Against this it can be argued

the law of the requested State, with a view to facilitating the investigation and prosecution of crimes within the jurisdiction of the Court’.

³⁶ See commentary to subpara (d) below.

³⁷ The ICTY has held that this is an implicit part of a court’s supervisory powers. See the test adopted in *Prosecutor v. Zejnil Delacic et al.*, IT-96-21-T, Decision of the President on the Prosecutor’s motion for the production of notes exchanged between Zejnil Delalic and Zdravko Mucic, 11 November 1996, para 39: ‘(a) an order of the International Tribunal must be necessary for the Prosecutor to obtain such material; and (b) the material being sought must be relevant to an investigation or prosecution being conducted by the Prosecutor. As with any search or seize warrant, the Prosecutor cannot simply conduct a “fishing expedition” through the Registrar’s records’.

³⁸ Since the arrest warrant or summons to appear is considered an accusatory instrument under the Statute, a person arrested or appeared pursuant to a summons under art 58 is already an ‘accused person’, who fully enjoys the rights spelled out in art 67.

³⁹ Prior versions of this subparagraph characterized this measure as a right of a ‘suspect’. See ‘Report of the Preparatory Committee’, note 11, art 54 para 13 and corresponding NB 94–95.

⁴⁰ See the presentation by Wladimiroff, defence counsel before the ICTY, (1998) 13 *AmUILRev* 1447, 1449–51.

⁴¹ It is very easy to imagine, for instance, how the ‘no grounds for refusal’ general principle under art 93 would be applied vis-à-vis a request for assistance coming from a non-organ of the ICC.

⁴² See Guariglia and Hochmayr above art 56 mn 7.

⁴³ Friman, in: Fischer *et al.* (eds.), *International and National Prosecution of Crimes Under International Law* (2001) 191, 200.

that vesting Pre-Trial Chambers with the authority to instruct the Prosecutor to accomplish investigative acts would undermine the latter's independence. Further, a proposal to provide the Pre-Trial Chamber with the power to order the Prosecutor to perform investigative acts was met with resistance during the negotiating process.⁴⁴ It is not controversial, however, that the Pre-Trial Chamber may order investigative measures on behalf of the defence through the cooperation regime under Part 9. In addition, the Chamber may provide for the preservation of evidence under subparagraph (c) (see mn 29).

Examples of orders in the *Lubanga case* include an order by Pre-Trial Chamber I to the Prosecution to transmit material in its custody or under its control which was necessary for the defence's preparation of the confirmation hearing.⁴⁵ The Chamber also ordered the Registry to assign an interpreter to assist the defence for the purpose of the confirmation hearing⁴⁶ and to appoint an additional legal assistant for the defence.⁴⁷

Rule 113 deals with another kind of order: a suspect may request from the Pre-Trial Chamber an order for his or her medical, psychological or psychiatric examination. This request is possible with regard to grounds excluding responsibility under article 31 or for the purpose of determining whether the person is 'fit' to stand trial.⁴⁸

Rule 82 sub-rule 5 stipulates that, upon application by the defence, the Chamber may order restrictions on disclosure of material and information in the possession of the accused, which has been provided to him or her on the condition of confidentiality and solely for the purpose of generating new evidence.

In addition, sub-paragraph (b) entitles the defence, through the Pre-Trial Chamber, to obtain cooperation from States and intergovernmental organizations pursuant to Part 9. This request for assistance, even if originated by the defence, would emanate from an organ of the Court (the Pre-Trial Chamber), and the requested State would be required to give it the treatment accorded to other requests for cooperation by the Court.⁴⁹

The threshold for an order under article 57 para 3 (b) is lower than that for measures under article 56 para 3 (a). Whereas the latter requires that the measures are 'essential for the defence at trial', for the former it suffices that the orders are 'necessary to assist the person in the preparation of his or her defence'. Rule 116 sub-rule 1 (a) states more precisely that the Pre-Trial Chamber must be 'satisfied that such an order would facilitate the collection of evidence that may be material to the proper determination of the issues being adjudicated, or to the proper preparation of the person's defence'. The wording of this rule shows clearly that this kind of assistance is not limited to exculpatory or mitigating evidence.⁵⁰ Nor is it limited to the defence's preparation of the pre-trial phase of the case; an interpretation that the requested order must be necessary for the preparation of the confirmation hearing⁵¹ is not

⁴⁴ See Guariglia, in: Lee (ed.), *The International Criminal Court. The Making of the Rome Statute* (1999) 227, 237. Concurring De Smet, in: Stahn and Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (2008) 405, 424: 'The Statute does not, however, give the power to the PTC to instruct the Prosecutor to carry out investigations for the benefit of the Defence'.

⁴⁵ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-718, Decision on Defence Requests for Disclosure of Materials, Pre-Trial Chamber I, 17 November 2006 <<http://www.legal-tools.org/doc/fc1b60/>>.

⁴⁶ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-268, Decisions on the Requests of the Defence of 3 and 4 July 2006, Pre-Trial Chamber I, 4 August 2006 <<http://www.legal-tools.org/doc/2f7113/>>.

⁴⁷ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-460, Decision on Defence Request pursuant to Regulation 83 (4), Pre-Trial Chamber I, 22 September 2006 <<http://www.legal-tools.org/doc/3192c8/>>.

⁴⁸ Friman, in: Fischer *et al.* (eds.), *International and National Prosecution of Crimes Under International Law* (2001) 191, 199.

⁴⁹ See, eg, Pre-Trial Chamber I's order to the Registry to send a request for cooperation in order to obtain material for the defence in its Decision on Defence Requests (n 45).

⁵⁰ See Pre-Trial Chamber I's Decision on Defence Requests (n 45) the Chamber stating that it may resort to the cooperation regime under Part 9 even if the materials do not fall within the Prosecution's disclosure obligations pursuant to art 67 para 2 and rr 76 and 77.

⁵¹ See *Prosecutor v. Abdallah Banda Abakaer Nourain et al.*, ICC-02/05-03/09-102, Decision on the 'Defence Application pursuant to article 57 (3) (b) of the Statute for an order for the preparation and transmission of a cooperation request to the Government of the Republic of Sudan', Pre-Trial Chamber I, 17 November 2010, paras 3 *et seq.* <<http://www.legal-tools.org/doc/3af3bf/>>.

supported by the wording of the afore-mentioned provisions. Rather, such an interpretation could violate the accused's right 'to have adequate time ... for the preparation of the defence' as guaranteed in article 67 para 1 (b). Regarding a request to seek cooperation from States, rule 116 sub-rule 1 (b) imposes on the defence the obligation to provide the Chamber with sufficient information to comply with article 96 para 2. The Chamber may, however, assist the defence in obtaining the missing information, if the defence meets with disproportional difficulties to obtain it.⁵² Finally, under article 96 para 2 (e) the request for cooperation must contain 'such information as may be required under the law of the requested State in order to execute the request'.

- 25 With the exception of taking measures under article 56 para 3 (a), the Pre-Trial Chamber is not obliged to hear the Prosecutor. Rule 116 sub-rule 2 leaves it to the Chamber's discretion to consult with the Prosecutor before determining on an order or a request for State cooperation. This rule was a compromise between the more civil law-oriented view that it should be an obligatory requirement to hear the Prosecutor and the common law approach that the defence should be able to prepare its own case without the interference or insight of the Prosecutor.⁵³ The conclusion to be drawn from this rule is that the defence is not obliged to request the Prosecutor for investigative measures before its request for assistance of the Pre-Trial Chamber. Of course, the defence is *allowed* to make such a request to the Prosecutor⁵⁴ and, in the normal course of events, should proceed in this way. But if the defence has good reasons not to involve the Prosecutor, it may from the outset resort to the Pre-Trial Chamber.⁵⁵ The Chamber has to decide on a case-to-case basis whether to seek the Prosecutor's views. In making this decision, the Chamber must consider all relevant interests, including the interests of the defence, the protection of victims and witnesses, the integrity of the investigation, and, as far as possible, the avoidance of double requests for State cooperation.

3. Protection of persons or national security information and preservation of evidence

- 26 Subparagraph (c) empowers the Pre-Trial Chamber to take action to enforce a number of other provisions of the Statute. The *protection and privacy of victims and witnesses* is dealt with in article 68, thus the reference in article 57 mainly serves the purpose of clarifying the competence of the Chamber to provide for the applicable measures at the pre-trial stage. Rule 86 further establishes as a general principle that a Chamber, in making any direction or order, 'shall take into account the needs of all victims and witnesses in accordance with article 68'. Rules 87 *et seq.* as well as regulations 92 *et seq.* of the Regulations of the Registry deal in more detail with this issue.⁵⁶ According to regulation 100 para 2 of the Regulations of the Registry, the Registry may advise the Chamber on appropriate protective measures and/or security arrangements.

⁵² For example, it may be too burdensome for the defence to identify the legal requirements of the requested State, art 96 para 2 (e). In such a case, the Chamber should help the defence to seek the missing information.

⁵³ Friman, in: Fischer *et al.* (eds.), *International and National Prosecution of Crimes Under International Law* (2001) 191, 200 *et seq.* In the opinion of Kreß (2003) 1 JICJ 603, 609, r 116 sub-r 2 might serve as a legal basis to 'allow the Prosecutor to insist on a coordination of investigative activities'. But the term 'may' in this provision argues against this suggestion.

⁵⁴ Kreß (2003) 1 JICJ 603, 608.

⁵⁵ *Differing Prosecutor v. William Samoei Ruto et al.*, ICC-01/04-01/07-444, Decision on the 'Defence Application pursuant to article 57 (3) (b) of the Statute to Seek the Cooperation of the Democratic Republic of Congo (DRC)', Pre Trial Chamber I, 25 April 2008 <<http://www.legal-tools.org/doc/f1a7a4/>>, stating that if the documents are 'likely to be in the possession or control of the Prosecution', the defence 'must first request these documents and information in accordance with rule 77'. But such an obligation cannot be deduced from Rule 77 and it would render Rule 116 para 2 meaningless (see Partly Dissenting Opinion of Judge Usacka). Since the interests of the defence may argue against coordination with the Prosecutor, the PTC should decide on a case-to-case basis whether to involve the Prosecutor.

⁵⁶ For a detailed discussion of this function see Donat-Cattin below art 68 mn 12 *et seq.* There is a string of Court decisions related to the protection of the identity of victims; see, eg, *Situation in the Democratic Republic of Congo*, No. ICC 01/04-73, Decision on Protective Measures requested by Applicants 01/04-1/dp to 01/04-6/dp, Pre-Trial Chamber I, 21 July 2005 <<http://www.legal-tools.org/doc/a15e9d/>>.

Protection of persons arrested or who have appeared in response to a summons is not treated in any other provision of the Statute (having been relocated to this article from provisions dealing with protection of victims and witnesses),⁵⁷ but it should be considered an implicit duty of the Court to provide for the protection, safety and well-being of arrested or summoned persons. Rules 117 *et seq.* and regulations 155 *et seq.* of the Regulations of the Registry, in particular, provide for further specificity as to the treatment to be afforded to persons in the custody of the ICC.⁵⁸

Protection of national security information is specifically covered by article 72, thus the reference here is an express grant of power to the Chamber to issue appropriate orders to protect such interests.⁵⁹

In addition, subparagraph (c) authorizes the Pre-Trial Chamber, where necessary, to provide for the *preservation of evidence*. The scope of this provision is much debated. Some authors⁶⁰ choose a narrow interpretation. In their opinion, this element of subparagraph (c) is limited to enforce other provisions of the Statute dealing with the preservation of evidence: for example, pursuant to article 18 para 6, pending a ruling by the Chamber, or during the period in which investigation has been deferred, the Prosecutor may seek authority from the Pre-Trial Chamber to perform certain investigative steps⁶¹ for the purposes of preserving evidence. In addition, article 19 para 8 (b) authorizes the Prosecutor ‘to take a statement or testimony from a witness or complete the collection and examination of evidence which had begun prior to the making of the challenge’. Article 56 provides to the Chamber the power to take action necessary to preserve evidence in the case of a unique investigative opportunity.⁶² The opposite view considers the functions in article 57 para 3 (c) to be additional to those already enunciated in the Statute.

The Pre-Trial Chamber may apply all these functions ‘where necessary’. This clause suggests that the aforementioned functions are of a subsidiary nature. During the investigation stage, the protection of victims and witnesses is primarily the task of the Prosecutor.⁶³ The same is true for the preservation of evidence and the protection of national security information.⁶⁴ The Chamber will intervene where it is requested to do so or where it considers that the instant circumstances warrant its intervention.⁶⁵

A comparison with the wording of subparagraphs (a) and (b), which require a request of the Prosecutor respectively of the defence, coupled with the use of the words ‘where necessary’ suggests that the Pre-Trial Chamber may apply at least some of these functions *ex officio* (ie without a request coming from an interested party).⁶⁶ Nonetheless, while any ex

⁵⁷ Prior references to the accused in the provision referred to protection of victims and witnesses were finally not included in the final version of art 68. See ‘Report of the Preparatory Committee’, note 11, art 68 p 129.

⁵⁸ The ICTY has developed a set of Rules governing the detention of persons awaiting trial or appeal before the Tribunal or otherwise detained on the authority of the Tribunal, adopted on 5 May 1995, last amended on 21 July 2005.

⁵⁹ Reg 21 para 8 of the Regulations expressly empowers the Chamber to order that any information ‘likely to be prejudicial to national security interests, shall not be published in any broadcast, audio- or video-recording or transcript of a public hearing’.

⁶⁰ Guariglia and Harris, in the first edition of this commentary art 57 mn 14 *et seq.*; following this opinion van Heek, *Die Weiterentwicklung des formellen Völkerstrafrechts* (2006) 211.

⁶¹ The cases contemplated in the said provision are: a unique opportunity to obtain important evidence (same language as in art 56) or when there is a significant risk that the evidence may not be subsequently available.

⁶² See para 2 (e) and (f).

⁶³ See art 68 para 1; Politi and Gioia (2006) 1 *LAPE* 103, 121.

⁶⁴ See art 54 para 3 (f).

⁶⁵ See *Prosecutor v. Joseph Kony et al.*, ICC-02/04-01/05-155, Decision on ‘Prosecutor’s Application to attend 12 February hearing’, Pre-Trial Chamber II, 9 February 2007 <<http://www.legal-tools.org/doc/450a92/>>.

⁶⁶ Rules 87 *et seq.* explicitly mention protective measures for victims and witnesses on the Chamber’s own motion. In *Situation in the Democratic Republic of Congo*, ICC-01/04-101-tEN-Corr, Decision on the Applications for Participation in the Proceedings of VPRS 1, VPRS 2, VPRS 3, VPRS 4, VPRS 5 and VPRS 6, Pre-Trial Chamber I, 17 January 2006, para 73 <<http://www.legal-tools.org/doc/2fe2fc/>> Pre-Trial Chamber I declares that the Chamber may initiate proceedings under art 57 para 3 (c) *proprio motu*. See also *Situation in Uganda*, ICC-02/04-01/05-147, Decision on the Prosecutor’s Application that the Pre-Trial Chamber Disregard as Irrelevant

officio power may properly relate to measures pertaining to the protection and privacy of victims and witnesses or protection of an accused, it does not appear applicable to measures relating to the preservation of evidence in the case of a pending ruling as to jurisdiction or admissibility, or after the Prosecutor's deferral of investigation, since the language in articles 18 and 19 indicate that the application of such measures is to be based on a request from the Prosecutor. In contrast, article 56 provides that in limited cases, measures aiming at the preservation of evidence may be ordered by the Chamber on its own initiative.⁶⁷ As for measures to protect national security information, article 72 contemplates that a State will normally make a claim that disclosure or information would be prejudicial, so that the Court ordinarily will not be called upon to intervene ex officio.

- 32 In exercising the functions under sub-paragraph (c), the Pre-Trial Chamber depends much on information by the Prosecution. Neither the Statute nor the Rules provide for an exchange of information between the Chamber and the Prosecution in this respect. Only regulation 48 para 1 of the Regulations stipulates that 'the Pre-Trial Chamber may request the Prosecutor to provide specific or additional information or documents in his or her possession, or summaries thereof, that the Pre-Trial Chamber considers necessary in order to exercise the functions and responsibilities set forth in article 53, paragraph 3 (b), article 56, paragraph 3 (a), and article 57, paragraph 3 (c)'. The Chamber must specify which function under article 57 paragraph 3 (c) it intends to exercise and which information it requires.⁶⁸ The determination of the necessity of the information lies with the Chamber.⁶⁹
- 33 The scope of the Chamber's authority under article 57 para 3 (c) and regulation 48 has been already the subject of litigation: In the situation in the Democratic Republic of Congo, Pre-Trial Chamber I decided to convene a status conference to allow the Chamber to provide for the protection of victims and witnesses and the preservation of evidence.⁷⁰ The background of this decision was that the Prosecutor had led investigations for seven months on the situation in the Democratic Republic of Congo without informing the Chamber about the progress and results.⁷¹ The Prosecution objected, arguing, inter alia, that neither regulation 48 nor any other provision in the Statute or the Rules envision the holding of a status conference during such an early stage of the proceedings,⁷² and that a status conference aims

the Submission Filed by the Registry on 5 December 2005, Pre-Trial Chamber II, 9 March 2006, para 20 <<http://www.legal-tools.org/doc/0568f7/>>; Politi and Gioia (2006) 1 LAPE 103, 112 also characterize the Chamber's powers as 'autonomous'.

⁶⁷ See art 56 para 3 (a), (b) and the commentary above.

⁶⁸ See, eg, *Situation in Uganda*, No. ICC-02/04-13-US-Exp, Decision to hold a Hearing on the Protection of Victims and Witnesses in connection with the Prosecutor's Application for Warrants of Arrest and the Prosecutor's Application dated 13 June 2005, Pre-Trial Chamber II, 17 June 2005 <<http://www.legal-tools.org/doc/2c1ea1/>>.

⁶⁹ See reg 48 para 1 of the Regulations: 'information or documents ... that the Pre-Trial Chamber considers necessary'. Pre-Trial Chamber II stated that the determination whether a particular matter falls within the scope of the powers of the Chamber 'lies exclusively with the relevant Chamber itself', since it has 'Kompetenz-Kompetenz'; *Kony et al.* (PTC II Decision), see note 65, paras. 22 *et seq.*

⁷⁰ *Situation in the Democratic Republic of Congo*, ICC-01/04-9, Decision to Convene a Status Conference, Pre-Trial Chamber I, 17 February 2005 <<http://www.legal-tools.org/doc/236413/>>. The Chamber refers to reg 30 of the Regulations. But this regulation deals only with the way of holding status conferences. It does not empower the Pre-Trial Chamber to hold such a conference.

⁷¹ Only one month after the status conference, the Prosecutor asked Pre-Trial Chamber I for measures under art 56; see *Situation in the Democratic Republic of Congo*, ICC-01/04-21, Decision on the Prosecutor's Request for Measures under article 56, Pre-Trial Chamber I, 26 April 2005 <<http://www.legal-tools.org/doc/e9b0f4/>>. In the case of *Prosecutor v. Joseph Kony et al.*, Pre-Trial Chamber II decided to hold a status conference, too. The matters of this conference were more specified than in the respective decision of Pre-Trial Chamber I: the status conference aimed at being fully informed of the current security situation in Uganda; *Situation in Uganda*, ICC-02/04-01/05-64, Decision to Convene a Status Conference on Matters related to Safety and Security in Uganda, Pre-Trial Chamber I, 25 November 2005 <<http://www.legal-tools.org/doc/af2784/>>. However, the correct procedural device would have been to hold a hearing.

⁷² In the Rules of Procedure and Evidence, only two rules provide for the holding of a status conference: r 121 sub-r 2 (b) for a status conference held by the Pre-Trial Chamber before the confirmation hearing, r 132 for a

at the efficient organization of judicial proceedings and is, therefore, not an adequate procedural device during an investigation.⁷³

Beyond this dispute, it is clear that since the adoption of regulation 48, Pre-Trial Chambers are vested with the authority to obtain information from the Prosecution via a specific request under that provision. The Pre-Trial-Chamber may make such a request by the way of an *ex parte* hearing.⁷⁴

4. Authorization of the Prosecutor to investigate within the territory of a State Party

The 1994 ILC's Draft Statute gave the Prosecutor the power to 'conduct on-site investigations',⁷⁵ without regulating under what circumstances this could be undertaken. Debate during the 1996 and 1997 sessions of the Preparatory Committee revealed that many delegations were uncomfortable with a provision that might be interpreted to enable the Prosecutor to – without restriction – take action on the territory of a State without that State's permission. At the same time, most delegations recognized that when a State was unable to respond to the Prosecutor's request to carry out such investigation, it would be useful to empower the Prosecutor to investigate without securing the State's permission.⁷⁶ The outcome of those discussions is current subparagraph (d).

It is important to distinguish on-site investigations under this subparagraph from on-site investigations under article 99 para 4. Under the latter provision, the Prosecutor has no power to take forcible measures on the territory of the State. He or she is only authorized to conduct investigations without any compulsory measures directly on the territory of the requested State Party, eg, taking testimony from a person on a voluntary basis or an examination without modification of a public place. Thus, measures such as searches and seizures are reserved to the requested State. Further, in contrast to subparagraph (d), article 99 para 4 applies where the State's authorities are still able to respond to a request for cooperation.⁷⁷

Subparagraph (d) limits the Prosecutor's ability to 'take specific investigative steps within the territory of a State Party without having secured the cooperation of that State under Part 9' in a number of ways. As a threshold matter, such investigation is only contemplated with respect to States Parties.⁷⁸ Moreover, such action may only be taken, if the Pre-Trial Chamber has

status conference held by the Trial Chamber to set the date of the trial or in order to facilitate the fair and expeditious conduct of the proceedings.

⁷³ *Situation in the Democratic Republic of Congo*, ICC-01/04-12-Anx, Prosecutor's Position on Pre-Trial Chamber I's 17 February 2005 Decision to Convene a Status Conference, 8 March 2005 <<https://www.legal-tools.org/doc/764580/>>. Pre-Trial Chamber I dismissed the filing of the Prosecutor's position on procedural grounds, *Situation in the Democratic Republic of Congo*, ICC-01/04-11, Decision on the Prosecutor's Position on Pre-Trial Chamber I's 17 February 2005 Decision to Convene a Status Conference, Pre-Trial-Chamber I, 9 March 2005 <<https://www.legal-tools.org/doc/9186e3/>>. The Prosecutor's Application for Leave to Appeal, ICC-01/04-13 (11 March 2005 <<https://www.legal-tools.org/doc/d9503c/>>) was rejected, too; *Situation in the Democratic Republic of Congo*, ICC-01/04-14, Decision on the Prosecutor's Application for Leave to Appeal, Pre-Trial Chamber I, 14 March 2005 <<https://www.legal-tools.org/doc/799eaf/>>. For another view of Pre-Trial Chamber I's decision see Miraglia (2006) 4 *JICJ* 188, 188 *et seq.* However, this author concedes that 'the Chamber somewhat shifted the 'equilibrium' between legal traditions reached in Rome, arguably taking on a role more closely resembling an investigating judge than provided for in the Statute and ICC Rules of Procedure and Evidence' (*ibid* 188). See further Stahn *et al.* (2006) 4 *JICJ* 219; Scheffer, in: Stahn and Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (2009) 585, 590 *et seq.*

⁷⁴ See Pre-Trial Chamber II's Decision to hold a Hearing (n 68).

⁷⁵ International Law Commission, 'Report of the International Law Commission on the Work of its Forty-Sixth Session, Draft Statute for an International Criminal Court' (2 May–22 July 1994) UN Doc A/49/10 article 26 para 2(c) p 13.

⁷⁶ Proposals to so limit the authority to conduct 'on-site' investigations were included in the negotiating text as early as 1996. See 'Report of the Preparatory Committee on the Establishment of an International Criminal Court' Supp No 22A UN Doc A/51/22 vol II article 26 para 6(c) p 114; Zutphen Report (n 3) article 47 para 2(c) p 88.

⁷⁷ For details, see commentary on art 99.

⁷⁸ Authorization to conduct such investigations on the territory of a non-State Party could be achieved on the basis of a decision of the UN Security Council to refer a matter to the Court, in which it had bestowed such

authorized it after having determined that the State Party in question ‘is clearly unable to execute a request for cooperation due to the unavailability of any authority or any component of its judicial system competent to execute the request for cooperation under Part 9’.

- 37 By these terms, the Pre-Trial Chamber must find that the following factors are present prior to authorizing investigative measures: *First*, it must determine that there is no authority or component of the State’s judicial system that can execute a request for cooperation. This is a restrictive condition that would be satisfied only if there were an inability of the State’s authorities to respond to a request for cooperation, for example due to the collapse of public order.⁷⁹ *In addition*, since in some States the judiciary may not necessarily have exclusive (or even any) competence to execute a request for international cooperation, the reference to ‘any authority or any component of its judicial system’ makes clear that the Pre-Trial Chamber must establish that no official of any kind with the competence to effectively execute a request for assistance is available.
- 38 The drafters also specified a high standard of proof to be met before the Pre-Trial Chamber may authorize the investigation: It must be demonstrated, taking into account the above-described criteria, that the State Party is ‘clearly’ unable to execute a request for cooperation under Part 9. In summary, the restrictive wording of subparagraph (d) will result in its application in only a limited number of situations.
- 39 Subparagraph (d) does not provide for an obligatory notification to the State concerned. Some States endeavoured to incorporate such a requirement into the Rules, but to no avail.⁸⁰ Rule 115 makes clear that the Pre-Trial Chamber may authorize on-site investigations even without informing the State in question.⁸¹ The provision does not clarify the circumstances under which the Chamber may decide not to inform the relevant State on the basis that providing such information would not be ‘possible’, within the terms of the same rule. It will be for the Pre-Trial Chamber to determine, on a case-by-case basis, whether there is any reasonable and practicable way to hear the views of the State, without unduly impairing the Prosecutor’s ability to carry out the necessary investigative acts. However, if the State has expressed any views, the Pre-Trial Chamber must take this view into account, according to rule 115 sub-rule 2.
- 40 Rule 115 also deals with specific procedural issues: sub-rule 1 regulates the form of the Prosecutor’s request, which cannot be vague and must include specific measures; sub-rule 3 provides for the form and contents of the authorization by the Pre-Trial Chamber. In particular, the Chamber may order specific procedures to be followed in collecting evidence. To facilitate the decision-making process, the Chamber may decide to hold a hearing⁸² (rule 115 sub-rule 2). If the Chamber authorizes on-site investigations, the State Party concerned is obliged to abide the activities of the Prosecutor.⁸³ But the State may appeal, with the leave of the Pre-Trial Chamber, pursuant to article 82 para 2.⁸⁴

powers pursuant to Chapter VII of the UN Charter. M. Bergsmo and O. Bekou above art 54 mn 18 argue that art 57 para 3 (d) should also apply to non-States Parties who accepted the exercise of jurisdiction by the Court in an individual case pursuant to art 12 para 3, since these States are obliged to cooperate fully with the Court. Naturally, the Prosecutor may conduct investigations on the territory of a non-State Party with the consent of that State; see Turone, in: Cassese (ed.), *The Rome Statute of the International Criminal Court* (2002) 1137, 1168.

⁷⁹ A prior version of this subparagraph had used the formulation ‘the State is unable to execute a request for cooperation due to a total or partial collapse or unavailability of its national judicial system’. See UN Doc A/CONF.183/C.1/WGPM/L1. The fact of the reformulation demonstrates that a partial collapse of a State’s judicial system cannot trigger the power to authorize such an investigation if there is still some authority that could respond to a request for cooperation under Part 9. At the same time, this formulation does not require the collapse of other unrelated parts of the judicial system for the Chamber to make a determination under this subparagraph.

⁸⁰ See Friman, in: Fischer *et al.* (eds.), *International and National Prosecution of Crimes Under International Law* (2001) 191, 196 *et seq.*

⁸¹ Cf. *ibid.* 197.

⁸² On its own motion or upon the request of the Prosecutor or the State Party concerned.

⁸³ See Turone, in: Cassese (ed.), *The Rome Statute of the International Criminal Court* (2002) 1137, 1168.

⁸⁴ In addition, this provision grants the right to appeal to the Prosecutor, subject to the leave of the Pre-Trial Chamber.

As observed in footnote 1 of the Working Group's report to the Committee of the Whole in Rome, even where such action is authorized by the Chamber, there may be considerable practical difficulties carrying out investigations on the territory of a State whose permission has not been obtained, and in which there has been a significant breakdown of authority.⁸⁵ In this sense, article 87 para 6, which authorizes the Court to ask any intergovernmental organization for cooperation and assistance 'in accordance with its competence or mandate' may become particularly relevant. The Court could, for instance, request the assistance of a UN peacekeeping force for the protection of the Prosecutor's staff, if this cooperation is compatible with its mandate.⁸⁶

Finally, it is important to note that to date the Office of the Prosecutor has not made any request for direct investigation under this provision in any of the situations before the Court.

5. Protective measures for the purpose of forfeiture

The purpose of this provision, which was inserted into the text of article 57 towards the end of the conference,⁸⁷ is to ensure the right to reparation of the victims of a crime within the jurisdiction of the Court (article 75), and the applicability of the penalty of forfeiture foreseen in article 77 para 2 (b),⁸⁸ by means of protective measures directed at the property of persons prosecuted by the Court. These measures must be executed through the mechanism of international cooperation and judicial assistance set forth in Part 9 of the Statute.⁸⁹

Different issues arise from this provision, the first one being the threshold required for the issuance of the protective orders by the Pre-Trial Chamber. The first proposals included no clear evidentiary threshold, an omission that caused discomfort to many delegations.⁹⁰ The final text makes clear that the issuance of an arrest warrant or a summons to appear is a prerequisite; under article 58 the existence of reasonable grounds to believe that the person has committed a crime within the jurisdiction of the Court is required for the issuance of the warrant or summons.⁹¹

Pre-Trial Chamber I has confirmed that subparagraph (e) is not limited to the protection of forfeiture, but rather must be interpreted in a broad sense including the reparation to victims. The Chamber noted that the wording of the provision is not clear because of the reference to the 'ultimate benefit of the victims'. However, in the opinion of the Chamber, the contextual interpretation, in particular rule 99 sub-rule 1, and the teleological interpretation endorse that the protective measures mentioned in article 57 para 3 (e) may include protective measures for the purpose of securing the enforcement of a future reparation award.⁹² Trial Chamber V (B) has confirmed the broad nature of the term 'forfeiture' for the purposes of article 57 para 3 (e). The Chamber rejected an interpretation whereby protective measures under this provision could only be directed at assets or property which were instrumentalities of a crime or came into the possession of the person upon execution of the

⁸⁵ These difficulties are compounded by the fact that the Rome Statute contains no grant of authority to use compulsory powers in the course of such an investigation. Such a provision, which had been in the Draft Statute in brackets as recently as the Zutphen text, was not retained as part of the final formulation. See Zutphen Report (n 3) art 47 para 2 (c) option 2 subpara (iii) p 88.

⁸⁶ See Rackwitz, in: Theissen and Nagler (eds.), *Der Internationale Strafgerichtshof. Tagungsdokumentation* (2004) 18, 25.

⁸⁷ See an earlier Draft in UN. Doc A/CONF.183/C.1/WGPM/L.38/Rev.1 art 57bis para 3 (e).

⁸⁸ Indirectly, the sanction of forfeiture is also related to the victims' right to reparation, since the ICC may order money and other property collected through fines or forfeiture to be transferred to the Trust Fund for the benefit of victims (art 79 paras 1 and 2).

⁸⁹ Art 93 para 1 (k).

⁹⁰ See UN Doc A/CONF.183/C.1/WGPM/L.38/Rev1 art 57bis para 3 (e) and fn 7 attached thereto.

⁹¹ See art 58 para 1 (a).

⁹² *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-20-Anx2, Decision on the Prosecutor's Application for Warrants of Arrest, article 58, Pre-Trial Chamber I, 10 February 2006, paras 132 *et seq.* included in Annex I of the Decision concerning Pre-Trial Chamber I's Decision of 10 February 2006 and the Incorporation of Documents into the Record of the Case against Mr. Thomas Lubanga Dyilo, ICC-01/04-01/06-8-US-Corr.

crime. Instead, the Chamber held that a Pre-Trial Chamber's authority to order protective measures was not limited to securing the penalty enshrined in article 77 para 2 (b) (forfeiture of 'proceeds, property and assets derived directly or indirectly' from the crime determined in the conviction), but also included protective measures under article 57 para 3 (e) for the purposes of reparations.⁹³

- 45 With regard to a request to take protective measures for the purpose of forfeiture, the reference to article 93 para 1 (k) shows that there is a *numerus clausus* of protective measures that may be ordered by the Chamber via a request for assistance under Part 9: the Court may request the identification, tracing and freezing or seizure of proceeds, property and assets and instrumentalities of crimes, nothing else. Since these measures are only of an interim nature, the Pre-Trial Chamber may revoke or modify them.⁹⁴
- 46 Rule 99 sub-rule 1 stipulates that the Pre-Trial Chamber may request the measures on its own motion or on the application of the Prosecutor. Victims or their legal representatives may not apply for protective measures for the purpose of forfeiture.⁹⁵ As in the case of any protective measure that affects rights of an accused person or of third parties, the Chamber needs to assess the evidence at hand and the impact on the rights of the affected persons before making a decision as to whether to apply this provision.
- 47 Since the success of the request depends on its being undisclosed to the person prosecuted by the Court, rule 99 sub-rule 2 provides that prior notification of the request is not a requisite. By way of an exception, the Court⁹⁶ may determine that, in the particular circumstances of the case, there is no danger that notification could jeopardize the effectiveness of the measures requested. In this case, the Registrar has to provide notification of the proceedings to the person concerned and 'so far as is possible to any interested persons or interested States'. If no prior notification is given, these persons respectively States must be informed of the order *ex post*, namely 'as soon as is consistent with the effectiveness of the measures requested'. Besides, they must be invited 'to make observations as to whether the order should be revoked or otherwise modified' (rule 99 sub-rule 3).

⁹³ *Prosecutor v. Kenyatta*, Decision on the Implementation of the request to Freeze Assets, ICC-01/09-02/11-931, Trial Chamber V(B), 8 July 2014, paras 11 *et seq.*

⁹⁴ *Cf.* r 99 para 3.

⁹⁵ They may only apply for protective measures for the purpose of reparation.

⁹⁶ Whereas sub-r 1 and 3 refer to the relevant Chamber, sub-r 2 refers to the 'Court'. Arguably, this reference also alludes to the relevant Chamber, comprising the Pre-Trial Chamber.

Article 58

Issuance by the Pre-Trial Chamber of a warrant of arrest or a summons to appear

1. At any time after the initiation of an investigation, the Pre-Trial Chamber shall, on the application of the Prosecutor, issue a warrant of arrest of a person if, having examined the application and the evidence or other information submitted by the Prosecutor, it is satisfied that:

- (a) There are reasonable grounds to believe that the person has committed a crime within the jurisdiction of the Court; and
- (b) The arrest of the person appears necessary:
 - (i) To ensure the person's appearance at trial,
 - (ii) To ensure that the person does not obstruct or endanger the investigation or the court proceedings, or
 - (iii) Where applicable, to prevent the person from continuing with the commission of that crime or a related crime which is within the jurisdiction of the Court and which arises out of the same circumstances.

2. The application of the Prosecutor shall contain:

- (a) The name of the person and any other relevant identifying information;
- (b) A specific reference to the crimes within the jurisdiction of the Court which the person is alleged to have committed;
- (c) A concise statement of the facts which are alleged to constitute those crimes;
- (d) A summary of the evidence and any other information which establish reasonable grounds to believe that the person committed those crimes; and
- (e) The reason why the Prosecutor believes that the arrest of the person is necessary.

3. The warrant of arrest shall contain:

- (a) The name of the person and any other relevant identifying information;
- (b) A specific reference to the crimes within the jurisdiction of the Court for which the person's arrest is sought; and
- (c) A concise statement of the facts which are alleged to constitute those crimes.

4. The warrant of arrest shall remain in effect until otherwise ordered by the Court.

5. On the basis of the warrant of arrest, the Court may request the provisional arrest or the arrest and surrender of the person under Part 9.

6. The Prosecutor may request the Pre-Trial Chamber to amend the warrant of arrest by modifying or adding to the crimes specified therein. The Pre-Trial Chamber shall so amend the warrant if it is satisfied that there are reasonable grounds to believe that the person committed the modified or additional crimes.

7. As an alternative to seeking a warrant of arrest, the Prosecutor may submit an application requesting that the Pre-Trial Chamber issue a summons for the person to appear. If the Pre-Trial Chamber is satisfied that there are reasonable grounds to believe that the person committed the crime alleged and that a summons is sufficient to ensure the person's appearance, it shall issue the summons, with or without conditions restricting liberty (other than detention) if provided for by national law, for the person to appear. The summons shall contain:

- (a) The name of the person and any other relevant identifying information;
- (b) The specified date on which the person is to appear;
- (c) A specific reference to the crimes within the jurisdiction of the Court which the person is alleged to have committed; and
- (d) A concise statement of the facts which are alleged to constitute the crime.

The summons shall be served on the person.

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A. Introduction/General remarks*

Article 58 of the *Rome Statute* was developed from article 52 of the Zutphen Draft which was based upon article 28 of the Draft Statute prepared by the ILC¹. The original provision in the ILC Draft Statute dealt with arrest. It provided that the Presidency of the Court may issue a warrant of arrest upon request of the Prosecutor².

While the ILC Draft Statute provided that the Presidency perform pre-trial functions, such as, for instance, the issuance of a warrant of provisional arrest or pre-indictment arrest, a

* Christopher K. Hall has, on the basis of the text written by Angelika Schlunk for the first edition, revised the whole commentary on this article for the second edition. Cedric Ryngaert revised the commentary and added relevant case-law for the third edition. Cedric Ryngaert thanks Raluca Racasan for her research assistance.

¹ The Zutphen Draft was named after the inter-sessional meeting from 19 to 30 Jan. 1998 in Zutphen, The Netherlands under the chairmanship of Adriaan Bos. The Dutch delegation had invited the chairpersons of the various working groups of the Preparatory Committee to draft a new consolidated Draft that would merge the existing proposals to a workable text for the final meeting of the Preparatory Committee before the Rome Conference in the spring of 1998. The result of the deliberations at Zutphen was presented in UN Doc. A/AC.249/1998/L.13 (4 February 1998) (available at: <http://www.iccnw.org/romearchive/zutphenmeeting.html>). It is also published in: Bassiouni (ed.), *The Statute of the International Criminal Court: A Documentary History* (1998); id. (ed.), *International Criminal Court: Compilation of Documents and Draft ICC Statute Before the Diplomatic Conference* (1998); and Sadat-Wexler (A.I.D.P. 1998) *NEP 155 et seq.* All citations to the Zutphen Draft are to the relevant draft articles. The Zutphen Draft was reorganized and partly revised at the final session of the Preparatory Committee held from 16 Mar. to 3 Apr. 1998 in what is sometimes known as the New York Draft, UN Doc. A/CONF.183/2/Add.2 (1998), which was submitted to the Rome Diplomatic Conference. Although the number of draft article 52 [28], the predecessor of article 58 of the *Rome Statute*, changed to article 59 in the New York Draft, the text remained the same.

² The provisions of the ILC Draft Statute were reproduced in the 1996 Preparatory Committee Report II.

growing number of delegates at the meetings of the Preparatory Committee felt, when the draft developed, that the Presidency should not be overburdened with pre-trial functions since it had numerous administrative duties. The Preparatory Committee Working Group No. 4 on procedural matters eventually created the Pre-Trial Chamber that would be responsible for a number of decisions during the investigation phase³.

In the spring of 1998, after the Preparatory Committee had completed its work and shortly before the Diplomatic Conference took place in Rome from 15 June to 17 July 1998, an informal working group drafted a text on the articles 52 and following of the Zutphen Draft, which it renumbered as articles 58 to 61. The re-draft was introduced as 'further option' to the conference text⁴.

- 2 In contrast to the *Statutes for the ICTY* and the *ICTR*, which contain no statutory provisions on the pre-trial phase, the *Rome Statute* provides specific rules on pre-trial detention and release⁵.

When the *Rules of Procedure and Evidence of the ICTY (ICTY Rules)* were drafted, the absence of a statutory provision on pre-trial detention and release was criticized⁶. However, at that time, the critics were concerned more about the absence of any pre-trial rules in the *ICTY Statute* than about a lack of balance of power between the organs of the Tribunal. The idea of establishing different judicial entities within the Court that would have specific responsibilities in accordance with the different phases of the proceedings only gradually developed during the negotiations of the Preparatory Committee. However, the inclusion of detailed provisions in article 58 governing the issuance of warrants of arrest and summons has been criticized by one commentator who considered that these subjects were more appropriately dealt with in the *Rules of Procedure and Evidence*⁷. The Preparatory Commission decided that no special rules were needed to implement article 58 and the Court did not include any provisions in the *Regulations* specifically referring to article 58. Whether article 58 will unduly restrict the flexibility of the Court in the issuance of arrest warrants remains to be seen. However, it does not seem to have impeded the Court with regard to the first arrest warrants, where the Prosecutor and the Pre-Trial Chamber took steps pursuant to article 68 not expressly required by article 58 to protect victims and witnesses (see footnote 29 below).

- 3 When deciding on the issuance of an arrest warrant (or a summons to appear), the Pre-Trial Chamber has to make an initial determination as to whether the case falls within the

³ The text referred to 'provisional' arrest. The term 'provisional' was later omitted, because delegations considered the wording too close to the traditional extradition model. See 1996 Preparatory Committee Report I, para. 241.

⁴ The terms 'Preliminary Investigations Chamber' and 'Indictment Chamber' were also used. For the model of a Pre-Trial Chamber see, in particular, article 54 of the alternative French Draft, UN Doc. A/AC.249/L.3, p. 45.

⁵ UN Doc. A/CONF.183/C.1/WGPM/L.1.

⁶ With respect to the pre-trial phase, article 15 of the *Statute for the ICTY* and article 14 of the *ICTR* only refer to the *Rules*. When the *Statute for the ICTY* was adopted, it was considered that this task could be left to the judges of the Court. The Report of the Secretary General containing the *Statute of the ICTY* of 3 May 1993 explains in paragraph 106 that 'it is axiomatic that the International Tribunal must fully respect internationally recognized standards regarding the rights of the accused ...' (UN Doc. S/25704 (3 May 1993) and S/25704/Corr.1 (30 July 1993)). See also Morris and Scharf, *An Insider's Guide to the International Criminal Tribunal for the Former Yugoslavia* (1995) 236. *ICTY Rules* 54 and 55 cover the issuance and the execution of a warrant of arrest. Pursuant to Rule 54, a judge or the Trial Chamber are competent for issuing a warrant of arrest. The *ICTR Rules* are modelled on the *ICTY Rules* and the *Rules of Procedure and Evidence of the Special Court for Sierra Leone* are in turn based on the *ICTR Rules*. Article 14 of the *Statute of the Special Court for Sierra Leone* provides that the *ICTR Rules* are to be used by the judges, subject to any necessary modifications made by the judges:

⁷1. The Rules of Procedure and Evidence of the International Criminal Tribunal for Rwanda obtaining at the time of the establishment of the Special Court shall be applicable *mutatis mutandis* to the conduct of the legal proceedings before the Special Court.

2. The judges of the Special Court as a whole may amend the Rules of Procedure and Evidence or adopt additional rules where the applicable Rules do not, or do not adequately, provide for a specific situation. In so doing, they may be guided, as appropriate, by the Criminal Procedure Act, 1965, of Sierra Leone.'

⁷ See K. A. A. Khan, *Article 60*, fn 1 with further references.

jurisdiction of the Court⁸. However, it does not normally determine the admissibility of the case in light of the complementarity principle⁹. It has this discretion under article 19 paragraph 1, but will only exercise it where there is an ostensible cause or self-evident factor impelling it to do so, especially where the Prosecution Application is made on a confidential and *ex parte* basis¹⁰.

A case arising from the investigation of a situation will fall within the jurisdiction of the Court only if the specific crimes of the case do not exceed the territorial, temporal and possibly personal parameters defining the situation under investigation and fall within the jurisdiction of the Court¹¹. The parameters of the investigation of a situation can include not

⁸ *Prosecutor v. Ahmed Muhammad Harun* ('Ahmad Harun') and *Ali Muhammad Ali Abd-al-Rahman* ('Ali Kushayb'), ICC-02/05-01/07-1, Decision on the Prosecution Application under article 58(7) of the Statute, Pre-Trial Chamber I, 27 April 2007, para. 13; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, Decision on the Prosecutor's Application for a Warrant of Arrest against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 June 2008, para. 11; *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-01/12, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber II, 13 July 2012, para. 9; *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber II, 13 July 2012, para. 7; *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-02/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Charles Blé Goudé, Pre-Trial Chamber III, 6 January 2012, para. 7; *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Simone Gbagbo, Pre-Trial Chamber III, 2 March 2012, para. 7; *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-01/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Laurent Koudou Gbagbo, Pre-Trial Chamber III, 30 November 2011, para. 8; *Prosecutor v. Bahir Idriss Abu Garda*, ICC-02/05-02/09, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 7 May 2009, para. 1; *Prosecutor v. Abdallah Banda Abakaer Nourain*, ICC-02/05-03/09, Second Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 27 August 2009, para. 1; *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11, Decision on the Prosecutor's Application for Summons to Appear for William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang, 8 March 2011, Pre-Trial Chamber II, paras. 7-9; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11, Decision on the Prosecutor's Application for Summonses to Appear for Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali, 8 March 2011, Pre-Trial Chamber II, paras. 7-9.

⁹ See, e.g., *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10, Decision on the Prosecutor's Application for a Warrant of Arrest against Callixte Mbarushimana, Pre-Trial Chamber I, 28 September 2010, para. 9; *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber II, 13 July 2012, para. 13.

¹⁰ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Decision on the Prosecutor's Application Pursuant to article 58 as to Muammar Mohammed Abu Minyar Gaddafi, Saif Al Islam Gaddafi and Abdullah Al-Senussi, Pre-Trial Chamber I, 27 June 2011, para. 12; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, Decision on the Prosecutor's Application for a Warrant of Arrest against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 June 2008, paras. 20-22 (stating that there is nothing to indicate that he is already being prosecuted at the national level for the crimes referred to in the Prosecutor's Application and that on the contrary, it would appear that the CAR judicial authorities abandoned any attempt to prosecute Mr Jean-Pierre Bemba for the crimes referred to in the Prosecutor's Application, on the ground that he enjoyed immunity by virtue of his status as Vice-President of the DRC); *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-02/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Charles Blé Goudé, Pre-Trial Chamber III, 6 January 2012, para. 12; *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-01/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Laurent Koudou Gbagbo, Pre-Trial Chamber III, 30 November 2011, para. 23; *Prosecutor v. Omar Hassan Ahmed Al Bashir*, ICC-02/05-01/09, Second Decision on the Prosecution's Application for a Warrant of Arrest, Pre-Trial Chamber I, 12 July 2010, para. 51; *Prosecutor v. Abdallah Banda Abakaer Nourain*, ICC-02/05-03/09, Second Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 27 August 2009, para. 4.

¹¹ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, Decision on the Prosecutor's Application for a Warrant of Arrest against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 June 2008, para. 16; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10, Decision on the Prosecutor's Application for a Warrant of Arrest against Callixte Mbarushimana, Pre-Trial Chamber I, 28 September 2010, para. 4; *Prosecutor v. Germain Katanga*, ICC-01/04-01/07, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Germain Katanga, Pre-Trial Chamber I, 5 November 2007, para. 9; *Prosecutor v. Abdallah Banda Abakaer Nourain*, ICC-01/04-02/12, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Mathieu Ngudjolo Chui, Pre-Trial Chamber I, 6 July 2007, para. 9; *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-01/15, Decision on the Prosecutor's Application pursuant to article 58 for a warrant of arrest against Laurent Koudou Gbagbo, Pre-Trial Chamber III, 30 November 2011, para. 10; *Prosecutor v. Ahmed Muhammad Harun* ('Ahmad Harun') and

only crimes that had already been or were being committed at the time of the referral, but also crimes committed after that time, in so far as they are sufficiently linked to the situation which initially triggered the referral to the Court¹².

The Chamber will analyse whether the crime is one of the crimes set out in article 5 of the *Statute* (jurisdiction *ratione materiae*), whether the crime was committed within the time-frame specified in article 11 of the *Statute* (jurisdiction *ratione temporis*) and whether the crime satisfies one of the two criteria, or both, laid down in article 12 of the *Statute*; namely whether it was committed on the territory of a State Party to the *Statute* or by a national of that State, or whether it was committed on the territory of a State which has made a declaration under article 12 paragraph 3 of the *Statute* or by nationals of that State¹³. Nevertheless, article 12 paragraph 2 does not apply where a situation is referred to the Court by the Security Council acting under Chapter VII of the UN Charter, pursuant to article 13 (b) of the *Statute*¹⁴. Thus, where a situation is referred to it by the Security Council, the Court may exercise jurisdiction over crimes committed in the territory of States which are not Party to the *Statute* and by nationals of such States¹⁵.

If extensive similarities exist with the Prosecutor's Application in a previous case, the Chamber may adopt its earlier reasoning laid down in its Decision on the Prosecutor's Application Pursuant to article 58 as regards the jurisdictional requirements¹⁶.

Ali Muhammad Ali Abd-al-Rahman ('Ali Kushayb'), ICC-02/05-01/07-1, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 27 April 2007, para. 14; *Prosecutor v. Omar Hassan Ahmed Al Bashir*, ICC-02/05-01/09, Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, para. 36; *Prosecutor v. Bahir Idriss Abu Garda*, ICC-02/05-02/09, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 7 May 2009, para. 1; *Prosecutor v. Abdallah Banda Abakaer Nourain*, Case No. ICC-02/05-03/09, Second Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 27 August 2009, para. 1; *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-01/12, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 13 July 2012, para. 14; *Prosecutor v. Abdel Raheem Muhammad Hussein* 15, ICC-02/05-01/12, Public redacted version of 'Decision on the Prosecutor's application under article 58 relating to Abdel Raheem Muhammad Hussein', Pre-Trial Chamber I, 1 March 2012, para. 6.

¹² *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-01/12, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 13 July 2012, para. 14; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10, Decision on the Prosecutor's Application for a Warrant of Arrest against Callixte Mbarushimana, Pre-Trial Chamber I, 28 September 2010, para. 6.

¹³ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, Decision on the Prosecutor's Application for a Warrant of Arrest against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 June 2008, para. 12; *Prosecutor v. Germain Katanga*, ICC-01/04-01/07, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Germain Katanga, Pre-Trial Chamber I, 5 November 2007, para. 11; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10, Decision on the Prosecutor's Application for a Warrant of Arrest against Callixte Mbarushimana, Pre-Trial Chamber I, 28 September 2010, para. 4; *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Mathieu Ngudjolo Chui, Pre-Trial Chamber I, 6 July 2007, para. 11; *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-01/12, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 13 July 2012, para. 10; *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-02/11, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Charles Blé Goudé, Pre-Trial Chamber III, 6 January 2012, para. 8; *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Simone Gbagbo, Pre-Trial Chamber III, 2 March 2012, para. 8; *Prosecutor v. Laurent Gbagbo and Charle Blé Goudé*, ICC-02/11-01/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Laurent Koudou Gbagbo, Pre-Trial Chamber III, 30 November 2011, para. 9; *Prosecutor v. Omar Hassan Ahmed Al Bashir*, ICC-02/05-01/09, Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, para. 36.

¹⁴ *Prosecutor v. Omar Hassan Ahmed Al Bashir*, ICC-02/05-01/09, Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, para. 36.

¹⁵ *Prosecutor v. Omar Hassan Ahmed Al Bashir*, ICC-02/05-01/09, Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, para. 36.

¹⁶ *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-02/15, Decision on the Prosecutor's Application pursuant to article 58 for a warrant of arrest against Charles Blé Goudé, Pre-Trial Chamber III, 6 January 2012, para. 9; *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Simone Gbagbo, Pre-Trial Chamber III, 2 March 2012, para. 9.

In a few cases, the Chamber examined in some depth the admissibility of the case in light of investigations being conducted in the territorial State¹⁷. In particular, it has declared cases admissible on the ground that national proceedings did not encompass both the person and the conduct which was the subject of the case before the Court. By and large, it appears that the Chamber is satisfied as soon as there are *potential* cases that would be admissible due to the absence of national proceedings against those appearing to be most responsible, and in light of the gravity of the acts committed¹⁸.

B. Analysis and interpretation of elements

Article 58 only applies to persons who are suspected of having committed a crime within the jurisdiction of the Court; it does not apply to offences against the administration of justice under article 70¹⁹. By contrast, a witness or an expert cannot be summoned to appear before the Court pursuant to article 58 of the *Statute*²⁰. A summons to appear under this article is an alternative to the issuance of a warrant of arrest in those cases where there are not sufficient grounds to arrest the suspect, article 58 paragraph 1 (b)²¹.

The wording does not distinguish between pre-indictment and post-indictment arrest as did the Zutphen Draft. The provision refers to all warrants of arrest issued by the Pre-Trial Chamber during the investigation phase²².

¹⁷ E.g., *Prosecutor v. Ahmed Muhammad Harun ('Ahmad Harun') and Ali Muhammad Ali Abd-al-Rahman ('Ali Kushayb')*, ICC-02/05-01/07-1, Decision on the Prosecution Application under article 58(7) of the Statute, Pre-Trial Chamber I, 27 April 2007, para. 13; *Prosecutor v. Germain Katanga*, ICC-01/04-01/07, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Germain Katanga, Pre-Trial Chamber I, 5 November 2007, para. 19.

¹⁸ *Prosecutor v. Germain Katanga*, ICC-01/04-01/07, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Germain Katanga, Pre-Trial Chamber I, 5 November 2007, paras. 17–20; *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Mathieu Ngudjolo Chui, Pre-Trial Chamber I, 6 July 2007, paras. 17–22; *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-02/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Charles Blé Goudé, Pre-Trial Chamber III, 6 January 2012, para. 11; *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, para. 50; *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-01/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Laurent Koudou Gbagbo, Pre-Trial Chamber III, 30 November 2011, para. 21; *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12, Decision on the Prosecutor's Application pursuant to article 58 for a warrant of arrest against Simone Gbagbo, Pre-Trial Chamber III, 2 March 2012, para. 11.

¹⁹ Fourmy, in: Cassese et al. (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1207.

²⁰ The procedure for offences against the administration of justice is governed by rules 162 to 172 of the *Rules of Procedure and Evidence*.

²¹ Pursuant to article 64 para. 6 (b), however, the Trial Chamber 'may, as necessary: ... (b) Require the attendance and testimony of witnesses ... by obtaining, if necessary, the assistance of States as provided in this Statute'. There is no provision in the *Rules of Procedure and Evidence* expressly implementing article 64 para. 6 (b), but presumably it could be implemented by the issuance of a request to States to compel attendance. It is probable that the Court has the inherent power to issue an arrest warrant or a summons to compel the attendance of witnesses and experts rather than simply issuing a request to States to take this step, but either step would have to be taken on another basis than article 58. The obligation of States Parties under article 64 para. 6 (b) to assist the compulsory attendance of witnesses (apart from the exceptional case of persons in custody, where consent of the person and the custodial state is required pursuant to article 93 para. 7, an anomaly reflecting the traditional, inefficient and increasingly outdated extradition regime between States rather than the new system of surrender to international courts) is independent of their separate obligation in article 93 para. 1 (e) to facilitate the voluntary appearance of witnesses and experts.

²² The *Statute* does not use the word 'suspect'. However, for the sake of convenience, this term is used in this chapter to describe any person with respect to whom, within the meaning of article 55 para. 2 'there are grounds to believe ... has committed a crime within the jurisdiction of the Court'. The point at which a suspect becomes an accused will have to be resolved by the Court. It is clear from the *Statute* that once the Pre-Trial Chamber has confirmed charges pursuant to article 61 para. 7 a suspect is an 'accused'. However, there are a number of earlier stages in the proceedings at which a person could become an accused, including the moment the Prosecutor

The provision states the purposes for and the conditions under which the Pre-Trial Chamber can issue an arrest warrant (paragraph 1). The Pre-Trial Chamber will only act upon application by the Prosecutor. It is not in a position to issue an arrest warrant on its own motion under article 58²³.

I. Paragraph 1

1. Chapeau

- 6 a) ‘any time after the initiation of an investigation ...’. The Prosecutor can apply to the Pre-Trial Chamber for a warrant of arrest only once he or she has started the investigation of a case; he or she may not apply for a warrant at an earlier stage.
- 7 b) **Examination of application, evidence and other information submitted by the Prosecutor.** The Pre-Trial Chamber has the right to examine the application put forward by the Prosecutor. The criteria according to which the Pre-Trial Chamber will check the application are laid out in paragraphs 1 and 2 of this article.
- 8 The Pre-Trial Chamber will not initiate investigations by itself. If the Prosecutor does not present sufficient evidence or other information to underpin his or her application for an arrest warrant, the Pre-Trial Chamber is not obliged under article 58 to investigate further²⁴. The basis for its decision under article 58 is ‘the application and the evidence or other information submitted by the Prosecutor’²⁵.
- 9 There are no specific prerequisites as to what type of evidence or information may be presented. In principle, the Prosecutor may decide at his or her discretion what he or she believes necessary and appropriate to serve as evidence or information to convince the Pre-Trial Chamber that a warrant of arrest be issued.
- 10 c) **Issue of a warrant of arrest.** If the Pre-Trial Chamber comes to the conclusion that the evidence or information submitted is sufficient to issue a warrant of arrest and that the warrant is necessary to ensure the presence of the suspect at the trial, it must grant the application of the Prosecutor. The Pre-Trial Chamber is legally bound by the *Statute* in the sense that if the requirements of paragraph 1 are fulfilled, the Pre-Trial Chamber is obliged to issue the warrant of arrest. There is no room for discretion for political or ideological reasons, but it would be required under article 69 paragraph 7 to disregard ‘[e]vidence obtained by means of a violation of this *Statute* or internationally recognized human rights’ if ‘[t]he violation casts substantial doubt on the reliability of the evidence’ or ‘[t]he admission of the evidence would be antithetical to and would seriously damage the integrity of the proceedings’²⁶.

submits an application for a warrant of arrest, which will contain the essence of the charges included in article 61 para. 3 document (see article 19, fn 9).

²³ See, for instance, the wording of article 52 of the Zutphen Draft, note 2.

²⁴ Article 57 para. 3 provides that the Pre-Trial Chamber may, ‘[a]t the request of the Prosecutor, issue such orders and warrants as may be required for the purposes of an investigation’.

²⁵ However, the Pre-Trial Chamber has considerable powers under article 56 with regard to unique investigative opportunities and it may take certain measures to preserve evidence on its own initiative if it considers that the Prosecutor’s failure to request such measures are unjustified.

²⁶ However, if the Prosecutor failed to submit relevant material collected by the Pre-Trial Chamber in relation to a unique investigative opportunity pursuant to article 56, article 58 would not preclude the Pre-Trial Chamber from considering that information when reviewing the Prosecutor’s application for an arrest warrant. The *Statute* does not expressly authorize the Pre-Trial Chamber to go beyond the application and the evidence or other information submitted by the Prosecutor and information collected pursuant to article 56, either to seek further information from the Prosecutor or to seek information from other sources on this question. However, nothing in either article would appear to prevent the Pre-Trial Chamber from considering relevant information presented to it by victims. Under paragraph 1 of regulation 48, a controversial regulation adopted by the judges in confidential proceedings without any discussion with civil society, states that ‘[t]he Pre-Trial Chamber may request the Prosecutor to provide specific or additional information or documents in his or her possession, or

Although the use of sealed warrants by the ICTY based on confidential *ex parte* applications by the Prosecutor as a technique to increase the chances of being able to arrest persons suspected of crimes was initially controversial, it proved an effective tool and article 58 does not preclude the use of sealed warrants of arrest²⁷. Indeed, the first warrants of arrest issued by the Court were initially sealed pending verification that victims and witnesses were effectively protected²⁸.

The provision does not list as a ground for detention the question of the suspect being harmed or at risk, but the Court could take a range of other less restrictive measures to protect the suspect²⁹.

2. The different subparagraphs

a) Reasonable grounds for a 'crime within the jurisdiction of the Court'. The term 'reasonable grounds' leaves room for interpretation, even though it is a common term in most legal systems³⁰. It is understood to embody objective criteria,³¹ and essentially means that a reasonable conclusion that the person committed a crime within the jurisdiction of the Court can be drawn. It does not mean that this is the only reasonable conclusion that can be drawn from the evidence³². In this respect, in *Al Bashir*, the Appeals Chamber held that the Chamber had acted erroneously in rejecting the application for a warrant of arrest in relation to the counts of genocide on the basis that the existence of genocidal intent of the suspect was *only*

summaries thereof, that the Pre-Trial Chamber considers necessary in order to exercise the functions and responsibilities set forth in articles 53 para. 3 (b), 56, para. 3 (a), and 57, para. 3 (c)'. However, none of these provisions would be directly relevant to an application for an arrest warrant.

²⁷ For example, the admission of evidence obtained as the result of torture or cruel, inhuman or degrading treatment or punishment would necessarily 'be antithetical to and would seriously damage the integrity of the [article 58] proceedings'.

²⁸ Although one commentator has contended that '[i]t is not clear from the Statute ... whether [the Pre-Trial Chamber] may have recourse to the practice of sealed indictments', Fourmy, in: Cassese et al. (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1223, there is nothing on the face of the Statute, its drafting history or the routine practice of the ICTY, ICTR, Special Panels for Serious Crimes and the Special Court for Sierra Leone that would suggest that the use of sealed indictments is precluded. Sadat, *The International Criminal Court and the Transformation of International Law: Justice for the new Millennium* (2002) 232.

²⁹ The first application for arrest warrants, with regard to the Uganda investigation, was sealed. The warrants of arrest were issued under seal by Pre-Trial Chamber II on 8 July 2005 to 'ensure the safety or physical or psychological well-being of' and to 'prevent the disclosure of the identity or whereabouts of any victims, potential witnesses and their families'. The Chamber decided on 13 Oct. 2005 to unseal the arrest warrants, noting that 'the overall plan in respect of the situation in Uganda for the security of witnesses and victims in the field has been completed and implemented; and that by the assessment and advice of the Prosecutor and the Victims and Witness Unit the overall plans provides the necessary and adequate protective measures for all concerned at this stage'. *Prosecutor v. Joseph Konv, Vincent Otti and Okot Odhiambo* 16, ICC-02/04-01/05, Decision on the Prosecutor's Application for Unsealing of the Warrants of Arrest, Pre-Trial Chamber, 13 October 2005.

³⁰ Some delegations at the Preparatory Committee 'favoured addressing situations in which the accused may be harmed or at risk. Other delegations stated that the accused could be adequately protected under article 61 [43]'. *Supra* note 1, Zutphen Draft, article 52 [28], n. 169. However, that draft article [now article 68], which then included an obligation on the Prosecutor to protect the accused, now limits that obligation to protect victims and witnesses and there is no express obligation under the *Rome Statute* to protect suspects or accused.

³¹ The standard is lower than 'substantial grounds to believe that the person committed the crime charged' used in article 61 para. 7 in determining whether to confirm charges. Fourmy, in: Cassese et al. (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1219 *et seq.* ('reasonable grounds' constitutes a less strict test than that for a *prima facie* case). Sadat, *The International Criminal Court and the Transformation of International Law: Justice for the new Millennium* (2002) 231. The factors considered in determining whether there are 'reasonable grounds to believe that the person has committed a crime within the jurisdiction of the Court' under article 58 para. 1 (a) are, of course, different from those used by the Prosecutor in determining whether 'there is a reasonable basis to proceed with an investigation' pursuant to article 15 para. 3 and whether 'there is no reasonable basis to proceed' when deciding pursuant to article 53 para. 1 whether to investigate. The term 'reasonable grounds' was chosen in preference to the term 'serious reasons'. See Zutphen Draft, article 52 [28], para. 1, 167.

³² See, e.g., *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-01/12, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 13 July 2012, para. 19.

one of several reasonable conclusions available on the materials provided by the Prosecution³³. In the Appeals Chamber's view, requiring that the existence of genocidal intent must be the only reasonable conclusion would amount to requiring the Prosecutor to disprove any other reasonable conclusions and to eliminate any reasonable doubts³⁴. Imposition of such a standard would be tantamount to the creation of an obligation on the part of the Prosecution to prove genocidal intent beyond reasonable doubt, a higher and more demanding standard than the one required under article 58 paragraph 1 (a) of the *Statute*³⁵. This reasonable conclusion should be drawn on the basis of the present evidentiary record³⁶.

In accordance with article 21 paragraph 3 of the *Statute*, the Chamber has interpreted and applied the expression 'reasonable grounds to believe' in accordance with internationally recognized human rights³⁷. It has been guided in particular by the 'reasonable suspicion' standard under article 5 paragraph 1 (c) of the European Convention on Human Rights and the jurisprudence of the Inter-American Court of Human Rights on the fundamental right to personal liberty under article 7 of the American Convention on Human Rights³⁸.

In practice, the Chamber first determines whether there are reasonable grounds to believe that the contextual element is present, before considering whether the relevant criminal acts referred to in the Prosecution Application are also present³⁹.

³³ *Prosecutor v. Omar Hassan Ahmed Al Bashir*, ICC-02/05-01/09, Second Decision on the Prosecution's Application for a Warrant of Arrest, Pre-Trial Chamber I, 12 July 2010, para. 1, referring to ICC-02/05-01/09-73, para. 1.

³⁴ *Prosecutor v. Omar Hassan Ahmed Al Bashir*, ICC-02/05-01/09, Second Decision on the Prosecution's Application for a Warrant of Arrest, Pre-Trial Chamber I, 12 July 2010, para. 1, referring to ICC-02/05-01/09-73, para. 33.

³⁵ *Prosecutor v. Omar Hassan Ahmed Al Bashir*, ICC-02/05-01/09, Second Decision on the Prosecution's Application for a Warrant of Arrest, Pre-Trial Chamber I, 12 July 2010, para. 1, referring to ICC-02/05-01/09-73, para. 39.

³⁶ *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-01/12, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 13 July 2012 (Chamber recalling that Pre-Trial Chamber I had found in September 2010 that there were reasonable grounds to believe that the FDLR did have an organizational policy to attack the civilian population in 2009 (*Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10, Decision on the Prosecutor's Application for a Warrant of Arrest against Callixte Mbarushimana, Pre-Trial Chamber I, 28 September 2010, para. 26), but that on the basis of the present evidentiary record which had significantly expanded since September 2010, it did not consider that the existence of an organizational policy is reasonably tenable and therefore finding no reasonable grounds to believe that crimes against humanity were committed, at paras. 28–29).

³⁷ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber II, 13 July 2012, para. 16.

³⁸ *Prosecutor v. Omar Hassan Ahmed Al Bashir*, ICC-02/05-01/09, Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, para. 32; *Situation in Darfur, Sudan*, Case No. ICC-02/05-01/07-1, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 27 April 2007, para. 28; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, Decision on the Prosecutor's Application for a Warrant of Arrest against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 June 2008, para. 24; *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber II, 13 July 2012, para. 16; *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-01/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Laurent Koudou Gbagbo, Pre-Trial Chamber III, 30 November 2011, para. 27.

³⁹ *Prosecutor v. Ahmed Muhammad Harun ('Ahmad Harun') and Ali Muhammad Ali Abd-al-Rahman ('Ali Kushayb')*, ICC-02/05-01/07-1, Decision on the Prosecution Application under article 58(7) of the Statute, Pre-Trial Chamber I, 27 April 2007, para. 29; *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Mathieu Ngudjolo Chui, Pre-Trial Chamber I, 6 July 2007, para. 27; *Prosecutor v. Omar Hassan Ahmed Al Bashir*, ICC-02/05-01/09, Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, para. 53; *Prosecutor v. Omar Hassan Ahmed Al Bashir*, ICC-02/05-01/09, Second Decision on the Prosecution's Application for a Warrant of Arrest, Pre-Trial Chamber I, 12 July 2010, para. 7; *Prosecutor v. Bahir Idriss Abu Garda*, ICC-02/05-02/09, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 7 May 2009, para. 6; *Prosecutor v. Abdallah Banda Abakaer Nourain*, ICC-02/05-03/09, Second Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 27 August 2009, para. 6.

The Pre-Trial Chamber is not entitled to issue a warrant of arrest if the evidence presented does not allow qualification of the crime committed as genocide, a crime against humanity or a war crime under the Rome Statute. If the suspect can only be prosecuted for homicide as a crime under national law, the Court has no jurisdiction over the case. It would not be competent to act, with the consequence that the Pre-Trial Chamber would have to refuse to grant the application.

The Prosecutor may present the same facts under different legal characterizations in his application for an arrest warrant⁴⁰, or charge a person with different crimes⁴¹. The Chamber does not decide these issues in its arrest warrant decision, so as not to limit the options that may exist for establishing criminal responsibility under the *Rome Statute*⁴². Instead, it issues a warrant of arrest as soon as it is convinced that there are reasonable grounds to believe that the person has committed at least one crime within the jurisdiction of the Court⁴³, even if the Chamber disagrees with the Prosecutor's legal characterization of the relevant conduct⁴⁴. This characterization is revisited in light of the evidence submitted to the Chamber by the Prosecutor during the period prior to the confirmation of charges, having regard to the rights of the Defence and to the need to ensure a fair and expeditious conduct of the proceedings⁴⁵.

Note that, in reaching its conclusions on whether the 'reasonable grounds to believe' and the 'appearance' standards required by article 58 paragraph 1 of the *Statute* have been met, the Chamber may not only rely on the evidence and information specifically discussed in the decision itself, but also on the overall evidence and information contained in the Prosecution Application, the Prosecution Supporting Materials and the Prosecution Response⁴⁶.

b) 'The arrest of the person appears necessary'. The wording makes it clear that the Pre-Trial Chamber must be satisfied with the evidence and information presented at the time of the application, no matter whether the arrest proves necessary in the end. Three grounds for issuing an arrest warrant are specified⁴⁷. In contrast, the ILC Draft provided for more limited and different grounds for provisional arrest at any point during the investigation of a suspect and for arrest of an accused after confirmation of the indictment. The Prosecutor could request the provisional arrest of a suspect if there was 'probable cause to believe that the

⁴⁰ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, Decision on the Prosecutor's Application for a Warrant of Arrest against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 June 2008, para. 25.

⁴¹ *Prosecutor v. Germain Katanga*, ICC-01/04-01/07, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Germain Katanga, Pre-Trial Chamber I, 5 November 2007, para. 42 (Chamber stating that since that was not the only crime attributed by the Prosecution to Germain Katanga, the question of whether criminal liability can arise under article 8 (2) (b) (i) or 8 (2) (e) (i) of the *Statute* for the launching, or attempted launching, of an indiscriminate attack will be better dealt with at the confirmation hearing stage rather than at the stage of issuance of a warrant of arrest.).

⁴² *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-02/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Charles Blé Goudé, Pre-Trial Chamber III, 6 January 2012, para. 27; *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Simone Gbagbo, Pre-Trial Chamber III, 2 March 2012, para. 28; *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-01/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Laurent Koudou Gbagbo, Pre-Trial Chamber III, 30 November 2011, paras. 74–75.

⁴³ *Prosecutor v. Omar Hassan Ahmed Al Bashir*, ICC-02/05-01/09, Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, para. 28.

⁴⁴ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Decision on the Prosecutor's Application Pursuant to article 58 as to Muammar Mohammed Abu Minyar Gaddafi, Saif Al Islam Gaddafi and Abdullah Al-Senussi, Pre-Trial Chamber I, 27 June 2011, para. 70.

⁴⁵ *Prosecutor v. Ahmed Muhammad Harun ('Ahmad Harun') and Ali Muhammad Ali Abd-al-Rahman ('Ali Kushayb')*, ICC-02/05-01/07-1, Decision on the Prosecution Application under article 58(7) of the *Statute*, Pre-Trial Chamber I, 27 April 2007, para. 27; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, Decision on the Prosecutor's Application for a Warrant of Arrest against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 June 2008, para. 25.

⁴⁶ *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Mathieu Ngudjolo Chui, Pre-Trial Chamber I, 6 July 2007, para. 26.

⁴⁷ See note 1, Zutphen Draft, article 52 [28], 166.

suspect may have committed a crime within the jurisdiction of the Court' and 'the suspect may not be available to stand trial unless provisionally arrested'⁴⁸. After confirmation of the indictment an arrest warrant for the accused had to be issued unless the accused would 'voluntarily appear for trial' or there were 'special circumstances making it unnecessary for the time being to issue the warrant'.

The Appeals Chamber has determined that in order to justify arrest under article 58 paragraph 1 (b) of the *Statute*, it must appear to be necessary⁴⁹. Therefore, when addressing the risk of further offending, the question revolves around the possibility, not the inevitability, of a future occurrence⁵⁰.

The conditions set forth in article 58 paragraph 1 (b) are presented in the alternative, with it being sufficient that only one of the conditions is satisfied in order to issue a warrant of arrest⁵¹. However, although the Chamber must be satisfied of only one of the conditions set forth in article 58 (1) (b) of the *Statute* being met⁵², even after finding that the issuance of an arrest warrant was justified on the basis of one condition being met, it has in most cases analysed whether the other conditions put forward by the Prosecution were also fulfilled.⁵³

In ruling upon the necessity to issue the arrest warrant, the Chamber will take account of internationally recognized human rights in accordance with article 21 paragraph 3 of the *Statute*.⁵⁴

- 16 aa 'To ensure the person's appearance at trial'. The main reason to detain a suspect is to make sure that the trial can take place with the accused present. Trials *in absentia* are not permitted by the *Statute*, which means that the trial could not be held if the accused was not available. It is up to the Pre-Trial Chamber to determine which circumstances could endanger the appearance of the accused before the Court. The experience of the ICTY with voluntary surrenders and pre-trial releases suggests that warrants of arrest will not always be necessary to secure the appearance of the accused (see article 59, fn 53).

Some of the reasons why the Court has found the issuance of an arrest warrant to be necessary in order to ensure a person's appearance at trial are the person's political position,

⁴⁸ For criticism of these grounds, see note 20, O. Fourmy, *Powers* 1220 *et. seq.*

⁴⁹ *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-02/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Charles Blé Goudé, Pre-Trial Chamber III, 6 January 2012, para. 39; *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Simone Gbagbo, Pre-Trial Chamber III, 2 March 2012, para. 39; *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-01/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Laurent Koudou Gbagbo, Pre-Trial Chamber III, 30 November 2011, para. 81.

⁵⁰ *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-02/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Charles Blé Goudé, Pre-Trial Chamber III, 6 January 2012, para. 39; *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Simone Gbagbo, Pre-Trial Chamber III, 2 March 2012, para. 39; *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-01/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Laurent Koudou Gbagbo, Pre-Trial Chamber III, 30 November 2011, para. 81; *Prosecutor v. Abdel Raheem Muhammad Hussein* 15, ICC-02/05-01/12, Public redacted version of 'Decision on the Prosecutor's application under article 58 relating to Abdel Raheem Muhammad Hussein', Pre-Trial Chamber I, 1 March 2012, para. 42.

⁵¹ *Prosecutor v. Abdel Raheem Muhammad Hussein* 15, ICC-02/05-01/12, Public redacted version of 'Decision on the Prosecutor's application under article 58 relating to Abdel Raheem Muhammad Hussein', Pre-Trial Chamber I, 1 March 2012, para. 51.

⁵² *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber II, 13 July 2012, para. 77.

⁵³ *Prosecutor v. Germain Katanga*, ICC-01/04-01/07, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Germain Katanga, Pre-Trial Chamber I, 5 November 2007, para. 63; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10, Decision on the Prosecutor's Application for a Warrant of Arrest against Callixte Mbarushimana, Pre-Trial Chamber I, 28 September 2010, para. 50; *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Mathieu Ngudjolo Chui, Pre-Trial Chamber I, 6 July 2007, para. 66.

⁵⁴ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, Decision on the Prosecutor's Application for a Warrant of Arrest against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 June 2008, para. 90.

international contacts and/or economic resources⁵⁵, detention⁵⁶, the seriousness of the crimes and the length of the likely to receive sentence⁵⁷, the person's failure to surrender to a national warrant of arrest⁵⁸, the rejection of the Court's jurisdiction⁵⁹ and the State's history of non-cooperation with the Court in executing warrants of arrest⁶⁰.

bb) 'To ensure that the person does not obstruct or endanger the investigation or the Court proceedings'. If there is reason to believe that a suspect would interfere with the investigations of the Prosecutor, he or she can be detained according to the wording of paragraph 1 (b) (ii). The text does not refer to specific actions or types of interference. It is not necessary that the suspect has already attempted to obstruct or endanger the investigation; it is sufficient that the Pre-Trial Chamber has reasonable grounds to believe that such interference could happen. One factor in the assessment could be the gravity of the charges and the presumed consequences for the suspect, but it would not be decisive, since all persons before the Court are likely to face the gravest possible charges and the practice of the ICTY demonstrates that some persons facing the most serious charges can be at liberty pending trial (see article 59 fn 53). More compelling would be convincing information indicating that the suspect might interfere with, destroy or conceal evidence⁶¹, intimidate or

⁵⁵ *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Simone Gbagbo, Pre-Trial Chamber III, 2 March 2012, para. 43; *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-01/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Laurent Koudou Gbagbo, Pre-Trial Chamber III, 30 November 2011, para. 85; *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Mathieu Ngudjolo Chui, Pre-Trial Chamber I, 6 July 2007, para. 64; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10, Decision on the Prosecutor's Application for a Warrant of Arrest against Callixte Mbarushimana, Pre-Trial Chamber I, 28 September 2010, para. 47; *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-01/12, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 13 July 2012, para. 72.

⁵⁶ *Prosecutor v. Germain Katanga*, ICC-01/04-01/07, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Germain Katanga, Pre-Trial Chamber I, 5 November 2007, para. 62; *Prosecutor v. Ahmed Muhammad Harun* ('Ahmad Harun') and *Ali Muhammad Ali Abd-al-Rahman* ('Ali Kushayb'), ICC-02/05-01/07-1, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 27 April 2007, para. 133.

⁵⁷ *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-02/15, Decision on the Prosecutor's Application pursuant to article 58 for a warrant of arrest against Charles Blé Goudé, Pre-Trial Chamber III, 6 January 2012, para. 39; *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12, Decision on the Prosecutor's Application pursuant to article 58 for a warrant of arrest against Simone Gbagbo, Pre-Trial Chamber III, 2 March 2012, para. 39; *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-01/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Laurent Koudou Gbagbo, Pre-Trial Chamber III, 30 November 2011, para. 81; *Prosecutor v. Abdel Raheem Muhammad Hussein* 15, ICC-02/05-01/12, Public redacted version of 'Decision on the Prosecutor's application under article 58 relating to Abdel Raheem Muhammad Hussein', Pre-Trial Chamber I, 1 March 2012, para. 43.

⁵⁸ *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-02/15, Decision on the Prosecutor's Application Pursuant to article 58 for a warrant of arrest against Charles Blé Goudé, Pre-Trial Chamber III, 6 January 2012, para. 41; *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/07, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Mathieu Ngudjolo Chui, Pre-Trial Chamber I, 6 July 2007, para. 63.

⁵⁹ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Decision on the Prosecutor's Application Pursuant to article 58 as to Muammar Mohammed Abu Minyar Gaddafi, Saif Al Islam Gaddafi and Abdullah Al-Senussi, Pre-Trial Chamber I, 27 June 2011, para. 93.

⁶⁰ *Prosecutor v. Abdel Raheem Muhammad Hussein* 15, ICC-02/05-01/12, Public redacted version of 'Decision on the Prosecutor's application under article 58 relating to Abdel Raheem Muhammad Hussein', Pre-Trial Chamber I, 1 March 2012, para. 44; *Prosecutor v. Omar Hassan Ahmed Al Bashir*, ICC-02/05-01/09, Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, para. 228.

⁶¹ See on concealing evidence *Prosecutor v. Ahmed Muhammad Harun* ('Ahmad Harun') and *Ali Muhammad Ali Abd-al-Rahman* ('Ali Kushayb'), ICC-02/05-01/07-1, Decision on the Prosecution Application under article 58(7) of the Statute, Pre-Trial Chamber I, 27 April 2007, para. 131; see also *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Decision on the Prosecutor's Application Pursuant to article 58 as to Muammar Mohammed Abu Minyar Gaddafi, Saif Al Islam Gaddafi and Abdullah Al-Senussi, Pre-Trial Chamber I, 27 June 2011, para. 101 (position to instruct troops to destroy evidence).

influence witnesses or victims⁶², engage in collusion with accomplices⁶³, orchestrate the cover-up of crimes committed by the Security Forces⁶⁴.

- 18 cc) ‘to prevent the person from continuing’. aaa) ‘the commission of that crime’. The Pre-Trial Chamber may issue a warrant of arrest if a person allegedly has committed a crime within the jurisdiction of the Court and if there is reason to believe that he or she will either continue to commit acts that constitute the same crime or if the person attempts to prolong the damage and harm caused by the crime⁶⁵, e.g., by continuing to use his power and absolute control over the State apparatus to continue the commission of crimes⁶⁶. It may seem to be problematic that the Pre-Trial Chamber here acts on the assumption that the suspect has already committed the crime, thereby infringing the presumption of innocence. This is a problem that in fact besets the operation of the entire article, which allows for the issuance of an arrest warrant as soon as ‘[t]here are reasonable grounds to believe that the person has committed a crime within the jurisdiction of the Court’ (article 58 (1) (a)).

To dispel the impression that the Pre-Trial Chamber, by the very issuance of an arrest warrant, presumes the person to be guilty, the drafters of the *Statute* may have wanted to insert a reference to the presumption of innocence in the provisions regarding the pre-trial phase⁶⁷. While this has not occurred, the Pre-Trial Chamber has explicitly held that ‘[t]he right to be presumed innocent is ... guaranteed by the Statute not only to accused persons, but also to those with respect to whom a warrant of arrest or a summons to appear has been issued, before their surrender to the Court’⁶⁸. It has added that the right to be presumed innocent is enshrined in many international human rights instruments⁶⁹. But the most potent safeguard for the presumption is probably the current *dédoulement fonctionnel* of

⁶² *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10, Decision on the Prosecutor’s Application for a Warrant of Arrest against Callixte Mbarushimana, Pre-Trial Chamber I, 28 September 2010, paras. 45–50; *Prosecutor v. Jean-Pierre Bemba Gombo*, CC-01/05-01/08, Decision on the Prosecutor’s Application for a Warrant of Arrest against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 June 2008, para. 89; *Prosecutor v. Germain Katanga*, ICC-01/04–01/07, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Germain Katanga, Pre-Trial Chamber I, 5 November 2007, para. 63; *Prosecutor v. Ahmed Muhammad Harun* (‘Ahmad Harun’) and Ali Muhammad Ali Abd-al-Rahman (‘Ali Kushayb’), ICC-02/05-01/07-1, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 27 April 2007, para. 130; *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision on the Prosecution’s Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, para. 233.

⁶³ ILC Draft Statute, article 28 para. 1 (a) and (b).

⁶⁴ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Decision on the Prosecutor’s Application pursuant to article 58 as to Muammar Mohammed Abu Minyar Gaddafi, Saif Al Islam Gaddafi and Abdullah Al-Senussi, Pre-Trial Chamber I, 27 June 2011.

⁶⁵ See the proposed wording for article 52 para. 1 (b), 168 of the Zutphen Draft. These specific examples were proposed in the Zutphen Draft, but the current formulation was adopted in response to suggestions from some delegations that they ‘could be merged under a more general formulation such as “obstructing or endangering the investigation or the Court proceedings”’. *Ibid.*

⁶⁶ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Decision on the Prosecutor’s Application Pursuant to article 58 as to Muammar Mohammed Abu Minyar Gaddafi, Saif Al Islam Gaddafi and Abdullah Al-Senussi, Pre-Trial Chamber I, 27 June 2011.

⁶⁷ Compare W.A. Schabas, ‘General Principles of Criminal Law in the International Criminal Court Statute (Part III)’, (1998) 6 *EJCLCJ* 84, 111 (arguing that ‘the article dealing with the presumption of innocence appear[ing] in Part 6, concerning trial’, ‘can also claim a legitimate place in Part 2’, and submitting that ‘[i]n indeed, in the early drafting stages of the statute the presumption of innocence text was considered to be part of general principle’).

⁶⁸ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10, Decision on the Defence Request for an Order to Preserve the Impartiality of the Proceedings, Pre-Trial Chamber I, 31 January 2011, para. 8.

⁶⁹ *Ibid.*, para. 9. Note that the Pre-Trial Chamber has held that the human rights-based presumption of innocence does not oppose the imposition of pre-trial detention following arrest when this is justified in accordance with article 58 (1). See *Prosecutor v. Jean-Pierre Bemba Gombo, Aime Kololo Musamba, Jean-Jacques Magenda Kabongo, Fidele Babala Wandu and Narcisse Arido* 17, ICC-01/05-01/13, Judgment on the appeal of Mr Aimé Kilolo Musamba against the decision of Pre-Trial Chamber II of 14 March 2014 entitled ‘Decision on the ‘Demande de mise en liberté provisoire de Maître Aimé Kilolo Musamba’, Appeals Chamber, 11 July 2014, para. 68.

the Court, which assigns responsibility for deciding questions regarding arrest warrants to the Pre-Trial Chamber, without prejudice to the Trial Chamber's ability to subsequently decide the question of guilt or innocence *de novo*⁷⁰. The Pre-Trial Chamber's determination at the arrest warrant stage does not even prejudice its determination on the occasion of the confirmation of charges, when the more exacting standard of 'substantial' (as opposed to 'reasonable') 'grounds to believe' applies⁷¹.

bbb) 'related crimes within the jurisdiction of the Court arising from the same circumstances'. A related crime could be any act that falls under the jurisdiction of the Court provided that it is connected to the same historical context⁷². The Pre-Trial Chamber, however, may not issue a warrant of arrest if the suspect has committed a crime and there is reason to believe that he or she is going to commit a crime under national law of fraud or forgery. In a given case, it may be difficult to distinguish between the commission of a related crime and the continuation of the same crime, if the elements that constitute the crime differ or cover several distinct crimes. In practice, the distinction between the continuation of the same crime and the commission of a related crime may not be relevant as long as the crime is within the jurisdiction of the Court.

II. Paragraph 2: Minimum requirement for application

The application needed to issue the warrant of arrest has to encompass the five types of information listed in this paragraph⁷³. There are no provisions in the *Statute* regulating the application and the consequences if the application is lacking. Although the first edition of this Commentary recommended that this paragraph be implemented in the *Rules of Procedure and Evidence*, neither the *Rules* nor the *Regulations of the Court* do so⁷⁴. Paragraph 2 should be read together with articles 91 paragraphs 2 and 4 and 92 paragraphs 1 and 2, which state what is required in a request for arrest, or provisional arrest, and surrender once an application to issue a warrant has been granted.

1. Name and other identifying information

The primary obligation of any authority examining the arrest of a person is to verify that the person arrested is identical with the person described in the warrant issued by the Court⁷⁵.

The notion of the name of the person refers to the name and forename, including any aliases possibly registered or any other name that the person is known to use, such as a *nom de guerre*, for example.

The notion of any other relevant identifying information encompasses size, height, sex, any particular objective and permanent physical features as well as nationality, accent or other identifiable features. A photograph of the person may be attached to the arrest warrant⁷⁶. It

⁷⁰ *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Mathieu Ngudjolo Chui, Pre-Trial Chamber I, 6 July 2007, para. 53.

⁷¹ *Prosecutor v. Bahir Idriss Abu Garda*, ICC-02/05-02/09, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 8 February 2010.

⁷² The proposed wording for article 52 para. 1 (b) (v) of the Zutphen Draft was '... continue to commit a crime within the jurisdiction of the Court'.

⁷³ The reference to related crimes was not in the Zutphen Draft and was added in Rome.

⁷⁴ This paragraph, which was not in the Zutphen Draft was added in Rome.

⁷⁵ In the absence of specific rules on the application proceedings, the Pre-Trial Chamber may request, should the information submitted with the application not be complete, additional information in support of the application or deny the issuance of an arrest warrant. If it refuses to issue an arrest warrant on the basis that the application was lacking, the Prosecutor may renew the application.

⁷⁶ See, e.g., *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Decision on the Prosecutor's Application pursuant to article 58 as to Muammar Mohammed Abu Minyar Gaddafi, Saif Al Islam Gaddafi and Abdullah Al-Senussi, Pre-Trial Chamber I, 27 June 2011; *Prosecutor v. Germain Katanga*, ICC-01/04-01/07, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of

falls to the Prosecutor to assess what type of identifying information may be necessary and helpful for the identification of the person sought.

2. Specific reference to the alleged crime

- 22 The subparagraph requires that the Prosecutor apply for a warrant if the crime allegedly committed is within the jurisdiction of the Court. The application shall pertain only to crimes within the jurisdiction of the Court. For example, if a person is suspected to have been actively involved in the commission of genocide, the application would make reference to that crime. It would not refer to any other crime that the suspect may also have committed such as the crimes of burglary or fraud under national law, because those crimes are not within the jurisdiction of the Court. The Prosecutor could not add any crimes that are not within the jurisdiction of the Court to an application referring to genocide, crimes against humanity or war crimes.

It is observed that the Pre-Trial Chamber's legal characterization of the facts or of the modes of liability at this stage is without prejudice to the Chamber's possible reconsideration of such characterization at a later stage of the proceedings⁷⁷.

3. Concise statement of the facts

- 23 The application shall describe the facts on which the Prosecutor bases his or her assessment of the case. Based upon this information about the facts, the Pre-Trial Chamber will examine whether the assessment of the Prosecutor permits that the act or omission be qualified as a crime within the jurisdiction of the Court. If the Pre-Trial Chamber is in doubt that the facts presented by the Prosecutor support his or her assessment, it may deny the application.

4. Summary of the evidence and any other information

- 24 The Prosecutor shall present those pieces of evidence that support his or her case. It is sufficient that the Prosecutor shows that there are reasonable grounds to believe that the suspect has committed the crimes referred to in the application. The notion of reasonable grounds pertains to objective criteria. If the Pre-Trial Chamber is not satisfied with the evidence presented, it may deny the application.

5. Reasons for the necessity of the arrest

- 25 The Prosecutor has to present not only persuasive evidence that the suspect has committed a crime within the jurisdiction of the Court, but also that the suspect should be taken into custody. The reasons for arresting a suspect are laid out in paragraph 1 of this article. However, the Prosecutor is not obliged to present reasonable grounds to support his or her belief that the suspect has to be detained pending trial. It is sufficient that he or she convincingly argues that arrest is necessary for one of the reasons listed in paragraph 1 of this article⁷⁸.

arrest for Germain Katanga, Pre-Trial Chamber I, 5 November 2007; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10, Decision on the Prosecutor's Application for a Warrant of Arrest against Callixte Mbarushimana, Pre-Trial Chamber I, 28 September 2010; *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12, Decision on the evidence and information provided by the Prosecution for the issuance of a warrant of arrest for Mathieu Ngudjolo Chui, Pre-Trial Chamber I, 6 July 2007; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, Decision on the Prosecutor's Application for a Warrant of Arrest against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 June 2008.

⁷⁷ ICC-01/04-01/068-Corr, para. 16; *Prosecutor v. Ahmed Muhammad Harun* ('Ahmad Harun') and *Ali Muhammad Ali Abd-al-Rahman* ('Ali Kushayb'), No. ICC-02/05-01/07-1, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 27 April 2007, para. 27; *Prosecutor v. Abdel Raheem Muhammad Hussein* 15, ICC-02/05-01/12, Public redacted version of 'Decision on the Prosecutor's application under article 58 relating to Abdel Raheem Muhammad Hussein', Pre-Trial Chamber I, 1 March 2012, para. 39.

⁷⁸ See article 59 para. 2.

III. Paragraph 3: Minimum requirements for a warrant of arrest

The warrant of arrest is the basis for the detention of the suspect⁷⁹. It has to encompass the information contained in the application by the Prosecutor with the exception of the summary of evidence and the reasons why the Prosecutor considers an arrest necessary. If the Pre-Trial Chamber issues a warrant of arrest in accordance with the application by the Prosecutor, the Pre-Trial Chamber will have satisfied itself that the evidence presented is sufficient and that the detention of the suspect is necessary pursuant to paragraph 1 of this article.

As to the subparagraphs (a) to (c) of this Paragraph, see remarks under section II.

IV. Paragraph 4: Duration of effect

The Paragraph clarifies that only the Court has the power to lift the arrest warrant⁸⁰. The competent authorities of the custodial State where the suspect has been detained are not in a position to do so. They may decide upon interim release in accordance with article 59 paragraphs 3 and 4 of the *Rome Statute*.

The provision refers to the Court but does not name the Pre-Trial Chamber. The reason is that the warrant of arrest may be lifted by the Pre-Trial Chamber as long as the case is still under investigation, but also by the Trial Chamber or the Appeals Chamber once the criminal proceedings have progressed. The competence to lift a warrant of arrest issued by an organ of the Court depends upon what organ of the Court is in charge of conducting the proceedings at the particular time.

V. Paragraph 5: Provisional arrest, arrest and surrender on request of the Court

If the Pre-Trial Chamber has issued a warrant of arrest pursuant to this article, it has to base any request to national authorities for provisional arrest (see article 92) and any request for arrest and surrender on this warrant of arrest⁸¹. The purpose of the provision is to make it clear that if a warrant of arrest by the Pre-Trial Chamber exists, the request for provisional arrest or the request for arrest and surrender has to be based upon this arrest warrant.

The provision does not specify to what extent the request for provisional arrest or arrest and surrender shall make reference to the contents of the arrest warrant or whether the request shall be accompanied by a copy of the arrest warrant. Such matters are not specifically addressed either in the *Rules of Procedure and Evidence* or the *Regulations of the Court*, so they will be determined in practice.

VI. Paragraph 6: Amendments of warrants of arrest

1. Request of the Prosecutor with regard to the crimes specified

The Prosecutor may require the modification of the warrant of arrest at any time during the investigation phase⁸². The provision only applies, however, as long as the Pre-Trial

⁷⁹ Article 59 provides that the court of the custodial State will determine whether a person arrested pursuant to a warrant of arrest issued under article 58 should be detained or released pending surrender to the Court. After surrender, the arrested person may apply pursuant to article 60 para. 2 to the Pre-Trial Chamber for interim release pending trial.

⁸⁰ Paragraph 3 was added in Rome.

⁸¹ This paragraph replaces a variety of proposals that set different expiration periods for pre- and post-indictment warrants of arrest. See article 53 [28] paras. 2 and 5 of the Zutphen Draft.

⁸² Article 52 [28] para. 4 of the Zutphen Draft provided that the Court, including all of its organs, 'shall transmit the warrant to any State where the person may be located, along with a request for the provisional arrest, or arrest and [surrender, transfer, extradition] of the person under Part 9 [7]'.

Chamber is competent for issuing a warrant of arrest. Once the criminal proceedings have progressed to the trial phase, article 58 is no longer applicable⁸³.

- 32 The wording leaves open the scope of possible modifications of the warrant. A restrictive reading of this paragraph might suggest the Prosecutor may request only that another crime within the jurisdiction of the Court be added to the list of crimes referred to in the warrant or that the facts of the crimes be modified⁸⁴. However, the provision should be interpreted in a wider sense allowing also for an amendment of the name or any identifiable features as referred to in paragraph 3 (a) of this article.
- 33 The Paragraph does not pertain to a modification of the summary of evidence or the reasons given by the Prosecutor for the need to detain the suspect as referred to in paragraph 2 (d) and (e) of this article, because the warrant of arrest does not contain those pieces of information pursuant to paragraph 3 of this article. An amendment in that respect would be redundant.
- 34 There is nothing in paragraph 6, the *Rules of Procedure and Evidence* or the *Regulations of the Court* concerning the form of the request for amendment or modification. However, the request does not require the same pieces of information as the application as referred to in paragraph 2, notably because the information contained in the application is already contained in the existing warrant of arrest.

2. Decision of the Pre-Trial Chamber

- 35 The Pre-Trial Chamber will amend the warrant of arrest only if the Prosecutor has presented reasonable grounds to believe that the suspect has committed the modified or additional crimes. The wording implies an obligation of the Pre-Trial Chamber to examine the request of the Prosecutor. The notion of ‘reasonable grounds’ entails the same objective criteria as does paragraph 1 (a) of this article.
- 36 The paragraph does not describe any particular proceedings for amendment or modification of the warrant of arrest. If the Pre-Trial Chamber has decided to amend or modify an existing warrant of arrest, it will do so by issuing a warrant of arrest that contains the modifications or additions requested. The provision does not tackle the question what happens to the former warrant of arrest. There are two possibilities: the warrant could either cease to exist automatically with the issuance of the amended warrant of arrest or the Pre-Trial Chamber would have to determine that the former warrant no longer is in force. The question is of practical relevance insofar as a request for provisional arrest or arrest and surrender would be based upon the warrant of arrest issued by the Pre-Trial Chamber⁸⁵. If the former warrant of arrest is not lifted when an amended warrant is issued, there is a risk that the request for provisional arrest or arrest and surrender would be based upon the former warrant instead of the amended warrant.

VII. Paragraph 7: Summons to appear as an alternative

1. Chapeau

- 37 a) **Application of the Prosecutor.** During the discussions at the meetings of the Preparatory Committee, the issue was raised whether a summons to appear could be considered as an alternative to a warrant of arrest. Both the warrant of arrest and the summons to appear before court are compulsory measures. Strictly speaking, however, a summons is less

⁸³ There was no provision in the Zutphen Draft concerning amendment of warrants of arrest.

⁸⁴ However, it is possible that a person who has been summoned or who has been arrested and released pending trial flees after the commencement of the trial. Presumably, the Trial Chamber, acting pursuant to articles 61 para. 11 and 64 para. 6 (a) could issue a warrant of arrest under article 58, as this step would be an exercise of a function of the Pre-Trial Chamber.

⁸⁵ See also the wording of the second sentence of this paragraph which only makes reference to the alternative that the person is suspected to have committed the modified or additional crimes.

restrictive than a warrant of arrest as it does not necessarily constrain the liberty of the person wanted. It is also less constraining than measures of judicial supervision that would control his or her personal freedom. The provision draws upon those cases where the circumstances do not support the issuance of a warrant of arrest pursuant to paragraph 1 of this article. The arrest may not appear necessary, e.g., if there are no grounds to believe that the suspect will disappear before the trial will take place.

The Prosecutor has to determine whether the circumstances of the case require a warrant of an arrest or a summons to appear. The provision does not provide for the application for other measures of judicial supervision in order to ensure that the person wanted will appear before the Court. An earlier version of the Draft Statute provided for the option to issue a warrant for judicial supervision in order to place the person wanted under restriction of liberty other than arrest⁸⁶. The proposal was deleted, because the issue of judicial supervision was dealt with in the following article concerning pre-trial detention or release (now article 60 of the *Rome Statute*)⁸⁷. A similar provision is now contained in paragraph 7, second sentence of this article.

The Prosecutor may apply for a summons to appear alongside an arrest warrant⁸⁸.

b) Decision of the Pre-Trial Chamber. aa) Reasonable grounds to believe that the person committed the crime alleged and the summons is sufficient to ensure the appearance. The Pre-Trial Chamber has the right and the obligation to examine the request of the Prosecutor for a summons to appear. It has to check in the same way as for a warrant of arrest if there are reasonable grounds to believe that the person committed the alleged crime within the jurisdiction of the Court and in addition the assessment of the Prosecutor that an application for a warrant of arrest is not necessary, because there were no grounds to believe that the suspect would not appear before the Court⁸⁹. Eventually, the Chamber needs to be satisfied that a summons to appear would be equally effective as a warrant of arrest to ensure the person's appearance before the Court⁹⁰. To this effect, the Chamber needs to ensure, before issuing a summons to appear, that the Prosecution Application and its supporting material provide sufficient guarantees that the person will appear before the Court⁹¹. The State's willingness to cooperate is an important factor in this respect⁹². Other factors that have been taken into consideration by the Court when deciding that a summons is sufficient to ensure

⁸⁶ Paragraph 5 of this article.

⁸⁷ Article 52 [28] para. 1 (b) of the Zutphen Draft at the bottom of the Paragraph.

⁸⁸ ICC-01/04-01/068-Corr, para. 16; *Prosecutor v. Ahmed Muhammad Harun ('Ahmad Harun') and Ali Muhammad Ali Abd-al-Rahman ('Ali Kushayb')*, ICC-02/05-01/07-1, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 27 April 2007, para. 4.

⁸⁹ *Prosecutor v. Omar Hassan Ahmed Al Bashir* ICC-02/05-01/09, Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, para. 29; *Prosecutor v. Abdallah Banda Abakaer Nourain* ICC-02/05-03/09, Second Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 27 August 2009 para. 34.

⁹⁰ ICC-01/04-01/068-Corr, para. 16; *Prosecutor v. Ahmed Muhammad Harun ('Ahmad Harun') and Ali Muhammad Ali Abd-al-Rahman ('Ali Kushayb')*, ICC-02/05-01/07-1, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 27 April 2007, para. 116.

⁹¹ ICC-01/04-01/068-Corr, para. 16; *Prosecutor v. Ahmed Muhammad Harun ('Ahmad Harun') and Ali Muhammad Ali Abd-al-Rahman ('Ali Kushayb')*, ICC-02/05-01/07-1, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 27 April 2007, para. 118; *Prosecutor v. Bahir Idriss Abu Garda*, ICC-02/05-02/09, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 7 May 2009, para. 29; *Prosecutor v. Abdallah Banda Abakaer Nourain*, ICC-02/05-03/09, Second Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 27 August 2009, para. 32; *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11, Decision on the Prosecutor's Application for Summons to Appear for William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang, 8 March 2011, Pre-Trial Chamber II, para. 54; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11 Decision on the Prosecutor's Application for Summonses to Appear for Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali, 8 March 2011, Pre-Trial Chamber II, para. 53.

⁹² ICC-01/04-01/068-Corr, para. 16; *Prosecutor v. Ahmed Muhammad Harun ('Ahmad Harun') and Ali Muhammad Ali Abd-al-Rahman ('Ali Kushayb')*, ICC-02/05-01/07-1, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 27 April 2007, paras. 122–124.

appearance before the Court is that the persons were not perceived to be a flight risk and that nothing indicated that they would evade personal service of the summons or refrain from cooperating if summoned to appear⁹³.

- 41 A summons to appear is not an option if there are grounds to believe that the suspect may obstruct or endanger the investigation or the court proceedings, paragraph 1 (b) (ii), or if there is a risk that the suspect might continue to commit the crime he or she allegedly has committed or commit a related crime within the jurisdiction of the Court, paragraph 1 (b) (iii). Neither can it be issued for a person currently detained by national authorities, as in the Court's view this would be contrary to the object and purpose of article 58 paragraph 7: indeed, as pursuant to this article the Court can issue a summons to appear with conditions restricting liberty, only a person who is not already being detained can be the addressee of such a summons⁹⁴.
- 42 The Pre-Trial Chamber may reserve its right to review the finding that a summons to appear is sufficient to ensure the person's presence at trial either *proprio motu* or at the request of the Prosecutor, particularly if the suspect fails to appear on the date specified in the summons or fails to comply with the orders contained in the summons to appear issued by the Chamber⁹⁵.
- 43 **bb) Conditions under national law.** The decision of the Pre-Trial Chamber can be taken 'with or without conditions restricting liberty (other than detention) if provided for by national law, for the person to appear'.

The *Statute* does not specify the types of conditions restricting liberty that could be adopted, but refers to national law. The provision offers the opportunity to the Pre-Trial Chamber to make use of judicial instruments that may be available in the State where the person wanted was located. In that respect, the paragraph offers a wide range for flexibility. Such measures, however, should be consistent with the *Rome Statute* and other international law standards.

The Pre-Trial Chamber only is in a position to order restrictions of liberty, if it declines to issue a warrant of arrest on the grounds that a summons to appear is sufficient to ensure the suspect's appearance before the Court. The wording in brackets clarifies that the notion of restrictions of liberty only refers to measures other than detention as detention is regarded as the most restrictive measure of liberty upon arrest.

- 44 The *Statute* does not provide for rules on how the conditions of restriction of liberty will be conducted or supervised. As a rule, the execution of such measures will be effected pursuant to the law of the State where the person wanted is located. The Court may request the assistance of the national authorities in accordance with the provisions on cooperation of Part 9 of the *Statute* as applicable⁹⁶. The Registrar may be ordered to monitor compliance with the conditions imposed⁹⁷.

⁹³ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11, Decision on the Prosecutor's Application for Summons to Appear for William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang, 8 March 2011, Pre-Trial Chamber II, para. 56; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11 Decision on the Prosecutor's Application for Summonses to Appear for Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali, 8 March 2011, Pre-Trial Chamber II, para. 55.

⁹⁴ ICC-01/04-01/068-Corr, para. 16; *Prosecutor v. Ahmed Muhammad Harun ('Ahmad Harun') and Ali Muhammad Ali Abd-al-Rahman ('Ali Kushayb')*, ICC-02/05-01/07-1, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 27 April 2007, para. 120.

⁹⁵ *Prosecutor v. Bahir Idriss Abu Garda*, ICC-02/05-02/09, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 7 May 2009, para. 32; *Prosecutor v. Abdallah Banda Abakaer Nourain*, ICC-02/05-03/09, Second Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 27 August 2009, para. 35; *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11, Decision on the Prosecutor's Application for Summons to Appear for William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang, 8 March 2011, Pre-Trial Chamber II, para. 56; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11 Decision on the Prosecutor's Application for Summonses to Appear for Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali, 8 March 2011, Pre-Trial Chamber II, para. 55.

⁹⁶ Article 53 [29] para. 5 of the Zutphen Draft; see also article 52 [28] para. 1, 170.

⁹⁷ *Prosecutor v. Bahir Idriss Abu Garda*, ICC-02/05-02/09, Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 7 May 2009, pp. 18–19; *Prosecutor v. Abdallah Banda Abakaer Nourain*, ICC-02/05-03/09, Second Decision on the Prosecutor's Application under article 58, Pre-Trial Chamber I, 27 August 2009, pp. 19–20.

The summons to appear may order the person to whom it is addressed to not have contact with any person who is or is believed to be a victim or a witness of the crimes for which the summons has been issued, to refrain from corruptly influencing a witness, obstructing or interfering with the attendance or testimony of a witness, or tampering with or interfering with the Prosecution's collection of evidence, to refrain from committing any crimes set forth in the *Rome Statute*, in addition to attending all required hearings at the Court⁹⁸.

2. The different subparagraphs

With respect to the elements referred to in subparagraphs (a), (c) and (d), the same observations can be made as put down with respect to paragraph 3 of this article.

In contrast to a warrant of arrest, a summons to appear has to contain the date of the hearing or trial on which the person is to appear. The paragraph does not require the summons to include the address where the person is to appear; but it is self-evident, that the obligation to appear can only be fulfilled by the person wanted if the exact address of the place is given to the person summoned. This provision has been criticized for failing to specify the penalty for non-compliance with a summons, failing to include provisions concerning allowances payable and what travel expenses are reimbursable or pre-paid⁹⁹.

With regard to the last sentence of paragraph 7, '[t]he summons shall be served on the person', the Pre-Trial Chamber may request the State where the person summoned is located to transmit the summons to appear in accordance with the provisions on cooperation in Part 9 of the *Statute*. Paragraph 7 would appear to exclude service by mail, but it will be up to the Court to determine what forms of service under national law constitute service 'on the person'.

⁹⁸ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11, Decision on the Prosecutor's Application for Summons to Appear for William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang, 8 March 2011, Pre-Trial Chamber II, p. 23; *Prosecutor v. Uhuru Muigal Kenyatta*, ICC-01/09-02/11 Decision on the Prosecutor's Application for Summonses to Appear for Francis Kirimi Muthaura, Uhuru Muigal Kenyatta and Mohammed Hussein Ali, 8 March 2011, Pre-Trial Chamber II, pp. 23–24.

⁹⁹ Such a request could be based upon articles 86 and 93 para. 1 (l) (requiring States Parties to provide any type of assistance not listed in article 93 para. 1 (a) – (k) which is not prohibited by the law of the requested State) that does not specify the type of assistance requested.

Article 59

Arrest proceedings in the custodial State

1. A State Party which has received a request for provisional arrest or for arrest and surrender shall immediately take steps to arrest the person in question in accordance with its laws and provisions of Part 9.

2. A person arrested shall be brought promptly before the competent judicial authority in the custodial State which shall determine, in accordance with the law of that State, that:

- a) The warrant applies to that person;
- b) The person has been arrested in accordance with the proper process; and
- c) The person's rights have been respected.

3. The person arrested shall have the right to apply to the competent authority in the custodial State for interim release pending surrender.

4. In reaching a decision on any such application, the competent authority in the custodial State shall consider whether, given the gravity of the alleged crimes, there are urgent and exceptional circumstances to justify interim release and whether necessary safeguards exist to ensure that the custodial State can fulfil its duty to surrender the person to the Court. It shall not be open to the competent authority of the custodial State to consider whether the warrant of arrest was properly issued in accordance with article 58, paragraph 1 (a) and (b).

5. The Pre-Trial Chamber shall be notified of any request for interim release and shall make recommendations to the competent authority in the custodial State. The competent authority in the custodial State shall give full consideration to such recommendations, including any recommendations on measures to prevent the escape of the person, before rendering its decision.

6. If the person is granted interim release, the Pre-Trial Chamber may request periodic reports on the status of the interim release.

7. Once ordered to be surrendered by the custodial State, the person shall be delivered to the Court as soon as possible.

Directly relevant Rules of Procedure and Evidence: Rule 117.

Literature: *General:* Abi Saab, G., 'Droits de l'homme et juridictions pénales internationales: Convergences et tensions', in: R.-J. Dupuy, (ed.), *Mélanges en L'honneur de Nicolas Valticos: droit et justice* (Éditions A Pedone 1999) 252; Amnesty International, *Fair Trials Manual* (Amnesty International Publications 1998); Delmas-Marty, M., *Procès pénal et droits de l'homme* (Presses Universitaires de France 1992); Fourmy, O., 'Powers of the Pre-Trial Chambers', in: Cassese, Gaeta and Jones (eds.), *The Rome Statute Of The International Criminal Court: A Commentary*, Vol. II (2002) 1207; Friman, H., 'Rights of Persons Suspected or Accused of a Crime', in: Lee (ed.), *The International Criminal Court: The Making of the Rome Statute – Issues – Negotiations – Results* (1999) 247; *id.*, 'Investigation and Prosecution', in: R. S. Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 516; Gallant, K.S., 'Securing the Presence of Defendants before the International Criminal Tribunal for the Former Yugoslavia: Breaking with Extradition', (1994) 5 *CLF* 557; Green, L.C., 'Erdemović, Tadić, Dokmanović: Jurisdiction and Early Practice of the Yugoslav War Crimes Tribunal', (1997) 27 *IsYbHumRts* 313; Guariglia, F., 'Investigations and Prosecutions', in: Lee (ed.), *The International Criminal Court: The Making of the Rome Statute – Issues – Negotiations – Results* (1999) 227; Harris, D., 'The Right to a Fair Trial in Criminal Proceedings as a Human Right', (1967) 16 *1&CompLQ* 355; Knoops, J.G.A., *An Introduction to the Law of International Criminal Tribunals: A Comparative Study* (Brill, Nijhoff 2003); Krefß, C. And Broomhall, B., 'Implementing Cooperation Duties under the Rome Statute: A Comparative Synthesis', in: C. Krefß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*, II: *Constitutional issues, cooperation and enforcement* (Nomos 2005) 515; Marchesiello, M., 'Proceedings before the Pre-Trial Chamber', in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, Vol. II (2002) 1231; Nowak, M., *U.N. Covenant on Civil and Political Rights: CCPR Commentary* (Engel 1993); Rodley, N.S., *The Treatment of Prisoners Under International Law* (OUP 2nd edition 1999); UN Centre for Human Rights and Crime Prevention And Criminal Justice Branch, *Handbook of International Standards Relating to Pre-Trial Detention* (United Nations 1994); Swart, B., 'Arrest Proceedings in the Custodial State', in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary*,

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A. Introduction/General remarks

Article 59 is based upon article 29 of the ILC Draft Statute¹. When discussing paragraph 1, 1 the delegates pondered whether national judicial authorities or the Court, be it the Presidency, the Trial Chamber or the Indictment Chamber or Pre-Trial Chamber, should have control over the legality of the detention of the suspect².

The *Rome Statute* distinguishes between arrest proceedings in the custodial State, governed 2 by article 59, and the proceedings before the Court, governed by article 60. Article 59 is based upon the assumption that, as a rule, a suspect will be located and detained by the local authorities in the territory of a State Party rather than by the Court. At the Preparatory Committee, the proposal was made that the Prosecutor himself or herself should have the authority to execute the warrant of arrest if the competent judicial authority was not available or ineffective. This proposal was abandoned, because a consensus could not be reached on resolving the practical questions concerning arrests by the Prosecutor or where such issues should be addressed in the *Statute*³. Nevertheless, as noted below, the Court will be faced

¹ 1994 ILC Draft Statute; see 1996 Preparatory Committee Report II, p. 139.

² 1996 Preparatory Committee Report II, pp. 139 *et seq.*

³ These issues before the Diplomatic Conference included 'under what conditions the Prosecutor should be able to exercise such authority, whether the Prosecutor would have adequate resources to do so, and whether such issues should be addressed elsewhere in the Statute'. Article 53 para. 1bis no. 177 of the Zutphen Draft, <<http://www.legal-tools.org/en/doc/7ba9a4>> accessed 30 September 2014. It is also published in: M.C. Bassiouni

with a number of novel questions not expressly addressed in article 59, for example, concerning the applicability of this provision to arrests by staff of intergovernmental organizations in peace-keeping operations, as well as to arrests by members of national contingents, both from States Parties and from other States, participating in such operations. Article 59 governs only arrest and surrender proceedings regarding crimes within the Court's jurisdiction⁴.

Article 59 is related to article 92 in Part 9 on cooperation with the ICC. This article mainly concerns the requirements which requests for provisional arrest by the Court should satisfy. Although it is not as such concerned with arrest proceedings in the custodial State, article 92 (3) provides that '[a] person who is provisionally arrested [in accordance with article 59 (1)] may be released from custody if the requested State has not received the request for surrender and the documents supporting the request...' This article goes on to state that 'the person may consent to surrender before the expiration of this period if permitted by the law of the requested State. In such a case, the requested State shall proceed to surrender the person to the Court as soon as possible'.

- 3 Practice has shown that the custodial State mentioned in article 59 (2) is not necessarily the State where the alleged crime has been committed or of which the sought person is a national. Instead, the custodial State is any State which is in a position to execute the arrest warrant against the sought person who happens to be on its territory, whether this State is a party to the *ICC Statute* or otherwise under an obligation to cooperation with the Court, *e.g.*, under a UN Security Council Resolution. Several suspects were arrested in third countries.⁵ Where cooperation is not forthcoming, the Court may inform the Security Council and the Assembly of State Parties about the presence of the person on the said territory, in order for them to take any measure they deem appropriate.⁶ The non-cooperative State can also be requested by the Court to submit observations concerning its alleged failure to comply with the Cooperation Requests issued by the Court,⁷ after which the Court may make a finding in this regard, which will be transmitted to the Security Council and the Assembly of State Parties.⁸ Furthermore, in case the person has been present on the territory of the third State before and the State has failed on such occasion to proceed to the arrest and surrender of the

(ed.), *The Statute of the International Criminal Court: A Documentary History* (1998); M. C. Bassiouni (ed.), *International Criminal Court: Compilation of Documents and Draft ICC Statute before the Diplomatic Conference* (1998) and L. Sadat Wexler (ed.), *Observations on the Consolidated ICC Text before the Final Session of the Preparatory Committee, 13bis NEP (A.I.D.P. 1998) 155 et seq.* All citations to the Zutphen Draft are to the relevant draft articles. The Zutphen Draft was reorganized and partly revised at the final session of the Preparatory Committee held from 16 March to 3 April 1998 in what is sometimes known as the New York Draft, UN Doc. A/CONF.183/2/Add.2 (1998), which was submitted to the Rome Diplomatic Conference. Although the number of draft article 52 [28], the predecessor of article 58 of the Rome Statute, changed to article 59 in the New York Draft, the text remained the same.

⁴ Rule 165 para. 2 expressly provides that article 59 and any Rules related to that article do not apply to offences against the administration of justice.

⁵ Callixte Mbarushimana was arrested in France on 11 October 2010, Jean-Pierre Bemba Gombo was arrested in Belgium on 24 May 2008 and between 23 and 24 November 2013, the Dutch authorities arrested Jean-Jacques Mangenda Kabongo, the Belgian authorities arrested Aimé Kilolo Musamba and the French authorities arrested Narcisse Arido. Charles Blé Goudé was arrested in Ghana and extradited to the Côte d'Ivoire but he was not arrested with the purpose of being surrendered to the ICC.

⁶ See, *e.g.*, *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision informing the United Nations Security Council and the Assembly of the States Parties to the Rome Statute about Omar Al Bashir's presence in the territory of the Republic of Kenya, Pre-Trial Chamber I, 27 August 2010; *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision informing the United Nations Security Council and the Assembly of the States Parties to the Rome Statute about Omar Al-Bashir's recent visit to the Republic of Chad, Pre-Trial Chamber I, 27 August 2010; *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision informing the United Nations Security Council and the Assembly of the States Parties to the Rome Statute about Omar Al-Bashir's recent visit to Djibouti, Pre-Trial Chamber I, 12 May 2011.

⁷ See, *e.g.*, *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision requesting observations about Omar Al-Bashir's recent visit to the Republic of Chad, Pre-Trial Chamber I, 18 August 2011.

⁸ See, *e.g.*, *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision Pursuant to article 87(7) of the Rome Statute on the Failure by the Republic of Malawi to Comply with the Cooperation Requests Issued

person, the State will be required to submit observations to the Court regarding any problems which would impede or prevent the arrest and surrender during the upcoming visit and to proceed to arrest and surrender in accordance with its obligations under the *Statute*.⁹

B. Analysis and interpretation of elements

Article 59 expressly applies to States Parties to the *Statute*. However, it would necessarily 4 apply to States that have made declarations recognizing the Court's jurisdiction pursuant to article 12 (3)¹⁰, and to States that are under an obligation to cooperate with the Court by virtue of a UN Security Council Resolution.¹¹ Presumably, it would also apply to a State that had entered into a cooperation arrangement or agreement with the Court pursuant to article 87 paragraph 5 and an intergovernmental organization that had reached an agreement with the Court pursuant to article 87 paragraph 6¹². The wording covers a request for provisional arrest as well as a request for arrest and surrender by the Court¹³. The arrest proceedings will be conducted according to Part 9 of the *Rome Statute* and the national law of the custodial State¹⁴.

The term 'surrender' was chosen in preference to the term 'extradition', because the negotiators were of the opinion that the transfer of suspects to the Court should be considered as distinct from current extradition regimes (see article 102 for the definition of these terms)¹⁵.

by the Court with Respect to the Arrest and Surrender of Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 12 December 2011.

⁹ See, e.g., *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision requesting observations from the Republic of Kenya, Pre-Trial Chamber I, 25 October 2010.

¹⁰ The Côte d'Ivoire has made such a declaration recognizing the jurisdiction of the Court over crimes committed since 29 September 2002, although as of 31 January 2006, it had not been published by the Registrar.

¹¹ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Decision on the non-compliance by Libya with requests for cooperation by the Court and referring the matter to the United Nations Security Council, Pre-Trial Chamber I, 10 December 2014, para. 1, referring to UN Security Council resolution 1970 (2011), UN Doc. S/RES/1970, para. 5; *Prosecutor v. Omar Hassan Ahmad Al Bashir*, Case No. ICC-02/05-01/09, Decision on the Prosecutor's Request for a Finding of Non-Compliance Against the Republic of the Sudan, Pre-Trial Chamber II, 9 March 2015, paras. 13–15. See *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Decision on Libya's Submissions Regarding the Arrest of Saif Al-Islam Gaddafi, Pre-Trial Chamber I, 7 March 2012, paras. 12–13; *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Decision requesting Libya to provide observations concerning the Court's request for arrest and surrender of Abdullah Al-Senussi, Pre-Trial Chamber I, 18 January 2013, para. 10. These decisions relate specifically to article 89, but the same *rationale* underlies the surrender obligation under article 59. Note that third States non-Parties may not be specifically targeted by UN Security Council resolutions containing cooperation obligations. See *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Decision on the request of the Defence of Abdullah Al-Senussi to make a finding of non-cooperation by the Islamic Republic of Mauritania and refer the matter to the Security Council, Pre-Trial Chamber I, 28 August 2013, para. 13, finding that Mauritania has no obligations vis-à-vis the Court arising directly from the *Statute* since it is not a State Party to the *Statute*, no ad hoc arrangement or agreement has been concluded between the Court and Mauritania and no other appropriate basis under article 87(5)(a) of the *Statute* imposes an obligation on Mauritania with respect to the arrest and surrender of Mr Al-Senussi to the Court. The decision to cooperate imposed by the Security Council was imposed solely on Libya (*Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, No. ICC-01/11-01/11, Decision on the request of the Defence of Abdullah Al-Senussi to make a finding of non-cooperation by the Islamic Republic of Mauritania and refer the matter to the Security Council, Pre-Trial Chamber I, 28 August 2013, para. 14).

¹² See also Negotiated Agreement between the International Criminal Court and the United Nations.

¹³ In the field of legal assistance, a request for provisional arrest usually is effected automatically when the warrant of arrest is filed with the police information system. If the Court decides to keep a warrant confidential, it may place the request for provisional arrest directly with the State Party where the suspect is presumed to be located.

¹⁴ 1996 Preparatory Committee Report II, para. 240.

¹⁵ The issue of terminology was controversial until the Diplomatic Conference. The terms 'extradition' and 'surrender' were still bracketed in conference working paper UN Doc. A/CONF.183/C.1/WGPM/L.2.

I. Paragraph 1: Immediate reaction

- 5 The wording makes apparent that States Parties are obliged to comply with a request for provisional arrest as well as a request of arrest and surrender by the Court. In that respect, the paragraph requires that the arrest should be taken both in accordance with their laws and with the provisions on international cooperation of Part 9 of the *Statute*. The obligation spelled out in paragraph 1 falls within the general obligation in article 86 to cooperate with the Court in its investigations and prosecutions and the obligation in article 88 to ensure that there are procedures available under national law for all of the forms of cooperation that are specified in Part 9. The requirement of immediacy laid down in this paragraph, together with the obligation of national authorities in paragraph 2 to bring the arrested person promptly before a judicial authority and in paragraph 7 to surrender a person as soon as possible once a surrender order has been issued suggests that all subsequent steps taken pursuant to article 59 should be taken expeditiously.¹⁶

In addition, international law and standards require that if the person arrested at the request of an international criminal court remains in detention, proceedings in the national court must be prompt¹⁷.

- 6 The judicial authorities of the requested State Party would decide upon the steps to be taken to arrest the person sought by the Court in accordance with their national law and Part 9 of the *Statute*¹⁸. Of course, the national law at stake must be consistent with international law. In any event, as of the day when the arrest warrant is notified to the national authorities, the obligation to surrender arises. In exceptional circumstances, pursuant to article 95, the requested State is allowed to postpone the execution of the Court's request for surrender until such time as the Court has ruled on an admissibility challenge.¹⁹

II. Paragraph 2

1. Appearance before the competent judicial authority

- 7 The procedure described in article 59(2) necessarily follows from arresting a person pursuant to a surrender request.²⁰ It is for the law of the custodial State to determine which judicial authority is competent to conduct proceedings concerning the person arrested²¹.
- 8 Paragraph 2 requires that the arrested person be brought 'promptly' before the judicial authority in the custodial State with competence²². It would be in keeping with normal

¹⁶ Note in this respect also that the Court has held that the obligation to surrender arises as of the day when the arrest warrant is notified to the national authorities. See *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Decision Regarding the Second Request by the Government of Libya for Postponement of the Surrender of Saif Al-Islam Gaddafi, Pre-Trial Chamber I, 4 April 2012, para. 19.

¹⁷ *Prosecutor v. Barayagwiza*, ICTR-97-19-AR72, Decision, Appeals Chamber, 3 November 1999, para. 62, modified with respect to relief granted, 31 March 2000.

¹⁸ 1996 Preparatory Committee Report II, pp. 140 *et seq.*

¹⁹ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Decision on the postponement of the execution of the request for surrender of Saif Al-Islam Gaddafi pursuant to article 95 of the Rome Statute, Pre-Trial Chamber I, 1 June 2012, p. 16.

²⁰ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Decision Regarding the Second Request by the Government of Libya for Postponement of the Surrender of Saif Al-Islam Gaddafi, Pre-Trial Chamber I, 4 April 2012, para. 19.

²¹ For an explanation of what would constitute a judicial authority, see Amnesty International, *Fair Trials Manual* (1998) sec. 5.1.1 and 12.4.

²² Paragraph 2 reflects international law and standards such as article 9 para. 3 of the International Covenant on Civil and Political Rights; Principle 11 para. 1 of the UN Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment; article 10 para. 1 of the UN Declaration on the Protection of All Persons from Enforced Disappearance; article 5 para. 3 of the European Convention for the Protection of Human Rights and Fundamental Freedoms; article 7 para. 5 of the American Convention on Human Rights; article XI of the Inter-American Convention on Forced Disappearance of Persons; and paragraph M.3 (a) of the Principles

principles of treaty interpretation for the concept of 'promptly' to be assessed in the light of international law and standards, rather than according to how the term is defined in national law or practice²³. The only reference in this paragraph to the national law of the custodial State is to the procedure for determining whether the criteria in subparagraphs (a) to (c) have been met. However, that procedure, necessarily, must be consistent with the *Statute* and other international law. Although paragraph 2 is silent on the question, it would be consistent with the requirement in paragraph 1 that a State take immediate steps to arrest a person and to bring the arrested person promptly before judicial authorities in paragraph 2 to require States Parties to ensure that all legal challenges and appeals of judicial decisions are resolved promptly. Still, it remains unclear what timeframe is precisely denoted by the term 'promptly'. Accordingly, there is a risk that, despite the attempts of the drafters of the *Rome Statute* when designing surrender procedures to avoid the use of the extradition model, with its obstacles and protracted proceedings, surrender proceedings in the custodial State could become protracted. Regrettably, article 59 provides only limited tools for the Pre-Trial Chamber to encourage expeditious proceedings and the Court may be reluctant to resort to article 87 paragraph 7 except in cases involving gross abuses, even though there is no such threshold before the provision can be invoked²⁴.

Paragraph 2 implies that the warrant of arrest issued by the Court be effected by a State Party rather than by an organ of the Court. An earlier proposal provided that the Prosecutor of the Court was to execute the warrant of arrest with the consent of the Pre-Trial Chamber, if the competent judicial authority of the State Party was either not available or ineffective²⁵. The proposal was dropped, however, because the suggested provision raised a number of controversial issues, including, for instance, under what conditions the Prosecutor should be able to exercise such authority, or whether he or she would have adequate resources to do so²⁶. Although this proposal was dropped, it is not clear whether the absence of an express provision in the *Statute* would prevent staff of the Office of the Prosecutor from executing an arrest warrant or serving a summons. For example, it is not clear what the scope of the Prosecutor's powers is when taking specific investigative steps pursuant to article 57 paragraph 3 (d) when a State Party is unable to do so²⁷. Presumably, national legislation could permit staff of the Office of the Prosecutor to carry out arrests. As noted above, however, the Court is likely to be presented with a number of other novel situations not expressly addressed in article 59²⁸.

and Guidelines on the Right to a Fair Trial and Legal Assistance in Africa, African Commission on Human and Peoples' Rights, 33rd Ord. Sess., 15 to 19 May 2003.

²³ In many States there can be considerable delays, both because of law and practice, in bringing arrested persons before a judge. However, a State Party could not successfully argue that the term promptly should be measured by its national law and practice rather than by international law and standards. See Vienna Convention on the Law of Treaties, article 27 ('A party may not invoke the provisions of its internal law as justification for its failure to perform a treaty.').

²⁴ Whether the Court could issue a request to a State to expedite proceedings or whether it has any inherent powers to supervise national authorities acting as the Court's agents does not appear to have been explored in any detail by the drafters of the *Statute*.

²⁵ See Zutphen Draft, article 53 para. 1*bis*.

²⁶ See Zutphen Draft, article 53 para. 1*bis*, No. 177.

²⁷ Article 57 para. 3 (d) permits the Pre-Trial Chamber to '[a]uthorize the Prosecutor to take specific investigative steps' when it 'has determined that the State is clearly unable to execute a request for cooperation', but it does not define investigative steps. The most plausible way of interpreting this provision is that it would permit the Pre-Trial Chamber to authorize the Prosecutor to execute any request for cooperation that the requested State is unable to execute, including a request to execute an arrest warrant or to serve a summons. There are other situations when an arrest by staff of the Prosecutor could be authorized. For example, if a suspect for whom a sealed arrest warrant had been issued were to appear on Court premises, permitting such an arrest, perhaps with an immediate transfer to the host State or the State where the Court was sitting pursuant to article 3 para. 3, subject to effective safeguards for the rights of the arrested person, might be consistent with the *Statute*. It is also possible that in situations not covered by article 57 para. 3 (d) the Pre-Trial Chamber could authorize the Prosecutor to seek the assistance of UN peacekeepers to execute a warrant of arrest.

²⁸ For example, an arrest might not be carried out by a State Party, but by a State that had made a declaration pursuant to article 12 para. 3 or which had entered into a special arrangement or agreement with the Court pursuant to article 87 para. 5 or by staff of an intergovernmental organization pursuant to article 87 para. 6. In

- 10 The wording ‘which shall determine’ makes it clear that the State Party where the person sought was arrested, is obliged to ensure that the arrest proceedings are conducted in accordance with the applicable rules of the *Statute* and the law of the State Party²⁹.

The precise contours of the procedure before the competent national judicial authority are determined by the State, ordinarily on the basis of ICC implementation legislation. In one case, a domestic court has held that the right to judicially contest a provisional arrest under national law is based on articles 91 and 92 (2) rather than on article 59³⁰. None of these provisions explicitly provides for a right to contest a decision of a competent national authority, however, arguably because the drafters did not want to be seen too intervening in the domestic judicial structures of States Parties³¹. In that same case, the court ruled that the person could no longer contest his arrest once the (domestic) pre-trial chamber had decided to surrender him to the ICC, at which moment a new basis for detention was created³².

2. The different subparagraphs

- 11 Paragraph 2 identifies only three matters which are to be considered by the competent judicial authority in the custodial State. Thus, there is no role under the *Statute* for executive authorities in the custodial State in making such determinations, in contrast to decisions on interim release, which are to be made by the competent authority in the custodial State (paragraph 3). As discussed below, in addition to these proceedings in the custodial State, parallel proceedings may be taking place in the Pre-Trial Chamber on other matters within its jurisdiction, such as the appointment of counsel for proceedings before the Court, challenges to the issuance of the arrest warrant and challenges to jurisdiction and admissibility³³.
- 12 a) **The warrant applicable.** The judicial authority of the custodial State that is in charge of the arrest proceedings has to verify whether the person arrested is the same as the person sought under the arrest warrant. In making that determination, the judicial authority can rely upon the supporting information and material required by article 91 paragraph 2 in the request for arrest and surrender. In addition, the judicial authority should, after sufficient notice, permit the Office of the Prosecutor, which will have relevant information, and the

addition, military police of a State Party (custodial State) serving in a peace-keeping operation might carry out an arrest in the territory of another State. A literal interpretation of paragraph 2 would suggest that the military police would have to send the arrested person promptly back to a court in the custodial State, both when the courts in the territorial State were open and when the judicial system had collapsed. A degree of flexibility in the implementation of article 59 that is consistent with the purpose of the *Statute* may be possible, such as bringing the person promptly before a court of the custodial State sitting in the State with jurisdiction where the person was arrested or prompt surrender to the Court, provided that the safeguards for the rights of the suspect, as envisaged in article 59, were fully respected and kidnapping in violation of international law was prohibited. In this respect, the Court should reject the approach of the ICTY in *Prosecutor v. Dokmanovic*, IT-95-13a-PT, Decision on the Motion for Release, Trial Chamber, 22 October 1997 (decision not available on ICTY website) and *Prosecutor v. Nikolić*, IT-95-2-PT, Decision on Defence Motion Challenging the Exercise of Jurisdiction by the Tribunal, 2 October 2002, to allegations that the accused was kidnapped in violation of international law. See *Green* (1997) *IsYbHumRts* 313; *Abi Saab*, in: Dupuy (ed.), *Mélanges en L'honneur de Nicolas Valticos: droit et justice* (1999) 252; see also Krefß and Broomhall, in: Krefß *et al.* (eds.), *The Rome Statute Of The International Criminal Court And Domestic Legal Orders* (2005) 515, 520 *et seq.*

²⁹ The elements which the competent judicial authorities have to examine in particular pursuant to that paragraph were agreed upon during the meeting of the Preparatory Committee in August 1997. See Zutphen Draft, article 53 para. 2, p. 102.

³⁰ *Bemba Gombo (Jean-Pierre) v. Belgium*, Cass No P 08 0896F, ILDC 1115 (BE 2008), Appeal Judgment, Court of Cassation, 18 June 2008, para. 5.

³¹ See on the balance between the role of State authorities and the ICC in respect of article 59. Preparatory Committee Report Vol. I at 52.

³² *Bemba Gombo (Jean-Pierre) v. Belgium*, Cass No P 08 0971F, ILDC 1116 (BE 2008), Appeal Decision, 1 July 2008, paras. 5 and 10.

³³ Rule 117 para. 2 (appointment of counsel for proceedings in the Court) and para. 3 (challenges to the issuance of the arrest warrant); article 19 (challenges to jurisdiction and admissibility).

Pre-Trial Chamber to participate at all stages of the proceedings and to make recommendations. The determination should be subject to expected appeal³⁴.

b) **Arrest ‘in accordance with the proper process’.** The arrest proceedings are governed by the law of the custodial State³⁵. Article 59 does not address the criteria of proper process. Basically, it means that the warrant be duly served on the person arrested and that the process be consistent with international law and standards³⁶. It may be argued that the right to be arrested ‘in accordance with the proper process’ in article 59(2)(b) is in fact just one of the rights to be respected in accordance with article 59(2)(c), so that in practice both provisions have to be read together.³⁷

c) **Rights to be respected.** The rights referred to in this subparagraph would include both rights under national law and under international law, including the rights recognized in article 55, such as the right to be informed of one’s rights and the right to counsel. They would also include the suspect’s right to be informed about the charges and the grounds for the detention³⁸. The ICTR Appeals Chamber has made clear that arrest and transfer proceedings in a national court must conform to international law³⁹. Article 59 does not state what the judicial authority in the custodial State may do if it determines that the suspect’s rights were not respected, although it should inform the Pre-Trial Chamber promptly of any violations. Nothing in the *Statute* would prevent the judicial authority from awarding reparations, which could include restitution, compensation, rehabilitation, satisfaction and guarantees of non-repetition, for violations of rights under national or international law⁴⁰. In addition, it is not excluded that the national judicial authority releases the person or suspends the proceedings in case of manifest violations. However, a restriction of this authority’s power may be called for when the ICC has already declared a case admissible during arrest warrant proceedings⁴¹. Especially in such a situation neither the determination by the national judicial authority that the suspect’s rights were violated nor the remedies it adopted should be allowed to prevent surrender to the Court. Any further remedy for violations of rights, such as the exclusion of evidence pursuant to article 69 paragraph 7, would need to be sought initially from the Pre-Trial Chamber rather than from the national authority. In addition, article 85 paragraph 1 provides that persons who have been the victim of unlawful arrest or detention are entitled to compensation, which would necessarily include compensation for unlawful arrest or detention on the basis of a warrant of the Court by the

³⁴ Ordinarily, the decision by the national courts after exhaustion of all possible appeals would be final. However, if the decision were to amount to a failure to comply with a request of the Court contrary to the *Statute*, for example, because the proceedings were a sham, then the Court could take appropriate steps pursuant to article 87 para. 7.

³⁵ 1996 Preparatory Committee I, para. 240.

³⁶ See article 29 para. 1 of the ILC Draft *Statute*.

³⁷ El Zeidy (2006) 4 *JICJ* [448], 454.

³⁸ See, for example, article 9 para. 2 of the International Covenant on Civil and Political Rights; principles 10 and 11 para. 2 of the UN Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment; the UN Basic Principles on the Role of Lawyers; articles 5 para. 2 and 6 para. 3 (a) of the European Convention on the Protection of Human Rights and Fundamental Freedoms; article 7 para. 4 of the American Convention on Human Rights; article 6 of the African Charter on Human and Peoples’ Rights; Paragraph M.2.(a) of the Principles and Guidelines on the Right to a Fair Trial and Legal Assistance in Africa, African Commission on Human and Peoples’ Rights, 33rd Ord. Sess., 15 to 19 May 2003; *Barayagwiza* (Appeals Chamber Decision), see note 17, paras. 78–86.

³⁹ *Barayagwiza* (Appeals Chamber Decision), see note 17.

⁴⁰ The scope of the right to reparations for violations of rights is reflected to a large extent in the Set of Principles for the Protection and Promotion of Human Rights through Action to Combat Impunity (Joint Principles), Definitions, B., UN Doc. E/CN.4/Sub.2/1997/20/Rev.1; Draft Principles and Guidelines on the Right to a Remedy and Reparation for Victims of Gross Violations of International Human Rights Law and Serious Violations of International Humanitarian Law (the Van Boven-Bassiouni Principles); and Human Rights Committee, General Comment No. 31, Nature of the General Legal Obligation on States Parties to the Covenant, UN Doc. CCPR/C/21/Rev.1/Add.13, 26 May 2004.

⁴¹ El Zeidy (2006) 4 *JICJ* [448], 456.

custodial State or by anyone else. This leaves open the question, however, whether the person could also challenge his unlawful arrest or detention by State authorities with an international human rights supervisory body, such as the European Court of Human Rights, and what the impact of a decision by such body would be on ICC proceedings⁴².

III. Paragraph 3: The right to apply for ‘interim release’

- 15 Paragraph 3 guarantees the right of the person arrested to apply to the competent judicial authority in the custodial State for interim release pending surrender to the Court. The person arrested can apply for interim release where either he has been provisionally arrested, or where he has been arrested for purpose of surrender to the ICC⁴³. He can do so even if the competent authority has not yet taken a decision for provisional arrest or a decision to surrender⁴⁴.

In contrast to the determination which must be made by the competent judicial authority pursuant to paragraph 2, decisions on interim release pursuant to paragraph 3 are to be made by the competent authority⁴⁵. The procedure in the custodial State for determining pre-trial release would govern applications for release, to the extent that they are consistent with international law, including the *Rome Statute* and general principles of law, such as those reflected in article 9 paragraph 3 of the International Covenant on Civil and Political Rights.

- 16 Nothing in the *ICTY* or *ICTR Statutes* or *Rules* permits national courts to order provisional release; such determinations can only be made by the Tribunals. Article 29 of the ILC Draft Statute provided that only the Court in the form of the Presidency has the right to decide upon the release of the person arrested pursuant to an arrest warrant by the Court⁴⁶. As alternatives to the Presidency, the representatives at the meetings of the Preparatory Committee named the Trial Chamber or the Indictment Chamber or Pre-Trial Chamber as responsible for the release of the suspect⁴⁷. However, in a dramatic shift, the *Rome Statute* allocated responsibility for determinations on interim release to a competent authority of the custodial State in accordance with the national and international law applicable, as long as the person arrested is within their territory or subject to their jurisdiction⁴⁸. Despite this allocation of responsibility, the Pre-Trial Chamber would probably still have a responsibility as the court that issued the arrest warrant to respond if the competent authority in the custodial State failed to act in accordance with the *Statute*. In

⁴² El Zeidy (2006) 4 *JICJ* [448], 462, who has reasonably argued in this respect that the ICC may ‘be guided by that decision, but not obliged to take it into account’, although possibly making a reservation in case of gross human rights violations, in which the abuse of process doctrine may be applied to stay proceedings.

⁴³ *Bemba Gombo (Jean-Pierre) v. Belgium*, Cass No P 08 0896F, ILDC 1115 (BE 2008), Appeal Judgment, Court of Cassation, 18 June 2008, para. 8.

⁴⁴ *Ibid.*

⁴⁵ Most national implementing legislation provides that decisions on interim release will be made by a court. However, at least one State has provided in its implementing legislation that executive authorities can overturn court decisions denying interim release. See, for example, International Criminal Court act 2002, No. 41, 2002, section 25 para. 1 (b) (Australia) (‘The Attorney-General must ... direct a magistrate to order the release from custody of a person remanded by the Division, or the discharge of the recognizance on which bail was granted to the person, as the case requires, if: ... (b) in any case – after considering the matters mentioned in subsection 23 (6) [which repeat the factors in article 59 para. 4 of the Statute], the Attorney-General considers for any other reason that remand should cease’).

⁴⁶ See 1996 Preparatory Committee Report II, p. 139.

⁴⁷ Zutphen Draft, see note 3. Article 53 [29] para. 3 of the Zutphen Draft provided two options for making interim release determinations; either the Pre-Trial Chamber or the competent judicial authority in the custodial State. The reason that the requirement that the competent authority be a judicial one was dropped when it was decided that these decisions should be made at the national level is not clear. It may have been made simply because such determinations are made in some States by executive authorities rather than by a court and those States did not wish to change this practice.

⁴⁸ It is quite possible that the arrested person would be detained by members of the armed forces of the custodial State abroad, for example, during the course of a peace-keeping operation.

addition, it may review the grounds for the detention once the person arrested has been transferred to the Court⁴⁹.

However, the competent authorities of the custodial State are not in a position to lift the arrest warrant issued by the Court. The factors that they may consider in determining whether to grant interim release are specified in paragraph 4.

The authors are aware of two instances of a person arrested applying for interim release with the competent judicial authority in the custodial State: Jean-Pierre Bemba, upon his arrest in Belgium⁵⁰, and Callixte Mbarushimana upon his arrest in France⁵¹.

IV. Paragraph 4: Conditions

1. ‘urgent and exceptional circumstances’

Paragraph 4 gives guidance to the competent authorities of the custodial State when examining the grounds for a possible interim release of the arrested person. However, this provision must be interpreted in light of the general principles of law applicable to pre-trial release, as reflected, for example, in article 9 paragraph 3 of the International Covenant on Civil and Political Rights, which states that ‘[i]t shall not be the general rule that persons awaiting trial shall be detained in custody, but release may be subject to guarantees to appear for trial ...’ Paragraph 4 states that when reaching a decision on an application for release, the competent judicial authority ‘shall consider whether, given the gravity of the crimes, there are urgent and exceptional circumstances to justify interim release and whether necessary safeguards exist to ensure that the custodial State can fulfil its duty to surrender the person to the Court’. The second factor is discussed below. These factors should not be seen as exclusive. Moreover, national courts will certainly look at the practice regarding pre-trial release of international criminal courts, as well as of national courts that have been conducting proceedings involving crimes under international law. National courts are however not allowed to grant interim release in cases where, objectively speaking, no urgent and exceptional circumstances justifying such interim release are present⁵².

An urgent and exceptional circumstance would be that of an arrested person in the advanced stages of a terminal illness, although it is noted that, in most cases of illness an arrested person could be held in custody in a prison hospital or a comparable institution. A more liberal interpretation of ‘urgent and exceptional circumstances’ is however also possible, in accordance with the approach of the international criminal tribunals towards application for provisional release⁵³.

⁴⁹ See article 60 para. 2.

⁵⁰ *Bemba Gombo (Jean-Pierre) v. Belgium*, Cass No P 08 0896F, ILDC 1115 (BE 2008), Appeal Judgment, Court of Cassation, 18 June 2008. In Belgium, article 59 (3) was implemented through article 16 (1) of the Cooperation Law for ICC and Tribunals.

⁵¹ *Procureur v. Callixte Mbarushimana*, ICC-01/04-01/10, Recommandations adressées à la Chambre d’Instruction de la Cour d’Appel de Paris en vertu de l’article 69 du Statut de Rome, 29 November 2010.

⁵² *Bemba Gombo (Jean-Pierre) v. Belgium*, Cass No P 08 0896F, ILDC 1115 (BE 2008), Appeal Judgment, Court of Cassation, 18th June 2008.

⁵³ See as regards the ICTY notably *Prosecutor v. Sainovic*, IT-99-37-AR65, Decision on Provisional Release, Appeals Chamber, 30 October 2002, para. 6 (‘A Trial Chamber is not obliged to deal with all possible factors which a Trial Chamber can take into account when deciding whether it is satisfied that, if released, an accused will appear for trial. It must, however, render a reasoned opinion. This obliges it to indicate all those relevant factors which a reasonable Trial Chamber would have been expected to take into account before coming to a decision. In relation to the present application for provisional release, a reasonable Trial Chamber would have been expected to consider, and thus to list, *inter alia*, the following factors: the fact that the applicants are charged with serious criminal offences; the fact that, if convicted, they are likely to face long prison terms; the circumstances in which they surrendered; the degree of co-operation given by the authorities of the FRY and Serbia; the fact that the government of the FRY and the government of the Republic of Serbia gave guarantees that they would ensure the presence of the accused for trial and guaranteed the observance of the conditions set by the Trial Chamber upon their provisional release; the fact that both accused held very senior positions, so far as it is relevant to the weight of governmental guarantees; the fact that the FRY recently passed a Law on Co-

2. ‘necessary safeguards’

- 20 The second condition for granting interim release is that the custodial State takes appropriate measures to ensure that the transfer of the arrested person to the Court is not put at risk. The wording stresses the obligation of the State Party to surrender a suspect to the Court upon its request for surrender.
- 21 As a rule, the detainee shall be held in an appropriate location for detention that fully satisfies international law and standards concerning detention⁵⁴. If interim release is granted, when the competent authority determines what safeguards are necessary to ensure surrender it should consider to what extent the safeguards used by the Court listed in rule 119 on conditional release would be appropriate, as well as the safeguards required by the ICTY. This step would help to ensure consistency of approach by national and international courts when determining the same issue. Although the factual circumstances of pre-trial release in the host State may be different from those in States where crimes within the Court’s jurisdiction are taking place, it should be borne in mind that the ICTY has permitted accused persons on provisional release in certain circumstances to return to their own countries⁵⁵.

3. No consideration ‘whether the warrant of arrest was properly issued’

- 22 The wording of paragraph 4 makes it clear that the competent authorities of the custodial State shall decide upon detention or interim release pursuant to this article, but may not rule on challenges to the grounds of the issuance of the warrant of arrest. The underlying assumption of this paragraph is that only the authority that has issued the warrant is in a position to lift it. Consequently, the competent authority of the custodial State in charge will not hear, for instance, challenges to the competence of the Court to issue the arrest warrant or to the correctness of the presentation of the facts. The arrested person may bring forward those challenges only before the Pre-Trial Chamber. However, rule 117 paragraph 3, which

operation with the International Tribunal; the fact that the Applicants gave personal guarantees in which they undertook to abide by the conditions set by the Trial Chamber should they be released; the likelihood that, in light of the circumstances prevailing at the time of the decision and, as far as foreseeable, the circumstances as they may turn out to be at the time when the accused will be expected to return for trial, the relevant authorities will re-arrest the accused should he decline to surrender; and the fact that the accused provisionally accepted to be interviewed by the Office of the Prosecutor, thereby showing some degree of co-operation with the Prosecution.’); *Prosecutor v. Markač*, IT-03-73-AR65.1, Decision on Interlocutory Appeal against Trial Chamber’s Decision Denying Provisional Release, 2 December 2004.

As far as the ICC is concerned, Jean-Pierre Bemba Gombo has been granted interim release by the Pre-Trial Chamber II on 14 August 2009, after being denied such release on three previous occasions, due to a substantial change of circumstances since the last decision on interim release had been rendered. See *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, Decision on the Interim Release of Jean-Pierre Bemba Gombo and Convening Hearings with the Kingdom of Belgium, the Republic of Portugal, the Republic of France, the Federal Republic of Germany, the Italian Republic, and the Republic of South Africa, Pre-Trial Chamber II, 14 August 2009.

⁵⁴ For example, the relevant standards include the 1955 UN Standard Minimum Rules for the Treatment of Prisoners, the 1988 UN Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment and the 1990 UN Basic Principles for the Treatment of Prisoners. In addition, to the extent that they are consistent with international law and standards, the Court should consider the various instruments concerning detention by the ICTY: Rules Governing the Detention of Persons awaiting Trial or Appeal before the Tribunal or otherwise Detained on the Authority of the Tribunal, Rev. 8, 29 November 1999; Regulations to Govern the Supervision of Visits to and Communications with Detainees, Rev. 3, 22 July 1999; House Rules for Detainees June 1995; Regulations for the Establishment of a Complaints Procedure for Detainees, April 1995; Regulations for the Establishment of a Disciplinary Procedure for Detainees, April 1995; Appointment of Inspecting Authority for the Detention Unit, 28 April 1995; Agreement on Security and Order, 14 July 1994. It should also consider, subject to the same caveat, similar instruments on the same basis adopted by ICTR and the Special Court for Sierra Leone. The Court has yet to adopt any instruments governing detention. On the law and standards governing pre-trial detention, see Rodley, *The Treatment of Prisoners in International Law* (1999).

⁵⁵ See, for example, *Markač* (Interlocutory Appeal against Trial Chamber’s Decision Denying Provisional Release), note 53.

provides for challenges to the issuance of the warrant, does not restrict such challenges to challenges made after surrender to the Court, so he or she could make such a challenge before the Pre-Trial Chamber while still in the custodial State⁵⁶.

V. Paragraph 5

1. Notification of the Pre-Trial Chamber and recommendations

The provision reflects the underlying assumption of the *Statute* that the organs of the Court and the States Parties will work closely together on all issues of cooperation, although such cooperation may not always be forthcoming from States Parties or from other States. The purpose of the provision is to balance the competence of the local judicial authority of the custodial State to decide upon detention or interim release of the suspect with the control functions of the Pre-Trial Chamber during the investigations of the Court. Paragraph 5 requires that the Pre-Trial Chamber be informed, presumably in a timely manner, of any request for interim release to permit it to make recommendations and requires that the Pre-Trial Chamber make recommendations to the competent authority in the custodial State. Rule 117 paragraph 4 requires that these recommendations be made within the time limits set by the custodial State⁵⁷.

In contrast to rule 117 paragraph 3, which requires the Pre-Trial Chamber to obtain the views of the Prosecutor with respect to a challenge to the issuance of an arrest warrant, neither paragraph 5 nor rule 117, paragraph 4 expressly require the Pre-Trial Chamber to obtain the views of the Prosecutor on a request for interim release. This omission must be an oversight since the Prosecutor will normally be in the best position to provide recommendations concerning such a request. If the Pre-Trial Chamber is to make effective recommendations on interim release, it will need to consult the Prosecutor. Neither paragraph 5 nor rule 117 paragraph 4 specify what recommendations the Pre-Trial Chamber may make, although it is clear from the structure of paragraph 5 that recommendations concerning the request for interim release, ‘including any recommendations on measures to prevent the escape of the person’, are obligatory. The first edition of this Commentary suggested that such recommendations might address security issues, the possible danger to the life of the suspect deriving from his or her involvement in criminal activities or from his or her status in his or her country of residence. The Pre-Trial Chamber or Prosecutor may have confidential information about other inmates of the detention facilities that may endanger the physical integrity of the suspect. Although the Pre-Trial Chamber may not be in a position to share such

⁵⁶ Rule 117 para. 3 provides:

‘A challenge as to whether the warrant of arrest was properly issued in accordance with article 58, para. 1 (a) and (b), shall be made in writing to the Pre-Trial Chamber. The application shall set out the basis for the challenge. After having obtained the views of the Prosecutor, the Pre-Trial Chamber shall decide upon the application without delay’.

A government delegate closely involved in the drafting of this rule has stated: ‘It seems that because no time limits are established for such a challenge, it could also be filed when the person is still in the custodial State’. Friman, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 516. Rule 117 para. 3 would appear to provide a procedure for a challenge by the arrested person while detained in the custodial State to at least some aspects of the lawfulness of detention seeking release if that detention were to be determined unlawful. Although there is no express provision in the *Statute* for such a challenge, it is implicit in the prohibition in article 55 para. 1 (d) of arbitrary arrest and detention. In any event, the Court has the inherent power to entertain such a challenge and provide such relief. See, for example, *Prosecutor v. Semanza*, ICTR-97-20-A, Decision, Appeals Chamber, 31 May 2000, paras. 112 *et seq.*; *Barayagwiza* (Appeals Chamber Decision), see note 17, para. 88.

⁵⁷ Rule 117 para. 4 provides that when the custodial State has notified the Pre-Trial Chamber of a request for release, then ‘the Pre-Trial Chamber shall provide its recommendations within any time limit set by the custodial State’. Although not expressly stated in the *Statute* or the *Rules*, the custodial State should act in good faith by providing such notice promptly, inform the Pre-Trial Chamber of the time limit and ensure that the time limit is a reasonable one.

information, it may recommend that the arrested person be sent to another facility within the custodial State. If the Pre-Trial Chamber or Prosecutor possesses such information, there would be an obligation to recommend appropriate measures to the custodial State, as the use of the term ‘shall’ suggests. In addition, the recommendations should address the extensive list of factors considered in the recent jurisprudence of the ICTY concerning provisional release discussed above and measures that the Pre-Trial Chamber would itself consider pursuant to rule 119 were appropriate guarantees for appearance in proceedings in the Court.

Paragraph 5 simply sets out the requirement that the Pre-Trial Chamber make recommendations concerning interim release; it does not preclude the Pre-Trial Chamber from making recommendations concerning other matters. Given that the Pre-Trial Chamber will have a clear interest under the *Statute* in ensuring that the surrender proceedings are promptly concluded and that the rights of the arrested person, including the rights of access to families, counsel, independent medical attention and to a judge and the right to be free from torture and other ill-treatment, are fully respected at all stages of the proceedings in the custodial State, it may make recommendations concerning such matters.

Neither paragraph 5 nor rule 117 paragraph 4 state how the Pre-Trial Chamber should make these recommendations, but they do not specify that such recommendations need to be in writing. Therefore, these provisions would not prevent a representative of the Pre-Trial Chamber or, more appropriately, a member of the Office of the Prosecutor to appear in person to make these recommendations and to present oral or written evidence relevant to the recommendations, whether they concern interim release or other matters. As indicated above, the custodial State should ensure that the Prosecutor and the Pre-Trial Chamber can appear at all stages of the proceedings.

2. Full consideration to recommendations

- 25 Although the custodial State is required ‘to give full consideration’ to the recommendations by the Court, the measures taken have to be in keeping with the applicable law of the custodial State, to the extent that this law is consistent with the *Statute* and other international law and standards. In that respect, the competent authority would have to take into account any constitutional principles applicable such as, for instance, the principle of proportionality, meaning that the measure recommended should be sufficient to prevent the escape of the person under arrest, but should not restrict his or her freedom more than is necessary.
- 26 If the competent authority decides to grant interim release while the conditions of these Paragraphs are not fulfilled or the necessary safeguards were not provided and the person sought escapes, the decision would amount to a failure ‘to comply with a request to cooperate by the Court contrary to the provisions of this Statute, thereby preventing the Court from exercising its functions and powers under this Statute’, thus permitting the Court, pursuant to article 87 paragraph 7 ‘to make a finding to that effect and refer the matter to the Assembly of States Parties or, where the Security Council referred the matter to the Court, to the Security Council’.

VI. Paragraph 6: Periodic reports

- 27 If the arrested person is released, paragraph 6 states that the Pre-Trial Chamber may ‘request periodic reports on the status of the interim release’. Whether this paragraph is strictly necessary is doubtful since the Pre-Trial Chamber would have the power to issue such a request in any event, but it is a useful reminder to competent authorities in the custodial State that such requests can be made. As a request concerning the investigation and prosecution of crimes within the jurisdiction of the Court, the custodial State must comply with the Pre-Trial Chamber’s request pursuant to article 86. Rule 117 paragraph 5 requires

the Pre-Trial Chamber to ‘inform the custodial State how and when it would like to receive periodic reports on the status of the interim release’. The purpose of paragraph 6 is to balance the responsibilities of the custodial State to decide upon detention or interim release and the Pre-Trial Chamber to control the progress of the investigation and to ensure that the criminal proceedings before the Court are not at risk.

Although the decision of the Pre-Trial Chamber to request periodic reports is discretionary, rule 117 paragraph 5 seems to envisage such requests as a matter of course and it is difficult to imagine how it could fulfil its responsibilities effectively without, at a minimum, periodic reports from the custodial State.

VII. Paragraph 7: Surrender on order

If the Pre-Trial Chamber requests that the arrested person be surrendered to the Court, the 28 custodial State has to comply with that request, provided that it is a State Party to the *Statute*, has made a declaration pursuant to article 12 paragraph 3 or has made an arrangement or agreement with the Court pursuant to article 87 paragraph 5. As a request concerning the investigation and prosecution of crimes within the jurisdiction of the Court, the custodial State must comply with that request pursuant to article 86 and it must have procedures in place permitting surrender⁵⁸.

⁵⁸ See article 88.

Article 60

Initial proceedings before the Court

1. Upon the surrender of the person to the Court, or the person's appearance before the Court voluntarily or pursuant to a summons, the Pre-Trial Chamber shall satisfy itself that the person has been informed of the crimes which he or she is alleged to have committed, and of his or her rights under this Statute, including the right to apply for interim release pending trial.

2. A person subject to a warrant of arrest may apply for interim release pending trial. If the Pre-Trial Chamber is satisfied that the conditions set forth in article 58, paragraph 1, are met, the person shall continue to be detained. If it is not so satisfied, the Pre-Trial Chamber shall release the person, with or without conditions.

3. The Pre-Trial Chamber shall periodically review its ruling on the release or detention of the person, and may do so at any time on the request of the Prosecutor or the person. Upon such review, it may modify its ruling as to detention, release or conditions of release, if it is satisfied that changed circumstances so require.

4. The Pre-Trial Chamber shall ensure that a person is not detained for an unreasonable period prior to trial due to inexcusable delay by the Prosecutor. If such delay occurs, the Court shall consider releasing the person, with or without conditions.

5. If necessary, the Pre-Trial Chamber may issue a warrant of arrest to secure the presence of a person who has been released.

Literature: Blakesley, C.L., 'Comparing the Ad Hoc Tribunal for Crimes against Humanitarian Law in the Former Yugoslavia & the Project for an International Criminal Court, prepared by the International Law Commission', (1996) 67 *Revue de Droit Pénal*; Gallant, K.S., 'Securing the Presence of Defendants before the International Tribunal for the Former Yugoslavia: Breaking with Extradition', (1994) 5 *CLF* Nos. 2-3; NtandaNsereko, D.D., 'Rules of Procedure and Evidence of the International Tribunal for the International Tribunal for the Former Yugoslavia', (1994) 5 *CLF* Nos. 2-3; Blakesley, C.L., 'Commentary on Parts 5 & 6, in: L. Sadat Wexler, A.I.D.P. (ed.), *Observations on the Consolidated ICC Text before the Final session of the Preparatory Committee*, (1998) 13*bis* NEP 69; 1996 Yearbook of the International Criminal Tribunal for the Former Yugoslavia (1997), Sales No. E.97.III.P.1.

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A. Introduction/General remarks

- 1 Article 60 of the Rome Statute deals with various aspects of initial proceedings before the Court. The majority of the article, however, is focused on the question of pre-trial release or detention. This is in contrast to the Statutes of the ICTY and ICTR which do not contain any provisions on pre-trial release. Explaining this omission, it has been said that 'There are various considerations that favour the absence of such a provision, including: the serious nature of the crimes with which the persons would be charged; the possible dangers to the community, particularly victims and witnesses, if the accused is not detained; the distinct risk that the

accused would flee to avoid the possibility of a lengthy prison sentence in the event of a conviction; the difficulties that may be involved in locating and arresting the person for a second time given the possibilities of modern transportation; and the absence of any provision for continuing the trial in the absence of the accused¹. At the same time, it has been correctly noted that the rights of the accused provided for in those Statutes are basic minimum standards that could be enhanced². In drafting and approving Rule 65 of their Rules of Procedure and Evidence³, the judges of the ad hoc Tribunals sought to do just this and confer upon accused persons the right to apply for provisional release. Such a provision was in full conformity with international standards as set out in various international instruments and declarations⁴.

In contrast to this, the right to apply for pre-trial release was expressly provided for from the commencement of ICC's drafting process. The ILC had included such a provision in article 29 of their Draft Statute for an ICC⁵. It sought to combine State involvement on this issue with what would, in effect, have been a determinative role for the Court⁶. The compromise reached satisfied few. By the time of the Ad Hoc Committee's Report in 1995, many had formed the view that the ILC's Draft article should be amended as it did not represent a balanced division of responsibilities between the International Criminal Court and national authorities⁷. In addition, the point was raised that compelling national authorities to disapply domestic legislation in favour of their proposed duties under the Draft Statute would lead to various complications including intricate constitutional problems and other practical difficulties⁸.

This view gained increased support in the Preparatory Committee's Report of 1996⁹. It was felt that the provisions on pre-trial detention and release needed further clarification. It was suggested that the determination of the lawfulness of the arrest or detention, as well as bail, should be made by the relevant national authorities. The view was expressed that what the Court could determine was the lawfulness of the arrest warrants and its requests for the detention of the suspect. It was emphasised, however, that the Statute should provide guidelines governing the grounds for detention and release for those occasions when the Court gained actual custody of the suspect¹⁰.

By the time of the Preparatory Committee's session in December 1997, the question of whether interim release of a person held by a custodial State be determined by that State in accordance with its own laws or by the ICC itself remained a matter of contention resolved only by the inclusion of both options in square brackets¹¹. Notwithstanding this, there was a

¹ Morris and Scharf, *An Insider's Guide to the International Criminal Tribunal for the Former Yugoslavia*, Vol. I (1995) 238; also in Morris and Scharf, *An Insider's Guide to the International Criminal Tribunal for Rwanda*, Vol. I (1998) 531.

² See article 21 para. 4 of ICTY/R Statutes, almost verbatim reproductions of article 14 para. 3 of the ICCPR (1966).

³ See ICTY Rules of Procedure and Evidence, adopted 11 Feb. 1994, latest amendment 10 Dec. 1998, UN Doc. IT/32/Rev.13; ICTR Rules of Procedure and Evidence, adopted 29 June 1995, UN Doc. ITR/3/Rev.1 (1995).

⁴ See article 9 paras. 3 and 4 ICCPR, 1966; Human Rights Committee General Comment No. 8; Committee of Ministers of the Council of Europe Resolution 65(11); Rule 6, United Nations Standard Minimum Rules for Non-Custodial Measures (The Tokyo Rules), adopted by G.A. Res. 45/110 of 14 Dec. 1990. In adopting Rule 65 of their Rules of Procedure and Evidence, the judges of the ad hoc Tribunals addressed a concern regarding the absence of any statutory provision catering for pre-trial release which had been expressed by many. For example, Blakesley (1996) 67 *RIDPI* 194, observed that 'There is significant danger of abuse in a Tribunal such as this where there is no strict political accountability. Thus, some sort of pre-trial protection and oversight are necessary'. For similar views see the Report on the International Tribunal to adjudicate war crimes committed in the former Yugoslavia, submitted by a special task force of the ABA section of international law and practice (Hon. Monroe Leigh, Chair), pp. 46-47.

⁵ 1994 ILC Draft Statute.

⁶ *Ibid.*, article 29 para. 1 provided that the judicial officer of the State should determine whether the warrant had been duly served, but (see article 29 para. 2), the question of pre-trial detention or release remained within the province of the Presidency of the ICC.

⁷ See Ad Hoc Committee Report, p. 32, para. 147.

⁸ *Ibid.*, paras. 147-148.

⁹ 1996 Preparatory Committee I, p. 52, paras. 239-245.

¹⁰ *Ibid.*, para. 243.

¹¹ See article 29 para. 3, Preparatory Committee Decisions Dec. 1997, p. 31.

development in that a new paragraph had been added to this article¹² dealing with interim release of a person already transferred to the Court¹³. This proposal was important in that it reserved a person's right to apply to the Pre-Trial Chamber notwithstanding that a previous application for interim release had been rejected by either the custodial State, or (if that option was to be preferred) the Pre-Trial Chamber, at any time prior to transfer. This compromise was built upon¹⁴ and sought to balance the rights of the State and those of the Court. Accordingly, it was a version of this proposal which finally gave birth to the bifurcated interim release procedure agreed upon at Rome¹⁵.

B. Analysis and interpretation of elements

I. Paragraph 1: To be 'informed of crimes', of 'rights' and the 'right to apply for interim release'

- 4 Regardless of how a person comes to be before the ICC, (whether by warrant of arrest, voluntarily or pursuant to a summons) the Statute requires the Pre-Trial Chamber to satisfy itself that the person has been informed of the crimes within the jurisdiction of the Court which it is alleged that person has committed¹⁶. At this stage, what will be required is that the charges and accusations made to the Pre-Trial Chamber under article 58 are clearly notified to that person. Technical language is probably not necessary although the Pre-Trial Chamber should satisfy itself that the person is aware of the crimes alleged against him or her with as much specificity as is then available. In addition, counsel will always be available to explain the allegations to the person both before and after the initial appearance¹⁷. The article 60 para. 1 requirement for the Pre-Trial Chamber to satisfy itself that persons before it are aware of the crimes alleged against them is simply meant to ensure that no person is ignorant of the allegations actually being made.

After doing this, the Pre-Trial Chamber must go on and satisfy itself that the accused is aware of his or her rights under the Statute. At this stage, such a person is still only a suspect and accordingly the relevant rights which the Pre-Trial Chamber must address themselves to are those set out in article 55.

- 5 The right to apply for interim release is included in paragraph 1 as it is not specifically mentioned in article 55 or article 67 of the Rome Statute. Pre-trial detention is the exception to the norm as far as international treaties go and this is clearly the case in many jurisdictions¹⁸. The reason for this flows from the presumption of innocence and that persons (presumed innocent until the contrary is proved beyond reasonable doubt) should be neither incarcerated nor have restrictions imposed upon their liberty except for strong reasons.¹⁹

¹² *Ibid.*, article 29 para. 4.

¹³ Or, in brackets, against whom a decision to transfer had already been made by the custodial State.

¹⁴ The delegates remained divided on the issue of pre-transfer interim release and the article 29 para. 3 proposal agreed upon in: Preparatory Committee Decisions Dec. 1997, see note 11, p. 31. That proposal remained unchanged through the Zutphen inter-sessional meeting (see article 59 paras. 3 and 4 Zutphen Draft and into the Rome Conference by way of the Preparatory Committee (Consolidated) Draft, p. 107, article 60 paras. 4 and 5.

¹⁵ By which, of course, I mean article 59 which deals with interim release by the custodial State and article 60 which deals with interim release and other preliminary matters by the Pre-Trial Chamber.

¹⁶ Such a person should already have been made aware of the crimes alleged against him either under article 58 para. 3 (b) if arrested on warrant, or under article 58 para. 7 (c) if that person appears pursuant to a summons.

¹⁷ See article 55 para. 2 (c).

¹⁸ See *Prosecutor v. Delalić et al.*, IT-96-21-T, Decision on Motion for Provisional release filed by the accused Zejnil Delalic, 25 Sep. 1996, para. 19. The European Parliament has called for the Commission to revisit the case for establishing standards in relation to pre-trial detention through legislative action. 2013/2024(INI).

¹⁹ In *Prosecutor v. Aleksovski*, IT-95-14/1-T, Decision denying a request for provisional release, 23 Jan. 1998, an ICTY Trial Chamber emphasised the 'strictly exceptional, non-binding and subsidiary character of detention prior to sentencing'. They continued, 'Recourse to this measure must always be subject to the principles of necessity, suitability and proportionality. These principles are merely the emanation of the presumption of innocence which

II. Paragraph 2: Grounds for detention

Paragraph 2 flows directly from the articulation of the right expressed in the concluding words of paragraph 1 regarding the accused's right to apply to the Pre-Trial Chamber for interim release. Paragraph 2 sets out the considerations relevant in determining this issue. These are that the conditions set out in article 58 para. 1 continue to exist. If they do, then the person shall continue to be detained²⁰. Article 58 para. 1, as we have seen²¹ requires the Pre-Trial Chamber to find that there are reasonable grounds to show that the person has committed a crime within the jurisdiction of the Court²² and that the arrest of that person is necessary to ensure that the person appears at trial²³, to ensure that person does not obstruct justice, interfere with witnesses or tamper or interfere with evidence²⁴, or to ensure that the person is prevented from continuing with the commission of the alleged crime, or a related crime within the jurisdiction of the Court and arising out of the same circumstances²⁵.

requires that any limits placed on the freedom of the accused prior to the final sentence must be not only socially necessary but also tolerable,' p. 4. Decision of the European Court of Human Rights, dated 26 July 2001 in the case *Ilijkov v. Bulgaria*, Application No. 33977/96 'Any system of mandatory detention on remand is per se incompatible with article 5 § 3 of the Convention....Where the law provides for a presumption in respect of factors relevant to the grounds for continued detention.... the existence of the concrete facts outweighing the rule of respect for individual liberty must be nevertheless convincingly demonstrated.'

²⁰ *Prosecutor v. Thomas Lubanga Dyilo*, Judgement on the appeal of Mr Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled 'Decision sur la demande de mise en liberté provisoire de Thomas Lubanga Dyilo', ICC-01/04-01/06-824, 13 Feb. 2007, para 134; *Prosecutor v. Jean-Pierre Gombo*, Judgement on the appeal of the Prosecutor against Pre-Trial Chamber II's 'Decision on the Interim Release of Jean-Pierre Gombo and Convening Hearings with the Kingdom of Belgium, the Republic of Portugal, the Republic of France, the Federal Republic of Germany, the Italian Republic, and the Republic of South Africa', ICC-01/05-01/08 (OA2)', 2 Dec. 2009, para. 89. *Prosecutor v. Jean-Pierre Gombo, Aime Kilolo Musamba, Jean-Jacques Mangenda Kabongo, Fidele Babala Wandu and Narcisse Arido* Decision on the 'Requête de mise en liberté' submitted by the Defence for Jean-Jacques Mangenda, ICC-01/05-01/13-261, 17 Mar. 2014, para. 8, 'Detention is indeed an exception, as stated by the Defence, but one which is necessary, and shall therefore unfailingly apply, when the relevant statutory requirements are satisfied'. (Note, this decision is under appeal). However, see also *Prosecutor v. Laurent Koudou Gbagbo*, Judgment on the appeal of Mr Laurent Koudou Gbagbo against the decision of Pre-Trial Chamber I of 13 July 2012 entitled 'Decision on the 'Requête de la Défense demandant la mise en liberté provisoire du président Gbagbo'', ICC-02/11-01/11-278-Red, 26 Oct. 2012, para 79. 'It follows from this jurisprudence that if one or more of the risks listed in article 58(1)(b) of the Statute are present – as in the case at hand – the Pre-Trial Chamber nevertheless has discretion to consider conditional release. In this regard the Appeals Chamber observes that the Pre-Trial Chamber's discretion to consider conditional release must be exercised judiciously and with full cognizance of the fact that a person's personal liberty is at stake. [...]' The test in paragraph 2 is clearly a different and less stringent test to that required under article 59(4) which requires a domestic court to find 'urgent and exceptional circumstances' before release is ordered. The reason for this disparity is clear. Under article 59, a State is to facilitate the arrest of a person suspected of committing serious violations of international humanitarian law. The guilt or innocence of that person is to be decided by the ICC. The drafters wished the State to have the right to grant pre-trial release in truly exceptional circumstances, but envisioned this being a rare occurrence. The restriction of 'urgent and exceptional circumstances' was meant to emphasise this concern in the clearest terms possible. The concern that without such a threshold clause States would be inclined to offer pre-trial release even where the risk of flight was great was also shared by the drafters of the ICTY Statute. Commenting on this, one Trial Chamber has explained that 'This concern, that once released an accused could escape the International Tribunal's grasp, does not derive from mere imagination. ... the International Tribunal is forced to rely upon the co-operation of national governments or entities, some of which have so far failed to surrender suspects upon request. As such, both the gravity of the offences charged and the unique circumstances in which the International Tribunal operates justify ... the requirements that he show exceptional circumstances to qualify for provisional release'; see *Prosecutor v. Delalić et al.*, note 18, p. 12, para. 20. In the context of the ICC, article 59 para. 4 is meant to help guard against and help expose any risk of bad faith on the part of the custodial State.

²¹ See Schlunck and Hall, *article 58*.

²² Article 58 para. 1 (a).

²³ Article 58 para. 1 (b) (i).

²⁴ Encompassed by the words 'To ensure that the person does not obstruct or endanger the investigation or the court proceedings' in article 58 para. 1 (b) (ii).

²⁵ Article 58 para. 1 (b) (iii).

- 7 Article 59 (detention in the custodial state) effectively creates a presumption in favour of custody by making detention at that stage the norm unless ‘there are urgent and exceptional circumstances to justify interim release’²⁶. The same language, however, is absent from article 60. Very properly, the Court has not sought to read into article 60 the onerous requirements of article 59(4)²⁷. Rather, it has recalled, with regard to article 60, the fundamental principle that deprivation of liberty should be an exception and not a rule²⁸.
- 8 The Pre-Trial Chamber must, therefore, simply be satisfied that the two limbs set out in article 58 para. 1 are met. Firstly, in relation to the requirement that the person have committed a crime within the Court’s jurisdiction, the criminal standard of beyond reasonable doubt is not required. All that is required is that the Prosecution satisfy the Pre-Trial Chamber that it has ‘reasonable grounds to believe’ that the relevant person has committed such a crime²⁹. If this is established, they have to proceed to consider whether an arrest appears ‘necessary’³⁰.

²⁶ Article 59 para. 4.

²⁷ In this regard, it is apt to recall that the ICTY amended rule 65 of its Rules of Procedure and Evidence on November 30, 1999 deleting any requirement of ‘exceptional circumstances’. The ICTR followed suit after its plenary meeting on May 26–27 2003. See Khan and Dixon, *Archbold International Criminal Courts* (4th edition) 7–257 and 7–288.

²⁸ *Prosecutor v. Jean-Pierre Bemba Gombo*, Decision on Application for Interim Release, ICC-01/05-01/08-403 14 April 2009, para. 36; *Prosecutor v. Jean-Pierre Bemba Gombo*, Decision on Application for Interim Release, ICC-01/05-01/08-321, 16 Dec. 2008, para. 31. See also *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ‘Decision on the Conditions of the Pre-Trial Detention of Germain Katanga’, ICC-01/04-01/07-426, 21 April 2008, p. 6; *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, Decision on the powers of the Pre-Trial Chamber to review proprio motu the pre-trial detention of Germain Katanga’, ICC-01/04-01/07-330, 18 March 2008, pp. 6–7; *Prosecutor v. Bosco Ntaganda*, Second Decision on Bosco Ntaganda’s Interim Release, ICC-01/04-02/06-284, 17 March 2014 para. 24; *Prosecutor v. Callixte Mbarushimana*, ‘Decision on the ‘Defence Request for Interim Release’’, 19 May 2011, ICC-01/04-01/10-163, para. 33. *The Prosecutor v. Bosco Ntaganda*, Dissenting Opinion of Judge Anita Usacka, 5 Mar. 2014, ICC-01/04-02/06-271-Anx1, para. 4 ‘[...] In addition to the right to be presumed innocent until proved guilty, the human right to personal liberty, the right to not be detained for an unreasonable period of time and the right to challenge the lawfulness of detention are of particular importance in the context of a decision granting or denying the release of a person being prosecuted [...]’. See also ECtHR case *Ilijkov v. Bulgaria*, Application no. 33977/96, 26 July 2001, at para. 85; ‘Justification for any period of detention, no matter how short, must be convincingly demonstrated by the authorities’ *Idalov v. Russia*, Application no. 5826/03, 22 May 2012, para. 140.

²⁹ The phrase ‘reasonable grounds to believe’ (used in rule 47 of the ICTY/R Rules of Procedure and Evidence) has been defined in at least one decision of the ICTY. In reviewing the draft indictment against Rajić, IT-95-12-I, 29 Aug. 1995, Judge Sidwa explained that: ‘The word ‘reasonable’ is associated with what is fair, moderate, suitable, tolerable; that which is not immoderate or excessive. The expression ‘reasonable grounds’ is used; not overly convincing, substantial or conclusive grounds. Reasonable grounds, therefore, point to such facts and circumstances as would justify a reasonable or ordinarily prudent man to believe that a suspect has committed a crime. To constitute reasonable grounds, facts must be such as ... raise a clear suspicion of the suspect being guilty of a crime. It predicates that all the ingredients of the offence are covered. The evaluation is to be made at the pre-trial stage and not what may turn out subsequently in the light of changing facts. ... The evidence, therefore, need not be overly convincing or conclusive; it should be adequate or satisfactory to warrant the belief that the suspect has committed the crime’. (p. 212).

Related to this concept is that of ‘reasonable suspicion’. The European Court of Human Rights has held that ‘having a ‘reasonable suspicion’ presupposes the existence of facts or information which would satisfy an objective observer that the person concerned may have committed the offence’. See *Fox, Campbell and Hartley v. U.K.*, (1990)182 ECtHR (ser. A) at 16. Noteworthy in this regard is *Prosecutor v. Omar Hassan Ahmad Al Bashir*, Judgement on the appeal of the Prosecutor against the ‘Decision on the Prosecution’s Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir’, ICC-02/05-01/09-73, 3 Feb. 2010, para. 31, where the Appeals Chamber considered and did not controvert the Pre-Trial Chamber’s equation of the ‘reasonable grounds to believe’ standard with that of ‘reasonable suspicion’ under ECHR article 5(1)(C), although it subsequently held that the Pre-Trial Chamber had developed and applied the standard erroneously (para. 39). See also *Prosecutor v. Bosco Ntaganda*, Decision on the Prosecutor’s Application under article 58, 13 July 2012, ICC-01/04-02/06-36-Red, para. 16. See also note 18, *Prosecutor v. Delalić et al.*, paras. 21–24.

³⁰ The meaning of this phrase within the terms of article 58(1)(b) was considered in *Prosecutor v. Katanga et al.*, Judgement in the Appeal by Mathieu Ngudjolo Chui of 27 March 2008 against the Decision of Pre-Trial Chamber I on the Application of the Appellant for Interim Release, ICC-01/04-01/07-572, 9 June 2008, para. 21, where the Appeals Chamber held that ‘[t]he question revolves around the possibility, not the inevitability, of a future occurrence.’ Detention, it appears, is far too likely to become the norm within such a framework, particularly as

If the Trial Chamber is not so satisfied, they shall release the person with or without conditions³¹. This is a little puzzling. If the Prosecution cannot even establish reasonable

the Appeals Chamber has endorsed the proposition that 'If a person is charged with grave crimes, the person might face a lengthy prison sentence, which may make the person more likely to abscond' (*Prosecutor v. Thomas Lubanga Dyilo*, (see note 20, para. 136). The phrase 'necessary' may require further elaboration by the Court in due course as it is somewhat nebulous in its current context. *Black's Law Dictionary* (6th ed.) states that 'necessary' must 'be considered in the connection in which it is used, as it is a word susceptible of various meanings. It may import absolute physical necessity or inevitability, or it may import that which is only convenient, useful, appropriate, suitable, proper or conducive to the end sought. It is an adjective expressing degrees, and may express mere convenience or that which is indispensable or an absolute physical necessity', but cf. Garner, *A Dictionary of Modern Legal Usage* (OUP 1987): 'necessary' ... means 'essential'. In a different context, (under rule 54 of the ICTY's Rules of Procedure and Evidence, which empowers a judge or Trial Chamber to, inter alia, issue such orders as are 'necessary for the purposes of an investigation or for the preparation or conduct of the trial') the word 'necessary' was distinguished from something which is 'simply useful or helpful'. See *Prosecutor v. Delalić et al.*, IT-96-21-T, Decision of the President on the Prosecutor's Motion for the Production of Notes between Zejnil Delalić and Zdravko Mucić ('Celebici' case), 11 Nov. 1996, para. 38. In the context of article 58, it appears that competing concerns may make the definition of what is considered 'necessary', a ripe area for litigation.). It is suggested that the approach sits uncomfortably with the Court's concurrent emphasis on the detained person's right to be presumed innocent (see *Prosecutor v. Jean-Pierre Bemba Gombo*, Judgment on the appeal of Mr Jean-Pierre Bemba Gombo against the decision of Trial Chamber III of 6 January 2012 entitled 'Decision on the defence's 28 December 2011 "Requête de Mise en liberté provisoire de M. Jean-Pierre Bemba Gombo"', ICC-01/05-01/08-2151-Red, 5 March 2012, para. 40.) The Appeals Chamber has also held that 'the apparent necessity of continued detention in order to ensure the detainee's appearance at trial does not necessarily have to be established on the basis of one factor taken in isolation. It may also be established on the basis of an analysis of all relevant factors taken together' (*Prosecutor v. Jean-Pierre Bemba Gombo*, Judgment on the appeal of Mr. Jean-Pierre Bemba Gombo against the decision of Pre-Trial Chamber III entitled 'Decision on application for Interim release', ICC-01/05-01/08-323 (OA), 16 Dec. 2008, para. 55.)

³¹ The Pre-Trial Chamber is free to impose such conditions as it deems appropriate; it is not bound by national laws as under article 59 para. 7. Rule 119(1) details a non exhaustive list of conditions that the Court may impose. The list allows for the imposition, in appropriate circumstances, of conditions, that 'do not, per se, mitigate the risks described in article 58(1)(b) of the Statute' (*Prosecutor v. Jean-Pierre Bemba Gombo*, Judgement on the appeal of the Prosecutor against Pre-Trial Chamber II's 'Decision on the Interim Release of Jean-Pierre Bemba Gombo and Convening Hearings with the Kingdom of Belgium, the Republic of Portugal, the Republic of France, the Federal Republic of Germany, the Italian Republic, and the Republic of South Africa', ICC-01/05-01/08 (OA2), 2 Dec. 2009, para. 105).

According to the jurisprudence of the Appeals Chamber, conditional release will only be granted following the identification of a State willing to accept the accused as well as enforce related conditions (*Ibid*, para. 106). In circumstances where the Chamber is considering conditional release, and a State has indicated its general willingness and ability to accept a detained person and enforce conditions, the Chamber must seek observations from that State regarding its ability to enforce specific conditions identified by the Chamber. Further information may be required from the State if those observations do not allow the Chamber to make an informed decision as to whether to grant conditional release (*Prosecutor v. Jean-Pierre Bemba Gombo*, Judgement on the appeal of Mr Jean-Pierre Bemba Gombo against the decision of Trial Chamber III of 27 June 2011 entitled 'Decision on Applications for Provisional Release', ICC-01/05-01/08-1626-Red, 19 Aug. 2011, para. 55).

Rule 119(3) includes a provision ensuring that before 'imposing or amending any conditions' relevant States are heard on the issue of provisional release. This could include both the sending state, as well as the State to which it is sought to provisionally release the person. A strict reading of rule 119 para. 3 reveals that there is no specific duty for the Court to consult in the event that interim release without conditions is imposed. It is suggested that good practice and common sense require that at least the receiving State be heard before interim release is ordered even absent a specific provision to this effect. (For comparative purposes see rule 65 (b) of the ICTY Rules of Procedure and Evidence. The Kingdom of the Netherlands set out its position on matters of provisional release in a letter to the Registrar of the ICTY dated 18 July 1996 (IT-95-14-T, p. 3036)). This is natural if a suspected person is to be released on another State's sovereign territory. The conditions likely to be imposed are constrained only by the imagination of the judges and may be tailored to the specifics of the case falling for consideration. In *Prosecutor v. Miljković et al.*, IT-95-9-PT, Decision on provisional release of the accused in Simić, 26 Mar. 1998, for example, 9 conditions were imposed on the accused to ensure his attendance at trial and to protect others. Of course, not all conditions will satisfy the Bench. In *Prosecutor v. Blaskić*, Order denying a Motion for Provisional Release, in the Blaskić case, for example, it was held that even an offer of a very high bail bond – 1 million deutschmarks in that case – was not sufficient to satisfy the chamber that the accused would appear at his trial 'because of the gravity of the criminal acts of which he stands accused; of the severity of the penalties to which he is liable ...', IT-95-14-T, 20 Dec. 1996, p. 5. It also appears at least arguable that custody could be required for a person's own protection and to ensure his safe surrender at court. A person identified as a criminal suspect, often accused or suspected of committing violent and massive crimes, could very well generate hostility. In the highly charged environment in the midst of conflict, or shortly thereafter, pre-trial arrest might justifiably be imposed for the person's own safety.

grounds that the person will either fail to attend Court as required, commit further offences, or interfere or otherwise obstruct the course of justice, why should that person's liberty be curtailed in any way? Rather, the Prosecution should have to satisfy the Court that the conditions imposed are necessary for one of the reasons stipulated in article 58 para. 1³².

- 10 The Court should, as a matter of principle, impose the least stringent conditions required to ensure the interests identified in article 58 para. 1 are protected. This is an essential corollary to the presumption of innocence³³. Pre-trial detention is not pre-trial or advance punishment. The deprivation or limitations on liberty should only be imposed if necessary in the interests of justice. The Prosecution should be put to proof as to why either pre-trial detention or release with conditions are, in fact, required. Rule 119(2) permits the Pre-Trial Chamber to amend the conditions imposed 'at any time'.
- 11 One final point deserves mention in relation to article 60 para. 2. Situations may well arise in which the Pre-Trial Chamber issues (pursuant to article 58 para. 1) a warrant of arrest and the relevant person is arrested by the custodial State, but granted interim release pending surrender in accordance with article 59 para. 4. That person may then be at liberty (or at least not incarcerated) pending transfer to the ICC.
- 12 Regardless of any decision by the custodial State on the issue of interim release or detention, the Pre-Trial Chamber's warrant of arrest remains active unless expressly withdrawn by them³⁴. Upon transfer, therefore, such a person will be brought before the Court and, still being subject to a warrant of arrest is entitled to apply for interim release pending trial³⁵. Such a person will not be entitled to interim release as of right, however, or simply because pre-transfer release had been granted by the custodial State³⁶.

Of course, such a person's actions whilst on interim release pending surrender may be extremely relevant either to the likelihood of that person surrendering to the ICC for trial, or

This, however, will not always be the case. Witnesses who appear to the court a substantial period after their alleged part in any offence could be released. Indeed, as we see from Serafinowicz (war crimes), Sawoniuk (war crimes) and Pinochet (crimes against humanity and torture) cases in the U.K., it is not impossible for such persons to be granted bail with conditions and for them surrender to court as required. Accordingly, conditional release may be appropriate in a whole host of circumstances.

³² Such a requirement would be consistent with the plain meaning of Rule 65 of the ICTY. Relevant also in this regard is *Prosecutor v. Kupreskić et al.*, IT-95-16-PT, Decision on Motion for Provisional Release, 15 Dec. 1997, para. 14, where it was held that:

'With respect to conditions of provisional release, the Trial Chamber notes that it has the power to impose such conditions upon the release of the Applicants as it deems appropriate in the circumstances. These include ... the imposition of such conditions as are necessary to ensure the presence of the Applicants for Trial and the protection of others'. (emphasis added).

³³ See note 21. Various commentators have justified or explained the more restrictive pre-trial release conditions in the ICTY/R Rules of Procedure and Evidence. For example, Ntanda Nsereko, observes that, 'Considering that the rules subscribe to the presumption of innocence, the provisional release restrictions are quite stringent. The only justification for this stringency that comes to mind is the gravity of the offences over which the Tribunal has jurisdiction and the desire to avoid a public outcry over allowing accused persons to be at large' (in: *Rules* 532). Similarly, Gallant, has stated that 'While such a rule [that pre-trial release is exceptional] would be harsh in a court with jurisdiction over ordinary crimes, it is reasonable given that the only crimes over which the Tribunal has jurisdiction are serious violations of international humanitarian law. The harshness of this rule, however, emphasises the need to ensure that persons are not arrested and detained except on reasonable (or probable) cause' (in: *Securing* 587). Perhaps in light of some of these concerns, Rule 65(b) was amended on 28 Oct 2011 so that, 'the existence of sufficiently compelling humanitarian grounds may now be considered in granting a release.

³⁴ Article 58 para. 4.

³⁵ See article 60 para. 2.

³⁶ In *Prosecutor v. Kupreskić et al.*, see note 31, one Trial Chamber emphasised the prerogative right of the Chamber to impose pre-trial detention, notwithstanding that an accused may have apparently co-operated and voluntarily surrendered to the jurisdiction of court. They explained that:

'The suggestion that the voluntary surrender of the Applicants to the International Tribunal demonstrates their willingness to cooperate and defend themselves offers no guarantee that the Applicants will not abscond if released. The Trial Chamber is persuaded by the Prosecution's argument that if voluntary surrender were inevitably to lead to provisional release, this would then provide an opportunity for all accused to avail themselves of a 'free' look at the evidence (as well as an opportunity to identify and intimidate key witnesses) before absconding and becoming permanent fugitives'. (at para. 12, p. 7).

to the necessity of incarceration to protect any of the other interests listed in article 58 para. 1 (b). Notwithstanding this, the Trial Chamber will still have to consider whether the conditions set out in article 58 para. 1 continue to exist. If they find they do, and are not persuaded by such additional evidence or information that come to light, they must order that person be detained pending trial.⁴²

III. Paragraph 3: The requirement of periodic review

Paragraph 3 is expressed in mandatory terms and requires the Pre-Trial Chamber to periodically review its ruling on release or detention³⁷. It is responsible for reviewing this matter and may, therefore, raise it *proprio motu*, in addition to it being raised by the Parties.³⁸ It must consider any information relevant to the question of detention or release, including information not raised by either party³⁹. The Pre-Trial Chamber is empowered to vary any previous order made if satisfied changed circumstances so require⁴⁰. These changed circumstances could include changes to the nature or quality of the evidence that come to light⁴¹, or a change in the health of the person⁴².

³⁷ The ICTY has held that ‘Reasonable suspicion [that a person has committed an offence] at the time of arrest is not, however, enough. To remain lawful the detention of the accused must be reviewed so that the Trial Chamber can assure itself that the reasons justifying detention remain. See ECHR Arts. 5.3, 5.4, ICCPR Arts. 9.3, 9.4, and the United Nations Body of Principles for the Protection of all persons under any form of detention or imprisonment, Principle 39’. See *Prosecutor v. Delalić et al.*, note 20, para. 24. The ‘ruling’ under review should be construed as the initial decision made under article 60(2) together with any subsequent modifications made to that decision under article 60(3) (*Prosecutor v. Jean-Pierre Bemba Gombo*, Judgement on the appeal of Mr Jean-Pierre Bemba Gombo against the decision of Trial Chamber III of 28 July 2010 entitled “Decision on the review of the detention of Mr Jean-Pierre Bemba Gombo pursuant to Rule 118(2) of the Rules of Procedure and Evidence”, ICC-01/05-01/08-1019, 19 Nov. 2010, para. 46).

³⁸ The Pre-Trial Chamber also has a power, rather than an obligation, to conduct a *proprio motu* review in the absence of any application by the Defence for interim release (*Prosecutor v. Katanga et al.*, Decision on the powers of the Pre-Trial Chamber to review *proprio motu* the pre-trial detention of Germain Katanga, ICC-01/04-01/07-330, 18 March 2008, pp. 8–9).

³⁹ *Prosecutor v. Jean-Pierre Bemba Gombo*, see note 37, para. 52. The Pre-Trial Chamber is, however, obliged to give the parties an opportunity to submit their observations before it makes a decision, including in circumstances where it seeks to add a further ground of detention based on incidents proceeding “an application for interim release (*Prosecutor v. Jean-Pierre Bemba Gombo*, Judgement on the appeal of Mr Jean-Pierre Bemba Gombo against the decision of Trial Chamber III of 26 September 2011 entitled “Decision on the accused’s application for provisional release in light of the Appeal Chamber’s judgement of 19 August 2011”, ICC-01/05-01/08-Red, 23 Nov. 2011, para. 64. Also relevant is the fact that, for each periodic review of detention, the Prosecutor is obliged to make submissions and inform the Chamber of any information of which he is aware that has a bearing on the question of detention or release (*Prosecutor v. Jean-Pierre Bemba Gombo*, see note 37, para. 51).

⁴⁰ The requirement of showing of a ‘change in circumstances’ was to justify the Pre-Trial Chamber varying a previous decision as to detention or conditions of release. It concerns ‘either a change in some or all of the facts underlying a previous decision on detention, or a new fact satisfying a Chamber that a modification of its prior ruling is necessary’ (*Prosecutor v. Jean-Pierre Bemba Gombo*, Judgement on the appeal of the Prosecutor against Pre-Trial Chamber II’s ‘Decision on the Interim Release of Jean-Pierre Bemba Gombo and Convening Hearings with the Kingdom of Belgium, the Republic of Portugal, the Republic of France, the Federal Republic of Germany, the Italian Republic, and the Republic of South Africa’, ICC-01/05-01/08-631-Red, 2 Dec. 2009, para. 60). It is possible for a ruling on detention made by one Pre-Trial Chamber to be revisited by a differently composed Pre-Trial Chamber under article 60(3). The Appeals Chamber has held that the change in composition does not affect the Pre-Trial Chamber’s competence to conduct the review and that there is therefore no need for the reviewing Trial Chamber to make a decision ‘*de novo*’ (*Prosecutor v. Jean-Pierre Bemba Gombo*, see note 37, para. 56).

⁴¹ In *Prosecutor v. Delalić et al.*, see note 20, para. 24, the Trial Chamber set out various authorities which illustrate the international obligation for any detention to be periodically reviewed by a judicial body. With regards to any changes to the cogency of the evidence which come to light they stated that ‘The Trial Chamber will review in a cursory manner, keeping in mind that this is not the proper time to consider the merits of the case, the strength of the Prosecution’s case in determining whether the accused has shown an absence of reasonable suspicion’. The Trial Chamber emphasised the principle identified in various ECHR cases that ‘the persistence of such [reasonable] suspicions is a condition sine qua non for the validity of the continued detention of the person concerned’ (see for example *Stogmüller v. Austria*, Y.B. VII, 168, 188, (1964) p. 40).

⁴² See note 20, para. 86 to 87. ‘Articles 60 and 58 of the Statute and Rule 119 of the Rules of Procedure and Evidence do not refer to the medical condition of the detained person when dealing with interim or conditional

- 14 The Pre-Trial Chamber may also review an earlier decision at the request of the Parties but it does not follow that there is an obligation to always grant an oral hearing. The only requirement is that provided for by Rule 118(3) which requires that a hearing must be heard once a year on the issue of interim release⁴³. The Pre-Trial Chamber's responsibilities are directed to itself. If it determines that the reasons for detention remain unchanged and that there has been no material change of circumstance, it may dismiss any application for interim release summarily.⁴⁴ This is a proper and appropriate safeguard to avoid frivolous or repeated applications being made on this issue by either side.
- 15 No time period for the timings of these periodic reviews are stipulated in the Statute⁴⁵. Rule 118 para. 2 however, requires, that the Pre-Trial Chamber review its decision on release or detention at least every 120 days. The periodic review by the Pre-Trial Chamber of its ruling on the detention of a person subject to a warrant of arrest under article 60 para. 3 'follows from, and is dependent upon, a ruling on a previous application by the detained person for provisional release'⁴⁶. Detention referred to in article 60 para. 3 must not be confused with the issuance of a warrant of arrest referred to in article 58⁴⁷. It is settled, therefore, that the time limits for periodic review run from the first application for interim release not from the issuance of the warrant for arrest. An additional safeguard, of course, is the ability of the Parties to raise the issue with the Bench at any time⁴⁸, and to argue that there has been a material change of circumstances which justifies a reconsideration of any previous ruling made under article 60 para. 2. After the initial appearance, the application for interim release must be in writing⁴⁹.
- 16 It is, perhaps, a little unfortunate that the drafting of article 60 para. 3 does not appear to cater for the possibility of a person appearing on summons before the ICC being subsequently incarcerated if changed circumstances so require. For example, a person may appear on summons and surrender to the jurisdiction of the Court, but, by the time of his initial appearance, (or anytime thereafter), credible information may emerge which discloses that that person is attempting, for example, to interfere with witnesses, destroy or tamper with evidence or preparing to abscond. In such a case, it appears that article 60 para. 3 cannot be used in order to incarcerate, or even impose or vary conditions against such a person. This is because periodic review under paragraph 3 relates to review of the decision arrived at pursuant to article 60 para. 2. Article 60 para. 2, of course, only relates to persons subject to a warrant of arrest issued by the Pre-Trial Chamber. If a person, therefore, appears pursuant to a summons, rather than on warrant, both paragraph 2 and paragraph 3 (being dependent and focused on the periodic review of a paragraph 2 decision) are inapplicable.

In such a case, what would probably be a prudent and appropriate course of action, would be for the Prosecutor to make a *de novo* article 58 para. 1 application for the issue of a

release. Nevertheless, the Appeals Chamber considers that medical reasons can play a role in decisions on interim release in at least two ways. First, the medical condition of a detained person may have an effect on the risks under article 58(1)(b) of the Statute, for instance on his or her ability to abscond, potentially negating those risks. Second, the medical condition of the detained person may be a reason for a Pre-Trial Chamber to grant interim release with conditions. As stated above, the Pre-Trial Chamber enjoys discretion when deciding on conditional release; the ill health of a detained person may be a factor in the exercise of its discretion'.

⁴³ In the ICTY context, there is no requirement to hold a hearing at all. An oral hearing will only be granted upon a showing of 'good cause'. See *Prosecutor v. Krnojelac*, Decision on the Defence Preliminary Motion on the Form of the Indictment, 24 Feb. 1999, para 65. Also see Khan and Dixon, *Archbold*, note 29, 7–124.

⁴⁴ *Prosecutor v. Jean-Pierre Bemba Gombo*, Judgment on the appeal of Mr Jean-Pierre Bemba Gombo against the decision of Trial Chamber III of 6 January 2012 entitled "Decision on the defence's 28 December 2011 'Requête de Mise en liberté provisoire de M. Jean-Pierre Bemba Gombo', ICC-01/05-01/08-2151-Red, 5 Mar. 2012, para. 31; see note 37, para. 53.

⁴⁵ The Model Draft Statute for the ICC had recommended that such periodic reviews should be within a reasonable and clearly specified time. See commentary to article 60 in A.I.D.P., Model Draft Statute 92.

⁴⁶ *Prosecutor v. Thomas Lubanga Dyilo*, see note 20, para 3 and para 94. Appeals Chamber, *Prosecutor v. Laurent Koudou Gbagbo*, see note 20, para. 23 to 24.

⁴⁷ *Prosecutor v. Thomas Lubanga Dyilo*, see note 20.

⁴⁸ Rule 118 para. 2.

⁴⁹ Rule 118 para. 3.

warrant of arrest⁵⁰. It would be perfectly proper for the Prosecutor and the Pre-Trial Chamber to have recourse to article 58 para. 1 in this manner in order to protect the interests identified therein.

IV. Paragraph 4: The right not to be detained for an ‘unreasonable period prior to trial due to inexcusable delay by the Prosecutor’

Paragraph 4 obliges the Trial Chamber to ensure that no person is detained ‘for an unreasonable period prior to trial due to inexcusable delay by the Prosecutor’⁵¹. Article 60 para. 4 of the Statute is independent of article 60 para. 2 in the sense that even if a detainee is appropriately detained pursuant to article 60 para. 2, the Pre-Trial Chamber shall consider releasing the detainee under article 60 para. 4 if the person is detained for an unreasonable period prior to trial due to inexcusable delay by the Prosecutor⁵². The ‘unreasonable period’ and ‘inexcusable delay’ requirements are conjunctive in nature. If release is ordered, it will be to protect the rights of the detained person. It is not meant, and should not be used, as a punitive measure to punish the Prosecutor⁵³. Accordingly, even if the Trial Chamber finds that pre-trial detention has continued for an unreasonable period and this is caused by inexcusable delay by the Prosecutor, it is not obliged to release that person. Rather it will consider whether to do so in light of the circumstances of the case as a whole.

It is trite to say that pre-trial detention cannot extend beyond a reasonable period of time⁵⁴. What amounts to an unreasonable period of time, however, will vary according to the circumstances of the case. In this regard, the ICTY has found seven factors enumerated by the European Commission of Human Rights relevant when determining this issue.

⁵⁰ Article 58 para. 1 remains relevant and applicable as it allows such an application to be made by the Prosecutor ‘at any time after the initiation of an investigation’.

⁵¹ This is very different from the proposal present in Zutphen Draft, article 53 para. 6 (b), see note 14, pp. 102–3, which had suggested a limitation on pre-trial detention to a maximum of one year capable of being extended by a further year with the leave of the Pre-Trial Chamber (or Presidency) on the Prosecutor establishing that he or she would be ready for trial within that additional year and upon good cause being shown for the delay. The drafting of paragraph 4 that was finally agreed upon in Rome does not stipulate any definitive maximum period for pre-trial detention. When this text went to the drafting committee of the Rome Diplomatic Conference on 24 June 1994 (UN Doc. A/CONF.183/C.1/WGPM/L.2), it was accompanied by a footnote that stated that ‘this time frame should be addressed in the Rules of Procedure and Evidence’. The drafting in the Statute does have the advantage, however, in that it requires the Pre-Trial Chamber to look to the facts, peculiarities and complications of the case actually before it. It is conceivable that there may be cases, where even a years pre-trial detention may be unwarranted, excessive or unreasonable.

⁵² *Prosecutor v. Thomas Lubanga Dyilo*, see note 20, para 4.

⁵³ Other provisions are available to remove a Prosecutor if found to be in ‘serious breach of his or her duties’ (see article 46 para. 1). In cases where misconduct is less serious than that envisioned as requiring removal, the Prosecutor may be sanctioned (see article 47). The terms and nature of this have to be worked out in the Rules of Procedure and Evidence. It may be possible, therefore, that in an appropriate case, the Prosecutor or one of her staff may be sanctioned or liable for disciplinary measures should that be required. Cf. The Trial Chamber’s Formal Complaint to the Prosecutor concerning the conduct of the Prosecution in the ICTY case of Furundzija, IT-95-17/1-PT, 5 June 1998, para. 12. In regard to the use of article 71 to sanction a prosecutor see also *Prosecutor v. Lubanga*, Judgment on the Appeal of the Prosecutor Against the Decision of Trial Chamber I of 8 July 2010 entitled ‘Decision on the Prosecution’s Urgent Request for Variation of the Time-Limit to Disclose the Identity of Intermediary 143 or Alternatively Stay Proceedings Pending Further Consultations with the VWU’, 8 Oct. 2010, ICC-01/04-01/06-2582, para 59 to 60.

⁵⁴ See *Stogmüller v. Austria*, p. 40, cited in note 20, *Prosecutor v. Delalic et al.*, para. 26, where this issue is dealt with in detail. See also the *Prosecutor v. Laurent Gbagbo*, Dissenting Opinion of Judge Anita Usacka, against the Judgment on the appeal of Mr Laurent Gbagbo against the decision of Pre-Trial Chamber I of 11 July 2013 entitled ‘Third decision on the review of Laurent Gbagbo’s detention pursuant to article 60(3) of the Rome Statute’, 29 Oct. 2013, ICC-02/11-01/11-548-Anx2, para. 14, wherein she considers that article 21(3) casts a broader obligation than article 60 (4), and in doing so imposes a requirement on the Pre-Trial Chamber to ensure the reasonableness of a period of pre-trial detention in deciding whether to adjourn the confirmation hearing or to decline to confirm the charges.

‘These factors are: (1) the actual length of detention; (2) the length of detention in relation to the nature of the offence, the penalty prescribed and to be expected in the event of conviction and national legislation on the deduction of the period of detention from any sentence passed; (3) the material, moral or other effects of detention upon the detained person beyond the normal consequences of detention; (4) the conduct of the accused relating to his role in delaying the proceedings and his request for release; (5) the difficulties in the investigation of the case, such as its complexity in respect of the facts or the number of witnesses or accused and the need to obtain evidence abroad; (6) the manner in which the investigation was conducted; and (7) the conduct of the judicial authorities’⁵⁵.

The Court, in contrast, has held that it is appropriate to determine whether the requirement of public interest outweighs the rule of respect for individual liberty when assessing the reasonableness of detention⁵⁶. Arguably, the effect of this is to replicate within article 60, para. 4 the requirements of release found within article 60 para. 2. It is suggested that the approach is inconsistent with the intention that article 60 para. 4 should operate independently of article 60 para. 2.

- 19 Article 60 para. 4 of the Statute, moreover, does not protect a person from unreasonable lengths of detention, but only unreasonable lengths of detention occasioned by inexcusable delay by the Prosecutor. There is no provision allowing for release to ameliorate a person’s detention for an unreasonable period caused by inexcusable delay occasioned by other factors, such as insufficiency in the number of judges, lack or insufficiency of court rooms, or budgetary and resource problems. This is unsatisfactory. It will not matter to accused persons whether their detention for an ‘unreasonable period’ is the fault of the Prosecutor, the judges, the Registry or any other third party. All organs of the Court should be clearly prohibited from unnecessary, never mind inexcusable delays, and paragraph 4 suffers from the defect of only focusing on inexcusable delay on the part of the Prosecutor.
- 20 What is inexcusable will depend upon the facts of the case, but could include such matters as failure of the Prosecutor to investigate adequately, or failure to comply with court orders, the Statute, or the Rules of Procedure and Evidence. Some commentators have criticised the requirement of ‘inexcusable delay’ as far too vague and uncertain a standard. The Prosecutor, they argue, should be held to higher standards and ‘delay by the Prosecutor should only be allowed in extremis, if at all’⁵⁷.

Inexcusable delay implies something more than unintentional delay, but it does not appear to be a readily definable term. What may be inexcusable if done by the Prosecutor, may be held to be excusable (or at least not inexcusable) if done by the defence or other third party. What is ‘inexcusable’ is intertwined with the responsibilities stemming from that Office. The Prosecutor brings a prosecution and is expected to pursue it diligently and to the highest standards. As such, whether the delay referred to in paragraph 4 is termed ‘unexcusable’, ‘inexcusable’ or ‘unreasonable’ may really be of little significance.

⁵⁵ Neumünster Case, 8 *ECtHR* (ser. A) pp. 23–24 (1968), cited in note 20, *Prosecutor v. Delalić et al.*, para. 26. Later in that paragraph, the Trial Chamber went on to cite the Schertenleib case, 23 European Commission of Human Rights (1981)137 where the European Commission of Human Rights had held that, on the facts of that case, two and a half years pre-trial detention had not been unlawful. This reasoning was adopted in *Prosecutor v. Kovačević*, IT-97-24-PT, Decision on Defence Motion for Provisional Release in Drljaca and Kovačević, 20 Jan. 1998, where that Trial Chamber cited the holdings in *Ventura v. Italy*, App. No. 7438/76, Commission Report 15.12.80 (European Commission of Human Rights) and *W. v. Switzerland*, 26 Jan. 1993, *ECtHR* (ser. A), No. 254 where periods of pre-trial detention of over four years were held not to be in breach of the European Convention of Human Rights.

⁵⁶ *Prosecutor v. Katanga et al.*, Third Review of the decision on the application for interim release of Mathieu Ngudjolo (rule 118(2) of the Rules of Procedure and Evidence), ICC-01/04-01/07-965, 17 March 2009, para. 11, referring to *Prosecutor v. Thomas Lubanga Dyilo*, Second Review of the Decision on the Application for Interim Release of Thomas Lubanga Dyilo, ICC-01/04-01/06-924, 11 June 2007, p. 7. In the latter case, the Pre-Trial Chamber observed that the circumstances fulfilled the requirement of public interest, ‘in particular in relation to the need to ensure the appearance of the accused at trial and the security and protection of victims and witnesses’ (p. 7).

⁵⁷ See commentary to article 60 in A.I.D.P., Model Draft Statute 92.

That said, prosecuting massive violations of international humanitarian law is particularly difficult and delay can, of course, be occasioned for a variety of reasons. Access to witnesses, conducting site visits, obtaining documents and delays and difficulties in translation are just some of the problems intrinsic to the bid of establishing international criminal justice. Delay in many of the above will have nothing to do with any fault on the part of the Prosecutor, but will be an inescapable corollary to the commencement of an investigation. Some Trial Chambers of the ICTY have shown an understanding of these problems and have accepted that ‘the difficulties inherent in investigating a case thousands of kilometers away’ have to be borne in mind when determining the reasonableness of any continued pre-trial detention⁵⁸.

Paragraph 4 constitutes both the expression of a right for detained persons, and a trial management responsibility for the Pre-Trial Chamber. In cases where delay is approaching a level that may be considered ‘unreasonable’, and is being caused by ‘inexcusable delay’ by the Prosecutor, it is hoped that the Pre-Trial Chamber will notify the parties and order the Prosecutor to be Trial ready and comply with other necessary orders by fixed dates. It is reasonable that the parties be on notice as to the expectations of the Pre-Trial Chamber. In the context of the ICTY/R, status hearings are increasingly held and scheduling orders regularly issued in order to ensure all parties proceed in a prompt, reasonable and professional manner⁵⁹. This type of continuous oversight is the best way to ensure detention remains within the bounds of reasonableness.

V. Paragraph 5: The power to issue a warrant of arrest to secure attendance of a released person

Paragraph 5 allows a Pre-Trial Chamber to issue a warrant of arrest, if necessary, to secure the presence of a person who has been released. This is similar to Rule 65 (h) of the ICTY/R. The ICTY/R Rule, however, is broader in that it allows a warrant to be issued to secure the presence of either a released person, or a person who is otherwise at liberty. Accordingly, it would permit an arrest warrant to be issued where a person has escaped from lawful custody or is at liberty for any other reason. It appears that where a person is ‘for any other reason at liberty’ and a warrant is required, the Prosecutor will have to apply for such warrant under article 58 para. 1.

Rule 119(4) of the ICC Rules of Procedure and Evidence details the standard required before conditional release granted to a suspect is revoked. The Chamber must be ‘convinced’ that the suspect or accused has breached the conditions imposed. It seems that this effectively equates to proof beyond reasonable doubt, rather than the lesser standard of ‘substantial grounds to believe’ that the conditions have been breached.

⁵⁸ *Prosecutor v. Delalić et al.*, see note 20, para. 30.

⁵⁹ ICTY Rules of Procedure and Evidence, see note 3, rules 65bis, 65ter.

Article 61

Confirmation of the charges before trial*

1. Subject to the provisions of paragraph 2, within a reasonable time after the person's surrender or voluntary appearance before the Court, the Pre-Trial Chamber shall hold a hearing to confirm the charges on which the Prosecutor intends to seek trial. The hearing shall be held in the presence of the Prosecutor and the person charged, as well as his or her counsel.

2. The Pre-Trial Chamber may, upon request of the Prosecutor or on its own motion, hold a hearing in the absence of the person charged to confirm the charges on which the Prosecutor intends to seek trial when the person has:

- (a) Waived his or her right to be present; or
- (b) Fled or cannot be found and all reasonable steps have been taken to secure his or her appearance before the Court and to inform the person of the charges and that a hearing to confirm those charges will be held.

In that case, the person shall be represented by counsel where the Pre-Trial Chamber determines that it is in the interests of justice.

3. Within a reasonable time before the hearing, the person shall:

- (a) Be provided with a copy of the document containing the charges on which the Prosecutor intends to bring the person to trial; and
- (b) Be informed of the evidence on which the Prosecutor intends to rely at the hearing.

The Pre-Trial Chamber may issue orders regarding the disclosure of information for the purposes of the hearing.

4. Before the hearing, the Prosecutor may continue the investigation and may amend or withdraw any charges. The person shall be given reasonable notice before the hearing of any amendment to or withdrawal of charges. In case of a withdrawal of charges, the Prosecutor shall notify the Pre-Trial Chamber of the reasons for the withdrawal.

5. At the hearing, the Prosecutor shall support each charge with sufficient evidence to establish substantial grounds to believe that the person committed the crime charged. The Prosecutor may rely on documentary or summary evidence and need not call the witnesses expected to testify at the trial.

6. At the hearing, the person may:

- (a) Object to the charges;
- (b) Challenge the evidence presented by the Prosecutor; and
- (c) Present evidence.

7. The Pre-Trial Chamber shall, on the basis of the hearing, determine whether there is sufficient evidence to establish substantial grounds to believe that the person committed each of the crimes charged. Based on its determination, the Pre-Trial Chamber shall:

- (a) Confirm those charges in relation to which it has determined that there is sufficient evidence, and commit the person to a Trial Chamber for trial on the charges as confirmed;
- (b) Decline to confirm those charges in relation to which it has determined that there is insufficient evidence;
- (c) Adjourn the hearing and request the Prosecutor to consider:
 - (i) Providing further evidence or conducting further investigation with respect to a particular charge; or
 - (ii) Amending a charge because the evidence submitted appears to establish a different crime within the jurisdiction of the Court.

* The views expressed herein are those of the authors alone and do not reflect the views of the International Criminal Court.

8. Where the Pre-Trial Chamber declines to confirm a charge, the Prosecutor shall not be precluded from subsequently requesting its confirmation if the request is supported by additional evidence.

9. After the charges are confirmed and before the trial has begun, the Prosecutor may, with the permission of the Pre-Trial Chamber and after notice to the accused, amend the charges. If the Prosecutor seeks to add additional charges or to substitute more serious charges, a hearing under this article to confirm those charges must be held. After commencement of the trial, the Prosecutor may, with the permission of the Trial Chamber, withdraw the charges.

10. Any warrant previously issued shall cease to have effect with respect to any charges which have not been confirmed by the Pre-Trial Chamber or which have been withdrawn by the Prosecutor.

11. Once the charges have been confirmed in accordance with this article, the Presidency shall constitute a Trial Chamber which, subject to paragraph 9 and to article 64, paragraph 4, shall be responsible for the conduct of subsequent proceedings and may exercise any function of the Pre-Trial Chamber that is relevant and capable of application in those proceedings.

Other relevant provisions: Rules 121 to 130, see Annex I. Regulations 31, 52 and 53 of the Regulations of the Court.

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A. Introduction/General remarks

I. Historical development

- 1 The confirmation process provided for in article 61 is the mechanism by which the PTC determines whether the case should be sent to trial. The closest equivalent before the *ad hoc* tribunals is the so-called Rule 61 Procedure, introduced by the judges early in the work of the ICTY as a mechanism to appease those who felt there should be the capacity of *in absentia* trials.¹ Despite persistent denials,² it had many similarities with an *in absentia* procedure and was, in many respects, an honourable compromise between the different views of jurists from the Romano-Germanic and common law systems with respect to such proceedings.³ Rule 61

¹ On the rule 61 Procedure, see: King (1997) 29 *NYLSchLRev&P* 523; Quintal (1998) 36 *ColJTransnatL* 723; Thieroff and Amley Jr. (1998) 23 *YaleJIL* 231.

² *Prosecutor v. Rajić*, IT-95-12-R61, Review of the Indictment Pursuant to rule 61 of the Rules of Procedure and Evidence, 13 Sep. 1996: 'A Rule 61 proceeding is not a trial in absentia. There is no finding of guilt in this proceeding'. *Prosecutor v. Nikolić*, IT-95-2-R61, Review of Indictment Pursuant to rule 61, 20 Oct. 1995: 'The Rule 61 procedure ... cannot be considered a trial in absentia: it does not culminate in a verdict nor does it deprive the accused of the right to contest in person the charges brought against him before the Tribunal'.

³ The UN itself proposed, in November 2006, the creation of an international tribunal with the power to hold *in absentia* trials. See: Report of the Secretary-General on the establishment of a special tribunal for Lebanon, UN Doc. S/2006/893, paras 32–33.

hearings to confirm indictments were held in 1995 and 1996 by the Yugoslavia Tribunal, but later abandoned, and they were never used at the sister tribunal for Rwanda. This may be because the Prosecutor became too busy with defendants who were actually in custody, and for whom no such confirmation was required. Indeed, the Prosecutor may also have believed that such hearings could only benefit the accused while offering little or no assistance in obtaining a conviction. The *ad hoc* tribunals also provide for judicial authorisation of the issuance of an indictment, but this is really no different in principle from the earlier stage in the proceedings under the Rome Statute by which a warrant of arrest or summons is approved by the PTC.

Establishment of the confirmation procedure within the procedural architecture of the Rome Statute is an important example of the increased judicial control by the judiciary over the Prosecutor that sets the ICC apart from other international criminal justice institutions. The confirmation of charges provision did not exist in the so-called Zutphen text. At the Preparatory Committee meetings held in March-April 1998, a group of delegations submitted a proposal containing an alternative text for procedural matters. The confirmation hearing was comprised in a document entitled 'Further option for articles 58 to 61',⁴ which it was decided would be used as a basis for discussions at the Rome Conference. Article 61 of this text was entitled 'Confirmation of the charges before trial'. The substantial parts of this draft provision were approved by the Rome Conference and became article 61 of the ICC Statute, with the exception of paragraphs 8 and 11, which were added during the Conference.

At the February session of the Preparatory Commission in 1999, article 61 was discussed extensively within the context of the drafting of the Rules of Procedure and Evidence, based upon proposals submitted by Australia and France.⁵ In the course of the debate, discussion papers proposed by the Coordinator of the Working Group on Rules of Procedure and Evidence, entitled 'Part 5 of the Rome Statute: Investigation and Prosecution',⁶ covering confirmation procedure and disclosure of evidence were introduced (hereafter referred to as the 'proposed Rules').

In national legislation, a procedure similar to that of article 61 is found, for example, in the German Criminal Procedure Code (§§ 199–211, 'Das Zwischenverfahren').⁷

II. Purpose of the confirmation procedure

The purpose of the confirmation procedure under article 61 is nowhere defined in the Court's statutory documents. In the first set of article 61 decisions, PTCs have repeatedly explicated their understanding of the purpose of the confirmation of charges process.

The PTC has been ascribed, first and foremost, a 'gatekeeper function' or 'filter function' according to which only those cases for which the Prosecutor has presented 'sufficiently compelling charges going beyond the mere theory of suspicion',⁸ shall proceed to trial. By implication, the article 61 mechanism 'is designed to protect the rights of the Defence against wrongful and wholly unfounded charges'.⁹ Distinguishing the cases that should go to trial

⁴ UN Doc. A/CONF.183/2/Add.1.

⁵ Proposals submitted by Australia – Draft Rules of Procedure and Evidence of the International Criminal Court (UN Doc. PCNICC/1999/DP.1) and Proposals by France concerning the Rules of Procedure and Evidence (UN Doc. PCNICC/1999/DP.7, and DP.8, Add.1 and Add.2).

⁶ UN Doc. PCNICC/1999/WGRPE/RT3 and RT4.

⁷ See, for example, Roxin and Schünemann, *Strafverfahrensrecht* (27th ed. 2012), 333; Rieß, P., *Das Zwischen- oder Eröffnungsverfahren im Strafprozess*, (2002) *JURA* 735.

⁸ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-717, PTC I, 30 September 2008, para. 39; *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-121-Corr-Red, PTC I, 7 March 2011, para. 31; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-465-Red, Decision on the confirmation of charges, PTC I, 16 December 2011, para. 41; *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-432, Decision adjourning the hearing on the confirmation of charges pursuant to article 61(7)(c)(i) of the Rome Statute, PTC I, 3 June 2013, para. 18.

⁹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-803-tENG, Decision on the confirmation of charges, PTC I, 29 January 2007, para. 37; reaffirmed in *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-

from those that should not also ensures judicial economy insofar as it saves the Court's limited resources for those cases which deserve to be discussed at trial.¹⁰ The PTC's commitment to weed out the 'good cases' from the 'bad cases' is supported by the fact that to date proceedings against four suspects, namely *Abu Garda*, *Mbarushimana*, *Kosgey* and *Ali*, did not pass the article 61 stage. Moreover, confirmation of charges hearings have been adjourned twice (*Bemba* and *Laurent Gbagbo*) while the Prosecutor was requested to consider providing either further evidence or proposing a different legal characterization of the facts. This level of judicial scrutiny is in conformity with the intention of the drafters of the Rome Statute.

- 7 But, as formulated by PTC I in the *Banda/Jerbo* case, 'the relationship between the pre-trial phase and the trial phase of the proceedings goes beyond the filtering of cases by the Pre-Trial Chamber for the benefit of the Trial Chamber.'¹¹ When discussing the purpose of the confirmation process, it is also of much significance to point out that the article 61(7)(a) decision confirming the charges **delineates the factual scope of the case** to be discussed at trial. Indeed, the PTC's enquiry extends to ascertaining whether there is sufficient evidence supporting the facts as alleged by the Prosecutor. Hence, if there is no evidence or the evidence is too weak or irrelevant to support a particular factual allegation, the PTC will simply disregard it and as a result it will 'cut' the factual scope of the case. This rejection may concern a whole set of facts underlying a particular count (e.g. all facts allegedly supporting the crime of murder) but also discrete facts underlying a particular count (e.g. murder in villages X and Z but not in village Y). The facts relied upon and confirmed by the PTC may not be exceeded before the TC. This conclusion is deduced from a combined reading of articles 61(7)(a) and 74(2) as well as regulation 55 of the Regulations of the Court ('Regulations').

Article 74(2) provides that 'the decision at trial shall not exceed the facts and circumstances described *in the charges* and any amendments to the charges' (emphasis added), thus referring back to the confirmation process under article 61. By the same token, regulation 55 of the Regulations vests the TC with the authority to modify the legal characterisation of facts also 'without exceeding the facts and circumstances described *in the charges* and any amendments to the charges' (emphasis added). Again this provision draws the link with the confirmation process.

On the one hand, these provisions specify that it is the 'facts and circumstances' appearing in the confirmed charges, and in the confirmed charges alone, that determine the actual

01/04-01/07-717, PTC I, 30 September 2008, para. 63; *Prosecutor v. Bahar Idriss Abu Garda*, ICC-02/05-02/09-243-Red, Decision on the Confirmation of Charges, PTC I, 8 February 2010, para. 39; *Prosecutor v. Abdallah Banda Abakaer Nourain/Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-121-Corr-Red, Corrigendum of the 'Decision on the Confirmation of Charges', PTC I, 7 March 2011, para. 31; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-465-Red, Decision on the confirmation of charges, PTC I, 16 December 2011, para. 41; *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, para. 40; *Prosecutor v. Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, para. 52; *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-432, Decision adjourning the hearing on the confirmation of charges pursuant to article 61(7)(c)(i) of the Rome Statute, PTC I, 3 June 2013, para. 18.

¹⁰ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-424, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the charges of the Prosecutor Against Jean-Pierre Bemba Gombo, PTC II, 15 June 2009, para. 28; *Prosecutor v. Abdallah Banda Abakaer Nourain/Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-121-Corr-Red, Corrigendum of the 'Decision on the Confirmation of Charges', PTC I, 7 March 2011, para. 31; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-465-Red, Decision on the confirmation of charges, PTC I, 16 December 2011, para. 41; *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, para. 40; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, para. 52; *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-432, Decision adjourning the hearing on the confirmation of charges pursuant to article 61(7)(c)(i) of the Rome Statute, PTC I, 3 June 2013, para. 18.

¹¹ *Prosecutor v. Abdallah Banda Abakaer Nourain/Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-121-Corr-Red, Corrigendum of the 'Decision on the Confirmation of Charges', PTC I, 7 March 2011, para. 32.

ambit of the case for the purposes of the trial. They circumscribe it, thus preventing the TC from exceeding that factual ambit. On the other hand, the specific reference in these same provisions to ‘the facts and circumstances’ makes it clear that it is only the factual, as opposed to the legal elements of the confirmed charges that have a delimiting function *vis-à-vis* the TC. As regulation 55 of the Regulations explicitly states, the TC is vested with unrestricted powers to retain, modify or otherwise amend the legal characterisation of the facts and circumstances appearing in the charges.¹² Finally, in delineating the factual scope of the case, the **accused is also informed** ‘in detail of the nature, cause and content of the charges’, as guaranteed under article 67(1)(a).

There is also a third dimension to the confirmation process relating to the proper **preparation for trial proceedings**. Most decisions taken at the pre-trial stage have an impact beyond the article 61 stage. A most prominent example is the confirmation decision filtering the charges. The article 61 procedure is not an end in itself; while it is a separate stage in the overall case proceedings, it forms a unity with the trial stage, should the charges be confirmed. The identity of the case (not necessarily its scope) remains the same in the pre-trial and trial stages. It is a matter of proper case management to solve as many preliminary questions as possible at the pre-trial stage so as to relieve the TC and the parties from addressing time-consuming issues prior and during the trial. While this function is nowhere expressly stipulated in the Statute, some chambers have alluded to or simply discharged their responsibilities in light of such a function.¹³

III. Confirmation proceedings held to date

To date, 12 confirmation proceedings emanating from five situations have been concluded.¹⁴ The cases listed below concern all suspects in relation to whom an article 61(7) decision was rendered at the time. The length of the confirmation proceedings, starting from the initial appearance until the issuance of the article 61(7) decision, varied, depending on the circumstances of each case. Save for the *Laurent Gbagbo* case, the confirmation proceedings lasted approximately between 8 and 14 months. Compared to the length of trial proceedings, it may be said that the time needed to conclude the confirmation proceedings has been kept

¹² *Prosecutor v. Abdallah Banda Abakaer Nourain/Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-121-Corr-Red, Corrigendum of the ‘Decision on the Confirmation of Charges’, PTC I, 7 March 2011, paras 32–35.

¹³ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-307, Decision on the Joinder of the Cases against German Katanga and Mathieu Ngudjolo Chui, PTC I, 10 March 2008, 9; *id.*, ICC-01/04-01/07-2259, Judgment on the Appeal of Mr Katanga Against the Decision of Trial Chamber II of 20 November 2009 Entitled ‘Decision on the Motion of the Defence for Germain Katanga for a Declaration on Unlawful Detention and Stay of Proceedings’, AC, 12 July 2010, para. 3; *Prosecutor v. Abdallah Abakaer Nourain/Saleh Jerbo Jamus Banda*, ICC-02/05-03/09-169, Decision on ‘Defence Application pursuant to articles 57(3)(b) & 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the Government of the Republic of the Sudan’, TC IV, 1 July 2011, footnote 23; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, para. 25; PTC II in the *Ntaganda* case entertained two redaction requests after having issued the decision confirming the charges, see, for example, *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-334-Red2, Redacted Decision on the Prosecutor’s Eleventh and Twelfth Applications for Redactions, PTC II, 17 July 2014. PTC II also requested the Prosecutor to submit progress reports on the status of evidence affected by confidentiality agreements and the consultation process with the information providers as a precautionary measure to anticipate and prevent any disclosure problems to continue past the confirmation stage, see *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-229, Decision Regarding the Non-Disclosure of 116 Documents Collected Pursuant to Article 54(3)(e) of the Rome Statute, PTC II, 27 January 2014; *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-203, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 27 February 2015, para. 44.

¹⁴ The proceedings involving *Abdullah Al-Senussi* were declared as inadmissible by PTC I. This decision was confirmed by the AC. As a result, no confirmation proceedings will take place before the ICC, unless the Prosecutor requests the decision to be reviewed in light of new facts (article 19(10)). Proceedings against *Muammar Mohammed Abu Minyar Gaddafi*, *Okot Odhimabo* and *Raska Lukwiya*, were terminated by the competent PTCs as the suspects had died. Confirmation proceedings are in preparation against *Dominic Ongwen*, and *Ahmad Al Fagi Al Mahdi*.

successfully to a level conforming to the nature and purpose of such proceedings. The following factsheet may guide the reader when going through the present commentary.

- *Prosecutor v Thomas Lubanga Dyilo* (ICC-01/04-01/06), PTC I
Initial appearance: 20 March 2006
Charges confirmed: 29 January 2007 (ICC-01/04-01/06-803-tENG)
Victims participating:¹⁵ 4
- *Prosecutor v Germain Katanga/Mathieu Ngudjolo Chui* (ICC-01/04-01/07), PTC I
Initial appearance Katanga: 22 October 2007
Initial appearance Ngudjolo: 11 February 2008
Joinder of the cases (initially separate): 10 March 2008 (ICC-01/04-01/07-307)
Charges confirmed: 30 September 2008 (ICC-01/04-01/07-717)
Victims participating: 57
- *Prosecutor v Jean-Pierre Bemba Gombo* (ICC-01/05-01/08), PTC III/II
Initial appearance: 4 July 2008
Confirmation hearing adjourned: 3 March 2009 (ICC-01/05-01/08-388)
Charges confirmed: 15 June 2009 (ICC-01/05-01/08-424)
Victims participating: 54
- *Prosecutor v Bahar Idriss Abu Garda* (ICC-02/05-02/09), PTC I
Initial appearance: 18 May 2009
Charges declined to be confirmed: 8 February 2010 (ICC-02/05-02/09-243-Red)
Victims participating: 87
- *Prosecutor v Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus* (ICC-02/05-03/09)¹⁶, PTC I
Initial appearance Banda/Jerbo: 17 June 2010
Charges confirmed: 7 March 2011 (ICC-02/05-03/09-121-Corr-Red)
Victims participating: 89
- *Prosecutor v Callixte Mbarushimana* (ICC-01/04-01/10), PTC I
Initial appearance: 28 January 2011
Charges declined to be confirmed: 16 December 2011 (ICC-01/04-01/10-465-Red)
Mbarushimana released from ICC detention: 23 December 2011
PTC I decision upheld by AC: 30 May 2012 (ICC-01/04-01/10-514)
Victims participating: 130
- *Prosecutor v William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang* (ICC-01/09-01/11), PTC II
Initial appearance Ruto/Kosgey/Sang: 7 April 2011
Charges confirmed for Ruto/Sang and declined to be confirmed for Kosgey: 23 January 2012 (ICC-01/09-01/11-373)
Victims participating: 327
- *Prosecutor v Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali* (ICC-01/09-02/11)¹⁷, PTC II
Initial appearance Muthaura/Kenyatta/Ali: 8 April 2011
Charges confirmed for Muthaura/Kenyatta and declined to be confirmed for Ali: 23 January 2012 (ICC-01/09-02/11-382-Red)
Victims participating: 229

¹⁵ The number of victims reflected in this overview is that of victims participating at the confirmation stage. Victims may also apply later to participate at the trial or appeal stage of a case.

¹⁶ Proceedings against *Jerbo* were terminated post-confirmation by TC IV after having received evidence indicating that *Jerbo* was dead, see *Prosecutor v. Abdallah Banda Abaker Nourain/Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-512-Red, Decision terminating the proceedings against Mr Jerbo, TC IV, 4 October 2013.

¹⁷ The Majority of PTC II confirmed the charges against *Muthaura* and *Kenyatta*. The Prosecutor withdrew the charges against *Muthaura* on 13 March 2013 and on 5 December 2014 the Prosecutor withdrew the charges against *Kenyatta*.

- *Prosecutor v Laurent Gbagbo* (ICC-02/11-01/11), PTC III/I
Initial appearance: 5 December 2011
Confirmation hearing adjourned: 3 June 2013 (ICC-02/11-01/11-432)
Charges confirmed: 12 June 2014 (ICC-02/11-01/11-656-Red)
Victims participating: 199
- *Prosecutor v Bosco Ntaganda* (ICC-01/04-02/06), PTC I/II
Initial appearance: 26 March 2013
Charges confirmed: 9 June 2014 (ICC-01/04-02/06-309)
Victims participating: 1,120
- *Prosecutor v Jean-Pierre Bemba Gombo, Aimé Kilolo Musamba, Jean-Jacques Mangenda Kabongo, Fidèle Babala Wandu and Narcisse Arido* (ICC-01/05-01/13), PTC II
Initial appearance *Bemba/Kilolo/Babala*: 27 November 2013
Initial appearance *Mangenda*: 5 December 2013
Initial appearance *Arido*: 20 March 2014
Charges confirmed: 11 November 2014 (ICC-01/05-01/13-749)
Victims participating: –
- *Prosecutor v Charles Blé Goudé* (ICC-02/11-02/11), PTC I
Initial appearance: 27 March 2014
Charges confirmed: 11 December 2014 (ICC-02/11-02/11-186)
Victims participating: 470

From a practical point of view, as of the moment the person is surrendered to the Court or 10 appears voluntarily, preparations for the confirmation hearing commence. It is of crucial importance that the competent PTC anticipates the issues typically arising in the course of the article 61 proceedings as early as possible with a view to establishing a calendar and providing directions to participants. Some of these issues are set out in this commentary. Proper case management is key to the success of the confirmation process. As stated above, the purpose of the confirmation proceedings is not merely to confirm charges but the process also exists in order to prepare the case for trial. The Prosecutor's continued investigation post-confirmation, the long preparation phase prior to trial and the re-litigation over issues which have already been addressed by the PTC, are therefore factors which impede the commencement of trial in a reasonable time. Thus, an appraisal of the article 61 proceedings cannot be done without assessing the efficiency of the process as a whole, including its trial stage.

B. Analysis and interpretation of elements

Article 61 designs the process leading to the confirmation of charges process. It forms the 11 heart of the pre-trial proceedings and governs the process before (subparagraphs 3 and 4), during (subparagraphs 1, 2, 5 and 6) and after the confirmation hearing (subparagraphs 7 to 11). Article 61 is further supplemented by rules 121 to 129 and regulations 52 and 53 of the Regulations. Victims' participation is regulated by the general provisions article 68(3), rules 85–93 and regulation 86 of the Regulations. Of particular importance is rule 92(3) which stipulates that the Court shall notify victims of the hearing of the confirmation of charges. It reads:

'In order to allow victims to apply for participation in the proceedings in accordance with rule 89, the Court shall notify victims regarding its decision to hold a hearing to confirm charges pursuant to article 61. Such a notification shall be given to victims or their legal representatives who have already participated in the proceedings or, as far as possible, to those who have communicated with the Court in respect of the case in question.'

I. Paragraph 1

1. Setting the date for the confirmation hearing

- 12 Article 61(1) establishes that the confirmation of charges hearing be held ‘within a reasonable time’ after the person’s surrender or voluntary appearance. The date of the confirmation hearing is announced at the initial appearance¹⁸ of the suspect, as foreseen in rule 121(1):

‘A person subject to a warrant of arrest or a summons to appear under article 58 shall appear before the Pre-Trial Chamber, in the presence of the Prosecutor, promptly upon arriving at the Court. Subject to the provisions of articles 60 and 61, the person shall enjoy the rights set forth in article 67. At this first appearance, the Pre-Trial Chamber shall set the date on which it intends to hold a hearing to confirm the charges. It shall ensure that this date, and any postponements under sub-rule 7, are made public.’

- 13 The confirmation hearing must take place ‘within a reasonable time’ after the suspect’s surrender or voluntary appearance before the Court. The same applies if the suspect appeared voluntarily following a warrant of arrest.¹⁹ What is considered ‘within reasonable time’ is not further explained in the Court’s statutory documents. What matters is that the time period until the confirmation hearing is held (as opposed to the entire length of case proceedings) complies with this standard. Having regard to article 67 and ‘internationally recognized human rights’,²⁰ this must be assessed on a case-by-case basis, taking into account the particularities of the case.
- 14 In recent practice, the date of the confirmation of charges was set by the Chamber without seeking in advance any observations. In scheduling the date, the Judges have been guided, most prominently, by the right of the suspect to have adequate time to prepare for the confirmation hearing and to be tried without undue delay. The particularities of the case may also influence the time schedule envisaged by the Chamber, such as its dormancy for several years and the need for the Prosecutor to prepare the case for the hearing,²¹ the number of suspects or the holding of parallel pre-trial proceedings.²² A further consideration may be the completeness of the Prosecutor’s investigation. Although PTCs raised this point only in the context of

¹⁸ Article 60(1). The suspect shall appear ‘promptly’ before the PTC upon arrival at the Court. The time period between the suspect’s arrival at the ICC detention centre to his or her initial appearance before the PTC ranges currently between one (*e.g. Bemba*), three (*e.g. Mbarushimana*), four (*e.g. Lubanga, Ntaganda*) to five days (*e.g. Katanga, Ngudjolo, Ongwen, Blé Goudé, Laurent Gbagbo*). Suspects ordered to appear following a summons, appear on the date that is set by the PTC.

¹⁹ As indicated in article 60(1), the Court distinguishes between three forms of how a suspect can appear before the Court: (i) arrest and surrender following a warrant of arrest; (ii) voluntary appearance following a warrant of arrest (*e.g. Ntaganda*); (iii) appearance following a summons to appear.

²⁰ The case-law of international human rights courts or the law of human rights bodies may prove to be only of limited assistance on this question as the reasonableness of the length of proceedings is assessed having regard to the entirety of the proceedings and not parts of it. The ECtHR developed criteria, in particular the complexity of the case, the person’s conduct and that of the competent authorities, in light of which this question is examined. They may equally prove useful for the purpose of the reasonableness standard laid down in article 61(1). See ECtHR, *Case of Philis v. Greece* (No 2), Judgment of 27 June 1997, Application no. 19773/92, para. 35; *ibid.*, *Case of Gast and Popp v. Germany*, Judgment of 25 February 2000, Application no. 29357/95, para. 70; Human Rights Committee, General Comment No. 32, 23 August 2007, CCPR/C/GC/32, para. 35; IACtHR, *Case of Genie-Lacayo v. Nicaragua*, Judgment of 29 January 1997, Series C No. 30, para. 77, *ibid.* *Case of Valle Jaramillo v. Colombia*, Judgment of 27 November 2008, Series C No. 192, para. 155.

²¹ *Prosecutor v. Joseph Kony et al.*, ICC-02/04-01/05-T-10-ENG, Transcript of Hearing, PTC II, 26 January 2015, 13.

²² *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-T-1-ENG, Transcript of Hearing, PTC II, 7 April 2011, 17; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-T-1-ENG, Transcript of Hearing, PTC II, 8 April 2011, 14.

postponing the hearing pursuant to rule 121(7),²³ this factor may also be considered when setting the date of the hearing in the first place, depending on the circumstances of the case.

As provided in rule 121(7), the date of the confirmation hearing may be postponed upon request of the Prosecutor and the suspect(s). Additionally, the Chamber may on its own motion decide to postpone the hearing.²⁴ In the Court's practice, all confirmation hearings have been postponed, with the exception of those in the two Kenya cases.²⁵ The reasons for postponing were manifold and related to, for example, providing additional time for the Defence or the Prosecutor to prepare for the hearing,²⁶ overcoming disclosure deficiencies,²⁷ inquiring into whether the suspect is fit to take part in proceedings,²⁸ the joinder of two cases,²⁹ the need to review evidence and (re-)investigate due to the unexpected voluntary surrender of the suspect,³⁰ the availability of a Judge,³¹ or that of a courtroom³². The AC explicitly recognized that '[w]here the Prosecutor requires more time to complete the investigation, rule 121(7) of the Rules of Procedure and Evidence permits him [or her] to seek a postponement of the confirmation of charges hearing'.³³

²³ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-514, Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 16 December 2011 entitled 'Decision on the confirmation of charges', AC, 30 May 2012, para. 44; *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-73, Decision on the 'Prosecution's Urgent Request to Postpone the Date of the Confirmation Hearing' and Setting a New Calendar for the Disclosure of Evidence Between the Parties, PTC II, 17 June 2013, para. 32. *Prosecutor v. Dominic Ongwen*, Decision Postponing the Date of the Confirmation of Charges Hearing, 6 March 2015, ICC-02/04-01/15-206, para. 32. See also, *mn* 43.

²⁴ In case the hearing was adjourned pursuant to article 61(7)(c), or the Statute does not require a confirmation hearing ('article 70 proceedings', rule 165(3)), a calendar is set by the Chamber according to which the confirmation proceedings are (further) conducted and concluded. The parties may request, or the Chamber may decide on its own motion, to amend the calendar pursuant to regulation 35 of the Regulations. This has been the case, for example, in the *Laurent Gbagbo* case or the *Bemba et al.* case. The PTCs accepted as justification for amending the calendar, *inter alia*, the rendering of a case-related AC judgment (*Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-557, Decision on the 'Prosecution's request pursuant to Regulation 35 for variation of time limit to file updated document containing the charges, list of evidence and consolidated elements-based-chart', PTC I, 8 November 2013, para. 11) or delayed State cooperation (*Prosecutor v. Jean-Pierre Bemba et al.*, ICC-01/05-01/13-255, Decision on the 'Prosecution's request for variation of time limits pursuant to regulation 35 of the Regulations of the Court concerning the confirmation of charges' dated 3 March 2014, PTC II, 14 March 2014).

²⁵ Postponements in numbers: *Lubanga* case: twice; *Katanga/Ngudjolo* case: three times; *Bemba* case: twice; *Mbarushimana* case: twice; *Ntaganda* case: once; *Abu Garda* case: once; *Banda/Jerbo* case: once; *Laurent Gbagbo* case: twice; *Blé Goudé* case: once; *Ongwen* case: once.

²⁶ For example, *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-446, Decision on the Defence Request for Postponement of the Confirmation Hearing, PTC I, 25 April 2008; *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-152-Red, Decision on the 'Requête de la Défense en report de l'audience de confirmation des charges prévue le 18 juin 2012', PTC I, 12 June 2012, para. 40.

²⁷ For example, *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-170-tENG, Decision on the Postponement of the Confirmation Hearing, PTC III, 17 October 2008; *Prosecutor v. Abu Garda*, ICC-02/05-02/09-98, Decision on the Prosecutor's requests for extension of time-limit, PTC I, 11 September 2009; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-378, Decision on 'Defence request to deny the use of certain incriminating evidence at the confirmation hearing' and postponement of confirmation hearing, PTC I, 16 August 2011.

²⁸ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-201, Decision on issues related to the proceedings under rule 135 of the Rules of Procedure and Evidence and postponing the date of the confirmation of charges hearing, PTC I, 2 August 2012.

²⁹ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-307, Decision on the Joinder of the Cases against Germain Katanga and Mathieu Ngudjolo Chui, PTC I, 10 March 2008.

³⁰ *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-206, Decision Postponing the Date of the Confirmation of Charges Hearing, PTC II, 6 March 2015.

³¹ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-304, Decision on the Postponement of the Confirmation Hearing, PTC III, 2 December 2008.

³² *Prosecutor v. Abdallah Banda/Saleh Mohammed Jerbo*, ICC-02/05-03/09-81, Decision postponing the confirmation hearing and setting a deadline for the submission of the suspect's written request to waive their right to attend the confirmation hearing, PTC I, 22 October 2010, para. 2.

³³ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-514 (OA4), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 16 December 2011 entitled 'Decision on the confirmation of charges', AC, 30 May 2012, para. 44.

- 16 In principle, the confirmation hearing is held in public,³⁴ but parts of it may take place in closed session (*in camera*)³⁵ or private session³⁶ in order to protect witnesses, victims or other persons at risk, or the privacy of the suspect.

2. Presence of the person charged

- 17 Article 61(1), second sentence, states that the ‘hearing shall be held in the presence of the Prosecutor and the person charged, as well as his or her counsel’. Despite its categorical wording, the Statute allows the PTC to hold a hearing without the presence of the person charged under certain conditions, as set out in sub-paragraph 2.
- 18 Victims accepted to participate in the confirmation of charges hearing are also entitled to be present or to be represented by counsel.³⁷ To this end, the Registrar shall notify victims or their legal representative of the date of the hearing and any postponement thereof (rule 92(5)(a)). In the Kenya cases, the **government** of the Republic of Kenya, which challenged the admissibility of the cases prior to the hearing, had requested to be also present during the confirmation hearing. The Chamber rejected this request arguing that the government of Kenya lacked procedural standing.³⁸

II. Paragraph 2: Absence of the person charged

- 19 In principle, it is not permitted to hold a trial in the absence of the accused (see article 63). Nevertheless, the Statute allows the PTC to hold a confirmation hearing under certain conditions, even if the person charged is not present. Paragraph 2 deals with such cases: When (a) the person charged has waived his or her right to be present, namely, after his or her surrender or voluntary appearance, he or she voluntarily decides not to present at the hearing; or (b) he or she has ‘fled or cannot be found’.

The text of paragraph 2 does not require that the suspect has first surrendered or appeared voluntarily before the ICC, and the initial appearance (article 60) has taken place in the presence of the suspect. Rather, it suggests that it is possible to hold a confirmation hearing even if the suspect is not yet arrested.³⁹ Hitherto the Court has not faced a situation as such.⁴⁰

- 20 The PTC may hold the confirmation hearing in the absence of the suspect, either at the Prosecutor’s request or on its own initiative.⁴¹ Such an *ex parte* hearing will be justified where

³⁴ Regulation 20 of the Regulations.

³⁵ ‘Closed session’ means that the hearing is not open to the public and there is no audiovisual stream broadcast outside the Court (regulation 94(e) of the Regulations of the Registry).

³⁶ In ‘private session’, the same regime as in ‘closed session’ applies with the sole difference that the blinds to the public gallery in the courtroom are not lowered. Hence, the audience in the public gallery can see into the courtroom but cannot hear (regulation 94(d) of the Regulations of the Registry).

³⁷ Article 68(3) of the Statute, rule 91(2).

³⁸ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-313, ‘Decision on the “Request by the Government of Kenya in respect of the Confirmation of Charges Proceedings”’, PTC II, 1 September 2011; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-340, ‘Decision on the “Request by the Government of Kenya in respect of the Confirmation of Charges Proceedings”’, PTC II, 20 September 2011.

³⁹ In case the PTC issued a summons to appear, it ordered the suspect to appear on a specified date before the Court (article 58(7)(b)), which is the initial appearance within the meaning of article 60(1). Should the person have been served with the summons and subsequently not appear for the initial appearance, the PTC may decide to issue a warrant of arrest pursuant to rule 119(5), third sentence, in conjunction with rule 119(4) and article 58, as the suspect did not comply with one of the obligations imposed.

⁴⁰ In the pre-trial phase of the *Banda/Jerbo* case, both suspects appeared for the initial appearance following a summons but waived their right to be present at the confirmation hearing. *Prosecutor v. Abdallah Banda/Saleh Mohammed Jerbo*, ICC-02/05-03/09-30, Decision Setting the Date for the Hearing of First Appearance, PTC I, 15 March 2010; *ibid.*, ICC-02/05-03/09-103, Decision on issues related to the hearing on the confirmation of charges, PTC I, 17 November 2010.

⁴¹ A request by the Defence of *Saif Al Islam Gaddafi* for the ‘commencement of the pre-confirmation phase’ (in terms of establishing a calendar for disclosure or processing of redactions and protection requests) in the ‘interests of judicial economy and the good administration of justice’ prior to the surrender of the suspect in The

the suspect has waived the right to be present (sub-paragraph (a)); or where the suspect has fled or cannot be found (sub-paragraph (b)). In the latter case, the PTC is to satisfy itself that all reasonable steps have been taken to secure the person's appearance and to inform him or her of the charges and the fact that such a confirmation hearing is to be held.⁴² If the person concerned is available to the Court but wishes to waive the right to be present at the confirmation hearing, he or she shall submit a written request to the PTC⁴³ which must be personally executed by the suspect;⁴⁴ the PTC may then hold consultations with the Prosecutor and the suspect, assisted or represented by his or her counsel (rule 124(1)). The PTC must satisfy itself that the suspect understands the right to be present at the hearing and the consequences of waiving the right (rule 124(2)). The PTC may also authorize and make provision for the suspect to observe the hearing from outside the courtroom through the use of communications technology, if required (rule 124(3)). Waiving of the right to be present at the hearing does not prevent the PTC from receiving written observations on issues before the Chamber from the suspect (rule 124(4)). If a suspect waives his or her right to be present at the confirmation hearing, this will concern the entirety of the hearing. The suspect may not waive his presence for parts of the hearing and 'pick and choose the days he wishes to attend'.⁴⁵ However, it has been considered possible for a suspect to attend the hearing and to waive his or her right midway causing the hearing to conclude in his absence.⁴⁶

Where the suspect has fled or cannot be found, the PTC is to ensure that a warrant of arrest for the suspect has been issued and, if the warrant of arrest has not been executed within a reasonable period of time after the issuance of the warrant, that all reasonable measures have been taken to locate and arrest the person (rule 123(3)). If the PTC intends to proceed, it may first hold consultations with the Prosecutor, at the request of the latter or on its own initiative, in order to determine whether there is cause to hold a confirmation hearing under the conditions set forth in article 61(2)(b). When the suspect has a counsel known to the Court, the consultations shall be held in the presence of the counsel unless the PTC decides otherwise (rule 123(2)).

Consultations of that kind were held for the first time in the *Kony et al.* case. Warrants of arrest had been issued against initially five suspects in 2005, who remain(ed) at large ever since.⁴⁷ On 16 January 2015, one of the suspects, *Dominic Ongwen* was surrendered to the Court and pre-trial proceedings commenced before PTC II. Shortly after his initial appearance, PTC II, acting on its own initiative, consulted the Prosecutor on whether confirmation

Hague was not considered to fall under the ambit of article 61(2), see *Prosecutor v. Saif Al Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-440, Decision on the 'Request for an order for the commencement of the pre-confirmation phase' by the Defence of Saif Al-Islam Gaddafi, PTC I, 10 September 2013, paras 24–25.

⁴² Rule 123(3).

⁴³ In the *Banda/Jerbo* case, the mere statement by counsel that the suspects are 'willing' to waive their right to be present at the confirmation hearing was not considered as sufficient. *Prosecutor v. Abdallah Banda/Saleh Mohammed Jerbo*, ICC-02/05-03/09-81, Decision postponing the confirmation hearing and setting a deadline for the submissions of the suspects' written request to waive their right to attend the confirmation hearing, PTC I, 22 October 2010, para. 9. As to the content of the written request required by the Chamber, see *ibid.*, para. 10.

⁴⁴ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-670, Mr Katanga's waiver of his right to be present at the Confirmation Hearing pursuant to Rule 124 of the Rules of Procedure and Evidence, Defence, 9 July 2008 (annex A contains Katanga's personal letter waiving his right); *Prosecutor v. Abdallah Banda/Saleh Mohammed Jerbo*, ICC-02/05-03/09-87, Second decision setting a deadline for the submission of the suspects' written request to waive their right to attend the confirmation hearing, PTC I, 27 October 2010.

⁴⁵ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-302, Decision on the 'Defence Request pursuant to Rule 124(1) for Mr. William Ruto to Waive his Right to be Present for part of the Confirmation of charges Hearing', PTC II, 29 August 2011, para. 12.

⁴⁶ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-T-46-ENG, Transcript of Hearing, PTC I, 11 July 2008, 24.

⁴⁷ Proceedings against *Raska Lukwiya and Okot Odhiambo* were terminated due to their death; the warrant of arrest for them was rendered without effect. *Prosecutor v. Joseph Kony et al.*, ICC-02/04-01/05-248, Decision to terminate the proceedings against Raska Lukwiya, PTC II, 11 July 2007; *id.*, ICC-02/04-01/05-431, Decision terminating proceedings against Okot Odhiambo, PTC II, 10 September 2015.

proceedings against the other three co-suspects could also be held in parallel to the case against *Dominic Ongwen* and in their absence. Yet, the Prosecutor expressed reservations.⁴⁸ In its decision severing the case against *Dominic Ongwen* from that against *Kony et al.*, PTC II decided that there was no cause to hold a confirmation hearing *in absentia* against *Kony et al.* It added, alongside the reservations of the Prosecutor, that the Court ‘currently [lacked] the necessary resources to proceed against the other co-suspects *in absentia*’ as well as the ‘significant, but unjustified budgetary implications’. The Chamber also made reference to the impact of such course of action on victims participating in the case as only those victims would continue to participate at trial who are linked to the charges against *Dominic Ongwen* causing disappointment to those who would not continue participating in trial proceedings, if charges were to be confirmed.⁴⁹

- 23 If, after holding consultations under rule 123(2) or rule 124(1), the PTC intends to proceed with confirmation proceedings in the absence of the suspect, it shall so decide;⁵⁰ it must also rule on whether the suspect may be represented by counsel. Article 61(2), second sentence, provides that the suspect be represented by counsel where the PTC determines that this is in the ‘interests of justice’. The PTC shall, when appropriate, set a date for the hearing and make the date public (rule 125(1)). The decision must be notified to the Prosecutor and, if possible, to the suspect and his or her counsel (rule 125(2)).
- 24 If the PTC decides not to hold a confirmation hearing in the absence of the suspect, and the suspect is not available to the Court, the confirmation of charges may not take place until the suspect is available to the Court;⁵¹ the PTC may review its decision at any time, at the request of the Prosecutor or on its own initiative (rule 125(3)). If the PTC decides not to hold a confirmation hearing in the absence of the suspect, and the suspect is available to the Court, it shall order him or her to appear (rule 125(4)).

III. Paragraph 3: Rights guaranteed to the suspect and obligations of the Prosecutor

- 25 The Rome Statute carefully avoids using the term ‘accused’ throughout its provisions in Part V (‘Investigation and Prosecution’). Until the charges are confirmed, the person is generally referred to as ‘person’ or ‘suspect’.⁵² At trial, the person is referred to as the ‘accused’.⁵³ Once the person is convicted, he or she is referred to as the ‘convicted person’.⁵⁴
- 26 Rule 121(1), second sentence, clarifies that subject to the provisions of articles 60 and 61, the person shall enjoy the rights of an accused person set forth in article 67. Article 67(1)(a) stipulates that the accused ‘be informed promptly and in detail of the nature, cause and content of the charge’. Having been served with the summons to appear or the warrant of arrest, the suspect is not yet fully apprised of the facts of the case and their legal characterization on the basis of which the Prosecutor seeks to bring the suspect to trial. In

⁴⁸ *Prosecutor v. Joseph Kony et al.*, ICC-02/04-01/05-424, Decision Severing the Case Against Dominic Ongwen, PTC II, 6 February 2015, para. 5.

⁴⁹ *Ibid.*, para. 7.

⁵⁰ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-T-46-ENG, Transcript of Hearing, PTC I, 11 July 2008, 24; *Prosecutor v. Abdallah Banda/Saleh Mohammed Jerbo*, ICC-02/05-03/09-103, Decision on issues related to the hearing on the confirmation of charges, PTC I, 17 November 2010.

⁵¹ *Prosecutor v. Joseph Kony et al.*, ICC-02/04-01/05-424, Decision Severing the Case Against Dominic Ongwen, PTC II, 6 February 2015.

⁵² The term ‘person’ is referred to, for example, in articles 57(3)(b), 58 or 61. The term ‘suspect’ is a term introduced by and used in the Court’s case-law. During the confirmation hearing in the *Lubanga* case, PTC I admonished the Registry for referring to *Lubanga* as ‘accused’ in a newsletter and ordered that an explanatory note be drafted so as to inform the public about the status of *Lubanga* as a suspect in the proceedings at the time, *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-T-32-ENG, Transcript of Hearing, PTC I, 10 November 2006, 36.

⁵³ Provisions of Part VI (‘The Trial’).

⁵⁴ For example, articles 78(1), 81(1)(b) or 84(1).

fact, prior to the submission of the copy of the document containing the charges (DCC) pursuant to article 61(3) the suspect is not yet officially ‘charged’. In explaining the relationship between the warrant of arrest and the DCC, PTC I in the *Mbarushimana* case stated:

‘There should be no requirement that the formulation of charges in the DCC strictly follow the factual and legal foundations of the warrant of arrest, especially in view of the fact that, in accordance with article 61(4) of the Statute and as the Appeals Chamber has held, the Prosecution can continue his investigations and amend or withdraw charges without the permission of the Pre-Trial Chamber prior to the confirmation hearing’ (footnote omitted).⁵⁵

Article 61(3) instructs the Prosecutor to provide the suspect, within a reasonable time 27 before the confirmation hearing, with two documents: (i) the DCC; and (ii) the list of evidence on which the Prosecutor intends to rely at the confirmation hearing.

Article 61(3) must be read in context with other provisions, in particular articles 67(2) and 28 101, rules 76, 77, and 121(2), (3), (5), (8) and (9) and regulation 52 of the Regulations. As a whole, they provide the legal framework under which the Prosecutor must perform his or her functions prior to the commencement of the confirmation hearing.

1. Document containing the charges

Sub-paragraph (3)(a) states that within a reasonable time before the hearing, the suspect 29 shall be provided with a ‘copy of the document containing the charges on which the Prosecutor intends to bring the person charged to trial’. This provision is further supplemented by rule 121(3) which provides that the ‘detailed description of the charges (together with a list of the evidence which the Prosecutor intends to present at the hearing) shall be submitted ‘no later than 30 days before the date of the confirmation hearing’.

The DCC has been described by the AC as ‘an assertion by the Prosecutor that he [or she] 30 intends to bring a person to trial for the specific crimes set out in the document’ (emphasis added).⁵⁶ The contents of the DCC are set out in the Regulations:

Regulation 52: Document containing the charges

The document containing the charges referred to in article 61 shall include:

- (a) The full name of the person and any other relevant identifying information;
- (b) A statement of the facts, including the time and place of the alleged crimes, which provides a sufficient legal and factual basis to bring the person or persons to trial, including relevant facts for the exercise of jurisdiction by the Court;
- (c) A legal characterisation of the facts to accord both with the crimes under articles 6, 7 or 8 and the precise form of participation under articles 25 and 28.

According to regulation 52(a) of the Regulations, the Prosecutor is to provide the full 31 **name of the suspect** (including aliases or different spelling of the suspect’s name) and other identifying information, such as date of birth, place of birth, marital status, nationality, or ethnicity.

Regulation 52(b) of the Regulations instructs the Prosecutor to provide a precise **statement 32 of the facts** in relation to two elements: (i) the crimes and (ii) the Court’s exercise of jurisdiction. The provision of jurisdiction-related facts will allow the PTC to ascertain its competence over the case, in particular with respect to the jurisdiction *ratione temporis* and

⁵⁵ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-465-Red, Decision on the confirmation of charges, PTC I, 16 December 2011, para. 88. See also *Prosecutor v. Jean-Pierre Bemba Gombo et al.*, ICC-01/05-01/13-567, Decision on ‘Narcisse Arido’s Request for an Order Rejecting the Prosecution’s Document Containing the Charges (ICC-01/05-01/13-526-AnxB1) and for an Order to the Prosecution to File an Amended and Corrected Document Containing the Charges’, PTC II, 15 July 2014, 4–5. As the summons to appear is an alternative to the warrant of arrest, the same would apply for the description of facts in the summons.

⁵⁶ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-568 (OA3), Judgment on the Prosecutor’s appeal against the decision of Pre-Trial Chamber I entitled ‘Decision Establishing General Principles Governing Applications to Restrict Disclosure pursuant to Rule 81 (2) and (4) of the Rules of Procedure and Evidence’, AC, 13 October 2006, para. 51.

ratione loci.⁵⁷ The provision of crime-related facts sets out the foundation of the accusation: the alleged crimes, including their time and place (what happened, when and where and by whom). The notion of ‘crime’ within the meaning of regulation 52(b) of the Regulations must be understood broadly, encompassing not only the constitutive elements of the crimes in articles 6, 7, 8 (and 8bis), *i.e.* the contextual elements and individual underlying acts, but also the form of participation as set out in articles 25 and 28. This interpretation is supported by the consideration that (i) the suspect is entitled to be informed promptly and in detail about the cause of the accusation (article 67(1)(a)) and to prepare his or her defence accordingly; and (ii) the crime and form of participation correlate to and shape each other.⁵⁸ In short, all facts that are necessary to fulfil the legal elements of the crimes and forms of participation, as proposed by the Prosecutor, must be set out in the DCC.⁵⁹ Those are the facts which the Prosecutor must prove against the requisite evidentiary threshold (here: article 61(7)). The inclusion in the DCC of background information or other information not directly supporting one of the legal elements of the crimes or forms of participation may be useful, in the sense that they ‘complete the picture’;⁶⁰ but they will regularly not constitute the ‘facts and circumstances’ of the case and, by implication, must not be proven against the requisite evidentiary threshold.⁶¹ Equally, any analysis of facts or evidence in the DCC is not part of the ‘facts and circumstances’ of the case.

- 33 The preparation of the statement of the facts in the DCC is the responsibility of the Prosecutor. In the **selection of the ‘facts’**, the Prosecutor is guided by the legal elements of the crimes and forms of participation. He or she will regularly select all those facts which are relevant and apt to prove these legal elements. The description must be as precise and detailed as possible; the mere allegation that a crime took place will not suffice. Lacking a precise description of the facts in the DCC, the suspect will not have been informed properly within the meaning of article 67(1)(a) and the PTC will not be in a position to exercise its functions under article 61(7). Hence, for example, if the Prosecutor purports that the crimes took place in the context of a ‘widespread or systematic attack’ conducted by a particular armed group, an account of all those compound or individual incidents conducted by that particular armed group must be set out in the DCC which will support the existence of a widespread or systematic attack within the meaning of article 7(1). If the Prosecutor alleges the suspect’s criminal responsibility of murder and attempted murder, then incidents of murder *and* attempted murder, where the act was not completed, must be set out in the DCC. In case the Prosecutor alleges that the suspect ordered the commission of crimes within the meaning of article 25(3)(b), such ‘order’ (the suspect said what, when, and where to whom?) must be described in the DCC.
- 34 Whereas the statement of the facts must be precise and with sufficient clarity, it may not be always possible, depending on the nature of the alleged proximity of the suspect to the events in question, to provide all the particulars. In quoting from the ICTY AC judgment in the *Blaškić* case, the ICC AC in its *Lubanga* judgment accepted different levels of specificity, depending on the proximity of the suspect to the events in question.

⁵⁷ It is to be noted, however, that the PTC will regularly have ascertained its jurisdiction already at the article 58 stage (and in case the Prosecutor activated his or her *proprio motu* powers, already at the article 15 stage).

⁵⁸ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-388, Decision Adjourning the Hearing pursuant to Article 61(7)(c)(ii) of the Rome Statute, PTC III, 3 March 2009, para. 26.

⁵⁹ In this regard, the specification of ‘material facts’ and ‘subsidiary facts’, as referred to in some PTC decisions and recently reiterated in the *Ongwen* case, is not helpful, as its precise content, when considered in light of regulation 52 of the Regulations, remains unclear. Moreover, such an additional qualification, not foreseen in the Court’s legal texts, is likely to provoke litigation between the parties with the potential to delay the start of the confirmation hearing. See *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-T-6-ENG ET, Transcript of Hearing, PTC II, 19 May 2015, 20–21. This interpretation was also rejected by the AC, see mn 130.

⁶⁰ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-803-tEN, Decision on the confirmation of charges, PTC I, 29 January 2007, para. 152.

⁶¹ See the explication of the AC, mn 40.

“The jurisprudence of the *ad hoc* tribunals establishes different levels of specificity required of the charges depending on the form of individual criminal responsibility charged. This is addressed in the *Blaskić* Appeal Judgment in the following terms:

[...]

When alleging that the accused personally carried out the acts underlying the crime in question, it is necessary for the Prosecution to set out the identity of the victim, the place and approximate date of the alleged criminal acts, and the means by which they were committed “with the greatest precision.” However, where it is alleged that the accused planned, instigated, ordered, or aided and abetted in the planning, preparation or execution of the alleged crimes, then the Prosecution is required to identify the “particular acts” or “the particular course of conduct” on the part of the accused which forms the basis for the charges in question. [Footnotes omitted.]

In light of the foregoing, the Appeals Chamber finds that, in order to be able to prepare an effective defence, where an accused is not alleged to have directly carried out the incriminated conduct and is charged for crimes committed on the basis of a common plan, the accused must be provided with detailed information regarding (i) his or her alleged conduct that gives rise to criminal responsibility, including the contours of the common plan and its implementation as well as the accused’s contribution; (ii) the related mental element; and (iii) the identities of any alleged co-perpetrators. With respect to the underlying criminal acts and the victims thereof, the Appeals Chamber considers that the Prosecutor must provide details as to the date and location of the underlying acts and identify the alleged victims to the greatest degree of specificity possible in the circumstances. In the view of the Appeals Chamber, the underlying criminal acts form an integral part of the charges against the accused, and sufficiently detailed information must be provided in order for the accused person to effectively defend him- or herself against them.⁶²

While the **degree of specificity** may vary, as seen above, in the circumstances of the case, this does not mean that the Prosecutor can frame the factual allegations openly by using text elements like ‘including but not limited to’ [as if] reserving the right to add factual allegations post-confirmation with a view to providing the missing elements of the case. In several cases, PTCs have rejected such an attempt on the part of the Prosecutor in their decisions under article 61(7) which is instructive in this respect for the preparation of the DCC. PTC I in the *Mbarushimana* case held:

“The Chamber is concerned by this attempt on the part of the Prosecution to keep the parameters of its case as broad and general as possible, without providing any reasons as to why other locations where the alleged crimes were perpetrated cannot be specifically pleaded and without providing any evidence to support the existence of broader charges, seemingly in order to allow it to incorporate new evidence relating to other factual allegations at a later date without following the procedure established under article 61(9) of the Statute. The Prosecution must know the scope of its case, as well as the material facts underlying the charges that it seeks to prove, and must be in possession of the evidence necessary to prove those charges to the requisite level in advance of the confirmation hearing. The DCC must contain a statement of the material facts underlying the charges, to include the dates and locations of the alleged incidents to the greatest degree of specificity possible in the circumstances.

For these reasons, the Chamber finds that the words “include but are not limited to” are meaningless in the circumstances of this case. Accordingly, the Chamber will assess the charges only in relation to the locations specified under each count contained in the DCC.⁶³

On the other hand, the reference to ‘Busurungi and surrounding villages’⁶⁴ has been accepted as sufficiently precise given ‘the relatively narrow geographic area involved’.⁶⁵ In the

⁶² *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3121-Red, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, AC, 1 December 2014, paras 122–123.

⁶³ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-465-Red, Decision on the confirmation of charges, PTC I, 16 December 2011, paras 82–83. This was further confirmed by PTC II in both Kenya cases, see *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, paras 99, 101 and 103; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, para. 106.

⁶⁴ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-465-Red, Decision on the confirmation of charges, PTC I, 16 December 2011, para. 84.

⁶⁵ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-465-Red, Decision on the confirmation of charges, PTC I, 16 December 2011, para. 84.

same vein, temporal references of ‘on or about’ a particular date have also been accepted as sufficiently precise.⁶⁶

- 37 As a result, the ‘facts’ as described in the DCC constitute the **factual scope of the case**. These are the factual allegations which the Prosecutor asks the PTC to confirm; these are the factual allegations against which the suspect will defend him- or herself in the confirmation hearing, and, in case and to the extent the charges are confirmed, at trial. By the same token, the Chamber’s task under article 61(7) is to assess only the facts set out in the DCC against the applicable law and on the basis of the evidence presented. The PTC is **not entitled** to go beyond the factual scope of the case set out in the DCC and add new facts it identified in the evidence with a view to supplementing an, in its view, otherwise incomplete narration of the events or closing the gap of an otherwise deficient DCC. The confirmation process is a review process and not a clarification process. Indeed, the PTC is not an investigative chamber, establishing the case for the Prosecutor. As PTC II pointed out in the *Katanga/Ngudjolo* case: ‘[It] is incumbent upon the Prosecutor to present, during the pre-trial phase, *all* of the facts and circumstances relating to his case’ (see mn 33).⁶⁷
- 38 A carefully drafted and comprehensive statement of facts in the DCC is of crucial importance to the success of the confirmation proceedings. It is incumbent upon the Prosecutor to specify those factual allegations that he or she wishes the PTC to confirm. Imprecisions in the DCC occasionally have translated into imprecision in the PTC decisions confirming the charges under article 61(7)(a); this notwithstanding the fact that the Judges, as judicial guarantors of the proceedings, can address any possible deficiencies in the DCC by either requesting the submission of a new DCC or rejecting the charges which are factually unsupported or imprecise.⁶⁸ In this context, it is worth noting that past attempts on the part of the defence to move the PTC to reject the DCC (or request the submission of an amended DCC) for an apparent lack of precision have regularly been rejected by the PTCs.⁶⁹ Addressing the concerns of the defence, the PTCs advised to read the DCC together with the Prosecutor’s list of evidence.⁷⁰ The same approach was followed in cases where the DCC failed to comply with formatting requirements.⁷¹
- 39 The DCC as such does not limit, however, the Prosecutor’s flexibility to withdraw or amend the charges, possibly in light of new evidence, as the existence of articles 61(4) and (9)

⁶⁶ For example, *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-424, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, PTC II, 15 June 2009, paras 67–68.

⁶⁷ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-1547-tENG, Decision on the Filing of a Summary of the Charges by the Prosecutor, PTC II, 21 October 2009, para. 23.

⁶⁸ Merely expressing ‘regret’ that the Prosecutor did not ‘plead with greater specificity the context in which the crimes (...) occurred’ is not sufficient, see *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-803-tEN, Decision on the confirmation of charges, PTC I, 29 January 2007, para. 153. A positive development in this regard is the proactive approach of PTC I in the *Laurent Gbagbo* case to provide some directions to the Prosecutor as to the structure of the DCC, *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-325, Decision on the date of the confirmation of charges hearing and proceedings leading thereto, PTC I, 14 December 2012.

⁶⁹ See, for example, *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-648, Decision on the Three Defence’s Requests Regarding the Prosecution’s Amended Charging Document, PTC I, 25 June 2008, paras 23 *et seq*; *Prosecutor v. Jean-Pierre Bemba Gombo et al.*, ICC-01/05-01/13-567, Decision on ‘Narcisse Arido’s Request for an Order Rejecting the Prosecution’s Document Containing the Charges (ICC-01/05-01/13-526-AnxB1) and for an Order to the Prosecution to file an Amended and Corrected Document Containing the Charges’, PTC II, 15 July 2014; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-315, Decision on the ‘Preliminary Motion Alleging Defects in the Documents Containing the Charges (DCC) and List of Evidence (LoE) and Request that the OTP be ordered to re-file an Amended DCC & LoE’ and the ‘Defence Request for a Status Conference Concerning the Prosecution’s Disclosure of 19th August 2011 and the Document Containing the Charges and Article 101 of the Rome Statute’, PTC II, 12 September 2011.

⁷⁰ See, for example, *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-803-tEN, Decision on the confirmation of charges, PTC I, 29 January 2007, para. 150; *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-648, Decision on the Three Defence’s Requests Regarding the Prosecution’s Amended Charging Document, PTC I, 25 June 2008, para. 21.

⁷¹ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-306, Decision on the ‘Defence request to exclude the Prosecution’s amended document containing the charges and amended list of evidence’, PTC I, 22 July 2011.

demonstrates. However, changes (also) to the factual basis of the case will require gradually increasing judicial intervention as proceedings progress so as to ensure the overall fairness and expeditiousness of the proceedings.

The ‘statement of the facts’ must be distinguished from the ‘evidence’ (article 69) which the Prosecutor adduces to *prove the facts* against the applicable law. The evidence is the means to prove the existence or non-existence of a particular fact. Likewise, the ‘statement of the facts’ [shall not] be conflated with the legal characterization of the (proven) facts. These notions, while triangularly interrelated, must be differentiated at all times. As the AC explained, albeit in a footnote:

‘In the view of the Appeals Chamber, the term ‘facts’ refers to the factual allegations which support each of the legal elements of the crime charged. These factual allegations must be distinguished from the evidence put forward by the Prosecutor at the confirmation hearing to support a charge (article 61(5) of the Statute), as well as from background or other information that, although contained in the document containing the charges or the confirmation decision, does not support the legal elements of the crime charged. The Appeals Chamber emphasises that in the confirmation process, the facts, as defined above, must be identified with sufficient clarity and detail, meeting the standard in article 67(1)(a) of the Statute.’⁷²

The ‘statement of the facts’ in the DCC must be presented together with a **legal characterization** of the facts, pursuant to regulation 52(c) of the Regulations. As stated above, the DCC must not follow the legal characterization of facts as contained in the (request for the issuance of a) warrant of arrest or summons to appear (see mn 26).⁷³ The Prosecutor is free to re-consider the legal characterization of facts anew in light of additional facts surfaced during the ongoing investigation and evidence collected. Considering that the construction of many statutory provisions is not yet fully settled in the Court’s case-law, the legal characterization of facts may be viewed as a proposal by the Prosecutor with which the PTC (and later the TC) may agree or disagree. The legal characterization set out in the DCC is thus preliminary in nature and may change, pursuant to article 61(7)(c)(ii) (or regulation 55 of the Regulations of the Court at trial). What cannot change, however, in the course of the confirmation hearing, is the ‘statement of the facts’ as set out in the DCC.⁷⁴

Finally, the facts *and* their legal characterization together form the ‘**charge**’.⁷⁵ What the PTC assesses during the confirmation hearing are the facts and circumstances together with

⁷² *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2205 (OA15 & OA16), Judgment on the appeals of Mr Lubanga Dyilo and the Prosecutor against the Decision of Trial Chamber I of 14 July 2009 entitled ‘Decision giving notice to the parties and participants that the legal characterisation of the facts may be subject to change in accordance with Regulation 55(2) of the Regulations of the Court’, AC, 8 December 2009, footnote 163.

⁷³ In the *Lubanga* case, for example, the Prosecutor had requested and obtained a warrant of arrest for the crimes related to child soldiers committed in both international and non-international armed conflict. But subsequently, in the DCC the Prosecutor maintained that the crimes occurred in the context of a non-international armed conflict, *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-8-Corr, Decision on the Prosecutor’s Application for a Warrant of Arrest, PTC I, 10 February 2006, para. 85; *ibid.*, ICC-01/04-01/06-356-Anx2, Document Containing the Charges, Article 61(3)(a), Office of the Prosecutor, 28 August 2006, para. 7.

⁷⁴ The distinction between ‘facts’ and their ‘legal characterization’ has implications also for the use of regulation 55 of the Regulations of the Court, see *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2205, Judgment on the appeals of Mr Lubanga Dyilo and the Prosecutor against the Decision of Trial Chamber I of 14 July 2009 entitled ‘Decision giving notice to the parties and participants that the legal characterization of the facts may be subject to change in accordance with Regulations 55(2) of the Regulations of the Court’, AC, 8 December 2009, para. 97.

⁷⁵ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, para. 44; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, para. 56; *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-325, Decision on the date of the confirmation of charges hearing and proceedings leading thereto, PTC I, 14 December 2012, para. 25; see also *Prosecutor v. Germain Katanga/Mathieu Ngudjolo Chui*, ICC-01/04-01/07-1547-ENG, Decision on the Filing of a Summary of the Charges by the Prosecutor, PTC II, 21 October 2009, para. 19.

their legal characterisation proposed by the Prosecutor. The PTC's assessment and confirmation or rejection of the charges affects both elements.⁷⁶

- 43 The specificity of the DCC will also depend on the comprehensiveness and depth of the investigation. On several occasions it has been commented that the investigation be concluded at the stage of the confirmation hearing.⁷⁷ This approach will greatly assist in presenting a precise and comprehensive statement of facts in the DCC. This does not entail, however, that the Prosecutor is barred from continuing the investigation post-confirmation in certain circumstances as the ability to amend the charges after the confirmation stage pursuant to article 61(9). However, these investigative activities cannot be the rule but must remain of limited and exceptional nature, considering that, in case the charges are confirmed, the trial is supposed to commence soon thereafter. In other words, the (re-launching) of the investigation after the confirmation of charges may be a delaying factor with detrimental effects on the overall fair and expeditious conduct of the proceedings and the rights of the accused.⁷⁸ Thus adopting a rule stipulating that the investigation should be completed at the stage of the confirmation hearing would assist in expediting and streamlining the proceedings.
- 44 The DCC is notified to the suspect by way of personal service, pursuant to regulation 31(3)(c) and (4) of the Regulations of the Court.

2. Information of the evidence and disclosure procedure

- 45 In order to afford to the person charged a sufficient opportunity to prepare for the hearing, in addition to the notice of the charges in the DCC, he or she shall be 'informed of the evidence on which the Prosecutor intends to rely at the hearing'. This information is contained in a list of evidence which, together with the DCC, must be provided 'within a reasonable time' before the confirmation hearing (article 61(3)). At the Rome Conference, the Working Group considered that the concept of 'reasonable time' should be addressed in the Rules.⁷⁹ For the Prosecutor, such time-limits are provided in rules 121(3), (4) and (5). Accordingly, pursuant to article 61(3)(b) and rule 121(3) the Prosecutor must provide the suspect the DCC and the list of evidence no later than **30 days** prior to the commencement of the confirmation hearing.
- 46 The list of evidence is preceded by the evidence disclosure process between the parties which is a crucial aspect in the preparations for the confirmation hearing. Disclosure of evidence is an *inter partes* process between the Prosecutor and the suspect for whom a warrant of arrest or summons to appear has been issued (rule 121(2)). It is facilitated and implemented through the channel of the Registry. The evidence is then **communicated to the Chamber** (rule 121(2)(c), see mn 71 *et seq.*)⁸⁰ The disclosing party must indicate the level of

⁷⁶ See mn 128.

⁷⁷ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-568, Judgment on the Prosecutor's appeal against the decision of Pre-Trial Chamber I entitled 'Decision Establishing General Principles Governing Applications to Restrict Disclosure pursuant to Rule 81(2) and (4) of the Rule of Procedure and Evidence', AC, 13 October 2006, para. 54; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-514, Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 16 December 2011 entitled 'Decision on the confirmation of charges', AC, 30 May 2012 (OA4), para. 44; *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Dissenting Opinion by Judge Hans-Peter Kaul, PTC II, 23 January 2012, paras 44–52; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-382-Red, Dissenting Opinion by Judge Hans-Peter Kaul, PTC II, 23 January 2012, paras 49–57. Also arguing against 'two different investigation stages', *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-166, Decision on the Prosecution Motion for Reconsideration and, in the Alternative, Leave to Appeal, PTC I, 23 June 2006, paras 38–39; *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-432, Decision adjourning the hearing on the confirmation of charges pursuant to article 61(7)(c)(i) of the Rome Statute, PTC I, 3 June 2013, paras 25 and 35.

⁷⁸ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-700-Corr, Corrigendum to 'Decision on the 'Prosecution's Request to Amend the Final Updated Document Containing the Charges Pursuant to Article 61(9) of the Statute', PTCII, 21 March 2013, paras 33–37.

⁷⁹ Report of the Working Group on Procedural Matters, UN Doc. A/CONF.183/C.1/WGPM/L2.

⁸⁰ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, paras 34 and 42; *Prosecutor v.*

confidentiality for each item. Unless otherwise indicated by the disclosing party or ordered by the PTC for reasons of protection, the evidence is public. It is stored in an electronic system, separate from the documents filed by participants and decisions of the Court, and can be accessed by the parties and the PTC at any time. Metadata to each item of evidence provide important information as to, for example, chain of custody or the date of collection. When disclosing, the parties follow the technical guidelines contained in the ‘e-Court protocol’.⁸¹ The evidence, together with the documents, decisions and transcripts of the hearings, constitute the particulars of the case as contained in the case record (rule 15).

As dictated by article 54(1)(a), the Prosecutor shall investigate incriminating and exonerating circumstances equally in order to establish the truth. The evidence collected, may therefore be incriminating or exculpatory or mixed in nature. The nature of the evidence has an impact on the **disclosure obligations** of the Prosecutor.

- Pursuant to rule 76(1), the Prosecutor shall provide the suspect with the statements of those witnesses on whom he or she intends to rely at the hearing together with a copy of any prior statement made by the witness. The statement of the prosecution witness shall be made available in the original and in a language which the suspect fully understands and speaks (rule 76(3)). This latter requirement conforms with the suspect’s right under article 67(1)(f).⁸²
- Pursuant to rule 77, the Prosecutor ‘shall permit the defence to inspect any books, documents, photographs and other tangible objects in the possession or the control of the Prosecutor, which are material to the preparation of the defence’⁸³ or are intended for use by the Prosecutor as evidence for the purposes of the confirmation hearing or at trial, as the case may be, or were obtained from or belonged to the person’.
- Pursuant to article 67(2), the Prosecutor ‘shall, as soon as practicable, disclose to the defence evidence in the Prosecutor’s possession or control which he or she believes shows or tends to show the innocence of the accused, or to mitigate the guilt of the accused, or which may affect the credibility of prosecution evidence’.

While the Statute and Rules suggest a clear-cut classification of the evidence as ‘incriminating’ or ‘exculpatory’, practice reveals that such a classification, at the time of disclosure, can only be tentative and is subject to the intended use of a particular piece of evidence by either party.

The Rules differentiate between two different modalities according to which disclosure can be effectuated, depending on the nature of the evidence: disclosure *stricto sensu* whereby the disclosing party provides directly to the opposing party the evidence (rules 76, 79); and inspection which imposes on the relevant party the obligation to allow the opposing party to inspect relevant material (rules 77 and 78).⁸⁴ Both forms of disclosure are encompassed in the

William Samoei Ruto et al., ICC-01/09-01/11-44, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 6 April 2011, para. 5; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-48, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 6 April 2011, para. 6; *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-47, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 12 April 2013, para. 9; *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-30, Decision establishing a disclosure system and a calendar for disclosure, PTC III, 24 January 2012, paras 14 and 61; *Prosecutor v. Charles Blé Goudé*, ICC-02/11-02/11-57, Decision establishing a system for disclosure of evidence, PTC I, 14 April 2014, para. 4; *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-203, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 27 February 2015, para. 10.

⁸¹ See for the latest use of the ‘e-Court protocol’, *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-203, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 27 February 2015, annex 2. A Court-wide working group developed the unified e-Court protocol currently in use.

⁸² As to the standard of ‘fully understands and speaks’, see *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-522 (OA3), Judgment on the appeal of Mr. Germain Katanga against the decision of PTC I entitled ‘Decision on the Defence Request Concerning Languages’, AC, 27 May 2008.

⁸³ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1433 (OA11), Judgment on the appeal of Mr. Lubanga against the Oral Decision of Trial Chamber I of 18 January 2008, AC, 11 July 2008, para. 77.

⁸⁴ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-102, Decision on the Final System of Disclosure and the Establishment of a Timetable, PTC I, 15 May 2006, 4; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/

notion ‘disclosure’ within the meaning of article 61(3) which does not follow the terminological differentiation of the Rules.⁸⁵

- 49 When the **disclosure process begins** at the earliest is not defined in the Statute or the Rules. Rule 121(2) has been interpreted to imply that the disclosure process begins after the initial appearance of the suspect.⁸⁶ There have been, however, instances where the PTC determined that disclosure of certain specified material to the defence, prior to the surrender of the suspect to the Court, was appropriate to safeguard his or her rights. Those instances were determined on a case-by-case basis, taking into account the circumstances of the case. In the *Gaddafi/Al-Senussi* case, where *Gaddafi* had not yet been surrendered to the Court, PTC I ordered the Prosecutor to disclose certain material to the defence of *Gaddafi*, subject to restrictions of disclosure warranted under rule 81. The material was deemed to fall potentially under article 67(2) or rule 77 and therefore considered to be essential for the exercise of *Gaddafi*’s procedural rights in the context of the proceedings before the Court.⁸⁷ The proposition that the material requested to be disclosed must relate to a particular ‘live issue’ pending before the Court was rejected.⁸⁸ Likewise, PTC I also confirmed that the exercise of the suspect’s rights under the Statute ‘cannot be made contingent upon’ the State’s failure to cooperate with the Court.⁸⁹ In the *Mbarushimana* case, the defence had requested ‘pre-surrender disclosure’ of certain material with a view to, *inter alia*, challenging the admissibility of evidence and the admissibility of the case. Two days after *Mbarushimana* was surrendered to the Court, the request was partly granted by PTC I and the Prosecutor was ordered to disclose material subject to restrictions of disclosure under rule 81 and article 72(1).⁹⁰
- 50 Moreover, the lodging of an admissibility challenge does not **suspend** the disclosure obligations of the parties. As PTC II held in the two *Kenya* cases, the admissibility challenge of the Republic of Kenya suspended the Prosecutor’s investigation related to the case (article 19(7)) but did not prevent the Prosecutor from discharging his disclosure obligations towards the defence.⁹¹
- 51 Disclosure of incriminating evidence upon which the Prosecutor intends to rely in the confirmation hearing is subject to the time-limit set in rule 121(3); it must be disclosed no later than 30 days prior to the date of the confirmation hearing.⁹² Evidence may still be disclosed after that time-limit but cannot be considered for the purpose of the article 61(7) decision

08–55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, para. 45.

⁸⁵ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08–55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, para. 46.

⁸⁶ *Prosecutor v. Saif Al-Islam Gaddafi/Abdullah Al-Senussi*, ICC-01/11-01/11–440, Decision on the ‘Request for an order for the commencement of the pre-confirmation phase’ by the Defence of Saif Al-Islam Gaddafi, PTC I, 10 September 2013, para. 27.

⁸⁷ *Prosecutor v. Saif Al-Islam Gaddafi/Abdullah Al-Senussi*, ICC-01/11-01/11–392–Red-Corr, Corrigendum to Decision on the ‘Defence request for an order of disclosure’, PTC I, 1 August 2013, paras 33–35 and 38.

⁸⁸ *Prosecutor v. Saif Al-Islam Gaddafi/Abdullah Al-Senussi*, ICC-01/11-01/11–392–Red-Corr, Corrigendum to Decision on the ‘Defence request for an order of disclosure’, PTC I, 1 August 2013, para. 36; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10–47, Decision on the Defence Request For Disclosure, PTC I, 27 January 2011, para. 14.

⁸⁹ *Prosecutor v. Saif Al-Islam Gaddafi/Abdullah Al-Senussi*, ICC-01/11-01/11–392–Red-Corr, Corrigendum to Decision on the ‘Defence request for an order of disclosure’, PTC I, 1 August 2013, para. 32.

⁹⁰ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10–47, Decision on the Defence Request For Disclosure, PTC I, 27 January 2011.

⁹¹ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11–62, Decision on the ‘Prosecution’s application requesting disclosure after a final resolution of the Government of Kenya’s admissibility challenge’ and Establishing a Calendar for Disclosure Between the Parties, PTC II, 20 April 2011, paras 8–10; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11–64, Decision on the ‘Prosecution’s application requesting disclosure after a final resolution of the Government of Kenya’s admissibility challenge’ and Establishing a Calendar for Disclosure Between the Parties, PTC II, 20 April 2011, paras 8–10.

⁹² Unless rules 121(4) and 121(5) apply.

(rule 121(8)).⁹³ The Statute or the Rules do not establish a particular deadline for the disclosure of **potentially exculpatory evidence**; rather such evidence must be disclosed ‘as soon as practicable’ pursuant to article 67(2). PTC II construed this to be at the ‘earliest opportunity after the evidence comes into the Prosecutor’s possession. Therefore, the Prosecutor shall disclose such evidence immediately after having identified any such evidence, unless some justifiable reasons prevent [the Prosecutor] from doing so’.⁹⁴ In other words, exculpatory evidence must be disclosed on a continuing basis and sufficiently in advance so that the suspect can effectively make use of such evidence in his or her preparation for the confirmation hearing.⁹⁵ Apparently, the Statute provides flexibility to the Prosecutor to withhold exculpatory evidence (at least for a certain while), as there is no mandatory deadline for disclosure of such evidence. However, article 67(2) must be understood, in fact, as establishing an exacting standard instructing the Prosecutor to disclose the evidence ‘as soon as practicable’, namely in a reasonable time before the expiry of the deadline concerning incriminating evidence. Withholding exculpatory evidence constitutes a breach of the Prosecutor’s statutory obligations and may lead to serious disruption of the proceedings.⁹⁶ Chambers, as the judicial guarantors of the fairness of the proceedings, must remain vigilant on this point and ensure that exculpatory evidence is disclosed in a timely manner. The unanimous position of PTCs in recent years has been to interpret these deadlines as indicative of the *minimum* time limits the parties can avail themselves to comply with their disclosure obligations. Accordingly, they consistently urged the Prosecutor (and the defence) to disclose evidence much in advance of the confirmation hearing and ‘not only on the date when the deadline indicated by the statutory documents expires’.⁹⁷ As mentioned above, the nature of a piece of evidence can be mixed, raising the question as to which deadline would apply. Where the nature of a particular item is mixed, considerations of fairness suggest that it is disclosed following the more stringent deadline imposed by the Court’s legal texts.

⁹³ As in the *Ntaganda* case where the Prosecutor disclosed evidence after the confirmation of charges decision was delivered, see *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-334-Red2, Redacted Decision on the Prosecutor’s Eleventh and Twelfth Applications for Redactions, PTC II, 17 July 2014.

⁹⁴ *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-203, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 27 February 2015, para. 18. See also *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-62, Decision on the ‘Prosecution’s application requesting disclosure after a final resolution of the Government of Kenya’s admissibility challenge’ and Establishing a Calendar for Disclosure Between the Parties’, PTC II, 20 April 2011, para. 21; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-64, Decision on the ‘Prosecution’s application requesting disclosure after a final resolution of the Government of Kenya’s admissibility challenge’ and Establishing a Calendar for Disclosure Between the Parties, PTC II, 20 April 2011, para. 21; *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-47, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 12 April 2013, para. 17; ICC-01/04-02/06-64, Decision Establishing a Calendar for the Disclosure of Evidence Between the Parties, PTC II, 17 May 2013, para. 28.

⁹⁵ PTC I in the *Lubanga* case had ordered the parties ‘to make every effort to agree on the frequency of the exchanges’ of exculpatory evidence and set a deadline in advance of the confirmation hearing to disclose such material, *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-102, Decision on the Final System of Disclosure and the Establishment of a Timetable, PTC I, 15 May 2006, 8–9, paras 4–6.

⁹⁶ For a discussion on the belated timing of disclosure of exculpatory evidence on the part of the Prosecutor see *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-233-Red2, Redacted Sixth Decision on the Prosecutor’s Requests for Redactions, PTC II, 3 July 2014, para. 23 and footnote 37 (original decision registered on 28 January 2014). In this case, to remedy the belated nature of disclosure, the defence was permitted to submit an amended list of its evidence for the confirmation hearing, past the time-limit established in rule 121(6). See also in the same case ICC-01/04-02/06-303-Red2, Redacted Decision on the ‘Prosecution’s Ninth Application for Redactions’, PTC II, 3 July 2014 (original decision registered on 14 May 2014).

⁹⁷ *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-203, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 27 February 2015, para. 17; *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-44, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 6 April 2011, para. 10; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-48, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 6 April 2011, para. 11; *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-64, Decision Establishing a Calendar for the Disclosure of Evidence Between the Parties, PTC II, 17 May 2013, para. 14; *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-30, Decision establishing a disclosure system and a calendar for disclosure, PTC III, 24 January 2012, paras 37–38; *Prosecutor v. Charles Blé Goudé*, ICC-02/11-02/11-57, Decision establishing a system for disclosure of evidence, PCT I, 14 April 2014, para. 8.

- 52 In the *Kenya* cases, the Prosecutor challenged the Chamber's ruling to **disclose all article 67(2) or rule 77 evidence** in his possession prior to the confirmation hearing. He complained that such a requirement is overly 'onerous' and 'time- and resource-consuming' which would 'unfairly hamper' the Prosecutor's ability to prepare for the confirmation hearing; it also departs from the 'bulk rule' established in the *Lubanga* and *Katanga/Ngudjolo* cases. PTC II rejected such claims and held that a 'bulk rule' in respect of exculpatory evidence does not exist under the Court's statutory documents and, assuming such rule existed, has not been applied consistently in the case-law of the Court (article 21(2)).⁹⁸ Moreover, it refused to accept the 'onerous'/'time- and resource-consuming' argument as it related to the internal organization of the Office of the Prosecutor. The Chamber highlighted that the Prosecutor would have, in the course of the investigation, progressively analysed and reviewed material collected in order to be fully prepared to fulfil his duties under article 67(2) and rule 77.⁹⁹
- 53 The Defence receives the evidence of the case as disclosed by the Prosecutor or made available at inspection. The Defence has **no general right to access** the 'investigation file of the situation' as such.¹⁰⁰ It may, however, request the Prosecutor to disclose certain material of which it believes is in the possession of the Prosecutor. It may also **request** the Prosecutor to gather certain evidence in the course of the investigation, as it is incumbent upon the Prosecutor to investigate both incriminating and exonerating circumstances equally (article 54(1)(a)). The defence may also prompt the PTC to intervene under articles 56(3), 57(3)(b) and 67(2).¹⁰¹ Importantly, no obligation to investigate is put on the Defence by the Statute. Finally, reports, memoranda or other internal documents prepared by the Prosecutor, his or her assistants or representatives in connection with the investigation or preparation of the case are not subject to disclosure (rule 81(1)).
- 54 The pieces of evidence must be disclosed in one of the **working languages** of the Court, namely English or French (article 50(2)), unless otherwise provided in the Statute, the Rules, the Regulations, or authorised by the PTC. In case the document or material submitted is not in one of the Court's working languages, the disclosing party must provide a translation thereof, as stipulated in regulation 39(1) of the Regulations, and within the time limits of disclosure.¹⁰² In case of video material in a language other than the working languages of the Court, the translation requirement was held to be less stringent by accepting the material as visual aid for the purposes of the confirmation hearing.¹⁰³

⁹⁸ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-74, Decision on the 'Prosecution's Application for leave to Appeal the 'Decision Setting the Regime for Evidence Disclosure and Other Related Matters' (ICC-01/09-01/11-44)', PTC II, 2 May 2011, paras 25–26; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-77, Decision on the 'Prosecution's Application for leave to Appeal the 'Decision Setting the Regime for Evidence Disclosure and Other Related Matters' (ICC-01/09-02/11-48)', PTC II, 2 May 2011, paras 23–24.

⁹⁹ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-74, Decision on the 'Prosecution's Application for leave to Appeal the 'Decision Setting the Regime for Evidence Disclosure and Other Related Matters' (ICC-01/09-01/11-44)', PTC II, 2 May 2011, para. 27; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-77, Decision on the 'Prosecution's Application for leave to Appeal the 'Decision Setting the Regime for Evidence Disclosure and Other Related Matters' (ICC-01/09-02/11-48)', PTC II, 2 May 2011, para. 25.

¹⁰⁰ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-102, Decision on the Final System of Disclosure and the Establishment of a Timetable, PTC I, 15 May 2006, 16–20, paras 7–15; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-75, Decision on the Prosecutor's application for leave to appeal Pre-Trial Chamber III's decision on disclosure, PTC III, 25 August 2008, para. 51.

¹⁰¹ Article 67(2) obliges the Prosecutor to disclose exculpatory evidence by virtue of this provision. The PTC will regularly not issue an order to this effect, unless the Prosecutor fails to comply with his or her obligation under article 67(2), or the Chamber must decide in case of doubt as to the application of said provision. *Prosecutor v. William Samoei Ruto, et al.*, ICC-01/09-01/11-196, Decision on the 'Defence Request for Disclosure of article 67(2) and rule 77 Materials', PTC II, 14 July 2011, para. 9.

¹⁰² For a nuanced approach in case the evidence emanates from the suspect him- or herself, see *Prosecutor v. Jean-Pierre Bemba Gombo et al.*, ICC-01/05-01/13-177, Decision on the 'Defence request for an order requiring the translation of evidence', PTC II, 11 February 2014.

¹⁰³ *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-348, Decision on the 'Prosecution's Request to Exclude Certain Documents Submitted by the Defence', PTC II, 22 September 2011, para. 20.

Pursuant to rule 76(3), the statements of prosecution witnesses shall be made available in original and in the language the suspects fully speaks and understands.¹⁰⁴ **Translating witness statements** into the language which the suspect ‘fully understands and speaks’ has, at times, put the Court before significant logistical challenges, such as in the *Banda/Jerbo* case, where translations had to be effectuated into Zaghawa, a non-written dialect spoken in Darfur, Sudan. Mindful of the time needed to translate the evidence into a language other than the working languages of the Court, which may in turn seriously jeopardize the expeditiousness of the proceedings, PTC II developed the policy that only those portions of the evidence be translated for the suspect which are core to the preparation of the confirmation hearing. To this end, the defence will review the witness statements disclosed and thereafter request the translation of the evidence concerned within a specific time-limit (e.g. two weeks). If such request for translation is not made, PTC II considered this to be a ‘waiver of the suspect’s right to translation of the relevant evidence’.¹⁰⁵

The disclosing party is responsible for ensuring that the evidence disclosed is **complete**. In case the piece of evidence is incomplete, it may be re-disclosed within the time limits of disclosure. After the disclosure time limits, missing parts may not be added, unless the PTC grants an extension of time (see mn 51).¹⁰⁶ Evidence which remains incomplete is, however, not considered automatically as inadmissible, as this would be disproportionate and unfair. Rather, the disclosing part will be able to rely on the evidence as disclosed.¹⁰⁷

The role of the PTC during the disclosure process is that of ensuring that disclosure takes place under satisfactory conditions (rule 121(2)(b), first sentence) with full respect to the rights of the defence to meaningfully prepare for the confirmation hearing. To this end, the PTC may render any necessary decision and hold status conferences concerning disclosure of evidence for the purposes of the hearing. Rule 121(2) states:

‘In accordance with article 61, paragraph 3, the Pre-Trial Chamber shall take the necessary decisions regarding disclosure between the Prosecutor and the person in respect of whom a warrant of arrest or a summons to appear has been issued. During disclosure:

- (a) The person concerned may be assisted or represented by the counsel of his or her choice or by a counsel assigned to him or her;
- (b) The Pre-Trial Chamber shall hold status conferences to ensure that disclosure takes place under satisfactory conditions. For each case, a judge of the Pre-Trial Chamber shall be appointed to organize such status conferences, on his or her own motion, or at the request of the Prosecutor or the person;
- (c) All evidence disclosed between the Prosecutor and the person for the purposes of the confirmation hearing shall be communicated to the Pre-Trial Chamber.’

Although the Statute does not premise the initiation of the disclosure process on a decision of the PTC, it has been the practice that the PTC, acting under article 61(3) and rule 121(2),

¹⁰⁴ See footnote 82.

¹⁰⁵ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-64, Decision Establishing a calendar for the Disclosure of Evidence between the Parties, PTC II, 17 May 2013, paras 21–22; and ICC-01/04-02/06-115, Decision on the ‘Demande de la Défense aux fins de traduction en Kinyarwanda de certains des principaux éléments de preuve’, PTC II, 24 September 2013, para. 12. *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-203, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 27 February 2015, para. 35. Conversely, there is no absolute right to have all documents and decisions contained in the case record translated, see recently, *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-203, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 27 February 2015, paras. 31–33. PTC II also once rejected the request of the then suspect *Sang* to be provided with interpretation and translation into Kalenjin, as it was convinced ‘beyond doubt’ that *Sang* fully understood and spoke English, one of the working languages of the Court, see *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-42, Decision on Joshua Arap Sang’s Request for Translation and Interpretation into Kalenjin, PCT II, 6 April 2011.

¹⁰⁶ *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-330, Decision on the Defence Requests for Leave to Resubmit or Add Evidence and Related Requests, PTC II, 15 September 2011, paras 18, 28 and 34.

¹⁰⁷ *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-348, Decision on the ‘Prosecution’s Request to Exclude Certain Documents Submitted by the Defence’, PTC II, 22 September 2011, para. 26. In this case, the defence had disclosed documents in relation to one of which a page and in relation to another an annex were missing.

renders at the beginning of the confirmation proceedings a **framework decision** organizing disclosure and establishing a calendar with **staggered deadlines** for the disclosure of, in particular, incriminating evidence upon which the Prosecutor intends to rely at the hearing.¹⁰⁸ This became necessary to ensure that the defence has adequate time to prepare for the confirmation hearing and to avoid postponement requests by the defence on the grounds that the Prosecutor disclosed all incriminating evidence just 30 days in advance of the confirmation hearing. The staggered deadlines are determined following certain criteria, such as when the evidence was collected,¹⁰⁹ and whether the Chamber must decide on protective measures prior to disclosure (*i.e.* redactions of information) pursuant to rules 81(2) and (4) (see *mn* 62).

- 59 Full disclosure is the overriding principle; however, the right of disclosure is not absolute and **withholding information** during disclosure from the defence may be necessary, on an exceptional basis, so as to protect other competing interests.¹¹⁰ The Rules distinguish between two regimes: protective measures under **rule 81(2)** and **rule 81(4)**. Under rule 81(2), the Prosecutor may request to withhold certain material or information which must be disclosed in accordance with the Statute when ‘disclosure may prejudice further or ongoing investigation’.¹¹¹ Importantly, the PTC intervenes on this basis only upon the Prosecutor’s request;

¹⁰⁸ The Prosecutor is under a continuing obligation to disclose evidence of exculpatory nature (article 67(2)). ‘[Article 61(3) and rule 121(2)(b)] give the Pre-Trial Chamber important functions with respect to the regulation of the disclosure process prior to the confirmation hearing, which might involve, within the confines of the applicable law, the issuing of procedural directions to facilitate the disclosure process’, *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-568 (OA3), Judgment on the Prosecutor’s appeal against the decision of Pre-Trial Chamber I entitled ‘Decision Establishing General Principles Governing Applications to Restrict Disclosure pursuant to rule 81 (2) and (4) of the Rules of Procedure and Evidence’, AC, 13 October 2006, para. 39.

¹⁰⁹ In the *Kenya* cases, the deadlines were set depending on when the evidence was collected by the Prosecutor: (i) any evidence collected until the application under article 58 was submitted; (ii) any evidence collected until the Government of the Republic of Kenya challenged the admissibility of the cases and the Prosecutor’s investigation was suspended as a result thereof; and (iii) any evidence collected after the filing of the admissibility challenge. See also *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-62, Decision on the ‘Prosecution’s application requesting disclosure after a final resolution of the Government of Kenya’s admissibility challenge’ and Establishing a Calendar for Disclosure Between the Parties’, PTC II, 20 April 2011; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-64, Decision on the ‘Prosecution’s application requesting disclosure after a final resolution of the Government of Kenya’s admissibility challenge’ and Establishing a Calendar for Disclosure Between the Parties, PTC II, 20 April 2011. In the *Ntaganda* case, PTC II set two deadlines for disclosure relating to: (i) evidence collected until the Chamber issued the second warrant of arrest for *Ntaganda*; and (ii) evidence collected within approx. one year after the issuance of the decision on the second warrant of arrest for *Ntaganda*, see *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-64, Decision Establishing a Calendar for the Disclosure of Evidence Between the Parties, PTC II, 17 May 2013. In the *Laurent Gbagbo* case, PTC III set three deadlines depending on whether (i) the evidence was collected prior to the submission of the article 58 application; (ii) the evidence was collected until the decision establishing the disclosure system was issued; and (iii) the evidence collected after the issuance of the disclosure decision, see *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-30, Decision establishing a disclosure system and a calendar for disclosure, PTC III, 24 January 2012, para. 39.

¹¹⁰ See also rule 76(4). *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-568 (OA3), Judgment on the Prosecutor’s appeal against the decision of Pre-Trial Chamber I entitled ‘Decision Establishing General Principles Governing Applications to Restrict Disclosure pursuant to Rule 81 (2) and (4) of the Rules of Procedure and Evidence’, AC, 13 October 2006, paras 1 and 36; *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-475 (OA), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I entitled ‘First Decision on the Prosecution Request for Authorization to Redact Witness Statements’, AC, 13 May 2008, para. 70.

¹¹¹ This information must relate to the ongoing or future investigative activities of the Prosecutor and may pertain, for example, to the time and location of interviews taken, names and signatures of investigators, and the identities of intermediaries, (field) interpreters, psycho-social experts or ‘potential prosecution witnesses’. See, for example, *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-117-Red3, Redacted First Decision on the Prosecutor’s Requests for Redactions and Other Related Requests, PTC II, 3 July 2014 (original decision registered on 1 October 2013), paras 55–62. As to the non-disclosure of identifying information of ‘potential prosecution witnesses’, see also *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-476 (OA2), Judgment on the appeal of Germain Katanga against the decision of Pre-Trial Chamber I entitled ‘First Decision on the Prosecution Request for Authorization to Redact Witness Statements’, AC, 13 May 2008, paras 1, 46 and 49. Identifying information of such individuals could be withheld from the defence if the PTC is satisfied that disclosure could lead to the intimidation of or interference with such individuals, thereby prejudicing the Prosecutor’s investigation.

hence it is for the Prosecutor seeking rule 81(2) protective measures to establish that such measures are warranted. Under rule 81(4), the Prosecutor may submit a request to the PTC soliciting the non-disclosure of specific information. In addition, the PTC, in discharging its functions under articles 57(3)(c) and 68(1), may also order protective measures on its own motion within the ambit of rule 81(4). More specifically, protective measures may be adopted to ensure the confidentiality of certain information in accordance with articles 54, 72 and 93, and to protect witnesses and victims,¹¹² and members of their families¹¹³ (article 68(1)). The applicability of rule 81(4) has also been expanded to protect ‘any other [third] person put at risk on account of the activities of the Court’.¹¹⁴ As a matter of law, the application of redactions requires **prior judicial authorization**.¹¹⁵

However, when deciding on protective measures, due regard must be paid also to the rights of the defence. As article 68(1), fourth sentence, dictates: ‘These measures shall not be prejudicial to or inconsistent with the rights of the accused and a fair and impartial trial’. As a result, ‘[w]hether any such non-disclosure of information should be authorized on the facts of an individual case will require a careful assessment by the Pre-Trial Chamber on a case-by-case basis, balancing the various interests at stake’.¹¹⁶ The Court follows a **three-step test** in assessing any rule 81(2) or rule 81(4) request:¹¹⁷ (i) whether the disclosure of the

¹¹² Protecting witnesses or victims may be achieved through authorization that they remain anonymous vis-à-vis the defence. Apart from the name, signature and initials of the person concerned, any other identifying information may be redacted, such as the person’s date and place of birth, marital status, name of spouse, number and name of children or other relatives, current and prior occupation, address, and educational background. See, for example, *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-117-Red3, Redacted First Decision on the Prosecutor’s Requests for Redactions and Other Related Requests, PTC II, 3 July 2014 (original decision registered on 1 October 2013), para. 37.

¹¹³ As is the case for witnesses and victims, any identifying information of family members will regularly be redacted, such as name and initials, address, and place and time of birth. The reason for adopting protective measures in this case is the fact that these individuals are regularly not involved in the Court’s activities and may not know that one of their relatives is in contact or collaborates with the Court. See, for example, *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-117-Red3, Redacted First Decision on the Prosecutor’s Requests for Redactions and Other Related Requests, PTC II, 3 July 2014 (original decision registered on 1 October 2013), para. 46.

¹¹⁴ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-475 (OA), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I entitled ‘First Decision on the Prosecution Request for Authorization to Redact Witness Statements’, AC, 13 May 2008, paras 1 and 55–56 (see also dissenting opinion of Judge Pikis arguing that a new class of persons was added to rule 81 which was not grounded in law). This information may relate, for example, to the names of non-governmental organisations and their members or any other third person. The reason for protecting these entities or persons is the fact that they may be perceived as collaborating with the Court. Moreover, they will regularly not know that they have been mentioned in Court documents, such as witness statements, and do not benefit from any protection provided by the Court. Whether or not such information must be withheld from the defence will depend on the circumstances of the case and the justification provided by the Prosecutor. See, for example, *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-117-Red3, Redacted First Decision on the Prosecutor’s Requests for Redactions and Other Related Requests, PTC II, 3 July 2014 (original decision registered on 1 October 2013), paras 50–52.

¹¹⁵ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-475 (OA), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I entitled ‘First Decision on the Prosecution Request for Authorization to Redact Witness Statements’, AC, 13 May 2008, para. 60 (‘The Appeals Chamber emphasizes that, when seeking redactions pursuant to rule 81(4), the Prosecutor may only redact information from material and evidence that it must disclose to the defence after obtaining authorisation from the competent Chamber to do so (...). As stated by the Pre-Trial Chamber, this course is consistent with the role of the Prosecutor as a party to the proceedings, as well as with the significant role of the competent Chamber to ensure that the rights of the suspect are protected’); see also *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-165-Red3, Redacted Third Decision on the Prosecutor’s Requests for Redactions, PTC I, 3 July 2014 (original decision registered on 6 December 2013), para. 45.

¹¹⁶ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-475 (OA), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I entitled ‘First Decision on the Prosecution Request for Authorization to Redact Witness Statements’, AC, 13 May 2008, para. 66. *Ibid.*, ICC-01/04-01/07-521 (OA5), Judgment on the appeal of Mr Mathieu Ngudjolo against the decision of Pre-Trial Chamber I entitled ‘Decision on the Prosecution Request for Authorisation to Redact Statements of Witnesses 4 and 9’, AC, 27 May 2008, para. 2.

¹¹⁷ The AC clarified that the three-step test applies *mutatis mutandis* to requests advanced under rule 81(2), *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-475 (OA), Judgment on the Appeal of the

information in question to the defence (as opposed to disclosing the information to the general public) would pose an objectively justifiable risk to the protected person (or interest),¹¹⁸ (ii) whether the protective measure is necessary, including whether there it is the least intrusive measure necessary to protect the person (or interest) concerned,¹¹⁹ and (iii) whether any such measure is proportionate in view of the prejudice caused to the suspect and a fair and impartial trial'.¹²⁰ The application of the three-step test is not a rigid mathematical exercise but it calls for a careful balance of the interests at stake. The higher the risk for the protected person, the lesser weight is to be given to the other two elements of the test. The following examples may illustrate this approach: should an 'objectively identifiable risk' be confirmed, for example, for a vulnerable third person, it is likely that the other two considerations of the test will not outweigh these security concerns. Conversely, where the content of the information to be redacted is evidently crucial for the defence, the Chamber will have to carefully balance the competing interests at stake and may consider an appropriate remedy to satisfy the rights of the defence.¹²¹ Of importance to our discussion is also the AC assertion that in the context of article 61 proceedings 'it may be permissible to withhold the disclosure of certain information from the Defence prior to the hearing to confirm the charge that could not be withheld prior to trial'.¹²² The standard developed by the AC is high: each individual redaction request must be individually assessed taking into account the specific facts and circumstances of the case.¹²³ Accordingly, the PTCs insist that the Prosecutor provide the necessary justification.¹²⁴ In the same vein, each decision authorizing the non-disclosure of information to the defence must state sufficiently the

Prosecutor against the decision of Pre-Trial Chamber I entitled 'First Decision on the Prosecution Request for Authorisation to Redact Witness Statements', AC, 13 May 2008, paras 97–99; *ibid.*, ICC-01/04-01/07-476 (OA2), Judgment on the appeal of Mr Germain Katanga against the decision of Pre-Trial Chamber I entitled 'First Decision on the Prosecution Request for Authorisation to Redact Witness Statements', AC, 13 May 2008, para. 59.

¹¹⁸ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-475 (OA), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I entitled 'First Decision on the Prosecution Request for Authorization to Redact Witness Statements', AC, 13 May 2008, para. 71.

¹¹⁹ This requirement is derived from the use of the word 'necessary steps' in rule 81(4). See *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-568 (OA3), Judgment on the Prosecutor's appeal against the decision of Pre-Trial Chamber I entitled 'Decision Establishing General Principles Governing Applications to Restrict Disclosure pursuant to Rule 81 (2) and (4) of the Rules of Procedure and Evidence', AC, 13 October 2006, para. 37; *ibid.*, ICC-01/04-01/06-773 (OA5), Judgment on the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled 'First Decision on the Prosecution Requests and Amended Requests for Redactions under Rule 81', AC, 14 December 2006, para. 33.

¹²⁰ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-773 (OA5), Judgment on the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled 'First Decision on the Prosecution Requests and Amended Requests for Redactions under Rule 81', AC, 14 December 2006, paras 21, and 33–34; *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-475 (OA), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I entitled 'First Decision on the Prosecution Request for Authorization to Redact Witness Statements', AC, 13 May 2008, para. 64.

¹²¹ In this context, the AC added that '[the] Pre-Trial Chamber should carefully assess the relevance of the information in question for the Defence. If, having carried out that assessment, the Chamber concludes that the information concerned is not relevant to the Defence, that is likely to be a significant factor in determining whether the interests of the person potentially placed at risk outweigh those of the Defence. If, on the other hand, the information may be of assistance to the case of the suspect or may affect the credibility of the case of the Prosecutor, the Pre-Trial Chamber will need to take particular care when balancing the interests at stake'; *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-475 (OA), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I entitled 'First Decision on the Prosecution Request for Authorization to Redact Witness Statements', AC, 13 May 2008, para. 72.

¹²² *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-475 (OA), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I entitled 'First Decision on the Prosecution Request for Authorization to Redact Witness Statements', AC, 13 May 2008, para. 68.

¹²³ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-475 (OA), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I entitled 'First Decision on the Prosecution Request for Authorization to Redact Witness Statements', AC, 13 May 2008, para. 69.

¹²⁴ *Prosecutor v. Bahar Idriss Abu Garda*, ICC-02/05-02/09-85, Second Decision on the Prosecutor's Requests for Redactions, PTC I, 7 September 2009, para. 7.

reasons upon which the PTC bases its decision.¹²⁵ Finally, due to the nature of the requests, the redaction process is conducted on an *ex parte* basis;¹²⁶ this does not exclude the possibility to notify the other party of the request and its legal basis, where appropriate.¹²⁷

Article 61 proceedings involve large quantities of documentary evidence and audio recordings/video material (see mn 89). Withholding information in documentary evidence means to redact certain information contained in the document.¹²⁸ Withholding information in audio recordings or visual material entails the deletion of the relevant part in the piece of evidence.¹²⁹ In an attempt to make the redaction process more efficient, the Single Judge in the *Laurent Gbagbo* case authorized the Prosecutor to implement redactions in exculpatory evidence without seeking prior approval from the PTC and sequentially to disclose the evidence or material as redacted by the Prosecutor. In order to safeguard the rights of the defence, the suspect is granted the right to challenge the redaction applied. Conversely, redactions in incriminating evidence were subjected to the judicial authorization process.¹³⁰ In the *Blé Goudé* case, this simplified redaction system was extended to incriminating evidence as well.¹³¹ Recently, in the *Ongwen* case, the Single Judge of PTC II, following the evolving practice of TCs, also adopted the approach to allow the immediate disclosure of evidence with redactions, regardless of its classification and without prior approval of the PTC, provided that the information subject to redaction falls into certain standard categories.¹³² In that decision, the Single Judge also set out the justification which will apply for each category concerned, meeting the minimum requirement of legal reasoning. Judicial intervention is only foreseen for redactions of information which do not fall under any of the indicated categories (such as the anonymity of a witness or the non-disclosure of an entire item of evidence) and in case the receiving party challenges a specific redaction, having previously exhausted the *inter partes* consultation process.¹³³ In this case, an application must be lodged with the PTC, while at the same time the evidence is disclosed in redacted form. As

¹²⁵ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-773 (OA5), Judgment on the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled 'First Decision on the Prosecution Requests and Amended Requests for Redactions under Rule 81', AC, 14 December 2006, para. 20; *ibid.*, ICC-01/04-01/06-774 (OA6), Judgment on the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled 'Second Decision on the Prosecution Requests and Amended Requests for Redactions under Rule 81', AC, 14 December 2006, paras 31–33.

¹²⁶ Rule 81(2), second sentence. *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-78-Red3, Redacted Decision on the 'Prosecution's Request To Redact Information in Supplementary Submissions related to the First Arrest Application and to Vary Protective Measures for Three Witnesses', PTC II, 3 July 2014 (original decision registered on 15 July 2013), para. 18 (with further references to case-law in the footnote).

¹²⁷ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-568 (OA3), Judgment on the Prosecutor's appeal against the decision of Pre-Trial Chamber I entitled 'Decision Establishing General Principles Governing Applications to Restrict Disclosure pursuant to Rule 81(2) and (4) of the Rules of Procedure and Evidence, AC, 13 October 2006, paras 66–67. PTC I, for example, ordered the defence to submit a confidential/public redacted versions of its *ex parte* redaction request, *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-136, Decision on the 'Requête de la Défense aux fins de prorogation du délai d'expurgation, aux fins d'expurgation et aux fins d'attribution de pseudonymes aux témoins', PTC I, 1 June 2012, para. 9.

¹²⁸ This may extend to any corresponding text element contained in the translation of the evidence concerned or the metadata linked to the evidence.

¹²⁹ This may extend to any corresponding (draft or edited) transcription of the audio recordings presented in any language.

¹³⁰ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-30, Decision establishing a disclosure system and a calendar for disclosure, PTC III, 24 January 2012, paras 49–52.

¹³¹ *Prosecutor v. Charles Blé Goudé*, ICC-02/11-02/11-67, Second decision on issues related to disclosure of evidence, PTC I, 5 May 2014, paras 10–13.

¹³² *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-224, Decision on issues related to disclosure and exceptions thereto, PTC II, 24 April 2015. The recent developments on this matter are owed to the elaboration of so-called redaction protocols adopted by some TCs, the idea of which seemingly crossed over to the PTCs. For a recent adoption of a redaction protocol by TC VII, see *Prosecutor v. Jean-Pierre Bemba Gombo et al.*, ICC-01/05-01/13-959, Decision on Modalities of Disclosure, TC VII, 22 May 2015, paras 7–22 (with further references to TC case-law) and annex.

¹³³ *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-224, Decision on issues related to disclosure and exceptions thereto, PTC II, 24 April 2015, paras 6–7.

a result, the authorization of the PTC would be given retroactively,¹³⁴ an approach which was rejected by the existing jurisprudence of the AC and some PTCs. The immediate disclosure of redacted evidence between the parties, while admittedly expediting the disclosure process, has the downside that the PTC will not intervene correctively in the redaction process by ordering *proprio motu* redactions or rejecting unjustified redaction proposals prior to disclosure taking place. Moreover, it remains questionable whether the defence, upon having received the disclosed evidence, can effectively challenge the redactions applied not knowing the information that has been redacted in the first place, even if information concerning the category is provided. Yet, these decisions mark a trend on the part of Chambers to withdraw from the labour-intensive process of redaction authorisation and to shift the responsibility primarily on the shoulders of the disclosing party.¹³⁵

- 62 Before adopting the expedited redaction system, when establishing the disclosure calendar, PTCs paid attention that the redaction process is completed in due time so that the Prosecutor is in a position to comply with the deadlines for disclosure. Therefore, extra deadlines for submitting redaction requests and implementing redactions were regularly included in the calendar. Moreover, information withheld from the defence was to be kept under review and subsequently disclosed, should circumstances change.¹³⁶ In case evidence was to be **re-disclosed** due to the lifting of redactions, this was done within the overall time framework under the Statute and the Rules: in case of incriminating evidence, this was to be accomplished no later than 30 days before the commencement of the confirmation hearing; in case of exculpatory evidence, the Prosecutor was allowed to disclose even after the rule 121(3) deadline as he or she is under continuing obligation to disclose such evidence ‘as soon as practicable’.¹³⁷

- 63 In addition to establishing a disclosure calendar and rendering redaction decisions, the PTCs have occasionally addressed the issue of **confidentiality agreements** within the meaning of article 54(3)(e) which prevented the Prosecutor from disclosing in particular exculpatory evidence to the defence. In the *Lubanga* case, the Prosecutor’s non-disclosure of in particular exculpatory evidence as a result of such confidentiality agreements moved TC I to stay proceedings.¹³⁸ The AC, which upheld in 2008 TC I’s interpretation of the Prosecutor’s statutory obligations under article 67(2), emphasized that ‘whenever the Prosecutor relies on article 54(3)(e) (...) he must bear in mind his obligations under the Statute and apply that provision in a manner that will allow the Court to resolve the potential tension between the confidentiality to which the Prosecutor has agreed and the requirements of a fair trial’.¹³⁹ As

¹³⁴ *Ibid.*

¹³⁵ As to the consistency of this approach with existing AC jurisprudence on non-disclosure, see *Prosecutor v. William Samoei Ruto/Joshua Arap Sang*, ICC-01/09-01/11-458, Decision on the protocol establishing a redaction regime, TC V, 27 September 2012, paras 14–15.

¹³⁶ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-475 (OA), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I entitled ‘First Decision on the Prosecution Request for Authorization to Redact Witness Statements’, AC, 13 May 2008, para. 73(c); *ibid.*, ICC-01/04-01/07-476 (OA2), Judgment on the appeal of Mr Germain Katanga against the decision of Pre-Trial Chamber I entitled ‘First Decision on the Prosecution Request for Authorisation to Redact Witness Statements’, AC, 13 May 2008, para. 64.

¹³⁷ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-117-Red3, Redacted First Decision on the Prosecutor’s Requests for Redactions and Other Related Requests, PTC II, 3 July 2014 (original decision registered on 1 October 2013), para. 24; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-425, Decision on the Prosecution’s notification of changed circumstances regarding two witnesses, PTC I, 15 September 2011.

¹³⁸ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1401, Decision on the consequences of non-disclosure of exculpatory materials covered by Article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008, TC I, 13 June 2008.

¹³⁹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1486, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I entitled ‘Decision on the consequences of non-disclosure of exculpatory materials covered by Article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008’, AC, 21 October 2008, para. 44 et seq. As a consequence, PTC II in the *Ntaganda* case requested the Prosecutor to submit reports on the status of

a result, the Prosecutor has been requested in some cases to report regularly on the status of exculpatory evidence or otherwise material for the preparation of the defence, and to inform the PTC of any difficulties in securing the consent of the information providers.¹⁴⁰

Regarding the Prosecutor's statutory disclosure obligations (article 67(2) and rule 77) at the confirmation stage, PTCs explored alternative ways to overcome the prejudice caused to the defence by dint of those confidentiality agreements. PTC I in the *Katanga/Ngudjolo* case rejected the alternative of providing summaries of the article 54(3)(e) documents but accepted that, for the purpose of the confirmation hearing, evidence containing **analogous information** be disclosed *inter partes* and (possibly) relied upon instead. The Single Judge, acting on behalf of PTC I, considered the 'principle of analogous information' to be an effective mechanism for the Prosecutor to comply with the disclosure obligations in light of the limited goal of the confirmation stage. She held that the defence would be in a position to use the information at the confirmation hearing and prepare for trial, if charges were to be confirmed.¹⁴¹ Due to the disclosure system established by PTC I in this case, according to which the Chamber did not have access to exculpatory evidence (see mn 72), the analogy of information was not verified judicially. Moreover, the fact that other material of potentially exculpatory nature had been disclosed to the defence, sufficed, in the view of the Single Judge in this case, to ensure the effective use of the rights of the defence under article 61(6).¹⁴²

The Single Judge of PTC II in the *Ntaganda* case likewise accepted the disclosure of analogous information in case evidence could not be disclosed by virtue of confidentiality agreements. However, she ordered the Prosecutor to provide the Chamber, on an *ex parte* basis, with the article 54(3)(e) documents concerned in order for the Chamber to conduct an independent assessment of these materials and verify whether the analogous information provided to the defence (as also communicated to the Chamber) preserved its rights.¹⁴³ Upon assessment, the Single Judge would take a decision whether or not the non-disclosure of the documents caused prejudice to the rights of the defence for the purposes of the confirmation hearing.¹⁴⁴

evidence obtained under article 54(3)(e) confidentiality agreements, *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-229, Decision Regarding the Non-Disclosure of 116 Documents Collected Pursuant to Article 54(3)(e) of the Rome Statute, PTC II, 27 January 2014; *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-203, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 27 February 2015, para. 44, as amended by the Single Judge subsequently in a status conference, ICC-02/04-01/15-T-6-ENG, Transcript of Hearing, PTC II, 19 May 2015, 5.

¹⁴⁰ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-259, Decision Establishing a Calendar in the Case against Germain Katanga and Mathieu Ngudjolo Chui, PTC I, 10 March 2008, 12; *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-203, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 27 February 2015, para. 44; *Prosecutor v. Bosco Ntaganda*, ICC-01/04-20/06-229, Decision Regarding the Non-Disclosure of 116 Documents Collected Pursuant to Article 54(3)(e) of the Rome Statute, PTC II, 27 January 2014.

¹⁴¹ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-621, Decision on Article 54(3)(e) Documents Identified as Potentially Exculpatory or Otherwise Material to the Defence's Preparation for the Confirmation Hearing, PTC I, 20 June 2008, paras 65–109. At the time, the Prosecutor had informed the Chamber that 255 documents were affected by confidentiality agreements that contained potentially exculpatory evidence for the defence. Of those, 24 documents could be disclosed after having obtained consent of the information provider; for 142 documents, analogous information was provided. Accordingly, the Chamber held that the Prosecutor had complied with disclosing the 'bulk' of exculpatory evidence to the defence.

¹⁴² *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-621, Decision on Article 54(3)(e) Documents Identified as Potentially Exculpatory or Otherwise Material to the Defence's Preparation for the Confirmation Hearing, PTC I, 20 June 2008, para. 121.

¹⁴³ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-210, Order Regarding the 'Prosecution's Information of the Statute of Disclosure', PTC II, 15 January 2014, paras 9–10. The Prosecutor had indicated in a table the items of evidence that contained the analogous information.

¹⁴⁴ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-229, Decision Regarding the Non-Disclosure of 116 Documents Collected Pursuant to Article 54(3)(e) of the Rome Statute, PTC II, 27 January 2014; *ibid.*, ICC-01/04-02/06-247, Decision on the 'Prosecution's Provision of 56 Documents Collected under Article 54(3)(e)', PTC II, 6 February 2014.

- 66 Neither the Statute nor the Rules foresee a particular **format for the list of evidence**. The way it has been hitherto organized is to simply list, without more, the pieces of evidence on which the Prosecutor intends to rely. Considering the copious amount of evidence disclosed by the Prosecutor, and the absence of any reference to evidence in the DCC, PTCs have been exploring ways to assist the defence to understand the evidentiary basis on which the charges rest.
- 67 In the *Bemba* case, PTC III at the time observed that a listing of evidence alone does not inform the defence on why the Prosecutor relies on a particular piece and how it relates to the legal element the Prosecutor seeks to prove. Bearing in mind the rights of the suspect to ‘be informed promptly and in detail of the nature, cause and content of the charge’ (article 67(1)(a)) and to ‘have adequate time and facilities for the preparation of the defence’ (article 67(1)(b)), it sought to remedy this shortcoming by ordering the Prosecutor to provide an ‘**in-depth analysis**’ of the incriminating evidence relating the alleged facts with the constituent elements of each crime charged (context and individual act) and form of participation.¹⁴⁵ In addition, the Chamber highlighted that this ‘auxiliary instrument’ would streamline the disclosure process, prevent unnecessary delays that might negatively impact on the commencement of the confirmation hearing, prepare the parties for the discussion at the confirmation hearing and assist the Chamber in its preparation of the article 61(7) decision.¹⁴⁶ As regards the form of the analysis document, the Chamber instructed the Prosecutor that it be presented in form of a summary table, following a ‘law-driven’ approach by quoting the relevant information from the evidence which supports the factual allegations presented under a particular legal element.¹⁴⁷ It is obvious that such a presentation of the evidence reveals instantly the strength and weaknesses of the evidentiary record of the case. In order to be a useful and efficient tool for all concerned, the Chamber expressed its expectation that only *relevant* evidence be included in the analytical chart. The underlying rationale can be found in the following statement of PTC III:

‘In the Chamber’s opinion, the most important factor in both safeguarding the rights of the defence and enabling the Chamber to exercise its functions is not for the Prosecutor to disclose the greatest volume of evidence, but to disclose the evidence which is of true relevance to the case, whether that evidence be incriminating or exculpatory. In fact, disclosure of a considerable volume of evidence for which it is difficult or impossible to comprehend the usefulness for the case merely puts the defence in a position where it cannot genuinely exercise its rights, and serves to hold back the proceedings.’¹⁴⁸

¹⁴⁵ In fact, in its first decision ordering the Prosecutor to provide the defence with an ‘in-depth analysis’, the PTC had asked the Prosecutor to analyse *both* incriminating and exculpatory evidence, see *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, paras 68–70. In a later decision, the Single Judge, acting on behalf of the Chamber, limited the analysis to incriminating evidence, on which the Prosecutor would rely, see *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-232, Decision on the Submission of an Updated, Consolidated Version of the In-Depth Analysis Chart of Incriminating Evidence, PTC III, 10 November 2008, para. 8.

¹⁴⁶ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, para. 72; *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-47, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PCT II, 12 April 2013, para. 31; *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-203, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PCT II, 27 February 2015, para. 40. In relation to the decision in the *Ongwen* case, the Prosecutor was granted leave to appeal. The Appeals Chamber reversed the decision ordering an in-depth analysis chart, on the basis that the chamber in that case had not requested observations ‘on the utility’ of said document prior to ordering its submission. Yet, the competence of PTCs to order such documents was confirmed, see *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-251 (OA 3), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber II entitled ‘Decision Setting the Regime for Evidence Disclosure and Other Related Matters’, AC, 17 June 2015.

¹⁴⁷ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-47, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PCT II, 12 April 2013, para. 32. Larger portions of information were requested to be succinctly summarized. The Prosecutor was also ordered to include a hyperlink directing the reader to the evidence as uploaded in the electronic system of the Court.

¹⁴⁸ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, para. 67.

The non-reference of certain material in the in-depth analysis chart does not exclude the material concerned from the evidentiary record of the case. Whether or not a piece of evidence can be relied upon by the party or be considered by the PTC must be determined with the assistance of the (amended) list of evidence.¹⁴⁹ In the words of PTC II, the in-depth analysis chart ‘does not have the procedural effect which is attached to the list of evidence’.¹⁵⁰ It is also clear from the reasoning provided by PTC II that the Prosecutor is not in any way impaired in the selection of incriminating evidence or its presentation at the confirmation hearing. Likewise, the defence is not impaired in its selection of evidence it deems apt to exonerate the suspect.

The practice initiated by PTC III/II was endorsed and refined in the *Ruto et al.*,¹⁵¹ *Muthaura et al.*,¹⁵² *Ntaganda*,¹⁵³ and *Ongwen*¹⁵⁴ case.¹⁵⁵ Subsequently, it was also followed by PTC III/I in the *Laurent Gbagbo* case and the *Blé Goudé* case which termed the document ‘Element-based chart’.¹⁵⁶ In the *Bemba et al.* case (article 70 proceedings), the Single Judge, considering that the proceedings were conducted in writing, left it to the discretion of the Prosecutor to decide whether she wishes to make use of the in-depth analysis chart for the presentation of the case.¹⁵⁷

PTC I in the *Abu Garda, Banda/Jerbo* and *Mbarushimana* cases pursued another route to assist the defence by instructing the Prosecutor to **explain the exculpatory evidence**. According to PTC I, the defence was likely to face difficulties in relation to the assessment and evaluation of all material disclosed by the Prosecutor under article 67(2) and rule 77.

¹⁴⁹ *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-348, Decision on the ‘Prosecution’s Request to Exclude Certain Documents submitted by the Defence’, PTC II, 22 September 2011, para. 14; *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-308, Decision on Admissibility of Evidence and Other Procedural Matters, PTC II, 8 June 2014, para. 32.

¹⁵⁰ *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-330, Decision on the Defence Requests for Leave to Resubmit or Add Evidence and Related Requests, PTC II, 15 September 2011, para. 25.

¹⁵¹ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-44, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PCT II, 6 April 2011, paras 21–23.

¹⁵² *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-48, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PCT II, 6 April 2011, paras 22–24.

¹⁵³ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-47, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PCT II, 12 April 2013, paras 29–32.

¹⁵⁴ *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-203, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PCT II, 27 February 2015, paras 37–42.

¹⁵⁵ The practice of the in-depth analysis chart was also followed at the trial stage in the *Katanga/Ngudjolo* case, *Prosecutor v. Germain Katanga/Mathieu Ngudjolo Chui*, ICC-01/04-01/07-956, Order concerning the Presentation of Incriminating Evidence and the E-Court Protocol, TC II, 13 March 2009; and the *Bemba* case, *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-682, Decision on the ‘Prosecution’s Submissions on the Trial Chamber’s 8 December 2009 Oral Order Requesting Updating of the In-Depth-Analysis Chart’, TC III, 29 January 2010; for a constructive critique, see Cotte B./Saracco M, ‘Article 64’, in: Fernandez, J. and/Pacreau, X. (eds.), *Statut de Rome de la Cour pénale internationale. Commentaire article par article*, Vol. II (Pedone 2012), 1456–1457; and Bekou, O./Bergsmo, M., ‘The In-depth Evidence Analysis Charts at the International Criminal Court’, in: M. Bergsmo (ed), *Active Complementarity: Legal Information Transfer*, (Torkael Opsahl Academic EPublisher 2011) 313.

¹⁵⁶ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-30, Decision establishing a disclosure system and a calendar for disclosure, PTC III, 24 January 2012, para. 40. In the *Blé Goudé* case, however, the Single Judge left it to the parties’ agreement whether an Element-based chart should be provided by the Prosecutor, *Prosecutor v. Charles Blé Goudé*, ICC-02/11-02/11-57, Decision establishing a system for disclosure of evidence, PTC I, 14 April 2014, para. 18. At the status conference, the parties informed the Single Judge that the Prosecutor would provide an Element-based chart three days after the submission of the DCC, *ibid.*, ICC-02/11-02/11-T-4-Red-ENG, Transcript of Hearing, PTC I, 1 May 2014, 18, lines 11–22. Notably, in the *Blé Goudé* case, the Single Judge also ordered that the relevance of each item of rule 77 and article 67(2) evidentiary material be explained to the defence, *Prosecutor v. Charles Blé Goudé*, ICC-02/11-02/11-67, Second decision on issues related to disclosure of evidence, PTC I, 5 May 2014, para. 14. Also it is worth noting that the PTC I case-law of the *Laurent Gbagbo* and *Blé Goudé* case, the Prosecutor only was instructed to submit an Element-based chart; the defence was under no such obligation.

¹⁵⁷ *Prosecutor v. Jean-Pierre Bemba Gombo et al.*, ICC-01/05-01/13-134, Decision on the ‘Defence request for an in-depth analysis chart’ submitted by the Defence for Mr Jean-Pierre Bemba Gombo, PTC II, 28 January 2014, paras 7–8.

With a view to ensuring that the suspect can prepare adequately for the hearing (article 67(1)(b)), PTC I ordered that the Prosecutor provide a further elaboration of the material concerned by providing a concise summary of the content of each item and an explanation of the relevance of such item as potentially exculpatory.¹⁵⁸ In the view of PTC I, '[it] is hardly debatable that the mere transmission of allegedly exculpatory material, possibly in large amounts, for which no effort of indicating its relevance to the Case has been made, may have an adverse impact on the evaluation of the adequacy of the time given to the defence to prepare for the confirmation hearing'.¹⁵⁹ The same approach was followed by the Chamber in the *Banda/Jerbo* and *Mbarushimana* case.¹⁶⁰

- 71 The PTC neither collects evidence during the investigation, nor does it direct the Prosecutor (or the defence) as to which evidence to include in the list of evidence and to present at the hearing.¹⁶¹ It is for the Prosecutor to collect the evidence he or she deems best for the purposes of the confirmation hearing.¹⁶² Rule 121(2)(c) stipulates that all evidence disclosed between the Prosecutor and the defence for the purpose of the confirmation hearing shall be **communicated to the PTC**.¹⁶³ However, to this day the extent of such communication remains controversial in the jurisprudence of the PTCs. In essence, two interpretations stand diametrically opposed.
- 72 In the *Lubanga* and *Katanga/Ngudjolo* case, the Single Judge of PTC I held that only **incriminating evidence** on which the Prosecutor intends to rely should be communicated to the PTC.¹⁶⁴ Conversely, any exculpatory evidence and material falling under rule 77 (evidence 'material to the preparation to the defence') need not be communicated to the PTC.¹⁶⁵ The Single Judge considered this to be grounded in article 61(7) which directs the PTC to base its decision on the 'hearing' during which only certain evidence is presented by the parties.¹⁶⁶ She was also concerned that communication of all evidence would transform the nature of the confirmation hearing and impact the right of the defence to choose its evidence or remain silent. The key argument was the Judge's understanding of the role of the PTC:

'In the view of the single judge, if all materials disclosed by the Prosecution before the confirmation hearing, on which neither party intends to rely, were filed in the record of the case and presented thereat, the nature of the confirmation hearing would be significantly altered and the right of the Defence to decide whether to rely on such materials at the hearing would be infringed on.'

¹⁵⁸ *Prosecutor v. Bahar Idriss Abu Garda*, ICC-02/05-02/09-35, Second Decision on issues relating to Disclosure, PTC I, 15 July 2009, paras 13–15.

¹⁵⁹ *Prosecutor v. Bahar Idriss Abu Garda*, ICC-02/05-02/09-35, Second Decision on issues relating to Disclosure, PTC I, 15 July 2009, para. 14.

¹⁶⁰ *Prosecutor v. Abdallah Banda Abakaer Nourain/Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-49, Decision on issues relating to disclosure, PTC I, 29 June 2010, para. 5; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-87, Decision on issues relating to disclosure, PTC I, 30 March 2011, para. 11.

¹⁶¹ '[The] concept of 'disclosure' should not be confused with the concept of 'communication' of evidence to the Chamber. The Chamber is not a party to the proceedings and does not take part in the disclosure process', *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, ICC-01/05-01/08-55, para. 42.

¹⁶² *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-206, Decision Postponing the Date of the Confirmation Hearing, PTC II, 6 March 2015, para. 31; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-514 (OA4), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 16 December 2011 entitled 'Decision on the confirmation of charges', AC, 30 May 2012, para. 44.

¹⁶³ Communication of evidence means that the PTC has access to the evidence through the electronic system of the Court.

¹⁶⁴ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-102, Decision on the Final System of Disclosure and the Establishment of a Timetable, PTC I, 15 May 2006, 29, para. 41. The disclosure regime in the *Lubanga* case was applied in the *Katanga/Ngudjolo* case as well, *Prosecutor v. Germain Katanga/Mathieu Ngudjolo Chui*, ICC-01/04-01/07-T-12-ENG, Transcript of Hearing, PTC I, 14 December 2007, 4, lines 14–22.

¹⁶⁵ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-102, Decision on the Final System of Disclosure and the Establishment of a Timetable, PTC I, 15 May 2006, 31, para. 50.

¹⁶⁶ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-102, Decision on the Final System of Disclosure and the Establishment of a Timetable, PTC I, 15 May 2006, 31–32, paras 52–53.

Second, according to article 61(7) of the Statute, at the confirmation hearing the Pre-Trial Chamber must determine ‘whether there is sufficient evidence to establish substantial grounds to believe that the person committed each of the crimes charged’. Therefore, the Pre-Trial Chamber is not a finder of truth in relation to the guilt or innocence of the person against whom a warrant of arrest or a summons to appear has been issued.

In the opinion of the single judge, it is not the role of the Pre-Trial Chamber to find the truth concerning the guilt or innocence of Thomas Lubanga Dyilo, but to determine whether sufficient evidence exists to establish substantial grounds to believe that he is criminally liable for the crimes alleged by the Prosecution. The single judge considers that it would be contrary to the role of the Pre-Trial Chamber to file in the record of the case and present at the confirmation hearing potentially exculpatory and other materials disclosed by the Prosecution before the hearing, if neither party intends to rely on those materials at that hearing’ (footnotes omitted).¹⁶⁷

This approach was followed in the *Abu Garda, Banda/Jerbo*, and the *Mbarushimana* case, 73 albeit by majority,¹⁶⁸ and later by the Single Judge of PTC III/I in the *Laurent Gbagbo and Blé Goudé* case.¹⁶⁹

In contrast to the above, PTC III in the *Bemba* case, in a unanimous decision of the full 74 bench, ordered the communication of **all evidence** disclosed between the parties. In its view, the reference to ‘all evidence’ in rule 121(2)(c) was not limited to the evidence on which the parties rely during the hearing.¹⁷⁰ Its approach was grounded on three arguments. First, the Chamber drew upon its authority to request evidence pursuant to article 69(3), second sentence, which allows the PTC ‘to request the submissions of all evidence that it considers necessary for the determination of the truth’.

‘The Chamber notes that, pursuant to rule 122(9) of the Rules, article 69 of the Statute shall apply *mutatis mutandis* at the confirmation hearing, subject to the provisions of article 61 of the Statute. Thus, the rules concerning evidence in article 69 of the Statute, including the authority of the Chamber to request the submission of further evidence, apply at the pre-trial stage of the proceedings, taking into account the specific purpose and limited scope of the confirmation of the charges. To that end, it needs to be noted that the application of article 69(3) of the Statute at the confirmation phase is restricted since, in contrast to the trial phase, the Chamber does not have to determine the guilt of the person prosecuted beyond reasonable doubt. It has simply to determine whether there are substantial grounds to believe that the person prosecuted committed the crimes charged. Finally, the Chamber considers that the authority it derives from article 69(3) of the Statute at the pre-trial phase is crucial for the determination of the scope of the charges to be retained if the case is sent to trial.

The Chamber further emphasises that the search for truth is the principal goal of the Court as a whole. In contributing to this ultimate goal, the Pre-Trial Chamber, in particular, shall prevent cases which do not meet the threshold of article 61(7) of the Statute to proceed to the trial stage. In order to fulfil its duty, the Chamber considers it vital not only to conduct properly the confirmation hearing but to organise meaningfully the disclosure proceedings’ (footnote omitted).¹⁷¹

Secondly, PTC III referred to its filter function and recalled its power to distinguish those 75 cases that should go to trial (article 61(7)(a)) from those that should not (article 61(7)(b)). As a result of this PTC III argued that it ‘should not be confined to the evidence which the parties intend to rely on for the purposes of the confirmation hearing’ and affirmed that in

¹⁶⁷ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-102, Decision on the Final System of Disclosure and the Establishment of a Timetable, PTC I, 15 May 2006, 32–33, paras 54–56.

¹⁶⁸ *Prosecutor v. Bahar Idriss Abu Garda*, ICC-02/05-02/09-35, Second Decision on issues relating to Disclosure, PTC I, 15 July 2009, paras 6–12; *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-49, Decision on issues relating to disclosure, PTC I, 29 June 2010, paras 5–6; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-87, Decision on issues relating to disclosure, PTC I, 30 March 2011, paras 9–10.

¹⁶⁹ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-30, Decision establishing a disclosure system and a calendar for disclosure, PTC III, 24 January 2012, paras 15, 19–20; *Prosecutor v. Charles Blé Goudé*, ICC-02/11-02/11-57, Decision establishing a system for disclosure of evidence, PTC I, 14 April 2014, para. 6.

¹⁷⁰ For a contextual interpretation of rule 121(2)(c) and its drafting history, see *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, ICC-01/05-01/08-55, paras 43–44.

¹⁷¹ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, ICC-01/05-01/08-55, paras 10–11.

order to reach its article 61(7) determination, ‘it must have accurate and in-depth knowledge of the case record’, including of the exculpatory evidence exchanged between the Prosecutor and the defence.¹⁷²

The Chamber observes that, in the absence of exculpatory evidence, it would possess only a partial record, limited to incriminating evidence. As a result, in general terms, the Chamber would be unable to differentiate properly between the cases which warrant being committed for trial and those which do not. The Chamber must be able to exercise this function, which is also essential on the grounds of judicial economy, in particular where the defence decides – as is its right – not to present evidence under article 61(6) of the Statute.¹⁷³

- 76 Finally, PTC III underscored its responsibility (i) to ensure the rights of the defence under article 61(7)(a) and (b);¹⁷⁴ (ii) to guarantee the effective organization of the confirmation hearing and proper preparation for trial;¹⁷⁵ and (iii) to ensure that disclosure takes place under satisfactory conditions.¹⁷⁶
- 77 The approach of PTC III in the *Bemba* case was followed by PTC II in the *Ruto et al.*, *Muthaura et al.*, *Ntaganda*, *Al Fagi Al Mahdi* and *Ongwen* cases.
- 78 Both disclosure systems remain in place to date. While the Prosecutor challenged the communication of in particular exculpatory evidence to PTC II,¹⁷⁷ no appeal against the final article 61(7) decision has been sought on the grounds that the disclosure process infringed the fairness principle. Likewise, no appeal was sought by the defence against the decisions of PTC I limiting the communication of evidence to the Chamber. More importantly, the two systems are transported into the jurisprudence of the TCs which will either continue with the disclosure system already in place in the case or will amend it.¹⁷⁸

The Prosecutor, who is free to conduct the investigation throughout the pre-trial phase, may come across evidence which (i) he or she intends to use for the purpose of amending the charges, as contained in the DCC, pursuant to article 61(4); or (ii) he or she intends to present as **new evidence** at the confirmation hearing. All of the issues discussed above concerning redactions, confidentiality agreements, analysis of evidence, and communication to the PTC, remain the same for these pieces of evidence. Rule 121 sets out the deadlines within which such evidence must be disclosed:

- ‘1. Where the Prosecutor intends to amend the charges pursuant to article 61, paragraph 4, he or she shall notify the Pre-Trial Chamber and the person no later than 15 days before the date of the hearing of the amended charges together with a list of evidence that the Prosecutor intends to bring in support of those charges at the hearing.
2. Where the Prosecutor intends to present new evidence at the hearing, he or she shall provide the Pre-Trial Chamber and the person with a list of that evidence no later than 15 days before the date of the hearing.’

¹⁷² *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, ICC-01/05-01/08-55, paras 16–19.

¹⁷³ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, ICC-01/05-01/08-55, para. 29.

¹⁷⁴ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, ICC-01/05-01/08-55, paras 20–23.

¹⁷⁵ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, ICC-01/05-01/08-55, paras 24–25.

¹⁷⁶ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, ICC-01/05-01/08-55, para. 42.

¹⁷⁷ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-75, Decision on the Prosecutor’s application for leave to appeal Pre-Trial Chamber III’s decision on disclosure, PTC III, 25 August 2008, paras 48–58.

¹⁷⁸ See, in this respect, for example, *Prosecutor v. Jean-Pierre Bemba Gombo et al.*, ICC-01/05-01/13-959, Decision on Modalities of Disclosure, TC VII, 22 May 2015, para. 27 (‘The Chamber considers that there is no compelling reason to remove its access to all disclosed materials. It is more efficient for this access to be maintained, as removing it requires the Chamber to direct that access be given on an *ad hoc* basis whenever the parties cite to supporting materials which the Chamber cannot review. Chambers in all cases have access to items which are not ultimately considered in its judgment, such as items deemed inadmissible during trial. As professional judges, there is no risk of prejudice being caused by exposing the Chamber to such information’).

Under which conditions a piece of evidence can be considered as ‘new’ within the meaning of rule 121(5) has been interpreted by PTC II to refer to evidence that came into the Prosecutor’s possession after the 30-day deadline of rule 121(3).¹⁷⁹ The rule may, however, also be interpreted to mean that any non-disclosed piece of evidence which is not included in the rule 121(3) list of evidence and which the Prosecutor wishes to present at the hearing can be deemed as ‘new’, regardless of when it has been collected.

IV. Paragraph 4: Amendment to or withdrawal of charges before the hearing

Article 61(4) states: ‘Before the hearing, the Prosecutor may continue the investigation and may amend or withdraw any charges. The person shall be given reasonable notice before the hearing of any amendment to or withdrawal of charges. In case of a withdrawal of charges, the Prosecutor shall notify the Pre-Trial Chamber of the reasons for the withdrawal’.

The Prosecutor is free to investigate throughout the pre-trial phase without permission of the PTC. In case he or she intends to present evidence collected at the confirmation hearing, such investigative activities must be concluded sufficiently in advance of the commencement of the hearing so that the Prosecutor can comply with his or her obligations under the time frame set by rule 121 and, possibly, the disclosure calendar established by the Chamber.¹⁸⁰

As the charges against the suspect are presented in the DCC, any amendment to or withdrawal of the ‘charges’ can only take place *after* the submission of the DCC pursuant to rule 121(3), namely 30 days in advance of the confirmation hearing. *Before* the presentation of the DCC, the Prosecutor is at liberty to enlarge the factual scope of the case (within the confines of article 101 in case the person was surrendered to the Court by a State)¹⁸¹, and to (re-)characterize the facts in light of the evidence collected during the investigation;¹⁸² the Prosecutor is not bound by the formulations contained in the warrant of arrest or the summons to appear.¹⁸³ Hence, the applicability of article 61(4) is triggered once the DCC has been presented.

¹⁷⁹ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-47, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 12 April 2013, para. 14. The postponement of the confirmation hearing in the *Bemba* case made the application of rule 121(5) obsolete in relation to evidence submitted by the Prosecutor as the 30-day deadline was set afresh, see *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-215-Red, Third Decision on the Prosecutor’s Requests for Redactions and Related Request for the Regulations of Contacts of Jean-Pierre Bemba Gombo, PTC III, 6 November 2008, paras 45–46.

¹⁸⁰ *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-206, Decision Postponing the Date of the Confirmation of Charges, PTC II, 6 March 2015, para. 31.

¹⁸¹ As regards the applicability of article 101, see, for example, *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-465-Red, Decision on the confirmation of charges, PTC I, 16 December 2011, paras 89–91; *Prosecutor v. Jean-Pierre Bemba Gombo et al.*, ICC-01/05-01/13-567, Decision on ‘Narcisse Arido’s Request for an Order Rejecting the Prosecution’s Document Containing the Charges (ICC-01/05-01/13-526-AnxB1) and for an Order to the Prosecution to File an Amended and Corrected Document Containing the Charges’, PTC II, 15 July 2015, 5; *Prosecutor v. Charles Blé Goudé*, ICC-02/11-02/11-151, Decision on the ‘Defence request to amend the document containing the charges for violation of the rule of speciality’, PTC I, September 2011; *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-260, Decision on the applicability of article 101 of the Rome Statute in the proceedings against Dominic Ongwen, PTC II, 7 July 2015.

¹⁸² *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-206, Decision Postponing the Date of the Confirmation of Charges, PTC II, 6 March 2015, para. 32. See also mn. 26.

¹⁸³ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-465-Red, Decision on the confirmation of charges, PTC I, 16 December 2011, para. 88; *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-1, Decision on the Prosecutor’s Application for Summons to Appear for William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang, PTC II, 8 March 2011, para. 33; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-1, Decision on the Prosecutor’s Application for Summonses to Appeal for Francis Kirimi Muthaura, Uhuru Muigai Kenyatta, and Mohammed Hussein Ali, PTC I, 8 March 2011, paras 24, 26, 33, and 52; *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-206, Decision Postponing the Date of the Confirmation of Charges, PTC II, 6 March 2015, para. 32. See also mn. 26.

- 83 The Prosecutor may **withdraw** one or more charges, as contained in the DCC, before the hearing without prior PTC authorization.¹⁸⁴ In this case, the Prosecutor must notify the PTC of the underlying reasons. This notification, if it were to have any meaning, could be seen as allowing the PTC to discharge its functions under article 53(3) as the withdrawal of charges may effectively be considered as a decision not to proceed with the prosecution of the suspect (in relation to certain charges) pursuant to article 53(2).¹⁸⁵ The scope of article 61(4), second sentence, indicates that the suspect be given ‘reasonable notice’ before the hearing of any withdrawal of charges. The notice requirement ensures the suspect’s right to be informed promptly and in detail of the ‘nature, cause and content of the charges’ (article 67(1)(a)) and to properly prepare for the hearing (article 67(1)(b)) in light of the new circumstances occasioned by the withdrawal of charges. What is considered ‘reasonable notice’ in this context must be assessed in the particular circumstances of each case.¹⁸⁶ If need be, a postponement of the date of the hearing could be requested or decided by the PTC on its own motion pursuant to rule 121(7). As a result of the withdrawal, the charges withdrawn will not form part of the discussion at the confirmation hearing. There is no statutory requirement for the Prosecutor to present an amended DCC.
- 84 In case the Prosecutor intends to **amend** one or more charges, as contained in the DCC, before the hearing, the Prosecutor may also do so without prior PTC authorization.¹⁸⁷ What is considered to be an ‘amendment’ within the meaning of article 61(4) is not explained in the Statute. The ordinary meaning of ‘amendment’ denotes ‘a change made by addition, deletion or correction; especially an alteration in wording’.¹⁸⁸ As the withdrawal of one or more charges is expressly regulated, the amendment must be understood to encompass any adding of new charge(s) or altering of existing charge(s). This course of action may have become necessary in light of new evidence collected during the ongoing investigation. As with withdrawal of charges, the suspect must be given ‘reasonable notice’ before the hearing so as to ensure his or her right under article 67(1)(a) and (b). What is considered ‘reasonable’ in this case, however, is dictated by rule 121(4) which prescribes:
- ‘Where the Prosecutor intends to amend the charges pursuant to article 4, paragraph 4, he or she shall notify the Pre-Trial Chamber and the person no later than 15 days before the date of the hearing of the amended charges together with a list of evidence that the Prosecutor intends to bring in support of those charges at the hearing.’
- 85 Accordingly, the Prosecutor is duty-bound to submit 15 days before the date of the hearing an amended DCC and an amended list of evidence (and any other auxiliary document as

¹⁸⁴ See rule 51(A)(i) of the ICTY Rules: ‘The Prosecutor may withdraw an indictment: (i) at any time before its confirmation, without leave’. The same is provided in rule 51(A) of the ICTR Rules.

¹⁸⁵ Similarly Bitti, G., Article 53 in: Fernandez, J. and Pacreau, X. (eds.), *Statut de Rome de la Cour pénale internationale. Commentaire article par article*, Vol. II (Pedone, 2012), 1205.

¹⁸⁶ In the article 70 proceedings, the confirmation proceedings may take place *only* in writing, and as such, a hearing on the matter does not take place. According to rule 165(3), the PTC may rule in accordance with article 61(7), only on the basis of ‘written submissions’, ‘unless the interests of justice’ require otherwise. In these circumstances, it is open to interpretation how the notion of ‘reasonable notice *before the hearing*’ is to be understood. Where the Chamber adopted a calendar of written submissions mirroring the confirmation process of article 5 crimes, such as in the *Bemba et al.* case, one may simply transpose the above interpretation to these proceedings as well. Another view could be to construe ‘reasonable notice before the hearing’ more broadly, capturing the entire duration prior to issuing the decision on the confirmation of charges. This interpretation is in line with the *ratio* underlying this provision namely to enable to the Prosecutor to amend the charges before their confirmation, in so far as such notice of amendment has been given in a reasonable time before issuing the written decision.

¹⁸⁷ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-700-Corr, Corrigendum to ‘Decision on the ‘Prosecution’s Request to Amend the Final Updated Document Containing the Charges Pursuant to Article 61(9) of the Statute’, PTC II, 21 March 2013, para. 19; *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-568 (OA3), Judgment on the Prosecutor’s appeal against the decision of Pre-Trial Chamber I entitled ‘Decision Establishing General Principles Governing Applications to Restrict Disclosure pursuant to Rule 81(2) and (4) of the Rules of Procedure and Evidence’, AC, 13 October 2006, para. 53.

¹⁸⁸ Garner B. (ed), *Black’s Law Dictionary*, (8th edition, 2004, Thompson West), 89.

ordered by the PTC). Depending on the extent of the amendment, the date of the confirmation hearing may be postponed according to rule 121(7) upon request or the Chamber's own motion.

V. Paragraph 5: Prosecutor's obligations 'at the hearing'

The makers of the Statute established progressively higher evidentiary thresholds applicable in the course of the proceedings.¹⁸⁹ Article 61(5), first sentence, dictates that at the confirmation hearing, the Prosecutor shall support each specific charge with 'sufficient evidence to establish substantial grounds to believe that the person committed the crime charged'. The threshold of 'substantial grounds to believe' is the same for the PTC when rendering its decision under article 61(7).

The **evidentiary threshold** of 'substantial grounds to believe' is higher than the threshold applicable at the article 58 stage when issuing a warrant of arrest or a summons to appear ('reasonable grounds to believe') but lower than the threshold required for conviction of an accused under article 66(3) ('beyond reasonable doubt'). With a view to securing the PTC filter function, the drafters of the Statute deliberately rejected the lowly standard of '*prima facie*'¹⁹⁰ and introduced an intermediate higher evidentiary standard sufficiently high to separate those cases which do not merit proceeding to trial¹⁹¹. This element is crucial for the Prosecutor when preparing for the confirmation hearing.

The *Lubanga* case gave the first opportunity to lend meaning to the term 'substantial grounds'. PTC I emphasized that '[a]fter an exacting scrutiny of all the evidence, the Chamber will determine whether it is *thoroughly satisfied* that the Prosecution's allegations are *sufficiently strong* to commit [the suspect] for trial' (emphasis added).¹⁹² In the view of PTC I, the charges must be 'sufficiently compelling' going beyond mere theory or suspicion'.¹⁹³ PTC II in the *Bemba* case explored the literal meaning of the term 'substantial' and understood it to mean 'significant', 'solid', 'material', 'well built', 'real' rather than 'imaginary'.¹⁹⁴ As to how to meet this standard, PTCs have consistently held that the Prosecutor must 'offer concrete and tangible proof demonstrating a clear line of reasoning underpinning [the] specific allegations'.¹⁹⁵ To put it simple, the evidence must be sufficiently solid so as to

¹⁸⁹ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09-73, Judgment on the appeal of the Prosecutor against the 'Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir', AC, 3 February 2010, para. 30; *Situation in the Republic of Kenya*, ICC-01/09-19-Corr, Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Kenya, PTC II, 31 March 2010, para. 28.

¹⁹⁰ In the procedure of the ICTY, the standard of proof by which a judge is to confirm the indictment is that of a 'prima facie case'. In rule 47(B) of the ICTY Rules, the wording 'reasonable ground for believing' is used, but in this case its standard of proof is considered to be equivalent to 'prima facie case'. See Jones, *The Practice of the International Criminal Tribunals for the Former Yugoslavia and Rwanda* (1998) 94.

¹⁹¹ See also *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-514, Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 16 December 2011 entitled 'Decision on the confirmation of charges', AC, 30 May 2012, para. 43 with further references in the footnotes.

¹⁹² *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-803-tENG, Decision on the confirmation of charges, PTC I, 29 January 2007, para. 39. See also, for example, *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-309, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Bosco Ntaganda, PTC II, 9 June 2014, para. 9.

¹⁹³ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-803-tENG, Decision on the confirmation of charges, PTC I, 29 January 2007, para. 37. See also, for example, *Prosecutor v. Abdallah Banda Abakaer Nourain/Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-121-Corr-Red, Corrigendum of the 'Decision on the Confirmation of Charges', PTC I, 7 March 2011, para. 31.

¹⁹⁴ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-424, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, PTC II, 15 July 2009, para. 29.

¹⁹⁵ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-803-tENG, Decision on the confirmation of charges, PTC I, 29 January 2007, para. 39; *Prosecutor v. Germain Katanga/Mathieu Ngudjolo Chui*, ICC-01/04-01/07-717, Decision on the confirmation of charges, PTC I, 30 September 2008, para. 65; *Prosecutor v. Jean-*

warrant the testing at trial when discussing a possible conviction. The Prosecutor cannot expect the PTC to confirm the charges by engaging in speculations that other additional evidence 'of high probative value' *might* be presented at trial. With a view to holding a strong position, the Prosecutor must therefore present to the PTC the strongest possible evidence in his or her possession. This, of course, presupposes that the investigation is completed by the end of the confirmation process (see mn 43).

- 89 The Prosecutor must support each charge, *i.e.* the constitutive elements of the crime(s) (context and individual act) including the form of participation, with sufficient evidence which is apt to prove, against the higher threshold applicable at this stage, that the suspect committed the crime(s). To this end, article 61(5), second sentence, allows the Prosecutor to rely on **documentary or summary evidence**. Indeed, most of the evidence submitted by the Prosecutor at this stage of the proceedings is **documentary** in nature, predominantly statements of witnesses, reports of non-governmental organizations (NGO) or international organizations, press articles, audio and video material. This accords with the fact that the confirmation proceedings are 'written proceedings'.
- 90 PTC I in the *Katanga/Ngudjolo* case ruled that the Prosecutor may rely on the statement or transcript of interview of a **deceased witness** under article 61(5), provided the witness gave his consent at the time of the interview that the statement or transcript of interview be introduced in judicial proceedings and redactions are implemented, to the extent necessary.¹⁹⁶ Likewise, PTC II in the *Ntaganda* case accepted material from deceased witnesses as documentary evidence falling under article 61(5) but did not make its use dependent on the person's consent at the time of the interview. The Chamber also added that the defence right to challenge this evidence was not impaired as it could do so through other means.¹⁹⁷
- 91 The use of **summary evidence** is not subject to any condition. There may be instances where security concerns prevent the Prosecutor to disclose the statement of the witness concerned, even in redacted form, because the information contained in the statement will still identify the witness. In this case, the PTC may grant the Prosecutor to withhold the identity of the witness concerned from the defence (rule 81(4)) and the Prosecutor may opt to present a summary of the statement instead of the statement itself, as envisaged in article 68(5).¹⁹⁸ The summary

Pierre Bemba Gombo, ICC-01/05-01/08-424, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, PTC II, 15 July 2009, para. 29; *Prosecutor v. Bahar Idriss Abu Garda*, ICC-02/05-02/09-243-Red, Decision on the Confirmation of Charges, PTC I, 8 February 2010, para. 37; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-465-Red, Decision on the confirmation of charges, PTC I, 16 December 2011, para. 40; *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, para. 40; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, para. 52; *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-309, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Bosco Ntaganda, PTC II, 9 June 2014, para. 9; *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-656-Red, Decision on the confirmation of charges against Laurent Gbagbo, PTC I, 12 June 2014, para. 19; *Prosecutor v. Jean-Pierre Bemba Gombo et al.*, ICC-01/05-01/13-749, Decision pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC I, 11 November 2014, para. 25; *Prosecutor v. Charles Blé Goudé*, ICC-02/11-02/11-186, Decision on the confirmation of charges against Charles Blé Goudé, PTC I, 11 December 2014, para. 12.

¹⁹⁶ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-412, Decision on the admissibility for the confirmation hearing of the transcripts of interview of deceased Witness 12, PTC I, 18 April 2008, 8; *ibid.*, ICC-01/04-01/07-496, Decision on the Defences' Applications for Leave to Appeal the 'Decision on the admissibility for the confirmation hearing of the transcripts of interview of deceased witness 12', PTC I, 22 May 2008.

¹⁹⁷ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-308, Decision on Admissibility of Evidence and Other Procedural Matters, PTC II, 8 June 2014, para. 31.

¹⁹⁸ 'Where the disclosure of evidence or information pursuant to this Statute may lead to the grave endangerment of the security of a witness or his or her family, the Prosecutor may, for the purposes of any proceedings conducted prior to the commencement of trial, withhold such evidence or information and instead submit a summary thereof. Such measures shall be exercised in a manner which is not prejudicial to or inconsistent with the rights of the accused and a fair and impartial trial'.

evidence, in this case, is a form of protective measure.¹⁹⁹ The AC, relying on ECtHR case-law, confirmed that the use of summaries without disclosing the identity of the witness concerned ‘is not *per se* prejudicial to or inconsistent with the rights of the accused and a fair and impartial trial’.²⁰⁰ Nevertheless, it accepted that the PTC, in weighing the evidence, may take the factor into account that the defence has been provided with only a summary of the statement of a witness who is anonymous. The preparation of summaries is the sole responsibility of the Prosecutor; the summaries must not be approved by the PTC before they are disclosed and presented at the confirmation hearing.²⁰¹ As a result, the PTC does not verify whether the summary disclosed is indeed an accurate synopsis of the witness statement in which both incriminating and exculpatory elements have been reflected appropriately. Finally, rule 81(5) ‘regulates under what conditions the material and information on the basis of which the summaries were compiled may subsequently be introduced into evidence’.²⁰² The provision reads:

‘Where material or information is in the possession or control of the Prosecutor which is withheld under article 68, paragraph 5, such material and information may not be subsequently introduced into evidence during the confirmation hearing or the trial without adequate disclosure to the accused’.

Article 61(5), second sentence, also provides that at the confirmation hearing the Prosecutor need not call the witnesses expected to **testify** at the trial. Hence, the Prosecutor may present only a witness statement, or transcript of the recorded interview or a summary thereof. In fact, there may be legitimate reasons to decide not to call a witness at this stage of the proceedings, such as logistics or security concerns. The PTCs, from a case management point of view, have been particularly attentive to this element and advised consistently the Prosecutor (and the defence) not to call witnesses, considering the limited scope and nature of the confirmation proceedings and the Chamber’s duty to ensure that the proceedings are conducted in an expeditious manner (see also *mn 103 et seq.*).²⁰³ Indeed, the Court’s statutory provisions do not give precedence to the principle of orality at the pre-trial stage.²⁰⁴ As the AC confirmed:

‘[The] Rules regarding orality in the pre-trial phase are more relaxed than at trial. Pursuant to article 61(5) of the Statute, for the purposes of the confirmation hearing, the Prosecutor ‘may rely on documentary or summary evidence and need not call the witnesses expected to testify at the trial’. At the trial, however, the Trial Chamber must respect article 69(2).’²⁰⁵

Thus, in the *Ruto et al.* and *Muthaura et al.* case it was held that ‘the parties [rely] on live witnesses only as far as their oral testimony at the hearing cannot be properly substituted by

¹⁹⁹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-773 (OA5), Judgment on the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled ‘First Decision on the Prosecution Requests and Amended Requests for Redactions under Rule 81’, AC, 14 December 2006, paras 45–46.

²⁰⁰ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-773 (OA5), Judgment on the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled ‘First Decision on the Prosecution Requests and Amended Requests for Redactions under Rule 81’, AC, 14 December 2006, para. 50.

²⁰¹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-773 (OA5), Judgment on the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled ‘First Decision on the Prosecution Requests and Amended Requests for Redactions under Rule 81’, AC, 14 December 2006, para. 43.

²⁰² *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-773 (OA5), Judgment on the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled ‘First Decision on the Prosecution Requests and Amended Requests for Redactions under Rule 81’, AC, 14 December 2006, para. 48.

²⁰³ For example, *Prosecutor v. William Samoei Ruto, et al.*, ICC-01/09-01/11-153, Decision Requesting the Parties to Submit Information for the Preparation of the Confirmation of Charges Hearing, PCT II, 29 June 2011; *Prosecutor v. Francis Kirimi Muthaura, et al.*, ICC-01/09-02/11-181, PTC II, 20 July 2011; *Prosecutor v. Charles Blé Goudé*, ICC-02/11-02/11-T-4-Red-ENG, Transcript of Hearing, PTC I, 1 May 2014, 10, lines 12–19.

²⁰⁴ *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-226, Order to the Defence to Reduce the Number of Witnesses to Be called to Testify at the Confirmation of Charges Hearing and to Submit an amended List of *Viva Voce* Witnesses, PTC II, 10 August 2011, para. 18.

²⁰⁵ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-1386, Judgment on the appeals of Mr Jean-Pierre Bemba Gombo and the Prosecutor against the decision of Trial Chamber III entitled ‘Decision on the admission into evidence of materials contained in the prosecution’s list of evidence’, AC, 3 May 2011, para. 80.

documentary evidence or witnesses' written statements'.²⁰⁶ The same approach was adopted in the *Laurent Gbagbo* and *Blé Goudé* case.²⁰⁷ In case the parties opted to call live witnesses, they were required to indicate this sufficiently in advance to the Chamber in order for the necessary logistical arrangements to be made.²⁰⁸ The Single Judge of PTC II in the *Ruto et al.* and *Muthaura et al.* case set a deadline within which the parties could communicate their intention to call witnesses at the hearing. In case no information to that effect was submitted, the Single Judge ruled not to permit any *viva voce* testimony at the hearing.²⁰⁹ Finally, the Prosecutor (and the defence) was ordered to inform the Chamber of the subject-matter and scope of the proposed testimony of each witness so as to allow the Chamber to organize the proceedings, 'including the making of any necessary determinations as to the relevance and admissibility of the evidence to be obtained through the proposed oral testimony'.²¹⁰ As to the Chamber's authority to reduce the number of witnesses proposed to appear at the confirmation hearing, the familiarization process of witnesses, and the probative value of oral testimony, see mn 102, 104 and 107.

- 94 Rule 122(9) stipulates that the rules of evidence applicable at trial are to apply during the confirmation hearing, subject to the provisions of article 61 of the Statute (see also mn 123).²¹¹
- 95 Considering that the evidentiary threshold of 'substantial grounds to believe' is relatively high at this stage and that the Prosecutor should have largely completed the investigation by the time of the confirmation hearing, it is upon the Prosecutor to select the 'best pieces of evidence in order to convince the Chamber that the charges brought against the [suspect] shall be confirmed'.²¹² Perhaps the most outspoken comment summarizing the expectations of the Judges as regards the quality of the Prosecutor's evidence at the article 61 stage were made by the PTC I majority in the *Laurent Gbagbo* case:

²⁰⁶ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-153, Decision Requesting the Parties to Submit Information for the preparation of the Confirmation of Charges Hearing, PCT II, 29 June 2011, para. 9; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-181, Decision Requesting the Parties to Submit Information for the preparation of the Confirmation of Charges Hearing, PCT II, 20 July 2011, para. 9.

²⁰⁷ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-107, Decision requesting observations from the parties on the schedule of the confirmation of charges hearing, PTC I, 4 May 2012, para. 11; *Prosecutor v. Charles Blé Goudé*, ICC-02/11-02/11-T-4-Red-ENG, Transcript of Hearing, 1 May 2014, 10, lines 12–19.

²⁰⁸ In the *Ruto et al.* and *Muthaura et al.* case, the Victims and Witnesses Unit (VWU) indicated that a minimum period of 6 weeks prior to the commencement of the hearing was needed to make the necessary arrangements. In the *Laurent Gbagbo* case, the VWU filed on 16 April 2012 in the record of the case the 'Victims and Witnesses Unit's Unified Protocol on the practices used to prepare and familiarize witnesses for giving testimony', ICC-02/11-01/11-93-Anx1. This protocol summarizes the practice and to-date existing jurisprudence on familiarization of witnesses appearing before the Court at any stage of the proceedings. According to para. 14 of the Protocol, the calling party is requested to notify the VWU 35 days before the witness is scheduled to appear for testimony.

²⁰⁹ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-153, Decision Requesting the Parties to Submit Information for the preparation of the Confirmation of Charges Hearing, PCT II, 29 June 2011, para. 12; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-181, Decision Requesting the Parties to Submit Information for the preparation of the Confirmation of Charges Hearing, PCT II, 20 July 2011, para. 12.

²¹⁰ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-153, Decision Requesting the Parties to Submit Information for the preparation of the Confirmation of Charges Hearing, PCT II, 29 June 2011, para. 11; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-181, Decision Requesting the Parties to Submit Information for the preparation of the Confirmation of Charges Hearing, PCT II, 20 July 2011, para. 11. Similarly, *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-326, Order requesting the parties to submit views and proposals on the schedule of the confirmation hearing, PCT I, 2 August 2011.

²¹¹ Rule 122(9) reads: 'Subject to the provisions of article 61, article 69 shall apply *mutatis mutandis* at the confirmation hearing'. *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-55, Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties, PTC III, 31 July 2008, para. 10; *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-308, Decision on Admissibility of Evidence and Other Procedural Matters, PTC II, 8 June 2014.

²¹² *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-153, Decision Requesting the Parties to Submit Information for the preparation of the Confirmation of Charges Hearing, PCT II, 29 June 2011, para. 8; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-181, Decision Requesting the Parties to Submit Information for the preparation of the Confirmation of Charges Hearing, PCT II, 20 July 2011, para. 8.

‘[T]he Chamber notes with serious concern that in this case the Prosecutor relied heavily on NGO reports and press articles with regard to key elements of the case, including the contextual elements of crimes against humanity. Such pieces of evidence cannot in any way be presented as the fruits of a full and proper investigation by the Prosecutor in accordance with article 54(1)(a) of the Statute. Even though NGO reports and press articles may be useful introduction to the historical context of a conflict situation, they do not usually constitute a valid substitute for the type of evidence that is required to meet the evidentiary threshold for the confirmation of charges.’²¹³

VI. Paragraph 6: Rights of the suspect at the hearing

Prior to the confirmation hearing, the defence has the obligation to engage in the *inter partes* disclosure process with the Prosecutor, to the extent foreseen by the Rules. In particular:

- (a) Pursuant to rule 78, the defence shall permit the Prosecutor to inspect any books, documents, photographs and other tangible objects in the possession or control of the defence, which are intended for use by the defence as evidence for the purposes of the confirmation hearing or at trial.
- (b) Pursuant to rule 79, the defence shall notify the Prosecutor of its intent to: (i) raise the existence of an alibi, in which case the notification shall specify the place or places at which the accused claims to have been present at the time of the alleged crime and the names of witnesses and any other evidence upon which the accused intends to rely to establish the alibi; or (ii) raise a ground for excluding criminal responsibility provided for in article 31, paragraph 1, in which case the notification shall specify the names of witnesses and any other evidence upon which the accused intends to rely to establish the ground.

The general principles of disclosure and the seeking of protective measures (for example, redactions) as explained in relation to the Prosecutor’s disclosure obligations, remain the same for the defence (see mn 59 *et seq.*). In this context, it is worth noting that rule 81(6) explicitly allows the defence to withhold evidence in its possession or control *vis-à-vis* the Prosecutor due to the grave endangerment of the security of a witness or his or her family (article 68(5)). Rule 81(6) reads:

‘Where material or information is in the possession or control of the defence which is subject to disclosure, it may be withheld in circumstances similar to those which would allow the Prosecutor to rely on article 68, paragraph 5, and a summary thereof submitted instead. Such material and information may not be subsequently introduced into evidence during the confirmation hearing or the trial without adequate prior disclosure to the Prosecutor.’

During the disclosure process, the defence must prepare and provide any other auxiliary document as ordered by the Chamber. In the jurisprudence of PTC III/II this concerned mainly the elaboration of an in-depth analysis chart explaining all relevant evidence on which the defence intends to rely at the confirmation hearing.²¹⁴ As for the Prosecutor, reports, memoranda or other internal documents prepared by the defence, its assistants or representatives in connection with the investigation or preparation of the case are not subject to disclosure (rule 81(1)).

²¹³ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-432, Decision adjourning the hearing on the confirmation of charges pursuant to article 61(7)(c)(i) of the Rome Statute, PCT I, 3 June 2013, para 35.

²¹⁴ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-232, Decision on the Submission of an Updated, Consolidated Version of the In-depth Analysis Chart of Incriminatory Evidence, PTC III, 10 November 2008; *ibid.*, Decision on the Disclosure of Evidence by the Defence, ICC-01/05-01/08-311, PTC III, 5 December 2008; *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-44, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 6 April 2011, para. 22; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-48, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 6 April 2011, para. 23; *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-47, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, PTC II, 12 April 2013, para. 30.

- 98 At the confirmation hearing, the suspect charged has the right to remain silent; he or she is under no obligation to engage actively in the discussion at the hearing.²¹⁵ Rather, the suspect is **entitled**, according to article 61(6), to (a) object to the charges as contained in the (amended) DCC; (b) challenge the evidence presented by the Prosecutor, as contained in the (amended) list of evidence; and (c) present evidence of his or her own. As PTC II held, those rights cannot be denied to the suspect and the Chamber ‘has the responsibility to put the defence in a position to meaningfully exercise them’.²¹⁶
- 99 The defence typically **objects to the charges** at the hearing presenting its arguments on facts and law. It may also choose to make written submissions no later than three days before the hearing on points of fact and on law (rule 121(9)).²¹⁷ Likewise, in case the defence intends to raise the existence of an alibi (rule 79(1)(a)), or a ground for excluding criminal responsibility pursuant to article 31(1) (rule 79(1)(b)), the defence must notify the Prosecutor sufficiently ‘in advance of the hearing to enable the Prosecutor to prepare adequately (rule 79(2)). Rule 121(9) clarifies that the defence must file such written submission with the Chamber no later than three days in advance of the hearing.
- 100 The defence may **challenge the evidence** presented by the Prosecutor which is contained in the (amended) list of evidence. This typically occurs during the hearing in response to the presentation of the evidence by the Prosecutor and the last written submissions after the hearing, if authorized by the PTC (see mn 116). As was argued by the authors of the previous edition, the confirmation hearing provides the suspect with a useful opportunity to be informed of important evidence in the possession of the Prosecutor and to test the value of such evidence, at least in a preliminary way, during a judicial proceeding.
- 101 Lastly, the defence has the right to **present its own evidence**. If it decides to make use of this right, it shall submit a list of evidence no later than 15 days prior to the date of the confirmation hearing (rule 121(6)). By virtue of the same rule, the defence may also present a list of evidence that it intends to present in response to any amended charges or a new list of evidence provided by the Prosecutor (see mn 84–85). Last minute difficulties in the disclosure process prompt at times the defence to request an extension of the rule 121(6) deadline. Such request was authorized based on articles 61(6)(c) and 67(1)(e) and not regulation 35(1) of the Regulations as the latter provision applies exclusively to time limits prescribed by the Regulations or ordered by the PTC.²¹⁸
- 102 Suspects, such as *Abu Garda* and *Muthaura* gave an **unsworn testimony** (article 67(1)(h)) at the confirmation hearing. PTC I ruled to consider an unsworn testimony to be part of the defence submission and not as evidence.²¹⁹ In the *Muthaura et al.* case, then suspect *Kenya-tta* made a **sworn testimony** at the hearing. Noteworthy in this respect is PTC II’s approach

²¹⁵ See, for example, *Prosecutor v. Abdallah Banda Abakaer Nourain/Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-103, Decision on issues related to the hearing on the confirmation of charges, PTC I, 17 November 2010, para. 6.

²¹⁶ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-221, Order to the Defence to Reduce the Number of Witnesses to Be Called to Testify at the Confirmation of Charges Hearing and to Submit an Amended List of *Viva Voce* Witnesses, PTC II, 25 July 2011, para. 14; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-226, Order to the Defence to Reduce the Number of Witnesses to Be Called to Testify at the Confirmation of Charges Hearing and to Submit an Amended List of *Viva Voce* Witnesses, PTC II, 10 August 2011, para. 18.

²¹⁷ A similar request of the legal representatives of victims to make written submissions before the hearing on points of facts and law in response to the DCC was rejected by PTC II. The Chamber argued that the hearing had yet to take place and that the statutory procedural regime did not provide the victims with such opportunity. Nevertheless, it clarified that it would consider the arguments of the victims, at the appropriate stage, see *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-274, Decision on the ‘Request by the Victims’ Representative for authorization by the Chamber to make written submissions on specific issues of law and/or facts’, PCT II, 19 August 2011.

²¹⁸ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-267, Decision on the Defence Requests for Extension of Time Limit for Disclosure in Compliance with the E-Court Protocol, PTC II, 16 August 2011, paras 12–13.

²¹⁹ *Prosecutor v. Bahar Idriss Abu Garda*, ICC-02/05-02/09-243-Red, Decision on the Confirmation of Charges. PTC I, 8 February 2010, paras 53–55.

not to attach *a priori* any higher probative value to *Kenyatta's* testimony as such but to insist that the probative value of live testimony 'will depend on the Chambers' assessment on a case-by-case basis and in light of the evidence as a whole'.²²⁰ It follows that for PTC II it did not make a difference whether the suspect testified under oath or not, stressing its intention to consider the testimony on a case-by-case basis and in light of the entirety of the evidence.

The person charged may also **call witnesses to testify** at the hearing. However, as is the case with the Prosecutor, PTCs advised also the defence not to call witnesses considering the limited nature and scope of the confirmation hearing and the impact of calling witnesses on the expeditiousness of the proceedings (see mn 92).

In the *Ruto et al.* case, the defence of the three suspects indicated to call in total 43 witnesses;²²¹ in the *Muthaura et al.* case, the defence of the three suspects indicated to call in total 23 witnesses.²²² The Single Judge, acting on behalf of PTC II in those two cases, deemed the number of live witnesses proposed as 'manifestly excessive and disproportionate to the purpose of the confirmation of charges hearing' pointing out that, if permitted, the confirmation hearing 'would ultimately constitute a mere anticipation of the trial stage of the case'.²²³ Accordingly, she reduced the number of witnesses, noting that

'whilst it falls within the realm of the Defence teams to decide their best strategy in order to serve the interests of the suspects, this does not mean that all the evidence to be presented needs to be obtained through *viva voce* witnesses. This is, in particular, because live testimony has a significant impact on the organization of the confirmation of charges hearing and, more generally, on the expeditiousness of the proceedings'.²²⁴

With a view to determining the number of witnesses permitted, the Single Judge of PTC II drew upon the information furnished by the defence on the subject-matter and scope of the proposed testimony of each witness.²²⁵ Having identified a duplication of the evidence which the defence intended to obtain through the oral testimonies of witnesses, the Single Judge ultimately reduced the number of live witnesses to two per suspect.²²⁶ The choice as to which witness would appear was left to be decided by the defence. While the approach of the Single Judge can be viewed as a proper measure to manage the case and expedite the proceedings,

²²⁰ *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, para. 85.

²²¹ The defence for *Ruto* indicated to call 25 witnesses; the defence for *Kosgey* indicated to call 3 witnesses; and the defence for *Sang* indicated to call 15 witnesses.

²²² The defence for *Muthaura* indicated to call 9 witnesses; the defence for *Kenyatta* indicated to call 4 witnesses; and the defence for *Ali* indicated to call 10 witnesses.

²²³ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-221, Order to the Defence to Reduce the Number of Witnesses to Be Called to Testify at the Confirmation of Charges Hearing and to Submit an Amended List of *Viva Voce* Witnesses, PCT II, 25 July 2011, para. 9; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-226, Order to the Defence to Reduce the Number of Witnesses to Be Called to Testify at the Confirmation of Charges Hearing and to Submit an Amended List of *Viva Voce* Witnesses, PCT II, 10 August 2011, para. 13.

²²⁴ *Prosecutor v. William Samoei Ruto, et al.*, ICC-01/09-02/11-221, Order to the Defence to Reduce the Number of Witnesses to Be Called to Testify at the Confirmation of Charges hearing and to Submit an Amended List of *Viva Voce* Witnesses, PTC II, 25 July 2011, para. 15. Similarly *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-226, Order to the Defence to Reduce the Number of Witnesses to Be Called to Testify at the Confirmation of Charges Hearing and to Submit an Amended List of *Viva Voce* Witnesses, PCT II, 10 August 2011, para. 20.

²²⁵ The suspects in the *Ruto et al.* case had submitted the list of live witnesses together with the information on the subject-matter of their respective expected testimonies to the Chamber only. The Prosecutor was denied access to this 'provisional list' submitted prior to the disclosure deadline provided for in rule 121(6), *Prosecutor v. William Samoei Ruto, et al.*, ICC-01/09-02/11-221, Order to the Defence to Reduce the Number of Witnesses to Be Called to Testify at the Confirmation of Charges Hearing and to Submit an Amended List of *Viva Voce* Witnesses, PTC II, 25 July 2011, paras 26–28.

²²⁶ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-02/11-221, Order to the Defence to Reduce the Number of Witnesses to Be Called to Testify at the Confirmation of Charges hearing and to Submit an Amended List of *Viva Voce* Witnesses, PTC II, 25 July 2011, paras 17–19; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-226, Order to the Defence to Reduce the Number of Witnesses to Be Called to Testify at the Confirmation of Charges Hearing and to Submit an Amended List of *Viva Voce* Witnesses, PCT II, 10 August 2011, paras 22–24.

reducing the number of witnesses to two per suspect is arbitrary and is not supported by convincing legal reasoning in the decisions concerned. Admittedly, given the broad wording of article 61(6)(c), it is difficult to deny the defence the right to call live witnesses as a matter of law. However, the *ratio* underlying the confirmation hearing cannot be to turn it into a mini-trial and to anticipate the discussion at trial. The present question is a difficult one for which perhaps no satisfactory answer is available.

- 105 The same approach was taken in the *Mbarushimana* case around the same time as the *Kenya* cases. The defence had indicated to PCT I that it may call an expert witness, ‘subject to the Chamber’s decision and the expert’s availability’; yet, it also indicated its intention to rely on the written report of same expert witness. Like PTC II, this PTC also drew upon the limited scope of and nature of the confirmation hearing and the need to ensure expeditiousness. Since the defence indicated it would rely on the expert report for the purposes of the hearing, PTC I held that the oral testimony of the expert witness was not necessary.²²⁷
- 106 Evidence through oral testimony is not accorded automatically a higher **probative value** than documentary evidence. Indeed, the Statute does not establish a hierarchy between types of evidence. Rather, as PTC II attested, ‘the determination of the probative value of each piece of evidence submitted before the Chamber shall be conducted on a case-by-case basis, in light of different criteria, such as its relevance, the source from which it originates, its direct or indirect nature, its credibility, reliability, trustworthiness and genuineness’.²²⁸
- 107 Witnesses appearing before the Court undergo a **familiarization process** with the assistance of the Victims and Witnesses Unit (VWU). Upon arrival at the seat of the Court, the VWU organizes the courtroom familiarization, including the explanation of the role of a witness and the procedure of examination. A courtesy meeting with representatives of the calling party, the opposing party and legal representatives of victims is held to familiarize the witnesses with those individuals who will examine them. Prior to their testimony, witnesses may re-read their prior statement, if need be, with reading assistance, or listen to the tape recordings of their interview to re-fresh their memory.²²⁹ For the purpose of testimony, the PTC may order protective measures under rules 87 and 88, if necessary. Protective measures may include the use of a pseudonym, voice and face distortion or holding the hearing *in camera*. Before testifying, the witness makes a solemn undertaking (rule 66) and the PTC shall notify the witness about his or her right under rule 74 not to incriminate him- or herself, and of the offence defined in article 70(1)(a). During the testimony, the witness may be assisted by counsel (rule 74(10)).²³⁰ The issue of **witness proofing** by the calling party has to date been addressed at the pre-trial stage only by PTC I in the *Lubanga* case prohibiting such practice.²³¹ However, witness proofing did not take place in any of the cases before PTCs.

²²⁷ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-356, Decision on the schedule of the confirmation hearing, PTC I, 12 August 2011.

²²⁸ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-221, Order to the Defence to Reduce the Number of Witnesses to Be Called to Testify at the Confirmation of Charges Hearing and to Submit an Amended List of *Viva Voce* Witnesses, PTC II, 25 July 2011, para. 14; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-275, Decision on the Defence Applications for Leave to Appeal the Single Judge’s Order to Reduce the Number of *Viva Voce* Witnesses, PTC II, 1 September 2011, para. 26.

²²⁹ Details as to the familiarization process can be found, for example, in the latest version of the ‘Victims and Witnesses Unit’s Unified Protocol on the practices used to prepare and familiarize witnesses for giving testimony’, filed in the record of the *Laurent Gbagbo* case, ICC-02/11-01/11-93-Anx1.

²³⁰ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-304, Order to the Registrar to Provide Independent Legal Advice to Witnesses, PTC II, 30 August 2011; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-321, Decision on the Schedule for the Confirmation of Charges Hearing, PTC I, 13 September 2011, para. 27.

²³¹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-679, Decision on the Practices of Witness Familiarisation and Witness Proofing, PTC I, 8 November 2006. The prohibition of the practice of witness proofing was later confirmed by several TCs, see *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1049, Decision Regarding the Practices Used to Prepare and Familiarise Witnesses for Giving Testimony at Trial, TC I, 30 November 2007; *Prosecutor v. Germain Katanga/Mathieu Ngudjolo Chui*, ICC-01/04-01/07-1134, Decision on

With a view to allowing the PTC to exercise its functions under article 69(4) and the opposing party to prepare adequately for the testimony of the witness, the calling party is required to submit information detailing the subject-matter and **scope of the expected testimony** of the witness.²³²

The authors of the previous edition questioned the usefulness of submitting defence evidence during the confirmation hearing. In their view, at the time, while the Statute invites the defence to present evidence at this stage, it is not obvious that contradictory evidence adduced by the defence can have any effect upon the determination of the existence of 'sufficient evidence'. The confirmation proceedings held up until now may allow a different appraisal. The charges against four suspects (*Abu Garda, Mbarushimana, Kosgey, Ali*) were not confirmed and respective proceedings were terminated. Those suspects did not have to face trial proceedings, extending possibly over several years. This result is (also) owed to the fact that the defence took an active role during the confirmation stage, challenging the evidence of the Prosecutor and presenting evidence of its own.

VII. Paragraph 7: The decision of the Pre-Trial Chamber

All efforts during the pre-trial phase culminate in the holding of the confirmation hearing. The confirmation hearing is an 'evidentiary hearing' before a PTC with three judges at which the suspect has the right to be present and to contest the evidence (see mn 100 *et seq.*).²³³ Following the hearing, the PTC renders its decision under article 61(7) determining whether the case merits going to trial. Notably, evidentiary weaknesses of the case or interpretative problems of the statutory documents are revealed which may foreshadow the discussion at trial, as the case may be.²³⁴

1. The confirmation hearing

The conduct of the confirmation hearing is, to a certain extent, regulated in rule 122. Regularly, the PTCs decide on the **schedule of the hearing** specifying in detail the conduct of discussion.²³⁵ It may follow a typical adversarial structure or may consist in discussing with

a number of procedural issues raised by the Registry, TC II, 14 May 2009, para. 18; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-1016, Decision on the Unified Protocol on the practices used to prepare and familiarise witnesses for giving testimony at trial, TC III, 18 November 2010; with dissenting opinion of Judge Kuniko Ozaki, ICC-01/05-01/08-1039, Partly Dissenting Opinion of Judge Kuniko Ozaki on the Decision on the Unified Protocol on the practices used to prepare and familiarise witnesses for giving testimony at trial. *Prosecutor v. Jean-Pierre Bemba Gombo et al.*, ICC-01/05-01/13-1252, Decision on Witness Preparation and Familiarisation, TC VII, 15 September 2015. Only TC V and VI have hitherto allowed the practice of pre-testimony 'witness preparation' by the calling party, see *Prosecutor v. William Samoei Ruto/Joshua Arap Sang*, ICC-01/09-01/11-524, Decision on witness preparation, TC V, 2 January 2013; *Prosecutor v. Francis Kirimi Muthaura/Uhuru Muigai Kenyatta*, ICC-01/09-02/11-588, Decision on witness preparation, TC V, 2 January 2013; *Prosecutor v. Bosco Ntaganda*, No. ICC-01/04-02/06-652, Decision on witness preparation, TC VI 16 June 2015.

²³² *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-316, Decision on the Defence Request for Amendment of the List of Viva Voce Witnesses, PTC II, 12 September 2011, para. 11; *ibid.*, ICC-01/09-02/11-331, Decision on the 'Urgent Request to Replace One Viva Voce Witness due to Unforeseen Circumstances', PTC II, 15 September 2011, para. 11; *ibid.*, ICC-01/09-02/11-226, Order to the Defence to Reduce the Number of Witnesses to Be Called to Testify at the Confirmation of Charges Hearing and to Submit an Amended List of Viva Voce Witnesses, PTC II, 10 August 2011, para. 28. *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-221, Order to the Defence to Reduce the Number of Witnesses to Be Called to Testify at the Confirmation of Charges Hearing and to Submit an Amended List of Viva Voce Witnesses, PTC II, 25 July 2011, para. 23.

²³³ See also *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-514 (OA4), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 16 December 2011 entitled 'Decision on the confirmation of charges', AC, 30 May 2012, paras 39 and 43.

²³⁴ In case of the confirmation of the indictment at the ICTY, the reviewing Judge may make the following decisions or requests: (i) to request the Prosecutor to present additional material in support of any or all counts, (ii) to confirm each count, (iii) to dismiss each count, or (iv) to adjourn the review so as to give the Prosecutor the opportunity to modify the indictment (rule 47 (F) of the ICTY Rules).

²³⁵ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-678, Decision on the schedule and conduct of the confirmation hearing, PTC I, 7 November 2006; *Prosecutor v. Germain Katanga/Mathieu Ngudjolo Chui*, ICC-

both parties the law and evidence following a topic-oriented approach, anticipating in fact the structure of the article 61(7) decision. Rule 122(1), second sentence, establishes the authority of the Presiding Judge to determine how the hearing is to be conducted, including the order and the conditions under which he or she intends the evidence contained in the record of the proceedings to be presented. With the exception of the *Lubanga* case, in all other cases, the directions as to the hearing were given by the Single Judge.

- 112 At the beginning of the confirmation hearing, the Presiding Judge of the PTC shall ask the officer of the Registry assisting the Chamber to read out the charges as presented by the Prosecutor in the DCC. Before hearing the matter on the merits, the Presiding Judge shall ask the Prosecutor and the suspect(s) whether they intend to raise objections or make observations concerning an issue related to the proper conduct of the proceedings prior to the confirmation hearing (rule 122(3)). At no subsequent point may these objections and observations be raised or made again in the confirmation or trial proceedings (rule 122(4)).
- 113 The hearing on the merits begins with the opening statements of the Prosecutor, the victims participating, and the suspect(s). Thereafter, the discussion on the merits unfolds following the directions of the Presiding Judge (rule 122(7)). After the arguments have been exchanged and the evidence has been heard, the Prosecutor and the victims participating make final observations, followed by those of the suspect(s) (rule 122(8)).
- 114 In case the PTC decides to proceed with the **confirmation hearing in absentia**, rules 121 and 122 regulating the conduct of proceedings shall apply *mutatis mutandis* (rule 126(1)). If the PTC authorizes the hearing in the absence of the person charged, but it authorizes the person to be represented by counsel, the latter shall have the opportunity to exercise the rights of that person (rule 126(2)).
- 115 The **duration** of the hearing is determined by the Chamber and depends on factors, such as the number of suspects, the number of charges to be discussed, whether witnesses will appear, and the availability of courtroom support staff²³⁶. Before deciding on the schedule of the hearing, the parties are usually asked to submit observations on the time needed to present their arguments and evidence. PTCs have endeavored to keep the length of the confirmation hearing to a minimum so as to avoid the impression of a ‘mini-trial’ or an anticipation of the discussion at trial. In the confirmation hearings conducted so far, PTCs spent the following numbers of days in Court: *Lubanga*: 12 days; *Katanga/Ngudjolo*: 11 days; *Bemba*: 4 days; *Abu Garda*: 10 days; *Banda/Jerbo*: 0.5 day; *Mbarushimana*: 4 days; *Ruto et al.*: 7 days; *Muthaura et al.*: 12 days; *Laurent Gbagbo*: 8 days; *Ntaganda*: 5 days; *Blé Goudé*: 4 days. When compared with the number of trial hearings, it is clear that the PTC Judges succeeded in keeping the days in Court to a minimum thus honoring the limited nature of the confirmation proceedings.
- 116 Although not provided for in the statutory documents, all PTCs have allowed the parties and participants to submit, after the confirmation hearing, final **written submissions** on the arguments raised and evidence discussed during the trial. This privilege was first granted in

01/04-01/07-587, Decision on the Schedule for the Confirmation Hearing, PTC I, 13 June 2008; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-336, Decision on the Schedule for the Confirmation of Charges Hearing, PTC III, 29 December 2008; *Prosecutor v. Bahar Idriss Abu Garda*, ICC-02/05-02/09-182, Decision Amending the Schedule for the Confirmation Hearing, PTC I, 16 October 2009; *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-294, Decision on the Schedule for the Confirmation of Charges Hearing, PTC II, 25 August 2011; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-321, Decision on the Schedule for the Confirmation of Charges Hearing, PTC II, 13 September 2011; *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-413, Second decision on the schedule of the confirmation hearing, PTC I, 12 September 2011; *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-397, Decision on the schedule for the confirmation of charges hearing, PTC I, 12 February 2013; *Prosecutor v. Charles Blé Goudé*, ICC-02/11-02/11-165, Decision on the schedule for the confirmation of charges hearing, PTC I, 22 September 2014; *Prosecutor v. Bosco Ntaganda*. No particular schedule was established for the hearing in the *Banda/Jerbo* case; it lasted only one afternoon.

²³⁶ Worthy of mention in this regard is regulation 64(1), first sentence, of the Regulations of the Registry which prescribes that ‘[a]t hearings, a minimum of four interpreters shall work in two booths, an English and a French one, for up to two periods of two hours separated by a 30-minute break or for three periods of on and a half hours with a break of at least one and half hours between the second and the third period’.

the *Lubanga* case²³⁷ and has been the practice of PTCs ever since. At the end of the hearing, the Presiding Judge will typically determine until when and within which page limit such submissions by participants can be made. Most noteworthy, the 60-day time limit under regulation 53 of the Regulations,²³⁸ within which the decision under article 61(7) is delivered, is effectively varied as the time limit commences as of the moment, the last written submission (regularly that of the defence) has been received (regulation 35 of the Regulations).²³⁹ In this respect, the recent order of the Single Judge in the *Ongwen* case not to allow any written filings after the closure of the hearing, is a welcome development harmonizing the practice of the Court with the wording of regulation 53 of the Regulations. It also forces the parties to be focused in their submissions.²⁴⁰

The confirmation hearings take place at the seat of the Court in The Hague (articles 3(1) and 62), unless otherwise decided by the Court. In the *Kenya* cases, PTC II explored the option whether it would be possible to conduct the confirmation hearings *in situ* with a view to bringing the proceedings ‘closer’ to the affected communities in Kenya.²⁴¹ The observations were sought from the Prosecutor, the suspects and the victims participating in the case.²⁴² With the exception of one suspect, all participants expressed reservations in relation to this proposal for security reasons. As a result, the Chamber ensured that the concerns submitted were forwarded to the competent entities entrusted to take a decision and confirmed, for its part, that it would not consider further the option to hold the hearing in Kenya.²⁴³ In the *Ongwen* case, PTC II recommended to the Presidency to hold the confirmation hearing in Uganda.²⁴⁴

2. The decision of the PTC – Introductory remarks

The early decisions of the PTCs have been criticized for being too long. While this may be true, especially for the first set of decisions, the page number alone is not a suitable argument by way of which the quality of the first article 61(7) decisions can be truly assessed.²⁴⁵ Certainly, PTCs in recent proceedings issued shorter decisions as they were able to rely more and more on previous jurisprudence and established practices. They also embraced the

²³⁷ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-T-47-ENG, Transcript of Hearing, PTC I, 28 November 2006, 150, lines 2–17. The Presiding Judge also requested that the submissions be made in the French language, presumably with the aim to avoid any translation requests of the filings which could impact the process of rendering the article 61(7) decision. In general, documents and material may be filed with the Registry shall be made in either English or French (regulation 39 of the Regulations).

²³⁸ ‘The written decision of the Pre-Trial Chamber setting out its findings on each of the charges shall be delivered within 60 days from the date the confirmation hearing ends’.

²³⁹ A notable exception to this practice is the course taken by PCT I in the *Lubanga* case which, despite the written submissions of the parties announced at the end of the confirmation hearing that it would render its decision 60 days from the date the confirmation hearing ended.

²⁴⁰ *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-T-6-ENG, Transcript of Hearing, PTC II, 19 May 2015, 23, lines 6–13.

²⁴¹ Rule 100 provides the procedure for changing the place of the proceedings. The old version of rule 100 entrusted the decision to sit in a State other than the host State to the judges in plenary session (decision to be taken by two-thirds majority). The rule was amended by resolution ICC-ASP/12/Res.7 and now entrusts the decision to the Presidency.

²⁴² *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-106, Decision Requesting Observations on the Place of the Proceedings for the Purposes of the Confirmation of Charges Hearing, PTC II, 3 June 2011; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-102, Decision Requesting Observations on the Place of the Proceedings for the Purposes of the Confirmation of Charges Hearing, PTC II, 3 June 2011.

²⁴³ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-153, Decision Requesting the Parties to Submit Information for the Preparation of the Confirmation of Charges Hearing, PTC II, 29 June 2011, para. 14; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-181, Decision Requesting the Parties to Submit Information for the preparation of the Confirmation of Charges Hearing, PCT II, 20 July 2011, para. 14.

²⁴⁴ *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-300, Recommendation to the Presidency to hold the confirmation of charges hearing in the Republic of Uganda, PTC II, 10 September 2015.

²⁴⁵ The length of the decisions is also dependent on a number of factors, such as the number of suspects, charges and arguments raised, the factual scope of the case, and whether challenges to jurisdiction or admissibility are ruled upon at the same time (rule 58(2), third sentence).

feedback of some TCs as regards the clarity and format of the confirmation decision and designed the confirmation decisions accordingly.²⁴⁶

- 119 The PTC determination under article 61(7) is made ‘**on the basis of the hearing**’. This has been interpreted by PTCs to encompass more than the oral submissions at the hearing, namely the submissions of the parties prior to the hearing (DCC, lists of evidence, other auxiliary documents, submissions on points of fact and law), the oral submissions of participants at the hearing and the final written submissions of all participants after the hearing, when available.
- 120 The **evidentiary threshold** against which the PTC must assess the evidence is the same as for the Prosecutor under article 61(5) (see mn 87). The evidentiary standard is relatively high and cannot be reduced to a mere *prima facie* assessment.²⁴⁷
- 121 As regards the evidentiary material on which the PTC bases its article 61(7) decision, the Chamber may rely on any piece of **evidence** presented by the Prosecutor and the defence. In some instances, the PTC has used its authority to request the submission of evidence it considered ‘necessary for the determination of the truth’ (article 69(3), second sentence). This authority has been held not to interfere with the role of neither the Prosecutor nor the defence. In the words of PTC II:

‘The Single Judge also wishes to provide some clarifications on the Prosecutor’s erroneous arguments that the Chamber intrudes into the role of the Prosecutor and the Defence, and assumes control over the presentation of both parties’ cases. By raising these arguments, the Prosecutor disregards the Chamber’s statutory mandate, in particular its filtering function, and its responsibility to *contribute* to the establishment of the truth, which crystallizes ultimately in the final decision on the accused’s innocence or guilt. Such contribution by the Pre-Trial Chamber is made in the framework of the confirmation of charges stage when determining whether or not there are substantial grounds to believe that the suspect has committed the crime(s) charged. Fulfilling its mandate to *contribute* to the establishment of the truth as mentioned above, the Chamber may resort to article 69(3), second sentence, of the Statute, which authorizes the Chamber ‘to request the submission of all evidence that it considers necessary’ for its specific determination at the end of the pre-trial stage, in addition to other evidence which has been presented by the parties. Hence, article 69(3), second sentence, of the Statute implies that such evidence must not have been presented previously by either party, but is known to the Chamber, and could, after it is submitted by dint of article 69(3) of the Statute, be discussed, contested and analyzed by both the Prosecutor and the Defence during the confirmation of charges hearing. Thus, it is entirely for the Chamber to base its determination, or parts thereof, on such evidence namely, after the Chamber has requested its submission at the confirmation of charges hearing and after the parties have made their observations, if any, at the hearing. Against the backdrop of these fundamental principles, the Single Judge considers the Prosecutor’s arguments related to the Third Issue, including the simplistic reference to the possible slow-down of proceedings as wholly hypothetical and in disregard of such principles’ (footnote omitted).²⁴⁸

- 122 When making its determination, the PTC reviews the Prosecutor’s evidentiary material by taking also into account the arguments and evidence presented by the defence. Whether the principle *in dubio pro reo* is applicable at this stage, is discussed controversially in the PTC jurisprudence. While PTC II in the *Bemba* case declared this principle fully applicable at the

²⁴⁶ See, for example, *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-1547, Decision on the Filing of a Summary of the Charges by the Prosecutor, TC II, 21 October 2009, paras 29–31; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-836, Decision on the defence application for corrections to the Document Containing the Charges and for the prosecution to file a Second Amended Document Containing the Charges, TC III, 20 July 2010, paras 29–31.

²⁴⁷ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-514 (OA4), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 16 December 2011 entitled ‘Decision on the confirmation of charges’, AC, 30 May 2012, footnote 79 and para. 43.

²⁴⁸ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-74, Decision on the ‘Prosecution’s Application for leave to Appeal the ‘Decision Setting the Regime for Evidence Disclosure and Other Related Matters’ (ICC-01/09-01/11-44)’, PTC II, 2 May 2011, para. 37; see also *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-77, Decision on the ‘Prosecution’s Application for leave to Appeal the ‘Decision Setting the Regime for Evidence Disclosure and Other Related Matters’ (ICC-01/09-02/11-48)’, PTC II, 2 May 2011, para. 34; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-75, Decision on the Prosecutor’s application for leave to appeal Pre-Trial Chamber III’s decision on disclosure, PTC III, 25 August 2008, paras 48–55.

article 61 stage,²⁴⁹ PTC I in the *Abu Garda* case rejected its relevance and expressed its preference to resolve any inconsistency, ambiguity or contradiction as a matter of sufficiency of the evidence.²⁵⁰ The approach of PTC I seems to be more appropriate. It is questionable whether the principle of *in dubio pro reo* is applicable at the confirmation stage, considering that the PTC has not yet assessed the *entirety* of the evidence in the case. However, such comprehensive analysis is a necessary prerequisite for applying the principle in the first place. It follows that the principle of *in dubio pro reo* can only be validly invoked at the end of the trial. Another factor diminishing the strength of the PTC II finding is that, while it stipulated the applicability of this principle, it never applied it in one of the cases before it. On a related matter, the extent to which the PTC may assess the evidence and resolve **inconsistencies or contradictions** has also been a bone of contention at the time. A recurring argument of the Prosecutor has been that the PTC accept as dispositive the Prosecutor's evidence as long as it is relevant and admissible; the PTC should not inquire into any ambiguities or inconsistencies of the evidence and evaluate the strengths and weaknesses of contradictory evidence, but take it 'at face value'. In support of his submission, the Prosecutor relied on jurisprudence of the *ad hoc* tribunals concerning mid-trial acquittals, as provided under rule 98*bis* of the ICTY Rules of Procedure and Evidence. The PTCs have repeatedly rejected such analogy and a restrictive interpretation of the applicable law under the Rome Statute, highlighting that the procedural regime of the ICC and that of the *ad hoc* tribunals cannot be compared.²⁵¹ Rather, they insisted that they assess the evidence freely (rule 63(2)), having regard to contradictions and inconsistencies in the evidence.²⁵² Ultimately, the AC in the *Mbarushimana* case confirmed the PTCs' uniform approach by drawing upon, *inter alia*, the filter function exercised by the PTC, the right of the suspect to challenge the Prosecutor's evidence (article 61(6)), the principle of free assessment of evidence (rule 63(2)) and the PTCs' discretionary powers to rule on admissibility of evidence under article 69(4).

'In determining whether to confirm charges under article 61 of the Statute, the Pre-Trial Chamber may evaluate ambiguities, inconsistencies and contradictions in the evidence or doubts as to the credibility of witnesses. Any other interpretation would carry the risk of cases proceeding to trial although the evidence is so riddled with ambiguities, inconsistencies, contradiction or doubts as to credibility that it is insufficient to establish substantial grounds to believe the person committed the crimes charged.'²⁵³

²⁴⁹ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-424, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, PTC II, 15 June 2009, para. 31. Applied by the same Chamber in *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, para. 41; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, para. 53.

²⁵⁰ For example, *Prosecutor v. Bahar Idriss Abu Garda*, ICC-02/05-02/09-243-Red, Decision on the Confirmation of Charges, PTC I, 8 February 2010, para. 43.

²⁵¹ See *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-514 (OA4), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 16 December 2011 entitled 'Decision on the confirmation of charges', AC, 30 May 2012, para. 43; *ibid.*, Decision on the confirmation of charges, PTC I, 16 December 2011, para. 45; *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2013, para. 58. *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, para. 72.

²⁵² See, for example, *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-465-Red, Decision on the confirmation of charges, PTC I, 16 December 2011, paras 45–47; *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, paras 55–61; see also Dissenting Opinion of Judge Hans-Peter Kaul, ICC-01/09-01/11-373, 169–171, paras 53–57; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, paras 67–75; see also Dissenting Opinion of Judge Hans-Peter Kaul, ICC-01/09-02/11-382-Red, 23 January 2012, 189–191, paras 58–62.

²⁵³ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-514 (OA4), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 16 December 2011 entitled 'Decision on the confirmation of charges', AC, 30 May 2012, para. 46.

But the AC also acknowledged limitations to the PTCs' ability to assess evidence freely and cautioned the PTCs to use this authority wisely in light of the purpose of the article 61 stage.

'This is not to say that the Pre-Trial Chamber's ability to evaluate the evidence is unlimited or that its function in evaluating the evidence is identical to that of the Trial Chamber. The Appeals Chamber recalls that the confirmation of charges hearing is not an end in itself but rather serves the purpose of filtering out those cases and charges for which the evidence is insufficient to justify a trial. This limited purpose of the confirmation of charges proceedings is reflected in the fact that the Prosecutor must only produce sufficient evidence to establish substantial grounds to believe the person committed the crimes charged. The Pre-Trial Chamber need not be convinced beyond a reasonable doubt, and the Prosecutor need not submit more evidence than is necessary to meet the threshold of substantial grounds to believe. This limited purpose is also reflected in the fact that the Prosecutor may rely on documentary and summary evidence and need not call the witnesses who will testify at trial. (...)

As the Appeals Chamber has acknowledged, the Prosecutor's reliance on documentary or summary evidence in lieu of in-person testimony will limit the Pre-Trial Chamber's ability to evaluate the credibility of witnesses. While it may evaluate their credibility, the Pre-Trial Chamber's determinations will necessarily be presumptive, and it should take great care in finding that a witness is or is not credible. The Prosecutor's reliance on summary evidence may also mean that the Pre-Trial Chamber will not be presented with all details of the evidence in the possession of the Prosecutor. Where the evidence is insufficient in this regard, the Appeals Chamber recalls that the Pre-Trial Chamber need not reject the charges but may adjourn the hearing and request the Prosecutor to provide further evidence' (footnote omitted).²⁵⁴

- 123 Finally, the recent practice of PTCs has been to refrain from ruling explicitly on the relevance and admissibility of every piece of evidence (article 69(4)) submitted for the Chamber's determination under article 61(7). Indeed, as confirmed by PTC I in the *Mbarushimana* case, a comprehensive admissibility analysis of the evidence is inapposite at this stage considering that (i) the Prosecutor may rely on documentary or summary evidence for the purpose of the confirmation of charges and does not need to call witnesses at the hearing; and (ii) this exercise may considerably delay the proceedings and pre-determine evidentiary matters which deserve to be properly decided upon at trial.²⁵⁵ PTC II in the *Ntaganda* case added recently that

'the Chamber is, as a matter of principle, not obliged to undertake a comprehensive assessment of 'relevance' or 'admissibility' of each piece of evidence in accordance with article 69(4) of the Statute, save for the application of article 69(7) of the Statute. The Appeals Chamber has acknowledged the discretion chambers enjoy under article 69(4) of the Statute, which is evidence from the clear wording of said provision (...). Rather, what is required by the Statute is that this Chamber bases its article 61(7) decision on such evidence which it considers relevant and of sufficient probative value. (...)

This approach finds further support in the language used in article 61 of the Statute which does not establish anywhere that the evidence, upon which the Chamber relies in its article 61(7) decision must previously have been 'admitted' or declared as 'relevant' pursuant to article 69(4) of the Statute. Rather, the Chamber is invited in article 61(7)(a) of the Statute to 'confirm those charges in relation to which it has determined that there is sufficient evidence (...)'. Whether the evidence is relevant, sufficiently connected to the charges, or has probative value is determined by the Chamber on a case-by-case basis in the article 61(7) decision' (footnotes omitted).²⁵⁶

²⁵⁴ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-514 (OA4), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 16 December 2011 entitled 'Decision on the confirmation of charges', AC, 30 May 2012, paras 47–48; PTC II in the Kenya cases added that inconsistencies within one or amongst several pieces of evidence do not lead to an automatic rejection of the particular evidence; rather, the Chamber is called upon to assess whether potential inconsistencies cast doubt on the overall credibility and reliability of the evidence and affect the probative value, taking into account the nature and degree of the inconsistency and the specific issue to which the inconsistency relates, *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11/382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PCT II, 23 January 2012, para. 92; *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PCT II, 23 January 2012, para. 86.

²⁵⁵ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-465-Red, PTC II, Decision on the confirmation of charges, 16 December 2011, paras. 43–44.

²⁵⁶ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-308, Decision on Admissibility of Evidence and Other Procedural Matters, PCT II, 8 June 2014, paras 25 and 27. Similarly, *Prosecutor v. Jean-Pierre Bemba Gombo*

Rather, the PTCs have confined their analysis to individual challenges related to specific pieces of evidence.²⁵⁷

The article 61(7) decision is rendered within 60 days from the date the confirmation hearing ends or from the date the final written submission of the defence is received (see mn 116). In almost all cases this time limit has been respected. Only in the *Ruto et al.* case, PTC II varied the 60-day deadline and decided to issue the article 61(7) decision later, namely simultaneously with that in the *Muthaura et al.* case, for fears that the issuance of the confirmation decision in only one case could spark violence in the country.²⁵⁸

Decisions under article 61(7) are not directly appealable but may be **appealed** if leave is granted by the PTC pursuant to article 82(1)(d).²⁵⁹ Considerations that the interlocutory appeal would address fundamental questions or would be beneficial for the entire Court do not *per se* warrant granting the appeal. PTCs have adopted a restrictive approach when deciding whether to grant leave to appeal the decision under any of the sub-paragraphs in article 61(7). To date, only two article 61(7) decisions have been reviewed on appeal: the decision rejecting all charges against *Mbarushimana*²⁶⁰ and the adjournment decision in the *Laurent Gbagbo*²⁶¹ case.

A decision under article 61(7) may be based on either sub-paragraphs (a) to (c) or on a **combination** thereof. In case the PTC confirms some of the charges but adjourns the hearing on other charges pursuant to article, 61(7), ‘it may decide that the committal of the person concerned to the Trial Chamber on the charges that it is ready to confirm shall be deferred pending the continuation of the hearing’ (rule 127, first sentence).

3. The decision confirming the charges

The decision confirming the charges paves the way for proceedings to take place before a TC. The decision of the PTC has a **binding effect** on the TC; the latter cannot review or simply alter without more the charges as contained in the decision confirming the charges. TC I in the *Lubanga* case held:

‘[I]n the judgment of the Bench, the Trial Chamber has no authority to ignore, strike down or declare null and void the charges as confirmed by the Pre-Trial Chamber. The power to frame the charges lies at the heart of the Pre-Trial Chamber’s functions, as set out in Article 61 of the Statute. (...)

It follows that the Trial Chamber would be acting *ultra vires* if it (...) attempted to interfere with, or strike down, the decision of the Pre-Trial Chamber on an issue over which it has exclusive control. The Pre-Trial Chamber and the Trial Chamber have separate functions at different stages of the proceedings, and there is no hierarchy of status between them. The Trial Chamber has not been given an appellate jurisdiction over any decision of the Pre-Trial Chamber (...), and most particularly the Trial Chamber has not been given a power to review the only decision of the Pre-

et al., ICC-01/05-01/13-749, Decision pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 11 November 2014, para. 14.

²⁵⁷ See, for example, *Prosecutor v. Jean-Pierre Bemba Gombo et al.*, ICC-01/05-01/13-749, Decision pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 11 November 2014, para. 14.

²⁵⁸ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-357, Decision on the Issuance of the Decision Pursuant to Article 61(7) of the Rome Statute, PCT II, 26 October 2011.

²⁵⁹ The ground in relation to the confirmation or denial of an indictment was deleted at one stage from Draft Article 81 as it was considered to lead to delays in the proceedings, see Report of the Preparatory Committee on the Establishment of an International Criminal Court, A/CONF.183/2/Add.I, 14 April 1998, 126–127; see also Brady and Jennings, in: Lee (ed.), *The Making of the Rome Statute* (1999), 300.

²⁶⁰ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-514 (OA4), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 16 December 2012 entitled ‘Decision on the confirmation of charges’, AC, 30 May 2012.

²⁶¹ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-572 (OA5), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 3 June 2013 entitled ‘Decision adjourning the hearing on the confirmation of charges pursuant to article 61(7)(c)(i) of the Rome Statute’, AC, 16 December 2013.

Trial Chamber that is definitely binding on the Trial Chamber: the Decision on the confirmation of charges. Contrary to the submissions of the prosecution, the Trial Chamber has severely limited authority as regards the content of the charges.²⁶²

- 128 The decision under article 61(7)(a) confirming the ‘charges’ comprises both the facts together with their (preliminary) legal characterization (see mn 42); it informs authoritatively the accused of the subject-matter of the upcoming trial. The *legal* characterization of the facts as confirmed is not binding on the TC²⁶³ and may be subject to change, pursuant to regulation 55 of the Regulations. The facts of the case, on the other hand, are ‘frozen’ with the decision of the PTC.²⁶⁴ It follows that the Prosecutor may not add new facts or substitute facts at trial which have not been discussed at the confirmation process (in contrast, the Prosecutor is entitled to present new *evidence* which was not presented at the confirmation stage). Hence, of crucial importance is that the PTC indicates in its decision exhaustively and with sufficient clarity all the facts upon which it confirmed the charges. Equally, facts in relation to which the evidence was considered insufficient should be clearly set out as such; they will not form part of the charges as confirmed. In case the PTC remains silent as to certain facts, it cannot be assumed that the PTC either rejected or confirmed them. In this case, those factual allegations also do not form part of the charges as confirmed. In the past, TCs have expressed their concern that the factual basis upon which the charges had been confirmed was not always clearly set out in the decision and have made concrete proposals as to a possible structure of the article 61(7)(a) decision.²⁶⁵ Consequently, PTCs in recent proceedings, such as the *Ntaganda*, *Laurent Gbagbo*, *Jean-Pierre Bemba Gombo et al.* and *Blé Goudé* case, explored different ways to make the decisions clearer in this respect. Leaving aside for the moment the appropriateness of the different structures chosen for the article 61(7)(a) decisions, it is clear that the Chambers in these decisions took pains to provide only the essence of their assessment and to describe, as precise as possible, the ‘facts and circumstances’ that the TC may not exceed (article 74(2), second sentence). Thus facts which

²⁶² *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1084, Decision on the status before the Trial Chamber of the evidence heard by the Pre-Trial Chamber and the decisions of the Pre-Trial Chamber in trial proceedings, and the manner in which evidence shall be submitted, TC I, 13 December 2007, paras 39 and 43.

²⁶³ ‘[I]t is only the factual, as opposed to the legal elements of the confirmed charges that have a delimiting function *vis-à-vis* the Trial Chamber’, *Prosecutor v. Abdallah Banda Abakaer Nourain/Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-121-Corr-Red, Corrigendum of the ‘Decision on the Confirmation of Charges, PTC I, 7 March 2011, para. 35.

²⁶⁴ ‘[A]t the beginning of the trial, its parameters must be clear. The only modification possible under the Court’s legal framework thereafter is a change to the legal characterisation of the facts pursuant to regulation 55 of the Regulations of the Court’, see recently *Prosecutor v. William Samoei Ruto/Joshua Arap Sang*, ICC-01/09-01/11-1123 (OA6), Decision on the Prosecutor’s appeal against the ‘Decision on the Prosecution’s Request to Amend the Updated Document Containing the Charges Pursuant to Article 61(9) of the Statute’, AC, 13 December 2013, para. 29.

²⁶⁵ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-1547, Decision on the Filing of a Summary of the Charges by the Prosecutor, TC II, 21 October 2009, paras 29–31; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-836, Decision on the defence application for corrections to the Document Containing the Charges and for the prosecution to file a Second Amended Document Containing the Charges, TC III, 20 July 2010, paras. 29–31. To overcome the ‘information deficit’ of the confirmation decision, the Prosecutor has been requested in some cases to submit an ‘updated DCC’. While the ‘updated DCC’ may serve as an auxiliary document assisting to have additional clarity on the facts, its submission can by no means be viewed as a statutorily prescribed procedural act. This was confirmed by the AC lately in the *Lubanga* case which held: ‘As to where and how the detailed information about the charges is to be provided to the accused, the Appeals Chamber underlines at the outset that, given the Court’s statutory framework and the respective roles of the Prosecutor and the Pre-Trial Chamber in the confirmation process, *there can be no doubt that the decision on the confirmation of the charges defines the parameters of the charges at trial*. If it were otherwise, a person could be tried on charges that have not been confirmed by the Pre-Trial Chamber, or in relation to which confirmation was even declined. However, this does not necessarily exclude that *further details about the charges*, as confirmed by the Pre-Trial Chamber, *may, depending on the circumstances, also be contained in other auxiliary documents*’, see *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3121-Red, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, AC, 1 December 2014, para. 124; *Prosecutor v. Jean-Pierre Bemba et al.*, ICC-01/05-01/13-992, Decision on the Submission of Auxiliary Documents, TC VII, 10 June 2015: dissenting opinion of Judge Ebbo-Osuji registered under No. ICC-01/05-01/13-992-Anx.

are not expressly mentioned in the recent article 61(7)(a) decisions do not form part of the charges as confirmed. The Prosecutor frames the charges in the DCC for the purpose of the confirmation hearing; the PTC frames the charges in its decision for the purpose of trial. The authority to define the parameters of the case shifts at the confirmation stage from the Prosecutor to the PTC. As a result, any queries as to the precise scope of the charges should be addressed to the PTC pursuant to article 64(4).

The term ‘facts and circumstances’ is not defined in the Statute. The Appeals Chamber in the context of the appeal on regulation 55 in the *Lubanga* case coined the distinction between ‘facts’, ‘evidence’ and ‘background or other information that, although contained in the document containing the charges or the confirmation decision, does not support the legal elements of the crime charged’ (see mn 40). In the aftermath of this judgment, both PTC I and II occasionally introduced the notions of ‘material facts’ and ‘subsidiary’ facts’ by way of which they asserted to better single out the ‘facts and circumstances’ from within the different facts presented in the DCC: ‘material facts’ are those which underpin a specific charge (and which, accordingly, must be proven against the evidentiary threshold of article 61(7)); a ‘subsidiary fact’ is background information or evidence from which the existence of the ‘material fact’ may be inferred.²⁶⁶ It has been discussed in the context of the DCC, such a distinction does not provide more clarity and is not grounded in the law (see mn 32). Moreover, it is not clear from the PTC decisions concerned which of the facts the PTC considered as ‘material’ or ‘subsidiary’ and how this impacted the confirmed charges. Actually, it seems that such distinction was not necessary for the application of article 61(7). This is so because what matters for confirming one or more charges is to rely on all those facts essential for proving the legal elements of the crime(s) namely, what is proposed as the ‘material facts’.

In the *Laurent Gbagbo* case, the Prosecutor had alleged a number of incidents (45) to constitute an ‘attack directed against any civilian population’ within the meaning of article 7(1), amongst them four so-called ‘charged incidents’. When adjourning the hearing, the Majority Judges and the dissenting Judge were divided over the question whether those 45 incidents were part of the ‘facts and circumstances’ and to what extent they must be proven. While the dissenting Judge opined in essence that such incidents are ‘subsidiary facts’ which merely serve to prove, together with other evidence, the ‘attack’,²⁶⁷ the Majority Judges rejected such qualification and held that the incidents are part and parcel of the ‘facts and circumstances’ supporting the contextual legal elements of the crimes charged and must be proved to the requisite threshold.²⁶⁸ In the following, the AC was given the opportunity to enquire into this issue. Recalling, *inter alia*, articles 61(3), 67(1)(a) and regulation 52 of the Regulations, the AC rejected the proposed distinction between ‘material’ and ‘subsidiary’

²⁶⁶ *Prosecutor v. Abdallah Banda Abakaer Nourain/Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-121-Corr-Red, Corrigendum on the ‘Decision on the Confirmation of Charges’, PTC I, 7 March 2011, paras 36–37; *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, paras 47–48; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, paras 59–60; *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-325, Decision on the date of the confirmation of charges hearing and proceedings leading thereto, PTC I, 14 December 2012, para. 27. See recently, *Prosecutor v. Dominic Ongwen*, ICC-02/04-01/15-T-6-ENG, Transcript of Hearing, PTC II, 19 May 2015, 21. When providing directions to the Prosecutor as to the expected content of the DCC, the Single Judge remained unclear what he meant by the term ‘subsidiary facts’ (‘In the charges the Prosecutor must include only the material facts as the subsidiary facts, like more generally the evidence, are brought to the attention of the Chamber only as part of the Prosecutor’s argumentation but do not belong to the charges’ [emphasis added]). Indeed, as confirmed by the AC, evidentiary information does not constitute ‘facts and circumstances’ underpinning the charges.

²⁶⁷ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-432-Anx-Corr, Dissenting Opinion of Judge Silvia Fernández de Gurmendi, 6 June 2013, para. 41.

²⁶⁸ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-432, Decision adjourning the hearing on the confirmation of charges pursuant to article 61(7)(c)(i) of the Rome Statute, PTC I, 3 June 2013, paras 21–23.

facts since the Statute does not provide for such distinction.²⁶⁹ Rather, its yardstick remained whether the facts in question support any of the legal elements of the crimes charged. Hence, in response to the Majority's approach requiring a 'sufficient number' of incidents relevant for the establishment of an alleged 'attack', the AC stated

'that it is for the Pre-Trial Chamber to determine whether those facts, if proven to the requisite threshold, establish the legal elements of the attack. The question of how many of the incidents pleaded by the Prosecutor would suffice to prove an 'attack' in the present case is a matter for the Pre-Trial Chamber to determine. It is not a question that can be determined in the abstract' (emphasis added).²⁷⁰

- 131 Similarly, past attempts of the Prosecutor to draw a distinction between 'facts of the case' and 'facts constituting the charges' were not accepted by the Court on the grounds that such distinction does not exist under the Statute and would 'constitute a source of ambiguity, confusion and contention at trial'.²⁷¹
- 132 The allegations of the Prosecutor are verified on the basis of the evidence submitted. Where the Chamber does not find any evidentiary support for a particular factual allegation, it will not confirm it. Thus, the factual allegations for which not sufficient evidence has been presented will not form part of the charges and remain outside the ambit of the trial. In several cases, the factual scope of the case has been significantly reduced, including its temporal²⁷² or territorial²⁷³ scope thereby substantially modifying or 'downsizing' the case, as initially presented by the Prosecutor. One may argue that the control exercised by the PTCs has allowed not only barring totally unmeritorious cases from proceeding to trial but, more importantly, to reduce the (factual) scope of cases where the Prosecutor did not have any or sufficient evidence. In case the Prosecutor decides to re-introduce those facts on the basis of new evidence, he or she may make use of the procedure under article 61(9) (see mn 146 *et seq.*).

²⁶⁹ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-572 (OA5), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 3 June 2013 entitled 'Decision adjourning the hearing on the confirmation of charges pursuant to article 61(7)(c)(i) of the Rome Statute', AC, 16 December 2013, para. 37.

²⁷⁰ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-572 (OA5), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 3 June 2013 entitled 'Decision adjourning the hearing on the confirmation of charges pursuant to article 61(7)(c)(i) of the Rome Statute', AC, 16 December 2013, para. 47.

²⁷¹ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-1547-tENG, Decision on the Filing of a Summary of the Charges by the Prosecutor, TC II, 21 October 2009, para. 19.

²⁷² For example, in the case of the *Muthaura et al.* case, the Prosecutor charged the suspects for the commission of crimes during the period of 30 December 2007 to 31 January 2008 (one month). In the decision on the confirmation of charges, the PTC reduced this period to events which took place overall between 24 and 28 January 2008 (four days), see *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, paras 21 and 428. In the *Ruto et al.* case, the Prosecutor charged the suspects for the commission of crimes during the period of 30 December 2007 until the end of January 2008 (one month). In the decision on the confirmation of charges, the PTC reduced this period to events which took place in Turbo town only to 31 December 2007 (one day); in the greater Eldoret area to the period between 1–4 January 2008 (four days); in Kapsabet town to the period between 30 December 2007 to 16 January 2008 (2 weeks); and in Nandi Hills town between 30 December 2007 to 2 January 2008 (four days). The temporal scope was reduced therefore from one month to selected periods ranging from two weeks to one day(!), see *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, paras 22 and 367.

²⁷³ For example, in the *Muthaura et al.* case, the Prosecutor charged the suspects for the commission of crimes in the locations 'in or around locations including Nakuru town (Nakuru District, Rift Valley Province) and Naivasha town (Naivasha District, Rift Valley Province)'. In the decision on the confirmation of charges, the PTC rejected the notion 'in or around locations including Nakuru and Naivasha' but accepted only 'in or around Nakuru' and 'in or around Naivasha' and extended its analysis of the facts only to those two locations for which evidence had been submitted, see *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, paras 21 and 106. Likewise, in the *Ruto et al.* case, the PTC rejected the word 'including' and confined its analysis to those locations which were explicitly referred to in the DCC. It ruled 'the use of the expression 'in locations including Turbo town, the greater Eldoret area (Huruma, Kiambaa, Langas, and Yamumbi), Kapsabet town, and Nandi Hills town' shall be understood as encompassing exclusively these locations', see *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, paras 22 and 99.

With a view to expediting the confirmation process, the defence in the *Banda/Jerbo* case informed PTC I that it **did not contest** any of the facts alleged in the Prosecutor's DCC. Importantly, such agreement was limited for the purposes of the confirmation process only. PTC I noted the parties' agreement on the facts set out in the DCC, but when taking its decision, it declared to adopt nonetheless a 'cautious approach' to refer to the evidence whenever appropriate to determine that the requisite evidentiary standard has been met. It grounded its approach on three grounds: (i) the Chamber's independent obligation in article 61(7) to ascertain whether there is sufficient evidence, 'irrespective of whether the parties agreed on the facts of the case';²⁷⁴ (ii) the aim of the procedural framework which allows the charges 'to be presented in full whenever either the interests of justice, which are paramount, or the interests of the victims, which are also critical, so require' (rule 69); and (iii) the fact that the parties failed to specify exactly the uncontested facts they agreed upon, given that the DCC is 'a complex narrative in which issues of fact and issues of law are often intertwined'.²⁷⁵

4. The decision declining to confirm the charges

PTC I and II have declined to confirm all charges against four suspects (*Abu Garda*, *Mbarushimana*, *Kosgey* and *Ali*) based on the insufficiency of evidence. Accordingly, proceedings were terminated against them. This was done without prejudice to the powers of the Prosecutor to approach the relevant PTC under article 61(8).²⁷⁶

Challenges as to the Prosecutor's purported failure to investigate in accordance with article 54(1)(a) do not lead to the rejection of the charges. PTC I determined that **investigative failures** 'may have an impact on the Chamber's assessment of whether the Prosecutor's evidence as a whole' met the requisite threshold of article 61(7).²⁷⁷ On the basis of which criteria this assessment can be achieved is not further explained. PTC II in the *Kenya* cases reacted in the same way and highlighted that 'the scope of the determination under article 61(7) of the Statute relates to the assessment of the evidence available and not the manner in which the Prosecutor conducted the investigations'.²⁷⁸

5. The decision adjourning the confirmation hearing

The decisions taken under article 61(7)(c) differ markedly from those taken under articles 61(7)(a) and (b). While in the latter, the PTC takes a final decision on the merits, either in the affirmative or in the negative,²⁷⁹ in the former case, the PTC is not yet in a position to take such a decision and returns to the Prosecutor with certain queries.²⁸⁰ In other words, the

²⁷⁴ See also, *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-388, Decision Adjourning the Hearing pursuant to Article 61(7)(c)(ii) of the Rome Statute, PTC III, 3 March 2009, para. 10.

²⁷⁵ *Prosecutor v. Abdallah Banda Abakaer Nourain/Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-121-Corr-Red, Corrigendum on the 'Decision on the Confirmation of Charges', PTC I, 7 March 2011, paras 44–47.

²⁷⁶ Notably in a number of cases, such as in the *Bemba*, *Katanga/Ngudjolo* and *Ruto et al.* case, a combination of article 61(7)(a) and (b) led to the partial confirmation of charges, see *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-424, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, PTC II, 15 June 2009, 184–185; *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-10/07-717, Decision on the confirmation of charges, PTC I, 30 September 2008, 211–212; *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, 23 January 2012, p. 138.

²⁷⁷ *Prosecutor v. Bahar Idriss Abu Garda*, ICC-02/05-02/09-243-Red, Decision on the Confirmation of Charges, PTC I, 8 February 2010, para. 48.

²⁷⁸ *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, paras 49–53; *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, paras 61–65.

²⁷⁹ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-388, Decision Adjourning the Hearing pursuant to Article 61(7)(c)(ii) of the Rome Statute, PTC III, 3 March 2009, para. 13.

²⁸⁰ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-388, Decision Adjourning the Hearing pursuant to Article 61(7)(c)(ii) of the Rome Statute, PTC III, 3 March 2009, para. 14.

PTC renders an intermediate decision before deciding finally whether or not to confirm the charges.²⁸¹ In fact, article 61(7)(c) is a procedural avenue to overcome certain shortcomings in the presentation of the case without rejecting outright the charges; the Prosecutor is given the opportunity to re-consider certain aspects of his or her file and, as the case may be, to present additional arguments and/or material, to the Chamber. This means that the article 61(7)(c) does not conclude the confirmation process.

137 As is the case for articles 61(7)(a) and (b), before rendering a decision the PTC must have evaluated the sufficiency of the evidence to reach the requisite threshold (see mn 87). This is a prerequisite dictated by the chapeau wording of article 61(7). Whether the Chamber is ready to render a final decision on the merits under article 61(7) or wishes to adjourn the hearing is therefore dependent on the PTC's prior assessment of the evidence as a whole.

138 Such analysis, one may assume, has already been conducted in the course of the preparation of the article 61 proceedings so that the PTC ideally invoke article 61(7)(c) before the closure of the hearing. However, both PTC III in the *Bemba* case and PTC I in the *Laurent Gbagbo* case 'adjourned' the hearing after it was actually declared to be closed and within the 60-day time limit within which the written decision of the PTC must be delivered in accordance with regulation 53 of the Regulations. This means that the 'hearing' within the meaning of article 61(7)(c) is understood to include also the period subsequent to the hearing until the delivery of the written decision. Adopting an effective interpretation, PTC III in the *Bemba* case explained:

"Thus, according to a wider interpretation, an adjournment of the Hearing may take place subsequent to the oral sessions and as long as the Chamber has not made its final determination on the merits and issued a decision whether or not to confirm the charges. This interpretation finds support also in the language of rule 127 of the Rules which states that 'if the Pre-Trial Chamber is ready to confirm some of the charges but adjourns the hearing on other charges under article 61, paragraph 7(c), it may decide that the committal of the person concerned to the Trial Chamber (...) shall be deferred pending the *continuation of the hearing* (...)' (emphasis added). The reference to the phrase 'continuation of the hearing' indicates that the notion of 'hearing' may extend beyond the oral sessions of the Hearing."²⁸²

139 Despite the first impression, the adjournment of the 'hearing' in today's practice did not lead to resume the 'hearing' at a later point. While this option is not excluded, as the Chamber can always hold hearings at it deems necessary, the practice hitherto has been to proceed in writing and to conclude the confirmation stage with the written decision. In this case, it must be assumed that the 'hearing' within the meaning of article 61(7)(c) is definitively closed with the delivery of the article 61(7)(a) or (b) decision.

140 Article 61(7)(c) provides two different grounds for which the hearing is adjourned.

(1) Under option (i), the PTC considers that the **evidence submitted**, viewed as a whole, does not meet the required threshold for confirming the charges but, at the same time, does not consider the evidence to be 'irrelevant and insufficient to a degree that merits declining to confirm the charges'. As a result, the PTC may request the Prosecutor to consider to provide further evidence or to conduct further investigation.²⁸³ The formulation 'with respect to a particular charge' in the context of article 61(7)(c)(i) has been interpreted to encompass one or more charges, including any element within the charge(s) in question.²⁸⁴

²⁸¹ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-388, Decision Adjourning the Hearing pursuant to Article 61(7)(c)(ii) of the Rome Statute, PTC III, 3 March 2009, para. 20.

²⁸² *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-388, Decision Adjourning the Hearing pursuant to Article 61(7)(c)(ii) of the Rome Statute, PTC III, 3 March 2009, para. 37; see also *Prosecutor v. Laurent Gbagbo*, No. ICC-02/11-01/11-432, Decision adjourning the hearing on the confirmation of charges pursuant to article 61(7)(c)(i) of the Rome Statute, PTC I, 3 June 2013, para. 13.

²⁸³ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-388, Decision Adjourning the Hearing pursuant to Article 61(7)(c)(ii) of the Rome Statute, PTC III, 3 March 2009, para. 16; *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-432, Decision adjourning the hearing on the confirmation of charges pursuant to article 61(7)(c)(i) of the Rome Statute, PTC I, 3 June 2013, para. 15.

²⁸⁴ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-432, Decision adjourning the hearing on the confirmation of charges pursuant to article 61(7)(c)(i) of the Rome Statute, PTC I, 3 June 2013, para. 14.

Any suspect has the right to be tried 'without undue delay', as guaranteed in article 67(1)(c). When requesting the Prosecutor to consider conducting further investigation, the Chamber must bear in mind the inevitable prolongation of the confirmation process which may unduly infringe upon the rights of the suspect in detention. 'Whether or not the activation of article 61(7)(c)(i) (...) unduly infringes the right of the suspect to be tried without undue delay must be determined on a case-by-case basis, taking into account the particularities of the case and in accordance with internationally recognized human rights'.²⁸⁵

In the *Laurent Gbagbo* case, the PTC I Majority was not satisfied that the 45 incidents described by the Prosecutor in the DCC constituted an 'attack directed against any civilian population'. The Judges therefore requested the Prosecutor to consider providing further evidence in relation to those incidents. With a view to guiding the Prosecutor in remedying the deficiencies detected by the Chamber, a set of issues was provided; however, such list is not binding upon the Prosecutor as the Chamber has no powers to give 'directives' to the Prosecutor; this would contravene the request nature of article 61(7)(c) (see mn 141).

(2) Under option (ii), the PTC considers that the evidence submitted 'appears to establish a **different crime** within the jurisdiction of the Court' and, consequently, there may be a need for amending the charge(s) as originally contained in the Prosecutor's DCC.²⁸⁶ A 'different crime' has been interpreted by PTC III to encompass both the crimes as listed in article 5 as well as the form of participation. The reason for considering the mode of criminal liability part of the 'crime' within the meaning of article 61(7)(c)(ii) was seen in their correlation: 'Depending on the mode of participation as set out in articles 25 and 28 of the Statute, the material (objective) elements of the crime are shaped differently. It does have a bearing on the structure of the crime whether the person held liable for committing the crime acted as a principal, as an accomplice or as a superior'.²⁸⁷ In addition, reasons of fairness and the suspect's entitlement to be informed in detail about the nature, content and cause of the charges (article 67(1)(a)) also militate in adopting a broader interpretation.²⁸⁸

PTC III also pointed to a specificity of article 61(7)(c)(ii) which stems from the mention of 'appearance'. In the view of that Chamber, this implies that the (provisional) determination of the PTC under article 61(7)(c)(ii) is reached against a lower standard than 'substantial grounds to believe'.²⁸⁹ The standard of 'appearance' in this context does not require the Chamber to demonstrate that the legal requirements of a 'different crime' are 'definitively satisfied'; rather, it is deemed sufficient that the Chamber makes a *prima facie* finding setting out its doubts as to the legal characterization of facts as proposed by the Prosecutor in the DCC.²⁹⁰

In the *Bemba* case, the suspect was prosecuted as principal perpetrator under article 25(3)(a) but PTC III opined at the time that the evidence regarding Bemba's criminal

²⁸⁵ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-432, Decision adjourning the hearing on the confirmation of charges pursuant to article 61(7)(c)(i) of the Rome Statute, PTC I, 3 June 2013, para. 39.

²⁸⁶ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-388, Decision Adjourning the Hearing pursuant to Article 61(7)(c)(ii) of the Rome Statute, PTC III, 3 March 2009, para. 17. PTC III in the *Bemba* case added that a limited review of the evidence pertaining 'only to the issue at stake is sufficient' and that a 'complete and in-depth analysis of all the evidence is unwarranted' at this stage. This statement may not be transferrable to other cases where the 'issues at stake' involve more than one aspect of the case. In any event, it is advisable for any PTC to have thoroughly and comprehensively evaluated the evidence prior to rendering its decision under any of the options listed under article 61(7).

²⁸⁷ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-388, Decision Adjourning the Hearing pursuant to Article 61(7)(c)(ii) of the Rome Statute, PTC III, 3 March 2009, para. 26. For a different interpretation, albeit in a different context, see *Prosecutor v. Radoslav Brđjanin*, IT-99-36-A, Decision on Interlocutory Appeal, AC, 19 March 2004.

²⁸⁸ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-388, Decision Adjourning the Hearing pursuant to Article 61(7)(c)(ii) of the Rome Statute, PTC III, 3 March 2009, para. 28.

²⁸⁹ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-388, Decision Adjourning the Hearing pursuant to Article 61(7)(c)(ii) of the Rome Statute, PTC III, 3 March 2009, para. 18.

²⁹⁰ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-388, Decision Adjourning the Hearing pursuant to Article 61(7)(c)(ii) of the Rome Statute, PTC III, 3 March 2009, para. 25.

responsibility pointed (also) towards the mode of liability under article 28. The Prosecutor agreed to submit an amended DCC adding this mode of liability; ultimately, the Chamber confirmed the charges under article 28 and rejected Bemba's role as a principal under article 25(3)(a), as initially argued by the Prosecutor.

- 141 Under article 61(7)(c), the PTC adjourns the hearing and *requests the Prosecutor to consider* whether to submit further evidence/conduct further investigation or amend a charge. The careful wording of article 61(7)(c) leaves no doubt that the Prosecutor enjoys, in principle, a wide margin of discretion whether and to what extent to react to an article 61(7)(c) decision. The request nature of article 61(7)(c) respects the division of responsibilities between the PTC and the Prosecutor and ensures that the Prosecutor's functions in the confirmation process are not encroached upon.

[T]he Chamber makes it clear that by way of adjourning the hearing it does not purport to impinge upon the Prosecutor's functions as regards the formulation of the appropriate charges or to advise the Prosecutor on how best to prepare the document containing the charges. The Chamber holds the view that it is the responsibility of the Prosecutor to build and shape the case according to his statutory mandate pursuant to article 54(l)(a) of the Statute. The responsibilities of the Chamber lie in exerting judicial oversight during the pre-trial proceedings and rendering its decision in accordance with article 61(7) of the Statute.²⁹¹

- 142 In case the Prosecutor does not decide to follow the Chamber's proposition, the Chamber will resort to rendering a final decision on the merits pursuant to either article 61(7)(a) or (b). In case the Prosecutor agrees to follow the PTC proposition, he or she must submit a new amended DCC, together with a list of evidence, as the case may be.

VIII. Paragraph 8: Subsequent request for confirmation

- 143 If the PTC declines to confirm one or more charge(s), the Prosecutor is not precluded from subsequently requesting its confirmation. The provision was added to article 61 at the Rome Conference on a proposal from Austria.²⁹² The Prosecutor can continue the investigation, and in case he/she obtains additional evidence to support the confirmation of the charge(s) concerned, he/she can request the PTC to confirm the charge(s) again.
- 144 In case all charges have been rejected against the suspect and the Prosecutor intends to request the confirmation of the charge(s) afresh based on additional evidence, he or she must first request the issuance of a new warrant of arrest or summons to appear pursuant to article 58 (see mn 154). This is necessary because according to article 61(10) the warrant of arrest ceases to have any effect, if one or more charges have not been confirmed. Upon surrender or appearance of the suspect, the procedure under article 61(1)-(7) will be rehearsed at the end of which the PTC will address the question whether or not to confirm the charges.
- 145 After the AC confirmed PTC I's decision in the *Mbarushimana* case rejecting the charges, the then Prosecutor Moreno Ocampo revealed his intention to explore whether it was possible to present a new case against *Mbarushimana*.²⁹³ Likewise, after PTCII declined to confirm the charges against *Kosgey* and *Ali* in the Kenya cases, Prosecutor Moreno Ocampo announced to continue his investigation in relation to those two suspects.²⁹⁴ Hitherto article 61(8) remains to be a dead letter.

²⁹¹ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-388, Decision Adjourning the Hearing pursuant to Article 61(7)(c)(ii) of the Rome Statute, PTC III, 3 March 2009, para. 39.

²⁹² Austria: proposal regarding article 61, UN Doc. A/CONF.183/C.1/AVGPM/L.19.

²⁹³ 'The [Office of the Prosecutor] takes note of today's decision by the Appeals Chamber. We are evaluating the decision to see whether it is possible to present a new case against Mr Mbarushimana presenting additional evidence, in accordance with the Judges' ruling', see 'OTP Statement following the Appeals Chamber decision', dated 30 May 2012 (available on the website of the Court).

²⁹⁴ 'We will keep investigating Kosgey and the activities of the police as well as crimes allegedly committed in Kibera and Kisumu', see 'Statement by the Prosecutor of the International Criminal Court on Kenya ruling', dated 24 January 2012 (available on the website of the Court).

IX. Paragraph 9: Amendment or withdrawal of charges

It is apparent that article 61(9) should be read together with 61(4). There is a clear interplay between these two paragraphs as both of them complement one another. While article 61(4) governs amendment to the charges before their confirmation by the PTC, paragraph 9 regulates this procedure post-confirmation and prior to the commencement of the trial. A distinguishable feature between these provisions lies in the extent of discretion provided to the Prosecutor in carrying out an amendment to a charge. In the course of the pre-trial proceedings and before issuing a decision confirming the charges, the Prosecutor enjoys a wide margin of discretion to amend one or more of the charges initially presented in the DCC, subject to providing the Defence with ‘reasonable notice before the hearing’ (see mn 83). At this stage, the process of amendment does not require judicial authorization. However, the Chamber’s intervention may take place in a situation of failure on the part of the Prosecutor to provide such notice sufficiently in advance or her failure to do so at all. In a situation as such, the relevant PTC should either intervene *proprio motu* or in response to an application lodged by the suspect in order to preserve the fairness of the proceedings, including the rights of the defence. 146

The Prosecutor’s discretion regarding the amendment of charges is restricted after charges have been confirmed. In this case, the Prosecutor is not entitled to amend the charges without notifying the accused and being permitted to do so by the relevant chamber.²⁹⁵ In the *Kenyatta* case, PTC II considered that securing the Chamber’s permission is a ‘*conditio sine qua non* for any amendment to the charges’,²⁹⁶ in accordance with article 61(9). According to the Chamber, the insertion of the term ‘permission’ is not useless. It serves a certain aim namely, to ensure that any request for amendment of charges at this stage ‘[is] supported and justified’.²⁹⁷ This calls upon the respective chamber to examine not only the Prosecutor’s request but also other ‘relevant information which [the] chamber could seek if necessary for the purpose of its final determination’.²⁹⁸ This holistic approach assists the relevant chamber ‘in arriving at a proper and balanced decision, taking into consideration diverse factors affecting the [particular] case including its fairness, expeditiousness, the rights of the accused as well as those of the victims’.²⁹⁹ PTC II retained this approach and applied it in a different case five months later. 147

²⁹⁵ ‘Before the confirmation hearing, the Prosecutor may [...], amend or withdraw charges without the permission of the Pre-Trial Chamber. This flexibility of the Prosecutor is more limited after the confirmation of the charges with respect to the amendment, addition or withdrawal of charges; pursuant to article 61(9) of the Statute the Prosecutor may amend the charges after their confirmation only with the permission of the Pre-Trial Chamber [...]’, *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-568 (OA3), Judgment on the Prosecutor’s appeal against the decision of Pre-Trial Chamber I entitled ‘Decision Establishing General Principles Governing Applications to Restrict Disclosure pursuant to rule 81(2) and (4) of the Rules of Procedure and Evidence’, AC, 13 October 2006, para. 53.

²⁹⁶ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-700-Corr, Corrigendum to Decision on the ‘Prosecution’s Request to Amend the Final Updated Document Containing the Charges Pursuant to Article 61(9) of the Statute, PTC II, 21 March 2013, para. 19.

²⁹⁷ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-700-Corr, Corrigendum to Decision on the ‘Prosecution’s Request to Amend the Final Updated Document Containing the Charges Pursuant to Article 61(9) of the Statute, PTC II, 21 March 2013, para. 21.

²⁹⁸ *Ibid.* See also rule 128(2) which reads: ‘Before deciding whether to authorize the amendment, the Pre-Trial Chamber may request the accused and the Prosecutor to submit written observations on certain issues of fact or law’. This rule makes it clear that the power of the Chamber to rely on a holistic examination may find legal support in this provision.

²⁹⁹ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-700-Corr, Corrigendum to Decision on the ‘Prosecution’s Request to Amend the Final Updated Document Containing the Charges Pursuant to Article 61(9) of the Statute, PTC II, 21 March 2013, para. 22.

- 148 In the *Ruto et al.* case, the Prosecutor sought an amendment of the charges by way of extending their temporal scope.³⁰⁰ The Prosecutor requested the addition of the dates 30 and 31 December 2007 to all charges confirmed by the PTC.³⁰¹ However, the Prosecutor lodged this request only seven weeks before the actual start of the trial which was scheduled to take place on 10 September 2013 at the time.³⁰² Applying the same approach adopted in the *Kenyatta* case, the PTC considered that the statutory requirement of granting permission to the Prosecutor to amend a charge suggests that the ‘Prosecutor should not benefit from an unfettered right to resort to article 61(9) [...] at her ease, particularly, if such permission will negatively affect other competing interests’.³⁰³ The Chamber engaged into consideration of the time factor, the fact that the Prosecutor had in her possession the necessary evidence several months before the date of filing the request and the potential prejudice to the rights of the accused.³⁰⁴ Upon balancing the competing interests at stake, the Chamber considered that the Prosecutor failed ‘to provide [...] any justification or valid reasons for such procedural conduct and excessive delays’³⁰⁵ and that ‘authorizing an amendment [...] in the absence of any justification as to the belated nature of the Prosecutor’s Request on an issue that has been crucial since the confirmation of charges hearing would result in an unfair burden for the Defence [...] [and would] unduly compromise the rights of the accused [...] as provided in article 67(1)(a)–(c) of the Statute’.³⁰⁶ Having assessed these factors collectively, the Chamber rejected the Prosecutor’s request.
- 149 The validity of this approach has not been considered on appeal. Although the Prosecutor appealed the decision in the *Ruto and Sang* case on 26 September 2013, the AC refrained from entering into the merits.³⁰⁷ Instead, the AC, by majority, dismissed the appeal as inadmissible due to the fact that the Prosecutor’s appeal became moot since the trial in that case had actually commenced and an amendment could no longer take place before the PTC.³⁰⁸ Nevertheless, the AC made a significant pronouncement relating to the timing of lodging requests for amending the charges under article 61(9). It made it clear that even if the Prosecutor’s request was filed before the commencement of the trial, the wording of article 61(9) ‘indicates that not only the request to amend the charges has to be filed before the commencement of the trial, but also the entire process of amending the charges must be completed by that time, including the granting of permission for the amendment’.³⁰⁹ In the words of AC, ‘[t]he purpose of this [interpretation] is obvious: at the beginning of the trial, its parameters must be clear’.³¹⁰
- 150 Depending on the stage of the proceedings, the request of the Prosecutor may target an amendment or a withdrawal of charges.³¹¹ Prior to the start of the trial, the Prosecutor may request an amendment and, as noted above, it shall take place if permitted by the PTC as referred to in the cases cited above. After the commencement of the trial, the Prosecutor is only permitted to request withdrawal of one or more of the charges or institute new proceedings before the PTC. In the former case, this is the responsibility of the TC. The

³⁰⁰ *Prosecutor v. William Samoei Ruto/Joshua Arap Sang*, ICC-01/09-01/11-859, Decision on the Prosecution’s Request to Amend the Updated Document Containing the Charges Pursuant to Article 61(9) of the Statute, PTC II, 16 August 2013, para. 13.

³⁰¹ *Ibid.*, para. 38.

³⁰² *Ibid.*, paras 8–9.

³⁰³ *Ibid.*, para. 31.

³⁰⁴ *Ibid.*, paras 35–42.

³⁰⁵ *Ibid.*, para. 38.

³⁰⁶ *Ibid.*, para. 42.

³⁰⁷ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, (ICC-01/09-01/11-1123), Decision on the Prosecutor’s appeal against the ‘Decision on the Prosecution’s Request to Amend the Updated Document Containing the Charges Pursuant to Article 61(9) of the Statute’, AC, 13 December 2013.

³⁰⁸ *Ibid.*, 3, 12–13.

³⁰⁹ *Ibid.*, para. 29.

³¹⁰ *Ibid.*

³¹¹ Article 61(9).

decisive factor here is the timing for the start of the trial.³¹² Although the timing factor for the start of a trial was controversial until few years ago,³¹³ the recent language employed by the AC suggests that a trial does not begin before the opening statements. In *Ruto et al.*, the AC noted that ‘opening statements in the present case were made on 10 September 2013 and the first witness was heard on 17 September 2013. Accordingly, irrespective of the precise moment at which the trial begins within the meaning of article 61 (9) (...), in the instant case, the trial has commenced’ (emphasis added).³¹⁴ Thus, the fact that the AC focused only on the two respective dates concerning the opening statements and the hearing of the first witness, it is difficult to conclude that the AC meant that a trial begins prior to the opening statements (*i.e.*, in the course of the pre-trial preparation for the actual trial). Rather logic dictates that the trial actually begins after the pre-trial preparations have been concluded and at least with the opening statements, as TC I suggested.³¹⁵

The request for amending the charges may take at least two different forms. It may be a request to make an amendment to an existing charge or to add one or more additional charge(s) or substitute one or more existing charge(s) with more serious charges. The current jurisprudence of the PTCs referred to above only dealt with the first form namely, requesting an amendment within the same set of charges. For this type of amendment, article 61(9) does not require a hearing before authorizing the amendment of the relevant charge.

In the *Kenyatta* case, the Prosecutor requested the addition of a limited factual allegation that ‘victims were also killed by gunshot in Naivasha’.³¹⁶ The Chamber considered that ‘the nature of the requested amendment does not aim at adding an additional charge or substituting an existing charge with a more serious one. Rather it is a re-insertion, on the basis of the new evidence presented, of an already known specific factual allegation for an existing charge of murder in Naivasha (...) [and accordingly] [there was no] need to hold a hearing for the purpose of deciding on the Prosecutor’s Request’.³¹⁷ In the *Ruto et al.* case, although PCT II did not rule on the nature of the requested amendment it was clear that the nature of the request to add two days to the existing charges still falls within the first category which does not require a hearing.³¹⁸

Differently is the situation where the Prosecutor’s request goes beyond the existing charges and aims at either adding new charges or replacing the existing ones with more serious charges. This may also take the form of adding new facts and circumstances and new legal

³¹² See also *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-696, Decision on the withdrawal of charges against Mr Muthaura, TC V, 18 March 2013, para. 11 where TC V was confronted with a situation where the Prosecutor requested withdrawal of the charges after the confirmation of charges but before the actual trial commenced. In this case, the Chamber still considered that permission should be granted as to the withdrawal of charges, but on the basis of article 64(2) of the Statute.

³¹³ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-1213-tENG, Reasons for the Oral Decision on the Motion Challenging the Admissibility of the Case (Article 19 of the Statute), TC II, 16 June 2009, paras 30, 36–42; *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1084, Decision on the status before the Trial Chamber of the evidence heard by the Pre-Trial Chamber and the decisions of the Pre-Trial Chamber in trial proceedings, and the manner in which evidence shall be submitted, TC I, 13 December 2007, para. 39.

³¹⁴ *Prosecutor v. William Samoei Ruto/Joshua Arap Sang*, ICC-01/09-01/11-1123, Decision on the Prosecutor’s appeal against the ‘Decision on the Prosecution’s Request to Amend the Updated Document Containing the Charges Pursuant to Article 61(9) of the Statute’, AC, 13 December 2013, para. 27.

³¹⁵ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1084, Decision on the status before the Trial Chamber of the evidence heard by the Pre-Trial Chamber and the decisions of the Pre-Trial Chamber in trial proceedings, and the manner in which evidence shall be submitted, TC I, 13 December 2007, para. 39; *Prosecutor v. Jean- Pierre Bemba Gombo*, ICC-01/05-01/08-802, Decision on the Admissibility and Abuse of Process Challenges, TC III, 24 June 2010, para. 201.

³¹⁶ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-700-Corr, Corrigendum to Decision on the ‘Prosecution’s Request to Amend the Final Updated Document Containing the Charges Pursuant to Article 61(9) of the Statute, PTC II, 21 March 2013, para. 26.

³¹⁷ *Ibid.*, para. 29.

³¹⁸ See also in the *Kenyatta* case, TC V considered, albeit in a different context based on a defence request, that a change in the evidence introduced before the TC does not justify a new confirmation hearing insofar as such a change does not lead to a change to the charges. *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-728, Decision on defence application pursuant to Article 64(4) and related requests, TC V, 26 April 2013, para. 111.

characterizations which were not confirmed by the PTC.³¹⁹ In this case a hearing to confirm these new charges will be required following the same procedural process envisaged under article 61(3), (5), (6)-(7) and the rules related thereto.

X. Paragraph 10: ‘Warrant previously issued’

- 154 Paragraph 10 should be understood in the context of the other related paragraphs of article 61 namely, paragraphs 4, 7 (b), 8 and 9. The question of vacating a warrant of arrest is a corollary to a decision of a PTC to decline to confirm one or more charges pursuant to article 61(7)(b). In the *Mbarushimana* case, PTC I declined to confirm the charges against the suspect, and consequently, declared that the warrant of arrest against him ‘cease[d] to have effect in its entirety’.³²⁰ On appeal, the AC recalling article 61(10), stated that ‘the warrant of arrest cease[d] to have effect [was] therefore an automatic result of the decision declining to confirm the charges’.³²¹
- 155 A year later, PTC II also declined to confirm the charges against two suspects out of six in the *Kenya* cases (*Kosgey* and *Ali*). But this time the PTC refrained from issuing warrants of arrest. Instead it issued summonses to appear. Article 61(10) speaks of ‘[a]ny warrant previously issued’ as opposed to a summons to appear, which may indicate that this paragraph is confined to the former. Although it is true that both articles 58(4) and 61(10) only mention a warrant of arrest, these latter provisions should apply *mutatis mutandis* to summonses to appear. To say otherwise would lead to an absurd conclusion in the sense that the Court could never cease the effect of any conditions previously imposed on a suspect or vacate a summons to appear even if a PTC declined to confirm all charges against him or her.
- 156 Indeed, in the *Ruto et al.* case, PTC II, after declining to confirm the charges against *Kosgey*, decided that the ‘conditions imposed on [him] in the Decision on Summons to Appear cease[d] to have effect’.³²² The Chamber followed the same path in the *Muthaura et al.* case.³²³ Nevertheless, although the Chamber declined to confirm the charge of other forms of sexual violence against the other two suspects (*Muthaura* and *Kenyatta*),³²⁴ the Chamber failed to note the effect of such finding on the validity of the summonses to appear. In particular, the Chamber failed to acknowledge that the conditions imposed on the two suspects also cease to have effect in relation to the declined charge.
- 157 On the other hand, a warrant of arrest or a summons to appear may also cease to have effect if charges have been withdrawn by the Prosecutor. Thus a warrant of arrest which has been issued in the course of the confirmation proceedings will not stand any further if the Prosecutor decided *proprio motu* to withdraw the charges sufficiently in advance of the hearing.³²⁵ After the confirmation of charges and the commencement of the trial, a warrant of arrest shall still cease to have effect provided that the Prosecutor first secures permission from the TC to withdraw the charges.³²⁶

³¹⁹ *Prosecutor v. Germain Katanga/Mathieu Ngudjolo*, ICC-01/04-01/07-1547-tENG, Decision on the Filing of a Summary of the Charges by the Prosecutor, TC II, 21 October 2009, para. 27.

³²⁰ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-465-Red, Decision on the confirmation of charges, PTC I, 16 December 2011, 149.

³²¹ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-483, Reasons for ‘Decision on the appeal of the Prosecutor of 19 December 2011 against the “Decision on the confirmation of the charges” and, in the alternative, against the “Decision on the Prosecution’s Request for stay of order to release Callixte Mbarushimana” and on the victims’ request for participation’ of 20 December 2011, AC, 24 January 2012, paras 20–21.

³²² *Prosecutor v. William Samoei Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, 138.

³²³ *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, 154.

³²⁴ *Ibid.*

³²⁵ Articles 61(4) and 61(10).

³²⁶ Article 61(9) and 61(10).

So far, the Court's jurisprudence has not covered these exact scenarios. However, two TCs 158 permitted the Prosecutor on two occasions to withdraw the charges after the confirmation of charges hearing *but* prior to the actual commencement of the trial – a scenario which is not covered under any of the paragraphs set out in article 61.³²⁷ In the *Muthaura et al.* case, TC V relied on the general powers provided to it under article 64(2) as opposed to article 61(9), and accordingly, granted permission to the Prosecutor to withdraw the charges against the accused.³²⁸ The TC also vacated the summons to appear previously issued against him and noted that the 'conditions imposed on Mr Muthaura in the Decision on Summons to Appear will cease to have effect'.³²⁹ Similarly, in the *Kenyatta* case, TC V(B) also acting pursuant to article 64(2), noted the Prosecutor's withdrawal of the charges³³⁰ based on its prior directions.³³¹ The Chamber further vacated the summons to appear and noted that the '[s]ummons to [a]ppear should now be formally discharged and that the conditions therein will cease to have effect'.³³²

In this regard, it is not clear, however, whether in these cases the withdrawal of charges 159 would still trigger article 61(10) in view of the fact that the TC did not rely on article 61(9) to permit such withdrawal. Rather, it granted permission to the Prosecutor to withdraw the charges on the basis of its general powers under article 64(2). If one accepts that article 61(10) should not be the basis for vacating a warrant of arrest or a summons to appear given that the withdrawal of charges was not premised on article 61(9), then the only alternative legal basis for such a finding (apart from inherent powers) should not be article 64(2) as TC V's approach suggests, rather than article 58(4), which is in this case *lex specialis*.

In this context, it is worth noting a distinguishable feature between vacating a warrant of 160 arrest or a summons to appear as a result of a decision to decline to confirm charges or withdraw these charges and for any other reason such as, the death of a suspect or the inadmissibility of a given case. According to the first two scenarios, the vacation of the warrant or the summons is directly driven from the text of article 61(10), while in the latter scenario, a warrant of arrest or a summons to appear ceases to have effect as a result of an order based on article 58(4).³³³

XI. Paragraph 11: Responsibility after the confirmation of charges

Article 61(11) connects Part 5 and Part 6, insofar as it sketches the way ahead, once the 161 charges have been confirmed. It appears to result from a draft proposal circulated by the United Kingdom during the Rome Conference.³³⁴ If one or more charges are confirmed, 'the

³²⁷ *Prosecutor v. Francis Kirimi Muthaura and Uhuru Muigai Kenyatta*, ICC-01/09-02/11-696, Decision on the withdrawal of charges against Mr Muthaura, TC V, 18 March 2013; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-983, Notice of withdrawal of charges against Uhuru Muigai Kenyatta, TC V 5 December 2014; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-1005, Decision on the withdrawal of charges against Mr Kenyatta, TC V(B), 13 March 2015.

³²⁸ *Prosecutor v. Francis Kirimi Muthaura et al.*, ICC-01/09-02/11-696, Decision on the withdrawal of charges against Mr Muthaura, TC V 18 March 2013, paras 10–11.

³²⁹ *Ibid.*, para. 12 and p. 8.

³³⁰ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-1005, Decision on the withdrawal of charges against Mr Kenyatta, TC V(B), 13 March 2015, para. 10, p. 6.

³³¹ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-981, Decision on Prosecution's application for a further adjournment, TC V(B), 3 December 2014, p. 26.

³³² *Prosecutor v. Uhuru Muigai Kenyatta*, (ICC-01/09-02/11-1005), Decision on the withdrawal of charges against Mr Kenyatta, TC V(B), 13 March 2015, para. 10, p. 6.

³³³ For example, *Prosecutor v. Joseph Kony et al.*, ICC-02/04-01/05-248, Decision to Terminate the Proceedings Against Raska Lukwiya, PTC II, 11 July 2007; *Prosecutor v. Muammar Mohammed Abu Minyar Gaddafi et al.*, ICC-01/11-01/11-28, Decision to Terminate the Case Against Muammar Mohammed Abu Minyar Gaddafi, PTC I, 22 November 2011; *Prosecutor v. Saif Al-Islam Gaddafi et al.*, ICC-01/11-01/11-567, Decision following the declaration of inadmissibility of the case against Abdullah Al-Senussi before the Court, PTC I, 7 August 2014. Notably only the decision of 22 November 2011 explicitly mentions article 58(4) as a legal basis for the withdrawal of the warrant of arrest previously issued against him.

³³⁴ United Kingdom of Great Britain and Northern Ireland: proposal regarding article 61, UN Doc. A/CONF.183/C.1/WGPM/L.20.

Presidency shall constitute a Trial Chamber which, subject to article 61(9) and to article 64(4) shall be responsible for the conduct of subsequent proceedings and may exercise any function of the Pre-Trial Chamber that is relevant and capable of application in those proceedings'. After the charges are confirmed, the suspect is referred to as the 'accused'.

- 162 In case the charges are confirmed and the PTC disposed of its last decision, it orders the transfer of the entire case record to the Presidency (rule 129, second sentence).³³⁵ The case record contains all submissions, decisions and orders, transcripts of hearings and the evidence ('all particulars' of the case, rule 15). The transfer is effectuated by the Registrar who is responsible for maintaining a full and accurate record³³⁶ of each case brought before the Court (rule 15, first sentence; rule 121(10)). A transmission filing of the Registrar notifies such transferal. With the transfer of the record to the Presidency, the PTC loses its authority over the case record.
- 163 As a follow up, the Presidency must constitute a TC or, in the event a previously constituted TC is available, it may refer the case to an existing TC.³³⁷ Upon constitution of a TC (or referral of the case to a previously constituted TC), the Presidency transmits the entire case record to the TC (rule 130). Access to the case record is effectuated by the Registrar. In the *Lubanga* case, the Presidency, while constituting a TC and referring to it the case, suspended the transmission of the case record to the TC as counsel had withdrawn from the case. The suspension was declared to be effective 'until such time as new Defence Counsel is assigned to Mr Lubanga Dyilo'.³³⁸ With decision dated 5 June 2007 the Presidency transmitted the case record to TC I 'considering that the issue of the assignment of defence counsel must be subject to judicial control'.³³⁹
- 164 As of the moment, the case is referred to a TC it is, in principle, responsible for the conduct of subsequent proceedings. That said, article 61(9) allows the PTC to intervene in the case if the Prosecutor indicated his or her intention to amend the charges post confirmation (see mn 146 *et seq.*). Likewise, according to article 64(4), the TC may refer 'preliminary issues' to the PTC or another available judge of the Pre-Trial Division. In the *Lubanga* case, TC I referred as a preliminary matter the review of detention to PTC I, on the grounds that the TC 'does not have sufficient time prior to the date [of review] to familiarize itself with the record in order to review Mr Thomas Lubanga Dyilo's detention in a fair and effective manner'.³⁴⁰
- 165 The TC may exercise any function of the PTC 'that is relevant and capable of application in those proceedings'. This authority is restated in article 64(6)(a). In the *Banda* case, TC IV

³³⁵ See recently, *Prosecutor v. Jean-Pierre Bemba Gombo et al.*, ICC-01/05-01/13-801, Joint decision on the applications for leave to appeal the 'Decision pursuant to Article 61(7)(a) and (b) of the Rome Statute', PTC II, 23 January 2015, 21; *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-680, Decision on the Defence request for leave to appeal the 'Decision on the Confirmation of Charges against Laurent Gbagbo', PTC I, 11 September 2014, para. 53; *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-335, Third Decision on Bosco Ntaganda's Interim Release, PTC II, 17 July 2014. In the *Blé Goudé* case, the transmittal was ordered by email of the Senior Legal Adviser of the Pre-Trial Division, see *Prosecutor v. Charles Blé Goudé*, ICC-02/11-02/11-193-Corr, Corrigendum to the 'Decision referring the case of *The Prosecutor v. Charles Blé Goudé* to Trial Chamber I', Presidency, 20 December 2014.

³³⁶ Regulation 21 of the Regulations of the Registry.

³³⁷ The *Lubanga* case was referred to TC I; the *Katanga/Ngudjolo* case was referred to TC II (which remained the competent Chamber after the charges against the two accused were severed); the *Bemba* case was referred to TC III; the *Banda* case was referred to TC IV; the *Ruto/Sang* case and the *Muthaura/Kenyatta* cases were initially referred to TC V which was later dissolved and the cases were referred to newly constituted TC V(A) and TC V(B), respectively; the *Ntaganda* case was referred to TC VI; the *Laurent Gbagbo* and *Blé Goudé* cases were referred to the previously constituted TC I; the *Bemba et al.* case was referred to TC VII.

³³⁸ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-842, Decision constituting Trial Chamber I and referring to it the case of *The Prosecutor v. Thomas Lubanga Dyilo*, Presidency, 6 March 2007.

³³⁹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-920, Decision transmitting the pre-trial record of proceedings in the case of *The Prosecutor v. Thomas Lubanga Dyilo* to Trial Chamber I, Presidency, 5 June 2007. The appointment of counsel was registered in the record of the case on 22 June 2007 (ICC-01/04-01/06-928).

³⁴⁰ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-921, Request for Review of Detention, TC I, 6 June 2007.

replaced the summons to appear against the accused with a warrant of arrest pursuant to article 61(11) and rule 119(5) and (4).³⁴¹ Article 61(11), however, does not vest the TC with unlimited powers, as the provision makes it clear that the TC's subsequent activity in this regard is 'subject to [article 61] paragraph 9 and to article 64 paragraph 4'. The express limitation mirrored in article 61(11) also demonstrates that the TCs do not have a statutory duty to request the Prosecutor to submit the so-called 'updated DCC'. It is clear from the language of article 61(11) that the Statute does not foresee any debate on the scope of the charges before the TC. Instead, defining the parameters of the trial lies solely in the hands of the PTC.

The TC continues the case proceedings in which a variety of issues have been ruled upon by the PTC. Those decisions remain in effect, unless ordered otherwise by the TC. With a view to facilitating and expediting the familiarization process of the TC with the content of the case record, some PTCs developed the practice of preparing a handover document in which the key issues of the entire pre-trial process are summarized. This would also greatly assist in achieving consistency of rulings and to reject certain objections of the parties on the basis of rule 122(4).

³⁴¹ *Prosecutor v. Abdallah Banda Abakaer Nourain*, ICC-02/05-03/09-606, Warrant of arrest for Abdallah Banda Abakaer Nourain, TC IV, 11 September 2014; *id.*, ICC-02/05-03/09-632-Red, Judgment on the appeal of Mr Abdallah Banda Abakaer Nourain against Trial Chamber IV's issuance of a warrant of arrest, AC, 3 March 2015. See also Bitti, 'Article 64', mn 31.

PART 6 THE TRIAL

Article 62 Place of trial

Unless otherwise decided, the place of the trial shall be the seat of the Court.

Literature: Bhoke, C., ‘The trial of Charles Taylor, Conflict prevention, international law and an impunity-free Africa’ (August 2006) *ISS Paper 127* < <http://www.issafrica.org/uploads/Paper127.pdf> > accessed 12 February 2015; Bigi, G., ‘The Decision of the Special Court for Sierra Leone to Conduct the *Charles Taylor* Trial in The Hague’ (2007) 6 *LAPE* 303; Bos, A., ‘Chapter 4.1 – Seat of the Court’, in: A. Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, Vol. I (Oxford University Press 2002) 189; Combs, N., ‘Chapter 5. Trial Process, section 3.1.1 – Fact-Finding Powers’, in: G. Sluiter *et al.* (eds.), *International Criminal Procedure – Rules and Principles* (Oxford University Press 2013) 689; D’Aoust, J., ‘The Conduct of Trials’, in: J. Doria *et al.* (eds.), *The Legal Regime of the International Criminal Court. Essays in Honour of Professor Igor Blishchenko* (Martinus Nijhoff Publishers 2009) 863; Dukić, D., ‘Transitional justice and the International Criminal Court – in “the interests of justice”?’ (2007) 89 *IRRC* 691; Kim, Y.S., *The Law of the International Criminal Court* (William S. Hein & Co., Inc. 2007); Klip, A., ‘Lockerbie Trial in the Netherlands’ (1999) 15 *IELR* 170; Knottnerus, A.S., ‘Extraordinary Exceptions at the International Criminal Court: The (New) Rules and Jurisprudence on Presence at Trial’ (2014) 13 *LAPE* 261; Meisenberg, S.M., ‘Die Anklage und der Haftbefehl gegen Charles Ghankay Taylor durch den Sondergerichtshof für Sierra Leone’ (2004) 17 *HuV* – I 30 < http://www.ruhr-uni-bochum.de/ifhv/documents/huvi/huv_2004/1_2004.pdf > accessed 12 February 2015; Okafor, O.C. and Ngwaba, U., ‘The International Criminal Court as a “Transitional Justice” Mechanism in Africa: Some Critical Reflections’ (2015) 9 *IJTJ* 90; C. Paulussen *et al.*, ‘Chapter 7: Year in Review 2013’, in: T.D. Gill (ed.), *YbIHL 2013* (Springer 2014) 147; Rugege, S. and Karimunda, A.M., ‘Domestic Prosecution of International Crimes: The Case of Rwanda’, in: G. Werle *et al.* (eds.), *Africa and the International Criminal Court* (Springer 2014) 79; Schomburg, W. and Hackner, T., ‘Vor § 68 IRG’, in: W. Schomburg *et al.* (eds.), *Internationale Rechtshilfe in Strafsachen (International Cooperation in Criminal Matters)* (C.H. Beck 5th edition 2012) 358; Sririm, C.L., ‘Tribunals, Legacies, and Local Culture: Lessons from Some African Experiences with International Criminal Justice’, in: W. Gephart *et al.* (eds.), *Tribunale – Literarische Darstellung und juristische Aufarbeitung von Kriegsverbrechen im globalen Kontext* (Vittorio Klostermann 2014) 97; Swoboda, S., ‘Didaktische Dimensionen internationaler Strafverfahren – dargestellt am Beispiel der UN ad hoc-Tribunale’ (2010) 5 *ZIS* 100 < http://www.zis-online.com/dat/artikel/2010_2_409.pdf > accessed 12 February 2015; Terrier, F., ‘Chapter 31.2 – The Procedure before the Trial Chamber’, in: A. Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, ii (Oxford University Press 2002) 1277; Triffterer, O., ‘Acts of Violence and International Criminal Law – A New Position of Power to Fight Abuse of Power?’ (1997) 4 *CroatianAnnCrimL&Prac* 811; UN-General Assembly (ed.), *Historical Survey of the Question of International Criminal Jurisdiction (Memorandum submitted by the Secretary-General)* (International Law Commission 1949) < http://legal.un.org/ilc/documentation/english/a_cn4_7_rev1.pdf > accessed 12 February 2015; Williams, S., ‘The Extraordinary African Chambers in the Senegalese Courts’ (2013) 11 *JICJ* 1139; Woetzel, R.K. *et al.*, *A Report on the First and Second International Law Conferences* (Johnson Foundation 1973); Zimmermann, T., ‘“Deals” mit Diktatoren? Zur politischen Verhandlungbarkeit völkerrechtlicher Strafansprüche’ (2013) 8 *ZIS* 102 < http://www.zis-online.com/dat/artikel/2013_3_738.pdf > accessed 12 February 2015

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A. General remarks

I. Overview

- 1 Article 62 has to be read **in conjunction with article 3** and especially with its paragraph 3, according to which '[t]he Court may sit elsewhere, whenever *it considers it desirable*, as provided in this Statute'¹. While article 3 encompasses all organs of the Court mentioned in article 34 and their different functions², article 62 is situated at the beginning of Part 6, dealing with the trial phase, and therefore concerns only this part of the proceedings.
- 2 The **purpose** of article 62 is to open for the 'place of the trial' facilities *outside* the seat of the Court for a broad variety of reasons, especially when it may be advisable or even indispensable to the search for the truth to hold a trial, for instance, closer to the events on which a judgement has to be rendered or to any other place where evidence may be available which otherwise could not be obtained.
- 3 A basis for **exceptions similar to article 62** is contained in article 4 para. 2:

'The Court may exercise its functions and powers, *as provided in this Statute*, on the territory of any State Party and, by special agreement, on the territory of any other State'.

'Provided in this Statute' refers to purposes supplementary to article 62, for instance, on-site investigations by the Prosecutor, article 56 para. 2 (f) and 57 para. 3 (d) as well as measures of international cooperation and judicial assistance regulated in Part 9. Such investigations may be made by organs of the requested States but also by those of the Court, especially the Office of the Prosecutor.

- 4 The ICC has not yet made use of its interim removal-power provided in article 62 in order to relocate a trial *in toto*.³ However, an **example** of how such a change in location may function is illustrated by the SCSL, which, while residing in Freetown, has relocated the 'Taylor'-case to the facilities of the ICC in The Hague.⁴

II. Historical development

- 5 Courts sitting for trial in places different from their local seat are well known in **national criminal jurisdictions**, especially when it comes to rather complicated on-site investigations or to obtain evidence from witnesses living abroad. It gained importance after the Second World War when the surviving victims of Nazi crimes living all over the world became older and sometimes unable to travel because of physical handicaps or were unwilling to return to the places where they had suffered brutalities leading to a legacy of continuing physical or mental pain.

The sitting of trial courts outside their regular seat in foreign countries is also a well established part of **state-to-state cooperation** in criminal matters⁵. In the 'Agreement Between the Parties to the North Atlantic Treaty Regarding the Status of Their Forces' is provided in article VII para. 1 (a) that

'the military authorities of the sending State shall have the right to exercise *within the receiving State* all criminal and disciplinary jurisdiction conferred on them by the law of the *sending State* over

¹ Emphasis added.

² See Strijards and Harmsen, *article 3*, mn. 9 *et seq.* See also for field offices and arrangements of the Office of the Prosecutor Bergsmo, Pejić and Zhu, *article 15*, mn. 15.

³ But see mn. 13 (with regard to the conduct of a site visit) and 18 (negative plenary decision).

⁴ For further information to this case see <http://www.ijmonitor.org/category/charles-taylor/>, and also Bhoke (2006) *ISS Paper 127*; Meisenberg (2004) 17 *HuV* – I 30.

⁵ See, e.g., Schomburg and Hackner, in: Schomburg *et al.* (eds.), *Internationale Rechtshilfe in Strafsachen* (2012) IRG Vor § 68, mn. 33 *et seq.* with further references; Combs, in: G. Sluiter *et al.* (eds.), *International Criminal Procedure* (2013) chapter 5, section 3.1.1, 689, 719 *et seq.*

all persons subject to the military law of that State'. The sending State has even the 'exclusive jurisdiction' over crimes 'including offences relating to its security, punishable by the law of the sending State, but not by the law of the receiving State', article VII para. 2 (a)⁶.

In addition, the two Libyan nationals extradited in April 1999 from The Netherlands as suspects in the bombing of an American plane which crashed in Lockerbie in 1988 have been tried by a Scottish court, which sat on a small piece of Scottish territory established in The Netherlands only for this purpose on a part of the disused United States Air Force base called Camp Zeist close to Utrecht, applying Scottish law⁷.

The (probably) first legal document taking account of this aspect at the **international level** 6 was article 4 of the Convention for the Creation of an International Criminal Court by the League of Nations. It provided, besides the regular seat in The Hague, that

'[f]or any particular case, the President may take the opinion of the Court and the Court may decide to meet elsewhere'.

This formula clearly indicates that the Court and not the Presidency finally decides. The Court at that time, however, consisted only of the judges and their deputies, according to articles 5 and 6 of this Convention⁸.

This line was continued by the UN endeavours after the Second World War. The Committee on International Criminal Jurisdiction proposed in article 21 of its 1951 Draft Statute, accepted without elaboration also for the 1953 Revised Draft Statute, a 'permanent seat of the Court' and that 'the Court may, however, sit and exercise its function elsewhere whenever the Court considers it desirable'. The competence was clearly with the Court, which at that time was not 'divided' into organs and therefore no need to be more precise existed.

From thereon the possibility of the Court sitting in a place other than its regular seat was almost continuously mentioned in all relevant documents. It was included, for instance, in the Statute of the so called **Bellagio-Wingspread Drafts 1972** which extended the possibility by proposing

'that the Court or its *subsidiary* organs shall sit and exercise their functions at any other place whenever this is considered desirable in the interests of the sound administration of justice'.

Accordingly not only the Trial Chamber but also each *subsidiary* organ of the Court could act anywhere as long as this appeared to be 'desirable in the interests of the sound administration of justice'⁹.

At this stage of development of the Court, consideration was given to installing **regional criminal courts** 7 in order to be closer to the actual appearances of crimes under international criminal law, either as part of a global international criminal court or as an independent tribunal, affiliated with a global institution, for instance, by a common Appeals Chamber. Both possibilities would have enjoyed the advantage of having judges more familiar with the events and backgrounds of the perpetrators and having the accused, the victims and the witnesses closer to the place of the crime. In addition, they would not have to be brought (for instance all from the same continent) to a place whose socio-economic and cultural surrounding they may not be acquainted with. Such a dislocation may influence their well-

⁶ Emphasis added; see, e.g., Schomburg *et al.* (eds.), *Internationale Rechtshilfe in Strafsachen* (2012) Part V D 1 with further references.

⁷ See, e.g., Klip (1999) 15 *IELR* 170 *et seq.* See also Strijards and Harmsen, *article* 3, mn. 4 and fn. 31. See for the 'Lockerbie' case *Prosecutor v. Abdelbaset Ali Mohamed Al Megrahi et al.*, Case No. 1475/99, Judgment, High Court, 31 January 2001 and *Prosecutor v. Abdelbaset Ali Mohamed Al Megrahi*, Case No. C104/01, Judgment, Appeal Court, 14 March 2002.

⁸ See for this Convention League of Nations O.J. Spec. in Supp. No. 156 (1936) Doc. C. 547 (I). M.384 (I). 1937. V (1938), reprinted in: Bassiouni (ed.), *International Criminal Law*, iii: *International Enforcement* (1st edition 1987) 191 *et seq.* and in UN-General Assembly (ed.), *Historical Survey of the Question of International Criminal Jurisdiction* (1949), 88 *et seq.*

⁹ See article 17 respectively article 16 for the subsidiary organs, reprinted in: 1st & 2nd International Criminal Law Conferences 1975, *The Establishment of an International Criminal Court*. See also Woetzel *et al.*, *A Report on the First and Second International Law Conferences* (1973); emphasis added.

being and effect their contribution to the truth finding task, necessary to bring peace through justice and avoid impunity for crimes under international law. The 1951 and 1953 Draft Statutes, for instance, provided in their article 55 for special tribunals that:

‘Nothing in the present Statute shall be taken to prejudice the right of two or more States parties thereto jointly to set up special tribunals to try the perpetrators of crimes over which each of such States has jurisdiction according to the general rules of international law’.

It also was proposed to establish **special chambers** having more specialized judges with competence only, for instance, for genocide¹⁰. The ‘Draft Convention on the Establishment of an International Penal Tribunal for the Suppression and Punishment of the Crime of Apartheid and other international crimes’ provided for such a tribunal not only for this ‘specific purpose’, but also stipulating that this permanent body shall be ‘performing its *chief* functions (only) at the Palace of Justice in the Hague’, thereby assuming that a dislocation of the *other* functions might be admissible, *argumentum e contrario*¹¹.

While the *theoretical* possibility of establishing regional international criminal Courts is also open for *ad hoc* Tribunals or treaty based Courts with a *limited* jurisdiction depending on the States or international organisations of certain regions wishing to establish them, like for Cambodia and for Sierra Leone, there appears to be a rather limited *practical need* for such an arrangement in the future any more. Especially after the establishment of the ICC with its basic decision to divide the power and the right to punish between *national* and *international* criminal jurisdiction in the sense of **complementarity**, only a reduced desirability can be identified after the Court by now came into full operation. In particular the first cases pending because of referrals to the Court according to article 13 demonstrate how the original idea of the direct enforcement model may satisfy the need for a worldwide international Court. Internationalized (national) courts, such as the newly established Extraordinary African Chambers¹², should, therefore, play only a subsidiary role.

A further exception may perhaps later on be considered for **specializing Chambers of the ICC**, e.g. with a jurisdiction limited to the difficult-to-prove crime of aggression. However, the basic rationale behind both methods of working closer to the location of criminal activity paved the way for and recommended itself to leaving the possibility open of conducting proceedings outside the seat of the Court.

- 8 For this reason the ILC returned in article 32 of its **Draft Statute 1994** to the former proposals mentioned above, especially to those made in articles 21 of the 1951 and 1953 UN Draft Statutes. Its commentary to the adapted shorter version summarized the reasons already mentioned but added that a place of trial closer to the scene of the alleged crime

‘may cast a shadow over the proceedings, raising questions concerning respect for the defendant’s right to a fair and impartial trial or it may create unacceptable security risks for the defendant, the witnesses, the judges or the staff of the Court’¹³.

Both **Siracusa Drafts** continued this line, leaving (as the ILC had done) the competence to decide the issue with the Presidency. This appears surprising, since the possibility of sitting outside the seat of the Court was for the first time mentioned in these Drafts where it was originally limited to the place of *the trial* and exclusivity at the discretion of all judges¹⁴.

¹⁰ 1996 Preparatory Committee I, para. 34, p. 11. The Convention for the Creation of an International Criminal Court of the League of Nations 1937 provided in its article 1 a special court for the trial of offences ‘dealt with in the Convention for the Prevention and Punishment of Terrorism’; see mn. 6.

¹¹ See articles 1 and 2 of this Convention UN Doc. E/CN.4/1426 (1981), reprinted also in: Bassiouni (ed.), *International Criminal Court. Compilation of UN Documents and Draft ICC Statute Before the Diplomatic Conference* (1998) 379; emphasis and brackets added.

¹² See, e.g., Williams (2013) 11 *JICJ* 1139 *et seq.*

¹³ 1994 ILC Draft Statute, commentary on article 32, pp. 102, paras. 1–3.

¹⁴ For the Siracusa Draft see AIDP, ISISC and MPI, Draft Statute for an International Criminal Court – Suggested Modifications to the 1994 ILC-Draft – (Siracusa Draft) prepared by a Committee of Experts, Siracusa/Freiburg/Chicago, 31 July. For the Updated Siracusa Draft II (1996), the relevant parts are reprinted in: Ambos,

The *Ad Hoc Committee* for the Establishment of an International Criminal Court did neither report discussion on this question nor make any specific proposals of relevance. But the **Preparatory Committee** included a remarkable number of proposals under the heading: ‘Competent organ and criteria to decide the place of the trial’. These proposals substituted, for instance, the Presidency with the Assembly of States Parties, the Court with the Trial Chamber, adding a reference to ‘inquiries with the State Party that appears likely to receive the Court’ and proposing that the (at that time) article 32 ‘shall also apply to non-party States’, who should agree ‘to grant the privileges, immunities and facilities provided for in ...’¹⁵. It typifies the situation that the Preparatory Committee in 1997 did not consider the subject matter any further and, correspondingly, this article was just reprinted with the proposals mentioned after the Inter-Sessional Meeting in January 1998 in Zutphen¹⁶ and again in the ‘Preliminary draft consolidated text’ of 27 March 1998, in the Draft Statute of the Preparatory Committee of 1 April 1998 and in the Final Report of 14 April 1998. However, the last three mentioned documents eliminated in the relevant article 62 the words ‘by the Presidency’ which had been retained by the Zutphen Draft¹⁷, thus leaving open the question of competence.

The discussions at the Rome Conference proceeded along the lines of the mentioned proposals and adopted **article 3 para. 3**, which contains **the general rule** that

‘the Court may sit elsewhere, whenever it considers it desirable, as provided in this Statute’.

This is the basic legitimation for exceptions to the rule that ‘the seat of the Court shall be established at The Hague in the Netherlands’, article 3 para. 1. The Court, as mentioned in article 3, includes all its organs as provided in article 34.

Nowadays provisions similar to articles 3 para. 3 and 62, permitting a court to meet in a different location than its seat, have become a standard element in the legal bases of international(ized) criminal tribunals. Even before the Rome Statute was established, the SC in Res. 827 of 25 May 1993 decided that the ICTY

‘may sit elsewhere when it considers it necessary for the efficient exercise of its functions.’¹⁸

Similar wording was used in SC Res. 955 with regard to the ICTR.¹⁹ Both *ad hoc Tribunals* thereupon adopted the almost identical rule 4 of their RPE, stating that

‘A Chamber may exercise its functions at a place other than the seat of the Tribunal, if so authorised by the President in the interests of justice.’ (ICTY)

respectively

‘A Chamber or a Judge may exercise their functions away from the Seat of the Tribunal, if so authorized by the President in the interests of justice.’ (ICTR).

The subsequently established tribunals followed these examples. For instance, article 10 second sentence of the ‘Agreement between the United Nations and the Government of Sierra Leone on the Establishment of a Special Court for Sierra Leone’ states that

‘[t]he Court may meet away from its seat if it considers it necessary for the efficient exercise of its functions’.

The same wording appears in article 6 third sentence of the ‘Agreement between the United Nations and the Government of Sierra Leone on the Establishment of a Residual

Der Allgemeine Teil des Völkerstrafrechts (2002/2004) 942 *et seq.* and also in Triffterer (1997) 4 *Croatian Ann-CrimL&Prac* 811, Annex; see also above mn. 5.

¹⁵ See 1996 Preparatory Committee II, article 32, p. 150, reprinting the ILC Draft Statute and especially those proposals mentioned above.

¹⁶ See Zutphen Draft, article 55 [32], and for the lack of consideration in 1997 Preparatory Committee see *ibid.*, N.B.: ‘This article was not considered by the PrepCom in 1997’.

¹⁷ See for these three documents Preparatory Committee Draft.

¹⁸ SC Res. 827 of 25 May 1993, para. 6.

¹⁹ SC Res. 955 of 8 November 1994, para. 6.

Special Court for Sierra Leone’ and in article 8 para. 2 of the ‘Agreement between the United Nations and the Lebanese Republic on the establishment of a Special Tribunal for Lebanon’. In addition to that, rule 44 STL-RPE, resembling rule 4 ICTY-/ICTR-RPE, provides that

‘A Judge or Chamber may exercise their functions at a place other than the seat of the Tribunal, if so authorised by the President in the interests of justice.’

The latter wording again – though limited to ‘A Chamber’ whilst omitting ‘A Judge’ – was adopted in rule 4 IRMCT-RPE, referring (probably) to article 8 para. 3 second sentence IRMCTS (‘as decided by the President, the functions [of the judges] may be exercised remotely, away from the seats of the branches of the Mechanism.’).

B. Analysis and interpretation of elements

I. ‘[T]he place of the trial’

- 12 The contents of the Statute, especially article 60, ‘Initial proceedings before the Court’, and article 61, ‘Confirmation of the charges *before* trial’, indicate that such actions do not belong to Part 6, ‘The Trial’. Article 62 concerns only the trial and, therefore, appears **inapplicable to decisions ‘prior to trial’** as, for instance, mentioned in the chapeau of article 64 para. 6. This may be surprising – at least at first glance – because the need to *prepare* the trial outside the seat of the Court may occur regularly and play an important role in securing the provenance of evidence, an endeavour which may determine whether the trial takes place at all.

However, there is no need to construe article 62 as an exception *for the Trial Chamber* instead of *for the trial* only. Because according to article 64 para. 6 (a) the Trial Chamber can in such a case ‘exercise any **functions of the Pre-Trial Chamber** referred to in article 61 para. 11’ and therefore may decide according to articles 56 para. 2 (f) and 57 para. 3 (d) to make use as well of the possibilities provided in Part 9 for international cooperation and judicial assistance outside the seat of the Court, if additional investigations are desirable or necessary *before* the trial. These possibilities are available through other rules and do not need to be based on article 62 as already mentioned in mn. 3.

The same applies, if the Trial Chamber refers according to article 64 para. 4 ‘[f]or its effective and fair functioning ... preliminary issues to the Pre-Trial Chamber’ or, if necessary, to ‘another available judge of the Pre-Trial Division’. This chamber or person is not holding a trial proceeding but rather exercising investigative functions to prepare the trial and may therefore set actions in places outside the seat of the Court.

- 13 Since article 62 opens the possibility of changing the place of the *whole* trial, parts of the trial may also be held in other places, *argumentum a maiore ad minus*.²⁰ In particular, a partial relocation may seem advisable if an **on-site visit by the Chamber** to the places described in the indictment or in a testimony appears necessary in order to obtain first-hand knowledge and an assessment of the topography of the region. Thus, various Trial Chambers of the ICTY and the ICTR have frequently conducted site visits, thereby acting under rule 4 of their RPE.²¹ In January 2012 the ICC’s Trial Chamber II made a site visit to scenes of alleged crimes in the DRC;²² the Chamber, however, did not expressly mention article 62 in

²⁰ Rule 100 para. 1 (current version). Also see Combs, in: Sluiter *et al.* (eds.), *International Criminal Procedure* (2013), chapter 5, section 3.1.1, 689, 718; Kim, *The Law of the ICC* (2007) 211; Terrier, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002), chapter 31.2, 1277, 1279.

²¹ See, e.g., *Prosecutor v. Karadžić*, No. IT-95-5/18-T, Decision on Second Site Visit, Trial Chamber, 10 February 2012, paras. 6 *et seq.* Further references are provided by Schabas, *The UN International Criminal Tribunals* (2006) 590; Combs, in: Sluiter *et al.* (eds.), *International Criminal Procedure* (2013) chapter 5, section 3.1.1, 689, 717 *et seq.*

²² *Prosecutor v. Ngudjolo*, No. ICC-01/04-02/12, Judgment pursuant to article 74 of the Statute, Trial Chamber II, 18 December 2012, paras. 68 *et seq.*

its decision on the visit²³, thereby avoiding the cumbersome procedure prescribed by rule 100 para. 3 (old version). Furthermore, it is possible to organise *in situ* proceedings limited to, e.g., the opening statements and testimonies of specific witnesses.

II. '[T]he seat of the Court'

The seat of the Court is, according to article 3, The Hague, and any place there provided by 14
'a headquarters agreement with the host State to be approved by the Assembly of States Parties ...'. Therefore, the seat of the Court may be **one or more places at The Hague**. The building now still serving as the seat of the ICTY, part of the organs of the ICTR and the IRMCT was originally and theoretically considered to serve for the ICC as well, because it was speculated that the workload of the ICTY may decline before that of the ICC rises. But this building soon proved to be too small for hosting all the organs of the ICC and their staff members. Anyhow, if the seat of the Court is not generally extended to more than one place in The Hague, article 62 provides, in addition, for the possibility of changing the location of the Court in a specific case for the oral public hearings, for instance, into an **additional courtroom**.

III. Competence to decide and conditions

The Statute does not express in article 62 who shall have the competence to 'otherwise 15
decide[d]'. Article 38 does not assign this competence to the Presidency. The words 'by the Presidency' were eliminated from the Drafts dating later than the Zutphen Draft Statute especially from the Consolidated Draft. Article 3 para. 3 is unhelpful, because while it opens the possibility of the Court and its organs sitting elsewhere, the possibilities are limited to those 'as provided in this Statute'.

The **history of this provision** shows that in article 4 of the Convention for the Creation of 16
an ICC adopted by the League of Nations it was provided that 'for any particular case, the President may take the opinion of the Court and the Court may decide to meet elsewhere'. Also the 1951 and 1953 Draft Statutes in their articles 21 provided for the possibility of changing location 'whenever the Court considers it desirable'; however, according to other proposals, 'the Court may ... sit and exercise its function elsewhere' without limiting this dislocation to the trial phase.

Nevertheless one of the proposals presented by the Preparatory Committee authorized the TC to leave The Hague 'when travel by the members of the Court is likely to make the proceedings simpler and less costly'. This proposal also appeared in the context of article 32 of the Zutphen Draft, in the later Draft of the Preparatory Committee and in the Consolidated Draft, which had already eliminated the words 'by the Presidency' from the wording of its article 55 [former 32]²⁴. To give the ASP competence over such a decision seemed ill advised. Its function is too removed from the day to day work of the TC and this body with its attendant bureaucracy would be rather slow in deciding issues which may need a quick decision.

In the previous edition of this commentary the position was taken that the Trial Chamber 17
has the right to decide, arguing that the decision about where 'the place of the trial shall be' is 'relevant' to the trial and, therefore, falls within the TC's competence to '[r]ule on any other relevant matters', article 64 para. 6 (f).²⁵ However, it was also stressed that, since the TC has no *administrative* power, for instance, to conclude a special agreement with a State willing to host such a trial, it ultimately depends on the Presidency deciding, if such a demand of a TC

²³ *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07, Decision on a judicial site visit, Trial Chamber II, 18 November 2011.

²⁴ See mn. 9.

²⁵ Triffterer, in: *id.* (ed.), *Commentary ICC* (2nd edition 2008), article 62, paras. 13 *et seq.*

can be fulfilled, because the Presidency has to guarantee '[t]he proper administration of the Court', article 38 para. 3 (a). Thus, the previous edition presented a compromise proposal at this point: Since the TC has the responsibility for the 'sound administration of justice' during the trial proceedings, there should be a consultation between the **Chamber and the Presidency**. While no change in location should be made *against* the TC's will, without the approval of the Presidency this Chamber cannot sit outside the seat of the Court; nor can it organize the necessary infrastructure by the Registry separately from the Presidency, because according to article 43 para. 2 second sentence '[t]he Registrar shall exercise his or her functions under the authority of the President of the Court'. He or she, 'together with the First and Second Vice-Presidents, shall constitute the Presidency, which shall be responsible for: The proper administration of the Court ...', article 38 para. 3 (a). In addition, it has to be considered that besides practical arrangements, the authorities in the State will need to be contacted to ensure proper protection measures for the TC's safety but also to address other issues that would normally be addressed by the headquarters agreement.²⁶

- 18 This position, however, was to some extent contradicted by **rule 100** (3) second sentence RPE (original version, as adopted on 9 September 2002), which provided that in lieu of the Chamber/Presidency, 'the decision ... shall be taken by the **judges, in plenary session**, by a two-thirds majority.' But this provision proved inappropriate, when in July 2013 a blocking minority of the judges in plenary session inexplicably rejected the TC's recommendation to hold the commencement and other portions of the Ruto/Sang case either in Kenya or at the premises of the ICTR in Arusha, arguing that there would be a risk of negative press coverage or anti-ICC demonstrations.²⁷ Consequently, soon after that decision the ASP replaced the old rule 100 by a more appropriate and expeditious decision-making procedure.²⁸ The new version of rule 100, being quite similar to the above mentioned compromise proposal, provides a **cooperative two-stage procedure** that empowers the Chamber as well as the Presidency to decide; it states that, after the judges of the Chamber have either unanimous or by majority 'decide[d] to make a recommendation changing the place' (para. 2 first and second sentences), 'the decision ... shall be taken by the Presidency in consultation with the Chamber.' (para. 3 second sentence).

- 19 According to rule 100 (2) first sentence (current version), the Chamber may make its decision *proprio motu* or at the request of the Prosecutor or the defence.

Though not provided for in the Statute, the current rule 100 (2) third sentence stipulates that the Prosecutor and either the accused or his or her legal representative will have to be heard before the TC takes such a decision in order to ensure that the rights to equality of arms and a **fair trial** are not compromised.²⁹ In the event one of them objects, it may at least be advisable to give them, in cases of doubt, an additional hearing before the Presidency decides³⁰, especially if issues are raised questioning the practicability of such a dislocation from the point of view of the rights of the two parties during the trial. If against such a

²⁶ It was, *i.a.*, due to the argument of 'necessary ... preliminary diplomatic steps', that the AC of the SCSL denied having any decisive power in the matter of a change of venue, *Prosecutor v. Charles Ghankay Taylor*, No. SCSL-2003-01-R72, Decision on Urgent Defence Motion against Change of Venue, Appeals Chamber, 29 May 2006, paras. 6 *et seq.*

²⁷ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, No. ICC-01/09-01/11-763, Recommendation to the Presidency on where the Court shall sit for trial, Trial Chamber V(A), 3 June 2013, paras. 10 *et seq.* For the negative plenary decision, see *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, No. ICC-01/09-01/11-875, Notification of the Decision of the Plenary of Judges on the 'Joint Defence Application for a Change of Place where the Court Shall Sit for Trial', The Presidency, 26 August 2013, Annex: Decision of the Plenary of Judges on the Joint Defence Application for a Change of Place where the Court Shall Sit for Trial in the case of *The Prosecutor v. William Samoei Ruto and Joshua Arap Sang* (Ref. No. ICC-01/09-01/11-875-Anx), para. 24. Also see Paulussen *et al.*, in: Gill (ed.), *YbHumL 2013* (2014) 147, 177.

²⁸ Res. ICC-ASP/12/Res.7, para. 1 (adopted at the 12th plenary meeting, on 27 November 2013).

²⁹ A less strict position is taken by Bos, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002), chapter 4.1, 189, 202: 'may request the view of ... the defence on this question.'

³⁰ For the need to 'request the views of the Prosecutor and the defence on this question' see 1994 ILC Draft Statute, commentary to article 32, para. 2, p. 103.

motion the Court changes the location of the trial, it may result in a ground for appeal, if the process of finding the truth thereby has been influenced in a negative way.

IV. Scope of application

Article 62 applies to the trial only. It is applicable also when the Appeals Chamber orders 20 ‘a new trial before a different Trial Chamber’, article 83 para. 2 (b). However, it is difficult to imagine, that a reason for a change in location may appear during appeal procedures. But if an Appeals Chamber has the same desire in relation to its proceedings, article 62 may be applied.

Since the Appeals Chamber has according to article 83 para. 1 ‘all the powers of the Trial Chamber’, it may decide according to article 64 para. 6 (f) in connection with article 62, *in principle* in the same way as the Trial Chamber, the question of if and where the appeal proceedings should be held outside the seat of the Court.

V. Criteria to be considered

1. Preliminary considerations on the decisive standard

Article 62 does not mention any criteria relevant to a decision that ‘the place of the trial’ 21 shall not be at the seat of the Court. But article 3 para. 3 expresses that the Court must consider it ‘desirable’ to ‘sit elsewhere’, and rule 100 (1) states that the Court must consider whether the decision to sit in a state other than the host state ‘would be in the interests of justice’. Additionally, various elements that have been proposed during the historical development and the preparation of the Rome Statute can serve as guidelines for such a decision.

Right from the beginning the opinion prevailed that such a decision should be an 22 exception rather than the rule. Thus, article 62 must not be understood as an undefined exception granting unfettered **discretionary power** to the Chamber. Instead, the discretion the Chamber enjoys under article 62 must be exercised with caution and good reason. Therefore, the most frequently mentioned aspect was the one now contained in article 3 para. 3, that a sitting outside the regular seat of the Court must be ‘desirable’³¹. The prerequisite of **desirableness**, however, is not sufficiently precise, for it is a merely subjective criterion that does not constrain the Chamber in order to limit its margin of appreciation to reasonable grounds. More helpful for the purpose of clarification is the expression, ‘desirable in the interests of the sound administration of justice’³² and also the sentiment that such a desire has to be ‘likely to make the proceedings simpler and less costly’ or ‘will ensure the efficient conduct of the trial and is in the interest of justice’³³.

The last aspects clarify that transparent reasons have to be given in order to supervise and 23 control the Trial Chamber in its decision making use of article 62. The reference to issues of **administrative efficiency and economy** refers to practical needs and a sparing use of the limited resources of the court. The legal term ‘in the interests of justice’, as used in various provisions of the Statute, is an umbrella term covering different interests of different parties concerned. According to article 53 para. 1 (c) and para. 2 (c), it encompasses interests of the court, of the defendant, of the victims as well as collective interests of the international community as a whole with regard to the purposes of punishment.³⁴ This assessment may be

³¹ See articles 21 of the 1951 and 1953 Draft Statutes and article 17 of the Bellagio-Wingspread Drafts 1972; see mn. 6.

³² Article 17 of the Statute of the Bellagio-Wingspread Draft 1972.

³³ Quoted from two of the proposals mentioned in the Preparatory Committee’s and in the Consolidated Draft.

³⁴ For an in-depth analyses see, e.g., Dukić (2007) 89 *IRRC* 691, 695 *et seq.*

confirmed by article 8 para. 1 second sentence of the ‘Agreement between the United Nations and the Lebanese Republic on the establishment of a Special Tribunal for Lebanon’, stating that

‘[t]he location of the seat shall be determined having due regard to considerations of justice and fairness as well as security and administrative efficiency, including the rights of victims and access to witnesses’.³⁵

- 24 In sum, the determination whether or not an interim removal seems to be in the interests of the sound administration of justice is complex and involves **weighing several competing factors**.³⁶ In any case, it should be noted that whatever criteria have to be considered, they do not all have to be fulfilled equally. As long as one of them by itself is strong enough to be convincing it appears to be sufficient. Even if two or more of them are, considered alone, not convincing, but *together* they are, there is reasonable ground for a dislocation of the trial.

2. Specific aspects to be considered

- 25 In particular, the following interests might be regarded decisive within the Chamber’s consideration:

First of all, **security matters** can justify the dislocation of a trial. It is necessary to ensure that neither the trial itself poses a danger to the surroundings of its location (*e.g.* because the presence of an accused being a former high-ranking state-official causes the danger of political unrest) nor that the premises of the court or individual parties to the proceedings (judges, defendants, defense lawyers, witnesses, visitors *etc.*) are threatened in their safety. Based on similar considerations, the SCSL has relocated the Taylor case from Freetown to the facilities of the ICC in The Hague,³⁷ after the SC had determined ‘that the continued presence of former President Taylor in the subregion is an impediment to stability and a threat to ... peace and security in the region’.³⁸ Yet as to the ICC, this seems to be a rather hypothetical scenario. Even in the event of a Dutch accused before the Court, it is hard to imagine that security risks might pose a serious threat to a trial held in The Hague.

- 26 With regard to the truth finding task of the Court, reasons in the interest of the **collection of evidence** can justify a (partial) relocation of the trial,³⁹ namely if evidence is otherwise not available or that the task of the Trial Chamber to find the truth is more likely to be achieved at a location remote from the seat. It may, for instance, appear advisable or necessary to obtain on-site evidence or to hear a certain group of witnesses outside the seat of the Court. This practice is well accepted in *national* jurisdictions and by the ICTY and ICTR, as already mentioned above⁴⁰. On the other side, this line of reasoning will apply only for the relocation of *parts* of the trial; the necessity for site visits alone barely justifies the relocation of the whole trial.

- 27 The reason mentioned in the last proposals for the Rome Statute ‘to make the **proceedings simpler and less costly**’ may be decisive for a change in location especially in cases where the scene of the alleged crime is literally on the other side of the earth. Instead of costly moving and safeguarding dozens of parties to the proceedings (accused, witnesses and victims) to Europe, it might be easier in terms of logistics to dislocate the whole trial to a suitable courtroom close to the scene of the crimes.⁴¹ Apart from that, the Chamber may deem it

³⁵ Similar considerations have been raised concerning the seats of the ICTY and the ICTR, see SC UN Doc. S/25704, Report of the Secretary-General Pursuant to Paragraph 2 of Security Council Resolution 808 (1993), 3 May 1993, para. 131; Bos, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002), chapter 4.1, 189, 192.

³⁶ Cf. *Prosecutor v. Charles Ghankay Taylor*, No. SCSL-03-01-PT, Order Changing Venue of Proceedings, President of the Special Court, 19 June 2006, para. 6.

³⁷ See *Prosecutor v. Taylor*, No. SCSL-03-01-PT, 19 June 2006, paras. 8 *et seq.* For a thorough analyses of the decision see Bigi (2007) 6 *LAPE* 303 *et seq.*

³⁸ SC Res. 1688 of 16 June 2006.

³⁹ See mn. 13.

⁴⁰ See mn. 5 and 13.

⁴¹ According to Bos, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002), chapter 4.1, 189, 193 the UN chose Arusha as the seat of the ICTR not least because of its travel cost-reducing proximity to the crime scenes.

necessary to relocate a trial by reason of sheer practical needs, e.g. in case there is not enough courtroom space available at the seat of the ICC.

The **interests of the defendant** also have to be taken into account.⁴² But aside from 28 protection issues, the specific interests of the accused in favour or against relocation should not be given too much weight. This is mainly because the crimes within the jurisdiction of the ICC are those of universal jurisdiction and the accused therefore cannot invoke any right to be tried in a particular location.⁴³ Besides, given the case the defendant wishes to be tried in a location close to his home country because otherwise his or her permanent absence from there would bar him or her from fulfilling an important function of an extraordinary dimension (e.g. as a head of state), the Statute provides other possibilities to enable the accused meeting extraordinarily important duties during an ongoing trial.⁴⁴

Furthermore, it must be observed that the decision (not) to relocate a trial may affect 29 victims' and collective interests with regard to the **purpose of punishment** in ICL. Generally speaking, it is controversial whether or not international criminal courts should be sitting close to the scene of the alleged crime. Critical voices raise concerns about the – either real or merely perceived – independence and impartiality of a trial, arguing that

‘[p]roximity of the trial to the place where the crime was allegedly committed may cast a shadow over the proceedings ...’⁴⁵.

Hence, the application of the exception provided in article 62 should not be exercised in order to, literally, *bring* justice to the (alleged) victims.

In contrast to that position, many authors emphasize the importance of the trial's proximity to and visibility within the community that has suffered most from the alleged atrocities. Particularly with regard to cases dealing with situations located outside Europe, the advocates of this view point out that a trial in **The Hague** is **too remote** and foreign to the communities concerned.⁴⁶ Neither are survivors and relatives of the victims given the chance to monitor and participate in the process on a daily basis, nor is there sufficient publicity or local media coverage so that the people of the society concerned most are denied to see, first hand, justice being administered.

Against the background of the **historical precedents**, none of these viewpoints seems to be overall convincing: With the IMT in Nuremberg and the IMTFE in Tokyo tribunals have been sitting in the home country of the accused, with the SCSL in Freetown a tribunal was situated in the country where the atrocities occurred,⁴⁷ and with the ICTY in The Hague and the ICTR in Arusha the UN had deliberately chosen neutral countries as locations for the tribunals' seats.⁴⁸ It cannot be said, however, that one of the aforementioned tribunals has ‘failed’ due to its proximity or remoteness to the crime scenes. Nevertheless, strong arguments indicate that in certain cases a relocation of the trial to a facility closer to the scene of the alleged crime should be seriously considered.⁴⁹ Given the fact that ICL serves, *inter alia*, the purpose of positive general and integrating prevention⁵⁰, the intended didactic,

⁴² See Bigi (2007) 6 LAPE 303, 312 *et seq.*

⁴³ *Prosecutor v. Taylor*, No. SCSL-03-01-PT, 19 June 2006, para. 9.

⁴⁴ See, e.g., Knottnerus (2014) 13 LAPE 261 *et seq.*; Broomhall, *article 51*, mn. 41.

⁴⁵ See 1994 ILC Draft Statute, commentary to article 32, para. 2, p. 102; also see SC UN Doc. S/25704, Report of the Secretary-General Pursuant to Paragraph 2 of Security Council Resolution 808 (1993), 3 May 1993, para. 131.

⁴⁶ See Rugege and Karimunda, in: Werle *et al.* (eds.), *Africa and the International Criminal Court* (2014) 79, 82; D'Aoust, in: Doria *et al.* (eds.), *The Legal Regime of the ICC* (2009) 863, 865; also see *Prosecutor v. Charles Ghankay Taylor*, No. SCSL-2003-01-PT, Civil Society *Amicus Curiae* Brief Regarding Change of Venue of Taylor Trial Back to Freetown, 9 March 2007, paras. 3 *et seq.*

⁴⁷ For the reasons see Sriram, in: Gephart *et al.* (eds.), *Tribunale* (2014) 97, 106 *et seq.*

⁴⁸ See Bos, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) chapter 4.1, 189, 190–193.

⁴⁹ Cf. *Prosecutor v. Ruto and Sang*, No. ICC-01/09-01/11-763, 3 June 2013, para. 10; *Prosecutor v. Ruto and Sang*, No. ICC-01/09-01/11-875-Anx, 26 August 2013, paras. 15–20.

⁵⁰ See, e.g., Ambos, *Treatise on ICL I* (2013) 71 *et seq.*; Zimmermann (2013) 8 ZIS 102, 116 (both with further references).

educative function of the trial⁵¹ and its legacy's positive effect on the process of reconciliation can only be fully achieved if the Court proceedings are easily accessible for the communities concerned. On that score, a relocation can be justified particularly in cases where the ICC primarily serves as an instrument of **transitional justice**⁵² (e.g. if a trial is dealing with crimes committed within a single country in the course of a long-standing civil war or dictatorship) and where the affected country is very far away from the Court's seat (perhaps with different time zones making it even more difficult for the affected community to follow the internet live-broadcast of the trial proceedings).

⁵¹ Ambos, *Treatise on ICL I* (2013) 71; Swoboda (2010) 5 ZIS 100, 104.

⁵² But see for a critical assessment of the ICC as a transitional justice mechanism Okafor and Ngwaba (2015) 9 *IJTJ* 90.

Article 63

Trial in the presence of the accused

1. The accused shall be present during the trial.
2. If the accused, being present before the Court, continues to disrupt the trial, the Trial Chamber may remove the accused and shall make provision for him or her to observe the trial and instruct counsel from outside the courtroom, through the use of communications technology, if required. Such measures shall be taken only in exceptional circumstances after other reasonable alternatives have proved inadequate, and only for such duration as is strictly required.

Literature: Behrens H., 'Trial Proceedings in The International Criminal Court: the making of the Rome Statute', in: Lee (ed.), *The International Criminal Court* (1999) 238; Brown D. J., 'The International Criminal Court and Trial *in absentia*', (1999) 24 *BrooklynJIL* 763; David E., 'Le tribunal international pénal pour l'ex-Yougoslavie', (1992) 25 *RevBelgeDroitInt'l* 565; Figà-Talamanco N.A., 'Trials *in absentia* and International Criminal Court', in: Lattanzi (ed.), *The International Criminal Court: Comments on the Draft Statute*, (1998) 209; Freckelton I. And Karagiannakis M., 'Fitness to stand trial under international criminal law: challenges for law and policy', (2014) *JICJ* 12(4) 705; Friman, H., 'Rights of Persons Suspected or accused of a crime', in: Lee (ed.), *The International Criminal Court* (1999) 247; Gaeta, P., 'Trial *In Absentia* Before the Special Tribunal for Lebanon', in: A. Alamuddin *et al.* (eds.), *The Special Tribunal for Lebanon Law and Practice* (Oxford University Press 2014) 229; Knottnerus A., 'The International Criminal Court on Presence at Trial: The (In)validity of Rule 134*quater*', (2014) International Crimes Database Brief 5; *id.*, 'Extraordinary Exceptions at the International Criminal Court: The (New) Rules and Jurisprudence on Presence at Trial' (2014) 13(3) *LAPE*, 261; Momeni M., 'Why Barayagwiza is Boycotting his Trial at the ICTR: Lessons in Balancing Due Process Rights and Politics', (2001) 7 *Ilsajl&CompL* 315; Pellet A., 'Le tribunal criminel international pour l'ex-Yougoslavie. Poudre aux yeux ou avancée décisive?', (1994) 98 *RGDIP* 7; Schabas W., 'In *Absentia* Proceedings Before International Criminal Courts', in G. Sluiter and S. Vasiliev (eds.), *International Criminal Procedure: towards a Coherent Body of the Law*, (Cameron May 2009) 335.

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A. Introduction/General remarks

The right of an accused to be present at trial is recognized in the principal international human rights instruments¹. Although a 'right', the case law of international tribunals and monitoring bodies has not traditionally viewed presence at trial as indispensable. However, under article 63(1) of the Rome Statute the requirement that the accused be present at trial

¹ *France et al. v. Goering et al.*, 23 *Trial of the major war criminals before the international military Tribunal*, 13 I.L.R. 203, 41 *AJIL* 172 (1946).

has been accorded significant importance and the Court has held that it is a requirement that can only be derogated from under specific conditions.

- 2 The practise of domestic justice systems that derive from the Romano-Germanic models, where *in absentia* proceedings are well accepted, is considered compatible with the right to presence at trial, as long as the accused has been duly served with appropriate notice of the hearing². The issue is often presented, erroneously, as one of principled difference with the common law system, which does not allow for *in absentia* trials as a general rule. But the fact that common law jurisdictions make a number of exceptions, and allow for such proceedings where, for example, an accused has absconded after trial has begun, shows that this is not an issue of fundamental values so much as one of different practice and tradition. Indeed, a Trial Chamber of the ICC has opined that:

‘the failure to reach an agreement on trials in absentia had resulted from a misapprehension of the law in significant respects on the part of the common law delegates who had been generally credited with opposition to the idea. They appear to have been under the erroneous impression that such trials were not permissible in common law jurisdictions or in international law, when in fact the opposite is true’³.

- 3 At Nuremberg, one of the major war criminals, Martin Bohrmann, was tried in his absence and without formal notification, pursuant to article 12 of the *Statute of the International Military Tribunal*⁴. Despite this precedent, the Secretary General’s report on the Draft Statute of the ICTY frowned upon the practice⁵. The ICTY Statute did not formally rule out *in absentia* trials (it merely repeated the terms of article 14 of the ICCPR, which recognize the right of the accused to be present)⁶. This provoked the ire of European scholars, who saw a triumph for common law approaches and who argued that *in absentia* trials would prove indispensable if the Tribunal were to accomplish its political role⁷, a concern that has been shown to have been misplaced. Later, the judges of the ICTY developed an original technique of *ex parte* hearings, pursuant to Rule 61, at which prosecution evidence was led and the Tribunal ruled on the sufficiency of the evidence⁸.

² *Mbenge v. Zaire* (No. 16/1977), UN Doc. A/34/40, p. 134; The Right to a Fair Trial, Report to the UN Sub-Commission on the Prevention of Discrimination and the Protection of Minorities by Mr. S. Chernichenko and Mr. W. Treat on The Administration of Justice and the Human Rights of Detainees, UN Doc. E/CN.4/Sub.2/1991/29, paras. 73–76; General Comment No. 13 (21), UN Doc. A/36/40, para. 11: ‘When exceptionally for justified reasons trials *in absentia* are held, strict observance of the rights of the defence is all the more necessary’. For the European human rights system, see: *Colozza and Rubinat v. Italy*, Ser. A, No. 89, 12 Feb. 1985, para. 29; *Stamoulakatos v. Greece*, Ser. A, No. 271, 26 Oct. 1993, Commission Report, para. 61; *Poitrimol v. France*, Ser. A, No. 277-A, 23 Nov. 1993, para. 31; St. Stavros, *The Guarantees for Accused Persons Under article 6 of the European Convention on Human Rights* 262–268 (1993); Tochilovsky, *The Law and Jurisprudence of the International Criminal Tribunals and Courts: Procedure and Human Rights Aspects* (2014), 510–617.

³ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 830, Decision on Defence Request for Conditional Excusal from Continuous Presence at Trial, Trial Chamber V(b), 18 October 2013, para. 83; See also *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, paras. 46, 75–76; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-863-Anx-Corr, Dissenting Opinion of Judge Eboe-Osuji, Trial Chamber V(b), 27 November 2013, paras. 125–182.

⁴ Agreement for the Prosecution and Punishment of Major War Criminals of the European Axis, and Establishing the Charter of the International Military Tribunal (I.M.T.), adopted 8 Aug. 1945, 82 UNTS 279.

⁵ UN Doc.S/25704: ‘101. A trial should not commence until the accused is physically present before the International Tribunal. There is a widespread perception that trials *in absentia* should not be provided for in the statute as this would not be consistent with article 14 of the International Covenant on Civil and Political Rights, which provides that the accused shall be entitled to be tried in his presence’.

⁶ International Covenant on Civil and Political Rights, 999 UNTS 171, entered into force 23 Mar. 1976.

⁷ David (1992) 25 *RevBelgeDroitInt’l* 565; Pellet (1994) 98 *RGDIP* 7.

⁸ Pursuant to rule 61, Rules of Procedure and Evidence, UN Doc. IT/32. See: F. Patel King, *Public Disclosure in Rule 61 Proceedings Before the International Criminal Tribunal for the Former Yugoslavia*, 29 *NYUJIL&Pol* 523 (1997); M. Thieroff/E.A. Amley Jr., *Proceeding to Justice and Accountability in the Balkans: The International Criminal Tribunal for the Former Yugoslavia and Rule 61*, 23 *YaleJIL* 231(1998); see also *Prosecutor v. Mrksić, Radić and Sljivancanin*, IT-95-13-R61, Decision on the Proposal of the Prosecutor for a Request to the Federal Republic of Yugoslavia (Serbia and Montenegro) to Defer the Pending Investigations and Criminal Proceedings to the Tribunal, 10 Dec. 1998.

Despite persistent denials⁹, it had many similarities with the *in absentia* procedure and was, in many respects, an honourable compromise between the Romano-Germanic and common law systems. At the time, President Cassese referred to the 'Tribunal's decision not to allow trials *in absentia* by creating a special procedure', implying that in his view the ICTY was not barred from holding *in absentia* trials¹⁰. The Rule 61 procedure was only used in a handful of cases in 1995 and 1996, and then fell into abeyance. Neither the International Criminal Tribunal for Rwanda nor the Special Court for Sierra Leone has ever held proceedings of this nature. In contrast, the Special Tribunal for Lebanon expressly authorises the practice of both *in absentia* trial proper and trial by default¹¹, that is, a trial against a person who has not been notified of their trial¹². By way of explanation, the Secretary-General said that the provision for trials *in absentia* was a manifestation of the incorporation of 'civil law elements' in the institution's procedural regime. 'The institution of trials *in absentia* is common in a number of civil law legal systems, including Lebanon's', he wrote. 'In addition, in the present case, where the conduct of joint trials for some or all of the cases falling within the jurisdiction of the tribunal is likely, it would be crucial to ensure that the legal process is not unduly or indefinitely delayed because of the absence of some accused'¹³. The Tribunal is currently hearing the case against five accused *in absentia*¹⁴.

B. Analysis and interpretation of elements

The ILC Draft's article 37 was entitled '[t]rial in the presence of the accused'. It began with the statement that '[a]s a general rule, the accused should be present during the trial', continuing with three exceptions: where the accused was in custody, or had been released pending trial, and for reasons of security or ill health of the accused his or her presence was undesirable; where the accused was disrupting the trial; where the accused had escaped from lawful custody under the statute or absconded while on interim release or bail. In such cases, the court could proceed and was to ensure that the accused's rights were protected, up to and including appointment of counsel¹⁵. Thus, the ILC Draft ruled out the true *in absentia* trial, admitting only that where a trial could not be held because of the 'deliberate absence' of an accused, an indictment chamber of the court could consider evidence and rule on whether a *prima facie* case had been made out. If, subsequently, the accused appeared before the court for trial, the record in the *ex parte* hearing would be admissible. The latter procedure is largely comparable to the Rule 61 procedure of the *ad hoc* Tribunals.

⁹ *Prosecutor v. Rajić*, IT-95-12-R61, Decision: 'A Rule 61 proceeding is not a trial *in absentia*. There is no finding of guilt in this proceeding'. *Prosecutor v. Nikolić*, IT-94-2-R61, Review of Indictment Pursuant to Rule 61, 20 Oct. 1995: 'The Rule 61 procedure... cannot be considered a trial *in absentia*: it does not culminate in a verdict nor does it deprive the accused of the right to contest in person the charges brought against him before the Tribunal'.

¹⁰ Second Annual Report of the ICTY, UN Doc. A/50/365-S/1995/728, Annex, para. 198. See the discussion in: M. Thieroff & E. A. Amley Jr., Proceeding to Justice and Accountability in the Balkans: The International Criminal Tribunal for the Former Yugoslavia and Rule 61, 23 *YaleJIL* 261 (1998).

¹¹ Statute of the Special Tribunal for Lebanon, UN Doc. S/2006/893, Attachment, article 22.

¹² Gaeta, in: Alamuddin *et al.* (eds.), *The Special Tribunal for Lebanon Law and Practice* (2014) 229.

¹³ UN Doc.S/2006/893, para. 32(b). Also, paras. 9, 33.

¹⁴ *Prosecutor v. Ayyash et. al*, No.STL-11-01; *Prosecutor v. Ayyash et. al.*, STL-II-OIIP/AC/AR126.1, Decision on Defence Appeals Against Trial Chamber's Decision on Reconsideration of the Trial *In absentia* Decision, Appeals Chamber, 1 November 2012; *Prosecutor v. Hassan Habib Merhi*, STL-13-04/I/TC, Decision to hold trial *in absentia*, Trial Chamber, 20 December 2013.

¹⁵ 1994 ILC Draft Statute, article 37, p. 107. Also: Code of Crimes against the Peace and Security of Mankind, UN Doc. A/51/332 (1996), article 11 para. 1 (e): 'to be tried in his presence, and to defend himself in person or through legal assistance of his own choosing; to be informed, if he does not have legal assistance, of this right; and to have legal assistance assigned to him and without payment by him if he does not have sufficient means to pay for it ...'.

- 5 During the 1995 sessions of the *Ad Hoc* Committee, which considered the ILC Draft Statute, the view that the accused should be present at trial was widely endorsed¹⁶. Concerns were expressed that any exceptions to this rule be quite clearly spelled out. As for the *ex parte* procedure proposed by the ILC in cases of deliberate absence, delegates tended to the view that this be confined to the preservation of evidence¹⁷.
- 6 When the informal working group on procedures met during the August 1996 session of the Preparatory Committee, views on this question had crystallized into two basic schools of thought that would inform all subsequent debate¹⁸. Some delegates were opposed in principle to *in absentia* trials¹⁹, admitting exceptions only in extreme cases such as repeated disruption of the hearing by the accused. Others argued that the special context of an international criminal court without any enforcement mechanism to compel attendance before it militated in favour of such trials where an accused was voluntarily absent. However, a person convicted pursuant to such proceedings would be entitled to retrial²⁰. The proposal that a trial be permitted to continue when an accused was absent due to ill health was criticized, delegates arguing that this was really grounds for an adjournment²¹.
- 7 The various approaches were honed into four options in the Zutphen Draft and the final Draft Statute submitted by the Preparatory Committee. Option 1 excluded all manner of trial in the absence of the accused. Option 2 stated a general rule of presence at trial, subject, in cases where the accused had been present at the outset of the hearing, to ‘exceptional circumstances’ such as absconding bail or disruption. Option 3 allowed for an *in absentia* trial on a broader range of exceptions, and in particular where the accused did not appear on the day of hearing. Option 4 also allowed *in absentia* trial, but only in cases where the accused’s absence was deemed to be ‘deliberate’²².
- 8 At the Rome Conference, attempts to reach some compromise on the subject of *in absentia* trials were unsuccessful, despite some new suggestions²³. The Chair endeavoured to simplify the different options by presenting a new working paper²⁴. It began with the general principle of the presence of the accused at trial, and the undisputed exception in cases where the accused is present at the beginning of the hearing but continues to disrupt the proceedings. Option 1 authorized the Trial Chamber to proceed in cases where the accused was present at the outset of the hearings but had fled subsequently. Option 2 permitted *in absentia* trials at the request of the accused, where the accused was in detention and refused to appear, and, finally, where the accused, ‘having been duly informed of the opening of the trial [...] does not appear on the day of the hearing’.
- 9 An important concern of some delegations was with the rights of the accused generally and, specifically, with legal representation and the protection of evidence in cases where the Trial Chamber was to proceed in the absence of the accused, for whatever reason. The Working Group concluded that special provisions were not required, and that these matters

¹⁶ *Ad Hoc* Committee Report, para. 164, p. 34.

¹⁷ *Ibid.*, paras. 165–168, p. 34.

¹⁸ Trial *in absentia* among issues discussed by preparatory committee establishment of criminal court, UN Doc. L/2798(1996).

¹⁹ 1996 Preparatory Committee I, para. 253, p. 54.

²⁰ *Ibid.*, para. 254, pp. 54–55, para. 259, p. 55.

²¹ *Ibid.*, para. 256, p. 55.

²² Zutphen Draft, p. 186; Draft Statute for the International Criminal Court, UN Doc. A/CONF.183/2/Rev.1, pp. 99–103. For a discussion of these options, see: Figa-Talamanca, in: Lattanzi (ed.), *The International Criminal Court* (1998) 209, 209–218.

²³ Proposal for article 63 submitted by Egypt, Iraq, the Libyan Arab Jamahiriya, Oman, Qatar, the Sudan and the Syrian Arab Republic, UN Doc. A/CONF.183/C.1/WGPM/L.15 (25 June); Proposal submitted by Malawi for article 63, UN Doc. A/CONF.183/C.1/WGPM/L.16 (25 June); Proposal for article 63 submitted by Columbia, UN Doc. A/CONF.183/C.1/WGPM/L.17 (25 June).

²⁴ Proposal for article 63, UN Doc. A/CONF.183/C.1/WGPM/L.51 (4 July); Working paper on article 63, UN Doc. A/CONF.183/C.1/WGPM/L.51/Corr.1 (9 July). Also: Working paper on article 63, UN Doc. A/CONF.183/C.1/WGPM/L.67 (9 July).

were adequately addressed in articles 64 (Functions and powers of the Trial Chamber) and 67 (Rights of the accused)²⁵.

The debate consisted of the classic controversies between Romano-Germanic and common law procedural models on the subject of *in absentia* trials. Among opponents of the concept, some delegations took the ‘principled’ view, holding that *in absentia* hearings were inadmissible in all cases, subject to a single exception of disruption of trial by the accused. They feared that these would degenerate into show trials and quickly discredit the new ICC. Others took the more pragmatic view that *in absentia* hearings were of little practical value given the right, which would be included in the proposal, of an accused convicted in his or her absence to demand subsequently a *de novo* trial upon appearance before the court, as is the case in most Romano-Germanic codes. In support, they pointed to the rather limited use made by the ad hoc Tribunals of the Rule 61 procedure. Finally, those delegations favouring *in absentia* trials argued that the nature of the crimes within the subject matter jurisdiction of the Court would mean that it would frequently be impossible to compel the appearance of an accused. For the Court to have its intended influence and role in the promotion of peace, justice and reconciliation, they said, it would often be necessary to hold such trials.

Compromise on these issues proved impossible and, as is often the case, the result is that there is no provision on *in absentia* trials in the Statute, saving the exception where an accused disrupts the proceedings²⁶. When the report of the Drafting Committee was presented, Syria expressed its reservations about the provision²⁷.

In the first nine years of the Court’s effective operation, article 63(1) was largely uncontroversial. In 2013, however, William Ruto²⁸ and Uhuru Kenyatta²⁹ submitted requests for exemption from continuous presence at trial. This triggered significant debate regarding the scope and purpose of article 63(1), specifically whether the provision created an obligation upon the accused to attend trial. Prior to these requests, there had only been a handful of instances at the ICC where an accused was absent from the courtroom and never for more than a very limited amount of time. The absence was negligible and necessary due to practical considerations; the prosecution had not objected³⁰. When Thomas Lubanga was unwell and unable to attend for a few hours, Judge Fulford remarked that ‘the accused has

²⁵ See fn. 1 to Working paper on article 63, UN Doc. A/CONF.183/C.1/WGPM/L.67 (9 July): ‘After having further reflected upon the provisions in articles 64 and 67, it has been concluded that the text of paragraph 1 in A/CONF.183/C.1/WGPM/L.51 should be retained’.

²⁶ Report of the Working Group on Procedural Matters, UN Doc. A/CONF.183/C.1/WGPM/L.2/Add.8 (15 July), p. 5; UN Doc. A/CONF.183/C.1/L.88, p. 1; UN Doc. A/CONF.183/C.1/L.76/Add. 6, p. 1. Paragraph 2 of the text adopted by the Working Group underwent minor changes in the Drafting Committee. The Working Group version reads:

‘2. If the accused, being present before the Court, is continuing to disrupt the trial, the Trial Chamber may remove the accused and shall provide for him or her to observe and instruct counsel from outside the court room, through the use of communications technology if required. Such measures shall be taken only in exceptional circumstances, and after other reasonable alternatives have proved inadequate, and only for such duration as is strictly required’.

²⁷ UN Doc. A/CONF.183/C.1/SR.41, para. 49.

²⁸ *Prosecutor v. Ruto and Sang*, ICC-01/09–01/11–685, Defence Request pursuant to article 63(1) of the Rome Statute, 17 April 2013.

²⁹ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09–02/11–809, Defence Request for Conditional Excusal from Continuous Presence at Trial, 23 September 2013.

³⁰ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05–01/08–T–183–Red–ENG, Transcript of the Hearing of 7 November 2011, Trial Chamber III, 7 November 2011, pgs 1–2; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05–01/08–T–306–Red–ENG, Transcript of the Hearing of 12 April 2013, Trial Chamber III, 12 April 2013, pg. 62 lines 23–24; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05–01/08–T–324–ENG, Transcript of the Hearing of 17 June 2013, Trial Chamber III, 17 June 2013, pg.16 lines 1–12; Also the following confidential hearings referred to by the Appeals Chamber in *Prosecutor v. Ruto and Sang*, ICC-01/09–01/11–1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, OA5, 25 October 2013 para. 50 fn. 94, *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05–01/08–T–324bis–CONF–ENG, Transcript of the Hearing of 17 June 2013, Trial Chamber III, 17 June 2013 pg 27; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05–01/08–T–331–CONF–ENG, Transcript of the Hearing of 27 June 2013, Trial Chamber III, 27 June 2013 pgs 2–3.

the right to be present, and it is for him to decide whether or not to waive that right³¹. An issue also arose at the pre-trial stage when Germain Katanga refused to attend part of his confirmation hearing in 2008³². However, absence at the Confirmation Hearing is explicitly contemplated under article 61 (2) of the Statute.

- 12 In February 2013, in *Ruto and Sang*, counsel for Joshua Arap Sang requested that a provision be made for the exceptional presence of the accused by way of video-link³³. Subsequently, Uhuru Kenyatta³⁴ and William Ruto³⁵ submitted similar applications. However, these requests were superseded, at least in the case of Mr Kenyatta and Mr Ruto, by requests to be conditionally excused from continuous presence at trial following their election as President and Deputy President of Kenya respectively³⁶. In *Ruto and Sang*, Trial Chamber V(a) held that article 63(1) imposes a 'duty' upon the accused to be present at trial, however, the Trial Chamber had the discretion to permit a derogation from this duty, under limited circumstances, on the basis of its residual powers of the Court under article 64(6)(f)³⁷. In *Kenyatta*, Trial Chamber V(B) fully adopted the position in *Ruto and Sang*³⁸, and further substantiated its position with reference to general principles of international law³⁹. Under these terms, the accused in both cases were granted excusal from significant parts of trial, subject to certain conditions⁴⁰.
- 13 While the decision in *Ruto and Sang*⁴¹ was before the Appeals Chamber following an appeal by the Prosecution, and the request in *Kenyatta*⁴² was under consideration by Trial Chamber V(b), a terrorist attack at Westgate mall in Nairobi made the temporary return of Mr Ruto to Kenya necessary. The prosecution and the victims did not object to the Defence request for temporary excusal⁴³, and the Court granted the motion without any reference to a particular provision in the Statute⁴⁴. In *Kenyatta*, Trial Chamber V(b) noted that this incident militated against an overly restrictive interpretation of the Court's discretion to excuse the accused. The Trial Chamber referred to the event as a 'veritable 'early warning sign' as to what is reasonable in the interpretation of article 63(1)', cautioning that it was 'not a sign to be ignored'⁴⁵.

³¹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-T-172-Red3-ENG, Transcript of 12 May 2009, Trial Chamber I, 12 May 2009, pg. 1 lines 17–18.

³² *Prosecutor v. Germaine Katanga*, ICC-01/04-1/07-T-46-ENG, Transcript of the Confirmation of the Charges Hearing of 11 July 2008, Pre-Trial Chamber I, 11 July 2008, pgs. 23–24.

³³ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-T-19-ENG, Transcript of the Status conference of 14 February 2013, Trial Chamber V, 14 February 2013, p 6–7.

³⁴ *Prosecutor v. Francis Muthaura and Uhuru Muigai Kenyatta*, ICC-01/09-02/11-667, Defence Request for Mr Kenyatta to be Present During Trial via Video Link, 28 February 2013.

³⁵ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-629, Joint Defence Submissions on Legal Basis for the Accused's Presence at Trial via Video Link, 28 February 2013.

³⁶ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-685, Defence Request pursuant to article 63(1) of the Rome Statute, 17 April 2013; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-809, Defence Request for Conditional Excusal from Continuous Presence at Trial, 23 September 2013.

³⁷ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto's Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, paras. 38–53, 104.

³⁸ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 830, Decision on Defence Request for Conditional Excusal from Continuous Presence at Trial, Trial Chamber V(b), 18 October 2013, paras. 66–67.

³⁹ *Ibid.* paras. 93–111.

⁴⁰ See Section B.I.1 and B.I.2.

⁴¹ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto's Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013.

⁴² *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-809, Defence Request for Conditional Excusal from Continuous Presence at Trial, 23 September 2013.

⁴³ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-T-35-ENG, Transcript of Status Conference, Trial Chamber V(a), 23 September 2013, paras. pgs.4–5.

⁴⁴ *Ibid.*, pg. 6 ln 2–6.

⁴⁵ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 830, Decision on Defence Request for Conditional Excusal from Continuous Presence at Trial, Trial Chamber V(b), 18 October 2013, para. 62.

During the Appeal proceedings, a Joint Amicus Curiae Brief was submitted pursuant to article 103 by Tanzania, Rwanda, Burundi, Eritrea and Uganda⁴⁶. It contended that article 63 should be interpreted in a ‘broad and flexible manner that encourages State cooperation in the widest possible set of circumstances and without endangering the constitutional obligations of the highest office’⁴⁷. 14

The Appeals Chamber, made no explicit reference to the ‘duty’ of the accused to appear. Instead, the Chamber relied upon a ‘general principle’ of presence under article 63(1) which reflects the centrality of the accused in the proceedings⁴⁸. Nevertheless, the Appeals Chamber held that the accused was required to be present at trial. However, the Court enjoyed a measure of discretion under article 63(1) to excuse the accused, in exceptional circumstances and under specific conditions⁴⁹. The Appeals Chamber determined that the Trial Chamber had construed its discretion too widely and, therefore, overturned the decision conditionally excusing Mr Ruto from presence at significant parts of the trial⁵⁰. In the light of the Appeals Chamber decision, the Trial Chamber in *Kenyatta* revised its own decision and withdrew its excusal⁵¹. 15

Barely a month after the Appeals Chamber Judgment⁵², the Twelfth Session of the Assembly of State Parties adopted Rules 134*bis*, *ter* and *quater*⁵³ which provide, respectively, for the possibility of attendance at trial by video technology⁵⁴, the excusal of the accused from presence at trial in exceptional circumstances⁵⁵, and the excusal of the accused from presence at trial due to extraordinary public duties⁵⁶. The adoption of these rules was, quite clearly, motivated by the developments in the *Ruto and Sang* and *Kenyatta* cases. While the President of the Assembly of State Parties noted that the discussions showed that ‘no one is above the law’⁵⁷, she noted that negotiations on the new rules themselves were ‘intense’⁵⁸ and the final text was the result of a compromise⁵⁹. Strong political undercurrents dominated the discussions and the negotiations took place during a period of tense relations between the States of the African Union and the ICC. Shortly before the session of the Assembly of States Parties, on 15 November 2013, a draft resolution⁶⁰ tabled before the UN Security Council for 16

⁴⁶ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-948, Joint Amicus Curiae Observations of the United Republic of Tanzania, Republic of Rwanda, Republic of Burundi, State of Eritrea and Republic of Uganda on the Prosecution’s appeal against the ‘Decision on Mr. Ruto’s Request for excusal from Continuous Presence at Trial’, 17 September 2013.

⁴⁷ *Ibid.*, para. 2.

⁴⁸ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, OA5, 25 October 2013, para. 49–54.

⁴⁹ *Ibid.*, para 56.

⁵⁰ *Ibid.*; see also Section B.I.1.

⁵¹ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-01/11-863, Decision on the Prosecution’s motion for reconsideration of the decision excusing Mr Kenyatta from continuous presence at trial, Trial Chamber V(b), 26 November 2013; *contra Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-863-Anx-Corr, Dissenting Opinion of Judge Eboe-Osuji, Trial Chamber V(b), 27 November 2013.

⁵² *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, OA5, 25 October 2013.

⁵³ ICC-ASP/12/Res.7 adopted by consensus at the 12th plenary meeting, on 27 November 2013.

⁵⁴ See section B.I.2.

⁵⁵ See section B.II.2.a.

⁵⁶ See section B.II.2.b.

⁵⁷ 12th Session of the Assembly of State Parties, Closing remarks of the President Tiina Intelmann at the thirteenth meeting of the Assembly of States Parties, on 28 November 2013, ICC-ASP12-CLOS-PASP-ENG, 28 November 2013, 2.

⁵⁸ *Ibid.*

⁵⁹ *Ibid.*

⁶⁰ Tabled by Azerbaijan, Burundi, Ethiopia, Gabon, Ghana, Kenya, Mauritania, Mauritius, Morocco, Namibia, Rwanda, Senegal, Togo and Uganda.

the deferral of the cases against Mr Kenyatta and Mr Ruto under article 16 had failed⁶¹. In her closing statement at the Twelfth Session of the Assembly of States Parties, during which the Rules were adopted, President Tiina Intelmaan noted that the session was not ‘business as usual’ and that the ‘re-examination of the relationship between the African States Parties, the African Union, and the ICC [...] was an opportune moment to address issues [...] that concern political implications of the work of the Court and affect the Rome Statute system as a whole’⁶².

- 17 Prior to their adoption, the proposals had been discussed in the Working Group on Amendments. A special segment of the Assembly requested by the African Union on the indictment of sitting Heads of State and Government, decided that practical solutions, in line with the existing legal framework, were required to address the African Union’s concerns. While changes to the Rome Statute did not seem feasible the possibility of amending the Rules of Procedure and Evidence to ‘ensure the necessary degree of flexibility when dealing with specific circumstances which could not have been foreseen when the Statute’ was considered⁶³.
- 18 The background against which the Rules were agreed to has, ultimately, led to provisions which are, at least in part, case-specific, and which do not indisputably clarify all the issues. Moreover, doubts about the consistency of Rule 134*quater* with articles 63 and 27 of the Statute have been raised⁶⁴. However, Rule 134*quater* withstood its first test when Trial Chamber V(a) acceded to a request for an excusal pursuant to the rule in *Ruto and Sang*⁶⁵.

I. Paragraph 1: The principle of presence at trial

1. article 63(1): The requirement of attendance at trial

- 19 The principle of presence of the accused at trial is set out in paragraph 1: ‘The accused shall be present during the trial’. Article 67 para. 1(d), concerning the rights of the accused, also declares: ‘Subject to article 63, paragraph 2, [the accused has the right] to be present at the trial’.
- There has been some uncertainty about whether article 63(1) merely reiterates the right of the accused under article 67(1)(d) to be present at trial, or whether it also creates a duty or requirement upon the accused to be present. A right can, generally, be waived by the holder. On the other hand, a duty or a requirement is mandatory and needs to be fulfilled unless an excusal thereto is granted.
- 20 The drafting history of the Statute provides little guidance about this particular issue. Article 63(1) was ‘[o]ne of the most controversial legal issues during the negotiation process’⁶⁶. The opinions of States were divided and each draft was effectively a compromise. The negotiating process mainly centred on the more fundamental questions about whether

⁶¹ United Nations Security Council, 7060th meeting, Friday, 15 November 2013, <http://www.securitycouncil-report.org/atf/cf/%7B65BFCF9B-6D27-4E9C-8CD3-CF6E4FF96FF9%7D/s_pv_7060.pdf> accessed on 12 December 2014.

⁶² 12th Session of the Assembly of State Parties, Closing remarks of the President Tiina Intelmann at the thirteenth meeting of the Assembly of States Parties, on 28 November 2013, ICC-ASP12-CLOS-PASP-ENG, 28 November 2013, 2.

⁶³ 12th Session of the Assembly of State Parties, Informal summary by the Moderator, ‘Special segment as requested by the African Union: ‘Indictment of sitting Heads of State and Government and its consequences on peace and stability and reconciliation’, 27 November 2013, ICC-ASP/12/61.

⁶⁴ Heller KJ, ‘Will the New RPE 134 Provisions Survive Judicial Review? (Probably Not.)’ (2013), *Opinio Juris*, <http://opiniojuris.org/2013/11/28/will-new-rpe-134-provisions-survive-judicial-review/>, accessed 10 December 2014; See also Knottnerus (2014) *International Crimes Database Brief* 5; Knottnerus (2014) 13(3) *LAPE* 261, 277–280.

⁶⁵ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1186, Reasons for the Decision on Excusal from Presence at Trial under Rule 134*quater*, Trial Chamber V(a), 18 February 2014; *Prosecutor v. William Ruto and Joshua Arap Sang*, ICC-01/09-01/11-T-72-ENG, Status Conference of 15 January 2014, Trial Chamber V(a), 15 January 2014.

⁶⁶ Friman, in: Lee (ed.), *The International Criminal Court: The Making of the Rome Statute, Issues, Negotiations, Results* (1999) 247, 255.

trials *in absentia* could proceed under any conditions or at all, not upon the obligation of the accused to attend trial.⁶⁷

The practice of the ad hoc tribunals is, similarly, of limited assistance; while the Statutes of the tribunals contain provisions guaranteeing the right of the accused to be present under article 67, they do not contain separate provisions analogous to article 63(1). Indeed, the Appeals Chamber at the ICTR has opined that ‘the language of article 63(1) [...] appears to express an obligation of the accused rather than a right’⁶⁸. Moreover, trials *in absentia* are permissible, under very strict conditions, under rule 60(A) of the rules of procedure and evidence of the Special Court of Sierra Leone and rule 82*bis* of the Rules of Procedure and Evidence of the ICTR.

When Trial Chamber V(a) was first called upon to clarify the issue in *Ruto and Sang*, its view was unambiguous that ‘the presence of the accused during trial is not only a right (by virtue of article 67(1)(d)), but also a duty on the accused (by virtue of 63(1))’. If article 63(1) were not intended to create a duty, but merely to guarantee a right, it would superfluous since it would add little value to article 67(1)(d)⁶⁹. This position was followed in *Kenyatta*⁷⁰.

The Trial Chamber also derived the mandatory nature of article 63(1) from the powers of the Court to issue an arrest warrant under article 58(1)(b) or, where sufficient, a summons to appear under article 58(7), since these imply that the presence of the accused is mandatory⁷¹.

Ultimately, the Trial Chamber identified that article 63(1) aimed at ensuring ‘that a Trial Chamber will maintain judicial control over the accused, from the perspective of making impositions on his time and whereabouts, for the purposes of effective inquiry into his individual responsibility’⁷².

The Appeals Chamber in *Ruto and Sang* did not specifically refer to a ‘duty’ of the accused to be present at trial. The Chamber noted that the *travaux préparatoires* indicate that article 63(1) was, at least partly, intended to protect the integrity of the Court and bolster the right of the accused to be present at trial, particularly by preventing the Court from drawing the inference that an accused had implicitly waived their right to be present under article 67(1) by absconding or failing to appear. The provision had not been discussed in terms of the possibility of proceeding where the accused waives the right not to be present in the courtroom⁷³.

⁶⁷ See mn 3–9; see also *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, OAS, 25 October 2013, paras. 52–53; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 830, Decision on Defence Request for Conditional Excusal from Continuous Presence at Trial, Trial Chamber V(b), 18 October 2013, paras. 76–87.

⁶⁸ *Nahimana et al. v. Prosecutor*, ICTR-99-52-A, Judgment, Appeals Chamber, 28 November 2007, para 107, fn. 217.

⁶⁹ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, paras. 38–44, 47–53, 104; *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066-Anx, Joint Separate Opinion of Judge Erkki Kourula and Judge Anita Ušacka, OAS, 25 October 2013, para. 7; See also *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777-Anx2, Dissenting Opinion of Judge Herrera Carbuca, Trial Chamber V(a), 18 June 2013, para. 4; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-830- Anx2, Partially Dissenting Opinion of Judge Ozaki, Trial Chamber V(b), 23 October 2013, para. 10.

⁷⁰ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 830, Decision on Defence Request for Conditional Excusal from Continuous Presence at Trial, Trial Chamber V(b), 18 October 2013, para. 124.

⁷¹ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, para. 40; see also *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066-Anx, Joint Separate Opinion of Judge Erkki Kourula and Judge Anita Ušacka, OAS, 25 October 2013, para. 7; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-830- Anx2, Partially Dissenting Opinion of Judge Ozaki, Trial Chamber V(b), 23 October 2013, para. 10.

⁷² *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, para. 53; *contra Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-830- Anx2, Partially Dissenting Opinion of Judge Ozaki, Trial Chamber V(b), 23 October 2013, para. 14: ‘I do not agree with the majority that the requirement of the accused’s presence at trial is only a question of judicial control. The fairness and integrity of the proceedings are also implicated’.

⁷³ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, OAS, 25 October 2013, para. 52–54.

At the same time, the Appeals Chamber held that the Statute provides a ‘general principle’ of attendance based upon the centrality of the accused in the proceedings⁷⁴. As such it was a requirement that could only be derogated from in specific exceptional circumstances⁷⁵. Therefore, while recalling the rights-based position of the drafters and not explicitly referring to a ‘duty’ upon the accused to be present, the Court held that the presence of the accused was required and that any derogation could only be granted by the Chamber under strict circumstances. Nevertheless, it seems to be implied that the provision imposes a duty upon the accused; as Judge Eboe-Osui has observed, ‘the view that article 63(1) is about a right for the accused not a duty negate[s] the very notion of excusal from presence at trial’⁷⁶.

- 24 In considering the requirement of presence at trial, the value accorded to the presence of the accused in the courtroom is important, not only in determining the scope of the provision, but also in identifying to what extent, if at all, the obligation or principle can be derogated from.

The arguments militating in favour of presence at trial include: that it reflects ‘the gravitas of the proceedings’⁷⁷ lending legitimacy thereto and affecting perceptions about the Court and its judgments⁷⁸; that it provides the victims with the opportunity to face the accused in Court and is important for the morale of the victims and witnesses⁷⁹; that it helps to create a ‘comprehensive record of the relevant events’⁸⁰; that it protects the rights of the accused and ensures that the accused is in a position to identify any incongruities between personal memories and those presented in the testimonial evidence brought by the prosecution⁸¹.

It has also been suggested that it provides judges with ‘the opportunity to observe all the parties, including the accused, as the evidence is presented’⁸². However, the Court is required to assess the guilt or innocence of the accused based on the evidence presented and it would be incompatible with the rights of the accused were the Court to draw any inferences from the accused’s reactions to the evidence.

2. Presence by way of video-link

- 25 Until relatively recently, presence at Trial would have implied physical presence in the court room. However, developments in technology have created the possibility for remote, virtual presence. The provision on the possibility for witnesses to testify, exceptionally, by

⁷⁴ *Ibid.*, para. 49.

⁷⁵ *Ibid.*, para. 62; see section B.II.2.

⁷⁶ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-863-Anx-Corr, Dissenting Opinion of Judge Eboe-Osui, Trial Chamber V(b), 27 November 2013, para. 35.

⁷⁷ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066-Anx, Joint Separate Opinion of Judge Erkki Kourula and Judge Anita Ušacka, OA5, 25 October 2013, para. 8.

⁷⁸ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, OA5, 25 October 2013, para. 49; *contra Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, paras 72–78.

⁷⁹ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, OA5, 25 October 2013, para. 49; see also *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-657-Anx, Common Legal Representative for Victims’ Response on the Joint Defence Submissions on Legal Basis for the Accused’s Presence at Trial via video-link, 19 March 2013; *contra Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, para. 73.

⁸⁰ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, OA5, 25 October 2013, para. 49.

⁸¹ *Ibid.* It is noteworthy that the Appeals Chamber referred to the reasoning of the Court in *ECtHR Demebukov v Bulgaria*, Judgment, 28 February 2008 para. 51; See also *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777-Anx2, Dissenting Opinion of Judge Herrera Carbuca, Trial Chamber V(a), 18 June 2013, para. 8.

⁸² *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066-Anx, Joint Separate Opinion of Judge Erkki Kourula and Judge Anita Ušacka, OA5, 25 October 2013, para. 9.

video-link was only first included in the draft of the Rome Statute in the March–April 1998 session⁸³. Moreover, rule 124 provided for the ‘observation’ of (not participation at) the confirmation hearing from outside the court room by technological means. Therefore, while the technology for virtual presence was, indeed, available at the time the Rome Statute was adopted, it is unlikely that it was perceived as sufficient to put the accused in a position comparable to physical presence in Court.

At the ICTY and the ICTR it has been held that in terms of the right to be present, the accused is entitled to be physically present in the court room⁸⁴. Indeed, the Appeals Chamber at the ICTY considered appearance by video-link as a derogation from the right of the accused and held that it could only replace physical presence where other alternatives, which could have ‘potentially secure[d] the accused’s ability to fully exercise his right to be present at trial’⁸⁵, were inadequate. Therefore, presence by video-link was not considered to be a ‘full’ exercise of the right.

At the ICC, while the Court had allowed for the accused to be present in preliminary Status Conferences by video-link, remote presence at trial was first raised in *Ruto and Sang*⁸⁶ and *Kenyatta*⁸⁷. However, the issue was superseded by requests for excusal from continuous presence at trial, therefore, the Trial Chamber did not examine the matter. Nevertheless, Judge Ozaki did opine that article 63(1) requires physical presence at trial, but that the Court could derogate from this requirement under exceptional circumstances⁸⁸.

The Office of the Prosecutor and Legal Representatives for Victims had strongly objected to the requests by the accused on a number of grounds including: that article 63(1) necessitates the physical presence of the accused, subject to the very restrictive exception related to the disruption of the trial by the accused⁸⁹, and limited circumstances in the confirmation hearing⁹⁰; that the reference to the ‘observation’ of Pre-Trial proceedings in Rule 124(3) implies that there exists a distinction between physical presence and remote observation⁹¹; that it is inconsistent with the traditional Court model and it is unclear how

⁸³ Behrens in: Lee (ed.), *The International Criminal Court: The Making of the Rome Statute, Issues, Negotiations, Results* (1999) 238, 244.

⁸⁴ *Prosecutor v. Protais Zigirayirazo*, ICTR-2001-73-AR73, Decision on Interlocutory Appeal, 30 October 2006, paras 10–13; *Prosecutor v. Edouard Karemera*, ICTR-98-44-AR73/10, Decision on Nzirorera’s Interlocutory Appeal concerning his Right to be Present at Trial, 5 October 2007, para. 11.

⁸⁵ *Prosecutor v. Stanišić and Simatović*, IT-03-69-AR73.2, Appeals Chamber, Decision on Defence Appeal of the Decision on Future Course of Proceedings, 16 May 2008, para. 19.

⁸⁶ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-T-19-ENG, Transcript of the Status conference of 14 February 2013, Trial Chamber V, 14 February 2013, p 6–7; *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-629, Joint Defence Submissions on Legal Basis for the Accused’s Presence at Trial via Video Link, Trial Chamber V, 28 February 2013.

⁸⁷ *Prosecutor v. Francis Muthaura and Uhuru Muigai Kenyatta*, ICC-01/09-02/11-667, Defence Request for Mr Kenyatta to be Present During Trial via Video Link, 28 February 2013.

⁸⁸ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-830- Anx2, Partially Dissenting Opinion of Judge Ozaki, Trial Chamber V(b), 23 October 2013, paras. 19–20.

⁸⁹ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11- 657-Anx, Common Legal Representative for Victims’ Response on the Joint Defence Submissions on Legal Basis for the Accused’s Presence at Trial via video-link, 19 March 2013, para 10; *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-660, Prosecution’s Observations on Joint Defence Submissions on Legal Basis for the Accused’s Presence at Trial via Video-Link, 22 March 2013, paras. 3–5, 9; *Prosecutor v. Muthaura and Kenyatta*, ICC-01/09-02/11-686, Victims’ Response to the ‘Defence Request for Mr Kenyatta to be Present During trial via Video Link’, 8 March 2013 paras. 13–23; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 703, Prosecution’s Response to the Defence Request for Mr Kenyatta to be Present During Trial via Video-Link’, 22 March 2013, paras. 2–4.

⁹⁰ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-660, Prosecution’s Observations on Joint Defence Submissions on Legal Basis for the Accused’s Presence at Trial via Video-Link, 22 March 2013, paras. 6, 11; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 703, Prosecution’s Response to the Defence Request for Mr Kenyatta to be Present During Trial via Video-Link’, 22 March 2013, paras. 6, 11.

⁹¹ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-660, Prosecution’s Observations on Joint Defence Submissions on Legal Basis for the Accused’s Presence at Trial via Video-Link, 22 March 2013, para. 7; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 703, Prosecution’s Response to the Defence Request for Mr Kenyatta to be Present During Trial via Video-Link’, 22 March 2013, para. 7.

the accused would exercise his or her rights during proceedings⁹²; that the legal framework only provides for the testimony of witnesses by video-link for a valid reason and it would be unfair and against the interests of justice for the obligations of the accused to be less onerous than those of the witnesses⁹³; that the presence of the accused is important to the victims⁹⁴ and their absence might indicate indifference to their suffering⁹⁵; that it creates the risk that the accused might abscond⁹⁶; that technological and logistical difficulties which might arise in operating the video-link may have adverse effects not only on the accused but also on other parties and participants⁹⁷.

In November 2013, the issue was settled with the adoption of rule 134*bis* (presence through the use of video technology) in the RPE⁹⁸, upon a proposal tabled by the UK⁹⁹. The rule provides that:

1. An accused subject to a summons to appear may submit a written request to the Trial Chamber to be allowed to be present through the use of video technology during part or parts of his or her trial.
 2. The Trial Chamber shall rule on the request on a case-by-case basis, with due regard to the subject matter of the specific hearings in question.
- 29 Although, by default, presence implies physical presence, the Chamber can authorise the accused to participate by video-link for part(s) of the trial, as long as a number of conditions are fulfilled. Primarily, and perhaps most importantly, a request can only be submitted by the accused. Therefore, the accused retains the right to be physically present at trial.
- 30 The rule is only applicable to an accused subject to a summons to appear. The value of not allowing a detained person to apply under the same conditions is unclear. Moreover, it might, ultimately, prove to be counter-productive; it appears to prevent a detained accused from following the trial by video link, even where physical presence in the courtroom is not possible. An accused might be unable to attend in court, for instance, due to temporary illness, but content to follow the proceedings by video conference rather than delaying the

⁹² *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11- 657-Anx, Common Legal Representative for Victims' Response on the Joint Defence Submissions on Legal Basis for the Accused's Presence at Trial via video-link, 19 March 2013, paras. 6, 10; *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-660, Prosecution's Observations on Joint Defence Submissions on Legal Basis for the Accused's Presence at Trial via Video-Link, 22 March 2013, para. 19; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 703, Prosecution's Response to the Defence Request for Mr Kenyatta to be Present During Trial via Video-Link', 22 March 2013, para 18.

⁹³ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-660, Prosecution's Observations on Joint Defence Submissions on Legal Basis for the Accused's Presence at Trial via Video-Link, 22 March 2013, paras. 8, 18; Also *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11- 657-Anx, Common Legal Representative for Victims' Response on the Joint Defence Submissions on Legal Basis for the Accused's Presence at Trial via video-link, 19 March 2013, para. 12; *Prosecutor v. Muthaura and Kenyatta*, ICC-01/09-02/11-686, Victims' Response to the 'Defence Request for Mr Kenyatta to be Present During trial via Video Link', 8 March 2013, para. 19; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 703, Prosecution's Response to the Defence Request for Mr Kenyatta to be Present During Trial via Video-Link', 22 March 2013, paras. 8, 17.

⁹⁴ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11- 657-Anx, Common Legal Representative for Victims' Response on the Joint Defence Submissions on Legal Basis for the Accused's Presence at Trial via video-link, 19 March 2013, para. 6; *Prosecutor v. Muthaura and Kenyatta*, ICC-01/09-02/11-686, Victims' Response to the 'Defence Request for Mr Kenyatta to be Present During trial via Video Link', 8 March 2013, para. 10.

⁹⁵ Also *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11- 657-Anx, Common Legal Representative for Victims' Response on the Joint Defence Submissions on Legal Basis for the Accused's Presence at Trial via video-link, 19 March 2013, paras. 14, 19.

⁹⁶ *Prosecutor v. Muthaura and Kenyatta*, ICC-01/09-02/11-686, Victims' Response to the 'Defence Request for Mr Kenyatta to be Present During trial via Video Link', 8 March 2013, paras.10–11, 46–55.

⁹⁷ Also *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11- 657-Anx, Common Legal Representative for Victims' Response on the Joint Defence Submissions on Legal Basis for the Accused's Presence at Trial via video-link, 19 March 2013, paras. 15–18; *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-660, Prosecution's Observations on Joint Defence Submissions on Legal Basis for the Accused's Presence at Trial via Video-Link, 22 March 2013, paras. 18–20.

⁹⁸ Resolution ICC-ASP/12/Res.7.

⁹⁹ Sir Mark Lyall Grant, 'UK abstains on UN Security Council resolution on ICC', Speech, 15 November 2013 available at <https://www.gov.uk/government/speeches/uk-abstains-on-un-security-council-resolution-on-icc>, accessed 10 December 2014.

trial. It is clear that a decision of the Court to allow presence by video link would be consistent with both the interests of justice and the right of the accused to an expeditious trial.

The requirement that trial by video-link is only limited to part or parts of the trial appears to preclude an entire trial being conducted through video technology. At the same time, the Court enjoys discretion in determining how narrowly or widely it interprets this requirement.

Moreover, the rule accords the Trial Chamber significant discretion in deciding whether or not to grant the request. The provision states that the court ‘shall rule’ on the request, not that it ‘shall grant’ the request. It does not specifically compel the Court to limit the application of the provision to exceptional circumstances or oblige the Court to consider whether alternative measures are more appropriate. It simply states that the Trial Chamber is to decide on a case-by-case basis, having due regard to the subject matter of the specific hearings.

In deciding what subject matter would require the attendance of the accused, the Court is likely to make an assessment based upon the values that the judges attribute to the presence of the accused at trial. These range from the legitimacy of the trial to the reliability of the evidence and the rights and interests of the parties and participants.

Rule 134bis was first invoked by Mr Kenyatta in September in 2014 in relation to his presence at a status conference. However, Trial Chamber V(b) did not enter into the merits of the provision since the trial had not yet formally commenced. Therefore, the rule was held to be inapplicable. It is, nevertheless, noteworthy that the Trial Chamber required the presence of the accused in person, under the terms of the summons to appear, because the status conference came at a ‘critical juncture in the proceedings’ and could impact the interests of the accused, the victims and the witnesses¹⁰⁰. It can be inferred that a similar assessment might equally apply to a determination regarding whether the subject matter of a hearing requires the presence of the accused under Rule 134bis. Judge Ozaki disagreed with the decision, arguing that although rule 134bis was not applicable, it was, nevertheless indicative of the standard to be applied in the Court’s assessment. Moreover, since the particular status conference concerned matters of procedure, rather than evidence, the presence of the accused could have adequately been satisfied by video-link¹⁰¹. This divergence in opinion is likely to foretell the future variances in the interpretation about whether a particular subject matter requires the presence of the accused at trial.

In terms of the modalities of the video-link, the requirements laid down by the ICTY for video conferencing in *Stanišić and Simatović* could assist the Court in addressing some of the concerns regarding this mode of participation. In particular, Trial Chamber I had required that: the video-link be reciprocal, allowing the accused, the parties and participants and the witnesses to see each other at all times; the accused be able to communicate with counsel by telephone link; the accused have access to eCourt systems; a member of the Defence team be able to be present with the accused on location¹⁰².

3. Applicability

The right and obligation to be present begins with the outset of the trial, and does not apply to pre-trial proceedings. Indeed, for some pre-trial proceedings it is either implicit or explicit that the accused will not be present. This is the case, for example, in the hearing before the Pre-Trial Chamber on a decision by the prosecutor not to proceed¹⁰³, the taking of

¹⁰⁰ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-960, Decision Defence request for excusal from attendance at, or for adjournment of, the status conference scheduled for 8 October 2014, Trial Chamber V(B), 30 September 2014, paras. 18–20.

¹⁰¹ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-960-Anx, Partially Dissenting Opinion of Judge Kuniko Ozaki, Trial Chamber V(B), 30 September 2014.

¹⁰² *Prosecutor v. Stanišić and Simatović*, IT-03-69-T, Annex B, Trial Chamber I ICTY, Corrigendum to Second Decision Amending Modalities for Trial, Trial Chamber, 7 September 2009, para 5.

¹⁰³ Article 53 para. 3.

evidence in the case of a ‘unique investigative opportunity’¹⁰⁴, and the issuance of an arrest warrant or summons¹⁰⁵. A right to be present is specifically provided for in some pre-trial proceedings, such as the confirmation hearing¹⁰⁶. It would seem implicit in some other cases, such as an application for interim release pursuant to article 60.

- 35 The Rules of Procedure and Evidence specify that ‘[d]ecisions of the Trial Chamber concerning admissibility of a case, the jurisdiction of the Court, criminal responsibility of the accused, sentence and reparations shall be pronounced in public and, wherever possible, in the presence of the accused’¹⁰⁷.

4. Fitness to stand trial

- 36 Presence at trial should imply more than mere physical presence. According to a Trial Chamber of the International Criminal Tribunal for the former Yugoslavia, the prohibition of trials *in absentia* ‘would appear to be devoid of any substance if it related to the mere physical presence of the accused in court’¹⁰⁸. The accused should be in a position to understand the proceedings, and this may require interpretation in cases where the two official languages of the Court are not available to the accused¹⁰⁹. The Statute is silent with respect to cases of an accused unfit to stand trial because of mental disorder. A mechanism to address this issue is provided by the Rules of Procedure and Evidence¹¹⁰. In addition, according to the Code of Professional Conduct for Counsel, defence lawyers are under a duty to inform the Registrar and the relevant Chamber ‘where a client’s ability to make decisions concerning representation is impaired because of mental disability or for any other reason [...] Counsel shall also take the steps necessary to ensure proper legal representation of the client according to the Statute and the Rules of Procedure and Evidence’.

The problem of fitness to stand trial should not be confused with the defence of insanity, allowed by article 31 para. 1 (a) of the Statute, and which concerns the accused’s mental condition at the time of the crime. An accused who is unfit to stand trial is not ‘present’ within the meaning of article 63 and therefore the hearing cannot proceed. In most national justice systems, an accused may be held in detention pending a change in his or her condition permitting the court to determine fitness. It often involves an interplay between criminal justice legislation and mechanisms and civil measures relating to internment of the mentally ill. But the Statute lacks the sophistication of national legal systems in this area. The suggestion in the ILC Draft that the Court be permitted to continue proceedings in the case of ‘ill health’ of an accused, a provision that might possibly have allowed the Court to address such situations, was rejected by the Diplomatic Conference. Faced with the problem of an accused who is not ‘present’ in a psychological sense, article 67 prohibits the Court from proceeding. At the same time, nothing in the Statute would appear to allow the Court to remand the accused for examination or to hold the accused, indefinitely, pending a change in circumstances. Certainly any measures that infringe upon the rights of the accused must be necessary and proportionate¹¹¹.

- 37 The situation of an accused who is unfit to stand trial is far from an idle hypothesis. In the *Erdemović* case, the ICTY remanded the accused for psychiatric examination so as to determine whether the plea of guilty had been made by a man who was ‘present’ in all senses of the word. A panel of experts concluded that he was suffering from post-traumatic

¹⁰⁴ Article 56. Note, particularly, article 56 para. 2 (d), by which the Court may authorize legal representation of the accused at such hearings.

¹⁰⁵ Article 58.

¹⁰⁶ *Prosecutor v. Strugar*, IT-01-42-T, Decision re the Defence Motion to Terminate Proceedings, 26 May 2004, para. 32.

¹⁰⁷ Rules of Procedure and Evidence, Document ICC-ASP/1/3, pp. 10–107, rule 144(1), here Annex I.

¹⁰⁸ *Ibid.*, para. 32.

¹⁰⁹ See also article 67 para. 1(f).

¹¹⁰ Rules of Procedure and Evidence, rule 135.

¹¹¹ Freckelton and Karagiannakis (2014) *JICJ* 12(4) 705, 722–723.

stress disorder and that his mental condition at the time did not permit his trial before the Trial Chamber¹¹². The Trial Chamber postponed the pre-sentencing hearing and ordered a second evaluation of the Appellant to be submitted in three months' time¹¹³. A subsequent report concluded that Erdemović's condition had improved such that he was 'sufficiently able to stand trial'¹¹⁴. In the Nuremberg trial, issues were also raised as to the fitness of defendants Rudolf Hess and Julius Streicher to stand trial, but the International Military Tribunal determined that they were¹¹⁵.

'Fitness also arose in the prosecution of Vladimir Kovačević, who was indicted together with 38 Pavle Strugar and Admiral Miodrag Jokić for the December 1991 attack on Dubrovnik. Kovačević was arrested in Belgrade in 2003, but when brought to The Hague he proved to be in a state of mental disorder that prevented him from entering a plea. A medical examination by two experts determined that he was unable to fully understand the charges raised against him, but that he might recover if adequately treated at a mental health institution in a Bosnian/Croatian/Serbian-speaking environment. Upon application from defence counsel, Kovačević was granted provisional release and was returned to Serbia for psychiatric treatment in a mental health institution for an initial period of six months, and subsequently extended, to ascertain whether, after being treated adequately, he could be fit to stand trial. The release was conditional upon the requirement that the accused not leave the mental health facility except as part of treatment and only with the Court's consent¹¹⁶. In 2006, the Court determined that the accused was not fit to stand trial, subject to any future change to his conditions¹¹⁷. At some point following the transfer of the case to Serbia pursuant to rule 11*bis* of the ICTY Rules of Procedure and Evidence, Mr Kovačević appears to have been discharged from the medical facility. It has been noted that this highlights the difficulties that international courts face in monitoring accused persons who are being detained in national institutions¹¹⁸.

At the ICC the fitness to stand trial was first considered, by Pre-Trial Chamber I, in relation 39 to the proceedings against Laurent Gbagbo. In determining whether Mr Gbagbo was fit to stand trial, the Chamber applied the meaningful participation test that had been established in *Strugar*¹¹⁹, confirmed on Appeal¹²⁰, and adopted by the ICTR¹²¹ and the ECCC¹²². By relying upon article 67(1), the Court held that fitness encompassed 'the broader notion of fair trial' and that an accused would be considered to be unfit 'whenever the accused is, for reasons of ill health, unable to meaningfully exercise his or her procedural rights'¹²³.

Drawing upon the position of the European Court of Human Rights¹²⁴, Pre-Trial Chamber I determined that the right of effective participation does not only include the right to be present at trial but also the capacity to 'hear and follow the proceedings'¹²⁵. The Chamber

¹¹² *Prosecutor v. Erdemović*, IT-96-22-T, Judgment, Trial Chamber, 29 Nov. 1996, para. 5.

¹¹³ *Prosecutor v. Erdemović*, IT-96-22-T, Appeal Judgment, Trial Chamber, 7 Oct. 1997, para. 5.

¹¹⁴ *Prosecutor v. Erdemović*, IT-96-22-T, Judgment, Trial Chamber, 29 Nov. 1996, para. 8.

¹¹⁵ *France et al. v. Goering et al.*, 23 *Trial of the major war criminals before the international military Tribunal*, 13 ILR 203, 41 AJIL 172 (1946).

¹¹⁶ *Prosecutor v. Kovačević*, IT-01-42/2-I, Decision on Provisional Release, Trial Chamber I, 2 June 2004.

¹¹⁷ *Prosecutor v. Kovačević*, IT-01-42/2-I, Public Version of the Decision on Accused's Fitness to Enter a Plea to Stand Trial, Trial Chamber I, 12 April 2006.

¹¹⁸ Freckleton and Karagiannakis (2014) *JICJ* 12(4) 705, 715–716.

¹¹⁹ *Prosecutor v. Strugar*, IT-01-42-T, Decision re the Defence Motion to Terminate Proceedings, 26 May 2004, para. 32.

¹²⁰ *Prosecutor v. Strugar*, IT-01-42-A, Judgement, 17 July 2008, para. 55.

¹²¹ *Prosecutor v. Karemera et al.*, ICTR-98-44-T, Decision on Remand Regarding Continuation of Trial, Trial Chamber III, 10 September 2009, para. 18.

¹²² *Prosecutor v. Ieng Thirith*, 002/19-09-2007/ECCC/TC Decision on Ieng Thirith's Fitness to Stand Trial, Trial Chamber, 17 November 2011, paras. 27, 59.

¹²³ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-286-Red, Decision on the fitness of Laurent Gbagbo to take part in the proceedings before this Court, Pre-Trial Chamber I, 2 November 2012, para. 43.

¹²⁴ *SC v. The United Kingdom*, Appl. no. 60958/00, Judgment, ECtHR, 15 June 2004.

¹²⁵ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-286-Red, Decision on the fitness of Laurent Gbagbo to take part in the proceedings before this Court, Pre-Trial Chamber I, 2 November 2012, para. 46.

held that the rights contained in article 67(1) imply that the accused has the faculty '(i) to understand in detail the nature, cause and content of the charges; (ii) to understand the conduct of the proceedings; (iii) to instruct counsel; (iv) to understand the consequences of the proceedings; [and] (v) to make a statement'¹²⁶. Therefore, fitness to stand trial was defined as the 'absence of such medical conditions which would prevent the accused from being able to meaningfully exercise his or her fair trial rights'¹²⁷. The Court held that where the accused was not fit to stand trial, the proceedings would have to be adjourned until 'the obstacle ceases to exist'¹²⁸.

Under the terms of rule 135, the obligation falls upon the Court to ensure that proceedings are not held against a person who is not fit to stand trial, therefore, the role of the parties is to assist the Court in making its determination¹²⁹.

II. Exceptions: Paragraph 2 and Rules 134*ter* and *quater*

1. Disruption of trial

- 40 The trial may proceed in the absence of the accused where he or she disrupts the proceedings. Article 63(2) effectively constitutes an exception to the right of the accused to be present at trial, rather than an exception to the requirement of the presence of the accused at trial. Indeed, the Appeals Chamber has held that 'the continuously disruptive behaviour of the accused may be construed as an implicit waiver of his or her right to be present'¹³⁰.

This exception, set out in article 63(2) clearly requires that the trial shall have already begun. The Statute indicates that the accused must 'continue' to disrupt the trial, indicating that the trouble must be repetitive and persistent. It is, of course, difficult to codify in any detail how judges are to administer such a power. The problem is a familiar one in domestic justice systems, and the Court will rely on national practices in developing its own jurisprudence on this point. It must bear in mind, however, that its case load will be, by its very nature, quite politicized, and that this will increase the likelihood that defendants mount vigorous, energetic and original challenges to the charges. The Court's definition of 'disruption' should not become a tool to muzzle defendants in such circumstances. This is why the Statute also specifies that such measures shall be taken only in exceptional circumstances, after other reasonable alternatives have proved inadequate. Also, exclusion from the hearing is only allowed for such duration as is strictly necessary, requiring the Court to review periodically whether the accused may be permitted to return to the hearing. Where the accused has been excluded from the hearing, the *Statute* requires the Trial Chamber to make provision for the accused to observe the trial and instruct counsel from outside the courtroom, through the use of communications technology, if required.

In the *Milošević* trial, the Appeals Chamber of the International Criminal Tribunal for the former Yugoslavia considered that disruption of proceedings did not always involve intentional conduct, and might result from the poor health of an accused. The context was a debate about the right of the accused to defend himself, and not about presence at trial, but the Appeals Chamber treated the problem as being similar in nature. It appeared to leave open the question as to whether a trial might proceed in the absence of the accused on the basis of his or her ill health¹³¹.

¹²⁶ *Ibid.*, para. 50.

¹²⁷ *Ibid.*, para. 43.

¹²⁸ *Ibid.*, para. 43.

¹²⁹ *Ibid.*, para. 56.

¹³⁰ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled 'Decision on Mr Ruto's Request for Excusal from Continuous Presence at Trial', OA5, 25 October 2013, para. 51 and fn. 97.

¹³¹ *Prosecutor v. Milošević*, IT-02-54-AR73.7, Decision on Interlocutory Appeal of the Trial Chamber's Decision on the Assignment of Defence Counsel, 1 Nov. 2004, para. 14. Also: *Prosecutor v. Šešelj*, IT-03-67-AR73.3, Decision on Appeal Against the Trial Chamber's Decision on Assignment of Counsel, 20 Oct. 2006, para. 20.

In *Stanišić and Simatović*, the ICTY Appeals Chamber similarly held that ‘substantial trial disruptions that are unintentional in nature’ could qualify as disruptions to trial¹³². However, since this restricts the accused’s right to be present at trial, the measure should be the ‘least intrusive’ solution to the disruption. Therefore, it is necessary to consider reasonable alternatives, including a temporary stay of proceedings. Moreover, the measure needs to be exercised proportionately to the right of the accused and any co-accused to an expeditious trial¹³³. The ICTY Appeals Chamber held that a three day delay due to the illness of one co-accused ‘was [not] sufficient to outweigh the statutory right [...] to be present at his own trial when the absence was due to no fault of his own’¹³⁴.

2. Excusal from presence at trial

Since article 63(1) has been interpreted as requiring the presence of the accused at trial, a question has arisen regarding the extent of the Court’s discretion to excuse an accused who voluntarily requests to be absent from trial. The matter has been settled, at least in part, with the adoption of Rules 134*ter* and *quater* at the Twelfth ASP in 2013, following developments in the *Ruto and Sang* and *Kenyatta* cases. Neither the decisions¹³⁵ nor the judgment¹³⁶ in these cases were unanimous, and the opinions of the judges were so diverse that they have been described as a ‘juristic cacophony about the meaning of the provision’¹³⁷. Both the Trial Chambers and the Appeals Chamber decided that an overly restrictive approach to article 63(1) would hamper the interests of justice and, possibly, the well-being of victims and witnesses¹³⁸. However, the Chambers derived their power to excuse the accused from different provisions in the Statute and, in practical terms, the Appeals Chamber construed the Court’s discretion more narrowly.

The Trial Chamber held that the obligation under article 63(1) is incumbent upon the accused, not the Court, and that the Trial Chamber, therefore, enjoys the discretion to excuse the accused from trial ‘in a reasonable way’¹³⁹. The Trial Chamber warned against a reliance on the *travaux préparatoires* to preclude the discretion of the Chamber¹⁴⁰, and rejected the argument that the exemptions to the accused’s presence contemplated in article 63(2)¹⁴¹ and article 61(2)¹⁴² of the Statute imply that any other grounds for an excusal are

¹³² *Prosecutor v. Stanišić and Simatović*, IT-03-69-AR73.2, Appeals Chamber, Decision on Defence Appeal of the Decision on Future Course of Proceedings, 16 May 2008, para. 15.

¹³³ *Ibid.*, paras. 18–19.

¹³⁴ *Prosecutor v. Edouard Karemera*, ICTR-98-44-AR73/10, Decision on Nzirorera’s Interlocutory Appeal concerning his Right to be Present at Trial, 5 October 2007, para. 15.

¹³⁵ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 830, Decision on Defence Request for Conditional Excusal from Continuous Presence at Trial, Trial Chamber V(b), 18 October 2013.

¹³⁶ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, OA5, 25 October 2013.

¹³⁷ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-863-Anx-Corr, Dissenting Opinion of Judge Ebboe-Osuji, Trial Chamber V(b), 27 November 2013 para. 32.

¹³⁸ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, para. 44; *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, OA5, 25 October 2013, para 50; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 830, Decision on Defence Request for Conditional Excusal from Continuous Presence at Trial, Trial Chamber V(b), 18 October 2013, para. 90.

¹³⁹ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, para. 43; *contra Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066-Anx, Joint Separate Opinion of Judge Erkki Kourula and Judge Anita Ušacka, OA5, 25 October 2013, para. 5.; see also Knottnerus (2014) 13(3) *LAPE* 261, 267–268.

¹⁴⁰ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 830, Decision on Defence Request for Conditional Excusal from Continuous Presence at Trial, Trial Chamber V(b), 18 October 2013, paras. 76–87.

¹⁴¹ See Section B.II.1.

¹⁴² Providing the possibility for the confirmation hearing to be held in the absence of the person charged where they have, either waived their right to be present or fled.

precluded¹⁴³. Trial Chamber V(b) also made reference to various general principles of international law¹⁴⁴.

- 43 The Trial Chamber, relied upon the residual powers under article 64(6)(f) of the Statute to exceptionally excuse the accused from continuous presence at trial. Assessments should be on a case-by-case basis, guided by the principles of fairness and expeditiousness, the rights of the accused, and the protection of the victims and witnesses under article 64(2)¹⁴⁵. The Trial Chamber required the presence of the accused at a pre-determined set of hearings, as well as other attendance directed by the Chamber¹⁴⁶. In their dissenting opinions, Judge Herrera Carbuccion and Judge Ozaki argued for a more restrictive exercise of the Court's discretion¹⁴⁷.
- 44 The Appeals Chamber rejected the Trial Chamber's finding that the Court's discretion was derived from article 64(6)(f) and decided that the Court enjoyed a 'measure' of discretion under article 63(1) itself. This was limited to the power to excuse an accused from continuous presence at trial on a case-by-case basis, subject to specific, exceptional circumstances¹⁴⁸ and for a limited duration¹⁴⁹. In the light of the general principle of presence at trial and drawing upon the requirements of article 63(2), the Appeals Chamber laid out six requirements to regulate the Court's discretion which later became the basis for rule 134^{ter} of the RPE¹⁵⁰:
- (i) the absence of the accused can only take place in exceptional circumstances and must not become the rule;
 - (ii) the possibility of alternative measures must have been considered, including, but not limited to, changes to the trial schedule or a short adjournment of the trial;
 - (iii) any absence must be limited to that which is strictly necessary;
 - (iv) the accused must have explicitly waived his or her right to be present at trial;
 - (v) the rights of the accused must be fully ensured in his or her absence, in particular through representation by counsel; and
 - (vi) the decision as to whether the accused may be excused from attending part of his or her trial must be taken on a case-by-case basis, with due regard to the subject matter of the specific hearings that the accused would not attend during the period for which excusal has been requested.
- 45 The Appeals Chamber found that the Trial Chamber had applied its discretion too broadly as it had failed to investigate any alternatives and had effectively provided a blanket excusal

¹⁴³ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto's Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, paras. 54–63; See also *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 830, Decision on Defence Request for Conditional Excusal from Continuous Presence at Trial, Trial Chamber V(b), 18 October 2013, para. 83 and *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-863-Anx-Corr, Dissenting Opinion of Judge Eboe-Osuji, Trial Chamber V(b), 27 November 2013, paras. 81–92; *contra* See also *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777-Anx2, Dissenting Opinion of Judge Herrera Carbuccion, Trial Chamber V(a), 18 June 2013, paras. 4–5; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-830- Anx2, Partially Dissenting Opinion of Judge Ozaki, Trial Chamber V(b), 23 October 2013, para. 10; *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066-Anx, Joint Separate Opinion of Judge Erkki Kourula and Judge Anita Ušacka, OA5, 25 October 2013, para. 7.

¹⁴⁴ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 830, Decision on Defence Request for Conditional Excusal from Continuous Presence at Trial, Trial Chamber V(b), 18 October 2013, paras. 90–111.

¹⁴⁵ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto's Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, paras. 49, 104.

¹⁴⁶ *Ibid.* para. 104; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 830, Decision on Defence Request for Conditional Excusal from Continuous Presence at Trial, Trial Chamber V(b), 18 October 2013, para. 124.

¹⁴⁷ See also *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777-Anx2, Dissenting Opinion of Judge Herrera Carbuccion, Trial Chamber V(a), 18 June 2013, paras. 9–10; *Kenyatta Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-830- Anx2, Partially Dissenting Opinion of Judge Ozaki, Trial Chamber V(b), paras. 16–18.

¹⁴⁸ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled 'Decision on Mr Ruto's Request for Excusal from Continuous Presence at Trial', OA5, 25 October 2013, para. 56.

¹⁴⁹ *Ibid.*, para. 50–62.

¹⁵⁰ *Ibid.*, para 62.

without properly exercising a case-by-case examination and by not limiting the duration of the exemption¹⁵¹.

Judges Kourula and Ušacka dissented to the Appeals Chamber Judgment, noting that a more restrictive approach was required by the ‘clear and unambiguous’ terms of article 63(1)¹⁵² and a contextual reading in the light of the other provisions in the Statute¹⁵³, its object and purpose¹⁵⁴ and the *travaux préparatoires*¹⁵⁵. They held that the accused could only be excused, in accordance with the *de minimis* principle, where absence is so insignificant that it does not violate the fundamental principle of presence¹⁵⁶.

a) Rule 134ter: Excusal from presence at trial. Rule 134ter of the Rules of Procedure and Evidence provides that:

1. An accused subject to a summons to appear may submit a written request to the Trial Chamber to be excused and to be represented by counsel only during part or parts of his or her trial.
2. The Trial Chamber shall only grant the request if it is satisfied that:
 - (a) exceptional circumstances exist to justify such an absence;
 - (b) alternative measures, including changes to the trial schedule or a short adjournment of the trial, would be inadequate;
 - (c) the accused has explicitly waived his or her right to be present at the trial; and
 - (d) the rights of the accused will be fully ensured in his or her absence.
3. The Trial Chamber shall rule on the request on a case-by-case basis, with due regard to the subject matter of the specific hearings in question. Any absence must be limited to what is strictly necessary and must not become the rule.

Rule 134ter reiterates the importance attached to the presence of the accused in proceedings before the ICC. Indeed, a request can only be submitted by an accused subject to a summons to appear. Moreover, the provision proscribes even temporary absence unless it is absolutely necessary and is exercised under strict conditions. At the same time, the Court enjoys significant discretion in determining whether the conditions themselves have been fulfilled.

Paragraph 2 of rule 134ter states that the Chamber ‘shall only grant the request if it is satisfied that’ the conditions therein are fulfilled. This does not appear to imply an absolute obligation upon the Chamber to grant an exemption if the conditions are satisfied but prevents the Chamber from acceding to a request unless the conditions are fulfilled.

The *a priori* identification of what might constitute ‘exceptional circumstances’ under paragraph 2(a) is difficult and the Court will necessarily be guided by the context. Although the standard applied by the Appeals Chamber in *Ruto and Sang*¹⁵⁷ is informative, the particular circumstances will differ since exemptions on the basis of official position are now specifically catered for in rule 134quater.

In considering what ‘alternative measures’ might be adequate, paragraph 2(b) is not exhaustive. The Court will need to balance competing interests, ensuring the safeguard of

¹⁵¹ *Ibid.*, paras. 61–63.

¹⁵² *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066-Anx, Joint Separate Opinion of Judge Erkki Kourula and Judge Anita Ušacka, OA5, 25 October 2013, para. 6; *contra* see *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 830, Decision on Defence Request for Conditional Excusal from Continuous Presence at Trial, Trial Chamber V(b), 18 October 2013; *contra* *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-863-Anx-Corr, Dissenting Opinion of Judge Eboe-Osuji, Trial Chamber V(b), 27 November 2013, para. 16–27.

¹⁵³ *Ruto Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066-Anx, Joint Separate Opinion of Judge Erkki Kourula and Judge Anita Ušacka, OA5, 25 October 2013, para. 8.

¹⁵⁴ *Ibid.* paras. 9–10.

¹⁵⁵ *Ibid.* paras. 12–15 and fn. 16.

¹⁵⁶ *Ibid.* para. 3; see also Knottnerus (2014) 13(3) *LAPE* 261, 268–270.

¹⁵⁷ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, OA5, 25 October 2013, paras. 61–63.

the accused's rights, the interests and well-being of the victims and witnesses, the quality of the evidence and the efficiency and expeditiousness of the proceedings¹⁵⁸.

- 50 The requirement under paragraph 2(c) that accused has expressly waived the right to be present at trial safeguards the rights of the accused and the integrity of the trial. It also precludes a later appeal or request for *de novo* consideration on the basis that the accused was denied this right. Indeed, the standard format of the waiver adopted by the Trial Chamber specifically stipulates that the accused 'forego[s] every complaint and every appeal against any natural consequence of [...] voluntary absence from the courtroom'¹⁵⁹.
- 51 By requiring a case-by-case assessment of the subject matter and emphasising the exceptional nature of the excusal, paragraph 3 of the rule reinforces the view that the presence of the accused at trial is not merely symbolic. It also precludes blanket exemptions. An analysis on the subject matter is likely to consider the importance of the particular hearing to the accused, the victims and witnesses¹⁶⁰, as well as the evidentiary value of the accused at particular hearings¹⁶¹.
- 52 **b) Rule 134quater: Excusal from continuous presence at trial due to Public Office.** The inclusion of rule 134quater is the direct result of the *Ruto and Sang* and *Kenyatta* cases. It was adopted during a period of immense tension between African Union States and the ICC¹⁶² and just a month after the Appeals Chamber reversed the Trial Chamber's decision to conditionally excuse Mr Ruto from presence at significant portions of trial¹⁶³. The provision exceeds the terms of the Trial Chamber's original determination that official position does not automatically trigger an exemption, but that it would depend upon the particular functions of the accused¹⁶⁴.
- 53 Rule 134quater¹⁶⁵ provides that:
1. An accused subject to a summons to appear who is mandated to fulfil extraordinary public duties at the highest national level may submit a written request to the Trial Chamber to be excused and to be represented by counsel only; the request must specify that the accused explicitly waives the right to be present at the trial.
 2. The Trial Chamber shall consider the request expeditiously and, if alternative measures are inadequate, shall grant the request where it determines that it is in the interests of justice and provided that the rights of the accused are fully ensured. The decision shall be taken with due regard to the subject matter of the specific hearings in question and is subject to review at any time.
- 54 Unlike rule 134ter, rule 134quater requires that Trial Chamber grant the request for excusal where the stipulated conditions are fulfilled. Nevertheless, the Chamber still enjoys considerable discretion in deciding whether the requirements of the provision have been satisfied or not.

¹⁵⁸ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1186, Reasons for the Decision on Excusal from Presence at Trial under Rule 134quater, Trial Chamber V(a), 18 February 2014, para. 68.

¹⁵⁹ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777-Anx1, Waiver, Trial Chamber V(a), 18 June 2013; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-830-Anx1, Waiver, Trial Chamber V(b), 18 October 2013; *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1151-Anx, Waiver, Trial Chamber V(b), 20 January 2013.

¹⁶⁰ See also *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777-Anx2, Dissenting Opinion of Judge Herrera Carbuca, Trial Chamber V(a), 18 June 2013, para. 11.

¹⁶¹ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled 'Decision on Mr Ruto's Request for Excusal from Continuous Presence at Trial', OA5, 25 October 2013, para 49; *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777-Anx2, Dissenting Opinion of Judge Herrera Carbuca, Trial Chamber V(a), 18 June 2013, paras. 8, 11.

¹⁶² See mn 15–16.

¹⁶³ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled 'Decision on Mr Ruto's Request for Excusal from Continuous Presence at Trial', OA5, 25 October 2013, para. 63.

¹⁶⁴ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto's Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, para. 50.

¹⁶⁵ Adopted at the 12th plenary meeting, on 27 November 2013, by consensus ICC-ASP/12/Res.7.

The requirements that the excused must perform ‘extraordinary duties at the highest level’ are cumulative; the duties must be both ‘extraordinary’ and ‘at the highest level’¹⁶⁶. It is unclear whether ‘extraordinary’ functions comprise those duties within the regular portfolio of an official that are particularly important, or whether it is simply exceptional duties that will meet the threshold. Trial Chamber V(a) seems to have opted for the first, broader interpretation, relying upon the importance of the role of Deputy President and observing that, while not every duty at the highest level is extraordinary, the particular functions of the accused fulfilled this criterion¹⁶⁷.

The assessment is rendered difficult by the diversity of systems of government. Moreover, while the original excusal decisions in *Ruto and Sang* and *Kenyatta* had emphasised the importance of respecting the democratic will of the people as one of the motivations for excusing the accused from presence at trial¹⁶⁸, rule 134*quater* makes no distinction between officials who have been elected directly and those who have not. It is unclear how the Court will react to the official appointment of an accused who has not been democratically elected in a deliberate attempt to bypass the requirement of presence.

Although the Court can only accede to a request where other measures are inadequate, the Court enjoys a modicum of discretion in its determination of adequacy. Paragraph 2(b) of Rule 134*ter* provides some guidance in this respect, but other measures can also be considered depending, *inter alia*, upon the circumstances of the case, the length of time that the accused needs to be absent from trial and the extent to which the alternative measures adequately conform with the interests of the Court, the parties and the participants. For instance, Trial Chamber V(a) held that regular adjournments due to the frequency of the accused’s engagements would be detrimental to the interests of the victims, witnesses, and co-accused, the quality of the evidence, and the efficiency and expeditiousness of the proceedings¹⁶⁹. The Court is under an obligation to examine the adequacy of other reasonable measures, whether or not they are proposed or properly substantiated by the parties and participants.

Whether an excusal is in the interests of justice will depend upon its effects on: the efficiency, fairness and expeditiousness of the proceedings; the interests and participation of the victims and witnesses; the interests of the State of which the accused is an official; the evidentiary value of the accused’s presence at trial; the rights of the accused, including the ability to react to testimony; and the interests of the prosecution¹⁷⁰. Such balance is achieved when ‘the adverse effects on the interests of justice are not excessive; certainly not such as to negate those interests altogether or unduly compromise the integrity of the proceedings’¹⁷¹.

Although the Court is not explicitly required to consider requests on a case-by-case basis, it is obliged to assess them in light of the subject matter of the specific hearings. The inconsistency in this provision has been glossed over by Trial Chamber V(a), holding that ‘the express omission [...] of the requirement of ruling on a case-by-case basis [...] must allow for the possibility of the decision being taken without the Chamber’s specific knowledge of the subject matter of each hearing from which the accused seeks to be absent’¹⁷². The Chamber identified categories of hearings at which the accused’s presence was necessary and

¹⁶⁶ See *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1186, Reasons for the Decision on Excusal from Presence at Trial under Rule 134*quater*, Trial Chamber V(a), 18 February 2014, para. 64.

¹⁶⁷ *Ibid.*, para. 63.; See also Knottnerus (2014) 13(3) *LAPE* 261, 282.

¹⁶⁸ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, para. 81–95; see also *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-948, Joint Amicus Curiae Observations of the United Republic of Tanzania, Republic of Rwanda, Republic of Burundi, State of Eritrea and Republic of Uganda on the Prosecution’s appeal against the ‘Decision on Mr. Ruto’s Request for excusal from Continuous Presence at Trial’, OA5, 17 September 2013, para 8.

¹⁶⁹ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1186, Reasons for the Decision on Excusal from Presence at Trial under Rule 134*quater*, Trial Chamber V(a), 18 February 2014, para. 68.

¹⁷⁰ *Ibid.*, paras. 72–74.

¹⁷¹ *Ibid.* para. 73.

¹⁷² *Ibid.*, para 76.

also required the presence of the accused at future hearings where the Court decided, either at the request of another party or participant, or *proprio motu*, that this was necessary¹⁷³. At the same time, ‘unconditional excusal’ from trial was precluded¹⁷⁴.

- 58 Rule 134*quater* has also been criticised for its inconsistency with, *inter alia*, article 63 of the Statute, since it appears to exceed the limits imposed by the Statute¹⁷⁵, and that an interpretation of the rule as allowing a blanket excusal omits a number of requirements that were clearly stipulated by the Appeals Chamber in its interpretation of article 63(1)¹⁷⁶, namely the exceptional nature of the excusal, its limitation based on necessity and the requirement that exemptions must be assessed on a case-by-case basis¹⁷⁷.

However, Trial Chamber V(a) has held that States Parties have clearly chosen to omit some elements from rule 134*quater*, while including them in rule 134*ter*. In the view of the Trial Chamber, the intention of the States Parties was for the rule to be consistent with the Statute and that, through rule 134*quater*, the Assembly of State Parties had ‘clarified the position [...] in relation of the scope and application of article 63(1) of the Statute’¹⁷⁸ in a manner that constituted a ‘subsequent agreement’ providing clarity about the scope of the Statute under the terms of article 31(3)(a) of the Vienna Convention of the Law of Treaties¹⁷⁹.

- 59 The compatibility of the interpretation of rule 134*quater* as permitting the unconditional excusal of an accused from trial based solely on their official status, has also been questioned in relation to articles 21(3) and 27(1), although Trial Chamber V(a) has held that no inconsistency subsists¹⁸⁰. Leave to appeal the issue has not been allowed and the validity of the rules may arise again in future.

3. Refusal to attend

- 60 The recent decisions of the Trial Chamber and Appeals Chamber in *Ruto and Sang and Kenyatta*, as well as the adoption of rules 134*bis* to *quater* suggest that the requirement, under article 63(1) to be present at trial, can only be derogated from exceptionally. Therefore, an accused cannot simply refuse to attend trial without a valid reason. This reflects the importance that has been attributed to the presence of the accused at trial under the Rome Statute taking into consideration not only the accused’s rights, but also the various other interests which are at stake, including those of the victims.
- 61 The position is different at the *ad hoc* tribunals where it had been determined that the accused could waive the right to be present at trial. Some defendants refused to attend in court as a way of protesting rulings by the bench. For example, several accused at the Special Court for Sierra Leone have boycotted the proceedings.

¹⁷³ *Ibid.*, para. 57 and paras. 77–79.

¹⁷⁴ *Ibid.*, para. 57.

¹⁷⁵ Heller KJ, ‘Will the New RPE 134 Provisions Survive Judicial Review? (Probably Not.)’ (2013), *Opinio Juris*, <http://opiniojuris.org/2013/11/28/will-new-rpe-134-provisions-survive-judicial-review/>, accessed 10 December 2014.

¹⁷⁶ See mn 42.

¹⁷⁷ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1135, Prosecution response to Defence request pursuant to article 63(1) and rule 134*quater* for excusal from attendance at trial for William Samoei Ruto, 8 January 2014, paras. 13–19.

¹⁷⁸ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1186, Reasons for the Decision on Excusal from Presence at Trial under Rule 134*quater*, Trial Chamber V(a), 18 February 2014, para. 55; *contra* Knottnerus (2014) 13(3) LAPE 261,275–277.

¹⁷⁹ *Ibid.*, paras. 48–58; See also *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1186-Anx, Separate Further Opinion of Judge Eboe-Osuji to the ‘Reasons for the Decision on Excusal from Presence at Trial under rule 134*quater*’, Trial Chamber V(a), 19 February 2014.

¹⁸⁰ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1186, Reasons for the Decision on Excusal from Presence at Trial under rule 134*quater*, 18 February 2014, paras. 59–61; *contra* *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1135, Prosecution response to Defence request pursuant to article 63(1) and Rule 134*quater* for excusal from attendance at trial for William Samoei Ruto, 8 January 2014, paras. 3–5, 20–29; See also generally Knottnerus (2014) *International Crimes Database Brief* 5; Knottnerus (2014) 13(3) LAPE 261,277–282.

A Trial Chamber of the Court said that

‘... though in essence trial in the absence of an accused person is an extraordinary mode of trial, yet it is clearly permissible and lawful in very limited circumstances. The Chamber opines that it is a clear indication that it is not the policy of the criminal law to allow the absence of an accused person or his disruptive conduct to impede the administration of justice or frustrate the ends of justice. To allow such an eventuality to prevail is tantamount to judicial abdication of the principle of legality and a capitulation to a frustration of the ends of justice without justification’¹⁸¹.

At the ICTR, on the first day of trial of Jean-Bosco Barayagwiza, his counsel told the Trial Chamber that their client would not be attending the trial, and that he had instructed them not to represent him, all of this ‘based on his inability to have a fair trial due to the previous decisions of the Tribunal in relation to his release’. Barayagwiza personally issued a statement ‘refusing to associate himself with a show trial’ and insisting that ‘the ICTR was manipulated by the current Rwandan government and the judges and the prosecutors were the hostage[s] of Kigali’¹⁸². The Trial Chamber said that ‘Barayagwiza was entitled to be present during his trial and had chosen not to do so, and the trial would proceed nonetheless. The Chamber also stated that he would be free to attend whenever he changed his mind’. Counsel were ordered to continue representing Barayagwiza¹⁸³. They attended at court until February 2001, and then informed the Trial Chamber that their mandate had been terminated. A new counsel was soon appointed for Barayagwiza, who represented Barayagwiza for the duration of the trial, but the accused never attended personally¹⁸⁴.

4. Absconded accused

While the possibility of a trial *in absentia* of an accused who absconded was explicitly provided for in some of the drafts to the Rome Statute¹⁸⁵, disagreements on the principle resulted in the absence of provisions in the Statute allowing any type of trials *in absentia*.

In *Ruto and Sang* and *Kenyatta*, although the question did not arise directly, the Trial Chamber opined that the issue was not foreclosed in relation to an accused who had appeared before the Court, accepted its jurisdiction and subsequently absconded¹⁸⁶. This position was also strongly submitted by Judge Eboe-Osuji in his dissenting opinion to the *Kenyatta* reconsideration decision¹⁸⁷. There is a fear that if trials *in absentia* are not allowed in these situations, future cases might have to be aborted¹⁸⁸, rendering the Court a ‘hostage to impunity’¹⁸⁹, and running contrary to the object and purpose of the Rome Statute¹⁹⁰.

¹⁸¹ *Prosecutor v. Gbao*, SCSL-2004-15-T, Ruling on the Issue of the Refusal of the Third Accused, Augustine Gbao, to Attend Hearing of the Special Court for Sierra Leone on 7 July 2004 and Succeeding Days, 12 June 2004, para. 8. Also: *Prosecutor v. Norman et al.*, SCSL-04-14-PT, Ruling on the Issue of Non-Appearance of the First Accused Samuel Hinga Norman, the Second Accused Moinina Fofana, and the Third Accused, Allieu Kondewa at the Trial Proceedings, 1 Oct. 2004; *Prosecutor v. Sesay et al.*, SCSL-04-15-T, Ruling on the Issue of the Refusal of the Accused Sesay and Kallon to Appear for their Trial, 19 Jan. 2005.

¹⁸² Momeni (2001) 7 *Ilsal&Compl* 315.

¹⁸³ *Prosecutor v. Barayagwiza*, ICTR-97-15-T, Decision on Defence Counsel Motion to Withdraw, 2 Nov. 2000. Similarly, *Prosecutor v. Gbao*, SCSL-04-15-T, Gbao – Decision on Application to Withdraw Counsel, 6 July 2004.

¹⁸⁴ *Prosecutor v. Nahimana et al.*, ICTR-99-52-T, Judgment, 3 Dec. 2003, para. 83.

¹⁸⁵ See mn 3–9.

¹⁸⁶ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, paras. 44–46, 75; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 830, Decision on Defence Request for Conditional Excusal from Continuous Presence at Trial, Trial Chamber V(b), 18 October 2013, paras. 64, 83, 90, 108.

¹⁸⁷ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-863-Anx-Corr, Dissenting Opinion of Judge Eboe-Osuji, Trial Chamber V(b), 27 November 2013, paras. 37–189.

¹⁸⁸ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 830, Decision on Defence Request for Conditional Excusal from Continuous Presence at Trial, Trial Chamber V(b), 18 October 2013, para 64.

¹⁸⁹ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, para. 44.

¹⁹⁰ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11- 830, Decision on Defence Request for Conditional Excusal from Continuous Presence at Trial, Trial Chamber V(b), 18 October 2013, para. 90.

- 63 Moreover, it has been held that there is a strong precedent in both national and international law, including international criminal law, to try *in absentia* an accused who absconds after the commencement of trial¹⁹¹. It has been noted that this is consistent with human rights, as long as the rights of fair trial are guaranteed¹⁹² and it would not affect the integrity of the trial¹⁹³. Moreover Judge Eboe-Osui has opined that *in absentia* trial of an accused who absconds is not precluded by the plain terms of the Statute and is actually supported by the article 63(2) which prevents the deliberate frustration of the trial by the accused¹⁹⁴. Moreover, some of the more common justifications against trials *in absentia* have been challenged¹⁹⁵. Judge Eboe-Osui held that trial *in absentia* of an absconding accused is recognised under contemporary common law and civil law and is, therefore, applicable as source of law under the terms of article 38(1)(c) of the ICJ Statute and, consequently, under article 21(1)(c) of the Rome Statute¹⁹⁶. Moreover, it can also be justified, among other reasons, on the basis of the principles of justice, legitimacy and fairness, the preservation of evidence and the logistical value to the Court¹⁹⁷.
- 64 While the arguments are compelling, it is not clear that this is allowed under the terms of the ICC's legal framework with its great emphasis on the presence of the accused at trial. The determination, by the Court, largely endorsed by States Parties in the adoption of rule 134ter, is that absence is only permissible in exceptional circumstances, under very strict conditions. At the same time, it is difficult to see how the interests of justice and the integrity of the proceedings are best served by failing to continue proceedings against an accused who has absconded in mid-trial.

5. *Ex parte* proceedings

- 65 Although article 63 presents itself as an exhaustive provision on the subject of presence at trial, something which is confirmed by article 67 (1)(d), portions of the trial may take place in the absence of the accused. Article 72 (7) of the *Statute* allows for a hearing concerning the protection of national security information to take place *ex parte*, that is, in the absence of one or both of the parties¹⁹⁸.
- 66 *Ex parte* proceedings during the trial phase are also authorised under the Rules of Procedure and Evidence. Thus, the Trial Chamber may hear the Prosecutor *ex parte*, and therefore with the accused absent from the courtroom, in order to determine whether an assurance may be given to a witness who may make testify in such a way as to incriminate himself or herself¹⁹⁹. A Trial Chamber may also sit *ex parte* in order to consider whether or not to authorise special measures to facilitate testimony of a traumatized victim or witness, a child, an elderly person or a victim of sexual violence²⁰⁰.

¹⁹¹ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto's Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, para. 46; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-863-Anx-Corr, Dissenting Opinion of Judge Eboe-Osui, Trial Chamber V(b), 27 November 2013, paras. 107–119.

¹⁹² *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-863-Anx-Corr, Dissenting Opinion of Judge Eboe-Osui, Trial Chamber V(b), 27 November 2013, paras. 97–106. See also Schabas, in: Sluiter and Vasiliev (eds.), *International Criminal Procedure: towards a Coherent Body of the Law*, (2009), 335; Tochilovsky, *The Law and Jurisprudence of the International Criminal Tribunals and Courts: Procedure and Human Rights Aspects* (2014), 510–617.

¹⁹³ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-777, Decision on Mr Ruto's Request for Excusal from Continuous Presence at Trial, Trial Chamber V(a), 18 June 2013, paras. 74–78.

¹⁹⁴ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-863-Anx-Corr, Dissenting Opinion of Judge Eboe-Osui, Trial Chamber V(b), 27 November 2013, paras. 69–93.

¹⁹⁵ *Ibid.*, paras. 121–124.

¹⁹⁶ *Ibid.*, paras. 125–182.

¹⁹⁷ See *ibid.* paras. 48–68.

¹⁹⁸ Article 72 para. 7.

¹⁹⁹ Rule 74 para. 4.

²⁰⁰ Rule 88 para. 2.

The Trial Chamber at the ICC has determined that the requirements of *ex parte* 67 proceedings include that (i) the measures are exceptional and are only used when they are ‘truly necessary and when no other, lesser, procedures are available and [...] that their use is proportionate’ in the light of potential prejudice to the accused; (ii) unless it is inappropriate, the other party and, potentially the victim participants, are duly notified of the procedure (iii) they include a request to the Chamber ‘to make a decision on a relevant issue, rather than being used merely as a means of keeping the Bench informed’²⁰¹.

²⁰¹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1058, Decision on the procedures to be adopted for *ex parte* proceedings, Trial Chamber I, 6 December 2007, paras. 12–13.

Article 64

Functions and powers of the Trial Chamber*

1. The functions and powers of the Trial Chamber set out in this article shall be exercised in accordance with this Statute and the Rules of Procedure and Evidence.
2. The Trial Chamber shall ensure that a trial is fair and expeditious and is conducted with full respect for the rights of the accused and due regard for the protection of victims and witnesses.
3. Upon assignment of a case for trial in accordance with this Statute, the Trial Chamber assigned to deal with the case shall:
 - (a) Confer with the parties and adopt such procedures as are necessary to facilitate the fair and expeditious conduct of the proceedings;
 - (b) Determine the language or languages to be used at trial; and
 - (c) Subject to any other relevant provisions of this Statute, provide for disclosure of documents or information not previously disclosed, sufficiently in advance of the commencement of the trial to enable adequate preparation for trial.
4. The Trial Chamber may, if necessary for its effective and fair functioning, refer preliminary issues to the Pre-Trial Chamber or, if necessary, to another available judge of the Pre-Trial Division.
5. Upon notice to the parties, the Trial Chamber may, as appropriate, direct that there be joinder or severance in respect of charges against more than one accused.
6. In performing its functions prior to trial or during the course of a trial, the Trial Chamber may, as necessary:
 - (a) Exercise any functions of the Pre-Trial Chamber referred to in article 61, paragraph 11;
 - (b) Require the attendance and testimony of witnesses and production of documents and other evidence by obtaining, if necessary, the assistance of States as provided in this Statute;
 - (c) Provide for the protection of confidential information;
 - (d) Order the production of evidence in addition to that already collected prior to the trial or presented during the trial by the parties;
 - (e) Provide for the protection of the accused, witnesses and victims; and
 - (f) Rule on any other relevant matters.
7. The trial shall be held in public. The Trial Chamber may, however, determine that special circumstances require that certain proceedings be in closed session for the purposes set forth in article 68, or to protect confidential or sensitive information to be given in evidence.
8.
 - (a) At the commencement of the trial, the Trial Chamber shall have read to the accused the charges previously confirmed by the Pre-Trial Chamber. The Trial Chamber shall satisfy itself that the accused understands the nature of the charges. It shall afford to him or her the opportunity to make an admission of guilt in accordance with article 65 or to plead not guilty.
 - (b) At the trial, the presiding judge may give directions for the conduct of proceedings, including to ensure that they are conducted in a fair and impartial manner. Subject to any directions of the presiding judge, the parties may submit evidence in accordance with the provisions of this Statute.

* The views expressed in this article are solely those of the author in his personal capacity and do not reflect in any way the views of the International Criminal Court.

9. The Trial Chamber shall have, *inter alia*, the power on application of a party or on its own motion to:
 - (a) Rule on the admissibility or relevance of evidence; and
 - (b) Take all necessary steps to maintain order in the course of a hearing.
10. The Trial Chamber shall ensure that a complete record of the trial, which accurately reflects the proceedings, is made and that it is maintained and preserved by the Registrar.

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A. Introduction/General remarks

1 Article 64 of the Rome Statute¹ defines most of the functions and powers of the Trial Chamber, but not all of them. In the same manner, article 57 does not describe all the functions and powers of the Pre-Trial Chamber.

Article 64 derives from article 38 of the ILC Draft Statute² and it must be pointed out that it is one of the few articles of the Rome Statute, which, even after intensive and difficult discussions, still keeps some elements of the original ILC Draft Statute.

2 During the debates in the Ad Hoc Committee in 1995³, article 38 was not much discussed, although participants agreed that it was necessary to draft more detailed provisions and that an extensive debate would be required about the 'guilty plea procedure', which was provided for in article 38 para. 1 (d) of the ILC Draft Statute.

3 The 1996 Report of the Preparatory Committee⁴ puts forward solutions for these two issues: first, a number of proposals were tabled in order to provide far more detailed provisions for the functions and powers of the Trial Chamber. These proposals were made by both Australia and the Netherlands⁵, but also by France⁶. Second, Argentina and Canada specifically proposed to deal with the 'guilty plea procedure' in a separate article, *scil.* Article 38*bis* entitled 'Abbreviated proceedings on an admission of guilt',⁷ which later became article 65 of the Rome Statute.

Since a great amount of proposals had been put forward on article 38⁸, the matter of 'guilty plea procedure' needed to be discussed separately and in a separate article, before a new and shortened version of the document on other issues could be prepared.

¹ UN Doc. A/CONF.183/9, Rome Statute of the International Criminal Court adopted by the United Nations Diplomatic Conference of Plenipotentiaries on the establishment of an International Criminal Court on 17 July 1998.

² Report of the International Law Commission on the Work of its Forty-Sixth Session, Draft Statute for an International Criminal Court, 2 May-22 July 1994, UN Doc. A/49/10 (1994).

³ Report of the Ad Hoc Committee on the Establishment of an International Criminal Court, UN Doc. A/50/22 (1995).

⁴ Report of the Preparatory Committee on the Establishment of an International Criminal Court, ii (Compilation of proposals), UN Doc. A/51/22, pp. 170-192.

⁵ UN Doc. A/AC.249/L.2.

⁶ UN Doc. A/AC.249/L.3.

⁷ Report of the Preparatory Committee on the Establishment of an International Criminal Court, ii (Compilation of proposals), UN Doc. A/51/22, p. 174.

⁸ The compilation of 1996 contains more than 20 pages on article 38 of the ILC Draft Statute!

Thus, in an inter-sessional meeting in Siracusa⁹, the compilation was reduced from 22 to 4 pages; proposals were shortened, deleted or sent for consideration in the Rules of Procedure and Evidence. In a subsequent discussion of the Preparatory Committee¹⁰ in August 1997, article 38 was then reduced to less than two pages. At that point, the text was very close to the ILC Draft, notwithstanding a few additional provisions *inter alia* on the creation of the Pre-Trial Chamber, an element proposed by France and rooted in the Civil Law tradition, contradicting the overall Common Law attitude of the ILC Draft itself. The text was left untouched except two *nota benes* until the Rome Conference¹¹.

During the Conference¹², differences of views appeared between Common Law countries and France on proposals based upon Civil Law. These differences especially appeared with regard to the power of the President of the Trial Chamber to direct the proceedings and the power of the Trial Chamber to order the production of evidence. In addition, another controversial subject turned out to be, with the establishment of the Pre-Trial Chamber, which was not foreseen in the ILC project, when the functions of that Pre-Trial Chamber would end and when those of the Trial Chamber would begin; solutions were found in this regard in paragraphs 4 and 6(a) of article 64, which are discussed below.

The text was finally adopted by the Working Group¹³ and then sent to the Committee of the Whole and the Drafting Committee, which adopted it with some minor changes.

The interpretation of article 64 needs to be in line with other articles of the Statute addressing an action from the Trial Chamber. To that extent, article 64 makes explicit references to articles 61, 65 and 68 of the Statute, and refers explicitly not less than five times (!) to the provisions of the 'Statute' in general.

With regard to the scope of application of this article, it is interesting to note that the principles established in article 64 (especially those in paragraphs 2 and 3 (a)), are applicable at the pre-trial stage of the proceedings¹⁴, notwithstanding the fact that the provision was clearly drafted for the Trial Chamber. Moreover, with regard to the appeals stage of the proceedings, rule 149 of the Rules clearly states that '[P]arts 5 and 6 and rules governing proceedings and the submission of evidence in the Pre-Trial and Trial Chambers shall apply *mutatis mutandis* to proceedings in the Appeals Chamber'.

The Appeals Chamber directly refers to article 64¹⁵, when issuing orders on the conduct of the proceedings before it in relation to appeals against decisions of acquittal or conviction or against sentence under article 81.

⁹ Informal Inter-Sessional Group of Experts Meeting in Siracusa, Italy, 29 May-4 June 1997, at the International Institute of Higher Studies in Criminal Sciences.

¹⁰ Decisions Taken by the Preparatory Committee at its Session Held from 4 to 15 August 1995, UN Doc. A/AC.249/1997/L.8/Rev.1, pp. 30-32.

¹¹ See Report of the Inter-Sessional Meeting from 19 to 30 January 1998 in Zutphen, The Netherlands, UN Doc. A/AC.249/1998/L.13, pp. 111-112; Report of the Preparatory Committee on the Establishment of an International Criminal Court, UN Doc. A/CONF.183/2/Add.1 (14 Apr. 1998), pp. 103-105.

¹² Working paper on article 64, UN Doc A/CONF.183/C.1/WGPM/L.41 (2 July 1998) and UN Doc. A/CONF.183/C.1/WGPM/L.41/Corr.1 (9 July 1998). At that point, sub-headings were included in the text, '*Preparation for trial*' from paragraph 3 to paragraph 5, '*Preparation for trial and during the trial*' for paragraph 6 and '*The trial*' from paragraph 7 to paragraph 11.

¹³ Report of the Working Group on Procedural Matters, UN Doc. A/CONF.183/C.1/WGPM/L.2/Add.2.

¹⁴ *Prosecutor v. Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali*, ICC-01/09-02/11-365, Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber II dated 20 July 2011 entitled 'Decision with Respect to the Question of Invalidating the Appointment of Counsel to the Defence', Appeals Chamber, 10 November 2011, para. 46.

¹⁵ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3097, Further order on matters relevant to the hearing before the Appeals Chamber, 15 May 2014, p. 4; *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12-210, Order in relation to the conduct of the hearing before the Appeals Chamber, Appeals Chamber, 8 October 2014, p. 3.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Functions and powers of the Trial Chamber

- 6 These functions of course refer to what the Trial Chamber has to do and here one can refer to paragraph 3 of article 64 which describes the Trial Chamber's role in the preparation of a trial; but the most important functions of the Trial Chamber, for example decisions on the guilt of the accused or on sentencing, or decisions on reparations to victims are dealt with in articles 74 to 76.

Powers of the Trial Chamber refer to the multiple actions this Chamber can take on and are partly described in article 64 para. 6, which refers to other parts of the Statute. For example in Part 9, the Trial Chamber has the power under article 93 para. 2¹⁶ to provide for a safe conduct to a witness or an expert appearing before the Court.

2. 'in accordance with this Statute'

- 7 This particular expression is repeated five times in this article, as was stated before. It may be that the intention was to make it very clear that the Trial Chamber had in every case to take first into consideration the provisions of the Statute. But that was stated clearly in article 21 para. 1 (a) '*the Court shall apply in the first place, this Statute ...*'. Undoubtedly more important is the following provision, article 21 para. 3, which states that '*the application and interpretation of law pursuant to this article must be consistent with internationally recognized human rights*'; this provision will allow the ICC to take into consideration the ICCPR¹⁷, the European Convention on Human Rights, the Inter-American Convention on Human Rights and also the jurisprudence of those treaty-based organs in the interpretation of the Statute, and, precisely, article 64.

3. The Rules of Procedure and Evidence

- 8 The reference was introduced at the very start in order to avoid repetition all over the article; to this end, there was also a note in the 'working paper on article 64'¹⁸:

'There was general agreement that this article would be supplemented by a number of more detailed provisions in the Rules of Procedure and Evidence, in particular regarding disclosure of documents and information between the parties. But it was thought unnecessary to repeat the reference to 'in accordance with the Rules of Procedure and Evidence'; hence the introduction of the general wording in the paragraph above. This is, however, a wider problem which will need to be addressed throughout the procedures parts.'

Indeed, a lot needed to be addressed in the Rules, not only for article 64 but for the whole Statute which contains more than 40 explicit references to the Rules! Examples of what could be inserted in the Rules could also be found in the documents submitted by France¹⁹, Australia and the Netherlands²⁰. The discussion on the Rules started in 1999 in the framework of the Preparatory Commission and was finalized on 30 June 2000. The Rules were adopted in September 2002 at the first meeting of the Assembly of States Parties²¹. Chapter 6

¹⁶ See article 93 para. 2.

¹⁷ International Covenant on Civil and Political Rights (1966).

¹⁸ UN Doc A/CONF.183/C.1/WGPM/L.41 and UN Doc. A/CONF.183/C.1/WGPM/L.41/Corr.1.

¹⁹ UN Doc. A/AC.249/L.3.

²⁰ UN Doc. A/AC.249/L.2.

²¹ See Official Records of the Assembly of States Parties to the Rome Statute of the International Criminal Court, First Session, New York, 3–10 September 2002, doc. ICC-ASP/1/3 at 10. As far as the relationship between the Statute and the Rules is concerned, the Assembly of States Parties decided to add the following explanatory

of the Rules deals specifically with the proceedings to be conducted before a trial Chamber. It is also important to note that Chapter 4 of the Rules dealing with ‘proceedings applicable at various stages of the proceedings’ contains provisions of utmost importance for the Trial Chamber. Finally, on 26 May 2004, the Judges of the ICC adopted the Regulations of the Court²² in accordance with article 52. Chapter 3, Section 3, of those Regulations deals specifically with the proceedings to be conducted before a Trial Chamber. As for the Rules, Chapter 3, Section 1, of those Regulations deals with ‘provisions relating to all stages of the proceedings’ and is of utmost importance for the Trial Chamber. Discussion of the Rules and Regulations will take place following the paragraphs of article 64.

II. Paragraph 2: Ensure a fair trial

In a report issued just after the adoption of the Statute, Amnesty International emphasized 9 the importance of article 64 para. 2:

‘the Trial Chamber is not limited to the examining only the rights of the accused guaranteed in the Statute, but may look to other international instruments and jurisprudence in reaching this determination and, even though the Trial Chamber must have due regard for the protection of victims and witnesses, this must not be at the expense of the rights of the accused’²³.

This statement proved to be right. Very early in its jurisprudence, the Appeals Chamber has indeed emphasized the ‘overall role ascribed to the Trial Chamber in article 64(2) of the Statute to guarantee that the trial is fair and expeditious and that the rights of the accused are fully respected’²⁴. The Appeals Chamber also stated logically that article 64 para. 2, as any other article in the Statute, had to be interpreted and applied consistently with internationally recognized human rights, in accordance with article 21 para. 3 of the Statute²⁵.

Article 64 para. 2 has been used in order to affirm the discretion Trial Chambers enjoy when organizing trial procedures, but also to stress that Trial Chambers had exclusive power with regard to the parties in the conduct of the trial.

With regard first to the discretion Trial Chambers enjoy when organizing trial procedures, 10 article 64 para. 2 has been used by Trial Chambers at the ICC to develop their own trial procedures for each trial. As stated by Trial Chamber V:

‘Article 64 of the Statute grants the Chamber flexibility in managing the trial. It formulation makes it clear that the Statute is neither an exhaustive nor a rigid instrument, especially on purely procedural matters such as witness preparation, and that silence on a particular procedural issue does not necessarily imply that it is forbidden. Article 64 is formulated so as to give judges a significant degree of discretion concerning the procedures they adopt in this respect, as long as the rights of the accused are respected and due regard is given to the protection of witnesses and victims’²⁶.

This ‘significant degree of discretion’ is used by each Trial Chamber to conduct the trial according to the particular views of the bench. There is thus little prospect for a unified trial

note to the Rules: ‘The Rules of Procedure and Evidence are an instrument for the application of the Rome Statute of the International Criminal Court to which they are subordinated in all cases. [...] In all cases, the Rules of Procedure and Evidence should be read in conjunction with and subject to the provisions of the Statute’.

²² Regulations of the Court adopted by the judges of the Court on 26 May 2004, Fifth Plenary Session, The Hague, 17–28 May 2004, as amended on 14 June and 14 November 2007 and on 2 November 2011, Official Documents of the International Criminal Court, ICC-BD/01-03-11.

²³ Preliminary Report to Membership on outcome of the Rome Diplomatic Conference to establish a Permanent International Criminal Court and proposed follow-up action for next two years (24 July 1998), p. 13.

²⁴ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1486, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I entitled ‘Decision on the consequences of non-disclosure of exculpatory materials covered by article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008’, Appeals Chamber, 21 October 2008, para. 46.

²⁵ *Ibid.*, para. 76.

²⁶ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-524, Decision on witness preparation, Trial Chamber V, 2 January 2013, para. 27; see also paras 26 and 28–29.

procedure at the ICC, at least in the near future. This should however not come as a surprise as the trial procedure was to a large extent left open by the drafters of the Statute for the judges to decide. This makes it all the more difficult to try to present what trial proceedings are before the ICC.

The Appeals Chamber has also underlined, albeit in slightly different terms, that the duty of each Trial Chamber to do ‘justice in each individual case’, in accordance with article 64 para. 2, implies ‘a measure of flexibility in the management of proceedings’.²⁷

What is however more difficult to justify is that Trial Chambers have also adopted proceedings clearly not foreseen by the Statute and the Rules such as permitting ‘no case to answer’ motions, considering that ‘such motions, in principle, would be consistent with its general obligation, pursuant to article 64(2) of the Statute, to ensure that the trial is fair and expeditious’²⁸, or directing, on the basis of article 64 para. 2, the Office of the Prosecutor to provide the defence, after the decision on the confirmation of the charges, with an ‘updated’ document containing the charges, whereas the Statute only foresees such a document before the decision on the confirmation of the charges²⁹. Such an ‘updated’ document containing the charges is indeed, as clearly affirmed by the Appeals Chamber, ‘not provided for in the Court’s legal instruments’³⁰.

The ‘measure of flexibility in the management of proceedings’, that each Trial Chamber enjoys, may even be used, according to the Appeals Chamber, against the clear wording of other articles of the Statute, such as article 63 para. 1³¹, which states that the ‘accused shall be present during the trial’, article 64 para. 2 allowing Trial Chambers to read ‘shall’ as being ‘may’.

It is difficult to understand what exactly in article 64 para. 2 gives such a broad power to Trial Chambers to enable them to adopt proceedings not foreseen in the Statute and the Rules or even to disregard other articles of the Statute, thereby clearly breaching their obligation under article 21 of the Statute to apply first the Statute and the Rules. Indeed, article 64 para. 2, although constantly portrayed by the jurisprudence as giving a broad discretionary power to Trial Chambers, is actually drafted as an obligation resting upon the Trial Chamber which ‘shall ensure’ that the trial is fair and expeditious. How such an obligation has turned into such a broad discretionary power for Trial Chambers remains a mystery.

- 11 Article 64 para. 2 has also been interpreted as giving Trial Chambers the power to control the way parties should act during the proceedings. With regard to the accused, the Appeals Chamber³² has clearly stated that ‘the Trial Chamber’s power to determine the timeliness of a motion alleging unlawful pre-surrender arrest and detention and seeking a stay of the

²⁷ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, Appeals Chamber, 25 October 2013, para. 50.

²⁸ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-1334, Decision No. 5 on the Conduct of Trial Proceedings (Principles and Procedure on ‘No Case to Answer’ Motions), Trial Chamber V(A), 3 June 2014, para. 16.

²⁹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1548, Order for the prosecution to file an amended document containing the charges, Trial Chamber I, 9 December 2008, paras. 13 and 15; see also *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-439, Order for the prosecution to file an updated document containing the charges, Trial Chamber V, 5 July 2012, para. 7.

³⁰ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3121-Red, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, Appeals Chamber, 1 December 2014, para. 131.

³¹ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-1066 Judgment on the appeal of the prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, Appeals Chamber, 25 October 2013. See generally Heinze, *International Criminal Procedure* (2014), 411–413.

³² *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-2259, Judgment on the Appeal of Mr Katanga Against the Decision of Trial Chamber II of 20 November 2009 Entitled ‘Decision on the Motion of the Defence for Germain Katanga for a Declaration on Unlawful Detention and Stay of Proceedings’, Appeals Chamber, 12 July 2010, para. 53.

proceedings during the trial phase derives from article 64(2) of the Statute'. Indeed, in accordance with article 64 para. 2, the 'Trial Chamber has the power to regulate the conduct of the parties and participants so as to ensure, among other considerations, that such conduct does not cause undue delay to the proceedings'³³.

This authority of the Trial Chamber over participants in the proceedings applies equally to the Prosecutor. In fact, Trial Chamber I³⁴, recalling its obligation under article 64 para. 2 to ensure that the trial was conducted with full respect for the rights of the accused, concluded that it was unable to discharge this obligation whilst the Prosecutor refused to accept the authority of the Court as compliance with judicial orders was at 'the heart of the principle of the rule of law'. The Appeals Chamber³⁵ confirmed that 'the ultimate responsibility for securing justice and ensuring fairness has been given to the Chamber (article 64(2) of the Statute) and these responsibilities cannot be delegated by, or removed from, the judges'. This meant that orders issued by Trial Chambers, as well as by any other Chamber, were binding orders for all participants in the proceedings, including the Prosecutor³⁶.

Moreover, article 64 para. 2 has been used by Trial Chambers as a basis to reprimand or express disapproval for the conduct of members of the Office of the Prosecutor. In this respect, in order to ensure that 'the interests of justice' were preserved, Trial Chamber I relied on article 64 para. 2 to express its strongest disapproval with regard to the content of an interview given by a member of the Office of the Prosecutor³⁷. Trial Chamber V relied on its 'broad discretionary powers' under article 64 para. 2 to assert authority in order to issue 'a reprimand and warning for failure to identify and disclosure of materials which may affect the credibility of Prosecution evidence' as a form of sanction against the 'Prosecution'³⁸. Trial Chamber V(B)³⁹, relying on 'its broad discretionary powers' as provided for in article 64 para. 2, decided that it had the power to address misconduct occurring outside of the courtroom, contrary to what seems to suggest article 71⁴⁰. The Chamber then stated that the 'Prosecution' was expected to respect in the case before that Chamber the general ethical guidelines as exemplified, for example, in the 'California Attorney Guidelines of Civility and Professionalism' from the State Bar of California⁴¹; the reference to that particular text seems strange especially when seen in light of the provisions of article 21. This is even more so if one notes that the application of the Code of professional Conduct for Counsel⁴², adopted by the Assembly of States Parties in accordance with rule 8 of the Rules, is excluded with regard to the members of the Office of the Prosecutor⁴³ who are solely under the authority of the Prosecutor in accordance with article 42.⁴⁴

³³ *Ibid.*

³⁴ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2574, Decision on the 'Prosecution's application to take testimony while proceedings are stayed pending decision of the Appeals Chamber', Trial Chamber I, 24 September 2010, para. 22.

³⁵ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2582, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I of 8 July 2010 entitled 'Decision on the Prosecution's Urgent Request for Variation of the Time-Limit to Disclose the Identity of Intermediary 143 or Alternatively to Stay Proceedings Pending Further Consultations with the VWU', Appeals Chamber, 8 October 2010, para. 47.

³⁶ *Ibid.*, paras 48 to 54.

³⁷ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2433, Decision on the press interview with Ms Le Fraper du Hellen, Trial Chamber I, 12 May 2010, para. 36.

³⁸ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-728, Decision on defence application pursuant to article 64(4) and related requests, Trial Chamber V, 26 April 2013, para. 89.

³⁹ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-747, Decision on the Defence application concerning professional ethics applicable to prosecution lawyers, Trial Chamber V(B), 31 May 2013, para. 14.

⁴⁰ See in this regard, Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010) 860.

⁴¹ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-747, Decision on the Defence application concerning professional ethics applicable to prosecution lawyers, Trial Chamber V(B), 31 May 2013, para. 16 and Annex A1.

⁴² Code of Professional Conduct for Counsel, ICC-ASP/4/Res.1, 2 December 2005.

⁴³ *Ibid.*, article 1. See generally Heinze, *International Criminal Procedure* (2014), 469–476.

⁴⁴ A Code of Conduct for the Office of the Prosecutor has been adopted by the Prosecutor on 5 September 2013.

III. Paragraph 3: Assignment for trial

- 12 While article 61 para. 11 refers to the ‘constitution’ of the Trial Chamber, article 64 para. 3 refers to the ‘assignment’ of a case to the Trial Chamber. Indeed, the Working Group on procedural matters stated that the drafting of article 61 para. 11 ‘will need to be reconsidered when a decision has been taken about how, under the Statute, a Trial Chamber is to become seized of a case, whether by way of ‘assignment’ or ‘constituting’ of a Trial Chamber’⁴⁵.

Obviously, nothing was reconsidered, and both concepts remain in the text. This was later clarified by rule 130 of the Rules which states that the Presidency may either constitute a Trial Chamber and refer the case to it, or refer the case to a previously constituted Trial Chamber.

If at the beginning of the existence of the Court, the Presidency constituted a Trial Chamber for each case after the confirmation of the charges and then assigned that case to that Chamber, this has changed with the cases in the situation in the Republic of Kenya.

The Presidency has up until October 2014 already constituted not less than seven Trial Chambers, respectively, Trial Chamber I⁴⁶, Trial Chamber II⁴⁷, Trial Chamber III⁴⁸, Trial Chamber IV⁴⁹, Trial Chambers V(A) and V(B) and finally, for the moment, Trial Chamber VI⁵⁰. With regard to Trial Chamber V, which was later dissolved by the Presidency, it is interesting to note that the Presidency first constituted⁵¹ the Chamber for the first case in the Kenya situation for which the charges were confirmed, and then assigned⁵² the second case in the Kenya situation for which the charges were confirmed to that same Trial Chamber. Later, the Presidency decided, being seized of a request by a judge attached to Trial Chamber V to be excused, to dissolve that Chamber and to constitute respectively Trial Chamber V(A) and Trial Chamber V(B)⁵³.

- 13 In all cases, the Presidency shall transmit to the Trial Chamber the decision of the Pre-Trial Chamber on the confirmation of charges and the record of the proceedings. Indeed, according to rule 121 sub-rule 10, the Registry shall create and maintain a full and accurate record of all proceedings before the Pre-Trial Chamber. This record will contain, in

⁴⁵ UN Doc. A/CONF.183/C.1/WGPM/L.2/Add.2.

⁴⁶ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-842, Decision constituting Trial Chamber I and referring to it the case of the Prosecutor V Thomas Lubanga Dyilo, Presidency, 6 March 2007; after the three judges from Trial Chamber I had finished their mandate and left the Court, the Presidency decided to re-constitute Trial Chamber I with new judges for the *Gbagbo* case: see *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-682, Decision re-constituting Trial Chamber I and referring to it the case of The Prosecutor v. Laurent Gbagbo, Presidency, 17 September 2014.

⁴⁷ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-729, Decision constituting Trial Chamber II and referring to it the case of The Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui, Presidency, 24 October 2008.

⁴⁸ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-534, Decision constituting Trial Chamber III and referring to it the case of *The Prosecutor v. Jean-Pierre Bemba Gombo*, Presidency, 18 September 2009.

⁴⁹ *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohammed jerboa Jamus*, ICC-02/05-03/09-124, Decision constituting Trial Chamber IV and referring to it the case of The Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohammed jerboa Jamus, Presidency, 16 March 2011.

⁵⁰ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-337, Decision constituting Trial Chamber VI and referring to it the case of *The Prosecutor v. Bosco Ntaganda*, Presidency, 18 July 2014.

⁵¹ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-406, Decision constituting Trial Chamber V and referring to it the case of *The Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, Presidency, 29 March 2012.

⁵² *Prosecutor v. Francis Kirimi Muthaura and Uhuru Muigai Kenyatta*, ICC-01/09-02/11-414, Decision referring the case of *The Prosecutor v. Francis Kirimi Muthaura and Uhuru Muigai Kenyatta* to Trial Chamber V, Presidency, 29 March 2012.

⁵³ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang* and the *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-01/11-745, Decision constituting Trial Chamber V(a) and Trial Chamber V(b) and referring to them the cases of *The Prosecutor v. William Samoei Ruto and Joshua Arap Sang* and *The Prosecutor v. Uhuru Muigai Kenyatta*, Presidency, 21 May 2013.

accordance with rule 121 sub-rule 2, all evidence disclosed between the Prosecutor and the person against whom a warrant of arrest or a summons to appear has been issued.⁵⁴ According to the Office of the Prosecutor of the International Criminal Court⁵⁵, it is expected that 'the bulk of the disclosure will take place before the confirmation of charges. This will contribute to trial-readiness of the case by the time the charges have been submitted for confirmation'. This will include exculpatory evidence as article 67(2) is applicable in proceedings before the confirmation hearing in accordance with rule 121 sub-rule 1. Indeed, the case should be ready for trial when the Pre-Trial Chamber confirms the charges. In particular, issues relating to disclosure and relevance or admissibility of evidence⁵⁶ should be solved at the pre-trial stage, thus avoiding the start of the trial being delayed by litigation on questions of disclosure or admissibility of evidence as it was the case before the ad hoc Tribunals, a concern which was expressed by many delegations⁵⁷.

The issue of the completion of the Prosecutor's investigation before the confirmation of charges hearing has been the subject of intense debate at the ICC as the Office of the Prosecutor did not really follow what was said in its initial '*Informal Expert Paper*' mentioned above. To the contrary, the Office of the Prosecutor has been constantly arguing for flexibility in the conduct of its investigations, especially with regard to the possibility to conduct investigations post confirmation. In 2006, the Appeals Chamber concluded that the Prosecutor had flexibility to continue his investigation even after the confirmation of charges⁵⁸. This decision has been a catastrophe with regard to the length of judicial proceedings before the ICC as it has considerably delayed the start of trials. In 2012, the Appeals Chamber started to realize the problem and indicated that the investigation 'should largely be completed at the stage of the confirmation of charges hearing' and that if the 'Prosecutor requires more time to complete the investigation, rule 121(7) of the Rules of Procedure and Evidence permits him to seek a postponement of the confirmation of charges hearing'.⁵⁹ It is important in order to shorten the proceedings before the ICC, and therefore to respect the right of the accused to be tried without undue delay, to clearly put an obligation on the Prosecutor to conclude the investigation before the confirmation of charges hearing, save exceptional circumstances which the Prosecutor must demonstrate to the Trial Chamber. This is not done for the moment with the result that the start of trials is delayed whereas trials should start a few months after the confirmation of charges. One solution would be to clearly state in the Rules that the trial has to start at the latest three months after the Trial Chamber is constituted or after the case is assigned to a Trial Chamber already constituted.

The Trial Chamber has at its disposal the full record of the proceedings including all evidence disclosed between the parties and communicated to the Pre-Trial Chamber. There was some controversy during the discussions on the Rules on the possibility for the Trial Chamber to consult the record of the proceedings as for some delegations, especially those from a common law background, the Trial Chamber should remain as 'untainted' as possible⁶⁰. However, it is essential for the Trial Chamber to consult the record of the proceedings in order

⁵⁴ See generally, Heinze, *International Criminal Procedure* (2014), 265–268, 508–518.

⁵⁵ See *Informal expert paper: Measures available to the International Criminal Court to reduce the length of the proceedings*, ICC-OTP 2003, para. 60, available at <http://www.icc-cpi.int/NR/rdonlyres/20BB4494-70F9-4698-8E30-907F631453ED/281982/length_of_proceedings.pdf> accessed. For further references see Heinze, *International Criminal Procedure* (2014), 36, 412–413.

⁵⁶ See rule 64, sub-rule 1.

⁵⁷ See Lewis, in: Lee (ed.), *The International Criminal Court* (2001) 539, 543.

⁵⁸ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-568, Judgment on the Prosecutor's appeal against the decision of Pre-Trial Chamber I entitled 'Decision Establishing General Principles Governing Applications to Restrict Disclosure pursuant to Rule 81(2) and (4) of the Rules of Procedure and Evidence', Appeals Chamber, 13 October 2006, para. 53. See generally Heinze, *International Criminal Procedure* (2014), 524–527.

⁵⁹ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-514, Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 16 December 2011 entitled 'Decision on the confirmation of charges', Appeals Chamber, 30 May 2012, para. 44.

⁶⁰ See Brady, in: Fischer et al. (eds.), *International and National Prosecution* (2001), 261, 270.

to have sufficient knowledge of the case to fully control the proceedings;⁶¹ it may be a question of survival for the International Criminal Court to follow the evolution of both ad hoc Tribunals where the Judges have increased their control over the proceedings in order to shorten the trials; it is indeed absolutely vital for the Court not to leave the trial in the hands of the parties to avoid lengthy trials which affect the credibility of international justice. It is also the condition *sine qua non* for the judges to use their power under article 69 para. 3 to search for the truth⁶². In addition, the Statute and the Rules must, in accordance with article 21 para. 3, be interpreted and applied in accordance with internationally recognized human rights; in this respect, the European Court of Human Rights has never ruled that a judge is not impartial because of his or her knowledge of the file containing the evidence:

‘Furthermore, the mere fact that a judge has already taken pre-trial decisions cannot by itself be regarded as justifying concerns about his impartiality. What matters is the scope and nature of the measures taken by the judge before the trial. Likewise, the fact that the judge has detailed knowledge of the case file does not entail any prejudice on his part that would prevent his being regarded as impartial when the decision on the merits is taken. Nor does a preliminary analysis of the available information mean that the final analysis has been prejudged’⁶³.

As a matter of fact, the reality at the ICC is that, in accordance with rule 129 of the Rules, the entire record of the case, including all evidence communicated to the Pre-Trial Chamber, is made accessible by the Registry to the Trial Chamber. Whether or not, and how, this record and the evidence it contains is used, is a matter for each trial judge to decide.

1. ‘confer with the parties and adopt such procedures as are necessary to facilitate the fair and expeditious conduct of the proceedings’

- 15 Rule 132 sub-rule 1 provides for a mandatory status conference promptly after the Trial Chamber is constituted in order to set the date of the trial. Setting the date for the trial often requires however several status conferences, several decisions by the Trial Chamber and multiple observations submitted by all participants to the proceedings⁶⁴. In the first status conference, Trial Chambers⁶⁵ often discuss a rather long list of issues such as: modalities and volume of disclosure both by the Prosecutor and the defence; protection of witnesses and other issues in relation to protection such as redactions; languages to be used in proceedings; victims’ applications and the rights of victims during trial proceedings including whether they intend to call evidence; issues regarding documents obtained by the Prosecutor under article 54 para. 3(e); agreed facts between the parties; whether they intend to call experts witnesses and the possibility to jointly instruct them; anticipated length of the trial and the commencement date of the trial; whether the Prosecutor should file a summary of his/her presentation of evidence and eventuality of a trial *in situ*. Before the status conference, the Trial Chamber may, in accordance with article 64 para. 3(a) and regulation 28 of the Regulations of the Court, address multiple questions to the Prosecutor, the defence, the legal representatives of victims and the Registry in order to receive observations for the proper preparation of the status conference⁶⁶.

⁶¹ See also Heinze, *International Criminal Procedure* (2014), 508–535.

⁶² On those issues see Kress, in: Fischer *et al.* (eds.), *International and National Prosecution* (2001) 309–383.

⁶³ ECtHR, *case of Morel v. France*, application n° 34130/96, Judgment of 6 June 2000, para. 45; see also *case of Werner v. Poland*, application n° 26760/95, Judgment of 15 November 2001, para. 43.

⁶⁴ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-999, Décision fixant la date du procès (règle 132–1 du Règlement de procédure et de preuve), Trial Chamber II, 27 March 2009.

⁶⁵ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-339, Order Setting a Status Conference and Setting a Provisional Agenda, Trial Chamber VI, 21 July 2014, para. 5; see also *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-540, Scheduling Order and Agenda for the Status Conference on 6 October 2009, Trial Chamber II, 2 October 2009, paras 3 and 4.

⁶⁶ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-747-tENG, Order Instructing the Participants and the Registry to Respond to Questions of Trial Chamber II for the Purpose of the Status Conference (article 64(3)(a) of the Statute), Trial Chamber II, 13 November 2008.

Rule 132 sub-rule 2 provides for other status conferences in order to facilitate the fair and expeditious conduct of the proceedings.

In case challenges are made to the jurisdiction of the Court or the admissibility of a case, these challenges shall be dealt with first, in accordance with rules 133 and 58.

Other motions relating to the trial proceedings may be presented by the Prosecutor or the defence, in accordance with rule 134. In addition, the legal representatives of victims may present any submission to the Trial Chamber regarding the trial proceedings in accordance with rule 91 sub-rule 2. The Prosecutor and the defence may raise objections or present observations on proceedings conducted since the confirmation hearing. Objections or observations on proceedings before the confirmation hearing must be raised before the Pre-Trial Chamber and cannot be raised later, even with the leave of the Trial Chamber⁶⁷.

In accordance with regulation 30 of the Regulations of the Court, status conferences may be held by way of hearings, including by way of audio- or video-link technology or by way of written submissions.

One interesting example of specific procedures adopted by a Trial Chamber after conferring with the parties is to be found in a decision issued by Trial Chamber IV: In that particular case, the parties reached an agreement to limit the presentation of evidence at trial to three contested issues⁶⁸. The Chamber concluded that the limitation of the trial to the contested issues as proposed in the joint submission made by the parties would 'facilitate the fair and expeditious conduct of the proceedings' and it therefore adopted, in accordance with article 64 para. 3(a), the procedures as proposed by the parties⁶⁹. 16

With regard to the preparation of the trial, the most interesting innovation is to be found in the Rules with the newly adopted rule 132bis.⁷⁰ This new rule was proposed by the judges acting by absolute majority, in accordance with article 51 para. 2(b) and was adopted without modification by the Assembly of States Parties⁷¹. This rule, entitled 'Designation of a judge for the preparation of the trial', allows the Trial Chamber to 'designate one or more of its members for the purposes of ensuring the preparation of the trial'. The objective of the judges in presenting this amendment to the Rules was to 'administer justice more expeditiously and efficiently'⁷². The designation of a single judge was foreseen in the Statute solely for the Pre-Trial Chamber⁷³ and not for the Trial Chamber. Indeed, article 39 para. 2 (b)(ii) states unequivocally that the 'functions of the Trial Chamber shall be carried out by three judges of the Trial Division'. The view was expressed during the discussions preceding the adoption of this rule that it was inconsistent with article 39 para. 2 (b)(ii). Finally, article 64 para. 3(a) was found to be a sufficient legal basis for such a rule although this article only refers to the trial chamber and does not address in any way its composition, contrary to article 39 para. 2 (b)(ii). It would have been better to first amend article 39 para. 2 (b)(ii) before adopting this new rule 132bis. This should not have been a huge obstacle as this article is subject to a simplified procedure for amendment in accordance with article 122. 17

This new rule 132bis does not define exhaustively the functions of the single judge for the preparation of the trial and it is likely that this alone will generate litigation. However, the role of the Single Judge at trial is likely to be more limited than the role of the Single Judge at the pre-trial stage of the proceedings. Indeed, Rule 132bis, sub-rule 5 d) and e) and sub-rule 6, limit the role of the Single Judge at trial who, for example, cannot set the date of the trial or

⁶⁷ See rule 122, sub-rule 4.

⁶⁸ *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohamed Jerbo Jamus*, ICC-02/05-03/09-227, Decision on the Joint Submissions regarding the contested issues and the agreed facts, Trial Chamber IV, 28 September 2011, para. 24.

⁶⁹ *Ibid.*, para. 44.

⁷⁰ Adopted by the Assembly of States Parties on 21 November 2012, by consensus, Resolution ICC-ASP/11/Res.2.

⁷¹ Report of the Study Group on rule 132 bis of the Rules of procedure and Evidence, document ICC-ASP/11/41, 1st November 2012.

⁷² *Ibid.*, p. 5, para. 8.

⁷³ See articles 39 para. 2 (b) (iii) and 57 para. 2.

take any decision which would significantly affect the rights of the accused or of the victims, a limitation which does not exist for the Single Judge at the pre-trial stage. This new rule 132bis has for the moment only been used once, by the newly composed Trial Chamber I⁷⁴, since its adoption in November 2012.

2. Determination of language

- 18 This subparagraph comes from article 27 para. 5 (a) of the ILC Draft Statute⁷⁵, where the Presidency was tasked with the determination of the language or languages to be used at trial.

Several articles of the Statute are applicable here. First, article 50 para. 2 states that ‘the working languages of the Court shall be English and French. The Rules of Procedure and Evidence shall determine the cases in which other official languages may be used as working languages.’⁷⁶ In accordance with Rule 41 sub-rule 1, the Presidency shall authorize the use of an official language of the Court as a working language in either of the following two circumstances; first, when that language is understood and spoken by the majority of those involved in a case and any of the participants in the proceedings so requests: this seems to cover victims participating in the proceedings in a case where the victims are in majority either Spanish, Russian, Arabic or Chinese speaking; second, when the Prosecutor and the defence so request. So, the Trial Chamber will have to determine the language(s) to be used at trial, in addition to English and French and eventually another official language used as working language in addition to English and French following a decision by the Presidency.

In any case, the accused has a right to use his or her own language according to article 67 para. 1⁷⁷. The Appeals Chamber clearly established that the language requested by the accused should be granted unless there are clear indications that he or she is abusing the right arising out of article 67⁷⁸. This could have important consequences for the conduct of the trial and the length of its preparation, especially when the language the accused fully understands and speaks is not particularly well-known such as the Zaghawa language⁷⁹. A Trial Chamber may seek an expert opinion to ascertain whether interpretation of the proceedings should be provided to the accused and in which language⁸⁰. Before Trial Chamber II, for the *Germain Katanga* and *Mathieu Ngudjolo Chui* trial, four languages were used: French, English, Swahili and Lingala.

In accordance with regulation 39 of the Regulations of the Court, the observations, submissions or other motions made by participants shall be in English or French, unless otherwise provided in the Statute, Rules or Regulations or authorized by the Chamber or the Presidency. In accordance with rules 22, sub-rule 1 and 90, sub-rule 6, counsel for the defence or legal representatives for victims shall be fluent in at least *one* of the working languages of the Court, which means usually English or French but may also be Russian, Chinese, Arabic or Spanish in case rule 41 applies. As far as the Office of the Prosecutor is concerned, being an organ of the Court in accordance with article 34, it must be able to work *both* in English and French as those languages are the working languages of the Court.

⁷⁴ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-700, Decision designating a Single Judge pursuant to Rule 132bis of the Rules of Procedure and Evidence, Trial Chamber I, 23 October 2014.

⁷⁵ UN Doc. A/50/22 (1995). The text was the following: ‘The Presidency may make any further orders required for the conduct of the trial, including an order: (a) determining the language or languages to be used during the Trial.’

⁷⁶ According to article 50 para. 1, ‘The official languages of the Court shall be Arabic, Chinese, English, French, Russian and Spanish.’

⁷⁷ See article 67 para. 1 (a) and (f).

⁷⁸ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-522, Judgment on the appeal of Mr. Germain Katanga against the decision of Pre-Trial Chamber I entitled ‘Decision on the Defence Request Concerning Languages’, Appeals Chamber, 27 May 2008, paras. 59 et 61.

⁷⁹ *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohamed Jerbo Jamus*, ICC-02/05-03/09-214, Reasons for the Order on translation of witness statements (ICC-02/05-03/09-199) and additional instructions on translation, Trial Chamber IV, 12 September 2011.

⁸⁰ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-1300, Order intrusting experts pursuant to regulation 44 of the Regulations of the Court, Trial Chamber II, 14 July 2009.

3. 'disclosure of documents or information'

a) **Subject to relevant provisions of the Statute.** Obviously, the disclosure of evidence goes to the heart of the right of the accused to a fair trial. Nevertheless, the Statute had to take into consideration the concerns of States about the protection of confidential or sensitive information and contains on this point several articles which restrict the possibility for the Trial Chamber to order disclosure.

Concerning confidential information, article 54 para. 3(e) states that the Prosecutor may 'agree not to disclose, at any stage of the proceedings, documents or information that the Prosecutor obtains on the condition of confidentiality and solely for the purpose of generating new evidence, unless the provider of the information consents'. This article echoes with article 93 para. 8(b) and (c).

With regard to the duty of the Trial Chamber under article 64 para. 3 (c) to provide for the disclosure of documents or information not previously disclosed, article 54(3)(e) has proven to be a major hurdle in the exercise of such a duty and a major bone of contention between the Prosecutor and Trial Chambers from the very first case before the Court, i. e., the Thomas Lubanga Dyilo case.⁸¹ In June 2008⁸², Trial Chamber I decided to stay the proceedings in that case, as the non-disclosure of certain documents by the Prosecutor to the defence made a fair trial impossible. The decision issued by Trial Chamber I was appealed by the Prosecutor, an appeal which was dismissed by the Appeals Chamber on 21 October 2008⁸³. In that decision, the Appeals Chamber established principles with regard to the ambit of the Prosecutor's use of that article.

First, the Appeals Chamber determined that the Prosecutor could only rely on article 54(3)(e) for the specific purpose of generating new evidence⁸⁴; indeed, the Appeals Chamber reminded the Prosecutor that his investigative activities 'must be directed towards the identification of evidence that can eventually be presented in open court, in order to establish the truth and to assess whether there is criminal responsibility under the Statute'⁸⁵. Therefore reliance on article 54(3)(e) by the Prosecutor should be 'exceptional'⁸⁶.

Second, the Appeals Chamber established that the 'use of article 54(3)(e) of the Statute must not lead to breaches of the obligations of the Prosecutor vis-à-vis the suspect or the accused person'⁸⁷. This was particularly important with regard to the Prosecutor's obligation to disclose exculpatory material to the accused in accordance with article 67(2) of the Statute.

Third, the Appeals Chamber established that the material had to be placed before the Trial Chamber for its final assessment whether or not the material ought to be disclosed to the defence: such an assessment could not be delegated to the Prosecutor⁸⁸. The Appeals Chamber made direct reference to article 21(3) of the Statute and in that respect, relied heavily on the jurisprudence of the European Court of Human Rights⁸⁹.

⁸¹ See generally, Heinze, *International Criminal Procedure* (2014), 454–458; see also commentary for article 54, para. 3 (e) in this volume.

⁸² *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1401, Decision on the consequences of non-disclosure of exculpatory materials covered by article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008, Trial Chamber I, 13 June 2008.

⁸³ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1486, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I entitled 'Decision on the consequences of non-disclosure of exculpatory materials covered by article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008', Appeals Chamber, 21 October 2008.

⁸⁴ *Ibid.*, para. 41.

⁸⁵ *Ibid.*

⁸⁶ *Ibid.*, para. 55.

⁸⁷ *Ibid.*, para. 42.

⁸⁸ *Ibid.*, para 46.

⁸⁹ *Ibid.*, paras 46–47.

Indeed, in different cases against the United Kingdom, the European Court of Human Rights had already established a jurisprudence concerning the disclosure of information where ‘public interest immunity’ was raised. In the case of *Rowe and Davis v. The United Kingdom*⁹⁰, the Grand Chamber of the European Court of Human Rights, composed of 17 Judges, stated that: ‘During the applicants’ trial at first instance the prosecution decided, without notifying the judge, to withhold certain relevant evidence on grounds of public interest. Such a procedure, whereby the prosecution itself attempts to assess the importance of concealed information to the defence and weigh this against the public interest in keeping the information secret cannot comply with the above-mentioned requirements of article 6 paragraph 1[...]. In conclusion, therefore, the prosecution’s failure to lay the evidence in question before the trial judge and to permit him to rule on the question of disclosure deprived the applicants of a fair trial’. It is clear that disclosure questions should always be ‘under assessment by the Trial Judge’⁹¹ as crucial requirement for the fairness of the proceedings. The European Court of Human Rights has reiterated the ‘importance that material relevant to the defence be placed before the trial judge for his or her ruling on questions of disclosure, namely, at the time when it can serve most effectively to protect the rights of the defence.’⁹²

It seems therefore not possible for the Prosecutor to withhold exculpatory information from the Pre-Trial or Trial Chamber, but the application may be made during *ex parte* and in camera proceedings⁹³.

Fourth, during those *ex parte* proceedings, the Trial Chamber should determine whether the material has to be disclosed to the defence. If the Chamber concludes that this is the case, the Prosecutor must seek the consent of the provider. If the provider does not consent to the disclosure to the defence, the Chamber, while prohibited from ordering the disclosure of the material to the defence, will then have to determine whether, and if so, which counterbalancing measures can be taken to ensure that the rights of the accused are protected and that the trial is fair, in spite of the non-disclosure of the information⁹⁴.

The other available option for the Prosecutor would be to withdraw charges; it has to be underlined that the Prosecutor may withdraw charges only before the confirmation hearing⁹⁵; after commencement of the trial, if the Prosecutor wants to withdraw charges, the Trial Chamber may oppose such a withdrawal⁹⁶.

- 20 Concerning national security information, article 72 completely governs this question: in this case it seems impossible for the Trial Chamber to order disclosure except after a rather complex procedure and even after that, disclosure seems to be limited to the case the information is already in the hands of the Court. However, in this case also and according to article 21 para. 3, the Trial Chamber will have to balance the proper interests of the State concerned against the interests of a fair trial⁹⁷.

- 21 Last but not least, disclosure will be subject to the appropriate measures taken by the Trial Chamber for the protection of victims and witnesses as developed in article 68. The work of

⁹⁰ ECtHR, Grand Chamber, case of *Rowe and Davis v. The United Kingdom*, application no. 28901/95, Judgment of 16 February 2000, paras. 63 and 66.

⁹¹ ECtHR, Grand Chamber, case of *Fitt v. The United Kingdom*, application no. 29777/96, Judgment of 16 February 2000, para. 49.

⁹² ECtHR, second section, case of *Dowsett v. The United Kingdom*, application no. 38482/98, Judgment of 24 June 2003, para. 50.

⁹³ See, for exculpatory evidence, rule 83.

⁹⁴ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1486, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I entitled ‘Decision on the consequences of non-disclosure of exculpatory materials covered by article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008’, Appeals Chamber, 21 October 2008, para. 48.

⁹⁵ See article 61 para. 4.

⁹⁶ See article 61 para. 11.

⁹⁷ See for example, ECtHR, *Tinnelly and sons LTD and others v. United Kingdom*, 62/1997/846/1052-1053, 10 July 1998.

Trial Chambers is usually facilitated in this regard by the numerous and voluminous decisions taken by the Pre-Trial Chamber before the confirmation hearing with regard to the multiple requests for redactions⁹⁸ presented by the Office of the Prosecutor on the basis of rule 81(2) of the Rules (redactions for the purpose of protecting further or ongoing investigations) or on the basis of rule 81(4) of the Rules (redactions for the purposes of protecting of witnesses, victims and members of their families). It is to be noted that the redactions granted by the Pre-Trial Chamber are maintained at trial unless a request is made to lift some redactions at trial.

b) Sufficiently in advance to enable adequate preparation for trial. That echoes to article 67 para. 1 (b) and is taken from article 14 para. 3 (b) of the ICCPR and article 6 para. 3 (b) of the European Convention on Human Rights but offers more guarantees to the accused than these two Treaties⁹⁹.

According to the jurisprudence, the expression ‘sufficiently in advance’ appearing in article 64 para. 3(c) is of ‘no fixed meaning’¹⁰⁰. The aim of such a provision is to avoid prejudice to the defence ‘which is always an issue that is relative in light of the particular circumstances in which the matter is to be considered’.

Trial Chamber I ordered the Prosecutor to disclose the entirety of his evidence, both incriminatory and exculpatory, to the defence no later than 12 weeks before the start of the trial¹⁰¹. It did so because it concluded that adequate preparation for trial both by the defence and also possibly by the legal representatives of victims could ‘only be completed once there has been full disclosure on the part of the prosecution’¹⁰². Trial Chamber III considered however, although a large part of the evidence had already been disclosed at the pre-trial stage, that five months, following full disclosure by the Prosecutor, were necessary for the defence to prepare adequately for the trial¹⁰³.

In case the Prosecutor wants to disclose incriminatory material to the defence, in order to rely on it at trial, after the deadline established by the Trial Chamber has expired, he or she must apply to the Trial Chamber for an extension of time in accordance with regulation 35 of the Regulations of the Court. As this however is likely to delay the start of the trial, because the defence must have adequate time to prepare, Trial Chambers have been reluctant to accept those additional materials after the expiration of the deadline for disclosure in case ‘the length of time and resources that are reasonably required by the defence to prepare a meaningful response to the new items of evidence are disproportionate to the limited interest of the Chamber in having the additional item of evidence discussed at trial’¹⁰⁴.

⁹⁸ Redactions must respect the requirements of proportionality and necessity and are in any case subject to judicial authorisation: see, *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-773, Judgment on the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled ‘First Decision on the Prosecution Requests and Amended Requests for Redactions under Rule 81’, Appeals Chamber, 14 December 2006, paras. 32–34.

⁹⁹ Indeed, under article 67 para. 1 (b), the accused has the right to communicate *freely and in confidence* with his or her counsel.

¹⁰⁰ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01-11-899-Red, Decision on the Prosecution’s Requests to Add New Witnesses to its List of Witnesses, Trial Chamber V(A), 3 September 2013, para 19.

¹⁰¹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1019, Decision Regarding the Timing and Manner of Disclosure and the date of Trial, Trial Chamber I, 9 November 2007, paras. 23 and 25; Trial Chamber VI also considered that the Office of the Prosecutor should complete full disclosure to the Defence three months before the start of the trial, see, *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-382, Order Scheduling a Status Conference and Setting the Commencement Date for the Trial, Trial Chamber VI, 9 October 2014, para 7.

¹⁰² *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1019, Decision Regarding the Timing and Manner of Disclosure and the date of Trial, Trial Chamber I, 9 November 2007, para. 16.

¹⁰³ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-598, Decision on the Date of Trial, Trial Chamber III, 5 November 2009, para. 5.

¹⁰⁴ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-1515-Corr, Decision on the disclosure of evidentiary material relating to the Prosecutor’s site visit to Bogoro on 28, 29 and 31 March 2009, Trial Chamber II, 9 October 2009, para 26.

- 24 In addition to disclosure, Trial Chambers have ordered the Office of the Prosecutor to provide additional documents which would assist the defence, the legal representatives of the victims participating in the proceedings and the Chamber to understand the relevance of the material disclosed by the Prosecutor with regard to the charges confirmed by the Pre-Trial Chamber. Trial Chamber I ordered the Prosecutor to submit a ‘summary of presentation of evidence’, explaining his case, by reference to the witnesses he intended to call and the other evidence relied upon, and how this evidence would relate to the charges¹⁰⁵. Trial Chamber II also ordered the Prosecutor to submit ‘a model table linking the charges confirmed by Pre-Trial Chamber I and the modes of responsibility with the alleged acts, as well as with the evidence on which he intends to rely at trial’¹⁰⁶. Trial Chamber III¹⁰⁷ followed the same approach taken by Trial Chamber II.

IV. Paragraph 4: Reference to the Pre-Trial Division

- 25 That comes from a proposal made by the U.S. Delegation in August 1997: The expression ‘preliminary issues’ refers to Part 5 of the Rome Statute, especially articles 56 and 57. It does not refer to Part 2, because article 19 para. 6 expressly states that after the confirmation of the charges, the challenges to the admissibility of the case or the challenges to the jurisdiction of the Court shall be referred to the Trial Chamber.

This decision is subject to the condition that it is necessary for the effective and fair functioning of the Trial Chamber: this is more restrictive than the proposal contained in the Report of the Preparatory Committee¹⁰⁸. It is to be hoped that after the confirmation hearing, few ‘preliminary issues’ will remain. In any case the Trial Chamber itself will be the only ‘judge’ about what is necessary for its effective and fair functioning. In this regard, it will have a discretionary power to decide to refer preliminary issues to the Pre-Trial Chamber which won’t be in a position to refuse to deal with these issues, except if it decides that the issue referred exceeds its competence under the Statute.

It seems that it is the Trial Chamber’s decision to assign the case either to the original Pre-Trial Chamber or to another available judge of the Pre-Trial Division. However, the Trial Chamber will be bound by article 57 para. 2, which states that some preliminary issues shall be dealt with by three judges of the Pre-Trial Chamber¹⁰⁹.

- 26 For the moment, there is only one example of a Trial Chamber referring a preliminary issue to a Pre-Trial Chamber: in June 2007, Trial Chamber I¹¹⁰, the day it received the record of the proceedings from the Presidency, decided to refer to Pre-Trial Chamber I the issue of the review of its ruling on the detention of *Thomas Lubanga Dyilo*. This was justified by the fact that the Trial Chamber did not have sufficient time to familiarize itself with the record of the case prior to issue a ruling on the review of the detention which was due on 14 June 2007 in accordance with article 60 para. 3 and rule 118 sub-rule 2 of the Rules.

On two occasions, Trial Chambers rejected requests to refer preliminary issues to a Pre-Trial Chamber. In the *Bemba* case, the Prosecutor proposed, as an alternative, that his

¹⁰⁵ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1019, Decision Regarding the Timing and Manner of Disclosure and the date of Trial, Trial Chamber I, 9 November 2007, para. 26.

¹⁰⁶ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-788-tENG, Order Instructing the Participants and the Registry to File Additional Documents, Trial Chamber II, 10 December 2008, para. 7; see also *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-956, Order concerning the Presentation of Incriminating Evidence and the E-Court Protocol, Trial Chamber II, 13 March 2009.

¹⁰⁷ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-682, Decision on the ‘Prosecution’s Submissions on the Trial Chamber’s 8 December 2009 Oral Order Requesting Updating of the In-Depth Analysis Chart’, Trial Chamber III, 29 January 2010.

¹⁰⁸ UN Doc. A/CONF.183/2/Add.1, pp. 103–105. The text of the proposed article 64 para. 7, in brackets, was the following: ‘The Trial Chamber may refer pre-trial issues under this article to the Pre-Trial Chamber for resolution.’.

¹⁰⁹ See article 57 para. 2.

¹¹⁰ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-921, Request for Review of Detention, Trial Chamber I, 6 June 2007.

request to invalidate the appointment of a legal consultant to the defence team be remitted by the Trial Chamber to a pre-trial judge in accordance with article 64 para. 4; this alternative request was not considered by the Trial Chamber which stated that it was 'the responsibility of the Chamber to resolve the matter pursuant to article 64(2) of the Statute'¹¹¹.

On 5 February 2013, the defence for *Uhuru Muigai Kenyatta* filed an application requesting that the 'preliminary issue of the validity of the Confirmation Decision be referred to the Pre-Trial Chamber for reconsideration pursuant to article 64(4)'¹¹². The Trial Chamber affirmed its 'discretionary power' to refer 'preliminary issues' to the Pre-Trial Chamber or another available judge of the Pre-Trial Division. According to the Trial Chamber, three conditions had to be fulfilled in order for the Chamber to exercise such discretionary power: (a) the matter at stake could be qualified as a 'preliminary issue'; (b) referral of that matter was 'necessary' and (c) it was necessary for the 'effective and fair functioning' of the Trial Chamber¹¹³. Although the majority of the Trial Chamber found that the question of the validity of the decision on the confirmation of the charges amounted to a preliminary issue, it did not consider that referral of such preliminary issue to a Pre-Trial Chamber was necessary for the fair and effective functioning of the Trial Chamber¹¹⁴. A judge issued a separate opinion coming to the conclusion that 'it would never be proper for the [Trial] Chamber to refer the case back to the Pre-Trial Chamber pursuant to article 64(4) of the Statute for the purpose of reviewing the validity of the charges'¹¹⁵.

However, as explained above, the Trial Chamber may only refer issues which are within the competence of a Pre-Trial Chamber. It is doubtful that a Pre-Trial Chamber has the power to reconsider its decision on the confirmation of the charges as this is not provided in the Statute or the Rules. The only remedy against a decision on the confirmation of the charges is a request for leave to appeal under article 82 para. 1(d): in case such a request is either not presented or rejected, the decision on the confirmation of the charges becomes definitive and cannot be reconsidered.

V. Paragraph 5: Joinder or severance

This paragraph gives a power *ex officio* to the Trial Chamber to order joinder or severance 27 in respect of charges against more than one accused, after giving notice to the parties, in order to allow them to submit observations to the Court.

In the ICTY's Decision¹¹⁶ on the motions for separate trial filed by the accused *Zejnir Delalic* and the accused *Zdravko Mucic*, the Chamber held that the fact that the accused seeking a separate trial was accused on the basis of command responsibility for the acts of his co-accused did not in itself make it necessary to order separate trials to avoid conflict of interests. The Chamber added that '*... Whatever degree of inconvenience this may involve is no such matter of conflict of interests with which Sub-rule 82 (B) is concerned.*'

In the same case, the Chamber considered that the protection of the interests of justice also did not justify an order for separate trials:

'6.... separate trials which have been sought would in toto be likely to involve much greater delay, at least for those unfortunate enough not to be the first to be tried. They would also mean considerable repetition of evidence.

¹¹¹ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-769, Decision on the 'Prosecution's Request to Invalidate the Appointment of Legal Consultant to the Defence Team', Trial Chamber III, 7 May 2010, para. 39.

¹¹² *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-728, Decision on defence application pursuant to article 64(4) and related requests, Trial Chamber V, 26 April 2013, para. 2.

¹¹³ *Ibid.*, para. 83.

¹¹⁴ *Ibid.*, paras. 84–86.

¹¹⁵ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-728-Anx 1, Decision on defence application pursuant to article 64(4) and related requests, Separate opinion of Judge Ozaki, Trial Chamber V, 26 April 2013, para. 3.

¹¹⁶ *Prosecutor v. Delalić et al.*, IT-96-21-T, Trial Chamber II, 25 September 1996.

7. ... separate trials would involve much duplication of testimony and great hardship for already traumatised witnesses ...¹¹⁷.

Rule 136 of the Rules provides that those jointly accused shall be tried together unless the Trial Chamber orders separate trials in order to avoid serious prejudice to the accused, to protect the interests of justice or because a co-accused has made an admission of guilt in accordance with article 65. The test aims at avoiding 'serious prejudice' to the accused, since many delegations have been concerned about the risks for witnesses in lengthy and traumatic trials¹¹⁸.

28 Article 64 para. 5 and rule 136 of the Rules were only applied once with regard to the joinder of charges, by Pre-Trial Chamber I, in the *Germain Katanga* and *Mathieu Ngudjolo Chui* cases¹¹⁹. This shows that the principles established in article 64 are also generally applicable at the pre-trial stage of the proceedings¹²⁰. Pre-Trial Chamber I came to the conclusion that 'the ordinary meaning of article 64(5) of the Statute and rule 136 of the Rules provides that there shall be joint trials for persons accused jointly, and establishes a presumption for joint proceedings for persons prosecuted jointly'¹²¹. The Appeals Chamber confirmed that the 'phrase 'persons accused jointly shall be tried together' is founded on the premise that joinder of more than one person in the same document containing the charges, is the norm'¹²². According to the Appeals Chamber, such an interpretation of article 64 para. 5 and rule 136 of the Rules 'tallies with the object of the Statute being, in this regard, the assurance of the efficacy of the criminal process, and promotes its purpose that proceedings should be held expeditiously'¹²³.

29 With regard to the severance of charges, there is only one example at the trial stage, again in the *Germain Katanga* and *Mathieu Ngudjolo Chui* case, where Trial Chamber II ordered the severance of the charges against Mathieu Ngudjolo Chui¹²⁴, in accordance with article 64 para. 5, as it intended to use regulation 55 of the Regulations of the Court only against *Germain Katanga*. The Trial Chamber concluded:

'However, triggering regulation 55 in respect of *Germain Katanga* clearly has the potential consequence of prolonging the proceedings against him. The Chamber therefore considers that no purpose would be served by deferring the decision on Mathieu Ngudjolo until a ruling is made in respect of *Germain Katanga*, and in respect of Mathieu Ngudjolo, in the wording of rule 136(1), it is necessary 'to avoid serious prejudice to' him, which requires that the proceedings against him be brought to an end promptly.

Consequently, separate treatment of Mathieu Ngudjolo's case, which also meets the dual requirement of fairness and expeditiousness established by article 64 of the Statute, necessarily leads the Chamber to order the severance of the charges against him and to rule separately on their merits [...].'¹²⁵

¹¹⁷ See Jones (general ed.), *International Criminal Tribunal for the Former Yugoslavia* (1997) 152.

¹¹⁸ See Lewis, in: Lee (ed.), *The International Criminal Court* (2001) 539, 543.

¹¹⁹ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-257, Decision on the Joinder of the cases against Germain Katanga and Mathieu Ngudjolo Chui, Pre-Trial Chamber I, 10 March 2008.

¹²⁰ See also *Prosecutor v. Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali*, ICC-01/09-02/11-365, Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber II dated 20 July 2011 entitled 'Decision with Respect to the Question of Invalidating the Appointment of Counsel to the Defence', Appeals Chamber, 10 November 2011, para. 46.

¹²¹ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-257, Decision on the Joinder of the cases against Germain Katanga and Mathieu Ngudjolo Chui, Pre-Trial Chamber I, 10 March 2008, p. 7.

¹²² *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-573, Judgment on the Appeal Against the Decision on the Joinder rendered on 10 March 2008 by the Pre-Trial Chamber in the Germain Katanga and Mathieu Ngudjolo Chui Cases, Appeals Chamber, 9 June 2008, para. 7.

¹²³ *Ibid.*, para. 8.

¹²⁴ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-3319-tENG/FRA, Decision on the implementation of regulation 55 of the Regulations of the Court and severing the charges against the accused persons, Trial Chamber II, 21 November 2012, paras 59 et 60.

¹²⁵ *Ibid.*, paras. 61–62.

The ICTY and the ICTR have not seen a prejudice to the accused in the following circumstances:

‘Concurrent presentation of evidence pertaining to one accused with that pertaining to another accused does not per se constitute a conflict of interests, nor does calling a co-accused to testify during the joint trial constitutes a conflict of interests between them’¹²⁶;

‘The fact that there is evidence which may, in law, be admissible against one accused and not others, is not necessarily a ground for severance in an international tribunal where trial is by judges without a jury, since it is generally assumed that judges can rise above such risk of prejudice and apply their professional judicial minds to the assessment of evidence’¹²⁷.

The Special Court for Sierra Leone¹²⁸ has summarized the key factors articulated in the jurisprudence of both the ICTY and ICTR to be taken into consideration when determining whether the interests of justice would be served by a joinder. These include: (a) the public interest in savings and expenses and time; (b) the interest of transparent justice that there be consistency and fairness with respect to the verdicts of persons jointly tried; (c) the public interest in avoiding discrepancies and inconsistencies inevitable from separate trials of joint offenders; (d) the need for consistent and detailed presentation of evidence; (e) better protection of the victims’ and witnesses’ physical and mental safety by eliminating the need for them to make several journeys; and (f) due regard for judicial economy.

The same key factors were taken into consideration by Pre-Trial Chamber I in its above-mentioned decision joining the Germain Katanga and the Mathieu Ngudjolo cases: according to the Chamber, joinder (a) enhanced the fairness as well as the judicial economy of the proceedings; (b) avoided having witnesses testify more than once and reduce expenses related to those witnesses; (c) avoided duplication of evidence; (d) avoided inconsistency in the presentation of the evidence therefore affording equal treatment to the persons prosecuted; and (e) minimised the potential impact on witnesses and better facilitated the protection of the witnesses’ physical and mental well-being¹²⁹.

VI. Paragraph 6

1. ‘Exercise any functions of the Pre-Trial Chamber’

Article 61 para. 11 assigns functions to the Presidency and a Trial Chamber, subject to paragraph 9¹³⁰ and to article 64 para. 4. In case of preliminary issues, the Trial Chamber will have the choice to resolve itself the question or to refer it to the Pre-Trial Chamber in accordance with paragraph 4.

The wording used is very broad and covers all the functions of the Pre-Trial Chamber described in Part 5 of the Rome Statute.

¹²⁶ See *Prosecutor v. Kovačević et al.*, IT-97-24-AR73, Decision the motion for joinder of accused and concurrent presentation of evidence, Trial Chamber, 14 May 1998.

¹²⁷ See *Prosecutor v. Barayagwiza*, ICTR-97-19-I, Decision on the request of the defence for severance and separate trial, Trial Chamber I, 26 September 2000.

¹²⁸ See *Prosecutor v. Issa Hassan Sesay*, SCSL-2003-05-PT, *Alex Tamba Brima*, SCSL-2003-06-PT, *Morris Kallon*, SCSL-2003-07-PT, *Augustine Gbao*, SCSL-2003-09-PT, *Brima Bazzy Kamara*, SCSL-2003-10-PT, *Santigie Borbor Kanu*, SCSL-2003-13-PT, Decision and order on prosecution motions for joinder, Trial Chamber, 27 January 2004.

¹²⁹ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-257, Decision on the Joinder of the cases against Germain Katanga and Mathieu Ngudjolo Chui, Pre-Trial Chamber I, 10 March 2008, p. 8.

¹³⁰ A technical correction was needed here and effected by procès-verbal of corrections to the Rome Statute on 12 July 1999 (C.N.604.1999.TREATIES.618): the reference to paragraph 8 was changed to paragraph 9 in both the English and French versions of the Rome Statute.

The power set forth in article 64 para. 6(a) has been exercised by Trial Chambers, following requests presented by the defence under article 57 para. 3(b), to seek the cooperation of a State¹³¹ or of an international organization¹³².

It was also used to review the sufficiency of a summons to appear previously issued by the Pre-Trial Chamber in accordance with article 58 para. 7¹³³. The Pre-Trial Chamber, although concluding that a summons to appear was sufficient to ensure the appearance of the person prosecuted, indicated that ‘this was without prejudice to its power to review the sufficiency of the summons under articles 58(1) and 58(7) of the Statute’¹³⁴. The Trial Chamber ruled that by ‘virtue of the transmission of this case to the Trial Chamber and articles 61(11) and 64(6)(a) of the Statute, the review authority reserved by the Pre-Trial Chamber currently rests with this Chamber’¹³⁵. The Trial Chamber then decided to issue a warrant of arrest in accordance with article 58 para. 1 as there were no longer sufficient guarantees that the accused would appear pursuant to the initial summons to appear delivered by the Pre-Trial Chamber¹³⁶.

2. ‘Require the attendance and testimony of witnesses’

- 32 This subparagraph refers to Part 9 of the Statute and especially to article 93. There seems to be an inconsistency between article 64 para. 6(b) and article 93 para. 1(e): article 64 para. 6(b) gives the power to the Trial Chamber to *require* the attendance and testimony of witnesses whereas article 93 para. 1(e) states that

‘States Parties shall, in accordance with the provisions of this Part and under procedures of national law, comply with requests by the Court to provide the following assistance in relation to investigations or prosecutions: ... (e) Facilitating the voluntary appearance of persons as witnesses or experts before the Court’¹³⁷.

This does not mean that the Trial Chamber cannot summon a witness but simply that a State Party is under no obligation according to article 93 to compel a witness to appear before the Court although it may provide for such a procedure in its implementing legislation if it so wishes. Thus, if a witness, whose attendance and testimony is required by the Trial Chamber, does not want to travel to the seat of the Court, one solution could be for the Trial Chamber to obtain the assistance of the State Party for the testimony to be given before the national authority or by means of video-conference. Indeed, even if States Parties are not under an obligation to force the appearance of witnesses before the ICC, they should be under an obligation to comply with an order of the Trial Chamber requiring the attendance and testimony of a witness and summon that witness to appear before a national Court.

Trial Chamber V(A) came to the conclusion that ‘there is no doubt in the Chamber’s view that when article 64(6)(b) says that the Chamber may ‘require the attendance of witnesses’, the provision means that the Chamber may -as a compulsory measure- order or subpoena the appearance of witnesses’¹³⁸. On appeal lodged by the defence, the Appeals Chamber found

¹³¹ *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-504-Red, Public Redacted Version of the Decision on the third defence application pursuant to articles 57(3)(b) and 64(6)(a) of the Statute’, Trial Chamber IV, 12 September 2013, para. 3.

¹³² *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-170, Decision on ‘Defence Application pursuant to articles 57(3)(b) and 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the African Union’, Trial Chamber IV, 1 July 2011, para. 6.

¹³³ *Prosecutor v. Abdallah Banda Abakaer Nourain*, ICC-02/05-03/09-606, Warrant of arrest for Abdallah Banda Abakaer Nourain, Trial Chamber IV, 11 September 2014.

¹³⁴ *Ibid.*, para. 18.

¹³⁵ *Ibid.*, para. 19.

¹³⁶ *Ibid.*, paras 23–24.

¹³⁷ According to UN Doc. A/CONF.183/C.1/WGIC/L.15 (6 July 1998), ‘This includes the notion that witnesses or experts may not be compelled to travel to appear before the Court.’.

¹³⁸ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-1274-Corr2, Decision on Prosecutor’s Application for Witness Summonses and resulting Request for State Party Cooperation, Trial Chamber V(A), 17 April 2014, para. 100.

that ‘article 64(6)(b) of the Statute gives Trial Chambers the power to compel a witness to appear before it, thereby creating a legal obligation for the individual concerned’¹³⁹, therefore confirming the conclusion reached by Trial Chamber V(A). The addition by the Appeals Chamber that this power conferred on Trial Chambers creates an obligation on the individual is interesting, but rather strange, as the obligation to cooperate with the Court in Part IX of the Statute is established for States Parties, not for individuals. Although it was argued before the Appeals Chamber that such an obligation on individuals would be without any sanction in the case of non-compliance, the Appeals Chamber concluded that ‘any sanction would be provided in domestic law, which would give significant notice to the individual concerned’¹⁴⁰. This could be true, but would probably only apply in case the witness is summoned to appear before a national court, following a request for cooperation made by the ICC. It is not certain that such a sanction would be also applicable in case the witness would be called to testify before the ICC by way of video-link.

The Appeals Chamber then clarified that the requested State Party had an obligation to serve the summonses upon the witnesses¹⁴¹. Finally, the Appeals Chamber found that the ‘scope of application of article 93(1)(e) is limited to the facilitation of the voluntary appearance of witnesses *at the seat of the Court*, involving international transfer’¹⁴², clarifying that a witness could not be compelled to travel to the seat of the Court. A witness was however under an obligation to appear before the Court and the requested State Party was thus under an obligation, pursuant to article 93 para. 1(b), to ensure the forced appearance of a witness on the State Party’s territory before the Court either sitting *in situ* or by way of video-link¹⁴³. For the purpose and scope of the present commentary on article 64, it shall suffice to point out that such an interpretation of article 93 para. 1(b) may be seen as rather generous.

Paragraph 6(b) refers only to ‘witnesses’ but a footnote in the Report of the Working Group¹⁴⁴ explains that ‘the term ‘witness’ includes expert witnesses’.

Furthermore, taking into consideration the jurisprudence of the Appeals Chamber with regard to the scope of application of article 64¹⁴⁵, it would be logical to conclude that the same principles would be applied in case a witness is compelled to appear either before a Pre-Trial Chamber or before the Appeals Chamber¹⁴⁶.

3. ‘Provide for the protection of confidential information’

Reference shall be made here to articles 54 para. 3 (e), 68 para. 6 and 93 para. 8 (b) and (c). 33
As was stated before, this could include the possibility for the Trial Chamber, on its own motion or at the request of the Prosecutor, the defence or the State concerned, to order in camera hearings or to decide to restrict the scope of questioning in the case of a witness etc.

¹³⁹ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-1598, Judgment on the appeals of William Samoei Ruto and Mr Joshua Arap Sang against the decision of Trial Chamber V(A) of 17 April 2014 entitled ‘Decision on Prosecutor’s Application for Witness Summonses and resulting Request for State Party Cooperation’, Appeals Chamber, 9 October 2014, paras 107 and 113.

¹⁴⁰ *Ibid.*, para. 110.

¹⁴¹ *Ibid.*, para. 114.

¹⁴² *Ibid.*, para. 123.

¹⁴³ *Ibid.*, para. 130.

¹⁴⁴ See UN Doc. A/CONF.183/C.1/WGPM/L.2/Add.2.

¹⁴⁵ *Prosecutor v. Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali*, ICC-01/09-02/11-365, Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber II dated 20 July 2011 entitled ‘Decision with Respect to the Question of Invalidating the Appointment of Counsel to the Defence’, Appeals Chamber, 10 November 2011, para. 46; see also, with regard to the application of article 64 para. 5 before the Pre-Trial Chamber, *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-573, Judgment on the Appeal Against the Decision on the Joinder rendered on 10 March 2008 by the Pre-Trial Chamber in the Germain Katanga and Mathieu Ngudjolo Chui Cases, Appeals Chamber, 9 June 2008.

¹⁴⁶ For the Appeals Chamber, see rule 149 of the Rules.

4. ‘Order the production of evidence’

- 34 This subparagraph, which shows the influence of Civil Law on the Statute, gives an *ex officio* power to the Trial Chamber to order the production of further evidence to that already presented by the parties.¹⁴⁷ That gives a very important role to the judges to ascertain the truth; it was indeed impossible for Civil Law Delegations and especially for France to leave all the power on this point in the hands of the parties. Such a power of the Court is essential in order to provide a fair trial to the accused.

It must be pointed out that this subparagraph is similar to Rule 98 of the ICTY’s Rules which states: ‘A Trial Chamber may order either party to produce additional evidence. It may itself summon witnesses and order their attendance.’

This article is usually referred to by Trial Chambers together with article 69 para. 3 which gives the power to the Court to request the submission of all evidence that it considers necessary for the determination of the truth. The general reference to ‘the Court’ in article 69 para. 3 covers all Chambers of the Court, including the Appeals Chamber and the Pre-Trial Chambers. Likewise, the principle established by article 64 para. 6(d) is certainly applicable before all Chambers of the Court.

- 35 Trial Chamber III decided that it would eventually use its power to call witnesses after the conclusion of the presentation of the evidence by the defence¹⁴⁸. Trial Chamber III effectively used that power to call a witness just after the last witness presented by the defence, deciding that a witness called by the Chamber should be first questioned by the Chamber itself and then, in that order, by the representatives of the Office of the Prosecutor, the legal representatives of the victims and finally the defence, which should have the opportunity to question the witness last in accordance with rule 140 sub-rule 2(d) of the Rules¹⁴⁹.

Trial Chamber II also used its power under article 64 para. 6(d) to call a witness to testify but it used it at the beginning of the trial, before the first witnesses were presented by the Office of the Prosecutor. The Trial Chamber considered ‘it necessary to order the appearance of the person in the Office of the Prosecutor in charge of investigations in this case (‘the Lead Investigator’), in addition to the Prosecution witnesses already due to testify’. The Trial Chamber wanted to give the Lead Investigator the opportunity to explain how the investigation was conducted, how the statements were taken from the various prosecution witnesses and the methods used to investigate exonerating circumstances as required from the Prosecutor by article 54 para. 1(a)¹⁵⁰.

5. ‘Provide for the protection of the accused, witnesses and victims’

- 36 In this regard, article 68 para. 2 states that ‘the Chambers of the Court may, to protect victims and witnesses or an accused, conduct any part of the proceedings *in camera* or allow the presentation of evidence by electronic or other special means’. Of course, the measures taken for the protection of victims or witnesses shall not be ‘prejudicial to or inconsistent with the rights of the accused and a fair and impartial trial’¹⁵¹.

¹⁴⁷ See generally, Heinze, *International Criminal Procedure*(2014), 238–249, 501–505.

¹⁴⁸ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-2731, Decision on the timeline for the completion of the defence’s presentation of evidence and issues related to the closing of the case, Trial Chamber III, 16 July 2013, para. 26.

¹⁴⁹ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-2863-Red, Public Redacted Version of Decision on the presentation of additional testimony pursuant to articles 64(6)(b) and (d) and 69(3) of the Rome Statute, Trial Chamber III, 6 November 2013, paras 4–7.

¹⁵⁰ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-1603-tENG, Decision on the Application by the Defence for Mathieu Ngudjolo Chui for Postponement of the Commencement Date for the Hearings on the Merits (Rule 132(1) of the Rules of Procedure and Evidence), Trial Chamber II, 5 November 2009, para. 17.

¹⁵¹ Article 68 para. 1, last sentence.

Trial Chamber I emphasized that ‘the obligation to identify, protect and respect the well-being and dignity of witnesses rests significantly with the party or participant calling the witness, but the other party and the participants, as well as the Court, have responsibilities in this regard’. The Trial Chamber encouraged especially the Victims and Witnesses Unit, which has a particular role in this regard in accordance with article 68 para. 4 and regulation 41 of the Regulations of the Court, to raise with the Chamber, at an early stage, any specific concerns it may have regarding the integrity and well-being of a witness, particularly concerning those who may be traumatized or vulnerable. The Trial Chamber identified the particular measures which could be utilized such as: (a) treating the testimony of vulnerable witnesses as confidential, access being restricted to the parties and participants to the proceedings; (b) allowing evidence in appropriate circumstances to be given out of the direct sight of the accused or the public; (c) allowing a witness to control his or her testimony and, if so, to what extent; (d) allowing eventually breaks in the evidence as and when requested; and (e) allowing a witness to use a particular language¹⁵².

6. ‘Rule on any other relevant matters’

Although article 64 para. 6(f) seems to be an acknowledgment by States negotiating the Statute that they could not foresee all issues which could come before a Trial Chamber, this provision has been used by Trial Chambers, most often in combination with article 64 para. 2, to assert very broad discretionary powers, even outside or contrary to the statutory framework. For example, article 64 para. 6(f) has been used to grant leave to appeal outside of what is provided in the statute in article 82 para. 1(d). Trial Chamber I granted leave to appeal to a State stating that

‘leave to appeal should be granted on an interlocutory basis under article 64(6)(f) when it is arguable that a decision of a Chamber has placed a State Party in the position of having to resolve apparently conflicting obligations to the ICC, on the one hand, and to individuals in the custody of the Court who raise fundamental human rights concerns that require determination by the State Party, on the other’¹⁵³.

This incorrect use of article 64 para. 6(f) instead of article 82 para. 1(d) stems from an incorrect interpretation of the term ‘party’ in article 82 para. 1. It would have been easy, and legally correct, for the Chamber to simply conclude that a State having a particular interest in proceedings before the Court could be qualified as party to those proceedings. The Appeals Chamber rejected the leave to appeal granted by Trial Chamber I as being *ultra vires*¹⁵⁴.

The Appeals Chamber has generally tried to put some limits to the expansive interpretation of article 64 para. 6(f) by Trial Chambers. For example, the Appeals Chamber¹⁵⁵ has criticized a Trial Chamber for using article 64 para. 6(f) as a basis to excuse an accused person from continuous presence at trial, finding instead that the Trial Chamber could find such discretion in article 63 para. 1 which however simply states that the accused ‘shall’ be present during trial.

¹⁵² *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1140, Decision on various issues related to witnesses’ testimony during trial, Trial Chamber I, 29 January 2008, paras 35–36.

¹⁵³ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2779, Decision on two requests for leave to appeal the ‘Decision on the request by the DRC-D01-WWW-0019 for special protective measures relating to his asylum application’, Trial Chamber I, 4 August 2011, para. 23.

¹⁵⁴ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2799, Decision on the ‘Urgent Request for Directions’, of the Kingdom of the Netherlands of 17 August 2011, Appeals Chamber, 26 August 2011, para. 8.

¹⁵⁵ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, Appeals Chamber, 25 October 2013, para. 56.

VII. Paragraph 7: Trial in public

- 38 During the Rome Conference, some Delegations expressed the view that the principle in paragraph 7 was sufficiently important to be dealt with in a separate article¹⁵⁶; it is repeated in article 67 para. 1.

An exception to this principle is provided for in article 68 para. 2, but the decision is in any case left to the Trial Chamber: a proposal made by France, ‘In camera proceedings are mandatory when they are requested by an accused who was minor at the time of the commission of the facts or by a victim of sexual violence’¹⁵⁷ was not retained. The same will apply in case of sensitive or confidential information, in accordance with article 64 para. 6(c).

Regulation 20, sub-regulation 2 of the Regulations of the Court, provides that when a Chamber orders that certain hearings be held in closed session, the Chamber shall make public the reasons for such an order.

Trial Chambers¹⁵⁸ have repeatedly reminded parties of the ‘principle of publicity of proceedings enshrined in articles 64(7) and 67(1) of the Statute’ in order either to require the parties to submit public redacted versions of their confidential filings or to reclassify *proprio motu* confidential filings as public¹⁵⁹.

VIII. Paragraph 8

1. ‘commencement of the trial’

- 39 a) **Reading of the charges.** That refers to article 61 para. 7 (a) and must be understood subject to article 61 para. 9 which provides for the possibility of subsequent changes in the charges previously confirmed by the Pre-Trial Chamber.

Although apparently relatively simple, this provision proved to be very contentious with regard to what should be read to the accused and when it should be read to the accused.

The text is extremely clear in referring to the ‘charges previously confirmed by the Pre-Trial Chamber’ and therefore the document to be read to the accused must be the decision on the confirmation of the charges as issued by the Pre-Trial Chamber in accordance with article 61 para. 7. However, several Trial Chambers¹⁶⁰ have directed, on the basis of article 64 para. 2, the Office of the Prosecutor to provide the defence, after the decision on the confirmation of the charges, with an ‘updated’ document containing the charges, whereas the Statute only foresees such a document before the decision on the confirmation of the charges¹⁶¹. It is then this document which was read to the accused: Trial Chambers V(A) and V(B) decided that ‘only the Charges section’ of this ‘updated’ document containing the

¹⁵⁶ UN Doc. A/CONF.183/C.1/WGPM/L.2/Add.2.

¹⁵⁷ See UN Doc. A/CONF.183/2/Add.1, article 68 para. 1, last sentence (in brackets), p. 108.

¹⁵⁸ Trial Chamber III, *Situation in the Central African Republic, in the case of the Prosecutor v. Jean-Pierre Bemba Gombo*, Order on the ‘Prosecution’s Revised Order of its Witnesses at Trial and Estimated Length of Questioning’, ICC-01/05-01/08-996, 4 November 2010, para. 5; see also Decision on court sitting hours for the testimony of Witness 45, ICC-01/05-01/08-2081, 27 January 2012, para. 9.

¹⁵⁹ See in this regard regulation 23bis (3) of the Regulations of the Court.

¹⁶⁰ Trial Chambers I, III, V and VI requested an ‘updated’ document containing the charges. Trial Chambers II and IV did not.

¹⁶¹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1548, Order for the prosecution to file an amended document containing the charges, Trial Chamber I, 9 December 2008, paras 13 and 15; see also *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-439, Order for the prosecution to file an updated document containing the charges, Trial Chamber V, 5 July 2012, para. 7; see also *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-390, Order instructing the Prosecution to prepare an updated document containing the charges, Trial Chamber VI, 30 October 2014; and, see also, for a thorough discussion on this very contested issue, *Prosecutor v. Francis Kirimi Muthaura and Uhuru Muigai Kenyatta*, ICC-01/09-02/11-584, Decision on the content of the updated document containing the charges (including two separate opinions), Trial Chamber V, 28 December 2012.

charges shall 'be read out at the opening of the trial for the purposes of fulfilling the requirement of article 64(8)(a) of the Statute'¹⁶², the 'opening of the trial' meaning the commencement of the hearing on the merits (or opening statements) and not the first status conference. However, the practice followed by Trial Chambers is not consistent: Trial Chamber III¹⁶³ decided to have the charges read to the accused both during the first status conference and then at the commencement of the hearing on the merits, although, as will be seen below, the accused was afforded the possibility to make an admission of guilt only at the opening of the trial (meaning the commencement of the hearing on the merits).

After the Appeals Chamber has now ruled that such an 'updated' document containing the charges was 'not provided for in the Court's legal instruments'¹⁶⁴, it is to be hoped that Trial Chambers will not request anymore such a document. The Appeals Chamber was indeed very clear when it stated that 'there can be no doubt that the decision on the confirmation of the charges defines the parameters of the charges at trial'¹⁶⁵. In many countries, trials are conducted on the basis of the decision taken by (a) pre-trial judge(s) to refer the case to trial. It is difficult to understand why Trial Chambers at the ICC are unable to do the same.

b) Understanding the nature of the charges. In order for the Trial Chamber to be able to discharge its obligation under this subparagraph, rule 135¹⁶⁶ provides that the Trial Chamber may either on its own motion or at the request of a party order a medical, psychiatric or psychological examination of the accused under the conditions set forth in rule 113. This latter rule provides the same for the Pre-Trial Chamber with the proviso that in making its determination, the Pre-Trial Chamber shall consider the nature and purpose of the examination and whether the person consents to the examination. This does not mean that the Trial Chamber cannot order an examination against the will of the person. Especially, if the purpose is only for the Chamber to satisfy itself that the accused understands the nature of the charges, it should not be a problem for the Trial Chamber to eventually impose such an examination to the accused against his or her will¹⁶⁷.

The Trial Chamber may appoint one or more experts from the list of experts approved by the Registrar or an expert approved by the Trial Chamber at the request of a party. In accordance with regulation 44 of the Regulations of the Court, the Registrar shall create and maintain a list of experts accessible at all times to all organs of the Court.

For the moment, there is only one decision in relation to fitness to stand trial which was in fact taken at the pre-trial stage of the *Laurent Gbagbo* case by Pre-Trial Chamber I which stated the following:

'Neither the Statute nor the Rules contain any provision specifically addressing fitness to stand trial. However, the concept of fitness to stand trial must be viewed as an aspect of the broader notion of fair trial. It is rooted in the idea that whenever the accused is, for reasons of ill health, unable to meaningfully exercise his or her procedural rights, the trial cannot be fair and criminal proceedings must be adjourned until the obstacle ceases to exist. In this sense, fitness to stand trial can be defined as absence of such medical conditions which would prevent the accused from being able to meaningfully exercise his or her fair trial rights'¹⁶⁸.

¹⁶² *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-847-Corr, Decision on the Conduct of Trial Proceedings (General Directions), Trial Chamber V(A), 9 August 2013, para. 5; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-867, Decision on the conduct of trial proceedings, Trial Chamber V(B), 2 December 2013, para. 9.

¹⁶³ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-T-14-ENG ET WT, Transcript, Trial Chamber III, 7 October 2009, pages 2 and 3; see also ICC-01/05-01/08-T-32-ENG CT WT, Transcript, 22 November 2010, pages 6 to 8.

¹⁶⁴ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3121-Red, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, Appeals Chamber, 1 December 2014, para. 131.

¹⁶⁵ *Ibid.*, para. 124.

¹⁶⁶ See also, for a similar rule, rule 74bis of the ICTY's Rules (IT/32/Rev. 49, 22 May 2013).

¹⁶⁷ If the purpose would be to collect incriminating evidence against the accused, this could be more problematic: see Friman, in: Lee (ed.), *The International Criminal Court* (2001) 493, 505.

¹⁶⁸ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-286-Red, Decision on the fitness of Laurent Gbagbo to take part in the proceedings before this Court, Pre-Trial Chamber I, 2 November 2012, para. 43.

Therefore, the accused must be able to understand the charges against him and more generally the proceedings being held before the Trial Chamber, and to instruct counsel accordingly¹⁶⁹.

If the Trial Chamber is satisfied that the accused is unfit to stand trial, it shall order the trial to be adjourned. The case shall be reviewed, in accordance with rule 135 sub-rule 4, at least every 120 days or at any time at the request of the Prosecutor, the defence or by the Chamber on its own motion. In accordance with regulation 103 of the Regulations of the Court, the Trial Chamber may order that a detained person who is determined to be mentally ill or who suffers from a serious psychiatric condition be transferred to a specialized institution for appropriate treatment. The Registrar shall ensure the continuous detention of the person both at the place of treatment and when in transit.

To ensure that the accused has read and understood the charges against him or her, Trial Chambers V (A) and (B) directed the defence counsel of the accused to file a certified declaration to this effect before the start of the trial¹⁷⁰.

- 42 c) **Plea guilty.** As explained in the introduction, the ‘guilty plea procedure’ is now developed in article 65. The Trial Chamber shall afford to the accused the possibility to make an admission of guilt; in this regard the Statute does not follow Rule 62 of the ICTY’s Rules which requires a plea of guilty or not guilty. Indeed, it seems enough to allow the accused to make an admission of guilt.

To determine the moment of this admission of guilt will thereby be of vital importance: it seems indeed useless to require the attendance of a lot of witnesses if the accused intends to make an admission of guilt; so it should be preferable to afford such a possibility to the accused at the very first status conference before the Trial Chamber.

However, this has been a debated issue and the practice followed by Trial Chambers is once again not consistent. Trial Chamber II afforded the possibility to the accused to make an admission of guilt pursuant to article 64 para. 8(a) twice: during the first status conference and at the time of the opening statements. This is consistent with the jurisprudence of that Chamber which stated that ‘the drafters of the Statute, who deliberately adopted a hybrid procedure which borrows from different legal cultures and systems, intended the ‘commencement of the trial’ to mean both the start of the proceedings before the Trial Chamber and the commencement of hearings on the merits’¹⁷¹. As stated above, the purpose of allowing the accused to make an admission of guilt at the first status conference before the Trial Chamber was to avoid a lengthy pre-trial process before the Trial Chamber.

Trial Chambers I¹⁷², III¹⁷³ and V(A)¹⁷⁴ afforded such a possibility to the accused only at the commencement of the hearing on the merits. They however underlined that this approach would not prevent the accused from entering a plea at any stage of the proceedings before the commencement of trial.

¹⁶⁹ *Ibid.*, para. 50.

¹⁷⁰ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-847-Corr, Decision on the Conduct of Trial Proceedings (General Directions), Trial Chamber V(A), 9 August 2013, para. 6; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-867, Decision on the conduct of trial proceedings, Trial Chamber V(B), 2 December 2013, para. 10.

¹⁷¹ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-1213-ENG, Reasons for the Oral Decision on the Motion Challenging the Admissibility of the Case (article 19 of the Statute), Trial Chamber II, 16 June 2009, para. 41.

¹⁷² *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-T-50-ENG [4 Sept 2007 CT WT], Transcript, Trial Chamber I, 4 September 2007, open session, p. 3, lines 15–23.

¹⁷³ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-T-14-ENG ET WT, Transcript, Trial Chamber III, 7 October 2009, p. 2, lines 9–14; see also ICC-01/05-01/08-T-32-ENG CT WT, Transcript, 22 November 2010, p. 5, lines 4–5.

¹⁷⁴ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-T-27-ENG ET WT, Transcript, Trial Chamber V(A), 10 September 2013, pages 12–13.

2. Power of the presiding judge

As stressed by *Christopher L. Blakesley*, ‘this paragraph implicates the difference between the adversarial and the non-adversarial models’¹⁷⁵. Indeed, this is a proposal made by France and coming from Civil Law. Such a power is potentially very useful in order for the presiding judge to control the manner of questioning the witnesses to avoid any harassment or intimidation. That is certainly very important in case of victims of sexual violence¹⁷⁶ and could also provide the presiding judge with the opportunity to ask a witness if he or she desires to make a general statement prior to the questions of the prosecutor, the defence and the legal representatives for the victims. This enables the judges to get information not subject to an oriented questioning and could finally avoid endless questioning with no hope to ascertain the truth.

During the discussion in the Preparatory Commission on the Rules of Procedure and Evidence, rule 140 on the *Directions for the conduct of the proceedings and testimony* was one of the most controversial rules¹⁷⁷.

Indeed, article 64 para. 8(b) leaves the procedural model to be followed at trial by the ICC completely open and completely in the hands of the Presiding Judge of the Trial Chamber. Some delegations, especially those from a common law background, were afraid that this could lead to completely different trials depending on the Presiding Judge¹⁷⁸. Other delegations felt that the Court would have to develop its own procedural model in the light of its experience.

However, as far as article 64 para. 8(b) does not require the Presiding Judge to give directions¹⁷⁹ but simply gives him or her the power to do so, delegations agreed generally that the Rules should provide some guidance in the unlikely case¹⁸⁰ where the Presiding Judge would not give directions. Thus, rule 140 sub-rule 1, provides that in such a case the Prosecutor and the defence shall agree on the order and manner in which the evidence shall be submitted to the Trial Chamber. Such a sub-rule is also unlikely to be possibly applied taking into consideration the intervention of the legal representatives of victims at trial in accordance with rule 91 sub-rule 3; the trial at the ICC is definitively not an adversarial trial between the Prosecutor and the defence, as the strong role given on the one hand to the judges and on the other hand to the victims, makes it impossible to follow a purely adversarial model.¹⁸¹ It is also not desirable to leave the trial proceedings in the hands of the parties if the ICC wants to achieve some procedural consistency over the years as the parties will be different from one trial to the other. Rule 140 sub-rule 1, provides *in fine* that if no agreement can be reached, the Presiding Judge shall give directions.

Rule 140 sub-rule 2 was the object of an intense and heated debate during the Preparatory Commission and one may wonder if this was at all necessary except to provide an opportunity for delegations to champion their own legal traditions.

¹⁷⁵ See Blakesley, in: Sadat Wexler (special ed.), *Observations on the Consolidated ICC Text*, (1998) 13bis NEP 69, 85.

¹⁷⁶ See Green *et al.* (1994) 5:2 *Hastings Women LJ* 171–241. See also rule 88 sub-rule 5.

¹⁷⁷ See Lewis, in: Lee (ed.), *The International Criminal Court* (2001) 539, 543.

¹⁷⁸ *Ibid.*, 548.

¹⁷⁹ For extensive directions given in writing by the Presiding Judge, see *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-1665-Corr, Directions for the conduct of proceedings and testimony in accordance with rule 140, Trial Chamber II, 1 December 2009. See also Heinze, *International Criminal Procedure* (2014), 452.

¹⁸⁰ Indeed, Regulation 43, which is almost identical to Rule 90 (F) of the ICTY’s Rules, states that ‘Subject to the Statute and the Rules, the Presiding Judge, in consultation with the other members of the Chamber, shall determine the mode and order of questioning witnesses and presenting evidence so as to: (a) Make the questioning of witnesses and the presentation of evidence fair and effective for the determination of the truth; (b) Avoid delays and ensure the effective use of time’.

¹⁸¹ In the same vein Heinze, *International Criminal Procedure* (2014), 305–308.

Indeed, first, this rule, like any other rule, is subject to the Statute in accordance with article 51 para. 5, and article 64(8)(b) in particular; in addition the States themselves have indicated at the time of their adoption that the Rules cannot in any way modify the Statute as they are only an instrument for the application of the Rome Statute to which they are subordinated in all cases¹⁸². Thus, the Presiding Judge of the Trial Chamber remains as free as he or she was before the adoption of this rule.

45 Second, delegations which proposed this rule wanted to set up the ‘sequencing’ to examine witnesses: however, in this regard, rule 140 sub-rule 2, is more interesting for what it does not state than for what it does. Indeed, terms such as examination-in-chief, cross-examination and re-examination are conspicuously absent¹⁸³ from the text of the sub-rule in contrast from what is provided for in the ICTY’s Rules for example¹⁸⁴. This absence of rigid rules of examination makes it possible that the debates during trials at the ICC are much more free and open than it is the case at the ICTY or in an adversarial trial in general. The flexibility of rule 140 entails the following: (i) it allows the judges to put first questions to the witness or ask the witness to commence his or her testimony by presenting a free report before any questioning by the participants in the proceedings takes place; and (ii) it does not prescribe a particular order of the participants questioning the witness depending on who is calling the witness: the witness may be questioned first either by the Prosecutor, the defence or the legal representatives of victims no matter who is calling that witness. This renders it useless for a party presenting a witness to prepare him or her¹⁸⁵, a feature known to common law systems but not to civil law countries which usually follow the system of ‘free witness narration’, as that party will not know in advance how the testimony will be given at trial. Such an absence of rigid rules of examination finally calls for a strong power of direction in the hands of the Presiding Judge.

46 In addition, and maybe more importantly, no reference is found in rule 140 to ‘defence case’ or ‘prosecution case’. Trial Chambers could therefore adopt a single presentation of the case, since the ‘double presentation’ of the case – first the prosecution case and then the defence case – has resulted in unacceptable delays at the ad hoc Tribunals. In addition, such a double presentation of the case is not very appropriate taking into consideration ‘the additional historical dimension and truth-finding mission of the Court’¹⁸⁶, which was crucial for many delegations negotiating the Statute and the Rules. A single presentation of the case should be realizable, if the Prosecutor complies with her duty under article 54, paragraph 1 (a) to investigate incriminating and exonerating circumstances equally in order to establish the truth. In addition, the Pre-Trial Chamber may remedy the lack of compliance by the Prosecutor in accordance with its powers under articles 61(7) and 69(3) during the confirmation proceedings.

What transpires from this debate is that delegations, at least some of them, wanted to reach a greater certainty on how future trials at the ICC would look like. This was obviously a praiseworthy effort although unlikely to succeed. Indeed, uncertainty in how trials are to be conducted was simply unavoidable during the first years of the Court: Judges and participants to the proceedings (defence, Prosecutor and victims) have to determine gradually how trials at the ICC are to be conducted according to the unique needs and features of this institution. Of course such a *sui generis* system may take more than just a decade to build itself.

¹⁸² See explanatory note by the Assembly of States Parties, ICC-ASP/1/3 at 10.

¹⁸³ See Kress, in: Fischer *et al.* (eds.), *International and National Prosecution* (2001) at 352.

¹⁸⁴ See Rules 85 for the presentation of evidence and 90 for the testimony of witnesses; under Rule 90 (H) cross-examination is however limited to the subject-matter of the evidence-in-chief and matters affecting the credibility of the witness. Such rules won’t apply before the ICC.

¹⁸⁵ On this very debated issue and its development in the ad hoc tribunals and at the ICC, see Vasiliev (2009) 20 CLF 193–261.

¹⁸⁶ See Preparatory Committee on the Establishment of an International Criminal Court, Report of the Working Group on Procedural Matters, article 44 ‘Evidence’, Document A/AC.249/1997/WG.4/CRP.11/add.2, 11 December 1997, footnote 4.

For the moment, Trial Chambers have applied, unfortunately at the expense of a speedy trial, the model of a 'prosecution case' followed by a 'defence case'. As this is not a legal requirement and Trial Chambers have not been necessarily consistent in many issues related to the conduct of proceedings, one may wonder why they all have followed such a model.

One possible explanation was given by Trial Chamber V(A) which stated that the 'trial in this case has proceeded according to the general practice in the administration of international criminal justice, which involves an arrangement in which the defence presents its own case following the conclusion of the case for the prosecution'¹⁸⁷. If this is only a practice involving an arrangement, it could certainly be possible to change both the practice and the arrangement. The main question is, however, who is going to be the first one to change the practice.

This practice obviously delays proceedings for different reasons: the first one is that although Trial Chambers affirm that they have the power to intervene in the presentation of evidence by the parties, they in fact refrain from intervening and leave it to the parties to organize the way they want the presentation of their case 'unless there is a compelling reason to do so'¹⁸⁸. This lack of intervention by the bench is not very conducive for a speedy trial as parties tend to prolong the trials. It is unlikely that the length of trials at the ICC will diminish if judges do not become more involved in 'driving' the process instead of leaving it to the parties; this, however, requires an in-depth knowledge of the case before the start of the trial and therefore an in-depth study of all evidence to be presented by the parties.¹⁸⁹

A second reason explaining the length of trials due to the sequence 'prosecution case' and then 'defence case' results from the fact that the trial is suspended for several months between the end of prosecution case and the beginning of the defence case, in order for the defence to prepare.

A third reason is that the defence usually requests the same amount of time than the Prosecutor to present its case, although the defence does not bear the burden of proof. This is usually granted by the Trial Chamber for reasons of 'equality of arms' and to avoid criticism:

'The Chamber underlines that the defence does not bear the burden of proof and that it is for the prosecution to prove its case beyond reasonable doubt. However, given that the defence is best placed to know how to best shape its case and that the estimated time of its questioning does not exceed the time used by the prosecution, the Chamber considers that the time requested by the defence for the questioning of its witnesses is appropriate and reasonable'¹⁹⁰.

Although Trial Chambers have followed the sequence 'prosecution case' and then 'defence case', they had also to integrate in this presentation the evidence eventually called by the victims' legal representatives. 47

Trial Chambers V(A)¹⁹¹ and V(B)¹⁹² have decided that the victims' legal representatives should provide 'reasons for a separate presentation of evidence apart from the case presentation by the Prosecution'. In case leave would be granted, such presentation should be made 'at the end of the prosecution case', before the presentation of the defence evidence.¹⁹³ Trial

¹⁸⁷ *Prosecutor v. William Samoei Ruto and Joseph Arap Sang*, ICC-01/09-01/11-1334, Decision no. 5 on the Conduct of Trial Proceedings (Principles and Procedure on 'No Case to Answer' Motions'), Trial Chamber V(A), 3 June 2014, para. 17.

¹⁸⁸ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-2482-Red, Public redacted version of 'Decision on measures to facilitate the continued presentation of evidence by the defence', Trial Chamber III, 14 December 2012, para. 9.

¹⁸⁹ In the same vein Heinze, *International Criminal Procedure* (2014), 501–505, 514–515.

¹⁹⁰ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-2225, Decision on the 'Submissions on Defence Evidence', Trial Chamber III, 7 June 2012, para. 10.

¹⁹¹ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-847-Corr, Decision on the Conduct of Trial Proceedings (General Directions), Trial Chamber V(A), 9 August 2013, para. 21.

¹⁹² *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-867, Decision on the conduct of trial proceedings, Trial Chamber V(B), 2 December 2013, para. 26.

¹⁹³ This is also the sequence to call evidence provided for in rule 146(B) of the Rules of Procedure and Evidence for the Special Tribunal for Lebanon, see document STL-BD-2009-01-Rev.6-Corr. 1, adopted on 20 March 2009, last corrected on 3 April 2014.

Chamber III also decided that victims suggested to be called by the legal representatives should testify before the commencement of the presentation of the defence evidence¹⁹⁴. Trial Chamber II, in a very elaborated decision rendered by the Presiding Judge of the Trial Chamber and not by the full Chamber as was done by the other Trial Chambers, made a distinction between the possibility for victims' legal representatives to call the victims they represented to testify and the possibility to suggest other witnesses to be called by the Chamber¹⁹⁵. With regard to the victims wishing to testify, their legal representative was to file a written application to that effect before the end of the Prosecution case and those allowed to testify would do so at the end of the Prosecution case¹⁹⁶. Victims' legal representatives were not allowed to call other persons than the victims they represented to testify but could make suggestions to the Chamber as to call those other witnesses pursuant to its powers under articles 64 para. 6(d) and 69 para. 3 after the conclusion of the defence case. Trial Chamber II indeed reserved the possibility to call further witnesses at the end of the defence case, including those suggested by the victims' legal representatives¹⁹⁷.

- 48 With regard to the evidence to be called by the Chamber itself, in accordance with articles 64 para. 6(d) and 69 para. 3, Trial Chambers have either called this evidence at the end of the 'defence case' or before the 'prosecution case' as was explained above¹⁹⁸. As stated by Trial Chamber III, 'the Chamber may intervene at any given time, inter alia, to order the production of such new evidence that it considers necessary for the determination of the truth, in accordance with articles 64(6)(d) and 69(3) of the Statute'¹⁹⁹.

- 49 Several commentators have argued, unsuccessfully so far, that Trial Chambers at the ICC should follow a different model than the 'traditional prosecution case followed by the defence case' advocating for 'proactive judges'²⁰⁰. Indeed, it would be possible to have the evidence presented in a completely different fashion, following different topics, for example first, hearing evidence on the crimes, contextual elements and then underlying acts, and subsequently evidence on the criminal responsibility of the accused²⁰¹. It is interesting to note that the Extraordinary Chambers in the Courts of Cambodia have followed a topic approach for the *Duch* trial²⁰². So did Pre-Trial Chamber III in the Bemba case with regard to the organization of the hearing on the confirmation of the charges²⁰³.

It is to be hoped that one day Trial Chambers will use the freedom left to them by the Statute and the Rules in order to organize the trial in a different way. This could be an opportunity to test other models which could prove less time consuming than the model 'prosecution case' and then 'defence case', while fully respecting the rights of the accused, models which are used in many countries subject to the scrutiny of international human rights courts.

¹⁹⁴ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-1023, Decision on Directions for the Conduct of the proceedings, Trial Chamber III, 19 November 2010, para. 5.

¹⁹⁵ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-1665-Corr, Directions for the conduct of proceedings and testimony in accordance with rule 140, Trial Chamber II, 1 December 2009, see paras. 3 to 7 and paras 45 to 48.

¹⁹⁶ *Ibid.*, paras 24–25.

¹⁹⁷ *Ibid.*, paras 7, 43 and 45; Trial Chamber II however also called a witness at the beginning of the trial, before the witnesses called by the Prosecutor (see the developments for article 64 para. 6 (d)).

¹⁹⁸ See commentary for article 64 para. 6 (d) above.

¹⁹⁹ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-1023, Decision on Directions for the Conduct of the proceedings, Trial Chamber III, 19 November 2010, para. 5.

²⁰⁰ Heinsch, in: Stahn and Sluiter (eds), *International Criminal Court* (2009) 479, 487; Heinze, *International Criminal Procedure* (2014), 500–505.

²⁰¹ Gallmetzer, in: Stahn and Sluiter (eds), *International Criminal Court* (2009) 501, 506.

²⁰² Gibson and Rudy (2009) 7 *JICJ* 1007.

²⁰³ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-336, Decision on the schedule for the Confirmation of Charges Hearing, Pre-Trial Chamber III, 29 December 2008, see in particular para. 20.

IX. Paragraph 9

1. ‘Rule on the admissibility or relevance of evidence’

There was a footnote in the Report of the Working Group²⁰⁴ which stated that: ‘The Working Group draws the attention of the Drafting Committee to the fact that there may be some duplication of article 69 paragraph 4.’ Indeed, article 64 para. 9 duplicates article 69 para. 4, but because of the lack of time, nothing was reconsidered as usual; that was the price to pay to get a Statute in Rome.

Trial Chambers have generally affirmed that they had an ‘unqualified power to rule on the admissibility or relevance of evidence’²⁰⁵. This is certainly a power but not an obligation, since the Appeals Chamber has clearly stated that a Trial Chamber may decide not to rule on the admissibility of the evidence according to the criteria established in article 69 para. 4, but instead simply make ‘it part of its assessment of the evidence when it is evaluating the guilt or innocence of the accused person’ at the end of the proceedings before that Trial Chamber²⁰⁶. However, so far Trial Chambers have decided to follow a quite cumbersome process of evaluating the admissibility of each piece of evidence, whether presented by the Prosecutor, the defence or the legal representatives of the victims²⁰⁷. Trial Chambers follow a three-stage approach in order to determine the admissibility of evidence other than oral evidence: (a) first, the Trial Chamber determines whether the evidence in question is, *prima facie*, relevant to the trial, in that it relates to matters that are properly to be considered by the Trial Chamber in its investigation of the charges against the accused; (b) second, the Trial Chamber considers whether the evidence has, *prima facie*, probative value and (c) third, the Trial Chamber weighs the probative value of the evidence against its prejudicial effect. Due to the power given to Chambers to assess freely all evidence submitted to them in accordance with rule 63 para. 2 of the Rules, and the *prima facie* standard applied, this three-stage approach appears often as being very artificial and one wonders why Trial Chambers have imposed on themselves to issue such lengthy decisions on admissibility of evidence which are not necessary according to the Statute and the Rules, as reminded by the Appeals Chamber.

2. ‘Take all necessary steps to maintain order’

To that end, the Trial Chamber may order the removal of persons from the courtroom – including the accused (see article 63 para. 2) present before it – who commit misconduct, including disruption of the proceedings²⁰⁸. Sanctions for misconduct before the Court are provided for in article 71 which refers to the Rules for the measures to be taken and the procedures to be followed.

²⁰⁴ UN Doc. A/CONF.183/C.1/WGPM/L.2/Add.2.

²⁰⁵ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1084, Decision on the status before the Trial Chamber of the evidence heard by the Pre-Trial Chamber and the decision of the Pre-Trial Chamber in trial proceedings, and the manner in which evidence shall be submitted, Trial Chamber I, 13 December 2007, para. 4.

²⁰⁶ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-1386, Judgment on the appeals of Mr Jean-Pierre Bemba Gombo and the Prosecutor against the decision of Trial Chamber III entitled ‘Decision on the admission into evidence of materials contained in the prosecution’s list of evidence’, Appeals Chamber, 3 May 2011, para. 36.

²⁰⁷ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2589, Decision on the ‘Prosecution’s Second Application for Admission of Documents from the Bar Table Pursuant to article 64(9)’, Trial Chamber I, 21 October 2010, paras 27 and 28; ICC-01/04-01/06-2694-Corr, Corrigendum to Decision on the legal representative’s application for leave to tender evidence material from the ‘bar table’ and on the Prosecution’s Application for Admission of three documents from the Bar Table Pursuant to article 64(9), 9 March 2011, paras 10 to 12; see also *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-2793, Decision on the admission into evidence of items deferred in the Chamber’s ‘First Decision on the prosecution and the defence requests for the admission of evidence’ (ICC-01/05-01/08-2012), Trial Chamber III, 3 September 2013, para. 9; No. ICC-01/05-01/08-2950, Decision on Maître Douzima’s ‘Requête de la Représentante légale de victimes en vue de soumettre des documents en tant qu’éléments de preuve selon l’article 64(9) du Statut de Rome’, 29 January 2014, para. 7.

²⁰⁸ See also Rule 80 of the ICTY’s Rules.

To that effect, rule 170 provides that after a warning, the Presiding Judge of the Chamber may either order a person to leave or be removed from the courtroom, or in case of repeated misconduct, order the interdiction of that person from attending the proceedings. Rule 170 does not set a time limit for this interdiction and it seems that it may cover all proceedings before the Chamber making the order. As far as the accused is concerned, the removal can only be for such duration as is strictly required in accordance with article 63 para. 2 *in fine*. However, in accordance with rule 171, when the misconduct consists of deliberate refusal to comply with an oral or written direction by the Court, not covered by rule 170, and that direction is accompanied by a warning of sanctions in case of breach, the Presiding Judge of the Chamber dealing with the matter may order the interdiction of that person from the proceedings for a period not exceeding 30 days or impose a fine of 2000 euros maximum. The Appeals Chamber has suggested that such a procedure should be used against the Prosecutor, instead of imposing a stay of the proceedings²⁰⁹, when the Prosecutor refuses to comply with an order from the Chamber. A new fine may be imposed every day the misconduct continues and those fines are cumulative. In case the person committing misconduct is an official of the Court, a defence counsel or a legal representative of victims, the Presiding Judge may also order the interdiction of that person from exercising his or her functions for a period not exceeding 30 days. If the Presiding Judge considers that a longer period of interdiction is appropriate, he or she shall refer the matter to the Presidency, which may order a longer or permanent period of interdiction. As far as officials of the Court are concerned, this may then amount to a removal from office; however, as far as the Prosecutor and any Deputy prosecutor are concerned, removal from office may only be decided by the Assembly of States Parties in accordance with article 46 para. 2. It remains to be seen how the Presidency will proceed in case this occurs.

In all cases, the person concerned shall be given an opportunity to be heard before a sanction for misconduct is imposed.

X. Paragraph 10: ‘record of the trial’

52 That is very important in case of an appeal or in case of a request for revision under article 84.

Rule 137²¹⁰ provides that the Registrar shall take measures to make and preserve a full and accurate record of all proceedings including transcripts,²¹¹ audio- and video-recordings and other means of capturing sound or image.²¹² A record of closed proceedings shall also be made for its possible disclosure when the reasons for confidentiality no longer exist. Taking into consideration that there may be public interest in court proceedings, rule 137 sub-rule 3, provides that the Trial Chamber may authorize other persons than the Registrar to take photographs, audio- and video-recordings and other means of capturing the sound or image of the trial.

²⁰⁹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2582, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I of 8 July 2010 entitled ‘Decision on the Prosecution’s Urgent Request for Variation of the Time-Limit to Disclose the Identity of Intermediary 143 or Alternatively to Stay Proceedings Pending Further Consultations with the VWU’, Appeals Chamber, 8 October 2010, paras. 59–60. See generally Heinze, *International Criminal Procedure* (2014), 458–464.

²¹⁰ See also, for a similar rule, Rule 81 of the ICTY’s Rules.

²¹¹ See also regulation 27 of the Regulations of the Court on transcripts which shall constitute an integral part of the record of the proceedings.

²¹² See also regulation 21 of the Regulations of the Court on broadcasting, release of transcripts and recording.

Article 65

Proceedings on an admission of guilt

1. Where the accused makes an admission of guilt pursuant to article 64, paragraph 8 (a), the Trial Chamber shall determine whether:

- (a) The accused understands the nature and consequences of the admission of guilt;
- (b) The admission is voluntarily made by the accused after sufficient consultation with defence counsel; and
- (c) The admission of guilt is supported by the facts of the case that are contained in:
 - (i) The charges brought by the Prosecutor and admitted by the accused;
 - (ii) Any materials presented by the Prosecutor which supplement the charges and which the accused accepts; and
 - (iii) Any other evidence, such as the testimony of witnesses, presented by the Prosecutor or the accused.

2. Where the Trial Chamber is satisfied that the matters referred to in paragraph 1 are established, it shall consider the admission of guilt, together with any additional evidence presented, as establishing all the essential facts that are required to prove the crime to which the admission of guilt relates, and may convict the accused of that crime.

3. Where the Trial Chamber is not satisfied that the matters referred to in paragraph 1 are established, it shall consider the admission of guilt as not having been made, in which case it shall order that the trial be continued under the ordinary trial procedures provided by this Statute and may remit the case to another Trial Chamber.

4. Where the Trial Chamber is of the opinion that a more complete presentation of the facts of the case is required in the interests of justice, in particular the interests of victims, the Trial Chamber may:

- (a) Request the Prosecutor to present additional evidence, including the testimony of witnesses; or
- (b) Order that the trial be continued under the ordinary trial procedures provided in this Statute, in which case it shall consider the admission of guilt as not having been made and may remit the case to another Trial Chamber.

5. Any discussions between the Prosecutor and the defence regarding modification of the charges, the admission of guilt or the penalty to be imposed shall not be binding on the Court.

Literature: D'Aoust, J., 'The Conduct of Trials', in: J. Doria *et al.* (eds.), *The Legal Regime of the International Criminal Court* (Martinus Nijhoff Publishers 2009) 863; Behrens, H.-J., 'The Trial Proceedings', in: R.S. Lee (ed.), *The International Criminal Court* (Kluwer Law International 1999) 238; Bohlander, M., 'Plea-Bargaining before the ICTY', in: R. May *et al.* (eds.), *Essays on ICTY Procedure and Evidence in Honour of Gabrielle Kirk McDonald* (Kluwer Law International 2001) 151; Bosly, H.-D., 'Admission of Guilt before the ICC and in Continental Systems', (2004) 2 *JICJ* 1040; Burens, L., 'Plea Bargaining in International Criminal Tribunals. The end of truth-seeking in International Courts?', (2013) 7/8 *ZIS* 322; Calvo-Goller, K., *The Trial Proceedings of the International Criminal Court* (Martinus Nijhoff Publishers 2006); Combs, N.A., 'Copping a Plea to Genocide: the Plea Bargaining of International Crimes', (2002) 151 *UPaLRev* 1; Damaška, M., 'Evidentiary barriers to conviction and two models of criminal procedure: a comparative study', (1973) 121 *UPaLRev* 506; *id.*, 'Negotiated Justice in International Criminal Courts' (2004) 2 *JICJ* 1018; Del Ponte, C., 'Investigation and Prosecution of Large-scale Crimes at the International Level', (2006) 4 *JICJ* 539; Dixon, R. and Demirdjian, A., 'Advising Defendants about Guilty Pleas before International Courts', (2005) 3 *JICJ* 680; Friman, H., 'Inspiration from the International Criminal Tribunals When Developing Law on Evidence for the International Criminal Court', (2003) 2 *LAPE* 373; Langbein, L., 'Torture and plea bargaining', (1978) 46 *UCLR* 4; Orie, A., 'Accusatorial v. Inquisitorial Approach in International Criminal Proceedings prior to the Establishment of the ICC and in the Proceedings before the ICC', in: A. Cassese (ed.), *The Rome Statute of the International Criminal Court* (OUP 2002) 1477; Scharf, M.P., 'Trading Justice for Efficiency. Plea-Bargaining and International Tribunals', (2004) 2 *JICJ* 1070; Schünemann, B., *Absprachen im Strafverfahren? Gutachten B zum 58. Deutschen Juristentag* (C.H. Beck 1990); Terrier, F., 'The Procedure before the Trial Chamber', in: A. Cassese (ed.), *The Rome Statute of the International Criminal Court* (OUP 2002) 1277; Tieger, A. and Shin, M., 'Plea Agreements in the ICTY. Purpose,

Effects and Propriety’, (2005) 3 *JICJ* 666; Tochilovsky, V., ‘Rules of procedure for the International Criminal Court: problems to address in light of the experience of the ad hoc tribunals’, (1999) 46, 3 *NethILRev* 343.

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A. Introduction

- 1 The text of article 65 left Rome in virtually the same form that it had on arrival, as a result of early consensus reached at the Preparatory Committee. The agreement on the solution provided by the article 65 proceedings as an alternative to the classic guilty plea formula contained in article 38 para 1 (d) of the ILC Draft Statute can be considered a major breakthrough, at a time at which consensus – even on purely technical issues – seemed extremely difficult to obtain.¹ Article 65 is also an example of the constructive approach adopted by various delegations throughout the negotiation process, which were willing to explore new grounds and combine different legal traditions, instead of adhering to the basic principles and rules of their own domestic systems.
- 2 The ILC Draft Statute did not say much about the consequences of a plea of guilty entered at trial. Its article 38 para 1 (d), listing the powers of the Trial Chamber, included a power to call upon the accused to enter a plea of guilty or not guilty, or, if this did not happen, to enter a plea of not guilty on the accused’s behalf. The ILC Commentary stated, however, that the language in article 38 para 1 did not necessarily imply a summary end to the trial or an automatic conviction; rather it would be ‘a matter for the Chamber, subject to the Rules, to decide how to proceed ... In many cases it may be prudent to hear the whole case against the accused; in others, only the key witnesses may need to be called upon to give evidence, or the material before the Court combined with the confession will themselves be certain proof of guilt’. However, these options were not clearly spelled out in the Statute. The first proposals presented at the Preparatory Committee with the intention of complementing and improving the ILC provision followed the usual common law procedure for pleas of guilty: if a plea was entered, the case would not go to trial, and the proceedings would move directly to the sentencing stage.² This approach was openly rejected by many delegations coming from legal systems that do not allow an admission of guilt made by an accused to have such far-reaching consequences. Moreover, many delegations, particularly those coming from the civil law tradition, feared that the inclusion of such a provision would automatically lead to the practice of plea bargaining being imported into the context of the ICC.
- 3 A quick look at the state of the Preparatory Committee’s discussions by August 1996 is enough to capture the different positions assumed by delegations: a) ‘The view was expressed

¹ The first draft of the current text of art 65 is contained in ‘Working Paper submitted by Argentina’ (13 August 1996) UN Doc A/AC.249/L.6 p 14. It was followed by an amended Argentine/Canadian proposal; see ‘Report of the Preparatory Committee on the Establishment of an International Criminal Court’ (1996) UNGA, 51st Session Supp No 22, UN Doc A/51/22 vol II, as reproduced in Bassiouni (ed.), *International Criminal Court. Compilation of United Nations Documents and Draft ICC Statute before the Rome Conference, No Peace without Justice* (1998) 569.

² ‘Working Paper submitted by the delegations of Australia and the Netherlands’ UN Doc A/AC.249/L.2 Rule 74.

that the accused should be allowed to enter a plea of guilty, which would have the procedural effect of obviating the need for a lengthy costly trial: the accused would be allowed to admit his wrongdoing and accept the sentence; the victims and witnesses would be spared any additional suffering; and the Court would be allowed to take the guilty plea into account in sentencing the convicted person';³ b) '... the view was also expressed that ... the admission should not be the only evidence considered by the Court; the admission should not have any consequences for the trial procedures; the chamber had a duty to determine the guilt or innocence of the accused notwithstanding an admission; and a full trial was necessary given the seriousness of the crimes and the interests of the victims as well as the international community ...';⁴ c) 'Attention was drawn to the need to bridge the gap between different legal systems ... It was suggested that if the accused admitted the facts contained in the indictment, the trial chamber could decide to conduct an abbreviated proceeding to hear a summary of the evidence presented by the prosecution or to continue with the trial if the accused failed to reaffirm the admission or to accept the proceeding ... the trial chamber should determine whether the accused fully understood the nature and consequences of admission of guilt, whether the admission was made voluntarily without coercion or undue influence and whether the admission was supported by the facts contained in the indictment and a summary of the evidence presented by the prosecution before deciding whether to request additional evidence, to conduct an expedited proceeding or to proceed with the trial'.⁵ This last option had already been discussed as a possible bridge between different legal systems in a meeting of experts held at the Institute for Higher Studies in Criminal Sciences (Siracusa) in July 1996.

The discussion on the appropriate procedural consequences of an admission of guilt by an accused raised issues of basic principle, and reflected diverging conceptions of the nature of criminal procedure: 'If proceedings are patterned upon the model of an official determination of the facts of the case, both formal pleadings and stipulations are objectionable ... On the other hand, if proceedings are essentially a contest, and the judgement a decision between the contestants, the logic of this procedural design naturally tends toward accepting formal pleadings and stipulations'.⁶ Nevertheless, this clear-cut distinction between two different approaches to criminal procedure has been substantially eroded during the last decade. Many legal systems that, deeply rooted in the purest civil law tradition, refused to give any effect whatsoever to a plea or a stipulation between the parties have gradually moved towards recognizing significant procedural consequences to agreements or stipulations voluntarily made by the defendant with the prosecutor.⁷ On the other hand, critical voices have been raised in those systems in which negotiations about the charges or the penalty to be imposed are the rule, pointing out at the coercive character of a supposedly 'voluntary' settlement of a dispute between two parties.⁸

Undoubtedly, the most controversial issue remains the one of 'plea bargaining'. The arguments offered against this practice include the arguable erosion of the fact-finding mission of the criminal procedure (including the formation of an historical record), since the presentation of evidence by both parties in a public trial arguably entails a more reliable as well as complete and detailed historical record than a guilty plea.⁹ In addition, if a charge

³ 'Report of the Preparatory Committee', see note 1, vol I 56 para 261.

⁴ *Ibid.* para 262.

⁵ *Ibid.* para 263.

⁶ Damaška (1973) 121 *UPaLRev* 506, 582.

⁷ Probably the best examples are provided by the Italian Code of Criminal Procedure (1989), which includes, under the heading 'special forms of procedure', a summary trial (*giudizio abbreviato*), the agreement between the parties as to the penalty to be imposed (*patteggiamento sulla poena*), the direct trial (*giudizio direttissimo*) and other summary proceedings. See a critic to these tendencies in Europe in Schünemann, *Absprachen im Strafverfahren? Gutachten B zum 58. Deutschen Juristentag* (1990).

⁸ Langbein (1978) 46 *UCLRev* 4, 12 *et seq.* See further Ashworth, *The Criminal Process: An Evaluative Study* (1998) ch 9; Combs (2002) 151 *UPaLRev* 1, 14 n 13.

⁹ See *Prosecutor v. Momir Nikolić*, IT-02-60/1-S, Sentencing Judgement, Section A, ICTY Trial Chamber I, 2 December 2003, para 61. See also Damaška (2004) 2 *JICJ* 1018, 1031 *et seq.*

bargaining has taken place, ‘the public will not know whether the allegations were withdrawn because of insufficient evidence or because they were simply a “bargaining chip” in the negotiation process’.¹⁰ However, it has also been argued that plea bargaining might be more effective in contributing to the general acceptance of the historical record by expanding the base of criminal cases that have been adjudicated.¹¹

- 6 It has also been argued that guilty pleas are a more sensitive matter with regard to international crimes because of the vagueness of many international crimes. There is still much uncertainty as to the legal prerequisites of international crimes.¹² As M. Damaška has stated, ‘the more uncertain the legal elements of criminal responsibility, the more inappropriate it is to ask defendants to take a stand on them’.¹³
- 7 With regard to victims, it is an undecided question whether a guilty plea is preferable to a full trial. On the one hand, guilty pleas spare some victims the stress of giving, quite often more than once, evidence and being exposed to cross-examination.¹⁴ On the other hand, many victims want to have their voices heard in a public trial,¹⁵ which may help them to overcome mental harm inflicted on them by the accused.
- 8 An argument in favour of plea agreements is that the testimony of the accused as an insider witness can lead to the conviction of other, higher ranking accused.¹⁶ But perhaps the most powerful argument for the promotion of plea bargains is that a guilty plea saves time and resources.¹⁷ This advantage is of even higher importance in international than in national criminal proceedings, since international criminal proceedings are innately very time-consuming. This is due to the complexity of international crimes with elements that are hard to prove,¹⁸ like the ‘chapeau element’ of crimes against humanity (existence of a widespread or systematic attack against a civilian population). Besides, international criminal courts face unique difficulties such as the need for translations into various languages of documents, transportation of victims and witnesses, location of evidence in far-away countries and the protection of victims and witnesses.¹⁹ Thus, a guilty plea before the commencement of the trial can be an effective means of speeding proceedings and saving resources.²⁰ However, the ICTY itself has stressed that such advantage must not compromise

¹⁰ *Nikolić* (Trial Chamber Judgement), see note 9, para 63. See further *ibid.* 65: ‘Once a charge of genocide has been confirmed, it should not simply be bargained away. If the Prosecutor makes a plea agreement such that the totality of an individual’s criminal conduct is not reflected or the remaining charges do not sufficiently reflect the gravity of the offences committed by the accused, questions will inevitably arise as to whether justice is in fact being done.’

¹¹ See Scharf (2004) 2 *JICJ* 1070, 1079. In the opinion of Tieger and Shin (2005) 3 *JICJ* 666, 671 ‘plea agreements can ... make up in breadth what they may lack in depth’, resulting ‘in a greater number of completed cases and, therefore, more additions to the historical record’. It must be noted, however, that this argument may resonate more in the context of the ICTY and ICTR, both under pressure to complete the totality of its cases within a confined time-line (the so-called ‘exit strategy’), than in the context of the ICC, which is a permanent institution.

¹² Damaška (2004) 2 *JICJ* 1018, 1033.

¹³ *Ibid.*

¹⁴ This positive aspect of guilty pleas is stressed in many decisions of the ICTY; see, eg, *Prosecutor v. Milan Simić*, IT-95-9/2-S, Sentencing Judgement, Trial Chamber II, 17 October 2002, para 84; *Prosecutor v. Predrag Banović*, IT-02-65/1-S, Sentencing Judgement, Trial Chamber II, 28 October 2003, para 68; *Prosecutor v. Miroslav Deronjić*, IT-02-61-S, Sentencing Judgement, Trial Chamber II, 30 March 2004, para 241.

¹⁵ *Nikolić* (Trial Chamber Judgement), see note 9, para 62; Bohlander, in: May *et al.* (eds.), *Essays on ICTY Procedure and Evidence in Honour of Gabrielle Kirk McDonald* (2001) 151, 162.

¹⁶ *Nikolić* (Trial Chamber Judgement), see note 9, para 71. The importance of insider witnesses for the prosecution of international crimes is emphasized by Del Ponte (2006) 4 *JICJ* 539, 546 *et seq.*

¹⁷ In the opinion of Damaška (2004) 2 *JICJ* 1018, 1030 this argument is ‘the only persuasive justification for negotiated justice’.

¹⁸ Scharf (2004) 2 *JICJ* 1070, 1077; Tieger and Shin (2005) 3 *JICJ* 666, 668 *et seq.*

¹⁹ See *Prosecutor v. Dražen Erdemović*, IT-96-22-A, Separate and Dissenting Opinion of Judge A. Cassese, 7 October 1997, para 8.

²⁰ See *Simić* (Trial Chamber II Judgement), see note 14, para 84; *Banović* (Trial Chamber II Judgement), see note 14, para 68; *Prosecutor v. Ranko Česić*, IT-95-10/1-S, Sentencing Judgement, Trial Chamber I, 11 March 2004, para 59; *Prosecutor v. Dražen Erdemović*, IT-96-22-Tbis, Sentencing Judgement, Trial Chamber, 5 March

‘the quality of the justice and the fulfilment of the mandate of the Tribunal ... Thus, while savings of time and resources may be a result of guilty pleas, this consideration should not be the main *reason* for promoting guilty pleas through plea agreements’.²¹

In light of the foregoing, the wisdom of the finding included in the ICTY *Nikolić* judgement appears to be beyond dispute: ‘the use of plea agreements should proceed with caution and such agreements should be used only when doing so would satisfy the interests of justice’.²²

The solution adopted in article 65 follows such a cautious approach in adopting a third avenue between the classic ‘common law’ and ‘civil law’ approaches. The model enshrined in the provision has parallels both with the civil law concept of summary or abbreviated procedure, and with the common law rules relating to guilty pleas. The decision to have specific provisions in the Statute dealing with an admission of guilt by an accused, and conferring significant powers of control on the Trial Chamber, was not only the result of a need for consensus, but also of a general perception that, due to the international character of the Court, the gravity and seriousness of the crimes involved, and the diversity of legal backgrounds and traditions that the future judges of the Court would reflect, a clear and precise regulation was indeed required. The problems arising from a defective guilty plea in the ICTY *Erdemović* case, in which the Appeals Chamber found that the suspect had not been sufficiently informed about the guilty plea,²³ and that consequently the agreement was invalid, is a concrete example of the concerns that led to the current text of article 65.

It must be noted that after the *Erdemović* Appeals Chamber decision, the judges of the ICTY amended their Rules in a fashion similar to the language of the ICC Statute.²⁴ Rule 62*bis* establishes a specific procedure for the case of a plea of guilt, instructing the Trial Chamber to determine whether the plea has been made voluntarily, it is not equivocal and whether ‘there is a sufficient factual basis for the crime and the accused’s participation in it, either on the basis of independent indicia or of lack of any material disagreement between the parties about the facts of the case’.²⁵ A few years after the introduction of rule 62*bis*, rule 62*ter*, dealing with the procedure applicable to plea agreements, was adopted.²⁶ Pursuant to sub-rule (A), the parties may agree that the Prosecutor shall apply to the Trial Chamber to amend the indictment according to the plea agreement, recommend a specific sentence or sentencing range or not oppose a request by the accused for a specific sentence or sentencing range. Whereas these obligations of the Prosecutor indicate that the Prosecutor is bound by a plea agreement,²⁷ sub-rule (B) explicitly stipulates that a plea agreement has no binding effect on the Trial Chamber. According to sub-rule (C), in general, the plea agreement must be disclosed in open session.²⁸

Since the first guilty plea in the *Erdemović* case, the number of guilty pleas before the ICTY had significantly increased. In its Twelfth Annual Report to the General Assembly and the Security Council the ICTY reported that until 31 July 2005 39 persons had been convicted or acquitted after trial and additional 18 persons had been convicted after pleading guilty,

1998, p. 16. See also ‘Tenth Report of the International Tribunal for the Prosecution of Persons responsible for Serious Violations of International Humanitarian Law Committed in the Territory of the Former Yugoslavia since 1991’ UN Doc A/58/279–S/2003/829 para 230 stating that ‘guilty pleas at an early stage save valuable court time because the plea enables the Trial Chamber to avoid the need to conduct a trial. Furthermore, in most instances, appeals do not result from the guilty plea process, thereby saving more court time’.

²¹ *Nikolić* (Trial Chamber Judgement), see note 9, para 67.

²² *Nikolić* (Trial Chamber Judgement), see note 9, para 73.

²³ *Prosecutor v. Dražen Erdemović*, IT-96-22-A, Joint Separate Opinion of Judge McDonald and Judge Vohrah, 7 October 1997, paras 14–27.

²⁴ R 62 (ii) only provided that the Trial Chamber should ‘call upon the accused to enter a plea of guilty or not guilty on each count; should the accused fail to do so, enter a plea of not guilty on his behalf’ and ‘in case of a plea of guilty, instruct the Registrar to set a date for the pre-sentencing hearing’, subpara (v).

²⁵ This rule was adopted at the fourteenth plenary session of the ICTY on 12 November 1997.

²⁶ At the twenty-fifth plenary session of the ICTY (12–13 December 2001).

²⁷ Jones and Powles, *International Criminal Practice* (2003) 642 leave this issue open.

²⁸ Only on a showing of good cause the disclosure may happen in closed session.

including such prominent accused as Biljana Plavsic, the former co-president of the Serb leadership.²⁹ However, in the last years, guilty pleas were less frequent.³⁰ In the great majority of cases a negotiation pertaining to the charges took place: the accused pleaded guilty to one or more charges and the Prosecutor dismissed the remaining counts against the accused.³¹ Only in very few cases the accused pleaded guilty to all charges against him, the Prosecutor offering, in exchange, to recommend to the Trial Chamber a sentence within a given range.³² Most accused accepted to become 'insider witnesses', ie they agreed to co-operate with the Office of the Prosecutor, in particular to give a full and complete interview concerning their knowledge of crimes and to testify in future proceedings before the Tribunal, especially against former co-accused.³³ Usually, the accused waives his or her right to appeal the sentence unless it is above the range agreed upon and recommended to the Trial Chamber by the parties. Although the ICTY judges are not bound by the plea agreement, in the majority of cases the sentence falls within the range agreed by the parties.³⁴ Thus, a guilty plea, in almost all cases, leads to a substantial reduction of sentence compared with a conviction of an accused pleading not guilty.³⁵

- 13 Before the ICTR,³⁶ guilty pleas have never reached the same importance as before the ICTY.³⁷ No admission of guilt has been yet made by a suspect before the ICC, and therefore the procedure envisioned by article 65 remains unused.

²⁹ See 'Annex III to the Twelfth Annual Report of the International Tribunal for the Prosecution of Persons responsible for Serious Violations of International Humanitarian Law Committed in the Territory of the Former Yugoslavia since 1991' UN Doc A/60/267-S/2005/532.

³⁰ Only two more guilty pleas; thus, the number of trials concluded per guilty plea is now 20; <www.icty.org/sid/203> accessed 19 May 2015.

³¹ See the critical review of this development by Scharf (2004) 2 *JICJ* 1070, 1070 *et seq.*

³² See Plea Agreement in the case *Prosecutor v. Ranko Cesić*, IT-95-10/1-PT. In the *Jelisić* trial, the accused pleaded guilty to all charges relating to crimes against humanity and violations of the laws and customs of war, but not to the remaining count of genocide which the Prosecution did not withdraw. The Trial Chamber acquitted Jelisić of this count, because it considered that the mens rea for the crime of genocide had not been proven; *Décision orale*, No. IT-95-10, 19 October 1999.

³³ See, eg, *Nikolić* (Trial Chamber Judgement), see note 9, para 17. For an exception see Milan Simić, who even denied the plea agreement to be used against his former co-accused; *Simić* (Trial Chamber II Judgement), see note 14, para 89.

³⁴ For exceptions to this rule, see *Nikolić* (Trial Chamber Judgement), see note 9. The Prosecutor recommended a sentence within the range of 15 to 20 years, the Defence a sentence to not more than 10 years imprisonment. The Trial Chamber imposed a sentence of 27 years, because in its opinion a lower sentence would not have reflected 'the totality of the criminal conduct for which Momir Nikolić has been convicted'; para 180. However, the Appeals Chamber reduced the sentence to 20 years of imprisonment, because the Trial Chamber *inter alia* had erred in double-counting the accused's role in the crime; *Prosecutor v. Vidoje Blagojević et al.*, IT-02-60/1-A, Judgement on Sentencing Appeal, Appeals Chamber, 8 March 2006. Milan Babić was sentenced to 13 years imprisonment, whereas the Prosecution recommended a sentence not exceeding 11 years; *Prosecutor v. Milan Babić*, IT-03-72-A, Judgement on Sentencing Appeal, Appeals Chamber, 18 July 2005. Dragan Nikolić was finally sentenced to 20 years of imprisonment, the Prosecution recommending only 15 years; *Prosecutor v. Dragan Nikolić*, IT-94-2-A, Judgement on Sentencing Appeal, Appeals Chamber, 4 February 2005.

³⁵ According to Dixon and Demirdjian (2005) 3 *JICJ* 680, 681, 'the average sentence for an accused having pleaded guilty before the ICTY is approximately 11 years of imprisonment, whereas the average for cases that go to trial is approximately 17 years of imprisonment'. As Scharf has pointed out, sentence bargaining does not violate the treaty-based duty to prosecute and impose effective sentences in a technical sense, since the international criminal courts are not bound by the Geneva Conventions and the other treaties; (2004) 2 *JICJ* 1070, 1074 *et seq.*

³⁶ The ICTR has adopted nearly identical rules as the ICTY in r 62 sub-r B and r 62bis of its Rules of Procedure and Evidence. For similar provisions see sec 29 (A) of Reg 2000/30 of the East Timor Special Panel for Serious Crimes; Rules 61 and 62 of the Rules of Procedure and Evidence of the Special Court for Sierra Leone.

³⁷ For details, see the second edition of this Commentary mn 13. As Schabas has pointed out the fact that 'the first person to admit guilt was then sentenced to a term of life imprisonment for genocide' could be the main reason for the minor importance of guilty pleas before the ICTR; Schabas, *ICC Commentary* (2010) 778. For other reasons see Burens (2013) 7/8 *ZIS* 322, 328.

B. Analysis and interpretation of elements

I. Paragraph 1: Valid admission of guilt

Article 64 para 8 (a) of the Statute affords the accused an opportunity to plead not guilty 14 or – instead of entering a ‘guilty plea’, which would be the natural opposite in a number of jurisdictions –,³⁸ to make an ‘admission of guilt’, a hybrid between the common law ‘plea of guilty’ and the civil law formula ‘admission of the facts’ (a prerequisite in some jurisdictions for the applicability of abbreviated or summary proceedings).³⁹ The difference between the two concepts is not a substantial one, since a guilty plea is essentially ‘an accused person’s formal admission in court of having committed the charged offense’.⁴⁰ Nonetheless, the adoption of this language underlines that there is a difference between the procedure under this provision and a common law-style guilty plea, in particular, in that an admission of guilt under this provision is not binding on the Court and does not allow the Trial Chamber to move automatically to the sentencing stage.

The Statute envisions that an admission of guilt takes place at the very beginning of the 15 trial: After the charges have been read and the Trial Chamber has satisfied itself that the accused understands the nature of the charges, the accused faces a choice to make an admission of guilt or to plead not guilty.⁴¹ If the accused admits his or her guilt, the Trial Chamber has to examine whether the prerequisites of paragraph 1 are met. In so doing, the Trial Chamber serves as ‘guarantor of the fairness of the proceedings and protector of the rights of the accused’.⁴²

Although the Statute is based on the concept that an admission of guilt takes place at the 16 commencement of the trial, nothing hinders the accused to make an admission of guilt at a later stage of proceedings,⁴³ thus enabling the Trial Chamber to consider moving to the abbreviated procedure under article 65 para 2 or para 4 (a). If the accused wishes to make an admission of guilt *before* his case reaches the Trial Chamber, however, the procedure appears to be less simple: since under the Statute Pre-Trial Chambers appear to lack jurisdiction to entertain an admission of guilt,⁴⁴ proceedings would have to necessarily move forward – probably in an expeditious fashion, to the extent that the charges brought under article 61 of the Statute can be seen as uncontested – and reach the Trial Chamber, which then, if the admission of guilt is maintained or renewed by the accused, will proceed to make its own determination under article 65.

³⁸ This term is used in the Rules of Procedure and Evidence of the ICTY, ICTR and the Special Court for Sierra Leone. East Timor Regulation 2000/30 has adopted the same wording as the Rome Statute.

³⁹ See Model Code of Criminal Procedure for Latin America, art 371, Spanish Law for Abbreviated Procedure from 28 December 1988, arts 790 *et seq.*, Code of Criminal Procedure of Guatemala, art 464, Code of Criminal Procedure of Paraguay, art 420, Federal Code of Criminal Procedure of Argentina, art 431*bis*. All these provisions refer to an admission of, or conformity about, the facts as described in the charges brought by the Prosecution. However, it must be noted, that in many civil law countries the term ‘confession’ is used for an admission of facts by the suspect. See, eg, Austrian Code of Criminal Procedure, § 164 (4); German Code of Criminal Procedure, § 254.

⁴⁰ Garner (ed.), *Black’s Law Dictionary* (2009) 1268.

⁴¹ Art 64 para 8 (a).

⁴² Cf. *Nikolić* (Trial Chamber Judgement), see note 9, para 49.

⁴³ Concurring Safferling, *International Criminal Procedure* (2012) 444; Schabas, *The International Criminal Court. A Commentary on the Rome Statute* (2010) 777. - Before the ICTY, some accused changed their plea in the middle of trial; Milan Simić pleaded guilty in day 83 of the Prosecution presenting its evidence, when four of the five witnesses to testify against the accused had already been heard. Despite the lateness of the plea, the Trial Chamber gave him ‘some credit for entering a plea of guilty’, because the guilty plea spared the expense for medical facilities the accused needed; *Simić* (Trial Chamber II Judgement), see note 14, paras 85 *et seq.*

⁴⁴ The applicable procedure is enshrined in arts 64 and 65, both only applicable to the Trial Chamber. Further, whereas under art 61 para 11 a Trial Chamber may exercise any function of the Pre-Trial Chamber which can be meaningfully transposed to the former’s own proceedings, the converse is not true: no provision of the Statute empowers Pre-Trial Chambers to exercise functions allocated to Trial Chambers.

- 17 As clearly expressed by article 65 para 1 (b), the admission of guilt has to be made by the accused personally in order to allow the application of the abbreviated proceedings. The personal nature and importance of the rights waived so require and exclude the possibility of an admission presented by defence counsel or by any means other than the personal appearance of the accused before the Trial Chamber.⁴⁵ This is also a logical consequence of the supervisory powers of the Trial Chamber over the admission of guilt, since only through a communicative process with the accused can the Chamber satisfy itself that the accused is fully informed and the admission voluntarily made. Since an admission of guilt may directly lead to the conviction of the accused according to paragraph 2, the Trial Chamber should examine the admission and any plea agreement in an open hearing to avoid any doubts on the voluntariness of the admission of guilt or on the fairness of the proceedings.⁴⁶
- 18 Probably in most cases, an admission of guilt will be based on a plea agreement between the Prosecutor and the accused.⁴⁷ However, such an agreement is not necessary. The accused may make an admission of guilt even without the participation of the Prosecutor. Before the ICTY, plea agreements have been presented to the Trial Chamber in writing and the hearing focuses on the basis of the agreement, together with any supporting material attached to it. The Chamber must make a comprehensive consideration of the admission of guilt and pursuant to rule 139 sub-rule 2, must then give reasons for each decision, which shall be placed on the record.

It is important to keep in mind that while article 65 allows a Trial Chamber to by-pass the full trial and follow the abbreviated procedure foreseen in the provision, there is no equivalent authority conferred on Pre-Trial Chambers. Thus, even in a case where the person named in an arrest warrant or a summons to appear has made clear his or her intentions to admit guilt, a Pre-Trial Chamber must still follow a full confirmation process. Of course, to the extent that the charges brought by the Prosecution are uncontested, this will undoubtedly shorten proceedings.

1. Understanding of nature and consequences

- 19 This is a fundamental requirement, borrowed by the framers from the principles in common law systems governing the plea procedure: ‘What is at stake for an accused facing ... imprisonment demands the utmost solicitude of which courts are capable in canvassing the matter with the accused to make sure he has a full understanding of what the plea connotes and of its consequence’,⁴⁸ To understand ‘the nature⁴⁹ and consequences of an admission of guilt’, an accused must be properly informed about: a) the nature of the charges brought against him or her, including the elements and legal requirements of the crimes included therein;⁵⁰ b) the rights waived by the admission of guilt, and the consequences of such a waiver.⁵¹
- 20 With regard to the requirement under a) the accused has to understand the distinction between alternative charges, if these have been brought by the Prosecution, including which

⁴⁵ See Italian Corte di Cassazione, sez VI 26 maggio 1993 n 5300. Concurring Terrier, in: Cassese (ed.), *The Rome Statute of the International Criminal Court* (2002) 1277, 1287.

⁴⁶ The Rules of Procedure and Evidence fail to regulate this issue. The ICTY Rules are more elaborate in this respect: R 62ter sub-r (c) stipulates that, in principle, a plea agreement has to be disclosed in open session, unless on a showing of good cause.

⁴⁷ For plea agreements see further below mn 40 *et seq.*

⁴⁸ *Boykin v. Alabama*, 396 US 238; 89 S Ct 1709, 23 L Ed 2 d 274 (1969).

⁴⁹ The particular dimension of the crimes within the jurisdiction of the Court may create particular problems as to this requirement. A clear example is provided by the ICTY case *Prosecutor v. Dragoljub Kunarac*, IT-96-23-I, in which the accused’s guilty plea of one count was deemed not to have been entered: whereas the accused acknowledged his guilt for some of the facts contained in the indictment, notably rape, the Trial Chamber determined that he did not understand the nature and implications of the charges brought by the Prosecutor (crimes against humanity and war crimes) for those facts.

⁵⁰ US Federal Rules of Criminal Procedure, R 11 (c). Joint Separate Opinion of Judge McDonald and Judge Vohrah in *Erdemović*, see note 23, paras. 17–27.

⁵¹ Joint Separate Opinion of Judge McDonald and Judge Vohrah in *Erdemović*, see note 23, para 15.

charge contains a more serious offence and can lead to a heavier penalty.⁵² If the accused lacks the intellectual capacity for understanding the nature of the charges,⁵³ his or her admission of guilt is invalid and the Trial Chamber has to proceed under paragraph 3. The Trial Chamber may also examine whether the legal characterization of the admitted facts is correct. If in its opinion the parties erred in this respect, the Chamber should inform the parties and give them the opportunity to enter a new plea agreement.⁵⁴ If the legal qualification of the facts is doubtful and needs clarification by a Court or if the legal elements of criminal responsibility are uncertain, the Chamber should reject the admission of guilt altogether and proceed under paragraph 3.⁵⁵

With regard to the applicable penalty in the case of a conviction some systems demand 21 that the court inform the defendant about the minimum and maximum penalties that can be imposed, including issues related to parole or supervised term.⁵⁶ Should the Trial Chamber of the ICC provide the accused person with similar information? The Statute does not provide for minimum penalties (article 77), but includes maximum penalties⁵⁷ which should be explained to the accused, as well as the accessory or additional consequences or sanctions set forth in article 77 para 2. The same applies to the criteria set forth in article 78 for the purposes of determining the sentence and the principles governing reduction of sentence by the Court pursuant to article 110 and rule 223. In particular, the Chamber has to satisfy itself that the accused understands that sentence is ultimately a matter for the Trial Chamber to determine, irrespective of the sentence proposed by the Prosecutor or the defence. Only if all this information is provided to an accused person, will he or she be in a position to understand fully the possible and probable consequences of the admission of guilt.

A further issue is linked to the waiver of rights contained in the admission of guilt. An 22 accused who makes an admission of guilt is waiving, at very least, his or her right to a full public hearing, article 67 para 1, to remain silent, article 67 para 1 (g), to be present at trial and to conduct his or her own defence, article 67 para 1 (d), to cross-examine witnesses, to raise defences and to present other evidence, article 67 para 1 (e). In addition, an admission of guilt also implies a waiver of the procedural right to obtain a separate hearing for the purposes of sentencing, where additional evidence or submissions relevant to the sentence may be heard, article 76 para 2. This, however, should not be read as a preclusion of the rights of an accused to present evidence or make submissions related to the penalty to be imposed. On the contrary, since the Trial Chamber, in the case of the proceedings under article 65, is entirely free to determine the appropriate sentence,⁵⁸ it would be inadmissible to deprive an accused person of the fundamental right to seek a specific sentence by means of arguing on the existing evidence or by presenting additional evidence. The rationale underpinning the language of article 76 para 2⁵⁹ is that, since an admission of guilt has been made,

⁵² Joint Separate Opinion of Judge McDonald and Judge Vohrah in *Erdemović*, see note 23, para 19.

⁵³ In this respect, Rule 135 empowers the Trial Chamber to order that the accused be given a psychological or psychiatric examination.

⁵⁴ E.g., in *Babić* the Trial Chamber of the ICTY expressed doubts about the legal characterization of the facts as aiding and abetting to the joint criminal enterprise. In the new plea agreement, Babić pleaded guilty as a coperpetrator of the joint criminal enterprise; *Prosecutor v. Milan Babić*, IT-03-72, Further Initial Appearance, Trial Chamber I, 27 January 2004, pp. 29 *et seq.*

⁵⁵ This situation has to be distinguished from a mere uncertainty of the defence concerning legal issues. The Trial Chamber should try to clarify the issue, if in its view the legal qualification is clear. Cf. *Prosecutor v. Ranko Česić*, IT-05-10/1-S, Motion Hearing, Trial Chamber, 8 October 2003, pp. 81 *et seq.* where the defence hesitated to follow the Prosecution in considering the forcing of two men to perform fellatio on each other as rape.

⁵⁶ US Federal Rules, R 11 (c) (1); German Code of Criminal Procedure, § 257c (3).

⁵⁷ 30 years of imprisonment or, in the case of extreme gravity of the crime and undefined individual circumstances of the convicted person, life imprisonment, art 77 para 1 (a) and (b).

⁵⁸ Art 65 does not contemplate any possibility of agreements binding on the Court as to the penalty to be imposed. This issue will be further discussed below mn 40 *et seq.*

⁵⁹ '[e]xcept where article 65 applies ... the Trial Chamber ... shall, at the request of the Prosecutor or the accused, hold a further hearing ...'.

there is no danger in a common evaluation of the evidence relevant to the conviction and to the sentence; accordingly, there is no need for a separate pre-sentencing hearing.

- 23 Before the ICTY, plea agreements usually contain the waiver of the accused's right to appeal: the accused 'agrees that he will not appeal the sentence imposed by the Trial Chamber unless the sentence imposed is above the range recommended by the Prosecution'.⁶⁰ The Statute and Rules are silent on these issues, so it is open to the Chambers of the Court to accept or reject waivers of this nature.⁶¹
- 24 In contrast to the ICTY Rules, the Rome Statute does not explicitly provide that the admission of guilt is unequivocal. But this requirement is implicitly included in article 65 para 1 (a), according to which the accused must understand the nature and consequences of the admission of guilt. If, for instance, the accused raises any defences, thereby admitting certain facts, but not his or her guilt, it cannot be held that he fully understood the nature of an admission of guilt.⁶² In this case the Chamber should explore this question thoroughly and eventually hold the admission of guilt as not having been made and proceed according to paragraph 3.⁶³

2. Voluntary admission after consultation with counsel

- 25 In order to be accepted by the Trial Chamber, the admission of guilt needs to be made voluntarily after sufficient consultation with defence counsel.⁶⁴ The Trial Chamber must satisfy itself that the admission of guilt is free from any form of threat, coercion⁶⁵ or duress, and even from any sort of improper promise made to the accused person with the aim of inducing the acknowledgement of criminal responsibility.⁶⁶ A finding that any of these prohibited methods have been used will render the admission of guilt null and void, and will require the case to be sent to trial in the ordinary way, pursuant to paragraph 3 of article 65. There is a clear parallel between these requirements and those governing the questioning of a 'suspect' or an accused, according to articles 55 paras. 1 (a) and 2, and 67 para 1 (g) of the Statute, since in both cases the privilege against self-incrimination (*nemo tenetur se ipsum accusare*) is the crucial principle at stake.⁶⁷ The Trial Chamber has a duty to inquire about the voluntariness of the decision reached by the accused in order to satisfy itself as to whether that particular requirement has been met. Any doubt by the Trial Chamber in this respect should lead to a rejection of the admission of guilt.

3. Supporting facts

- 26 This is a fundamental requirement of the abbreviated proceedings under article 65: the mere admission of criminal responsibility not substantiated by the facts of the case cannot lead to a decision of the Court through the summary procedure set forth in this provision.⁶⁸

⁶⁰ For many plea agreements of that kind, see only Plea Agreement between the Prosecutor and Ranko Česić; *Prosecutor v. Ranko Česić*, IT-95-10/1-PT, Plea Agreement.

⁶¹ Cf. the decision on the admissibility of plea agreements of the German Bundesgerichtshof from 3 March 2005, GSSt 1/04 [2005] NJW 1440, 1444 *et seq.* – Actually, neither the Statute nor the Rules regulate whether, in general, a waiver of the accused's right to appeal is admissible before the ICC.

⁶² Cf. *Erdemović* before the ICTY, see note 23, paras 28 *et seq.* However, the accused may raise mitigating circumstances which are not intended as a defence; Cf. *Banović* (Trial Chamber II Judgement), see note 14, para 17.

⁶³ Another kind of an equivocal guilty plea appeared in the Kunarac case before the ICTY, where the accused did not clearly express whether he wanted to plead guilty or not; Third Hearing of the adjourned Initial Appearance of the Accused; *Prosecutor v. Dragoljub Kunarac*, IT-96-23-I, 13 March 1998, 34 *et seq.*

⁶⁴ Consultation with defence counsel is to classify as a mandatory requirement. Anyhow, in practice, a scenario that a self-represented accused wants to admit guilt would seem unlikely; Schabas, *ICC Commentary* (2010) 778.

⁶⁵ As Terrier, in: Cassese (ed.), *The Rome Statute of the International Criminal Court* (2002) 1277, 1287 has pointed out, such a pressure can even arise from third parties who want to impede a public hearing of facts.

⁶⁶ *US v. Pollard*; 959 F 2 d 1011 (D.C. Cir. 1992).

⁶⁷ *Brady v. US*; 397 US 742 (1970).

⁶⁸ This is clarified by the word 'and' in subpara (c) (ii).

How far must the Trial Chamber dig into the factual basis of the admission of guilt in order to be satisfied that it is ‘supported by the facts of the case’? It has been pointed out that in some jurisdictions, courts may approach the issue in different ways: some would be satisfied with a ‘notice-factual-basis procedure’, ie, inform the defendants about the factual shortcomings of their admission or plea, but allow that the plea be entered despite these defects. The clear language of article 65 rules out this possibility: rather, the Trial Chamber is bound to embark on a ‘trial-factual basis-procedure’, and ensure that sufficient facts be shown ‘to warrant a conviction if the defendant were to stand trial’.⁶⁹ In this respect, the Statute is stricter than the Rules of the ICTY and ICTR according to which the mere ‘lack of any material disagreement between the parties about the facts of the case’ may constitute sufficient facts for the crime and the accused’s participation in it.⁷⁰

Article 65 para 1 (c) obliges the Trial Chamber to examine the materials presented by the Prosecutor and other evidence, including testimony of witnesses, presented by the parties. A clear differentiation between these two groups of evidence is essential, since materials presented by the Prosecutor must be accepted by the accused, whereas ‘any other evidence’ may be presented by each party without the approval of the other party.

It must be noticed that the language in article 65 para 1 (c) (ii), according to which the materials presented by the Prosecutor must ‘supplement’ the charges, differs from other provisions which refer to ‘supporting’ material.⁷¹ Despite this linguistic discrepancy, it is to presume that the drafters meant to refer to materials that *support* the charges. This follows from the preliminary sentence of paragraph (c) according to which the admission of guilt must be *supported* by the facts of the case contained in, inter alia, the materials presented by the Prosecutor.⁷²

If the parties, and in particular the Prosecution, fail to provide sufficient evidence or the Trial Chamber considers the presented evidence as insufficient, the Chamber may request the Prosecutor to present additional evidence or it may order the continuation of the ordinary trial procedure as provided in paragraph 4.

II. Paragraph 2: Conviction according to an admission of guilt

The paragraph empowers the Trial Chamber, if it is satisfied that all requirements and conditions for a valid admission of guilt under paragraph 1 have been accomplished, to consider that the crime charged, and admitted by the accused, has been proved beyond a reasonable doubt, according to the standard set forth in article 66 para 3 (presumption of innocence), and accordingly to convict⁷³ the accused. The language ‘may convict the accused of that crime’ refers to the discretionary authority of the Trial Chamber to decide that the trial shall continue under the normal procedures in the scenarios envisaged in paragraphs 3 and 4 (b).

A question remains as to the possibility of an accused admitting guilt for certain charges, but not for others. In this scenario, the Trial Chamber could (a) convict the accused of the crimes in relation to which he has made an admission of guilt and hold a trial for the

⁶⁹ Saltzburg and Capra, *American Criminal Procedure* (1996) 843.

⁷⁰ R 62bis (iv) ICTY Rules of Procedure and Evidence, r 62 sub-r (B) (iv) ICTR Rules of Procedure and Evidence. R 62 (iv) SCSL Rules of Procedure and Evidence is insofar identical. In contrast, East Timor Reg 2000/30, sec 29 (A).1. (c) has adopted almost the same wording as art 65 Rome Statute. – It must be noted, however, that in its practice the ICTY has approached the standard of the ICC; see Damaška (2004) 2 *JICJ* 1018, 1037 *et seq.*

⁷¹ E.g., art 15 para 3, art 89 para 1, r 159. See further art 61 para 5 according to that at the confirmation hearing, ‘the Prosecutor shall support each charge with sufficient evidence to establish substantial grounds to believe that the person committed the crime charged’.

⁷² The French version seems more accurate using the phrase ‘qui accompagnent les charges’. Cf. the non-binding German translation: ‘welche die Anklage erhärten’ (which confirm the charges).

⁷³ The ICTY and ICTR Rules of Procedure and Evidence use instead the phrase ‘enter a finding of guilt’.

remaining charges,⁷⁴ without prejudice to the Prosecution's right to request permission to withdraw such charges after the commencement of trial under article 61 para 9;⁷⁵ or (b) conclude that it would not be appropriate to disaggregate the charges that have been admitted by the accused in this manner and that a full presentation of the facts is required in the interests of justice, and consequently remand the entire set of charges for trial under article 65 para 4.

- 33 If a person jointly charged has made an admission of guilt and the Trial Chamber proceeds in accordance with article 65 para 2, the Chamber may, at the request of the Prosecutor or the defence or on its own motion, separate trials according to rule 136 sub-rule 1. One of the consequences of separating trials is that the accused having made an admission of guilt can be used as witness against his former co-accused.
- 34 After the Trial Chamber has convicted the accused, it passes into sentencing procedure according to article 76.⁷⁶

III. Paragraph 3: Invalid admission of guilt

- 35 If the requirements set forth in paragraph 1 are not met, the procedures have to return to the status quo ante, ie, to the point at which they were before the rejected admission of guilt was made, which must be mandatorily considered 'as not having been made'. This is an obvious consequence of the very essence of the procedures envisaged in article 65: a waiver of such a significant number of substantive rights by an accused, that is not supported by a solid factual basis, or has not been informed, or has not been voluntarily made, must not only be rejected; it cannot result in any prejudice whatsoever to the accused. It is null and void, and can only be stricken from the record, with no implications adverse to the accused being drawn from it.⁷⁷
- 36 The final version of the provision states that the Trial Chamber 'may remit the case to another Trial Chamber', instead of using the mandatory formula contained as an option in earlier versions,⁷⁸ which was intended to ensure the impartiality of the judges that would hear the case at trial, as guaranteed by article 67 of the Statute and article 14.1 of the ICCPR. The adopted language gives discretion to the Trial Chamber either to remit the case to another chamber or to retain jurisdiction over the case.

IV. Paragraph 4: More complete presentation of facts in the interests of justice

- 37 Paragraph 4 is a compromise between legal systems that do not allow a summary end to the trial or an automatic conviction in case of an admission of guilt and the common law

⁷⁴ Differing Terrier, in: Cassese (ed.), *The Rome Statute of the International Criminal Court* (2002) 1277, 1288, who considers that the Trial Chamber may only in 'special circumstances' dissociate the proceedings on that ground; Safferling, *International Criminal Procedure* (2012) 447 *et seq.*; Schabas, *ICC Commentary* (2010) 779.

⁷⁵ A recent decision by ICC's Trial Chamber I in *Prosecutor v. Thomas Lubanga Dyilo* specifies that such request can only happen once formal trial proceedings have begun; see *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1084, Decision on the status before the Trial Chamber of the evidence heard by the Pre-Trial Chamber and the decisions of the Pre-Trial Chamber in trial proceedings, and the manner in which evidence shall be submitted, Trial Chamber I, 13 December 2007, paras 45 and 40 <<https://www.legal-tools.org/doc/257c48/>>, the latter defining 'commencement of the trial' as 'the true opening of the trial, when the opening statements, if any, are made prior to the calling of the witnesses'.

⁷⁶ For details, see mn 22; W. Schabas below art 76 mn 7.

⁷⁷ A similar safeguard is contained in the Codes of Procedure of Costa Rica, art 375, Paraguay, art 421, and Argentina, art 431: the admission of the facts by the accused shall not be considered as a confession. – The Rome Statute and the Rules are silent on the question what is to become of evidence presented by the defence according to Art. 65 para 1 (c) (iii). It has been considered to treat this evidence as non-existent; Schabas, *ICC Commentary* (2010) 779.

⁷⁸ See 'Report of the Preparatory Committee, Draft Statute and Draft Final Act' (1998) UN Doc A/CONF.182/2/Add.1, art 65 paras 3 and 4, p 126, both containing 'shall' as an option.

approach on guilty pleas. The Trial Chamber may request the Prosecutor to present additional evidence or to apply the ordinary trial procedure, if ‘a more complete presentation of the facts of the case is required in the interests of justice, in particular the interests of victims’. Due to this paragraph, the Chamber is in a position to consider the quality of justice when deciding if the admission of guilt is acceptable.⁷⁹ The ‘interests of justice’ comprise, in particular, the importance of the facts for the historical record and the interests of victims to be heard in a public trial.⁸⁰

Paragraph 4 (a) gives the Trial Chamber a third option before making a decision whether or not to accept an admission of guilt, namely to broaden the inquiry on the factual basis of the case by asking the Prosecutor to ‘present additional evidence, including the testimony of witnesses’, which, it has been argued, should be done in a public hearing.⁸¹ Even if the provision is silent on the point, it should be accepted that the Trial Chamber retains the powers set forth in article 64 para 6 (b) and (d) to call for supplementary evidence on its own motion.⁸² This is consistent with the fact that abbreviated proceedings under article 65 are not a classical ‘guilty plea’ procedure. Rather, they provide for a higher involvement of the Court in determining the facts underpinning the admission of guilt. However, the Chamber should prudently exercise these powers and avoid an unnecessarily lengthy hearing under article 65, only to later remand the case to the normal trial procedures, under subparagraph (b).

Subparagraph (b) allows the Trial Chamber to retain jurisdiction over the case after deciding that the trial should continue under normal trial procedures, instead of requiring the case to be remitted to another Trial Chamber.

V. Paragraph 5: Non-binding effect of plea agreements

The language of paragraph 5 was not included in the first draft of current article 65⁸³ and was adopted only to ease the concerns of some delegations which wanted to ensure that the procedures under article 65 would not open the way to the introduction of plea bargaining in the context of the Statute. Ironically, the language in paragraph 5 presupposes exactly what it intends to avoid: the existence of discussions between the Prosecutor and the defence regarding modification of the charges, the admission of guilt or the penalty to be imposed.⁸⁴ At the same time, it must be acknowledged that statements of principle of this kind usually fail to reflect what in reality takes place. As pointed out by one commentator, despite the clear statement contained in the first ICTY annual report to the Security Council and the General Assembly, claiming that ‘the practice of plea bargaining finds no place in the rules [of the Tribunal]’, the first valid guilty plea in the history of the ICTY (*Prosecutor v Erdemović*) was the result of a plea bargain agreement between the accused and the Prosecutor.⁸⁵

⁷⁹ In doing so, the Chamber may hear the Prosecutor and the defence; r 139. In the opinion of Schabas, *ICC Commentary* (2010) 779 *et seq.* the representatives of the victims should also be heard.

⁸⁰ See Behrens, in: Lee (ed.), *The International Criminal Court* (1999) 238, 242; Terrier, in: Cassese (ed.), *The Rome Statute of the International Criminal Court* (2002) 1277, 1289; Orie, in: Cassese (ed.), *The Rome Statute of the International Criminal Court* (2002) 1477, 1481.

⁸¹ Cf. Orie, in: Cassese (ed.), *The Rome Statute of the International Criminal Court* (2002) 1477, 1481.

⁸² The necessity to look beyond the evidence presented by the parties was demonstrated in the case against Miroslav Deronjić before the ICTY. The Trial Chamber found discrepancies between the indictment and the agreed factual basis of the plea agreement and, therefore, ordered a continuation of the sentencing hearing. During the hearing, the Chamber admitted transcripts of the accused’s testimony in other cases into evidence; see *Deronjić* (Trial Chamber II Judgement), see note 14, para 3. The Appeals Chamber confirmed this approach; *Prosecutor v. Miroslav Deronjić*, IT-95-9/2-S, Judgement on Sentencing Appeal, Appeals Chamber, 20 July 2005, paras 16 *et seq.*

⁸³ See ‘Report of the Preparatory Committee’, see note 1, 174 article 38*bis*.

⁸⁴ Cf. Friman (2003) 2 *LAPE* 373; 393.

⁸⁵ Tochilovsky, ‘Rules of procedure for the International Criminal Court: problems to address in light of the experience of the ad hoc tribunals’, (1999) 46, 3 *NethILRev* 344.

- 41 As already advanced, the reference to discussions between the Prosecution and the defence regarding ‘modification of the charges’ supports the conclusion that charge bargaining is admissible before the ICC.⁸⁶ However, since after the commencement of trial, withdrawal of charges depends on the permission of the Trial Chamber,⁸⁷ substantial components of the outcome of such bargaining may have to be approved by this Chamber.⁸⁸
- 42 Paragraph 5 underlines the independence of the Trial Chamber vis-à-vis any agreement reached by the parties. Indeed, like the ICTY Prosecutor,⁸⁹ the ICC Prosecutor would have little to offer in a plea bargain, apart from the promise of a recommendation for a less severe sentence, since determination of the sentence is an exclusive power of the Trial Chamber,⁹⁰ or the promise to withdraw or amend the charges filed. If the Prosecutor unduly promises to an accused advantages that he or she is not in a position to guarantee, the admission of guilt would be tainted as to its voluntariness, paragraph 1 (b), and should be rejected by the Trial Chamber.
- 43 Although the Trial Chamber is not bound to plea agreements, the practice before the ICTY shows that judges have generally respected them. Even proposals for a certain sentence or sentencing range are respected in the majority of cases.⁹¹ So whereas in strictly legal terms the Prosecutor is in no position to guarantee a given outcome, the existing practice sends the message to the parties that absent extraordinary circumstances, such agreements will not be disturbed.

⁸⁶ Bohlander, in: May *et al.* (eds.), *Essays on ICTY Procedure and Evidence in Honour of Gabrielle Kirk McDonald* (2001) 151, 157; see also Terrier, in: Cassese (ed.), *The Rome Statute of the International Criminal Court* (2002) 1277, 1288.

⁸⁷ Art 61 para 9.

⁸⁸ According to Bohlander, in: May *et al.* (eds.), *Essays on ICTY Procedure and Evidence in Honour of Gabrielle Kirk McDonald* (2001) 151, 158, before the commencement of trial, the Prosecutor must seek the permission of the Pre-Trial Chamber for the withdrawal of charges, if the charges have already been confirmed.

⁸⁹ Tochilovsky, ‘Rules of procedure for the International Criminal Court: problems to address in light of the experience of the ad hoc tribunals’, (1999) 46, 3 *NethILRev* 345 fn 9.

⁹⁰ It must also be noticed that no crime within the jurisdiction of the Court is attached to any specific sentencing range, but to the general provisions set forth in Part 7.

⁹¹ See at note 34.

Article 66

Presumption of innocence

1. Everyone shall be presumed innocent until proved guilty before the Court in accordance with the applicable law.
2. The onus is on the Prosecutor to prove the guilt of the accused.
3. In order to convict the accused, the Court must be convinced of the guilt of the accused beyond reasonable doubt.

Literature: Bassiouni, M.C., 'Human Rights in the Context of Criminal Justice: Identifying International Procedural Protections and Equivalent Protections in National Constitutions', (1993) 3 *DukeJComp&IL* 235; *id.* and Manikas, P., *The Law of the International Criminal Tribunal for the Former Yugoslavia* (Transnational Publishers 1995); Blakesley, C.L., 'Commentary on Parts 5 and 6 of the Zutphen Inter-Sessional Draft: Investigation, Prosecution & Trial' (1998) 13*bis NEP* 69; Harris, D.J., O'Boyle, M., Bates M., and Buckley, C., *Harris, O'Boyle and Warbrick Law of the European Convention on Human Rights*, iii (OUP 2014); Heinze, A., *International Criminal Procedure and Disclosure* (Duncker and Humblot 2014); Klamberg, M., *Evidence in International Criminal Trials: Confronting Legal Gaps and the Reconstruction of Disputed Events* (Martinus Nijhoff 2013); May, R. and Wierda, M., 'Trends in International Criminal Evidence: Nuremberg, Tokyo, The Hague, and Arusha' (1999) 37 *ColumbiaJTransnat'lL* 754; McDermott, Y., 'Inferential Reasoning and Proof in International Criminal Trials' (2015) 13 *JICJ* 507, Noor Muhammad, H.H., 'Due Process of Law for Persons Accused of Crime' in L. Henkin (ed.), *The International Bill of Rights: The Covenant on Civil and Political Rights* (Columbia UP 1981) 138; Pruitt, R.C., 'Guilt by Majority in the International Criminal Tribunal for the former Yugoslavia: Does this Meet the Standard of Proof 'Beyond Reasonable Doubt'? (1997) 10 *LeidenJIL* 557; Stavros, S., *The Guarantees for Accused Persons under Article 6 of the European Convention on Human Rights* (Brill 1993); Triffiterer, O., 'Sind § 42 und seine Ausformung im Prozeßrecht mit Artikel 6 EMRK vereinbar?', (1982) *ÖJZ* 617 and Part 2, 647; *id.*, 'Zur Einschränkung der Menschenrechte und zur Anwendbarkeit von Verfahrensgrundsätzen bei freiheitsbeschränkenden Disziplinarmaßnahmen in 'besonderen Gewaltverhältnissen'', (1976) *EuGRZ* 363 and Part 2, (1977) *EuGRZ* 136; Vasiliev, S., 'Closing Arguments' in G. Sluiter et al. (eds), *International Criminal Procedure: Principles and Rules* (OUP 2013) 543; White, R.C.A. and Ovey, C., *Jacobs, White and Ovey: The European Convention on Human Rights* (OUP 2010).

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A. Introduction/General remarks

The French *Déclaration des droits de l'homme et du citoyen* of 1789 recognizes, at article 9, 1 '[t]out homme étant présumé innocent jusqu'à ce qu'il ait été déclaré coupable'¹. The same principle was recognized by common law courts. A famous English judgment states that 'where intent is an ingredient of a crime there is no onus on the defendant to prove that the act alleged was accidental. Throughout the web of the English Criminal Law one golden thread is always to be seen, that it is the duty of the prosecution to prove the prisoner's guilt ...'².

¹ 'Every man being presumed innocent until he has been declared guilty'.

² *Woolmington v. D.P.P.*, [1935] A.C. 462, 25 Cr. App. R. 72 (J.C.P.C.), p. 481 (A.C.).

- 2 What is an undisputed general principle of law³ was included in article 11 para. 1 of the *Universal Declaration of Human Rights*⁴ and echoed in the universal and regional human rights conventions⁵. It imposes the burden of proof upon the prosecution beyond a reasonable doubt, a specialized application in criminal law of a rule that is common to all forms of litigation, namely that the plaintiff has the burden of proof. But the presumption of innocence may have other manifestations, for example in the right of an accused person to interim release pending trial, subject to exceptional circumstances in which preventive detention may be ordered, the right of the accused person to be detained separately from those who have been convicted, and the right of the accused to remain silent during the investigation and during trial. Several of the rules that reflect the presumption of innocence are incorporated within the ICC *Statute*, for example: during an investigation (article 56), including the right '[t]o remain silent, without such silence being a consideration in the determination of guilt or innocence'; interim release (article 59 paras. 3–6, article 60 paras. 2–4); rights of the accused at trial (article 67, particularly para. 1 (g) and (i)); requirement of a two-thirds majority for a finding of guilt (article 74 para. 3); grounds for appeal, which are larger for the defence than for the prosecution (article 81 para. 1)⁶. Nevertheless, it was also felt necessary to affirm the principle generally and explicitly.
- 3 The provision enshrining the presumption of innocence appears in Part 6 of the *Statute*, entitled 'The Trial'. It immediately precedes the provision concerning the rights of the accused at trial. In the international human rights treaties the presumption of innocence is generally contained within the general provision concerning fair trial rights. This was the placement recommended by the International Law Commission (ILC) in its Draft Statute⁷. But during the drafting of the *Statute*, the Preparatory Committee considered as an alternative the positioning of the presumption of innocence provision within the Part dealing with General Principles⁸. The working groups on general principles and on procedures each generated an identical text recognizing the presumption of innocence. The report of the Inter-Sessional meeting at Zutphen recommended that it be placed in Part 6 and this choice was endorsed by the Preparatory Committee in its Final Report.

B. Analysis and interpretation of elements

- 4 The ILC Draft Statute contained the following provision: 'An accused shall be presumed innocent until proved guilty in accordance with law. The onus is on the Prosecutor to establish the guilt of the accused beyond reasonable doubt'⁹. The second sentence, containing

³ Pradel, *Droit Pénal Comparé* (2008) 249–250; Bassiouni (1993) 3 *DukeJComp&IL* 235, 266, n. 143.

⁴ GA Res. 217 A (III), UN Doc. A/810 (1948).

⁵ American Declaration of the Rights and Duties of Man, O.A.S. Doc. OEA/Ser.L/V/II.4 (1948), article XXVI; ICCPR, 999 UNTS 171, *entered into force* 23 Mar. 1976, article 14 para. 2; American Convention on Human Rights, 1144 UNTS 123, *entered into force* 18 July 1978, article 8 para. 2; ECtHR, 213 UNTS 221, *entered into force* 3 Sep. 1953, article 6 para. 2, and on this provision see Triffterer (1982) *ÖJZ* 617 and part II 647; African Charter on Human and People's Rights, OAU Doc.CAB/LEG/67/3 rev. 5, *entered into force* 21 Oct. 1986, article 7 para. 1 (b); Convention on the Rights of the Child, GA Res. 44/25, Annex, *entered into force* 2 Sep. 1990, article 40 para. 2 (b) (i).

⁶ See Bassiouni and Manikas, *The Law of the International Criminal Tribunal for the Former Yugoslavia* (1995) 961, for a similar observation on the Statute of the ICTY, SC Res.827, Annex, and its Rules of Procedure and Evidence, UN Doc. IT/32.

⁷ 1994 ILC Draft Statute, article 40, p. 114.

⁸ 1996 Preparatory Committee I, para. 179, p. 41, article T.

⁹ See note 7, article 40. See also: Code of Crimes against the Peace and Security of Mankind, UN Doc. A/51/332 (1996), 18 *HRLJ* 96, article 11 para. 1: 'An individual charged with a crime against the peace and security of mankind shall be presumed innocent until proved guilty...'. The Statutes of the *ad hoc* Tribunals contain the following: 'The accused shall be presumed innocent until proved guilty according to the provisions of the present Statute': Statute of the ICTY, see note 6, article 21 para. 3; Statute of the ICTR, SC Res.955, Annex, article 20 para. 3.

the reference to the 'reasonable doubt' standard had not been included in the 1993 ILC draft. However, that earlier version was accompanied by a commentary that left no doubt about this issue:

'This provision recognizes that in a criminal proceeding the accused is entitled to a presumption of innocence and the burden of proof rests with the prosecution. The presumption of innocence is recognized in article 14, paragraph 2, of the International Covenant on Civil and Political Rights which states that 'Everyone charged with a criminal offence shall have the right to be presumed innocent until proved guilty according to law'. The Prosecutor has the burden to prove every element of the crime beyond a reasonable doubt or in accordance with the standard for determining the guilt or innocence of the accused. If the Prosecutor fails to prove that the accused committed the alleged crime, then the person must be found not guilty of the charges contained in the indictment'¹⁰.

Article 40 of the ILC Draft Statute was one of the very rare provisions on which the *Ad Hoc* Committee that met in 1995 made no comments in its report, perhaps indicating its uncontroversial nature¹¹. However, the *Ad Hoc* Committee did insist on respect, by the court, of 'the highest standards of justice, integrity and due process', which, clearly, comprise the presumption of innocence¹².

During the March-April 1996 session of the Preparatory Committee, an informal group 5 pursued work on general principles following the guidelines set out by the *Ad Hoc* Committee¹³, and in the Committee's report to the General Assembly in late 1996 a section was added to the Draft Statute entitled 'General Principles of Criminal Law'. It consisted of a series of twenty draft articles, including a provision dealing with the presumption of innocence: 'An accused shall be presumed innocent [until] [unless] [proved guilty] [convicted] in accordance with [this Statute] [law]. [The onus is on the prosecutor to establish the guilt of the accused [beyond reasonable doubt]]'¹⁴. Two footnotes were included, indicating that the presumption of innocence was both a procedural and a substantive right¹⁵. The issue was also reviewed by the informal group on procedural matters when it met in August 1997. The group was aware of the work accomplished earlier in the year by the other informal group on the subject¹⁶, but at its August 1996 meeting it developed a new version: 'Anyone [accused] [charged with a criminal offence] [suspected of committing a crime within the meaning of this statute] shall be presumed innocent until proved guilty [in accordance with law]. [The onus is on the Prosecutor to establish the guilt of the accused.] [The accused is declared guilty only when the majority of the Trial Chamber considers that the guilt of the accused has been proved] beyond a reasonable doubt'¹⁷.

The Working Group on General Principles met during the February 1997 session of the 6 Preparatory Committee, but it did not examine the presumption of innocence provision for lack of time¹⁸. At the August 1997 session of the Preparatory Committee, the Working Group on Procedural Matters considered the presumption of innocence provision, and adopted a text that was identical to the ILC Draft, except that the initial words '[a]n accused' were replaced with '[e]veryone'¹⁹. A footnote mentioned that the requirement that guilt be established by a majority of the Trial Chamber could be addressed in article 45²⁰. A second footnote observed

¹⁰ Report of the International Law Commission on the work of its forty-fifth session (3 May-23 July 1993), UN Doc. A/48/10*, p. 119.

¹¹ *Ad Hoc* Committee Report, p. 35.

¹² *Ibid.*, para. 129, p. 29.

¹³ 1996 Preparatory Committee I, see note 112.

¹⁴ 1996 Preparatory Committee II, Part 3*bis*, p. 104; also UN Doc. A/AC.249/CRP.9.

¹⁵ *Ibid.*, Part 3*bis*, p. 104: '[Note 1. The presumption of innocence is also a procedural matter.] [Note 2. Presumption of innocence [also] constitutes a substantive right of the accused]'

¹⁶ *Ibid.*, p. 194, fn.*.

¹⁷ *Ibid.*, p. 194; also UN Doc. A/AC.249/CRP.14. However, there are no explanatory comments on the provision in the Report: 1996 Preparatory Committee I, see note 112, p. 57.

¹⁸ UN Doc. A/AC.249/1997/L.5, Annex II, p. 18, para. 2.

¹⁹ UN Doc. A/AC.249/1997/L.8/Rev.1, p. 33; also UN Doc. A/AC.249/1997/WG.4/CRP.7. A footnote observed that the matter had also been considered by the informal working group on general principles of criminal law.

²⁰ UN Doc. A/AC.249/1997/L.8/Rev.1, p. 33, fn. 12.

that '[r]eservations were expressed regarding the phrases 'in accordance with law' and 'beyond a reasonable doubt' contained in the ILC text'²¹. At the December 1997 meeting of the Preparatory Committee, the Working Group on General Principles returned to the provision, and adopted a text that was identical to that of the Working Group on Procedural Matters²².

- 7 As a result, the Zutphen Draft of January 1998 contained two identical provisions on the presumption of innocence, one in the section dealing with general principles²³, the other in the section dealing with trial²⁴. The Draft opted for the section dealing with trial as the appropriate place within the *Statute* for the provision²⁵. This is what appeared in the Preparatory Committee's final Draft, adopted in April 1998²⁶. Thus, the ILC Draft had survived essentially intact.
- 8 At the Rome Conference, the provision was examined by the Working Group on Procedural Matters, and there the Preparatory Committee Draft underwent substantial modification. A working paper was submitted dividing the text into three distinct paragraphs, each consisting of a single sentence. Several words were underlined, reflecting efforts at compromise within the Committee. But this was obviously an unworkable solution, as the final version could not contain words that were underlined or italicized. The proposal read:

- '1. Everyone shall be presumed innocent until proved guilty *before the Court* in accordance with the law *applicable to it*.
2. The onus is on the Prosecutor to prove the guilt of the accused.
3. In order to convict the accused, the Court *must* be convinced of the guilt of the accused beyond reasonable doubt'²⁷.

Some argued that the provision should also recognize the right of the accused to raise defences and to present evidence. These views were reflected in a footnote, recommending that this be taken into account in drafting article 67 (rights of the accused) and article 69 (evidence)²⁸.

- 9 The proposed text was adopted by the Working Group with one minor change in the first sentence, removal of the word 'the' in the phrase 'with the law applicable to it'. The word 'must' in the third sentence remained underlined, although all other forms of emphasis were removed in the final version²⁹. The Drafting Committee eliminated the underlining altogether, and reworked the final words of the first sentence so as to read 'in accordance with the applicable law'³⁰.

I. Paragraph 1

- 10 Paragraph 1 consists of a general statement of the presumption of innocence. It is followed by two paragraphs setting out the burden of proof and the standard of proof. The European Court of Human Rights has defined the presumption of innocence as follows:

²¹ *Ibid.*, fn. 13. See also: UN Doc. A/AC.249/1998/L.13, p. 113, fn. 199; UN Doc. A/CONF.183/2/Add.1, p. 106, fn. 9.

²² UN Doc. A/AC.249/1997/L.9, p. 24.

²³ Zutphen Draft, p. 65, article P.

²⁴ *Ibid.*, p. 113, article 59.

²⁵ *Ibid.*, p. 65. This conclusion was not shared by academic commentators, however. See: Sadat Wexler (1998) 13*bis* NEP 40–41, 99.

²⁶ UN Doc. A/CONF.183/2/Add.1, p. 106, article 66.

²⁷ Proposed new text, UN Doc. A/CONF.183/C.1/WGPM/L.37* (29 June, reissued 4 July), p. 1; Working Paper on article 66, UN Doc. A/CONF.183/C.1/WGPM/L.37/Corr.1 (9 July), p. 1.

²⁸ *Ibid.*: 'In connection with this text, it was also suggested that the following provision should be added to article 67 or article 69: "The accused shall have the right to raise defences under the provisions of this Statute, and to present evidence in their support".'

²⁹ Report of the Working Group on Procedural Matters, UN Doc. A/CONF.183/C.1/WGPM/L.2/Add.2 (4 July), p. 4. Also: Compendium of draft articles referred to the Drafting Committee by the Committee of the Whole as of 9 July 1998, UN Doc. A/CONF.183/C.1/L.58, p. 41.

³⁰ UN Doc. A/CONF.183/C.1/L.88, p. 5. This was the version adopted by the Committee of the Whole and the Plenary on 17 July: UN Doc. A/CONF.183/C.1.

‘It requires, *inter alia*, that when carrying out their duties, the members of a court should not start with the preconceived idea that the accused has committed the offence charged; the burden of proof is on the prosecution, and any doubt should benefit the accused. It also follows that it is for the prosecution to inform the accused of the case that will be made against him, so that he may prepare and present his defence accordingly, and to adduce evidence sufficient to convict him’³¹.

1. ‘Everyone’

The original ILC Draft recognized the presumption of innocence to ‘[a]n accused’³² but this was changed to ‘[e]veryone’ by the Preparatory Committee³³. This readily suggests that the presumption avails to protect suspects who have not been accused as well as appellants who have been convicted by the Trial Chamber and who are being sentenced, or whose cases are on appeal. A contrary conclusion is suggested, however, by the placement of the presumption of innocence within Part 6 of the *Statute*, concerning trial, and immediately prior to article 67 dealing with the ‘rights of the accused’.

That the presumption of innocence would apply at the investigation stage requires little explanation³⁴. Its effects are less significant than at the trial stage because issues such as burden of proof do not arise. However, it might give rise to an obligation on the prosecution not to reveal the names of suspects or to comment on their alleged culpability until a formal warrant of arrest is issued by the Pre-Trial Chamber³⁵. The presumption of innocence should also protect a suspect during the investigation stage by ensuring the right to silence³⁶. This is accomplished by a specific provision of the *Statute* protecting a suspect’s right ‘[t]o remain silent, without such silence being a consideration in the determination of guilt or innocence’³⁷. The Strasbourg jurisprudence concludes, however, that the presumption of innocence may not be invoked to obstruct the conduct of blood and similar tests³⁸, identity parades³⁹ or medical examinations⁴⁰, or to challenge an order to produce documents⁴¹.

It seems far less obvious that the presumption of innocence will apply at the sentencing stage. Indeed, the European Court of Human Rights has taken the view that the presumption deals with proof of guilt and that it is therefore inapplicable during the sentencing phase of trial, once guilt has already been determined⁴². It is difficult to conceive of how a person who has been found guilty can at the same time be presumed innocent. As a practical conse-

³¹ *Barberá, Messegué and Jabardo v. Spain*, Series A, No. 146, 6 Dec. 1988, para 77.

³² See note 7.

³³ 1996 Preparatory Committee II, see note 14, p. 194. Actually, it started with ‘anyone’, but this was later changed to ‘everyone’.

³⁴ See: Principle 36 (1) of the United Nations Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment, GA Res. 42/173: ‘A detained person suspected of or charged with a criminal offence shall be presumed innocent and shall be treated as such until proved guilty according to law in a public trial at which he has had all the guarantees necessary for his defence’. This is the view taken by international human rights authorities. For example: Noor Muhammad, in: Henkin (ed.), *The International Bill of Rights: The Covenant on Civil and Political Rights* (1981) 138; Nowak, *UN Covenant on Civil and Political Rights: CCPR Commentary* (1994) 254. But see: *X. v. Federal Republic of Germany* (App. No. 4483/70), (1971) 38 Coll. 77.

³⁵ *Situation in Libya*, ICC-01/11-17, Decision on the OPCD ‘Requête relative aux propos publics de Monsieur le Procureur et au respect de la présomption d’innocence’, 8 Sept. 2011.

³⁶ This is the view taken by international human rights authorities. For example: H. H. Noor Muhammad, ‘Due Process of Law for Persons Accused of Crime’, in: L. Henkin (ed.), *The International Bill of Rights; the Covenant on Civil and Political Rights* 138 (1981); M. Novak, *CCPR Commentary* 254 (1993). But see: *X v. Federal Republic of Germany* (App. No. 4483/70), (1971) 38 Coll. 77.

³⁷ Rome Statute, UN Doc. A/CONF.183/9, article 55 para. 2 (b).

³⁸ *X. v. Netherlands* (App. No. 8239/78), (1978) 16 D.R. 184.

³⁹ Harris et al., *Harris, O’Boyle and Warbrick Law of the European Convention on Human Rights* (2014) 460–467.

⁴⁰ *X. v. Federal Republic of Germany* (App. No. 986/61), (1962) 5 Y.B. 192.

⁴¹ *Funk v. France*, Series A, No. 256-A, 25 Feb. 1993, Commission Report, para. 69.

⁴² *Engel et al. v. Netherlands*, Series A, No. 22, 8 June 1976. On this decision, see: Triffterer, (1976) EuGRZ 363 and Part II (1977) EuGRZ; Stavros, *The Guarantees for Accused Persons under Article 6 of the European Convention on Human Rights* (1993) 261; *Albert and Le Compte v. Belgium*, Series A, No. 58, 10 Feb. 1983. See also, Nowak, *UN Covenant on Civil and Political Rights: CCPR Commentary* (1994) 254.

quence, this would mean that any evidence considered for the purposes of establishing the appropriate sentence need not be proven beyond a reasonable doubt. Although the *Statute* sets no special rule, general principles of law would suggest that evidence on sentencing be established on a balance of probabilities, with the burden to prove mitigating or aggravating factors resting on the defence and the prosecution respectively.

- 14 For the same reasons, it seems illogical to apply the presumption of innocence to an appeal taken only against the sentence. Similarly, if the appeal is taken by the prosecution against an acquittal, it is equally obvious that the presumption must continue to apply. To the extent that its principal focus is on evidentiary matters, the presumption of innocence must continue to benefit the convicted person on appeal. The appellate tribunal must reassess the sufficiency of evidence based on the same standard as the trial chamber. Where an appellant introduces new evidence on appeal, if it is deemed admissible it need only raise a reasonable doubt of guilt. The European Court of Human Rights has taken the view that the presumption of innocence continues to apply during appeal proceedings⁴³.

2. 'the Court'

- 15 The term 'the Court' can only mean the International Criminal Court⁴⁴. The presumption of innocence is an obligation on all organs of the Court, as indicated by decisions on the statements of prosecution counsel⁴⁵, and a decision ordering the Registry to change a webpage of the Court's website to indicate that an individual was a suspect, not an accused, prior to the Confirmation of Charges hearing⁴⁶. This follows the approach taken by the ICTY, where a Registry spokesperson's remark that it would be 'shameful' to deny the genocide in Bosnia was deemed 'inappropriate' and contrary to the presumption of innocence principle⁴⁷.

3. 'in accordance with the applicable law'

- 16 Although some writers have suggested a degree of ambiguity associated with the terms 'in accordance'⁴⁸, it would seem clear enough that the reference is to the application of the law of the *Statute* to trials before the court. The term 'applicable law' is defined in article 21 of the *Statute*⁴⁹. It consists of a hierarchy, beginning with the *Statute*, Elements of Crimes and the Rules of Procedure and Evidence. These sources are followed, where appropriate, by applicable treaties and the principles and rules of international law, including the established principles of the international law of armed conflict. Failing that, the applicable law comprises general principles of law derived by the Court from national laws of legal systems of the world. The reference to applicable law provides the Court with the possibility of developing a form of exclusionary rule, by which evidence could be refused if obtained illegally, either by those acting under the authority of the *Statute* or those completely independent of it. This would enlarge its more limited power to exclude evidence pursuant to article 69 para. 7. Thus, evidence obtained illegally would not be evidence obtained 'in accordance with the applicable law' and therefore could not form the basis for a finding of guilt.

⁴³ *Nilsenbockhoff v. Federal Republic of Germany*, Series A, No. 123, 25 Aug. 1987. But see: *Callaghan v. United Kingdom* (App. No. 14739/89), (1989) 60 D.R. 296.

⁴⁴ Rome Statute, see note 36, article 1.

⁴⁵ *Prosecutor v. Lubanga*, ICC-01/04-01/06-2433, Decision on the press interview with Ms Le Fraper du Hellen, 12 May 2010; *Prosecutor v. Mbarushimana*, ICC-01/04-01/10-51, Decision on Defence Request for an Order to Preserve the Impartiality of the Proceedings, 1 Feb. 2011.

⁴⁶ *Prosecutor v. Lubanga*, ICC-01/04-01/06, Transcript, 9 Nov. 2006.

⁴⁷ *Prosecutor v. Popović*, IT-05-88-T, Transcript, 26 Mar. 2007.

⁴⁸ Blakesley, (1998) 13*bis* NEP 69, 87.

⁴⁹ A possible argument that the term as used in article 66 should not be confined to the technical meaning given in article 21, but rather receive some broader construction, could rely on the fact that article 31 para. 3, which contains the only other reference in the Statute to 'applicable law', reads 'applicable law as set forth in article 21'. *A contrario*, where there is no reference to article 21, the term is not subject to the statutory definition.

The presumption of innocence clearly interplays with the rights of the accused, and art 67 para. 1(i) confirms that no onus shall be placed on the accused to prove his or her innocence. The presumption also intersects with such issues as the right to provisional release and the right to silence. In the *Ruto* case, it was noted that the accused's request to be continually absent from trial had to be assessed in light of the presumption of innocence:

'In the circumstances of the present litigation, to have 'full respect for the rights of the accused' will necessarily begin with giving the minimum of a reasonable accommodation to the presumption of innocence that the accused enjoys under Article 66(1) of the Statute — also accepted as a 'right' under international human rights law, as noted earlier. To give it full effect in the circumstances now under consideration will require the Chamber to take the path of construction that will accommodate the natural incidence of that right, in a manner that is not unduly inconvenient to the overall purpose'⁵⁰.

II. Paragraph 2: Onus of proof

Evidentiary issues are central to the presumption of innocence⁵¹. That the prosecutor has the burden of proof would seem to be a general principle of law⁵². That being said, the Court has noted its own 'truth-finding' role, meaning that it is not solely reliant on the consent of the parties to request all of the evidence necessary to reach its findings. Pursuant to article 69 para. 3 of the Statute, 'the Court has the authority to request the submission of all evidence that it considers necessary for the determination of the truth'.⁵³ According to the Appeals Chamber, 'The fact that the onus lies on the Prosecutor cannot be read to exclude the statutory powers of the court, as it is the court that must be convinced of the guilt of the accused beyond reasonable doubt'.⁵⁴ Although the onus is on the prosecution to prove the guilt of the accused, participating victims have been granted permission to introduce incriminating evidence.⁵⁵ There may be issues with this approach, in so far as victims do not share the same disclosure obligations as the Prosecutor has under article 67 para. 2 of the *Statute* and rules 76 to 84 of the Rules of Procedure and Evidence. However, it has been stressed that a Chamber will only authorise the introduction of such evidence if it will not prejudice the fairness and impartiality of the trial and the rights of the accused.⁵⁶

The presumption of innocence may be breached where an accused person is required to produce evidence to counter the charge even in the absence of any direct evidence of guilt. Although an exceptional measure, most legal systems, even those that purport to adhere scrupulously to the presumption of innocence, allow for some exceptions of this sort. The least offensive of such provisions are so-called factual presumptions, where proof of one fact is deemed by the court to constitute proof of another, incriminating fact. An example would be the presumption that a person who is in possession of recently stolen goods is in fact the thief. The prosecution need only establish two facts, that the object was stolen, and that it was in the possession of the accused. In order to avoid conviction for theft (and not just possession of stolen goods), the accused must then rebut the prosecution's case by leading evidence. While ostensibly a violation of the presumption of innocence, this approach is

⁵⁰ *Prosecutor v. Ruto*, ICC-01/09-01/11-777, Decision on Mr Ruto's Request for Excusal from Continuous Presence at Trial, 18 June 2013, para. 48.

⁵¹ 1996 Preparatory Committee I, see note 8, para. 286, p. 60.

⁵² *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, 16 Nov. 1998, para. 599. See also the remarks of Judge Claude Jorda, presiding over Pre-Trial Chamber I, in *Prosecutor v. Lubanga* (ICC-01/04-01/06), Transcript, 9 Nov. 2006, p. 11.

⁵³ See generally, Heinze, *International Criminal Procedure* (2014), 218–223, 243–250, 499–505.

⁵⁴ *Prosecutor v. Lubanga*, ICC-01/04-01/06, Judgment on the appeals of The Prosecutor and The Defence against Trial Chamber I's Decision on Victims' Participation of 18 Jan. 2008, 11 July 2008, para. 95.

⁵⁵ *Prosecutor v. Lubanga*, ICC-01/04-01/06, Judgment on the Appeals of the Prosecutor and the Defence against Trial Chamber I's Decision on Victims' Participation of 18 Jan. 2008, 11 July 2008, para. 112; *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the Modalities of Victim Participation at Trial, 22 Jan. 2010, para. 82.

⁵⁶ *Katanga and Chui* (Decision on the Modalities of Victim Participation at Trial), see note 56, para. 84.

defended by judges as nothing more than a common sense rule, a logical deduction from the facts. More extreme forms of reversal of the burden of proof are effected by specific legislation. A frequent example is the presumption that a person in possession of a substantial quantity of narcotic drugs is more than a simple possessor, but is actually a trafficker, or at least is in possession for the purposes of trafficking. Despite any direct evidence of trafficking, the accused is required to rebut such a presumption. This form of reversal of burden of proof is somewhat academic, as far as the *Statute* is concerned, because there are no such ‘reverse onus’ provisions within the crimes defined by the *Statute*.

- 20 Nevertheless, the drafters of the *Statute* were alive to the issue because they introduced, in article 67 para. 1 (i), a provision that specifically contemplates the problem of reversal of onus of proof: the right of an accused ‘[n]ot to have imposed on him or her any reversal of the burden of proof or any onus of rebuttal’. Although article 67 is based essentially on existing models, principally article 14 para. 3 of the ICCPR⁵⁷, the reverse onus prohibition in article 67 para. 1 (i) is quite original. Again, its application is problematic, because there are no typical reverse onus provisions in the *Statute*. Thus, its application to judge-made reverse onus provisions would seem to be the real purpose of the provision. Depending on the scope this is given by the Court, these norms may create troublesome hurdles for the prosecution and provide the defence with a wealth of arguments.
- 21 For example, during the so-called *Čelebići* trial before the ICTY, one of the accused raised a plea of lack of mental capacity, or insanity. The Trial Chamber considered that the accused was presumed to be sane, despite an absence of prosecution evidence, and that it was for the accused to establish the contrary. Not only was the accused required to lead evidence of insanity, the Trial Chamber also held that the accused had a burden to prove this according to the preponderance of evidence standard⁵⁸. As the Trial Chamber explained, ‘[t]his is in accord and consistent with the general principle that the burden of proof of facts relating to a particular peculiar knowledge is on the person with such knowledge or one who raises the defence’⁵⁹. Given the combined effect of article 66 para. 2 and 67 para. 1 (i) of the *Statute*, would the ICC not conclude otherwise? At the very least, it would seem appropriate for the Court to rule that the accused is only required to raise a reasonable doubt as to mental condition, an approach that many legal systems have been able to live with⁶⁰. But under a more extreme hypothesis, the Court might apply these rules so as to impose a burden on the prosecution to establish sanity, a result that was surely unintended by the drafters of the *Statute* and one that could wreak havoc with the work of the Prosecutor.
- 22 The provisions of the *Statute* dealing with command responsibility may also, although more indirectly, lead to problems concerning the burden of proof. According to article 28, when individuals under the control of a superior commit crimes within the subject matter jurisdiction of the Court, the superior is deemed responsible for such crimes if he or she ‘should have known that the forces were committing or about to commit such crimes’. It will be argued that the superior is not being charged with the crime itself, but only with negligent supervision of troops or other subordinates. Yet negligence is not a crime within the subject matter jurisdiction of the Court; indeed, the core crimes require proof of the highest level of *mens rea*. The practical effect of article 28, once proof of commission of crimes by subordinates has been made, is to force the accused to testify in order to rebut the presumption of negligence, and to establish that the superior took ‘all necessary and reasonable measures within his or her power to prevent or repress their commission or to submit

⁵⁷ See note 5.

⁵⁸ *Prosecutor v. Delalić et al.*, see note 47, paras. 1157–1160. Also paras. 602–603. The Trial Chamber cites two English cases in support of its conclusion: *R. v. Dunbar*, [1958] 1 Q.B. 1; *R. v. Grant*, [1960] CLR 424.

⁵⁹ *Prosecutor v. Delalić et al.*, see note 47, para. 1172.

⁶⁰ *Davis v. United States*, 160 U.S. 469 (1895); *Re Winship*, 397 U.S. 358 (1970); *Mullaney v. Wilbur*, 421 U.S. 684 (1975); *Jackson v. Virginia*, 443 U.S. 307 (1979). But see: *R. v. Chaulk*, [1990] 3 SCR. 1303, 62 C.C.C. (3d) 193.

the matter to the competent authorities for investigation and prosecution'⁶¹. Consequently, there is an effective reversal of the onus of proof.

The ICC *Statute* provides for no exceptions to the general principle of the presumption of innocence. This need not necessarily be an obstacle to the Court, which will be required to develop its own doctrine on the subject. By analogy, it may wish to turn to the *European Convention on Human Rights*⁶², which also recognizes the presumption of innocence and without, in the text at least, any possibility of its limitation or restriction. Nevertheless, the European Court of Human Rights has admitted that reverse onus provisions are included in all domestic systems of criminal law. They are not contrary to the presumption of innocence, according to the Court, unless they go beyond 'reasonable limits', taking into account what is at stake and the rights of the defence⁶³. The problem with transposing the European jurisprudence is that the *Convention* contains no clause similar to article 67 para. 1 (i), that explicitly rules out such exceptions to the presumption of innocence.

III. Paragraph 3: Reasonable doubt

Human rights law has left the issue of the standard of proof in criminal law in an uncertain state. The European Court of Human Rights has no clear pronouncement on the subject⁶⁴. An amendment specifying the 'reasonable doubt' standard of proof was defeated during the drafting of article 14 of the *ICCPR*⁶⁵. However, the Human Rights Committee has been less circumspect, clarifying that the prosecution must establish proof of guilt beyond reasonable doubt⁶⁶. Citing authority from the post-Second World War tribunals, May and Wierda have said that if 'from credible evidence two reasonable inferences may be drawn, one of guilt and the other of innocence, the latter must be taken'. Proof beyond a reasonable doubt means that the accused's guilt must be proven to a moral certainty⁶⁷. In *Pohl*, the United States Military Tribunal said: 'It is such a doubt as, after full consideration of all the evidence, would leave an unbiased, reflective person charged with the responsibility of decision, in such a state of mind that he could not say that he felt an abiding conviction amounting to a moral certainty of the truth of the charge'⁶⁸. The International Military Tribunal at Nuremberg applied the standard of reasonable doubt, stating explicitly in its judgment that Schacht and von Papen were to be acquitted because of failure to meet that burden of proof⁶⁹.

As for the *ad hoc* Tribunals, they seem to have had no difficulty with the issue, and there are frequent statements in their initial judgments to the effect that the reasonable doubt standard applies⁷⁰. In the *Čelebići* case, the Trial Chamber said that 'the Prosecution is bound in law to prove the case alleged against the accused beyond a reasonable doubt. At

⁶¹ Rome Statute, see note 36, article 28 para. 1 (b).

⁶² European Convention on Human Rights, 213 UNTS 221, entered into force 3 Sept. 1953.

⁶³ *Salabiaku v. France*, Series A, No. 141-A, 7 Oct. 1988, para. 28. Also *Pham Hoang v. France*, Series A, No. 243, 25 Sept. 1992; *Duhs v. Sweden* (App. No. 12995/87), (1990) 67 D.R. 204.

⁶⁴ See, from the now defunct ECtHR, *Austria v. Italy*, (1962) 9 Y.B. 740, at p. 784.

⁶⁵ UN Doc. E/CN.4/365, UN Doc. E/CN.4/SR.156.

⁶⁶ General Comment 13/21, UN Doc. A/39/40, pp. 143–147, para. 7.

⁶⁷ May and Wierda (1999) 37 *Columbia/Transnat'l* 754, citing: *United States v. Flick et al.*, (1948) 6 TWC 1, p. 1188 (United States Military Tribunal); *United States v. Brandt et al.*, (1948) 2 TWC 1, p. 184 (United States Military Tribunal); *United States v. von Weizsaecker et al.* (1948) 14 TWC 1, p. 315 (United States Military Tribunal).

⁶⁸ *United States v. Pohl et al.*, (1948) 5 TWC 1, p. 965 (United States Military Tribunal).

⁶⁹ *France et al. v. Göring et al.*, (1946) 22 IMT 203, 13 ILR 203, 41 AJIL 302, 318.

⁷⁰ *Prosecutor v. Tadić*, IT-94-I-T, Judgment, 7 May 1997, paras. 234–237, 241–242, 261, 279, 302–303, 316, 341, 369–370, 373–375, 387–388, 397, 426, 435, 448, 451–452, 455, 461, 477, 673, 693, 718, 720–721, 726, 730, 732, 734–735, 737–738, 740, 742, 744, 746, 750, 754, 756–757, 760–761, 763–764; *Prosecutor v. Akayesu*, ICTR-96-4-T, (on appeal), Judgment, 2 Sep. 1998, containing more than ninety references to the reasonable doubt standard; *Prosecutor v. Delalić et al.*, see note 47, paras. 43, 599–600, 603, 622–623, 720, 745, 796, 810, 872, 876, 885, 896, 898, 949, 988, 1008, 1034.

the conclusion of the case the accused is entitled to the benefit of the doubt as to whether the offence has been proved⁷¹. An ICTY Trial Chamber was found to have misapplied the test of 'reasonable doubt' when it entertained the remote possibility that five men killed in Jaskici might have been victims of a large force of Serb soldiers rather than the smaller group with which Tadić was associated. But the Appeals Chamber resisted the invitation, from the Prosecutor, to further define the scope of the term 'reasonable doubt'⁷². In a contempt of court proceeding, an ICTY Trial Chamber concluded that although testimony 'raised grave suspicions' about the contact of a lawyer, '[n]ot even the gravest of suspicions can establish proof beyond reasonable doubt...'⁷³.

A burden of proof of reasonable doubt contrasts with the standard imposed by article 61 para. 7 of 'substantial grounds to believe that the person committed each of the crimes charged'. Pre-Trial Chamber I said this imposes a requirement that 'charges suffisamment sérieuses ont été présentées et sans se limiter à de simples supputations ou soupçons'⁷⁴. It went on to speak of 'éléments de preuve concrets et tangibles, montrant une direction claire dans le raisonnement supportant ses allégations spécifiques'⁷⁵. Obviously, the 'beyond a reasonable doubt' standard is considerably more demanding, as the Appeals Chamber has noted⁷⁶. Other evidentiary standards set out in the *Statute* include that of 'grounds to believe', found in article 55 para. 2, and 'reasonable grounds to believe', set out in article 58 para. 1 (a). These are less demanding than the 'substantial grounds' required at the confirmation hearing in accordance with article 61 para. 7⁷⁷. Many evidentiary issues before the Court will probably require only that certain facts be established on a balance of probabilities, or a preponderance of evidence. The ICTY Appeals Chamber has described this as 'satisfaction that, more probably than not, what is asserted is true'⁷⁸. It has also been described as an 'onus of persuasion'⁷⁹ or an 'onus of establishing'⁸⁰. Generally, it should be presumed that the balance of probabilities standard applies to issues of evidence other than the ultimate question of guilt or innocence, unless there is some special provision.

- 25 Some academics have expressed concern about the meaning that might be given to the Court by the term 'beyond a reasonable doubt'⁸¹. They have urged that the *Statute* clarify, perhaps in an Annex, the fact that the term means 'conviction should not occur unless all reasonable hypotheses based on the evidence presented indicate guilt'. However, the precise reference to the standard of proof should dispel any equivocation on the subject. No further clarification about the burden of proof is provided in the Rules of Procedure and Evidence. Indeed, they are striking in the fact that they make no reference whatsoever to 'burden', 'onus' or 'reasonable doubt'. Nonetheless, the Court's interpretation of 'proof beyond reasonable doubt' has given rise to some criticism. The prosecution in *Ngudjolo* alleged that the approach taken in acquitting the accused was flawed, because the 'beyond reasonable doubt' standard 'does not require that the Chamber search for and then reject all hypothe-

⁷¹ *Prosecutor v. Delalić et al.*, see note 47, para. 601.

⁷² *Prosecutor v. Tadić*, IT-94-1-A, Judgment, 15 July 1999, 181–183. For the proposals of the Prosecutor, see para. 174.

⁷³ *Prosecutor v. Simić et al.*, IT-95-9-R77, Judgment in the Matter of Contempt Allegations Against an Accused and his Counsel, 30 June 2000.

⁷⁴ *Prosecutor v. Lubanga*, ICC-01/04-01/06, Décision sur la confirmation des charges, 29 Jan. 2007, para. 37.

⁷⁵ *Ibid.*, para. 39.

⁷⁶ *Prosecutor v. Lubanga*, ICC-01/04-01/06, Judgment on the Prosecutor's Appeal Against the Decision of Pre-Trial Chamber I Entitled 'Decision Establishing General Principles Governing Applications to Restrict Disclosure pursuant to Rule 81 (2) and (4) of the Rules of Procedure and Evidence', 13 Oct. 2006, para. 56.

⁷⁷ *Situation in Democratic Republic of Congo*, ICC-01/04, Decision on the Applications for Participation in the Proceedings of VPRS 1, VPRS 2, VPRS 3, VPRS 4, VPRS 5 and VPRS 6, 17 Jan. 2006, para. 98.

⁷⁸ *Prosecutor v. Kvočka et al.*, IT-98-30/1-A, Decision on Review of Registrar's Decision to Withdraw Legal Aid from Zoran Žigić, 7 Feb. 2003, para. 17.

⁷⁹ *Ibid.*, para. 14.

⁸⁰ *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgment, 20 Feb. 2001, para. 590.

⁸¹ Blakesley (1998) 13*bis* NEP 69, 87.

tically possible contrary inferences’.⁸² On the other hand, Judge van den Wyngaert in her dissent to the *Katanga* judgment stated that ‘It is ... my firm belief that another reasonable reading of the evidence is possible in this case.’⁸³ This debate seems to centre on whether the requirement of proof beyond reasonable doubt necessitates the exclusion of every other reasonable hypothesis that can be drawn from the evidence.⁸⁴ In the *Ngudjolo* Appeals Judgment, the Appeals Chamber found no error in the Trial Chamber’s means of assessing the facts,⁸⁵ although Judges Trendafilova and Tarfusser issued a dissenting opinion where they criticised the Trial Chamber’s ‘fragmentary’ approach to factual findings.⁸⁶

Common law judges have devoted considerable effort to defining the notion of reasonable doubt, generally in an attempt to provide clear instructions for lay jurors. This is surely less important for experienced judges such as those likely to be elected to the Court. In *Delalić* the Trial Chamber of the ICTY adopted a common-law definition:

‘A reasonable doubt is a doubt which the particular jury entertain in the circumstances. Jurymen themselves set the standard of what is reasonable in the circumstances. It is that ability which is attributed to them which is one of the virtues of our mode of trial: to their task of deciding facts they bring to bear their experience and judgment’.⁸⁷

But the Court’s judges are not lay jurors, and the reference of the Tribunal in *Čelebići* is puzzling. Simply put, ‘reasonable doubt’ means a doubt that is founded in reason. It does not mean ‘any doubt’, ‘beyond a shadow of a doubt’, ‘absolute certainty’ or ‘moral certainty’⁸⁸. Nor, on the other end of the scale, does it imply ‘an actual substantive doubt’ or ‘such doubt as would give rise to a grave uncertainty’⁸⁹. Courts have, but rarely, endorsed other attempts to explain the notion of reasonable doubt: ‘feel sure and satisfied’⁹⁰, ‘honest and fair doubt ... a doubt based upon reason and common sense’⁹¹. However, as a general rule, they have warned against attempts to rephrase the standard. According to Lord Goddard: ‘By using the words ‘reasonable doubt’ and trying to explain what is reasonable doubt and what is not, judges are more likely to confuse juries than if they told them in plain language: ‘It is the duty of the prosecution to satisfy you of the man’s guilt’⁹². Similarly, according to Lord Lawton, ‘... if judges stopped trying to define that which is almost impossible to define there would be fewer appeals’⁹³.

C. Special remarks

I. Non-respect by other bodies

In its General Comment on article 14, the Human Rights Committee has insisted that the presumption of innocence imposes a duty on all public authorities to ‘refrain from prejudging the outcome of a trial’⁹⁴. According to the European Commission of Human Rights,

⁸² *Prosecutor v. Ngudjolo Chui*, ICC-01/04-02/12, Prosecution’s Document in Support of Appeal against the ‘Jugement rendu en application de l’article 74 du Statut’, 3 Apr. 2013.

⁸³ *Prosecutor v. Katanga*, Judgment, Minority Opinion of Judge Christine van den Wyngaert, ICC-01/04-01/07-3436, 7 Mar. 2014, para. 134.

⁸⁴ Klamberg, *Evidence in International Criminal Trials* (2013) 3.

⁸⁵ *Prosecutor v. Ngudjolo Chui*, ICC-01/04-02/12, Judgment on the Prosecutor’s Appeal against the Decision of Trial Chamber II entitled ‘Judgment Pursuant to Article 74 of the Statute’, 7 Apr. 2015.

⁸⁶ *Prosecutor v. Ngudjolo Chui*, see note 90, Joint Dissenting Opinion of Judge Ekaterina Trendafilova and Judge Cuno Tarfusser, para 41; see further, McDermott (2015) 13 *JICJ* 507.

⁸⁷ *Prosecutor v. Delalić et al.*, see note 47, para. 600; citing *Green v. R.*, (1972) 46 *ALJR* 545.

⁸⁸ *Victor v. Nebraska*, 127 L.Ed.2 d 583 (1994).

⁸⁹ *Cage v. Louisiana*, 498 U.S. 39 (1990); *Sullivan v. Louisiana*, 113 S.Ct. 2078 (1993).

⁹⁰ *Ferguson v. The Queen*, [1979] 1 All E.R. 877, 882 (P.C.); *Regina v. Allan*, [1969] 1 All.E.R. 91, 92.

⁹¹ *Regina v. Tuckey, Baynham and Walsh*, (1985) 20 C.C.C. (3d) 502 (Ont. C.A.).

⁹² *R. v. Kritz*, [1949] 2 All E.R. 406, 410.

⁹³ *R. v. Yap Chuan Ching*, (1976) 63 Cr.App.R. 7, 11. See also: *Miks v. United States*, 103 U.S. 304, 312 (1880).

⁹⁴ See note 56.

‘It is a fundamental principle embodied in [the presumption of innocence] which protects everybody against being treated by public officials as being guilty of an offence before this is established according to law by a competent court. Article 6, paragraph 2, therefore, may be violated by public officials if they declare that somebody is responsible for criminal acts without a court having found so. This does not mean, of course, that the authorities may not inform the public about criminal investigations. They do not violate article 6, paragraph 2, if they state that a suspicion exists, that people have been arrested, that they have confessed, etc. What is excluded, however, is a formal declaration that somebody is guilty’⁹⁵.

- 28 The transposition of these notions, which are related to domestic prosecutions, to the international context, leads to some interesting observations. The ‘authorities’ on the international scene will be such bodies as the Commission on Human Rights, the High Commissioner for Human Rights, the Security Council, the General Assembly and the Secretary General. If, for example, the General Assembly charges that genocide has been committed by the leaders of a given regime, can they invoke this essentially political accusation before the ICC in claiming that the presumption of innocence has been denied⁹⁶? The answer, of course, is that there may well be a denial of the presumption of innocence but that it has not been committed by the Court itself. Nevertheless, the Court may find itself required to adopt innovative solutions in cases where a violation of the presumption of innocence by a body that is not subordinate to or subject to the control of the Court has the effect of compromising the right to a fair trial.

II. Majority or unanimity?

- 29 Arguably, the presumption of innocence may require that decisions by the Court, particularly given the seriousness of the charges and of the available sentences, be unanimous. Certainly where questions of fact are at issue, is it not logical to conclude that where one member of the Court has a reasonable doubt, this should be enough to create a reasonable doubt in the minds of the tribunal as a whole⁹⁷? Compelling as the suggestion may be – and it was argued by some delegates at the Rome Conference – the *Statute* provides clearly that in case of division, a majority of the Court will suffice for a finding of guilt⁹⁸.

III. Judicial notice

- 30 Article 67 para. 6 of the *Statute* authorises the Court to take judicial notice of facts of common knowledge. In some cases, this has gone beyond banal facts whose proof merely consumes valuable judicial time, and has involved judicial notice of issues lying at the core of the prosecution. For example, the International Criminal Tribunal for Rwanda has taken judicial notice of the fact that genocide took place in Rwanda during 1994⁹⁹. By the

⁹⁵ *Krause v. Switzerland* (App. No. 7986/77), (1978) 13 D.R. 73. Also, from the Court: *Allenet de Ribemont v. France*, Series A, No. 308, 10 Feb. 1995, paras. 37, 41. See: White and Ovey, *Jacobs, White and Ovey: The European Convention on Human Rights* (2010) 289.

⁹⁶ For example, in a resolution denouncing the atrocities in Srebrenica, SC Res.1034 (1995), the Security Council singled out for special mention the Bosnian Serb leaders Radovan Karadžić and Ratko Mladić, noting that they had been indicted by the International Criminal Tribunal for their responsibilities in the massacre. The word ‘alleged’ did not accompany the reference to their responsibilities. The resolution ‘[c]ondemn[ed] in particular in the strongest possible terms the violations of international humanitarian law and of human rights by Bosnian Serb and paramilitary forces in the areas of Srebrenica ...’. The High Representative for implementation of the Dayton Agreement, Carlos Westendorp, declared that the situation in Bosnia could not be ‘normalized’ until Karadžić was brought before the International Tribunal; such a statement could hardly be made if he was truly presumed innocent (press briefing of 27 July 1998).

⁹⁷ For such a suggestion, see Pruitt (1997) 10 *LeidenJIL* 557.

⁹⁸ Rome Statute, see note 36, article 74 para. 3.

⁹⁹ *Prosecutor v. Karemera et al.*, ICTR-98-44-AR73(C), Decision on Prosecutor’s Interlocutory Appeal of Decision on Judicial Notice, 16 June 2006.

admission of evidence in this manner, some have argued that this creates an evidentiary presumption and requires the defendant to disprove facts, thereby raising issues of compliance with the presumption of innocence. There is some controversy about the legal consequences of judicial notice. Some judgments of international tribunals suggest that it creates a well-founded presumption that the fact in question is accurate, and that it does not have to be proven again at trial, although subject to that presumption it may still be challenged at that trial¹⁰⁰. Judge Hunt of the Appeals Chamber of the International Criminal Tribunal for the former Yugoslavia disagreed with this proposition, saying that it was inappropriate to impose a reputable presumption in favour of the Prosecutor. This necessarily placed a burden of proof upon the accused, something that is contrary to the presumption of innocence, he said¹⁰¹. Judge Shahabuddeen disagreed, noting that a distinction should be made between facilitating proof and dispensing with proof:

‘It is not said that the accused must prove his innocence; the position still is that the prosecution must prove guilt. All that the law does is that it facilitates proof by allowing a party to adduce required evidence in a certain way. What is the value of that evidence is then a matter for the parties in the ordinary way. In establishing the value of the evidence – including evidence given by judicial notice being taken of adjudicated facts – the accused is entitled to a right of rebuttal’¹⁰².

The Appeals Chamber of the Special Court for Sierra Leone has taken the position that once judicial notice has been taken of a fact, the evidentiary inquiry is concluded and the fact cannot be contested¹⁰³. Judge Robertson explained that facts judicially noticed must be ‘invincible’, because otherwise, ‘the doctrine would serve little purpose’¹⁰⁴.

IV. Evidence of similar conduct

The Rules of Procedure and Evidence make no special provision for admissibility of evidence for the purpose of showing a consistent pattern of conduct relevant to serious violations of international humanitarian law. The Rules of the three United Nations international criminal tribunals allow such evidence in the interests of justice¹⁰⁵. This may threaten the presumption of innocence of the accused, in that evidence of crimes not alleged in the indictment is used to establish guilt for the acts on which the prosecution is based. It is not to be confused with evidence of good character, which the defence may choose to present in an appropriate case¹⁰⁶. The Appeals Chamber of the International Criminal Tribunal for the former Yugoslavia has noted ‘under the so-called principle of ‘similar fact evidence’, courts in England and Wales, Australia and the United States admit evidence of crimes or wrongful acts committed by the defendant other than those charged in the indictment, if the other crimes are introduced to demonstrate a special knowledge, opportunity, or identification of the defendant that would make it more likely that he committed the instant crime as well’¹⁰⁷.

¹⁰⁰ *Prosecutor v. Milošević*, IT-02-54-AR73.5, Decision on the Prosecution’s Interlocutory Appeal Against the Trial Chamber’s 10 April 2003 Decision on Prosecution Motion for Judicial Notice of Adjudicated Facts, 28 Oct. 2003; *Prosecutor v. Krajisnik*, IT-00-39&40, Decision on Prosecution’s Motion for Judicial Notice of Adjudicated Facts and Admission of Written Statements of Witnesses Pursuant to Rule 92bis, 28 Feb. 2003, para. 15.

¹⁰¹ *Prosecutor v. Milošević*, IT-02-54-AR73.5, Dissenting Opinion of Judge David Hunt, 28 Oct. 2003.

¹⁰² *Prosecutor v. Milošević*, IT-02-54-AR73.5, Separate Opinion of Judge Shahabuddeen Appended to the Appeals Chamber’s Decision dated 28 October 2003 on the Prosecution’s Interlocutory Appeal against the Trial Chamber’s 10 April 2003 Decision on Prosecution Motion for Judicial Notice of Adjudicated Facts, 28 Oct. 2003.

¹⁰³ *Prosecutor v. Norman et al.*, SCSL-04-14-AR73, Fofana – Decision on Appeal Against ‘Decision on Prosecution’s Motion for Judicial Notice and Admission of Evidence’, 16 May 2005, para. 32.

¹⁰⁴ *Prosecutor v. Norman et al.*, SCSL-04-14-AR73, Separate Opinion of Justice Robertson, 16 May 2005, para. 9.

¹⁰⁵ Rules of Procedure and Evidence [of the International Criminal Tribunal for the former Yugoslavia], Rule 93(A); Rules of Procedure and Evidence of the International Criminal Tribunal for Rwanda, Rule 93(A); Rules of Procedure and Evidence of the Special Court for Sierra Leone, Rule 93(A).

¹⁰⁶ *Prosecutor v. Bagilishema*, ICTR-95-1A-T, Judgment, 7 June 2001, para. 114.

¹⁰⁷ *Prosecutor v. Kupreškić et al.*, IT-95-16-A, Appeal Judgment, 23 Oct. 2001, para. 321.

For example, evidence of various sniping incidents for which the accused, Galić, was alleged to be responsible was presented in evidence in order to establish a consistent pattern of conduct¹⁰⁸. Testimony by a woman who had been victimised by Mlado Radić was also admitted on this basis, although the acts were not mentioned in the indictment.¹⁰⁹ In the same case, similar fact evidence was also admitted against Zoran Žigić¹¹⁰. The Appeals Chamber of the International Criminal Tribunal for the former Yugoslavia admitted evidence that Drago Josipović had participated in an attack of the same nature, in the same vicinity and during the same time period as the acts charged, in order to establish a pattern indicating guilt for the attack in Ahmici on 16 April 1993¹¹¹. Because there is no provision on similar fact evidence in the *Statute* and in the Rules of Procedure and Evidence of the International Criminal Court, its judges will have to decide in specific cases whether or not such evidence is admissible. In so doing, they need to consider the tension this may create with the presumption of innocence.

V. Provisional release

- 32 Most of the discussion about the presumption of innocence in the case law of international criminal tribunals has concerned applications for provisional release. Article 9 para. 3 of the *International Covenant on Civil and Political Rights*, in what is said to be a corollary of the presumption of innocence, states that '[i]t shall not be the general rule that persons awaiting trial shall be detained in custody'. In an early decision of the International Criminal Tribunal for the former Yugoslavia, President Cassese said he was striking a balance between two main interests, namely 'the right of all detainees to be treated in a human manner in accordance with the fundamental principles of respect for their inherent dignity and the presumption of innocence' and the imperatives of security and order¹¹². In a later debate, following the amendment of the Rules of Procedure and Evidence to remove the 'exceptional circumstances' condition for provisional release¹¹³, Judge Robinson said that '[w]hile the Tribunal's lack of a police force, its inability to execute its arrest warrants in States and its corresponding reliance on States for such execution may be relevant in considering an application for provisional release, on no account can that feature of the Tribunal's regime justify either imposing a burden on the accused in respect of an application under Rule 65 or rendering more substantial such a burden, or warranting a detention of the accused for a period longer than would be justified having regard to the requirement of public interest, the presumption of innocence and the rule of respect for individual liberty'. He said it was a norm of customary international law, based on the presumption of innocence, 'to make pre-trial detention an exception, which is only permissible in special circumstances'¹¹⁴. Another judge said that 'as a general rule, a decision to release an accused should be based on an assessment of whether public interest requirements, notwithstanding the presumption of innocence, outweigh the need to ensure, for an accused, respect for the right to liberty of person'¹¹⁵.

The Appeals Chamber of the Special Court for Sierra Leone has taken a substantially different position, rejecting any relevance of the presumption of innocence to the determination of provisional release. 'Whether a defendant will turn up for trial or intimidate witnesses

¹⁰⁸ *Prosecutor v. Galić*, IT-98-29-T, Decision on the Motion for the Entry of Acquittal of the Accused Stanislav Galić, 3 Oct. 2002, fn. 1.

¹⁰⁹ *Prosecutor v. Kvočka et al.*, IT-98-30/1-T, Judgment, 2 Nov. 2001, paras. 547, 556.

¹¹⁰ *Ibid.*, paras. 652, 663, 664.

¹¹¹ *Prosecutor v. Kupreškić et al.*, IT-95-16-A, Appeal Judgment, 23 Oct. 2001, para. 322.

¹¹² *Prosecutor v. Blaškić*, IT-95-14-T, Decision on Motion of Defence Seeking Modification of Detention of General Blaškić, 9 Jan. 1997.

¹¹³ Rules of Procedure and Evidence [of the International tribunal for the former Yugoslavia], Rule 65 (B).

¹¹⁴ *Prosecutor v. Krajisnik et al.*, IT-00-39 & 40-PT, Decision on Momcilo Krajisnik's Notice of Motion for Provisional Release, 8 Oct. 2001, Dissenting Opinion of Judge Patrick Robinson.

¹¹⁵ *Prosecutor v. Jokić et al.*, IT-01-42-PT and IT-01-46-PT, Orders on Motions for Provisional Release, 20 Feb. 2002.

cannot logically be affected by the burden or standard of proof that will prevail at his trial, nor by presuming him innocent or guilty of the offences charged (since innocent defendants may nevertheless try to avoid a lengthy trial or to threaten those who have made statements against them)¹¹⁶. The Appeals Chamber cited a ruling of the United States Supreme Court in this respect: '[T]he presumption of innocence is a doctrine that allocates the burden of proof in criminal trials... [b]ut it has no application to a determination of the rights of a pre-trial detainee during confinement before his trial has even begun'¹¹⁷.

The first decisions of the International Criminal Court concerning provisional release made no reference to the presumption of innocence¹¹⁸. By 2010, however, the Court had noted that '[t]his procedural safeguard must also be seen in the context of the detained person's right to be presumed innocent'¹¹⁹, and this approach has been followed in later rulings.¹²⁰

¹¹⁶ *Prosecutor v. Norman et al.*, SCSL-04-14-AR65, Fofana – Appeal Against Decision Refusing Bail, 11 Mar. 2005, para. 37.

¹¹⁷ *Bell v. Wolfish*, 441 US 520, 533 (1979).

¹¹⁸ *Prosecutor v. Lubanga*, ICC-01/04-01/06 (OA 7), Judgment on the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled 'Décision sur la demande de mise en liberté provisoire de Thomas Lubanga Dyilo', 13 Feb. 2007; *Prosecutor v. Lubanga*, ICC-01/04-01/06, Decision on the Application for the interim release of Thomas Lubanga Dyilo, 18 Oct. 2006.

¹¹⁹ *Prosecutor v. Bemba*, ICC-01/05-01/08, Judgment on the appeal of Mr Jean-Pierre Bemba Gombo against the decision of Trial Chamber III of 28 July 2010 entitled 'Decision on the review of the detention of Mr Jean-Pierre Bemba Gombo pursuant to Rule 118(2) of the Rules of Procedure and Evidence', 19 Nov. 2010, para. 49.

¹²⁰ See, for example, *Prosecutor v. Ntaganda*, ICC-01/04-02/06, Judgment on the appeal of Mr Bosco Ntaganda against the decision of Pre-Trial Chamber II of 18 November 2013 entitled 'Decision on the Defence's Application for Interim Release', 5 Mar. 2014, Dissenting Opinion of Judge Anita Ušacka, para. 4.

Article 67

Rights of the accused

1. In the determination of any charge, the accused shall be entitled to a public hearing, having regard to the provisions of this Statute, to a fair hearing conducted impartially, and to the following minimum guarantees, in full equality:

- (a) To be informed promptly and in detail of the nature, cause and content of the charge, in a language which the accused fully understands and speaks;
- (b) To have adequate time and facilities for the preparation of the defence and to communicate freely with counsel of the accused's choosing in confidence;
- (c) To be tried without undue delay;
- (d) Subject to article 63, paragraph 2, to be present at the trial, to conduct the defence in person or through legal assistance of the accused's choosing, to be informed, if the accused does not have legal assistance, of this right and to have legal assistance assigned by the Court in any case where the interests of justice so require, and without payment if the accused lacks sufficient means to pay for it;
- (e) To examine, or have examined, the witnesses against him or her and to obtain the attendance and examination of witnesses on his or her behalf under the same conditions as witnesses against him or her. The accused shall also be entitled to raise defences and to present other evidence admissible under this Statute;
- (f) To have, free of any cost, the assistance of a competent interpreter and such translations as are necessary to meet the requirements of fairness, if any of the proceedings or documents presented to the Court are not in a language which the accused fully understands and speaks;
- (g) Not to be compelled to testify or to confess guilt and to remain silent, without such silence being a consideration in the determination of guilt or innocence;
- (h) To make an unsworn oral or written statement in his or her defence; and
- (i) Not to have imposed on him or her any reversal of the burden of proof or any onus of rebuttal.

2. In addition to any other disclosure provided for in this Statute, the Prosecutor shall, as soon as practicable, disclose to the defence evidence in the Prosecutor's possession or control which he or she believes shows or tends to show the innocence of the accused, or to mitigate the guilt of the accused, or which may affect the credibility of prosecution evidence. In case of doubt as to the application of this paragraph, the Court shall decide.

Literature: Ambos, K., 'The Right of Non-Self-Incrimination of Witnesses Before the ICC', (2002) 15 *LeidenJIL* 155 (2002); *id.*, 'Confidential Investigations (Article 54(3)(E) ICC Statute) vs. Disclosure Obligations: The Lubanga Case and National Law' (2009) 12 *NethCLR* 543; Baum, M., 'Pursuing Justice in a Climate of Moral Outrage: An Evaluation of the Rights of the Accused in the Rome Statute of the International Criminal Court', (2001) 19 *WisconsinILJ* 197; Beresford, S. and Lahiouel, H., 'The Right to be Defended in Person or Through Legal Assistance and the International Criminal Court', (2000) 13 *LeidenJIL* 949; Converti, A., 'The Rights of the Accused', in: F. Lattanzi (ed.) *The International Criminal Court: Comments on the Draft Statute* (Editoriale Scientifica 1998) 219; Damaška, M., 'The Competing Visions of Fairness: The Basic Choice for International Criminal Tribunals', (2001) 36 *NCJIL&ComReg* 365; Elberling, B., *The Defendant in International Criminal Proceedings* (Hart 2012); Doswald-Beck, L., and Kolb, R., *Judicial Process and Human Rights: United Nations, European, American and African Systems* (Engel 2004); Friman, H., 'Rights of Persons Suspected or Accused of a Crime', in: R. S. Lee (ed.), *The International Criminal Court: The Making of the Rome Statute – Issues, Negotiations, and Results* (Kluwer Law International 1999) 247; Harris, D.J., O'Boyle, M., Bates M., and Buckley, C., *Harris, O'Boyle and Warbrick: Law of the European Convention on Human Rights*, iii (OUP 2014); Heinze, A., *International Criminal Procedure and Disclosure* (Duncker and Humblot 2014); Jackson, J., 'Finding the Best Epistemic Fit for International Criminal Tribunals: Beyond the Adversarial-Inquisitorial Dichotomy' (2009) 7 *JICJ* 17; Kochavi, A.J., *Prelude to Nuremberg, Allied War Crimes Policy and the Question of Punishment* (UNC Press 1998); La Rosa, A.-M., 'Réflexions sur l'apport du Tribunal pénal international pour l'ex-Yougoslavie au droit à un procès équitable' (1997) 101 *RevGenDroitInt'Public* 945; *id.*, 'Défi de taille pour les Tribunaux pénaux internationaux: conciliation des exigences du droit international humanitaire et d'une procédure équitable',

(1997) 828 *RICR* 677; May, R., and Wierda, M., *International Criminal Evidence* (Transnational 2002); McDermott, Y., 'General Duty to Ensure the Right to a Fair and Expeditious Trial' in G. Sluiter *et al.* (eds.) *International Criminal Procedure: Rules And Principles* (OUP 2013) 770; *id.*, 'Rights in Reverse: A Critical Analysis of Fair Trial Rights under International Criminal Law' in W. A. Schabas *et al.* (eds.), *The Ashgate Research Companion to International Criminal Law* (Ashgate 2013) 165; Stahn, C., 'Between 'Faith' and 'Facts': By What Standards Should We Assess International Criminal Justice?' (2012) 25 *LeidenJIL* 251; Stapleton, S., 'Ensuring a Fair Trial in the International Criminal Court: Statutory Interpretation and the Impermissibility of Derogation', (1999) 31 *NYUJIL&Pol* 535; Trechsel, S., *Human Rights in Criminal Proceedings* (OUP 2005); Tolbert, D., 'The ICTY and Defence Counsel: A Troubled Relationship' (2003) 37 *NewEnglandLJ* 9751 Weissbrodt, D., *The Right to a Fair Trial under the Universal Declaration of Human Rights and the International Covenant on Civil and Political Rights* (Martinus Nijhoff 2001); White, R.C.A. and Ovey, C., *Jacobs, White and Ovey: The European Convention on Human Rights* (OUP 2010); Zappalà, S., 'Rights of the Accused', in: A. Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002) 1319.

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A. Introduction/General remarks

During the Second World War, Churchill and other Allied leaders flirted with the idea of 1 some form of summary justice for major war criminals¹. The concept now is unthinkable. Indeed, only a few years later, one of the Nuremberg Tribunals held that prosecutors and judges involved in a trial lacking the fundamental guarantees of fairness could be held responsible for crimes against humanity. Such guarantees include the right of the accused to introduce evidence, to confront witnesses, to present evidence, to be tried in public, to have counsel of choice, and to be informed of the nature of the charges². Certainly, the credibility of international justice depends on rigorous respect for the rights of the accused to a fair trial,

¹ Kochavi, *Prelude to Nuremberg: Allied War Crimes Policy and the Question of Punishment* (1998) 63–91.

² *United States of America v. Alstötter et al.* ('Justice trial'), (1948) 3 TWC 1, 6 LRTWC 1, 14 I.L.R. 278, p. 97 (LRTWC).

an idea that was frequently expressed during the development of the ICC *Statute*. Nor can the exemplary role of international courts be gainsaid; their treatment of the accused provides a model to domestic justice systems throughout the world in the respect of fundamental human rights.

- 2 The *Statute* might well have omitted a general provision dealing with the rights of the accused. Many specific guarantees are incorporated in other articles of the *Statute* and there can be little doubt that even in the absence of a more general text, the judges would feel bound by internationally recognized norms. Principle 5 of the *United Nations Basic Principles on the Independence of the Judiciary* provides: ‘The principle of the independence of the judiciary entitles and requires the judiciary to ensure that judicial proceedings are conducted fairly and that the rights of the parties are respected’³. The *Statute* imposes a duty upon the Trial Chamber to see that ‘a trial is fair and expeditious and is conducted with full respect for the rights of the accused’⁴. Furthermore, there is the constant danger that any codification, left in the hands of conservative judges, may tend to constrict the development of the law rather than enhance it. The original contribution of article 67 may well be that rather than merely restate norms that have already been codified, it elaborates on the relatively laconic provisions of existing texts and, moreover, develops new rights which do not yet appear in human rights treaties and declarations.
- 3 The right to a fair trial is recognized in the *Universal Declaration of Human Rights*⁵, and in the universal and regional human rights conventions that it inspired⁶, as well as in humanitarian law instruments⁷. The model for article 67 of the *Statute* is article 14 of the *ICCPR*⁸, although with some major distinctions. Article 14 of the *ICCPR* applies to civil and administrative proceedings, as well as criminal trials. Article 14 contains provisions dealing with trial of juvenile offenders⁹ which are irrelevant to the work of the ICC because of the Rome Conference’s decision to exclude jurisdiction in the case of suspects who were under eighteen years of age at the time of the offence¹⁰. The *ICCPR* fair trial provision also recognizes some specific rights that are enshrined elsewhere in the *Statute*, notably the

³ UN Doc. A/CONF.121/22/Rev.1, GA Res. 40/146 (1985). The *Basic Principles* are cited in the preamble of the International Criminal Court’s Code of Judicial Ethics, Document ICC-BD/02-01-05.

⁴ Rome Statute, article 64 para. 1.

⁵ GA Res. 217A(III), UN Doc. A/810 (1948). ‘Article 10. Everyone is entitled in full equality to a fair and public hearing by an independent and impartial tribunal, in the determination of his rights and obligations and of any criminal charge against him. Article 11 para. 3. Everyone charged with a penal offence has the right to be presumed innocent until proved guilty according to law in a public trial at which he has had all the guarantees necessary for his defence’.

⁶ ICCPR, 999 UNTS 171, entered into force 23 Mar. 1976, article 14; American Convention on Human Rights, 1144 UNTS 123, entered into force 18 July 1978, article 8; European Convention on Human Rights, 213 UNTS 221, entered into force 3 Sep. 1953, article 6; African Charter on Human and People’s Rights, OAU Doc. CAB/LEG/67/3 rev. 5, entered into force 21 Oct. 1986, article 7; Convention on the Rights of the Child, GA Res. 44/25, Annex, entered into force 2 Sep. 1990, article 40 § 2.

⁷ Geneva Convention Relative to the Treatment of Prisoners of War, 75 UNTS 135, entered into force 21 Oct. 1950, articles 84–87, 99–108; Geneva Convention Relative to the Protection of Civilians, entered into force 21 Oct. 1950, article 5, 64–76; Add. Prot. I to the 1949 Geneva Conventions and Relating to The Protection of Victims of International Armed Conflicts, 1125 UNTS 3, entered into force 7 Dec. 1978, article 75; Add. Prot. II to the 1949 Geneva Conventions and Relating to The Protection of Victims of Non- International Armed Conflicts, 1125 UNTS 3, entered into force 7 Dec. 1978, article 6.

⁸ It was also the model for the provisions dealing with the rights of the accused in the Statute of the International Criminal Tribunal for the former Yugoslavia [ICTY], UN Doc. S/RES/827, Annex, article 21, and the Statute of the International Criminal Tribunal for Rwanda [ICTR], UN Doc. S/RES/955, Annex, article 20. The Secretary-General’s Report, UN Doc. S/25704, para. 106, stated: ‘It is axiomatic that the International Tribunal must fully respect internationally recognized standards regarding the rights of the accused at all stages of its proceedings. In the view of the Secretary-General, such internationally recognized standards are, in particular, contained in article 14 of the International Covenant on Civil and Political Rights’.

⁹ See note 6, ICCPR, article 14 paras. 1, 4.

¹⁰ See note 4, Rome Statute, article 26.

presumption of innocence¹¹, a right of appeal¹², to compensation in cases of erroneous conviction¹³, and to protection against double jeopardy¹⁴.

The ILC Draft Statute of 1994 contained a provision entitled 'Rights of the Accused' that was essentially a copy of article 14 para. 3 of the ICCPR¹⁵. The only significant departure was inclusion of a second paragraph requiring the prosecutor to disclose exculpatory evidence to the defence. In addition, the ILC made the text gender neutral, replacing masculine pronouns with reference to 'the accused'. In 1995, the *Ad Hoc* Committee of the General Assembly examined the ILC Draft Statute, observing that 'in view of the considerable powers [the Court] would enjoy in relation to individuals, [it] should be bound to apply the highest standards of justice, integrity and due process'¹⁶. Its discussion focussed on the issue of mandatory legal assistance, and on the need to establish rules on the qualifications, powers and remuneration of defence attorneys, and on the procedure for their appointment by the Court¹⁷.

Rights of the accused were considered by the informal working group at the August 1996 session of the Preparatory Committee, and a number of detailed comments and suggestions on specific points appear in the report of these discussions¹⁸. The subject was again addressed by the Preparatory Committee in August 1997. By this point, the innovative spirit of the Preparatory Committee was becoming apparent, and there were many departures from the text of article 14 para. 3 of the ICCPR, several of them without square brackets, indicating that they had been agreed to by consensus¹⁹. There were also many cross-references to other provisions in the *Statute*, showing the Committee's concern that the rights of the accused not only be recognized generally, but that they be reflected in specific procedural provisions. In addition to 'improved' versions of the rights set out in article 14 of the ICCPR, the Committee's 1997 draft also contained several new rights: to make an unsworn statement, to have the Court seek co- operation in gathering evidence, to be protected against any reverse onus or duty of rebuttal, to be free from unjust search and seizure, and a general entitlement to due process. The August 1997 Preparatory Committee's text was reproduced in the Zutphen compilation and the Final Draft of the Preparatory Committee with little modification²⁰.

The Rome Conference quickly agreed on most of the provisions in article 67. It was made quite clear to the delegates that the minimum guarantees enshrined in article 14 of the ICCPR were being enlarged, and they were invited to accept or reject such an approach. The Conference adopted the latter route without hesitation. Negotiating difficulties with the provisions concerning appearance at trial, funded counsel and disclosure of evidence by the prosecution took slightly more time to be resolved. The proposals concerning search and seizure and due process were dropped as being redundant.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Chapeau

The *chapeau* provision of article 67 is an amalgam of norms contained in paras. 1 and 3 of article 14 of the ICCPR. In effect, it takes the *chapeau* of article 14 para. 3 of the ICCPR, with

¹¹ See note 6, ICCPR, article 14 para. 2. See: see note 4, Rome Statute, article 66.

¹² See note 6, ICCPR, article 14 para. 5. See: see note 4, Rome Statute, articles 81–84.

¹³ See note 6, ICCPR article 14 para. 6. See: see note 4, Rome Statute, article 85.

¹⁴ See note 6, ICCPR, article 14 para. 7. See: see note 4, Rome Statute, article 20.

¹⁵ 1994 ILC Draft Statute, article 41, pp. 114–115.

¹⁶ *Ad Hoc* Committee Report, para. 129, p. 29.

¹⁷ *Ibid.*, para. 175, p. 35.

¹⁸ 1996 Preparatory Committee I, paras. 270–279, pp. 57–59.

¹⁹ Preparatory Committee Decisions Aug. 1997, pp. 34–36.

²⁰ Zutphen Draft, pp. 114–115; Draft Statute for the ICC, UN Doc. A/CONF.183/2/Rev.1, pp. 126–128.

minor modifications, and adds the notions of a public, fair and impartial hearing that appear in article 14 para. 1. The text differs significantly from the original ILC Draft²¹ and reflects a proposal made at the Rome Conference, on 2 July, by the Chair of the Working Group²².

- 8 a) ‘any charge’. The reference to ‘any charge’ must apply to trials on accusations based on the four core crimes enumerated in article 5 of the *Statute*. The Court is also competent to judge ‘[o]ffences against the administration of justice’, pursuant to article 70, and the rights of an accused would also apply in such proceedings. Some adaptation would appear to be required in proceedings for removal of a Registrar or Deputy Registrar, pursuant to article 46 para. 3 of the *Statute*, as these are not criminal in nature. Where the rights set out in article 67 do not apply necessarily in other proceedings before the Court, for example those relating to a hearing subsequent to a decision by the Prosecutor not to proceed with charges²³ or to conduct an investigation²⁴. Indeed, rights during an investigation are set out in a distinct provision of the *Statute*²⁵. Nevertheless, the phrase ‘in the determination of any charge’ is essentially identical to the wording of the international models, such as article 6 para. 1 of the *European Convention on Human Rights*²⁶.

The European Court of Human Rights considers this to be ‘the official notification given to an individual by the competent authority of an allegation that he has committed a criminal offence’ or an act that has ‘the implication of such an allegation and which likewise substantially affects the situation of the suspect’²⁷. An individual might become ‘substantially affected’, to borrow the Strasbourg terminology, once a State party has asked that a case be examined²⁸, or upon the application by the Prosecutor to initiate an investigation²⁹. If notions of complementarity are factored in, the right may even be extended to encompass proceedings under domestic law prior to exercise of jurisdiction of the Court.

- 9 b) ‘public hearing’. The principle of a public hearing, stated in the *chapeau* of article 67 para. 1, is developed in the Regulations of the Court. Regulation 20 states:
1. All hearings shall be held in public, unless otherwise provided in the Statute, Rules, these Regulations or ordered by the Chamber.
 2. When a Chamber orders that certain hearings be held in closed session, the Chamber shall make public the reasons for such an order.
 3. A Chamber may order the disclosure of all or part of the record of closed proceedings when the reasons for ordering its non-disclosure no longer exist.

The Regulations provide for broadcasting and recording of hearings. Subregulation 21 para. 1 says that ‘publicity of hearings may extend beyond the courtroom and may be through broadcasting by the Registry or release of transcripts or recordings, unless otherwise ordered by the Chamber’. According to subregulation 21 para. 2, ‘[i]n order to protect

²¹ See note 15, 1994 ILC Draft Statute, article 41: ‘In the determination of any charge under this Statute, the accused is entitled to a fair and public hearing, subject to article 43, and to the following minimum guarantees: ...’.

²² Draft proposal for article 67 submitted by the chairman, UN Doc. A/CONF.183/C.1/WGPM/L.42 (2 July): ‘In the determination of any charge, the accused is entitled to a public hearing, having regard to the provisions of this Statute, to a fair hearing conducted impartially, and to the following minimum guarantees in full equality.’ It was adopted by the Committee with the addition of the word ‘and’ before the words ‘to a fair hearing’: Report of the Working Group on Procedural Matters, UN Doc. A/CONF.183/C.1/WGPM/L.2 (4 July), pp. 4–5. The Drafting Committee removed the word ‘and’, and made other minor changes, Compendium of draft articles referred to the Drafting Committee by the Committee of the Whole as of 9 July 1998, UN Doc. A/CONF.183/C.1/L.58, pp. 41–42: ‘In the determination of any charge, the accused shall be entitled to a public hearing, having regard to the provisions of this Statute, to a fair hearing conducted impartially, and to the following minimum guarantees, in full equality’.

²³ See note 4, Rome Statute, article 53 para. 3.

²⁴ *Ibid.*, articles 56–58.

²⁵ *Ibid.*, article 55.

²⁶ See note 6.

²⁷ *Corigliano v. Italy*, Ser. A, No. 57, 10 Dec. 1982, para. 34.

²⁸ See note 4, Rome Statute, article 14 para. 1.

²⁹ *Ibid.*, article 15 para. 3.

sensitive information, broadcasts of audio- and videorecordings of all hearings shall, unless otherwise ordered by the Chamber, be delayed by at least 30 minutes³⁰.

The text of article 67 of the *Statute* differs from that of article 14 of the *ICCPR* in that it does not enumerate the exceptions to the right to a public hearing. Article 14 para. 1 of the *ICCPR* allows the exclusion of the press and the public 'for reasons of morals, public order (*ordre public*) or national security in a democratic society, or when the interest of the private lives of the parties so requires, or to the extent strictly necessary in the opinion of the court in special circumstances where publicity would prejudice the interests of justice'. Moreover, according to the *ICCPR*, the judgment must always be made public 'except where the interest of juvenile persons otherwise requires'³¹. A detailed enumeration of exceptions to the public hearing principle had been proposed but was rejected by the Preparatory Committee. These derogations included: the deliberations of the Court; protection of public order or of human dignity; the safety and protection of the accused, of the victims or of witnesses. Victims of sexual violence were to be entitled as of right to an *in camera* hearing³².

To the extent there is a residual power to derogate from the norm of a public hearing, it is found in article 64 para. 7: 'The trial shall be held in public. The Trial Chamber may, however, determine that special circumstances require that certain proceedings be in closed session for the purposes set forth in article 68, or to protect confidential or sensitive information to be given in evidence'. That the public hearing requirement of the *chapeau* of article 67 is subordinate to article 64 para. 7 is implied by the words 'having regard to the provisions of this Statute' in the *chapeau*. In any case, the exceptions listed in article 64 para. 7 are presented in a more elaborate fashion in articles 68, 69 and 72. According to the Regulations of the Court, '[a]t the request of a participant or the Registry, or *proprio motu* ... the Chamber may, in the interests of justice, order that any information likely to present a risk to the security or safety of victims, witnesses or other persons, or likely to be prejudicial to national security interests, shall not be published in any broadcast, audio- or video-recording or transcript of a public hearing'³³.

Article 68 concerns the protection of victims and witnesses. Specifically, article 68 para. 2 provides: 'As an exception to the principle of public hearings provided for in article 67, the Chambers of the Court may, to protect victims and witnesses or an accused, conduct any part of the proceedings in camera or allow the presentation of evidence by electronic or other special means. In particular, such measures shall be implemented in the case of a victim of sexual violence or a child who is a victim or a witness, unless otherwise ordered by the Court, having regard to all the circumstances, particularly the views of the victim or witness'. The already elaborate case law of the *ad hoc* Tribunals in this matter should guide the Court in this difficult area³⁴. A mere glance at the jurisprudence of the Court indicates just how dramatic an impact issues concerning victim and witness protection can have on the general principle of public hearing and access to the record. Many hearings are held totally or partially in camera, and decisions are often published in severely redacted versions.

The second exception allowed by article 64 para. 7 is the protection of confidential or sensitive information³⁵. Confidential or sensitive information may have several sources. There may be claims to confidentiality based on privilege, and the Court is to respect this pursuant to article 69 para. 5, as provided for in the *Rules of Procedure and Evidence*. But the major source of problems with this exception will be information derived from sovereign

³⁰ See also Regulations of the Registry, Document ICC-BD/03-01-06, regulation 42.

³¹ Note that article 76 para. 4 of the *Statute* requires that the judgment be rendered in public.

³² 1996 Preparatory Committee II, pp. 195-196.

³³ Regulations of the Court, Document ICC-BD/01-01-04, subregulation 21 para. 8.

³⁴ For example: *Prosecutor v. Tadić*, IT-94-I-T, Decision on the Prosecutor's Motion requesting protective measures for victims and witnesses, 10 Aug. 1995; *Prosecutor v. Rutaganda*, ICTR-96-3-T, Decision on the Preliminary Motion submitted by the Prosecutor for Protective Measures for Witnesses, 26 Sep. 1996. See: La Rosa, (1997) 101 *RGDIP* 945, 962-970.

³⁵ Also note 4, Rome Statute, article 64 para. 6 (c).

States. The *Statute* allows a State to apply ‘for necessary measures’ to respect ‘confidential or sensitive information’³⁶. Other exceptions to the rule dictating a public hearing are the possibility of *in camera* and even *ex parte* hearings with respect to the protection of national security information³⁷ and the power of the court to exclude disruptive individuals, including the accused³⁸.

- 13 Article 61 para. 1 specifies the right of the accused to be present at the hearing on the confirmation of charges. But this would clearly seem to be a hearing ‘[i]n the determination of the charge’ of ‘an accused’, and therefore the public hearing rule ought to apply. In other words, not only the accused but also the public should have access to such proceedings. The first confirmation hearing, that of Thomas Lubanga, was accordingly held in public with considerable publicity. Pre-Trial Chamber even made an order authorizing photography by representatives of the media³⁹.
- 14 c) ‘having regard to the provisions of this Statute’. The words ‘having regard to the provisions of this Statute’ suggest that article 67 can be limited by express provisions to the contrary. An example would be article 64 para. 7, which limits the right to a public hearing. The wording in the *chapeau* of article 67 is decidedly unenthusiastic. The Preparatory Committee Draft did not include any such general provision, preferring to enumerate any exceptions to the judicial guarantees recognized to the accused in a specific fashion⁴⁰. A proposal from the United Kingdom submitted at Rome eschewed any equivocation on this point, beginning the text of article 67 with the words ‘[s]ubject to the provisions of this Statute ...’⁴¹. There is a suggestion in the *travaux préparatoires* that the words ‘subject to ...’ put article 67 in a subordinate position, whereas the words ‘having regard to ...’ do not⁴².
- 15 d) ‘fair hearing’. The general right to a ‘fair hearing’ provides defendants with a powerful tool to go beyond the text of the *Statute*, and to require that the Court’s respect for the rights of an accused keep pace with the progressive development of human rights law. The Appeals Chamber has defined the term ‘fair’ as being ‘associated with the norms of a fair trial, the attributes of which are an inseverable part of the corresponding human right’ and thus its interpretation and application is subject to international human rights standards.⁴³ The notion of a fair hearing goes back, in international human rights law, to article 10 of the *Universal Declaration of Human Rights*. Of course, it is repeated in article 14 of the *ICCPR* and in the regional instruments. The case law of the Strasbourg organs, established to implement the *European Convention on Human Rights*, has used this residual right to a fair hearing to fill in some of the gaps in the more specific provisions⁴⁴. That the term ‘fair hearing’ invites the Court to go beyond the precise terms of article 67 in appropriate circumstances is confirmed by the reference within the *chapeau* to ‘minimum guarantees’⁴⁵. The term ‘fair hearing’ also suggests that where individual problems with specific rights set out in article 67 do not, on their own, amount to a violation, the requirement of a fair hearing may allow a cumulative view and lead to the conclusion that there is a breach where

³⁶ *Ibid.*, article 68 para. 6.

³⁷ *Ibid.*, article 72 para. 7.

³⁸ *Ibid.*, articles 63 para. 2, 71 para. 1.

³⁹ *Prosecutor v. Lubanga*, ICC-01/04-01/06, Ordonnance autorisant la prise de photographies à l’audience du 9 novembre 2006, 6 Nov. 2006.

⁴⁰ See note 20, Zutphen Draft, p. 114, article 60; see note 20, Draft Statute, article 67, pp. 106–108.

⁴¹ Proposal submitted by the United Kingdom of Great Britain and Northern Ireland, UN Doc. A/CONF.183/C.1/WGPM/L.33 (29 June), p. 1.

⁴² See note 18, 1996 Preparatory Committee I, p. 59, para. 279.

⁴³ *Situation in the DRC*, Judgment on the Prosecutor’s Application for Extraordinary Review of Pre-Trial Chamber I’s 31 March 2006 Decision Denying Leave to Appeal, 01/04-168, 13 July 2006, para. 11.

⁴⁴ Harris et al., *Harris, O’Boyle and Warbrick Law of the European Convention on Human Rights* (2014) 409–433.

⁴⁵ *Prosecutor v. Lubanga*, ICC-01/04-01/06, Décision relative au système définitif de divulgation et à l’établissement d’un échancier, Annexe I, Analyse de la décisions relative au système définitif de divulgation, 15 May 2006, para. 97.

there have been a number of apparently minor or less significant encroachments on article 67⁴⁶. Although article 67 falls under Part 6, the section of the *Statute* dedicated to 'The Trial', it has been held that the duty to ensure fairness extends to the pre-trial stage of proceedings.

The international case law has developed the notion of 'equality of arms' within the concept of the right to a fair trial⁴⁷. The ICTY Appeals Chamber has described the principle of equality of arms 'as being only one feature of the wider concept of a fair trial'⁴⁸. In *Tadić*, the ICTY Appeals Chamber explained that 'the principle of equality of arms falls within the fair trial guarantee under the Statute'. It continued:

[U]nder the Statute of the International Tribunal the principle of equality of arms must be given a more liberal interpretation than that normally upheld with regard to proceedings before domestic courts. This principle means that the Prosecution and the Defence must be equal before the Trial Chamber. It follows that the Chamber shall provide every practicable facility it is capable of granting under the Rules and Statute when faced with a request by a party for assistance in presenting its case. The Trial Chambers are mindful of the difficulties encountered by the parties in tracing and gaining access to evidence in the territory of the former Yugoslavia where some States have not been forthcoming in complying with their legal obligation to cooperate with the Tribunal. Provisions under the Statute and the Rules exist to alleviate the difficulties faced by the parties so that each side may have equal access to witnesses⁴⁹.

But 'equality of arms [...] does not necessarily amount to the material equality of possessing the same financial and/or personal resources',⁵⁰ although the allocation of time and witnesses to both sides must be basically proportional.⁵¹

The concept of 'equality of arms' was invoked in early decisions of the International Criminal Court. For example, according to Pre-Trial Chamber II, '[f]airness is closely linked to the concept of 'equality of arms', or of balance between the parties during the proceedings. As commonly understood, it concerns the ability of a party to a proceeding to adequately make its case, with a view to influencing the outcome of the proceedings in its favour'⁵².

e) '**conducted impartially**'. The *Statute* states that the hearing must be 'conducted impartially', whereas article 14 of the *ICCPR* requires that it be conducted 'by a competent, independent and impartial tribunal'. The Zutphen Draft referred to 'an independent and impartial tribunal'⁵³. Curiously, the statutes of the *ad hoc* Tribunals impose no requirements in this respect⁵⁴, perhaps because the Security Council considered the matter to be beyond debate, although this did not prevent defendants from raising the issue⁵⁵. At the International

⁴⁶ *Stanford v. United Kingdom*, Ser. A, No. 182-A, 30 Aug. 1990, para. 24.

⁴⁷ *Neumeister v. Austria*, Ser. A, No. 8, 11 Y.B. 822, 27 June 1968; Nowak, *UN Covenant on Civil and Political Rights: CCPR Commentary* (1994) 247. For recognition of the principle of 'equality of arms' by the ICTY, see: *Prosecutor v. Tadić*, IT-94-1-T, Separate Opinion of Judge Vohrah on Prosecution Motion for Production of Defence Witness Statements, 27 Nov. 1996, pp. 4, 7.

⁴⁸ *Prosecutor v. Kordić et al.*, IT-95-14/2-A, Decision on the Application by Mario Čerkez for Extension of Time to File his Respondent's Brief, 11 Sep. 2001, para. 5.

⁴⁹ *Prosecutor v. Tadić*, IT-94-1-A, Judgment, 15 July 1999, para. 52. The United States of America invoked the Appeals Chamber's comments before the Inter-American Commission on Human Rights, in a case dealing with capital punishment, as authority for the proposition that 'equality of arms' concerns procedural but not substantive equality: *Garza v. United States of America*, Report No. 52/01, Case 12.243, 4 Apr. 2001, para. 56.

⁵⁰ *Prosecutor v. Kayishema et al.*, ICTR-95-1-A, Judgment (Reasons), 1 June 2001, paras. 63–71; *Prosecutor v. Milutinović et al.*, IT-99-37-AR73. 2, Decision on Interlocutory Appeal on Motion for Additional Funds, 13 Nov. 2003.

⁵¹ *Prosecutor v. Orić*, IT-03-68-AR73.2, Interlocutory Decision on Length of Defence Case, 20 July 2005, para. 7.

⁵² *Situation in Uganda*, ICC-02/04-01/05, Decision on Prosecutor's Application for leave to Appeal in Part Pre-Trial Chamber II's Decision on the Prosecutor's Applications for Warrants of Arrest under Article 58, 19 Aug. 2005, para. 30. See also: *Prosecutor v. Lubanga*, ICC-01/04-01/06, Décision sur la demande d'autorisation d'appel de la Défense relative à la transmission des Demandes de participation des victimes, 6 Nov. 2006, p. 7.

⁵³ See note 20, Zutphen Draft, p. 114, article 60.

⁵⁴ See note 8, Statute of the ICTY, article 21; see note 8, Statute of the ICTR, article 20.

⁵⁵ *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, 2 Oct. 1995.

Criminal Court, not only judges, but also the judges, the Prosecutor, the Deputy Prosecutors, the Registrar and the Deputy Registrar are required to make a solemn undertaking in open court to exercise their functions ‘impartially’⁵⁶.

- 17 Of course, the issue of impartiality of the judiciary is also addressed elsewhere in the *Statute*⁵⁷. Impartiality is also protected by specific provisions in the Court’s Code of Judicial Ethics:

‘Article 4 Impartiality

1. Judges shall be impartial and ensure the appearance of impartiality in the discharge of their judicial functions.
2. Judges shall avoid any conflict of interest, or being placed in a situation which might reasonably be perceived as giving rise to a conflict of interest⁵⁸.

According to the European Court of Human Rights, ‘impartiality’ means lack of ‘prejudice or bias’⁵⁹. It comprises both a subjective and an objective dimension: ‘[t]he existence of impartiality ... must be determined according to a subjective test, that is, on the basis of the personal conviction of a particular judge in a given case, and also according to an objective test, namely, ascertaining whether the judge offered guarantees sufficient to exclude any legitimate doubt in this respect’⁶⁰.

The ICTY Appeals Chamber has described judicial impartiality as follows:

‘[A] Judge should not only be subjectively free from bias, but also [...] there should be nothing in the surrounding circumstances that objectively gives rise to an appearance of bias. On this basis, the Appeals Chamber considers that the following principles should direct it in interpreting and applying the impartiality requirement of the Statute:

- A. Judge is not impartial if it is shown that actual bias exists.
- B. There is an unacceptable appearance of bias if:
 - (i) a Judge is a party to the case, or has a financial or proprietary interest in the outcome of a case, or if the Judge’s decision will lead to the promotion of a cause in which he or she is involved, together with one of the parties. Under these circumstances, a Judge’s disqualification from the case is automatic; or
 - (ii) the circumstances would lead a reasonable observer, properly informed, to reasonably apprehend bias⁶¹.

A number of challenges to the independence or impartiality of judges before the ICC have arisen in practice. In *Lubanga*, the defence asked that Judge Song be recused from hearing the appeal, on the basis of remarks he had made in his capacity as President of the Court after the trial judgment was issued. Judge Song had referred to Lubanga’s conviction as a ‘landmark judgment’ and one that ‘set a crucial precedent in the fight against impunity’. The Plenary of Judges held that a fair-minded observer would not see these statements in their context as a comment on the merits of the appeal or on any legal or factual aspect of appeal.⁶² Similarly, the plenary of judges in *Banda and Jerbo* held that a blog post written by Judge Eboe-Osuji before his appointment to the ICC, in which he expressed an opinion on a situation before the Court, did not preclude him from later sitting on a case in that situation.⁶³ The former decision seems reasonable given that, as President of the Tribunal at

⁵⁶ See note 4, *Rome Statute*, article 45; Rules of Procedure and Evidence, Document ICC-ASP/1/3, pp. 10–107, Rule 5. *Prosecutor v. Lubanga*, ICC-01/04-01/06, Decision on the press interview with Ms Le Fraper du Hellen, 12 May 2010.

⁵⁷ See note 4, *Rome Statute*, articles 35, 40, 41.

⁵⁸ Code of Judicial Ethics, see note 3.

⁵⁹ *Piersack v. Belgium*, Ser. A, No. 53, 1 Oct. 1982.

⁶⁰ *Hauschildt v. Denmark*, Ser. A, No. 154, 24 Dec. 1989, para. 46.

⁶¹ *Prosecutor v. Furundžija*, IT-95-17/1-A, Judgment, 21 July 2000, para. 189.

⁶² *Prosecutor v. Lubanga*, ICC-01/04-01/06, Decision of the Plenary of Judges on the Defence Application of 20 February 2013 for the Disqualification of Judge Sang-Hyun Song from the case of *The Prosecutor v. Thomas Lubanga Dyilo*, 11 June 2013.

⁶³ *Prosecutor v. Banda and Jerbo*, ICC-02/05-03/09, Decision of the Plenary of the Judges on the ‘Defence Request for the Disqualification of a Judge’, 5 June 2012, para. 19.

the time, Judge Song had a role in the external relations of the Court, pursuant to art. 38 of the *Statute*. Equally, given that judges are elected to the Court on the basis of either their expertise in international law or their experience in criminal law, it would be unreasonable to expect those experts in international law to never have publically commented on aspects of the ICC's work. In the challenge to Judge Eboe-Osui's impartiality, the blog post in question discussed the relationship between the African Union and the Court, and did not refer to the case at issue itself, nor did it express any bias against the accused.

The *Rome Statute* provides the most advanced and thorough regime in order to ensure both independence and impartiality of its judiciary. It constitutes a dramatic improvement on the norms applicable to the *ad hoc* tribunals. In this respect, the limitation of judges to one term of office, and a clarification of both the grounds for dismissal and the body responsible for doing so constitute major improvements upon earlier models.

f) 'in full equality'. The terms 'in full equality' are imported from article 14 para. 3 of the ICCPR. They complement the initial phrase of article 14, '[a]ll persons shall be equal before the courts and tribunals' for which there is no equivalent in article 67 of the *Statute*. Nevertheless, article 21 para. 1 of the *Statute* comprises a non-discrimination clause applicable to the instrument as a whole. In her dissenting opinion to a decision excusing the defendant Ruto from presence at his trial, Judge Herrera Carbuca argued that this constituted a discrimination contrary to article 21, on the basis of his status as Vice President of Kenya.⁶⁴

The guarantee of full equality before the ICC protects the accused against discriminatory practices and even vexatious prosecution where it appears to be motivated by discriminatory criteria. In the *Čelebići* case, the ICTY Appeals Chamber considered the principle of equality before the law within the context of prosecutorial discretion. It said:

'This provision reflects the corresponding guarantee of equality before the law found in many international instruments, including the 1948 Universal Declaration of Human Rights, the 1966 *International Covenant on Civil and Political Rights*, the *Additional Protocol I* to the *Geneva Conventions*, and the *Rome Statute of the International Criminal Court*. All these instruments provide for a right to equality before the law, which is central to the principle of the due process of law. The provisions reflect a firmly established principle of international law of equality before the law, which encompasses the requirement that there should be no discrimination in the enforcement or application of the law. Thus Article 21 and the principle it embodies prohibits discrimination in the application of the law based on impermissible motives such as, *inter alia*, race, colour, religion, opinion, national or ethnic origin. The Prosecutor, in exercising her discretion under the *Statute* in the investigation and indictment of accused before the Tribunal, is subject to the principle of equality before the law and to this requirement of non-discrimination'⁶⁵.

The Appeals Chamber suggested that there would be a violation of equality before the law if 'the decision to prosecute him or to continue his prosecution was based on impermissible motives, such as race or religion, and that the Prosecution failed to prosecute similarly situated defendants'⁶⁶. To show the Prosecutor is proceeding on a selective basis, 'the evidence of discriminatory intent must be coupled with the evidence that the Prosecutor's policy has a discriminatory effect, so that other similarly situated individuals of other ethnic or religious backgrounds were not prosecuted'⁶⁷.

An ICTY Trial Chamber has suggested that the right to equality before the law might be violated in cases of plea-bargaining. For example, it mentioned the possibility that the Prosecutor might seek to make a plea agreement with some accused because of their knowledge of particular events which may be useful in prosecutions of other, more high ranking accused. The Prosecutor could make the terms of such a plea agreement quite

⁶⁴ *Prosecutor v. Ruto*, ICC-01/09-01/11, Decision on Mr Ruto's Request for Excusal from Continuous Presence at Trial, Dissenting Opinion of Judge Herrera Carbuca, 18 June 2013.

⁶⁵ *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgment, 20 Feb. 2001, para. 605 (reference omitted).

⁶⁶ *Ibid.*, para. 607. Also: *Prosecutor v. Ntakirutimana et al.*, ICTR-96-10 & ICTR-96-17-T, Judgment, 21 Feb. 2003, paras. 870–871.

⁶⁷ *Prosecutor v. Akayesu*, ICTR-96-4-A, Judgment, 1 June 2001, paras. 94–96.

generous in order to secure the co-operation of that accused. ‘Other accused, who may not have been involved in the most egregious crimes or who may not have been part of a joint criminal enterprise with more high ranking accused, may not be offered such a generous plea agreement, or indeed any plea agreement’, said the decision⁶⁸.

2. Minimum guarantees

- 19 a) **Information about the charge.** Article 67 para. 1 (a) of the *Statute* complements similar provisions protecting suspects during an investigation⁶⁹ and at the time charges are confirmed⁷⁰. The purpose of the norm is to provide an accused person with the information necessary for the preparation of a defence. The appropriate information required will depend on any questioning the accused has already undergone and on other circumstances of the case⁷¹. But the accused may be expected to show some diligence in seeking information about the charge, for example by insisting upon attendance at the confirmation hearing⁷².
- 20 Article 14 of the *ICCPR* refers only to the ‘nature and cause’ of the charge. The *Statute* goes further than the *ICCPR* and the other human rights models by requiring that this information also include the ‘content’ of the charge⁷³. According to the European Commission on Human Rights, the ‘nature’ of the charge refers to the specific offence, while the ‘cause’ of the charge means the relevant material facts⁷⁴. There may be no meaningful distinction between ‘cause’ and ‘content’, except perhaps a message of exhaustivity⁷⁵. In practice, the European case law has not been very demanding, with the Commission holding that the accused is entitled to material to enable preparation of a defence, ‘without however necessarily mentioning the evidence on which the charge is based’⁷⁶. However, in the *ICC Statute* this provision must be taken in combination with the very thorough disclosure requirements that are imposed upon the Prosecutor⁷⁷. Taken as a whole, these provisions indicate the desire of the Rome Conference that the Prosecutor ensure that the accused is not taken by surprise during the proceedings, and that he or she benefits from a level of information going well beyond the thresholds set by domestic justice systems and endorsed by international human rights tribunals as being acceptable.

Rule 121(3) of the Rules of Procedure and Evidence requires the Prosecutor to provide a detailed description of the charges within a reasonable time before the confirmation of charges hearing. Regulation 52 of the Regulations provides further detail on the required content of the document outlining the charges; this must include, *inter alia*, a statement of the facts which provides a sufficient legal and factual basis to bring the person to trial, and a

⁶⁸ *Prosecutor v. Momir Nikolić*, IT-02-60/1-S, Sentencing Judgment, 2 Dec. 2003, para. 66.

⁶⁹ See note 4, Rome Statute, article 55 para. 2 (a).

⁷⁰ *Ibid.*, article 61 para. 3. Also: see note 33, Regulations of the Court, Regulation 52, which indicates the information that must be included in the document containing the charges: ‘The document containing the charges referred to in article 61 shall include: (a) The full name of the person and any other relevant identifying information; Regulations of the Court; (b) A statement of the facts, including the time and place of the alleged crimes, which provides a sufficient legal and factual basis to bring the person or persons to trial, including relevant facts for the exercise of jurisdiction by the Court; (c) A legal characterisation of the facts to accord both with the crimes under articles 6, 7 or 8 and the precise form of participation under articles 25 and 28’.

⁷¹ *Kamasinski v. Austria*, Ser. A, No. 168, 19 Dec. 1989, paras. 79–81.

⁷² *Campbell and Fell v. United Kingdom*, Ser. A, No. 80, 28 June 1984. See: see note 4, Rome Statute, article 61 para. 2 (a).

⁷³ At the August 1996 session of the Preparatory Committee it was said that the *ICCPR* provision ‘needed further elaboration in the Statute’: see note 18, 1996 Preparatory Committee I, para. 271, p. 58.

⁷⁴ *Offner v. Austria* (No. 524/59), (1960) 3 Y.B. 322, 344. See also: *Prosecutor v. Delalić et al.*, Case No. IT-96-21-T, Decision on defence application for forwarding the documents in the language of the accused (Delalić), 25 Sep. 1996, for determination on the types of materials to be made available to the accused in his or her language.

⁷⁵ See: Amnesty International, *Making the Right Choices, Part V* (1997).

⁷⁶ *X v. Belgium* (No. 7628/76), (1977) 9 D.R. 169.

⁷⁷ See note 4, Rome Statute, articles 61 para. 3 (b), 64 para. 3 (c), 67 para. 2. Also: *Prosecutor v. Delalić et al.*, see note 77.

legal characterisation of the facts to accord both with the crimes under articles 6, 7, or 8 of the Statute, and the precise form of participation under articles 25 and 28 of the Statute. In the *Katanga and Ngudjolo Chui* case, both defendants had been charged with co-perpetration under article 25(3)(a) of the Statute. In 2012, six months after the close of trial but before the judgment was issued, the Trial Chamber opted to recharacterise the mode of liability that Katanga was charged with to common purpose liability under article 25(3)(d)(ii).⁷⁸ The decision raised concerns as regards the defendant's ability to adequately prepare for trial and present his or her defence case, when a fundamental fact could be 'recharacterised' at such a late stage in proceedings.⁷⁹ Nevertheless, the Appeals Chamber upheld this decision, finding that the Trial Chamber could counteract any potential unfairness by taking measures to protect the rights of the accused.⁸⁰ Perhaps as a consequence of this series of events, the Prosecutor moved towards charging alternative modes of liability in later decisions.⁸¹

The requirement that the information be 'in a language which the accused fully understands and speaks' develops article 14 para. 3 (a) of the ICCPR, which requires only that it be 'in a language which [the accused] understands'. A proposal to refer to 'his own language' had been left in square brackets by the Preparatory Committee⁸², and was added at Rome. An amendment at the Rome Conference contained the phrase 'in his or her own language or in a language of his or her choice'⁸³. This prompted the Chair to propose: 'in a language the accused understands or in his or her language'⁸⁴. The matter sparked considerable controversy. The provision that was finally adopted included a footnote: 'It is understood that this expression means the language for which the accused, in good faith, has clearly expressed his or her preference'⁸⁵. To some degree, these are questionable improvements. The purpose served by requiring not only that the accused understand the language but also speak it seems unclear. Note that the ICCPR, in its general provision dealing with the right to an interpreter, presents this in the alternative: 'if he cannot understand *or* speak the language used in court'. It was surely not the intention of the drafters of the Statute to provide disabled persons who are unable to speak with a pretext to avoid the jurisdiction of the Court. On the other hand, insisting on this detail helps to exclude some Strasbourg case law by which the norm is respected if the language is understood by the accused's lawyer, and not necessarily by the accused personally⁸⁶. It goes without saying that the information must be provided at no cost to the defendant⁸⁷.

b) Time to prepare defence. This provision is modeled on article 14 para. 3 (b) of the ICCPR with the addition of the words 'freely' and 'in confidence'. It was introduced by the

⁷⁸ *Prosecutor v. Katanga and Chui*, ICC-01/04-01/07-3319, Decision on the Implementation of Regulation 55 of the Regulations of the Court and Severing the Charges against the Accused Persons, 21 Nov. 2012. The case was severed in this decision and Katanga's co-accused was ultimately acquitted.

⁷⁹ See, *inter alia*, *Prosecutor v. Katanga and Chui*, ICC-01/04-01/07-3319, Decision on the Implementation of Regulation 55 of the Regulations of the Court and Severing the Charges against the Accused Persons, Dissenting Opinion of Judge Christine van den Wyngaert, 21 Nov. 2012; *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, Judgment, Minority Opinion of Judge Christine van den Wyngaert, 7 Mar. 2014.

⁸⁰ *Prosecutor v. Katanga*, ICC-01/04-01/07-3363, Judgment on the appeal of Mr Germain Katanga against the decision of Trial Chamber II of 21 November 2012 entitled 'Decision on the implementation of regulation 55 of the Regulations of the Court and severing the charges against the accused persons', 27 Mar. 2013, para. 91.

⁸¹ *Prosecutor v. Blé Goudé*, Decision on the 'Defence request to amend the document containing the charges for lack of specificity', ICC-02/11-02/11-143, 2 Sept. 2014.

⁸² See note 19, Preparatory Committee Decisions Aug. 1997, p. 34; see note 20, Zutphen Draft, p. 114, article 60; see note 20, Draft Statute, article 67, pp. 106–108.

⁸³ Proposal submitted by the Delegations of Egypt, Oman and the Syrian Arab Republic, UN Doc. A/CONF.183/C.1/WGPM/L.36 (29 June), p. 1.

⁸⁴ See note 22, Draft proposal for article 67.

⁸⁵ Report of the Working Group on Procedural Matters, UN Doc. A/CONF.183/C.1/WGPM/L.2/Add.6 (11 July), pp. 3–4, fn. 5.

⁸⁶ *X. v. Austria* (No. 6185/73), (1975) 2 D.R. 68.

⁸⁷ *Luedicke, Belkacem and Koc v. Germany*, Ser. A, No. 29, 28 Nov. 1978. That these services were free of charge was spelled out in one of the proposals submitted to the Preparatory Committee: 1996 Preparatory Committee II, p. 196.

Preparatory Committee at its August 1997 session⁸⁸, and the text remained unchanged through to the final version adopted in Rome⁸⁹.

- 23 Adequate time will depend on the circumstances of the case. Here the international case law is not particularly helpful, because it is a given that the types of cases to come before the ICC will be extraordinarily complex and therefore difficult to compare with the more mundane matters of domestic tribunals. The only relevant normative provision, again not particularly helpful, is article 105 of the third *Geneva Convention* which specifies that counsel have ‘a period of two weeks at least before the opening of trial’⁹⁰. According to the ICTY, adequate time is a flexible concept that ‘begs of a definition outside the particular situation of each case. It is impossible to set a standard of what constitutes adequate time to prepare a defence because this is something which can be affected by a number of factors including the complexity of the case, and the competing forces and claims at play, such as consideration of the interests of other accused persons’⁹¹.

- 24 The word ‘facilities’ refers to ‘documents, records, etc. necessary for preparation of the defence’⁹², a right that is complemented by the *Statute’s* extensive disclosure obligations. According to the European Commission of Human Rights, this means the accused must have ‘the opportunity to organize his defence in an appropriate way and without restriction as to the possibility to put all relevant defence arguments before the trial court’⁹³. In the *Kenya* situation, it was held that pursuant to article 93 para. 1 of the *Statute*, states parties were obliged to comply with requests for assistance made by the prosecution in relation to investigations and prosecutions.⁹⁴ Pursuant to the equality of arms principle, it would stand to reason that the same compliance obligations apply to defence requests for documents or other materials necessary for the preparation of the defence case.

With respect to communication with counsel, the addition of the words ‘freely’ and ‘in confidence’ underscore the privileged nature of the communication and the fact that it must be undertaken in secure premises not subject to eavesdropping by the authorities⁹⁵. Access to communication by the accused must be both in person and in writing. The Preparatory Committee considered that the question of privileged communication should not be dealt with in the provision on rights of the accused⁹⁶. Rule 73 of the RPE expressly recognizes the privileged nature of lawyer-client communications. Although it is not explicitly listed as an exception in Rule 73, the Court has held that the right to free and confidential communication with counsel is forfeited ‘whenever an accused uses such right with a view to furthering a criminal scheme, rather than to obtaining legal advice’, such as where the lawyer is alleged to have been involved in interfering with witnesses.⁹⁷

⁸⁸ See note 19, Preparatory Committee Decisions Aug. 1997, p. 34.

⁸⁹ See note 20, Zutphen Draft, p. 114; see note 20, Draft Statute, p. 127; see note 22, Draft proposal for article 67; see note 22, Report of the Working Group on Procedural Matters (4 July), pp. 4–5; see note 22, Compendium of draft articles, pp. 41–42.

⁹⁰ Geneva Convention of 12 Aug. 1949 relative to the treatment of prisoners of war, 75 UNTS 135, *entered into force* 21 Oct. 1950.

⁹¹ *Prosecutor v. Delalić et al.*, IT-96-21-T, Decision on the applications for adjournment of the trial date, 3 Feb. 1997.

⁹² Nowak, *UN Covenant on Civil and Political Rights: CCPR Commentary* (1994) 256.

⁹³ *Can v. Austria*, Ser. A, No. 96, 30 Sep. 1985, Commission Report, para. 53.

⁹⁴ *Prosecutor v. Kenyatta*, Decision on Prosecution’s applications for a finding of non-compliance pursuant to Article 87(7) and for an adjournment of the provisional trial date, ICC-01/09-02/11-908, 31 Mar. 2014.

⁹⁵ See: article 69 para. 5, which indicates that this is a question for the Rules. In the *travaux*, see: 1996 Preparatory Committee II, pp. 196–197; see note 20, Zutphen, p. 114, fn. 203; see note 20, Draft Statute, p. 127, fn. 11. The Rules of the *ad hoc* Tribunals expressly recognize lawyer-client privilege: Rules of Procedure and Evidence, as amended 10 Dec. 1998, UN Doc. IT/32, article 97. The United States of America proposed a draft set of rules of evidence for the Court containing a provision ensuring lawyer-client privilege: Reference Paper Submitted by the United States of America, UN Doc. A/CONF.183/C.1/WGPM/L.21, p. 7, rule 10.

⁹⁶ See note 19, Preparatory Committee Decisions Aug. 1997, p. 34, fn. 48.

⁹⁷ *Situation in Central African Republic*, Decision on the Prosecutor’s ‘Request for judicial order to obtain evidence for investigation under Article 70’, ICC-01/05-52-Red2, 3 Feb. 2014.

c) **Trial without undue delay.** The provision is identical to that of its model in the *ICCPR*. 25 During the Preparatory Committee sessions, '[t]he point was also made that an expeditious trial process would prevent a guilty person from delaying the proceedings and would secure the early release of an innocent person. What was needed in this regard was a proactive court which would properly manage the case so as to achieve an early resolution of the case'⁹⁸. Here, too, there were attempts to 'improve' the *ICCPR* text, with suggestions that 'undue' be replaced with 'unreasonable' and that the right 'to enjoy a speedy trial' be added⁹⁹. But at Rome, on a proposal from the Chair of the Working Group, the *ICCPR* text was retained¹⁰⁰.

Case law and academic comment on the *ICCPR* provision have considered that the time 26 limit begins to run at the moment the suspect or the accused is informed that the authorities are taking steps towards prosecution. The period ends with a definitive decision¹⁰¹. What this means specifically will depend on each individual case. In one case, the Human Rights Committee considered the provision had been violated by Canada when the preparation of trial transcripts took twenty-nine months resulting in a three-year delay for an appeal hearing¹⁰². In *Pratt and Morgan v. Jamaica*, a delay of forty-five months between dismissal of an appeal and delivery of a written judgment was held to violate the norm¹⁰³. The Nuremberg trial of the major war criminals set an awesome precedent that the *ad hoc* Tribunals have been unable even to approach. By domestic standards, today's international justice is an incredibly protracted affair. The Appeals Chamber of the International Criminal Tribunal for Rwanda has considered that inexcusable delay attributable to the Prosecutor, in extreme circumstances, entitles the accused to have the charges dropped 'with prejudice' to the Prosecutor, that is, without the possibility of retrial¹⁰⁴. The ICC has refused an application for an 'indefinite adjournment' of a case where the Prosecutor had insufficient evidence to proceed to trial, and could not provide a date on which she would be ready. She said this was owing to difficulties in obtaining evidence from an uncooperative state.¹⁰⁵ Trial Chamber V ordered the Prosecutor to either declare that she was ready to continue to trial, or to withdraw the charges against the accused. The charges were dropped, without prejudice, a short time later.¹⁰⁶

In its Court Capacity Model, the International Criminal Court set out optimistic assessments of the length of proceedings, projecting an average trial to last slightly less than three years from arrest until final judgment, apportioning three months for the confirmation of charges, six months for disclosure and preparation for trial, fifteen months for the trial itself and finally nine months for the appeal¹⁰⁷. The trial of Thomas Lubanga Dyilo, the first completed trial before the Court, lasted somewhat longer, at over eight years from arrest to appeal judgment. The trial of Germain Katanga, which was not appealed by either side, lasted almost seven years from arrest to judgment¹⁰⁸.

d) **Rights of the defence.** Article 67 para. 1 (d) of the *Statute* substantially reflects the 27 content of article 14 para. 3 (d) of the *ICCPR*, subject to a number of minor drafting changes.

⁹⁸ See note 18, 1996 Preparatory Committee I, p. 58, para. 271.

⁹⁹ See note 78, 1996 Preparatory Committee II, p. 197; see note 19, Preparatory Committee Decisions Aug. 1997, p. 34; see note 20, Zutphen Draft, p. 114; see note 20, Draft Statute, p. 127. Also, at the Rome Conference, see note 74, Proposal submitted by the Delegations of Egypt, Oman and the Syrian Arab Republic, p. 1.

¹⁰⁰ See note 22, Draft proposal for article 67; see note 22, Report of the Working Group on Procedural Matters (4 July), pp. 4–5; see note 22, Compendium of draft articles, pp. 41–42.

¹⁰¹ Nowak, *UN Covenant on Civil and Political Rights: CCPR Commentary* (1994) 257.

¹⁰² *Pinkney v. Canada* (No. 27/1978), UN Doc. CCPR/3/Add.1, Vol. II, p. 385, UN Doc. CCPR/C/OP/1, p. 95, 2 HRLJ 344.

¹⁰³ *Pratt and Morgan v. Jamaica*, Nos. 210/1986, 225/1987, UN Doc. A/44/40, p. 222, 11 HRLJ 150.

¹⁰⁴ *Prosecutor v. Barayagwiza*, ICTR-97-19-AR72, Decisions of 3 Nov. 1999 and 31 Mar. 2000.

¹⁰⁵ *Prosecutor v. Kenyatta*, Decision on Prosecution's application for a further adjournment, ICC-01/09-02/11, 3 Dec. 2014.

¹⁰⁶ *Prosecutor v. Kenyatta*, Notice of withdrawal of the charges against Uhuru Muigai Kenyatta, ICC-01/09-02/11, 5 Dec. 2014.

¹⁰⁷ Report on the Court Capacity Model, Document ICC-ASP/5/10, para. 23.

¹⁰⁸ See note 15, 1994 ILC Draft Statute, article 41.

The text is little changed from the ILC Draft. It was approved by the Working Group at the August 1997 Preparatory Committee¹⁰⁹ and was adopted at Rome without change¹¹⁰.

- 28 **aa) Presence at trial.** The right to be present at trial is made subject to article 63 para. 2, which permits the trial to proceed in the absence of an accused who is disruptive. Exceptions exist within the Statute and the Rules of Procedure and Evidence for *ex parte* hearings under very specific circumstances. Article 72 para. 7 of the *Statute* allows for a hearing concerning the protection of national security information to take place *ex parte*, that is, in the absence of one or both of the parties¹¹¹. *Ex parte* proceedings during the trial phase are also authorised under the Rules of Procedure and Evidence. The Trial Chamber may hear the Prosecutor *ex parte* in order to determine whether an assurance may be given to a witness who may make testify in such a way as to incriminate himself or herself¹¹². A Trial Chamber may also sit *ex parte* to consider whether or not to authorise special measures to facilitate testimony of a traumatized victim or witness, a child, an elderly person or a victim of sexual violence¹¹³.

The ICC has had to grapple with the question of whether it would be appropriate to allow an accused to be absent from trial, at his or her own request. Although article 63 para. 1 of the *Statute* uses the words ‘shall be present during the trial’, indicating that the presence of the accused is an obligation as well as a right, the Court has been quite flexible on this question. The continuation of the trial for short durations in the absence of the accused has been permitted where the accused specifically waived their right to be present.¹¹⁴ As Judges Kouroula and Ušacka have noted:

‘Absence from particular hearings or parts of hearings may be considered to be so insignificant that they do not amount to a violation of the fundamental requirement of presence... However, the practical difficulties that may be encountered in enforcing the requirement established in article 63 (1) of the Statute to the strict letter of the law should not be used as a justification for interpreting article 63 (1) of the Statute so that it is found to provide the Trial Chamber with a general discretion to excuse an accused from presence at trial.’¹¹⁵

The Court has also had to rule upon requests for more continuous absence from proceedings, where the defendants’ official functions mandate their presence in their home state. Trial Chamber V(a) initially excused the defendant Ruto, Deputy President of Kenya, from attending all of the trial with the exception of the opening and closing statements, the presentation in person of the views and concerns of victims, the delivery of judgment, and, if applicable, the sentencing hearings, the sentencing, the victim impact hearings, the reparation hearings, and any other attendance directed by the Chamber, at his own request.¹¹⁶ The Appeals Chamber partially overturned that ruling, setting down the following conditions for the absence of the accused:

¹⁰⁹ See note 19, 1996 Preparatory Committee Decisions Aug. 1997, pp. 34–35.

¹¹⁰ See note 20, Zutphen Draft, p. 114; see note 20, Draft Statute, p. 117; see note 22, Draft proposal for article 67; see note 22, Report of the Working Group on Procedural Matters (4 July), pp. 4–5; Report of the Working Group on Procedural Matters, UN Doc. A/CONF.183/C.1/WGPM/L.2/Add.8 (15 July), p. 6; see note 22, Compendium of draft articles, pp. 41–42.

¹¹¹ See note 4, Rome Statute, article 72 para. 7.

¹¹² See note 54, Rules of Procedure and Evidence, rule 74 para. 4.

¹¹³ *Ibid.*, rule 88(2).

¹¹⁴ *Prosecutor v. Lubanga*, ICC-01/04-01/06-T-172-Red3-ENG, Transcript, 12 May 2009, pp. 1–2; *Prosecutor v. Bemba*, ICC-01/05-01/08-T-183-Red-ENG, Transcript, 7 Nov. 2011, pp. 1–2; *Prosecutor v. Bemba*, ICC-01/05-01/08-T-306-Red-ENG, Transcript, 12 Apr. 2013, p. 62; *Prosecutor v. Bemba*, ICC-01/05-01/08-T-324-ENG, Transcript, 17 June 2013, pp. 16–17; *Prosecutor v. Bemba*, ICC-01/05-01/08-T-331-CONF-ENG, Transcript, 27 June 2013, pp. 2–3.

¹¹⁵ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066-Anx, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, Joint Separate Opinion of Judge Erkki Kouroula and Judge Anita Ušacka, 25 Oct. 2013.

¹¹⁶ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, 25 Oct. 2013.

- (i) the absence of the accused can only take place in exceptional circumstances and must not become the rule;
- (ii) the possibility of alternative measures must have been considered, including, but not limited to, changes to the trial schedule or a short adjournment of the trial;
- (iii) any absence must be limited to that which is strictly necessary;
- (iv) the accused must have explicitly waived his or her right to be present at trial;
- (v) the rights of the accused must be fully ensured in his or her absence, in particular through representation by counsel; and
- (vi) the decision as to whether the accused may be excused from attending part of his or her trial must be taken on a case-by-case basis, with due regard to the subject matter of the specific hearings that the accused would not attend.¹¹⁷

In an amendment to the Rules of Procedure and Evidence agreed in 2013, the Assembly of States Parties adopted the new Rules 134*bis* and 134*ter*, which permit an accused to make a request in writing to be present through the use of video-link technology only, or to be excused and to be represented by counsel only during part of his or her trial, and provides some guidance for the Trial Chambers in granting this request. The new Rule 134*quater* relates exclusively to those accused persons who are ‘mandated to fulfill extraordinary public duties at the highest national level’. The Trial Chamber shall grant the request for excusal from trial where it is convinced that it is in the interests of justice and not prejudicial to the rights of the accused.¹¹⁸

Article 76 para. 4 of the *Statute* seems to imply that the presence of the accused when sentence is imposed is not indispensable, because it says this should take place ‘wherever possible’. The curious phrase was introduced when the Preparatory Committee was considering the possibility of *in absentia* trials¹¹⁹, and remained in the final version of the *Statute*, although the concept of *in absentia* trials had been abandoned, without any thought being given to the matter¹²⁰. Thus, article 76 para. 4 should not be seen as an attenuation of the principle of presence of the accused at trial.

bb) Defend oneself in person. The accused is entitled to defend himself or herself in person. 29 The most celebrated example of this situation took place during the prosecution of Slobodan Milošević before the International Criminal Tribunal for the former Yugoslavia. In an initial challenge to the accused’s insistence on defending himself, the Prosecutor invoked the fragile medical condition of the defendant. Presiding Judge Richard May wrote: ‘A plain reading of this provision indicates that there is a right to defend oneself in person and the Trial Chamber is unable to accept the Prosecution’s proposition that it would allow for the assignment of defence counsel for the Accused against his wishes in the present circumstances’¹²¹. Judge May noted that the right to defend oneself was especially important in the essentially adversarial-type proceedings of the ICTY. Here he referred to a relevant decision of the United States Supreme Court, which held that ‘forcing a lawyer upon an unwilling defendant is contrary to his basic right to defend himself if he truly wants to do so’¹²². As Judge May explained:

‘There is a further practical reason for the right to self-representation in common law. While it may be the case that in civil law systems it is appropriate to appoint defence counsel for an accused who wishes to represent himself, in such systems the court is fulfilling a more investigative role in an attempt

¹¹⁷ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled ‘Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial’, 25 Oct. 2013, para. 2.

¹¹⁸ Resolution ICC-ASP/12/Res.7, Adopted at the 12th plenary meeting on 27 Nov. 2013 by consensus.

¹¹⁹ See note 5, Draft Statute, article 76, fn. 25.

¹²⁰ See note 97, Report of the Working Group on Procedural Matters (15 July), p. 10. In this respect, there is an error in Report of the Drafting Committee to the Committee of the Whole, UN Doc. A/CONF.183/C.1/L.88 (16 July), p. 14, which states that the Committee of the Whole adopted the following: ‘The sentence shall be pronounced in public and in the presence of the accused’, without the words ‘whenever possible’.

¹²¹ *Prosecutor v. Milošević*, IT-02-54-T, Reasons for Decision on the Prosecution Motion Concerning Assignment of Counsel, 4 Apr. 2003, para. 18.

¹²² *Faretta v. California*, 422 US 806, 817 (1975).

to establish the truth. In the adversarial systems, it is the responsibility of the parties to put forward the case and not for the court, whose function it is to judge. Therefore, in an adversarial system, the imposition of defence counsel on an unwilling accused would effectively deprive that accused of the possibility of putting forward a defence. In this connection, Article 21 (4) (d) of the Statute may be said to be reflective of the common law position¹²³.

another case involving an obstreperous defendant, another Trial Chamber of the ICTY signalled the difference in approach between common law and ‘civil law’ systems, noting that international human rights case law acknowledged that the right to defend oneself was subject to limitations. It also observed that ‘[t]he Accused is in fact increasingly demonstrating a tendency to act in an obstructionist fashion while at the same time revealing a need for legal assistance’. Consequently, the Trial Chamber ordered the appointment of ‘standby counsel’, who would be mandated to assist the accused, and ‘in exceptional circumstances to take over the defence from the Accused at trial should the Trial Chamber find, following a warning, that the Accused is engaging in disruptive conduct or conduct requiring his removal from the courtroom’¹²⁴. Subsequently, the Trial Chamber attempted to impose counsel on Šešelj, who went on a hunger strike in protest. After he had been without food for many days, the Appeals Chamber overruled the Trial Chamber¹²⁵.

After Judge May withdrew from the *Milošević* case because of a serious illness of his own, his two colleagues, together with the new judge appointed in his place, and inspired by the Šešelj ruling of the other Trial Chamber, revised their earlier decision. Noting the ongoing medical problems of the accused, which had occasioned several adjournments in the course of the two and half years of hearings, the Trial Chamber said: ‘If at any stage of a trial there is a real prospect that it will be disrupted and the integrity of the trial undermined with the risk that it will not be conducted fairly, then the Trial Chamber has a duty to put in place a regime which will avoid that. Should self-representation have that impact, we conclude that it is open to the Trial Chamber to assign counsel to conduct the defence case, if the Accused will not appoint his own counsel’¹²⁶. The Trial Chamber said it ‘was of the opinion that it was necessary to relieve the Accused of the burden of conducting his own case with a view to stabilising his health to ensure, so far as possible, that the trial proceeds with the minimum of interruption in a way that will permit the orderly presentation of the Accused’s case and the completion of the trial within a reasonable time in his interests and the interests of justice: in other words, to secure for the Accused a fair and expeditious trial’¹²⁷.

The ‘assigned counsel’ appealed the decision, which was reversed, in part, by the Appeals Chamber. The Appeals Chamber stated that the right of an accused person to defend himself or herself could indeed be curtailed on the grounds that a defendant’s self-representation is substantially and persistently obstructing the proper and expeditious conduct of his trial. It reasoned by analogy with the right to be tried in one’s own presence, which the Tribunal noted was subject to limitation in the event of disruption. ‘If a defendant’s right to be present for his trial – which, to reiterate, is listed in the same string of rights and indeed in the same *clause* as the right to self-representation – may thus be restricted on the basis of substantial trial disruption, the Appeals Chamber sees no reason to treat the right to self-representation any differently’, it said¹²⁸. In the case of disruption, the accused can be said to have consciously and intentionally waived the right to be present at trial, and to act in his or her

¹²³ See note 103, *Prosecutor v. Milošević*, para. 24.

¹²⁴ *Prosecutor v. Šešelj*, IT-03-67-PT, Decision on Prosecution’s Motion for Order Appointing Counsel to Assist Vojislav Šešelj With his Defence, 9 May 2003.

¹²⁵ *Prosecutor v. Šešelj*, IT-03-67-AR73.3, Decision on Appeal Against the Trial Chamber’s Decision on Assignment of Counsel, 20 Oct. 2006.

¹²⁶ *Prosecutor v. Milošević*, IT-02-54-T, Reasons for Decision on Assignment of Defence Counsel, 22 Sep. 2004, para. 33. See also: *Prosecutor v. Milošević*, IT-02-54-T, Order on Future Conduct of the Trial, 6 July 2004.

¹²⁷ *Ibid.*, para. 66.

¹²⁸ *Prosecutor v. Milošević*, IT-02-54-AR73.7, Decision on Interlocutory Appeal of the Trial Chamber’s Decision on the Assignment of Defence Counsel, 1 Nov. 2004, para. 13.

own defence. The Appeals Chamber said that 'it cannot be that the only kind of disruption legitimately cognizable by a Trial Chamber is the intentional variety. How should the Tribunal treat a defendant whose health, while good enough to engage in the ordinary and non-strenuous activities of everyday life, is not sufficiently robust to withstand all the rigours of trial work – the late nights, the stressful cross-examinations, the courtroom confrontations – unless the hearing schedule is reduced to one day a week, or even one day a month'¹²⁹?

The Trial Chamber of the Special Court for Sierra Leone has also considered the question of self-representation¹³⁰. Referring to the formulation of the right of self-representation, the SCSL Trial Chamber said that because article 17 (4) (d) of the Court's *Statute* spoke of 'the right to have legal assistance assigned', this proved that 'the right to defend himself or herself in person' was only a qualified and not an absolute right. Unlike *Milošević*, the SCSL defendant, Hinga Norman, had no apparent medical problems, nor was he misbehaving in court. The judges simply felt he wasn't up to the job of defending himself, adding that the problems this might cause would also impact negatively on the right of the other two defendants in the case to a speedy trial¹³¹. Finally, the judges laid emphasis on the 'time limited mandate of the Court'¹³², a reference to the parsimonious resources allocated by the United Nations. The Trial Chamber concluded with an oxymoron, writing that '[t]he right to self-representation in this case ... can only be exercised with the assistance of Counsel'¹³³.

The Rules of Procedure and Evidence of the International Criminal Court do not contemplate this situation, probably because the issues had not yet arisen before the *ad hoc* tribunals when the Rules were drafted. No clear formula has yet emerged at the *ad hoc* tribunals, where the approach sometimes seems rather improvised. Even where the fundamental justification for setting aside the right to self-representation is expediency, it is doubtful whether such a result is in fact achieved.

cc) **Choice of counsel.** Although the accused is entitled to choice of counsel, this right 30 cannot be unlimited. The Court may impose ethical, linguistic and other professional requirements in order to establish qualifications for counsel, as under domestic legal systems. The European Commission of Human Rights dismissed claims alleging a violation of the right to counsel on the basis of failure to respect professional ethics¹³⁴, where counsel was also a defence witness¹³⁵, and even for a refusal to wear a gown¹³⁶. There is no right to choice of counsel when a defendant relies upon legal aid. According to the ICTR Appeals Chamber, 'in the light of a textual and systematic interpretation of the provisions of the Statute and the Rules, read in conjunction with relevant decisions from the Human Rights Committee and the organs of the European Convention for the Protection of Human Rights and Fundamental Freedoms, that the right to free legal assistance by counsel does not confer the right to choose one's counsel'¹³⁷. Nevertheless, the practice of the *ad hoc* tribunals has been to accommodate representation by counsel chosen by the accused, where feasible, and this approach is reflected in the Regulations of the Court:

¹²⁹ *Ibid.*, para. 14.

¹³⁰ *Prosecutor v. Norman et al.*, SCSL-04-14-PT, Ruling on the Issue of Non-Appearance of the First Accused Samuel Hinga Norman, the Second Accused Moinina Fofana, and the Third Accused, Allieu Kondewa at the Trial Proceedings, 1 Oct. 2004, para. 23.

¹³¹ *Prosecutor v. Norman et al.*, SCSL-04-14-PT, Decision on the Application of Sam Hinga Norman for Self-Representation Under Article 17(4)(d) of the Statute of the Special Court, 8 June 2004.

¹³² *Ibid.*, para. 26.

¹³³ *Ibid.*, para. 32.

¹³⁴ *Ensslin, Baader and Raspe v. Federal Republic of Germany*, App. Nos. 7572/76, 7586/76 and 7587/76, (1978) 14 D.R. 64.

¹³⁵ *K. v. Denmark* (No. 19524/92), unreported.

¹³⁶ *X. and Y v. Federal Republic of Germany*, App. Nos. 5217/71 and 5367/72, (1972) 42 COLL. 139.

¹³⁷ *Prosecutor v. Kambanda*, ICTR 97-23-A, Judgment, 19 Oct. 2000, para. 33; *Prosecutor v. Akayesu*, ICTR-96-4-A, Judgment, 1 June 2001, paras. 60–61; *Prosecutor v. Ntakirutimana et al.*, ICTR-96-10-T and ICTR-96-17-T, Decision on the Motions of the Accused for Replacement of Assigned Counsel, 11 June 1997.

‘Regulation 75 Choice of defence counsel

1. If the person entitled to legal assistance chooses a counsel included in the list of counsel, the Registrar shall contact that counsel. If the counsel is willing and ready to represent the person, the Registrar shall facilitate the issuance of a power of attorney for this counsel by the person.
2. If the person entitled to legal assistance chooses a counsel not on the list of counsel who is willing and ready to represent him or her and to be included in the list, the Registrar shall decide on the eligibility of that counsel in accordance with regulation 70 and, upon inclusion in the list, shall facilitate the issuance of a power of attorney. Until the filing of a power of attorney, the person entitled to legal assistance may be represented by duty counsel in accordance with regulation 73’.

The classic problem in domestic legal systems concerning choice of counsel on legal aid is the low tariff, in effect discouraging more senior and expert lawyers from agreeing to take such cases. Remuneration at the international tribunals is however sufficient to attract top notch professionals.

The *ad hoc* Tribunals have adopted a rule requiring that counsel be either admitted to the practice of law in a State or be a university professor of law¹³⁸. The Rules of Procedure and Evidence of the International Criminal Court are somewhat different, and focus on substance rather than form, requiring that ‘counsel for the defence shall have established competence in international or criminal law and procedure, as well as the necessary relevant experience, whether as judge, prosecutor, advocate or in other similar capacity, in criminal proceedings’. Counsel must have a minimum of ten years of relevant experience, and shall not have been convicted of ‘a serious criminal or disciplinary offence considered to be incompatible with the nature of the office of counsel before the Court’¹³⁹. Defence counsel must also have ‘an excellent knowledge of and be fluent in at least one of the working languages of the Court’¹⁴⁰. In the *Darfur Situation*, the Pre-Trial Chamber instructed the Registrar to appoint *ad hoc* counsel for the defence who was not only fluent in one of the working languages, but who was also capable of working in Arabic¹⁴¹. The Registrar may remove lawyers from the list of counsel for various disciplinary factors¹⁴².

The *Statute* and the Rules of Procedure and Evidence establish norms that apply to defence counsel, including a Code of Professional Conduct for Counsel to be adopted by the Assembly of States Parties pursuant to a proposal from the Registrar, following consultation with the Prosecutor¹⁴³.

- 31 The accused is entitled to be informed of the right to counsel. In practice, this is unlikely to pose any problem.
- 32 **dd) Free legal assistance.** In the *ICCPR*, the right to funded counsel for indigent defendants is subject to the requirement that this be in cases ‘where the interests of justice so require’. Arguably, this will be the situation in all cases before the ICC. Indeed, the ILC removed the condition in its Draft Statute¹⁴⁴, only to have it introduced again by the Preparatory Committee¹⁴⁵. Consequently, the rule is not an absolute one, although it is hard to imagine an example of a matter before the Court where the interests of justice would not require funded counsel for an indigent defendant
- 33 The most far-reaching discussion of this provision took place in the informal working group at the August 1996 session of the Preparatory Committee. There, a number of practical

¹³⁸ See note 85, Rules of Procedure and Evidence, rule 44.

¹³⁹ See note 33, Regulations of the Court, regulation 67.

¹⁴⁰ See note 54, Rules of Procedure and Evidence, rule 22.

¹⁴¹ *Situation in Darfur*, ICC-02/05-12, Décision du Greffier relative à la nomination de Me Hadi Shalluf en qualité de conseil ad hoc de la Défense, 25 Aug. 2006, p. 2.

¹⁴² See note 33, Regulations of the Court, regulation 71; see note 30, Regulations of the Registry, regulation 122 *et seq.*

¹⁴³ See note 54, Rules of Procedure and Evidence, rule 8.

¹⁴⁴ See note 15, 1994 ILC Draft Statute, p. 116. See also: Code of Crimes against the Peace and Security of Mankind, UN Doc. A/51/332 (1996), article 11 (e).

¹⁴⁵ See note 19, Preparatory Committee Decisions Aug. 1997.

recommendations were made, closely following the practice of the *ad hoc* tribunals¹⁴⁶. A detailed codification of principles governing the appointment of counsel was also set out at that time¹⁴⁷.

Administration of the system of legal aid to indigent defendants is the responsibility of the Registrar¹⁴⁸. Legal aid is to encompass all that is necessary for ‘effective and efficient defence, including the remuneration of counsel’¹⁴⁹. The right to counsel includes a right to adequate, qualified counsel. Unlike situations where a defendant chooses and remunerates counsel, when counsel are authorized and funded by the Court, it becomes responsible for their competence¹⁵⁰. The Registrar is afforded a wide margin of discretion when decisions on legal aid are challenged before the Court, and it has been held that a Chamber should only interfere ‘if there are compelling reasons for doing so’.¹⁵¹ This includes circumstances where the Registrar has failed to provide full and complete justification for his or her decision, or where the decision evinces signs of arbitrariness or a misuse of the Registrar’s discretion.¹⁵²

The experience of the *ad hoc* Tribunals shows that it is likely that counsel will be remunerated by the Tribunal in virtually all cases, given the fact that defendants, even if they were once powerful rulers who looted their countries before losing power, become suddenly and mysteriously impoverished at the time of indictment. The first defendant to come before the Court, Thomas Lubanga, was declared indigent and provided with Court-appointed counsel¹⁵³. The Regulations of the Court indicate the criteria for determining eligibility for legal aid¹⁵⁴.

Legal assistance before the *ad hoc* Tribunals has had a turbulent history, and practice appears to differ between The Hague and Arusha. David Tolbert, who has worked in several senior positions with the ICTY over the years, describes the defence counsel and legal aid systems as ‘the ICTY’s Achilles’ heel’¹⁵⁵. In one case before the ICTY, a defendant who had benefitted from legal aid was ordered to reimburse the Tribunal, where it was later found that he had sufficient funds to pay for his own defence.¹⁵⁶

e) Right to challenge evidence and raise defences. The first sentence of article 67 para. 1 (e) is virtually identical, aside from the changes to gender neutral terminology, to the text of article 14 para. 3 (e) of the ICCPR. The second sentence, dealing with entitlement to raise defences, is an original contribution.

aa) Examination of witnesses. The ILC attempted to rewrite somewhat the ICCPR provision dealing with examination of witnesses, limiting the application of the right to prosecution witnesses, and thereby eliminating witnesses called by the Court on its own motion from the scope of the provision¹⁵⁷. The Preparatory Committee adopted the language

¹⁴⁶ See note 18, 1996 Preparatory Committee I, para. 272.

¹⁴⁷ *Ibid.*, pp. 197–199.

¹⁴⁸ See note 54, Rules of Procedure and Evidence, rule 21; see note 30, Regulations of the Registry, regulation 130 *et seq.*

¹⁴⁹ See note 33, Regulations of the Court, regulation 83.

¹⁵⁰ The Right to a Fair Trial, Report to the UN Sub-Commission on the Prevention of Discrimination and the Protection of Minorities by Mr. S. Chernichenko and Mr. W. Treat on The Administration of Justice and the Human Rights of Detainees, UN Doc. E/CN.4/Sub.2/1991/29, paras. 54–57.

¹⁵¹ *Prosecutor v. Ngudjolo Chui*, ICC-01/04-02/12-159, Decision on Mr Ngudjolo’s request for review of the Registrar’s decision regarding the level of remuneration during the appeal phase and reimbursement of fees, 11 Feb. 2014, para. 22.

¹⁵² *Prosecutor v. Ntaganda*, ICC-01/04-02/06-389, Reasons for Review of Registrar’s Decision on Defence resources, 29 Oct. 2014, para. 41.

¹⁵³ *Prosecutor v. Lubanga*, ICC-01/04-01/06, Décision du Greffier sur la demande de l’aide judiciaire aux frais de la Cour déposée par M. Thomas Lubanga Dyilo, 31 Mar. 2006.

¹⁵⁴ See note 33, Regulations of the Court, regulation 84.

¹⁵⁵ Tolbert, (2003) 37 *NewEnglandLJ* 975.

¹⁵⁶ *Prosecutor v. Prlić et al*, Order On The Registrar’s Application Pursuant To Rule 45(E) Of The Rules, Case No. IT-04-74-A, 13 May 2014.

¹⁵⁷ See note 15, 1994 ILC Draft Statute, p. 116, article 41.

of the ILC¹⁵⁸ but the Rome Conference, in its wisdom, returned to the original ICCPR text¹⁵⁹. According to Judge Vohrah, of the ICTY:

The principle is intended in an ordinary trial to ensure that the Defence has means to prepare and present its case equal to those available to the Prosecution which has all the advantages of the State on its side ... [T]he European Commission of Human Rights equates the principle of equality of arms with the right of the accused to have procedural equality with the Prosecution¹⁶⁰.

- 38 It is foreseeable that there be certain limits to this right. The formal provisions governing testimony of victims of sexual crimes is an example. Article 68 para. 2 enables the Court to allow the presentation of evidence by electronic or other special means. Of course, this is not a breach of article 67 para. 1 (e) unless it is read as including a right to cross-examination and to confrontation.

During the Preparatory Committee sessions, the issue was presented as a right to 'confront and cross-examine all witnesses'¹⁶¹. But the wording of the provision is based on an international model which recognizes the legitimacy of trials without confrontation of witnesses and cross-examination, at least in the sense of common law procedure¹⁶². Article 14 of the ICCPR was not intended to impose a common law model on domestic justice systems, and those which do not indulge in cross-examination of witnesses before the Court cannot be considered, *prima facie*, to be in breach of the international norm. Thus, although the defence has the right to examine witnesses on the same basis as the Prosecutor, there is no explicit provision for a full right to cross-examination, as it is understood in the common law. The Regulations further confirm this perspective:

'Subject to the Statute and the Rules, the Presiding Judge, in consultation with the other members of the Chamber, shall determine the mode and order of questioning witnesses and presenting evidence so as to:

- (a) Make the questioning of witnesses and the presentation of evidence fair and effective for the determination of the truth...'¹⁶³.

Under continental or Romano-Germanic legal systems, questions may be posed by the judge at the request of counsel. At trial, the presiding judge may issue directions as to the conduct of the proceedings¹⁶⁴, failing which the Prosecutor and the defence are to agree on the order and the manner in which evidence is to be presented¹⁶⁵. Witnesses are questioned by the party that presents them, followed by questioning by the other party and by the Court. The defence has the right to be the last to examine a witness¹⁶⁶.

Nothing in the Statute provides for compellability of witnesses, for example by issuance of *subpoenae* or similar orders to appear before the Court. In 2014, the Court was held had the power to summon witnesses to appear, and to oblige State parties to serve such summonses and compel the attendance of witnesses¹⁶⁷.

There are limits to the right to examine witnesses. The formal provisions governing the testimony of victims of sexual crimes are an example. In such circumstances, the Statute

¹⁵⁸ See note 78, 1996 Preparatory Committee II, p. 199; see note 19, Preparatory Committee Decisions Aug. 1997, p. 35; see note 20, Zutphen Draft, p. 114; see note 20, Draft Statute, p. 127.

¹⁵⁹ See note 22; Draft proposal for article 67; see note 22, Report of the Working Group on Procedural Matters (4 July), pp. 4–5; see note 22, Compendium of draft articles, pp. 41–42. But see: see note 74, Proposal submitted by the Delegations of Egypt, Oman and the Syrian Arab Republic, p. 1.

¹⁶⁰ *Prosecutor v. Tadić*, IT-94-1-T, Separate Opinion of Judge Vohrah on Prosecution Motion for Production of Defence Witness statements, 27 Nov. 1996, p. 4.

¹⁶¹ See note 18, 1996 Preparatory Committee I, p. 58, para. 275.

¹⁶² White and Ovey, *Jacobs, White and Ovey: The European Convention on Human Rights* (2010) 294.

¹⁶³ See note 33, Regulations of the Court, regulation 43.

¹⁶⁴ See note 4, Rome Statute, article 64 para. 8 (b).

¹⁶⁵ See note 54, Rules of Procedure and Evidence, rule 140 para. 1.

¹⁶⁶ *Ibid.*, rule 140 para. 2.

¹⁶⁷ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1274, Decision on Prosecutor's Application of Witness summonses and Resulting Request for State Party Cooperation, 17 Apr. 2014, para. 193.

authorises the Court to allow the presentation of evidence by electronic or other special means¹⁶⁸. Some questions are out of bounds: the Rules of Procedure and Evidence state that evidence of the prior or subsequent sexual conduct of a victim or witness is not to be admitted¹⁶⁹. It may also disallow questions because they are abusive or repetitive. What is important is that the parties, prosecution and defence, be treated equally and that the trial be fundamentally fair. The Statute also allows the Court to recognise witness privileges. The Assembly of States Parties agreed to confirm a principle already recognised by the International Criminal Tribunal for the former Yugoslavia, by which the International Committee of the Red Cross has a right to non-disclosure of evidence obtained by a former employee in the course of official duties. The Tribunal relied on customary international law in reaching its decision¹⁷⁰. The Rules also recognise solicitor client privilege, and enable the Court to extend privilege to other categories of witnesses¹⁷¹. It has been suggested that on this basis privilege might be extended to other non-governmental organisations with humanitarian purposes, and bodies such as a truth and reconciliation commission.

bb) Defences. The second sentence of subparagraph (e) recognizes the right of the accused 39 to raise defences and to present other admissible evidence. The Preparatory Committee had appended to the provision, in square brackets, a sentence stating: 'In addition the accused shall also be entitled to present any other evidence'¹⁷². At Rome, the Chair of the Working Group added the reference to raising defences¹⁷³.

These rights must surely be included within the general principle of the right to a fair trial, 40 established in the *chapeau* of article 67 para. 1. Moreover, defences are described in considerable detail in Part 2 of the *Statute*, concerning general principles of law. It should be observed that some defences are formally excluded by Part 2, namely the defence of official capacity¹⁷⁴, lack of knowledge (in the case of command responsibility)¹⁷⁵ and superior orders (in cases of genocide and crimes against humanity)¹⁷⁶.

f) Interpreter. The provision in the ICC *Statute* is considerably more detailed than the 41 corresponding text in the *ICCPR* although it is doubtful whether anything really new has been added. Article 14 para. 3 (f) recognizes the right to 'free assistance of an interpreter' if the accused 'cannot understand or speak the language used in court'¹⁷⁷. Here, too, the ILC attempted to improve on the text of the *ICCPR*, adding the requirement that the interpreter be 'competent', specifying extension of the principle to include documents, and modifying the requirement that the accused either understand or speak the language to become a cumulative requirement, 'understands and speaks'¹⁷⁸. The *Statute* provision is essentially identical to the ILC Draft, except for the order of the phrases. These were reversed at the August 1997 session of the Preparatory Committee¹⁷⁹, and the word 'fully' added during the Rome Conference¹⁸⁰.

An accused who does not understand the proceedings is not 'present' at trial. Thus, the 42 right to an interpreter seems axiomatic. Supervision of the quality of such interpretation is a

¹⁶⁸ See note 4, Rome Statute, article 68 para. 2.

¹⁶⁹ See note 54, Rules of Procedure and Evidence, rule 71.

¹⁷⁰ *Ibid.*, Rule 73 (3), (4), (5), confirming: *Prosecutor v. Simić et al.*, IT-95-9-PT, Decision on the Prosecution Motion Under Rule 73 for a Ruling Concerning the Testimony of a Witness, 27 July 1999.

¹⁷¹ See note 54, Rules of Procedure and Evidence, rule 73.

¹⁷² See note 18, 1996 Preparatory Committee II, p. 199; see note 19, Preparatory Committee Decisions Aug. 1997, p. 35; see note 20, Zutphen Draft, p. 114; see note 20, Draft Statute, p. 127.

¹⁷³ See note 22 Draft proposal for article 67.

¹⁷⁴ See note 4, Rome Statute, article 27.

¹⁷⁵ *Ibid.*, article 28.

¹⁷⁶ *Ibid.*, article 33.

¹⁷⁷ Specific responsibility for ensuring respect of this right lies with the registry: see note 30, Regulations of the Registry, regulation 40.

¹⁷⁸ See note 15, 1994 ILC Draft Statute, p. 115, article 41. For a particularly interesting discussion of the difficulties of trials with interpreters, see *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment of 2 Sep. 1998.

¹⁷⁹ See note 19, Preparatory Committee Decisions Aug. 1997, p. 35; see note 20, Zutphen Draft, pp. 114–115; see note 20, Draft Statute, pp. 114–115; see note 22, Draft proposal for article 67.

¹⁸⁰ See note 76, Report of the Working Group on Procedural Matters (11 July), pp. 3–4; see note 22, Compendium of draft articles, pp. 5–7.

constant difficulty, however, because frequently the accused is the only person who is actually listening to the interpretation. Although the requirement that documents be translated may be cumbersome, time-consuming and costly, it has been recognized by the European Court of Human Rights as a corollary of the right to an interpreter¹⁸¹.

- 43 The provision does not require interpretation into the accused's mother tongue, or into a language of the accused's choice¹⁸². In an interlocutory ruling, the ICTY denied an accused's request for a 'Croatian' interpreter, given that the languages are similar enough and there was regular translation of Serbo-Croatian¹⁸³. The accused is not entitled to a translation of every document in the case; the right extends only to 'such translations as are necessary to meet the requirements of fairness'. The Court has taken quite a restrictive approach to translation, holding that only those documents that are fundamental to ensuring that the accused fully understands the 'nature, cause and content of the charge and thus to adequately defend himself or herself' must be translated.¹⁸⁴ A more expansive approach to interpretation might be required where the accused opts to exercise his or her right to self-representation, as the ability to prepare an effective defence will likely extend to a wider range of documents.
- 44 g) **Right to silence.** The right to silence provision is also based on the norm in article 14 para. 3 of the *ICCPR*, but goes considerably farther. The *ICCPR* says that an accused has the right '[n]ot to be compelled to testify against himself or to confess guilt'. The *Statute* removes the qualification 'against himself', and adds an additional norm that is not at all implicit in the *ICCPR*, namely that the silence of an accused cannot be a consideration in the determination of guilt or innocence.
- 45 The words 'against himself' were removed by the ILC in its Draft Statute, but otherwise the text of article 14 para. 3 (g) remained intact¹⁸⁵. But this is not the same as the general right against self-incrimination found in the Fifth Amendment to the United States Constitution, because the right may only be invoked by an accused¹⁸⁶. The text clarifies the fact that an accused may refuse to testify altogether, and not merely to testify when the evidence is 'against himself'.
- 46 The second arm of the provision, providing that silence includes the right not to have it invoked against an accused, was added during the August 1997 Preparatory Committee¹⁸⁷. Without square brackets, it sailed along effortlessly into the final version of the *Statute*¹⁸⁸, although at the Rome Conference the United Kingdom made an interesting proposal that changed the form without modifying the content¹⁸⁹. The provision reflects concerns with encroachments upon the right to silence in some national justice systems. Specifically, English common law has always prevented any adverse inference being drawn from an

¹⁸¹ See note 79, *Luedicke, Belkacem and Koc v. Federal Republic of Germany*, para. 48; *Kamasinski v. Federal Republic of Germany*, Ser. A, No. 168, 19 Dec. 1989, para. 74.

¹⁸² *Guesdon v. France* (No. 219/1986), UN Doc. A/44/40, p. 222, paras. 10.2, 10.3.

¹⁸³ *Prosecutor v. Delalić et al.*, IT-96-21-T, Order on Zdravko Mucić's Oral Request for Croatian Interpretation, 23 June 1997.

¹⁸⁴ *Prosecutor v. Bemba et al.*, ICC-01/05-01/13-177, Decision on the Defence request for an order requiring the translation of evidence, 11 Feb. 2014, para. 6. See also, *Prosecutor v. Gbagbo*, ICC-02/11-01/11-489, Decision on Mr Gbagbo's request for translation and an extension of time for the filing of a response to the document in support of the appeal, 22 Aug. 2013, para. 12.

¹⁸⁵ See note 15, 1994 ILC Draft Statute, p. 116, article 41.

¹⁸⁶ According to see note 18, 1996 Preparatory Committee I, para. 276, 'The right of the accused not to be compelled to give testimony was supported, as was the right of witnesses to enjoy some degree of protection from giving self-incriminating testimony'. But article 67 does not apply to witnesses, who have no general protection against self-incrimination.

¹⁸⁷ See note 19, Preparatory Committee Decisions Aug. 1997, p. 35; see note 20, Zutphen Draft, p. 117; see note 20, Draft Statute, p. 127.

¹⁸⁸ See note 22, Draft proposal for article 67; see note 22, Report of the Working Group on Procedural Matters (4 July), pp. 4–5; see note 22, Compendium of draft articles, pp. 41–42.

¹⁸⁹ See note 41, Proposal submitted by the United Kingdom of Great Britain and Northern Ireland, p. 1: 'Neither to be compelled to testify nor to confess guilt and to be permitted to remain silent without any inference as to guilt or innocence being drawn from such silence'.

accused's failure to testify. But in recent years, legislation adopted within the United Kingdom now allows prosecutors to propose such conclusions¹⁹⁰.

At the *ad hoc* tribunals, the right to silence has arisen in proceedings concerning provisional release, where prosecutors argued that the silence of the accused is a pejorative factor militating against release. But Trial Chambers have said that 'lack of co-operation of an accused should not, as a rule, be taken into consideration as a factor' that might justify denying an application for provisional release. According to an ICTY Trial Chamber, '[t]he alternative would easily result in infringement of the fundamental right of an accused to remain silent'¹⁹¹.

Cooperation with the Prosecutor may be cited as a mitigating factor at the sentencing stage, and to this extent there may be a price to be paid by an accused for exercising the right to silence. However, Trial Chambers have frequently insisted that the fact the accused does not plead guilty should not be viewed as an aggravating factor, 'since an accused person has no obligation to do so and he has the right to remain silent should he choose that course'¹⁹². In *Niyitegeka*, an ICTR Trial Chamber wrote:

'The Accused chose not to testify in his own defence in the present case. The Defence made submissions concerning the right to remain silent and the right not to testify. The Chamber is mindful of the Accused's rights in this regard and has not drawn any adverse inference in the present case'¹⁹³.

In *Čelebići*, the ICTY Appeals Chamber said there is 'an absolute prohibition against consideration of silence in the determination of guilt or innocence is guaranteed within the Statute and the Rules... Similarly, this absolute prohibition must extend to an inference being drawn in the determination of sentence'¹⁹⁴. While the ICC has confirmed that no adverse inference may be drawn from the accused's silence, it has also held that if the accused were to choose to disclose a line of defence at a stage in proceedings that was 'unnecessarily and unjustifiably late', this could have negative consequences for the right to have exculpatory material disclosed by the prosecution.¹⁹⁵ This does suggest that the exercise of the right to silence can bring adverse consequences for the accused who opts not to reveal his or her lines of defence until a later stage in proceedings, as 'the possibility exists that the Court will conclude that the continued trial is fair notwithstanding the failure to reveal ... [the] identities [of exculpatory witnesses] to the accused'.¹⁹⁶

The right to silence can of course be waived. An accused who pleads guilty in effect waives the right to silence, as well as certain other procedural rights¹⁹⁷. This is often spelled out in plea agreements at the *ad hoc* tribunals¹⁹⁸. Many accused before international tribunals have chosen to testify in their own defence. In the case of a defence of alibi, for example, it is virtually essential that the accused take the witness stand in order to explain his or her whereabouts at the time of the crime.

¹⁹⁰ Criminal Justice and Public Order Act (1994), s. 4 (3).

¹⁹¹ *Prosecutor v. Jokić et al.*, IT-01-42-PT and IT-01-46-PT, Orders on Motions for Provisional Release, 20 Feb. 2002. Also: *Prosecutor v. Hadžihasanović et al.*, IT-01-47-PT, Decisions Granting Provisional Release to Enver Hadžihasanović, Mehmed Alagic and Amir Kubura, 9 Dec. 2001, para. 15.

¹⁹² *Prosecutor v. Vasiljević*, IT-98-32-T, Judgment, 29 Nov. 2002, para. 298; *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgment, 20 Feb. 2001, para. 783; *Prosecutor v. Plavšić*, IT-00-39&40/1, Sentencing Judgment, 27 Feb. 2003, para. 64; *Prosecutor v. Blaškić*, IT-95-14-A, Judgment, 29 July 2004, para. 687.

¹⁹³ *Prosecutor v. Niyitegeka*, ICTR-96-14-T, Judgment and Sentence, 16 May 2003, para. 46.

¹⁹⁴ *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgment, 20 Feb. 2001, para. 783. Also: *Prosecutor v. Plavšić*, IT-00-39&40/1, Sentencing Judgment, 27 Feb. 2003, para. 64.

¹⁹⁵ *Prosecutor v. Lubanga*, ICC-01/04-01/06, Judgment on the appeal of Mr. Lubanga Dyilo against the Oral Decision of Trial Chamber I of 18 Jan. 2008, 11 July 2008, para. 44; *Ibid.*, Partly Dissenting Opinion of Judge Georgios M. Pikis, paras. 11–14.

¹⁹⁶ *Prosecutor v. Lubanga*, ICC-01/04-01/06-T-71-ENG, Transcript, 18 Jan. 2008, p. 9, lines 4 to 21.

¹⁹⁷ *Prosecutor v. Sikirica et al.*, IT-95-8, Sentencing Judgment, 13 Nov. 2001, para. 17.

¹⁹⁸ See, e.g., *Prosecutor v. Obrenović*, IT-02-60-T, Plea Agreement, para. 17; *Prosecutor v. Momir Nikolić*, IT-02-60-PT, Amended Plea Agreement, para. 5.

- 47 **h) Unsworn statement.** The idea that an accused is entitled to make an unsworn oral or written statement in his or her defence, at least as a fundamental right, is a genuine innovation. There is nothing comparable in any of the international human rights instruments. But it is a practice recognized under many criminal codes throughout the world. In fact, continental European jurists are ‘astonished’ that it could be otherwise, as in their jurisdictions the accused is never sworn¹⁹⁹. The proposal first surfaced during the informal working group of the August 1996 session of the Preparatory Committee²⁰⁰. It was retained, in square brackets, by the Working Group in August 1997²⁰¹, and adopted without difficulty at the Rome Conference²⁰².
- 48 Under common law systems, an unsworn statement would in principle be inadmissible as evidence. If the accused chooses to testify, then he or she must be sworn and, moreover, must submit to cross-examination. Article 69 para. 1 requires every witness to ‘give an undertaking as to the truthfulness of the evidence to be given by that witness’. In so doing, the witness submits to the possibility of prosecution for perjured testimony²⁰³. Although there is a lack of consistency with the terminology used in article 67 para. 1 (h), logically, testimony subsequent to the undertaking as to truthfulness must be the equivalent of a ‘sworn statement’. Therefore, the ‘unsworn statement’ seems to present itself as an exception to the general rule requiring that testimony be accompanied by an undertaking as to truthfulness. Although the judges cannot consider the accused’s decision not to testify as a factor influencing guilt or innocence, pursuant to article 67 para. 1 (g), this surely does not require them to attribute the same weight to the unsworn statement of an accused as they would to sworn testimony. But an alternative view suggests that the unsworn statement is not evidence at all. If it is not, then the Court may not base its judgment on ‘facts’ revealed in the course of the unsworn statement²⁰⁴. An accused who believes the unsworn statement is a way to introduce evidence might have an unfortunate surprise if the Court, in its final judgment, indicates that it does not consider such ‘facts’ as being part of the record. The latter view appears to be supported by the finding that if an accused person elects to make an unsworn statement, he or she cannot be cross-examined on the contents of that statement, as this would contravene the right to silence in article 67 para. 1 (g).²⁰⁵ However, in granting an accused the right to address the Appeals Chamber, the Chamber noted that ‘the opportunity afforded to Mr Ngudjolo to make a personal address does not qualify as an unsworn oral or written statement within the meaning of article 67 (1) (h) of the Statute, which may attract evidentiary weight’.²⁰⁶ The word ‘may’ is instructive here; it indicates that there is no obligation on the Trial Chamber to take the unsworn statement into account when reaching its final judgment.
- 49 **i) Reverse onus.** The prohibition of any reverse onus or duty or rebuttal is really a corollary of the presumption of innocence, protected by article 66 of the ICC *Statute*. Reverse onus provisions are common to most criminal law systems.²⁰⁷ Upon proof of one fact, the Court is entitled, or in some cases is obliged, to conclude that another fact has been proven. Thus, the prosecution does not in reality prove a decisive fact in the case against the accused. The accused bears the onus of disproving such a fact, sometimes by raising a reasonable

¹⁹⁹ Pradel, *Droit Pénal Comparé* (2008) 449, fn. 1.

²⁰⁰ See note 78, 1996 Preparatory Committee II, p. 117, 200.

²⁰¹ See note 18, 1996 Preparatory Committee I, p. 35; see note 20, Zutphen Draft, p. 117; see note 20, Draft Statute, p. 128.

²⁰² See note 22, Draft proposal for article 67; see note 22, Report of the Working Group on Procedural Matters (4 July), pp. 4–5; see note 22, Compendium of draft articles, pp. 41–42. See also: see note 74, Proposal submitted by the Delegations of Egypt, Oman and the Syrian Arab Republic, p. 1.

²⁰³ See note 4, Rome Statute, article 70 para. 1 (a).

²⁰⁴ *Ibid.*, article 74 para. 2.

²⁰⁵ *Prosecutor v. Bemba*, ICC-01/05-01/08, Decision on unsworn statement by the accused pursuant to Article 67(l)(h) of the Rome Statute, 1 Nov. 2013, para. 8. See also, *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, Decision on Vidoje Blagojević’s Oral Request, 30 July 2004, 7.

²⁰⁶ *Prosecutor v. Ngudjolo*, ICC-01/04-02/12, Decision on the Prosecutor’s request to establish parameters for Mr Ngudjolo’s personal address at the appeal hearing, 17 Oct. 2014, para. 9.

²⁰⁷ For a discussion see commentary on article 66, particularly mn. 18–22.

doubt as to its existence, and sometimes by actually proving the contrary, according to the principle of preponderance of evidence. Although many offences in national criminal codes are drafted in such a fashion, there are no examples in the ICC Statute. This does not mean that a reverse onus issue may not arise. For example, in the *Čelebići* trial before the ICTY, the Trial Chamber noted that ‘there is a presumption of sanity of the person alleged to have committed the offence’²⁰⁸ and that the accused who raises a defence of insanity or diminished mental capacity ‘is to rebut the presumption of sanity’²⁰⁹. In *Bemba*, the Appeals Chamber found that the Trial Chamber had erroneously reversed the burden of proof when it admitted the totality of prosecution witness statements as a whole, leaving a burden on the accused to disprove the admissibility of items of evidence that had already been admitted.²¹⁰

The provision was not included in the ILC Draft Statute, nor did it form part of the first series of amendments, during the 1996 sessions of the Preparatory Committee. Article 67 para. 1(i) was proposed during the August 1997 meeting, although it was left in square brackets²¹¹. It posed no problem during the debates at Rome and was adopted promptly²¹².

II. Paragraph 2

International human rights law is somewhat uncertain as to an obligation on the prosecution to disclose evidence to the defence prior to trial. Although the instruments impose no clear duty in this respect²¹³, the European Court of Human Rights has declared ‘that it is a requirement of fairness ... that the prosecution authorities disclose to the defence all material evidence for or against the accused’²¹⁴. The Rules of the *ad hoc* Tribunals make detailed provision for disclosure of the prosecution case and, according to more recent amendments, for the defence case as well²¹⁵. A duty on the prosecution to disclose its evidence, both exculpatory and inculpatory, is now recognized in many legal systems²¹⁶. Existence of a reciprocal duty on the defence is less common although in some cases, such as a defence of alibi, the credibility of the defence will depend on prompt disclosure of material facts²¹⁷. In an interlocutory decision in the *Tadić* case, Judge Stephen said the defence has ‘no disclosure obligation at all unless an alibi or a special defence is sought to be relied upon and then only to a quite limited extent ...’²¹⁸. It is obvious that the defence can never be required to disclose inculpatory evidence, as this would violate the right against self-incrimination set out in paragraph (g).

In an effort to clarify this point, the ILC proposed the following provisions, to comprise a second paragraph in the article on rights of the accused: ‘Exculpatory evidence that becomes

²⁰⁸ *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, 16 Nov. 1998, para. 1157.

²⁰⁹ *Ibid.*, para. 1158.

²¹⁰ *Prosecutor v. Bemba*, ICC-01/05-01/08, Judgment on the appeals of Mr Jean-Pierre Bemba Gombo and the Prosecutor against the decision of Trial Chamber III entitled ‘Decision on the admission into evidence of materials contained in the prosecution’s list of evidence’, 3 May 2011, para. 73.

²¹¹ See note 19, Preparatory Committee Decisions Aug. 1997, p. 35; also: see note 20, Zutphen Draft, p. 155; see note 20, Draft Statute, p. 128. Note the error in the *nota bene* at the end of article 60 in the Zutphen Draft. The reference is to paragraph 1 in general, and not to subparagraph 1 (j). The error is corrected in the Draft Statute of Apr. 1998.

²¹² See note 22, Draft proposal for article 67, p. 5; see note 22, Compendium of draft articles, p. 42; Draft Statute for the International Criminal Court, UN Doc. A/CONF.183/C.1/L.76/Add.6, p. 5.

²¹³ The closest is Principle 21 of the United Nations Basic Principles on the Role of Lawyers, UN Doc. A/CONF.144/28/Rev.1 (1990): ‘It is the duty of the competent authorities to ensure lawyers access to appropriate information, files and documents in their possession or control in sufficient time to enable lawyers to provide effective legal assistance to their clients’.

²¹⁴ *Edwards v. United Kingdom*, Ser. A, No. 247B, 16 Dec. 1992.

²¹⁵ See note 85, Rules of Procedure and Evidence, Rule 66. See: La Rosa, (1997) 101 *RGDIP* 945, 974.

²¹⁶ Pradel, *Droit Pénal Comparé* (2008) 414–420; Heinze, *International Criminal Procedure* (2014), 309–499.

²¹⁷ *Williams v. Florida*, 399 U.S. 78 (1970).

²¹⁸ *Prosecutor v. Tadić*, IT-94-1-T, Separate opinion of Judge Stephen on prosecution motion for production of defence witness statements, 27 Nov. 1996.

available to the Procuracy prior to the conclusion of the trial shall be made available to the defence. In case of doubt as to the application of this paragraph or as to the admissibility of the evidence, the Trial Chamber shall decide²¹⁹. At the August 1996 session of the Preparatory Committee, delegates observed that it was fundamental to a fair trial that provision be made for the full disclosure of evidence by the Prosecutor to the defence, and not only exculpatory evidence, as well as a reciprocal duty of disclosure on the part of the defence²²⁰. At Rome, a new version submitted by Australia formed the basis of debate²²¹. The Drafting Committee added, at the beginning of the Australian text, the words '[i]n addition to any other disclosure provided for in this Statute ...'. Australia had left two options as to the body competent for resolving questions about whether or not disclosure was required, the Pre-Trial Chamber and the Trial Chamber. The Preparatory Committee did not choose either, leaving the matter to 'the Court'²²².

- 53 It is perhaps unfortunate that the obligation on the prosecution to disclose all relevant evidence is not explicitly included within the provision concerning rights of the defence. It is surely implicit in the general right to a 'fair hearing' found within the *chapeau* of article 67, especially in light of recent case law of international human rights tribunals. Moreover, article 64 of the *Statute*, entitled 'Functions and powers of the Trial Chamber', requires that the Trial Chamber 'ensure that a trial is fair and expeditious and is conducted with full respect for the rights of the accused'. In this context, the *Statute* imposes upon the Trial Chamber assigned to deal with a case the obligation ('the Trial Chamber ... shall'; the ILC Draft had left this to the discretion of the Presidency²²³): '[s]ubject to any other relevant provisions of this Statute, [to] provide for disclosure of documents or information not previously disclosed, sufficiently in advance of the commencement of the trial to enable adequate preparation for trial'. The relevant provisions that may qualify somewhat this duty on the prosecution are article 68 para. 5, concerning protection of witnesses, and article 72 para. 1, concerning protection of national security information, which makes express reference to article 67 para. 2.

The Rules of Procedure and Evidence of the ICC establish a thorough regime of disclosure, applicable to both Prosecutor and defence.²²⁴ The prosecution is required to provide the defence with the names of witnesses it intends to call at trial together with copies of their statements, subject to certain exceptions relating to the protection of the witnesses themselves²²⁵. The defence has a corresponding obligation with respect to witnesses, although this is worded slightly more narrowly, applying only to those expected to support specific defences²²⁶. Both sides are required to allow the other to inspect books, documents, photographs and other tangible objects in their possession or control which they intend to use as evidence. The Prosecutor must also disclose any such items that may be 'material to the preparation of the defence', pursuant to Rule 77 of the RPE, although a comparable duty is not imposed upon the defence to disclose items that might assist the prosecution²²⁷. This term has been interpreted quite broadly, and goes beyond those objects that are directly linked to exonerating and incriminating evidence, to include general background information

²¹⁹ See note 15, 1994 ILC Draft Statute, p. 115.

²²⁰ See note 18, 1996 Preparatory Committee I, para. 274, p. 58.

²²¹ Proposal submitted by Australia, UN Doc. A/CONF.183/C.1/WGPM/L.35 (29 June), p. 1: 'The Prosecutor shall, as soon as practicable, disclose to the defence evidence in the Prosecutor's possession or control which he or she believes shows or tends to show the innocence of the accused, or to mitigate the guilt of the accused, or which may affect the credibility of prosecution evidence. In case of doubt as to the application of this paragraph, the [Pre-Trial Chamber/Trial Chamber] shall decide'. There were other proposals relating to article 67 para. 2: see note 41, Proposal submitted by the United Kingdom of Great Britain and Northern Ireland, p. 1; see note 74, Proposal submitted by the Delegations of Egypt, Oman and the Syrian Arab Republic, p. 1.

²²² See note 22, Draft proposal for article 67; see note 76, Report of the Working Group on Procedural Matters (11 July), pp. 3–4.

²²³ See note 15, 1994 ILC Draft Statute, article 27 para. 5 (b), p. 95.

²²⁴ See generally, Heinze, *International Criminal Procedure* (2014).

²²⁵ See note 54, Rules of Procedure and Evidence, rule 76.

²²⁶ *Ibid.*, rule 79.

²²⁷ *Ibid.*, rules 77–78.

in the Prosecutor's possession.²²⁸ This broad interpretation follows the ICTR's approach in *Bagosora*, where it was held that 'preparation is a broad concept and does not necessarily require that the material itself counter the Prosecution case'.²²⁹ Similarly, the ICTY has concluded that documents and other objects 'material to the preparation of the Defence' consist of material that is '... significantly helpful to an understanding of important inculpatory or exculpatory evidence; it is material if there is a strong indication that ... it will 'play an important role in uncovering admissible evidence, aiding witness preparation, corroborating testimony, or assisting impeachment or rebuttal'''.²³⁰

The second sentence of article 67 para. 2 provides for a determination by the Court in cases where the prosecution is not sure about the nature of the evidence. An early amendment described this as a hearing '*ex parte*' and '*in camera*'.²³¹ The August 1997 session of the Preparatory Committee included a cross-reference to the provision enabling the Court to make orders for the conduct of the trial (now article 64 para. 3)²³². Given that there are obligations of disclosure at both the pre-trial and the trial phase, and that the obligation set out in article 67 para. 2 must be respected 'as soon as practicable', the appropriate body would be either the Pre-Trial Chamber or the Trial Chamber, depending on the circumstances. It is unclear whether this provision entitles the Prosecutor to seek a ruling in cases of doubt, or whether the defence could also apply where it suspects the Prosecution may have such evidence. There may be circumstances where the Prosecutor cannot seek such a determination without informing the Court of the evidence in question, and it would obviously defeat the purpose of the provision to allow the defence access to such evidence prior to the determination by the Court that it must be disclosed. Yet the defence is entitled to be present at trial, and the trial must be public. Should the Court decide to conduct some form of *ex parte* determination, this must be done with the greatest discretion. The Court might consider appointing an *amicus curiae* to ensure that the rights of the defence are protected and to assess, in appropriate circumstances, the usefulness of an appeal of its decision pursuant to article 81 para. 2 (d) of the *Statute*.

In the *Lubanga* case, two stays of proceedings were ordered owing to non-disclosure by the prosecution.²³³ The first, in 2008, found that the prosecution had erred in its use of article 54 para. 3 (e), which allows the Prosecutor to make agreements not to disclose any documents or information obtained confidentially and solely for the purpose of generating new evidence.²³⁴ Over 200 documents, which had either an undisputed exculpatory value or were material to the preparation of the defence, were obtained in this way and could not be disclosed as a result of the confidentiality agreements in place. The Chamber 'unhesitatingly' concluded that the fundamental right to a fair trial included the disclosure of exculpatory material,²³⁵ and that if one of the preconditions for fairness could not be present at trial, the trial must be stayed.²³⁶ Ultimately, the Prosecutor secured agreement from those information providers permitting him to share the documents with the Trial Chamber, which would in turn decide on disclosure in full, summary or redacted form.²³⁷ In 2010, a second stay of

²²⁸ *Prosecutor v. Lubanga*, ICC-01/04-01/06, Judgment on the appeal of Mr. Lubanga Dyilo against the Oral Decision of Trial Chamber I of 18 Jan. 2008, 11 July 2008, para. 77.

²²⁹ *Prosecutor v. Bagosora et al.*, ICTR-98-41-AR77.2, Decision on Interlocutory Appeal Relating to Disclosure under Rule 66 (B) of the Tribunal's Rules of Procedure and Evidence, 25 Sep. 2006, para. 9.

²³⁰ *Prosecutor v. Delalić et al.*, IT-96-21-T, Decision on the Motion by the Accused Zejnil Delalić for the Disclosure of Evidence, 26 Sep. 1996.

²³¹ See note 78, 1996 Preparatory Committee II, p. 200.

²³² See note 19, Preparatory Committee Decisions Aug. 1997, p. 35; also: see note 20, Zutphen Draft, p. 115; see note 20, Draft Statute, p. 128.

²³³ See further, Ambos, (2009) 12 *NethCLR* 543; Heinze, *International Criminal Procedure* (2014), 452–464.

²³⁴ *Prosecutor v. Lubanga*, ICC-01/04-01/06-1401, Decision on the Consequences of Non-Disclosure of Exculpatory Materials covered by Article 54(3)(e) Agreements and the Application to Stay the Prosecution of the Accused, together with Certain Other Issues raised at the Status Conference on 10 June 2008, 13 June 2008.

²³⁵ *Ibid.*, para. 77.

²³⁶ *Ibid.*, para. 91.

²³⁷ *Prosecutor v. Lubanga*, ICC-01/04-01/06-1644, Reasons for Oral Decision Lifting the Stay of Proceedings, 23 Jan. 2009.

proceedings was ordered when the prosecution refused to disclose the identity of an intermediary, who had allegedly encouraged witnesses to provide false testimony.²³⁸ This was ultimately overturned by the Appeals Chamber, which found that stays of proceedings were an exceptional remedy, which should only be granted where it was ‘impossible to piece together the constituent elements of a fair trial’.²³⁹

C. Special remarks

I. Omitted provisions

- 55 The drafts of article 67 that were considered by the Preparatory Committee contained two provisions based rather closely on the United States constitutional model rather than the international instruments. The first concerned the protection against unreasonable search and seizure²⁴⁰, while the second provided a guarantee not to be deprived of life or liberty without due process²⁴¹. Another proposal entitled the accused to invoke the Court’s power to compel state co-operation in order to assist the defence in the preparation of its case²⁴². They were deleted at the Rome Conference²⁴³. The due process proposal is derived from article V of the United States Bill of Rights, which is an anachronistic provision, in that it recognizes the legitimacy of capital punishment, something which is excluded from the Rome Statute²⁴⁴ and prohibited by contemporary human rights norms²⁴⁵. In any case, the notion of ‘due process’ is comprised within that of ‘fair trial’ in the *chapeau* of article 67 para. 1. Search and seizure, too, is governed by other provisions in the Statute. The protection against unreasonable search and seizure in effect enables a court to sanction misconduct at the investigation stage. Here, the Court has the power to exclude evidence, pursuant to article 69 para. 7 (b), where its admission ‘would be antithetical to and would seriously damage the integrity of the proceedings’. Finally, the state co-operation provision is also incorporated in other provisions of the Statute.

II. Role of article 67 in the applicable law

- 56 Article 67 closely resembles article 14 para. 3 of the ICCPR, as well as the various fair trial clauses found in national constitutions. It is not, however, a typical provision found within criminal or penal codes as such. In effect, such clauses generally belong in constitution-type

²³⁸ *Prosecutor v. Lubanga*, ICC-01/04-01/06, Decision to Disclose the Identity of Intermediary 143, 8 July 2010.

²³⁹ *Prosecutor v. Lubanga*, ICC-01/04-01/06 OA 18, Judgment on the Appeal of the Prosecutor against the Decision of Trial Chamber I of 8 July 2010 Entitled ‘Decision on the Prosecutor’s Urgent Request for Variation of the Time-Limit to Disclose the Identity of Intermediary 143 or Alternatively to Stay Proceedings Pending Further Consultations with the VWU’, 8 Oct. 2010, para. 55.

²⁴⁰ See note 78, 1996 Preparatory Committee II, pp. 200–201; see note 20, Zutphen Draft, p. 115; see note 20, Draft Statute, p. 128.

²⁴¹ See note 78, 1996 Preparatory Committee II, p. 201; see note 20, Zutphen Draft, p. 115; see note 20, Draft Statute, p. 128.

²⁴² See note 20, Zutphen Draft, p. 115; see note 20, Draft Statute, p. 128.

²⁴³ See also: see note 74, Proposal submitted by the Delegations of Egypt, Oman and the Syrian Arab Republic, p. 1.

²⁴⁴ See note 4, Rome Statute, article 77.

²⁴⁵ Protocol No. 6 to the Convention for the Protection of Human Rights and Fundamental Freedoms Concerning the Abolition of the Death Penalty, ETS No. 114, entered into force 30 Mar. 1985; Protocol No. 13 to the Convention for the Protection of Human Rights and Fundamental Freedoms Concerning the Abolition of the Death Penalty in all Circumstances, ETS No. 187, entered into force 7 Jan. 2003; Second Optional Protocol to the International Covenant on Civil and Political Rights Aiming at Abolition of the Death Penalty, GA Res. 44/128, entered into force 7 July 1991; Additional Protocol to the American Convention on Human Rights to Abolish the Death Penalty, OASTS No. 73, 29 ILM 1447, entered into force 6 Oct. 1993.

instruments, and claim a judicial role which is hierarchically superior to the criminal law texts that they frame and control. It is against the constitutional fair trial standard that provisions of the ordinary criminal law, as well as actions of the authorities in implementing it, including those of the Courts, are to be assessed. In national legal systems, two principal consequences result: where a provision of the ordinary criminal law is in conflict with the fundamental fair trial norm, the former must give way to the latter; where the investigating authorities, the prosecution or the Courts themselves have breached the fair trial rights of the accused, the Courts must grant an appropriate remedy, which may range from compensation to an order for a new trial and even, in some systems, the right to a stay of proceedings.

The application of these concepts to the ICC *Statute* is not obvious, and this raises 57 questions about the role of article 67 itself within the general structure and legal philosophy of the *Statute*. To take the case of a breach of article 67 by the investigating authorities, the prosecution or the Courts, a number of scenarios may be contemplated. Although article 67 applies at the trial stage of the proceedings, it may be threatened by pre-trial events, such as irregular or illegal investigation, either by the national authorities or by the Prosecutor's office. The *Statute* provides the Court with the power to exclude evidence in cases of abuse²⁴⁶ but there may be breaches of article 67 for which this may be an insufficient or inappropriate remedy. For example, what is the Court to do in cases of a violation of the right to a speedy trial, set out in article 67 para. 1 (c)? Jurisprudence from the ICTR suggests that a reduction in sentence in the case of conviction and monetary compensation where the defendant has been acquitted can remedy any prejudice suffered by a breach of this right.²⁴⁷ As discussed above, the Court has granted stays of proceedings where a fair trial has been rendered impossible, even though no explicit power to do so is set out in the *Statute*. The power to grant a stay of proceedings in the event of an abuse of process by the Prosecutor is an inherent power of the Court to protect the integrity of proceedings. The approach of the *Kenyatta* Trial Chamber, where the Prosecutor was ordered to either declare that it had sufficient evidence to proceed to trial or to withdraw the charges is another means through which delays in the pre-trial stage can be remedied.²⁴⁸

Even more difficult is the problem of applicable law that is incompatible with article 67. In 58 some cases, provisions of the *Statute* are explicitly protected from conflict with article 67. For example, article 67 para. 1 (d) employs the words '[s]ubject to article 63, paragraph 2 ...'. In others, it was surely the intent to the *Statute*'s drafters to except other provisions from the scope of article 67. For example, despite the right to 'raise defences' set out in article 67 para. 1 (e), this cannot be unlimited, because other provisions of the *Statute* prohibit or limit the defences of official capacity and superior orders. What if a provision of the applicable law is not sheltered, either implicitly or explicitly, from article 67? Can the Court determine that it is inoperative to the extent that there is an incompatibility with the provisions of article 67? If the Court may indeed make such a determination, does this only cover procedural issues or does it also concern substantive law?

It is suggested that article 67, given its unique formulation and its historical origin, may be 59 entitled to a form of hierarchically superior status within the *Statute*. In appropriate cases, some of which may have been unthinkable in July 1998 but which may become apparent over time, the Court may be required to declare provisions of the *Statute* inoperative because they conflict with article 67. The 'fair trial' norm in the *chapeau* of article 67 para. 1 is a powerful concept and one that will evolve, in keeping with the development of international human rights law. Provisions of the *Statute* that meet the fair trial standard in 1998 may no longer do so at some point in the future.

²⁴⁶ See note 4, Rome Statute, article 69 para. 7 (b).

²⁴⁷ *Prosecutor v. Rwamakuba*, ICTR-98-44C-T, Decision on Appropriate Remedy, 31 Jan. 2007; *Prosecutor v. Rwamakuba*, Decision on Appeal against Decision on Appropriate Remedy, ICTR-98-44C-A, 13 Sept. 2007; *Prosecutor v. Mugenzi and Mugiraneza*, Appeals Judgment, ICTR-99-50-A, 4 Feb. 2013, Partially Dissenting Opinion of Judge Robinson, para. 12.

²⁴⁸ *Prosecutor v. Kenyatta*, ICC-01/09-02/11-981, 3 Dec. 2014, para. 62.

But for the sake of argument, even if it is assumed that the other norms in the Statute are either compatible with article 67 or else they are implicit or explicit exceptions to it, it must be born in mind that much of the applicable law remains to be devised. The two other principal sources, the Rules of Procedure and Evidence and the Elements of Crimes, are hierarchically subordinate to the *Statute*. Article 52 para. 5 of the *Rome Statute* declares that in the event of conflict between it and the Rules, the *Statute* shall prevail. Rules of evidence adopted by the Assembly of States Parties may conflict with fair trial rights enshrined in article 67²⁴⁹, and the Court is clearly entitled to disregard them or declare them inoperative in such cases. Moreover, the wording of article 67 – particularly its reference to defences and to onus of proof – suggests that this extends to substantive as well as procedural matters.

²⁴⁹ For an example drawn from the Rules of the ICTY, see: La Rosa, (1997) 828 *RevICR* 677, 680–684.

Article 68

Protection of victims and witnesses and their participation in the proceedings

1. The Court shall take appropriate measures to protect the safety, physical and psychological well-being, dignity and privacy of victims and witnesses. In so doing, the Court shall have regard to all relevant factors, including age, gender as defined in article 7, paragraph 3, and health, and the nature of the crime, in particular, but not limited to, where the crime involves sexual or gender violence or violence against the children. The Prosecutor shall take such measures particularly during the investigation and prosecution of such crimes. These measures shall not be prejudicial to or inconsistent with the rights of the accused and a fair and impartial trial.

2. As an exception to the principle of public hearings provided for in article 67, the Chambers of the Court may, to protect victims and witnesses or an accused, conduct any part of the proceedings *in camera* or allow the presentation of evidence by electronic or other special means. In particular, such measures shall be implemented in the case of a victim of sexual violence or a child who is a victim or a witness, unless otherwise ordered by the Court, having regard to all the circumstances, particularly the views of the victim or witness.

3. Where the personal interests of the victims are affected, the Court shall permit their views and concerns to be presented and considered at stages of the proceedings determined to be appropriate by the Court and in a manner which is not prejudicial to or inconsistent with the rights of the accused and a fair and impartial trial. Such views and concerns may be presented by the legal representatives of the victims where the Court considers it appropriate, in accordance with the Rules of Procedure and Evidence.

4. The Victims and Witnesses Unit may advise the Prosecutor and the Court on appropriate protective measures, security arrangements, counselling and assistance as referred to in article 43, paragraph 6.

5. Where the disclosure of evidence or information pursuant to this Statute may lead to the grave endangerment of the security of a witness or his or her family, the Prosecutor may, for the purposes of any proceedings conducted prior to the commencement of the trial, withhold such evidence or information and instead submit a summary thereof. Such measures shall be exercised in manner which is not prejudicial to or inconsistent with the rights of the accused and a fair and impartial trial.

6. A State may make an application for necessary measures to be taken in respect of the protection of its servants or agents and the protection of confidential and sensitive information.

Literature: Bassiouni, M.C., *The right to restitution, compensation and rehabilitation for victims of gross violations of human rights and fundamental freedoms – Final report of the Special Rapporteur*, UN Doc. E/CN.4/2000/62; van Boven, T., *Study Concerning the Right to Restitution, Compensation and Rehabilitation for Victims of Gross Violations of Human Rights and Fundamental Freedoms*, UN Doc. E/CN.4/SUB.2/1993/8; id., *The Basic Principles and Guidelines on the Right to Reparation for Victims of [gross] Violations of Human Rights and International Humanitarian Law*, UN Doc. E/CN.4/1997/104; Clark, R.S., 'The 1985 United Nations Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power', in: G. Alfredsson and P. Macalister-Smith (eds.), *The Living Law of Nations* (N.P. Engel 1996) 355; Cohen, M., 'Victims' Participation Rights within the International Criminal Court: A Critical Overview', (2009) 27/3 *DenverJILP*, 351; Donat-Cattin, D., 'The Role of Victims in ICC Proceedings', in: F. Lattanzi and W. A. Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court*, Vol. I (Editoriale Scientifica 1999) 251; id., 'Victims' Rights in the International Criminal Court', in: M. Natarajan (ed.), *International Crime and Justice* (Cambridge University Press 2011) 373; FIDH, *Enhancing Victims' Rights before the International Criminal Court* (Paris 2013); Joinet, L., *Question of the Impunity of Perpetrators of Human Rights Violations (Civil and Political), Final Report Pursuant to Sub-Commission Decision 1996/119*, UN Doc. E/CN.4/Sub.2/1997/20; Impunity Watch, *Discussion Paper – Victims Participation in Transitional Justice Mechanisms: Real Power or Empty Ritual?* (The Hague, April 2014); McGo-

nigle Leyh, B., *Procedural Justice? Victim Participation in International Criminal Proceedings* (Intersentia 2011); Mueller, S. D., 'Kenya and the International Criminal Court (ICC): politics, the election and the law', (2014) 1 *Journal of Eastern African Studies* 25; Orentlicher, D., *Updated Set of principles for the protection and promotion of human rights through action to combat impunity*, UN Docs. E/CN.4/2005/102 and E/CN.4/2005/102/Add.1; Pérez León Acevedo, J. P., *Victims' Status at International and Hybrid Criminal Court – Victims' Status as Witnesses, Victim Participants/Civil Parties and Reparation Claimants* (Åbo: Åbo Akadmi University Press, 2014); United Nations Commission on Crime Prevention and Criminal Justice, *Handbook on Justice for Victims on the Use and Application of the United Nations Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power*, UN Doc. E/CN.15/1998/CRP.4/Add.1.

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A. Introduction/General remarks

1. Victims' protection

- 1 Victims of crime are often left alone in society, even if there is an effective system of justice to bring to adjudication alleged offenders. Victims are alone because their rights are not fully recognised by the law that is applicable to them, and their life, security and privacy are not always protected before, during and after the trial. Indeed, victims and their families may remain vulnerable to intimidation and retaliation as a result of the trial, long after the accused has been convicted or acquitted.

On the contrary, criminal justice systems provide for safeguards for those who – amongst the victims – are instrumental to a criminal prosecution as witnesses. Thus, protective

measures are afforded until the testimony is given and the element of proof is collected. After that, it is much more difficult to find that the interest of the prosecution coincides with the protection of the rights of victims, even if they have given an essential contribution to the discovery of the truth in a given process.

The first three years of the Rwandan Tribunal showed that certain victims had gone back home after having witnessed in Arusha (Tanzania), seat of the Tribunal, and were killed¹. The Yugoslav Tribunal had a significant experience in this delicate field of protective measures: co-operation of States (e.g. Norway and the United Kingdom) went as far as making the granting of a new identity and a refugee status to victims/witnesses in danger in the territories of Bosnia possible. The law and practice of both *ad hoc* International Criminal Tribunals for the former Yugoslavia (ICTY) and Rwanda (ICTR)² prepared a fertile terrain for the insertion of advanced provisions on victims' protection in article 68 paras. 1, 2, 4 and 5 of the Rome Statute³.

The first eleven years of practise of the ICC confirmed the interpretation of article 68 given in the first edition of this *Commentary*, namely, that it affords a non-derogable right to protection to victims and witness and it imposes a corresponding unconditioned obligation on all organs of the Court, at all stages of the proceedings, to protect the life, dignity and the physical and moral integrity ('well-being') of victims and witnesses. The rights and obligations defined in article 68 stem from existing norms of international human rights law, including the right to life, dignity and physical and moral integrity enshrined in universally accepted treaties such as the International Covenant on Civil and Political Rights. The practise established by the Office of the Prosecutor has shown that, when available measures of protection are not sufficient to safeguard a potential witness identified in a pre-trial investigation, the decision of the Office is to move to another witness or victim and/or, as appropriate, to wait for another opportunity, in time and space, to approach the same witness, hence ensuring compliance with the requirements of article 68⁴.

¹ As reported by Morris and Scharf, *The International Criminal Tribunal for Rwanda*, 536: '[t]wo witnesses who testified before the Rwanda Tribunal in the *Jean-Paul Akayesu case* and the *Obed Ruzindana case*, were also killed'. See Second Annual Report of the ICTR covering the period from 1 July 1996 to 30 June 1997, adopted on 6 June 1997, UN Doc. A/52/582-S/1997/868 (1997), para. 51. Subsequent practise of the ICTR focussed extensively on the protection of victims and witnesses, bringing about a uniform and effective methodology of protection.

² The ICTY and ICTR Statutes, respectively annexed to Security Council Resolutions 827 (1993) and 955 (1994), contain in articles 22 and 21 the same provision:

'The International Tribunal shall provide in its rules of procedure and evidence for the protection of victims and witnesses. Such protection measures shall include, but shall not be limited to, the conduct of *in camera* proceedings and the protection of the victim's identity.'

Rule 75 (*Protection of Victims and Witnesses*) of both Tribunals states as follows:

(A) A Judge or a Chamber may, *proprio motu* or at the request of either party, or of the victim or witness concerned, or of the Victims and Witnesses Unit, order appropriate measures for the privacy and protection of victims and witnesses, provided that the measures are consistent with the rights of the accused.

(B) A Chamber may hold an *in camera* proceeding to determine whether to order:

- (i) measures to prevent disclosure to the public or the media of the identity or whereabouts of a victim or a witness, or of persons related or associated with him by such means as:
 - (a) expunging names and identifying information from the Chamber's public records;
 - (b) non-disclosure to the public of any records identifying the victim;
 - (c) giving of testimony through image- or voice- altering devices or closed circuit television; and
 - (d) assignment of a pseudonym;
- (ii) closed sessions, in accordance with Rule 79;
- (iii) appropriate measures to facilitate the testimony of vulnerable victims and witnesses, such as one-way closed circuit television.

(C) A Chamber shall, whenever necessary, control the manner of questioning to avoid any harassment or intimidation.'

³ Paragraph 6 of article 68 is an ancillary norm to the ones contained in article 72 (*Protection of national security information*).

⁴ The Office of the Prosecutor reported on 22 June 2005 and 28 March 2007, during the institutional consultations between the Office and NGOs, that no incident had occurred to victims and witnesses contacted

2. Victims' participation

- 3 Unlike what occurred relating to victims' protection, the inclusion of norms on victims' participation in the Court's proceedings (article 68 para. 3) was the result of widespread and strong criticism against the lack of provisions of this kind in the Statutes and Rules of Procedure and Evidence of the *ad hoc* Tribunals.

In the aftermath of the Rwandan genocide, victims' participation and legal representation before the ICTR have been identified by some observers and defendants of human rights as a necessary instrument to render that Tribunal closer to Rwandan society. Indeed, the fact that Rwandan public opinion did not often understand that justice was done, because it was not seen to be done, was a major problem for the ICTR, which has been the first jurisdictional body in the history of human-kind to have convicted perpetrators of the crime of genocide, starting with former Prime-Minister Jean Kambanda⁵.

- 4 The movement of NGOs, individuals and Governments supporting the respect and full realisation of victims' rights through criminal justice found in the ICC process a unique opportunity to advocate the further codification of victims' rights in international law.

In a policy perspective, such a codification should lead to the affirmation of victims' rights in all domestic, regional and international jurisdictions. Yet, even if several provisions of the Rome Statute (especially Articles 10 and 80, if interpreted *e contrario*) may allow to identify the standards contained in the Statute as the new emergent standards agreed by States on matters of substantive and procedural law⁶, a literal interpretation of articles 68 and 75 leads to the conclusion that these statutory norms on victims' rights are solely applicable to the

by Court officials in the first years of investigations in Northern Uganda. The OTP and the Presidency of the ICC made similarly positive reports in respect of other situations, with the notable exception of the situation in Kenya. In 2013, a reportedly peaceful electoral process led to an electoral victory of the two main accused of crimes against humanity before the ICC, Mr. Kenyatta and Mr. Ruto, who formed a so called 'Jubilee' coalition through which they united two major 'tribal' factions that had participated in the post-electoral violence of 2007–08 investigated by the Prosecutor. Almost all Kenyan witnesses of the crimes against humanity perpetrated in the post-electoral violence, unless relocated outside Kenya or otherwise effectively protected, are in the problematic position of being called to testify against their elected President and Vice-President. Such a situation is specifically critical in light of the fact that both Mr. Kenyatta and Mr. Ruto conducted a Presidential and post-presidential media campaign narrating the story of two African men resisting the politically-motivated accusations made by a Court in The Hague that was depicted as a neo-colonial enterprise. Therefore, the association of any Kenyan witness with that Court represents, in and of itself, a threat to the witness' safety, security, privacy and well-being, even in the absence of direct attacks or menaces. An impressive summary on intimidation of witnesses in Kenya, starting with individuals who testified before the Waki Commission of Enquiry, can be found in Mueller (2014) 1 *Journal of Eastern African Studies* 25, 33–35.

⁵ The other prime weakness of the ICTR is that it extended its prosecutions and trials to cases of genocide or other crimes related to the 'Rwandan genocide', thus failing to implement its statutory mandate to prosecute crimes against humanity and certain types of war crimes independently of their nexus to genocide. Given that the same selection of cases has been made before Rwandan penal and traditional Courts ('Gacaca'), it is justified to assess the delivery of international and domestic justice in the Rwandan situation as *victors' justice*. This critical reality – as of November 2014 – produces a *denial of justice* for entire categories of victims, and it is poised to become an historical reality in light of the incumbent time-limit of the life-span of the ICTR according to the 'completion strategy' imposed upon it by the UN Security Council through several resolutions (for all, see UNSC resolution 1503 of 28 August 2003). The ICTR's selective practice attests the political interference of the Security Council on the judicial process, particularly in respect of its length and subject-matter jurisdiction: such a politicisation of justice impedes the fulfilment of the rights of entire categories of victims and violates the principles enshrined in the Rwandan Tribunal Statute itself.

⁶ Article 10 of the Rome Statute stipulates expressly that provisions of Part II (on crimes and jurisdiction) are non-prejudicial for the progressive development of international legal rules pertaining to its subject-matters. Article 80 contains an express clause that impedes to consider the penalties for the Statute's core crimes Statute as having a legal impact on the development of universal standards for penalties. These 'non-prejudice' clauses are not present in other Parts of the Rome Statute, which could be interpreted systematically *e contrario* as reflecting an implicit consent given by States to new international legal standards. On the criteria of interpretation of the Statute, which are the same of the Vienna Convention on the Law of Treaties, I refer to my contribution to the Italian commentary on the Statute, Donat-Cattin, in: Lattanzi and Monetti (eds.), *La Corte Penale Internazionale* 269, 302.

Court's proceedings. Therefore, they do not limit or prejudice existing rules adopted at the domestic, regional or international level, although they undoubtedly represent a benchmark for the progressive development of the law in national systems in which the rights of victims are not yet recognised as in the Rome Statute (e.g. the wide majority of 'common-law' countries).

The explanation above is central to the issue of victims' participation in ICC proceedings. 5 Indeed, it is clear that some States (e.g. Austria, France, Germany, Italy, Spain) will continue to have 'higher' standards than the ICC with regard to the participation of victims in the criminal process. On the contrary, other national criminal justice systems (e.g. Australia, Canada, New Zealand, UK) may maintain a more limited access for victims to particular stages of their domestic criminal process (namely, after conviction) or at the trial itself only as witnesses. An exemplary incorporation of the rights of victims of Rome Statute's crimes into a national system has been so far realised only in Uruguay, through the provisions of articles 13 and 14 of the Ley No. 18.026 ('Cooperación con la Corte Penal Internacional en material de lucha contra el genocidio, los crímenes de guerra y de lesa humanidad') of 13 September 2006, which de facto extends to victims' participation, protection and reparation the application of the principle of complementarity.

The 'law of the Court', as well as the law of the *ad hoc* Tribunals, does not reflect the 6 victory of a certain legal model against another legal model ('civil law' prevailing over 'common law' or 'Islamic law' or any other family of legal systems, and *vice versa*). The 'law of the Court' constitutes a new system of rules permitting the effective functioning of the machinery of international justice. Of course, this system may be considered as the 'melting-pot' of some of the most adequate tendencies of criminal procedures stemming from all families of legal systems, forming thus a 'highest common denominator' attainable by all legal models⁷. Against this background, and in light of the specific characteristics of ICC proceedings including the participation of victims, it is submitted that such proceedings should not be predominantly adversarial in nature, and that this characterisation is not prejudicial to the elements of an equitable or fair trial under international law and comparative criminal procedure(s) as such elements are fully incorporated – either expressly or through the hierarchy of sources of law envisaged in Article 21 – in the 'law of the Court'.

The impact of victimisation of entire populations in the context of genocide, crimes against 7 humanity, war crimes and aggression cannot be forgotten or underestimated. International justice must provide redress for these victims⁸ in the name of securing peace, drawing a line between the present and the past and facilitating the healing and forward movement of society. As implicitly or partially affirmed by several UN reports of Theo van Boven, Cherif Bassiouni, Louis Joinet and Diane Orentlicher⁹, the 'right to justice' for victims of international crimes consists of three components: 1. the right to access to justice; 2. the right to know the truth (and have it officially acknowledged); 3. the right to reparation(s)¹⁰. The right to justice is embodied in internationally binding and universally accepted provisions, such as article 2 para. 3 of the ICCPR, which defines the wider notion of effective and available remedy¹¹.

⁷ These considerations were the foundation of the draft rules of procedure – aimed at implementing victims' participation before the Court – proposed by this author at the end of this work as published in its first edition (see 'Article 68', *Triffterer Commentary* 1999, pp. 884–888, mn. 38 *et seq.*) The text of the Rules of Procedure and Evidence of the ICC approved on 30 June 2000 by the UN Preparatory Commission for the ICC and adopted by the Assembly of States Parties at its first session in 2002 addresses almost all the concerns and/or proposals formulated by this author, who attended and contributed to several meetings in which representatives of States discussed the content and drafting of the Rules.

⁸ See the author's commentary on article 75, *Reparations to victims*.

⁹ See literature.

¹⁰ For a general reconstruction of the right to justice under international human rights law and international criminal law, reference is made to the Ph.D. thesis entitled *The Right to Justice: crimes against humanity and the rights of victims in the system of the International Criminal Court* (Teramo, 2000, on file with the author).

¹¹ Article 2 para. 3 of the ICCPR re-affirms the legal principle stating that where a wrong exists there must be a corresponding judicial remedy. Such a principle is enshrined in the UDHR, article 8, which provides that:

- 8 The participation of victims in the ICC proceedings implements their right to justice before the Court. Article 68 para. 3 of the Rome Statute recognises this legal principle, which is developed and specified in some provisions of the Rules of Procedure and Evidence and the Regulations of the Court, as well as also the Regulations of the Registry. The text of article 68 para. 3 reproduces the content of article 6 (b) of the Declaration of Basic Principles of Justice for Victims of Crimes and Abuse of Power annexed to Resolution 40/34 of 29 December 1985 of the UN General Assembly, also included in ECOSOC Resolution 1996/14. The need for victims to be legally represented in the proceedings is a corollary of their right to justice, insofar as high-quality technical legal representation ensures their effective participation in, and understanding of, the penal procedure. This is addressed by the second sentence of article 68 para. 3¹². The first eleven years of practise of the Court in general and the Pre-Trial procedures in the DRC and Central African Republic situations in particular, including the first Court case against an individual (Lubanga), attest the centrality of victims' participation in the ICC proceedings from the earliest stages in which the personal interests of victims are affected. However, in the two trials relating to the situation in Kenya, the relevant Trial Chamber decided, for the first time in the jurisprudence of the Court, to distinguish categories of victims in such a way that does not conform with the letter and spirit of Article 68, para. 3, thereby not allowing de facto the exercise of participatory rights¹³. The unfortunate circumstance that the Kenya trials' decisions on victims' participation could not be appealed has meant that a remedy against this *contra legem* jurisprudence of TC V might be sought only after the conclusion of the respective trial.

3. Scope of application of article 68

- 9 All the norms contained in article 68 are applicable throughout the entire penal process, which consists of Pre-Trial, Trial and – potentially – Appeal and Review proceedings. The textual analysis that will follow is an attempt to demonstrate such an approach, which prevailed when, at the Rome Conference, international legislators (the States) agreed upon article 68 and its title, significantly related to the Court's 'proceedings' and not limited to the trial. Conversely to a certain practise of the ICC Office of the Prosecutor invoking 'foundational issues'¹⁴ or a

'Everyone has the right to an effective remedy by the competent national tribunals for acts violating the fundamental rights granted him by the constitution or by the law.' Although article 8 of the UDHR refers specifically to the right to a remedy within the domestic jurisdiction, it constitutes *mutatis mutandis* a basic principle of International Human Rights Law applicable before international jurisdictions.

¹² This paper does not address the questions raised by the important provision on victims' representations contained in article 15 (Prosecutor) para. 3 of the Rome Statute, which states:

'If the prosecutor concludes that there is a reasonable basis to proceed with an investigation, he or she shall submit to the Pre-Trial Chamber a request for authorization of an investigation, together with any supporting material collected. *Victims may make representations to the Pre-Trial Chamber, in accordance with the Rules of Procedure and Evidence.*' (Emphasis added).

¹³ *Prosecutor v. Kenyatta*, ICC-01/09-02/11-498, Decision on victims' representation and participation, Trial Chamber V, 3 October 2012, and *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-460, Decision on victims' representation and participation, TC V, 3 October 2012. In these decisions, the Chamber determined that applications from victims to participate in the trial did not need to be examined and ruled upon by the Judges, as prescribed by the Statute. All victims who applied were referred to a common legal representative, who was given the responsibility to decide on the harm that these victims might have suffered as a result of the crimes contained in the charges against the accused. The Chamber, therefore, did not recognise individual victims, and organised them into a group without ascertaining whether they were victims or not, and delegated its authority to a common legal representative to be assisted by the Registry's personnel in the field and by the Office for the Public Counsel of Victims through an attorney who was authorised to appear in court in The Hague. See mn. 35 and footnote 67, as well as mn. 37 and footnote 80.

¹⁴ This is the terminology used by the Prosecutor in his *Report on the activities performed during the first three years (June 2003–June 2006)*, 12 September 2006, http://www.icc-cpi.int/NR/rdonlyres/70CB178C-15C7-4BDB-B09E-9E93CEFOE165/143610/3yearreport20060914_English.pdf, accessed on 14 September 2014), which, at its para. 52 reads as follows: 'The Office continues to raise foundational issues with the Pre-Trial Chamber and Appeals Chamber for their consideration. These issues include, inter alia: a. Different forms of victim participation in the investigation phase [...]. Subsequent practice of the OTP appears to have departed from this approach.'

‘constitutional decision’¹⁵ to limit the scope of victims’ participation in the Pre-Trial proceedings, an interpretation ‘in good faith in accordance with the ordinary meaning to be given to the terms of the treaty in their context and in the light of its object and purpose’¹⁶ does not cast doubts on the correctness of the decision the ICC Pre-Trial Chamber allowing victims to participate in the proceedings from the earliest stages in which their personal interests are affected¹⁷.

If the prosecution and the defence are necessary parties to the Court’s process, victims are ‘potential’ parties, because their participation is not *stricto sensu* essential¹⁸. This does not mean that victims do not have the right (not only an interest¹⁹) to be protected and participate in the ICC proceedings. After a systematic reading of the parts of the Statute on procedural matters, it is clear that the search for the truth – not retribution or punishment of given individuals – is the most significant goal of the ICC proceedings. In this respect, any form of positive contribution from victims/survivors appears indispensable for the accomplishment of the Court’s function. A corollary to the victims’ right to participate is their right to be informed on the development of the proceedings: the Rules of Procedure and Evidence envisage comprehensive modalities of communication between the Court and victims under the legal rubric of notification(s)²⁰.

¹⁵ This inappropriate and unfounded language is contained at page 5 in para. 11 of *Prosecutor v. Lubanga*, ICC-01/04-103, Prosecution’s Application for Leave to Appeal Pre-Trial Chamber 1’s Decision on the Application for Participation in the Proceedings of [victims] VPRS 1, VPRS 2, VPRS 3, VPRS 4, VPRS 5 and VPRS 6, Pre-Trial Chamber I, 23 January 2006.

¹⁶ Article 31, Vienna Convention on the law of the Treaties, done at Vienna on 23 May 1969. Entered into force on 27 January 1980. United Nations, *Treaty Series*, vol. 1155, p. 331.

¹⁷ *Prosecutor v. Lubanga*, ICC-01/04-101, Decision on the Applications for Participation in the Proceedings of VPRS 1, VPRS 2, VPRS 3, VPRS 4, VPRS 5 and VPRS 6, Pre-Trial Chamber I, 17 January 2006, paras. 36 to 76. The decision of the Pre-Trial Chamber applies the letter of article 68, para. 3, and does not have any ‘impact [that] goes far beyond the issue of victims’ participation in the investigations’ and does not have any ‘general implication for the balance of power between the judiciary and the prosecution in proceedings before the ICC’ as some authors seem to suggest without providing arguments to demonstrate their criticism to the Pre-Trial Chamber decision (*Cf. de Hemptinne and Rindi* (2006) 4 *JICJ* 342, 359).

¹⁸ Their presence is not *stricto sensu* essential just because the Trial can take place without them: this does not exclude, *lato sensu*, the fundamental importance of victims’ participation for the development of fair, effective and comprehensive proceedings. In the last few years, some commentators, including sociologists (see literature cited by Impunity Watch, *Discussion Paper – Victims Participation in Transitional Justice Mechanisms: Real Power or Empty Ritual?* (The Hague, April 2014), at pages 10–12, 20–21, 30 and 35–37) have taken critical positions regarding the presumed ‘meaningfulness’ or importance for ‘the victims’ to have access to justice through the formal judicial avenues provided by the Rome Statute system, which however has not always been clearly understood by these authors as comprising the primary jurisdictions of national Courts and the complementary jurisdiction of the ICC. In this author’s view, while procedural rights afforded by the law are open to ‘all victims’, it is always the case that only a certain number of victims (normally a minority) have the strength and determination to make use of the legal process. Albeit difficult and at times unsatisfactory, this legal process has been chosen by approximately 12,000 victims, who have applied to participate in ICC proceedings, along with over 9000 victims who have applied to have access to reparations, during the first ten years of life of the ICC (*source*: ICC, *Registry Facts and Figures* as of 30 April 2013, presented in the *Diplomatic Briefing* of 29 May 2013, available at www.icc-cpi.int/iccdocs/db/Registry-Figures-30-April-2013.pdf accessed on 16 October 2014). Additionally, ‘3,106 applications from victims for participation and 2,524 for reparations’ have been received by the ICC in the 2013–14 period covered by the ICC Annual Report to the UN (*Cf. p. 2, Report of the International Criminal Court on its activities in 2013/14*, UN Doc. A/69/321, 18 September 2014). This statistical data demonstrates the significance and importance that individual victims attribute to the ICC proceedings and it represents an achievement for the ICC, especially if confronted with the limited number of cases before it. Yet, the fulfilment of the rights of these approximately 25,000 victims before the ICC are not and shall not be an obstacle to other remedies that victims shall be entitled to obtain under international and domestic law. So, it is not correct to characterise the access to justice given to victims *via* the ICC process as opposed to the victims’ best interests and their right to obtain other means of redress and satisfaction.

¹⁹ See mn 24 et seq.

²⁰ See mn 25 and 45–46.

4. Developments in legal drafting

- 11 Article 43 of the ILC Draft Statute of 1994²¹, entitled ‘Protection of the accused, victims and witnesses’, contained provisions very similar to the above mentioned ones of article 22, ICTY Statute, and article 21, ICTR Statute. The 1996 Preparatory Committee Report ‘hosted’ a number of different proposals, which helped to focus the attention of delegates on the separated issues of victims’ protection on one side, and the rights of the accused (including protection) on the other²². The most important and extensive discussions on the matter took place during the August 1997 session of the UN ICC Preparatory Committee. As a result of it, draft article 43²³ included nine paragraphs envisaging all crucial matters then revised and integrated in the language of article 68 of the *Rome Statute*. A first re-elaboration of those nine paragraphs was reflected in the so-called *Zutphen text* of January 1998 (article 61²⁴). A second draft with minor modifications was contained in article 68 of the Draft Statute transmitted by the Preparatory Committee to the Diplomatic Conference²⁵.

B. Analysis and interpretation of elements

I. Paragraph 1: Victims’ protection

1. Court measures to protect victims and witnesses

- 12 This general provision on victims’ protection resulted from the combination of the first sentences of paragraphs 1 and 3 of article 68 of the ICC Draft Statute²⁶. Its elements were brought to the attention of the Diplomatic Conference’s Working Group on Procedural Matters by the Canadian delegation, which produced two revised drafts leading to the final compromise text on article 68²⁷. According to article 34, the term *Court* is referred to all judicial organs of the ICC. *Appropriate measures* shall be interpreted, inter alia, as entailing all those enlisted in Rules 87 (*Protective measures*), 88 (*Special measures*) and 112.4 (*Recording of questioning in particular cases*) of the Rule of Procedure and Evidence²⁸, in

²¹ Report of the International Law Commission on its Forty-Sixth Session, Draft Statute for an International Criminal Court, 2 May–22 July 1994, UN Doc. A/49/10 (1994), p. 119.

²² Report of the Preparatory Committee on the Establishment of an International Criminal Court, UN Doc. A/51/22 (1996), Vol. II, p. 204.

²³ Decisions Taken by the Preparatory Committee at its Session Held from 4 to 15 August 1997, UN Doc. A/AC.249/1997/L.8/Rev.1 (1997), reprinted in: Bassiouni (ed.), *International Criminal Court. Compilation of UN Documents and Draft ICC Statute Before the Diplomatic Conference* (1998) 339–341.

²⁴ Report of the Inter-Sessional Meeting from 19 to 30 January 1998 in Zutphen, The Netherlands, UN Doc. A/AC.249/1998/L.13, reprinted in: Bassiouni (ed.) (1998), see 223.

²⁵ Report of the Preparatory Committee on the Establishment of an International Criminal Court, Draft Statute and Final Act, UN Doc. A/CONF.183/2/Add.1 (1998), p. 108; also reprinted in: Bassiouni (ed.) (1998) see 82.

²⁶ *Ibid.*

²⁷ See UN Doc. A/CONF.183/C.1/WGPM/L.58 and A/CONF.183/C.1/WGPM/L.58/Rev.1 (6 July 1998), *Proposal submitted by Canada (Art. 68)*. After very interesting but long negotiations, the Working Group transmitted to the Drafting Committee of the Diplomatic Conference a compromise-text reflecting many elements of the Canadian proposal in the following documents: A/CONF.183/C.1/WGPM/L.2/Add.6 (11 July 1998), p. 4, and A/CONF.183/C.1/WGPM/L.2/Add.8 (15 July 1998), p. 7. Both these documents are reproduced in: International Criminal Court Society, *Compilation: Footnotes Relevant to the Rules of Procedure and Evidence Transmitted by the Committee of the Whole to the Drafting Committee at the Rome Diplomatic Conference on the Establishment of an International Criminal Court* (1998), 34 and 48.

²⁸ Among the other Rules of Procedure and Evidence addressing modalities of protection, it is worthwhile to mention Rules 16 (*Responsibilities of the Registrar relating to victims and witnesses*), 17, 18 and 19 (all within subsection 2, *Victims and Witness Unit*), 67 (*Live testimony by means of audio or audio-video technology*), 72 (*In camera procedure to consider relevance or admissibility of evidence*), 81 (*Restrictions on disclosure*) and 86 (*General principle*).

Regulations 21, 41, 42 and 101 of the Regulations of the Court, and in Regulations 79 and 100 of the Regulations of the Registry²⁹, as well as any other arrangement that may be made through innovative technology or building upon methods of victims' protection experimented in domestic justice systems. The open-ended character of the provision on appropriate measures is reinforced by the recognition in the paragraph of a series of individuals' rights to be protected, each of them covering a wide spectrum of situations. *Safety, physical and psychological well-being, privacy* and, in particular, *dignity* of the individual victim or witness cover all areas of inalienable human rights defined in international and domestic legal instruments. Through the definition of this high standard of protection for victims and witnesses in article 68 para. 1, the Rome Statute has set a standard for the progressive development of the law relating to effectively functioning systems of criminal justice, not only international criminal justice. The initial jurisprudence of the ICC Pre-Trial and Trial divisions evidenced the centrality of this provision, regarding the interpretation of which there has been extensive litigation in the first eleven half years' of the Court practice.

The second sentence of paragraph 1 orients this general provision on protection towards 13 certain categories of victims/witnesses who are in situations of extreme danger because of: (a) the nature of the crimes (in particular, but not limited to, cases in which the crime involves sexual or gender violence, or violence against children³⁰), and (b) their status, including their age, gender, and health. In this respect, the elements above help us to identify a particular 'group' of vulnerable victims, the survivors, who are always at risk of re-victimisation. Re-victimisation can take place in the forms of the so-called 'secondary victimisation', which is defined by the UN Handbook on Victims' Rights³¹ as 'the harm that may be caused to a victim by the investigation and prosecution of the case or by publicizing the details of the case in the media'.

A decision taken by the ICTY in the 'Tadic case' is enlightening on the meaning of secondary victimisation for survivors of gender crimes:

'The existence of special concerns for victims and witnesses of sexual assault is evident in the Report of the Secretary-General, which states that protection for victims and witnesses should be granted, 'especially in cases of rape and sexual assault' (para. 108). It has been noted that rape and sexual assault often have particularly devastating consequences which, in certain instances, may have a permanent detrimental impact on the victim ... It has been noted further that testifying about the event is often difficult, particularly in public, and can result in rejection by the victim's family and community ... In addition, traditional court practice and procedures have been known to exacerbate the victim's ordeal during trial. Women who have been raped and have sought justice in the legal system commonly compare this experience to being raped a second time.'³²

2. Measures taken by the prosecutor

This provision was contained in a separate paragraph (3) of article 68 in the ICC Draft 14 Statute³³, but it was correctly integrated in para. 1 as it constitutes a specification of the previous provision. It regards pre-trial proceedings, in which it is crucial that all measures of protection available are put in place to ensure proper respect of the above-cited rights of victims and witnesses. In this phase of the proceedings, the Prosecutor must be able to communicate to victims and witnesses the content of their rights and the relevant action to

²⁹ See also Rule 75 of the *ad hoc* Tribunals', reproduced in see note 2.

³⁰ According to article 1 of the Convention on the Rights of the Child, adopted and opened for signature, ratification and accession by GA Res. 44/25 of 20 Nov. 1989, *entered into force* 2 Sept. 1990, '[...] a child means every human being below the age of eighteen years [...]'. Almost all States in the world have ratified the Convention, with the exemption of Somalia and the United States of America.

³¹ UN Doc. E/CN.15/1998/CRP.4/Add.1, *UN Handbook* 43.

³² Cf. para 46 (references excluded) of *Prosecutor v. Dushko Tadić, a/d/a'Dule*", IT-94-1-T, Decision on the Prosecutor's Motion Requesting Protective Measures for Victims and Witnesses, Trial Chamber, 10 August 1995, reproduced in 7 *CLF* (1996) 139. Concerning the gender perspective of victims' protection, see Bedont, in: Lattanzi and Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court, Vol. I* (1999) 183, 210.

³³ See Report of the Preparatory Committee, see note 24.

be taken by the Court. As envisaged in other parts of the Statute (articles 42 and 36 para. 8(b)), the Prosecutor must achieve her goals through the use of personnel/investigators with legal and psychological expertise on trauma and crimes against women and children³⁴.

3. Measures not inconsistent with the rights of the accused and a fair and impartial trial³⁵

- 15 Since the assumed or substantial difference between what is *not prejudicial* to *inconsistent with* defendants' rights is discussed with article 67, this commentary is limited on the distinction between 'the rights of the accused' and 'a fair trial', attempting to use the (often underestimated or misperceived) perspective of the victim, which informs the ICC Statute in its entirety³⁶.
- 16 Victims who accept to channel their demand for justice through the legal process do not want to see punishment against 'an accused', but only against the person found guilty beyond a reasonable doubt. These victims' genuine wish is that the **truth** be established and the case solved³⁷. The justice process – expression of society, organised through a legal system – tries

³⁴ Significant excerpt from the UN *Handbook*, sub-para. 2.4.1, p. 43:

'[...] When a victim reports an offence or other victimizing event, for example, to police or public prosecutors, this starts a process that is intended to ascertain whether or not the report of the victim is valid, and if so, to identify the victimizer and bring him or her to justice. The process can be a long and difficult one, and from the legal point of view, the victim is only a 'putative' or *alleged* victim. [Emphasis added, see *below* comments against this definition]. This should not prevent all of those who come into contact with victims from treating them with respect and recognition that all persons deserve. The professional officer, prosecutor or judge should recall to what to them may be one case out of many, is often of central importance to the victim. Granting the victim basic human respect and dignity can provide many benefits. It reassures the victim that the community condemns victimization in general, and is interested in being told that justice is done. This is basic to the victim's recovery. At the same time, treating victims in a respectful manner often contributes to their greater willingness to assist in the investigation and the judicial process.

There are a number of ways in which the justice system can demonstrate its recognition of, and respect for, the victim. One example is in the scheduling of cases. In practice, decisions on such matters as the arrangements for police questioning, the date for Court hearings, and granting of continuances are often made in accordance with system priorities and administrative convenience. In such cases, less attention may be paid to the practical effect of such decisions on the victims, for example, to his or her difficulties in arranging for time off from work, the care for children, and transportation to and from the police station or Court house.'

The considerations above are particularly appropriate in the framework of an international criminal jurisdiction, especially when the seat of the ICC is abroad, in The Hague (*Cf.* article 3), most likely very far from the *locus commissi delicti*.

I do not agree with the approach of regarding as equal the presumption of innocence of the accused/suspect before conviction and the 'putative' or 'alleged' status of victims who are not recognised as such in judicial verdicts. Such a parallelism is unacceptable at least for two reasons. The first is related to the 'historical' event that victimised an individual (*i.e.*, a medically proved killing by a certain weapon), which remains true with or without a decision of conviction against a given perpetrator. The second is represented by the reality of National judicial systems that, on one side, fail to prosecute and punish an impressive number of authors of crimes, and, on the other, admit victims to public recognition and provide for mechanisms to guarantee appropriate forms of reparation, including civil compensation.

³⁵ In the context of victims protection, the same provision is included at the end of paragraph 5 of article 68 dealing with disclosure of evidence. Thus, the following comments should be deemed as relevant – *mutatis mutandis* – also to that paragraph.

³⁶ See Preamble, second *considerando*, which states as follows:

'[...] *Mindful* that during this century millions of children, women and men have been victims of unimaginable atrocities that deeply shock the conscience of humanity, [...].'

Victims are mentioned in many articles throughout the entire Statute. For a brief, systematic review, see Donat-Cattin, in: Lattanzi and Schabas (eds.) (1999).

³⁷ The quest for truth and justice by victims of atrocities committed during World War II, Latin American countries' 'dirty war' or other situations of armed conflict or repression has been widely described by the literature: see, for all, Aldana-Pindell, R., 'In Vindication of Justiciable Victims' Rights to Truth and Justice for State-Sponsored Crimes', (2002) 35 *VanderbiltJTransL*, 1399, 1437–1438. In respect of African situations, see McDonald, Avril, 'A right to truth, justice and a remedy for African victims of serious violations of international humanitarian law', (1999) *Law, Democracy and Development* 2, 139, available at www.saflii.org/za/journals/LDD/1999/10.pdf (accessed on 30 November 2014). McDonald wrote at pages 139–140: 'While some victims of atrocities committed either by the state or by non-state actors have an extraordinary capacity to forgive, and

to make sure that this goal is achieved without infringing upon the dignity and personal integrity of the suspect/accused, as well as of the victim.

This reasoning brings us to a ‘modern’ concept of ‘interest of justice’, which corresponds to the common interest of (i) society, (ii) victims and (iii) individuals investigated for crimes that they have not committed to know the truth³⁸. The latter category of suspects, together with victims and society as a whole (represented by the Prosecutor), have the same expectation from the criminal process: to establish the responsibility of the guilty and acquit the innocent. Therefore, necessary and potential parties³⁹ to the ICC process are aiming at a ‘fair trial’, which honours this commonly shared object of criminal justice and appears behind the negotiated language of the Rome Statute, especially its Parts 5, 6, and 8.

The ‘traditional’ notion of due process for the defendant⁴⁰ is re-affirmed in light of the paramount need to ensure that justice is fair not only to the accused, but also to ‘the victim’ in a broad sense, which includes ‘humanity’ as a whole⁴¹ when offences under articles 6 and 7 of the Statute are committed. It is therefore clear that the paragraph hereby analysed entails two different, although partially overlapping, concepts. The first concept is the respect for the rights of the accused, as defined in articles 67 and 66 of the Statute. The second is fair trial⁴², which is comprehensive of, but not limited to, the respect for all the rights of the suspect/accused; it means equitable justice for defendants, victims and the international society as such, thus laying the foundation of all procedural norms of the Statute⁴³.

II. Paragraph 2: Exceptions

1. Proceedings *in camera* or presentation of evidence by electronic or other special means

Publicity of international criminal justice⁴⁴ is an essential guarantee for the accused and a fair trial. Transparency to the general public makes criminal justice a visible mechanism of individual accountability capable to deter future crimes. Yet, protection of victims and witnesses justifies an exemption from the general rule, which was already envisaged in the 1994 Draft Statute of the ILC⁴⁵. Reasons for closed hearings or presentation of evidence through video-link or other electronic devices are the same as those behind the measures of

their demands of their assailants and of society are incredibly modest and do not reflect a desire for retribution [citation in fn. of Dullah Omar, Minister of Justice, Government of South Africa, 8 April 1997], for many other victims the need to see justice done is very real’.

³⁸ On the contrary, it may be often the case that a suspect who knows to be guilty has the conflicting personal interest to maintain the truth unknown. As a guarantee against abuse or potential abuse, this category of suspects have the same right to defence as suspects falling under the other category.

³⁹ See mn. 10.

⁴⁰ Cf. article 14 ICCPR, the content of which has been re-stated and expanded in article 67 (*Rights of the accused*) and article 66 (*Presumption on innocence*) of the Rome Statute.

⁴¹ See the relevant quote from the *Erdemović* and the *Kambanda* Judgments reproduced in note 54.

⁴² It is impossible that a fair trial is not an impartial one: therefore, the word ‘impartial’ inserted in paragraphs 1, 3 and 5 of article 68 does not add anything, and sounds redundant and unnecessary.

⁴³ I agree with Bedont, who writes in an *Internal Report on the Diplomatic Conference of the International Center for Human Rights and Democratic Development* (Excerpt on victims issues in file with the author): ‘[...] It is no coincidence that article 68 appears after the main article laying out the rights of the accused. The point is that the two considerations must be balanced in order to achieve a fair trial. A trial which retraumatizes witnesses [and victims] and prevents a proper presentation of inculpatory evidence is just as unfair as a trial in which the accused is prevented from putting forward a proper defence. Thus, the two articles 67 and 68 must be considered together.’ See also Bedont, in: Lattanzi and Schabas (eds.), *Essays* (1999), 202–207.

⁴⁴ Cf. paragraph 7 of article 64. See also ICCPR, article 14 para. 1, which *inter alia* states as follows: ‘[...] In the determination of any criminal charge [...], everyone shall be entitled to a fair and public hearing by a competent, independent and impartial tribunal established by law. The press and the public may be excluded from all or part of the trial for reasons of morals, public order (*ordre public*) or national security in a democratic society, or when the private lives of the parties so requires, or to the extent strictly necessary in the opinion of the Court in special circumstance when publicity would prejudice the interest of justice [...].’

⁴⁵ See Report of the Preparatory Committee, see note 20.

protection envisaged in paragraph 1 of article 68. However, non-disclosure of identity to the public or to the media is one thing, anonymity of witnesses/victims to the defence is another. The latter is unacceptable, in the light of the right of the defence to examine witnesses presented by the Prosecution (in fact, it is not possible to respond to arguments presented by someone 'without identity')⁴⁶. Yet, if anonymity is assessed as the only available measure of protection to comply with the obligation of result posed by article 68 para. 1, the relevant Chamber should order to maintain it⁴⁷ and, at the same time, ensure that the testimony rendered by the anonymous victim or witness shall be weighted against this factor and never be the sole proof that would suffice to convict an individual for any specific charge. In other terms, in these exceptional cases corroboration of testimony will be required through other means, thus introducing a requirement that does not exist in the ICC procedural law.⁴⁸ Alternatively, in cases in which victims-survivors will decide to participate in the proceedings and accept to lose their anonymity before testifying, their access to the Court's proceedings may limit the unintended negative consequences connected with their vulnerability as witnesses known to the accused. In fact, should the accused threaten them or retaliate against them, their family or their property, these victims will be able to promptly report any incident to the Court, in accordance with article 68 para. 3, for immediate and urgent remedial action⁴⁹. Participating victims may decide, as a matter of fact, that the best way to protect themselves is to reveal their identity while seeking justice and telling their story in the face of the accused, as their objective to contribute to the establishment of the judicial truth outweighs their fear of retaliation and re-victimisation. In its first eleven years of jurisprudence, the Pre-Trial, Appeals and – at times – Trial Chambers, as well as the Office of the Prosecutor, made wide use of anonymity as a protective measure: names of victims and witnesses have been almost systematically expunged from the Court proceedings' records and the decisions of the Court relating to victims and witnesses have been heavily *redacted* in their public versions to cover the identity and any information that could provide indicia on the whereabouts of the protected persons⁵⁰. Decisions relating to the issuance of arrest warrants and the requests of surrender in

⁴⁶ This position was taken in *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07-1788-tENG, Decision on the Modalities of Victim Participation at Trial, Trial Chamber II, 22 January 2010, paras. 92-93. The Trial Chamber did not exclude the possibility of anonymous victims participating in proceedings, but emphasised that it would have not authorised victims willing to remain anonymous to the Defence to testify as witnesses.

⁴⁷ For pre-trial stage decisions pro-anonymity as adequate protective measure not violating the principle of fair trial, see, for all, *Prosecutor v. Lubanga*, ICC-01/04-01/06-568, Judgment on the Prosecutor's appeal against the decision of Pre-Trial Chamber I entitled 'Decision Establishing General Principles Governing Applications to Restrict Disclosure pursuant to Rule 81 (2) and (4) of the Rules of Procedure and Evidence', Appeals Chamber, 13 October 2006, and *Prosecutor v. Lubanga*, ICC-01/04-73, Decision on Protective Measures requested by Applicants 01/04-1/dp to 01/04-6/dp, Pre-Trial Chamber, 21 July 2005.

⁴⁸ See Rule 63 para. 4, Rules of Procedure and Evidence. At least three decisions of the ICC Chambers imply that corroboration is required if statements by anonymous witnesses are allowed in Court at Pre-Trial stage: *Cf. Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07-717, Decision on the confirmation of charges, Pre-Trial Chamber II, 30 September 2008, para. 159; *Prosecutor v. Abu Garda*, ICC-02/05-02/09-243-Red, Decision on the confirmation of charges, Pre-Trial Chamber I, 8 February 2010, para. 51; *Prosecutor v. Mbarushimana*, ICC-01/04-01/10-465-Red, Decision on the confirmation of charges, Pre-Trial Chamber I, 30 May 2012, para. 49.

⁴⁹ Notwithstanding the initial practise of the Pre-Trial and Appeal Chambers of the Court aimed at maintaining anonymity, the identity of victims called to testify at trial has been made known to the defendant, who may have ignored their whereabouts when the crime was committed or the fact that they survived: this happened for the first time when three victims-survivors of sexual violence and other crimes participating in the proceedings under Art. 68(3) decided to testify in the Bemba trial. Two of these victims revealed their full identity in *Prosecutor v. J.P. Bemba*, ICC-01/05-01/08- 2215, Requête de la Représentante légale de victimes en vue de soumettre des pièces en tant qu'éléments de preuve, Trial-Chamber III, 14 May 2012. Once anonymity is not anymore possible, other measures of protection, such as relocation, are available to the Court during and after trial to protect vulnerable victims and/or witnesses.

⁵⁰ On redactions ordered by the Pre-Trial judges to ensure protection see, for example, page 3 of *Prosecutor v. Lubanga*, ICC-01/04-01/06-37 (ICC-01/04-01/06-8-US-Corr.), Decision concerning Pre-Trial Chamber I's decision of 10 February 2006 and the Incorporation of Documents into the Record of the case against Mr Thomas Lubanga Dyilo, Pre-Trial Chamber I, 24 February 2006. The practice of redactions is so common in ICC decisions, due to the need to protect sources of information that include witnesses and victims, that it is even used in decisions concerning the death of an accused and the consequent termination of proceedings: see, for all,

several cases before the Court have been *sealed* until concerns of safety and well-being of victims were satisfactorily addressed by the Prosecutor: e.g. in the case against Kony and the other 4 leaders of Northern Uganda's Lord Resistance Army after relevant litigation with the OTP⁵¹ and in the Lubanga case when the surrender of the accused to The Hague mitigated security concerns relating to the victims in the Ituri province of the Democratic Republic of the Congo⁵². In the Ntaganda case, one of the reasons that motivated the Prosecutor to request the publicity of the arrest warrant was that 'any potential risk that the unsealing of the Warrant of Arrest against Bosco Ntaganda could have for victims and witnesses [was] under control as protective measures [had] been taken to ensure the adequate security of the witnesses in this case and in the cases of *The Prosecution v. Thomas Lubanga Dyilo* and *The Prosecution v. Germain Katanga and Mathieu Ngudjolo Chui*'⁵³.

Paragraph 2 provides for protection not only of victims and witnesses, but also of 'an accused', thus contravening the general approach of article 68. Why should accused be protected through closed proceedings if they have the right to a public hearing as a general guarantee for their rights? If it means protection of physical integrity (e.g., in case of threat of a terrorist attack), other measures of security may be adopted by the Court in order to limit and control the access of the public to the hearings. Perhaps, there could be special cases in which the identity of the accused should not be made known to the public, but – once again – it would appear more appropriate to utilise technological means to alter voices, cover faces and, in general, hide whereabouts to the media and public, instead of closing the trial. In this respect, article 64 para. 7 envisages only the protection of 'confidential and sensitive information to be given in evidence' as a good cause to close proceedings, apart from those set out in article 68⁵⁴.

2. In particular, cases of victims of sexual violence or children as victims or witnesses

In camera hearings and other exceptions to the principle of publicity are mandatory when requested by minors⁵⁵ or victims of sexual violence⁵⁶. This is the norm that negotiators

Prosecutor v. Banda and Jerbo, ICC-02/05-03/09, Public redacted Decision terminating the proceedings against Mr Jerbo, Trial Chamber IV, 13 October 2013, which contains more than 30 redactions.

⁵¹ See *Prosecutor v. Kony et al.*, ICC-02-04-01-05-52, Decision on the Prosecutor's Application for unsealing of the warrants of arrest, Pre-Trial Chamber II, 13 October 2005: the entire reasoning of the Chamber is centered on the issue of verifying that sufficient protections are available to the victims and witnesses before 'unsealing' the arrest warrant against the five leaders of the Lord's Resistance Army.

⁵² See *Prosecutor v. Lubanga*, ICC-01/04-01/06-37, Decision to Unseal the Warrant of Arrest Against Mr. Thomas Lubanga Dyilo and Related Documents, Pre-Trial Chamber I, 17 March 2006.

⁵³ Cf. p. 5, *Prosecutor v. B. Ntaganda*, ICC-01/04-02/06-18, Decision to Unseal the Warrant of Arrest against Bosco Ntaganda, Pre-Trial Chamber, 28 April 2008.

⁵⁴ Bedont, in her above-cited unpublished report on the outcome of the Rome Conference, see note 41, states: 'Article 68 is the main article laying out the provisions for protection of victims and witnesses and their participation in the proceedings. [...] It should be noted that the article was intended to apply exclusively to victims and witnesses. A proposal to include protective measures for the accused under this article had been rejected by the delegates. Unfortunately, at the last working group dealing with this article, a last minute deal resulted in the addition of the word "accused" in subparagraph 2. [A delegation of a State from the Middle-East] proposed that closed hearings be mandatory in cases of sexual violence because of its belief that these cases would corrupt social morals if they were accessible to the public. Other countries were opposed to this proposal. Canada made several suggestions for compromise language which were resisted by the [delegation from the Middle-East]. Canada proposed adding "the accused" to subparagraph 2. While this proposal does not address that Arab State's concern, it was accepted nonetheless. The fact that such a superfluous word was included in the subparagraph says more to the personal egos involved in the negotiations. On certain issues, the delegates felt compelled to extract symbolic concessions in order to allay their egos even if the compromise language did not further their objectives. The addition of "the accused" in subparagraph 2 was a prime example of this.' (Bracketed language inserted by author).

⁵⁵ From the first trial involving child-soldiers as victims, the Court's judges have made frequent use to this norm: see, for all, the following hearing of the first ICC trial, *Prosecutor v. Lubanga*, ICC-01/04-01/06-T-59-ENG [30Oct2007 WT] 1–14 SZ T, Transcript, Trial Chamber I, 30 July 2007 (available at www.icc-cpi.int/iccdocs/doc/doc364195.PDF, visited on 26 September 2014).

⁵⁶ Even if the practice of the ICC is generally aligned with this presumption of in camera hearings in cases of gender-based and sexual violence (see, for all, *Prosecutor v. Bemba*, ICC-01/05-01/08-3157-Red, Public Redacted

agreed upon in the Rome Conference by using the phrase ‘such measures *shall be implemented*’ vis-à-vis the language ‘Chambers of the Court *may* [...] *conduct* any parts of the proceedings in camera’ of the first sentence (emphasis added).

However, such an interpretation may be modified by a careful reading of the last words of paragraph 2, which were designed to soften (and even contradict) the previous provision, thus assigning wide discretionary power to the judges. The end of paragraph 2 reads: ‘[measures of protection shall be implemented ...] unless otherwise ordered by the Court, having regard to all the circumstances, particularly the views of the victim or witness’. This is one of the best examples of ‘creative ambiguity’ of the *Rome Statute*, as inferred in such an open-ended clause.

III. Paragraph 3: Victims’ participation

1. Personal interests

- 22 It appears self-evident that individuals who suffered harm from a criminal conduct have a personal interest in the criminal process related to that conduct. Offences of an immense magnitude such as the ones within the jurisdiction of the Court are victimising not only individuals, but also identifiable groups (genocide) and the International Community as a whole (crimes against humanity⁵⁷, including genocide). Thus, without prejudice to the collective interest of identifiable groups and of human-kind, the adjective ‘personal’ ensures that this provision is specifically addressed to individual victims of a given crime. The finding of the personal interests of victims during the investigation and at the stage of the hearing on the confirmation of charges has been essential in the procedure that led the relevant ICC Chambers to allow the participation of victims in the first proceedings, namely, those relating to the situation of the DRC and the case of Mr. Lubanga, as well as the case against the five leaders of the Lords’ Resistance Army of Northern Uganda⁵⁸. The substantive approach of

Version of Decision on the modalities of the presentation of additional evidence pursuant to Articles 64(6)(b) and (d) and 69(3) of the Rome Statute, Trial Chamber III, 8 October 2014), Judges have been reluctant to allow wide and unqualified exceptions to the principle of a public trial, as exemplified by a significant decision in a case with a large number of victims of rape and other gender-based crimes, cf. *Prosecutor v. Bemba*, ICC-01/05-01/08, Decision on Directions for the Conduct of the Proceedings, Trial Chamber III, 19 November 2010, paras. 22–23.

⁵⁷ The thesis of human-kind as victim of crimes against humanity (including genocide) is reflected in the important *dictum* of the *ad hoc* Tribunals’ early jurisprudence in the *Erdemović* (ICTY) and *Kambanda* (ICTR) cases. The most relevant part of that *dictum* is hereby reproduced:

‘Crimes against humanity are serious acts of violence which harm human beings by striking what is most essential to them: their life, liberty, physical welfare, health, and/or dignity. They are inhumane acts that by their extent and gravity go beyond the limits tolerable to the international community, which must perforce demand their punishment. But crimes against humanity also transcend the individual because when the individual is assaulted, humanity comes under attack and is negated. It is therefore the concept of humanity as victim which essentially characterises crimes against humanity.’

Excerpt from para. 28 of *Prosecutor v. Erdemović*, IT-96-22-T, Sentencing Judgement, 26 November 1996, and from para. 15 of *Prosecutor v. Jean Kambanda*, ICTR 97-23-S, Judgement, 4 September 1998.

On the *ad hoc* Tribunals practice, see Jones, J., *The Practice of the International Criminal Tribunals for the Former Yugoslavia and Rwanda* (Transnational Publishers, 1997) 56. On the definition of crimes against humanity in the Rome Statute, see Article 7 in this Commentary, as well as Robinson, in: Lattanzi and Schabas (eds.), *Essays* (1999) 139. On the definition of this category of crimes before the Diplomatic Conference, see Donat-Cattin, in: Lattanzi (ed.), *The International Criminal Court. Comments to the Draft Statute*, 49.

⁵⁸ See relevant decisions allowing victims to participate in: *DRC Situation*, ICC-01/04-101, Decision on the Applications for Participation in the Proceedings of VPRS 1, VPRS 2, VPRS 3, VPRS 4, VPRS 5 and VPRS 6, Pre-Trial Chamber I, 17 January 2006; *Prosecutor v. Lubanga*, ICC-01-04-01-06-228, Decision on the Applications for Participation in the Proceedings of a/0001/06, a/0002/06 and a/0003/06 in the case of the *Prosecutor v. Thomas Lubanga Dyllo* and of the investigation in the Democratic Republic of the Congo, Pre-Trial Chamber I, 28 July 2008; *Prosecutor v. Lubanga*, ICC-01-04-01-06-601, Decision on applications for participation in proceedings a/0004/06 to a/0009/06, a/0016/06, a/0063/06, a/0071/06 to a/0080/06 and a/0105/06 [...], Pre-Trial Chamber I, 20 October 2006; *Prosecutor v. Kony et al.*, ICC-02-04-01-05-134, Decision on legal representation, appointment of counsel for the defence, protective measures and time-limit for submission of observations on applications for participation a/0010/06, a/0064/06 to a/0070/06, a/0081/06 to a/0104/06 and a/0111/06 to a/0127/06, Pre

the Rome Statute to the phenomenon of victimisation has been confirmed by the States Parties when they adopted a definition of victims in the Rules of Procedure and Evidence that is centred on the notion of harm (Rule 85⁵⁹) and not on the restrictive nexus between the crime and the person directly targeted by it, as reflected in the restrictive ICTY Rule 2, which marked a retrogressive development of the law vis-à-vis the relevant UN minimum standard. In its initial practise, the Office of the Prosecutor utilised the redundant notion of 'judicially recognisable personal interest in the case' in an apparent effort to limit the intervention of victims in ICC Pre-Trial proceedings. Obviously the 'personal interests' have to be found in each specific case of victimization by the relevant Chamber to permit the exercise of the victims' right to participate. However, the Office of the Prosecutor was wrong when it characterised the relevant procedure as a 'two-stage process' in which a victim may be recognised as such in the first place, with the necessity of a second judicial decision concerning whether her or his personal interests are affected⁶⁰. Conversely, the language of article 68, para. 3, plainly states that victims are recognised as such for the purpose of participation 'where their personal interests are affected', which means in the cases in which ('where') there is a link between the criminal conduct investigated and/or adjudicated in given proceedings and the harm that they suffered, unless it could be proved that these victims would have no interests in investigations or prosecutions of individuals who allegedly caused harm to them. The latter is an illogic and improbable situation, especially considering the burdensome effort that victims must have already made in applying to access to justice through the ICC, a Court based far away from the place in which they were allegedly victimised⁶¹.

Trial Chamber II, 1 February 2007. Reference is also made to the decisions not allowing victims to participate in *Prosecutor v. Lubanga*, ICC-01/04-01/06-172, Decision on the Applications for Participation in the Proceedings Submitted by VPRS 1 to VPRS 6 in the Case the *Prosecutor v. Thomas Lubanga Dyilo*, Pre-Trial Chamber I, 29 June 2006.

In the first judicial decision on victims' participation, '[t]he Chamber consider[ed] that the personal interests of victims are affected in general at the investigation stage, since the participation of victims at this stage can serve to clarify the facts, to punish the perpetrators of crimes and to request reparations for the harm suffered.' Cf. para. 63, ICC-01/04-101, 17 Jan. 2006 (cited in this footnote).

⁵⁹ See below mn 35–37.

⁶⁰ 'The Prosecution submits that Article 68(3) of the Statute and Rule 85, viewed together, establish a two-stage process for the Chamber to determine if an individual qualifies as a victim with standing to participate in proceedings: first, the applicant must fulfil the criteria set out in Rule 85, then the Chamber must be satisfied that the personal interests of the victim are directly affected by the proceedings in which he or she is applying to participate.' Cf. *Prosecutor v. Lubanga*, ICC-01-04-01-06-390, Prosecutor's 25 August Observations on the Application for Participation of Applicants a/0047/06 – a/0052/06, Pre-Trial Chamber I, 6 September 2006, para. 10. The approach of the Prosecutor has been partially adopted by the Appeals Chamber in respect of a specific appeal of the defence against pre-trial detention, which however saw the active participation of the victims' legal representative: see *Prosecutor v. Lubanga*, ICC-01/04-01/06-824, Judgment on the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled 'Décision sur la demande de mise en liberté provisoire de Thomas Lubanga Dyilo', Appeals Chamber, 13 February 2007. The same judgement contains an interesting dissenting opinion of Judge Sang Hyun Song that aims at simplifying the procedural requirements relating to victims' interventions in appeals procedures. Judge Song reiterated his view in various other decisions, e.g. *Prosecutor v. Bemba*, ICC-01/05-01/08-623, Decision on the Participation of Victims in the Appeal against the Decision on the Interim Release of Jean-Pierre Bemba Gombo and Convening Hearings with the Kingdom of Belgium, the Republic of Portugal, the Republic of France, the Federal Republic of Germany, the Italian Republic, and the Republic of South Africa – Dissenting Opinion of Judge Sang-Hyun Song, Appeals Chamber, 27 November 2009.

⁶¹ The practice of the second trial before the ICC, in re Katanga (the only one that has become *res judicata* at the time of writing [26 November 2014]), appears to be substantially aligned with this interpretation, even if litigation on 'personal interests' continues to flourish in each ICC case. In its pivotal decision admitting 'pre-trial participating victims' to participate in the trial, the Judges stated:

'in the interest of the proper administration of justice, victims authorised to participate in the proceedings at the pre-trial stage must, in principle, and subject to the considerations set forth below, automatically be authorised to participate in the proceedings at the trial stage, without the need for their applications to be registered and assessed a second time.'

Cf. para. 10, *Prosecutor v. G. Katanga and M. Ngudjolo Chui*, ICC-01/04-01/07-933-tENG, Decision on the treatment of applications for participation, Trial Chamber II, 26 February 2009.

2. Presentation and consideration of victims' views and concerns

- 23 Individual victims have the right to participate in the proceedings in order to make sure that their views and concerns are presented to, and properly considered by, the judges. The broad terms 'views and concerns' – taken from the 1985 UN Declaration on Victims' Rights, as all the language of the first sentence of article 68 para. 3 – is inclusive enough to allow victims (or their representatives) to bring before the Court elements of evidence upon which they wish to express views or concerns. As we anticipated in the first edition of this Commentary, this would have had repercussions on the system of evidence to be adopted by the ICC Assembly of States Parties upon proposal by the Preparatory Commission⁶². Yet, the most important procedural feature that could positively impact on the needs of victims vis-à-vis *the trial* could be the practise to allow victims-survivors to present a narrative-testimony of the alleged crimes that they suffered under the careful and respectful direction of the Presiding Judge, thus leaving the questioning of the Parties to a stage that will follow their spontaneous presentation. Such a procedural feature is made possible by article 64 para. 8(b) and by the lack of specific and mandatory procedural rules on cross-examination of witnesses in the 'law of the Court', as well as by the extremely significant content of Rule 86 on '*General principle [relating to victims]*', which reads as follows: 'A Chamber in making any direction or order, and other organs of the Court in performing their functions under the Statute or the Rules, shall take into account the needs of all victims and witnesses in accordance with article 68, in particular, children, elderly persons, persons with disabilities and victims of sexual or gender violence.' Narrative testimony and avoidance of aggressive examination of victims-witnesses through rigorous control of the Judges on the parties are important procedural devices to minimize the risk of re-traumatization of victims in the Court-room.

Victims are 'potential-parties' (or participants) to the process, insofar as their power of intervention to express views and concerns covers all stages of it: from the first hearing of confirmation of the charges (article 61) or – albeit with limitations – particular stages of the investigation, to the entire course of the Trial, Appeal and Review proceedings. Notwithstanding the fact that article 68 is placed in Part 6 of the Statute on 'the Trial', provisions related to victims' protection and participation have been envisaged by the legal drafters as applicable throughout all the 'open' procedures of the Court. The wording 'stages of the proceedings' reflects such an approach, which is not limited to trial proceedings. Furthermore, other norms of the Statute affirm that victims have: (i) the conditioned right to make representations before the Court even in the beginning of the Pre-Trial procedure envisaged in article 15 para. 3 and (ii) the unconditioned right to submit observations 'in proceedings with respect to jurisdiction or admissibility' ex article 19 para. 3⁶³, as well as (iii) the right to

⁶² See, in particular, Rule 63 (*General provisions relating to evidence*), para. 2, RPE, establishing the principle of 'freedom' of evidence, in conformity with the procedural law of romano-germanic legal systems, as well as Rule 140 (*Directions for the conduct of the proceedings and testimony*), which allows the Trial Chamber to play an important role in the questioning of witnesses (para. 2 (c)) and in evaluating the weight of a testimony rendered by a witness who heard other witnesses in the same proceedings, thus encompassing the case of victims admitted to exercise their right of participation. The latter situation is defined with the notion of a dual status of a victim-witness. The dual status has been consistently addressed in the jurisprudence of the Court since the first trial by striking a careful balance between the right to participate, applicable rules of evidence and the rights of the accused: see, for all, *Prosecutor v. Lubanga*, ICC-01/04-01/06-1119, Decision on victims' participation, Trial Chamber I, 18 January 2008, para. 132 to 137.

⁶³ See articles 15 para. 3 and 19 para. 3. The Pre-Trial Chamber I recognized the right of victims to intervene in art. 19 para. 3 proceedings in its first decision on this matter, namely, *Prosecutor v. Lubanga*, ICC-01/04-01/06-228, Decision on the Applications for Participation in the Proceedings of a/0001/06, a/0002/06 and a/0003/06 in the case of the Prosecutor v. Thomas Lubanga Dyilo and of the investigation in the Democratic Republic of the Congo, Pre-Trial Chamber I, 28 July 2006. The same Pre-Trial Chamber affirmed in an *obiter dictum* that 'articles 15 (3) and 19 (3) of the Statute [...] accord a specific right of participation to victims.' Cf. para. 62, *Prosecutor v. Lubanga*, ICC-01-04-101, Decision on Applications [...], see note 16. This statement equals two very distinct situations, namely, the legitimate expectation that victims have to intervene at an early stage

be heard before decisions on reparation under article 75 para. 3, and (iv) the right to intervene on appeals concerning reparations orders under article 82 para. 4. These provisions are to be interpreted as particular specifications of the general right of participation envisioned in article 68 para. 3, even if the Appeals' Chamber interpreted the *locus standi* of victims in reparations' proceedings as entailing the notion of parties, not participants, in the relevant post-conviction hearings⁶⁴. Proceedings relating to reparations may, or may not at all, take place, in accordance with Article 75.3 and Rule 143. But once reparations' orders become a matter *sub judice*, the statutory framework leaves open both the possibilities of (i) post-conviction hearings on reparations or (ii) assessment of reparations' requests during trial hearings, where victims are present in accordance with their Article 68(3) status.

3. Stages of the proceedings determined to be appropriate by the Court

Victims have the right to intervene in the proceedings before the ICC. Indeed, the Rome Conference adopted specific language in this direction: '... the Court *shall* permit their views and concerns to be presented and considered ...', thus rejecting the thesis that it was simply an interest of the victims to participate. Such a thesis was reflected in the alternative textual option *may*⁶⁵. The first eleven years of practise of the ICC is in line with this literal interpretation of the text. In fact, since its first decision allowing victims to participate in the proceedings on the situation in the Democratic Republic of the Congo, Pre-Trial Chamber I affirmed: 'With regard to article 68 (3), the Chamber considers that it imposes an obligation on the Court vis-à-vis victims. The use of the present tense in the French version of the text ('*la Cour permet*') makes it quite clear that the victims' guaranteed right of access to the Court entails a positive obligation for the Court to enable them to exercise that right concretely and effectively. It follows that the Chamber has a dual obligation: on one hand, to allow victims to present their views and concerns, and, on the other, to examine them'⁶⁶.

The judges must ensure that victims, normally *via* their representatives, make a correct use of their right to intervene. Such form of control, however, shall orient the decision towards the appropriate phase in which victims are to intervene, without denying to victims the exercise of their right⁶⁷. The practise of the Pre-Trial Chamber I in the Lubanga case shows, for example,

(art. 15) unless the Prosecutor decides that they shall not receive notification of his decision to use *proprio motu* powers when the victims' knowledge of such a decision 'would pose a danger to the integrity of the investigation or the life or well-being of victims and witnesses' (cf. Rule 50, para. 1), and the right to submit observations to the Court in proceedings in which the victims' interests are affected by the intervention of third parties challenging the jurisdiction of the Court or the admissibility of a case (art. 19). However, given the absence of relevant litigation on art. 15 as of 2014, it is foreseeable that the Chamber(s) may depart from this *dictum*.

⁶⁴ Cf. *Prosecutor v. Lubanga*, ICC-01/04-01/06-2953, Decision on the admissibility of the appeals against Trial Chamber I's Decision establishing the principles and procedures to be applied to reparations' and directions on the further conduct of proceedings, Appeals Chamber, 14 December 2012, para. 67, which is hereby reproduced in its entirety due to its significance: 'As to the appeals brought by the legal representatives of victims and by the OPCV, the Appeals Chamber notes at the outset that, under article 82 (4) of the Statute, victims are entitled to bring an appeal. They are therefore parties to the proceedings and not, as is the case at other stages of the proceedings, participants who, under article 68 (3) of the Statute, may present their views and concerns where their personal interests are affected. Furthermore, the Appeals Chamber notes that the right to appeal lies with the victims, not with the legal representatives of victims. In this regard, article 82 (4) of the Statute provides that victims may only appeal with the assistance of a legal representative, as is the case in these appeals.' See also footnote 55 and corresponding text at mn 22, Donat Cattin, 'Article 75'.

⁶⁵ See the relevant double-bracketed-text included in the ICC Draft Statute transmitted by the Preparatory Committee to the Rome Conference: '[... the Court [shall] [may] permit their views and concerns ...]', see note 24.

⁶⁶ Cf. para. 71, *Prosecutor v. Lubanga*, ICC-01-04-101, Decision on the Applications for Participation in the Proceedings of VPRS 1, VPRS 2, VPRS 3, VPRS 4, VPRS 5 and VPRS 6, Pre-Trial Chamber I, 17 January 2006. As we had written in the first edition of this *Commentary* at mn 38, 'Article 68', footnote 52, p. 885: 'given the open nature of the 'appropriateness' standard, this criteria must not constitute grounds for outright denial of the victims right of intervention, but rather justify a postponement of the intervention to a more suitable appropriate stage.'

⁶⁷ See mn. 38 *et seq.* Regrettably, a de facto denial of participatory rights has taken place in two cases before the ICC, the Kenyatta and Ruto cases, due to the TC's decision to avoid to recognise victims, as such, on the basis of

that participation might be temporally deemed incompatible with protective measures, as in the cases of victims/applicants a/0047/06 to a/0052/06, who were denied participation to the hearing for the confirmation of charges because the Chamber had ‘afforded [them] specific protective measures’⁶⁸, the situation in the DRC was considered as ‘deteriorated’ and increased contacts between victims and their legal representatives would have had the potential to further endanger the security and well-being of the concerned victims⁶⁹.

4. In a manner not inconsistent with the rights of the accused and a fair and impartial trial

- 26 If appropriateness of the stage of the proceedings is a criterion of judgement that may only justify a postponement of the intervention of the victim, either *via* his/her representative or in person, the requirements of respect for the rights of the accused and a fair trial constitute pre-conditions for the exercise of the victims’ right to intervention⁷⁰. As affirmed above, respect for the rights of the accused is an essential component of a fair trial, which is implemented when the rights of victims and society as such (represented by the Prosecutor) are implemented too.

To give an example, the judges may not allow a certain intervention of the victims’ representative when its content would consist of arguments already integrally presented by the Prosecutor: fairness and expeditiousness of the proceeding would be at risk of prejudice⁷¹. In addition, the statement of the victims (or of his/her representative) are always submitted to the rules governing questioning of witnesses and presentation of evidence, including limitations related to ‘protective measures’ under article 68 and the general principle that the defence shall always be allowed to be the last to question any witness⁷². Taking into account that victims-survivors participating in the ICC proceedings may be called by the Prosecution or the Defence to testify at trial, Rule 140 of the Rules of Procedure and Evidence contains the fundamental provision stating that ‘a witness who has heard testimony of another witness shall not for that reason alone be disqualified from testifying’. Should this situation occur, it ‘shall be noted in the record [of the proceedings] and considered by the Trial Chamber when

their identity and in connection with the harm that they declared to have suffered as a result of crimes allegedly committed during Kenya’s post electoral violence of 2007-08. In *Prosecutor v. Kenyatta*, ICC-01/09-02/11-498, Decision on victims’ representation and participation, Trial Chamber V, 3 October 2012, and *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-460, Decision on victims’ representation and participation, TC V, 3 October 2012, at para. 29 and 30 respectively, Judges wrote exactly the same following text: ‘In cases involving crimes that allegedly caused harm to a large number of victims, the process of assessing their applications is time consuming.’ Quite astonishingly, this was the single most important cause for departing from established ICC practise based on a literal interpretation of the two sentences of article 68(3) in a situation that had a lower number of victims than others within the Court’s docket. The absence of recognised individual victims has been certainly only one of the anomalies of the Kenya situation cases, which may have contributed to the most controversial proceedings carried out before the ICC in the first eleven years of Court praxis.

⁶⁸ See pages 10 and 11 of *Prosecutor v. Lubanga*, ICC-01-04-01-06-601, Decision on applications for participation in proceedings a/0004/06 to a/0009/06, a/0016/06, a/0063/06, a/0071/06 to a/0080/06 and a/0105/06 in the case of *The Prosecutor v. Thomas Lubanga Dyilo*, Pre-Trial Chamber I, 20 October 2006.

⁶⁹ The Pre-Trial Chamber therefore concluded that ‘having carefully considered each case, the Chamber is of the opinion that granting Applicants a/0047/06 to a/0052/06 the status of victims with standing to participate would be inappropriate at this particular stage in the proceedings’ (*ibid.*, page 11). In this respect, it must be noted that the Chamber did not decide on the basis of whether the personal interests of the victims were affected, as the Prosecutor had mistakenly requested (see see mn 22), but restated that ‘the Chamber may determine at its discretion the appropriateness of the stage of the proceedings at which the views and concerns of the victims may be presented’, thus reiterating the letter of para. 3, article 68 (*ibid.*, page 10).

⁷⁰ See mn 15 *et seq.*

⁷¹ The practise of the ICC Chambers has been consistent in impeding duplication and overlap between victims and the Prosecutor. In an exemplary statement, the presiding judge in *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Transcripts, Trial Chamber II, 15 July 2008, at 70, affirmed: ‘we cannot allow a second Prosecutor in this process’ with respect to the fact that victims’ legal representatives cannot introduce duplicative evidence on the accused’s guilt: cited by McGonigle Leyh (2011) 284–285, footnotes 357 and 358, and by Pérez León Acevedo (2014), 389, footnote 2425. See also Ambos (2012) *ICLRev* 115, 116.

⁷² See the norm for the trial (and appeals) posed by Rule 140, para. 2(d), Rules of Procedure and Evidence.

evaluating the evidence.’ Rule 140 resolves a problem that has been raised by some commentators⁷³, which the Office of the Prosecutor addressed citing several external authorities⁷⁴, but not the ICC Rules! The lack of specific provisions on this matter in article 68, para. 3, has been appropriately resolved by Rule 140, to be read in conjunction with the other rules pertaining to victims, in conformity with the ratio and scope of Article 68: and it is not a coincidence that the first three victims admitted to participate in an ICC case were all witnesses of the (alleged) crimes to which they survived⁷⁵.

5. Presentation by legal representatives of victims

The second sentence of article 68 para. 3 was added to the original draft text of the paragraph. 27 It derives from a French proposal, which was conceived in the special framework of reparations to victims⁷⁶, and not attached to a general provision on victims’ participation, which was lacking in the French proposal of Statute released at the Preparatory Committee session of August 1996⁷⁷. In respect to the right to justice for victims – and effective participation in the justice process as an essential element of, and preliminary to, the realisation of the other elements of that right (to know of the truth and to obtain reparations⁷⁸) –, reference is appropriately made to legal representation. The domestic practice of ‘continental-law’ jurisdictions clearly stresses

⁷³ Jorda and de Hemptinne, in Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002): at p. 1409, the authors mention ‘outstanding issues awaiting resolution’ including the fact that ‘[t]he Rules do not state whether the parties may subsequently call a victim who intervenes in the proceedings in his personal capacity as witness. In order to fully safeguard the rights of the accused, it will be necessary to ensure that a victim may not simultaneously be a witness and a party in one of the same cases (with reference in footnote to the jurisprudence of the French Cour de Cassation: Cass crim. 6 November 1956, B.709.)’ See also p. 1416.

⁷⁴ In its submission to the Pre-Trial Chamber I of 6 September 2006 (ICC-01-04-01-06-390, seenote 58), the Prosecutor affirmed ‘that since the Court’s texts do not address the issue of individuals having both the status of witness and victim throughout the proceedings, such a possibility cannot be excluded.’ (*Ibid.*, para. 26.) Hence, the Prosecutor enlisted a number of sources, including principles stemming from UNGA resolutions and national laws, which led him to the determination ‘that there is no incompatibility with an individual’s joint status as victim and witness.’ (*Ibid.*, para. 25.) Inter alia, the Prosecutor stated that ‘[a] number of European texts equally reveal that European institutions do not see a contradiction with between participating as a victim and also being relied upon or asked to testify at trial by a party as a witness, even in systems where victims have acquired the status of a full party. [...] [T]he EU Council Framework Decision on the Standing of Victims in Criminal Proceedings [...] shows that, according to European legislation, an individual’s status as a victim does not categorically preclude him or her from holding simultaneously the status of a witness (2001/220/JHA, Official journal of the EU, L82/1, 22/03/2001).’ (*Ibid.*, paras. 25 and 27).

⁷⁵ Pre-Trial Chamber I *Decision...*, ICC-01-04-01-06-228, see note 56.

⁷⁶ A final bracketed paragraph of article 68 of the ICC Draft Statute, see note 24, corresponding to language included in the August 1997 PrepCom draft and in the January 1998 *Zutphen text*, stated as follows: ‘Legal representatives of victims of crimes have the right to participate in the proceedings with a view of presenting additional evidence needed to establish the basis of criminal responsibility as a foundation for their right to pursue reparations.’ (Translation from the original French text: the original English text contained the non-inclusive terms ‘civil compensation’).

⁷⁷ See UN Doc. A/AC.249/L.3, Preparatory Committee on the Establishment of an International Criminal Court (12–30 Aug. 1996), *Draft Statute for an International Criminal Court – Working paper submitted by France*. Instead, the general provision of article 68 para. 3 originated (in the Preparatory Committee of August ‘97) from an NGO proposal, that was brought by the author of these comments to the attention of some governments delegates and to other NGOs (especially the European Law Students’ Association and the Women Caucus for Gender Justice). New Zealand was the delegation that worked on the suggested language of article 68 para. 3 – at that time, article 43 para. 3 – and formally proposed it for inclusion in the ICC Draft Statute (*New Zealand proposal*, Non-Paper/WG.4/No. 19 (13 Aug. 1997), UN/ICC Preparatory Committee, on file with author). New Zealand was immediately supported by statements of other 13 countries, including Italy that proposed to amend the title of the article and insert the wording ‘and their participation’ after ‘Protection of victims [...]’. In a policy-oriented writing that preceded the controversial decisions of Trial Chamber V on victims’ participation in the Kenya cases of 3 October 2012, a Judge of that Chamber misleadingly referred to the origins of Art. 68 para. 3 as follows: ‘It was mainly France and some civil law countries that insisted on the introduction of a participatory regime that resembled the French *partie civile* system.’ Cf. Van den Wyngaert (2012) 44 *CaseWesternReserveJIL* 475, 478.

⁷⁸ See mn 7 *et seq.*

the indisputable function of empowerment provided for victims by advocates of their rights. There is no effective access to justice without skilful and responsible legal representation. However, the language of article 68 is clear in affirming that ‘views and concerns *may* be presented by the legal representatives’ whereby victims themselves have the right (*shall*) to express such views and concerns. To the contrary, some commentators and the Office of the Prosecutor, albeit only in its initial practise, seem to have misunderstood the relationship between the two sentences included in paragraph 3 of article 68 and interpreted the second as limiting the right of victims to access to the new system of international criminal justice⁷⁹. One Trial Chamber has read more in this provision than its literal meaning and has conceptualized two categories of victims derived from two types of participation, namely participation via a common legal representative and individual victims’ direct participation⁸⁰. This departs from the statutory framework because representation is ancillary to victims’ participation and it can exist only if there is an individual victim or several individual victims, as part of a group, to be represented in Court.

- 28 The *UN Handbook on Victims’ Rights* indicates that legal counselling should be accompanied by psychological and – if necessary – medical assistance, as part of a victims’ assistance programme that States are called to implement in line with the recommendations contained in the 1985 UN Declaration on Victims’ Rights. Hence, legal counsels of victims before the ICC have a delicate role in facilitating access to justice by their ‘assisted persons’, which has in itself a psychological impact, especially on survivors of crime. Transparency of the proceedings is an essential component of a legal process, which is designed to serve the needs of those who directly or indirectly suffered from a given act; namely, the victims, their families, dependants and persons who have suffered harm in intervening to assist victims in distress or to prevent victimisation⁸¹. Even if the views and concerns of the victims may be presented also directly by themselves, it is difficult for them to have the capacity to deal with the very technical procedures of the Court without the assistance of a legal expert⁸². The design of the ICC facilities and Court-rooms must also consider the availability of space and procedures to accommodate victims when they decide to sit close to their legal representatives, who are legitimised to participate in the proceeding *on behalf* of the victims⁸³. While

⁷⁹ See, in particular, footnote 50 at para. 32, *Prosecutor v. Lubanga*, ICC-01-04-01-06-390, Prosecution’s Observations on the Applications for Participation of Applicants a/0047/06-a/0052/06 [public redacted and formatted version], Office of the Prosecutor, 6 September 2006, see note 58.

⁸⁰ The last sentence of the identical paras. 25 and 26 of the Kenyatta and the Ruto Victims’ Participation Decisions of 3 October 2012 (ICC-01/09-02/11-498 and ICC-01/09-01/11-460) contain language that has no foundation in the letter of the Rome Statute, namely: ‘The basic principle, contained in Article 68(3), and arguably one of the key innovations of the Statute, is that victims are allowed to address the Court in their own name. This implies that victims may, at appropriate stages of the proceedings to be determined by the Chamber, appear individually, so that their voice may be heard directly. However, Article 68(3) of the Statute also provides that the views and concerns of victims may equally ‘be presented by the legal representatives of victims’. Article 68(3) thus envisages both direct individual participation and participation through a common legal representative.’ The Chamber fails to consider that legal representation stems from the right of victims to be represented and, therefore, be empowered to participate in the complex ICC proceedings.

⁸¹ Cf. article 1, UN Declaration on Victims’ Rights. See also mn 35 *et seq.*

⁸² For the characteristics and qualifications of these jurists, reference is made to mn 40 *et seq.* The initial practise of the legal representatives of victims before the ICC confirmed the importance of the complex role of the lawyers of victims, as lucidly documented by Luc Walley, legal representative of several victims’ survivors (former child soldiers) in the Lubanga case, in his paper entitled ‘*Incorporating Victims’ Views in Reparation Cases: A Challenge for Lawyers*’, Redress Conference, The Hague, 1 March 2007. But since 2010, the lawyers of the Office for the Public Counsel of Victims (OPCV) of the ICC have been increasingly tasked with the mandate of serving as Common Legal Representatives of groups of victims in an apparent effort to ensure efficiency and cost-effectiveness of the proceedings while maintaining an appropriate level of expertise in legal representation. In 2011, the plenary of the ICC Judges amended Regulations 80 and 81 on the OPCV (Cf. ICC-BD/01-03-11, Amendments to the Regulations of the Court, Presidency, 2 November 2011, available at www.icc-cpi.int/NR/rdonlyres/AE097EAF-B849-482B-A766-CF76DA4D6AFF/0/ENexplanatoryNotes.pdf) to reflect this problematic jurisprudential trend.

⁸³ For general observations on how the ICC court-room may be designed to comply with the requirements of Art. 68, para. 3, see Donat-Cattin, ‘Victims’ Rights in the International Criminal Court’ (2011), 376–277.

the Court had set up an administrative structure within the Registry to assist and support victims and their legal representatives (the Office of Public Counsel for Victims, OPCV), the personnel of this quasi-independent structure has progressively replaced the legal representative, as *partially* envisaged in Regulation 81, which permitted legal representation by the OPCV only temporarily and ‘in respect of specific issues’⁸⁴ and was amended by the Judges in early 2011. The amended Regulation 80(2) stipulates expressly that the OPCV can perform the function of legal representation, upon appointment by the relevant Chamber. However, these regulations should be interpreted restrictively and applied in compliance with articles 21 and 52⁸⁵ of the Rome Statute, which require compliance of the Regulations with the Rules of Procedure and Evidence such as Rule 90 on the right of victims to choose a legal representative, unless a ‘number of victims’ would be unable to choose a common legal representative. The performance of principal legal representation is a significant departure from the original mandate of the OPCV, namely to provide ‘general support and assistance to the legal representative of victims and to victims, including legal research and advice’ and to ‘appear[...], on the instruction or with the leave of the Chamber, in respect of specific issues’⁸⁶ under exceptional circumstances, for example in cases in which an unpredictable event would impede the presence of a victims’ lawyer in the ICC Court-room at a given hearing.

6. ‘in accordance with Rules of Procedure and Evidence’

In line with several aspects of the ICC procedure, the Statute confers to the Rules the task of specifying its general principles. Consequently, common legal representation of multiple victims, notification of information to victims and their legal representatives and other procedural matters have been disciplined in the Rules, particularly Rules 85 to 99 falling under Chapter 4 (*Provisions relating to various states of the proceedings*), Section III (*Victims and Witnesses*). These rules provide the practitioner with a detailed and coherent implementation of article 68 para. 3⁸⁷, as outlined in margins 35 to 46 of this Comment. Rule 89 and Regulation 86 are integrative and innovative vis-à-vis the Statute: they have been adopted to govern the procedure through which victims apply to participate. The approach of these provisions is to treat victims as individuals seeking for recognition. Due to the inevitably serious workload in analysing and deliberating on multiple individual applications, proposals have been made to adopt a collective approach to applications⁸⁸. These are however not

⁸⁴ Cf. Regulation 81, para. 4 (b), ICC-BD/01-01-04, Regulations of the Court, Presidency, 26 May 2014.

⁸⁵ Article 52 defines the Regulations of the Court as ‘necessary for its routine functioning’, hence excluding that the Regulations may modify the provisions of the Statute or the Rule of Procedure and Evidence.

⁸⁶ Cf. Regulation 81, para. 4(a) and (b), as amended in 2011.

⁸⁷ It is unfortunate that the misinterpretation of the contours of these linear provisions gave rise to several challenges of the Prosecutor on victims’ participation and protection in the initial years of ICC practice. While the decisions taken by the Pre-Trial and Appeals Chambers of the ICC complied with the requirements of the Statute and the Rules, it seems that considerable time was spent by the organs of the Court in the first years of its activities to interpret ‘complex legal provisions’ (cf. p. 3, ICC President Address to the UN General Assembly, II Annual Report, 9 October 2006, http://www.icc-cpi.int/NR/rdonlyres/53692E4E-2B35-41BD-8B90-91828D55880A/278543/PK_20061009_en.pdf, accessed on 26 October 2014) and ‘highly complex filing[s]’ (cf. para. 12(ii), *Prosecutor v. Lubanga*, ICC-01/04-01/06-458, Request for Extension of Time, Office of the Prosecutor, 22 September 2006), in situations in which a plain interpretation of the law, in accordance with the criteria of the Vienna Convention on the Law of Treaties, could have avoided most complications.

⁸⁸ See *Assembly of States Parties*, ICC-ASP/11/22, Report of the Court on the review of the system for victims to apply to participate in proceedings, 5 November 2012, sections V(b) and V(c). At para. 41, the Report reads as follows: ‘As the fully collective application options are untested it is uncertain whether they would require amendments to the legal framework, especially Article 68(3) RS, Rules 85 and 89 of the RPE and Regulation 86 of the RoC.’ In this author’s view, *rebus sic stantibus* collective applications are *ultra vires*. Conversely, partly collective applications have been deemed compatible with the ICC legal framework in so far as simplified individual forms have been integrated by collective ones describing situations in which a group of victims suffered individual harm as a consequence of the same alleged conduct contained in the charges of the case: See *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-86, Second decision on issues related to the victims’ application process, Pre-Trial Chamber I Single Judge, 5 April 2012, para. 30.

compatible with a criminal justice process as the one before the ICC, which is not a civil Court that can receive class-actions or collective complaints. Hence, there is no short-cut to the hard work that Judges and their staff must (continue to) devote in analysing and accepting or respectfully rejecting applications from victims, bearing in mind that they must have suffered harm as a consequence of specific crimes charged to the alleged responsibility of the accused in a given case⁸⁹. Victims are individual rights' bearers and their applications are to be treated as such, notwithstanding the possible outcome of common legal representation on behalf of each of them, as part of a specific group who—in most if not all ICC cases—are a minority within the victims' community.

IV. Paragraph 4: 'The Victims and Witnesses Unit'

- 30 The inclusion in the ICC Statute of comprehensive provisions on protection of victims and witnesses was promoted by the delegation of New Zealand at the August 1997 session of the Preparatory Committee. The content of the New Zealand proposal enriched the Draft Statute, because it envisaged the creation of a 'Victims and Witnesses Protection Unit [... that] shall provide counselling and other assistance to victims and witnesses and advise the Prosecutor and the Court on appropriate measures of protection and other matters affecting their rights'⁹⁰. In line with the law and practice of the *ad hoc* Tribunals, the Unit plays an essential role in discharging the Court's functions in the area of assistance to victims.
- 31 However, the mandate of the Unit of the ICC is no longer defined exclusively in article 68 para. 4, which includes reference to the surprisingly discriminatory language of article 43 para. 6. Its essence – negotiated by the Diplomatic Conference's Working Group on *Composition*, Part IV of the Statute – has been strongly criticised during the Rome Conference by some NGOs and governments' delegates attending the Working Group on *Procedural Matters*. Indeed, while the Court is empowered under article 68 para. 1 to take appropriate measures to protect victims which are the target of retaliation from offenders, the Unit appears to be able to provide such measures only with respect to victims who witness before the Court or whose identity and whereabouts have been made known in the course of testimonies before the Court. Yet, an individual can become 'at risk' even if he/she survived a mass murder, no one witnessed his/her presence amongst the victims of the extermination, and he/she is not called before the Court. In such a situation, once that there is reliable information concerning a plan of a suspect to kill that survivor, the Court or the Prosecutor 'shall' order measures of protection ex article 68 para. 1, but the Unit may not be in the position to execute them.
- 32 This discriminatory situation against a significant portion of victims must be avoided through a systematic interpretation of the Statute. In fact, according to article 68 para. 4 the

⁸⁹ *Prosecutor v. B. Ntaganda*, ICC-01/04-02/06-211, Decision on Victims' Participation at the Confirmation of Charges Hearing and in the Related Proceedings, PTC II Single Judge, 15 January 2014: '65. With regard to Group 1, the Single Judge has decided to accept 97 victim applicants as victims and to reject none. With regard to Group 2, the Single Judge has decided to accept 825 victim applicants, to reject 48 applications and to defer 12 applications, pending additional information to be obtained by the VPRS.' [922 Victims allowed to participate.] [...] 67. Moreover, some applications have been rejected, in whole or in part, because the victim applicants: (i) provided an account of events that fall outside either the temporal scope or the geographical scope of the case presented by the Prosecutor in the DCC; (ii) provided insufficient information to assess whether the events described amount to a crime with which the suspect is charged; (iii) provided highly inconsistent information in the narrative of the events that cast doubts on the veracity of their applications and on the credibility of the victim applicants.' In order to ensure the manageability of the victims' individual applications and establish the nexus of causality between the crimes and the harm suffered by the applicants, 'the Single Judge' developed a simplified one-page individual application form (the "Simplified Form")' [citing ICC-01/04-02/06-67, paras 17–25, of the same Single Judge].

⁹⁰ Cf. paragraph 4 of the *New Zealand proposal*, see note 74. More important, the provisions in paragraph 1 and 2 addressed fundamental issues of protection of victims, especially those of 'gender crimes', then incorporated in the other paragraphs of article 68. These norms were all included with some ameliorative amendments proposed by the delegate of Samoa (R.S. Clark) in the revised text of article 43 (UN Doc. A/AC.249/1997/WG.4/CRP.9).

Unit may advise the Prosecutor or the Court on appropriate protective measures ... as referred to in article 43 para. 6: this means that the mandate of the Unit is limited by the language of article 43 only when it makes recommendations to the Prosecutor or the Court. In addition, article 43 para. 6 states that the Unit shall provide protective measures on its own motion solely for witnesses, victims and potential victims as defined in that article (namely, *witnesses, victims who appear before the Court and others who are at risk on account of testimony given by such witnesses*). Thus, there is no express derogation to the general obligation under article 68 para. 1 – which regards all organs of the Court, including the Registrar and its Unit – to implement Court's decisions on protective measures, as far as the general nature of the obligation of 68 para. 1 goes beyond the limited scope of the Unit's mandate under 43 para. 6. Such a mandate is applicable only to the *motu proprio* activities of the Unit (*lex specialis derogat lex generalis*) and to the advisory function of the Unit envisaged in 68 para. 4.

V. Paragraph 5: Endangerment of the security of witnesses or their families

During the Pre-Trial stages of the proceedings, it is neither necessary nor wise that the Prosecutor be required to supply all the evidence she/he has collected. Nor would this undermine the rights of the accused. To require submission of all evidence collected would conflict directly with the Prosecutor's duty, outlined in article 54 paras. 1 (b), (c) and 3 (f), to guarantee confidentiality and ensure the protection of victims and witnesses. The Prosecutor should therefore be able to submit necessary evidence in such a way as to protect the confidentiality and, if possible, anonymity of witnesses at this stage⁹¹. Most legal systems permit the presentation of summaries of evidence in the course of investigation, as far as evidence must be preserved for the trial. This entails protection of the physical and psychological well-being of witnesses, who are extremely vulnerable when they are victims, especially if they survived crimes of sexual violence. The practise of the ICC is fully in line with this interpretation of article 68, para. 5, which is correctly seen as a specification of the general principle of para. 1⁹².

For the meaning of 'not prejudicial to or inconsistent with the rights of the accused and a fair and impartial trial' see mn. 15 et seq.

VI. Paragraph 6: State application for protection of servants, agents and information

Paragraph 6 is not related to the protection and participation of victims, but is connected to witnesses, whether State's agents or private citizens, who could be in the position to disclose confidential or sensitive information, including information capable to endanger the integrity and status of State officials themselves. The subject matter is indeed regulated by article 72 (Protection of national security information) of the Statute, the first paragraph of which clearly stresses that the procedural scenarios of article 68 para. 3, as well as those of articles 56 paras. 2 and 3, 61 para. 3, 64 para. 3, 67 para. 2, 87 para. 6 and 93, are to be disciplined according to the rules of article 72. The latter 'applies in any case where the

⁹¹ Cf. Women's Caucus for Gender Justice in the ICC, *Proposal for Rome Diplomatic Conference* (on file with the author). For further considerations on the prosecutor's prerogatives (article 54) and rights of the suspect (article 55), see sections of this Commentary on Part 5 of the Statute. On anonymity as a measure of protection especially in pre-trial proceedings, please see mn 19.

⁹² On the role of the Victims' and Witness Unit, see for all *Prosecutor v. Kony, Otti, Odhiambo and Ongwen*, ICC-02/04-01/05-147, Decision on the Prosecutor's Application that the Pre-Trial Chamber disregard as irrelevant the submission filed by the Registry on 5 December 2005, Pre-Trial Chamber II, 9 March 2006, paras. 36–42 (in particular, the latter). On the matter of anonymity of victims and witnesses in the Pre-Trial phase, including the hearing on confirmation of charges, see for all *Prosecutor v. Lubanga*, ICC-01/04-01/06-568, Judgment [...], Appeals Chamber, 13 October 2006, at para. ii of the judgment (page 2).

disclosure of the information or documents of a State would, in the opinion of that State, prejudice its national security interests⁹³. Therefore, reference is made to the comments concerning article 72.

C. Special remarks: Implementation of article 68 para. 3 in the Rules of Procedure and Evidence and the Regulations of the Court

I. Definition of victims: Rule 85

- 35 Justice can only be obtained when wrongs are redressed in a just and fair manner. The realisation of justice for the victims of gross violations of international humanitarian law and human rights can only be achieved when victims are able to access justice.

The concept of a victim in Rule 2 of the ICTY and ICTR Rules of Procedure and Evidence has been unduly restricted to ‘a person against whom a crime over which the Tribunal has jurisdiction has allegedly been committed’. This definition excludes dependants of the victims and their relatives. It does not conform to the existing definition of a victim contained in the UNGA Resolution 40/34 on 1985 of the Declaration of Basic Principles for Justice for Victims of Crimes and Abuse of Power. The latter instrument – adopted unanimously by the United Nations General Assembly – extends the definition of a victim to include ‘where appropriate the immediate family, dependants of the direct victim and persons who have suffered harm in intervening to assist victims in distress to prevent victimisation’ (cf. article 1).

- 36 The Declaration – although not binding in nature – provided guidance for the drafters of the Rules of the ICC, in order to expand the *ad hoc* Tribunals definition so as to avoid a situation discriminating certain victims. Furthermore, ICC States Parties were bound to respect the general agreement reached within the Rome Conference’s Working Group on Procedural Matters concerning the following interpretative footnote to article 68, which was included in the relevant report to the Drafting Committee:

‘In the exercise of its powers under this article, the Court shall take into consideration the United Nations Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power.’⁹⁴

- 37 Therefore, the following definition of victims was incorporated in the Rules of the ICC:

- ‘(a) ‘Victims’ means natural persons who have suffered harm as a result of the commission of any crime within the jurisdiction of the Court;
- (b) Victims may include organizations or institutions that have sustained direct harm to any of their property which is dedicated to religion, education, art or science or charitable purposes, and to their historic monuments, hospitals and other places and objects for humanitarian purposes.’

This definition is centered on the harm suffered by the victim as a result of the crime, and not on the crime itself. The difference between direct and indirect victims has therefore no substantive relevance, as affirmed in the 1985 UN Declaration on Victims’ Rights and in the ‘Bassiouni-van Boven principles’. The causal link to be established is between the criminal conduct and the victimisation, and not simply between the crimes and the direct individual victim⁹⁵. The latter category of victims, the survivors, have special needs that differentiate

⁹³ Cf. article 72, para. 1.

⁹⁴ UN Doc. A/CONF.183/C.1/WGPM/L.2/Add.8, p. 7, reproduced in: International Criminal Court Society, see note 27, 48.

⁹⁵ According to the practice of the Court on the recognition of the victims’ right to participate, ‘the causal link required by rule 85 of the Rules with regard to the stage of the case is demonstrated once the victim, and, if applicable, the immediate family or dependents of that victim, provide sufficient evidence to establish that that person has suffered harm directly linked to the crimes set out in the arrest warrant or that that person has suffered harm by intervening to assist the direct victims in the case or to prevent these victims from becoming victims as a result of these crimes being committed’. Cf. page 9, *Prosecutor v. Lubanga*, ICC-01-04-01-06-228, *Decision* [...], see note 56.

their contribution to the proceedings and interest in the justice process vis-à-vis other victims who have lost a family member as a result of murder or extermination. Differences also exist between dependants who are minors, in light of the harm inflicted on them, and dependents who are adult. But, notwithstanding the different approaches to categories of victims, all individual victims have access to the same rights afforded to them by the Rome Statute upon recognition of the harm that they suffered and, in most cases, continue to suffer. In its jurisprudence, the Court has consistently interpreted the notion of victim under Rule 85⁹⁶, even if at times it added the qualifier 'personal' to the term 'harm' in an apparent effort to be precise and specific⁹⁷. 'Harm' has been interpreted as including 'physical injury, emotional suffering and economic loss'⁹⁸.

The inclusion of legal entities under the conditions established in section (b) of Rule 85 within the definition of victim does not detract the focus of Rome Statute system from individual victims, given that the rights enshrined in article 68 and 75 of the Statute are primarily applicable to natural persons. However, symbolic or collective means of reparation may be a proper remedy for legal entities, while participation of such entities in the proceedings may in turn strengthen the position of victims or groups of victims participating under article 68, para. 3. The standard of proof to establish the phenomenon of victimisation is the same applicable to the decisions to be taken at a given stage of the proceedings: for example, the 'reasonable grounds to believe' that an individual incurred in emotional and/or physical suffering as a result of a crime under investigation is sufficient to recognise victims in Pre-Trial proceedings⁹⁹.

⁹⁶ See, for all, the decisions of Single Judges Trendafilova and Fernandez de Gurmendi on the participation of victims in the pre-trial proceedings against Mr. Ntaganda and Mr. Blé Goudé respectively, in which they wrote: 'a victim applicant qualifies as "victim" in the present case, provided that: (i) his or her identity as a natural person is duly established; (ii) the events described in the application for participation constitute the crime(s) within the jurisdiction of the Court with which the suspect is charged; and (iii) the victim applicant has suffered harm "as a result" of the crime(s) charged. [Fn. 32: The Single Judge notes that various Chambers have interpreted this as four requirements, but considers that, in substance, their understanding of the requirements of rule 85(a) does not depart from that taken in the present decision.]' Cf. para. 18, *Prosecutor v. B. Ntaganda*, ICC-01/04-02/06-211, Decision on Victims' Participation at the Confirmation of Charges Hearing and in the Related Proceedings, PTC II Single Judge, 15 January 2014; 'At the outset, the Single Judge clarifies that for the purpose of assessing the 277 applications for victims' participation, she refers to the *established jurisprudence* of the Court with regard to the requirements to be fulfilled under rule 85 of the Rules [fn. 11: See ICC-02/11-02/11-83, para. 13 and the jurisprudence referred to in footnote 19]'. Cf. para. 6, *Prosecutor v. C. Blé Goudé*, ICC-02/11-02/11-111, Second Decision on victims' participation in the pre-trial proceedings and related issues, PTC I Single judge, 1 August 2014 [Emphasis added].

⁹⁷ Cf. *Prosecutor v. Ntaganda*, ICC-01/04-02/06-211, Decision [...], see note 94, in which the Single Judge redundantly affirms at para. 29: 'According to rule 85(a) of the Rules the harm must: (i) ensue from the crime(s) with which the suspect is charged; and (ii) be personal, *i.e.* it must have been personally suffered by the victim applicant.'

⁹⁸ See, for all, *Prosecutor v. Lubanga*, ICC-01/04-01/06-1432, Judgment on the appeals of the Prosecutor and The Defence against Trial Chamber I's Decision on Victims' Participation of 18 January 2008, Appeals Chamber, para. 32, cited in para. 18, *Prosecutor v. Ntaganda*, ICC-01/04-02/06-211, see note 94.

⁹⁹ This standard of proof is contained in article 58, Rome Statute. In the first decision not allowing three victims to participate in the Lubanga pre-trial proceedings, Pre-Trial Chamber I wrote: 'considering that in the particular circumstances the Chamber holds that there are *reasonable grounds to believe* that Applicant a/0001/06 and those that she represents have suffered emotional sufferings as a result of the latter being enrolled into the UPC militias; that there are *reasonable grounds to believe* that the two children represented by Applicant a/0001/06 have suffered physical harm as a result of their enlistment in the UPC militias; that these three persons have provided sufficient evidence to allow the Chamber to hold that there are *reasonable grounds to believe* that they are victims of the crimes listed in the arrest warrant issued against Thomas Lubanga Dyilo and that they must be granted the status of victim in the case of The Prosecutor v. Thomas Lubanga Dyilo' [emphasis added]: Cf. page 10, *Prosecutor v. Lubanga*, ICC-01-04-01-06-228, Decision on the Applications for Participation in the Proceedings of a/0001/06, a/0002/06 and a/0003/06 in the case of the Prosecutor v. Thomas Lubanga Dyilo and of the investigation in the Democratic Republic of the Congo, Pre-Trial Chamber I, 28 July 2008.

II. Victims' participation through legal representation (Rules 90 and 91)

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'Rule 90 – Legal Representation of Victims

1. A victim shall be free to choose a legal representative.
2. Where there are a number of victims, the Chamber may, for the purposes of ensuring the effectiveness of the proceedings, request the victims or particular groups of victims, if necessary with the assistance of the Registry, to choose a common legal representative or representatives. In facilitating the coordination of victim representation, the Registry may provide assistance, *inter alia*, by referring the victims to a list of counsel, maintained by the Registry, or suggesting one or more common legal representatives.
3. If the victims are unable to choose a common legal representative or representatives within a time limit that the Chamber may decide, the Chamber may request the Registrar to choose one or more common legal representatives.
4. The Chamber and the Registry shall take all reasonable steps to ensure that in the selection of common legal representatives, the distinct interests of the victims, particularly as provided in article 68, paragraph 1, are represented and that any conflict of interest is avoided.
5. A victim or group of victims who lack the necessary means to pay for a common legal representative chosen by the Court may receive assistance from the Registry, including, as appropriate, financial assistance.
6. A legal representative of a victim or victims shall have the qualifications set forth in rule 22, sub-rule 1.'

Although the idea of victims' participation in the ICC proceedings may appear problematic at first sight in view of the large numbers of the victims and the nature of the crimes being dealt with, the Statute reflects the thesis that the right of the victims to participate in the trial is too fundamental to be sacrificed due to mere 'logistical difficulties'. This is especially so, as these difficulties are resolvable and they are only potential. On the procedural plain, the above-reproduced Rule 90 provides with a technical solution to give effect to the norm of article 68 para. 3 of the *Rome Statute* in situations in which 'there are a number of victims' and one or more common legal representatives may be appointed by the relevant Chamber. On the factual plain, the initial practise of the Court shows that only a relatively limited number of victims have the ability to apply to accede to the ICC given the distance between the seat of the Court and the crimes' scenes, the extreme poverty affecting most victims and the compelling priorities that victims generally have in conflict or post-conflict situations¹⁰⁰.

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The procedure for victims' participation is characterised by the following steps: victims must submit an application to the Registry containing, *inter alia*, '[...] a description of the harm suffered resulting from the commission of any crime within the jurisdiction of the Court, or, in case of a victim being an organization or institution, a description of any direct harm as described in Rule 85 (b); A description of the incident, including its location and date and, to the extent possible, the identity of the person or persons the victim believes to be responsible for the harm as described in Rule 85; Any relevant supporting documentation, including names and addresses of witnesses [...]'¹⁰¹. While taking into account the distinct interests of the victims, the Registrar may compile in a single report a series of applications pertaining to the same case of situation for presentation to the relevant Chamber¹⁰². The Chamber shall decide on the matter of participation after having heard the parties, prosecution and defence, in the relevant proceeding¹⁰³. Most of this procedure

¹⁰⁰ These observations are sufficient to persuasively rebut the arguments of some States that were opposing the inclusion of victims' participation in the ICC Statute and Rule of Procedure on the basis of the argument that hundreds of thousand alleged victims would have attempted to participate in, and thus delayed, the justice process in The Hague.

¹⁰¹ Regulation 86 (2): this regulation was adopted by the Judges to implement the general provisions of Rule 89.

¹⁰² Regulation 86 (5) and (6).

¹⁰³ Rule 89, para. 1. But, in a significant decision that led to the admission of 922 victims in the Pre-Trial proceedings against Mr. Ntaganda, the Single Judge acting on behalf of the Pre-Trial Chamber underscored that 'observations to be submitted by the parties under rule 89(1) of the Rules are *not mandatory* and serve the

develops in a written form. The decision allowing victims to express their views and concerns, according to para. 8 of Regulation 86, 'shall apply throughout the proceedings in the same case, subject to the powers of the relevant Chamber in accordance with Rule 91, sub-rule 1', which provides flexibility as it states that 'a Chamber may modify a previous ruling under Rule 89' concerning participation. As the first eleven years of practice of the ICC demonstrates, starting with the first hearing on the confirmation of charges, the modalities of participation for victims were defined by the Pre-Trial and Trial Chambers in such a way as to effectively permit victims to express their views and concerns via their legal representatives who made opening and closing remarks at the confirmation hearings and at trials. Legal representatives interacted and intervened in relevant proceedings upon leave by the Judges¹⁰⁴. The competent and balanced interventions of the victims' legal representatives in the Pre-Trial and Trial proceedings of the Lubanga and Katanga cases confirmed that victims are 'guardians' of the fairness of the proceedings with respect to their personal interests, and are not 'agents' in search of retribution. The possibility of intervention in the most crucial stages of the proceedings may represent an important step in the rehabilitation process of the victims¹⁰⁵.

III. Institutional framework to assist victims to exercise their rights: the Victims' Participation and Reparations Section and the Office of the Public Counsel for Victims

Regulation 86 (*Participation of victims in the proceedings under rule 89*), para. 9: 'There shall 40
be a specialised unit dealing with victims' participation and reparations under the authority of the Registrar. This unit shall be responsible for assisting victims and groups of victims.'

Within the framework of the Victims and Witness Unit, Rule 86 para. 9 provided the legal basis for the creation of the Victims' Participation and Reparations Section (VPRS), which assists the Registrar in taking all the necessary measures to communicate and consult with, as well as assist – upon application – the participation of, victims in the proceedings, thus giving effect to article 68 para. 3. Among the functions to be fulfilled by the Registrar, those enlisted in Regulations 86, 87 and 88 requires expertise in victims-related issues and are de facto within the scope of activities of the VPRS.

Owing to the practical difficulties of having victims represented at all stages of the 41
proceedings, the Regulations of the Court provide with the establishment of a quasi-independent body, the Office of the Public Counsel for Victims (OPCV), which is specifically devoted to the facilitation of the legal representation of victims. The safeguards contained in Regulation 81, paras. 2 and 3, stems from the consideration that the interests and rights of

purpose of assisting the Single Judge in her determination as to whether or not each victim applicant qualifies as victim pursuant to rule 85 of the Rules' (emphasis added): Cf. para. 34, *Prosecutor v. Ntaganda*, ICC-01/04-02/06-211, Decision on Victims' Participation at the Confirmation of Charges Hearing and in the Related Proceedings, PTC II Single Judge, 15 January 2014. The Single Judge implicitly admitted that the Rules have complicated the procedure relating to victims' applications. In the same decision, the Single Judge implicitly criticized the initial practice of the ICC relating to the application form for victims, which she reduced to a single page while fulfilling the requirements of the Statute and Rule 85 (*ibid.* at para. 6).

¹⁰⁴ Cf. *Prosecutor v. Lubanga*, ICC-01-04-01-06-462, Decision on the Arrangements for Participation of Victims a/0001/06, a/0002/06 and a/0003/06 at the Confirmation Hearing, Pre Trial Chamber I, 22 September 2006. In this pivotal decision, the PTC determined modalities for victims' participation deemed 'compatible with anonymity': anonymity was allowed in light of an evaluation of the worsened security situation on the ground and the connected inadequacy of any other protective measure. This condition led to some restrictions for victims a/0001 to a/0003, who were not allowed to add any elements of fact to the case when expressing their views and concerns, were given access solely to public documents in the case-file and permitted to participate in public hearings only, while the Chamber reserved the right to make exceptions to these limitations in exceptional circumstances. Victims were allowed under Rule 89(1) to intervene at the beginning and the end of the hearing, and victims' legal representatives had the possibility to request permission to intervene in public sessions on the confirmation of charges.

¹⁰⁵ 'Rehabilitation' is a form of reparations under article 75.

the victim would be best protected by an autonomous and neutral body which regards the victims' needs as paramount. The parties to the proceedings naturally place emphasis on prosecution and defence, not necessarily taking into account the perspective of the victim: Hence, the usefulness of the OPCV. However, these safeguards of quasi-independence are not sufficient to allow that a lawyer of the OPCV – who is recruited by, and receives remuneration exclusively from, the Court – would be able to act as independently as a lawyer outside the ICC institutional structure. Therefore, the norm of Regulation 80 para. 2, which states that '[t]he Chamber may appoint counsel from the Office of Public Counsel for victims' as common legal representative of a group of victims ex Rule 90 para. 3, contravenes the spirit of the principle of legal representation, and should have not been applied by the relevant Chamber beyond the limited scope of Regulation 81 para 4(b)¹⁰⁶.

- 42 In the first edition of this commentary, we had advocated for the establishment of one quasi-independent victims' office that would have served multiple functions, namely:
- a) acting as a liaison between the victim and the Courts' operations, inter alia
 - (i) facilitating the selection of the representative by the victims,
 - (ii) appointing capable and well-qualified persons to represent the victims during the proceedings (after having consulted with the relevant victims),
 - (iii) supporting her/his work at the seat of the Court, and
 - (iv) facilitating the communication between the representative and the victims (and vice versa);
 - b) informing the general public and victims about the proceedings of the Court.

The functions listed under letter a) are partially conferred by the Regulations and the Rules to the Registrar, assisted by the VPRS, and partially attributed by Regulation 81 to the OPCV. However, no single provision of these instruments covers the function under letter b) concerning the provision of information to the general public, which may include large number of victims of Rome Statute's crimes who have a right to be informed and access to justice, whereby communications to individual victims or identified groups of victims are covered in several regulatory provisions on notification (see below) and on protection/assistance.

- 43 The legal representatives of victims, either those freely appointed by the victims (Rule 90, para. 1) or those designated by the Registrar upon request of the relevant Chamber (Rule 90, para. 3), shall have the same qualifications as the counsel for the defence set out in Rule 22, para. 1. In respect to the practitioners appointed by the Court, it is submitted that priority should be given to experts in the field of human rights, international humanitarian law and international criminal law capable of offering both legal and psychosocial assistance and support, including psychological comprehension of trauma in the appropriate context of gender and culture¹⁰⁷.
- 44 Rule 91, para. 5 provide for legal aid to indigent victims in case of designation of a legal representative by the Court: 'A victim or group of victims who lack the necessary means to pay for a common legal representative chosen by the Court may receive assistance from the Registry, including, as appropriate, financial assistance.' The first decision to provide legal aid (*aide judiciaire*) was taken by the Pre Trial Chamber I in the Lubanga case.¹⁰⁸ In light of efficiency concerns, Rule 91, para. 5 has not been applied in several cases in which the

¹⁰⁶ See above mn. 28. Contrary to this opinion, ICC Chambers often deliberated on common legal representation through appointments of lawyers from the OPCV: see, for all, the decision on the two groups of the 922 victims admitted to participate in *Prosecutor v. Ntaganda*, ICC-01/04-02/06-211, Decision on Victims' Participation at the Confirmation of Charges Hearing and in the Related Proceedings, PTC II Single Judge, 15 January 2014.

¹⁰⁷ The expertise of legal representatives of victims should interface with, and directly refer to, the ability to provide for alternative modes of testimony, because part of the work of the victims representative will be to seek for the application of protective measures in order to ensure a psychological atmosphere conducive to their clients' involvement (including, but not limited to, testimony) in the proceedings, as well as adequate protection against physical and moral coercion (*cf.* article 68 paras. 1, 2, 3 and 5, and the relevant Rules).

¹⁰⁸ *Cf. Prosecutor v. Lubanga*, ICC-01/04-01/06-650, Décision du Greffier sur la demande d'aide judiciaire aux frais de la Cour déposée par la victime a/0105/06, Pre-Trial Chamber I, 3 November 2006. It is noteworthy to

relevant Chamber assigned a lawyer from the ICC-OPCV as common legal representative to one or more groups victims.

IV. Notification to victims and their legal representatives (Rule 92)

1. This rule on notification to victims and their legal representatives shall apply to all 45 proceedings before the Court, except in proceedings provided for in Part 2.
2. In order to allow victims to apply for participation in the proceedings in accordance with rule 89, the Court shall notify victims concerning the decision of the Prosecutor not to initiate an investigation or not to prosecute pursuant to article 53. Such a notification shall be given to victims or their legal representatives who have already participated in the proceedings or, as far as possible, to those who have communicated with the Court in respect of the situation or case in question. The Chamber may order the measures outlined in sub-rule 8 if it considers it appropriate in the particular circumstances.
3. In order to allow victims to apply for participation in the proceedings in accordance with rule 89, the Court shall notify victims regarding its decision to hold a hearing to confirm charges pursuant to article 61. Such a notification shall be given to victims or their legal representatives who have already participated in the proceedings or, as far as possible, to those who have communicated with the Court in respect of the case in question.
4. When a notification for participation as provided for in sub-rules 2 and 3 has been given, any subsequent notification as referred to in sub-rules 5 and 6 shall only be provided to victims or their legal representatives who may participate in the proceedings in accordance with a ruling of the Chamber pursuant to rule 89 and any modification thereof.
5. In a manner consistent with the ruling made under rules 89 to 91, victims or their legal representatives participating in proceedings shall, in respect of those proceedings, be notified by the Registrar in a timely manner of: (a) Proceedings before the Court, including the date of hearings and any postponements thereof, and the date of delivery of the decision; (b) Requests, submissions, motions and other documents relating to such requests, submissions or motions.
6. Where victims or their legal representatives have participated in a certain stage of the proceedings, the Registrar shall notify them as soon as possible of the decisions of the Court in those proceedings.
7. Notifications as referred to in sub-rules 5 and 6 shall be in writing or, where written notification is not possible, in any other form as appropriate. The Registry shall keep a record of all notifications. Where necessary, the Registrar may seek the cooperation of States Parties in accordance with article 93, paragraph 1 (d) and (l).
8. For notification as referred to in sub-rule 3 and otherwise at the request of a Chamber, the Registrar shall take necessary measures to give adequate publicity to the proceedings. In doing so, the Registrar may seek, in accordance with Part 9, the cooperation of relevant States Parties, and seek the assistance of intergovernmental organizations.

Rule 92 takes due regard of the importance of transmitting information to victims and their legal representatives in order to ensure that victims are aware of the development of the proceedings at all stages. Notification is instrumental to the realisation of the right enshrined in article 68 para. 3.

Para. 2 of Rule 92 serves as a check on the wide discretionary powers of the Prosecutor: all 46 decisions ‘not to initiate an investigation or not to prosecute pursuant to article 53’, shall be notified to victims, who could file with the judges a request to express their views and concerns¹⁰⁹. Any decision on the withdrawal of charges (after confirmation before the Pre-

mention that this decision applied to a legal representative of individual victims (of minor age) and not to a common legal representatives appointed by the Court for a group of victims.

¹⁰⁹ The legal representatives of Congolese victims of crimes allegedly committed by troops of Jean-Pierre Bemba’s Movement for the Liberation of Congo (MLC), who were participating in ICC proceedings on the

Trial Chamber) will have to be notified to victims under the inclusive provision of para. 5, while a specific duty of notification is enlisted in para. 4 concerning the hearing on the confirmation of charges ex article 61, which is one of the most important stages of the ICC procedure. Para. 5 of Rule 92 covers all the procedural acts of the parties and the Judges that may affect the rights and interests of victims participating in the proceedings. The subsequent para. 6 instead regards the duty of notification by the Registrar of all decisions taken by the relevant Chamber that governed the proceedings (Pre-Trial, Trial, Appeals or Review) to which the victims participated.

The *Handbook on Justice for Victims on the use and application of the United Nations Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power* of the United Nations Commission on Crime Prevention and Criminal Justice includes victim notification amongst the ways in which the justice system can demonstrate its recognition of, and respect for, the victim. At paragraph 2.4.1 it states:

‘[...] Notification entails that criminal justice authorities keep victims informed of the developments in their case. Research indicates that victims who are kept informed by authorities of the developments in their case are more likely to judge the justice procedure as fair and feel that they were treated by authorities with dignity and respect.’¹¹⁰

Rule 92 and other provisions on notification to victims in the Rules and the Regulations of the Court implicitly re-affirm the existence of two types of parties in the ICC process: the *necessary parties*, namely, the prosecution and the defence, and the *potential parties* (or participants), the victims through their legal representatives: victims are right-bearers and they participate after a free choice. Such a free choice may not be possible in the absence of information made available through notification.

V. Conclusion

- 47 The norms of the Rules of Procedure and Evidence reflect a compromise between two conflicting needs, the rationale of which is embedded in article 68: (i) the right of the victims to participate and be represented in the proceedings, and (ii) the practical requirements of an expeditious and efficient process, namely, a fair and impartial trial.

In cases in which the representation of large groups of victims is necessary, the victims’ representative(s) face the hard task of developing a relationship of trust and confidence with individuals and groups seeking redress for harm suffered as a result of serious crimes adjudicated before the Court. The main tool to ensure that communities of victimised individuals trust the judicial institution is the ability of the latter to communicate with its constituencies, the victims; hence, the centrality of outreach and communication to fulfil the mandate of the Rome Statute.

In this respect, both the institutional structures established within the Registry and individual representative(s) have to ensure that victims at all levels are constantly kept informed and have ready access to information on both pending trials and the work of the Court as a whole. This will render effective the victims’ right to apply for reparations under article 75 by enabling them to intervene in the appropriate time and manner. Reparations include restitution, compensation and rehabilitation¹¹¹.

situation in the DRC, asked the Prosecutor in June 2010 to explain his apparent decision not to prosecute Jean-Pierre Bemba, facing charges in the situation in CAR, for crimes committed on Congolese territory. Pre-Trial Chamber I decided in October 2010 to dismiss the victims legal representatives’ request on the ground that, in the absence of an explicit decision not to prosecute Bemba for crimes committed in Ituri ‘in the interests of justice’, it was considered that the Prosecutor’s investigation was still open: *Cf. Situation in the DR Congo*, ICC-01/04-582, Decision on the request of the legal representative of victims VPRS 3 and VPRS 6 to review an alleged decision of the Prosecutor not to proceed, PTC I, 25 October 2014.

¹¹⁰ Cf. UN Doc. E/CN.15/1998/CRP.4/Add.1, UN *Handbook* 43.

¹¹¹ See Article 75 in this Commentary.

In order to achieve ‘rehabilitation’ of the victims and their re-integration into society it is vital that justice is not merely done, but also ‘seen to be done’. Therefore, victims are recognised as victims throughout all stages of the judicial process on the basis of relevant charges, and they are granted the right to participate in it: this allows them to make a contribution to a transparent and fair trial.

Article 69 Evidence*

1. Before testifying, each witness shall, in accordance with the Rules of Procedure and Evidence, give an undertaking as to the truthfulness of the evidence to be given by that witness.

2. The testimony of a witness at trial shall be given in person, except to the extent provided by the measures set forth in article 68 or in the Rules of Procedure and Evidence. The Court may also permit the giving of *viva voce* (oral) or recorded testimony of a witness by means of video or audio technology, as well as the introduction of documents or written transcripts, subject to this Statute and in accordance with the Rules of Procedure and Evidence. These measures shall not be prejudicial to or inconsistent with the rights of the accused.

3. The parties may submit evidence relevant to the case, in accordance with article 64. The Court shall have the authority to request the submission of all evidence that it considers necessary for the determination of the truth.

4. The Court may rule on the relevance or admissibility of any evidence, taking into account, *inter alia*, the probative value of the evidence and any prejudice that such evidence may cause to a fair trial or to a fair evaluation of the testimony of a witness, in accordance with the Rules of Procedure and Evidence.

5. The Court shall respect and observe privileges on confidentiality as provided for in the Rules of Procedure and Evidence.

6. The Court shall not require proof of facts of common knowledge but may take judicial notice of them.

7. Evidence obtained by means of a violation of this Statute or internationally recognized human rights shall not be admissible if:

- (a) The violation casts substantial doubt on the reliability of the evidence; or
- (b) The admission of the evidence would be antithetical to and would seriously damage the integrity of the proceedings.

8. When deciding on the relevance or admissibility of evidence collected by a State, the Court shall not rule on the application of the State's national law.

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* The original version of this article was co-authored with Hans-Jörg Behrens in 1999. The current version was revised by Donald Piragoff with the assistance of Paula Clarke, of the Canadian Department of Justice. The opinions expressed here are solely that of the authors and do not necessarily reflect the views of the Government of Canada.

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A. Introduction/General remarks

I. Historical development

1. Paragraph 1 (an undertaking as to truthfulness)

Apart from the addition of the words 'of Procedure and Evidence' after the word 'Rules', paragraph 1 remained unchanged from article 44 para. 1 of the International Law Commission Draft Statute. However, the ILC Draft Statute did not grant the Court itself the power to punish false testimony before the Court¹. Article 70 para. 1 (a) of the Statute now gives the Court the jurisdiction to punish the giving of false testimony when an undertaking under article 69 para. 1 has been given. There was little discussion of this provision after the

¹ 1994 ILC Draft Statute, article 44, p. 120.

Preparatory Committee on the Establishment of an International Criminal Court decided to leave the form of the undertaking and any supplementary rules, such as the question of undertakings by children, to the Rules of Procedure and Evidence². In the drafting of sub-rule 66(2), consensus was reached on giving discretion to the Court to allow children or persons with an impairment to testify absent an undertaking. This was viewed as preferable to creating an arbitrary bar on such testimony or requiring corroboration. Consensus was achieved by making explicit reference to the 'beyond a reasonable doubt' standard for conviction in article 66, such that the Court could consider such evidence in the context of evaluating all of the evidence admitted.

2. Paragraph 2 (testimony shall be given in person)

- 2 Paragraph 2 did not have any counterpart in the 1994 ILC Draft Statute³. Following a general discussion of a number of procedural law issues at the March–April 1996 session of the Preparatory Committee, a number of proposals were made at its August 1996 session, which are the origins of paragraph 2. These included a proposal that witnesses shall in principle be heard directly and in person, unless a Chamber orders that the witness be heard by means of a deposition⁴, and a proposal that

‘a document, audio recording, or video recording containing a statement of a person other than the accused, which was given before a judge of the court of a State Party, is admissible in evidence when that person is not able to testify before the Court because of death, illness, injury, old age or other good cause’⁵.

The proposed article 44 was not considered again until the December 1997 session when a paragraph 1*bis* was added:

‘The testimony of a witness at trial shall be given in person, except to the extent provided by the measures set forth in Article 43 or in the rules of evidence. These measures shall not be [prejudicial to] [inconsistent with] the rights of the accused’⁶.

- 3 Debate in the Committee concerned the possibility of witnesses testifying without revealing personal data, and the Committee therefore added the link to the proposed article on protection of victims and witnesses but with a caveat regarding the rights of the accused. Shortage of time prevented any further discussion. At the March–April 1998 session, the second sentence of the present paragraph 2 was added to permit the reception of testimony through live or recorded video and audio technology, as well as the introduction of documents or written transcripts. Although some delegations had wanted to include in the Statute a list of the justifications or limitations concerning when electronic technologies could be used (*e.g.*, illness, injury, age or other justifiable reason), the decision was taken that these matters could be left for the Rules of Procedure and Evidence, or the jurisprudence of the Court. At the Rome Conference, there was again some discussion about including within the Statute the justifications for the use of technologically transmitted or recorded testimony, but the final decision was to confirm that these were matters of detail for the Rules or the Court to elaborate. The two options regarding the phrases ‘prejudicial to’ and ‘inconsistent with’ the rights of the accused were resolved uniformly in a disjunctive manner in a number of articles throughout the Statute where the same issue arose.

The debate over the optimal balance between the rights of the accused and the rights of victims and witnesses continued during the development of the Rules by the Preparatory Commission. The result was an approach to the use of protective measures in rule 87 that

² See Report of the Working Group on Procedural Matters, UN Doc. A/AC.249/1998/L.17, and UN Doc. A/AC.249/1998/WG.4/CRP.2.

³ See 1994 ILC Draft Statute, see note 1.

⁴ 1996 Preparatory Committee Report II, pp. 217 and 220.

⁵ *Ibid.*, p. 217.

⁶ Preparatory Committee Decisions Dec. 1997, p. 37.

emphasized protection of the identity or personal matters of witnesses and victims from press and public exposure rather than protection from disclosure to the accused. However, an element of ambiguity on the possible use of anonymous witnesses was preserved in rule 88 on special measures. While this rule is generally designed to assist vulnerable witnesses rather than protect them, the list of special measures available to the Court was made non-exhaustive and the rule permits *ex parte* and *in camera* hearings on the adoption of special measures.

Rule 68 on prior recorded testimony emerged from the Preparatory Commission in a form that would preclude the use of recorded testimony in the absence of a meaningful opportunity by the defence to directly examine the witness. This places more stringent conditions on the use of prior recorded testimony at the ICC compared to the practice of the *ad hoc* Tribunals.

3. Paragraph 3 (submission of evidence)

The original ILC Draft Statute had no provision similar to paragraph 3. During the 1996 Preparatory Committee, Germany proposed a new paragraph to what was then article 44⁷. When the Preparatory Committee debated the article for the first time, Germany reworded its proposal to read as follows:

‘The Court has the authority and duty to call all evidence that it considers necessary for the determination of the truth. The Court’s decision shall be based on its evaluation of the evidence and the entire proceedings’.

Some delegations believed, however, that the emphasis on the Court’s duty to call additional evidence was too strong. As the main point for the civil law countries was to ensure that the Court was not restricted to consider only that which was offered by the parties and could itself call evidence, the reference to ‘duty’ was dropped. While the first sentence was incorporated with this change in the Draft Statute for an ICC as article 69 para. 3⁸, the second sentence was thought to be better placed in the article dealing with quorum and judgment. It was incorporated there as the first sentence of article 72 para. 2⁹.

The issue of judicial authority to call evidence was often regarded as one of the main differences between civil and common law jurisdictions. In reality, the concepts in the two systems are not all that different. Even in common law jurisdictions judges have the authority to call evidence. Given the adversarial nature of the proceedings, however, they rarely exercise this authority. The difference is one of legal tradition and the perception of the role of the judge, rather than a strict difference of legal authority. In the context of the Statute, this paragraph became an indicator regarding the role that delegations wanted to give to the judges in trial proceedings. In the Preparatory Committee, it became clear that the majority of delegations were prepared to accept that the judges should have a more active role than in traditional adversarial proceedings.

During the Rome Conference, the emphasis of the paragraph shifted from the apparent controversy between civil and common law to the specific question of whether the Court should be allowed to call evidence or rather have the authority to order the parties to submit additional evidence. As the main effect of the provision was to confirm the Court’s ability to play an active part in that stage of the proceedings, the civil law countries accepted the change in the wording to authorize the Court to request the parties to submit additional evidence. In addition, Canada proposed a new first sentence to assist in clarifying the roles of the Court and the parties in the submission of evidence, which was added in the Conference¹⁰.

⁷ 1996 Preparatory Committee Report II, p. 207. The proposal read: ‘In order to determine the truth, the court shall, ex officio, extend the taking of evidence to all facts and evidence that are important for the decision. The court will decide on the taking of evidence according to its [free] conviction obtained from the entire trial’.

⁸ Preparatory Committee (Consolidated) Draft, article 69.

⁹ *Ibid.*, para. 72; in the final text the article was renumbered 74.

¹⁰ UN Doc A/CONF.183/C.1/WGPM/L.23.

- 6 The Rules of the ICTY have also recognized the need to incorporate some of the guiding principles of the civil law system into what is predominantly a common law framework in the Tribunal's procedure¹¹. Rule 98 ICTY provides as follows: 'A Trial Chamber may order either party to produce additional evidence. It may *proprio motu* summon witnesses and order their attendance'¹². It is unlikely that the lack of a similar *proprio motu* power for the judges of the ICC will make any practical difference, given the Court's power to order the production of evidence from the parties.

4. Paragraph 4 (relevance or admissibility)

- 7 Articles 19 and 20 of the *Nuremberg Charter* provided that the Tribunal shall admit any evidence which it deemed to have probative value, shall not be bound by technical rules of evidence and may require the parties to inform it of the nature of the evidence before ruling on its relevance¹³. This source appears to be the origin of the proposed article 44 para. 3 of the 1994 draft of the ILC's *Draft Statute* which provided: 'The Court may require to be informed of the nature of any evidence before it is offered so that it may rule on its relevance or admissibility'¹⁴.

During the Preparatory Committee, a number of proposals were made to recognise that relevancy should not be the sole determinant of admissibility and that other factors needed to be considered, including a fair trial, the rights of the defence and a fair evaluation of the testimony of a witness¹⁵. As early as 1996, there was also a commonly shared view that 'fundamental or substantive principles of evidence should figure in the Statute itself while secondary and subsidiary rules could appear in the Rules of the Court or other instrument. This approach would be more flexible since the latter could be more easily amended than the Statute and would also allow the Court the flexibility to adopt rules according to its practice and requirements'¹⁶.

Given the vast number of articles that needed to be debated, it was not until the Preparatory Committee session in March–April 1998 that this view was put into effect with a much simpler formulation that left all of the detail to be determined in the Rules of Procedure and Evidence. Proposed paragraph 4 provided that the 'Court may rule on the relevance or admissibility of any evidence in accordance with the Rules of Procedure and Evidence'¹⁷. However, it was by no means unanimous that this formulation was sufficient as many delegations were of the view that other fundamental principles should be included in the Statute, such as the non-admissibility of 'evidence where its probative value is substantially outweighed by its prejudice to a fair trial of an accused or to a fair evaluation of the testimony of a witness, including any prejudice caused by discriminatory beliefs or bias', and the 'exclusion of evidence of prior sexual conduct of a witness, evidence protected by the lawyer-client privilege, as well as other grounds of exclusion'. Additionally, 'many delegations also felt that the Rules should provide sufficient flexibility to enable the Court to rule on the relevance and admissibility of evidence where no other rule provides guidance on the standards to be applied'¹⁸.

¹¹ Bassiouni and Manikas, *The Law of the International Criminal Tribunal for the Former Yugoslavia* (1996) 955.

¹² Rules of Procedure and Evidence, as amended (adopted 11 Feb. 1994), International Tribunal for the Prosecution of Persons Responsible for Serious Violations of International Humanitarian Law Committed in the Territory of the Former Yugoslavia Since 1991, 2nd Sess., UN Doc. IT/32 (14 Mar. 1994) [hereinafter ICTY Rules].

¹³ Agreement for the Prosecution and Punishment of the Major War Criminals of the European Axis, 8 Aug. 1945, 82 UNTS 280.

¹⁴ 1994 ILC Draft Statute, p. 122.

¹⁵ 1996 Preparatory Committee Report II, pp. 214–217; Report of the Preparatory Committee on the Establishment of an International Criminal Court, UN GAOR, 53rd Sess., UN Doc. A/AC.249/1998/CRP.7 (1998), p. 131, fn. 15 [hereinafter: Report of the Preparatory Committee (1998)].

¹⁶ 1996 Preparatory Committee Report I, p. 60; Report of the Preparatory Committee (1998), see note 15, p. 131.

¹⁷ Report of the Preparatory Committee (1998), see note 15, p. 131.

¹⁸ Report of the Preparatory Committee (1998), see note 15, p. 131, fn. 15.

At the Rome Conference, the decision of the Preparatory Committee to leave everything to the Rules was revisited, and a number of the matters that had earlier been proposed for inclusion were added, but in a flexible manner which stated the underlying fundamental principles while leaving the detail to be determined in the Rules. A decision was made that some statements of principle were necessary to guide both the development of the Rules and the adjudication of the Court. For example, a particular provision on privilege was added as paragraph 5, with the details to be determined in the Rules. Paragraph 4 was amended to read as it is currently provided in the Statute, which provides a general principle that relevance is not the sole determinant of admissibility and that other factors need to be considered as well, such as *inter alia* the degree of probative value of the evidence and any prejudice that such evidence may cause to a fair trial or fair evaluation of the testimony of a witness. No specific or rigid standard such as 'substantially outweighed' was included, due to the desire to state principles, permit flexibility and leave the details for the Rules or the Court's own jurisprudence.

Maintaining the Statute's delicate balance in the development of the ICC Rules was a challenge. An initial French draft of rule 63, setting out the general provisions relating to evidence, would have established an overarching principle of admissibility for all evidence, effectively undoing the compromise reached in Rome¹⁹. After a June 1999 drafting meeting, the pendulum swung in the other direction, with a proposed version of the rule that would have obligated the Court to assess all evidence for the purpose of admissibility. At the second session of the Preparatory Commission, the current form of the rule was developed, which authorizes rather than obligates a Chamber 'to assess freely all evidence submitted in order to determine its relevance or admissibility in accordance with article 69'. At the fifth session of the Preparatory Commission, an attempt was made to include reliability as a factor to be freely assessed by a Chamber in determining relevance or admissibility. No consensus was reached on this proposal, with the result that the Rules are silent on the issue²⁰. ICTY judicial decisions, however, provide support for the view that an assessment of the *prima facie* reliability of evidence can form part of an inquiry into probative value²¹.

Rule 64 was drafted to clarify the procedure for challenging relevance or admissibility and to clearly state that a Chamber was not to consider evidence found to be irrelevant or inadmissible. It provides that such challenges must be made when the evidence is submitted to a Chamber or, exceptionally, immediately after the issue has become known. The Chamber can require that any challenge be made as a written motion, which must be communicated to all participants in the hearing unless the Court orders otherwise. A Chamber must give its reasons for any ruling on evidentiary matters.

The admissibility of evidence in cases of sexual violence was one of the most contentious issues for the Preparatory Commission in formulating the draft Rules, requiring months of extensive negotiations. Agreement was finally achieved in the form of rule 70 that prohibits the drawing of certain inferences based on sexual stereotypes, and rule 71, that makes evidence of prior or subsequent sexual conduct by a victim or witness inadmissible²². A special procedure for considering any evidence falling under rule 70 was elaborated in rule 72.

Rules 70-72 emerged after a sharp debate over what could constitute evidence of consent in circumstances that were inherently coercive. There was a parallel debate in the negotiation of the Draft Text of the Elements of Crimes. There also, drafters raised serious concerns about the relevance of consent to any charge of sexual violence in the context of war crimes or crimes against humanity.

¹⁹ See Piragoff, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 349, 351-352.

²⁰ Finalized draft text of the Rules of Procedure and Evidence, Report of the Preparatory Commission for the International Criminal Court, UN Doc. PCNICC/2000/1/Add.1 (2 Nov. 2000), rule 63.

²¹ *Prosecutor v. Stakić*, IT-97-24, Provisional Order on the Standards Governing the Admission of Evidence and Identification, Pre-Trial Judge, 25 Feb. 2002.

²² Rules 70 and 71 ICC. See also note 19 for a history of the negotiations.

In the final version of the *Draft Text of the Elements of Crimes*, lack of voluntary consent was not directly incorporated as an element for either crimes against humanity or war crimes. This provided additional support for delegations arguing that it was inappropriate and damaging to engage in an inquiry about purported consent in that such inquiries tend to blame and re-traumatise the victim. The final draft of the Rules created an approach that broadly prohibits this type of inquiry, while leaving a circumscribed discretion to the Court under rule 72 to admit some evidence of consent in exceptional circumstances.

The related issue of evidence of prior or subsequent sexual conduct of victims and witnesses is dealt with in rule 71. This rule provides that the Court shall not admit such evidence, subject to article 69 para. 4. The reference to article 69 may seem redundant, but in fact was inserted to signal a constructive ambiguity in the Rules. The drafters of the Rules did not want to create any explicit exceptions to this rule out of concern that any exception would invite abuse. However, by making the rule subject to the statutory provision, the Court retains a narrowly defined discretion to not apply the rule should they determine, in some exceptional circumstance, that it was impossible to reconcile the rule with their obligations under article 69 para. 4. In effect, the reference to article 69 is a subtle reminder to the Court that article 51 para. 4 requires the Court to prefer the Statute over the Rules in the event of an irreconcilable conflict and, in such case to conduct an analysis of the proffered evidence in the manner set forth in article 69 para. 4. Rule 72 provides that evidence of prior or subsequent sexual conduct cannot be admitted except through the procedural screening mechanism set out in the rule even though rule 72 makes no mention of rule 71. This is the case because rule 72 references sub-rule 70(d), which covers evidence of prior or subsequent sexual conduct.

In order to reach agreement on the approach taken in rules 70–72, negotiators included a provision in the explanatory note to the Rules indicating that the Rules do not affect the procedural rules for any national court or legal system for the purpose of domestic proceedings²³.

Returning to the more general issues involving probative value and relevance, it should be noted that the ICTY has extensively interpreted the meaning of these terms in the context of rule 89 *lit.* C and DICTY. Rule 89 *lit.* C of the ICTY provides that a ‘Chamber may admit any relevant evidence which it deems to have probative value’. Rule 89 *lit.* D specifically acknowledges that relevancy is not the sole determinant of admissibility and provides that a ‘Chamber may exclude evidence if its probative value is substantially outweighed by the need to ensure a fair trial’²⁴. ICTY decisions regarding relevance and probative value will likely prove influential with judges of the ICC and are referred to extensively in this chapter.

5. Paragraph 5 (privileges on confidentiality)

- 10 The discussions in the Preparatory Committee and in the Diplomatic Conference mainly focussed on the lawyer-client privilege. Several Delegations urged the recognition of other established privileges, such as the privilege on confidentiality with respect to the medical profession or to priests. There were attempts at finding a suitable definition that would include all these privileges²⁵. The Holy See proposed wording to the effect that all ‘classic privileges on confidentiality’ should be respected²⁶. In the end, it was felt that the term ‘classic’ privileges would add nothing to the rather shorter, but still open definition now contained in the text.

The Preparatory Commission extensively considered the parameters of the lawyer-client privilege in the development of rule 73. Sub-rule 73 para. 1 establishes that communications between the accused and his or her legal counsel are privileged, where made in the context of

²³ For a full discussion of the negotiating history of rules 70, 71 and 72, see Piragoff, *Evidence*, see note 19, 369.

²⁴ Rules 89 *lit.* C and 89 *lit.* D ICTY.

²⁵ Proposal submitted by the Holy See, UN Doc. A/CONF.183/C.1/AVGPiM/L.14; Proposal submitted by the Syrian Arab Republic, UN Doc. A/CONF.183/C.1/AVGPM/L.22.

²⁶ UN Doc. A/CONF.183/C.1/AVGPM/L.14.

their professional relationship, and where the accused has not already voluntarily consented to disclosure, either to the Court or a third party. In the latter case, the communication may be introduced through the testimony of the third party.

The Preparatory Commission continued the work begun in Rome of expanding the notion of privilege beyond the lawyer-client relationship. The final form of rule 73 creates a hybrid approach of listing specific additional privileges concerning communications while providing the Court with a principled framework for establishing the parameters of listed privileges and recognizing additional privileges beyond those enumerated. The criteria for a finding of privilege are outlined in sub-rule 73 para. 2 and require that the relationship in question in which the communication was made: 1) involve a reasonable expectation of privacy and non disclosure, 2) that confidentiality be essential to the type of relationship concerned, and 3) that recognition of the privilege would further the objectives of the Statute and Rules.

The listed classes of professional relationships in sub-rule 73 para. 3 benefit from a presumption of privilege. The listed categories comprise professional relationships with 1) a medical doctor, 2) a psychiatrist, 3) a psychologist or counsellor or 4) a member of a religious clergy. The professional privileges as a whole (excluding lawyer-client) require a finding by a Chamber that they are part of a class of relationships that meet the general criteria for privilege articulated in sub-rule 73 para. 2. This was intended to provide a Chamber with adequate discretion to define certain classes appropriately, especially that of 'counsellor'. A specific reference in sub-rule 73 para. 3 to relationships involving victims was included in order to highlight the particular importance of privilege in the context of support to victims.

The clergy privilege, while included in the list of professional privileges subject to judicial discretion, becomes mandatory, unless waived, if a Chamber finds that the communication took place in a context where sacred confession is an integral part of the practice of the religion concerned.

Another specific issue that preoccupied the Preparatory Commission was the privilege that should be accorded to the ICRC with respect to its operations under its statutes. Privilege for the ICRC was a live issue before the ICTY during the development of the Rules and had been the subject of an ICTY Trial Chamber decision that recognized the ICRC's right to confidentiality under international law²⁷. The Preparatory Commission accepted the existence of the privilege, but did not want to foreclose the possibility of obtaining evidence from this important source. The solution was to include a complex consultation procedure in the rule that recognized the privilege, but placed the onus on the ICRC to positively assert any privilege if the Court should request consultations with it on a particular request for ICRC information.

6. Paragraph 6 (judicial notice)

The wording of this paragraph has remained unchanged from article 44 para. 4 of the ILC Draft Statute. The provision is derived from article 21 of the Statute of the International Military Tribunal at Nuremberg. The only difference is that the Court 'may' take judicial notice whereas under the Nuremberg Statute the Court 'shall' do so²⁸. The Preparatory Commission did not draft any rules on judicial notice *per se*, although the provision for agreements as to evidence under rule 69 provide a vehicle for admitting facts and evidence that are not contested by either party.

It should be noted that rule 69 allows the Court to insist on a complete presentation of evidence, even where there is no dispute between the parties. Rule 69 reflects the role of the Court in establishing the historical record and, in particular, providing victims with a full

²⁷ *Prosecutor v. Simić et. al.*, IT-95-9, Decision of the Prosecution Motion under Rule 73 for a Ruling Concerning the Testimony of a Witness, 27 July 1999.

²⁸ There is no general standard for judicial notice in international adjudication. The International Court of Justice is silent on the issue in its rules. The ICTY has adopted the Nuremberg wording ('shall') in its rule 94 on judicial notice.

understanding of what occurred. This ‘truth commission’ role is a distinctive feature of the ICC and requires a Chamber to balance its concern for judicial efficiency with its responsibility for establishing the historical record. Such a balancing process may prompt a Chamber to take judicial notice in one context and decline to do so in another, even when the same facts are at issue.

7. Paragraph 7 (mandatory exclusion of evidence)

- 12 Neither the *Charters for the International Military Tribunals at Nuremberg* nor of the *Far East* contained any provisions for the formal exclusion of evidence, the collection of which violated human rights or the Charters²⁹. It appears that relevance and probative value were the determinants of admissibility³⁰.
- 13 The *Statute of the ICTY* also did not contain any formal exclusionary rule, but its *Rules* adopted by the judges contained a rule that provided that ‘A Chamber may exclude evidence if its probative value is substantially outweighed by the need to ensure a fair trial’³¹. The *ICTY Rules* underwent a number of revisions, and in 1995 an additional exclusionary rule was added to permit the exclusion of evidence that was ‘obtained by methods which cast substantial doubt on its reliability or if its admission is antithetical to, and would seriously damage, the integrity of the proceedings’³².
- 14 The ILC in its *Draft Statute for an International Criminal Court* and its *Commentaries* also provided for an exclusionary rule. The 1993 Draft provided an exclusionary rule triggered by the obtaining of evidence ‘directly or indirectly by illegal means which constitutes a serious violation of internationally protected human rights’³³. The 1994 Draft dropped the references to direct or indirect means and to internationally protected human rights, and instead founded a broader rule that evidence shall not be admissible if obtained ‘by means of a serious violation of this statute or other rules of intentional law’³⁴, presumably on the basis that human rights were incorporated by reference to both the statute and rules of international law.
- 15 During the sessions of the *Ad hoc* Committee on the Establishment of an International Criminal Court, a number of delegations expressed support for the ILC’s provision, but others expressed the view that ‘careful attention should be paid to the way in which the provision would operate in practice and it was suggested that the grounds for inadmissibility of evidence should be more narrowly circumscribed’³⁵. During the early debate in the Preparatory Committee, no firm theoretical basis or expression for the rule was evident. Proposals ranged from the ILC proposal, the rule of the *ICTY* to a number of variations thereof³⁶, as well as specific proposals concerning the obtaining of confessions³⁷. Concerns were also raised about the inter-relations between any exclusionary rule and whether the evidence had been obtained in accordance with national rules³⁸.
- 16 The issues were again considered at the Preparatory Committee’s session in December 1997 and four (disjunctive or conjunctive) philosophical bases for exclusion were posited: the means of collection of the evidence constituted a serious violation of the Statute or other rules of international law; substantial doubt would be cast on the reliability of the evidence

²⁹ Agreement 1945, see note 13; Proclamation by the Supreme Commander for the Allied Powers, 19 Jan. 1946, T.I. A.S. No. 1589.

³⁰ See Report of the International Law Commission to the General Assembly on the Work of its Forty-Fifth Session, UN GAOR, 48th Sess. Supp. No. 10, UN Doc. A/4S/10 (1993), p. 122.

³¹ Rule 89 *lit.* DICTY.

³² *ICTY Rules*, UN Doc. IT/32/Rev.3 (as revised 30 Jan. 1995), rule 95.

³³ 1994 ILC Report Draft Statute, article 48 para. 5, p. 123.

³⁴ *Ibid.*

³⁵ *Ad hoc* Committee Report, p. 36 at para. 84.

³⁶ 1996 Preparatory Committee Report II, p. 218.

³⁷ *Ibid.*, pp. 215 and 216.

³⁸ 1996 Preparatory Committee Report I, pp. 60–61, and Vol. II, p. 208.

due to the manner of its collection; the detrimental effect on the integrity of the proceedings that would result by the admission of the evidence; and/or the means of collection constituted a serious violation of internationally protected human rights or a violation of the rights of the defence³⁹. There was, therefore, no consensus on whether the basis of the rule should be the manner by which the evidence was collected (*i. e.* a violation of the Statute, a violation of rules of international law or a breach of internationally protected human rights) or the effects of such collection on other values such as the reliability of the evidence or the integrity of the proceedings. Neither was there consensus on how human rights should be defined or referenced. Several concerns were expressed about the inter-relation between the Court's adjudication and national law; in particular, whether the Court could or should consider national law in determining relevance or admissibility of evidence collected in a state. The ensuring debate resulted in a separate paragraph being proposed to address this particular concern (*i. e.* paragraph 8, *infra*)⁴⁰.

During the March–April 1998 session of the Preparatory Committee, debate continued primarily in informal sessions. A small informal working group, chaired by Canada, was established to develop consensus on the outstanding issues within article 69 and to report back to the Committee. After significant discussion, consensus emerged that the predicate event to the exclusion of evidence should be the means by which it was obtained (*i. e.* a violation of the Statute or internationally recognized human rights [or other relevant rules of international law]), but that the evidence should not be excluded unless the means of collection also had a detrimental effect on the reliability of the evidence or the integrity of the proceedings. The phrase 'internationally protected human rights' was also changed to 'internationally recognized human rights'⁴¹.

This formulation was subsequently adopted by the Rome Conference, but with the deletion of a reference to the phrase 'other relevant rules of international law' as being a predicate event to exclusion. Concerns were expressed that this phrase was too vague and might incorporate many rules of public international law that had little to do with human rights or the provisions of the Statute. Some discussion also occurred over the qualifiers to the reference to human rights. The basic philosophical structure of the provision, however, was not altered in light of the consensus achieved in the Preparatory Committee in March–April 1998⁴².

Another change that took place at Rome broadened the scope of the exclusionary rule. Up until the Rome Conference, the draft language required that any violation have the effect of both casting substantial doubt on the reliability of evidence AND damaging the integrity of the proceedings. At the Rome Conference, these effects requirements were made disjunctive, making it possible to invoke the exclusionary rule if either 7(a) or 7(b) alone was the effective result of the violation.

8. Paragraph 8 (application of national law)

During the course of debate in the Preparatory Committee on article 44 para. 5 [now article 69 para. 7], the question was raised regarding the inter-relation between the Court's ability to exclude evidence on the basis of a violation of the Statute or human rights and the fact that the evidence may have been obtained in accordance with the national law of the state in which it was collected, likely by the state's own authorities. A few delegations raised the question of whether the Court would be required to inquire whether such evidence had been obtained in accordance with national law, which might necessitate the Court to adjudicate the national law. 'It was suggested that a mechanism should be created whereby the Court, in cases of allegations of evidence obtained by national authorities by illegal

³⁹ Preparatory Committee Decisions Dec. 1997, p. 38.

⁴⁰ *Ibid.*

⁴¹ See discussion under Part B, mn. 65 *et seq.*

⁴² *Ibid.*

means, could decide on the credibility of the allegations and the seriousness of the ‘violations’⁴³. On the other hand, it was also suggested that the Court should presume that the national authorities acted in accordance with their own domestic provisions, but that such presumption could be challenged and, if so, the Court could refer the question of compliance to the national courts for a decision with a transmission of that decision back to the Court⁴⁴. A proposal giving effect to part of this suggestion was included into the Statute, within brackets, at the December 1997 session of the Preparatory Committee⁴⁵.

- 20 According to another view which was widely supported, ‘the Court should not get involved in intricate inquiries about domestic laws and procedures and it should rather rely on ordinary principles of judicial co-operation’⁴⁶. It should apply international law and should exclude evidence on the basis of a violation of international standards, regardless of what the national standards might be concerning the manner of its collection. In support of this view, a concern was raised that the Court would be interfering with the sovereignty of a State if it were to adjudicate a question of national law, as opposed to applying its own law (*i. e.* the applicable law pursuant to article 21) to the facts regarding the manner of collection of the evidence. This view gained support and in the March–April 1998 session of the Preparatory Committee the previous proposal was deleted and replaced by a proposal which provided that, ‘when deciding on the relevance or admissibility of evidence collected by a State, the Court shall not rule on [, but may have regard to,] the application of the State’s national law’⁴⁷. The outstanding issue was whether the Court may, nevertheless, have regard to the application of the national law in making its decision on relevance and admissibility.
- 21 At the Rome Conference the bracketed reference to having regard to national law was deleted. While some delegations argued that it might assist the Court to understand why the national authorities acted in the manner in which they did, especially if they acted in accordance with national law, other delegations believed that this could be considered by the Court as a factual matter without any express reference to the Court being able to have regard to the national law. Concerns were also expressed that any explicit references to, or applications of, national law should be governed only by the process outlined in article 21 para. 1 (c). A reference to national law in article 69 could lead to specialized interpretations of applicable law in the evidentiary context, a result that was not desired by the drafters of the Statute.

II. Purpose

- 22 As noted in the section on historical development, a decision was taken that the Statute should only contain the fundamental principles governing evidence, and that the details, secondary and subsidiary rules should be further elaborated in the Rules and through the interpretations and adjudication of the Court. ‘This approach would be more flexible since the latter could be more easily amended than the Statute and would also allow the Court the flexibility to adopt rules according to its practice and requirements’⁴⁸.

In the course of drafting the Rules, the Preparatory Commission faced a similar dilemma in deciding what needed to be included in the Rules and what would be better left to practice directions and any regulations of the Court. Here again, the goal of flexibility precluded the creation of a comprehensive rule book. Instead, the Preparatory Commission sought to provide additional guidance primarily in those areas where discussion at Rome and within the Preparatory Commission had revealed unresolved tensions touching on basic principles and judicial values. As a result, the rules that relate to article 69 provide detailed evidentiary

⁴³ 1996 Preparatory Committee Report I, p. 60.

⁴⁴ 1996 Preparatory Committee Report II, p. 208.

⁴⁵ Preparatory Committee Decisions Dec. 1997, p. 38.

⁴⁶ 1996 Preparatory Committee Report I, pp. 60–61.

⁴⁷ Report of the Preparatory Committee (1998), see note 15, p. 132.

⁴⁸ 1996 Preparatory Committee Report I, p. 60.

rules in a select number of areas and are silent in others where Commission members were prepared to rely on the discretion of the Court.

B. Analysis and interpretation of elements

I. Paragraph 1

Rule Cross-Reference: rule 66 (solemn undertaking), rule 171 (refusal to comply).

1. ‘Before testifying’

The witness shall give the undertaking before starting to give evidence. The scope of the provision is to enhance the reliability of the testimony. The failure to give the undertaking before testifying does not render the evidence inadmissible. The witness will, however, not be under an obligation as mentioned in article 70 para. 1 (a) and will therefore not be liable for punishment for giving false testimony. The probative value of the statement will thus be diminished and the Court will be entitled to take this into account when considering the value and weight of the evidence. Refusal to give the undertaking without good reason may also amount to misconduct under article 71 para. 1 of the Statute. 23

2. ‘undertaking’

The form of the undertaking is provided by rule 66: ‘I solemnly declare that I will speak the truth, the whole truth and nothing but the truth’. This form is identical to that of the ICTY (rule 90 *lit.* A) and takes into account the fact that some religious beliefs do not recognize the taking of an oath. National legislation of many States accommodate this concern by providing for an affirmation of the truth of testimony in a way that still alerts the conscience of the witness to the seriousness of the occasion⁴⁹. The solemn declaration to speak the truth also enables the Court to punish a witness who gives false testimony. The Court must inform the witness of the offences under article 70 in order to establish its authority to punish a witness who gives false testimony. Offenders are liable to imprisonment for up to five years under article 70 or a fine of not more than € 2,000 per occurrence based on rule 171. 24

A child or a person with an impairment may testify without an undertaking so long as they are able to communicate their evidence and understand the meaning of a duty to speak the truth. Unlike sub-rule 90 *lit.* C ICTY, rule 66 does not prohibit a Chamber from convicting based solely on child testimony or the testimony of impaired persons admitted without an undertaking, so long as the judges are convinced of guilt beyond a reasonable doubt.

II. Paragraph 2

Rule Cross-Reference: rule 65 (compellability), rule 67 (audio or video-link technology), rule 68 (prior recorded testimony), rule 69 (evidence by agreement), rule 86 (general principle – victims and witnesses), rule 87 (protective measures), rule 88 (special measures), rule 91 (participation by victim’s representatives in proceedings).

1. ‘The testimony of a witness at trial shall be given in person’

The requirement for testimony in person reflects the desire that the primary source of evidence of a witness (*i.e.* his or her own testimony presented before the Court) should be available for the purposes of the trial. This permits the best opportunity for the parties to 25

⁴⁹ 1994 ILC Draft Statute, article 44, p. 120. Examples of national legislation are the United Kingdom, Oaths Act § 5 (1); Germany, *Code of Criminal Procedure* § 66 d.

examine the witness and for the Court to ask questions and evaluate the demeanour and credibility of the witness. It also furthers the right of the accused ‘to examine, or have examined, the witnesses against him or her and to obtain the attendance and examination of witnesses on his or her own behalf under the same conditions as witnesses against him or her’, as guaranteed in article 67 para. 1 (e). Indeed, as confirmed by the Trial Chamber in *R. v. Lubanga*, ‘[t]he statutory framework of the Court establishes the clear presumption that the evidence of a witness at trial will be given orally’.⁵⁰

In the *Prosecutor v. Jean-Pierre Bemba Gombo*⁵¹, Trial Chamber III ruled that a presumption of orality does not preclude the admission of non-oral evidence.

Furthermore, the Majority is of the view that nothing in the ICC legal framework prevents the Chamber from *prima facie* admitting non-oral evidence, whether written, audio, visual. According to the Statute and the Rules, a Chamber can rely on all types of evidence, as several legal provisions facilitate evidence being given in writing, orally or by means of video or audio technology. In the view of the Majority, the Statute only envisages a presumption in favour of oral testimony, but no prevalence of orality of the procedures as a whole. According to the Trial Chamber III, although it might be argued that such a prevalence of orality could be inferred from the first sentence of Article 69(2) of the Statute, the Majority stressed that the rule has several exceptions, and the same Article gives the Court the discretion (‘may also’) to permit the giving of recorded testimony or the introduction of documents or written transcripts.

The Court’s authority to require the attendance of witnesses is provided by article 64 para. 6 (b) and (d). Rule 65 acknowledges the exceptions to the power of the Court to compel testimony, which are set out in rules 73, 74, and 75 on privileges. It also asserts the Court’s authority to impose fines on individuals present before it who refuse to testify without legitimate excuse (not to exceed € 2,000 per day, as provided in article 71 and rule 171).

2. ‘except to the extent provided by the measures set forth in article 68’

- 26 The general requirement for live-testimony in the courtroom is subject to exceptions. The first involves the implementation of protective measures authorized in article 68. Indeed these exceptions to the presumption of orality were also noted by the Trial Chamber in the *Lubanga* decision cited above.⁵² Under article 68 para. 1, the Court is under a general obligation to ‘take appropriate measures to protect the safety, physical and psychological well-being, dignity and privacy of victims and witnesses’. As an exception to the principle of public hearings, paragraph 2 of that article specifically authorizes a Chamber of the Court to allow the presentation of evidence by electronic or other special means, particularly in the case of a victim of sexual violence or a child who is a victim or a witness. Paragraph 1 does not specify any particular measures, leaving it to the discretion of the Court to order protective measures that it considers appropriate, pursuant to paragraph 1 and article 64 para. 6(e). The Court must take into account the Rules, applicable law, and any advice received from the Victims and Witnesses Unit under article 68 para. 5.

Indeed, in another decision by the Trial Chamber III in the *Gombo* trial, it was confirmed that the presumption of orality does not require that it be given by way of live testimony and that the Statute and the Rules afford the Court a broad discretion, subject to Rule 67, to use audio or video technology.⁵³ The Trial Chamber III also confirmed that one of the relevant criteria for whether or not a person may give *viva voce* evidence by means of audio or video technology is the witness’s well-being and personal circumstances.

⁵⁰ *The Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06, Decision on the Prosecution’s Application for admission of four documents from the bar table pursuant to Article 64(9), 16 December 2010 at para 12.

⁵¹ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, ‘Decision on the admission into evidence of materials contained in the prosecution’s list of evidence’, 19 November 2010.

⁵² See note 50 at para 12.

⁵³ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, ‘Public redacted decision on the ‘Prosecution request to hear Witness CAR-OTP-PPPP-0036’s testimony via video-link’, 3 February 2012 at para 5.

To implement article 68 in the evidentiary context, rule 67 allows witnesses to testify by audio or video link. The technology used must allow the Court and all parties to examine the witness, and the venue of the witness must be conducive to the needs of the witness and the giving of truthful and open testimony. Rule 87 para. 3 (c) permits the alteration of the visual or sound presentation of a witness. Such distortions may dilute the right of accused persons to confront their accuser and can only be used in situations where the safety and privacy rights of a witness are in question and after the accused has had an opportunity to be heard on the issue.

Rule 87 establishes the procedure for implementing appropriate protective measures for witnesses. It permits the withholding of the identity of witnesses from the public and holding some proceedings *in camera*, departing from the principle of a public trial in order to safeguard the privacy and security rights of the witnesses. The protective measures contemplated in rule 87 are intended to shield the identity or personal matters of a victim or witness from exposure to the public and the media rather than from disclosure to the accused. This analysis is supported by the procedure in rule 87 that prohibits the *ex parte* consideration of a motion for protective measures. The involvement of the accused in any decision on protective measures under rule 87 would likely reveal to him or her the identity of the victim or witness concerned.

The Rules do not, however, completely forbid protective measures that might diminish the capacity of the accused to confront witnesses, including the possible use of anonymous witnesses. Rule 88 allows the Court to impose 'special measures' following a motion that can be served under seal and considered in a hearing that may be held *in camera* and/or *ex parte*. While the special measures referred to in rule 88 do not include withholding the identity of a witness from the accused, they are not an exhaustive listing, nor does the rule explicitly rule out such a measure. On the other hand the measures included in rule 88 are clearly focused on assisting vulnerable witnesses to testify rather than protecting them as is the case with rule 87. The ambiguity surrounding this issue was purposeful. The Preparatory Commission was divided on the issue, with some countries, notably the Netherlands and Italy, supporting the use of anonymous witnesses under controlled conditions. On the other hand, a large number of other participants in the Preparatory Commission vehemently objected to the notion of anonymous witnesses⁵⁴.

Since any procedure to shield the identity of a witness from the accused will be a protective measure, it is open to the defence to argue that the procedure under rule 87 must be used. However, an ICTY Trial Chamber has ruled that 'as a matter of practice and in accordance with common sense, applications by either party for protective orders are determined on an *ex parte* basis where the persons to be protected would otherwise be identified'⁵⁵. A similar rationale could be used to justify using the special measures procedure under rule 88 where the witness has significant cause to fear disclosure to the accused.

The evidentiary measures in the Rules for the implementation of article 68 must be considered in light of the jurisprudence of the ICTY. The ICTY, in the *Tadić* case, initially took an expansive approach to witness protection, even approving the use of anonymous witnesses. The test outlined in *Tadić*⁵⁶ continues to be applied by the ICTY, but in its more recent judgements, particularly in the *Blaskić* trial, it has moved away from anonymous witness testimony. The *Blaskić* Trial Chamber articulated the following approach to competing rights:

⁵⁴ See Fernandez de Gurmendi, *Victims and Witnesses*, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 427, 351.

⁵⁵ *Prosecutor v. Simić et al*, IT-95-9, Decision on (1) Application by Stevan Todorovic to Re-Open the Decision of 27 July 1999, 28 Feb. 2000.

⁵⁶ This test requires first, that there must be a real fear for the safety of the witness. Second, the Prosecutor must demonstrate the importance of the witness to proving the counts of the indictment to which the evidence relates. Third, there must be no evidence to suggest that the witness is untrustworthy. Fourth, the Tribunal itself is not in a position to offer protection to the witnesses or their families after receiving their testimony. *Prosecutor v. Tadić*, IT-94-I-T, Decision on the Prosecutor's Motion Requesting Protective Measures for Victims and Witnesses, 10 Aug. 1995, para. 77.

‘[T]he victims and witnesses merit protection, even from the accused, during the preliminary proceedings and continuing until a reasonable time before the start of the trial itself; from that time forth, however, the right of the accused to an equitable trial must take precedence and require that the veil of anonymity be lifted in his favour, even if the veil must continue to obstruct the public and the media’⁵⁷.

In the *Brđanin & Talić* case, the ICTY noted that ‘the rights of the accused are made the first consideration, and the need to protect victims and witnesses is a secondary one’⁵⁸. The judges in this case also raised the standards for what could be considered exceptional circumstances sufficient to warrant witness anonymity, making it clear that a general climate of intimidation was insufficient justification.

3. ‘or in the Rules of Procedure and Evidence’

- 27 The second general exception to the requirement for in-person testimony is the Rules. In addition to their role in implementing article 68 (rules 67, 68, 87, 88), the Rules also promote judicial economy and the greatest possible access to evidence of probative value consistent with the rights of the accused (rules 67, 68 and 69).

Rule 69, allowing the admission of evidence by agreement between the parties, covers witness testimony, documents and physical evidence. It will be an important tool for the Court to use in ensuring an expeditious trial and promoting judicial economy. One of the major problems in the case management by the Yugoslavia and Rwanda Tribunals has been the extensive time taken by the parties to prove matters of fact in a particular case that should not really have been in dispute.

However, in recognition of the role of the Court in establishing the historical record as well as judging the individual case, rule 69 permits the Court to require a complete presentation of evidence despite any agreement. It should also be noted that victims may also be represented at trial and may, with permission from the Court under sub-rule 91 para. 3, question witnesses or have the witnesses questioned by the Chamber on their behalf. The discretion given to a Chamber by both rules 69 and 91 suggest that agreements as to evidence will not automatically rule out in-person testimony relating to agreed facts.

A major barrier to in-person testimony occurs when a witness is prevented from participating in a proceeding by his or her state of residence. It should be noted that both the ICTY and the ICTR have placed significant restrictions on the use that can be made of deposition evidence in such cases, even where defence counsel is provided with an opportunity to question the witness⁵⁹. The ICTR has also required that parties exhaust all their options before requesting testimony by deposition⁶⁰. At the ICC, access to testimony in these circumstances will be even more restrictive. Article 56 (unique investigative opportunity) and rules 67, 68 and 69 are the only explicit provisions that allow for the introduction of testimony from such witnesses.

⁵⁷ *Prosecutor v. Blaskić*, IT-95-14-PT, Judgement, 3 Mar. 2000, para. 50.

⁵⁸ *Prosecutor v. Brđanin & Talić*, IT-99-36, Decision on the Motion by the Prosecution for protective Measures, Trial Chamber, 3 July 2000, para. 20.

⁵⁹ See *Prosecutor v. Naletilić and Martinović*, IT-98-34-PT, Decision on Prosecutor’s Motion to Take Depositions for Use at Trial (rule 71), 10 Nov. 2000. The Trial Chamber in the ICTY noted that judicial discretion to use depositions would be exercised where ‘the witness proposed for deposition will not present eyewitness evidence directly implicating the accused in the crimes charged, or alternatively, their evidence will be of a repetitive nature in the sense that many witnesses will give evidence of similar facts’. See also *Prosecutor v. Niyitegeka*, ICTR-96-14-T, Decision On The Prosecutor’s Amended Extremely Urgent Motion For The Deposition Of A Detained Witness Pursuant To Rule 71, 4 Oct. 2002, [hereinafter *Niyitegeka*, Decision on the Deposition of a Detained Witness, 4 Oct. 2002].

⁶⁰ See *Niyitegeka*, Decision on the Deposition of a Detained Witness, 4 Oct. 2002: In such cases, the Chamber should hear the direct testimony of the witness in order to assess the witness’s demeanour. In addition, such evidence should be given in the presence of the Accused; the presence of Accused’s Counsel is insufficient in this regard.... Even if ‘exceptional circumstances’ were found to exist, the Chamber is not inclined, in the present case, to receive by way of deposition evidence directly incriminating the Accused, given in his absence and without his consent.

The third general exception to in-person testimony is testimony imported from an article 56 procedure. The absence of a reference to this exception in article 69 may have been an oversight or it may imply that testimony admitted under article 56 is deemed to be in-person testimony for trial purposes by operation of the Statute.

4. ‘*viva voce* (oral) or recorded testimony of a witness by means of video or audio technology’

The second sentence of article 69 para. 2 specifically provides that either live or recorded testimony of a witness can be presented by means of video or audio technology. This specific authority is separate from the authority provided in the exceptions in the first sentence of paragraph 2, which refers to protective measures for victims and witnesses in article 68. This redundancy clarifies the availability of this type of technology for circumstances where the protection of vulnerable victims and witnesses is not at issue. Concerns for illness, injury, age or other justifiable reasons for not being present physically at the trial location are thereby included. The Trial Chamber has held that one of the relevant criteria to be considered is the witness’s personal circumstances, including logistical difficulties in arranging for the witness to testify in person.⁶¹ It also permits the giving of recorded testimony, which could be applicable in situations where the witness dies prior to trial or is incapable of testifying at the time of trial. This provision should be read with special regard to article 56 (unique investigative opportunity), rule 67 on audio and video links, and rule 68 on prior recorded testimony. Article 56 specifically provides for the taking of evidence under the direction of the pre-trial Chamber where there is a unique opportunity to take testimony or a statement from a witness who may not be available subsequently for the purposes of trial. Article 56 includes its own procedural safeguards, which are not identical to those provided by rule 68. For example, the Pre-Trial Chamber has the discretion in an article 56 procedure to appoint counsel to represent defence interests during depositions. Rule 68 reserves this role for the defence itself during the trial.

The article 56 procedure comes into play when a potential witness is ill or, for whatever reason, may not be available for trial. The Rules for the ICTY and ICTR do not have a comparable procedure, but allow the admission of prior statements of such witnesses where there are adequate indicia of reliability. Rule 92*bis* ICTY gives the tribunal broad discretion to introduce prior recorded testimony without the opportunity for cross-examination, subject to the right of all parties to be heard on the matter. In general, the ICTY restricts the use of such evidence to matters other than the acts or conduct of the accused, although this restriction does not apply in the case of recorded testimony by a deceased, disappeared or disabled witness⁶².

In a clear departure from the approach of the *ad hoc* Tribunals, the ICC Rules do not include any alternative route for admitting prior recorded testimony outside the protections of article 56 or rules 68 and 69. Recorded witness statements can only be admitted pursuant to rule 68 if both the Prosecutor and defence had the opportunity to examine the witness at the time they were recorded or if the witness adopts the testimony at trial and is available for examination by the parties. Examination by someone of like interest is not sufficient under the ICC Rules. In contrast, the ICTY takes into account whether or not testimony given in a separate proceeding was subject to examination by an accused with ‘like interests’ in deciding whether or not to admit such testimony. A fuller discussion of this difference between the *ad hoc* Tribunals and the ICC is provided below at mn. 30 *et seq.*

Rule 67 provisions for audio and video link testimony can be used by the Court to overcome logistical problems. It requires that the Prosecutor, the defence and the Chamber itself be able to examine the witness at the time of testimony and must ensure that the venue

⁶¹ See *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01-05-01.08, Decision on the ‘Submission on the remaining Defence evidence’ and the appearance of Witnesses D04-23, D04-26, D04-25, D04-36, D04-29, and D04-30 via video-link, 15 August 2013, para 10.

⁶² Rule 92*bis* ICTY.

for the testimony is appropriate. While the preference for in-Court testimony is explicit, the Court has the discretion to use audio or video links to overcome logistical problems.

The ICTY established general conditions and guidelines for the use of audio or video link technology which will provide the Court with important guidance beyond that contained in the Statute and Rules. Given the preference for in-person testimony, the ICTY has required that the defence or prosecution satisfy certain threshold requirements before using such technology. These include: a) the testimony of the witness is shown to be sufficiently important to make it unfair to proceed without it; b) the witness is unable or unwilling for good reasons to come to the tribunal; and c) the accused will not thereby be prejudiced in his or her right to confront the witness⁶³. The Tribunal has also prescribed guidelines to ensure that testimony given by video-link is practicable and reliable. These guidelines include matters such as the choice of venue for the recording and transmission, the appointment and attendance of officers to ensure the testimony is given freely and voluntarily, the ability for the witness and the questioner to see each other, and subjecting the witness to the solemnity of the proceedings, including liability for perjury, as if the witness had given evidence within the courtroom⁶⁴.

The ICTY has held that 'video-conferencing is, in actual fact, merely an extension of the Trial Chamber to the location of the witness' and 'the accused is therefore neither denied his right to confront the witness, nor does he lose materially from the fact of the physical absence of the witness'. The procedure permits the parties to examine and cross-examine the witnesses, and the judges can ask questions and observe the demeanour of the witness. However, the ICTY has acknowledged that 'the evidentiary value of testimony provided by video-link is not as weighty as testimony given in the courtroom' due to the lack of proximity of the witness to the solemnity of the courtroom and the inability to view persons or parts of a room outside the focus of the camera⁶⁵.

5. 'introduction of documents or written transcripts'

- 29 Explicit authority in the Statute to permit the introduction of documents and written transcripts is in accord with the general philosophy of article 69 to avoid overly technical rules of evidence, such as those relating to the admissibility of documents in a common law system⁶⁶. This paragraph permits their introduction and their relevance and admissibility is governed by paragraph 4, subject to the Rules.

There is no general rule prescribing how documents or physical evidence are to be placed in evidence. The Court is thus left to apply its discretion under article 69 para. 4, as to the relevance or admissibility of such evidence. The *ad hoc* Tribunals have required, as a condition of introduction that documents be said or adopted by a witness capable of vouching for the documents' authenticity. An ICTY Trial Chamber has ruled that concern about the authenticity of a document goes to weight rather than admissibility unless the document lacks probative value⁶⁷. Prosecution and defence counsel appearing before the ICC will be able to challenge a document through examination of the adopting witness or by

⁶³ *Prosecutor v. Delalić, Mucić, Delić and Landžo*, IT-96-21, Decision on the Motion to allow K, L, and M to give their Testimony by Means of video-link Conference, 28 May 1997, para. 17 [hereinafter *Delalić et al.*, Decision on video-link, 28 May 1997]. See also *Prosecutor v. Tadić*, IT-94-1-T, Decision on the Defence motions to summons and protect defence witnesses, and the giving of evidence by video-link, 25 June 1996, para. 19 [hereinafter: *Tadić*, Decision on video-link, 25 June 1996].

⁶⁴ *Delalić et al.*, Decision on video-link, 28 May 1997, see note 58, paras. 15 and 18. See also *Tadić*, Decision on video-link, 25 June 1996, see note 58, para. 21.

⁶⁵ *Delalić et al.*, Decision on video-link, 28 May 1997, see note 58, para. 21. See also *Tadić*, Decision on video-link, 25 June 1996, see note 58, para. 22.

⁶⁶ E.g. rules relating to hearsay and the best evidence rule. The ICTY Appeals Chamber noted in the *Aleksovski* decision that 'it is well settled in the practice of the Tribunal that hearsay evidence is admissible'. This will also be true of the ICC Trial Chamber.

⁶⁷ See *Prosecutor v. Blaskić*, IT-95-14, Decision on the Defence Motion for Reconsideration of the Ruling to exclude from Evidence authentic and exculpatory Documentary Evidence, 30 Jan. 1998, paras 10–11.

requesting a ruling on admissibility or relevance under the procedure created by rule 64. At this hearing, the Court can apply article 69 para. 4, and take into account any circumstances surrounding the origins, contents and/or chain of custody.

Rule 68 governs the introduction of written transcripts and other documented evidence of prior testimony. It creates a requirement that both the prosecution and defence must have an opportunity to examine the witness who provided the testimony, either at the time the testimony was taken or at the point the recorded testimony is introduced into evidence. As noted above, an exception to rule 68 is the procedure under article 56 for taking testimony when a unique investigative opportunity arises. Transcripts from article 56 proceedings will be admitted according to the safeguards provided in article 56 itself.

In the *Prosecutor v. Lubanga* trial, the Trial Chamber I discussed the introduction of evidence other than oral evidence, in particular, written statements such as prior written testimony, taken in accordance with Rules 111 and 112. The Trial Chamber recognized that while oral testimony is generally preferable, there are material advantages in having evidence read, in whole or in part, especially in terms of efficiency and unnecessary repetition of evidence. However, in any analysis, the right of the accused to a fair trial must not be undermined by the admission of prior written testimony, and this right will always trump other concerns such as efficiency.⁶⁸ Rule 68 ICC does not make any concessions for relaxing the standards for admission of transcripts from other trials even where the evidence will be used to prove issues other than the acts or conduct of the accused. The Preparatory Commission could not achieve consensus on this point. A proposal was drafted that would have allowed transcripts to be admitted on consent by the parties. However, this was deleted during the June 2000 meeting of the Commission because the consent requirement made it redundant with the provisions of rule 69 (evidence by agreement). Rule 69 and article 69 para. 6 (judicial notice) do provide vehicles for bringing uncontroversial transcripts.

Rule 68 is more restrictive than the comparable rules of the ICTY. The ICTY Rules provide for a number of specific exceptions to the principle of live testimony. Examples of these exceptions include prior statements by deceased witnesses and the use of transcripts from other trials that go to the proof of a matter other than the acts and conduct of the accused⁶⁹. Transcripts from other trials have been used before the *ad hoc* Tribunals to address such issues as whether or not a state of war existed at a particular place and time, troop movements and the like⁷⁰. The negotiations in the Preparatory Commission make it clear that the stricter standard incorporated in rule 68 was deliberate.

The possibility exists that a Chamber of the ICC could use its power of judicial notice (article 69 para. 6) or its general discretion to consider all relevant and admissible evidence (rule 63) to circumvent the strict standard in rule 68. However, this is unlikely. In the first place, the Court would have to satisfy itself that the rights of the accused would be respected⁷¹. In the second place, as a general rule of law, a court cannot use a broad discretionary power to circumvent the specific requirements of a relevant rule. An ICTY Appeals Chamber has noted that this renders the safeguards in the more restrictive rule meaningless⁷². This same Appeals Chamber did not dispute that non-compliance with 'technical-procedural' requirements should not categorically preclude admissibility, but it did find that procedural requirements are not presumptively technical and are a necessary

⁶⁸ *Prosecutor v. Lubanga*, ICC-01/04-01/06, Decision on the prosecution's application for the admission of the prior recorded statements of two witnesses, 15 January 2009 at paras 18- 21.

⁶⁹ Rule 92bis lit. C and D ICTY. The ICTY's approach to prior recorded testimony has evolved over time and generated significant debate. Rule 92bis was adopted at the 23rd Plenary Session held on 12 Jan. 2001 to replace rule 94ter which was deleted.

⁷⁰ However, the ICTY significantly restricts the use of such transcripts in cases where the accused is charged on the basis of command responsibility or for his or her role in a joint criminal enterprise. See *Prosecutor v. Galić*, IT-98-29-AR73.2, Decision on Interlocutory Appeal Concerning Rule 92 bis (C), 7 June 2002.

⁷¹ See *Blaskić and Lubanga*, see notes 67 and 74 and accompanying text.

⁷² *Prosecutor v. Kordić*, IT-95-14/2, Decision on Appeal Regarding the Admission Into Evidence of seven Affidavits and one Formal Statement, 18 Sept. 2000.

element to a fair trial. This distinction between substantive and technical procedural rules may play an important role in future proceedings before the ICC⁷³.

6. 'subject to this Statute and in accordance with the Rules of Procedure and Evidence'

- 30 As the second sentence of article 69 para. 2, does not specify the justifications or conditions when electronic evidence, documents, or written transcripts may be presented, the sentence provides that the Court shall exercise these powers subject to the Statute and the Rules. Relevant statutory provisions include articles 56, 67 and 68 and the relevant rules include 63, 67, 68, 69, 87, 88. The applicable provisions of the Statute and Rules have already been discussed in detail. However, these are not the last word, as many procedures remain to be developed by the Court. This will continue to occur through practice directions, any regulations created by the Court and jurisprudence. The *ad hoc* Tribunals will provide a fertile source for this further evolution, just as they played a critical role in the development of the Statute and Rules themselves.

For example, the Statute and the Rules do not explicitly provide for the use of prior witness statements, which are not otherwise admissible in relation to their assertive contents, for the sole purpose of challenging a witness' credibility. The ICTY, in the *Naletilić* case, endorsed the use of prior statements to test the credibility of witnesses, but ruled that the evidence was the reaction of the witness to being confronted with the prior statement and not the contents of the prior statement⁷⁴. The ICTY in that case referred to statements used for this purpose as 'aids' to distinguish them from 'evidence'. The regulation of exhibits, aids, re-creations, evidence summaries and expert testimony are not specifically dealt with in the Rules of the ICC⁷⁵.

The relative weight appropriate for different types of evidence may also be an area where the ICC looks to the jurisprudence of the *ad hoc* Tribunals. Recorded testimony (audio or video), for example, is unlike live, transmitted evidence in that the Court cannot examine the witness and the full examination of the witness must either be recorded or take place some time later (when the recording is placed into evidence). as noted above, the ICC Rules are more rigorous than the *ad hoc* Tribunals in requiring that such testimony always be subject to examination by the opposing party, either at the time it is recorded or at the point that it is adopted by the witness and entered into evidence⁷⁶. There is, nevertheless, some loss of immediacy to recorded testimony. For this reason, an ICTY Trial Chamber has ruled that such testimony, even when subject to examination by the defence when recorded, may be given less weight than live testimony⁷⁷.

Regarding ICC jurisprudence, in the case of *Prosecutor v. Jean-Pierre Bemba Gombo*, the Appeals Chamber confirmed that the Trial Chambers have the discretion to receive testimony of witnesses by means other than in-court testimony, as long as it does not violate the Statute and is in accordance with the Rules of Procedure and Evidence. Nonetheless, the

⁷³ DeFrancia, *Due Process In International Criminal Courts: Why Procedure Matters* (2001) 87 *Virginia L Rev* 1381, 1429.

⁷⁴ See *Prosecutor v. Naletilić*, IT-98-34, Decision on the Admission of Witness Statements into Evidence, 14 Nov. 2001. See also *Prosecutor v. Simić et al.*, IT-95-9, Decision on Prosecution Interlocutory appeals on the use of statements not admitted into evidence pursuant to Rule 92 *bis* as a basis to challenge credibility and to refresh memory, 23 May 2003.

⁷⁵ In regards to summary evidence, the ICTY has ruled that the evidence being summarized must, itself, be admissible before the summary can be admitted. See *Prosecutor v. Slobodan Milošević*, IT-02-54, Decision on Admissibility of Prosecution Investigator's Evidence, 30 Sep. 2002.

⁷⁶ The use of recorded testimony in conjunction with live testimony can relieve some of the pressure on children or other vulnerable witnesses, minimizing their exposure to the courtroom.

⁷⁷ *Prosecutor v. Naletilić and Martinović*, IT-98-34-PT, Decision on Prosecution Amended Motion for Approval of Rule 94ter Procedure (Formal Statements) and on Prosecutor's Motion to take Depositions for Use at Trial (rule 71), both decisions issued 10 Nov. 2000.

Appeals Chamber urged the Trial Chambers to exercise this discretion with caution so as not to prejudice the rights of the accused or the fairness of the trial generally⁷⁸.

In contrast, however, in the *Prosecutor v. Chui*, the Trial Chamber II did not allow the admission of a prior recorded statement of a witness and stated that “[t]he simple assertion that a written statement of a witness who has appeared for testimony provides the broader context in which a specific statement was made, or allegedly corroborates the oral testimony given at trial, does not qualify as a sufficient reason for admitting it into evidence.”⁷⁹

7. ‘not be prejudicial to or inconsistent with the rights of the accused’

The primary right of an accused that is affected by article 69 para. 2, is the right to 31 confront witnesses. This is specifically guaranteed in article 67 para. 1 (e), which guarantees the right ‘to examine, or have examined, the witnesses against him or her and to obtain the attendance and examination of witnesses on his or her behalf under the same conditions as witnesses against him or her’.

Substantive rights for the accused to challenge and test testimony are incorporated into each of the Rules established under article 69. These rights are necessarily balanced against the rights of victims and witnesses protected by article 68. The requirement of balance is further emphasized by the general principle affirming the rights of victims and witnesses articulated in rule 86. Specific procedures for determining the appropriate balance are provided by rules 64, 87 and 88. Rule 87 on protective measures requires the participation of the accused in any hearing regarding protective measures for victims or witnesses that might have an impact on the presentation of evidence. The rule 88 ‘special measures’ procedure can exclude the participation of the accused, but the ultimate effect of this clause is to ensure that the Court will not order special measures that it determines are prejudicial or inconsistent with the rights of the accused.

In hearings on relevance and admissibility under rule 64, any written submissions must be provided to all parties and a Chamber must provide reasons for all rulings on relevance or admissibility. This procedure ensures the participation of the accused and the availability of a record in the event of an appeal. The opportunity for victims to be represented by counsel at trial in accordance with rule 91 will allow victims to play a far more active role in these proceedings than is the case in domestic courts, including the right to make submissions on the relevance or admissibility of evidence and, with approval of the Chamber, direct questioning of witnesses.

The evolving jurisprudence of the *ad hoc* Tribunals suggests that the rights of an accused to know the identity of his accusers and challenge their testimony will likely take precedence over the interests of victims and witnesses to not have their identities disclosed⁸⁰. However, the victim participation provisions in the Statute will provide opportunities for victims and witnesses to be heard by a Chamber when their interests or safety are affected in order to fashion other protective measures.

The rights of the accused referenced in this paragraph also incorporate internationally recognized human rights by virtue of article 69 para. 7 and those rights of the accused which are recognized elsewhere in the Statute and in the Rules. Particularly important among the Statute rights are those relating to disclosure discussed below.

⁷⁸ *Prosecutor v. Jean-Pierre Bemba Gombo*, Appeals Chambers, ‘Judgment on the appeals of Mr Jean-Pierre Gombo and the Prosecutor against the decision of Trial Chamber III entitled “Decision on the admission into evidence of materials contained in the prosecution’s list of evidence”’, 3 May 2011.

⁷⁹ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ‘Decision on Defence Request to Admit into Evidence Entirety of Document’ DRC-OTP-1017-0572, 25 May 2011 at para 7.

⁸⁰ See *Blaskić*, see note 57.

III. Paragraph 3

Rule Cross-Reference: rule 63 (general provisions) rule 64 (Procedure relating to relevance or admissibility), rule 69 (evidence by agreement), rule 70 (sexual violence), rule 71 (evidence of sexual conduct), rule 72 (in camera procedure), rule 140.2(a) (right to question one's own witness)

1. 'The parties may submit'

- 32 The issue of whether victims fall within the ambit of article 69(3) and have a right to participate at trial to lead evidence or challenge the admissibility or relevance of evidence was discussed by the Appeals Chambers in the *Prosecutor v. Lubanga*⁸¹. The Appeals Chamber underscored that the right to lead evidence pertaining to the guilt or innocence of the accused and the right to challenge the admissibility or relevance of evidence in trial proceedings lies primarily with the parties, that is, the Prosecution and the Defence. However, the Appeals Chamber also found that this did not preclude the possibility for victims to lead evidence pertaining to the guilt or innocence of the accused. Article 69(3) makes it clear that 'the Court has the authority to request the submission of all evidence that it considers necessary for the determination of the truth'. Indeed, the Appeal Chamber also noted that Article 68(3) established the right for victim participation, and in order to give effect to the spirit and intention of the article, it must be interpreted as to make participation meaningful. The Appeal Chamber ultimately upheld the decision of the Trial Chamber to allow participating victims the possibility to lead evidence pertaining to the guilt or innocence of the accused, and to challenge the admissibility or relevance of evidence in the trial proceedings.

However in *Prosecutor v. Abdallah Banda Abakaer Nourain*⁸² the Trial Chamber upheld the approach that challenges to the relevance or admissibility of this evidence does not fall under Article 69(3) of the Statute, rather the legal basis upon which this evidence may be challenged extends from combined effect of: (i) the obligation to give effect to the spirit and meaning of Article 68(3) of the Statute; and (ii) the Chamber's power to make rulings on the relevance or admissibility of evidence under Articles 64(9) and 69(4) of the Statute.

The issue of whether the rules considering evidence in article 69(3) apply also to pre-trial stages of the proceedings was discussed in two cases. In *Prosecutor v. Katanga and Chui*⁸³ the Single Judge considered 'that article 69(3) of the Statute is not applicable during the pre-trial proceedings conducted before the Pre-Trial Chamber because: (i) the Pre-Trial Chamber is not a truth-finder; and (ii) according to the literal interpretation of article 69(3) of the Statute, its application is subject to consideration of the competent Chamber that evidence other than that introduced by the Prosecution and the Defence is 'necessary for the determination of the truth.'"

The Pre-Trial Chamber in *Prosecutor v. Jean-Pierre Bemba Gombo* came to a different conclusion. The Pre-Trial Chamber III concluded that article 69(3) establishes a general principle that applies to the various stages of the proceedings. Therefore, the rules concerning evidence in 69(3) also apply at the pre-trial stage of the proceedings, but must take into account the specific purpose and limited scope of the confirmation charges. 'To that end, it needs to be noted that the application of article 69(3) of the Statute at the confirmation phase is restricted since, in contrast to the trial phase, the Chamber does not have to determine the guilt

⁸¹ *Prosecutor v. Lubanga*, ICC-01/04-01/06 OA 9 OA 10, 'Judgment on the appeals of the Prosecutor and The Defence against Trial Chamber I's Decision on the Victims' Participation of 18 January 2008' 11 July 2008 at paras 93-9.

⁸² *Prosecutor v. Abdallah Banda Abakaer Nourain*, ICC-02/05-03/09, 'Decision on the participation of victims in the trial proceedings', 20 March 2014 at para 29.

⁸³ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07, 'Decision on the Set of Procedural Rights Attached to Procedural Status of Victim at the Pre-Trial Stage of the Case', 13 May 2008 at para. 110.

of the person prosecuted beyond reasonable doubt. It simply has to determine whether there are substantial grounds to believe that the person prosecuted committed the crimes charged.⁸⁴

2. ‘evidence relevant to the case’

This provision has to be read in conjunction with article 69 para. 4, which provides that the Court may rule on the relevance or admissibility of any evidence. For the meaning of ‘relevant’, see the discussion below concerning article 69 para. 4. 33

According to paragraph 3, evidence that is irrelevant is not to be submitted. However, views about the relevance of a certain piece of evidence to the case may differ. It must be noted that the text specifies that the evidence must be relevant ‘to the case’. This means that a particular piece of evidence that has been admitted may subsequently be held not to be relevant in connection with the particular fact which it was meant to prove, but may still be relevant to the case as a whole. In such a situation, evidence, though irrelevant for the purpose for which it was originally submitted, has still been submitted in accordance with paragraph 3 if relevant to other issues in the case. The Court will have to decide on the relevance in that sense under paragraph 4⁸⁵.

The ICTY has used a general concern about both relevance and probative value to exclude specific evidence as well as to place limits on the volume of evidence. Relevance has been used to justify limits on evidence about the good character of the accused⁸⁶, historical roots of the underlying conflict⁸⁷, and similar bad acts by opposing forces⁸⁸.

3. ‘in accordance with article 64’

Although the initial proposal mentioned only article 64 para. 3, the text now requires the parties to submit evidence in accordance with article 64 as a whole. Consequently, if the Trial Chamber refers a preliminary question to the Pre-Trial Chamber in accordance with article 64 para. 4, the parties may have to submit evidence before that Chamber. The most important paragraph of article 64, however, will be paragraph 3. The parties will have to submit their evidence in accordance with the decisions that the Trial Chamber has taken regarding the procedures and languages to be used for trial, and, most importantly, any decision regarding disclosure. At the ICTY, admissibility of evidence has been successfully challenged on such bases as the failure of the prosecution to provide a translation of a disclosed document⁸⁹, and failure to disclose complete documents (only excerpts to be used at trial had been provided)⁹⁰. The timing of disclosure has also been a major issue before the *ad hoc* Tribunals. The ICTR Rules required complete disclosure of all witnesses 21 days prior to trial. The ICTY developed a more complex system for disclosure, distinguishing between disclosure of witnesses called to prove basic facts and witnesses who directly implicate the accused⁹¹. Both Tribunals recognized an obligation on the prosecution to immediately disclose any exculpatory evidence to the defence. 34

The ICC Rules provide significant guidance on the issue of disclosure. Rules 76 through 84 place disclosure requirements on both the prosecution and defence and spell out the circum-

⁸⁴ *The Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, ‘Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties’, 31 July 2008 at para 10.

⁸⁵ See *mn. 37 et seq.*

⁸⁶ *Prosecutor v. Kupreskić*, IT-95-16, Decision on Evidence of Good Character of the Accused and the Defence of *Tu Quoque*, 17 Feb. 1999.

⁸⁷ See *Prosecutor v. Kunarac et al.*, IT-96-23, Decision on Prosecution’s Motion for Exclusion of Evidence and Limitation of Testimony, 3 July 2000.

⁸⁸ See *Kupreskić*, see note 86.

⁸⁹ See *Prosecutor v. Milošević*, IT-02-54, Decision on Prosecution Motion for Permission to disclose Witness Statements in English, 19 Sept. 2001.

⁹⁰ *Prosecutor v. Dosen*, IT-95-8, Decision on the Defence Motion to compel Discovery, 11 May 2000.

⁹¹ *Prosecutor v. Brđanin and Talić*, IT-99-36, Decision on Motion by Prosecution for protective Measures, 3 July 2000.

stances and procedures to be used for any restrictions on disclosure. Article 61 para. 3 sets out the disclosure requirements for hearings held prior to trial. Article 67 para. 2 requires exculpatory evidence to be disclosed to the defence ‘as soon as practicable’. Rule 83 allows the Prosecutor to seek the guidance of the Court on an *ex parte* basis where this is an issue under article 67 para. 2. Unlike the ICTR, the ICC Rules do not establish any specific timeframes for disclosure. Instead, they establish a principled approach to disclosure⁹².

4. ‘authority to request the submission of evidence’

- 35 Due to this formulation, the Court will not be allowed to call evidence on its own authority. It may, however, when it believes that the evidence produced by the parties does not suffice to give a full picture of the situation or to reach a decision on a particular point, order the parties to submit further evidence. This follows the Rules of the ICTY⁹³. The effect of this provision is that the parties are not free to withhold evidence that the Court considers to be important. The Court may focus on aspects of the crime that are not covered by the evidence brought forward by the parties. In such a case, the parties may be ordered to submit evidence regarding *e.g.*, a particular conduct occurring at a particular time that neither party has so far seen proper to touch upon. The submission of evidence, therefore, is not a matter to be decided solely by the parties, but also by the Court.

On the other hand, the Statute makes it clear that any evidence will have to be brought forward by the parties. The Court is restricted to its procedural tools (orders) when it wishes to hear additional evidence. It has to rely on the cooperation of the parties, although it may compel them to cooperate. This is different from the procedure in some civil law systems.

5. ‘it considers necessary for the determination of the truth’

- 36 It is for the Court alone to decide whether the parties have submitted sufficient evidence. The phrase ‘determination of the truth’ demonstrates that the point is not just whether the Court has enough material on its hands to reach a decision. The function of the ICC goes beyond that of an ordinary criminal court. Given the kind of situations that might be the subject of a trial, the parties and the Court have the additional duty to clarify as much as possible the historical facts of the case. This does not mean, however, that the Court has to examine every detail of the situation before it when it already has a clear picture of the facts. The individual crime before the Court provides the framework within which the Court has to operate. If the facts of the particular crime are sufficiently clear, the Court will not consider further evidence necessary.

The role envisioned for the Court necessarily means that it is not bound by narrow rules regarding when and how evidence is presented. At the same time, some limits are justified as to when new evidence can be placed before the Court during the trial so as not to prejudice either party. The ICTY established a relevant test for the submission of new evidence at trial outside of the agreed procedure, which requires that the material 1) must be new in the sense of not having been available on the basis of due diligence when it should have been appropriately submitted, 2) not be cumulative and/or repetitious of evidence already given, 3) must be of significant relevance to the core issues in the case, and 4) be of such nature that its admission is in the interests of justice⁹⁴.

⁹² See Brady, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 403 *et seq.*

⁹³ See rule 98 ICTY.

⁹⁴ *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Decision on Prosecutor’s Submissions Concerning ‘Zagreb Exhibits’ and Presidential Transcripts, 1 Dec. 2000.

IV. Paragraph 4

Rule Cross-Reference: rule 47.2 (evidence per article 15(2)), rule 63 (general evidence provisions), rule 64 (procedure relating to relevance or admissibility), rule 70 (evidence in cases of sexual violence), rule 71 (evidence of other sexual conduct), rule 72 (in camera procedures to consider relevance or admissibility)

1. ‘the relevance or admissibility of any evidence’

As with all of article 69, para. 4 is an amalgam of both common law and civil law concepts 37 and does not strictly follow the procedures of either. While the article adopts presumptively the civil law procedure of general admissibility and free evaluation of evidence, some common law concepts are incorporated, which results in a hybrid system. The basic principle in both common law and civil law systems is ‘that relevant evidence which has probative value is admissible if such evidence is not affected by an exclusionary virus’⁹⁵. Article 69(4) permits the Court ‘to rule on the relevance or admissibility of any evidence’ before considering the question of weight. The Court can either: 1) rule first whether evidence possesses sufficient relevance to justify its admissibility, taking into account a number of factors mentioned in article 69, para. 4, and evaluate subsequently the weight of any admitted evidence as part of the evaluation process; or, instead 2) admit evidence and consider relevance, admissibility and weight together as part of the evaluation of the admitted evidence, taking into account the same factors. When the Court would choose to proceed by one analytical method or the other would be influenced, *inter alia*, by the need to ensure the protection of other values in the adjudication process, for example, such as the rights of the accused, a fair trial, fair evaluation of the testimony of a witness and the rights of victims.⁹⁶ In some situations, protection of these values would best be served by the exclusion or non-admissibility of the evidence, rather than by admitting it and subsequently according it little or no probative weight⁹⁷. In either case, rule 64 makes it clear that issues about relevance or admissibility should be raised when evidence is submitted and that a Chamber must give reasons for any rulings on evidential matters.

Relevance and admissibility are related but distinct concepts. Relevance is not an absolute 38 concept but is a relationship or nexus that is derived from the proffered item of evidence and the fact in issue or proposition that is sought to be proved or disproved. It is a relation the existence of which makes it more probable than not that the fact or proposition exists or does not exist. The existence of the item of evidence tends to increase or decrease the probability of the existence of the fact in issue. This is often termed the rational probativeness of the evidence; *i.e.* the question is whether the item of evidence is rationally probative to a fact in issue⁹⁸.

Determining whether a rational connection exists or whether evidence has probative value 39 is often a mixture of logic and common sense borne by the experience of life and humankind. In addition to strict logic, the determination of relevance or probative value also involves the application of common sense as to whether the item of evidence tends to make more or less

⁹⁵ *Prosecutor v. Delalić, Mucić, Delić and Landžo*, IT-96-21, Decision on the Prosecution’s Oral Requests for the Admission of Exhibit 155 into Evidence and for an Order to Compel the Accused, Zrakovko Mucic, to provide a Handwriting Sample, 19 Jan. 1998, para. 30 [hereinafter: *Delalić et al.*, Decision on Exhibit 155, 19 Jan. 1998].

⁹⁶ See *Prosecutor v. Lubango Dyilo*, ICC-01/04-01/06, ‘Decision concerning the Prosecution Proposed Summary Evidence’ where the Pre-Trial Chamber I declared ‘as inadmissible some documents submitted by the Prosecution on the grounds that their disclosure would compromise the protection of witnesses’ 4 October 2006.

⁹⁷ Piragoff, see note 19, p. 351.

⁹⁸ See note 83, *Prosecutor v. Delalić et al.*, Decision on exhibit 155, para. 29; *Prosecutor v. Delalić et al.*, IT-96-21, Decision on the Motion of the Prosecution for the Admissibility of Evidence, 19 Jan. 1998, para. 17 [hereinafter: *Delalić et al.*, (Decision on admissibility of evidence, 19 Jan. 1998)]; see also G.F. James, *Relevancy, Probability and the Law*, 28 *CalifLRev* 689 (1941).

probable the existence of the fact in issue that is sought to be proved or disproved. Common sense is of course dependant not only on the process of logical deduction or induction but on life experience or values, be they individual, societal or as part of humankind. The conclusion to a logical deduction is only as true as is its major premise, which is often derived from an application of one's life experience and values. At times, the validity of the deductive process and the conclusion can be called into question if the validity of the major premise (or the values on which it is based) is questionable, biased or erroneous⁹⁹.

40 There are two aspects to relevancy that may make evidence irrelevant. In the first, the evidence does not tend to prove or disprove the fact in issue; *i.e.* there is no rational connection or probative value or relationship. In the second aspect, there may equally be no rational connection or probative value if the particular fact in issue to which the evidence could be probative is not at issue in the case. In such situations, the evidence is both irrelevant and not admissible¹⁰⁰.

41 However, merely because evidence is strictly relevant in a logical sense does not guarantee its admissibility. Relevance is often a question of the degree of probativeness and, sometimes, while having some probative value it is not sufficiently probative so as to justify its admission into evidence given other considerations. These considerations can include the situation where the particular fact in issue is too collateral or remote to be probative to the main issues to be proved or disproved, or the particular fact in issue is not really at issue in the context of the case due to the overwhelming probative value of other evidence that tends to prove or disprove the fact in issue. It can also include situations where, due to the nature of the evidence or the values upon which probative value is being determined, the evidence may be considered falsely to possess more probative value than it actually does. For example, evidence of prior conduct (sexual, criminal or otherwise) which is not rationally related to the conduct in question in the trial may tend to show that the person is immoral or of bad character (which is a value judgement based on the assessor's own life experience and values) or has been prone to criminality, but without more rational connection to the case, such degree of probativeness might not justify the admission of the evidence. Its prejudicial value obscures its true probative value, which may really be minimal or non-existent¹⁰¹. The admission of such evidence may, therefore, cause prejudice to a fair trial or to a fair evaluation of the testimony of a witness.

Sometimes, even if evidence is sufficiently relevant (*i.e.* of sufficient probative value) other policy considerations outweigh its admission, such as where evidence is subject to a legally recognised privilege or its exclusion is necessary to protect national security interests or a witness from harm¹⁰².

In the case of *R. v. Lubanga* the Trial Chamber I discussed the broad power conferred on the Chamber to make decisions with regards to evidence under Article 69(4), 'it has a significant degree of discretion in considering all types of evidence. This is particularly necessary given the nature of the cases that will come before the ICC.'¹⁰³

In *Prosecutor v. Jean Pierre Bemba Gombo*¹⁰⁴, the Trial Chamber III discussed the relationship between the guiding principle of orality set out in Article 69(2) and the Court's

⁹⁹ See note 83, *Delalić et al.*, Decision on exhibit 155, para. 29; see note 85, *Delalić et al.*, Decision on the admissibility of evidence, 19 Jan. 1998, para. 17. See also: see note 98, G.F. James, 694–5; D.K. Piragoff, *Similar fact evidence: probative value and prejudice* (1981) 124–128; M. Eggleston, *Evidence, proof and probability* (1978) 24; R. Cross, *Cross on evidence* (4th ed. 1974) 16 and 24.

¹⁰⁰ See note 83, *Delalić et al.*, Decision on the admissibility of evidence, 19 Jan. 1998, para. 17. McCormick, *McCormick on evidence* (4th ed. 1992) 338–339.

¹⁰¹ *E.g.*, *Prosecutor v. Delalić, Mucić, Delić and Landžo*, IT-96-21-T, Judgement, 16 Nov. 1998, para. 70, which held that evidence of prior sexual conduct was irrelevant and inadmissible.

¹⁰² *E.g.*, see article 69 para. 5, article 72 and article 68 para. 1.

¹⁰³ *Prosecutor v. Lubanga*, ICC-01/04-01/06, 'Corrigendum to Decision on the admissibility of four documents' 20 January 2011 at para 24.

¹⁰⁴ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, 'Decision on the admission into evidence of materials contained in the prosecution's list of evidence', 19 November 2010.

discretion to rule on relevance or admissibility of *any* evidence set out in Article 69(4). The Majority determined that there is sufficient legal basis set out in the ICC legal framework to consider *prima facie* admitting into evidence all statements of witnesses to be called to give evidence at trial.

However, the Dissenting Opinion to the Majority decision above written by Judge Ozaki disagreed with these arguments.¹⁰⁵ In her opinion, Article 69(2) is clear that the primacy of the principle of orality must prevail in all proceedings before the Court, and indeed, thus far international criminal tribunals and the ICC have all primarily relied on the oral testimonies of witnesses with written statements having been admitted on an exceptional, case-by-case basis. Moreover, in her opinion, the argument that all written documents are *prima facie* admissible is not founded upon any provision in the ICC legal framework. As well, the Majority's ruling has the effect of creating an 'intermediate state' in the ruling on admissibility, which was not contemplated by the drafters of the Rome Statute.

The Majority Decision was appealed and on May 3, 2011 the Appeals Chamber rejected the argument of the Trial Chamber. The Appeals Chamber ruled that the Trial Chamber's ruling of a '*prima facie* finding of admissibility of the evidence' without assessing the evidence on an item by item basis was incorrect.¹⁰⁶ The Appeals Chambers found that while expeditiousness is an important component of a fair trial, the statutory requirements established by article 69(4) and (7) and rule 71 of the Rules of Procedure and Evidence anticipate that a Chamber's determination of the relevance or admissibility of evidence be made on an item-by-item basis.

2. 'the probative value of the evidence'

The meaning of this term has already been discussed in section 1, above, in relation to the determination of relevance and admissibility. 'There is implicit in 'relevancy' an element of probative value'¹⁰⁷. In applying this concept as one of the factors to be taken into account in determining relevance and admissibility, the Court will likely have regard to the manner by which the evidence derives its probative value and the degree of probativeness.

Likewise, the Court may have regard to the reliability of the evidence, not only as a factor going to its weight, but also to its degree of probative value and even admissibility. As the ICTY Appeals Chamber noted, 'the reliability of a statement is relevant to its admissibility and not just to its weight. A piece of evidence may be so lacking in terms of the indicia of reliability that it is not 'probative' and is therefore inadmissible'¹⁰⁸. Nevertheless, reliability is only a factor to be considered and is not a separate pre-condition to admissibility, as the degree of reliability can also affect the weight to be given evidence once admitted¹⁰⁹. However, an ICTY pre-trial judge has ruled that a Trial Chamber may call upon the parties to provide 'a minimum of proof which would be sufficient to constitute a *prima facie* indicia of reliability if a document so warrants'¹¹⁰. The case in question dealt with identification evidence where the Prosecutor was responsible for the context in which the identification was made. It signals that the Prosecutor can be held to a high standard for ensuring the reliability of evidence where the Prosecutor exercises significant control over the form or content of the evidence in question.

¹⁰⁵ *The Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, 'Dissenting Opinion of Judge Kuniko Ozaki on the Decision on the admission into evidence of materials contained in the prosecution's list of evidence', 23 November 2010.

¹⁰⁶ *The Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, 'Judgment on the appeals of Mr Jean-Pierre Bemba Gombo and the Prosecutor against the decision of Trial Chamber III entitled 'Decision on the admission into evidence of materials contained in the prosecution's list of evidence', 3 May 2011 at para 57.

¹⁰⁷ *Delalić et al.*, Decision on Exhibit 155, see note 83, para. 29.

¹⁰⁸ *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-AR73.5, Decision on Appeal regarding Statement of a Deceased Witness, 21 July 2000, para. 24.

¹⁰⁹ *Prosecutor v. Tadić*, IT-94-I-T, Decision on the Defence motion on hearsay, 5 Aug. 1996, paras. 13–15; See note 83, *Delalić et al.*, Decision on exhibit 155, para. 30–32.

¹¹⁰ See note 21.

However within the ICC, the Pre-Trial Chamber I, in the *Prosecutor v. Chui* distinguished its approach from the approach of other international tribunals as to the question of whether reliability is a separate or inherent component of the admissibility of a particular item of evidence. The Pre-Trial Chamber adopted an alternative approach, 'to consider reliability as a component of the evidence when determining its weight'.¹¹¹

An ICTY Trial Chamber has outlined factors that should be considered in determining the probative value of expert witness statements. The Chamber required, at the admissibility state, a minimum degree of transparency in the sources and methods used. They also required a degree of specificity and accessibility of sources sufficient to allow opposing counsel to effectively examine the witness¹¹².

On June 13, 2008, Trial Chamber I issued the 'Decision on the admissibility of four documents' in which it set out a general approach to the admissibility of evidence other than direct oral evidence.¹¹³ The Chamber set out a three step approach to be applied: 1) determine whether the evidence in question is, *prima facie*, relevant to the trial; 2) determine whether the evidence has probative value; and 3) weigh the probative value of the evidence against its prejudicial effect. With regard to the probative value of the evidence, the Chamber indicated that 'there should be no automatic reasons for either admitting or excluding a piece of evidence but instead the court should consider the position overall'.¹¹⁴ The Chamber also cautioned against imposing artificial limits on its 'ability to consider any piece of evidence freely, subject to the requirements of fairness'¹¹⁵.

- 43 As noted above in section 1, evidence may possess prejudicial value that tends to obscure the true degree of probative value of an item of evidence or tends to offend or prejudice other values that the trial is supposed to protect, such as a fair trial or the fair evaluation or protection of a witness. The evidence may have a disproportionate prejudicial effect as compared to its true probative value. This necessitates a balancing or weighing process. Unlike some proposals made in the Preparatory Committee¹¹⁶, the Statute does not specify the exact nature of the test to be used in the balance, nor do the Rules. However, in cases of sexual violence the Rules provide considerable guidance. Rule 70 prohibits the Court from drawing inferences about the consent of a victim based on any words, conduct or silence by him or her if the act(s) occurred in a coercive setting. It also prohibits the Court from making inferences about the character or sexual availability of a victim or witness by reason of prior or subsequent sexual conduct. Rule 71 directs the Court not to admit evidence of the prior or subsequent sexual conduct of a victim or witness. Rule 72 provides for *in camera* consideration of the admissibility of any evidence suggesting the defence of consent to charges of sexual violence. The elaboration of these Rules by the Preparatory Commission provoked sharp debate during the drafting process. The underlying issues in that debate are dealt with more fully in section 1, above.

The restrictions placed on the defence by rules 70 and 71 in the context of sexual offences are premised on principles of relevance and probative value and, as such, are no more prejudicial to the rights of an accused than any other determination of relevance. Rule 72, moreover, guarantees the right of the defence to present to the Court reasons why evidence caught by Rule 70 should, nonetheless, be admissible.

¹¹¹ *The Prosecutor v. Chui*, ICC 01/04-01/07, 'Decision on the confirmation of charges' 30 September 2008 at para 78.

¹¹² *Prosecutor v. Galić*, IT-98-29-T, Decision on the expert witness statements submitted by the Defence, 27 Jan. 2003.

¹¹³ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06, Decision on the admissibility of four documents (13 June 2008).

¹¹⁴ *Ibid*, paragraph 28.

¹¹⁵ *Ibid*, paragraph 29.

¹¹⁶ Report of the Preparatory Committee (1998), see note 15, p. 131, fn. 15 ('probative value is substantially outweighed by its prejudice ...'); see also rule 84*lit.* DICTY ('probative value is substantially outweighed by the need to ensure a fair trial').

3. ‘fair trial’

The concept of ‘fair trial’ is one of the fundamental values inherent in the *ICC Statute*. Article 64 para. 2 mandates that the ‘Trial Chamber shall ensure that a trial is fair and expeditious and is conducted with full respect for the rights of the accused and due regard for the protection of victims and witnesses’, article 67 para. 1 entitles an accused ‘to a fair hearing conducted impartially’ and article 68 paras. 1 and 5 refer to ‘a fair and impartial trial’. As the concept of ‘fair trial’ is addressed primarily in article 67 of the Statute and in the *ICCPR*¹¹⁷, discussion here will focus on the manner by which this fundamental value operates as a factor in determining relevance and admissibility, rather than on its meaning.

First, as noted in sections 1 and 3, above, the nature of the evidence or the values upon which probative value is being determined can result in a situation where the evidence may be considered erroneously to possess more probative value than it actually does. The admission of such evidence may have an adverse impact on the fairness of the trial, as it obscures the true probative value of the evidence or ‘the determination of the truth’ by the Court¹¹⁸.

Second, the concept of fair trial has traditionally referred to the fairness of the trial vis-à-vis the accused. Article 67 sets out a number of specific rights of the accused in the context of the trial process, which also inform the meaning of fair trial. Their violation can prejudice a fair trial. Violation of pre-trial rights can also prejudice the fairness or integrity of a subsequent trial¹¹⁹. Other international standards regarding the rights of an accused and fair trial are incorporated through article 21 paras. 1 and 3.

Third, the Statute recognises the importance of victims and witnesses and charges the Prosecutor and all Chambers of the Court with the protection of their rights and interests. This is explicitly dealt with in article 68, but article 64 para. 2 specifically mandates that the ‘Trial Chamber shall ensure that a trial is fair and expeditious and is conducted with full respect for the rights of the accused and due regard for the protection of victims and witnesses’. Article 21 would equally apply to the further understanding and elaboration of these concepts. Therefore, a fair trial, and prejudice thereto, may also incorporate or be counter-balanced by some aspects of the fair treatment of victims and witnesses, and not merely fair treatment of an accused, provided that these aspects are not ‘prejudicial to or inconsistent with the rights of the accused or a fair and impartial trial’¹²⁰. The fairness of a trial may encompass considerations that are broader than the rights of an accused and other participants, and may require a balancing process of the factors mentioned in article 64 para. 2 which may be inter-related rather than distinct. Alternatively, if some of these rights and interests are not encompassed within the concept of ‘fair trial’, they may find their expression and protection in the concept of ‘fair evaluation of the testimony of a witness’, which is also included in paragraph 4.

Fourth, the UN Human Rights Committee has held that observance of the minimum guarantees of the *ICCPR* is not always sufficient to ensure the fairness of a hearing¹²¹. This suggests that the admission of some types of evidence may cause prejudice to a fair trial in a manner that does not explicitly breach one of the rights of an accused set out in the Statute or incorporated by reference through article 21. Unlike article 69 para. 7, a breach of the

¹¹⁷ 19 Dec. 1966, 999 UNTS 171 (entered into force 23 Mar. 1976). article 14; and see Ch. Lonsdale and K. Trapp, *The International Criminal Court: Excluding Evidence under Article 69(7)*, unpublished manuscript (1998), Faculty of Law, McGill University, Canada, p. 18, footnote 18, for a list of international instruments that develop the concept of fair trial in international law.

¹¹⁸ The determination of the truth is one of the key purposes of the trial, for the Court itself is authorised to request the submission of evidence; article 69 para. 3.

¹¹⁹ E.g., articles 55, 56 paras. 1 (b) and 4.

¹²⁰ Article 68 paras. 1, 3 and 5. In the *Tadić* case, the ICTY held that ‘a fair trial means not only fair treatment to the defendant but also to the prosecution and to witnesses’; see note 125, paras. 55 and 72.

¹²¹ Compilation of General Comments and General Recommendations Adopted by Human Rights Treaty Bodies, UN Doc. HRI/GEN/1 (1992), General comment 13.

Statute or internationally recognized human rights is not a prerequisite under paragraph 4 in order to make a ruling that certain evidence is inadmissible.

- 49 Finally, the question arises as to what extent violations of the Statute or internationally recognized human rights find their operation through article 69 para. 7 as opposed to paragraph 4. Clearly, violations of rights that are specifically enumerated in the Statute or recognized internationally find their remedy regarding admissibility in paragraph 7. Therefore, in situations where paragraphs 4 and 7 overlap, paragraph 4 is either a statement of principle to which paragraph 7 provides specific rules in the situations therein outlined, or is a residual means of non-admissibility or exclusion where paragraph 7 does not apply but the fairness of the trial may nonetheless be prejudiced by the admission of the evidence. The relationship between paragraph 4 and 7 in this regard may be clarified through the jurisprudence of the Court.

The failure to comply with decisions of the Trial Chamber may be taken into account when the Trial Chamber rules on the admissibility of the evidence under article 69 para. 4. Evidence will likely only be inadmissible for failure to comply if the failure was so egregious that its impact on the rights of the accused is of such importance as to outweigh the possible value of the evidence for the proceedings¹²².

4. ‘fair evaluation of the testimony of a witness’

- 50 In authorising the Court ‘to request the submission of all evidence that it considers necessary for the determination of the truth’, article 69 para. 3 recognises that the search for truth is a fundamental concern of the trial process. Therefore, it is logical that the Court may, in ruling on the relevance and admissibility of any evidence, take into account any prejudice that such evidence may cause to a fair evaluation of the testimony of a witness. Many of the considerations that are applicable to determining prejudice to a fair trial (discussed above) apply equally to the fair evaluation of a witness.
- 51 First, the nature of the evidence or the values upon which probative value is being determined can result in a situation where the evidence may be considered to possess more probative value than it actually does. The admission of such evidence may have an adverse impact on the fair evaluation of the testimony of a witness, as it obscures the true probative value of the evidence or ‘the determination of the truth’ by the Court. For example, as noted in the discussion on ‘relevance and admissibility’, above, evidence of prior conduct which is not rationally related to the conduct or issue in question, particularly if it is value-laden, can obscure the true probative value of the evidence¹²³. This is the rationale that motivates rules 70 and 71.
- 52 Second, as also noted above, the Statute specifically charges the Prosecutor and the Court ‘to protect the safety, physical and psychological well-being, dignity and privacy of victims and witnesses’¹²⁴. While such protection is important in its own right given the inherent dignity of all human beings, the manner of presentation of evidence, or the lack of sufficient safeguards for the protection of victims and witnesses, can have an adverse impact on the willingness and ability of a witness to testify, especially to testify truthfully and without fear of outside repercussions or threats, thereby prejudicing the fair evaluation of their testimony and the determination of the truth¹²⁵.

¹²² See mn. 37 *et seq.*

¹²³ E.g., *Prosecutor v. Delalić, Mucić, Delić and Landzo*, IT-96-21-T, Judgement, 16 Nov. 1998, para. 70, which held that evidence of prior sexual conduct was irrelevant and inadmissible. rule 96 (iv) ICTY specifically addresses this situation.

¹²⁴ See discussion of ‘fair trial’, mn. 44 *et seq.*, and article 68 para. 1.

¹²⁵ In *Prosecutor v. Tadić*, IT-94-1, Decision of the Prosecutor’s Motion Requesting Protective Measures for Victims and Witnesses, 10 Aug. 1995, some witnesses were granted the ability to testify anonymously in order to ensure their protection, thereby excluding evidence of their true identity, as the admission of evidence of identity would prejudice the giving and fair evaluation of their testimony.

5. ‘inter alia’

Paragraph 4 does not set out a specific test or standard as to how relevance is to be 53 balanced with other factors. As noted earlier¹²⁶, formulations similar to that in rule 89 *lit. D ICTY* were not accepted for the purposes of the Statute, in favour of a statement of principle and a listing of some of the factors that may be taken into account. Paragraph 4 does not contain an exhaustive list, and the Rules do not provide a specific test. The Court will have discretion to interpret article 69 para. 4 and can consider other factors, but will have to keep in mind the very clear guidance provided by rules 70 and 71 dealing with cases involving sexual offences, sexual conduct and sexual violence.

6. ‘in accordance with the Rules of Procedure and Evidence’

Rule 64 establishes the general procedure for considering relevance or admissibility, 54 requiring that the issue be raised at the earliest practical opportunity and that the Court provide reasons for any ruling it makes on relevance or admissibility. It further clarifies that evidence found to be irrelevant or inadmissible shall not be considered by the Chamber in its judgment. As noted earlier, no explicit test or standard is incorporated in paragraph 4, and neither is the list of factors that should be taken into account exhaustive.

A far greater degree of direction is provided through the Rules when it comes to determining the relevance or admissibility of evidence in cases of sexual violence. Any attempt to introduce or elicit evidence of consent to a sexual crime or evidence touching on prior or subsequent sexual conduct of a victim or witness triggers the requirements of rule 72. This rule requires the party seeking to introduce or elicit such evidence to first provide notice to the Court, including the substance of such evidence and its relevance to issues in the case. An *in-camera* will then be held to hear the views of the defence, the Prosecutor and the witness or victim or their representative, if any. The Court must state on the record the specific purpose for which any evidence admitted through this process may be used. Rule 72 spells out clearly the relevant tests and principles it must apply in such a hearing.

7. ‘The Court’

Although article 69 is within ‘Part 6: The Trial’, various paragraphs within article 69 refer 55 to the ‘Court’, which raises the question whether article 69 might be applicable at other stages of the Court’s proceedings given that the term includes all of its chambers under article 34? Although paragraph 7 contains no reference to ‘Court’, paragraph 4 does and is the general provision concerning admissibility of evidence. Can the Pre-Trial Chamber exclude the admission of evidence for its own purposes, such as at the confirmation hearing? If it can, is such decision binding on the Trial Chamber? Can the Pre-Trial Chamber hear a pre-trial motion to exclude evidence for the purposes of the trial? Ought the Pre-Trial Chamber to have any of these powers? A number of these questions have been examined by some authors, and it is suggested that the Pre-Trial Chamber can exclude evidence in the context of its own proceedings. The answers to the other questions are less clear¹²⁷. These matters were resolved in the context of the Rules by creating one chapter on rules relating to various stages of the proceedings (Chapter 4) and a separate chapter for those rules applicable exclusively to the trial procedure (Chapter 6). Since those rules that relate directly to article 69 were included in Chapter 4, it is likely that article 69 is intended to apply beyond the context of the trial itself.

¹²⁶ See text at note 31.

¹²⁷ Trapp and Lonsdale, *Excluding Evidence: the Timing of a Remedy*, unpublished manuscript (1998), Faculty of Law, McGill University, Canada.

V. Paragraph 5

Rule Cross-Reference: See rule 73 (Privilege), rule 74 (Self-Incrimination), rule 75 (Incrimination by Family Member), rule 190 (Notice to witnesses), rule 191 (Assurances)

1. ‘respect and observe’

- 56 The main object of this obligation is to prevent disclosure of privileged communications. The practice of the obligation to respect the privilege is provided in the Rules and is similar in principle to the Rules of the ICTY. In general, at the ICTY, privileged communications are not disclosed at trial, unless the accused consents to disclosure or has already voluntarily disclosed the content of the communication to a third party, thereby indicating that he or she did not in fact regard the communication as strictly confidential¹²⁸. In rule 73, the ICC adopted the same high threshold for any waiver of the privilege.

The Court will not be entitled to order the defence to disclose statements given by a witness or the accused under the privilege. Based on the jurisprudence of the ICTY, this may also apply to statements made by the accused prior to being fully informed of the charges against him or her¹²⁹.

2. ‘privileges on confidentiality’

- 57 The privileges to be respected and observed are defined in detail in rule 73 (privileged communications and information). Privileges proposed in the Committee of the Whole at the Rome Conference, but which ultimately were not specifically mentioned in the Statute (lawyer-client, doctor-patient and confessor-penitent), are given particular recognition in the rule.

The lawyer-client privilege in rule 73 is almost absolute and can only be breached if its possessor consents to disclosure in writing or voluntarily discloses a communication to a third party who then provides evidence. The ICTY has viewed lawyer-client privilege as the privilege of the client and not the legal adviser and extended it to cover only confidential communications and documents which come into existence or are generated for the purpose of giving or getting legal advice or in regard to prospective or pending litigation¹³⁰.

Rule 73 uses the term ‘legal counsel’ in preference to ‘lawyer’ as the former term is more comprehensive. However, at the same time, it restricts the privilege to communications made in the context of the professional relationship. This ensures maximum flexibility on the part of an accused to appoint counsel of their own choosing, while it prevents an accused from using the privilege to cloak communications that were made for purposes other than the giving or receiving of legal advice.

The doctor-patient privilege is given an expansive treatment in rule 73, with psychiatrists, psychologists and counsellors specifically mentioned. A claim to privilege based on a listed relationship must still satisfy the criteria set out in sub-rule 73(2). The advantage of listing these relationships in the rule is that it creates a presumption in their favour. While some delegates to the Preparatory Commission felt that the reference to counsellor needed greater definition, this issue was resolved by adding a particular reference to relationships involving victims¹³¹.

¹²⁸ See rule 97 ICTY (relating to lawyer-client privilege only).

¹²⁹ *Prosecutor v. Tadić*, (Decision on Prosecution Motion for Production of Defence Witness Statements) 27 Nov. 1996, IT-94-1-T; JRWD Jones (ed.), *Practice of the International Criminal Tribunal for the Former Yugoslavia* 165 (2nd ed. 1997).

¹³⁰ *Prosecutor v. Brđanin and Talić*, IT-99-36-PT, Decision on motion for production of documents – Dzonlic Testimony, 11 Mar. 2002.

¹³¹ For a full discussion of the negotiating history of rule 73 see note 19, D. Piragoff, *Evidence*, p. 357.

The clergy privilege is more narrowly defined, restricting the privilege to circumstances where it is an integral part of the practice of the religion concerned. However, unlike the professional privileges, the Court is required to honour the privilege when a communication fits within the definition.

Professional privileges other than lawyer-client will be evaluated on a class basis using the three criteria set out in sub-rule 73(2):1) the existence of a confidential relationship producing a reasonable expectation of privacy/non-disclosure, 2) a finding that confidentiality is essential to the relationship, and 3) a finding that the privilege furthers the objectives of the Statute and Rules¹³². These criteria mirror those used in many States to decide whether a privilege should be recognized¹³³.

The ICTY has ruled that the ICRC enjoys a privilege under international law because the nature of its work requires that it maintain absolute neutrality in conflict situations¹³⁴. Sub-rule 73(4) grants the International Committee of the Red Cross the right to assert an exemption from disclosure requirements regarding information, documents or other evidence that came into its possession in the course of or in consequence of performing its functions. The ICRC privilege is designed to protect its neutrality, covering all its communications as well as shielding its personnel from having to divulge anything they saw, heard or documented in the course of their work. Unlike the professional privileges, the privilege sought by the ICRC was intended to benefit the ICRC rather than a right of the accused or the right of a witness or victim. As a consequence, it is considerably broader than the professional privileges and can be asserted by the ICRC for its own protection. However, the rule places an onus on the ICRC to object in writing to disclosure should the Court determine that evidence in the ICRC's control is of great importance to a case. The rule seeks to promote consultations between the Court and the ICRC while preserving the ICRC's ability to assert its privilege.

The Rules of the ICTY on privilege focus on the lawyer-client relationship¹³⁵, but the tribunal has asserted its right to recognize additional privileges on a principled basis. The ICRC decision is the most notable example of this use of inherent jurisdiction. Recently, the ICTY also acknowledged the existence of a qualified form of journalistic privilege¹³⁶. The ICTY decisions are not precedents in any strict sense, since the ICC does not recognize *stare decisis* and, in any event, the ICC rule governing privileges is quite different from the comparable ICTY rule. However, the exact scope of any new privilege is not determined by the criteria in rule 73 and, in this regard, the decisions of the ICTY on additional privileges are likely to prove helpful.

The ICC Rules establish two important privileges for witnesses: the privilege against self-incrimination in rule 74 and the privilege against incrimination of family members in rule 75.

Rule 74 permits a witness to refuse to provide answers that may incriminate him or her absent assurances from the Court. Only incriminating answers are covered. Assurances can take the form of protective measures and commitments to confidentiality. If assurances are offered prior to attending at the Court, a witness who attends can be required to testify. If a concern about self-incrimination arises during testimony without prior assurances, the Chamber may still require the witness to answer provided it assures the witness that his or

¹³² Sub-rule 73 para. 2 ICC.

¹³³ See, e.g., for Canada: *Wigmore. Evidence*, rev. 1961, Vol. 8, para. 2285; for Germany: Judgment of the Federal Constitutional Court, 19 July 1972, BVerfGE 33, 363 (375).

¹³⁴ *Simić et. al.*, see note 27.

¹³⁵ Rule 97 ICTY.

¹³⁶ See *Prosecutor v. Brđanin and Talić*, IT-99-36-AR73.8, Decision on Interlocutory Appeal, 11 Dec. 2002. The Appeals Chamber in this case indicated that the amount of protection that should be given to war correspondents from having to testify is directly proportional to the harm that forced testimony may cause to the newsgathering function. A two-prong test was proposed: First, the petitioning party must demonstrate that the evidence sought is of direct and important value in determining a core issue in the case. Second, it must demonstrate that the evidence sought cannot reasonably be obtained elsewhere.

her answers will remain confidential and will not be disclosed to the public or any State, and will not be used in a subsequent prosecution of the witness, except under articles 70 and 71.

The Chamber must consider the criteria in sub-rule 74(5) before requiring a witness to answer a question. Sub-rule 74(6) gives a Chamber discretion to excuse a witness from answering a question even if assurances have been given and all witnesses must be notified of their privilege under rule 74 prior to giving their testimony. Rule 74 also places a duty on the Prosecutor to advise the Court of any possibility of self-incrimination. Rule 74 further guarantees a witness the opportunity to seek independent legal advice if an issue of self-incrimination arises during the proceedings.

Rule 75 gives a spouse, child or parent of an accused person the option to refuse to answer questions that may incriminate their family member. As is the case with rule 74, only incriminating answers are covered by the privilege. The rule is fairly narrowly drawn, in its focus on incriminating answers and a select number of relationships, but it still raised concerns at the Preparatory Commission for its potential to obstruct efforts to obtain crucial evidence. The solution agreed to was the addition of sub-rule 75(2), providing that the Court may take account of an objection by a witness to a question intended to contradict a previous statement made by the witness or if a witness proves selective in choosing which questions to answer. It needs to be emphasized that the family member privilege is discretionary and attaches to the witness rather than the accused.

VI. Paragraph 6

1. ‘facts of common knowledge’

- 58 Facts of common knowledge are facts which are so notorious that they do not require formal proof. They include the facts of which an informed and reasonable person has knowledge or which he or she can learn from reliable and publicly accessible sources, having regard to the circumstances of the case and, in the context of the ICC, to the parties involved. The question whether a fact is commonly known can only be decided with regard to the setting of the trial, *i.e.* the circumstances of the case¹³⁷. Examples include geographical circumstances, established historical data or possible natural causes of certain events. In the context of the ICC, as well as in the context of the ICTY, UN documents, including resolutions of the Security Council, will also likely be regarded as facts of common knowledge. It is for the Court to decide whether a given fact will require proof or whether it can be regarded as a fact of common knowledge. An important factor will be how widely the document or data in question is available and how widely it has been accepted as common ground.

2. ‘judicial notice’

- 59 The concept of judicial notice is well known in domestic criminal law. It enables the Court to enter facts of common knowledge into the records of the proceedings and to use them as a basis for the judgment without having to take formal evidence. In litigation between governments in the International Court of Justice, the concept can be more freely used than in the context of criminal proceedings against an individual¹³⁸. It is of the very first importance – especially with regard to a possible appeal – to have the facts upon which the decision is based clearly set out in the records and in the decision itself¹³⁹.

Unlike the ICTY and ICTR, the ICC Rules do not address judicial notice, its scope or limitations. The jurisprudence on the subject at the Tribunals will likely have significant weight with the ICC. The general test used by the ICTY was facts not reasonably subject to

¹³⁷ See Prosecutor of the ICTY, Transcript of Hearing in an interlocutory appeal before the Appeals Chamber, 7 Sep. 1995, pp. 107 *et seq.*; quoted in see note 129, JRWD Jones, 162 *et seq.*

¹³⁸ *Id.*, 163.

¹³⁹ See article 74, paras. 2 and 5.

dispute balanced against an accused's right to a fair trial¹⁴⁰. A decision of the ICTR suggests that voluntary admissions by an accused cannot be the subject of judicial notice, because such admissions do not make a fact indisputable, nor do they prove that a fact is generally accepted¹⁴¹.

An important form of judicial notice is notice of adjudicated fact. It provides an efficient way to introduce evidence that speaks to issues other than the acts or conduct of the accused without having to recall witnesses heard in other proceedings for further examination. The ICTY restricted this form of judicial notice to cover only facts explicitly accepted in a judgment which had already been appealed or where the time limit for appeal had already run out and where the general test for judicial notice supports admission¹⁴². Given the specific provisions in rule 68 for the admission of written transcripts, it is unlikely the Court will exercise their authority to admit adjudicated fact under their power of judicial notice. The ICTY has ruled that judicial notice of adjudicated fact does not prevent a party from challenging the fact in question; it only means that the fact does not have to be proved¹⁴³.

VII. Paragraph 7

Rule Cross-Reference: See rule 64 (Procedure to Determine Relevance or Admissibility of Evidence), rule 72 (in-camera procedure to consider relevance or admissibility of evidence)

1. Chapeau

a) **'Evidence obtained by means of'**. In light of the negotiating history, the presence of 60 paragraph 8 and the precedential value of the *ICTY Rules*¹⁴⁴, it is clear that paragraph 7 applies to the collection of evidence by either the Prosecutor or national authorities. Paragraph 8 clearly contemplates that the Court may decide on 'the relevance or admissibility of evidence collected by a State'. The phrase 'obtained by means of' contemplates some sort of causal relationship between the violation and the collection of the evidence. It will be up to the Court to determine the degree of causality required. This degree could vary depending on the right or procedure violated (*e.g.*, the collection of evidence in the context of a violation of the right to counsel could require less of a causal link than collection in the context of an illegal search and seizure).

b) **'a violation of this Statute'**. aa) **Statute**. A violation of the Statute is a relatively 61 straightforward concept, which could include a violation of any of the rights of an accused¹⁴⁵ or of victims or witnesses¹⁴⁶ or other substantive or procedural provisions of the Statute¹⁴⁷, provided that the violation is causally related to the collection of the impugned evidence.

¹⁴⁰ *Prosecutor v. Simić et al.*, IT-95-09-PT, Decision on Pre-trial Motion by the Prosecution Requesting the Trial Chamber to take Judicial Notice of the International Character of the Conflict in Bosnia-Herzegovina, 25 Mar. 1999.

¹⁴¹ *Prosecutor v. Semanza*, ICTR-97-20-I, Decision on the Prosecutor's Motion for Judicial Notice and Presumptions of Facts Pursuant to Rules 94 and 54, 3 Nov. 2000.

¹⁴² *Prosecutor v. Sikirica, Dosen, Kolundžija*, IT-95-8, Decision on Prosecution Motion for Judicial Notice of Adjudicated Facts, 27 Sep. 2000; See also *Prosecutor v. Kvočka et al.*, IT-98-30-1-T, Decision on Judicial Notice, 8 June 2000, and *Prosecutor v. Kupreskić et al. (a/k/a 'Vlado')*, Decision on the Motions of Drago Josipović, Zoran Kupreskić and Vlatko Kupreskić to Admit Additional Evidence pursuant to Rule 115 and for Judicial Notice to be taken pursuant to Rule 94(B), 8 May 2001, IT-95-16-A.

¹⁴³ *Prosecutor v. Ljubčić*, IT-00-41-PT, Decision on Prosecution's Motion for Judicial Notice of Adjudicated Facts, 23 Jan. 2003.

¹⁴⁴ Commentaries to rule 95 ICTY note that while 'a Trial Chamber is not bound by national rules of evidence, it will refuse to admit evidence – no matter how probative – if it was obtained by improper methods'. Report of the ICTY, UN GAOR, 49th Sess., UN Doc. A/49/342.S/1994/1007 (1994), at para. 26, footnote 9. See also *Prosecutor v. Delalić, Mucić, Delić and Landzo*, IT-96-21-T, Judgement, 16 Nov. 1998, para. 63.

¹⁴⁵ *E.g.*, articles 55, 67, and article 64, paras. 2 and 6 (e).

¹⁴⁶ *E.g.*, articles 57, 68, and article 64, paras. 2 and 6 (e).

¹⁴⁷ *E.g.*, articles 56, 57, and Part 9 of the Statute.

- 62 **bb) Rules.** During the debates in the Preparatory Committee, the question arose as to whether a violation of the Rules should also be considered in the context of the application of article 69 para. 7 or whether such violation should be addressed by a separate provision in the Statute or the Rules. It was decided at the March–April 1998 session that this question needed to be determined in the context of the consideration of articles 21 and 52 [now article 51]¹⁴⁸. At that time, article 52 para. 1 contained an option 1 that the ‘Rules of Procedure and Evidence ... shall be an integral part of this Statute’¹⁴⁹, and article 20 [now article 21] referred to both the Statute and the Rules, as it does now¹⁵⁰. During the Rome Conference option 1 of article 52 para. 1 was deleted. Did this signal a decision that references to the Statute did not also include a reference to the Rules¹⁵¹?
- 63 As articles 51 and 52 were being considered by a different working group, much of the debate in the working group that considered Parts V and VI, particularly in the early days of the Rome Conference, were premised on the Rules being an integral part of the Statute. Is the singular reference in article 69 para. 7 to ‘Statute’ a clerical error or intentional? One view is that the restriction is intentional. Violations of the Rules are not of the same order as a violation of the Statute. The Statute, for example, contains the fundamental principles governing the Court, the investigation, the trial procedure and the rights of the suspect or accused. Furthermore, the Rules did not exist at the time of the Rome Conference, and it was difficult to contemplate exclusion for their breach when their content was not yet known. Therefore, paragraph 7 applies only to a violation of the Statute. Violations of a lesser instrument, such as rules, might justify a different remedy or exclusion based on different criteria, or even the same remedy and criteria but explicitly addressed in the Rules. The other view is that the Rules are subordinate and derived from the Statute by virtue of article 51 and, despite any specific references to them in other articles, are an integral part of the Statute. Subject to a conflict, the Rules are to be applied by the Court in accordance with article 21. The distinction made between technical and substantive procedural rules in the ICTY *Kordić* decision provides some precedent that a measure of flexibility to tolerate breaches of the rules can be permitted so long as it does not impinge on the rights of the accused¹⁵².
- 64 In any event, article 64 para. 1 provides that the functions and powers of the Trial Chamber set out in that article shall be exercised in accordance with the Statute and the Rules, and paragraph 9 (a) of that article specifically empowers the Trial Chamber to rule on the admissibility or relevance of evidence. Accordingly, the question of the application of article 69 para. 7 to a violation of the Rules or, alternatively, the creation of a separate rule of exclusion for violation of the Rules can be adopted under the process set out in article 51.
- 65 **c) ‘internationally recognized human rights’.** As noted above in Part A, prior proposals had contained references to ‘internationally protected human rights’, the ‘rights of the defence’ or ‘other relevant rules of international law’. One interpretation of ‘international law’ was that it included the *ICCPR*. Some delegations were concerned that it might also include other rules of international law that had little, if anything, to do with human rights or the Statute, despite the qualifier ‘relevant’. Accordingly, the reference to international law was deleted by the Rome Conference. The phrase ‘internationally protected human rights’ was ‘intended to cover non-treaty standards as well and would therefore be broader than “international law”’¹⁵³. It could, for example, include recognised norms and standards developed by the United Nations in the field of criminal justice, as appropriate¹⁵⁴. While accepting that non-treaty rights could also be included, the reference to internationally

¹⁴⁸ Report of the Preparatory Committee (1998), see note 15, p. 131, fn. 17.

¹⁴⁹ ICTY Rules, see note 12, p. 87 (see Option 1).

¹⁵⁰ *Ibid.*, p. 55.

¹⁵¹ See Fernández de Gurmendi, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 235.

¹⁵² See *Kordić*, see note 72.

¹⁵³ Preparatory Committee Decisions Dec. 1997, p. 38, fn. 30.

¹⁵⁴ 1996 Preparatory Committee Report I, p. 61, para. 289.

'protected' human rights begged the question of which international human rights were not protected. Accordingly, the reference was changed during the March-April 1998 session of the Preparatory Committee to read 'internationally recognized human rights', as the key question was their international recognition. Some delegations had suggested the use of the phrase 'universal human rights' or 'universally recognized human rights', but this was not accepted either by the Preparatory Committee or the Rome Conference as it was considered to be too limiting. The qualifier 'internationally recognized' was considered to give sufficient precision but also flexibility for growth and application. The phrase was also subsequently adopted for use in the context of article 21 para. 3.

The Statute itself contains a number of provisions that afford human rights to a suspect or an accused person¹⁵⁵. The additional and specific reference to 'internationally recognized human rights', which encompasses rights not specifically mentioned in the Statute, is a clear intention that these human rights should also be respected, as their violation can result in the invocation of the remedy prescribed in article 69 para. 7. Human rights, the violation of which can trigger the operation of article 69 para. 7 are not limited to those specifically mentioned in the Statute. This interpretation is supported by article 21 para. 3. 66

d) '**shall not be admissible**'. Although article 69 para. 4 provides for a discretionary rule of exclusion, paragraph 7 stipulates a mandatory rule of exclusion if its conditions are met. Paragraph 4 creates a flexible balance in which various factors can be weighed against the probative value of the evidence. Paragraph 7, on the other hand, specifically stipulates specific predicate events regarding the manner of collection of the evidence and detrimental effects on the trial process which, if they are found to exist, justify exclusion. Nevertheless, the determination of the existence of those predicate events or effects necessitates the exercise of evaluation and, thereby, discretion by the Court. 67

Paragraph 7 makes no distinction between evidence proffered by the Prosecutor or the accused, or requested by the Court. Accordingly, the exclusionary rule could be applied against evidence proffered by any of these sources.

Other sanctions are also available to the Trial Chamber when the rights of the accused have been compromised, including adjournments and, in extreme cases, dismissal of charges. The ICTR has ruled that, before charges will be dismissed, any injustice done to the accused must be balanced against the damage that would result to the administration of justice¹⁵⁶. In the Baragawiya case at the ICTR, the Tribunal dismissed the case against the accused because of failures to respect the rights of the accused while in detention. The Appeals Chamber later reversed itself, citing new evidence that showed greater diligence by the Prosecutor than was apparent during the first appeal. The latter decision established the principle that a court must seek to balance any injustice done to the accused against the injustice that might result if his or her case does not proceed to verdict, taking into account all alternative sanctions available¹⁵⁷.

2. The different subparagraphs

a) '**The violation casts substantial doubt on the reliability of the evidence, or**'. This basis of exclusion reflects the concern that the manner by which the evidence is obtained, in violation of the Statute or internationally recognized human rights, can adversely affect the reliability of the evidence. Some forms of illegality or violations of human rights create the danger that the evidence, such as a confession obtained from a person during interrogation, may not be truthful or reliable as it may have been proffered as a result of the duress arising from the circumstances of the violation. Other forms of evidence require preservation or collection in a manner that safeguards the integrity and reliability of the evidence from 68

¹⁵⁵ E.g., articles 55 and 67.

¹⁵⁶ *Barayagwiza v. Prosecutor*, ICTR-97-19, Decision of the Appeals Chamber, 3 Nov. 1999.

¹⁵⁷ *Barayagwiza v. Prosecutor*, ICTR-97-19-AR72, Prosecutors Request for Review or Reconsideration, 31 Mar. 2000.

tampering, corruption or tainting¹⁵⁸. Paragraph 7 (a) requires that the effect of the violation of a procedural or substantive right of the Statute, or of internationally recognized human rights, must be of such degree that it ‘casts substantial doubt’ on the reliability of the evidence. Evidence created by the Prosecutor (*e.g.* identifications made under prosecutorial supervision) will likely be held to a high standard of reliability¹⁵⁹.

- 69 b) ‘The admission of the evidence would be antithetical to and would seriously damage the integrity of the proceedings’. This basis of exclusion includes, but is broader than, issues related to the reliability of the evidence. Despite a violation of the Statute or internationally recognized human rights, the evidence may be reliable or substantial doubt may not be cast on its reliability. Nevertheless, paragraph 7 (b) could afford a remedy. Likewise, the ‘violation’ need not be antithetical to, or damage, the proceedings for the purposes of obtaining the remedy under paragraph 7 (b). The detrimental effect in paragraph 7 (b) is triggered by the ‘admission’ of the evidence, not the ‘violation’ of the Statute or of internationally recognized human rights. A violation must exist as a precondition, as required by the chapeau of paragraph 7. However, it is the admission of that evidence, in light of the violation, that would be antithetical to or damage the integrity of the proceedings. The rationale for this paragraph is that it would be antithetical to the purposes and integrity of a Court, which was created to redress serious violations of international humanitarian law, to admit and use evidence that was obtained by means of a violation of its own Statute or internationally recognized human rights. Essentially, the admission and use of such evidence by the Court would damage the purpose and integrity of its own proceedings, which are to uphold the rule of law and human rights in the world (or, in the words of the preamble to the Statute, 2respect for the enforcement of international justice’ and ‘peace, security and well-being of the world’).
- 70 The assessment of ‘antithesis’ or ‘damage’ only has meaning in reference to the meaning to be given to the phrase ‘integrity of the proceedings’. While it can broadly be said that the purpose of the Court is to uphold the rule of law and human rights, that purpose is delinked by the context of the Statute. It has been suggested by one set of authors that ‘the respect for the integrity of the proceedings is necessarily made up of respect for the core values which run through the *Rome Statute*. Clearly no sole value can be singled out as guaranteeing the integrity of the proceedings and the *Rome Statute* represents an attempt to blend competing concerns and values into a coherent whole’¹⁶⁰. These authors have identified and evaluated some of the core values as being ‘respect for the sovereignty of States, respect for the rights of the person, the protection of victims and witnesses and the effective punishment of those guilty of grave crimes’. The authors evaluate how each of these core values is expressed, clash and is balanced throughout the Statute, and suggest that ‘the Court will have regard to the relative weight which should be accorded these values when ruling on the admissibility of evidence under article 69 (7)’¹⁶¹. The Court will be required to balance these abstract competing values within the context of determining whether the admission of a particular item of evidence would be antithetical to, and seriously damage, the integrity of the proceedings.
- 71 The dual test within paragraph 7 (*i.e.* the requirement for both a violation and a detrimental effect), together with the inherent discretion of the Court in determining the existence of these conditions, has raised the criticism that the paragraph permits the violation of some provisions of the Statute or of human rights, so long as that violation is not of such degree as to produce the detrimental effects set out in paragraphs (a) or (b). To some extent this is a valid criticism, but paragraph 7 is the product of obtaining consensus and

¹⁵⁸ *E.g.*, article 56 prescribes a number of safeguards with respect to the collection of evidence in relation to a unique investigative opportunity, the breach of which could affect the reliability of the evidence.

¹⁵⁹ *Stakić*, see note 21.

¹⁶⁰ Trapp and Lonsdale, see note 106, p. 21.

¹⁶¹ *Id.*, 22.

compromise. It is a balance of competing conceptions as to the basis for a rule of exclusion, as well as a mechanism to resolve the application of competing core values of the Statute within the concrete context of determining the admissibility of evidence in a particular case which, while probative, has been collected in manner that offends other values. As was noted in section 1, the detrimental effects in paragraphs (a) and (b) were listed conjunctively in earlier drafts. By listing these effects disjunctively in the final version of the Statute, drafters have made this exclusionary rule more accessible.

Nevertheless, there are particular guides in the Statute which appear to give pre-eminence 72 to particular values. Article 21 para. 1 (b), which is applicable where the Statute does not clearly resolve a matter, provides that applicable treaties and the principles and rules of international law shall be applied. In all cases, article 21 para. 3 provides that the application and interpretation of the Statute must be consistent with internationally recognized human rights, and be without any adverse distinction founded on a number of grounds therein exemplified. It can be argued, therefore, that there are some violations which, by their nature, are always so egregious or so inconsistent with internationally recognized human rights that the admission of evidence obtained as a result of such violation will always be antithetical to, or damage, the integrity of the proceedings. For example, in light of the clear obligations in the *Convention against Torture and Other Cruel, Inhuman and Degrading Treatment or Punishment* to refrain from the use of torture and to exclude any evidence obtained as a result thereof¹⁶², it can be argued that evidence obtained as a result of any amount of torture that is proscribed by the Convention would always be antithetical to, or damage, the integrity of the Court's proceedings.

VIII. Paragraph 8

1. 'deciding on the relevance or admissibility of evidence'

Given the historical background, this phrase clearly refers to decision regarding exclusion 73 of evidence under article 69 para. 7, but it also equally applies to decisions of admissibility made under paragraph 4. Paragraph 4 is the general provision concerning the relevance and admissibility of evidence. The procedure for challenging the admissibility or relevance of evidence is provided by rule 64. A Chamber must give its reasons for any ruling on evidentiary matters and evidence ruled irrelevant or inadmissible is automatically excluded.

2. 'collected by a State'

Given the historical background to paragraph 8, it is likely that no distinction exists 74 dependant on whether the evidence was collected by a State on its own initiative or at the request of the Prosecutor under Part 9 of the Statute.

Paragraph 8 does not address the issue of evidence collected illegally by a party other than the state or in violation of state sovereignty (e.g. evidence collected by U. N. personnel without specific authorization to do so, information collected by third country intelligence agencies or private parties). Given the negotiating history of paragraph 7, such evidence should generally be admissible, subject to the Court's discretion under paragraph 4.

3. 'shall not rule on the application of the State's national law'

This precludes the Court from adjudicating and making a decision about the applicability 75 of a State's national law to a particular factual situation related to the relevance or admissibility of evidence. The Court is not to rule on the validity of a decision of a national court, nor to make a decision as to whether or how a national law might apply. These are

¹⁶² 10 Dec. 1984, *ILM* 1027 (1984).

matters of domestic jurisdiction within the sovereignty of the particular State. The Court is to be guided by its own applicable law, as set out in article 21, and the provisions of article 69. It is to apply its law, and not the domestic law, in deciding on the relevance and admissibility of evidence¹⁶³.

- 76 Nevertheless, given the negotiation history, there is some support that, while the Court may not rule on the application of a State's national law as one of its legal functions, compliance or non-compliance with such law may be treated as a factual matter if relevant to the admissibility or weight of the evidence. Compliance or non-compliance with national law gives some additional factual context. However, it will be difficult for the Court to consider the issue of compliance or non-compliance if this matter is contested, as this would necessitate an adjudication by the Court which is specifically prohibited by paragraph 8.

¹⁶³ This is essentially how the ICTY proceeded in *Prosecutor v. Delalić, Mucić, Delić and Landzo*, IT-96-21-T, Judgement, 16 Nov. 1998, para. 63, and *id.*, Decision on Zdravko Mucić's motion for the exclusion of evidence, 2 Sep. 1997, paras. 48–53.

Article 70

Offences against the administration of justice*

1. The Court shall have jurisdiction over the following offences against its administration of justice when committed intentionally:
 - (a) Giving false testimony when under an obligation pursuant to article 69, paragraph 1, to tell the truth;
 - (b) Presenting evidence that the party knows is false or forged;
 - (c) Corruptly influencing a witness, obstructing or interfering with the attendance or testimony of a witness, retaliating against a witness for giving testimony or destroying, tampering with or interfering with the collection of evidence;
 - (d) Impeding, intimidating or corruptly influencing an official of the Court for the purpose of forcing or persuading the official not to perform, or to perform improperly, his or her duties;
 - (e) Retaliating against an official of the Court on account of duties performed by that or another official;
 - (f) Soliciting or accepting a bribe as an official of the Court in conjunction with his or her official duties.
2. The principles and procedures governing the Court's exercise of jurisdiction over offences under this article shall be those provided for in the Rules of Procedure and Evidence. The conditions for providing international cooperation to the Court with respect to its proceedings under this article shall be governed by the domestic laws of the requested State.
3. In the event of conviction, the Court may impose a term of imprisonment not exceeding five years, or a fine in accordance with the Rules of Procedure and Evidence, or both.
4. (a) Each State Party shall extend its criminal laws penalizing offences against the integrity of its own investigative or judicial process to offences against the administration of justice referred to in this article, committed on its territory, or by one of its nationals;
- (b) Upon request by the Court, whenever it deems it proper, the State Party shall submit the case to its competent authorities for the purpose of prosecution. Those authorities shall treat such cases with diligence and devote sufficient resources to enable them to be conducted effectively.

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* The opinions expressed here are solely that of the authors and do not necessarily reflect the views of the governments of Canada and the United States of America. The authors wish to acknowledge the significant assistance of Karine Bolduc, of the Canadian Department of Justice, in the revision of this chapter.

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A. Introduction/General remarks

- 1 Immediately following the provisions governing reception of evidence is article 70, which provides the Court with means for protecting itself against efforts to undermine both the reliability of that evidence and the impartiality of its decision-making process. Initially, article 70 delineates six offences punishing the falsification of testimony or physical evidence; efforts to influence the judicial process by impeding, corrupting, or retaliating against witness or officials of the Court; and efforts to otherwise interfere with the evidence gathering process.
- 2 Second, the framework for cooperation between the Court and the States Parties varies markedly from that regulating cooperation as to core crimes. With respect to offences against the administration of justice, States Parties retain far greater flexibility in their ability to apply their traditional regimes relating to extradition and mutual assistance. Rule 167 of the Rules of Procedure and Evidence further elaborates on the cooperation provision in article 70¹.
 Finally, although article 70 provides that the Court has jurisdiction over offences against the administration of justice, the Court may decide not to exercise it, especially if a State Party is willing to exercise jurisdiction. In fact, the Court has the authority to request States Parties to prosecute such offences if committed on their territory or by one of their nationals. To implement this duty, article 70 obligates States Parties to extend their domestic criminal laws governing offences against the administration of justice to offences against the Court that have been committed on their territory or by their nationals. Rule 162 provides guidance to the Court in exercising its discretion over whether or not to assume jurisdiction².
- 3 The ILC Draft Statute submitted to the General Assembly in 1994 had originally addressed the issue of safeguarding the integrity of the Court's proceedings in article 44, para. 2, which obligated States Parties to extend their perjury laws to cover testimony provided under the Statute, and to cooperate with the Court in investigating and prosecuting such offences³. In the August 1996 meeting of the Preparatory Committee's Working Group on Procedural Matters, proposals were made to provide the Court itself, rather than States Parties, with the power to punish such offences⁴; in addition, detailed proposals were made to regulate other forms of conduct that could harm the integrity of the Court administration of justice^{5,6}.
- 4 The Zutphen text of January 1998 condensed the definitions and provided the Court with jurisdiction to prosecute the expanded set of offences⁷. In the Spring of 1998, at the final Preparatory Committee, the Working Group on Procedural Matters again revised the definitions, reincorporating concepts contained in the 1996 compilation that had been omitted from the Zutphen text⁸. However, the Working Group was unable to resolve the issue of the extent to which exercise of jurisdiction by the Court should be pursuant to the same regime contemplated for core crimes⁹. This was left to the Rome Conference, where the

¹ Rules of Procedure and Evidence, UN Doc. ICC-ASP/1/3, rule 167.

² *Ibid.*, rule 162.

³ 1994 ILC Draft Statute, article 44, para. 2, p. 22.

⁴ 1996 Preparatory Committee Report II, pp. 210–213. In the August 1997 Abbreviated Compilation of proposals on Procedural Matters, pp. 44–46, the 1996 proposals were brought forward without modification.

⁵ *Ibid.*, pp. 212–213.

⁶ The proposals included sanctions relating to misconduct before the Court, which were the predecessor to article 71 of the Rome Statute. *Ibid.*, pp. 210–211, 213.

⁷ Zutphen Draft, article 63, p. 119.

⁸ Preparatory Committee Draft, article 70, p. 111.

⁹ *Ibid.*

Working Group on Procedural Matters developed the final texts of articles 70 and 71¹⁰. See the commentary to article 71, (sanctions for misconduct before the Court), following, for a description of the negotiation process that created both articles.

The provisions of the *ad hoc* Tribunals of Rwanda and Yugoslavia addressing contempt and offences against the administration of justice are not found in their statutes, but rather in their Rules of Procedure and Evidence. Article 77 of their Rules of Procedure and Evidence sets out a non-exhaustive list of conduct for ‘those who knowingly and willfully interfere with its administration of justice’¹¹. This has been interpreted to include not only contempt in respect of misconduct immediately before the tribunal, but also ‘conduct which tends to obstruct, prejudice or abuse its administration of justice’¹². Unlike the ICTY and ICTR Rules, the ICC Statute has split ‘offence against the administration of justice’ and ‘contempt’ into two separate articles, being articles 70 and 71, respectively.

B. Analysis and interpretation of elements

I. Paragraph 1

1. The chapeau

Paragraph 1 sets forth the definitions of six offences over which the Court may exercise 5 jurisdiction when the offences are committed in relation to Court proceedings. Although article 70 is contained in Part 6 of the Statute (pertaining to trial), there is no indication that the Conference intended to limit application of these crimes to actions taking place during the trial process alone. To interpret the scope of the article so narrowly would unduly limit the ability of the Court to protect the integrity of its processes. Accordingly, article 70 is most properly interpreted to apply to violations of paragraph 1 committed during other phases of the Court’s proceedings as well¹³.

Although the chapeau of paragraph 1 provides that the ‘Court shall have jurisdiction’ over the six listed offences, paragraph 4 grants concurrent jurisdiction to the State Parties in whose territory the offences were committed or whose nationals committed such offences. (See discussion below).

Paragraph 1 further provides that offences against the administration of justice over which the Court shall have jurisdiction must be committed ‘intentionally’. Does article 30, concerning mental element and, in particular its definition of ‘intent’, apply to article 70? Article 30 provides for a definition of ‘intent’ and ‘knowingly’ and a general rule of application to ‘a crime within the jurisdiction of the Court’. Article 5 refers to ‘crimes under the jurisdiction of the Court’ as being the four ‘core’ crimes. Therefore, on strict interpretation article 30 does not apply to article 70, as the latter concerns ‘offences’ against the

¹⁰ Report of the Working Group on Procedural Matters, UN Doc. A/CONF.183/C.1/WGPM/L.2/Add.7. The following UN documents are also useful in tracing the development of this article: A/CONF.183/C.1/WGPM/L.68; A/CONF.183/C.1/WGPM/L.68/Rev.1 and Rev.2.

¹¹ Rules of Procedure and Evidence of the International Criminal Tribunal for the former Yugoslavia, IT/32/REV.49, rule 77 and Rules of Procedure and Evidence of the International Criminal Tribunal for Rwanda, as adopted on 29 June 1995 and as amended as of 10 April 2013, rule 77.

¹² *Prosecutor v. Dusko Tadić*, IT-94-1-A-R77, Judgment on allegations of contempt against prior counsel, Milan Vujin, 31 January 2000, paras. 12–26.

¹³ This would include violations committed during the investigation, subsequent pre-trial proceedings (including, in appropriate cases, pursuant to a request of the Court for international cooperation), as well as during sentencing, appeal and revision proceedings. This interpretation is bolstered by the fact that, at the Rome Conference, the Working Group on Procedural Matters deleted language that would have limited application of the article of offences committed in the Court’s presence. See UN Doc. A/CONF.183/C.1/WGPM/L.68/Rev.1. See note 2, rules 63 and 163, provide further support that, subject to specific exceptions, the provisions of the Statute and the Rules apply broadly to each other.

administration of justice. Nevertheless, there are two arguments indicating that the definition of ‘intentionally’ in article 30 should apply to article 70. First, rule 163, sub-rule 1, provides explicitly that ‘the Statute and the Rules shall apply *mutatis mutandis* to the Court’s investigation, prosecution and punishment of offences defined in article 70’¹⁴, and none of the exclusions that are set out in the rule are applicable. Second, under the Statute the Court may, pursuant to article 21 (applicable law) be guided by the definition of ‘intent’ in article 30 in developing its interpretation of ‘intentionally’ for the purposes of article 70¹⁵.

2. The different subparagraphs

- 6 **a) False testimony.** Subparagraph (a) proscribes intentionally giving false testimony. The offence is committed whenever a witness gives perjured testimony after having given an undertaking to tell the truth pursuant to article 69, para. 1. Here again, although article 69 is in Part 6, there is no indication that the conference intended to limit use of the undertaking in article 69, para. 1, to solely the trial phase of the proceedings. This is confirmed in rule 63, sub-rule 1, which provides that the ‘Rules of evidence...together with article 69, shall apply in proceedings before all Chambers’¹⁶. Thus, the subparagraph should be interpreted to punish perjury committed during any phase of the proceedings carried out pursuant to the Court’s jurisdiction¹⁷.
- 7 **b) Presenting false evidence.** Subparagraph (b) makes punishable ‘[p]resenting evidence to the Court that the party knows is false or forged’. Like the giving of false testimony proscribed by subparagraph (a), the availability of criminal sanctions for this type of conduct is an important means of safeguarding the integrity and reliability of the Court’s proceedings and judgments.
- 8 **c) Corrupting, obstructing, or retaliating against a witness; destroying or tampering with evidence, or obstructing its collection.** Subparagraph (c) makes punishable a number of different forms of conduct aimed at influencing witness testimony or otherwise thwarting the production of reliable evidence. Since this subparagraph essentially condenses several offences proposed during the August 1996 Preparatory Committee, guidance may be derived from the original texts¹⁸. ‘Corruptly influencing a witness’ covers the direct or indirect offer of anything of value (e.g., a bribe) in order to influence the witness’s testimony¹⁹.
- 9 ‘[O]bstructing or interfering with the attendance or testimony of a witness’ addresses other conduct designed to prevent a witness from testifying, including threats, physical force or other forms of intimidation against the witness or a third party in order to discourage the witness from testifying²⁰. ‘Retaliating against a witness for giving testimony’ guards against

¹⁴ Rules of Procedure and Evidence, see note 2, rule 163. In the case of *The Prosecutor v. Paul Gicheru and Philip Kipkoech Bett*, ICC-01/09-01/15, Decision on the Prosecution’s Application under Article 58(1) of the Rome Statute, 10 March 2015, the Single Judge confirmed this interpretation of the role of rule 163, sub-rule 1, in establishing that article 30 should apply to article 70.

¹⁵ This latter argument would not likely apply to an application of article 30’s definition of ‘knowingly’ to rule 70, as it could be argued that the express reference to ‘intentionally’ would invoke the ‘unless otherwise provided’ proviso of article 30.

¹⁶ Rules of Procedure and Evidence, see note 2, rule 63.

¹⁷ See also see note 16.

¹⁸ 1996 Preparatory Committee Report II, see note 5, pp. 210–213.

¹⁹ *Ibid.*, p. 213 article []: (Obstructing the functions of the Court), paragraph 1 (c). In the case of *The Prosecutor v. Walter Osapiri Barasa*, ICC-01/09-01/13, Prosecution’s Response to ‘Warrant of arrest for Walter Osapiri Barasa’, 2 August 2013, while the Single Judge reviewed a number of the arguments put forward by the Prosecutor on the elements of the offence in article 70(1)(c) during the submissions made to issue the warrant of arrest under article 58, the Single Judge ultimately ruled that it was unnecessary to take a definitive position on interpretive issues or the precise scope of article 70(1)(c) of the Statute at the early stages of the proceedings and, instead, this should be determined in the context of proper adversarial proceedings.

²⁰ *Ibid.*, paragraph 1 (a). Such conduct could presumably be carried out against a third party for the purpose of influencing the witness.

physical force, threats or other forms of intimidation²¹. Finally, ‘destroying, tampering with or interfering with the collection of evidence’ penalizes efforts to improperly thwart the collecting of non-testimonial evidence, for example by destroying, altering or concealing relevant evidence of the commission of the core crimes²².

d) Corrupting, impeding or intimidating an official of the Court. Subparagraph (d) 10 punishes conduct aimed at corrupting, or using physical force, intimidation or threats against an official of the Court in order to prevent that person from carrying out his or her duties²³. It thus parallels a number of crimes relating to witnesses set forth in paragraph (c). The term ‘official of the Court’ is not defined in the Statute and was not further elaborated in the Rules of Procedure and Evidence. However, as can be drawn from article 34, it encompasses representatives of all four organs of the Court mentioned there.

e) Retaliating against an official of the Court. Similarly, subparagraph (e) parallels the 11 portion of subparagraph (c) that proscribes retaliation against witnesses. The term ‘on account of duties performed by...another official’ is an element additional to the initial 1996 proposal²⁴, which extends the sanction beyond retaliation against an official due to that particular official’s actions. It was included because retaliation against a Court official on account of another official’s actions would also have an overall chilling effect on the Court.

f) Solicitation or acceptance of a bribe by an official of the Court. Finally, ‘soliciting or 12 accepting a bribe as an official of the Court in conjunction with his or her official duties’ was added as an offence in Rome. The term ‘bribe’ is not defined in either the Statute or the Rules, but presumably includes the improper receipt of things of value other than cash.

II. Paragraph 2

As previously noted above, one issue addressed in Rome was the manner in which 13 prosecution by the Court of article 70 offences would take place. The debate revealed concerns by many delegations that various principles and procedures in the Statute were not appropriate for non-core crimes. For example, a number of delegations were of the view that the admissibility process under articles 17 through 19 was not appropriate for article 70 offences; some delegations thought the process of charging article 70 offences should be more simplified than the procedure for charging violations under articles 58 through 61 of core crimes; yet other delegations were concerned that the stringent obligations to cooperate under Part 9 of the Statute (particularly with respect to surrender of nationals) should not be applied to non-core crimes. There was also uncertainty regarding the extent to which Part 3 of the Statute (General Principles of Criminal Law) should be applied to article 70 offences.

Given the complexity of devising an appropriate procedure for prosecuting these offences and the little time available in Rome to resolve these issues, the conference decided as a general matter to leave elaboration of more detailed standards to the Rules of Procedure and Evidence. Thus, paragraph 2 of article 70 provides that the principles and procedures governing the Court’s exercise of jurisdiction over article 70 offences shall be provided for in the Rules of Procedure and Evidence. The recognition in paragraph 3 that the maximum penalty provided for these offences would be substantially less than for core crimes, and that elaboration and amendment of the Rules of Procedure and Evidence would be a rigorous process requiring approval of States Parties, provided comfort in arriving at agreement on the article.

The inclusion of the term ‘principles and procedure’ in the first sentence of paragraph 2 makes 14 clear that issues of substantive liability, as well as procedure, are to be spelled out in the Rules.

²¹ *Ibid.*, paragraph 1 (b). Such conduct, if left unchecked, might discourage other witnesses from testifying.

²² 1996 Preparatory Committee Report II., see note 5, paragraph 2.

²³ 1996 Preparatory Committee Report II, see note 5, p. 212; article [] (Influencing, impeding or retaliating against an official of the Court), paragraph (b).

²⁴ *Ibid.*

- 15 Chapter 9 of the Rules of Procedure and Evidence concerns ‘Offences and misconduct against the Court’, and Section I thereof provides eight rules related to ‘offences against the administration of justice under article 70’. Rule 163 explains the relationship between the Statute and the Rules. Sub-rule 1 states that the Statute and Rules shall apply with all necessary changes having been made (*mutatis mutandis*) to the Court’s investigation, prosecution and punishment of offences under article 70, except as otherwise provided by the Rules.

Due to the nature of the offences against the administration of justice, there are, however, some significant differences in how the Statute and Rules will apply with regard to article 70. Sub-rule 2 of rule 163 provides that Part 2 of the Statute, (jurisdiction, admissibility and applicable law) shall not apply, with the exception of article 21. Article 21 (applicable law) outlines the hierarchy that governs the Court’s application of the Statute, the Elements, the Rules and other sources of international law²⁵.

Likewise, sub-rule 3 states that Part 10 of the Statute (enforcement) shall not apply, with the exception of articles 103, 107, 109 and 111. These four articles deal with the role of States in enforcing sentences of imprisonment, transferring of the person upon completion of his or her sentence, enforcing fines and forfeiture measures and surrendering a convicted person who has escaped, respectively.

Rule 164 deals with the limitation period, which applies when the Court exercises jurisdiction in accordance with rule 162. Sub-rule 2 states that offences defined in article 70 shall be subject to a limitation period of five years from the date on which the offence was committed. However, if an investigation or prosecution has been initiated during this period, either before the Court or by a State Party with jurisdiction, the limitation period is interrupted. As per sub-rule 3, the enforcement of sanctions imposed with respect to article 70 offences are subject to a limitation period of 10 years from the date on which the sanction has become final. If the convicted person is detained or the person is outside the territory of the State Parties, the limitation period shall be interrupted²⁶.

Rule 165 governs the investigation, prosecution and trial of offences under article 70. Sub-rule 1 states that the Prosecutor may initiate and conduct investigations with respect to offences defined in article 70 on his or her own initiative, on the basis of information communicated by a Chamber or any reliable source. Sub-rule 2, however, provides that articles 53 (initiation of an investigation) and 59 (arrest proceedings in the custodial State) do not apply to article 70 offences²⁷. Furthermore, determinations can be made under article 61 (confirmation of the charges before trial) on the basis of written submissions without a hearing, unless the interests of justice require otherwise. In terms of trial procedure, the Trial Chamber may, taking into account the rights of the accused, direct that there be a joinder of charges under article 70 with charges under articles 5 to 8²⁸.

Rule 168 states ‘no person shall be tried before the Court with respect to conduct which formed the basis of an offence for which the person has already been convicted or acquitted by the Court or another court’²⁹. This rule fills a gap created by the exclusion of Part 2 (which includes article 20 on *Ne bis in idem*) by rule 163, sub-rule 2. Finally, as per rule 169, the Prosecutor may orally request that a Chamber order the immediate arrest of a person alleged to have committed an offence under article 70 if the offence was committed in the presence of the Chamber³⁰.

Other than the exceptions noted above, the provisions relating to the investigation, prosecution and punishment of core crimes apply *mutatis mutandis* to the offences in article 70.

²⁵ Rules of Procedure and Evidence, see note 2, rule 163.

²⁶ *Ibid.*, rule 164.

²⁷ Instead, pursuant to the second sentence of article 70 para. 2, the procedures for arrest and surrender to the Court of a person charged with an article 70 offence are those provided for by the laws of the State Party in which the person is found.

²⁸ Rules of Procedure and Evidence, see note 2, rule 165.

²⁹ *Ibid.*, rule 168.

³⁰ See note 2, rule 169.

The second sentence of article 70, para. 2 provides an important limitation to the general delegation of authority given to the drafters of the Rules in the first sentence of that paragraph. It states that where the Court seeks international cooperation from a State Party with respect to an article 70 offence that the Court is investigating or prosecuting, 'the conditions for providing international cooperation...shall be governed by the domestic laws of the requested State'. This formulation provides greater scope for a State to deny cooperation than provided in the provisions of Part 9. It would generally permit the requested State to apply grounds for granting or refusing extradition and mutual assistance provided for in its domestic laws that govern cooperation in criminal matters with other sovereign States. Thus, while nationality is not a ground for refusal of surrender for a core crime under article 89, a State Party in which extradition of nationals is otherwise prohibited would not be obliged to surrender a national to the Court for an article 70 offence³¹.

Although article 70, para. 2, prohibits the Rules from prescribing the conditions for providing international cooperation that are to be applied by States (as this is to be subject to each State's domestic law), the Rules elaborate conditions for the Court. Rule 167 deals with international cooperation and judicial assistance with regard to article 70 offences. Sub-rule 1 of rule 167 states that the Court may request a State to provide any form of international cooperation or judicial assistance corresponding to the forms of cooperation or assistance provided in Part 9 of the Rome Statute (International Cooperation and Judicial Assistance). When the Court requests such assistance, it must indicate that the basis of the request is an investigation or prosecution of an offence under article 70. Sub-rule 2 reiterates article 70, para. 2, and states that the 'conditions for providing international cooperation of judicial assistance to the Court with respect to offences under article 70 shall be those set forth in article 70, para. 2'³². Therefore, States Parties can apply their domestic law in determining the manner in which they fulfill these requests. The Court is governed by the procedures set out in the Statute and Rules.

III. Paragraph 3

Article 70 states that in the event of a conviction, the Court may impose a term of 16 imprisonment not exceeding five years, or a fine in accordance with the Rules of Procedure and Evidence, or both. While the Statute has imposed a maximum term of imprisonment, other aspects of the sentence have been left to the Rules. Rule 166 addresses sanctions for convictions under article 70³³.

First, rule 166 states that article 77 (the article that governs sanctions over those who have been convicted of a core crime) does not apply to article 70 offences, with the exception of an order for forfeiture under article 77, para. 2(b), which may be ordered in addition to imprisonment or a fine, or both. For all other sanctions, rule 166 applies.

Sub-rule 2 of rule 166 states that each offence may be separately fined and those fines may be cumulative. However, under no circumstances may the total amount of the fine 'exceed 50 per cent of the value of the convicted person's identifiable assets, liquid or realizable, and property, after deduction of an appropriate amount that would satisfy the financial needs of the convicted person and his or her dependants'³⁴.

³¹ Since article 86 obligates States to 'in accordance with the Provisions of this Statute, cooperate fully with the Court in its investigation and prosecution of crimes within the jurisdiction of the Court', and article 88 requires that States Parties 'ensure that there are procedures available under their national law for all forms of cooperation which are specified under this Part', each State Party appears obligated to have a legal basis for cooperating with the Court on article 70 crimes. The State Party's existing laws governing cooperation in criminal matters should suffice, as long as they provide for cooperation with international courts as well as other sovereign States.

³² Rules of Procedure and Evidence, see note 2, rule 167.

³³ *Ibid.*, rule 166.

³⁴ *Ibid.*

The Court must also allow a reasonable period in which to pay the fine and the Court may provide for payment of a lump sum or by way of installments during that period. If the convicted person does not pay the imposed fine, the Court may take appropriate measures pursuant to rules 217 to 222, and in accordance with article 109. Article 109 addresses the enforcement of fines and forfeiture measures and by sub-rule 166 para. 5 its provisions will apply to sanctions under article 70. In case of non-payment of a fine, the Court may impose a term of imprisonment in addition to any term which may have already been imposed. The Court will take into account the amount of the fine already paid in determining this term. Of course, pursuant to article 70 para. 3, the total period of imprisonment may not exceed five years.

IV. Paragraph 4

- 17 While the Rome Conference recognized that it would be impractical to leave the prosecution of article 70 offences exclusively to the jurisdiction of States Parties, it was also mindful of the fact that the Court might have insufficient time and resources to pursue all such offences, or might have difficulty exercising jurisdiction, or that it might otherwise be more appropriate in a particular case for a prosecution to be carried out by the State. For example, prosecution by a State Party might be required where the State will not extradite its national, or where the article 70 offence is so serious (*e. g.*, the retaliatory murder of a witness or Court official) that the maximum penalty under a prosecution by the Court might be insufficient.

1. Extension of criminal laws in States Parties

- 18 Subparagraph (a) is a modification of the original ILC approach³⁵. It requires States Parties to ‘extend its criminal law penalizing offences against the integrity of its own administration of justice to offenses against the administration of justice referred to in the article, committed on its own territory, or by one of its nationals’. This formulation does not require States Parties to enact a law to penalize conduct in a manner as exactly described in article 70, para. 1. Rather, States Parties are obliged to extend their laws applicable to domestic violations to violations against the Court committed on their territory or by their nationals. Some States may decide to extend existing domestic offences, and some may enact new offences modeled on article 70. The obligation on State Parties is that in some manner the conduct described in article 70 be a criminal offence under its domestic law. Thus, the legal framework put in place by each State Party to implement this obligation will not be completely uniform³⁶. In a case in which the State Party, of which the accused is a national or on whose territory the offence is alleged to have been committed, does not have criminal laws proscribing a form of conduct prohibited under paragraph 1, the sole option would be prosecution by the Court.
- 19 In many cases involving violations of paragraphs 1 (a) or (b) of article 70, the State on whose territory the crime was committed will be the Netherlands, the seat of the Court³⁷, but it could be another State if the Court decides to hold a session in that State pursuant to article 62, or when a State Party executes a request for mutual assistance under article 93³⁸. The remaining article 70 violations could also take place in other States. In many cases, the requirement that States make punishable such offences committed by their nationals will enable prosecution to take place where the perpetrator is found, which is particularly important if the State in question has a legal prohibition against the extradition of its nationals.

³⁵ See text accompanying see note 3.

³⁶ If a State has a more extensive regulation of crimes against its administration of justice that contained in paragraph 1, the text appears to require extension to offences committed against the Court.

³⁷ See article 3.

³⁸ See article 93, para. 1 (b), (requiring States to cooperate in the taking of ‘testimony under oath’ for use in Court proceedings).

2. Submission to competent State authorities upon request of the Court

At the time of publication, there have been no article 70 prosecutions at the ICC. However 20 in the Situation in the Republic of Kenya, two Chambers issued warrants of arrest under the ICC jurisdiction³⁹ and, due to the circumstances of the cases, did not consult with a State Party any states over the jurisdiction issue. Both warrants of arrest discussed the factors to be considered in rule 162, sub-rule 2 of the Rules, when determining whether there is a need to consult with any State Party that may have jurisdiction over the offences allegedly committed. In the Situation of the Central African Republic, an arrest warrant⁴⁰ was issued in the latter part of 2013, wherein the Single Judge discussed the issue of expediency when considering whether to consult with a State Party under rule 162 of the Rules. The charges were confirmed in 2014.⁴¹

C. Final remarks

At the time of publishing, there have been no article 70 prosecutions at the ICC. However 21 in the latter part of 2013, warrants of arrest were issued in relation to persons involved in two situations (Kenya and the Central African Republic) for alleged participation in article 70 offences⁴². The confirmation of charges hearings should happen some time in 2014.

Finally, it is interesting to note that in accordance with article 112, para. 4 of the Rome Statute, the Assembly of State Parties have established an Independent Oversight Mechanism⁴³, which has *proprio motu* investigative powers to conduct investigations into certain allegations of misconduct⁴⁴. However, the Independent Oversight Mechanism is explicitly not authorized to investigate offences under article 70⁴⁵.

³⁹ See *Gicheru and Bett*, see note 15, and see *Basara*, see note 20.

⁴⁰ *The Prosecutor v. Jean-Pierre Bemba Gombo, Aimé Kilolo Musamba, Jean-Jacques Mangenda Kabongo, Fidèle Babala Wandu and Narcisse Arido*, ICC-01/05-01/13, Warrant of arrest for Jean-Pierre BEMBA GOMBO, Aimé KILOLO MUSAMBA, Jean Jacques MANGENDA KABONGO, Fidèle BABALA WANDU and Narcisse ARIDO, 20 November 2013.

⁴¹ *The Prosecutor v. Jean-Pierre Bemba Gombo, Aimé Kilolo Musamba, Jean-Jacques Mangenda Kabongo, Fidèle Babala Wandu and Narcisse Arido*, ICC-01/05-01/13, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute, 11 November 2014.

⁴² *The Prosecutor v. Walter Osapiri Barasa*, ICC-01/09-01/13-1-Red2, Warrant of arrest for Walter Osapiri Barasa, 2 August 2013 and *The Prosecutor v. Jean-Pierre Bemba Gombo, Aimé Kilolo Musamba, Jean-Jacques Mangenda Kabongo, Fidèle Babala Wandu and Narcisse Arido*, ICC-01/05-01/13-1-Red2, Warrant of arrest for Jean-Pierre Bemba Gombo, Aimé Kilolo Musamba, Jean-Jacques Mangenda Kabongo, Fidèle Babala Wandu and Narcisse Arido, 20 November 2013.

⁴³ Resolution ICC-ASP/8/Res.1 (26 November 2009), as amended by Resolution ICC-ASP/12/Res.6 (27 November 2013).

⁴⁴ Resolution ICC-ASP/12/Res.6 (27 November 2013), paras. 28–29. The individuals subjected to the Independent Oversight Mechanism include all elected officials of the ICC, all staff subject to the Staff and Financial Regulations and Rules of the ICC and contractors and/or consultants retained by the court or working on its behalf.

⁴⁵ Resolution ICC-ASP/12/Res. 6 (27 November 2013), para. 30.

Article 71

Sanctions for misconduct before the Court

1. The Court may sanction persons present before it who commit misconduct, including disruption of its proceedings or deliberate refusal to comply with its directions, by administrative measures other than imprisonment, such as temporary or permanent removal from the courtroom, a fine or other similar measures provided for in the Rules of Procedure and Evidence.

2. The procedures governing the imposition of the measures set forth in paragraph 1 shall be those provided for in the Rules of Procedure and Evidence.

Directly relevant Rules of Procedure and Evidence: Rules 170 to 172.

Literature: Ambos, K., “Witness Proofing” before the International Criminal Court: A Reply to Karemaker, Taylor, and Pittman’, (2008) 21 *LeidenJIL* 911; Bornkamm, *Pressefreiheit und Fairness des Strafverfahrens. Die Grenzen der Berichterstattung über schwebende Strafverfahren im englischen, amerikanischen und deutschen Recht* (Nomos 1980); D’Ascoli, S., ‘Sentencing Contempt of Court in International Criminal Justice: An Unforeseen Problem Concerning Sentencing and Penalties’, (2007) 5 *JICJ* 735; Gut, T., *Counsel Misconduct before the International Criminal Court* (Hart Publishing 2012); Hiéramente, M., ‘In the Case Prosecutor v. Defence: Der Haftbefehl gegen Bemba und Mitglieder seines Verteidigungsteams vom 20.11.2013’, (2014) *ZIS* 123; Turner, J.I., ‘Policing International Prosecutors’, (2012) 45 *NYUJIL&Pol* 175; Sluiter, G., ‘The ICTY and Offences against the Administration of Justice’, (2004) 2 *JICJ* 631.

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A. General remarks*

I. Content and context

- 1 Article 71 bestows upon the Court **regulatory powers to sanction** persons present before it with administrative measures for misconduct. The provision’s exact scope of application is yet to be fully determined. According to the (only, and thus) leading Appeals Chamber decision, article 71 powers are *prima ratio*, and serve to ensure compliance with court orders (see mn. 2 and 31).¹ As put forward at the end of article 71(1) as well as in article 71(2), this

* Many thanks to stud. iur. Malena Todt for her proof reading.

¹ *Prosecutor v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I of 8 July 2010 entitled ‘Decision on the Prosecution’s Urgent Request for

provision has to be read in conjunction with rules 170, 171 and 172 RPE, which spell out more (albeit not all) details and thus bring about some degree of legal certainty about the preconditions, procedures and consequences of a sanctionable misconduct. At minimum, article 71(1) and rules 170, 171 allow for upholding and policing court order during session (also *cf.* the German concept of ‘*Sitzungspolizei*’). Whether (and to what extent) article 71(1) goes beyond this basic notion of upholding order, and whether (and to what extent) article 71(1) is comparable to the *ad hoc* tribunals’ ‘contempt of court powers’², is open for discussion (see mn. 23 and 26).

Article 71 essentially **protects** the fair, impartial and effective administration of justice of 2 and before the Court. From the history of the few relevant drafts and articles on the international level (see mn. 6) it follows that the dignity and decorum of the proceedings are safeguarded as well. Article 71 avails the Court with the power to enforce the ‘smooth running’ of the case before it, and thus upholds fair as well as effective criminal proceedings by enabling the Court to exercise its jurisdiction properly, i.e. undisturbed by disruptive influences. – The **purpose** of article 71 sanctions are regulatory in nature, which leads to an intersection of repressive as well as preventive, punitive as well as policing sanctioning rationales. As noted by the Appeals Chamber, article 71 provides the Court ‘with a specific tool to maintain control of the proceedings and, thereby, to ensure a fair trial when faced with the deliberate refusal of a party to comply with its directions. The purpose of such sanctions is not merely [...] to punish the offending party, but also to bring about compliance’³.

Article 71 forms part of an overall regime to punish, sanction, repress and prevent, i.e. to 3 **police infringements upon the integrity of the administration of international justice**. The scope and powers of and the exact delineations within this regime are not yet fully explored:

- Article 70 encompasses many ‘classical’ offences against the administration of justice (like *inter alia* perjury and obstruction). Other than under the common law doctrine of ‘contempt of court’ (see mn. 4 *et seq.*), and other than under the RPEs of other international criminal tribunals (ICTY; ICTR; SCSL)⁴, these offences are no procedural offences in the narrower sense, i.e. the ‘victim court’ does not act as *iudex in sua causa*⁵ under the Rome Statute (*cf.* rule 165).
- Articles 46 and 47 foresee special sanctions (removal from office, article 46; disciplinary measures, article 47), if a judge, the Prosecutor, a Deputy Prosecutor, the Registrar or the Deputy Registrar is found to have committed (serious, article 46; or less serious, article 47) misconduct or a breach of her or his duties.
- Articles 30 *et seq.* of the Code of Professional Conduct for counsel contain a special disciplinary regime, especially in case of counsel misconduct. Article 31 of this Code reads:

‘Counsel commits misconduct when he or she:

- (a) Violates or attempts to violate any provisions of this Code, the Statute, the Rules of Procedure and Evidence and the Regulations of the Court or of the Registry in force imposing a substantial ethical or professional duty on him or her;
- (b) Knowingly assists or induces another person to commit any misconduct, referred to in paragraph (a) of this Article, or does so through the acts of another person; or
- (c) Fails to comply with a disciplinary decision rendered pursuant to this chapter.’

Variation of the Time-Limit to Disclose the Identity of Intermediary 143 or Alternatively [...], Appeals Chamber, 8 October 2010, paras. 55 *et seq.* [doc947768.pdf].

² As suggested notably by Ambos (2008) *Leiden*JIL 911, at 916. For the countervailing point of view see Gut, *Counsel Misconduct before the International Criminal Court* (2012) 256 *et seq.*

³ *Prosecutor v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I of 8 July 2010 entitled ‘Decision on the Prosecution’s Urgent Request for Variation of the Time-Limit to Disclose the Identity of Intermediary 143 or Alternatively [...], Appeals Chamber, 8 October 2010, para. 59 [doc947768.pdf].

⁴ See rule 77 of the respective RPE.

⁵ For more details see Piragoff, Article 70. – As to the different approaches to offences against the administration of justice in common and civil law jurisdictions also *Cf.* Sluiter (2004) 2 *JICJ* 631, 631 *et seq.*

- Section 5 of the Code of Conduct for the Office of the Prosecutor contains rules on 'Discipline' within the OTP. *Inter alia*, according to rule 74 of this Code,

'[a]ny unsatisfactory conduct may result in the Prosecutor imposing appropriate disciplinary measures in accordance with Chapter X of the Staff Rules.'
- Regulation 29 deals with 'Non-compliance with these Regulations and with orders of a Chamber' and reads:
 1. In the event of non-compliance by a participant with the provisions of any regulation, or with an order of a Chamber made thereunder, the Chamber may issue any order that is deemed necessary in the interests of justice.
 2. This provision is without prejudice to the inherent powers of the Chamber⁶.
- Trial Chamber V has recently suggested that the Court enjoys 'the power to address misconduct occurring *outside the courtroom* by having recourse to its broad discretionary powers to ensure a fair trial and uphold the interests of justice as provided for in article 64(2) of the Statute and to rule on any other relevant matter in performing its functions as provided for in article 64(6)(f) of the Statute.' This was deduced from 'the concept of *'inherent powers'* which provide courts with authority to undertake all acts reasonably required to efficiently perform their function.'⁷ (On this issue see mn. 18).
- Other reactions to misconduct include the exclusion of tainted evidence (brought about e.g. by defence misconduct) or, as the most drastic remedy, a stay of proceedings if (esp. prosecutorial) misconduct renders a trial unfair; the latter became prominent twice in *Lubanga*. (On this issue see mn. 31)⁸.

II. Historical overview

- 4 **Contempt of court** is a well-known common law concept used to describe certain offences or (mere) misconduct committed in the face of a court and punishable directly by the court confronted with the act or by another chamber of the same court. Such a reaction by the judiciary is broadly accepted in many legal systems of the world, albeit with differing concepts as to what kind of behaviour falls within the overall notion of contempt of court and where to draw the line between offences against the integrity of the court and less severe misconduct⁹. Contempt of court can be described as 'means whereby the courts may act to prevent or punish conduct which tends to obstruct, prejudice or abuse the administration of justice either in relation to a particular case or generally'¹⁰.

⁶ As rightly noted by Schabas, *An Introduction to the International Criminal Court* (2011) 156, '[i]t is not clear what these inherent powers may be.'

⁷ *Prosecutor v. Kenyatta*, ICC-01/09-02/11, Decision on the Defence application concerning professional ethics applicable to prosecution lawyers, Trial Chamber V(B), 31 May 2013, para. 14 *et seq.* (emphasis added) [doc1599174.pdf].

⁸ Also see Jacobs, in: De Hert et al. (eds.), *Code of International Criminal Law and Procedure, Annotated* (2013) 355, at 357.

⁹ See for a comparison of the concept of contempt of court in the Anglo-American criminal justice system and relevant regulations especially in Germany Bornkamm, *Pressefreiheit* (1980). See for Austria the applicability of common crimes like perjury committed during the pre-trial proceedings or intimidating witnesses, §§ 233(3)–237 öStPO (Austrian Code of Criminal Procedure) and for offences in the courtroom §§ 277 and 278 dStPO (German Code of Criminal Procedure). See for Germany § 70 ('Grundlose Zeugnis- oder Eidesverweigerung'; refusal to give evidence or to swear), and § 77 ('Folgen des Ausbleibens oder der Weigerung'; consequences of non-appearance and refusal), German Code of Criminal Procedure. See also § 176 and especially 177 ('Maßnahmen zur Aufrechterhaltung der Ordnung'; measures to uphold court order), and § 178 ('Ordnungsmittel wegen Ungebühr'; sanctions for misconduct) of the Gerichtsverfassungsgesetz.

¹⁰ This was recently confirmed by The [UK] Law Commission (LAW COM No 340), *Contempt of Court (1): Juror Misconduct and Internet Publications* (2013) 1 (available online at <http://lawcommission.justice.gov.uk/docs/lc340_contempt_of_court_juror_misconduct.pdf> accessed 9 February 2015). – It was also favourably quoted in *Prosecutor v. Tadić*, IT-94-1-A-R77, Judgement, Appeals Chamber, 31 January 2000, para. 14 and fn. 14 thereto.

Other international criminal tribunals enjoyed or still enjoy powers very much akin to the common law contempt powers¹¹: The acceptance of this concept as such, especially in common law countries, made it unnecessary to regulate its applicability during the Nuremberg and the follow up trials against Nazi war criminals in the *IMT Statute* or its Rules or in other laws designed for the prosecution of such crimes after the Second World War. The IMT-Charter just stated in Article 18(c) that the Tribunal shall ‘deal summarily with any contumacy, imposing appropriate punishment, including exclusion of any Defendant or his counsel from some or all further proceedings, but without prejudice to the determination of the charges’. Before the IMT itself, no contempt matter arose. But the United States Military Tribunals sitting later in Nuremberg had to deal with three such matters, namely in the cases against *Karl Brandt*, *Joseph Altstoetter* and *Alfried Krupp von Bohlen and Halbach*¹². – Regulations concerning offences against the integrity of the court or contempt of court were not proposed in international documents elaborated within or outside the UN for developing international criminal law and its jurisdiction, like the *ILC Draft Codes* and *Draft Statutes* expounded in the early fifties. In the seventies and eighties, however, contempt of court received more attention at the *international* level when terrorists all over the world tried more or less successfully to use the trials against them as an opportunity to spread their political ideas and to intimidate or at least to irritate the criminal justice systems responsible for their trial. To avoid such disturbances, regulations at the *national* level were introduced or improved in order to clearly mark the limits of what would not be tolerated. – Against this background, the issue of contempt was ‘only’¹³ included in the RPEs of the ICTY and ICTR in the middle of the 1990s. Up until today, rule 77 regulates contempt of court,¹⁴ and treats the ‘victim court’ as *iudex in sua causa*. Rule 77 summarily encompasses mere regulatory as well as severe substantive offences against the administration of justice that can carry a sentence of up to seven years of imprisonment or a fine up to 100,000 Euros or both (rule 77(G) RPE ICTY). In addition, rules 80(B) RPE ICTY and ICTR (on ‘Control of Proceedings’) provide that persons other than the accused can be removed from the courtroom to guarantee the right of the accused ‘to a fair and public trial’ or ‘to maintain the dignity and decorum of the proceedings’; and under rules 80(B) RPE ICTY/ICTR, the Trial Chamber may remove an accused from the courtroom if he or she ‘has persisted in disruptive conduct following a warning that such conduct may warrant the removal’.

During the immediate **drafting process for the Rome Statute**, the first proposals for ‘Offences against the integrity of the Court’ appeared in the abbreviated compilation drafted by the Preparatory Committee in August 1997 and in its Report on its Fifth Session, of December 1997¹⁵. In both documents an article 44*bis* nominates in four groups offences like perjury, ‘influencing, impeding or retaliating against officials of the Court, obstructing the functions of the Court’ and ‘contempt committed during the course of its proceedings’. It provided for imprisonment not exceeding a still undefined number of months or years or a fine or both. Agreement was expressed that ‘the precise formulation of this article must be further reflected upon’ and ‘that these offences required further definition in the Statute’¹⁶. Article 44*bis* was verbally included with its footnote as article 63 in the *Zutphen Draft* January 1998. In addition, only reference was made to ‘article 5 [20] (Crimes within the jurisdiction of the Court)’, in the context of which it has been noted: ‘It might be necessary to

¹¹ See also the account given in *Prosecutor v. Tadić*, IT-94-1-A-R77, Judgement, Appeals Chamber, 31 January 2000, paras. 12 *et seq.*

¹² See *Prosecutor v. Tadić*, IT-94-1-A-R77, Judgement, Appeals Chamber, 31. Jan. 2000, para. 14 and fn. 14 thereto.

¹³ As to sentencing contempt before the ICTY, ICTR and SCSL being an ‘unforeseen problem’ and as to problems of reconciling it with the principle of legality, see D’Ascoli (2007) 5 *JICJ* 735, esp. 750 *et seq.*

¹⁴ On contempt before the ad hoc tribunals and a discussion on rule 77 RPE ICTY/ICTR see Turner, in: De Hert et al. (eds.), *Code of International Criminal Law and Procedure, Annotated* (2013) 358.

¹⁵ For the abbreviated compilation see Preparatory Committee Decisions August 1997, 44–46. For the Report of the fifth session see Preparatory Committee Decisions December 1997, 31.

¹⁶ See note 32 on Article 44*bis* in the Preparatory Committee Decisions December 1997.

have a cross-reference to article 63 [44bis] (Offences against the integrity of the Court) in this Part', a proposal that was not included in the final Statute¹⁷. The discussion of the Zutphen Draft during the last session of the Preparatory Committee produced a more extensive version in a corresponding article 70, headed 'Offenses or acts against the integrity of the Court' (emphasis added), and containing more precise definitions of individual offences or acts of misconduct. However, these proposals did not, as before, with regard to the determination of the 'applicable procedure for these offences' refer exclusively to the rules, recommending instead that only specific questions be solved '*in accordance with the rules*' (emphasis added). In a note it was expressly stated:

'It is not contemplated that all the provisions of the Statute and Rules, whether substantive or procedural, regarding the Court's exercise of jurisdiction over article 5 crimes would apply equally to these offenses. Further work to clarify this issue will be essential. Moreover, similar thought must be given to States parties' obligation to surrender persons charged with these offenses, especially when the State Party is pursuing prosecution itself'¹⁸.

- 7 During the last week of the **Rome Conference**, when the need for a compromise became more and more urgent, the rather neutral concept of what is now article 71 was agreed upon. It appeared important to have a separate regulation besides articles 70 and 63(2) (i.e. the offenses against the administration of justice and the rather limited possibilities to remove the accused from the courtroom). It was necessary, however, to have an additional article dealing with a broad(er) concept of misconduct before the Court. In order to strike a compromise, it was agreed upon to give only examples in article 71(1) and to leave the finer points for the RPE (see article 71(2)). With this constructive ambiguity, consensus was achieved rather quickly and efforts concentrated on aspects of the Statute that were considered to be more important.
- 8 The drafting history of article 71 gives rise to two **evaluative remarks**: *First*, in contrast to the ad hoc tribunals' approach, the Rome Statute follows its own path. 'Contempt of court' is no longer a catchall formula to describe possible inherent powers of the Court to sanction all possible infringements upon its administration of justice. Rather, by distinguishing between articles 70 and 71, by leaving the details of sanctions for misconduct before the Court to the RPE, and by providing that offenses under article 70(1) lead to an autonomous investigation, prosecution and trial¹⁹, the Statute opted for a more formalized and more precise codification of the offenses²⁰ against the integrity of meting out international criminal justice²¹. One should hence tread lightly when interpreting article 70(1) in light of the jurisprudence of the ad hoc tribunals in particular or even the contempt concept in general. – *Second*, article 71 should be seen for what it is: a (possibly under-reflected, and possibly ambiguous) compromise during the Rome negotiations. The wording of this provision might thus not be the final arbiter of all interpretational disputes.

B. Analysis and interpretation of elements

- 9 Article 71 merely sets the **framework** for sanctioning misconduct before the Court and does not regulate the subject matter in all details. This holds true with regard to the (personal, institutional, temporal, and substantive) preconditions of sanctionable misconduct (see mn. 10 *et seq.*), the sanctions available to the Court (see mn. 26 *et seq.*), and the

¹⁷ See Zutphen Draft, and for article 5[20] there 16 *et seq.*

¹⁸ See Preparatory Committee (Consolidated) Draft, 132. This proposal was slightly amended by including 'retaliation against a witness's family and intimidation of a witness or his family' and by leaving out the brackets of the Consolidated Draft in the Model Draft Statute for the International Criminal Court presented by Bassiouni/Sadat Wexler (1998) 13 *NEP*, at 106 and 107.

¹⁹ Ambos (2008) *LeidenJIL* 911, at 916.

²⁰ Sharing this notion Hiéramente (2014) *Zeitschrift für Internationale Strafrechtsdogmatik* 123, at 123.

²¹ D'Ascoli (2007) 5 *JICJ* 735, at 755. Also Cf. Friman, in: Cryer et al., *Introduction ICL* (2014) 478.

sanctioning procedure (see mn. 32 *et seq.*). Rules 170 to 172 supply more details, yet far from exhaustive regulations. There is thus ample room for interpretation.

I. Personal scope of application: ‘persons’ present before the Court

Article 71 protects the fair, impartial and effective administration of justice by and before the Court, and hence **protects every person** involved in meting out justice. This includes *inter alia* judges, prosecutors, counsel, the accused, witnesses, and the general public partaking in a trial session. If, for example, a prosecutor misconducts by harassing a witness, or a witness misconducts by insulting the accused, the defensive personal scope of application of article 71 is established even if Judges are not the focus of the ‘attack’. This is because misconduct against any person before the Court may disturb the proper development of the proceedings before the Court.

At first glance, persons present before the Court are only those not belonging to one of the organs of the Court. This narrow interpretation is supported by the fact that articles 46 and 47 provide specific sanctions for misconduct of Judges, Prosecutors and members of the Registry, indicating in article 47 that disciplinary measures are available for ‘misconduct of a less serious nature’. This restrictive approach, as it was put forward in the previous edition, is however overturned by rules 170 and 171 as well as by the Court’s more recent jurisprudence. Rule 170(a) uses the neutral formulation that ‘a’ (i.e. any) person disrupting the proceedings can be removed from the courtroom. And rule 171(2) explicitly allows for sanctions against ‘an official of the Court, or a defence counsel, or a legal representative of victims.’ This suggests that article 71 **does not contain a ‘special regulatory offense’** (*Sonderdelikt*), and rather aims against misconduct committed by every person factually or legally involved in meting out international justice, with the notable exception of judges active in the trial in question. While active judges are not ‘before’ the Court, but rather ‘are’ the Court, all other persons can be ‘before’ it. Therefore, article 71 *inter alia* applies against the audience and legal representatives of victims as well as against the following groups of persons:

The accused: If the accused ‘continues to disrupt the trial’, article 63(2) is – as the chapeau of rule 170 is also remindful of – the *lex specialis*. For all other forms of misconduct of the accused, article 71 is applicable²².

Counsel²³: Articles 30 *et seq.*, especially article 31 of the Code of Professional Conduct for counsel, do *not* represent absolute *leges speciales*. Rather, they can apply coincidentally, although they follow different procedural regimes.²⁴ This allows, for instance, that a misconduct committed by counsel be sanctioned by a fine under article 71(1), rule 171(1) and (4) as well as by a permanent ban on practicing before the Court under article 42(1)(e) of the Code of Professional Conduct for counsel. However, where article 42(1) of this Code foresees sanctions not covered in rules 170 and 171 (i.e. with regard to an admonishment or a public reprimand with an entry in counsel’s personal file), article 71(1) must not be used to circumvent the special procedures of said Code (see also mn. 29). – When applying article

²² See also Schabas/Caruana, *Article 63*, mn 15 *et seq.* – A more restrictive view is advanced by Elberling, *The Defendant in International Criminal Proceedings* (2012) at footnote 544.

²³ The applicability of article 71 to counsel is confirmed by *Prosecutor v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I of 8 July 2010 entitled ‘Decision on the Prosecution’s Urgent Request for Variation of the Time-Limit to Disclose the Identity of Intermediary 143 or Alternatively [...]’, Appeals Chamber, 8 October 2010, para. 59 [doc947768.pdf], which applies article 71 indiscriminately against ‘the parties’. – For a partially countervailing position Cf. Triffterer, in: Bellelli (ed.), *Turin Conference on International Criminal Justice 14–18 May 2007* (2008), 4.1.1. therein. – For an extensive analysis of counsel misconduct see Gut, *Counsel Misconduct before the International Criminal Court* (2012).

²⁴ See *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Decision on the ‘Submissions of the Libyan Government with respect to the matters raised in a private session during the hearing on 9–10 October 2012’, Pre-Trial Chamber I, 21 November 2012, para. 29 [doc1511935.pdf].

71(1) against counsel, *special considerations* have to be paid to the fact that counsel enjoy important privileges by law. Although not mentioned in article 34 as organs of the Court, counsel act as independent organs of the international criminal justice system; as such, they are an indispensable part of the administration of justice (*‘Organe der Rechtspflege’*). This means that counsel deserve a high degree of trust, and a high degree of protection against any discretionary regulatory power of the Court in order to exercise their functions properly. Counsel must in other words not be intimidated or scared by the threat of being sanctioned administratively under article 71. Its application must not interfere with their obligation to act with integrity and diligence, honourably, freely, independently, expeditiously and conscientiously (as stated in article 5 of the Code of Professional Conduct for counsel). – However, this does not grant counsel absolute immunity from actions under article 71. As noted by the ICTY:²⁵

Courts and tribunals necessarily rely very substantially upon the honesty and propriety of counsel in the conduct of litigation. Counsel are permitted important privileges by the law which are justified only upon the basis that they can be trusted not to abuse them. It unfortunately happens that counsel occasionally do abuse those privileges or act dishonestly or improperly²⁶.

- 14 **Prosecutors:** Articles 46 and 47 as well as Section 5 of the Code of Conduct for the Office of the Prosecutor do *not* represent absolute *leges speciales*. Although unheard of in many national jurisdictions, sanctioning the OTP for misconduct under article 71 – e.g. because of non-compliance with court orders or because of not following protocols (for instance in the collection of evidence) – may well become the *via regia* to police international prosecutors (see mn. 31)²⁷; the downside of this is of course that motions to initiate article 71 action can be turned into procedural ‘weapons’ by the defense²⁸. There is hence no primacy of disciplinary proceedings against the OTP, and the Court may take matters in its own hands to enforce its orders, the Statute and the demands of international criminal procedure. As the Appeals Chamber has noted:

Given their specific inclusion in the Statute and Rules of Procedure and Evidence, sanctions under article 71 and rule 171 are the normal and proper means to bring about compliance in the face of refusals to follow the orders of a Chamber. Recourse to sanctions enables a Trial Chamber, using the tools available within the trial process itself, to cure the underlying obstacles to a fair trial, thereby allowing the trial to proceed speedily to a conclusion on its merits.²⁹

- 15 **Witnesses:** Victims may be sanctioned for misconduct even if they do not hold the position of a witness. However, the Court ought to take into consideration their special situation, for instance, a traumatization or the sufferings they have been exposed to and which may have to be – at least partly – recalled for reasons of evidence and thus confront the victim again with his or her sufferings. A mere warning, therefore, may be more adequate, especially when victim-witnesses commit misconduct during cross-examination. – Under rule 74(3)(c)(ii), the Chamber may require a witness, who enjoys *nemo tenetur* rights, to answer questions after assuring the witness that the evidence provided in response to the questions will not be used either directly or indirectly against her or him in any subsequent prosecution by the Court, except – and here comes the important point – under articles 70 and 71.

²⁵ As to the ICTY contempt cases, which aimed against several members of the defence, see the case information sheets summarized under <<http://www.icty.org/action/contemptcases/27#casetabs>> accessed 17 September 2015.

²⁶ *Prosecutor v. Tadić*, IT-94-I-A-R77, Appeals Chamber, Judgement, 31 January 2000, paras. 166 *et seq.*

²⁷ Strongly supporting this approach Turner (2012) 45 *NYUJIL&Pol* 175.

²⁸ See e.g. the *Prosecutor v. Mbarushimana*, ICC-01/04-01/10, Defence waiver of privilege and request to consider sanctions for misconduct, Defence for Mr. Callixte Mbarushimana, 30 June 2011 [doc1101287.pdf].

²⁹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I of 8 July 2010 entitled ‘Decision on the Prosecution’s Urgent Request for Variation of the Time-Limit to Disclose the Identity of Intermediary 143 or Alternatively [...]’, Appeals Chamber, 8 October 2010, paras. 59 *et seq.* [doc947768.pdf].

II. Institutional, temporal and local scope of application: persons ‘present’ ‘before’ ‘the Court’

Article 71 confers the power to sanction misconduct to **the Court** when this misconduct is committed before it. As article 71 is part of Part 6 of the Statute (‘The Trial’), at first glance and in light of a systematic interpretation, the institutional scope of application of article 71 is highly limited and reserved to when a *Trial* Chamber is in session. However, a teleological analysis leads to a broader reading. The aim of ensuring the fair, impartial and smooth administration of international criminal justice requires that the Court can effectively counter misconduct whenever it convenes in a judicial function (i. e. not when it only convenes in an administrative or even a merely private function). Article 71 thus does not only protect Trial Chambers, but also Pre-Trial as well as Appeals Chambers, since the undisturbed exercise of their functions is as important as the proper functioning of the Court when leading a trial. Article 71 thus encompasses misconduct before any Chamber or Single Judge. 16

The physical site of the misconduct is irrelevant, as long as it takes place **before the Court**. Article 71 is not limited to *public* sessions. Misconduct may interfere with the effective work of the Court irrespective of whether it is presented during a public or a *closed* session. A distinction has to be drawn between an on-site session of a Chamber, where all parties are present ‘before it’ (the Court) and on-site investigations by OTP. Since the investigative powers of the OTP is of such a character that the administration of international criminal justice will not be endangered to a similar extent as misconduct before the Court, prosecutors (esp. at the investigating stage of proceedings) do not enjoy the same protection as the Court itself. One may question whether this was a wise decision. However, at least misconduct solely before the OTP does not infringe upon the decorum of the ICC to the same extent as does misconduct before one of its Chambers. 17

As concerns the temporal and the local scope of application, article 71 only applies against persons **present** before the Court who commit misconduct. The previous edition comprehensively subscribed to a *narrow reading* of this passage, effectively limiting article 71 to the time span from the beginning³⁰ to the end of a session and to the place where the Court is in session. This would, as a rule³¹, limit the forum where article 71 is applicable to the courtroom³². From this point of view, persons present in the courtroom prior to the Court appearing or after it has left the courtroom could not commit misconduct under article 71. The same would hold true, for instance, with regard to demonstrations on the way to or at the entrance of the courtroom, as well as when the judges meet for informal consultations in one of their offices.³³ – This narrow reading of article 71 has been sophistically challenged by *Turner*, who has interpreted this provision *more broadly* in order ‘to cover even actions outside the courtroom if they disrupt or prejudice ongoing proceedings’³⁴. A literal³⁵ interpretation of article 71 surmises this approach, since all ongoing proceedings under the control or supervision of a Chamber may be counted as happening before the Court so that 18

³⁰ For the commencement of the trial see article 64(8) (a).

³¹ However, when the Court is ‘working’ outside the courtroom like during an on-site investigation or in a separate room for their (secret) deliberations, article 71 would be applicable, too.

³² This is supported by the reference made to ‘the courtroom’ in article 71(1). The courtroom includes the public gallery but not the stairway, the lobby and other rooms in the building of the Court. Under the narrow reading proposed in the previous edition, misconduct outside the courtroom would have to be taken care of by the security forces of the building and the ordinary criminal justice system of where country where the Court convenes (i. e. normally the Netherlands).

³³ Article 71, however, would apply when the Chamber deliberates (officially) outside the courtroom over an intermediate decision or a judgement or sentence.

³⁴ *Turner* (2012) 45 *NYUJIL&Pol* 175, at 236. To the same end, Gut, *Counsel Misconduct before the International Criminal Court* (2012) 258 *et seq.*

³⁵ Yet note that in mn 8 it has been submitted that the wording of article 71 is not necessarily the best arbiter of interpretational disputes.

all persons committing misconduct in this phase may be counted as being present before it. As rightly noted by *Gut*, expressions like before the court are ‘routinely used to describe a state where persons enter into a relationship with the Court and, to that effect, figuratively speaking, go before the Court’³⁶. – *Trial Chamber V* has recently opted for a narrow reading. In a highly instructive decision, it maintained the following:

‘Article 71 is specifically directed towards conduct occurring within the courtroom referring as it does to ‘persons present before’ the Court. This narrow interpretation is supported by reference to the French version of the provision which unambiguously refers to ‘l’inconduite à l’audience’. It is also consistent with the only Appeals Chamber decision to date in which the provision has been considered. In that decision, issued in the *Lubanga* case in October 2010, the Appeals Chamber reversed a decision of Trial Chamber I to stay the proceedings for failure of the Prosecution to follow its directions reasoning that the Trial Chamber should first have considered sanctions pursuant to Article 71. Although the Appeals Chamber did not directly consider the question of whether article 71 of the Statute is limited to misconduct committed during or in close connection with courtroom proceedings, it is significant that the directions in question had been given orally and in writing during the course of an ongoing trial. Finally, the Chamber notes that equivalent misconduct provisions at other international courts are not limited to persons “present”, suggesting that an in-court requirement was purposefully included by the drafters.’³⁷

The Trial Chamber used this restrictive reading of article 71 in order to draw on a ‘power source’ unfettered by the Statute or the RPE. For the Trial Chamber considered that it had the

‘power to address misconduct occurring *outside the courtroom* by having recourse to its broad discretionary powers to ensure a fair trial and uphold the interests of justice as provided for in Article 64(2) of the Statute and to rule on any other relevant matters in performing its functions as provided for in Article 64(6)(f) of the Statute [as part of] the “*inherent powers*” which provide courts with authority to undertake all acts reasonably required to efficiently perform their functions’³⁸.

It remains to be seen whether this view holds water. The fundamental question is one about the correct allocation of law making power. Either the Court itself holds the prerogative to flesh out the law of misconduct outside the courtroom under a flexible (but indeterminate) concept of ‘inherent powers’, or it is for the Assembly of States Parties to amend the RPE to concretize this body of law pursuant to articles 71, 51(2). If the latter were to prevail, a wide reading of article 71 at least would allow the Court to enforce its concrete orders outside the courtroom, or against persons no longer in its immediate presence, or against persons no longer involved in international criminal justice (for example, if a resigned prosecutor discloses confidential information)³⁹.

III. Substantive scope of application: ‘misconduct’

1. The *actus reus* of misconduct

- 19 The Court may sanction persons present before it who (at minimum: objectively⁴⁰) commit **misconduct**. Misconduct is a highly indeterminate term. In light of its ordinary meaning, misconduct encompasses any unacceptable or improper behaviour that violates the dignity of the Court, the decorum of the proceedings or (and most importantly) the fair and effective administration of justice (including the independence and objectivity of the proceedings under the control of the Court). Misconduct must therefore at minimum threaten the Court as a

³⁶ Gut, *Counsel Misconduct before the International Criminal Court* (2012) 260.

³⁷ *Prosecutor v. Kenyatta*, ICC-01/09-02/11, Decision on the Defence application concerning professional ethics applicable to prosecution lawyers, Trial Chamber V(B), 31 May 2013, para. 13 [doc1599174.pdf].

³⁸ *Ibid.*, paras. 14 *et seq.* (emphasis added).

³⁹ The latter may not have been considered by Sluiter et al., *International Criminal Procedure: Principles and Rules* (2013) 756. On the *Hartmann* situation used as an example in the main text, see the ICTY Case Information Sheet available at <http://www.icty.org/x/cases/contempt_hartmann/cis/en/cis_hartmann_en.pdf> accessed 17 September 2015.

⁴⁰ Mere thoughts of misconduct do not, of course, suffice.

whole, or one of its organs or another person present before it. Paragraph 1 gives only two examples of (especially) serious misconduct: disruption of proceedings and deliberate refusal to comply with the Court's directions (see mn. 21 and 22).

Behaviour is not improper, i. e. **does not constitute misconduct**, if it is **justified**. This may require a careful balancing of conflicting interests and values. For instance, 'using' procedural rights (like the nomination of witnesses) must normally not be counted as 'misconduct' (even if it delays the proceedings or burdens the Court *etc.*). Also basic and fundamental rights come into play; for instance, disobeying a court order not to disclose information must not be counted as misconduct, if (!) this disclosure is (in exceptional cases) protected by the freedom of expression and press.

Article 71(1) and rule 170 allow for sanctions in case of the **disruption of proceedings**. 21 Rule 170 reads:

'Having regard to article 63, paragraph 2, the Presiding Judge of the Chamber dealing with the matter may, after giving a warning:

- (a) Order a person disrupting the proceedings of the Court to leave or be removed from the courtroom; or,
- (b) In case of repeated misconduct, order the interdiction of that person from attending the proceedings.'

A narrow interpretation suggests that a disruption of proceedings requires an actual and factual interruption (or a concrete threat thereof) of a Court session (*e. g.* by way of a physical or verbal attack of a judge *etc.*). In this case, a disruption of proceedings does not necessarily entail that it is physically impossible for the Court to continue its task. It is sufficient that the behaviour clearly interferes with the proper and undisturbed exercise of the functions of the Court (for instance, by shouting or making other noises that make it virtually impossible for other persons present before the Court to make themselves understood). – A literal interpretation of article 71(1), rule 170 also allows for a wider reading; after all, the interference, upsetting, obstruction, hampering, or delaying of proceedings are viable synonyms for the disruption of proceedings. – Yet since rule 170 clearly relates the misconduct of 'disruption' to the sanction of 'removal from the courtroom', this wide reading is not convincing. Disruption (only) occurs if it can be stopped by the removal of the disruptor, i. e. if the physical presence of the disruptor causes the disruption of the proceedings.

Article 71(1) and rule 171 allow for sanctions in case of a **deliberate**⁴¹ **refusal to comply with the Courts' directions**. 22 As clarified by rule 171(1), this direction can either be given orally or in writing, and has to be accompanied by a warning of sanctions in case of breach. On the one hand, this limits the substantive scope of applicability of article 71, since these 'directions' have to be concrete and specific; vague and general instructions (like: 'observe the rules, or you will be sanctioned'), or no instructions at all, are not sufficient. On the other hand, concrete and specific directions can pertain to every possible subject matter before the Court, thus widening the scope of applicability of article 71(1), rule 171(1) to an extreme level. To only give very few examples:

- Court order addressed to the Prosecutor not to rely heavily on article 54(3)(e) (bearing in mind that the Court has to resolve the potential tension between the confidentiality to which the Prosecutor has agreed and the requirements of a fair trial)⁴²;
- Court order addressed to the Prosecutor to disclose the identity of intermediaries⁴³;

⁴¹ On this element, see mn. 25.

⁴² This issue became prominent in *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06 OA 13, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I entitled 'Decision on the consequences of non-disclosure of exculpatory materials covered by article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008', Appeals Chamber, 21 October 2008 [doc578371.pdf].

⁴³ This issue became prominent in *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I of 8 July 2010 entitled 'Decision on the Prosecution's Urgent Request for Variation of the Time-Limit to Disclose the Identity of Intermediary 143 or Alternatively [...]', Appeals Chamber, 8 October 2010, para. 59 [doc947768.pdf].

- Court order (addressed especially to the parties and the accused) not to disclose classified or confidential information, e.g. about sensitive case information learned as a Prosecutor,⁴⁴ about the identity of protected witnesses⁴⁵ or about witness testimony given under the Court assurance of non-disclosure⁴⁶;
- Court order addressed to Counsel to notify another binding order to the State to whom it is directed⁴⁷;
- Court order addressed to the witness to testify (provided that the witness does not enjoy the protection against self-incrimination, in which case his or her silence is justified, at least as long as the Court does not follow the rule 74(2) procedures). In this respect it has to be noted: Article 70 does not make it an offense for a witness to remain silent (refusing to testify does not constitute an offence under article 70(1)(a), since no ‘false testimony’ is given)⁴⁸. This allows recourse to article 71, which is the only way to induce witness cooperation, as a special enforcement sanction (*‘Beugestrafe’*), as included in some national legal systems, is not provided for in the Rome Statute.

It is still open for debate, whether the Court direction (the violation of which then gives rise to a sanction pursuant to article 71(1), rule 171) has to be lawful or, in contrast, whether it suffices that it is final and conclusive (i. e. that it can no longer be challenged as such). The latter seems more convincing. Article 71 only allows for administrative sanctions; non-compliance with Court orders consequently is but a regulatory offence. At least once the person not complying with the Court direction forfeited the right to challenge the decision as such (e.g. by lapse of time), non-compliance with this direction may be sanctioned even if said direction was unlawful; this does not hold true if the direction was null and void.

- 23 The word ‘including’ suggests that **other behaviour** may also be considered as **misconduct**. Because of this lack of legal certainty, article 71 appears questionable in light of the legality principle. Yet this critique is unfounded: *First*, it has to be noted that article 71 only allows for regulatory or ‘administrative measures’, not for criminal punishment in the narrower sense. These regulatory sanctions do not impose harm or deprivation of liberty for particular grave violations of the administration of justice (such violations are exhaustively covered in article 70(1))⁴⁹. Nevertheless, even mere regulatory misconduct should not be decided on an *ad hoc* basis, but be established prior to the potential misbehaviour, and

⁴⁴ See e.g. the ICTY *Hartmann* case, IT-02-54-R77.5. As summarized by the ICTY Case Information Sheet, Hartmann knowingly and wilfully interfered with the administration of justice by disclosing information in violation of an order of the Appeals Chamber dated 20 September 2005 and an order of the Appeals Chamber dated 6 April 2006, through means of authoring for publication a book entitled *Paix et Châtiment*, published by Flammarion on 10 September 2007, and by authoring for publication an Article entitled *Vital Genocide Documents Concealed*, published by the Bosnian Institute on 21 January 2008. See <http://www.icty.org/x/cases/contempt_hartmann/cis/en/cis_hartmann_en.pdf> accessed 17 September 2015.

⁴⁵ See e.g. the ICTY *Haxhiu* case, IT-04-84-R77.5. As summarized by the ICTY Case Information Sheet, Haxhiu knowingly and wilfully interfered with the administration of justice by revealing the identity of a protected witness in an article he wrote and published. See <http://www.icty.org/x/cases/contempt_haxhiu/cis/en/cis_haxhiu_en.pdf> accessed 17 September 2015.

⁴⁶ See rule 74(3)(c)(i), (7)(b) and (c): The Chamber may require a witness, who enjoys *nemo tenetur* rights, to answer the question or questions, after assuring the witness that the evidence provided in response to the questions will be kept confidential and will not be disclosed to the public or any State. In order to give effect to the assurance, the Chamber shall order that the identity of the witness and the content of the evidence given shall not be disclosed, in any manner, and provide that the breach of any such order will be subject to sanction under article 71; the Chamber shall specifically advise the Prosecutor, the accused, the defence counsel, the legal representative of the victim and any Court staff present of the consequences of a breach of the order.

⁴⁷ On this issue, see *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11, Public Redacted Version of the Leave to Reply to ‘Libyan Government’s Response to the Saif Al-Islam Gaddafi ‘Addendum to the ‘Urgent Defence Request’ of 21 January 2013, and Request for Finding of Non-Compliance’, Defence for Mr. Saif Al-Islam Gaddafi, 3 June 2013, para. 11 [doc1599622.pdf].

⁴⁸ By contrast, according to rule 77(A)(i) RPE ITCY, the ICTY may hold in contempt those who knowingly and wilfully interfere with its administration of justice, including any person who being a witness before a Chamber, contumaciously refuses or fails to answer a question.

⁴⁹ This holds true even though an administrative fine, at least factually, leads to similar results as a fine for a criminal offence against the administration of justice.

thus requires precise definitions. *Second*, rules 170 to 171 foreclose such ad hoc amendments. These rules do not mention examples of misconduct other than those given in article 71, and do not empower the Court to come up with ‘new’ misconduct other than the disruption of proceedings and the deliberate refusal to comply with a Court direction. The openness of article 71 is thus essentially addressed towards the Assembly of States Parties as the ‘ordinary’ legislator of the RPE (for a comparable interpretation of article 71 as concerns the sanctions available to the Court, see mn. 29). Therefore, at least under article 71, the Court must not sanction (deliberate) non-compliance with international criminal procedure without there being a specific and concrete court order. For example: Smoking in the courtroom must not be sanctioned under the provision, even if a ‘no smoking’ sign is in place. Under article 71(1), rule 170 and 171, the Court first has to issue a warning and has to issue a direct non-smoking order before removing the smoker from the courtroom.

2. The *mens rea* of misconduct

Whether **misconduct necessarily requires a mental element** is open for academic, but not 24 for practical debate. As to the academic debate: On the one hand, the previous edition argued as follows: According to article 30(1), the Statute requires that ‘[u]nless otherwise provided a person shall be criminally responsible and liable for punishment for a crime within the jurisdiction of the Court only if the material elements are committed with intent and knowledge’. Although article 30 only applies to ‘crimes within the jurisdiction of the Court’, this provision expresses a general principle of criminal law, which has to be applied *mutatis mutandis* to misconduct as well. – On the other hand, one might also consider the following: To the extent that article 71 covers the prevention or interdiction of unacceptable or improper behaviour, i.e. to the extent that a sanction does not retrospectively punish, but prospectively polices misconduct, the wording of article 71(1) also encompasses strict liability misconduct. The ASP would thus be allowed to regulate, in the RPE, misconduct without it containing a mental element.

In practice, however, this academic dispute is moot. **Rules 170 and 171 both require a 25 mental element.** In case of a disruption of the proceedings, a sanction under rule 170 must only be issued after a warning was given, thus making the person concerned at least *aware* of her or his disruptive behaviour. And under rule 171(1), a sanction may only be issued if the misconduct is a *deliberate* refusal to comply with an oral or written direction by the Court and only if that direction is accompanied by a warning of sanctions in case of breach; such non-compliance is deliberate, if it is done consciously and intentionally. With regard to both, to awareness under rule 170 and to deliberateness under rule 171, one may also loosely draw on the contempt jurisprudence of the ICTY for further clarification. As stated by the ICTY:

‘[I]n most cases where it has been established that the alleged contemnor had knowledge of the existence of the order (either actual knowledge or wilful blindness of its existence), a finding that he intended to violate it would almost necessarily follow. There may, however, be cases where such an alleged contemnor acted with reckless indifference as to whether his act was in violation of the order. In the opinion of the Appeals Chamber, such conduct is sufficiently culpable to warrant punishment as contempt, even though it does not establish a specific intention to violate the order. The Appeals Chamber agrees with the prosecution that it is sufficient to establish that the act which constituted the violation was deliberate and not accidental’⁵⁰.

IV. Sanctions available to the Court: ‘Administrative measures’ ‘such as’ ‘removal from the courtroom’ or a ‘fine’

Article 71(1) is explicit in that the sanctions available to the court only encompass 26 **administrative measures** other than imprisonment. Misconduct under this provision is thus only a regulatory offence, and the sanctions mentioned therein must not be equated with

⁵⁰ *Prosecutor v. Aleksovski*, IT-95-14/1-AR77, Appeals Chamber, Judgement, 30 May 2001, para. 54.

(criminal) punishment. Article 71(1) considers temporary or permanent removal from the courtroom or a fine as administrative measures, and also empowers the Assembly of States Parties to come up with similar measures in the RPE⁵¹. From this one can learn that the RPE are exhaustive as concerns similar measures, and the Court is *not* empowered to explore ‘new’ administrative sanctions when article 71 is applicable; this explains (but does not necessarily legitimizes) why Trial Chamber V has opted for a very restrictive reading of this provision⁵².

- 27 **Removal from the courtroom** is covered by both rules 170 and 171. Rule 170 allows for ordering a person disrupting the proceedings of the Court to leave or be removed from the courtroom, and for ordering the interdiction of that person from attending the proceedings in case of repeated misconduct. Rule 171(1) allows for ordering the interdiction of a person deliberately refusing to comply with a Court direction from the proceedings for a period not exceeding 30 days. Rule 171(3) also allows for a longer and even permanent interdiction, namely when the presiding judge considers that a longer period of interdiction is appropriate, and then refers the matter to the Presidency, which may hold a hearing to determine whether to order a longer or permanent period of interdiction. – ‘Removal’ means physical exclusion, and also encompasses means to hinder the person concerned from reentering the courtroom; this, in turn, does however not include any form of (preventive) detention, since a legitimate curtailing of the freedom to enter does not cover infringements upon the freedom to leave. – The previous edition proposed that the Court may remove the public as a whole or exclude it right from the beginning. However, since this scenario is regulated by article 64(7), which all the more foresees infringements upon the principle of a public trial only in very limited circumstances, one can indeed question whether article 71 allows for the exclusion of the general public; rules 170 and 171 suggest the contrary, as it is not foreseen therein.
- 28 Ordering a **fine** is possible under rule 171(1), but only if the misconduct constitutes deliberate refusal to comply with an oral or written direction by the Court, and only if this misconduct is of a more serious nature and cannot be addressed by interdiction from the proceedings for a period not exceeding 30 days. A fine is thus, according to the RPE, the graver administrative measure (which indeed is a questionable categorization). Pursuant to rule 171(5), a fine imposed under sub-rule 1 shall not exceed 2,000 euros, or the equivalent amount in any currency, provided that in cases of continuing misconduct, a new fine may be imposed on each day that the misconduct continues, and such fines shall be cumulative.
- 29 The RPE cover **similar administrative measures** only in rule 171(2). If the person committing misconduct as described in sub-rule 1 is an official of the Court, or a defence counsel, or a legal representative of victims, the Presiding Judge of the Chamber dealing with the matter may order the interdiction of that person from exercising his or her functions before the Court for a period not exceeding 30 days. The sanction thus lies in banning organs of international justice from their exercising their functions before the Court. Pursuant to rule 171(3), the Presidency, where appropriate, may extend this ban over the 30 day period mentioned in sub-rule 1, and may even (theoretically) order a permanent ban. Since the latter is an extreme measure, one may question whether it is similar *e.g.* to a permanent exclusion from the courtroom. At minimum, a permanent ban has to be reserved to extreme cases. What is more, a (temporal or permanent) ban to exercise official functions must not infringe upon the fair trial principle, the principle of effective defence, and indeed the effective administration of international justice in general. Resorting to a ban or even a substitution of (a permanently banned) Counsel during proceedings is thus delicate at best, if not legally impossible. – Although other administrative measures are easily conceivable, they are not regulated in the RPE, and hence are not available to the Court in article 71 procedures.

⁵¹ This rather vague formulation in article 71 is due to the fact that at Rome the task to specify the behaviour to be sanctioned was left to the imagination of the drafters of the RPE and thus eventually to the Assembly of States Parties.

⁵² See see at mn. 18.

V. Discretion: ‘may’ (including article 71 as *prima ratio* to ensure a fair trial)

Article 71(1) only states that the Court ‘may’ impose sanctions against persons committing misconduct before it. This implies a great amount of discretion on the side of the Court. 30

The Chambers’ discretion to avail or not to avail itself of article 71 is considerably lessened 31 by Appeals Chamber jurisprudence that makes recourse to this provision the *prima ratio* to ensure a fair trial. Generally speaking, inducing compliance with judicial orders or the demands of criminal procedure can be achieved in multiple ways, especially when it comes to prosecutorial malfeasance and misconduct. While some jurisdictions focus on extra-judicial disciplinary action (like the notorious reliance on ‘*Dienstaufsichtsbeschwerden*’ in Germany), other jurisdictions venture to where it ‘really hurts’, requiring the exclusion of illicit evidence or even a stay or bar of proceedings when prosecutorial non-compliance renders a trial unfair. Specifically with regard to the Rome Statute, the Appeals Chamber in *Lubanga* developed a somewhat novel middle ground. On the one hand, it confirmed that article 71 is not suspended by possible disciplinary action against the parties. On the other hand, it postulated that staying the proceedings is *ultima ratio*. Article 71-action thus emerged as the *prima ratio* to steer the proceedings towards the ends of the Chamber:

‘Given their specific inclusion in the Statute and Rules of Procedure and Evidence, sanctions under article 71 and rule 171 are the normal and proper means to bring about compliance in the face of refusals to follow the orders of a Chamber. Recourse to sanctions enables a Trial Chamber, using the tools available within the trial process itself, to cure the underlying obstacles to a fair trial, thereby allowing the trial to proceed speedily to a conclusion on its merits. Doing so, rather than resorting to the significantly more drastic remedy of a stay of proceedings, is in the interests, not only of the victims and of the international community as a whole who wish to see justice done, but also of the accused, who is potentially left in limbo, awaiting a decision on the merits of the case against him by the International Criminal Court or another court. Accordingly, the Appeals Chamber finds that, to the extent possible, a Trial Chamber faced with the deliberate refusal of a party to comply with its orders which threatens the fairness of the trial should seek to bring about that party’s compliance through the imposition of sanctions under article 71 before resorting to imposition of a stay of proceedings’⁵³.

Only when ‘all hope is lost’, i. e. when there is a complete loss of control over proceedings and a fair trial already has become irreparably impossible,⁵⁴ are sanctions under article 71 no longer an option to bring the parties back on track of a fair trial. – From a normative point of view, this jurisprudence promises a novel way to police the parties, although it raises many questions⁵⁵ (Who pays for Court fines against the OTP? The Court itself?; Are article 71 sanctions sufficient to induce compliance?; Will article 71 sanctions ‘pollute’ the collegial atmosphere in The Hague? *Etc.*). At first glance, it may indeed be ‘stronger’ than an all too reluctant approach relying on disciplinary action and an all too absolutist and drastic approach encroaching on the expressive aims of international criminal justice.

VI. Procedure

1. Sanctioning procedure within the RPE: ‘procedures governing the imposition’ of a sanction ‘shall be those provided for in the RPE’

Article 71(2) fuels high expectations: Supposedly, the procedures governing the imposition 32 of sanctions pursuant to article 71(1) shall be provided for in the RPE. In reality, however,

⁵³ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I of 8 July 2010 entitled ‘Decision on the Prosecution’s Urgent Request for Variation of the Time-Limit to Disclose the Identity of Intermediary 143 or Alternatively [...]’, Appeals Chamber, 8 October 2010, paras. 59 *et seq.* [doc947768.pdf].

⁵⁴ *Ibid.*, para 60.

⁵⁵ On these questions also cf. Turner (2012) 45 *NYUJIL&Pol* 175.